



ETHIOPIAN CONSTITUTIONAL LAW

(SECOND EDITION)



A Textbook

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Addis Ababa, Ethiopia
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WITH COMPARATIVE NOTES AND MATERIALS
A TEXTBOOK

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Preface to the First Edition

Writing a textbook is not an easy task. One's first attempt at writing a complete textbook is even more difficult. It may be that the first shortcoming of this textbook is the attempt to launch it as such. Having noted the impossibility (and indeed undesirability) of coming up with wholly original material by myself, I have heavily relied on several authors – Ethiopian and non-Ethiopian – whose scholarly works have widely circulated around the world – both in class-rooms and in the hands of policy makers. Their contribution (see acknowledgement) to the success of putting together a coherent body of materials for our students in this textbook is so great, that it goes far beyond any “thank you” that I could ever say to them. I have used my decade-long teaching of constitutional law at Addis Ababa University and the Ethiopian Civil Service College Law Faculties not only to organize the materials but also to provide my own input by way of observations, interpretations, and questions that appear throughout the materials. Some of the ideas that have been incorporated by way of observations and questions were the ones we raised with many of my talented former students in constitutional law classes. I want to thank them for being such great students, and for their keen interest in constitutional law studies in Ethiopia. Although the practicality of some of the great legal ideals in constitutional law has often been torpid at best, we had a great time imagining their full practicability. And there is no doubt we will continue to be in the same situation for a little while longer.

One of the strengths of this textbook is that it is very rich with materials in most of the areas covered in it. I made the utmost attempt to make sure that the students have access to candid discussions on the all-time difficult issues such as Democracy, Constitutionalism, the Rule of Law, Federalism and Self-determination. A large body of materials by scholars has been excerpted and presented. I am a keen believer in exposing students to the writings of scholars first-hand, rather than in a re-written (undoubtedly simplified!) way. The latter approach would limit the learning ability of the students. Although some reviewers who have read the earlier draft of this textbook suggested such a simplification approach, for the reasons just stated, I declined to heed their suggestion. I have approached most of the Ethiopian materials in an open-ended way so that the students using the materials will not be confronted with opinionated material. I want the materials and the discussion on Ethiopia to be inviting and discursive, rather imposing my own or anyone else's opinions. I hope that I have succeeded in doing that. The future edition of this textbook will primarily aim at including more original Ethiopian discussions in the areas of the textbook where they are thin now.

The dearth of materials for law students in Ethiopian constitutional law cannot be exaggerated. There were no formal attempts made after the two seminal volumes on ‘Ethiopian Constitutional Development,’ Volume I (1967) and Volume II (1972) by James C. N. Paul and Christopher Clapham. Although these volumes still contain valuable information and materials, due to many changes and discontinuity of events, they cannot guide teaching and learning in constitutional law in Ethiopia at the present time. Therefore, a sequel should have been provided long ago. I hope that this textbook will – if only in a modest way – serve as one. The materials covered in the text are meant to embrace, by and large, all the topics of learning to be covered in a two-semester constitutional law course. At least from my own experience in having taught the course, these were the topics my course endeavoured to cover over a span of two semesters. It may be said that, compared to standard textbooks in, for example, the U.S., whose law schools frequently use textbooks of more than a thousand pages, I believe that this can be considered a short textbook. In any case, the suitability of this size of the material for the two courses will be tested in use over the coming years, and a future edition will be designed by taking into account the feedback of the users – instructors and students.

The textbook contains seven chapters. It begins with generalities and concepts of constitutional law that are very useful to understand constitutional law and distinguish it from other laws. The second chapter deals with the core concepts of modern constitutional theory: Constitutionalism, the Rule of Law and Democracy. The materials in this chapter encompass a large body of literature in law and political science with the purpose of presenting the currents of thoughts in these areas from across the concerned

disciplines. The materials will enable the students to grasp the theoretical currents and use them to understand our constitutional system better. Chapter three takes on constitutional development in Ethiopia, where students will examine limited but very pertinent materials about the history of public law and public administration before the present system. Chapter four deals with separation of powers and forms of government, and it presents important materials on, among other matters, the three branches of government in Ethiopia and other nations. Chapter five contains the discussion on federalism, self-determination and legal pluralism. This chapter contains current and topical materials that will help view the controversial issues of Ethiopian federalism and self-determination in more academic and scientific ways. Chapter six deals with fundamental rights and freedoms. The discussions in this chapter are fashioned on the basis of chapter three of the Ethiopian Constitution. Discussions on minority and gender rights have also been included in this chapter. Finally, chapter seven introduces the complex issues of constitutional interpretation in Ethiopia in a fashion that does not overburden LL.B. students' level of comprehension.

As regards the structure of the chapters, I would like to state two principles of organization that I used. First, I have tried to start with the usual "first matters" in constitutional law studies, such as definitions and fundamental concepts, and then I moved on to more discursive topics. Unlike what many reviewers have suggested, I did not start with the Ethiopian Constitutional development chapter. This is because I believe that students must become familiar with constitutional theories and concepts before they deal with a given body of constitutional development or a lack thereof. The present position of Ethiopian constitutional history, after the discussions in Chapters one and two, will enable the students to critically evaluate the status of public law in Ethiopia during the past governments. The second organizational matter that I was confronted with was whether to separate the textbook into two parts: an Ethiopian part, and a general comparative, theoretical part. Again, in spite of the suggestion by some reviewers, I have chosen to present the materials in a unified fashion. This is primarily because the course to be taught is Ethiopian Constitutional Law. Therefore, there is no point in teaching theory and comparative materials separately without intermeshing the latter with the Ethiopian materials, issues and views. I have taught constitutional law in both approaches, and in the separation regime, what normally happened was that the Ethiopian part was pushed to the backyard and there was seldom the adequate time to cover it reasonably well. Furthermore, the lack of time was often presented as a scapegoat to avoid discussing sensitive constitutional issues.

I would like to register my special gratitude to ABA-ROLI Ethiopia Program for appreciating the problem, and covering the cost of both the preparation and publication of this textbook. My hearty appreciation is also due to Mr. Mandefrot Belay (Country Director of the ABA-ROLI Ethiopia Program) for being patient with my rescinding on several deadlines and continuing to be optimistic of its delivery. I thank also my good friend, Mesfin Tafesse (also at the ABA-ROLI Ethiopia Program), for his friendly encouragement and inspiration. Finally, my dear wife, Tigist Melku (Tigo) deserves very special thanks for taking care of our two kids – Bruktawit (Ruth) and Ezana – and many other chores when I had to work, at times, for long hours on this material. Last, but by no means the least, I express my deep gratitude and appreciation to the editors who have meticulously read, and given me their thoughts on the contents as well as editorial, linguistic and stylistic matters of the materials.

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20 September 2011

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Preface to the Second Edition

The first edition of *Ethiopian Constitutional Law: with comparative notes and materials—A textbook* was published in 2012. It was organized into 7 main chapters in the following order: constitutions and constitutional law; constitutionalism, the rule of law and democracy; Ethiopian Constitutional development up to 1991; Forms of government and separation of powers; Federalism self-determination and legal pluralism; fundamental rights and freedoms; and enforcement and interpretation of the constitution. Each of these chapters had sub-chapters and sub-themes.

Since its publication in 2012, the book has been put to use as a resource to students, faculty and researchers around the country. It received very positive feedback from users and the challenge actually was to meet the request for copies of the book. However, ten years after the first edition, so many things have changed—in the country and around the globe—in the public law sphere, not to mention the slew of new scholarship produced in the area. I have embraced the opportunity provided by the *Feteh (Justice) Activity* in Ethiopia to produce the second edition.

The second edition is organized into 12 chapters. The materials that have been retained from the first edition have mostly been substantially reorganized. Large amount of up-to-date materials have also been included. Some subject areas such as making and amendment of constitutions, that were previously discussed as part of chapter one, are now each given chapter-level treatment (chapter two and chapter three) due to the prominent attention currently being given to these areas of constitutional law.

New materials and discussion issues have been added to all the chapter of this edition. In addition to the reorganizing the chapters of the first edition and adding new themes and sub-themes to the newly reorganized chapters (chapter 5, 6, 8, 9, 11 and 12), two new chapters are included in this edition: chapter seven: *Government, the Judiciary and Emergency Powers*, and chapter 10: *Civic and Ethnic Nationalism*. The discussions under chapter seven are believed to help students and other users of the textbook to understand the legal and political issues that arise when state of emergency is declared, as has happened in Ethiopia over the past years. Readers will also be able to see the emergency power bestowed by the Constitution on the Ethiopian authorities vis-à-vis those prevalent in other jurisdictions. The chapter on civic and ethnic nationalism is meant to highlight the two contending strands of nationalism in Ethiopia and elsewhere in the world, and to help students locate going concerns and gain basic insights.

I am grateful to those who directly or indirectly helped in the production of this edition. I am deeply grateful to *Feteh (Justice) Activity in Ethiopia* not only for covering the costs of research of the revised edition and its publication but also for allowing me more time and patiently waiting for the delivery of the edited version. I am also grateful to Dr Zemelak Aytenew for reviewing and commenting on the draft of the edited version.

Getachew Assefa Woldemariam
Addis Ababa
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CHAPTER ONE

INTRODUCTION: CONSTITUTIONS AND CONSTITUTIONALISM

A. Definitional and Conceptual Matters

In the sense we know it today, constitution's history began with the coming into reality of the American Constitution of 1789 (adopted by the framers in 1787 and entered into force in 1789). Most, if not all, states of the world have now a constitution of one or the other type. In the following sub-sections, you will be introduced to some of the basic foundations of. Constitutions, constitutional law as well as constitutionalism. Although all of you are already somewhat familiar with these concepts in your past academic as well as social lives, it is important to understand that your studies in this course will expose you to a deeper, detailed and more analytical study of constitutional law. The study that you will make here will enable you to think about and to resolve problems related to constitutional law, both at the general policy level and at more detailed individual and analytical levels. This section will introduce you to these concepts at a deeper professional level.

1. Defining and Understanding a Constitution and Constitutional Law

What do you understand by the term "constitution"? Is it the same as the term "constitutional law" or different? Also, how does it differ from constitutionalism or constitutional democracy? Read the following excerpt (footnotes omitted), from Giovanni Sartori's seminal introductory work entitled 'Constitutionalism: A Preliminary Discussion', published in Vol. 56, 4 of *The American Political Science Review* (1962). Sartori's analysis of constitutions, and the nexus between the latter and constitutionalism, will help you to grasp foundational issues in this area; thus, his article is extensively reproduced below. As you read it, bear in mind Sartori's distinctions between a constitution (especially a real constitution) on the one hand, and constitutionalism on the other. Is he saying that what some scholars call "fake constitutions" should not be called constitutions at all?

[T]he very term "Constitution" has acquired its modern meaning in English, in the course of the evolution of the English legal terminology. The Latin term *Constitutio* meant the very opposite of what is now understood by "*Constitution*." A *Constitutio* was an enactment; later, after the 2d century, the plural form *Constitutiones* came to mean a collection of laws enacted by the Sovereign; and subsequently, the Church [the Catholic Church] too adopted the term for canonical law.

* * *

[T]he United Kingdom has a difficult and *sui generis* Constitution deriving from a tortuous sedimentation of common law, acts and conventional usage, partly legal and partly [non]-legal.

* * *

[A]s I was recently trying to sort out the juridical features of the present day dictatorial systems, it occurred to me that some English textbooks would be of great help. "No higher law and limitless legislative power," "fusion of powers," "no special protection for fundamental rights," etc.—all these principles applied very nicely to dictatorships. What is more, the very definition given in Where's textbook, "the British Constitution is the collection of legal and non-legal rules which govern the government in Britain," appeared to be—but for the terms "British" and "Britain," the most fitted to describe dictatorial constitutions. (For "rules" applies to any kind of rule—including the rule of ruler ship—and the specification "non-legal rules" just gives the final touch of perfection to the concept of unchecked, uncontrolled and absolute exercise of power.)

[I]n the 19th century, all over Europe as well as in the United States, a general agreement prevailed as to the basic meaning of the term “constitution.” In 1830, and especially during the 1848 revolutions, it was very clear on both sides of the Channel what the people were asking for when they claimed a constitution. If in England, “constitution” meant the system of British liberties, *mutatis mutandis* the Europeans wanted exactly the same thing: a system of protected freedom for the individual, which – according to the American usage of the English vocabulary – they called a “constitutional system.” Having to start from naught, people on the Continent (as was first achieved by the Americans) wanted a written document, a charter, which would firmly establish the overall supreme law of the land. The British too, however, had from time to time, relied on particularly solemn written documents: The Magna Charta, the Confirmation Acts, the 1610-1628 Petition of Rights, the Habeas Corpus Act of 1679, the Bill of Rights, the Acts of Settlement, etc. The circumstance that these British “supreme laws” are not collected in a single document does not really mean that England has an unwritten constitution. I would rather say that the English do not have a codified constitution, i.e., that Britain has a constitution which is written only in part (or, even better, unwritten to a much greater extent than “written” constitutions are), in piecemeal fashion, and scattered in variety of sources.

However, that may be, and if it pleases the British to emphasize the fact that they have a constitution which is not written, this question is of secondary importance. I mean that the written, complete document is only a means. What really matters are the end, the *telos*. And the purpose, the *telos*, of English, American and European constitutionalism was, from the outset, identical. If the English vocabulary had not to this day refused to import the word (another paradox!), this common purpose could be expressed and synthesized by just one word: the French (and Italian) term *garantisme*. In other terms, all over the Western area people requested, or cherished, “the constitution,” because this term meant to them a fundamental law, or a fundamental set of principles, and a correlative institutional arrangement, which would restrict arbitrary power and ensure a “limited government.” And during the whole of the 19th century and until World War I, “constitutions” remained, in the United States, in England, and in Europe, different means (technically speaking) which had nevertheless the same common purpose in view. That is, for almost 150 years “constitution” has been – on the whole – an unambiguous term.

II

In the 20th century, in the few decades following the First World War, this situation of over-all basic agreement has come to an end rapidly and radically. So rapidly and so radically that one must wonder why. The main reason (or, we might say, the specific agent of change) has been, I believe, the following: that legal terminology – to the extent that it affects what Rousseau would have called *droit politique*, political right – shares the same destiny as political terminology in general: that is, it tends to be abused and corrupted.

* * *

--- In our minds, constitution is a “good word.” It has favorable emotive properties, like freedom, justice or democracy. Therefore, the word is retained or adopted even when the association between the utterance “constitution” and the behavioral response that it elicits (e.g., “the constitution must be praised, for it protects my liberties”) becomes entirely baseless. More precisely, the political exploitation and manipulation of language takes advantage of the fact that the emotive properties of the word survive – at times for a surprisingly long time – despite the fact that what the word denotes, i.e., the “thing,” comes to be a completely different thing.

* * *

Descriptively speaking, and having reference, e.g., to the terminology of the Constitution of Pennsylvania of September 28, 1776, a constitution contains two basic elements: a “plan (or frame) of government” and a “bill of rights.” For the framers of the 18th century charters it was self-evident that the two component parts could not be separated: both were needed for a constitution to be a constitution.

They did not mean in the least that any plan of government amounted to a constitution: they meant that this was the case only when a frame of government provided for a bill of rights and the institutional devices that would secure its observance. Constitutional jurists, however, were anxious to put their rationalistically trained juridical consciences at ease by finding a “universal” definition of constitution. And for the purpose they found it expedient to separate the universal trait (the “plan of government” meaning) from the *garantiste* component. Therefore, often enough, they did come to say – *qua* pure jurists – that any “frame of government” amounted to a constitution. They said it, but let me stress this point – they immediately denied it. For they went on to say that “it had become customary” to use the term constitution in a more specific *garantiste* sense; and therefore that, according to this practice, it was improper to hold that every state was a constitutional state. *Every* state had a “constitution,” but only *some* states were “constitutional.”

* * *

Thus, generation after generation, European public law went ahead riding simultaneously two horses: the Constitution as “any State order,” and constitutionalism as a specific “content” of guarantees.

* * *

--- In Italy, and in the 1930’s in Germany, jurists were somehow compelled to adopt a merely formal, “organizational,” neutral definition of constitution. This is not surprising, and Italian and German constitutional lawyers can hardly be blamed for this. What is surprising is that in the meantime the British, too, had come to adopt very much the same position.

Let me refer again to Wheare’s definition, according to which the English constitution is “the collection’ of legal rules and non-legal rules which govern the government in Britain.” Or allow me to quote, as another instance, Jennings’ definition, according to which a constitution is “the document in which are set out the rules governing the composition, powers and methods of operation of the main institutions of government.” The peculiar feature of these definitions is not only the unspecified use of the term rule (even games have “rules”: are they the same kind of rules?), but the silence which covers the *telos* of constitutionalism. Actually they are purely “formal’ definitions, in the sense that they can be filled with any content whatever. We are thus faced, nowadays, with this puzzling situation: that the very inventors of the constitutional solution provide us with a definition which amounts to saying that any instrument of government, any “traffic rule,” is a constitution. And this according to the most authoritative yardstick. It is not astonishing, therefore, if the Continental theory of constitutionalism has shown, since World War II, very little evidence of recovery. For whenever somebody claims that “constitutional dictatorships” have proved that *garantisme* remains the core of constitutionalism, one is likely to be confronted with this reply: why should we be concerned with this problem more than the English?

* * *

[N]owadays “constitution” has become an ambiguous term covering two very different meanings: a strict substantive meaning (the *garantiste* meaning), and a formal, cosmic meaning. It follows from here thus that whereas in the 19th century a question such as, “what is the role of a constitution in a political system?”, could be answered without asking first “what is a constitution?”, this is no longer the case.

It is equally clear – at least to me – that if a constitution is defined as “any way of giving form to any State whatever,” then the question “What is the role of a constitution in a political system?” either cannot be answered, or can be answered only country by country, and even then in a very uninteresting and banal way. For in this case the answer is that the constitution plays no role, properly speaking: It is only a shorthand report which may describe – assuming that the constitution in question is applied – the formalization of the power structure of the given country. (This is not to deny that the conclusion, “the constitution plays no role,” may not be reached also after applying the standards of the *garantiste* type of constitution. I am simply pointing out that the query is relevant only if we consider the constitutions which are supposed to play a role.)

On both accounts, then, we have to make up our minds and to look for a convincing answer to the question, “What is a constitution?”

In the first place, we may say: “This is what I understand when I use this term.” This kind of answer, however, leaves untouched a very basic point, namely: what is the truth-value of this definition? Is it only a “stipulative definition”?

Therefore, and in the second place, we may also find it necessary to say: “The term constitution *ought to* be used in this way.”

In the third place, we may have recourse to a classification. We may say: given the fact that we are now using the term constitution in very different meanings and to cover altogether different references, then let us speak specifically of this and that type of constitution.

These three lines of approach are not mutually exclusive. The contrary is true. But in most cases political scientists either follow solution number one, or solution number three, or both. At any rate, they usually bypass step number two, that is, they usually refrain from saying that the term constitution *ought* to mean this and not that. I wonder, however, whether the “ought” can really be avoided.

When general agreement prevails – as was the case with “constitution” in the 19th century – “ought-propositions” (if I may call them so) are superfluous. In this case one need not discuss whether a definition of “constitution” is merely a private convention of the stipulator (*i.e.*, a stipulative definition), or a lexical kind of definition, or something more, *i.e.*, a definition having warranted truth-value. Agreement automatically settles all these problems. But we live in a world – let me stress – of terminological cleavage in which the “war of words” plays a very important role. Our first reaction has therefore been to make some fine distinctions (*e.g.*, the one between stipulative and lexicographic definitions), and to have recourse to a classification of various meanings and referents of the word constitution.

On second thought, however, one is bound to discover that the stipulative approach is only a fire escape (and an unsafe one at that) which actually helps the fire to grow, and that classifications cannot, *per se*, solve our problems either. Classifications are only *prima facie* a neutral device. Classifications have a purpose in view, and differ according to their purpose. Therefore, classifications cannot replace definitions. They follow a definition of constitution and imply that we have previously taken a stand *vis-à-vis* its nuclear meaning, so to speak. And this meaning cannot be provided by the stipulative approach.

According to this approach, the speaker says: I propose to use the term constitution in this sense, and this is *my* definition of it. The emphasis is laid on the “my” for stipulations are an arbitrary choice. As Richard Robinson asserts in his valuable book “In stipulation we freely make any word mean anything we choose.” This is hardly a way out, however. Let us assume, for instance, that one meets with the following definition: a constitution is the will of the sovereign. In some cases, one could hardly object that this definition is factually false. According . . . to actual practice, it would be quite realistic to say that during Hitler’s decade the German constitution amounted to the will of the *Führer* and Stalin’s constitution can well be resumed in similar terms. As these extreme but very relevant examples go to show, if one wishes to retort that Hitler’s or Stalin’s regime was not a constitutional regime, this cannot be done on the ground that the sentence, “The Soviet constitution was the arbitrary will of Stalin” is factually false, but on the ground that one does not accept the meaning “will of the sovereign” as a permissible meaning of constitution, *i.e.*, because one refuses the definition.

Yet, if definitions are just arbitrary and private stipulations of each speaker, on what grounds may one discuss the definitions of constitution, which differ from his own stipulation? Clearly, one can write a book of 500 pages to show that Hitler’s or Stalin’s so-called constitution amounted to a non-constitutional system; anybody can simply dismiss it by saying: This is your stipulation, but I have mine, and that is that. How easy, and how convenient!

I cannot develop here the criticism of the conventional approach. In my view, definitions are not private conventions of each speaker, but (whenever they have a historical referent) storehouses of past experience shaped by former practice. We bring them up to date, but their ultimate truth-value lies in the fact that they tell us how to behave *as experienced people* in matters regarding which each generation starts by having no experience. And this is precisely the reason why we are not condemned to a solipsistic conventionalism, and why we are entitled to discuss and to look for a “true ‘definition’” (touching on a basic meaning, of course) of equality, of liberty, of law, of constitution, etc. In particular, *the* definition of constitution which has objective worth is the one that appears to be the outcome of a long and painstaking process of trial-and-error concerned with the question: How can we be governed without being oppressed?

Implicitly I have already indicated why I attach a great importance to whether the sentence “This is the meaning of the term constitution” has a normative undertone or not. For if the speaker takes the view that his definition cannot be phrased as a normative proposition – *i.e.*, in the form, “This is also what ‘constitution’ ought to mean” – then, no matter how unwittingly, he is surrendering to the stipulative and conventionalistic approach.

To be sure, one may not be concerned with long-range consequences of this kind. Nevertheless, we must decide here and now the test, or the criteria, according to which we declare: This is the meaning given in this text to the word constitution. Now, are we going to ascertain what “constitution” means in the 20th century by asking the Russians, the Chinese, the Egyptians, and so forth, or by inquiring what the Italians and the Germans were taught to believe a constitutional system to be under Mussolini and Hitler? If so, then I grant that there is no “ought” about it. But otherwise (that is, if we do not believe that knowledge follows a majority principle), then the “ought” is inevitably there – no matter whether openly or not – for surely we are not speaking of what “constitution” actually means to all the people of the world in the 20th century, but of a correct meaning which we find advisable to propose for future observance.

I am acquainted with the sophisticated methodological reasons that are being brought forward to explain why the form “ought” should be expelled from the realm of science, and in particular of political science. Yet, my guess is that future historians will find a much simpler explanation for our “ought to complex.” They will say that we have been unable to meet the challenge of the environment; and rightly so, I believe. For since the beginning of time the people entrusted with the development of learning have allowed this very simple rule: to use the form “is” when they agreed with general usage, and the form “ought” when they did not. Yet, now we refrain from saying “This is what the term constitution *ought* to mean” even though we are well aware of the fact that “constitution” no longer bears a common acceptance and even though we are in a good position to realize that a situation of ambiguity and confusion is being deliberately fostered by political double-talk and insincerity, with the precise purpose of deceiving the audience.

Let there be no misunderstanding. I am not advocating a behavioral “ought,” but a terminological and logical “ought.” The meaning of constitution is neither an arbitrary stipulation, nor something to be discovered in the “popular mind” of semi-literate majorities. At least, if we believe that rational discourse and intelligible vocabulary are to be maintained, then the meaning of “constitution” has been decided by historical testing, and has to be ascertained by adequate information and sound-thinking. And if these criteria bring us to a definition which no longer receives common acceptance, then it is not only right but necessary to say: this is what the term constitution *ought* to mean (for otherwise it is meaningless, or superfluous, or deceiving, or whatever). This does not imply that people are being requested to respond favorably to a certain pattern of constitution defined as “true constitution.” I am only saying that terminological clarity is a basic requirement for any science, and that political scientists in particular have to take stock of the fact that the vocabulary of politics tends to be used for the purpose of beguiling the listener. I am not advocating, therefore, the preferability of one type of constitutional *telos* in relation to another. I am simply saying that it is a scientific requirement to discuss

whether it is proper to use “constitution” where, in order that the public (and even, at times, the expert) be not deceived, we should *not* use this term.

IV

The objection will be that even if we reject the stipulative approach, even then “constitution” is, by its own constitution, an ambiguous term. That is, even if one agrees that constitutions have been shaped by historical experience in order to protect the freedom and the rights of the power addressees, the fact nonetheless remains that constitution has always been a Janus-faced concept, hovering as it were between the idea of “political order” on the one hand and of “limit” on the other. I would however disagree with this statement.

The history of the word in its modern meaning only begins in the 18th century. Let us not confuse the noun with the concept, or, we might say, the Latin *constitutio* with our “constitution,” a homonymy with a homology. In its present-day conceptualization, “constitution” only emerges, perhaps, with Bolingbroke, and the term really gained ground and acquired a definite connotation only in America during the years 1776-1787. The French did not receive it directly from England, but from the Philadelphia Convention. This is not surprising for it was Paine, not Burke and the English writers in general, who gave the first explicit, complete account of the modern concept.

Now, it is undeniable that the whole of the American tradition has understood “constitution” as a means for “limited government.” The same is true, from the outset, for French constitutionalism (should one be reminded of article 16 of the Declaration of Rights of 1789? Or, for the following period, of Benjamin Constant?). And I have previously explained at length why I firmly hold – despite the possibility of exhibiting numberless quotations to the contrary effect – that English constitutionalism belongs entirely to the same tradition: the British advocate, and have advocated from the time of Glanville and Bracton, an “unlimited government” just as much, or, rather just as little as the Americans.

It is not unsafe to conclude, therefore, that, with the decline of the age of Absolutism, people began to cast about for a word which would denote the techniques to be used for controlling the exercise of State power. This term turned out to be (Americans decided this issue) “constitution.” And “constitution” was in no way born as a Janus-faced concept. The term was re-conceived, adopted and cherished not because it merely meant “political order” but because it meant much more, because it meant “political freedom.” We may put it thus: because it denoted *the* distinctive political order which would protect their liberties; or – to paraphrase Friedrich’s felicitous wording – because it not only “gave form” but also because it “limited” government action.

. . . For to us “constitution” means – a frame of political society, *organized through and by the law* for the purpose of restraining arbitrary power. . . [W]e may now turn to the problem of how we should go about classifying the variety of present-day so-called constitutions. . . I agree very much (in substance, even though not in terminology) with the threefold classification suggested by Loewenstein.

Basically we are confronted with three possibilities: (i) *garantiste* constitution (constitution, proper); (ii) nominal constitution; (iii) façade constitution (or fake constitution).

I call “nominal” the constitutions that Loewenstein labels “semantic” (a difficult, and perhaps not quite appropriate labeling). Apart from this semantic divergency, I entirely underwrite his description of the specimen: “The constitution is fully applied and activated, but its ontological reality is nothing but the formalization of the existing location of political power for the exclusive benefit of the actual power-holders. Nominal constitutions are therefore ‘nominal’” in the very simple sense that they bare the “name” constitution. This amounts to saying that nominal constitutions are merely organizational constitutions, *i.e.*, the collection of rules, which organize but do not restrain the exercise of political power in a given polity. Actually, nominal constitutions do not really pretend to be “real constitutions.”

They frankly describe a system of limitless, unchecked power. They are not a dead letter. It is only that this letter is irrelevant to the *telos* of constitutionalism.

The façade constitutions are different from the nominal ones in that they take the appearance of “true constitutions.” What makes them untrue is that they are disregarded (at least in their essential *garantiste* features). Actually they are “trap-constitutions.” As far as the techniques of liberty and the rights of the power addressees are concerned, they are a dead letter.

I suppose that the labeling “façade constitution” will be criticized on the ground that it implicitly rules out the possibility of an educational purpose. But I do not think that a fake constitution has an educational *purpose*. It may turn out that it has an educational *effect*. But this is a very different matter. We are not historians dealing with past events and looking for their *a posteriori* justification. We are concerned with the actual will and actual doings. And to credit with an “educational role” the instances that make forecasts all the more dubious (as in the case when we are confronted with discretionary power) is very much like toying with wishful thinking. Moreover, and in point of principle, education is not the purpose of constitutions. I mean, this is not a sufficient (or sufficiently pertinent) criterion for singling out a special class of “educational constitutions.” A constitution may contain, to be sure, statements of “aspiration” and thereby provide “incentives,” even pedagogic incentives. However, this occurrence does not indicate an essential constitutional feature; it merely indicates a possible content of any type of constitution.

There is often a considerable overlapping between nominal and façade constitutions. The distinction is nevertheless basic, for the two cases are indeed very different. Nominal constitutions actually describe the working of the political system (they do not abide by the *telos* of constitutionalism, but they are sincere reports), while the façade constitutions give us no reliable information about the real governmental process. In most cases one can clearly perceive, despite the overlaps, which is the prevalent aspect: I mean, whether a constitution is basically nominal or basically a disguise. At any rate, or otherwise, the distinction is serviceable for analytical purposes, that, for dissecting the component parts of a “mixed type” (partly nominal and partly fake) of pseudo-constitution.

The distinction is serviceable from another point of view as well, for it goes to show that if we refuse the *garantiste* qualification, then no line can be drawn between “constitution” and “constitutional government.” To be sure, if a constitution is not applied, this is an instance of constitution without constitutional government. But this argument applies only to the façade constitutions. What about the other possibility? In the case of nominal constitutions, we no longer have a “prerogative state” that replaces *de facto* the “legal state”; we have instead a prerogative state legitimized by the constitution. In this latter case, then, we are confronted with a government, which, by definition, will always govern according to the constitution. On what grounds may we maintain that this is not a “constitutional government”? Certainly not on the grounds of logical syntax. Therefore, either we adhere to *garantisme*, or the distinction between constitution and constitutional government really becomes meaningless.

Some troublesome problems arise when one focuses further attention on: (i) the *décalage* between the written and the living constitution, and on (ii) the frequent disregard of some of the constitutional provisions. In this connection, the point can be made that a clear-cut distinction between real constitutions and façade is hardly realistic, since the real ones too come to differ widely, in practice, from their original formalization, or may not be fully activated (the former being usually the case with old constitutions, and the latter with recent ones).

Personally I am not dismayed by the first indictment. If a constitution is written, then, with the passing of time, the formal document and the living constitution inevitably come to be related much as the past is related to the present. (In this sense, then, written constitutions, too, become, in part, non-written.) However, as long as the spirit and *telos* of the original document are maintained in the new circumstances, the *décalage* only affects the myth of a “fixed constitution”; and the American

experience goes to show, if anything, that written constitutions can endure despite the anti-historical assumption upon which they have been conceived.

On the other hand, the remedy for this could hardly be found in a non-written constitution. The drawbacks and the dangers of this solution are so serious, that only the British can afford the luxury of not formalizing their constitution. And it remains questionable whether it is really true that the British constitution is unwritten. (I would be tempted to say that it is “written differently.”)

Questions and Discussion

1. Do you think Sartori was right in likening the juridical characteristics of the British Constitution with those of dictatorial systems? According to Sartori, in what way are the two systems similar? What do you think are the main differences between the British political system and dictatorial systems that exist around the world?
2. Do you agree with Sartori’s characterization of the British Constitution?
3. What was the consensus Sartori says was reached in the 19th century on the term “constitution”? Do you agree? Why or why not?
4. Sartori says that in the few decades following the First World War, the situation of an overall basic agreement as to the meaning of the term “constitution” came to an end “rapidly and radically.” What was that agreement about? Why did it come to an end rapidly and radically shortly after the First World War ended?
5. Sartori talks about the interesting issue of a constitution as a two-faced concept (“Janus concept”) – on the one hand, creating a political order, and on the other hand, limiting government power – as gaining its modern meaning only in the 18th century, and keeping that meaning in the context of “garantiste” constitutions. Why does he state that “nominal constitutions” and “façade constitutions” (fake constitutions) do not share this meaning? Do you agree?
6. Identify the overall weaknesses and strengths of Sartori’s opinion in the above excerpt.

On the history of the concept of “constitution,” critics of Sartori assert that there is a sort of continuum in the substantive meaning of the term “constitution” from the earliest times to the present. For example, Graham Maddox (1982) says that Cicero, the Roman philosopher, used the term *constitutio* to refer to the total composition, the shape or form of the state. Cicero also spoke about the state being the constitution of the people. And that the same type of association of the term constitution with grand norm or law constituting the people was also discernable from the writings of Greek thinkers such as Plato and Aristotle, though Sartori goes as far as saying that Aristotle’s *politeia* was wrongly translated as constitution. He says that Aristotle’s *politeia* conveys the idea of the way in which a polity is designed and this cannot be taken to mean what we ascribe to a constitution, i.e., a frame of political society, organized through and by the law, for the purpose of restraining arbitrary power. He says that Aristotle couldn’t have thought about this. Sartori argues that both the concept and the word “constitution” had already been re-conceptualized to emphasize its purpose of liberty around the time when Montesquieu was visiting England in 1730, although the use of the term “constitution” to denote “techniques to be used for controlling the exercise of State power” was established in America.

In relation to content as well, both past and recent constitutional jurists tend, unlike Sartori, to focus on the meaning of constitutions as legal texts, and have tried to define them as such. W.F. Murphy, J.E. Fleming and S.A. Barber (1995) say, for example, that in its narrowest sense, the term “constitution” refers to the ways in which a government is organized: the reach of public authority, methods of selecting public officials and making policy, as well as division of power among institutions. In its broadest sense, they say, a constitution reaches far beyond government and designates a people’s way of life.

In his more recent work (2007: 13), Walter Murphy defined constitution as follows:

I shall use *constitution* interchangeably with what the Basic Law of the Federal Republic of Germany and the Constitutional Court refer to as the “constitutional order”: the nation’s constitutional text, its dominant political theories, the traditions and aspirations that reflect those values, and the principal interpretations of this larger constitution.

As you will see below in the excerpt from his work, Murphy’s characterization of the notion in the above quotation goes well with what he is known for, i.e., drawing line between “constitutional text” and “constitutional law” of a polity. Elkins, Ginsburg and Melton (2009; 38-39), for their part, argue that the most important role of constitutions is to limit the behavior of government. Constitutions generate a set of inviolable principles and more specific provisions to which future law and government activity more generally must conform. This function—according to these authors—which is commonly given the namesake *constitutionalism* is vital to the functioning of democracy. Without a commitment to a higher law, the state operates for the short-term benefit of those in power or the current majority. The authors note the second function a constitution serves is the symbolic one of defining the nation and its goals. A constitution operates as a device that declares the legitimacy of the perhaps fledgling or otherwise rudderless state and sets aspirations toward which the polity can set steer. This state-building function of constitutions is particularly important for young states, whose citizens have strong ethnic or communal identities that may compete with their loyalty to the state. “The third and very practical function of constitutions is that they define patterns of authority and set up government institutions”, Elkins, Ginsburg and Melton observe.

Do you think that the above meaning given by the scholars applies to both written and unwritten constitutions?

The meaning of a constitution or constitutions advanced by the above scholars serves both written and unwritten constitutions. As we shall later elaborate on this, although most nations now have a document that calls itself a constitution, a very small number of nations do not have such a document. Prominent examples of these nations are Great Britain, Israel, and New Zealand. It is interesting to note that all of the three nations are well functioning democracies. These nations in fact have various sources of their constitutional law in legal as well as non-legal documents and/or traditions and understandings. For example, in the case of Britain (as Sartori also discusses), there are statutes enacted by the Parliament that are considered as the legal sources of its constitutional law which regulate the country’s fundamental political arrangements. There are also other sources. We shall come back to this later when we study types of constitutions.

Other important scholars have also defined the term constitution in more or less the same way. Some of these were critiqued by Sartori earlier. To see but a few of these scholars, we shall first consider Jennings’ definition. Jennings said that a constitution is “the document in which are set out the rules governing the composition, powers and methods of operation of the main institutions of government” (cited in Sartori above). This definition principally deals with the regulatory roles of constitutional law. It also states that constitutions determine the composition of institutions of government, the powers they have and the methods through which they exercise the powers given to them.

K.C. Wheare is another scholar who has given an influential definition of a constitution, although as you have seen earlier, it was ridiculed by Sartori. Wheare said that “a constitution is the whole system of government of a country, the collection of rules which establish and regulate or govern the government.” This definition has many noteworthy elements. The definition states that it refers to the whole system of government, which can be understood to mean the establishment of government institutions, systems and powers. It also states that a constitution is made up of rules, just like any other body of law – rules make the building block of constitutions. Another very important aspect of K.C. Wheare’s definition is that constitutional law establishes and regulates or governs government. This is the key aspect that sets constitutional law apart from other laws in a given country. The task of the

constitution is to create public law relations and to regulate them. This is precisely why constitutions are regarded as aspects of the public law domain in the classification of laws into public and private. Revisit Sartori's critic on this definition. Do you agree with Sartori's argument?

Thomas Paine is another of the early time scholars who attempted to give a precise definition of a constitution. Paine was an 18th century American patriot, author, and political philosopher who was impressed by the American Constitution's creation process and its principles (see *The complete writings of Thomas Paine*, collected and edited by Philip S. Foner (1945)). He therefore sought to define the term constitution on the basis of what he saw happening in America. So he said:

A constitution is not the act of government, but of a people constituting a government, and a government without a constitution is power without right.... A constitution is a thing antecedent to a government; and a government is only a creature of a constitution.

Paine's definition is also instructive for many reasons. An important first noteworthy point is his attempt to distinguish between government and the people by stating that governments cannot and should not create constitutions; rather, a constitution is a thing antecedent to a government and that the latter is the creature of the former. An important normative principle that a constitution is the means of government's legitimacy has also been underscored by Paine's definition. In other words, dictatorships or absolute monarchs lack the legitimacy or the right to govern, though they may cling to power with force. Critics suggested that Paine's definition may be too narrow in the sense that it does not apply, for example, to unwritten constitutions. It also seems to fashion a meaning of constitutions from the point of view of fresh starters such as the U.S.A. in the 1770s and 1780s and therefore may not appropriately reflect other situations where constitution making takes place while governments, though troubled, are in place. These include, for example, cases of constitutional reforms that took place in different parts of the world such as in France in 1958 – resulting in the 1958 Constitution; Belgium in the 1980s and 90s – resulting in the Constitution of 1993; and Spain in the 1970s – resulting in the 1978 Constitution.

How do you understand the case of the 1995 Constitution of Ethiopia in the light of T. Paine's definition? Does it fall under that definition?

The above definitional exercises are meant to help you see the wealth of ideas in the area and are never meant to be exhaustive. But they can shed enough light about what the term and concept "constitution" can mean. On the whole, although the actual ways in which scholars have attempted to define a constitution might vary, there is today an agreement on the basic defining elements of a constitution. Accordingly, a constitution is a body of rules whose pre-occupation is the structure, functions and powers of the organs of state, their relationship to one another, and to citizens or individuals. A constitution consists of laws, rules and other principles which identify and explain the institutions of government, the nature, extent and distribution of powers within those institutions, the forms and procedures through which such powers are to be exercised, and the relationship between those institutions and individuals/citizens whereby the constitution normally embodies or entrenches fundamental rights and freedoms against which state interference is prohibited and/or the state is obliged to make provisions for citizens.

The flip side of the above is that a constitution limits the powers of the government in all cases of constitutional governments. In a constitution, the public authority of a political society is delimited; methods of electing public authority and officials are provided. It also charts the mechanisms and powers of formulating national policies and strategies.

From Walter F. Murphy, "Constitutions, Constitutionalism and Democracy," in Douglas Greenberg, et al. (eds), *Constitutionalism and Democracy: Transitions in the Contemporary World* (Macmillan Publishers Ltd., 1993)

[The note from Murphy's chapter below is an interesting elucidation that interconnects the concepts of "constitution," "constitutionalism", and "democracy." He argues that on the platform of a modern constitution, democracy and constitutionalism combine to produce "constitutional democracy." There are more materials ahead on constitutionalism and democracy in the book. Murphy's discussion will help you to see these concepts as intertwined and functioning jointly in a modern constitution. Defining a constitution, Murphy raises the political nature of constitutions also discussed by Sartori. Although Murphy agrees that constitutions in democratic systems operate well, no constitution can operate fully due to power holders' maneuvering or disregarding it. He cites the famous example of the American Constitution, in which certain provisions remained unenforced for decades or even centuries. What do you think are the reasons for such dormancy of constitutional provisions? What does it say about the political system when a good number of the constitutional provisions remain dormant?

Murphy discusses a wide array of functions of constitutions (as Sartori here again). His discussion of society-specific functions of a constitution is remarkable. According to Murphy, a constitution would have a different meaning for a post-conflict society than one that passed through a smooth and peaceful transition. Murphy also describes "formative force" of a constitution as varying from society to society, and he states that a written constitution may give rise to severe conflicts between groups, as in the case of the U.S. civil war, which was fought between the unionists of the North and the separatists of the South. Overall, Murphy's writing will help you to see different facets of constitutional ideas and ideals, and to understand that the constitutional law of a nation is much bigger than its written text.

Scholars no less than public officials and journalists are apt to conflate representative democracy, requiring government by popularly elected officials, with constitutionalism and its demands for limited government, then further confuse a constitution with constitutionalism. This chapter tries to untangle these concepts and analyze the product of their union, constitutional democracy....

The Concept of a "Constitution"

Constitutionalism and democratic theory raise questions about the concept of a constitution and the relationship of any particular constitution to those theories as well as to constitutional democracy. One has to ask what the constitution is: what is its authority? Its functions? What does it include? How does it validly change over time?

What Is a Constitution?

What Is the Constitution's Authority?

To constitute means to make up, or form; thus a nation's constitution should pattern a political system. Some texts implicitly proclaim themselves to be supreme law, and many do so explicitly. Still, a document's bearing the label "a constitution" and declaring its own control over all other political acts proves nothing. We need to distinguish between the authority a text asserts and the authority it exerts.

Constitutional texts fall along a spectrum of authority. At one extreme are shams, such as those of Stalin and Mao. At the other extreme should be those whose provisions are fully operative; but no constitutional text operates with complete authority. Its description of processes may be misleading. For example, the British North America Act of 1867, which served for more than a century as Canada's principal constitutional document, asserted that the British Queen, not a Canadian Cabinet and Prime Minister responsible to a Canadian Parliament, in turn responsible to a Canadian electorate, governed. Seemingly conscientious officials may ignore or skew express commands and prohibitions: U.S. Presidents and legislators have never taken seriously their document's requirement that "a regular Statement and Account of the Receipts and Expenditures of all public Money shall be published from time to time. So, too, for almost a hundred years, legislators, presidents, judges, and the mass of voters

pretended that states were fulfilling their obligation under the Fourteenth Amendment to accord “equal protection of the laws” to blacks and women.

The prevalence—perhaps inevitability—of deviations from the text indicates the complex nature of a constitution’s authority. Thus, when we speak of “authoritative constitutions,” we are talking about those that are only “reasonably authoritative.”

What Are the Functions of a Constitution?

A constitution as Sham, Cosmetic, or Reality. The principle function of a sham constitutional text is to deceive. Lest U.S. citizens revel in righteousness, they might recall that Charles A. Beard charged the framers of the U.S. text with hypocrisy, and the Conference of Critical Legal Studies still so accuses the entire American legal system. Whether Beard and the Critics have told the full story, they have reminded us that a constitutional document’s representation of itself, its people, their value, and decisional processes is imperfect. Thus, even reasonably authoritative texts play a cosmetic role, allowing a nation to hide its failures behind idealistic rhetoric. But, insofar as a text is authoritative, its rhetoric also pushes a people to renew their better selves.

A Constitution as a Charter for Government. At minimum, an authoritative constitutional text must sketch the fundamental modes of legitimate governmental operation: who its officials are, how they are chosen what their terms of office are, how authority is divided among them, what processes they must follow, and what rights, if any, are reserved to citizens. Such a text need not proclaim any substantive values, beyond obedience to itself; if it does proclaim values, they might be those of Nazism or Stalinism, anathema to constitutional democracy.

A Constitution as Guardian of Fundamental Rights. Thus the question immediately arises about the extent to which a constitutional text relies on or incorporates democratic and/or constitutionalist theories. Insofar as a text is authoritative and embodies democratic theory, it must protect to political participation. Insofar as it is authoritative and embodies constitutionalism, it must protect substantive rights by limiting the power of the people’s freely chosen representatives.

The Constitution as Covenant, Symbol, and Aspiration. Insofar as a constitution is a covenant by which a group of people agree to (re) transform themselves into a nation, it may function for the founding generation like a marriage consummated through the pledging partners’ positive, active consent to remain a nation for better or worse, through prosperity and poverty, in peace and war.

For later generations, a constitution may operate more as an arranged marriage in which consent is passive for the degree of choice is then typically limited. Even where expatriation is a recognized right exit from a society offers few citizens a viable alternative. Revolution becomes a legal right only if it succeeds and transforms revolutionaries into founders. And deeply reaching reform from within a constitutional framework tends to become progressively more difficult, for a system usually endures only by binding many groups to its terms.

The myth of a people’s forming themselves into a nation presents a problem not unlike that between chicken and egg. To agree in their collective name to a political covenant, individuals must have already had some meaningful corporate identity as a people. Thus the notion of constitution as covenant must mean it formalizes or solidifies rather than invents an entity; it solemnizes a previous alliance into a more perfect union.

A constitution’s formative force varies from country to country and time to time. The French, one can plausibly argue, have been the French under monarchies, military dictatorships, and assorted republics. It is also plausible, however, to contend that Germans have been a different people under the Kaiser, the Weimar Republic, the Third Reich, and the Federal Republic. In polyglotted societies such as Canada, India, and the United States or those riven by religious divisions and bleeding memories of civil war such as Ireland, “there may be no other basis for uniting a nation of so many disparate groups.” A constitution may thus function as a uniting force, “the only principle of order,” for there may be “no

[other] shared moral or social vision that might bind together a nation.” It is difficult to imagine what has united the supposedly United States more than the political ideas of the Declaration of Independence and the text of 1787.

Reverence for the constitution may transform it into a holy symbol of the people themselves. The creature they created can become their own mythical creator. This symbolism might turn a constitutional text into a semisacred covenant, serving “the unifying function of a civil religion.” In America, “The Bible of verbal inspiration begat the constitution of unquestioned authority.”

Religious allusions remind us, however, that this symbolic role may also have a dark side. Long histories of bitter and often murderous struggles among Christians and among Muslims demonstrate that a sacred text may foster division rather than cohesion, conflict rather than harmony. The “potential of a written constitution to serve as the source of fragmentation and disintegration” is nowhere more savagely illustrated than in the carnage of the U.S. Civil War. For, ultimately, that fratricidal struggle was over two visions of one constitutional document. The result was a gory war that wiped out more than 600,000 lives. Complicating analysis is the fact that when the blood of battle dried, the document of 1787, duly amended, resumed its unifying role.

In a related fashion, a constitution may serve as a binding statement of a people’s aspirations for themselves as a nation. A text may silhouette the sort of community its authors/subjects are or would like to become: not only their governmental structures, procedures, and basic rights, but also their goals, ideals, and the moral standards by which they want others, including their own posterity to judge the community. In short, a constitutional text may guide as well as express a people’s hopes for themselves as a society. The ideals the words enshrine, process they describe, and the actions they legitimize must either help to change the citizenry or at least reflect their current values. If a constitutional text is not “congruent with” ideals that form or will reform its people and so express the political character they have or are willing to try to put on, it will quickly fade.

What Does “the Constitution” Include?

Almost every nation now has a document labeled a constitution; but to have a constitution a nation need not have a text or texts so titled. Britain, Israel, and New Zealand provide plausible examples. Nor does the existence of a constitutional document mean that any particular nation’s constitution is coextensive with the text. What a constitution includes is a problem, not a datum. But where and how do we find the constitution beyond the text? Do subtexts control or mediate the text? How do we identify them? What about interpretations and practices? And what political theories that inform and underpin the text?

The Text. The most obvious candidate is the whole text and nothing but the text. The late Justice Hugo Black and former Attorney General Edwin Meese III were among the more notable Americans to take that position. Such people stress the “writtenness” of the U.S. Constitution, though writtenness, literary, and biblical scholars would warn, sires as well as solves problems. Moreover, Black and Meese qualified their textualism with a commitment to “original intent” or “understanding”—additions to the text.

Less Than the Text. Anything less than the full text might seem a strange candidate, but every constitutional document drawn up in a free society is likely to reflect a bundle of compromises, necessary to obtain approval from the drafters and ratifiers but perhaps not always mutually compatible. As one solution, the German Constitutional Court has proposed reconciliation through structural interpretation:

An individual constitutional provision cannot be considered as an isolated clause and interpreted alone. A constitution has an inner unity, and the meaning of any one part is linked to that of other provisions. Taken as a unit, a constitution reflects certain overarching principles and fundamental decisions to which individual provisions are subordinate.

The final sentence also looks to invalidation, and the Court made it clear that option was also open:

That a constitutional provision itself may be null and void is not conceptually impossible just because it is part of the constitution. There are constitutional principles that are so fundamental and to such an extent an expression of a law that precedes even the constitution that they also bind the framer of the constitution, and other constitutional provisions that do not rank so high may be null and void, because they contravene those principles.

On another occasion, the Constitutional Court divided 4—4 on the validity of an amendment, the Supreme Court in India has several times voided constitutional amendments, and the California Supreme Court has once done so. Moreover, many U.S. presidents, legislators, judges, and commentators have tried to exclude portions of their constitutional text from the canon. The Slaughter-House Cases in 1873, for instance, all but expunged the Fourteenth Amendment’s clause forbidding states to abridge “the privileges or immunities” of citizens of the United States. And despite frequent avowals of textualism, Justice Black could not accept the Ninth Amendment’s declaration: “The enumeration in the Constitution of certain rights shall not be construed to deny or disparage others retained by the people.” Furthermore, many commentators who assert that the text’s principal function is to serve as a character for government dismiss as empty rhetoric the preamble’s statement of purposes, especially its dedication to the establishment of “Justice.”

Intent of the Framers. One might claim that a text can be understood only in light of certain “understandings” and “intentions” founders took for granted. To the extent that such unspoken thoughts control the text, they become a supertext. A quest for original understanding or intent raises enormous methodological, theoretical, and practical problems. After a few years have gone by, interpreters can pursue originalism only through documents, which are fraught with all the hermeneutic problems of the text itself.

Other Documents. Still other texts might have strong claims to canonicity. The Canadian Constitution Act, 1982, for example, explicitly bestows constitutional status on a number of documents. Probably most other nations have candidates with respectable pedigrees. In the United States, the two most robust would be the second paragraph of the Declaration of Independence and *The Federalist*. The Declaration justified the creation of a new nation and set out its founding principles:

We hold these truths to be self-evident, that all men are created equal; that they are endowed by their Creator with certain unalienable rights, that among these are Life, Liberty and the Pursuit of Happiness. That to secure these rights, Governments are instituted among men, deriving their just powers from the consent of the governed. That whenever any form of Government becomes destructive of these ends, it is the Rights of the People to alter or abolish it...

As the definitive statement of the new nation’s basic values, so the argument goes, the Declaration stands until explicitly repudiated, something neither the Philadelphia Convention nor the state ratifying conventions even suggested.

The case for the *Federalist*, essays by John Jay, James Madison, and Alexander Hamilton urging ratification of the newly drafted constitutional text, would be those who ratified the document accepted these views as authoritative and, therefore, they form part of the original understanding.

Practices and Interpretations. Some practices might become settled as to fuse into the constitution. One would expect common-law systems, with their sensitivity to prescription, the doctrine that long and unchallenged usage confers legal title, would be hospitable to such a concept. Canadian judges, however, have been ambivalent, and judges in the United States, though open to such ideas, have also recognized severe problems.

Most fundamentally, governmental practice often violates the basic text; or its underlying principles. Does a long violation effects a constitutional change? If “the constitution” is devoid of normative content beyond obedience to specified procedures, the answer might well be yes. If, however, “the constitution” entails normative political theory, the issue becomes far more complex. Sotirios A. Barber proposes a distinction between practice, a country’s history, and tradition, what the constitution’s underlying theory says its people stand for. The minimum standard he would use to test a practice’s legitimacy is congruence with both document and tradition.

Interpretations trigger similar disputes. Although not every interpretation has a serious claim to be part of the canon, some interpretations meld into the larger constitution. The U.S. Supreme Court’s divination of judicial review provides the most striking example. As one of the Court’s opponents asked at the time. “It is not extraordinary that if the high power was intended, it should nowhere appear [in the text]?”

Political Theories. The case for inclusion of any theory in a particular constitution is empirical, and the mix between political theories may be complex. In the 1990s, democratic and constitutionalist theory are the prime candidates; but, in the recent past, versions of Fascism and Marxism have been successful contenders, and perhaps will be again in the future.

Larry D. Kramer, “The Supreme Court 2000 Term Foreword: We The Court,” in *Harvard Law Review*, Vol. 115 (2001). Footnotes omitted.

[The following excerpt from Larry D. Kramer is included here because it sheds light on the often controversial role of courts in defining and redefining constitutional law. As the author elaborates, a case in point is the role the U.S. Supreme Court has been playing for decades – a role that has had both its supporters and opponents. Kramer also gives a perspective to another way of looking at a constitution: as law, albeit a supreme law. Because of the fact that it is a special law, a constitution’s enforcement and application remains a matter of serious concern, and is the source of a power squabble between the three branches of government.]

I. “WE CALL IT LAW”

For all his genius, John Marshall is seldom included among America's great political or legal rhetoricians. He penned some decent enough lines, but nothing with the power routinely displayed by a Holmes or a Lincoln, or, even among his contemporaries, by a Jefferson or a Paine. There is one line, though, that every lawyer and law student knows by heart, almost by instinct: “It is, emphatically, the province and duty of the judicial department, to say what the law is.” There supposedly, in one pithy sentence, is the Supreme Court's own Declaration of Independence.

But what does Marshall's statement mean - on the ground, in operation? In 1958, the Court insisted in the almost-as-famous case of *Cooper v. Aaron* that *Marbury* “declared the basic principle that the federal judiciary is supreme in the exposition of the law of the Constitution,” adding that this idea “has ever since been respected by this Court and the Country as a permanent and indispensable feature of our constitutional system.” Well, hardly. As we shall see below (though it is by now conventional wisdom), *Marbury* staked out a considerably more modest position, venturing only that it was proper for the Court to interpret the Constitution without in any way suggesting that its interpretations were superior to those of the other branches. And certainly, as we shall also see below (though this, too, is conventional wisdom), the idea of judicial supremacy was not cheerfully embraced in the years after *Marbury*. The Court's periodic tugs of war with the likes of Jefferson, Jackson, Lincoln, the Reconstruction Congress, and FDR, to name only a few, are familiar terrain even to non-historians.

* * *

There is, I believe, a simple explanation both for the general acceptance of judicial supremacy and for the defensiveness of its critics. Put simply, everyone - friend or foe of supremacy - begins with a shared understanding of the Constitution as ordinary law. It is "supreme," meaning it is superior to other forms of positive law and so trumps them when conflicts arise. But in every other respect, the Constitution is just "law" in the conventional sense in which lawyers use the word. It follows, naturally and ineluctably, that judges should be the ones to interpret it. Law is, after all, the stuff of judges; it is what they do. If the law is unclear, interpreting it to clarify its meaning is among the judiciary's central missions. It follows, almost as ineluctably, that judicial interpretations should be treated as conclusive by the other branches. Insofar as questions arise about what a legal text means, courts are where we go to get answers. And once a court has spoken, or at least once the Supreme Court has done so, its interpretations are supposed to trump those of other political actors unless and until the law is formally changed. This is universally acknowledged when it comes to statutes, and insofar as the Constitution shares the same status as these of positive law, there is no reason suddenly to abandon the practice.

For friends of judicial supremacy, recognizing the Constitution's pedigree as ordinary law practically ends the argument. Take the recent defense made by Larry Alexander and Fred Schauer, which despite its many nuanced and complicated arguments, ultimately rests entirely on this single premise. Disagreement with an interpretation, they reason, offers no automatic basis for declining to follow it, because "[a]n important aspect of the Constitution, as of all law, is its authority," and authority necessarily requires actors to submit to decisions with which they disagree. The problem is simply one of deciding who the Constitution's authoritative interpreter should be, a problem that can be solved only by normative inquiry "into the nature of law and into the functions it serves." This inquiry, in turn, leads Alexander and Schauer to urge political actors to defer to the Supreme Court's constitutional decisions for the same reasons we urge them to defer to judicial decisions in every other context. "Some call this positivism," they say, "Others call it formalism. We call it law."

This same view of the Constitution as ordinary positive law also accounts for the difficulties experienced by opponents of judicial supremacy in making their case persuasive to the rest of the academy and to the public. "The most problematic term here is *law*," confesses Mark Tushnet in the preface of his book, *Taking the Constitution away from the Courts*, "[h]ow can constitutional decisions made away from the courts ... be law? If the Constitution is law, after all, it is not (supposed to be) politics. It is, of course, political, in the sense that all law is political: it has political consequences, those who interpret and apply it cannot help but bring their politics with them into the interpretive process, and so forth. But modern recognition of the inherently political nature and structure of law still accepts the fundamental premise that law can and should be separated from politics. Law is, if you will, the part of politics that is supposed to be left to courts and judges. Placing something in a "law" box thus shifts our expectations and assumptions about authority to interpret. If the Constitution is law, then it is those who would argue that courts should not be its authoritative expositor who bear the burden of justifying what amounts to an exception to our normal practice.

The Founding generation did not see the Constitution this way and, as a result, had very different views about the role of the judiciary. Their Constitution was not ordinary law, not peculiarly the stuff of courts and judges. It was, as Part II will show, a special form of popular law, law made by the people to bind their governors, and so subject to rules and considerations that made it qualitatively different from (and not just superior to) statutory or common law.

Americans of the Founding era felt the wonder of popular government in a way that we, who take so much for granted, do not. The United States was then the only country in the world with a government founded explicitly on the consent of its people, and the people who gave that consent were intensely, profoundly conscious of the fact. And proud. This pride, this awareness of the fragility and importance of their venture in popular government, informed everything the Founders did. It was, as Gordon Wood said, "the deeply felt meaning of the Revolution." Modern commentators, especially legal commentators, read the Founders' letters and speeches anachronistically, giving too much weight, or the wrong kind of weight, to complaints about "the excess of democracy." We depict the men who framed

the Constitution as striving to create a self-correcting system of checks and balances whose fundamental operations would all take place from within the government itself, with minimal involvement or interference from the people. Our political grammar is saturated with this reading of the Founding, which sees the movement to write a new Constitution almost exclusively in anti-democratic terms.

There is, of course, some truth to this characterization. Having overvalued the capacity of an unchecked legislature to govern during the wave of romantic enthusiasm that swept the country with the Declaration of Independence, America's leadership relearned the hard way in the 1780s why it was necessary to fragment and separate power within the government. Yet we must be careful, lest we exaggerate the extent of the reaction by focusing too narrowly on its direction. The Federalist "counterrevolution" was not a rejection of republicanism so much as an effort to save republicanism from itself. The Founding generation's ideas about constitutional reform remained thoroughly embedded in a political ideology that celebrated the central role of "the people" in supplying the government with its energy and direction. Preserving liberty demanded a constitution whose internal architecture was carefully arranged to check power, just as it demanded leaders of sufficient "character" and "virtue." But structural innovations and virtuous leadership were devices to channel and control popular politics, not to isolate or eliminate it. The people remained responsible for making things work.

This was particularly true when it came to a constitution, the most direct expression of the people's voice. Listen to St. George Tucker, in an appendix to his 1803 edition of *Blackstone's Commentaries*:

[T]he American Revolution has formed a new epoch in the history of civil institutions, by reducing to practice, what, before, had been supposed to exist only in the visionary speculations of theoretical writers.... The world, for the first time since the annals of its inhabitants began, saw an original written compact formed by the free and deliberate voices of individuals disposed to unite in the same social bonds; thus exhibiting a political phenomenon unknown to former ages [T]he powers of the several branches of government are defined, and the excess of them, as well in the legislature, as in the other branches, finds limits, which cannot be transgressed without offending against that greater power from whom all authority, among us, is derived; to wit, the people.

When Tucker and his contemporaries invoked "the people," they were not conjuring an empty abstraction or describing a mythic philosophical justification for government. "The people" they knew could speak, and had done so. "The people" they knew had fought a revolution, expressed dissatisfaction with the first fruits of independence, and debated and adopted a new charter to govern itself. Certainly the Founders were concerned about the perils of popular government, some of them obsessively so. But they were also captivated by its possibilities and in awe of its importance. Their Constitution remained, fundamentally, an act of popular will: the people's charter, made by the people. And, as we shall see, it was the people themselves - working through or responding to their agents in the government - who were responsible for seeing that the Constitution was properly interpreted and implemented. The idea of turning this responsibility over to judges was unthinkable.

2. Features of a Constitution

From the foregoing discussions, you should have grasped the important place a constitution occupies in the life of a political society. In what follows, we will study certain basic features that distinguish constitutional law from other lower-level laws in a given political society. Scholars have so far indicated that there are four basic features that characterize constitutional documents. These are "generality," "supremacy," "stability," and "rigidity." It is possible that more such features can exist, depending on the ways we look at constitutions as compared to lower-level domestic laws.

- a) **Generality:** Constitutions are generally considered to be general laws as opposed to detailed ones. They provide for a little bit of everything in the social, political, economic, cultural, legal, security, and institutional realms of a nation-state. A constitution typically addresses governments and their sub-divisions; the powers and functions of government institutions and officials; relationships among government and its citizens; and fundamental values and principles in the economic, social, political, and cultural spheres. The broad range of the subjects with which a constitution has to deal would not allow it to be detailed and exhaustive in each and every area. A constitution therefore has to limit itself to matters of general rules and principles in as many areas as foreseeable at the time of its making. The specific rules that are needed to regulate the specific areas should be made by the legislature of the political society.

Though generality is a feature for all constitutions, not all constitutions in the world have a similar level of generality. Some are more detailed than others. A good example is the Indian Constitution of 1950 (as amended), which is over 390 articles long in an attempt to cover as many important concerns as possible, and which has a total length of over 300 pages. The South African Constitution has 243 articles, and is about 100 pages long (including about 25 pages of schedules. The Pakistani Constitution of 1973 can also be considered as one of the longest, as it contains 280 articles and certain schedules, making the total length of the Constitution 108 pages. Although these constitutions can therefore be considered as comparatively detailed constitutional texts, this does not in any way change the generality of these constitutions.

What do you think of the 1995 Constitution of Ethiopia?

The U.S. Constitution may be considered to be the shortest or the most general constitution. The original Constitution (of 1787) was only 7 articles and 10 pages long. With the 27¹ amendments added to it between 1791 and 1992, its total page length has reached about 15. The French Constitution of 1958 can also be considered as one of the shortest constitutions with its 89 articles which total about 10 pages. Similarly, the Japanese Constitution of 1946 is 11 pages long and contains 103 articles.

When we see the 1995 Constitution of Ethiopia, it lies somewhere in the middle between these extremes. It contains 106 articles and about 30 pages long. The above examples show us that we can distinguish among constitutions as relatively detailed or long, short and medium-sized. It is also interesting to note that the areas in which constitutions try to be detailed vary to a great extent from system to system. The Indian Constitution has tried to list the powers of federal and regional governments, and this list occupies a considerable part of the Constitution. In most modern constitutions, the entrenchment of human rights provisions can be generally said to consume a good portion of the constitutions. In the 1995 Constitution of Ethiopia (see annex), approximately 30% of the Constitution has been devoted to the entrenchment of human and democratic rights.

- b) **Stability:** Stability or permanence is also one of the basic features of constitutions. Under normal circumstances, constitutions are worked out in order to govern the social relationships in the political society for an indefinite period of time. The permanence of constitutions is related to their nature and subject matter. We have earlier discussed that constitutions regulate governmental powers and relations and other fundamental matters. These matters are seldom changed.

Once a nation makes its fundamental choices at a given historical juncture, it lives under those choices made. Such fundamental choices include the form of government, the political system and the rights and freedoms that should be entrenched in the Constitution. The need for total change of those fundamental matters would not normally arise. This does not mean that constitutions, once made, shall remain unchanged for all times. Rather, constitutions should be able to govern today's societies, which calls for a constant dynamism of the constitution to keep pace with societal changes.

¹ The 18th Amendment, which prohibited the manufacture, sale, or transportation of intoxicating liquors within, the importation into, or the exportation out of the United States, was repealed by Amendment No. 21.

How can we make constitutions keep pace with the changes in society?

As you shall study at some length in chapter 3 of this textbook, the most important way of ensuring the responsiveness of constitutions is constitutional amendment. This, as we shall later study, is the process of adding, removing, or modifying parts of an existing constitution so it continues to address the needs of the people governed by it. Once great choices are made early when the constitution was first enacted, those needs of change that may arise from time to time may be taken care of by constitutional amendment. There are also other means of validly changing constitutions to make them keep pace with the times. For example, many judges and scholars in the U.S. characterize its constitution as a “living document,” and note that as the society evolves and changes over time, the courts’ understanding of general constitutional provisions evolves along with the society.

Do you think constitutions are automatically permanent/stable just because they are constitutions?

Please read the following excerpt from Tom Ginsburg’s important piece which discusses the issues raised in the above questions with regard to stability or endurance of constitutions.

Tom Ginsburg, “Constitutional Endurance” in Tom Ginsburg & Rosalind Dixon, *Comparative Constitutional Law* (Edward Elgar, 2011). Footnotes omitted.

Constitutions, by their nature, operate in time, seeking to regulate the future on behalf of the past. By providing a relatively enduring basis for politics, constitutions facilitate the operation of government, while at the same time setting out limits on government action. Constitutions also exist in a world of change, and so must adjust to changing conditions. Much constitutional theory wrestles with these dualisms of past and future, empowerment and constraint, change and stability.

* * *

Most drafters of constitutions act as if their handiwork should last a long time and constitutional scholars since Aristotle have generally assumed that endurance is valuable. Indeed, it is safe to say that virtually every normative constitutional theory presumes that constitutions survive over a relatively extended period of time. Without endurance, constitutions cannot provide a stable basis of politics and cannot constitute a people out of diverse elements. The assumption of endurance is thus built into the very idea of a constitution.

In the real world, however, it turns out that most written constitutions are relatively short-lived. In a recent contribution, Zachary Elkins, James Melton and I explored constitutional endurance in some depth (Elkins et al. 2009). We found that the predicted lifespan for constitutions for all countries is 19 years; the observed median is even lower. For some regions of the world, the life expectancy is quite low indeed: the average constitution will last a mere eight years in Latin America and Eastern Europe. The fact of constitutional fragility raises a number of positive and normative questions. First, does constitutional durability really matter? If so, what are the determinants of endurance? Should we care about the survival of a bundle of provisions called the ‘constitution’ or rather the stability of individual norms, which may or may not be instantiated in the text?

* * *

In attempting to control the future, constitution-makers are engaged in an act of 'temporal imperialism' and so have long been subject to critique from those in favor of more radical and continuous notions of democracy. As Noah Webster, a contemporary of the American founders, put it, 'The very attempt to make perpetual constitutions is the assumption of a right to control the opinions of future generations; and to legislate for those over whom we have as little authority as we have over a nation in Asia'. Thomas Jefferson engaged in the most extensive of these critiques, arguing that the dead had no right to govern the living. Jefferson famously calculated the precise period after which a current majority would be replaced by a new one, and argued for constitutional replacement every 19 years so that each generation could determine its own fundamental rules. Jefferson's view is that periodic reconsideration of fundamental principles will keep them fresh and keep the citizenry engaged in the process of self-governance.

The critiques of Webster and Jefferson emphasized the importance of social and environmental change. As societies and their underlying conditions change over time, institutions must adjust with them to be effective. The position that the entire constitution ought to be reconsidered implicitly assumes that normal mechanisms of constitutional amendment will be insufficient to produce optimal tailoring of rules to society. Ordinary amendment processes may be too difficult, and their incremental character may lead citizens to be insufficiently global in their consideration of alternative institutional arrangements. It was thus important to encourage citizens to recast their eyes to more global arrangements. One institutional legacy of this approach is found at the level of American states, a number of which require periodic consideration of constitutional conventions.

On the other hand, there are some good normative reasons to support at least moderate stability in law. Aristotle's *Politics* is the touchstone in this regard. For Aristotle, the strength of law lies in citizens' habits of obedience, which are the only force that gives law power. Instability in law, he argued, can weaken the notion of law itself. Aristotle recognized, to be sure, the need for ongoing interpretation in the context of application of law, a feature demanded by the general character of law itself. But frequent change in the primary rules would seem to undercut the ability of law to inculcate habits of obedience.

Another reason to support the endurance of fundamental rules is that it allows the development of collateral institutions that are not directly created by the constitution but are necessary to make it function effectively. For example, political parties are not directly created by constitutional rules, yet many consider them to have a constitutional character in the sense of being crucial intermediaries for democratic governance. The media and civil society may develop a quality of fitting their particular constitutional environment, so that change in fundamental rules would disrupt their effective functioning. These institutions exhibit what we might call constitution-specificity, a quality of being organically related to the constitutional schemes they inhabit.

Constitution-specific institutions will tend to reinforce existing political arrangements. As collateral institutions develop, they develop constituencies that invest in their processes and structures, and will resist efforts to overturn or modify basic structures too drastically. These constituencies may also have a crucial stake in enforcing the constitution, potentially restricting sovereign power. Periodic changes in the fundamental rules, on the other hand, might encourage opportunistic elites to engineer institutions for their short-term benefit. Furthermore, frequent change makes monitoring by citizens more difficult, and may exacerbate general collective action problems of investment in monitoring.

We thus have reason to think that constitutional endurance can help underpin social and political stability, encouraging gradualist and organic processes of change. Furthermore, the prospect of an enduring constitution can itself resolve political differences among those who are negotiating and drafting the constitution. Van den Hauwe points out that stability is a distinct dimension of constitutional choice that can improve bargaining incentives. As time horizons lengthen, each drafter's ability to predict the position she will hold in subsequent arrangements, and so the negotiation takes on the quality of a veil of ignorance. This might itself produce fairer or more impartial rules. In addition, if drafters are concerned with stability, they might recognize the need to produce political benefits for groups besides themselves: the concern for stability and endurance of the rules can partially mitigate the effects of selfinterest at the constitutional level.

Van den Hauwe's story is one in which normative concerns about constitutional quality are aligned with concern for constitutional endurance. One can, however, imagine cases when these factors cut against each other. A constitution that focuses on the public interest may generate insufficient political support at the level of ordinary politics to withstand interest group pressures for modification. Excessive concern for endurance, it might be argued, can lead drafters to ignore the short-term payoffs necessary to adopt a constitution. The focus on endurance implies that a certain amount of redistribution and rent-seeking may be tolerable and even valuable to the extent that it gives interest groups a stake in enforcement of the bargain down the road.

* * *

What might make constitutions endure? There is a small amount of theory in a rational choice vein addressing this question. The dominant current view draws on the literature on self-enforcing institutions. Constitutions do not have an external enforcer who can ensure that the terms of the constitution are enforced. While courts purport to enforce the constitution through the power of judicial review, one must still develop an account as to why powerful actors obey the courts. Constitutions must therefore be self-enforcing, meaning that it is in the interest of all powerful factions to abide by the provisions of the constitution.

A constitution will endure so long as parties believe they are better off within the bargain than in risking new constitutional negotiations. A well-designed constitution becomes an equilibrium, so that no one with the power to defect has an interest in doing so. Weingast (1997) generalizes this idea to explain that constitutions represent coordination devices that allow citizens and elites to develop shared understanding of the limits of government, and to enforce those limits. In democracies, enforcement of these constitutional limitations ultimately relies on citizens. If they can coordinate, citizens can prevent the government from imposing costs on them and violating the political bargain. If they cannot coordinate, democracy may not be stable, as the government will continuously adjust the bargain in its favor with political acquiescence. The coordination problem is that citizens, having disparate interests, will be unlikely to reach agreement on their own as to what is considered to be a violation of the constitution, and on when and how to enforce the bargain. A willingness to stand against the government requires a belief that others will join the citizen; otherwise, the potential protestor will fear ending up in jail while oppression continues. When all citizens coordinate their expectations that others will join in the protest, however, the expectations become self-fulfilling and government will refrain from violating the bargain. Written constitutions may be useful instruments to help citizens overcome the coordination problem, because texts define violations and thus increase the probability of coordination. We might also expect that constitutions adopted with widespread participation would be more widely known and hence more likely to be self-enforcing.

* * *

Elkins et al. (2009) build on self-enforcement theory to argue for three specific design features that will help constitutions to endure. They follow the conventional approach of conceiving of constitutions as bargains among major groups that must remain supportive of the constitution for it to endure. They argue that the primary threat to bargains among these groups lies in ‘shocks’ that affects costs and benefits flowing from the constitution. Such change can be exogenous or endogenous: it might consist of a global financial crisis, or a change in the relative power of the groups produced by constitutional terms. Either way, a shock will put pressure on a constitutional bargain and render it less likely to survive. They argue that flexible constitutions that are easy to amend will be able to adjust when new social and political circumstances arise. They also argue that inclusion – greater public involvement in the creation of the constitution – will render it more likely to be enforced. Inclusion refers to the involvement of important groups in society – broadly speaking, the more groups with a stake in the constitution, the more likely it is to endure. Finally, they argue that more specific constitutions are likely to survive in that they will represent greater levels of investment on the part of the drafters.

- c) **Supremacy:** This is one of the distinctive marks of all written constitutions, but not necessarily of unwritten constitutions. In simple terms, this feature underscores that a constitution is the supreme law of the land and that all other laws and actions/decisions of government organs and officials shall not contravene any provisions of the constitution. See further discussion on supremacy clause of the Ethiopian Constitution under the section on “the fundamental principles of the Constitution” below.
- d) **Rigidity.** This feature also is peculiar to written constitutions as opposed to unwritten constitutions. The basic idea here is that the formal procedures of changing constitutions, i.e., making amendments, should not be passed in an ordinary law making procedure. More formal requirements should be met to amend constitutions. The reason for such a requirement is to protect constitutions from being amended by legislatures in simple majority decisions as ordinary laws. There are many differences among constitutions in relation to requirements for amendment, which we will study later in this textbook, when we discuss the process of changing or amending constitutions.

3. Fundamental Principles/Values in a Constitution

Constitutions serve as the depository of the values and principles of the political society they aspire to govern. The values and principles that are held in a given society may share important commonalities with, but also have considerable differences in content and in emphasis from, those of other societies. The differences relate to the peculiarities of the political society concerned; the history of the state and the people; the socio-cultural composition of the society; and the ideology of the people and the political leadership.

Let us look at certain comparative constitutional examples. The 1982 Constitution of the People’s Republic of China states that China is a socialist state and that the socialist system, with public ownership of the means of production and land, is its basic system. It also states in respect of nationalities, minorities, regions and languages that:

- (a) All nationalities in the People’s Republic of China are equal.
- (b) The state protects the lawful interests and rights of minority nationalities and upholds and develops the relationship of equality, unity and mutual assistance among all of China’s nationalities.
- (c) Regional autonomy is practiced in areas where people of minority nationalities live in compact communities.
- (d) The people of all nationalities have the freedom to use and develop their own spoken and written languages, and to preserve or reform their own ways and customs.

The 1958 French Constitution states in its preamble that “France shall be an indivisible, secular, democratic and social Republic; it shall ensure the equality of all citizens before the law, without distinction of origin, race or religion; and that it shall respect all beliefs.” It further states in its

substantive provisions that “Its [France’s] principles shall be: government of the people, by the people and for the people.”

Another good example of a declaration of fundamental principles appears in the 1946 Constitution of Japan on the renunciation of war. Art. 9 of the Constitution states that “aspiring sincerely to an international peace based on justice and order, the Japanese people forever renounce war as a sovereign right of the nation and the threat or use of force as means of settling international disputes.” It further states that in order to accomplish the renunciation, land, sea, and air forces, as well as other instrumentalities of war, will never be maintained, and the right of the State of Japan to be belligerent will not be recognized.

What do you think of Japanese principle of renunciation of war? Do you think it is a good idea? Although the Japanese Constitution still maintains these stances, in practice, however, several interpretative meanings are given to article 9 making it allow for Japan to maintain relatively small but well trained military force. From 2014 onwards, during the premiership Shinzo Abe, more revision to the pacifist defense policy was made to allow Japan to defend friends and allies under attack.

Let us take one more foreign example, from that of the South African Constitution. Art. 1 of the South African Constitution states that the Republic of South Africa is one sovereign democratic state founded on the values of:

- (a) Human dignity, the achievement of equality and the advancement of human rights and freedoms.
- (b) Non-racism and non-sexism.
- (c) Supremacy of the constitution and the rule of law.
- (d) Universal adult suffrage, a national common voters’ roll, regular elections and a multi-party system of democratic government, to ensure accountability, responsiveness and openness.²

When we come to the Ethiopian Constitution of 1995, unmistakably, we find clearly defined principles and values under its second chapter. In fact, it should be noted that there are certain important declarations in the preamble as well as in the substantive parts (e.g., the “Policy objectives” chapter) of the Constitution that should be studied together with the second chapter to have a comprehensive view of the fundamental values and principles of our Constitution.

We shall here concentrate on the principles contained in the second chapter of the Constitution. Let us study each of the fundamental principles of the Constitution separately. Throughout your study of these principles, however, you are advised to keep in mind the inquiry as to why each of these principles is considered to be more fundamental than the rest of the provisions of the Constitution.

a. Sovereignty of the People

Art. 8 of the 1995 Ethiopian Constitution stipulates:

1. All sovereign power resides in the Nations, Nationalities and Peoples of Ethiopia.
2. This Constitution is an expression of their sovereignty.
3. Their sovereignty shall be expressed through their representatives elected in accordance with this Constitution and through their direct democratic participation.

Contrary to the tradition of most African constitutions (and also to past Ethiopian constitutions), this Constitution declares that all sovereign power resides in the individual groups that make up the Ethiopian people. A legal question that should come to one’s mind in this connection is what is meant by “sovereignty.” The sovereign power spoken about in the Constitution as quoted above has to do with

² The first Chapter of the South African Constitution is entitled “Founding Provisions,” and embraces Arts. 1-6. Other matters dealt with under this Chapter include “supremacy of the constitution,” “citizenship” and “languages.”

the power of deciding on all internal economic, political, social, cultural, legal and other such matters of importance to them jointly and individually. As regards these matters, the idea is that, there shall be no authority that can stop them from making decisions that they believe in.

As regards external sovereignty, i.e., Ethiopia's relations with foreign powers and bodies, though the Constitution does not specifically make any stipulations, a unified sovereignty is implicit. An argument for this unified sovereignty (in the Ethiopian State) can be derived from both the general understanding of the above cited Sovereignty Clause and from specific provisions of the Constitution that designate overall powers to the Federal Government.

The right to self-determination recognized in Art. 39 of the Constitution are usually linked to the provisions of art 8. The rights in art 39 are explained as rights that belong to entities that are sovereign to enjoy each and all of those rights. It is worthwhile to note here that art 8 is one of the most controversial provisions of the 1995 Constitution. The other one being art 39 of the Constitution. Critiques argue that the notion of sovereignty has always been associated with independent states that are members of the international community and has never been associated with entities within sovereign states. Likewise, the right to secession without any strings attached to it strikes one as the most unprecedented constitutional dispensation in modern history. What do you think of these issues? Are you for or against the inclusion of the right to secession in the Constitution?

b. Supremacy of the Constitution

Article 9 sub-article (1) of the Ethiopian Constitution declares that laws, practices and decisions that contravene with the constitution shall have no effects. It is not difficult to understand why the Supremacy Clause of the Constitution should be treated as the latter's fundamental principle. It is an assurance that the decisions of the peoples (or of the Nations, Nationalities and Peoples) which are expressed and embodied in the Constitution are immutable by any force, law, body. The decisions of the people are embodied in the Constitution. No actions of bodies of representative democracy (the legislature, the executive, the judiciary and their officials) may override the decisions of the whole people as emblazoned in the Constitution. That why a constitution should be superior to the laws and other decisions of government organs. This principle is put forth most emphatically in the Ethiopian Constitution.

The Constitution asserts its supremacy overall and any laws, customary practices, and decisions of an organ of state or a public official. If any one of these is found to contravene the Constitution, the consequence is for the former to be declared of no effect. The Supremacy Clause also imposes a duty on all citizens, organs of state, political organizations, other associations and their officials to observe and to obey the Constitution. The Constitution also supplants any possibility for assumption of state power other than in the manner provided in it.

What are the authorities to support the claim of supremacy of a constitution? The primary source of authority is the constitution itself. The text normally contains a declaration to the effect that it is the supreme law of the land. This can be termed as the constitutional rule on the Constitution's supremacy. There are, however, other demonstrators of a given constitution's supremacy. The distinctive making process and the authority by which it is made sets a constitution apart from all sub-constitutional laws thereby attesting its supremacy. As will be discussed in chapters two (making) and three (amendment) of this textbook, the constitution is made by the whole people at a certain constitutional moment thus deriving its legitimacy from the participation acceptance of the whole people. What is more, it crafts a distinctive procedures and rules in its text for its amendment when the need arises, involving mostly an extra-parliamentary requirement, or at the very least, an extra-ordinary parliamentary procedure. Sub-constitutional laws are made or changed by elected bodies or delegated bodies, not directly by the people. Another ground associated with the supremacy of the constitution to mention here is the review of constitutionality of acts and actions contravening the constitution. Most modern constitutions designate a body that safeguard their supremacy against any law, decision or practice. This arrangement is made so that the constitution remains the supreme law of the land.

The rationale for the supremacy of constitutions is not difficult to see. In simple terms, this is about limiting government powers and ensuring government by law. Modern republican governments derive their powers from the people and the expression of the powers of the people is made through the constitution, which is made by the people themselves. Therefore, the powers of the government which is elected to undertake administration should be guided by the constitution, which expresses the will of the people and guarantees fundamental rights and freedoms that should not be violated by the government. Thus, this law, i.e., the constitution that limits the powers of the government, should be above the government for it to control the government's powers. The supremacy of constitutions is enforced by rendering laws and actions that contravene them ineffective. To this effect, it is worthwhile to see the supremacy clause of the 1995 Constitution of Ethiopia.

Article 9.

Supremacy of the Constitution

1. The Constitution is the supreme law of the land. Any law, customary practice, a decision of an organ of state or a public official which contravenes this Constitution shall have no effect.
2. All citizens, organs of state, political organizations, other associations as well as their officials have the duty to ensure observance of the Constitution and obey it.
3. It is prohibited to assume state power in any manner other than that provided under the Constitution.
4. All international agreements ratified by Ethiopia are an integral part of the law of the land.

Could you summarize the most important elements of the supremacy clause of the Ethiopian Constitution cited above? Can you identify the demonstrators of the supremacy of the Ethiopian Constitution?

What does art 9(3) of the Ethiopian Constitution signify to you? In April 2020, when the House of People's Representatives (HoPR) presented a constitutional interpretation case³ to the Council of Constitutional Inquiry (CCI) of Ethiopia asking the latter to investigate whether the postponement of the 2020 general elections, owing to the outbreak of the COVID-19 pandemic, was constitutionally acceptable or not, some scholars and political pundits cited this provision to argue against the postponement of the elections, saying that the postponement would tantamount to violation this provision. Do you share this view?

Art 9(4) heralds the most important intersectional point between international law and the domestic law of Ethiopia. The face value meaning of this statement is that ratified international agreements are considered to be, for all intents and purposes part, of the corpus of Ethiopian law. At a deeper level, this provision leaves many questions unanswered regarding the relationship between the treaty laws of Ethiopia and the national laws, as well as the scope of the responsibilities of the national institutions of the country regarding international treaties.

Some of the issues that come readily to mind are:

- (a) Are all international agreements subject to ratification in Ethiopia? If so, is that feasible?
- (b) If not, what would be the status of those international agreements not needing ratification? Are they not the integral part of the law of the land?
- (c) In relation to those international agreements, which are ratified by Ethiopia, do they become an integral part of the law of the land immediately upon ratification? Or do they need additional requirements such as publication in the official law gazette of the country?

Read the following excerpt from my article published in 2016 which I believe will shed some light on the possible reach and bounds of the provisions of art 9(4).

³ This case is discussed in Chapter 12 of this textbook.

Getchew A. Woldemariam, “The Place of International Law in the Ethiopian Legal System”, Z. Yihdego et al. (eds.), *Ethiopian Yearbook of International Law* (Springer 2016) 61. Endnotes omitted.

* * *

4.1 Automatic or Legislative Incorporation?

Another issue, which is of overarching importance in treaty-making, is the mechanism of incorporating treaties into the domestic legal system. The question here is whether treaties obtain domestic effect automatically upon ratification or whether they need some form of publication via or incorporation into domestic legislation in addition to ratification. By and large, different legal systems have adopted two approaches in regards to this matter: the monist and the dualist approach. In some legal systems like the UK, Germany, Ireland, Sweden, Norway and also South Africa, which fall within the dualist camp, ratified treaties can have domestic effect only after incorporation by Parliamentary legislation whereas in the US, Greece, Bulgaria and Serbia, ratified treaties are automatically applicable on the domestic plane without any further action. Of course, there is variation within states that subscribe to the same theoretical camp. For example, as de Wet observes,

South Africa utilizes four different approaches for the incorporation of treaty law into its domestic law. The first one is considering the pre-existing legislation sufficient to domestically fulfil the international obligation contracted by the treaty in question. Second is the embodiment of the provisions of the treaty in question into an Act of the nation’s Parliament.

The third approach is appending the treaty being domesticated as a schedule to a Parliamentary statute. Finally, an Act of Parliament “may grant the executive the power to bring a treaty into effect in municipal law by means of proclamation or notice in the Government Gazette.” An examination of the Ethiopian legal order reveals that neither the Constitution nor any sub-constitutional law unequivocally settles how treaties are domesticated. As earlier noted, Article 9(4) of the Ethiopian Constitution provides that all international agreements ratified by Ethiopia are an integral part of the law of Ethiopia. A somewhat related provision in Article 71 of the Constitution states that the President’s powers and functions include that “he shall proclaim in the [law gazette] laws and international agreements approved by the House of Peoples’ Representatives in accordance with the Constitution”. Some authors hold that by virtue of Article 71 of the Constitution, treaties ratified by the HoPR can come into domestic effect only upon proclamation or publication in the federal government’s official law gazette.

Other authors espouse an opposite view regarding the publication requirement. Basing their argument chiefly on Article 9(4) noted earlier and the absence of any other contrary stipulation in the Constitution on the matter, they argue that ratification by the HoPR brings treaties into domestic effect, whether or not they are published in the official law gazette. I, too, hold the view that publication is not a necessary precondition for a ratified treaty to take domestic effect. I offer three arguments for holding this position. First, as is clear by now, treaties are ratified by the HoPR (the legislature) based on its regular law-making procedure, thus allowing the treaties to obtain a stamp of approval from the federal lawmaker in the same manner as other federal laws. Second, publication of laws, even of the Constitution, does not seem to be a validity requirement in the Ethiopian legal dispensation. Nowhere does the Constitution mention of the need for its publication as a requirement for its entry into force. This can be contrasted with publication requirements explicitly set forth in many foreign constitutions in regards to both the constitutions themselves and parliamentary legislation. The 2010 Kenyan Constitution thus provides: “This Constitution shall come into force on its promulgation by the President or on the expiry of a period of fourteen days from the date of the publication in the Gazette of the final result of the referendum ratifying this Constitution, whichever is the earlier” (emphasis added). Likewise, the 1996 South African Constitution contains specific provisions regarding the need for proclamation of the Constitution by the Republic’s President for its effectivity. The 1978 Spanish Constitution also stipulates that “[it] shall become effective on the day of the publication ‘in the Official State Gazette’”. On the contrary, the Ethiopian Constitution does not say anything in regards to its publication.

Similarly, ... a close scrutiny of the relevant provisions of the Ethiopian Constitution reveals that the Constitution does not make publication or promulgation a precondition for the validity of ordinary domestic laws. Article 57 of the Constitution reads: “Laws deliberated upon and passed by the House shall be submitted to the Nation’s President for signature. The President shall sign a law submitted to him within fifteen days. If the President does not sign the law within fifteen days, *it shall take effect without his signature*” (emphasis added). The provision in quote does not make any reference to the need for publication but only to the law’s taking effect with or without the signature of the President. It is my contention that if publication were a validity requirement, it would have been explicitly stated in the Constitution or in any other law of the country which so far is not the case. In legal systems where laws take effect only up on publication, explicit stipulations are made to that effect. Finally, the practice in Ethiopia with respect to ratified treaties demonstrates that publication is not a requirement for a treaty law to enter in to force domestically. It is well known that in Ethiopia, texts of ratified treaties, including all human rights treaties to which Ethiopia is a party, are not published in the official law gazette. But both the international community and, importantly, the Ethiopian government consider the country bound by the treaties.

* * *

4.2 The Self-Executing/Non-Self-Executing Nature of Treaties

A closely related notion that is usually invoked as affecting the domestic effect of ratified treaties is the (non-) self-executing nature of treaties. A treaty is said to be self-executing if it is capable of judicial enforcement without an intervening legislative or executive act being required. If not, a treaty is non-self-executing. Again, legal systems have adopted divergent approaches in relation to adjudging treaties in either way. The US Senate and courts have categorically treated virtually all human rights treaties as non-self-executing thereby making their domestic enforcement subject to implementing legislation. In South Africa, section 231 (4) of the Constitution states that self-executing provisions of treaties approved by the Parliament could directly become law without the need to be enacted by the national legislation. Again, although the Ethiopian Constitution is not clearly forthcoming on this matter, one can draw a conclusion from the provisions of Article 9(4) that, under normal circumstances, ratified treaties are presumed to be self-executing. This conclusion is strengthened by the fact that ratification of most human rights treaties by Ethiopia has not been accompanied by any declarations that categorized any number of the provisions of any of these treaties as non-self executing treaties.

Related to art 9(4) of the Constitution is art. 13 (2) which stipulates in respect to chapter three of the Constitution that:

The fundamental rights and freedoms specified in this Chapter shall be interpreted in a manner conforming to the principles of the Universal Declaration of Human Rights, international covenants on human rights and international instruments adopted by Ethiopia.

Together with the provisions of art 9(4) of the Constitution, art 13(2) brings to the fore complex legal issues. One such issue being the hierarchical relationship between ratified international agreements and national laws of the country. The relationship between the provisions of art 9(4) and 13(2) is also far from being settled. The meaning of the provisions of art 13(2) is not self-evident.

It is worthwhile to explore each of the above questions. A general point to state here is that there are various views held by the scholars who try to understand these issues. For example, in relation to the hierarchical relationships between the Constitution and ratified international agreements, some scholars have taken the view that with respect to the human rights part of the Constitution, international human

rights agreements take precedence over the third Chapter of the Constitution by virtue of Article 13(2), while others say that Art. 9(1) of the Constitution unequivocally makes all treaties subordinate to the Constitution, including human rights treaties, and that in this case the purpose of Art. 13(2) is to offer a resource when there arises a need to interpret the provisions in Chapter Three of the Constitution.

Which of the two views is more persuasive? The following further excerpt from my article offers thoughts on some of the above-raised issues. This will be followed by another excerpt from John Jackson's informative comparative article on the status of treaties in domestic legal systems which will help you see the policy and legal issues surrounding a decision on status of treaties made by a given state. As you read through John Jackson's excerpt, try to view the Ethiopian scenario through the issues Jackson raises.

Getchew A. Woldemariam, "The Place of International Law in the Ethiopian Legal System", Z. Yihdego et al. (eds.), *Ethiopian Yearbook of International Law* 2016. Endnotes omitted.

5. The Hierarchical Relationship Between International Law and Domestic Law in Ethiopia

The past Ethiopian constitutions had divergent stands on the question of the hierarchy of treaties. The 1931 and 1987 Constitutions made no reference to the status of treaties. However, the 1955 Imperial Constitution had unequivocally spoken about the status of treaties in the domestic legal order by using wording that closely resembled that of the US Constitution. It stated that "[the 1955 Constitution], together with those international treaties, conventions and obligations to which Ethiopia shall be party, shall be the supreme law of the Empire (...)." The 1991 Charter, the interim Constitution of the Transitional Government of Ethiopia, which served from 1991 to 1995, is especially noteworthy for its incorporation of the whole of the UDHR as binding domestic law. Its Article 1, thus, declared: "Based on the Universal Declaration of Human Rights of the United Nations...individual human rights shall be respected fully and without any limitations whatsoever..." The Charter, however, was not clearly forthcoming in regards to the status of other ratified treaties vis-a-vis the Charter itself or other domestic laws. It has been noted earlier that the 1995 Constitution of Ethiopia does not recognize non-treaty sources of international law. Thus, we cannot talk about the status of these sources of international law in the Ethiopian domestic legal setting from the point of view of the Constitution. In regards to treaties, however, having declared that ratified treaties form an integral part of the law of the land, the Constitution fails to clearly pronounce the place such treaties occupy in the country's hierarchy of norms. Its Article 1, thus, declared: "Based on the Universal Declaration of Human Rights of the United Nations...individual human rights shall be respected fully and without any limitations whatsoever..." The Charter, however, was not clearly forthcoming in regards to the status of other ratified treaties vis-a-vis the Charter itself or other domestic laws.

It has been noted earlier that the 1995 Constitution of Ethiopia does not recognize non-treaty sources of international law. Thus, we cannot talk about the status of these sources of international law in the Ethiopian domestic legal setting from the point of view of the Constitution. In regards to treaties, however, having declared that ratified treaties form an integral part of the law of the land, the Constitution fails to clearly pronounce the place such treaties occupy in the country's hierarchy of norms. As a result, the status ratified treaties hold vis-a-vis the Constitution and other laws of the country is one of the highly debatable legal questions in the Ethiopian legal order today.

By abroad categorization, there are two camps espousing divergent views on the status of ratified treaties within the Ethiopian legal order. The first view holds that ratified treaties in general have equal normative status with the Constitution while ratified human rights treaties are superior to or at least on par with the Ethiopian Constitution. Regarding the status of ratified treaties vis-a-vis domestic primary laws, their view is that treaties override sub-constitutional laws, including federal proclamations. The

authors in the second camp, on the other hand, espouse that, on the domestic plane, treaties are on par with federal proclamations and are subordinate to the Constitution. Thus, according to this view, conflict between treaties and primary legislation would be resolved by resorting to the principle of *lex posterior derogate legi priori*.

The authors in the first camp rely on the understanding of some monist theorists who assert that international law and national law are not only part of the same system of norms but also that international law is superior to domestic law. Bulto, for example, has argued that domestic law remains authoritative and valid so long as it conforms to international law in the absence of which domestic law becomes null and void resulting in international law's direct effect in domestic sphere. He characterized the views in the second camp, which he dubbed as erroneous, as emanating from the influence of the dualist theoretical position on the relationship between international law and national law.

The views held by Bulto and others who say treaties, on the domestic plane, are on par with or even superior to the Ethiopian Constitution are not grounded in the textual reading of the Ethiopian Constitution and are oblivious to its drafting history. Furthermore, their views fail to grasp the important practical difference between international law's force on the international plane and its implementation domestically by courts and other domestic organs. Indubitably, a state's breach of its treaty obligations—whether because of its contrary domestic law or for any other reason—results in the violation of international law leading to an international accountability of that state. However, the domestic application of treaties is determined by domestic legal systems. As Wolfrum observes, it is quite possible that the international application and domestic application of a treaty may not match, i.e. “even though a state is bound by a rule of international law”, that same rule may not “be applied as binding law by organs of that state”. Accordingly, in dualist states such as Australia, Canada, Denmark, Germany, India, Israel, the United Kingdom and some Nordic states, treaties can have domestic effect only if the legislature incorporates the treaties into domestic law via legislation. This means that although these states are bound internationally by the treaties, their national courts cannot apply these treaties to settle cases brought before them unless their respective legislatures bring these treaties into domestic effect through legislation.

* * *

The above examples show that diversity abounds in relation to the domestic rank and application of treaties. Ethiopia's constitutional dispensation forms part of this spectrum of approaches and, contrary to what some authors¹⁰¹ tend to believe, the mere departure of domestic law from international law cannot ipso facto render domestic laws of many nations of the world as dead letters in our hands. True, legal systems that accord treaties statutory status (or even a status above statutes but below their constitutions) recognize the special nature of treaties and their origin in public international law and have developed practices by which domestic laws are interpreted consistently with their international commitments. For example, in the UK, a typical dualist state, courts presume when interpreting statutes that the British Parliament did not intend to violate the country's international obligations. In relation to the European Convention on Human Rights, the Human Rights Act instructs UK courts to interpret domestic legislation ‘so far as it is possible to do so’ in a manner compatible with the European Convention.

* * *

Turning to the hierarchical status of treaties (including human rights treaties) in the Ethiopian legal system, the main bases for my analysis are the text of the Ethiopian Constitution, the practice of the Ethiopian government and the travaux préparatoires of the Constitution. Unfortunately, so far, no judicial or quasi-judicial body has dealt with the issue of hierarchical rank of treaties in any manner and therefore no domestic jurisprudence has developed in the area.

To start with the text, the Ethiopian Constitution does not clearly settle the hierarchical status of ratified treaties in the Ethiopian legal system. But, the most relevant provisions of the Constitution on the subject are contained in Article 9(1) and 9(4), and Article 13(2). In Article 9(4) the Constitution states: “All international agreements ratified by Ethiopia are an integral part of the law of the land”. The

Amharic version connotes in a similar manner but perhaps more clearly that treaties ratified by Ethiopia are part and parcel of the law of the country. This stipulation meshes ratified treaties of all sorts with the body of Ethiopian law. But Article 9 (1) has already singled out the Constitution as “the supreme law of the land” (emphasis added) leaving no doubt that it alone is “the” supreme law. When treaties are made an integral part of the law of the land, it is clear that all “law of the land” that comprise federal, as well as state laws of various sources and hierarchies, cannot be supreme law of the land. Thus, the wording that treaties are integral part of the law of the land must connote that they are part of the body of laws to which the Constitution is declared supreme. This understanding is confirmed by scholars.

Some scholars like Bulto, as noted earlier, particularly rely on Article 13(2) of the Constitution to argue that international human rights treaties are accorded equal status or are even considered superior to the federal Constitution. This Article reads: “The fundamental rights and freedoms specified in this [Bill of Rights] Chapter shall be interpreted in a manner conforming to the principles of the Universal Declaration of Human Rights, International Covenants on Human Rights and international instruments adopted by Ethiopia”. So the question is whether this stipulation is determinative of the hierarchical relations between the domestic laws of Ethiopia, including the Constitution, and human rights treaties.

* * *

(...) Article 13(2) of the Ethiopian Constitution should be understood to ensure the indirect application of the treaties and instruments enlisted in it by requiring national courts and all other national authorities to interpret the constitutional rights consistently with these instruments, and not as a marker of the domestic hierarchical position of treaties. In fact, it must be noted that Article 13(2) enlists both binding and non-binding instruments (or those that are amenable to ratification such as ICCPR and ICESCR, and those that are not such as the UDHR). This shows that its primary concern is to provide for the interpretation and enforcement of the constitutional rights and not the hierarchical relationship between these rights and those contained in the international instruments mentioned in Article 13(2).

This understanding is supported by the drafting history of the Constitution and the official position of the Ethiopian government. During the deliberations on the original draft of the Constitution, it was argued that international instruments shall be used as interpretative guidelines for the provisions already in the Constitution without having the status to override or be equal with the Constitution itself. Proclamation No. 251/2001, a law regulating the powers and functions of the House of the Federation [now replaced by Proclamation No. 1261/2021], a body in charge of the interpretation of the federal Constitution, is reflective of the Ethiopian government’s position. According to this proclamation, the House is empowered to review the constitutionality of international agreements ratified by Ethiopia.

The foregoing discussion sets out the hierarchical position of ratified treaties vis-a-vis the Ethiopian Constitution but does not resolve the question of the hierarchical relations between ratified treaties and other laws of the country, mainly federal statutes or proclamations. The three likely scenarios are for the treaties to be superior to proclamations and below the Constitution; be of the same hierarchical status with proclamations or be of lower hierarchy than proclamations. Of these possibilities, the one that puts ratified treaties at the same level as federal proclamations has drawn greater “consensus of the dominant literature.”

I have already argued that Article 9(1) of the Constitution, its drafting history and government practice, establish the supremacy of the Constitution. It has also been pointed out that Article 9(4) declares that ratified treaties are an integral part of the law of the country. The Constitution further subjects all kinds of treaties to the ratification or approval of the federal law-maker, the House of Peoples’ Representatives. The Process of ratification, including the scrutiny of treaties proposed for ratification and the decision-making on whether to accept or reject a proposed treaty, are all done in accordance with the HoPR’s legislative rules and procedures. Finally, as it is the case for federal proclamations, ratified treaties are also required to be proclaimed in the official law gazette by the President of the Republic (and as I argued earlier, publication is not a validity requirement in both cases). All of these

put together are indicative of the hierarchical parity between federal proclamations and ratified treaties making the *lex posteriori* principle applicable in times of conflict.

But it is interesting to note that the official position of the Ethiopian government, at least as far as it can be gleaned from the Core Document of its periodic reports to the UN Treaty Bodies, is that by virtue of Article 13(2) of the Constitution, earlier referred to, ratified human rights treaties have a higher status than ordinary legislation, including proclamations. Although in my view this does not clearly emerge from the textual reading of the relevant provisions of the Constitution, it can be taken as a positive interpretation of the Constitution through political practice and it is a welcome development.

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John H. Jackson, "Status of Treaties in Domestic Legal Systems: A Policy Analysis," in *The American Journal of International Law*, Vol. 86, No. 2 (1992). Footnotes omitted.

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Issues of Treaty Application

The direct application of treaties is only one of a series of legal/constitutional issues relating to treaties and national legal systems. In this article we do not deal with all these issues, but an appreciation of the existence and relationships of some of them—in other words, the “landscape” or setting of the subject—may enhance understanding of direct application. Indeed, the issue of treaty making, that is, how treaty-making powers are allocated among national government institutions and the procedures required for entering into a treaty, is closely related to policies concerning direct application. For instance, if a constitutional treaty-making procedure does not provide for “democratic participation” such as parliamentary approval, it would not be surprising to find reluctance to have the treaty affect domestic law until a parliament has acted (as we see in England and some Commonwealth countries). The parliamentary act can be the act of transformation and its requirement as part of the domestic lawmaking system can substitute in part for the direct participation in treaty making of parliaments in other constitutional systems.

This “landscape” of legal/constitutional issues regarding treaties in domestic law certainly includes the following (and perhaps more):

- (1) the power to negotiate;
- (2) the power to “sign” (usually *ad referendum*, only to certify the text);
- (3) the power to “accept” the treaty as a binding international law obligation;
- (4) the “validity” of the treaty under national constitutional law (closely related to (3));
- (5) the power to implement the treaty obligations;
- (6) direct applicability of the treaty in domestic law;
- (7) invocability in municipal law (contrasted with direct applicability);
- (8) a hierarchy of norms in domestic law when treaty norms conflict with norms of that law; and
- (9) the power to administer the treaty, which includes a series of issues, such as the procedure for formal “ratification”; the power to interpret the treaty for domestic application and as a matter of international law; the power to represent the country in institutional procedures relating to the treaty (e.g., bilateral or multilateral meetings); the power to “vote” in such procedures; the power to amend the treaty; and the power to terminate the treaty (on various grounds, including the exercise of a termination clause).

* * *

The eighth issue, hierarchy of norms, relates closely to the two previous questions, and it is therefore these three issues (Nos. 6, 7 and 8) that are central to this article. Hierarchy of norms refers to the

questions that arise when a directly applicable and invocable treaty norm is unavoidably inconsistent with other norms in the national legal system. Those other norms may include the constitution, prior national-level statutes, subsequent national-level statutes, various regulatory acts, and laws of subordinate governmental units (states in a federal system) and, among other things, may be either prior or subsequent to the treaty. In fact, a fairly elaborate matrix of possible clashes can be worked out, and the answers for each “cell” can differ in different legal systems. With only one or two exceptions, constitutions generally are deemed superior to treaties, but a key question is usually the status of a treaty norm that clashes with a later national legislative enactment. In the United States, the later in time prevails. In some other countries, the treaty will prevail even over such later enactments, and this is the crux of the most important policy issue (in the view of this author) concerning direct application.

It should be noted that for this issue (No. 8) to arise, a few other issues must be determined. That is, the treaty must be valid both internationally and domestically, it must be applied directly, and it must be invocable. Unless all these conditions are met, hierarchy of norms does not arise as a matter of domestic law.

The Approach of Various Countries

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The United Kingdom is generally considered the prime example of a dualist system. Treaties never have direct “statutelike” application in the United Kingdom, but of course may have other internal effects. Many national systems derived from that of the United Kingdom, such as the Canadian and Australian systems, follow similar approaches. The legislature may enact laws that incorporate (“transform”) treaties or treaty norms into domestic law, but, interestingly, the UK Parliament does not have a formal role in treaty making. Treaties are entered into by the “Crown” (today, obviously with the council of ministers). Sometimes (such as with the UK European Communities Act of 1972) a parliament can make provision for the “transformation” in advance. Variations on this approach are found in many other countries, for example, Germany and Italy.

At the other extreme, perhaps, is the Constitution of the Netherlands, which could generally be called “monist” since it expressly provides that certain treaties are directly applied and that in such cases these treaties are deemed superior to all laws, including constitutional norms! The 1958 Constitution of France also calls for direct application and a higher status for treaties than later legislation. With a variety of nuances, such provisions are found in the Constitutions of Belgium, Switzerland, Japan and other nations.

The United States stands somewhere in between. Under U.S. jurisprudence, some treaties can be found to be self-executing, in which case they will be directly applied. To determine “self-execution,” U.S. courts look at a series of factors, but (it seems) primarily at the intent of the drafters, including intent implied or expressed in the treaty itself. When that language is sufficiently precise and indicates that no further government action is needed to apply the treaty norms, a U.S. court will be willing to conclude that the treaty is self-executing. However, under a long string of precedents over a hundred years, U.S. courts have ruled that a directly applied treaty has the same status as federal laws (statutes, etc.) and that the latest in time therefore prevails. Thus, for internal law purposes, a later U.S. statute will prevail over the international agreement (which sometimes causes the United States to violate its international obligations).

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II. POLICIES RELATING TO DIRECT APPLICATION OF TREATIES

What does it mean in practice to “directly apply” a treaty in a domestic legal system? . . . Although the answer to this question may vary, depending on the legal system involved, “direct application of a treaty” generally seems to mean that courts in the system (as well as all other government bodies) will

look to the treaty language itself as a source of law, analogously to the way they look at constitutions, statutes or certain other instruments of domestic law. The language of the treaty (for example, by constituting “judicial notice” and thus obviating the necessity of “proof”) will be a required source for the court to examine so as to determine the legal rules applicable to particular cases. It therefore seems convenient to refer to the result of direct application as statute like status, even though considerations of the hierarchy of norms (Question 2) may suggest in some cases that the treaty enjoys higher status than statutes. We now turn to the various policies that favor or oppose direct application of treaties.

Policies Favoring Direct Application

Why should treaties ever be given this statute like status in domestic law? Some writers respond by taking a theoretical approach, suggesting that all laws are part of one system (monism), so that international law is automatically part of all national systems; indeed, many of these writers see international law as a higher form of the world legal system and thus as having, a priori, a higher status than domestic law. The latter point, in touching on the hierarchy question (Question 2), illustrates the close relationship between these two questions.

Apart from this theoretical approach, which has not been accepted by many important nations and evokes skepticism in many quarters, including theorists and scholars, we can ask further if there are any significant practical reasons advanced for the direct application of treaties.

One such argument stresses enhancing the effectiveness of international law; giving direct application to treaties (and maybe also to customary international law) increases their importance and weight and decreases the likelihood that national authorities will refuse or neglect to provide for transforming the treaty norms into domestic law. Direct reliance on treaties by citizens may also add to treaty effectiveness (although it can be countered that acts of transformation are much more likely to be found and utilized by the domestic legal institutions).

Another related argument suggests that direct application better assures the other parties that all parties will carry out their obligations under the treaty. It has even been suggested that customary international law should impose a good faith obligation to give treaties direct application. However, this proposition is hard to sustain, since state practice is so contrary. Not only do many states not give direct effect to treaties, but many important states (as noted above) cannot do so under their constitutions. Nevertheless, this inability does not prevent parties from expressly obligating themselves in a treaty to its direct application (some states would obviously avoid making such impossible commitments).

Yet another argument for direct application is that it better assures the rights of individuals in the legal system when a treaty contains norms designed to apply to those individuals. The individuals can thus base claims on the treaty norm without the need for government intervention or an act of transformation. An act of transformation, it can be argued, gives too much temptation to governments to depart from the precise wording of the treaty and therefore to “transform” a norm that does not accord with the treaty norm itself.

These various arguments for the utility of direct application also reinforce another, more general contention--that disrespect for international law is increased when international norms are not effective. Since, it is argued, direct applicability will enhance the effectiveness of international norms, it will also generally enhance the respect for and general prestige of international law, to the benefit of world order.

Some arguments for direct applicability depend on the coexistence of a principle of higher status (Question 2) for the directly effective treaty norms. This point is easily illustrated by internal laws of a federal system (such as that of the United States and the developing EC structure, which some view as “federal”). When governments desire a federal system to be closer knit, more responsive to the federal level of authority, it makes sense for federal law to be both directly effective and trumping, as is made explicit in the U.S. Constitution, and is evolving by judicial treaty interpretation in the European

Community. Moving from this sphere to the international level, however, does not automatically imply that the same principles should prevail, as we will see below.

Policies Opposing Direct Application

Still putting aside Question 2 (“higher status”?), we find that various arguments are made against the direct applicability of treaties. On the theoretical side, commentators have argued for a century that international law is a separate legal system from national legal systems (dualism) and that, consequently, there is no a priori reason that an international treaty norm should automatically be part of national legal systems. Perhaps closely related to this argument is a notion that builds on concepts of national “sovereignty”: that when a nation undertakes an international obligation, that nation is entitled to determine for itself its method of implementing or fulfilling that obligation, so long as it does so in good faith. Indeed, it is sometimes argued that urging the direct application of treaties is tantamount to “interference in the internal affairs” of a sovereign state.

Perhaps more significant, however, are the functional arguments that can be advanced to oppose direct applicability. One of these concerns the procedures for treaty making. Some constitutions provide for very little democratic participation in the treaty-making process; for example, by giving no formal role to parliaments or structuring the government so that control over foreign relations is held by certain elites. In such cases, it is argued, the need to obtain parliamentary approval (or approval by some other democratic lawmaking process) of the act of transformation serves as an important democratic check on the treaty-making process. The importance of this safeguard can be multiplied many times if (Question 2 again) the directly applied treaty would have a higher status than many other types of law.

Another consideration militating against direct application is that legislatures may wish to tailor the act of transformation in certain ways, perhaps by rewording the treaty to match domestic circumstances. The most obvious example would be those agreements (usually multilateral treaties) whose official language is not the (legal) language of the implementing nation. But even when the language is the same, certain nuances of usage may differ and legislatures may wish to express the norms in accordance with local usage. The legislators may also wish to elaborate on the treaty provisions, which they may view as ambiguous. (In the United States, for example, the ambiguity of some treaty language has caused concern that its direct application to individuals might violate constitutional standards of due process.) Language in the act of transformation may clarify some ambiguities (for use by domestic courts and other applications), or specify policy choices left open (implicitly or expressly) under the terms of the treaty. All of these eventualities may occur in the context of a good faith effort fully to apply the treaty norms.

Legislatures may also have other policies in mind. They may desire to place their interpretation of the treaty norm on record. Perhaps the treaty is ambiguous or leaves room for interpretation. The act of transformation can be used to impose an interpretation for domestic law. Such an act (and the domestic action under it) will constitute “practice” of a treaty party and may then become relevant to later international interpretation of the treaty. In some cases, however, the domestic interpretation may concern domestic law only, such as by indicating the allocation within a country of authority to make certain decisions or to take certain actions in connection with the implementation of the treaty. Indeed, the act of transformation sometimes becomes part of a purely internal power struggle, and may be used by certain governmental institutions to enhance their powers vis-à-vis other governmental entities. (Per contra, advocates of direct application may have similar motives, viewing it as a way to forestall the adoption of alternative policies or allocations of power, or as a way to have them determined in accordance with their preferences.) Some constitutions may require a form of lawmaking that is circumvented by direct application of a treaty. In these circumstances, one might conclude that this should be a matter for national decision and that direct application should generally be avoided.

Legislatures may have still other motives in opposing direct application. For example, they may wish to limit direct application to portions of the treaty, or to apply it in ways that may not fully conform to the

international obligation. Or a legislature may find it politic to delay application to allow internal consensus and acceptance to develop (or to wait out an imminent election!). Some of these examples suggest less than full “good faith application” --and even, perhaps, that the legislature desires to preserve the option to breach the treaty in its method of application. Is this approach to policy making desirable or valid? Certainly, traditional internationalists will frown on it. Yet national sovereigns often have prerogatives enabling them to breach treaties; why (say some) take away one particular mode? Moreover, some breaches may be “minor” and therefore preferable to the alternative of refusing to join the treaty altogether.

* * *

A related consideration is that national officials may fear that direct application will result in court determinations that their government is acting in violation of the treaty. Such findings could embarrass that government and undercut its effectiveness if it should participate in an international proceeding where it is charged with breach of the treaty obligation. For this reason, it has been said that some domestic courts tend to avoid determining that their government has breached an international treaty. Another argument is based on the diversity of national constitutional systems regarding treaty application. The fact that some nations never permit direct application may make governments or citizens of nations that require it feel that the asymmetry of the system is unfair. Where direct application is constitutionally permissible, this asymmetry may argue in favor of avoiding its implementation. Sometimes direct application may expressly be conditioned on reciprocity. (Counter to this is the view that what other governments do is not relevant; what matters is how the acting nation best lives up to its obligations.) Still another argument for avoiding direct application is much stronger if higher status (Question 2) is given to the applied norm, and therefore will be discussed below. In those circumstances, direct application may inhibit national authorities from entering into international agreements that would otherwise be desirable. Direct application also prompts an interesting question about interpretation. If a treaty is directly applicable, it can be argued that an international body's interpretation of a question of international law is definitive in domestic law as well. According to this view, since the domestic law consists of the international treaty applied directly, the international interpretations are binding on the domestic legal institutions, including the courts. In contrast, an act of transformation is an act of the domestic legal system, and thus can be interpreted by that system's institutions, including the courts, just as the courts would interpret other legislation or domestic legal acts. However, even in the case of a directly applicable treaty norm, domestic courts may believe that they have the power of interpretation. They certainly have that power preliminarily until a definitive interpretation under international law is set forth. The interesting question is: What happens when an international interpretation of the treaty norm clashes with an interpretation by a domestic legal institution, in a case where the treaty norm is directly applicable? There is at least a suspicion, or hint, that the domestic legal institutions will “strain” to apply their own interpretation, through one or another legal technique.

These considerations also suggest that the attitude of national policy makers toward direct application of treaties could be influenced by their view on the relative merit of national judges as compared to international judges. Since application of the law requires its interpretation, a key question will always be which institutions should hold the power to interpret the municipal law being applied. Should a nation rely primarily on its own courts? Or does it believe that the international tribunals will do a superior job?

* * *

III. THE POLICIES RELATING TO HIGHER STATUS OF DIRECTLY APPLIED NORMS

When we move to Question 2, that is, whether a directly applied treaty norm has a higher hierarchical status than most other laws, many of the above policy considerations are not only implicated but accentuated. To use a paradigmatic hypothetical, suppose the legal system of nation M requires direct application of treaty norms and its constitution provides that such norms will trump all other laws except

the constitution, even laws enacted later at the highest legislative level. Suppose further that M is party to a treaty that imposes the type of “national treatment” obligation Ten years after M's accession to the treaty, its legislature, citizenry and government leaders wish to enact a special rule giving M's poor citizens preferential property ownership rights (but they argue that to give these rights to noncitizens would attract an influx of poor persons from other countries who would exploit the rule and make it unacceptably expensive). The envisioned rule may accord purchasing preference to poor citizens when the government disposes of property it owns or has validly seized or repossessed. Yet the treaty norm (sometimes unexpectedly) may seem to preclude this act or be determined internationally to prevent it. Since the domestic application of the norm trumps later legislation, the government's hands are tied. It must either renegotiate the treaty (or terminate it) or refrain from enacting the desired legislation.

For the purposes of our discussion, we will assume that at least some treaty norms are directly applied, since it makes no sense to be concerned about higher status in domestic law unless the norm is part of domestic law. We now consider whether it is wise policy for treaty norms to be both directly applied and given higher status in domestic legal systems than most other laws.

Higher Status as “Constitutionalization”

In essence, DAHS [“directly applicable with higher status”] means that the treaty norm has been “constitutionalized,” or given a sort of “constitutional status” almost equivalent to the nation's own constitution. It occurs through a procedure that often falls short of the rigor or democracy of constitutional amending procedures, which may surprise certain interest groups that did not focus on the treaty issues years ago. In these circumstances, what are some of the policy considerations?

One is immediately struck by how many of the arguments in part II are accentuated by higher status. In the absence of higher status, a later statute or other law might correct some of the problems raised in part II (e.g., a legislative desire to “interpret” the treaty or to reallocate internal decision-making power), albeit perhaps with some additional trouble and shifting of the political burden of taking the necessary initiative. When higher-status is added, however, the problems become much more difficult. For example, the asymmetrical situation noted above, in which some nations do not directly apply treaty norms while others do, is even more anomalous when some that do, do so with a higher status. Those nations find themselves more locked into the norms than the other parties.

Once again, the issue of the “democratic deficit” arises, but more acutely. If the procedures for treaty making do not permit adequate democratic participation, the DAHS treaty norm can be criticized as imposing an elite's vision of control on a society (or worse, that of a special interest group). Indeed, it can be seriously doubted whether such a norm would be truly effective; governmental units, including courts, would struggle to attenuate the norm or avoid it altogether.

Usually, this is not an either-or question, for the degree of democratic input varies and in many cases may be said to be sufficient, even for a “constitutionalized” norm like a DAHS. Yet a series of other concerns can be raised that should at least be understood by policy makers who wish to oppose or to accept the DAHS idea. The most significant of these was ... that the DAHS norm imposes considerable rigidity (almost equal to a constitutional rule) on future government action. Arguably, a constitution should generally contain norms deemed so essential to government that they need to impose rigidity: norms that preserve human rights, allocate power among governmental branches or entities, specify the rules for democratic governance (elections, terms of office), and the like. To constitutionalize the whole body of potential treaty relations is quite another matter. A government with DAHS would need to be very restrained in accepting treaty obligations, or it could find itself hamstrung at many turns by thousands or tens of thousands of treaty norms (especially on economic subjects).

Treaty making, incidentally, can also mean the development of “secondary” treaty rules, i.e., regulations or decisions by international bodies pursuant to treaty authorization. Thus, a nation with DAHS could find its legal system bound both by rules that only a few of its own diplomats (maybe instructed by an elite or small group within the executive part of their government) participated in drafting, and by the

majoritarian or other (sometimes defective) voting procedures of multilateral bodies. A nation in that position could refuse to accept such treaties, or it might work toward building international institutions that avoid secondary norm making, but this approach could substantially inhibit the progress of the world legal system.

* * *

Implications of Differing Constitutions

The ease with which the national constitution can be amended will also influence the choice of protection by international norms rather than national norms, or possibly even constitutional norms. An easily amended constitution will facilitate the rectification of DAHS problems (as long as the higher status does not trump the constitution) through constitutional changes. Although in this case the difficulties of DAHS are less worrisome, the DAHS principle is less effective in protecting against or restraining national government actions contrary to treaties.

As with direct application, higher status also presents the question of what domestic legal institution will decide which clashing norm prevails. If the treaty norm has higher hierarchical status, however, the domestic court is likely to have less discretion or leeway; that is, the question facing the court is much more likely to be a “constitutional” one. Of course, such an issue may be left to the court to determine on the basis of, say, the drafters' intent, or other criteria. Nevertheless, as surveys of constitutional practice suggest, the issue is more often deemed to turn on a constitutional rule. For example, United States courts for many decades have accepted the rule that the “later in time prevails,” basing it on early court opinions interpreting the Constitution itself. The rule has been criticized, and in at least one odd recent case it may have been somewhat softened, but it generally seems to be accepted as a constitutional requirement. Still, in some constitutional systems the issue has not been completely resolved, and some opportunity may remain for the courts to make that determination on the basis of various considerations, including some of those expressed in this article.

Several Cases

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A 1990 Japanese Supreme Court case had some similar characteristics. Once again the GATT was invoked. The case was brought by Japanese necktie producers, who argued that their Government's restraints on the importation of silk for neckties (to protect domestic silk producers) violated rules of the GATT. The complainants claimed that the GATT was directly applicable and that, under the Japanese Constitution (Article 98), directly applicable norms were endowed with a higher status than legislation or other legal norms. The lower courts (in 1984 and 1987) concluded that the GATT did not apply to the situation, but their reasoning (or lack thereof) has been criticized, and on appeal the Supreme Court of Japan merely affirmed with very little analysis. It can again be surmised that a court would find great difficulty in directly applying the GATT, with its many elaborate constraints on national government actions in international trade, in circumstances where those GATT norms would also have a higher status than even later-in-time legislation or other acts. Thus, it comes as no surprise when a court somehow manages to evade this consequence.

The Netherlands, in the view of some, may be the most monist legal system in the world, but even there, according to eminent commentators, courts have ways to avoid the direct application of treaty norms that would take precedence not only over later legislation, but also over the Constitution itself. The empirical observation that national courts in systems with DAHS try to avoid its logical consequences suggests that legal systems that have not yet fully decided the question should exercise great caution before embracing DAHS.

A DAHS system can also significantly inhibit a national government's willingness to enter into international treaties. A recent example occurred in the European Communities. Although there may be an argument that Community-level law has not yet been fully determined to be a DAHS system, the apprehension that it would be apparently influenced the negotiations between the Community and the

Government of Switzerland concerning a treaty on international trade in insurance services. The Community side feared that if it entered into such a treaty, and it became both directly applicable (as many desire) and superior to even later EC legislation, the Community would be greatly hampered in its ability to develop harmonization of national law and other regulatory principles on insurance in the future. The solution chosen by the negotiators was a fairly elaborate clause in the draft treaty permitting a contracting party to opt out of some provisions in certain circumstances.

IV. APPLICATIONS AND POLICY IMPLEMENTATION

Some national legal systems have largely determined the internal rules about direct application of treaties and the hierarchical status of such norms, but in other systems the issues may still be evolving or completely open (e.g., if a constitution has yet to be completed). In the latter cases, the policies discussed in the previous sections should be carefully considered by the constitutional drafters, officials or judges responsible for the further development of the question. Even when the issues are ostensibly "settled," we have seen that judicial and other institutions have ways to evade the full logical consequences of a DAHS system. In this section we discuss some variations on implementation, and the techniques of applying the rules so as to realize the policies selected from those discussed previously.

In broad brush strokes, we can consider three different circumstances: (1) the constitution is still being written; (2) the constitution is still evolving through practice or court decisions; and (3) the treaty or its implementing language can play an important or even decisive role in how a national legal system handles treaty norms internally.

In the first case, when the constitution is still being written, close attention to the questions of direct applicability and higher status seem merited. Of course, failure to spell out the pertinent constitutional principles may leave the issues open for later elaboration by the national legal system, which may be precisely what the constitution makers wish (perhaps as a compromise to a standoff). However, the various policies discussed suggest the value of normally avoiding a full DAHS system. Direct application combined with a later-in-time principle at least affords the national government some relief from the rigidities of a full DAHS system, and is less likely to inhibit that nation's willingness to enter into international treaties. Rejection of direct application altogether would go even further in this regard.

In certain circumstances, however, the constitution makers and their democratic constituencies may strongly desire to constrain their government. As mentioned above, two subjects in particular have been noted in this connection: the protection of human rights and the preservation of a market-oriented economic system. Discussions in newly forming democracies such as those in Eastern Europe, as well as in countries in other parts of the world, demonstrate that their officials and citizens sometimes trust an international treaty to protect human rights more than their own governments. This consideration would have to be weighed against the policies that do not favor DAHS. The extent and specificity of the international treaties that are candidates for DAHS treatment must also be weighed. A treaty that is not overly broad in its reach and is reasonably precise and unambiguous would seem a better candidate for DAHS treatment than treaties with contrary characteristics.

Similarly, in the flurry of privatization and evolving market-oriented economies that the world is currently witnessing, some national leaders and citizens see an advantage in international obligations that would restrain later domestic political attempts to overturn or erode the market mechanisms put in place. Membership in a treaty system such as the European Communities, or similar regional groupings elsewhere, may be understood as playing an important constitutional role in this regard. This constitutional role will be stronger in a DAHS system.

Often these policy considerations are only dimly perceived and not articulated (at least with candor). They obviously suggest that the participants place a relatively higher trust in the international institutions than in their national constitutional institutions, and historical observation sometimes

indicates that they have good reason to do so. In that case, is there any way to avoid some of the negative policy implications of a DAHS system? Several possibilities can be suggested.

First, a new constitutional provision could treat different treaty subjects differently. It is certainly possible for a constitutional clause to give DAHS treatment only to “human rights” treaties, although the definitional problems would require great care. Similarly, a constitutional provision may give DAHS treatment only to specifically named treaties (allowing future constitutional amendments to add to the list). It is even conceivable for a DAHS provision in a constitution to be limited in time, e.g., to operate for x years and then cease (perhaps in the questionable optimistic belief that national institutions will develop sufficient strength and credibility that overriding international protection will no longer be needed).

DAHS treatment might also be given to membership in an international (regional?) economic treaty organization. In some cases, a constitutional amendment could provide for this treatment (or otherwise secure the treaty norms). Some constitutions may now require this approach. A new constitution might refer to this possibility and leave it to be implemented in the future by an amendment. It could even provide for a special amending procedure (perhaps one that is easier to execute than that for ordinary amendments) to incorporate international norms for the human rights or market-structure cases.

The second situation, where the constitution is still evolving, may require different approaches. Of course, if the evolution is achieved by amendment or changes in the constituent “treaty,” the choices may be varied and considerations mentioned above could come into play. However, if the evolution is produced by judicial decision (or other practice of national legal institutions), the choices may be more limited. For example, if higher status for directly applied treaty norms already seems to be embedded in the legal system, the court or officials may wish to stress ways to avoid direct application, arguing that it requires either an overwhelming expression of intent or the framing of the norm in precise and direct language, or both. To rule against direct application would enable national officials to implement the treaty by means of an act of transformation. Even with direct application, courts could employ various judicial doctrines used to “duck” issues, such as non-justiciability, lack of definiteness, mootness, political question, standing and ripeness.

Alternatively, the question of higher status may not have been finally and firmly determined. In that case, national judicial or other officials might still have the option to avoid conferring such status on treaty norms, which would make it easier to accept direct applicability (and to enter into treaties in the first place). In the third case, where the treaty or implementing language can play a major role, it is assumed that this constitutional process gives great or decisive weight to the intent expressed in the treaty, in its preparatory work, or by national negotiators. For example, a treaty could incorporate a clause, “It is intended that this treaty shall not have direct application in either [or one listed] party.” Would the national judiciary or officials act accordingly? In many countries (including the United States), they probably would. One could envisage a sort of boilerplate clause that a nation's officials would always include in treaties, with some carefully considered exceptions, so as to clarify this question and avoid the policy pitfalls of either direct application or higher status.

Although strong evidence of this type of intent might be stated (or discovered by a court) in the preparatory work of a treaty, such an expression might be considered more ambiguous and could give greater leeway to the inclinations of the national legal system's courts or officials. Finally, somewhat more removed and raising certain other issues would be a unilateral statement precluding direct application by the officials of one of the parties, during the negotiation of the treaty or the national constitutional process of its approval. The prime examples are probably found in the United States when the Senate gives advice to the President allowing him to ratify a treaty, but only if it is not self-executing, and when Congress authorizes the President to ratify a treaty but specifies in the enabling statute or the legislative history that the treaty shall not be self-executing. The President alone may even issue such a statement, and it is likely to be followed by the U.S. courts.

Expressions of intent are less likely to be used to govern the question of higher status when treaty norms are directly applicable. Although it is theoretically possible, this author knows of no such cases. Moreover, higher status is more likely to be considered a type of “constitutional” or judicial issue that only the courts can decide in a particular society. Of course, a constitution could determine who decides, perhaps by relegating it to an executive or to parliamentary vote.

Questions and Discussion

1. Getachew A. Woldemariam has argued that there are sufficient legal basis to hold the view that the Constitution is superior to all treaties, including human rights treaties, to which Ethiopia is a party. Do you agree with his point of view? How did you find his argument on the non-requirement, for validity, of publication of not only treaties but also of other domestic laws of Ethiopia?
 2. What are the significant markers of self-executing treaties and non-self executing treaties that Jackson identifies?
 3. Discuss Jackson’s arguments about the implications for status of treaties in domestic legislation.
 4. Jackson raised many interesting policy considerations as well as possible consequences of decision to make treaties directly applicable or self-executing, and to ascribe a given hierarchical position to treaties in domestic legal order. Discuss those by relating them with the Ethiopian authorities’ policy decisions.
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c. Human and Democratic Rights

The Ethiopian Constitution, Art. 10, states that human and democratic rights constitute another fundamental principle of the Constitution. The following is the full text of the two sub-articles of Art. 10:

1. Human rights and freedoms, emanating from the nature of mankind, are inviolable and inalienable.
2. Human and democratic rights of citizens and peoples shall be respected.

The first paragraph provides for a principle of far-reaching significance. It straightforwardly stipulates that human rights and freedoms emanate from the nature of humankind. These rights and freedoms therefore are not given by the state or by authorities but pre-exist their legal recognition by the state or the authorities. It could be said that the Ethiopian Constitution reflects a natural law theory of rights, which asserts that because of the universal nature of human beings, they are endowed with certain universal rights which are natural, inalienable and inviolable.

What are the human rights and freedoms considered by the Ethiopian Constitution to be inalienable and inviolable? Where do we find them? Does this statement apply to all human rights? Does this mean that human rights and freedoms cannot be limited or deprived under any circumstances?

It is good to pay attention to the sort of difference Art. 10 of the Constitution maintains between human rights on the one hand and democratic rights on the other. Note that democratic rights are not considered by the Constitution to be inalienable and inviolable, nor are they considered to be emanating from the nature of mankind. It is also very important to note that Art. 10(2) does not restrict itself to only human and democratic rights of citizens; rather it expressly states that those of peoples shall as well be respected. This is an expression of the fact that the Ethiopian Constitution does not only champion individual rights but also respects group rights equally.

Is it possible to precisely tell the difference between human rights and democratic rights? What do you think are implications and the significance of the Constitution’s considering human and democratic rights as its fundamental principles?

d. Separation of State and Religion

The fourth fundamental principle of the Constitution is the principle of separation of state and religion. This principle, also known as the principle of secularism, is truly worthy of any praise that we can think of. Its contribution to inter-religious peace and harmony, equality of different religious and belief forms as well as the overall peace of a polity cannot be overemphasized. If implemented with objectivity and consistency, the two spheres—state and religion—can co-exist peacefully and harmoniously. A good number of states in the world recognize certain religious denominations as state religion or at least maintain non-separatist relation between state and religion. As Fox and Sandler (2005: 327) note “the majority of western democratic states do not have anything near full separation of religion and state. Of them, 80.8 percent support some religions over others either officially or practically; half restrict at least one minority religion or give benefits to some religions and not others; 61.5 percent engage in some form of religious discrimination. Every western democracy except the U.S. legislates at least some aspect of religion”. The situation in the Middle East of course would display more interlinkage between state and religion.

Art 11 of the Constitution, titled “separation of state and religion” stipulates the following:

1. *State and religion are separate.*
2. *There shall be no state religion.*
3. *The State shall not interfere in religious matters and religion shall not interfere in state affairs.*

What notion of “separation” do you think the Constitution upholds? As the next excerpt from Professor Tushnet’s article discusses, the American Constitution’s analogous principle states: “Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof”. Do you think the two have the same meaning? The Ethiopian Constitution clearly prohibits “interference” by either religion or the state in the affairs or matters of the other. Does the prohibition prevent the state from taking measures in cases where a religious institution or figure breaks the law? What acts or actions may be considered as “interference”?

From Mark Tushnet, “Religion and Theories of Constitutional Interpretation” in 33 *Loyola Law Review*, Vol. 33 (1987). Footnotes omitted.

[The first Amendment to the 1787 U.S. Constitution provides for a clause that seems to have inspired the Ethiopian Constitution’s Art. 11. On this point, the first Amendment states in full: “Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances.” This part of the Amendment dealing with the relationship between the state (i.e., Congress) and religion, also known as “the establishment clause,” gave rise to several practical issues as regards the proper boundary that should run between state and religious affairs in America. Mark Tushnet’s article, reproduced in small part, discusses how this constitutional provision must be interpreted. It is worth keeping in mind that legal and political systems across the world have taken different approaches in regulating the state-religion relationships. You will see a very different approach from both the American and our own in, for example, Israel as discussed in Ruth Lapidot’s article, also excerpted below. As you read through these materials, think about the most appropriate kind of relationships that should be put in place between religion and state in a given political society from the perspective of both minority and majority religions. One other important thing to note is that in systems like ours and the U.S. where the policy between religion and state is that of separation, there is often a perceived tension between freedom of religion and non-establishment or separation. So as such, you find in the readings below that this tension has been the main concern of the literature on state-religion relationships. The tension between the separation of state and religion on the one hand, and the right to freedom of religion will no doubt feature in our case as well in relation to the enforcement of Arts. 11 and 27 of the Ethiopian Constitution. As you proceed through the readings

below, try to capture lessons regarding how best to solve the possible tension, indicated above, that may arise under the Ethiopian Constitutional System.]

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The standard originalist theory of the establishment clause was offered by Justice Black in *Everson v. Board of Education*. He saw the clause as the product of the joint campaign of James Madison and Thomas Jefferson to enact the Virginia Bill for Religious Liberty and to oppose a tax to be used to support ministers. Justice Black cited Madison's Memorial and Remonstrance to show that the establishment clause was understood by the framers to prohibit nondiscriminatory aid to religion, even where that aid might seem de minimis. More recently, conservatives have revived an earlier originalist view, that the clause prohibits only discriminatory or preferential aid to individual denominations and allows various neutral forms of governmental accommodation of religion.

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[T]wo important qualifications were implicit in the framers' thinking about church-state relations. First, questions of establishment were, for them, inextricable from questions of freedom of conscience. The framers' [of the American Constitution] understanding of history was decisively shaped by the oppression of dissenters by the established church in England. At first, oppression took the form of penalizing deviations from the established church's tenets. As dissenters became more powerful, supporters of the established church shifted ground. Abandoning confessional requirements, they insisted only that citizens pay taxes to support ministers of the established church. As the political power of dissent increased further, the position weakened even more: everyone was to pay his fair share for the support of his own minister. When establishment reaches this low a level, the threat to conscience seems rather small. But, to the framers' generation, behind any system of ministerial support lay the possibility of confessional requirements. As Madison put it, "the same authority" that supported non-discriminatory ministerial support also justified confessional requirements.

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This [Madison's] claim is that once we allow nondiscriminatory ministerial support, confession requirements are more likely to ensue. It cannot be contended that allowing public aid to religious schools serving the poor is likely to lead to the imposition of confessional requirements that violate freedom of conscience. As Justice Powell put it, "At this point in the 20th century we are quite far removed from the dangers that Madison feared." . . . The framers' desire for separation of church and state has little to say about contemporary problems.

Questions and Discussion

1. What does Professor Tushnet mean by the statement that for the makers of the American Constitution, the "questions of establishment were inextricable from questions of freedom of conscience?" Is this possibly the case for the Ethiopian Constitution as well?
2. Tushnet also asserts that the mindset of the framers of the U.S. Constitution has little to say about contemporary problems. Do you agree? Can we say the same about the Ethiopian Constitution?

From Daniel J. Morrissey, "The Separation of Church and State: An American-Catholic Perspective," in *Catholic University Law Review*, Vol. 47(1997). Footnotes omitted.

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Although it has been invoked from time to time by the [American] Supreme Court, the metaphorical language of “a wall separating church and state” is not found in the Constitution but comes from a letter written by President Thomas Jefferson in 1802 to a Baptist Association in Connecticut. The relevant text in the First Amendment itself reads: “Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof....”

These two clauses are designed, it is often said, to promote the single goal of religious freedom. Yet commentators and the Supreme Court itself have often pointed to a tension between the thrusts of the two provisions. Any governmental concession to religious expression can be seen as support and therefore establishment of religion. Conversely, in the eyes of a believer, legal restrictions on the practices of a particular faith or even governmental neutrality between religion and non-religion might be seen as a hindrance to free religious expression. The Court has thus stated its goal as walking a “tight rope,” preserving the autonomy and freedom of religious actors while refusing to condone any sponsorship of religion itself by political entities.

The only branch of government explicitly banned by the First Amendment from dealing with religious issues is the federal legislature. This has led one recent commentator, Professor Steven Smith, to argue that the framers had no intent to restrict the ability of state governments to act in those situations. The clauses were merely a statement that the federal government should lack jurisdiction in religious matters – a controversial area that members of the first Congress were happy to leave to the states as purely local concerns. It is therefore inaccurate, cautions Smith, to attribute any greater intent to the drafters of the Amendment other than that the federal government should keep its hands off the issue.

* * *

The flag salute case [in which a student refused to salute the American flag on account of religious grounds as ordained by Jehovah’s witnesses], *West Virginia State Board of Education v. Barnette*, is memorable for Justice Jackson’s famous statement generalizing the American commitment to liberty: “If there is any fixed star in our constitutional constellation, it is that no official, high or petty, can prescribe what shall be orthodox in politics, nationalism, religion, or other matters of opinion or force citizens to confess by word or act their faith therein.”

However, these comments made by Justice Frankfurter in dissent may more accurately state how such freedom must be ordered by law:

Religion is outside the sphere of political government. This does not mean that all matters on which religious organizations or beliefs may pronounce are outside the sphere of government. Were this so, instead of separation of church and state, there would be the subordination of the state on any matter deemed within the sovereignty of the religious conscience.

The most influential of those early decisions, however, was the 1947 case of *Everson v. Board of Education*. There Justice Black stated that the “establishment clause,” as he called it, prohibits both the federal and state governments from not only setting up an official church, but also from passing any law or supplying any funding which aids any one religion or aids all religions indiscriminately. In other words, the Constitution demands that all entities of government (including public schools) must be completely impartial on matters of religion and non-religion.

Justice Black supported his theory by a rather sweeping claim that the Establishment Clause had its underpinnings in the American colonies’ revulsion against government assistance to any religion. For that proposition, he cited arguments made in 1785 by James Madison in his Memorial and Remonstrance against continued tax levies to support the Episcopal Church in Virginia. Justice Black followed Madison’s remarks with citations from the Jefferson authored Bill for Religious Liberty which the Virginia Assembly passed when it rejected the ecclesiastical assessment the following year. Black

presented the religion clauses of the First Amendment as the natural outgrowth of those events and imputed Madison's and Jefferson's arguments to its framers.

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In *Wisconsin v. Yoder*, Amish parents were prosecuted for violating a state law that required that they send their children to school until age sixteen. The parents' action was motivated by a sincere theological belief that to allow their children to attend school beyond eighth grade would expose them to worldly influences that contravened the tenets of their religion.

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In a 1981 decision, the Court held that a state University could not refuse a student religious group access to its facilities despite the objection that such use would constitute governmental promotion of worship. And in 1983, the Court upheld legislative prayer by a state paid chaplain.

From Note, "Developments in the Law—Religion and State" in *Harvard Law Review*, Vol. 100 (1986-1987).

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The widespread secularization of American society and the absence of a single nationally established church gave credence to the judgment that contemporary America may be "the first attempt in recorded history to build a culture upon the premise that it is not important for the workings of ... society whether or not God is present. Ironically, one of the conditions that furthered the enterprise of maintaining a society without an official theology may have been the particular nature of Christianity as an institution. Unlike most religions, which diffuse religious activity throughout the fabric of social institutions, the Christian church has concentrated religious activity and symbols into a single institutional sphere. The relative ease of identifying this religious sphere has facilitated the modern ascendance of the notion of two separate spheres: church and state.

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The public and putatively non-sectarian use of religion within key American rituals of transition, notably presidential inaugurations and speeches, led sociologist Robert Bellah to conclude that a discernible religiosity - civil religion - permeates the nation's public life. Civil religion is not a system of privatized beliefs: it is a shared public set of beliefs, symbols, and rituals indicating a popularly accepted religious legitimization of political authority.

The existence of a civil religion raises questions about the assumed neutrality of government in its treatment of religions. An unrecognized civil religion may give rise to widespread cultural bias, which may tacitly undermine the fair treatment of non-majoritarian religions. Although the framers presupposed a government of highly limited powers that left individuals and groups free to shape their own destinies, the expansion of the regulatory state, especially since the New Deal, has markedly increased the points of contact and, consequently, conflict between religious organizations and the state .

..

Commentators disagree considerably about how to define religion or the purposes of the first amendment, a disagreement provoked in part by the important consequences of any particular definition. Simply stated, the legal definition of religion determines what the first amendment will prohibit and what it will protect. It is at this threshold that bias can first enter the process of resolving religion clause conflict . . .

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Scholars in the field of the history of religion have come to a consensus that, first, a religion's essential nature is not simply private experience; second, religion cannot be unqualifiedly identified either with the irrational and emotive or with the rational and conceptual; third, religion is not identical with morality; and fourth, religion need not be theistic . . .

[In a recent case, *Africa v. Pennsylvania* (1981)] Frank Africa, a black man, “Naturalist Minister” of a group named MOVE, and prisoner of the Commonwealth of Pennsylvania, appealed a lower court decision denying him a special diet of uncooked vegetables and fruits, which he requested on avowedly religious grounds. In upholding the district court's conclusion that MOVE was not a religion, and thus was not entitled to first amendment protection, the Third Circuit ostensibly employed the *Seeger* analysis to determine whether Africa's beliefs were part of a legally cognizable religion. A court's task,” the opinion stated, “is to decide whether the beliefs avowed are (1) sincerely held, and (2) religious in nature, in the claimant's scheme of things.” The court had little difficulty in finding that Africa's beliefs were sincerely held. The opinion therefore focused on whether the beliefs were “religious in nature,” enumerating the following indicia of religiousness:

First, a religion addresses fundamental and ultimate questions having to do with deep and imponderable matters. Second, a religion is comprehensive in nature; it consists of a belief-system as opposed to an isolated teaching. Third, a religion often can be recognized by the presence of certain formal and external signs.

Although the court repeatedly acknowledged the difficulty of its inquiry, it persisted, ruling that MOVE did not adequately satisfy any of these three prerequisites. The *Africa* Court's conclusion that MOVE was not a religion discloses cultural bias disguised in apparently neutral judicial reasoning. It is instructive to consider the court's reasoning in some detail to uncover the bias at work. The court subjected the putatively religious phenomena in question to neutral standards, but it repeatedly failed to recognize the biased preconceptions about religion embedded in its application of those standards . . .

Finally, the court listed six external signs by which a religion might be recognized: “formal services, ceremonial functions, the existence of clergy, structure and organization, efforts at propagation, observance of holidays and other similar manifestations associated with the traditional religions.” The court held that MOVE failed to exhibit any of these elements, even though the court's description of MOVE indicated the presence of four of the signs: ceremony, clergy, structure, and efforts at propagation. Rather than give weight to these factors, however, the court focused on MOVE's lack of specified holidays or scriptures - factors that seem destined to exclude new religious movements. The court's failure to distinguish between religious activity and the derivative theological articulation of that activity deserves particular criticism. The court declared that “MOVE cannot lay claim to be a comprehensive, multi-faceted theology.” But theology is not religion. Theology is to religion what anthropology is to human culture: a second-level commentary about a pre-existing activity. Indeed, mainstream Christianity developed a comprehensive, multi-faceted theology only after centuries of experience, reflection, and argumentation. One conclusion seems inescapable: measured by the standards of the *Africa* court, the first-century religious activity that later became known as Christianity would not have been recognized as a religion.

Another disturbing aspect of the decision in *Africa* was the court's failure to advance the *Seeger* [United States v. *Seeger* (1965)] view that the religiousness of the beliefs in question must be determined from the claimant's point of view. Rather than determining whether MOVE served the purposes of a religion for Frank Africa, the court analyzed whether, from the court's own perspective, MOVE bore the indicia of other activities commonly accepted as religion. The answers offered in the *Africa* decision disclose cultural bias in the guise of judicial reasoning: the court determined that MOVE was not a religion by concluding that MOVE was unlike familiar, mainstream religions. Not only is this a return to the essentialist fallacy; it is a covert endorsement of the undefended theological position that all religions are connected by a principle of unity. As such, it hastens into territory where students of religion fear to tread.

The *Africa* decision exemplifies the biases that may creep into any attempt to formulate and apply a definition of religion. In determining whether an activity is a religion for the purposes of the first amendment, as in any application of a definition, one begins with what is familiar and defines in part by excluding the unfamiliar. Hence the horizon that one brings to the activity of defining may crucially affect the outcome. The *Africa* court, conscious of the difficulty of its task, struggled but failed to recognize the family resemblances between MOVE and more familiar religious activities. The court remained unaware of how thoroughly its approach to religion was rooted in the unexamined premise that Western Christianity is the normative model for all religions. Courts must recognize the inherent limitations of the process of defining by analogy, limitations that, left unnoticed, work a bias against unfamiliar and creative forms of religious expression. Only by recognizing these biases will courts be able to transcend them rather than remaining in their thrall.

The ability of future religions to emerge, to participate in the marketplace of cultural ideas, and to serve as satisfying loci of human values, thus hinges on the breadth of judicial imagination. To preserve the freedom to be religious, both within current traditions and in as yet unforeseen ways, an open and flexible definition of religion is necessary - one that is sensitive to advances in the understanding of how religion functions in the lives of believers.

* * *

Unlike separationist, neutrality, and accommodationist strategies, all of which tend to confound instrumental goals with the ultimate constitutional values underlying the religion clauses, [here it is argued] for the explicit adoption of a theory of principled voluntarism under which each clause protects the constitutional value of religious liberty. According to this theory, the clauses are functionally interdependent: the “free exercise clause protects the individual's choice of his identity [as to religion], and the establishment clause protects the pluralistic structure of the background social institutions necessary to make that choice both possible and meaningful.” Therefore, an individual's freedom to create his or her own identity through the exercise of religion or no religion is properly constrained only when that freedom jeopardizes the institutional structure necessary to protect that exercise of autonomy. This voluntarist theory stresses the constitutional value of protecting persons from governmental constraint and compulsion in religious matters, which may occur either when the government directly denies a person's exercise of religion or when it supports one religion to the exclusion of others. Under this view, religion clause doctrine since the 1940s has exaggerated the difference between the two clauses, creating a bifurcated jurisprudence of the clauses whose operation obscures the principal value underlying them and perpetuates the unfavourable treatment of non-majoritarian religions. [It is further argued] that true religious liberty in the modern era requires more sensitive attention to the rights of non-majoritarian religions. It identifies the source and nature of this central value of protecting non-majoritarian beliefs, examines judicial doctrine to identify strains of bias against non-majoritarian religious expressions, and suggests practical ways to overcome the problem of bias.

As part of the enterprise of safeguarding religious liberty against state encroachment, the religion clauses regulate government efforts to recognize religion in the public sphere, including official adoption of religious symbols or practices, and religious exercises or instruction in public schools. When such actions signal state preference among religions or prescribe orthodoxy in matters of belief, the religious autonomy of individuals and groups who do not adhere to the preferred faith is undermined by the message of exclusion from the political community and the accompanying pressure to conform to preferred practices and beliefs. Moreover, when the state introduces religious practices into its institutions, it may become the sponsor of coercive pressure exerted by adherents of favoured religions against non-adherents, even though the state does not intend to establish religious orthodoxy. Establishment clause limitations on state adoption or promotion of religion thus complement the free exercise clause's protection of religious activity from government interference by prohibiting the imposition of religious beliefs upon unwilling minorities by political majorities.

* * *

The “Civil Religion” and the Establishment Clause

(a) *The Dual Character of Civil Religion.* - The entrenchment of religion in American public life - its presence in the dominant moral, social, and cultural fabric of society - has been termed a “*de facto* establishment of religion prevailing throughout the land.” Against this background, government recognition of religion in public life takes a variety of forms, ranging from enactments of practices that carry religious significance or have historical roots in religion to adoption of symbols or precepts carrying some religious significance as part of the emblems of civic life. Observers, however, have long commented on the ambiguous nature of public religion in America. The American “civil religion” is comprised in part of strands of traditional sectarian faiths; yet it also consists of essentially social and political values – “a celebration of American ways” - with little sectarian significance notwithstanding the sacral imagery in which they are cast. As such, the civil religion promulgated by government reflects both the absorption of “Christian ethnocentrism” into public institutions, and a “ceremonial deism” that links democratic ideals and institutions to transcendent aspirations. References to God in the Pledge of Allegiance and the national motto “In God We Trust,” though by definition theistic, are arguably as expressive of patriotic ideas as of religious commitments. Similarly, the recognition of Thanksgiving and Christmas as official holidays may reflect their role as secular folk traditions as well as their religious roots.

(b) *Civil Religion as Expression of Secular Values.* - The ambiguous character of civil religion makes it especially difficult to classify in establishment clause terms. On the one hand, state adoptions of the religious motifs inherent in “In God We Trust” and in the Thanksgiving holiday may impose theistic beliefs on non-adherents by granting such beliefs a central symbolic place in the national life. “God Save the United States and this Honorable Court,” the phrase used to open the Supreme Court's sessions, arguably grants preference to theistic beliefs by “directly tying God to country.” On the other hand, it might be argued that, given the contexts in which “In God We Trust” and “God Save this Honorable Court” appear, the invocation of a deity serves essentially as a surrogate for patriotic rather than religious values, the sacral language serving primarily to confer solemnity and “a special resonance and power.” Similarly, adoption of holidays with historical roots in religion arguably stands not as enactments of religious belief, but as recognitions of traditions that have become essentially secular in nature. From the standpoint of the establishment clause objectives of avoiding state imposition of religion on non-adherents and preventing the state from making religion relevant to standing in the community, state promotion of such patriotic values and secularized traditions is acceptable, provided that religious content is truly lacking.

This line of analysis - distinguishing between symbols that have religious content and symbols that have become “secularized” or are devoid of religious meaning - has ordinarily been the approach of courts considering challenges to official adoption of assertedly religious symbols or practices. Cases involving government-adopted symbols have generally turned on the question of whether the symbol was religious in nature, or was expressive of primarily secular values, notwithstanding some religious references. On the premise - whether correct or not - that they possess a “patriotic or ceremonial character” with little sectarian or theological import, or recognize customs no longer exclusively connected with their religious roots, elements of the state-sponsored civil religion are regarded as permissible by the courts. Yet precisely because genuine religious significance is lacking - or at least heavily diluted - in the symbols of civil religion, their ratification by the courts is unsatisfactory to proponents of greater government recognition of religion in public life. State recognitions of religion that confine themselves to symbols that have shed their religious content hardly qualify as meaningful accommodations to religion. For proponents of accommodation in the public sphere, it is a hollow victory if the government may only recognize religion in the form of a bland “civic piety,” or must artificially suppress the religious elements of holidays. The heart of the public sphere accommodation issue, then, is whether government is permitted to adopt symbols with genuine religious content, albeit for purposes other than promoting orthodoxy of religious belief.

Religion and Public Education

The Supreme Court has found an establishment clause violation in every instance of state-sanctioned religious expression in public schools that it has considered. The Court's rationale for prohibiting the presence of religion in public education appears to lie in the nature of the public school as the locus of socialization as well as of the transmission of knowledge. The schools' function of promoting tolerance and respect for difference - preconditions for protecting religious liberty in a pluralistic society - demands that the classroom remain scrupulously free of divisive sectarianism or majoritarian orthodoxy. At the same time, a paramount concern is the particular vulnerability of school children to indoctrination and coercion, especially given the public schools' compulsory attendance requirement. Courts have repeatedly expressed the fear that children's impressionability might lead them to perceive the presence of religious expression in school as signifying the school authorities' approval of such expression and, consequently, to feel pressure from teachers and fellow students to conform to majority practice, with the prospect of alienation as a price for nonconformity. Advocates of accommodation, however, have argued that permitting some religious expression in the schools and adapting the curriculum to students' religious values promote free exercise values and prevent the establishment of a "secularist" religion or anti-religion in public education. These arguments have generated the two principal areas of legal controversy: the effort to restore devotional activities to the schools, and the effort to eliminate the assertedly anti-religious bias in the secular curriculum.

Religion and the Public School Curriculum

Attempted Correctives to the "Secularist" Bias of Public Education. - The first amendment "does not permit the state to require that teaching and learning must be tailored to the principles or prohibitions of any religious sect or dogma." Accordingly, instruction in the teachings of sectarian faiths has long been forbidden under the establishment clause. Despite its abstract clarity, the Court's mandate against promoting religious beliefs in classroom instruction poses pressing difficulties in application. Education, both in transmitting moral values and in providing instruction in literary or scientific subjects, may naturally intersect at some level with religion: even if the schools avoid instruction in sectarian faiths, they may transmit norms or ideas that conflict with the precepts of certain faiths and hence be accused of showing hostility to those faiths or of establishing an anti-religion. The question then becomes whether schools should shape their curriculum to accommodate the offended faiths by either introducing the faiths' precepts into the curriculum or eliminating elements of the curriculum that contradict their precepts. This question has acquired a pressing urgency in connection with the fundamentalist response to the secularization of education. Religious groups have charged that secular public education promotes the antitheistic faith of "secular humanism" both by excluding religious teachings from the curriculum and by instructing in particular subjects - including evolution, sex education, literature, and values education - deemed inconsistent with certain traditional religious beliefs. Accordingly, parents and religious groups have sought to correct perceived secularist biases in the schools and force some accommodation to traditional religion through litigation, legislation and influencing school board decisions. The result is a "crossfire" in which public education is caught between competing assertions that instruction from traditional religious perspectives, as well as instruction from a nonreligious viewpoint, is forbidden. A subtle dialectic emerges in which secular instruction infringes the religious values of some, while accommodations may infringe the autonomy of the rest.

Legal challenges to secular education, based on claims that the public schools promote antireligious beliefs, have been unsuccessful for many years. In a recent decision, however, a federal district court banned the use in Alabama schools of forty-four textbooks judged to be biased against theistic religions and espousing the religion of secular humanism. The decision suggests that when secular education conflicts with the precepts of a particular religious' faith, the establishment clause may be invoked to bring the curriculum in line with the faith's precepts.

At the same time, some state legislatures and school boards have attempted to counteract the allegedly secularist bias in schools by setting restrictions on the teaching of subjects deemed hostile to religion

and by introducing instruction more compatible with certain faiths. The most notable instance is legislation regulating the teaching of evolution. Since the Supreme Court ruled unconstitutional laws banning the teaching of evolution, legislative efforts have focused on limiting the exclusive teaching of evolution as the explanation of human origins through laws requiring that equal time be devoted to creation-based accounts of human origins. These “equal time” or “balanced treatment” statutes have been struck down as manifesting the purpose of propagating religious doctrine. Courts have not yet ruled on the constitutional status of teaching creationism in itself, however, and although laws overtly limiting instruction in evolution have been viewed with suspicion by the courts, state educational authorities have been able to accomplish some of the same ends of “balanced treatment laws” through instructional guidelines and textbook selection policies. The “comprehensive authority of the States and of school officials . . . to prescribe and control conduct in the schools” is thus double-edged - insulating the state from parental interference at the judicial level, yet according influential groups the power to shape education along religious lines at the school board level without judicial scrutiny. Decisions of school authorities are not easily overturned, whether by those seeking to relax the secular orientation of public education or by those seeking to preserve it.

Secular Education as Hostility to Religion. - The Supreme Court has remarked in dictum that the establishment clause prohibition on religious instruction in public schools does not entitle the state to “establish a ‘religion of secularism’” in the sense of affirmatively opposing or showing hostility to religion, thus preferring those who believe in no religion over those who believe. The thrust of the fundamentalist challenge to public education is that the moral and scientific precepts taught in public schools promote an antitheistic human-centered religion. The claim that the religion of secular humanism has been established in public education is difficult to sustain, however, given the sweeping manner in which the term is used. Application of the term has not been limited to beliefs that are expressly atheistic or hostile to religion as such and that accordingly should not be taught in schools. Rather, the fundamentalist challenge has been broadly levelled at materials and values thought to be inconsistent with the precepts of a particular religion, and to the absence of religion from the classroom.

There are several problems inherent in the argument that when a school imparts knowledge or values inconsistent with the teachings of a religion, it must either expurgate the objectionable material or offer instruction in the offended religious doctrine. Many ideas central to scientific, political, and cultural discourse, including values – such as social equality and religious tolerance - arguably embedded in the Constitution itself, appear to be at variance with certain religious precepts. A policy of expurgating secular materials whenever they offend religious values effectively gives veto power to religious objectors over any action of the state not consistent with the objector's religious beliefs, thus permitting the objector to shape the curriculum according to a single creed. It further confronts courts and school authorities with the choice of either ordering that the curriculum conform to the precepts of all religions - a manifest impossibility or catering instruction to certain preferred faiths.

The argument for eliminating the secularist bias in schools equates inconsistency between school curriculum and religious precepts, or failure to inculcate religious precepts in the curriculum, with hostility to religion. Such a conclusion confuses hostility to religion with non-sectarianism. The flaw in this equation is its implicit premise that whatever is not religious is antireligious. As one court has pointed out, however, the establishment clause presupposes a third category of nonreligious activity, into which falls the secular government activity permitted under the clause. Secular education, comprising the advancement of both secular ideals and secular knowledge, is not inherently antireligious, in the sense of intruding on the individual's private choice of religious belief; indeed, it is plausibly viewed as the precondition for such choice, because it minimizes state identification with particular religious' beliefs. Absence of religion and presence of religion, therefore, are not congruent in terms of their “establishment” effects, because the former leaves open the possibility of private choice.

Moreover, teaching students to be tolerant of diversity – which has been challenged by some opponents of secular humanism as promoting moral relativism - is consistent with protection of religious choice, even though in substance it may offend some religious views. As the Supreme Court has conceived it, secular education has as its purpose “the preparation of individuals for participation as citizens” and the

“inculcation of fundamental values necessary to the maintenance of a democratic political system.” Some of the values challenged as inculcating secular humanism are those considered to be at the heart of a democratic, pluralistic society: basic concepts of social and political equality and “tolerance of divergent political and religious views.” Instilling these values is antireligious only in the sense of refusing to give primacy to religious views that reject their validity; more importantly, transmission of these values is essential for the protection of the religious autonomy of disfavoured religious groups.

By contrast, state sponsorship of religion to counteract the secular orientation of public education accomplishes the opposite result, selectively exposing students to the teachings of particular religious’ creeds that receive state approval. The “balanced treatment” laws - notwithstanding the fact that they purport to limit themselves to “scientific” aspects of creationist accounts of human origins - are attempts to offset the exclusively secular tenor of evolution instruction, which is considered objectionable precisely because it refuses to offer a supernatural account of human origins. Creation theories, even if supported by some scientific evidence, are essentially religious in nature; this is why their introduction into the curriculum is thought to protect the religious freedom of those who accept them. Balanced time requirements may be viewed as attempts to promote religious freedom by making classrooms accessible to, rather than hostile to, religious beliefs. As with the moment of silence, however, this accommodation of students whose religious values are offended by the exclusion of religion from the classroom promotes the religious freedom only of those whose beliefs are incorporated into the curriculum. Those who reject the Genesis account of creation - which is generally the theory contemplated by balanced treatment statutes - see their religious freedom curtailed rather than enhanced, because the state elevates one set of religious beliefs over others.

The proposition that secular education is not antireligious, but rather - as “the training ground for habits of community” - is a precondition for religious freedom, may seem overly pious. It is undeniable that the content of secular education may trample on certain religious beliefs; the response - that those whose autonomy is infringed may seek exemption from objectionable classes or attend private schools at their own expense - must seem unsatisfactory to those who seek public recognition of their beliefs. Yet the idea that the secular orientation of the public school curriculum is itself a religion or antireligion is, in practice, a paradox the establishment clause cannot afford to accept; it leads to a fundamental incoherence, for government neutrality itself becomes susceptible to challenge as antireligious. For courts or school officials to invoke this reasoning as the basis for reintroducing religion into the curriculum is to adopt precisely the intolerance the establishment clause seeks to prevent.

Questions and Discussion

1. It is stated in Morrissey’s article that the ban embodied in the First Amendment relates only to Congress (i.e., the Federal Legislature) and not to other Federal organs as well as to all state actions. Is this a plausible point of view? Do you see a possibility for any such argument in our Constitution’s case?
2. Do you think that there is what can be known as “evil religion” in Ethiopian society?
3. How do you see the government’s televising of religious celebrations and ceremonies in Ethiopia as per the principle of separation of state and religion under Article 11 of the Ethiopian Constitution? Do such acts violate the separation requirement?
4. It has been argued in the article on “Developments in the Law—Religion and State” that the answers offered in the *Africa* decision disclose cultural bias in the guise of judicial reasoning, as the court determined that MOVE was not a religion because it was unlike familiar, mainstream religions. Do you share this opinion? Do you think that Frank Africa’s faith system, MOVE, would be granted recognition under Art. 27 of the Ethiopian Constitution? What possible downside do you see if any such claim of belief system is to be granted as demanded?
5. In the Harvard Law Review article mentioned under question 4 above, the American Constitution’s First Amendment “Establishment Clause” has been understood by the American Supreme Court as well as academia in terms of “separationist,” “neutrality,” and “accommodationist” strategies. The article argues that all of the three strategies demonstrate some flaws and misreading of the

Constitution, and suggests an approach known as “principled voluntarism.” Look back at the discussions here-above as well as in the full article, and discuss the differences among the strategies, and flaws of each suggested by the article. Do you think the suggested approach of “principled voluntarism” is more plausible? Which, if any, of the approaches do you think is more suitable to the developing area of state-religion relationship under the Ethiopian Constitution’s Article 11?

6. Read the discussion on “religion and public education” (to end of the excerpt) in the above article as well as Articles 11, 27 and 90(2) of the Ethiopian Constitution, and discuss whether those views in the article could be helpful (or not) to shape the future of the State-religion relationship in the area of education in Ethiopia.
7. In December 2008, the Ethiopian Federal High Court gave a decision on a case in which two young Muslim men were accused (Case File No. 51827). The prosecutor pressed a charge alleging that the defendants were instigating violence and a riot on a specified date in 2005 in Addis Ababa. It said that they were found in possession of sheet of paper up on which was written a message roughly translated as “in the name of Allah the merciful; let us express our disapproval in the usual way through Islamic procedures of “*tekbira*” and “*shehada*.” It was explained in the decision that they were protesting against the dispute they had with the City Government in relation to construction of a mosque. One of the defendants was alleged to have gotten the paper from the other defendant. The paper urges any recipient to duplicate ten copies and distribute them, and it was said it was in this spirit that one of them gave it to the other. The paper was found in the pocket of one of them after being body-searched by the police. The police who undertook the arrest and body-search of the defendants testified in court, saying that they found the two people in the circumstance just described.

The judge asked the defendants as well as the witnesses about the content of the paper and none of them was particular about it. Framing as the issue “whether the defendants were found instigating the public to trespass laws or orders or regulations put in place by a lawful authority,” the court went on to hold that there was no evidence produced by the prosecution that proved the allegation. The court obtained an explanation from Islamic experts about the two Arabic words in the translation above. The experts opined that the words were not violence-ridden and referred to glorifying and testifying about God’s greatness. The court decided that the fact that they were found carrying the paper with these words did not in and of itself instigate violence, and acquitted the defendants.

Do you agree with the reasoning and decision of the court? Why or why not? Assume additional facts in this case that the police caught these persons having issued 100 copies of the paper in front of a mosque to those coming out of it. Would this make them guilty of the crime they were charged with? Assume also that the paper found in the hand of the defendants was full of statements that complained about how the city government of Addis Ababa was doing bad things, even anti-Muslim things, and that the only way to deal with it is through demonstration by holding *tekbira* and *shehada* on the streets of the city. Would they have been guilty?

You can note from the foregoing discussions that the US and Ethiopian Constitutions have a very similar approach to the relationship between state and religion. This should not, however, be taken as a universal approach. Many states do not maintain a separation between state and religion. Cases in point are the “Islamic Republics” in many parts of Africa, Asia and the Middle East. It is interesting to note also that even in Western European countries, the boundary between the state and the religion is not always clearly delineated and in many of them there is no strict constitutional requirement of separation between state and religion. Examples of some systems are given in the following readings.

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From Vicki C. Jackson & Mark Tushnet, *Comparative Constitutional Law* (New York: The Foundation Press, 2006), as taken from Asher Maoz, “Religious Human Rights in the State of Israel,” in

Religious human institutions in Israel enjoy wide state financial support – in the form of both direct funding and tax exemptions. Both forms of state support are not uniform with regard to the various religious communities and lack clear criteria to ensure equal support for all religions. State funding for religious institutions has not developed on a systematic legal basis. It should be noted that, to some extent, discrimination in one area of state funding for religion may be offset by preferential treatment in another. Thus, though Christian churches seem to enjoy less direct state funding, they enjoy tax exemptions to a substantially larger degree than other communities, including Jews and Muslims.

. . . Religious institutions are supported by the state. Jewish, Muslim, and Druze religious courts which are established under state law and constitute state organs, are fully financed by the state as are other courts of law. The judges of these courts are paid salaries on par with the judges of other state courts of law.

Jewish religious needs are furnished by the Jewish Religious Services Law, 1971, which states that the entire budget of the religious councils, as approved by the local council or by the Ministry of Religious Affairs, shall be funded by the government and by the local council. The state also pays the salaries of the Chief Rabbis of the state and of local rabbis who are elected according to law. The Ministry of Religious Affairs provides specific funding for various needs of religious life, such as participation in the construction of synagogues, cemeteries, and ritual baths, or the supplying of praying books and other ritual articles. The Ministry allocates special funding for religious instruction and education, maintenance of cemeteries, cultivation of ties with Jews in the Diaspora, and care for the religious needs of new immigrants.

Within the Ministry of Religious Affairs, special departments deal with the Christian, Muslim, Karaite, Druze, and Samarite communities. This arrangement is apparently designed to enable the ministry to tailor its services to the distinct needs of each minority community – though some consider this to be a form of preferential treatment of the Jewish community.

Bernard Bekink, *The intrinsic uneasy triangle between constitutionalism, secularism and the right to freedom of religion. Should religions be treated equally in a secular state? A South African perspective* (Paper Prepared for Seventh World Congress, International Association of Constitutional Law, Athens, Greece, 11 – 15 June, 2007). Footnotes omitted.

[Bernard Bekink discusses a legal system, South Africa, in which secularism is a state policy but at the same time the state is not prohibited from supporting a religion or a religious activity. The article discusses the effects of permission by the South African Constitution of religious observance in state institutions, and how the courts have to deal with this and issues of equality among religions. In spite of the obvious differences between the Ethiopian and the South African constitutions in this regard, the issues that arise no doubt share a lot of resemblance. The article brings to light how trying and difficult it is to balance between freedom of religion on the one hand and state responsibility and other civil liberties such as freedom of expression (for example, in the caricatures regarding the Prophet Mohammed) on the other. Keep the Ethiopian scenario in mind as you grasp the developments in South Africa.]

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The relationship between the concepts of constitutionalism, secularism and an individual's fundamental right to freedom of religion has been strenuous over many centuries. Continuous power struggles between state institutions and religious bodies have been extensively documented in various legal, political and philosophical books and journals. Although the modern 21st century world has developed

significantly from some decades ago, the interaction between the three concepts still creates many political and legal disputes and this often accounts for an uneasy/unstable triangle, not only in various domestic legal systems, but also in global political relations and international law.

. . . The principle or concept of constitutionalism in essence refers to a system of government which is directed by a constitution of a particular country or state. The concept symbolises a state that is founded on the law and that the government derives its powers from the law. The law is mainly manifested in the form of a written and often supreme constitution. Governmental powers are limited to those powers set in the law and the state (government) is also bound by the law. Secularism refers to worldly things as opposed to sacred things. The concept/principle in essence proclaims the doctrine that rejects the favouritism of any religion combined with the attitude that religion itself should have no place in civil affairs. Freedom of religion consists out of two sub parts. The first part, freedom, relates to personal liberty. It includes the quality of being free to enjoy political or civil liberties and to have a measure of independence/autonomy. The concept religion is generally understood to mean the belief in, worship of or obedience to a super natural power which is divine or have control over human destiny.

On a close evaluation of the three concepts, it would seem that the right to freedom of religion is the most complex in nature. Freedom of religion has had a long and turbulent history. Religious intolerance has been a feature of human existence since time immemorial. It is said that Christianity played the most fundamental role in the initial development of the right to freedom of religion. After the establishment of the first Christian church, in the year after Christ's death and resurrection, Christians were being severely prosecuted. Eventually the religion of Christianity was banned and suppressed by the then Roman Empire. Especially the refusal of Christians to worship and obey pagan gods brought onto them the wroth of the dominant state authorities. History however shows that Christianity survived and later became the dominant religion in the then Western world. For most centuries thereafter, the relationships between church and state and between religion and the law were dominated by state politics and religious doctrine in many parts of the world. This historic relationship is quite complex and it is often said that the power struggle between the church and the state was unholy. It was in reaction to the religious persecution by the state, that the idea of religious protection as a human right developed. Some of the earliest advocates of religious freedom combined calls for religious tolerance with calls for a secular state where no one religion is favoured over another. The overall importance of the right to freedom of religion therefore seems self-explanatory. Some commentators even go as far as to say that religion is such an integral part of a human being, as it is necessary for a person to breathe. It relates to people's deepest beliefs about the existence of God and the relationship between God and mankind. Disputes/disagreements relating to this relationship often leads to conflicts and even wars.

In light of the abovementioned it comes as no surprise that the right to freedom of religion has been incorporated in many national and even international legal documents. Most democratic systems regulate the right to freedom of religion by setting and implementing state policies of non-interference. It should be noted on this point that the modern state has taken over many of the functions which were previously performed by the church. Such functions typically include aspects relating to education and welfare. The tendency thus developed whereby the state started to flush the core principles of religion in general from all government institutions. This development can be regarded as the initial movement towards creating a so-called secular state.

It is notable that the right to freedom of religion incorporates various diverse aspects. These aspects include both a liberty component as well as an equality component. From a liberty point of view, it entails a freedom of choice of an individual without governmental interference. The equality part in turn presupposes that the individual should be free from government practices which either favour one religion over another or religion over non-religion. In this respect, some commentators argue that the relationship between the state and religion is essentially governed by two principles, i.e. the right to freedom of religion on the one hand and the separation between state and religion on the other. Most modern states today seek to incorporate the two principles and try to achieve an acceptable balance

between the concepts of secularism (exclusion of religion from state bodies) on the one hand and the protection of the right to freedom of religion (the so called “Religion clause”) on the other.

In South Africa, the development of the concepts of secularism, constitutionalism and the right to freedom of religion, was in many ways unique. Before the dawn of the new and truly democratic dispensation, the former South African state was well known to have harboured a favourable inclination towards Christianity. Such favouritism was specifically attributed to the calvinistically orientated background of the country and continent as a whole. When the new constitutional dispensation was considered and debated, it would seem that the constitutional drafters were mindful of the intrinsic uneasy relationship between the concepts of secularism and the protection of religion. They were seemingly sensitive not to create a strict separation between church and state or to allow a relaxed system where the state could easily favour one religion over another. On a closer investigation of the new constitutional provisions, it would seem that a compromise was reached in the wording of both sections 14 of the Interim Constitution, and its successor the Constitution of the RSA [Republic of South Africa], 1996. . . [A]lthough the Constitution does not prevent the state from recognising or supporting religion per se, the state is constitutionally required to treat the various religions equally.

. . . The challenge and importance of ensuring religious equality is specifically highlighted in a number of recent developments that occurred in South Africa. In this regard, it is well known within the international community, that during 2006 a Danish newspaper published a number of cartoons which apparently depicted the prophet Mohammed as a terrorist. The publications led to a wide spread outcry and public protest by Muslims worldwide. The protests and insurrection also spilled over into South Africa. A local newspaper was considering to publish the mentioned cartoons when a high court interdict was sought to prevent the publishing of the cartoons/caricatures or drawings. In the following legal process, the judge found that the cartoons were indeed insulting, demeaning and undignified, and that it ridiculed Islam and its founder. He held that the cartoons advocated hatred and created a stereotyping of Muslims, in a way that is harmful to the achievement of the core values of the South African nation and thereby reinforce and perpetuate patterns of discrimination and in-equality. The judge also stated that he needed to strike an appropriate balance between the competing constitutional values of freedom of expression and human dignity. It was concluded that the publication of the cartoons would demean the dignity of the Prophet Mohammed, and an order was made to interdict the publishing of any representations of the Prophet. In a contrasting matter of 2004, the matter of *Van Loggerenberg v. 94.7 Highveld Stereo* the majority members of the broadcasting complaints tribunal found in a matter relating to a joke made on regional radio, about the miraculous conception and birth of Jesus Christ, that although the joke was objectionable, offensive and ill-conceived, it did not constitute advocacy of hatred based on religion that would constitute incitement to cause harm. The majority of the tribunal emphasised that the right to freedom of expression is essential to an open and democratic society based on freedom and equality.

Both examples mentioned above highlight the underlying legal question that is alive in most modern legal systems namely: should religions be treated equally in a secular constitutional state where fundamental rights, such as the right to freedom of religion, are entrenched and protected?

The legal/constitutional foundation relating to the concepts of secularism, constitutionalism and the right to freedom of religion:

. . . [The South African constitution] incorporated universally accepted constitutional principles such as the Rule of Law, Separation of Powers, Constitutionalism and the recognition and protection of universally accepted fundamental/human rights. Under this new supreme legal dispensation various constitutional issues have surfaced and developed. Many of these issues are of fundamental importance for the developing South African society and Southern African region.

During the last 12 years since the commencement of the new constitutional order in South Africa, the judicial authorities have been called upon many times to resolve issues/disputes relating to the

interpretation and application of the principles of secularism, constitutionalism and the right to freedom of religion. Although the Constitution directly provides for the protection of the right to freedom of religion and also prohibits any unfair discrimination on inter alia the ground of religion, it does not directly define the principles of constitutionalism and secularism. These principles can however be deflected from various sections incorporated in the Constitution. Apart from the fact that the Constitution is the supreme law of the South African state and that the state is also bound by the Constitution, which subsequently confirms the incorporation of the principle of constitutionalism, the concepts of secularism and freedom of religion are intertwined in section 15 of the Constitution.

* * *

Apart from other fundamental rights, such as human dignity, life, freedom and security of the person and privacy, the Constitution also includes a specific right directed at freedom of religion, belief and opinion. For purposes of this research section 15 is of significant importance. The section reads as follows:

- (1) Everyone has the right to freedom of conscience, religion, thought, belief and opinion.
- (2) Religious observances may be conducted at state or state-aided institutions, provided that –
 - (a) those observances follow rules made by the appropriate public authorities;
 - (b) they are conducted on an equitable basis; and
 - (c) attendance at them is free and voluntary.
- (3) (a) This section does not prevent legislation recognising –
 - (i) marriages concluded under any tradition, or a system of religious, personal or family law; or
 - (ii) systems of personal and family law under any tradition, or adhered to by persons professing a particular religion.(b) Recognition in terms of paragraph (a) must be consistent with this section and the other provisions of the Constitution.

The Bill of Rights also protects other fundamental rights which often have an impact on religious disputes. Such rights include the right to freedom of expression, freedom of association and the right to cultural, religious and linguistic communities. In support of section 15(1), the right under section 18 of freedom of association is generally regarded to include the right not to associate. This is similar to the position under the right to religion which includes the right not to believe. The Bill of Rights also protects cultural, religious and linguistic communities. Section 31 states as follows:

- (1) Persons belonging to a cultural, religious or linguistic community may not be denied the right, with other members of that community –
 - (a) to enjoy their culture, practice their religion and use their language; and
 - (b) to form, join and maintain cultural, religious and linguistic associations and other organs of civil society.
- (2) The rights in subsection (1) may [however] not be exercised in a manner inconsistent with any provision of the Bill of Rights.

* * *

An analysis of the constitutional foundation:

Although section 15 of the South African Constitution is regarded as the “Religion clause” in the Constitution, it must be read in conjunction with many other sections and the wording of the section should be carefully considered and interpreted. Various interesting aspects have already developed from the basic structure of the particular section.

. . . [S]ection 15 . . . not only protects religion, but also belief, thought, conscience and opinion. It also includes the right not to believe in any religion and thus to be a sceptic, agnostic or even an atheist. The section also includes views derived from political, sociological or philosophical ideologies. In essence, the aim of section 15 seems to ensure that every person is free to adhere to deeply held beliefs and values, without concerning itself with the origin of such beliefs or values. Some commentators also argue that the protection given under section 15 is not subject to the actual proving that a person is an adherent of a particular religion or that he/she is indeed affiliated with a particular religious' institution. It is a further important feature, that section 15(1) does not explicitly protect certain practices which are directly linked or motivated by religion. Read in conjunction with sub-sections 15(2) and (3) and also section 31, such practices are indeed also protected.

It is generally accepted that section 15 should not be seen as a so-called "establishment clause". Contrary to the position under the US constitution, section 15 does not demand a strict separation between church institutions and state institutions. Although no strict wall of separation between church and state has been erected, the state is however not free to identify or promote a particular religion. In the matter of *S v Lawrence, Negal and Solberg* it was held that an explicit endorsement of one religion over others, was not permitted in South Africa's new constitutional order. The state may not show a special affinity or support to a particular religion. According to some writers, the apex of the right to freedom of religion lies in the balance between positive and negative identification of religions by the state.

A contentious and somewhat uncertain issue is whether section 15 also contains a guarantee of religious equality. On this point it is important to note that the right to religion has both a positive and a negative dimension. From the positive perspective, an individual is free to accept, reject or change his/her religious beliefs without direct or indirect coercion from the state. The state may therefore not prevent a person from adopting a particular belief or to manifest such a belief in practice. The negative dimension in turn protects a person from direct or indirect coercion by the state in matters of faith. Apart from the two dimensions, the concept of religious equality also reflects so called international sub-dimensions. It is argued that it includes a non-establishment sub-dimension, which prohibits the state from establishing a theocracy or to establish or even endorse a specific church. Then there is the non-preferentialist sub-dimension, which prohibits the state from preferring one religion to another. This sub-dimension entails that the state must treat all religions in an equitable manner. Finally, there is the non-accommodationist sub-dimension, which prohibits the state from discriminating between believers and non-believers. Both believers and non-believers must be treated equally and the state may not prefer one religion over another or religion to non-religion. It would seem and is so argued that section 15 incorporates all three of the internal sub-dimensions in order to achieve and protect religious equality.

* * *

Important judicial precedents in South Africa on religious equality since 1994

In the past 12 years the South African courts, including the Constitutional Court have been called upon on regular intervals, to adjudicate legal disputes, where the principles of constitutionalism, secularism and in particular right of freedom of religion have been at issue. Interesting comments and discussions on the rights in the Constitution have been put forward and many are fundamentally important in relation to the topic of this research.

The matter of S v. Lawrence; S v Negal; S v Solberg

The case concerned three appellants, which were separately charged of contraventions of the South Africa Liquor Act. The appellants all defended the charges under the conception that particular provisions of the Liquor Act were inconsistent with the Interim Constitution, and accordingly invalid. The Liquor Act *inter alia* prohibited the selling of liquor other than table wine under a grocer's wine licence. It also set certain restrictions on the hours and days on which sale could be effected and also

prohibited the selling of wines on certain closed days, which included Sundays, Good Friday and Christmas Day. It was contended on behalf of Ms Solberg specifically, that the prohibition against selling wine on Sundays was inconsistent with [her] right to freedom of religion, belief and opinion which was guaranteed by section 14 of the Interim Constitution. In writing for the majority, Chaskalson P held in relation to the appellant's contention that the purpose of prohibiting wine selling on closed days was to include submission to a sectarian Christian conception of the proper observance of the Christian Sabbath and Christian holidays, that section 90 of the Liquor Act does not prohibit grocery store from doing business on Sundays and does not force people to act or refrain from acting in a manner contrary to their religious beliefs. He pointed out that in South Africa, Sundays have acquired a secular as well as a religious character. Chaskalson went on to say that no evidence was placed before the Court that the provisions of section 90 of the Liquor Act interfered with the appellant's freedom of religion or the freedom of religion of any other person, or to serve any other religious purpose. In relation to the equal protection of religions, Chaskalson P made the following important statements however:

I should add that I can see nothing in the text of s 14(1) or in the historical background to a Constitution which made no provision for an establishment clause which would require such a principle to be read into its provisions. The Constitution deals with unequal treatment and discrimination under s 8. Unequal treatment of religions may well give rise to issues under s 8(2), but that section was not relied upon by the appellant in the present case. To read "equitable considerations" relating to State action into s 14(1) would give rise to any number of problems not only in relation to freedom of religion but also in relation to freedom of conscience, thought, belief and opinion, which would go far beyond the difficulties raised by the "establishment clause" of the US Constitution.

Contrary to the judgement of Chaskalson, O'Regan J provided a minority judgement in which she disagreed with the conclusions of the majority relating to the challenge of Ms Solberg. On the particular aspect of religious equality, the justice stated the following:

The stipulation of voluntariness is not the only precondition established by s 14(2). The subsection requires that, even where attendance is voluntary, the observance of such practices must still be equitable. In my view, this additional requirement of fairness or equity reflects an important component of the conception of freedom of religion contained in our Constitution. Our society possesses a rich and diverse range of religions. Although the State is permitted to allow religious observances, it is not permitted to act inequitably.

The Justice further commented that

In determining what is meant by inequity in this context, it must be remembered that the question of voluntary participation is a consideration separately identified in s 14(2). The requirement of equity must therefore be something in addition to the requirement of voluntariness. It seems to me that, at the least, the requirement of equity demands the State act even-handedly in relation to different religions.

According to O'Regan the requirement that the government act even-handedly does not demand a commitment to a scrupulous secularism, or a commitment to complete neutrality. At times, the giving of full protection to [the right] freedom of religion will require specific provisions to protect the adherents of a particular religion. The requirement of even-handedness [in itself] may produce different results depending upon the context which is under scrutiny. However, the explicit endorsement of one religion over others would not be permitted in South Africa's new constitutional order. It is according to O'Regan, not sufficient for South Africans to be satisfied in a particular case that there is no direct coercion of religious belief. The courts will also have to be satisfied that there has been no inequitable or unfair preference of one religion over others. For purposes of the Solberg matter, O'Regan stated that she could not accept that the Legislature's purpose in enacting the definition of closed day, was a

secular one, but that it displayed an endorsement of Christianity which was in conflict with the Constitution and also did not meet the test of justification required by section 36.

Sachs J also provided a separate judgement, although he concurred in the majority judgement of Chaskalson, albeit for different reasons. According to Sachs the concept of an open society in South Africa is a central feature of the Bill of Rights and a lay element in the interpretation of the right to freedom of religion. He regards an open society as a pluralistic one in which there is no official orthodoxy or faith. The Constitution according to Sachs is about the acknowledgement by the State of different belief systems and their accommodation within a non-hierarchical framework of equality and non-discrimination. Sachs was of the view that the identification of Sundays, Good Friday and Christmas Day as closed days indeed involved an endorsement by the State of the Christian religion in a manner that is “problematic” to section 14. He went on to say that the objective of [the right to freedom of religion under the Constitution – both IC section 14 or FC section 15] is to keep the State away from favouring or disfavours any particular world view. He further made the valid point that aspects that may be trifling to some may be hurtful or oppressive to others. He finally held that the facts indeed involved a breach of section 14 of the IC but that such infringement was sanctioned by the limitation provision in the Constitution.

The matter of Christian Education, South Africa v Minister of Education

The central question in this matter was whether the fact that Parliament has enacted a law, which prohibited corporal punishment in schools, has violated the rights of parents of children in independent schools, who, in line with their religious convictions, had consented to its use. It was contended before the court that corporal punishment is a vital aspect of Christian religion and that according to the Christian faith, parents continue to comply with their biblical responsibility by delegating their authority to punish their children to the teachers. After providing an overview of the applicable constitutional provisions, Sachs J, writing for a unanimous court, and after adopting an approach most favourable to the appellant, stated the following:

The underlying problem in any open and democratic society based on human dignity, equality and freedom in which conscientious and religious freedom has to be regarded with appropriate seriousness, is how far such democracy can and must go in allowing members of religious communities to define for themselves which laws they will obey and which not. Such a society can cohere only if all its participants accept that certain basic norms and standards are binding. Accordingly, believers cannot claim an automatic right to be exempted by their beliefs from the laws of the land. At the same time, the State should, wherever reasonably possible, seek to avoid putting believers to extremely painful and intensely burdensome choices of either being true to their faith or else respectful of the law.

Sachs further confirmed that there can be no doubt that the right to freedom of religion, belief and opinion in the open and democratic society contemplated by the Constitution is very important. On the issue of religious equality, he stated as follows:

It is true that to single out a member of a religious community for disadvantageous treatment would, on the face of it, constitute unfair discrimination against that community. The contrary, however, does not hold. To grant respect to sincerely held religious views of a community and make an exception from a general law to accommodate them would not be unfair to anyone else who did not hold those views. As the Court said in *Prinsloo v. Van der Linde and Another*, the essence of equality lies not in treating everyone in the same way, but in treating everyone with equal concern and respect. Permission to allow the practice to continue would, in these circumstances, not be inconsistent with the equality provisions of the Bill of Rights.

In conclusion the court held that after all factors were weighed together, the scales had to come down in favour of upholding the generality of the schools act and the appeal was accordingly dismissed.

The case of *Prince v. President, Cape law Society, and others*

In the Prince matter, the appellant was an adherent of the Rastafarian religion. He wanted to gain admission to the attorney's profession but because of previous convictions for the possession of cannabis, the Cape Law Society refused to register his articles. The majority of the court again confirmed the importance of the right to freedom of religion in an open and democratic society based on the values of human dignity, equality and freedom. Although the case did not directly concern the principle of religious equality, the court stated that if cannabis could be possessed and used for religious purposes that must be so whether the Executive consents to it or not, and whether the person concerned is a Rastafari or an adherent of some other religion. It seems clear that the special treatment or exception for a particular religion would not be acceptable for the court as it would treat one religion differently from another. The court concluded that the failure of the state to make provision for an exemption in respect of the possession and use of cannabis by Rastafari is thus reasonable and justifiable under the South African Constitution.

The case of *Islamic Unity Convention v. IBA and others*

The case related to clause 2(a) of the code of conduct for broadcasting services under schedule I of the Independent Broadcasting Authority Act. Clause 2(a) provides that broadcasting licensees shall, *inter alia*, not broadcast any material which is indecent/obscene or offensive to public morals or offensive to the religious convictions or feelings of any section of the population. In considering certain complaints against a particular broadcast by the applicant before the court, it was held that the code indeed limited freedom of expression protected under section 16 of the Constitution, but that since rights are not absolute, limitations in accordance with section 36 could be permissible. The court however held that the code went beyond the categories set out in section 16(2) of the Constitution and was therefore unconstitutional. The court again emphasised that competing rights must be balanced according to the facts of the case.

Questions and Discussion

1. Critically compare Section 15 of the South African Constitution and Art. 27 of the Ethiopian Constitution. Identify the fundamental differences, and the weaknesses and strengths of each and both.
2. Section 15 of the South African Constitution protects "conscience, religion, thought, belief and opinion," while the Ethiopian Constitution protects "thought, conscience and religion." Do you think this brings about a substantive difference in the rights that are covered in the two constitutions? Discuss the effects in concrete terms.
3. Read the cases decided by the South African Constitutional Court discussed in Bernard Bekink's paper reproduced above very carefully. How do you think an Ethiopian court with jurisdiction could have decided each of the issues on the basis of the Ethiopian Constitution's provisions?

* * *

In summary of this section, I would like to underscore that the Ethiopian Constitution's principle on separation of state and religion can perhaps best be seen in the light of what Justice O'Connor stated in 1984 (in *Lynch v. Donnelly*) as an "endorsement" test. According to her analysis, the American Constitution's establishment clause would be violated whenever a reasonable observer would conclude that government "endorses religion," thus sending a message to non-adherents that they are outsiders, not full members of the political community. Jesse H. Choper (2002) elaborates this view that it seeks to

ensure equal standing within the political community for persons of all (or no) religious faiths. The unequivocal statement under Art. 11(1) of the Ethiopian Constitution that “State and Religion Are Separate,” aims at ensuring that so far as the Ethiopian state is concerned any and all religions and belief systems in Ethiopia are equally outsiders to the secular political community forming the Ethiopian state. As it has been the case in the U.S., for example, the separation clause under Art. 11 of the Ethiopian Constitution may be found conflicting with the right to freedom of religion, belief and opinion enshrined in Art. 27 of the Constitution. But see the criticisms forwarded against Justice O’Connor’s “endorsement” test in the above excerpted materials.

As per Art. 11 (1, 3) of the Ethiopian Constitution, state and religion are not only required to be separate, but one is prohibited from interfering into the affairs of the other. So these constitutional principles of “separation” and “non-interference” are in desperate need of being elaborated because they have to be gotten right for their enforcement. Clearly, we need to first set straight what is meant by “religion” itself. Who determines whether a given belief system is a religion or not? As you have noted this in the discussion in the *Harvard Law Review* article excerpted above, one of the serious problems with the U.S. Supreme Court has been its application of the established western standards of religion, in this case Christianity, over all others. In this connection, one commentator (quoted in the article on “Developments in the Law—Religion and State” referred to earlier) is noted to have said:

Western cultures generally postulate radical distinctions between God and man, man and nature, past and present, present and future. These modes of perceiving the world are simply irrelevant to traditional peoples [including African and American Indian cultures]. For them, divine power is not concentrated in a high god, but rather is diffused throughout nature in any number of personifications and guises.

The above indeed reflects some belief systems in the Ethiopian society as well, thereby making the definition of religion all the more complex. On a related note, we may also ask whether or not it is necessary that a given belief system be designated as a religion for someone to benefit from the rights under Art. 27 of the Constitution. One can imagine a mirror problem like that of Frank Africa in which a claim put forward by him as a religious right was denied because his belief was not recognized as a religion by the U.S. Supreme Court. Further vexing issues could result, for example, in relation to the concept “separation” in our Constitution. What does the “separation” principle say about the regulatory role of the state in the society, including issues of religion such as the curricula of private schools and other activities run by religious organizations?

The association of state and religion has been a source of great controversy and at times of bloodiest conflicts around the world in different times in history. Ethiopia is not an exception. In societies with diverse religious backgrounds such as Ethiopia, the most appropriate model for the state-religion relationship is that of separation and non-interference into each other’s affairs by the two.

It is worthwhile to keep in mind the history of the Ethiopian state in this regard. According to historical records, Christianity made its way into Ethiopia in 331 (fourth century) A.D. during the emperorship of Ezana, one of the most influential Axumite rulers. Likewise, Islam made its way into Ethiopia during the lifetime of its founder, the Prophet Mohammed. Ethiopia is recognized as a leading country where these two Abrahamite religions have existed side by side in harmony with very few cases of conflict in history.⁴

One should also note that, especially the modern history of the Ethiopian State shows us a situation in which Christianity (more specifically Orthodox Christianity) has been an established state religion. It suffices to mention that up until the 1931 Constitution for the modern Ethiopia, the most important law governing both the religious and secular aspects of the Ethiopian society (at least officially) was the

⁴ Scholars argue that even when there were conflicts between the followers of these two major Ethiopian religions, those instances were more fueled by external (outside of Ethiopia) factors and interferences.

Fetha Negest (Justice of the Kings), a law which was directly translated in to Geez from the Alexandrian Coptic Church's religious law around the 14th century.

When it comes to the 1931 Constitution of Ethiopia, it is interesting to note that the Constitution does not specifically mention the special place of the Ethiopian Orthodox Church. But one may make some inference of the fact that no mistake was to be made about this from the provisions that connect Emperor Haile Sellassie I to King Solomon of Jerusalem and Queen Sheba of Ethiopia, a legend with biblical undertones.

The 1955 Revised Constitution of Ethiopia came out with a clear and incontrovertible stand regarding the place of the Ethiopian Orthodox Church. Art. 126 of this Constitution stipulates that the Church was an "Established Church" of the state and that it was supported by the state. It also required the Emperor to always profess the Ethiopian Orthodox faith.

The Provisional Military Administrative Council, the *Derg*, and the People's Democratic Republic of Ethiopia governments (1974-1991) followed the socialist ideology and they understandably undermined any type of religiousness because of the teachings of the socialist philosophy on religion. As in many other areas, this represented a complete break from the establishment model we earlier noted under the 1955 Constitution.

One could say that the 1995 Constitution of Ethiopia continued the post-1974 state of fact as regards the relationship between state and religion. This in one way is a recognition of the equality of religious denominations in the country. No one religion is less or more equal than the other. The state throughout the Republic of Ethiopia shall remain secular. The Constitution also requires that neither the State nor any religion may interfere in the affairs of the other. Thus, what we have as entrenched in the Constitution is a principle or a model of separation as well as non-interference.

The Ethiopian Prosperity Party (EPP) has transformed and succeeded EPRDF as a ruling party since around 2019 may be viewed in a different light regarding the separation of state and religion. Although the party members are diverse in religious persuasion, especially that now the party's membership is drawn from Afar, Somali and Benishangul-Gumuz, and Gambela regions, besides the mainstay regions (excluding Tigray at the moment) of the former EPRDF, the official religious stance of its current President, Prime Minister Abiy Ahmed, at times, may send mixed messages. How do you assess some of his utterances like the one he made at the party's general assembly in March 2022 to the effect that party members should fear "violating God's rules", from the point of view of art 11 of the Constitution?

e. Transparency and Accountability of Government

Read Art. 12 of the Ethiopian Constitution.

The principle of transparency and accountability is the last of the five fundamental principles in the Ethiopian Constitution.

The Constitution unequivocally makes it mandatory that the conduct of affairs of government shall be transparent. It also states that any public official or an elected representative is accountable for any failure in official duties. In such a way it makes accountable not only political appointees or top appointed public servants, but also elected people such as house members. This invocation of the idea of transparency and accountability at the constitutional level is a key foundation for ensuring these public virtues. By entrenching these principles in the Constitution, the makers have made it off-limits to any government that may want to remove them from the Constitution to shy away from these duties. Putting the principle of transparency and accountability in the Constitution, however, must be followed not only

by up-to-the-task legislation, but also by the implementation of the laws that are enacted. Transparency, for example, has to be measured against clear standards and requirements to be placed in detailed legislation. Similarly, accountability must be ensured by putting in place clear duties and responsibilities of the appointed and elected officials in various laws that pertain to their areas of operation, and by penal legislation in case of violations.

We need to emphasize that these constitutional principles are interpretive guides and solid foundations for the checks and balances that are built into the relationships and workings of the governmental branches. As such, therefore, any issue regarding transparency and accountability of an elected or appointed official that comes before a court of law would fall within the scope of the constitutional principles of accountability and transparency. Importantly also, oversight of the executive and other branches of government by the legislature would essentially be undertaken to ensure accountability and transparency.

The 1995 Constitution of Ethiopia

The following constitutional provisions are closely related to the accountability and transparency provisions in Art. 12. Art. 54 deals with the accountability of the Members (“MPs”) of the House of Peoples’ Representatives (“HoPR”). There are three authorities that reign over these MPs: the Constitution; the will of the people; and their own conscience. How can we know that an MP is being governed by his/her conscience or not? Who is the judge on this matter? What if there is a conflict between the conscience of the MP and the Constitution? The Constitution here also says that Members of the House are representatives of the Ethiopian People as a whole. What is the significance of this statement? How would this resonate with the fact that an MP is elected from a constituency and that he/she is expected to represent it? How should an MP vote in case the interests of his constituency are found to be conflicting with those of the Ethiopian people as a whole? How does this fit into the fact that Ethiopia follows an ethnically based federal system wherein MPs coming from a given state would tend to speak for their specific state rather than for Ethiopia as a whole? Also, it is not difficult to imagine possibilities in which the will of the people may conflict with the conscience of an MP. As we said earlier, it is interesting to ponder over the question of how we can ascertain the will of the people. Do you think MPs can fully represent the will of the people? Art. 54(7) sets out the most important way in which the authority of the people can be exercised on an MP through recall. As discussed elsewhere in this material in relation to the legislature, recall is exercised when there occurs a fundamental change of representational circumstances which makes it unacceptable for the people to continue to consider the MP concerned as their MP. On a related point, the Constitution says nothing about the accountability of the House of the Federation.

In a parliamentary system, although the other branches (especially the executive) undertake a little bit of checking and balancing of the legislature, the latter stands out as more authoritative. That is what Arts. 55(17) and (18) clearly show. The real question however remains, and that is whether the executive would in reality be as subservient as the law seems to impress upon us. The executive has grown in power and importance in the 20th century due to widening responsibilities, and the fact that the most senior members of the majority party in the legislature become members of the government makes it difficult for the legislature to ensure accountability of the former. The problem of the unaccountability of the executive is more pronounced in undemocratic systems, where the executive rides roughshod on both the legislature and the judiciary.

Look also at the provisions on freedom of expression and the independence of the judiciary, which both play pivotal roles in the accountability and transparency of the conduct of public affairs. In relation to the freedom of information/press, the government has enacted a new law that regulates mass media and freedom of information (Proc. No. 590/2009). This law has many areas in which there is a likelihood that it violates the Constitution. For example, look at Art. 14(3), which states that a responsible officer of a public institution may be legally allowed to delay giving information for up to 30 working days of

receipt of the request, which in turn can be extended to another thirty working days on several excuses prearranged for the officer by the legislature (Art. 14(8); see the exception in Art. 14(9)). This in effect means for a total of about 42 days in the first case and 84 days in the case of extension. Although the Constitution does not speak about the time frame, does such a lengthy delay fall within the legitimate parameters of access to public information? Can this time duration be challenged as unconstitutional? On a more alarming note, the Proclamation provides for a long list of exceptions to disclosure of public information (Arts. 16-27). Examine each of these exceptions and see if it was appropriate for the legislature to have proscribed each category of information from being accessed. In fact, as Partick Birkinshaw's excerpt below shows, the exceptions to disclosure are very common in other jurisdictions as well. Although the law gives the court a power to review the decision of the Ombudsman (Art. 34), it precludes both the court and the Ombudsman from reviewing decisions to certify a certificate of non-disclosure by the head of a public body under Art. 35 (see Art. 36). Is this a sound judgment by the legislature? What do you think is the importance of Art. 28 of the Proclamation?

Although the judiciary is an important interlocutor in guaranteeing against excesses both by the legislature and the executive, it is important that it remains accountable to the law itself. Thus, its accountability to other branches of government must be clearly set out in a constitution. The provisions of Art. 79(4) do just that. Do you think that the constitutional provisions are balanced or do they seem to empower the legislature unnecessarily?

Read Arts. 54 (4, 7); 55 (17, 18); 29 (2-5) and 79 of the Ethiopian Constitution.

From Partick Birkinshaw, "Commentary – Freedom of Information and Openness: Fundamental Human Rights?" in *Administrative Law Review*, Vol. 58 (2006). Footnotes omitted.

* * *

Freedom of Information

FOI [Freedom of Information] means access by individuals as a presumptive right to information held by public authorities. Reasonable and clearly defined time limits for the right must be in operation. In some regimes it is restricted to citizens or permanent residents within a legal regime although it may be extended. There are no such restrictions within the US and the UK ... legislation. The right must be defined in law to be a right. It imposes duties on others. The right is invariably limited by exemptions to protect the public welfare or safety or to protect items such as commercial secrecy or individual privacy. The tests for establishing the exemptions are invariably demanding and the onus is on the public authority to justify its claims. Very frequently there are public interest tests allowing disclosure where a greater public interest is served by disclosure, even though the information is exempt. In the UK, FOIA [FOI Act] all but eight of the 23 sections containing exemptions (there are in fact more than 23 exemptions because some sections contain more than one exemption) are subject to public interest disclosures. The right covers access to information, records, papers, or computerized files – in short information however stored – that is held by public authorities. The UK law also covers parliament.

More recent laws have moved the target of attention to private bodies that perform public functions or that are designated as "public" by a Minister (UK) or to private bodies that interfere with the rights of individuals (South Africa). Exemptions to the right of access typically include national security, personnel privacy, commercial secrecy, defense, international relations, and interference with criminal investigation and prosecution or law enforcement processes. The UN draft convention on FOI provided an exemption for information unsuitable for children and youths – emphasizing the free speech aspects of that right. There is inevitably an independent arbiter in the form of a court or a commissioner to determine contested claims. The specific details of regimes differ, as one would expect . . .

Transparency

Transparency has a much wider meaning. It gained popular appeal within the European Community from the early 1990s when it was seen as a useful device to combat claims of democratic deficit and complexity in the operations of the EC [European Community]. The EC was shortly to become a more complicated and even less perspicuous three pillar structure at Maastricht in 1993 and to be renamed the EU. Access to information is a component of transparency, but the latter also entails conducting affairs in the open or subject to public scrutiny. It means keeping observable records of official decisions and activities (for subsequent access). Transparency includes the provision of reasoned explanations for decisions, the giving of adequate reasons when power affecting the public will or individuals is exercised in a negative or positive fashion. It also means making processes of governance and lawmaking as accessible and as comprehensible as possible – to simplify them so that they are easily understood by the public. Complexity, disorder, and secrecy are all features that transparency seeks to combat.

Openness

Openness is very similar to transparency. It goes beyond access to documents to cover such items as opening up the processes and meetings of public bodies.... Openness means concentrating on processes that allow us to see the operations and activities of government at work – subject again to necessary exemptions . . .

* * *

[The concepts of transparency and accountability of government are a fundamental component of a functional representative democratic system. The practice of transparency and accountability is the hallmark of good governance and respect for the rights and freedoms of citizens as well as promotion of the public interest as opposed to the interests of the power elite and their circles. Public officials' accountability to the people is the chief separator of a democratic political system from a non-democratic one. Lisa Philipps and Miranda Stewart look at the key element in transparency and accountability of government, i.e., fiscal transparency and accountability.]

Lisa Philipps & Miranda Stewart "Fiscal Transparency: Global Norms, Domestic Laws, And The Politics of Budgets," in *Brooklyn Journal of International Law*, Vol. 34 (2008-2009).

The Roots of Fiscal Transparency Discourse

Budgeting is a process for organizing government fiscal activities and, as such, it is as old as government taxing and spending. Prudence in fiscal management—in some commonsense way, matching expenditures to revenues—is the essence of budgeting. Just as budgeting has a long tradition, the basic principle of fiscal transparency, the notion that governmental fiscal activities should be subject to public scrutiny, is not new. In this context, a central purpose of budgeting has been to ensure a degree of transparency, and therefore accountability, regarding the nature and quantum of public spending and taxation. The institutional and procedural framework for raising, appropriating, spending, and accounting for public funds is typically laid out in a country's constitution and financial management legislation, and supplemented by longstanding convention. In many developing countries, the "organic finance laws" are based on administrative practices that became entrenched during colonial times. They have generally been in place for several decades, though in practice these formal rules may not be fully implemented.

In the last decade, the term "fiscal transparency" has obtained currency as the banner for a host of policy initiatives designed to regularize budgeting practices and mandate the disclosure of specific information

by governments around the world.... [This] is linked to two broader trends that have affected both developed and developing countries: (i) the neoliberal turn in economic policy, which emphasizes fiscal discipline, and (ii) the movement to reform institutions to promote good governance.

Fiscal Transparency and Fiscal Discipline

As a defining aspect of the neoliberal turn in the 1980s, governments lost authority as economic decision makers and were subjected in various ways to more intensive forms of market discipline, in particular, reducing budget deficits. This included the discipline of credit-rating agencies, which directly impacted the cost to governments of financing a deficit, and the discipline of market analysts, who influenced where mobile capital would be invested. In developing countries, such market pressures were reinforced by explicit conditions imposed on concessional lending and aid. A review of IMF-supported fiscal reforms during the 1990s indicates that their key elements were reducing government spending, downsizing the State, shifting expenditures from current to capital accounts, and some provisions on safety net expenditures. In order to establish credibility with these increasingly powerful external audiences and allow them to assess investment risks, governments had to be more forthcoming with detailed information about country finances.

In developed countries, the constraints on government action in economic matters first became apparent in relation to monetary policy. Developed States have fashioned various methods of institutionalizing monetary policy in such a way that, at least to some extent, it is taken out of the hands of elected governments. This is commonly done by delegating the determination of interest rates to an independent central bank, now also a key plank of IMF recommendations for developing countries, because it is seen as a vital way to control inflation. Monetary policy also may be implemented through controls on exchange rates imposed in many developing countries (for example, countries may peg their currency to the U.S. dollar, or establish currency boards or capital import or export limits). Governments sought to establish the independence of this decision making, so as to credibly influence market expectations and thus “create conditions favorable to that level of inflation being realized.” For our purposes, what is most interesting about this institutional transformation is the need for governments to establish “credibility” with markets and their loss of authority as economic decision makers.

* * *

Governments have not formally delegated their powers to set fiscal policy as they have for monetary policy. However, in the last decade, governments have placed a range of hard and soft law constraints on their own fiscal decision making. Why governments-in particular, elected governments-should agree to constrain themselves in this way is not obvious. The evidence suggests that for fiscal policy, as for monetary policy, the desire to strengthen credibility vis-à-vis external audiences has been the driving factor and credibility regarding deficit constraint a constant theme. Trends to increase legislative control over budgeting, including the imposition of fiscal rules and other measures, have been identified as a reaction to concerns about “precarious” fiscal balances and about “losing the confidence of world credit markets.”

* * *

Fiscal Transparency and Good Governance

The second major impetus for the new discourse on fiscal transparency came from changing ideas about governance that affected developing and developed countries in different ways. In the late 1990s, development theorists and agencies began to emphasize the need to support institutional reforms or “good governance” in developing countries, as well as to strengthen initiatives to reduce poverty and address the social side of development. These ideas took hold in the wake of widespread dissatisfaction with the neoliberal model, particularly the economic and political failure of structural adjustment programs in many developing countries. The U.N. Millennium Declaration of 2000 reflected these

shifting attitudes and laid out specific targets for reducing the number of people living in extreme poverty and other measurable improvements in human welfare. The U.N. Financing for Development process examined how resources can be made available to achieve these goals. In 2001, a high level panel chaired by Ernesto Zedillo offered a series of Recommendations (“Zedillo Report”). The panel emphasized the need for public investments in education, health, nutrition, and other basic social programs:

Financing an adequate level of social public expenditure while limiting budget deficits calls for substantial tax revenues. Most countries of the developing world must undertake significant tax reforms if they are to raise the additional revenue that they need.

The Zedillo Report further stated that developing countries themselves bear the primary responsibility for achieving growth and equitable development, in part by “creating the conditions that make it possible to secure the needed financial resources for investment. These conditions include “[f]irst and foremost . . . good governance that commands the consent of the governed, and effective and impartial rule of law including relentless combat of corruption. . .” Budget transparency initiatives can be seen as part of this good governance agenda aimed at securing resources for development. As we discuss in Part V below, a second element of “governance” reform in both developing and developed countries has been an increase in consultation on policy reform and its implementation, a trend that can be seen as both a logical consequence of increased transparency or information sharing and that has also developed as part of broader efforts to improve expenditure and tax policy outcomes. In sum, fiscal transparency laws are part of the shift to governance in the global context of fiscal reform for development.

* * *

FISCAL TRANSPARENCY AND DISTRIBUTIVE JUSTICE

Distributive politics are at the heart of fiscal policy because they will often make or break the viability of a reform. For this pragmatic reason, if no other, the omission of distributive analysis from the dominant model of fiscal transparency is problematic. We also consider it to be troublesome, though, for the establishment of fairness in principle.

...[T]here is no requirement in the IMF Code or OECD Best Practices for governments to report on how fiscal policy decisions impact different income groups or segments of the population. However, in the most recent version of the Manual that accompanies the IMFCODE, the IMF does briefly acknowledge that fiscal discipline may involve political trade-offs that ideally should be disclosed:

Reforms aimed at reducing fiscal deficits and improving macro stability, or at enhancing efficiency, may affect different income and social groups differently, and may hurt or benefit vulnerable and low-income groups more than others. It is important for transparency that some assessment of these impacts be included in the budget documentation.... Poverty and Social Impact Analysis refers to the analysis of the distributional impact of policies and policy reforms on the welfare of different groups, with a specific emphasis on the poor and vulnerable.... Good practice would require that budget documentation include at least a simple analysis of the differential impacts of new policies and measures.

* * *

The gender budgeting initiatives undertaken in several countries, including India and South Africa, provide yet another angle on distributive transparency. The Platform of Action adopted at the 1995 U.N. Fourth World Conference on Women, in Beijing, called on governments to “facilitate, at appropriate levels, more open and transparent budget processes” and mandated “the integration of a gender perspective in budgetary decisions on policies and programs.” In response, the United Nations and

other international agencies organized to support many local gender budgeting projects at both the civil society and governmental level. The basic starting point for these projects is the fact that even though fiscal policy often purports to be gender neutral on its face, its impact is seldom gender neutral because of the different economic status and roles of men and women. A variety of methods are used to reveal and analyze the differential impacts of taxes and spending on women and men, in terms of both the distribution of costs and benefits, and behavioural effects (for example, marginal choices between paid and unpaid labor, or the effectiveness of business incentives). In addition, many initiatives focus on increasing women's participation in budget processes as well as the capacity of civil society organizations to critically analyze budget documents from a gender perspective. Advocates of gender budgeting often use the language of transparency in describing its value. In particular, the U.N. Financing for Development Conference has recently emphasized the importance of including a gender lens in the analysis of fiscal policy.

* * *

Questions and Discussion

1. Lisa Philipps & Miranda Stewart suggest that there is a strong connection between fiscal transparency and the ability of governments to spend more on social services like health, education and housing. Do you agree?
2. These authors also argued that one of the key factors in maintaining a stable monetary policy is by having an independent body, such as the central bank, to make monetary decisions. In this regard, discuss the situation of the Ethiopian National Bank. Do you think the Bank has the requisite independence to make its own monetary policy decisions? It will be helpful to look at the law that regulates the powers and functions of the Bank to comprehensively address this discussion question.

INTERNATIONAL MONETARY FUND
CODE OF GOOD PRACTICES ON FISCAL TRANSPARENCY (2007)

I. CLARITY OF ROLES AND RESPONSIBILITIES

1.1 The government sector should be distinguished from the rest of the public sector and from the rest of the economy, and policy and management roles within the public sector should be clear and publicly disclosed.

- 1.1.1 The structure and functions of government should be clear.
- 1.1.2 The fiscal powers of the executive, legislative, and judicial branches of government should be well defined.
- 1.1.3 The responsibilities of different levels of government, and the relationships between them, should be clearly specified.
- 1.1.4 Relationships between the government and public corporations should be based on clear arrangements.
- 1.1.5 Government relationships with the private sector should be conducted in an open manner, following clear rules and procedures.

1.2 There should be a clear and open legal, regulatory, and administrative framework for fiscal management.

- 1.2.1 The collection, commitment, and use of public funds should be governed by comprehensive budget, tax, and other public finance laws, regulations, and administrative procedures.
- 1.2.2 Laws and regulations related to the collection of tax and non-tax revenues, and the criteria guiding administrative discretion in their application, should be accessible, clear, and understandable. Appeals of tax or non-tax obligations should be considered in a timely manner.
- 1.2.3 There should be sufficient time for consultation about proposed laws and regulatory changes and, where feasible, broader policy changes.
- 1.2.4 Contractual arrangements between the government and public or private entities, including resource companies and operators of government concessions, should be clear and publicly accessible.
- 1.2.5 Government liability and asset management, including the granting of rights to use or exploit public assets, should have an explicit legal basis.

II. OPEN BUDGET PROCESSES

2.1 Budget preparation should follow an established timetable and be guided by well-defined macroeconomic and fiscal policy objectives.

- 2.1.1 A budget calendar should be specified and adhered to. Adequate time should be allowed for the draft budget to be considered by the legislature.
- 2.1.2 The annual budget should be realistic, and should be prepared and presented within a comprehensive medium-term macroeconomic and fiscal policy framework. Fiscal targets and any fiscal rules should be clearly stated and explained.
- 2.1.3 A description of major expenditure and revenue measures, and their contribution to policy objectives, should be provided. Estimates should also be provided of their current and future budgetary impact and their broader economic implications.
- 2.1.4 The budget documentation should include an assessment of fiscal sustainability. The main assumptions about economic developments and policies should be realistic and clearly specified, and sensitivity analysis should be presented.

2.1.5 There should be clear mechanisms for the coordination and management of budgetary and extra budgetary activities within the overall fiscal policy framework.

2.2 There should be clear procedures for budget execution, monitoring, and reporting.

2.2.1 The accounting system should provide a reliable basis for tracking revenues, commitments, payments, arrears, liabilities, and assets.

2.2.2 A timely midyear report on budget developments should be presented to the legislature. More frequent updates, which should be at least quarterly, should be published.

2.2.3 Supplementary revenue and expenditure proposals during the fiscal year should be presented to the legislature in a manner consistent with the original budget presentation.

2.2.4 Audited final accounts and audit reports, including reconciliation with the approved budget, should be presented to the legislature and published within a year.

III. PUBLIC AVAILABILITY OF INFORMATION

3.1 The public should be provided with comprehensive information on past, current, and projected fiscal activity and on major fiscal risks.

3.1.1 The budget documentation, including the final accounts, and other published fiscal reports should cover all budgetary and extra budgetary activities of the central government.

3.1.2 Information comparable to that in the annual budget should be provided for the outturns of at least the two preceding fiscal years, together with forecasts and sensitivity analysis for the main budget aggregates for at least two years following the budget.

3.1.3 Statements describing the nature and fiscal significance of central government tax expenditures, contingent liabilities, and quasi-fiscal activities should be part of the budget documentation, together with an assessment of all other major fiscal risks.

3.1.4 Receipts from all major revenue sources, including resource-related activities and foreign assistance, should be separately identified in the annual budget presentation.

3.1.5 The central government should publish information on the level and composition of its debt and financial assets, significant non-debt liabilities (including pension rights, guarantee exposure, and other contractual obligations), and natural resource assets.

3.1.6 The budget documentation should report the fiscal position of subnational governments and the finances of public corporations.

3.1.7 The government should publish a periodic report on long-term public finances.

3.2 Fiscal information should be presented in a way that facilitates policy analysis and promotes accountability.

3.2.1 A clear and simple summary guide to the budget should be widely distributed at the time of the annual budget.

3.2.2 Fiscal data should be reported on a gross basis, distinguishing revenue, expenditure, and financing, with expenditure classified by economic, functional, and administrative category.

3.2.3 The overall balance and gross debt of the general government, or their accrual equivalents, should be standard summary indicators of the government fiscal position. They should be supplemented, where appropriate, by other fiscal indicators, such as the primary balance, the public sector balance, and net debt.

3.2.4 Results achieved relative to the objectives of major budget programs should be presented to the legislature annually.

3.3. A commitment should be made to the timely publication of fiscal information.

3.3.1 The timely publication of fiscal information should be a legal obligation of the government.

3.3.2 Advance release calendars for fiscal information should be announced and adhered to.

IV. ASSURANCES OF INTEGRITY

4.1 Fiscal data should meet accepted data quality standards.

4.1.1 Budget forecasts and updates should reflect recent revenue and expenditure trends, underlying macroeconomic developments, and well-defined policy commitments.

4.1.2 The annual budget and final accounts should indicate the accounting basis used in the compilation and presentation of fiscal data. Generally accepted accounting standards should be followed.

4.1.3 Data in fiscal reports should be internally consistent and reconciled with relevant data from other sources. Major revisions to historical fiscal data and any changes to data classification should be explained.

4.2 Fiscal activities should be subject to effective internal oversight and safeguards.

4.2.1 Ethical standards of behavior for public servants should be clear and well publicized.

4.2.2 Public sector employment procedures and conditions should be documented and accessible to interested parties.

4.2.3 Procurement regulations, meeting international standards, should be accessible and observed in practice.

4.2.4 Purchases and sales of public assets should be undertaken in an open manner, and major transactions should be separately identified.

4.2.5 Government activities and finances should be internally audited, and audit procedures should be open to review.

4.2.6 The national revenue administration should be legally protected from political direction, ensure taxpayers' rights, and report regularly to the public on its activities.

4.3 Fiscal information should be externally scrutinized.

4.3.1 Public finances and policies should be subject to scrutiny by a national audit body or an equivalent organization that is independent of the executive.

4.3.2 The national audit body or equivalent organization should submit all reports, including its annual report, to the legislature and publish them. Mechanisms should be in place to monitor follow-up actions.

4.3.3 Independent experts should be invited to assess fiscal forecasts, the macroeconomic forecasts on which they are based, and their underlying assumptions.

4.3.4 A national statistical body should be provided with the institutional independence to verify the quality of fiscal data.

Discussion

Read the Code of Good Practices on Fiscal Transparency (IMF, 2007) reproduced above again very closely. Discuss whether it would be wise for Ethiopia to adopt the Code of Good Practices. You may approach your instructor to volunteer a thorough study of this Code of Good Practices vis-à-vis the finance laws and policies of Ethiopia. Indicate the reform steps that you think will be needed as you comb the provisions of the Code of Good Practices.

f. Good Governance in the Realm of State - mOwned Businesses

Emily Makuta, "Towards Good Corporate Governance in State-Owned Industries: The Accountability of Directors," in *Malawi Law Journal*, Vol. 3 (2009). Footnotes omitted.

[In the developing world, such as Ethiopia, the pervasiveness of state-owned business and the amount of public money involved in them on the one hand, and the fact that they are not strictly subject to the market principles of profit and loss on the other, make it very important that public corporations and their executives and directors be subjected to the principles of good governance. This article discusses some methods of ensuring corporate accountability of state owned corporations and industries.]

* * *

In 1999 the Commonwealth Association for Corporate Governance (CACG) issued a set of guidelines for corporate governance.' This was done following an important observation by CACG that most of the largest and economically significant industries in the emerging countries of the Commonwealth are owned by the state. While governments in most of these countries have been privatising state-owned companies, there is still a significant industrial sector that is state-owned....

While the issues raised in this article may apply to other jurisdictions, the focus will be on Malawi. The courts in Malawi have not had an opportunity to adjudicate issues of the accountability of directors in state-owned industries and there is no published local literature on the subject. This does not mean that corporate governance for state-owned industries is not an issue in Malawi, for to be sure it is. State-owned industries in Malawi, just like ordinary corporate entities, face many accountability challenges resulting from the separation of ownership and control....

The CACG Guidelines

* * *

The CACG guidelines lay down 15 principles. [Below are some of them.]....

Leadership

The principle of leadership states that the board should exercise integrity and judgment in directing the corporation to achieve enduring prosperity, and act in the best interest of the enterprise by observing the principles of transparency, accountability and responsibility. This principle effectively defines the role of directors as that of managing the corporation on behalf of shareholders. It also predicates the realisation of the expectations of shareholders and other stakeholders on the performance of the directors. Performance is a measure of efficiency and effectiveness based on the capabilities of the concerned individual. It has been said that the effectiveness of any company is determined by the quality of its leadership. Thus, the board of directors - being the controlling mind of the company - is critical to the success of any company.

To discharge the functions of a (non-executive) director properly, one must have minimum relevant skills and knowledge, and sharpen those skills as time passes. As the Higgs Report on Corporate Governance has commented:

On appointment, non-executive directors will already have relevant skills, knowledge, experience, and abilities. Nevertheless, a non-executive director's credibility and effectiveness in the Boardroom will depend not just on their existing capability but on their ability to extend and refresh their knowledge and skills ... what I envisage is the continued professional development tailored to the individual.

Higgs states that the role of a non-executive director “requires skills, experience, integrity, and particular behaviours and personal attributes.” He or she is expected to work diligently, debate constructively, challenge rigorously and decide passionately. This entails some minimum level of education and relevant skills. Indeed, considering the complexities of modern business and the enormity of the duties of directors, especially the duty to ensure operative and effective systems of risk management, some minimum level of intelligence is necessary to enable a director to discharge his or her duties effectively.

It has been argued, quite rightly, that in state-owned industries both in developing and developed countries, most directors are appointed on political grounds. For developed countries, because of the abundance of skills, the question of lack of skills of the politically appointed directors may not pose serious problems. By contrast, it has been argued that one of the major corporate governance challenges in developing countries is the shortage of skills. Subjective appointments in such a setting are likely to result in the appointment of individuals who lack basic qualifications, skills and experience.

As noted earlier, one of the key duties of directors is the common law duty of care and skill. The test of determining whether a director has discharged this duty is whether he or she has displayed the technical skills reasonably expected from an individual of his or her experience and expertise. As was held in the case of *In Re d' Jan of London*, the duty of care of a director demands what would be expected of a reasonably diligent person having both the general knowledge and skill and experience of a person carrying out the same functions in relation to that company, and the general knowledge, skill and experience of the director. This means that a director cannot be held accountable for failures of a corporation if those failures are attributable to issues beyond the skills of that director. Consequently, if a majority of the directors of a corporation do not have basic skills, it means that they will be held to account by the shareholders on a very low threshold of care and skill.

It has been argued that, as a group, the directors must possess a balanced spread of skills, knowledge and expertise so that the board can effectively respond to all technical issues concerning the corporation. A pertinent question to pose here is: Would directors be held collectively responsible for a wrong financial decision made in reliance on the opinion of an incompetent board member? The decision *In Re d' Jan of London* suggests that they cannot be held accountable.

Some statutes which create state-owned industries in Malawi do not require minimum professional skills for the directors of those corporations.

However, others do provide for minimum qualifications of directors. Section 7(1) of the Malawi Bureau of Standards Act requires that three of the directors should have special knowledge of or experience in matters relating to the objects of the Bureau. The Malawi Communications Act specifically states that all directors (except ex-officio members of the board of directors) must possess qualifications in any of the fields of “posts, telecommunications, broadcasting, frequency planning, law, economics, business, finance, public administration and public affairs.” For the Malawi Broadcasting Corporation, the qualifications in frequency planning and economics are left out and that of engineering is added. The Board of the Malawi Posts Corporation also has minimum qualifications for its directors. Section 4 of the Malawi Energy Act also provides for minimum professional qualifications for directors of the Malawi Energy Regulatory Authority.

The statutes that provide for minimum qualifications for directors provide a solid basis for ensuring that directors are held accountable and, therefore, establish a proper foundation for ensuring good corporate governance. In contrast, it is difficult to hold the directors of such state-owned corporations as the Malawi Housing Corporation legally accountable because there is no legal requirement for the directors of such corporations to possess certain qualifications. If such corporations appoint less or (un)qualified directors, those directors' liability will be limited to the level of their expertise and experience. Hence, they cannot be held accountable for any failures resulting from their incompetence. It is therefore

imperative that statutes creating corporations should provide for minimum professional qualifications, skills and experience for all directors.

Board appointments

The CACG guidelines state that board appointments must be made through a managed and effective process that ensures that “a mix of proficient directors” are appointed, each of whom is able to add value to the board and act independently. The process of selection must be good enough to produce qualified directors as well as a balance in the spread of the skills and experience on the board.

For state-owned corporations, the surest way of upholding this principle is by specifying in the statute creating the corporation the minimum qualifications and relevant skills for directors and establishing an independent and transparent body which must appoint directors. This would minimise the influence of politics in the appointment of directors in these industries. In *State v. the President of the Republic of Malawi and Malawi Communications Regulatory Authority, Ex parte Joy Radio Limited*, the High Court of Malawi recently nullified the appointments of the board members of the Malawi Communications Regulatory Authority. The Malawi Communications Act requires specific expertise for board members of the Malawi Regulatory Authority in disciplines considered appropriate for the effective and efficient leadership of the corporation. It also specifically disqualifies certain persons from appointment, for example, those whose appointment may result in a potential conflict of interest. It was on the basis of this piece of legislation that the court held that some board members of the Malawi Regulatory Authority did not meet the required qualifications as required by law.

The Malawi Communications Act therefore provides a basis for the appointment of effective directors for the Malawi Regulatory Authority who can be held accountable for the failures of the corporation. All statutes that set up state-owned industries need to have such provisions to ensure that only persons with appropriate skills and expertise are appointed.

Management appointments and development

The principle of management appointments and development requires the board to appoint the chief executive officer and at least participate in the appointment of senior management. As we have already seen, the fact that a corporation is a separate legal person means that the responsibility of management and control rests with the board of directors. In practice, these directors have no hands-on involvement in the everyday operations of the corporation. Nevertheless, they retain the responsibility to approve major decisions like acquisitions, disposals, major capital expenditure, long-term objectives, risk management and commercial strategy, and delegate the responsibility for the day-to-day operations to the executive management. Since in the eyes of the law the ultimate governing and decision making body is still the board of directors, the directors need to have confidence that the individuals to whom they have delegated the day-to-day operations will manage the corporation competently and effectively. It is only proper, therefore, that the directors should assess and recruit their chief executive, and be involved in the recruitment of other executive management positions.

Statutes creating corporations in Malawi reveal varied approaches to the appointment of the chief executive and senior management. The Malawi Housing Corporation Act 72 provides that, for the purposes of carrying out its functions, the corporation may, subject to the direction of the Minister, appoint a general manager and such other officers and servants as the Minister considers necessary. Section 19(1) of the Malawi Bureau of Standards Act also provides that the appointment of the Director General of the Bureau shall be made by the board subject to the direction of the Minister. However, the Act requires that the individual should be suitably qualified. These statutes deprive the directors of their power to make key executive appointments and instead vest that power in the shareholder. How can the directors be held accountable for the failures of a corporation if important executive appointments are made by the shareholder? Is this not a fundamental deviation from the rationale of creating a separate legal personality?

There are, however, other statutes which have left the responsibility of making executive appointments entirely to the board. Section 8 of the Waterworks Act, for example, provides that the board shall have powers to appoint the Engineer or Manager and all other officers needed to perform the duties and powers under the Act. Section 92 of the Malawi Communications Act empowers the Malawi Communications Regulatory Authority to appoint such staff, subordinate to the Director General as it deems necessary. However, section 9(1) of the same Act provides that the Minister shall, on the recommendation of the Authority, appoint the Director General of the Authority. Section 9(2) states that the Deputy Director General shall be appointed by the Authority with the approval of the Minister.

Although section 9 of the Malawi Communications Act is an improvement on the Malawi Housing Corporation Act discussed earlier, it still embodies an attempt to give considerable control in the appointments to key management positions to the shareholder. For purposes of ensuring the full accountability of the board, it is advisable for all statutes setting up corporations to leave the task of appointing the executive management to the Board. It is in the interest of the state as a shareholder to ensure that this responsibility rests with the directors who, in the eyes of the law, have the ultimate governing and decision-making responsibility. This will enable the shareholder to hold the directors fully accountable. In turn, this will put the directors on guard to ensure that the appointed executives are skilled and capable of managing the corporation in an efficient and effective manner.

Strategy and Values, internal procedures, risk management, and board performance assessment

The principle of strategy and values requires the board to determine the purpose and values of the corporation and then formulate the strategy to implement the chosen purpose and values. The board is also expected to ensure that procedures are in place to protect the corporation's assets and reputation. This principle highlights the importance of foresight and strategy to the success of a corporation. It is the directors' responsibility to ensure that the objectives of the corporation are achieved.

The principle of internal procedures requires the board to ensure effective internal systems of control so that its decision-making capability and the accuracy of its reporting and financial results are maintained at a high level at all times. The risk management principle obliges directors to identify and monitor risk areas and key performance indicators. The board is also required to assess its own performance and that of individual directors, including the chief executive officer.

All these principles go back to the question of the skills, knowledge and expertise of the directors. Without the necessary skills, they would not be able to meet the demands of these principles. It would be difficult for them to determine appropriate strategies for the corporation, ensure proper implementation of the strategy and establish appropriate internal procedures and effective risk management practices. Unfortunately, if they do not possess the necessary skills and expertise, it is difficult to hold them accountable for their inability to undertake these tasks.

Balance of powers

The principle of balance of powers demands that there should be no single director or a group of directors with unfettered powers. Directors should be of sufficient calibre to bring an independent judgment to bear on issues of strategy, performance, resources and standards of conduct and evaluation of performance. A director should have courage, wisdom and independence, where necessary, to disagree with colleagues on the board including the chairperson. A director should even be prepared to resign or be dismissed rather than acquiesce in a decision that does not advance the best interests of the corporation. This is a corporate governance issue that directors have to be made aware of during their induction process. Directors should know that they cannot escape liability by claiming that they endorsed a bad decision because of the influence of another board member.

This principle relates to the principle of leadership and again raises the issue of skills and the abilities of directors. The role of the shareholder is to ensure that the board is properly constituted with directors of high caliber. This is true for ordinary corporations as well as for state-owned industries....

Questions and Discussion

1. Emily Makuta discusses that CASG requires, among other things, that board members as well as executive officers of state-owned corporations have relevant expertise and experience in respect of the company they lead. This is beyond dispute. When we look at the Ethiopian practice, it seems the system of appointment of most members of a board arguably lacks transparency, inclined towards being political appointments rather than technocratic. To be sure, heads of boards of state-owned enterprises are ministers or Deputy (state) ministers or commissioners or Directors general of state authorities and agencies. How do you evaluate the Ethiopian government's approach in this matter? To be able to see it in a better light, look at some representative public enterprises proclamations. Pay attention to what these laws say about who the board members are; how they are nominated; how they are appointed; if there is a requirement for professional qualifications or not; their responsibilities and accountability. Look also at the relevant information on executive officers in light of Makuta's perspective.
2. In the paper Emily Makuta also discusses some of the shortcomings of the laws of Malawi regarding the accountability, governance and transparency of government-owned corporations in Malawi. Discuss the problems and the situation in Ethiopia in the same area. Suggest solutions in the areas of identified problems.

4. Types of Constitutions

There are ranges of possibilities in which constitutions can be classified. The bases of classification are the outstanding characters of the concerned constitutions. K.C. Wheare was the first prominent scholar that sought to classify constitutions into different categories. He drew out 6 groupings of constitutions. These are 1) written/unwritten; 2) Rigid/flexible; 3) Supreme/subordinate; 4) Federal/unitary; 5) Separated powers/fused powers; and 6) Republican/Monarchical. In the following, you will study the defining features of each type of constitution.

Written/Unwritten Constitutions

A written constitution is a constitution that is contained in a single document or a series of documents with or without amendments defining the constitutional law of the state concerned. This is a type of constitution that is enacted at a given time formally as a constitution by passing through certain constitution-making stages and requirements. Written constitutional systems are the most dominant types of constitutions as opposed to unwritten constitutions.

In his recent article, "Constitutionalism in Eastern Europe: An Introduction" (published in *58 University of Chicago Law Review*) Jon Elster recounts that the first wave of constitution-making was experienced in the late 1700s by the individual American states, followed by the United States itself and France. Written constitution making also followed in other waves: in 1848, after World War I, and again after World War II in various parts of Europe. In the 1960s, the next wave of "constitution making" was taken up by the newly freed British and French colonies in Africa. What seems to be the last round of democratic constitution making in Western Europe was fulfilled in the 1970s by Greece, Portugal and Spain. Elster says that since 1989, yet another wave of constitution making has come to eastern European countries which have emerged from communist rule. These countries have had pre-communist constitutional traditions. The constitutional reform of these countries was undertaken, together with economic reform from central planning to market economies.

As the history of these constitutional documents demonstrate, written constitutions came to the public scene following major popular demands for change – demands that became victorious. In America, the people's revolt against the British colonial administration and fight for self-determination resulted finally in the 1787 Constitution. In France, the French people's demand for freedom and liberty against the absolute monarchy forced the latter to give concessions that ultimately led to the 1791 Constitution. In Europe, after World War II, history once again made it necessary that new starts be made in Germany, Italy, France, and others whose regimes were largely responsible for the horrors of the War. In colonial Africa, the various demands and liberation movements, coupled with the coming into being of the UN and a freer world after the destruction of World War II, delegitimized colonialism, leading to a fresh start with constitutions. Finally, as Elster elaborates, a new wave of constitution making engulfed most of the former communist European states following the fall of communism, heralded by the demise of the USSR. We can add to what Elster says in relation to other parts of the world such as Africa, where the post-communist world developments have had an impact as well.

What is commonly known as an unwritten constitution is a type of constitution that does not exist in a single document, and therefore cannot be known as a constitution. The UK, Israel and New Zealand are the three famous political systems without written constitutions. The constitutional laws of these states exist in various documents and usages which are considered to be sources of constitutional law. For example, for the UK, there are various legal and non-legal sources serving as its constitutional law. The legal sources are parliamentary legislation, judicial precedents and the European Union bodies' laws and decisions. The non-legal sources of the UK constitution are rules of constitutional behavior which are considered to be enforceable or binding on those who operate the constitution, but not enforced by the law courts; nor by the presiding officers in the houses of parliament. An example of the non-legal – conventional – source of UK constitutional law is that the sovereign (crown) appoints the leader of the party winning a majority in the House of Commons as Prime Minister.

From: Nevil Johnson, *Reshaping the British Constitution: Essays in Political Interpretation* (Palgrave Macmillan, 2004). Endnotes omitted.

[Nevil Johnson (2004) discusses, among other things, that one of the greatest problems of the British Constitution is one's inability to clearly mark its trajectories vis-à-vis political decisions owing to the customary nature of the constitution. As you read through the following materials, note the important peculiarities about the British constitutional and political tradition. Also re-read the material excerpted from Sartori's 1962 article to see his criticism in the light of Johnson's perspective.]

* * *

Skeptics have often enough doubted whether there is such a thing as the British constitution. After all it is not possible to point to an indisputable founding charter and to say when and how such a birth certificate was solemnly drawn up and brought into effect. The law courts do not systematize any statute or other legal instrument as indubitably superior to all other law, even though there are some legal documents and statutory provisions which by virtue of their antiquity or their content and all-embracing effects are sometimes treated as "constitutional" by learned judges in search of a clinching argument. But it is not at all clear what the invocation of constitutional status actually achieves either in the courts of law, the groves of academe or the many and varied organs of comment and political argument. Often enough the constitutional essence evaporates into something like the grinding of political axes. Yet it would be perverse to deny that Britain has had a constitution, and it is widely assumed that it still has one. If having a constitution entails having a notion of limited government under law to which most or at least many of the people have given their consent directly or indirectly, then it cannot be denied that some form of constitutional rule has systematized⁷⁶ Britain – and even more obviously England – for a very long time indeed. And at the level of theoretical reflection on what conditions make for good government constitutionalism as a rather eclectic body of ideas about the rights of citizens.... Some of

them have been lawyers and philosophers of distinction, others propagandists and practical reformers who sought to nourish in the people an awareness of the rights and liberties they were entitled to claim. Gradually over a long period, punctuated often enough by serious conflict and heated argument, the heritage of practical achievement assumed the institutional contours of a sophisticated system of parliamentary government, capable so it was firmly believed in the later part of the nineteenth century of ensuring peace, prosperity and security at home and of prescribing the laws for the governance of an empire of arbitrary government has certainly had notable exponents in Britain too.

At this zenith of parliamentary government few doubted that Britain indeed had a constitution and a good one too. What is more it was at this time that most of the constitutional doctrine handed down to our own age was formulated and expressed. But such doctrine as was then acquired did not have the character of a collection of legalistic rules, even though lawyers and teachers of law made a notable contribution to it. Such principles as were enunciated were for the most part broad in scope and political in the objectives they were intended to serve. The efficient secret of the constitution lay in the fact that through its institutions and practices it expressed a capacity held to be inherent in the society and its ruling elites to make those institutions work, to devise practical solutions to the problems of governing in a rapidly changing society and an expanding overseas empire, and to give stability to the future by sustaining the habits and conventions of systematic social and political life. It was widely held that the remarkable ability to combine effective government with a large measure of individual freedom was attributable to the wisdom and subtlety of the constitution, this elusive body of norms and practices that had to be learnt by gaining experience of them.

What is to be regarded as a constitutional matter is either unclear or more likely the subject of heated political argument, and in any event there remains a deposit of habit and affection for the old ways that can usually be systematized by one interested party or another to frustrate or deflect change. The British constitution is not to a large extent expressed in the categories of binding and potentially enforceable legal norms, but derives instead mainly from the continuing practices of institutions and the conclusions drawn from them. This confers upon it something of the elusiveness inherent in all traditional codes of behaviour as well as rendering it a highly political matter, so much so that it is often impossible to distinguish what purports to be a constitutional statement from what is in fact no more than an assertion of a passing political preference. It is precisely because there is so much uncertainty and ambiguity in talking about the British constitution that it is desirable to preface any study of what have so far been regarded as the principal features of that constitution and of the ways in which it is now being changed with some consideration of constitutions in general, of what is involved in having a constitution, and with that mode of thinking about the ordering of social life which has often been referred to as constitutionalism. Such an introductory discussion may also have the advantage of moving us away from the parochialism affecting so much argument about the constitution in Britain, reminding us that, whilst Britain has certain unusual constitutional characteristics, there are many other societies which show traces of our peculiarities too.

* * *

For at least two centuries a contrast has been drawn between formal and informal, written and unwritten constitutions. The notion of a written constitution owes much to the French Revolution and the series of unsuccessful efforts which accompanied it to provide a formal basis for a new and legitimate form of government in France. The era which followed the final defeat of Napoleon in 1815 was systematized in France and several other European countries by the introduction of “charters”, formal constitutional documents generally providing for limited government and some form of political representation. For example, on his first return to France in 1814 Louis XVIII issued a charter intended to be a basis for a restored monarchy and, after the downfall of his brother Charles X in 1830, his successor, Louis Philippe, agreed to a further revised charter. In other European countries where unqualified monarchical rule was restored or had survived, the usual demand from reformers was for a charter – some kind of written constitution. Gradually, and especially in the years after the revolutionary upheavals of 1848, the possession of a written constitution became widely accepted, at any rate amongst the majority of liberals

in Western Europe and even beyond, as an essential element in progress towards representative and limited government.

There was, of course, another and somewhat earlier source of the ideal of a written constitution, namely, the constitution of the United States of America which came into force in 1789. That in turn rested in part on the long experience in the colonies of “charters” conferred by the British Crown for various purposes, including those of government. But on the whole the American example had in the nineteenth century relatively little influence in Europe, partly because it was far off, partly because for many European liberals the United States was both too democratic and too republican. So the ideal generally became that of a formal document setting out the principal conditions necessary for constitutional government. This meant parliamentary institutions in some form or other, the vesting of legislative authority in such institutions, and in varying degrees the introduction of a constitutional monarchy under which the members of the executive would need to enjoy the confidence of the representative body. These were usually the main features in continental Europe of a formal constitution, though in some cases there was also explicit reference to the rights enjoyed by citizens. In the English-speaking world it was not uncommon in the wake of these developments to draw a distinction between written and unwritten constitutions or, as Lord Bryce, writing in the late nineteenth century preferred, between “rigid” and “flexible” constitutions. The movement towards the practical systematization of the ideals of a liberal constitution was, however, marked by many false starts and setbacks, a state of affairs exacerbated by the disappearance in many countries of traditional monarchical institutions at the end of the First World War. The years between 1918 and 1939 when many written constitutions came and went were to provide ample evidence of the fragile basis of constitutional rule in many parts of Europe and showed that a written constitution alone was no protection at all against the risks of political upheaval and institutional disruption. Yet after the end of the Second World War written constitutions became once again indispensable instruments in political reconstruction and, in contrast with the experience after 1918, have in most cases proved so durable that hardly anybody in continental Europe would doubt that a formal, written constitution is the hallmark of a progressive, democratic society.

The terminology “written” and “unwritten” as applied to constitutions is, however, in many respects unsatisfactory. As will be argued shortly, it implies far greater differences between the two categories than generally exist, but it is also lacking in descriptive content. There are several other terms which might be held to describe the British type of unwritten constitution in a more informative way, for example, customary, conventional, traditional and informal. It might even be described as a common law constitution, though this would be open to some misunderstanding of what such a systematization implied. There is, however, no doubt that it is a constitution developed and adapted on the basis of precedents derived from customary practices, many of these being the procedures of leading institutions like the Crown, the two Houses of Parliament and the law courts. Conventions of behaviour have played a large part in its evolution and have defined many of its conditions. Obviously it has been also a traditional constitution in the sense that in its adaptation and development tradition has often been acknowledged and allowed to set limits to the kind of innovation that people were prepared to consider. And it remains informal in the sense that it has never been systematized or given a special status distinguishing its terms from those of ordinary statute law or of many of the familiar practices of political life. For the purposes of the present discussion, however, it is proposed to refer to the British constitution as a customary constitution.

In contrast a constitution of the written and formal kind will be referred to as a codified constitution, that is to say, a formal statement in which the principal terms of government and of citizens’ rights are drawn together and given a special status distinct from and usually above that of ordinary law. Having drawn this distinction between customary and codified constitutions, it is necessary immediately to warn against its exaggeration and misuse. Many who have commented on the British constitution have assumed that the gulf between customary and codified, written and unwritten constitutions is far greater than is generally the case. In the past this often encouraged the belief that the British constitution was so exceptional that it was a pearl beyond price, something that foreigners could never hope to imitate. In recent years’ judgement of this aspect of the matter has often pointed to the more critical conclusion that

the British constitution might be so exceptional that it becomes necessary to question whether it really exists and to treat the absence of a “proper constitution” of the codified variety as a sign of constitutional underdevelopment.

In reality, however, all serious and effective constitutions of the codified variety depend substantially on customary practices and conventions to supplement whatever their formal terms may be. Nowhere is this more evident than in the United States with its long-established written constitution backed up by binding judicial interpretation of it. The operation of Congress depends just as much on precedent and established conventions as is the case in the House of Commons; the extent of presidential powers is similarly to a large extent a matter of custom and practice, though not exclusively so. Similar lessons can be drawn from other countries with a codified constitution. Relations between the French president and his prime minister depend very much on whether the former has a parliamentary majority backing him: if he has not, then conventions of mutual forbearance developed when these two officeholders are from different parties have to come into play. The very limited scope for judicial intervention in relation to constitutional issues in Denmark, the Netherlands and Switzerland is due in large part to a customary opposition to judges infringing the discretions of the properly constituted political authorities (which in the case of Switzerland includes the people acting in a referendum). In Germany the modest role of the Bundestag, the elected part of the legislature, in relation to day-to-day ministerial accountability depends far more on what have become the customary practices of party life than on formal constitutional provisions such as those requiring a federal structure of government.

What must be remembered is that whatever the formal provisions may be as to the form of the institutions of government, the activity of governing through those institutions can only proceed effectively when custom and conventional ways of doing things come into play as well. Governing by the rule-book is literally impossible. On the other side of the coin it has to be remembered that even a customary constitution like the British does not consist solely of familiar practices, mysteriously handed down as the intimations of a tradition. It has over the centuries embodied substantial formal and written elements, and these have grown more extensive and prominent in recent times. Indeed, it could be maintained that it is precisely some of these formal provisions –Magna Carta, the exclusion of papal jurisdiction, the various acts passed between 1533 and 1560 establishing the Church of England, the Petition of Right, the act abolishing the Court of Star Chamber, the Habeas Corpus legislation, the Bill of Rights of 1689, the Act of Union of 1707, the Reform Act of 1832 and many others – that constitute the milestones marking out the growth and nature of the British constitution . . .

The rest of the classifying elements are summarized below.

Rigid/ Flexible: classification of constitutions into “rigid” and “flexible” is made on the basis of amendment procedures or requirements of constitutions. Actually, there are two views on this issue. The one is forwarded by Lord James Bryce. According to him, a flexible constitution is one where all laws of the constitution can be amended by an ordinary law-making process. On the contrary, in a rigid constitution, the laws of the constitution can only be amended by a special procedure.

However, the sense in which K.C. Wheare used the classification of constitutions into rigid and flexible is different from James Bryce's. For Wheare, the basis for classification was whether or not a given constitution is easily amendable in practice or not. Therefore, even if a constitution entrenches in itself serious or stringent procedural requirements, as for example that of the Ethiopian Constitution (see Art. 105 of the 1995 Ethiopian constitution), it shall be considered flexible if it is often amended in practice. Wheare considered the constitution of Switzerland as flexible because this constitution has been regularly amended in reality. The formal requirement for amending the Swiss Constitution is referendum. According to Bryce, the Swiss Constitution could have been considered perfectly rigid. Wheare says the American Constitution is rigid because it has practically been amended very rarely.

Unitary/ Federal: A unitary Constitution is the one that creates a system of government in which power is vested in the central government organs. The administrative sub-divisions in unitary form of government are subordinate to the center and function under the direct authority of the center.

A Federal constitution on the other hand creates layers of government (often two but can be more) within the same polity. The layers of government so created have constitutional existence and are on most powers independent from each other. The constitution divides powers among the layers. A federal constitution serves as a covenant between the center and the regions.

Supreme/Subordinate: Wheare says that a constitution is considered supreme if it cannot be changed by a legislature acting alone – whether through simple or special majority procedures. A subordinate constitution, on the other hand, can be changed or amended by the legislature acting on its own in either of the two procedures.

How is this classifying ground different from that of rigid/flexible?

Separated powers/fused powers: Constitutions are classified as such on account of their separation of the personnel and institutions of branches of government. So, if there is a substantial overlap of personnel and functions of the three branches, that will be considered a “fused powers” constitution. A constitution will be considered a “separated powers” one if it allows only a limited or no overlap of personnel and functions.

Monarchical/Republican: This is the last of Wheare's classifications. In short, a constitution is monarchical if the head of state is a monarch who assumes power through hereditary succession to the throne. A monarchical constitution may put in place an absolute monarch or a constitutional monarch. Constitutional monarchs are part of the western democracies such as the UK, Japan, Spain, Norway, Belgium and the Netherlands.

A republican constitution on the other hand is the one that institutes a head of state as an elected person, normally in the name of a president. The president in republican constitutions may be chief –executive and head of state at the same time, or just a figure head of state without being the chief-executive. In the latter case, the chief-executive exists as a prime minister who becomes the head of government.

The above six groupings of constitutions by Wheare supply a plethora of ways in which different constitutions of the world can exist. Other scholars have added more grounds of classifying constitutions. The main additions include presidential/parliamentary; competitive/consolidatory; programmable/confirmatory; and manifest/latent constitutions.

Presidential/parliamentary: These are types of republican constitutions that are designated on the basis of the type of the executive they put in place. Accordingly, a presidential constitution creates a form of government to be led by the president as the chief-executive, while a parliamentary constitution establishes a government to be led by a prime minister. In this case, the head of state may be a president or a monarch.

A **competitive** constitution is said to be the one that allows a multiparty political platform for assumption of powers, while a **consolidatory** constitution does not allow a competitive political platform for assumption of government powers; the latter creates a situation whereby political power is held either hereditarily or by a single party.

A **programmable** constitution includes statements of aims yet to be fulfilled in the form of policy objectives or programs – long term as well as short term. A **confirmatory** constitution, on the other hand, provides for regulations of the existing state of affairs.

The term **manifest** constitution refers to the rules in the formal constitutional text, while a **latent** constitution refers to the vital political activity which is not specified in the constitutional text, but which plays a significant role in the political decisions to be regulated by the constitution. A very good example of a latent constitution is the operational processes of parties and the decision making procedures and their decisions.

In conclusion, you need to understand that a given constitution may display different features from the different groupings. For example, a given constitution can be written, federal, separated powers, superior, rigid, republican, parliamentary, etc. But it is good to note that one constitution cannot be both written and unwritten, or rigid and flexible, or federal and unitary.

Questions and Discussion

1. Can you think of examples of the two types of republican constitutional systems?
2. Do you think that the events leading to the making of the 1995 Constitution of Ethiopia are in any way related to or resulted from the changes experienced as a result of the fall of communism?
3. Do you consider unwritten constitutions as flexible constitutions according to Bryce's definition?
4. What exactly is it that Nevil Johnson calls the British Constitution? What matters are of concern in the UK, and indeed all other systems, with unwritten constitutions? What are the most important distinctions between written and unwritten constitutions, according to him?
5. Nevil Johnson says the years between 1918 and 1939, when many written constitutions came and went, provided ample evidence of the fragile basis of constitutional rule in many parts of Europe and showed that a written constitution alone offered no protection against the risks of political upheaval and institutional disruption. He also says that after the end of the Second World War, written constitutions became once again indispensable instruments in political reconstruction and, in contrast with the experience after 1918, have in most cases proved so durable that hardly anybody in continental Europe would doubt that a formal, written constitution is the hallmark of a progressive, democratic society. Why does he say so? What fundamentally changed between the wars that gave constitutions after World War II the bedrock over which they were erected?

A. Policy Objectives and Principles in Constitutions

A constitution is fundamental and supreme law which serves both as a legal and policy instrument to guide a nation's activities in all areas that concern a political society. The contents of the directive principles and policy objectives reflect primarily the peculiar situation and state of facts in the society concerned. More appropriately, as constitutions are made by the people and that they are maps on which the making peoples clearly inscribe their choices, every constitution consists of the policy objectives and principles serving the respective people making it.

1. Comparative Overview

The policy objectives and principles in constitutional documents are not very common in most modern constitutions in a sense of occupying significant portions of the constitutional documents. What may serve as such, may however be found in different parts of the constitutional texts, including in the preambles. For example, one of the great constitutions of our time – the South African Constitution – does not carry separate provisions relating to directive principles. But some provisions in Chapter 14 of the Constitution entitled “General Provisions” could be taken to have a flavor of directive principles. For example, Section 233 (Application of international law) of the Constitution states that “when interpreting any legislation, every court must prefer any reasonable interpretation of the legislation that is consistent with international law over any alternative interpretation that is inconsistent with international law.” This provision can be taken as providing for a directive principle guiding the courts in interpretation of legal materials involving issues of international law.

Similarly, Section 235 (Self-determination) states the following:

The right of the South African people as a whole to self-determination, as manifested in this Constitution, does not preclude, within the framework of this right, recognition of the notion of the right of self-determination of any community sharing a common cultural and language heritage, within a territorial entity in the Republic or in any other way, determined by national legislation.

This declaration also provides for the stand of the South African political order in relation to self-determination of a community sharing a common cultural and language heritage. This would therefore guide the decisions that would be made by all government organs in the future concerning claims of rights of self-determination by communities in South Africa.

A constitution that provides for perhaps the largest body of directive principles is the 1950 Indian Constitution (as amended). Part four of the Indian Constitution, which is entitled “Directive Principles of State Policy,” consists of directive principles in the areas of social, economic, political, administrative, legal, and environmental policy, protection of monuments, and peace and security. Art. 37 of the Constitution declares that “the provisions contained under the directive principles are not enforceable by any court, but the principles laid down therein are nevertheless fundamental in the governance of the country and it shall be the duty of the State to apply these principles in making laws. What this means is that the directive principles do not give rise directly to legal rights and therefore are not justiciable. The principles on the other hand impose a duty on the state – federal (union), states or local – to apply these principles when they make laws and discharge other official responsibilities.

As stated earlier, the principles contained in part four of the Indian Constitution deal with socio-economic and environmental policy, peace and security, and other such matters. As you shall later compare the directive principles in the Indian constitution with those of our Constitution, some of the provisions contain matters that are considered justiciable by our Constitution and in fact by international human rights instruments.

The Constitution of the People’s Republic of Bangladesh (as amended up to 2004) also carries a part (Section 8-25) dealing with “Fundamental Principles of State Policy.” Section 8(2) of the Constitution states that:

The principles set out in this [Fundamental Principles of State Policy] part shall be fundamental to the governance of Bangladesh, shall be applied by the State in the making of laws, shall be a guide to the interpretation of the Constitution and of other laws of Bangladesh, and shall form the basis of the work of the state and of its citizens, but shall not be judicially enforceable.

The contents of the “Fundamental Principles of State Policy” in the Constitution of Bangladesh share a good amount of similarity with those of the Indian Constitution discussed above. This might be because of the socio-political and legal influences India exerts on the former as a result of the historic relations between the two societies.

The “Fundamental Principles of State Policy” of the Bangladeshi Constitution provide for matters such as free and compulsory education for all children, mass-oriented and universal system of education (Sec. 17); raising the level of nutrition and the improvement of public health (Sec.18); creating equality of opportunity for all citizens and taking by the state of effective measures to remove social and economic inequalities and ensure equitable distribution of wealth among citizens (Sec. 19); ensuring the separation of the judiciary from the executive organs of the state (Sec.22); conservation of the cultural traditions and heritage of the people; fostering and improving the national language, literature and the arts and ensuring that all sections of the people are afforded the opportunity to contribute to the enrichment of the national culture; and protecting all cultural heritages, monuments, objects or places of artistic or historic importance (Secs. 23 and 24).

Like the Bangladeshi Constitution, the 1973 Constitution of the Islamic Republic of Pakistan also contains a chapter on principles of policy (Art. 29-40). These principles deal with a wide variety of issues. The Constitution states that it is the responsibility of each organ and authority of the State, and of each person performing functions on behalf of an organ or authority of the State, to act in accordance with those Principles in so far as they relate to the functions of the organ or authority. They also state that the organ or authority of the State, or the person concerned, is responsible for deciding whether any such action is in accordance with the Principles of Policy. The Constitution further clearly states that the validity of an action or of a law shall not be called into question on the ground that it is not in accordance with the Principles of Policy, and no action shall lie against the State or any organ or authority of the State or any person on such ground. Just like the Indian and Bangladeshi Constitutions, the Pakistani Constitution also makes the principles and activities contained in this Part non-justiciable.

The Nigerian Constitution of 1999 supplies another very interesting example in providing “fundamental objectives and directive principles of the state policy” under its chapter two, to which it devotes twelve lengthy articles (Arts. 13-24) covering various policy principles and objectives. To cite, but one example, Art. 14(3) and (4) provide the following:

3) The composition of the Government of the Federation or any of its agencies and the conduct of its affairs shall be carried out in such a manner as to reflect the federal character of Nigeria and the need to promote national unity, and also to command national loyalty, thereby ensuring that there shall be no predominance of persons from a few State or from a few ethnic or other sectional groups in that Government or in any of its agencies.

(4) The composition of the Government of a State, a local government council, or any of the agencies of such Government or council, and the conduct of the affairs of the Government or council or such agencies shall be carried out in such manner as to recognise the diversity of the people within its area of authority and the need to promote a sense of belonging and loyalty among all the people of the Federation.

2. National Policy Principles and Objectives of the Ethiopian Constitution

The 1995 Constitution of Ethiopia also contains “National Policy Principles and Objectives” under its 10th Chapter (Arts. 85-92). Unlike the policy principles contained in the other constitutions we have studied before, the Ethiopian Constitution does not state whether the provisions or principles in this Chapter are justiciable or non-justiciable. Art. 85 of the Constitution provides an interesting direction to both the Federal and State governments regarding the value or purpose of the policy principles and

objectives. It states that “any organ of Government shall, in the implementation of the Constitution, other laws and public policies, be guided by the principles and objectives specified under this Chapter.”

The above provision of the Constitution therefore gives the policy objectives and principles a very important place in the implementation of laws and policies in the country. They are made to be the guiding star or beacon light for government actions.

Read Arts. 85-92 of the Ethiopian Constitution.

As you can see, except for the first two articles (Arts. 86 and 87) which are called “principles,” the remaining ones are called “objectives.” Look closely at each of these principles and objectives, and try to make sense of how they should be used by the governments in their day to day activities.

Questions and Discussion

1. Do you see any difference between “principles” and “objectives” in this case?
2. Art. 89 (4) of the Constitution states that “Government has the duty to hold, on behalf of the People, land and other natural resources and to deploy them for their common benefit and development.” Is this obligation on the state actionable in a court of law (i.e., justiciable)?
3. What are the main differences between the Indian Constitution’s policy objectives and those of our Constitution? Mention at least two and explain.
4. Explain the difference between policy principles and objectives, and rights.

B. Some More Materials on Constitutionalism

A helpful discussion has been made earlier on some aspects of the notion of constitutionalism. Below are also some more materials and discussion questions for a broader understanding of the concept and the challenges in realizing it.

The following excerpt from Johnson discusses the situation of constitutionalism in a system without a written constitution. This brings to the fore an important issue, which is the possibility for constitutionalism to reign in the absence of a written Constitution. Do you think it is possible to enjoy a full range of constitutionalism without a written constitution? The excerpt begins with an interesting restatement of Montesquieu’s idea about decisive elements for shaping a polity: the institutions established in a society (which he calls “the spirit of the laws”), the character of the rulers; and the moral habits of the people. Do you agree with Montesquieu that these are decisive elements? For most of Ethiopian history, we have never had institutions that represent the spirit of the laws. It seems plausible to say that our long history has been greatly influenced by the nature of the rulers that we have had. For example, if, as widely believed, the charismatic General Aman Mikael Andom had remained in power for longer than he did after the 1974 Ethiopian revolution, Ethiopian history might have dramatically changed and above all, Eritrea might not have seceded. In the case of Teferi Banti or Atnaфу Abate, both of whom were also massacred one after the other by Mengistu Haile-Mariam and his group, or the current top political personalities at the helm of power in Ethiopia, it was possible to extend such an argument. How do you judge the personality of the former Ethiopian rulers, such as Meles Zenawi and Haile-Mariam Desalegn, or the current Prime Minister Abiy Ahmed? Do you think they have fundamentally affected Ethiopia’s political life? For example, some people think that if some other person was in Meles’s place right from the very start of the 1990s (even from among the other top TPLF leaders), Eritrean secession from Ethiopia might have followed a different course, or may have not occurred at all. Do you see a point in this argument? What else do you think might have changed if someone else than Meles became the Chair of the Transitional Period Conference in 1991? Or the President of the Transitional Government? Or if he were replaced in the first five or ten years into his power? What are your assumptions for your point of view?

Johnson further raises important points regarding the consequence of a lack of decisive elements for the establishment of a polity. He raises examples of acts that erode constitutionalism and the rule of law in Russia, the UK, and Germany. Do you consider those serious transgressions? He also discusses the special burden of an unwritten constitution to maintain constitutionalism. It is possible to deduce that it would be absolutely difficult to maintain constitutionalism with an unwritten constitution in societies with fledgling institutions and non-conducive political culture.

From: Nevil Johnson, *Reshaping the British Constitution: Essays in Political Interpretation* (Palgrave Macmillan, 2004). Footnotes omitted.

. . . In his famous work, *The Spirit of the Laws*, Montesquieu identified three decisive elements in the shaping of a polity: the “spirit of the laws” or the kind of institutions established in a society, the character of the rulers, and the moral habits of the people (*les mœurs du peuple*). Inspired by this approach to the problem of controlling the exercise of power, constitutionalism in the West has represented a rich and varied body of ideas and arguments about the civic virtues and the institutional conditions which need to be cultivated and sustained if a society is to be capable of living under a liberal constitution, that is to say, one under which individuals are protected in the enjoyment of their rights and freedoms, the laws are applied equally and fairly, and the rulers are subject both to law and the judgement of those they represent. But obviously no modern written and codified constitution dedicated to these values is going to work unless the second and third of Montesquieu’s conditions are met at least in some degree, and they refer to matters which cannot be brought into existence merely by the fact of having a piece of paper labeled “the constitution.”

It is not difficult to identify societies in contemporary Europe which illustrate the point just made. In the Russian Federation a liberal constitutional order remains fragile because the legal system and political institutions are still relatively weak, those in power are not proof against constitutions and constitutionalism corruption, and there is a lack of civic experience in society at large. But if we take another example, the Federal Republic of Germany, where a liberal constitution has now had more than fifty years to take firm root, it is still possible to discern some signs of the difficulties that can occur when some of the underpinning conditions of constitutionalism are not adequately met. The laws and institutions of contemporary Germany certainly meet the standards required of a liberal constitutional order. Yet revelations in late 1999 about the way in which donations to the Christian Democratic Union, the party of government from 1982 until 1998, were handled brought into sharp focus the extent to which a certain kind of political corruption had become acceptable amongst the political elites. This is not generally corruption in the obvious sense of political favours bestowed in return for financial benefits, usually for a party rather than individuals, but rather in the sense of the widespread bestowal of patronage and a tendency to treat the public domain as one to be discreetly exploited for partisan advantage by those who occupy influential positions in it. Rather similar critical lessons could be drawn from the experience of several other European countries in recent years, Belgium, Austria, France and Spain, for example. Here too political failings have suggested that the supporting values of liberal constitutionalism sometimes lack the vigour required if the formal conditions of the constitution are to have real effect.

In Britain as well the state of constitutionalism as a set of values underpinning what have been thought to be well-established constitutional practices is no more proof against critical questions than it is elsewhere in Europe. One of the key problems appears to stem from the way in which party interest in the acquisition and retention of governmental power has steadily eroded the norms of self-restraint owed by officeholders and subverted their sense of the limits to the exercise of powers which are an integral part of liberal constitutional ideology. The obsessive pursuit of party manifesto promises, the often blatant manipulation of public opinion now practiced both by politicians and by officials paid to do so on their behalf, the increasingly obsequious behaviour of a large part of the political class towards those leaders who can dispense patronage and offer prospects of career advancement, the intolerant pursuit of

the claims both of individuals and minorities at the expense of the interests and opinions of the wider majority in the society – these are now all readily observable features of British public life. They appear to testify to the belief that the interest of party, and especially of the majority party for the time being, takes precedence over any other concerns which might be held to be of “public interest.” It is not surprising that as a result many institutional practices, which until recently were thought to be binding, are now in a state of decay: there is not that degree of sensitivity on the part of many of those in public life to the moral restraints demanded by constitutionalism which it is essential to maintain if a liberal political order is to remain a reality. A clear example of this was the incidence of petty personal corruption in the ranks of the Conservative party in Parliament between 1990 and 1997, and the inability of the House of Commons to maintain the principle of self-regulation in the face of its own failure to discipline and punish Members who had breached well-established standards of behaviour.

In summary, neither a codified constitution nor an informal and customary constitution can do without a wide range of understandings about acceptable conventions of behaviour in the realm of public affairs, and these in turn must express in some degree the values embodied in constitutionalism as a set of ideas about how to maintain a liberal order. Nor does the fact that a customary constitution suggests that the appeal to habits and traditions is more congenial than it is in the context of a codified constitution to offer special protection against the erosion of the underpinning moral values of liberal constitutionalism. Nevertheless, the distinction drawn between these two contrasting approaches to a constitution and to what is involved in applying it to the government and political evolution of a society is useful so long as appropriate qualifications are made to it. It is self-evident that a customary constitution can only survive if there is in the society concerned a strong preference for maintaining institutional continuities and familiar habits of social cooperation. Sympathy for tradition is a necessary foundation for such a constitution. But equally, the hallmark of customary constitutional arrangements has been the large scope they allow for accommodating whatever may turn out to be the principal political imperatives of the day. This is made possible in part because a customary constitution is only to a limited extent expressed in terms of legally enforceable norms, some or all of which may be subject to judicial interpretation and enforcement by a court.

It follows that political discretion can often be exercised both in regard to deciding what action can be claimed to be acceptable under the constitution as well as to reform or adaptation of the constitution itself. This is not, however, a feature peculiar only to a wholly customary constitution like the British. In the United States too there is a strong emphasis on the political discretion of officeholders, not least as a means of facilitating democratic responsiveness. This element in the American political tradition has qualified over a long period the potential rigidities of a codified constitution subject to regular judicial interventions. Furthermore, the fact that the Supreme Court of the USA has generally attached so much importance in its interpretation of the constitution to judicial restraint owes much to the inheritance of significant elements of the English common law tradition: it has been a court which has usually known when to exercise caution in reaching judgements which might be held to encroach seriously on the political discretion claimed by both the legislative and executive branches of government or would bring it into sharp conflict with public opinion.

You have studied some materials from Professor Walter F. Murphy’s lucid explanation of the concept of “constitution”. In the following excerpt from his work, he discusses the intricate interrelationship between democracy and constitutionalism. He will take you through the defining elements of democracy, and then he sets it side by side with those of constitutionalism. The discussion will also highlight the central tenets of the two contending theories in constitutional law: democratic theory and constitutionalist theory. His discussion will show that in a modern republicanism, the two come together to create a system of government known as “constitutional democracy”.

From Walter F. Murphy, "Constitutions, Constitutionalism and Democracy," in Douglas Greenberg, et al. (eds), *Constitutionalism and Democracy: Transitions in the Contemporary World* (Macmillan Publishers Ltd., 1993)

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Democracy and Constitutionalism

Democratic theory is based on a notion of human dignity: as human beings worthy of respect because of their very nature, adults must enjoy a large degree of autonomy, a status principally attainable in the modern world by being able to share in the governance of their community. Because direct rule is not feasible for the mass of citizens, most people can share in self-government only by delegating authority to freely chosen representatives. Thus Justice Hugo L. Black expressed a critical tenet of democratic theory when he wrote: "No right is more precious in a free country than that of having a voice in the election of those who make the laws under which we. . . must live."

Constitutionalism, too, enshrines respect for human worth and dignity as its central principle. To protect that value, citizens must have a right to political participation, and their government must be hedged in by substantive limits on what it can do, even when perfectly mirroring the popular will.

Democratic Theory

Although the social and economic conditions supporting a viable representative democracy are wonderfully complex, only a few formal, institutional conditions need obtain: popular election of representatives, by universal adult suffrage in districts of approximately equal population for limited terms, to institutions that allow those representatives to govern free entry of citizens to candidacy for electoral office: and freedom of political communication and association so citizens can be informed and can try to persuade others to join them. These conditions, of course, require a plethora of ancillary rights. Together they create a nearly open market of political ideas to allow the people to choose candidates intelligently and form groups to express common interests.

For democratic theory, what makes governmental decisions morally binding is process: the people's freely choosing representatives, these representatives debating and enacting policy and later standing for reelection, and administrators enforcing that policy. Democratic theory, therefore, tends to embrace both positivism and moral relativism. "The claim for [representative democracy] is most persuasively put" Michael Walzer says, "not in terms of what the people know, but in terms of who they are. They are the subjects of the law, and if the law is to bind them as free men and women, they must also be its makers."

Although one can hear in democratic theory a reprise of Aristotle's claim that the people's collective wisdom will exceed that of any single person or small group, few democratic theories assume citizens possess equal capacity to understand the options or, as a whole, will always understand the issues. Thus public policy, democratic theorists concede, will sometimes be unwise. A coherent theory of representative democracy must, however, posit that most sane adults can usually cope with political problems to the extent of being able to recognize their own self-interest, join with others who share those interests, and choose among candidates. There is a faith at work here: citizens: "can, if encouraged and given the opportunity, develop the arts, the skills and habits necessary for a life of responsible deliberation and decision making."

The chief check democratic theories posit against tyranny is that the people will not tyrannize themselves. They will try to choose officials who will not enact oppressive laws and will vote out of office those who do. The "mass of citizens," Jefferson asserted, "is the safest depository of their own rights." Thus democratic theory esteems popular participation not only for its positive effect of expressing individual autonomy but also for its negative effect of deterring governmental incursions into

individual rights. It was because of this negative function that the U.S. Court referred to voting as “a fundamental political right, because preservative of all other rights.”

Because voters need to be informed to protect their interests, democrats speak glowingly about freedom of communication. As the German Constitutional Court said, quoting the U.S. Supreme Court:

[T]he basic right of free expression is one of the principal human rights...For a free, democratic order it is a constituent element, for it is free speech that permits continuous intellectual discussion, the battle of opinions that is its vital element...In a certain sense, it is the basis of any freedom...the matrix, the indispensable condition of nearly every other form of freedom.

Yet, even in tandem, communication and voting are not sufficient for forming and expressing “the will of the people.” Democratic theory also demands a right to act in concert with others. Although the U.S. constitutional text does not specifically protect a general right of association, the Supreme Court has held it “beyond debate that freedom to engage in association for the advancement of beliefs and ideas is an inseparable aspect of the ‘liberty’ assured by the Due Process Clause.” The Federal Republic’s Basic Law explicitly states that “All Germans shall have the right to form associations and societies.” “The principle of free social grouping,” the Constitutional Court has said, “distinguishes the liberal order from the system under which a people is organized from above.”

The constitutional texts of Canada, India, Ireland, Italy, and Japan contain similar provisions specifically protecting association along with speech and peaceful assembly. And these countries all have well developed bodies of case law interpreting these provisions to protect the specific rights involved.

Many theorists find an effective second check in the way democratic politics operates in large, diverse nations. They contend that most people have small concern for most political issues. This low level of involvement allows coalitions of minorities to form temporary alliances, trading support among themselves on different issues. These theorists claim that political cleavages are rarely cumulative; hence, an interest group is not likely to be continually allied with one set of groups against another permanent coalition.

Democratic theorists do not assert that these checks always protect liberty or even prevent public officials from acting independently to create public policy. Rather, they argue that, overall, such checks push public officials to mediate among interests, to broker, not adjudicate—or themselves contest in—winner-take-all struggles. In sum, officials will be wary of oppressing any group, for fear it will become part of tomorrow’s winning coalition. At a deeper level, democracy may cause a people to accept respect for competing interests as not only legally but, more importantly, as “itself a form of justice.” More specifically, professional politicians may develop a subculture that constrains them from trying to oppress minorities even when their constituents might have it otherwise.

Other proponents perceive a Rousseauian limitation: [The popular will its representatives reflect must will generally.] A valid law cannot simply reflect prejudices against minorities by imposing burdens only or principally on them. Such a limiting principle flows from the premise that the people as a whole are sovereign and majority rule is no more than a decision-making arrangement. This principle raises interesting questions about how to determine when a law merely makes distinctions, as all complex statutes must, and when it invidiously discriminates; and who shall make such determinations, the people, their elected representatives, or nonelected officials.

Constitutionalism

Despite some basic agreements, the two theories differ significantly. Constitutionalists tend to be more pessimistic about human nature, fearing that people are sufficiently clever to oppress without hurting themselves. Constitutional theorists do not deny the importance of institutional and cultural checks but

see those as insufficient. They are constantly concerned with the human penchant to act selfishly and abuse power. They want institutional restraints on substantive matters to prevent lapses into an authoritarian or even totalitarian system cloaked with populist trappings. As James Madison wrote to Thomas Jefferson:

In our Governments the real power lies in the majority of the Community, and the invasion of private rights is chiefly to be apprehended, not from acts of Government contrary to the sense of its constituents, but from acts in which government is the mere instrument of the major number of constituents.

Whereas democratic theory turns to moral relativism, constitutionalism turns to moral realism. It presumes that “out there” lurk discoverable standards to judge whether public policies infringe on human dignity. The legitimacy of a policy depends not simply on the authenticity of decision makers’ credentials but also on substantive criteria. Even with the enthusiastic urging of a massive majority whose representatives have meticulously observed proper processes government may trample on fundamental rights. For constitutionalists, political majority cannot be weighed on a scale in which “opinion is an omnipotence,” only against the moral criterion of sacred, individual rights. They agree with Jefferson: “An elective despotism was not the government we fought for . . .”

Constitutional Democracy

Although the strain between the two theories is always real and often serious, one must not exaggerate their differences. Both accept the centrality of human dignity; they differ on how best to protect that value. By limiting legitimate governmental action, constitutionalism tries to lower the stakes of politics, to restrict the risks to liberty and dignity of being a member of a political society. Democratic theory attempts to limit those risks by protecting the right to share in governmental processes.

To an extent, the two theories need each other. A majority may so restrict a minority’s substantive rights and social status as to drain its formal participational rights of real effect, a danger to which constitutionalism is especially alert. Constitutionalism’s perils lie in its propensity to paralyze government and so create a kind of oppression: Governmental inaction, no less than action, generates costs and benefits. Democracy, on the other hand, tends to respond to what elected officials perceive their constituents perceive to be societal problems.

To enjoy reasonably effective but still limited government, many countries have adopted a mix of constitutionalism and democratic theory. Most so-called democratic systems, such as those of Australia, Austria, Canada, Germany, India, Ireland, Italy, Japan, Spain, and the United States, would be more accurately classified as constitutional democracies. Each of these polities provides for a wide measure of popular political participation and simultaneously restricts the people’s government by a variety of institutional means. Each tries to distinguish among powers to legislate, execute, and adjudicate, has some version of bicameralism, and includes a bill of rights. Australia, Canada, Germany, India, and the United States use federalism to defuse power further; and, to splinter this diffused power of majorities, the United States employs staggered elections for its legislature and directly elects its president. Each also authorizes politically independent judges to invalidate legislative and executive action they believe violates “the constitution.”

If these institutional webs formed merely “parchment barriers,” they would be important only to students of rhetoric. To think that words can constrain power seems foolish. Yet a political chemistry may turn sheets of paper into hoops of steel. First, by prescribing institutional structures and fracturing power among different offices a document can push officials, as Madison recognized, to link their own interests with those of their office and jealously guard those interests against putative incursions by other officials. Further, by drawing vague divisions of authority, a document can make it likely that no set of officials can do much that is politically important without arousing the territorial imperative of

other officials. Thus, a constitutional text can disperse power and protect liberty by pitting ambition against ambition and power against power.

Culture forms the second element in that political chemistry. A constitutional text that requires its officials to swear to support it can forge a moral bond. Much of the text may thus become part of the nation's customs. Children may learn about it in school as the "proper" way of politics, and later, as adults, internalize its provisions; mature citizens may come to look on it as prescribing rules for a just society; and officials may habitually put most of its command into practice. As Madison explained when he presented what became the Bill of Rights:

It may be thought that all paper barriers against the power of the community are too weak to be worthy of attention...[Y]et, as they have tendency to impress some degree of respect for them, to establish the public opinion in their favor, and rouse the attention of the whole community, it may be one means to control the majority from those acts to which they might otherwise be inclined . . .

1. Constitutionalism in Africa

It is necessary to discuss a problem of constitutionalism closer at home. One can boldly assert that a practical example of how a constitutional text becomes a sham document or irrelevant in the day to day business of the government in power would be found in Africa. Today, although some African countries (e.g. post-Apartheid South Africa, Ghana, and Botswana) are trying to break away from this sad situation, most still find themselves entangled in it. It is actually difficult as citizens of this continent to understand why power elites become so selfish and self-serving. It is amazing that while the leader of the U.S. (and these days in most Western systems) could stay in power for a maximum of 8 years even if he wins a very difficult battle of reelection at the end of the first four-year term, leaders in Africa can continue in office for decades by rigging elections and taking brutal measures when challenged in any form.

Why do African political leaders have such an insatiable desire to stay in power? Why don't they feel restrained by constitutions they often enact? What is wrong with our culture? Why do they not feel ashamed of the fact that hundreds are killed, maimed, imprisoned, and displaced just in the struggle between themselves and their opponents who want to bring them down? What happened to the conscience of African political elites? Why are African leaders unable to solve their political differences peacefully? Think of the Kenyan post-2007 elections crisis that led to the killing of thousands, and displacement of many more thousands. The political players on the opposing sides were not able to sit down and discuss the way out of their political debacle by themselves until it was mediated successfully by former UN Secretary General, Kofi Annan. Think of our own post 2005 elections crisis which resulted in a great political turmoil and that was never solved peacefully and satisfactorily, but was submerged in the events that ensued subsequently, such as the trial and imprisonment of the main opposition leaders. As a result of the disagreement between the newly formed EPP and the TPLF when the latter lost its political hegemony at the center in Ethiopia starting from April 2018, the TPLF retreated to Mekelle. The disagreement between the two got further escalated and ended up in the breakout of armed conflict between the two sides when, as evidence shows, the TPLF attacked the Northern command of the Ethiopian defense force on the evening of 3 November 2019. The armed conflict has been going on at the time of writing with no end in sight. So far, the loss of lives and destruction of property caused by the conflict are extremely high. These and many other examples can be mentioned to show the extent of governance crisis in Africa. Sadly, more than 50 years have passed since most African states became independent political entities, but there is no political breakthrough in sight. For Ethiopia, the story is completely different because it has never been colonized and its own state administration system has been around for thousands of years. It becomes more of sorrow for us Ethiopians that in spite of centuries of existence, we have not been able to establish a credible democratic political system to this moment. There should be reasons for these failures to be explained

away which we should try all the time, until we get to see that the incumbent government leaves office peacefully when defeated by the ballot, not bullet!

As a means of engaging in solving the “why” and “what is wrong with us” questions, we will consider the following discussions by prominent Africanist authors who attempt to closely look at the constitutional problems of African states. The paper by Okoth-Ogendo discusses about a startling paradox that has become part of the public life of African polities since independence, which is constitutions (being essentially a “rhetoric”) without constitutionalism. He succinctly brings out the double interest of African political elites in written constitutions and their surprising lack of interest in constitutionalism. He elucidates the features, causes, and manifestations of the paradox. The next piece by Mahmood Mamdani, on the other hand, takes on the peculiar nature of African states’ interaction with their urban and rural populace. It is particularly interesting to see his description of how the rural society has been denied attention by the state in Africa. He explains why most of the democratic movements in Africa in the 1980s were urban affairs and what their chief demands had been.

The third piece, by Yash Ghai, also brings out an interesting view of the unique problems of constitutionalism in Africa. He argues that in Third World countries, the political systems are run by patrimonialist leaders who have personalized all political power in all facets of the state activities, including the bureaucracy. He prompts us to question the appropriateness of Western models of constitutionalism for developing countries owing to the fact that there exist in the latter different sets of social values and beneath the constitutional superstructure. He also points at extra roles Third World constitutions are supposed to play as opposed to their Western counterparts. He discusses how democracy, the state, and political power take on very different characteristics in Third World countries, making their examination separately from those in the West necessary. Samuel C. Nolutshungu looks at the same problem of constitutional governments in Africa as a function of various factors, chief among which is the nature of African social structure, which is predominantly dependent on the disorganized and dispersed, and state-dependent peasantry. He also discusses the ideas that were tossed regarding African alternatives to constitutionalism rooted in the traditional African leadership.

H.W.O. Okoth-Ogendo, “Constitutions without Constitutionalism: Reflections on an African Political Paradox,” in Douglas Greenberg, et al. (eds), *Constitutionalism and Democracy: Transitions in the Contemporary World* (Macmillan Publishers Ltd., 1993). Endnotes omitted.

In the preface to their book on public law and political change in Kenya, Yash Ghai and J.P.W.B. McAuslan (1970) lamented thus:

There are so many reasons for not writing a book on the public law of an African state, not at least that much of the subject-matter of the book tends to be somewhat ephemeral, as several authors (and publishers) have found to their cost, that a book on such a topic might be thought to require some justification.

Indeed, in the 1960s and 1970s, a number of authors, particularly in Nigeria, Ghana, Uganda, and Zaire, found at the end of their scholarly enquiries into the constitutional law of these states that the subject matter itself was no longer in existence!

Ghai and McAuslan noted that the problem was that most of these early enquiries tended to treat their subject matter simply as an affair of rules. Time was thus spent on the analysis of texts, cases, and whatever relevant laws were available in the statute books. As a result, the outcome of these studies as well as the discipline of constitutional law itself tended to be largely irrelevant to academic inquiry in Africa.

That “irrelevance” is perhaps most clearly evident in the absence of an authoritative or any rigorous analysis, even by social scientists, of the relationship between power and law in Africa. Much of the political science literature was mainly concerned with leadership styles and roles, elections and electoral behavior, political parties and political mobilization, etc., and did not relate these processes to the structural parameters within which they operated. Indeed, if in the decade of the 1960s lawyers tended to treat constitutions as static phenomena, in the decades of the 1970s and 1980s, scholars from other disciplines abandoned any attempt to examine African constitutions on the grounds that they bore but an obscure relation to governance and politics in the continent. But whereas there has been remarkable change in the way legal scholars now look at constitutional systems in Africa, among social scientists in general, academic disregard of constitutions remains the rule rather than the exception.

A number of perspectives have contributed to this distressing lack of interest in African constitutions. The first is primarily ideological and argues that the primary function of a constitution is to limit governmental authority and to regulate political processes in the state. This view, whose origin lies in the liberal democratic tradition, forms the backdrop of many arguments among politicians and academics about the “correct” exercise of power in Africa. According to this view, there can be no “constitutional” government unless mechanisms exist within the constitution for the supervision of these functions; further, such mechanisms must be erected on the doctrine of the separation of powers and the principle of limited government, both of which must conform to the theory that government itself ought, at all times, to conform to the rule of law.

A more important factor alluded to by Ghai and McAuslan is analytical: a totally inadequate conception of law and its relationship to power in Africa. To many scholars, the idea of law still connotes the existence of a determinate rule, founded on some perspective of value (whether individualist or communitarian), that provides a basis for prediction and evaluating authoritative decisions in specified circumstances. Constitutional law, concerned entirely (or so it is thought) with decisions that lie in the public domain, is, more than any other body of law, expected to be basic, rational, even fundamental, and therefore capable of withstanding pressures generated by the vicissitudes of political life.

Political developments in Africa since Ghana’s independence in 1957 have demonstrated repeatedly, however, that not only have constitutions “failed” to regulate the exercise of power, but, devastatingly, they have not become as basic as the analytical tradition scholars predicted: “few African governments have valued them other than as rhetoric.”

This situation has led to both a dilemma and a paradox. The dilemma is whether to abandon the study of constitutions altogether on the grounds that no body of constitutional law or principles of constitutionalism appears to be developing in Africa, and might well fail to do so; or to continue teaching and theorizing on the utility of constitutional values in the hope that state elites in Africa will eventually internalize and live by them. The paradox lies in the simultaneous existence of what appears as a clear commitment by African political elites to the idea of the constitution and an equally emphatic rejection of the classical or at any rate liberal democratic notion of constitutionalism.

The dilemma is, in my view, inconsequential, even false; the paradox, however, is both sufficiently manifest and intriguing to merit an examination to explain the contemporary patterns of constitutional development in Africa (or lack of them). Such an examination is all the more necessary since the paradox is essentially political, and not evidence as others think, of deliberate disregard of legal or “constitutional” processes *stricto sensu*. . .

Constitutions as Organized Power

The analysis of the paradox begins with a simple but important assertion: all law, and constitutional law in particular, is concerned, not with abstract norms, but with the creation, distribution, exercise, legitimation, effects, and reproduction of power; it matters not whether that power lies with the state or in some other organized entity. From this perspective, therefore, the very idea of law, hence of a constitution as a special body of law, entails commitment or adherence to a theory of organized power, as appears evident in the historical experience of power has become more predictable, and even legal-rational in Weberian sense, merely records the complexity of the relationship between power and law in different contexts.

A useful model for the analysis of any constitution, therefore, is to regard it as a “power map” on which framers may delineate a wide range of concerns: an application of the Hobbesian concept of “covenant” as in the American constitution; a basic constitutive process, as in the Malawi constitution; a code of conduct to which public behavior should conform, as in the Liberian or French constitutions; a program of social, economic, and political transformations, as in the Ethiopian (1987) or Soviet constitutions; an authoritative affirmation of the basis of social, moral, political, or cultural existence, including the ideals toward which the polity is expected to strive, as in the Libyan constitution. The process of constitution making, which involves, *inter alia*, making choices as to which concerns should appear on that map cannot be regarded as a simple reproduction of some basic principles that particular societies may have found operational. It is, as D. Elazar has noted, an “eminently political act.” which must draw on past experiences and future aspirations. An analysis of the African constitutional paradox must start, therefore, with an examination of the political origins of the idea of the constitution in the Continent.

The Nature of the Paradox

The precise form in which that paradox, commitment to the idea of the constitution and rejection of the classical notation of constitutionalism, has emerged over the last three decades requires a description.

The idea of and the necessity for a constitution appear fully established in the minds of state elites in Africa in at least two important senses. First, the constitution is an act without which the polity can have no legitimate or sovereign existence; it is of no small significance, for example, that the very first article of most African constitutions declare that each respective country is sovereign. In Africa, the idea that the constitution is “a means to demonstrate the sovereignty of the state” appears quite strong: in that sense, the constitutive value of some form of a constitution remains preeminent. It is notable that very few European and American constitutions make such declaration; sovereignty is assumed as the basis of constitution making.

Second, the idea of the constitution is firmly established as the basic law of the state. Since all African independence constitutions provide for some method of change, fundamental alteration, or even total abrogation (e.g., in the constitution of Swaziland 1968), the notion of a basic law in the African context entails no element of sanctity. What it does entail is minimum, and perhaps popular observance of the rules contained in the constitution.

The notion that a constitution is important as a basic law in the above sense underlies the amendments, the revisions, and the experimentation with non-Westminster models by civilian governments. When King Sobhuza II of Swaziland abrogated the constitution in 1973, he said that he had come to the conclusion, *inter alia*, that “the [independence] constitution has failed to provide the machinery for good government and for the maintenance of law and order, [and] that I and my people heartily . . . desire to march forward progressively under our own constitution guaranteeing peace, order and good government.”

Sobhuza was seeking a basic law more relevant to traditional Swazi values than was the Westminster constitution that brought his country into sovereign status. In 1986, the Sotho King, faced with a

military insurrection, proclaimed the need for basic law (Lesotho order 1986) to provide for the peace, order and good Government of Lesotho until such time as a new constitution better suited to the needs of the Basotho Nation shall have been agreed.

That law formally repealed the organs of civilian government and substituted for them bodies under the nominal supervision of the King but controlled by the military. The essence of commitment in a second sense, then, is to an autochthonous (or socially relevant) basic law. Nyerere formulated this essence forcefully as follows:

We refuse to adopt the institutions of other countries even where they have served those countries well because it is our conditions that have to be served by our institutions. We refuse to put ourselves in a straitjacket of constitutional devices-even of our own making. The constitution of Tanzania must serve the people of Tanzania. We do not intend that the people of Tanzania should serve the constitution.

This search for autochthony involves not only the rejection of external (specifically “western”) institutions and constitutional “devices,” but, more emphatically, the abandonment of the classical notion that the purposes of constitutions are to limit and control state power, not to facilitate it. A purely instrumental view of the purposes of a constitution, such as Nyerere’s, has guided elite search for the formal means by which to preserve the integrity of the “constituted polity” without being embroiled in a maze of constitutional law whose function, in classical theory, is to control and supervise constitutionality.

The Origins of the Paradox

The question to ask is how did African states get into this quandary? It is my argument that the answer to that question requires a careful scrutiny of Africa’s immediate past history; in particular, and appreciation of a number of historical legacies. The first legacy is the nature of legal (as distinct from constitutional) order that many of these states inherited at independence and perpetuated after it. Two characteristics dominated that colonial power and administration. The more visible was its labyrinthine bureaucracy; the other was its coercive orientation. Indeed, little distinction was normally drawn between the administration of those areas of public policy associated with state coercion, such as the criminal justice system or “public” order, and those that would normally be reserved to the domain of private choice, such as decision making on a subsistence farm; in both areas, control and coercion, not management and persuasion, were the hallmarks of the colonial legal order. . . .

The second legacy, developed fairly deliberately in the terminal phase of colonialism, was a highly fragmented political culture, which sought to institutionalize conflicts and to strengthen centrifugal forces rather than to nurture and cement national unity. Those conflicts and forces, generally organized around ancient claims, accrued rights, future demands, or matters that were peculiarly sensitive to race, religion, economy, and even geography were essentially divisive in character. In consequence, political parties entered the constitutional process as purveyors of irredentist ideologies, not as vehicles for the enhancement of such constitutional values as electoral sovereignty, majoritarian rule, or popular power. Fragmentation was an established style of colonial administration. Known in the British sphere as “divide and rule”, in the postcolonial state it enhanced the power of the bureaucracy and gave it complete dominance over public affairs. Indeed, the effective jurisdiction of the civil service bureaucracy in many of these countries soon extended beyond the traditional confines of administration to embrace policy decisions and reformulation. It is in the effectiveness of this bureaucratic machinery, monolithic and totally controlled by the executive branch of government, that part of the reason for the decline of multiparty government and the rise of the dominant (or one)-party state is to be found. The concept of civil service neutrality that African Constitutions in many English-speaking countries provided for was thus a “dead duck” *ab initio*.

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What is often ignored is that, as in other spheres of public life, independence expanded the role of the state. Indeed, colonial relations of production and, in particular, the processes of expropriation and expatriation of surplus value from the colonies to metropolitan centers could have been secured only with heavy reliance on state power exerted through the civil service bureaucracy; the colonial economy was the “managed economy” par excellence. The effectiveness with which this strategy worked to “develop” the expatriate sector of the economy at the expense of its indigenous counterpart was clearly understood and even admired by the elites who took over at independence.

The Nature of the Constitutional State and Power Realities

The origin of the paradox also lies in the nature of the state as “constituted” by the independence constitution, which was fundamentally different from anything the colonialists themselves had devised. This was particularly obvious in English-speaking Africa, where the constituted state was based on a remarkable distrust of centralized power. That distrust was not founded on any clear philosophy such as, for instance, the Hobbesian principle of limited government; it was based almost entirely on the need to exclude the state (as a centralized entity) from functions it had exercised before independence.

Two aspects of the constituted state were particularly disturbing. The first was the distribution of power in these constitutions; the second was the clear tension between that distribution and the rest of the legal order. In respect to the first, instead of the highly centralized power structure that the colonial authorities had operated for more than half a century, the constituted state was erected on a fundamentally flawed and fragmented distribution of power.

In the case of English-speaking Africa, that “power map” was based on a severely modified version of the Westminster model, complete with bicameral legislatures, separation of powers, judicial review of legislative and executive action, and a Bill of Rights distilled from the Magna Charta. In the case of French-speaking Africa, that map was based on the principle of constitutional tripartism as developed in the eighteenth century by Montesquieu and incorporated the provisions of the French Revolution of the Rights of Man and the Citizen of 1789.

Provisions were made in Mauritius, Kenya, Nigeria, Swaziland, and Zimbabwe, for the separation of powers between the head of State (the President) and the head of government (the Prime Minister), but this arrangement quickly gave way to a hybrid form of presidentialism unknown to western constitutional jurisprudence. Further, it was assumed, even though this was not expressly stated, that the constituted state would operate on a multiparty style of “democracy.” An assumption derived from provisions of the Bill of Rights guaranteeing freedom of association.

What was disturbing about the power maps described above was not that they were not “democratic”: in the western liberal sense they were. It was, first, the rationale for them that was the problem. Whereas institutions such as federalism (Nigeria and Uganda), regionalism (Kenya), constitutional monarchy (Swaziland and Lesotho), chieftaincy (Zambia and Zimbabwe), and of course Bills of Rights have been used throughout history in appropriate contexts as the primary media for the socialization of politics and power; no such value-specific function was the reason for their presence in independence constitutions. For at least a decade after independence, these institutions essentially were operated as mechanisms for the entrenchment of interests that had accrued by reason of the exploitative nature of the colonial process itself.

Having seen the efficiency with which control of state institutions had enabled the colonial elite to convert the “national” economy into some kind of private estate, the African elites regarded as sabotage any suggestion that there should be any “withering away” of state power in the domain of public (including economic affairs). For some of these elites, control of the instrumentalities of state power was the key to development in the postcolonial state.

Another disturbing aspect of the new constitutions was their relation to the rest of the legal order. As the basic constitutive act provided for the continuance of the colonial legal order as the residual law of the

independent state, it was necessary to ensure that a mechanism was available for the resolution of conflicts between the constitutional order and the rest of the legal order. Invariably the first or second Article of the Independence Constitution declared the former the supreme law of the land and stated that “if any other law is inconsistent with [the] constitution, that other law shall, to the extent of inconsistency, be void.” The intriguing thing is that it was the rest of the legal order, not the constitutional order, that offered African elites real power and the bureaucratic machinery with which to exercise it effectively.

In these circumstances it was always tempting to “opt out” of the constitutional order, the more effectively to manipulate the legal order whenever exigencies demanded it. Indeed, the constitutional order often appeared precariously perched on the legal order and the actual power structure, without the creative and rationalizing normativity that Kelsenian positivists would have expected. The potential for subverting the constitutional order through “legitimate” exercise of bureaucratic power was present, *ab initio*, and almost limitless. . . .

The Development of the Paradox

The actual process of “subverting” the constitutional order in the sense suggested above took a number of forms. The most notorious was the coup d’état that did not merely involve “opting” out of the basic law, but often its total abrogation. Another form was a cavalier disregard of constitutional niceties and processes: the postponement of election results (Lesotho 1970), the declaration of no contest against certain election candidates (Zaire 1983), etc. The more interesting for our analysis was the move by state elites in a number of African countries to politicize the constitution, initially by declaring it a liability, and subsequently by converting it into an instrument of political warfare.

The Constitution as a Liability

The argument that the independence constitutional order was the state’s most serious liability was carried to the public in the rhetoric of the need for rapid economic development. It was argued that a fragmented power structure would pose severe drawbacks to central planning, financial coordination and the formulation of policies on important matters such as health, education, and agriculture. It was also argued that the constitutional order sought to frustrate the goals of equity and faster delivery of services which the fact of independence, *per se*, was exposed to facilitate; by focusing mainly on the loci of power, it had failed to resolve the important ideological issue of how to locate people’s expectations and aspirations within its compass and permitted the importation of “undesirable political practices alien to and incompatible with the [African] . . . way of life.”

The last of these arguments, although made most explicitly and forcefully by king Sobhuza II of Swaziland, has been echoed in Tanzania, Zambia, Zimbabwe, Lesotho, Kenya, and the Central African Republic over the last quarter of a century. But prosecuting that argument under the new constitutions was difficult, not least because of the severe restrictions placed on mechanisms for reconstitution. Much rhetoric was spent on exposing the absurdity of the constitutional order; for example, it was often stated, with some justification, that structuring the apparatuses of the state around minority protection rather than majority expectations was inherently absurd. In Kenya and Zimbabwe, state elites succeeded in convincing “minorities” that the popular will was by no means a dangerous externality. (In Zaire, Malawi, and Zambia, minorities, including opposition parties, were simply harassed into submission.) Once that happened, as it did in Kenya in 1964 and more recently in Zimbabwe, those elites moved swiftly toward the creation of a tidier political and administrative landscape by removing all restrictions placed on the ability of the center to change the constitution (amendment procedures et al.!) and by making prolific use of the resulting flexibility.

The Constitution as a Political Instrument

With a tidy landscape before them, state elites then proceeded to insert new devices whose purpose was to recentralize power as it had been under colonial rule. Four main devices were used; the first was the extension of appointive and dismissal authority of the chief executive to all offices in the public service: civil, military, and “constitutional,” such as those of judges and attorneys-general; in 1986 Kenya joined Swaziland, Tanzania, Malawi, Nigeria, Zambia, Sudan, Ghana, Gambia, and Sierra Leone, among others, in vesting in the President the power to dismiss that officer. The second was the subjection of political recruitment at all levels (local, municipal, and parliamentary) to strict party sponsorship, the more effectively to monitor commitment to retinue values. In a large number of countries including Kenya, Tanzania, Malawi, Zaire, and Zimbabwe, this particular device has led to a rapid transition toward the dominant or one-party state. In Swaziland, King Sobhuza’s proclamation of the abrogation of the constitution included dissolving and prohibiting “all political parties and similar bodies that cultivated and bring about disturbances and ill feelings.”

The third device was the expansion of the coercive powers of the state by allowing extensive derogation from “Bills of Rights” wherever these were justiciable. This expansion was usually accomplished by the removal (or weakening) of parliamentary supervision of emergency powers, and then by so subjective a redefinition of the conditions under which those powers could be invoked that any meaningful inquiry into the bona fides of any particular action was excluded. The fourth, and perhaps most interesting device, was to ensure that the constitutional order conformed to the inherited legal order; this device was often preferred whenever conflicts arose between the provisions of the constitution and those of specific legislation. The most recent use of this device took place in Kenya, where the constitution has now been amended *inter alia* to reflect the full complement of powers already being exercised by the police under penal and public security legislations.

As these and other devices found their places within the “constitutional” framework, so did the view that the constitutional arena, if properly controlled by the state elite, offered a more efficient and effective environment for the resolution of political conflicts than even the party and certainly the electorate at large. Indeed, by translating a political option or decision into a constitutional device or norm, state elites gained the added advantage of passing on the problem of enforcement or supervision ultimately to the judicial arm of government. A run to amend the constitution to deal with a political crisis became increasingly attractive as a method of reestablishing equilibrium within the body politic.

. . . [T]he constitutional order became not an arbiter in the power process but a crucial element in political warfare, and instrument of and from the appropriation of power. The Constitution lost most of its claim to being the basic law of the land, the arbiter in the power process. State elites then revised the domain of administrative law so as to reserve to themselves full and unfettered discretion over public affairs; this was done, *inter alia*, by strengthening all aspects of public order law: security, meetings, police powers, processions and marches, aspects of licensing. . .

Reconstituted States

Three aspects of the reconstitutions of most African states stand out as the clearest evidence of that result. The first is the emergence and predominance of a form of imperial presidentialism, the second is a perceptible shrinkage of the political arena and the third is the preeminence of discretion as the basis of “constitutional” power.

The Rise of the Imperial Presidency

The fusion of executive power in a single individual was perhaps inevitable in the historical process of redesigning the state in Africa. The fact that state elites chose to concentrate almost exclusively on the issue of power, *per se*, has produced a new style and mode of leadership unprecedented in contemporary history. . . [T]he African presidents do not claim any divine right to rule, do not demand

obsequiousness from the public at large, and are, at least in point of theory, constitutionally subject to popular accreditation. However, the indices of imperium, the exclusive constitutional right to direct the affairs of state, are quite clear.

The first of these is the supremacy of the office of the President over all organs of government. The semblance of separation of powers that remains is, at best, of administrative significance only; indeed, the extent of administrative autonomy, if any, of the legislature, of judiciary vis-à-vis the office of the President varies, in some countries, with the specific matter at issue. Although supremacy of the presidency over the legislature is usually indirect (the latter is not constituted by the former), its effectiveness is exercised through the (dominant) political party.

The second index is the immunity of the President from the legal process, civil and criminal, as long as he remains in office. There are two consequences of this immunity. The purpose, as Nwabueze has pointed out, is the protection of the dignity of the office rather than of the holder per se. What is interesting, however, is the political interpretation that state elites in Africa have placed on this immunity: a President is “above” the law. He cannot be sued, nor can his decisions be challenged, in court or elsewhere. The second consequence is the protection of the President against abuse, slander, and other forms of disparagement; here the general approach both in law and practice has been that if a President is thus “above” the law, he should not be subjected to the indignity of having to seek personal redress in his own courts. Consequently, the ordinary law of libel and slander is irrelevant. The practice is to “criminalize” any utterance or conduct deemed to be disparaging to the reputation of the presidency or to its occupant; for this purpose, most liberal use has been made of public order law, especially the inherited penal codes. Thus, the immunity of a President is safeguarded, and all criticism, whether legitimate or not, is censored.

The third index of imperium is the indefinite eligibility of a President for reelection; the reasons for it are several. The first has to do with the mystique and sanctity surrounding the public image of the founder president; although such figures are now few and far between, this attitude seems to have passed on to second or even third generation civilian and military leaders. ...

The third reason inheres in the argument that political and economic stability requires continuity in leadership at the top. The institutions do not matter as much as those who are ultimately responsible for the destiny of public affairs. Provisions limiting the tenure of office of the President have never been, nor are they likely to be, successful.

The fourth index of imperium is the high degree of paranoia that tends to surround the exercise of executive power in Africa, a special characteristic of military regimes, but not limited to them. This paranoia is perhaps most visible in the high attrition rate found among political functionaries and public service bureaucrats in many governments. This potential for attrition, a technique usually orchestrated from the presidency, has several important consequences: it creates tremendous uncertainty within the channels through which presidential power is exercised; it generates a concern for survival within those channels that translates easily in to sycophantic behavior toward the presidency; and it identifies the presidency as the only source of final redress even for the simplest of problems. These consequences may ensure a relatively high degree of loyalty to the presidency and its occupant, but they are also the reasons why the presidency in Africa usually tends to “overreach” itself, both in political decisions and in public utterances.

The Shrinking Political Arena

The arena of Politics in any country ought, at least in theory, to be open to any citizen, especially if qualified, under the law, to vote. The mechanisms for participation in that arena may vary, but it is generally accepted in all known political systems that the most important is the political party. The argument is that only through political parties can citizens effectively communicate their demands, articulate their interests, recruit persons qualified for elite roles including that of the chief executive,

and, in general, be mobilized into action or socialized. In Africa, however, the reconstitutions have recast the political parties into different kinds of instruments; instead of expanding the arena of politics in any or all of the above ways, political parties have been used to shrink it.

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When as often happens in one-party presidencies, the Chief Executive is also the *de jure* (or *de facto*) leader of the Party, the political arena may shrink even further, skillful manipulation of the Party machinery can easily shift its entire mandate to the presidency. The presidency, rather than the Party of the citizenry at large, then becomes the instrument to define the ideology to the state, to effect disciplinary control of party rank and file, to initiate or terminate public debate on important matters of national policy, and to recruit persons considered qualified for the performance of elite roles. In countries where the Party also controls other pressure groups such as women's organization, trade unions, or employers' associations, the shrinkage can be debilitating, affiliation implying absorption.

This power of the party excludes the citizenry at large from any meaningful control over the conduct of government; with respect to the legislature, that shrinkage means that the electorate may be totally excluded from the determination of parliamentary (or similar assembly) membership In the one-party presidencies, party membership has become essential for entry into and for maintenance of legislative roles at local and national levels; these roles can be terminated through simple expulsion from the Party....

Discretion as the Basis of Power

The most liberal of jurists will concede that though the essence of constitutionalism may lie in the limitation of arbitrary power, "the limiting of government . . . is not to be the weakening of it. The problem is to maintain a proper balance between power and law." The rise of an imperial presidency and the shrinkage of the political arena as a result of the entry of political parties in the constitutional process both point to the fact that in Africa, the issue of power and law has been resolved, for the time at least, in favor of power. Therefore, the legal basis of executive power (if this must be found) is to be sought in the domain of administrative law, which, it is worth recalling, was and remains a complex maze of highly structured and coercive instruments. What the reconstitution added to this complex was a degree of discretion that even courts sometimes found difficult to circumscribe. Discretion as a basis of power is most visible in the ideology and operation of national or public security legislation.

The operative concept of national or public security was kept deliberately fuzzy. Such fuzziness is not only an African problem; what is peculiar to Africa is the breadth of that concept in security laws. A typical definition is to be found in Kenya's Preservation of Public Security Act, which is so generous that one could say that the definition says no more than that "the preservation of public security means whatever the authority to invoke security powers says it is." Indeed, courts in some African countries have so decided.

That breadth of definition is perhaps to be expected given the nature of the state in Africa. As J. Boli-Bennett points out, as it is the state that enacts law and determines whether that law confers sufficient power for its purposes, one must expect the state to frame the law in a manner most favorable to its proclivities. With respect to public security law, the more centralized and coercive the state is, the more loosely defined will be the operative concept itself.

The most important point is that in an ever-increasing number of African countries, security powers can be and often are exercised without recourse to a declaration of emergency. All that is required in Kenya and Malawi, for example, is for the relevant authority to indicate by gazette notice that in his own subjective judgment, sufficient grounds exist for the exercise of those powers. As long as such a notice is in effect, a whole set of measures, ranging from indefinite detention without trial, restriction of movement including the imposition of curfews, press censorship, to suspension of any legislation (other

than the Constitution and the enabling Act itself), may be taken; in practice, gazette notices are never withdrawn. As a result, security powers are permanently available and exercisable. An important consequence of this is that the boundaries between security powers, *stricto sensu*, and ordinary criminal law are often blurred.

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What Price Constitutionalism?

The more important question is: What will it take to develop a tradition of constitutionalism in Africa? Although broad agreement exists on the essence of constitutionalism, fidelity to the principle that the exercise of state power must seek to advance the ends of society, the attainment has not been an easy matter. The political history of many societies is replete with struggles for an optimal balance between the few on whom constitutions confer power and the vast majority for whose benefit it is supposed to be exercised. What is clear is that in no society has that balance been achieved through the promulgation of a constitution, *per se*. Nor has it been achieved simply by cultivating the "correct" attitude toward a constitution as Nwabueze suggests.

More important reasons explain why that balance has not been achieved in Africa. The most important of these is the socioeconomic condition of the continent itself. That is a most dismal one. Some years ago, the Economic Commission for Africa (ECA) said, "the African region is most seriously affected by the burden of underdevelopment... mass poverty, unemployment, social unrest, disease, hunger and ignorance continue to plague the region."

The effect of these circumstances on the politics of the constitution is that contemporary elites in Africa are preoccupied with the perfection of ways, means, and techniques of their own survival and the expansion of opportunities for private accumulation. These conditions and this preoccupation are most unhealthy for the growth of constitutionalism with any model; indeed, it is doubtful whether power, at any level, can ever be fully socialized in conditions of poverty and underdevelopment.

What then will it take to develop a tradition of constitutionalism in Africa? I am inclined to the view that Africa is destined to experience struggles and disappointments similar to those through which the older political systems went before viable mechanisms for the control, supervision, and accountability of power can be developed and internalized. That may be a severe position to take; but what it says is that history cannot simply be learned, it may have to be lived as well. Constitutionalism is the end product of social, economic, cultural, and political progress; it can become a tradition only if it forms part of the shared history of a people.

Questions and Discussion

1. What do Ghai and McAuslen mean by the mistake of treating constitutional law only as an affair of rules? What should the scholars have done in addition or instead?
2. Okoth-Ogendo laments that Political developments in Africa since Ghana's independence in 1957 have demonstrated that constitutions have both failed to regulate the exercise of power and also have not become as basic as the analytical tradition scholars predicted, and that most, if not all, African governments have valued them as rhetoric. Do you agree with this position? Do you think anything has changed over the last decade or so in this matter? Do you see any parallel between Okoth-Ogendo's and Giovanni Sartori's analysis that we have considered earlier?
3. What is it that Okoth-Ogendo describes as a "paradox" of the African political reality? Is it indeed a paradox? Or is Okoth-Ogendo exaggerating the situation?
4. Okoth-Ogendo says that Africa's colonial legacy of the nature of legal (as distinct from constitutional) order that many of the African states inherited at independence and perpetuated

afterward which was dominated by labyrinthine bureaucracy and coercion is at least partly to blame for what Africa has become today. Do you find this argument tenable? Can we explain any part of modern Ethiopian political history by this mishap as well?

5. How does Okoth-Ogendo explain the conflict between (and the reason for) the post-independence constitutions and the rest of the legal order inherited from colonial administration in Africa?
6. Discuss Okoth-Ogendo's thesis of constitutions as a liability and as an instrument. Do you agree with his characterizations of the mechanisms used by African power elites to turn a constitution into a political instrument? Do you think his analysis holds true for today's political dispensations in Africa?
7. Read Okoth-Ogendo's description of the indices of imperial presidency in Africa again. Do you think all of these indices are prevalent in Africa as we speak? What has changed? And what has not?
8. The reasons for the early post-independence change of constitutions, for example in Swaziland and Tanzania (by Julius Nyerere), were that the constitutions enacted in consultation with the departing colonialists did not reflect African traditions and modes of governance. Is there some truth in that argument? Re-read Okoth-Ogendo and reflect on that.

Mahmood Mamdani, "Social Movements and Constitutionalism: The African Context," in Douglas Greenberg, et al. (eds.), *Constitutionalism and Democracy: Transitions in the Contemporary World* (Macmillan Publishers Ltd., 1993). Endnotes omitted.

Are human rights a western invention? Is the very conception and accompanying notion of constitutionalism, a legal process that sets definite limits on the exercise of political power, specifically inventions of the seventeenth-century enlightenment philosophers, and ideological products of the French and the American revolutions? And thus, is any talk of human rights in Africa tantamount to a mechanical import of a western bourgeois ideological conception without the struggles and the relations that gave rise to it in the first place? Without the experience of sickness, there can be no idea of health. And without the fact of oppression, there can be no practice of resistance and no notion of rights. "Nothing sensible or pertinent can be said about human rights," writes the philosopher Paulin Hountondji:

if one ignores this daily, universal fact of revolt. Only those aware of rights infringed and dignity flouted can be indignant. Only by remaining silent about this commonly experienced fact, or by considerably reducing its implications, is it possible to make human rights an invention of Western culture.

With oppression, and Europe had no monopoly over this phenomenon in history, there must come into being a conception of rights. This is why it is difficult to accept the idea, even in the case of Europe itself that no notion of human rights existed prior to seventeenth-century enlightenment philosophy. . .

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Some remarks on the Western Tradition and Contemporary Africa

De Tocqueville remarked on the difference between the American and the French democratic tradition, underlining the contrast between democracy as a stabilizing and conservative force in the United States, and as a revolutionary and destabilizing force in France. What de Tocqueville termed "democracy in America," however, was the core of republican thought and practice in the United States, a body of thought that in fact evolved in contradistinction to popular conceptions of democratic practice.

A central concern of the mainstay of that republican thought was in fact to place legal limits on democratic political practice, in the process separating law from politics, seeking to keep political questions out of the courts and legal questions out of politics. The point was to set parameters on *popular sovereignty*, and thus on the right of the majority to transform society, by the *rule of law*, which formulated the inviolable rights of the minority in reference to that majority, or of the individual in relation to the political (state) power. The dominant conception of the rule of law forbade the majority from appropriating the property of the minority. This contradiction is expressed in the language of the

rights, between *natural rights* to transform society and *vested rights* that remain judicially enforceable, or, in the language of the law, as a contradiction between the public law model based on the *rights of the citizen* and the private law model based on the *rights of property*.

Whereas in Western Europe the rule of law was seen as a check on an arbitrary and capricious royal power, in the U.S. tradition it emerged as a limitation on popular sovereignty. The point is that the historical routes to the rule of law and a concept of constitutionalism are several and contradictory. The terrain of constitutionalism has never been and cannot now be an uncontested one. Surely, a conception of the rule of law that arose in response to arbitrary state power was potentially part of the agenda of movements anchored in popular social strata. On the other hand, an alternate concept set the rule as a limit on the exercise of popular sovereignty, particularly as it affected the right of property. It is in this sense that I hope to show that the discourse on human rights and constitutionalism in contemporary Africa should not be seen as a settled issue.

Africa and the Politics of Human Rights

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In relation to those countries where the Soviet Union was beginning to be the dominant military and political influence, such as Ethiopia, the emphasis on human rights made for a sharp and relevant ideological critique of Soviet practice. It highlighted the fact that Soviet talk of social rights was not an attempt at building on and thus enriching the minimal foundation of political rights, but was in fact a demagogic attempt to displace any discussion of political rights. For the fact was that Marxism on the African continent was no longer simply an ideology of struggle; in the Soviet version, it was also now a state ideology. As such, Marxism was no longer formulated around a conception of class struggle, but around “the primacy of productive forces,” in the process redefining socialism as the development of productive forces minus the class struggle. In the Soviet conception of Africa’s future, there was room neither for democracy nor for human rights; and this much the new U.S. offensive on human rights highlighted effectively. The human rights offensive also had an important *political* objective, of particular significance in the southern African situation. In a context where the balance of forces was rapidly changing, it was an attempt to reorganize the ruling bloc from above, to prune its worst elements and to bring into its fold the most palatable sectors from the popular movement. The point was to effect a transition from above that would reform but not replace the existing power bloc, while at the same time paralyze and cut off embryonic revolutionary initiatives. Therefore, the strategy was adopted in, for example, Zimbabwe and Sudan to preempt revolutionary developments, although such political initiatives were not confined to the African continent. Emphasis on a democratic transition from above has characterized the U.S. response to a number of potentially revolutionary situations; the Philippines and South Korea in Asia, Haiti in the Caribbean, and above all, of course, in South Africa.

Does this mean that the human rights movement is in reality an imperialist Trojan Horse? No! It is in reality a contested terrain. For the fact is that the political situation on the African continent is extremely uneven, exhibiting sharp contrasts, potentially revolutionary situations, and situations where repression threatens stability. The significance of reform movements cannot be the same in both contexts. In the former, reform may be the cutting edge of a political program designed to undermine revolutionary initiatives; in the latter, the struggle for reform could just as easily be the opening phase of a struggle against the forces of repression.

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The State and the Peasantry

The colonial state in Africa was sharply divided between the colonizers and the colonized; and, except in settler-dominated Africa, between urban and rural areas. The state that confronted the European population in the towns and cities was organized along liberal bourgeois lines. It was structured with a clear demarcation among the administrative, the judicial, the legislative, and the executive, respecting the principle of division and balance of powers, so crucial to the practice of rule of law. In the no-settler colonies that existed in most of east and west Africa, this liberal colonial regime was gradually extended through a series of reforms, which were responses to a series of struggles, to immigrant minorities (of Indian and Lebanese origin mainly), and then to native middle classes.

There was, however, nothing liberal or bourgeois about the organization of state authority in the rural areas. The state power that originally confronted the entire “native” population, and later, the mass of the peasantry, was organized along pre-bourgeois lines. Power was fused in the person of one individual; the chief. It is the chief who enumerated the property of the peasant, assessed the tax, collected it, heard his appeal if the peasant felt he had been unfairly assessed, arrested him in case of failure to pay tax, jailed him on arrest, and released him on expiry of the term of arrest. Although presented ideologically as a continuation of “traditional” pre-colonial authority on the continent, an examination of the division between clan and administrative authority in most pre-colonial African state systems reveals this claim to be hollow.

The personalized and fused political authority was not an overnight, or just a detail of the colonial system. It was in fact the heart of it, since it was the seat of a series of extra economic relationships through which the peasantry was systematically exploited. The I.M.F. notwithstanding, the exploitation of the peasant occurred only in part through market relationships. The rest (which could often account for a larger share of the surplus appropriated from the peasantry), was the result of a galaxy of relationships that required an element of force to be implemented and to be reproduced: forced crops, forced sales, forced contributions, forced land enclosures, and forced labor. In many parts of Africa, including the so-called radical states of Tanzania, Ethiopia, and Mozambique, one could argue that this state of affairs has deteriorated. Under the guise of ideological purification and the superiority of moral incentives, what has occurred is an intensification of the extra economic exploitation of the peasantry; state authority is now redefined as state-party authority, and its on-the-scene representative is called a “cadre,” instead of “chief.” But then, in context and redefined as a strategy for economic development, the result could be none other.

The same dual organization of state authority—one rural, confronting the peasantry; the other urban, dealing with the rest of society—could be seen in the organization of the ministerial structure in the capital city. The service ministers of health, education, transportation, etc., usually took responsibility for services in the urban areas only. A clear distinction existed between education for the peasantry (primary) and for the propertied state (post primary), as between health for the peasantry (pre-hospital) and for the propertied (hospital), and between rural roads (feeder roads) and the main arteries; the functional ministries directed their resources to services for the urban population and the propertied classes. Services for peasants and administration over them was fused in a single ministry; usually known as the Ministry of Local Government in independent Africa and as the Ministry of Bantu Affairs in apartheid Africa. The point to note is that state organization in independent Africa is a structural continuation from the colonial period.

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. . . In the present context of Africa, a general movement toward constitutionalism and the rule of law that calls for a reorganization of state structures so as to institutionalize the principle of the division and check of powers must be welcome as a step toward democratization. But it cannot be assumed that a legal system operated by legal professionals will ensure that the rights of the peasantry are protected, since this will depend on the balance of political forces and the nature of the process that leads to this

reform. In other words, the actual institutional guarantee for the defense of rights will depend on how the question of power is settled.

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The State and the Middle and the Working Classes

. . . A dominant characteristic of this struggle [in Africa] is a distinction between rural and urban protest. Thus, from the Ivory Coast and Senegal on the west coast to Kenya and Zambia in eastern Africa, what has come to be known as the “democratic movement” is primarily an urban affair. It is a movement whose thrust is shaped primarily by the activity of the middle and working classes.

The human rights activity of these classes is specific, shaped in each instance by concrete historical experience. Both the nature of its demands and its varying perspectives elude easy generalization. I shall try and underline this point by contrasting the rights activity of the middle and working classes in contemporary Uganda.

In the 1980s, broad sectors of the middle classes rallied around the demand for free expression, concretely formulated as a call for press freedom. More than the right to form political parties, it was this right for a free press—for independent sources of public information and for a public forum for a public discussion of public policies—that caught the imagination and organized the energies of broad sectors of the middle class in their struggle for rights. Why was there not a similar enthusiasm for the defense of the right of political organization?

Because large sectors in society, and not only in the middle classes, have come to understand politics as a profession, not as a popular political activity; as a profession, it is seen as a way of making one's living and of looking for an opportunity to enrich oneself when possible. Political parties are thus seen as associations of professionals called politicians, which make a clear distinction between their own corporate interest and that of their members on the one hand, and the interest of their constituencies on the other. In normal times they excel in building ever larger constituencies through demagogic appeals to high principles or broadly held prejudices; when it comes, however, to situation of confrontation between state authority and their constituencies, these politicians are naturally loath to risk their future careers in the name of some vague and higher general principle. Such, in brief, is the cynicism with which broad sectors of the middle class view the standard careerism and the occasional opportunism of politicians of different stripes. No wonder that a demand for the right of political party activity has a far narrower audience within middle-class circles than does any call for press freedom.

What is the historical experience of both the press and political parties that gave rise to such a judgment? An active press came into being in Uganda after the fall of the Main regime in 1979, when a loose coalition of diverse parties and groups, called the Uganda National Liberation Front (UNLF), ruled the country. At the time, effective power lay in the hands of the Tanzanian army, which had defeated the Main forces in an intensive war; the government machinery was run by different factions of small exile groups, each group turning to the press and to recruiting armed militias in preparation for the next round of battle. Thus, the press freedom of the UNLF days was a sign of the reality of a political vacuum, of a postponed confrontation, not a historical gain of any sector of society.

Press freedom did become the stuff of political struggle in the coming period. As guerilla war raged in the countryside, the urban middle classes rallied around broad sectors of the intelligentsia in a struggle for more information and more discussion. This struggle developed through the press, through institutions of higher learning (including the university), and through the schools. For the urban population, the opposition political parties could offer little by way of resistance beyond an occasional press conference. But, newspapers, like *Weekly Topic* and *Munasi*, magazines like *Forward* and university-based forums like *Mawazo* became the fora of public criticism of the regime and a public discussion of the necessity for an alternative to dictatorship. Following the Lutwa coup of July 1985, the military regime imposed a military censor on the press, and important sections of the press, led by

Weekly Topic, openly and publicly defied the censor, becoming the spearhead of urban middle-class resistance to the military dictatorship. With the victory of the guerilla struggle in 1986, it was this press that became the first effective barrier in the path of hegemonic tendencies within the ranks of the guerilla movement. For the fact was that press freedom was not the gift of government from above; it had in fact been won through struggle from below. In the late 1980s, Uganda and the Sudan had the freest press in eastern Africa.

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It is worth noting that the tendency for regimes in Africa to want to monopolize organizational initiative, and the corresponding denial of the right of self-organization to social groups, has usually been expressed in the language of radical politics, as a call for “national unity” against “imperialism” externally and “sectarianism” internally. However, the extent to which this tendency has prevailed has depended not just on the aspirations of ruling power but also on the organizational strength of popular classes in society. Contrast, for example, the experiences of Libya and Egypt. In both countries, a coup against a foreign-backed quasi-medieval monarchy took on the dimensions of a national rejuvenation. The anti-imperialist credentials of both post-coup regimes combined with an antidemocratic orientation that denied social groups independent self-organization. Despite this similarity in the origin and orientation of the Nasser and the Qaddafi regimes, the results of the two coups were hardly the same. In Egypt organized sectors of the middle and working classes stood for the right of self-organization and checked hegemonic tendencies within the military; in Libya, hardly any effective check on the militarization of society existed. The capacity of a victorious political movement to transform itself into a hegemonic force that denies all other sectors of society the right to organize autonomously, can also be seen in Tanzania and Ethiopia. By contrast, we can see in Egypt, Uganda, and the Sudan the capacity of important sectors of urban society (the middle and working classes) to stand for the right of self-organization.

Ironically, the capacity of popular classes to defend their rights is often at its weakest in countries where the political (state) power has been reorganized as a result of a protracted armed struggle. For the very fact of an armed struggle is evidence of both the limited development and the organizational weakness of sectors of the so-called “civil society.” A successful armed struggle is more likely to exacerbate than to militate this contradiction: for to be successful, it must bring together the best of the elements from various social sectors; yet on victory, the armed struggle reorganizes the state, and only then develops an agenda for social change. If this reorganization is combined with a perspective that sees in democratic demands nothing but a demand for “bourgeois” rights, nothing but fresh evidence of “counterrevolution” rearing its ugly head under new conditions, it is likely to leave popular sectors in society even weaker than before. Mozambique ought to be a warning. There, the democratic phase of the national revolution was cut short, and the dynamiting groups dissolved when, through an act of sheer will, the front for the Liberation of Mozambique (FRELIMO) passed a conference declaration “transforming” the “national front” into a “proletarian party,” and the state power into a “proletarian dictatorship.”

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Questions and Discussion

1. Explain Mahmood Mamdani’s notions of “republican thoughts of democracy” and the popular version of democracy.
2. How does the author respond to the question of whether human rights are a western idea, alien to the African culture or not?
3. Discuss Mahmood Mamdani’s suggestions for reconsidering an approach to state-ism and constitutionalism in Africa. Are these workable or not ?

Yash Ghai, "The Theory of the State in the Third World and the Problematics of Constitutionalism," in Douglas Greenberg, et al. (eds), *Constitutionalism and Democracy: Transitions in the Contemporary World* (Macmillan Publishers Ltd., 1993). Endnotes omitted.

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There is a danger in this method of drawing unwarrantably sharp contrasts, and of romanticizing the Western experience. I hope I can avoid this danger by focusing on those features of the Third World state that both distinguish them from and ally them to the western states. The primary assumption underlying my approach is that to understand the dynamics and function of constitutionalism, one has to uncover its social and economic bases, and thus transcend the formal boundaries of the law. Legal theory needs to be enriched by sociological perspectives and enquiry.

Although in the writing of this chapter I have drawn greater inspiration from Marx than from Weber, I have used a dichotomy of Weber's (legal-rational/patrimonialism) to elucidate one of my principal points. It is well known that the notion of the rule of law is associated with a mode of nomination and legitimation, the rational-legal, that Weber regarded as central to the development and functioning of the modern state. The authority of state action is founded in the law, which also provides the basic framework for the institutions and the operation of the state. No one is above the law, which is itself purposive and rational, the produce of human deliberation. The principal instrument of the state is the bureaucracy, recruited on the basis of merit and expertise. Its neutrality and impartiality are insured through an independent method of recruitment and promotion as well as by fidelity to the law. The constitutions of most Third World countries promulgated on independence conformed to this pattern, establishing the supremacy of the constitution, the neutrality of the public service, and the independence of the judiciary.

Patrimonialism is a different mode of domination. It is a form of personal rule, which does not tolerate opposition. Administration is based on the total power and discretion of the ruler. The bureaucracy is an extension of his household, and to which he delegates its powers. Officials owe their appointments to his trust and goodwill. There is no clear separation between the private and public spheres of the ruler. He is above the law, as are his officials, and dispenses justice; petitions to him for clemency and generosity substitute for legal writs. The ideological superstructure of such domination is the goodness, generosity, and concern to the ruler for his people. He is the "father of the people," the father of the nation.

I argue that in many Third World countries the trend has been toward the patrimonial form of rule and away from the rational-legal. I offer some explanation of why this shift has occurred. The rational-legal model (as well as its accompanying ideology) is not completely superseded but coexists with the patrimonial. The trend has fundamental implications for constitutionalism and the status and role of rules.

The Absence of the Rule of Law

It is unnecessary to argue that on the whole the record of most Third World governments on human rights is dismal. Overwhelming evidence of the gross violations of law on the part of governments and officials; arbitrary and capricious exercises of power are frequent; there are many detentions without trial (and occasionally torture of detainees); massive direct or indirect censorship is obtained and it is difficult to exercise the right of association if the government does not like the officials or the purposes of the association; succession to office is seldom the result of elections; judiciaries are weak and some are compliant. One person or one party rule dominates the political system of most of these countries. The denial of human rights is part of the wider spectrum of undemocratic and authoritarian rule.

There is, despite occasional outward forms of liberal constitutional guarantees and institutions (mostly remains from the period of decolonization), an absence of constitutionalism and the rule of law. By these terms I mean a constitutional system in which the powers of the government and the legislature are

defined and limited by the constitution, which enjoys the status of fundamental law, and by which the courts are authorized to enforce these limitations through various forms of judicial review that can be initiated at the request of any party that feels aggrieved by the law or executive action. The authority for executive action, even that of the president, must be based on laws; this does not preclude the vesting of discretionary powers in executive authorities, but the law must establish the purposes for which discretionary powers may be exercised, and the actual exercise of the discretion must be fair and reasonable. In general, the law must provide for the equal treatment of all persons.

So defined, the rule of law is synonymous with democracy; indeed, in historical terms it preceded democracy. It is sometimes argued, even now, that democracy, based on the principle of majority rule, is incompatible with, or at least is in tension with, the rule of law, premised on certain closures of legislative and executive action. On that basis the rule of law is attacked for its conservative bias, and is contrasted with the dynamic mission of democracy. This is not the place to debate these issues, particularly on the consequent question of whether the priority in the Third World, particularly Africa, should be democracy or the rule of law; my own view is that modern notions of the rule of law have become suffused with democratic values and practices and that, in the contemporary African situation, the rule of law, far from being threatened by democracy, cannot be sustained without it. For the present, my purpose is narrower, to understand why it has been so difficult to establish a system of domination and administration that operates primarily through rules that define the scope, purpose, and procedures for the exercise of public power, and to explain the social forces behind the constitutional forms of these states.

Various explanations have been offered for the absence of the rule of law and constitutionalism in Africa: the colonial heritage of authoritarian government, the engagement with the international economic system, the low level of development, the pull of ethnicity, the immaturity and greed of its leaders, and people's lack of consciousness of rights. No doubt there are elements of truth in these explanations, but they do not go anywhere near the heart of the matter; and do not significantly help us to understand why it is so difficult to achieve or fight for human rights in Africa. I will argue that neither the substance nor the ideology of the rule of law is necessary to governments and their economic systems in Africa, and that an understanding of its role can be complete only if we pay attention to the processes of accumulation and reproduction in Africa and to the central role of the state in them.

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Decolonization, Constitution, and New Politics

For a variety of reasons, countries emerging from colonial rule did so with constitutions closely modeled on those of the west. Whether they provided for parliamentary or presidential systems, they separated powers and personnel, diffused power through federal or regional devices, limited the scope of legislative and executive power by human rights, and separated religion under the state. A variety of devices protected minorities, and judicial review safeguarded the supremacy of the constitution. During the early years of decolonization, there was great faith in the ability of constitutions to settle the problems of new nations; later, considerable cynicism set in, and few, even those who participated in its preparation, believed that constitutional settlements made at independence would endure. Only a handful of countries still have the constitution they adopted on independence; yet, despite political vicissitudes in which military or other authoritarian regimes replaced democracy, aspirations for the return to the constitutional values of the independence period for the resolution of their problems animates the peoples of these countries.

Although it appears unfair to condemn them as utopian, one must question the feasibility of western models for most developing countries. Western constitutions (and constitutionalism) assume settled political and economic conditions and a broad consensus on social values (as is obvious from the readiness with which they are willing to suspend substantive and procedural legal guarantees when

faced with a crisis, such as terrorism). The constitutions themselves created neither the conditions nor the consensus, although they consolidated and reinforced them. Constitutionalism represented the victory of particular groups and classes; the victory itself was often the result of violence, exploitation, and repression.

In the developing countries the constitutions were expected to carry a much heavier burden. They had to foster a new nationalism, create a national unity out of diverse ethnic and religious communities, prevent oppression and promote equitable development, inculcate habits of tolerance and democracy, and ensure capacity for administration. These tasks are sometimes contradictory. Nationalism can be easily fostered on the basis of myths and symbols, but in a multiethnic society they are often divisive. Traditional sources of legitimacy may be inconsistent with modern values of equality. Economic development loosely checked and regulated during colonialism, also threatens order and ethnic harmony, as it results in the mobility of people and the intermingling of communities in contexts where there is severe competition for jobs and scarce resources. Democracy itself can sometimes evoke hostilities as unscrupulous leaders prey on parochialism, religion, and other similar distinctions.

The burden of constitutional tasks was, moreover, compounded by the nature of Third World politics, different in crucial respects from the west. Although often attended by violence, the growth of the state in the West was more organic than it was in the Third World, where it was an imposition. The state dominated the economy and was instrumental in shaping it; in the West the state reflects the economy. The political factor was consequently more important. Political power is harder to control because civil society is weak and fragmented, itself the result of colonial practices (which have proved congenial to new government). The state in the West enjoyed relative autonomy from international forces, which facilitated indigenous control over society and enabled a degree of diffusion and institutionalization of power. The Third World owes not only its genesis to imperialism, but even contemporary international economics and politics condition its very nature and existence. Hardly in control of its destiny, such a society, finds it hard to institutionalize power on the basis of general rule, any more than it can resist encroachments on rights and democracy engineered by the more powerful states and corporations. At the time many Third World states moved into independence, the tools of coercion were easily available, which made them careless of cultivating the consent of the ruled.

The ideology of constitutionalism has only the slenderest appeals to the rulers or the ruled in the Third World. Legitimacy comes from other sources, and some of these sources are antithetical to the rule of law. Closely associated with independence was the ideology of modernization and development, in whose name state structures were strengthened and their writ expanded. People appear to regard the promotion of development as the primary task of the government; and the governments, for their part, justify the aggregation and concentration of power (and dismiss debates on human rights) on the imperative of development. Closely connected ideologies proclaim the supremacy of the party, reaching in some countries levels of deification, or, more frequently, the sanctification of the leader. A major characteristic of many Third World (especially African) countries is the personalization of power in the president (increasingly the equivalent of the European monarch in the seventeenth and eighteenth centuries, the starting point for the search for the rule of law). Constitutions and laws are tailored and bent to the hegemony of the leader. . .

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If the rule of law as an ideology is unimportant, it will come as no surprise that it is also unimportant in its substantive aspect. In most developing countries, whether the economic system is a species of capitalism or socialism, general norms play a secondary role. Both kinds of economy are essentially administered economics, where the license is the king and discretion is the norm. The role of the state in extracting resources from the countryside and foreign institutions and dispensing it domestically is crucial. Capitalists seek the embrace of the governments, and concentration of state and capital is extensive and complex. Markets themselves are the creation of governments, whose leaders, not having a secure base of their own in the production and distribution process, are fearful of the free play of

economic forces. Multinationals accept that bargains have to be struck with the government and concessions negotiated. Key prices are regulated and controlled. The administered economy is compatible with generalized norms operating autonomously. But more fundamentally, it is the character of the state and the nature of the process of accumulation in most Third World countries that undermine constitutionalism.

State and Accumulation

There has been considerable debate on the nature of the state in the Third World. The general agreement seems to be that the role of the state is important to the process of accumulation and reproduction; disputes rage, however, over who controls the state and the protection of which class is its primary responsibility, as well as over its precise strength vis-à-vis civil society. Without going into this controversy, I will refer to the main characteristics of the state necessary to my argument.

The relationship between the state and the market is problematic. Colonialism unleashed market forces but it did not establish a genuine market. An important role for the state (especially in Africa), for both economic and political reasons, is the articulation of the diverse (capitalist, cooperative, and subsistence) modes of production, which compels restraint of market forces.

Another reason why the market must be checked involves the fact that those who accede to political (state) power have at best an insecure base in the economy, which is dominated by foreigners or immigrants. Political leaders cannot therefore allow the market to become the primary agency for integration or allocation, at least not until they have secured dominance over it. In the initial period, they use state resources to establish this dominance (i.e., it becomes in Habermasian terms “the string mechanism”). This and the previous points make evident the interest of political elites in strengthening institutions and extending their reach (to minimize their accountability).

The use of state resources involves essentially what one may call primitive accumulation, which takes primarily the form of exploitation of the peasantry, and also the workers. Compulsory state marketing channels and other forms of state enterprise are frequently used for the former; serious restrictions on trade union rights are necessary for the latter. As the state is the primary instrument of accumulation, corruption is endemic, woven into the very fabric of the apparatus of the state. The pressures toward corruption arise not only from economic greed, but also from the imperatives of political survival, since the primary basis of a politician’s support is generally not the party or another political platform, but clientalism, sustained by regular favors to one’s followers. Public control and accountability over that apparatus are unacceptable; resistance on the part of the exploited is met principally by coercion. The state therefore becomes authoritarian and irresponsible in terms of its public accountability.

The authoritarian character of the state is its dominant feature. Constant threats to the political hegemony of the ruling group lead to their intolerance of independent centers of authority or power. As the state seeks the total subjection of the civil society, it permits autonomy only where it is functional to its own purposes. The greater the role of the state in accumulation, the less the scope for social autonomy. The right of association is a first casualty, and with it the weakening of the will and capacity of groups in the civil society to resist the encroachment of the state. Civil society in any event is fragmented and dispersed, and in that sense it is possible to talk of the overdeveloped state. Unlike the development of the state in Europe, it did not grow out of civil society, but was imposed from above as a bureaucratic device. In one sense the weakness of the civil society may give the appearance of strength to the state, but in the West at least the capacity of civil institutions to exercise various forms of disciplinary control over their members lightens the task and increases the capacity of the state. Indeed, the form of delegation implicit in institutional disciplinary control itself makes possible the rule of law.

Although the state has the strength to subjugate civil society, its capacity to direct the movement of society is weak. Society’s submission is sullen and resentful; frequently its only resistance is evasion of state *diktats* and withdrawal from its domain. Because the submission is forced through coercion

(coercion that appears to become easier daily with the new technologies of weapons and torture), it is precarious, and political adventures can overthrow a regime without resistance from the people. Indeed, it may be the only way to change governments, for the insecurity that governments feel leads them to repress legitimate opposition. Because many political leaders are involved in primitive accumulation, and a strong or organized peasant or worker opposition does not yet exist, class identification is weak; politicians in power tend to rule directly and to share power with as few others as is compatible with maintaining their hold on the government. These societies lack the equivalent of polentas' governing class to mediate the differences between the different factions of the ruling class." In these circumstances, coups, which are merely transfer of power among the political elites, are common.

The fluidity of class relations and the lack of cohesion among the dominant classes (compounded by ethnic division) lead to and almost require a dictatorial head of government, which in one sense represents the extension of the charismatic leader of the national struggle and inherits the constitutional powers designed for him. By appearing to symbolize the new nation and standing above ethnic and other factions, he seeks legitimacy for the government. He may have the potential to coordinate and harmonize the interests of the leaders of ethnic and class factions, but few leaders have filled this role. Fears of their own economic vulnerability and ethnic consciousness fostered by politics of clientalism prevent them from guiding by example or rising above factionalism. Unable or unwilling thus to assert moral authority, presidents seek wide and untrammelled powers (including detention without trial) and vast patronage. The consequence is a type of court or patrimonial politics, characterized by sycophancy, intrigues, and factions. Those who are in his favor, or seek it, glorify and pay homage to him in public. Criticism of the president is treated as treason. Access to the president becomes more important than rules; he himself claims and is generally acknowledged to be above the law; the law is what he says it is (and he is not wanting the intellectuals who would rationalize these claims for him). Both reparation and bounty become selective. But because there is a limit to the favors he metes out (which are not out of his own patrimony but that of the state) and he has to rely heavily on repression or threats of it, his position remains precarious; and the political system unstable.

External factors aggravate the instability of the government. The Third World state has limited autonomy from the international economic and political system, heavily dependent as it is on it for economic and military aid and for trade and technology. Frequently a vassal of a big power, it can be held to ransom by international capital. The political fortunes of the country and, in particular, the prospects of democracy are not always within the control of its people or government. An influential school of thought has ascribed the rise of authoritarianism in Latin America to the collusion among its bureaucrats, propertied classes, and foreign capital, as their interests converged on the maintenance of public order, repression of labor, and the encouragement of foreign investments and technology. In Africa too, it is possible to point to the difficulties of establishing democratic regimes due to the impact of foreign intervention, whether it be the destabilization politics of South Africa and the United States in Mozambique and Angola, or the support to authoritarian regimes (frequently supplied by armed coercion) as in Zaire, Malawi, and Ethiopia. Foreign powers (and capital) have no principled attitude toward democracy, they are guided by their own interests, and rarely do these necessarily lie in the support for democracy. It is easier for them to deal with governments that can disregard popular or worker pressures.

The role of constitutions and laws in these situations becomes totally instrumental, unmediated by autonomous processes and procedures. Law itself becomes a commodity that only the state may mobilize and manipulate. Governments think it dangerous to allow dominated groups any practice on the law, except as part of careful stage management. Limitations on the powers of government itself are inconceivable, as on the whole, are challenges to the government to enforce human rights.

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Samuel C. Nolutshungu, "Constitutionalism in Africa: Some Conclusions" in Douglas Greenberg, et al. (eds.), *Constitutionalism and Democracy: Transitions in the Contemporary World* (Macmillan Publishers Ltd., 1993). Endnotes omitted.

Although all African states attach some importance to their constitutions, as to their national flags and anthems, only very few can be said to abide by them with any consistency. None consider themselves much bound by them on matters such as the limitation of government power, the rights of citizens, the division and separation of powers, or, above all, the objective enforceability of the provisions of the constitutions. Indeed, those elements of the constitutions that place limits on executive power are least respected.

The failure of constitutional government to develop is not the result of popular needs or demands but of governments seeking to escape the constraints imposed by constitutions, laws, and the rights and expectations of citizens. It is true that in some cases, governments enjoyed popular support when they assumed power (whether or not in accordance with the constitutions), or when they set about to weaken the force of the constitution. It is also the case that even when there was no such popular support, there was little protest on constitutional grounds against the usurpation of power. In short, people have supported or opposed particular claimants to power and specific political programs with rather scant regard for the principles and procedures under which these claimants would rule if their aims would be realized.

Where there is, in fact, the potential to resist arbitrary rule, either society is not sufficiently organized politically to challenge it, or the political and legal institutions are too weak, in the quality of their personnel and in their political support from society, to resist or counterbalance executive power. Various aspects of African social structure are directly relevant here. First among them is the fact that the populations consist predominantly of peasants who, by their economic nature, and geographic dispersal, are difficult to organize politically on a lasting basis by any means other than armed revolt. Armed revolt itself does not favor a constitutionalist emphasis in political struggle. Second, the urban classes, workers and capitalists, necessarily have conflicting interests and are each internally divided; they are poorly organized politically. Although some do revolt on questions of civil rights occasionally, as they did in the 1970s against General Kutu Acheampong in Ghana, and recently, against Daniel Arap Moi in Kenya, the majority are typically so dependent on the state for their very livelihood that they have a natural reluctance to challenge any government about its use of power.

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Conventionally, the pursuit of social justice and economic democracy is seen in terms of giving greater power to the disadvantaged classes, through the control of the power of the public institutions not by its limitation. Various ways have been suggested over the years to achieve such control, ranging from socialist advocacy of a party of workers and peasants that would control the state and realize public ownership and control of the most significant economic processes, to demands for greater decentralization and democratization of decision power. Radical mobilization of workers and peasants would be necessary to enable them to take full advantage of the opportunities thus created. That, however, would be neither easy nor uncontroversial. Attempts to raise popular consciousness and activism in various parts of Africa have often had mixed results. Rarely have such initiatives restrained the concentration of power at the center, or brought it under effective popular control. Generally, they have had their source in the initiative of some benevolent autocrat, civilian or military, so that a certain paternalism characterized the project, whether it was Ujamaa socialism in Tanzania, "people's power" in Mozambique, or people's committees in Ghana or Burkina Faso. These projects have combined, in varying degrees, mass political awareness and local participation with greater surveillance, imposed conformism, and political intimidation.

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Radical alternatives are not all that an African constitutionalism need concern itself about. There have been persistent demands from the opposite ideological direction for both decentralizing and centralizing institutions considered appropriate to "African realities." Sometimes a larger role for "traditional

leaders” is demanded. “Traditional leaders” differ greatly from country to country and often within the same country, as do indeed the “tradition” invoked as the bases of their authority; some, evidently, have more solid popular acceptance and support than others. Another variant of the theme of the cultural specificity of African political needs expresses itself in the opposition to competitive politics and is represented in the idea of the one-party state. Leaders of various ideological inclinations have embraced this idea, from African socialists and humanists such as Julius Nyerere of Tanzania and Kenneth Kaunda of Zambia who believed they could realize democracy within the single parties they led, to champions of African “authenticity” such as Mobutu Sese Seko of Zaire and his admirer Francois Tombalbaye of Chad who, until his death, was also a venal dictator presiding over a one-party state. Odious as these tendencies may be from the point of view of human rights, they are an undeniable part of the contemporary African political culture, and, what is more, they have often been seen, in the initial stages at least, as radical, or progressive responses to the distinctiveness of the continent’s people and their needs in state design. What they show beyond any doubt is a widely shared belief that whatever African culture may dictate, it is clearly not comprehended in the idea of organized opposition and political competition. If that belief is true, then democratic constitutionalism would either have no practical application in Africa or would to be a cultural-revolutionary project in the sense of overthrowing the weight of that aspect of “African culture.” As it happens, this view of “African culture,” most prevalent in the 1960s and 1970s, was always most firmly held by those who were in power or close to it, and has since come under considerable public criticism.

There is a troubling resemblance between claims that African culture is in some sense incompatible with organized opposition and competition and the view often expressed by colonialists before independence to the effect that Africans were not ready for self-government. One must, however, take seriously the view that some states may be so fragile, in terms of their political cohesion, that they could not survive democracy. Put otherwise, “before it can be democratic, the state must first exist.” This latter view is no different from the justification of the suppression of liberties and the restriction of democratic procedures in wartime, except that, unlike wartime conditions in democracies, the African emergency is rather less exactly defined and not self-limiting.

Constitutionalism begins with the recognition that the suppression of competition and choice by one tendency is little different from its negation by the rival ideological camp, and that the subjective intentions of the parties concerned (one favoring workers and peasants, the other serving the rich and middle classes) are quite beside the point. The point, precisely, is to define non-arbitrary criteria for limiting, and nonviolent means for conducting, competition among these and other classes in society and the corresponding, contending view of politics. Whether African societies are culturally averse to tolerating such competition or to permitting such choices is, to be sure, an empirical matter, which, as luck would have it, can only be determined by the kind of open inquiry possible under conditions of free expression.

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By this reasoning, there cannot be a species difference between constitutionalism in Africa and the same beast elsewhere, though local adaptations responsive to deeply felt needs would be indispensable. What matters most is not the document but the principle that makes government and political association generally subject to rights and to accepted rules of procedure in all important spheres and, above all, the will to make it so.

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. . . [C]onstitution making is only one of many aspects of state creation. If that is what it always was, the difference now is that what the state judged to be possible, desirable, or needed is one that would take the greater part of the initiative of transforming society and culture, one closer to revolutionary rather than to limited constitutional traditions, to France than to America, to the latter rather than the earlier part of the eighteenth century. The critical question is whether such work of political construction is undertaken within the framework of a cogent rather than a special case constitutionalism (which may

amount to not a transcendence of “bourgeois liberalism,” but mere special pleading in the face of its stringent demands in the area of rights for those who have different preferences and ideals from one’s own.

Beyond the rights of persons or collectivities, there remains a large problem of state capacities. Do modern African states, as such, have the material and human resources to govern at all efficaciously under any general conception of constitutionalism? In this regard, traditionalist arguments may have some attraction in claiming the “traditional” rulers provide a ready-made extension of administrative and judicial capacity, which may (arguably) impose a lighter burden on state revenues (though not necessarily on citizens from whom they often exact tribute in various forms) than would modern bureaucrats and politicians. This claim has been conceded to some degree in many cases, although never with any noticeable effect on the rate of expansion of the modern bureaucracy, or on its fiscal crises. The response of states, however, to the problem of limited resources and weak authority and power has primarily tended towards greater centralization and concentration of such power as could be mustered. The manifestations of this trend are familiar: the one-party space, civilian, or military unitarist rule, the suppression of ethnic or national minorities, and, in economics, a large role for the state or for a small entrepreneurial class enjoying a privileged relationship with the state. The results have uniformly provoked discontent and alienation from the state.

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Only rarely has the question been raised whether the unitary nation-state ideal to which African states aspire is not itself a source of weakness and failure. Merely to oppose the unitarist state to equally unitary notions of “the market” and “civil society” does not begin to come to terms with the physical facts and the political-cultural consequences of the dispersal of political communities over vast territories that are costly and difficult to administer, in the context of generally exiguous economies that ensure that the state has often very little to give in exchange for what it takes. It may well be that the precondition of constitutionalism in Africa would be a new kind of state. Just as in Canada and the United States federalism was devised to *cope with* as much as to *allow for* the fact of the dispersal of people and power, so in many African countries new forms of association between geographic localities and between political communities, actual and potential, may be the prerequisite to viable statehood, itself a precondition of meaningful constitutional development. By so doing, African constitutionalism would distinguish itself, not by announcing new principles that depart widely from what has been learned elsewhere, but by an original work of creating institutions appropriate to declare ideals.

There still remains the question of knowing the conditions under which the idea of the constitution might acquire binding significance.

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Most of the constitutions and constitutional language were not initially adopted under conditions of popular choice of power, nor did they result from an interpretation of the political and constitutional needs of the population. Rather, like the state themselves, they were largely the residues of colonial rule, often the old authoritarian political order in new clothes. They were simply foisted by colonial rulers and their successors on polities structured in ethnic terms that substantially blocked the formation of political alliances based on principles, rights, or interests that could be generalized across “tribal” or ethnic boundaries.

Other constitutions were imposed by military oligarchies or revolutionary vanguards, which more or less directly copied foreign blueprints or merely mocked or dismissed the constitutional ideal. In both the colonial (and neocolonial) and the revolutionary instances, the dominant ideologies reflected an instrumentalism in politics that was indifferent to the means of government and the norms or social consent) that might govern them.

The historical element is important in another way, also. The constitutions did not grow out of political experience. They were not, except in a superficial way, the embodiment of political realities lived, victories won, and defeats endured, and above all of lessons deeply learned about the costs of arbitrary government and the need to minimize it. Political institutions (in the broad sense that includes associations, parties, and legal institutions) can gain the power to inhibit government and so sustain both the moral force of rights and the rule of law only through more or less prolonged experience of struggle.

But the problem of constitutionalism in Africa, as with the problem of economic development and state formation, is that of guiding, indeed, forcing the pace of history. That is, undoubtedly a task of education both in the formal sense and in a broader one linked to political activation of the population at large. The latter, however, already involves a challenge to the state and an assertion of rights and is, therefore, inescapably a form of struggle. But it involves a struggle not only against tyrants and refractory oligarchies, but against the cultural reticences and shortcomings of illiterate and often desperately poor people. The poor defer to the rich, the illiterate to those with high attainment in Western education. They are not likely to articulate with confidence their own notions of justice and good order, however well-founded those may be in accumulated experience and wisdom. Equally, material and cultural deprivation restricts the possibility of forming alliances with similarly disadvantaged people across boundaries of language, custom and locality. The political activation of the people is a task for political movements and parties that would be truly revolutionary in scope and consequence, *au fond* revolutionary in overturning the patterns of thinking of the oppressed and obliging them to think of their relief in terms of theories and ideologies that, candidly, are quite alien to them.

Popular acceptance is crucial, but perhaps something more is as well: the belief on the part of all the crucial actors that they would do better for themselves in a genuine constitutional order. This implies more than a cost-benefit calculation, though that too may be consciously invoked. Like state building, coming round to such a view may be the labor of many years, punctuated by partial and ambiguous advances. What seems essential is that constitutional development is essential to the solution of the major problems of public life. The making of the first constitutions was a means to end colonial rule and to resolve contentions between emergent African elites and European imperial power; but it can hardly be said that their making was importantly focused on resolving the barely begun difficulties of the countries concerned. In the postcolonial era, people believed themselves to have alternative ways of resolving their problems: through military seizures of power, in which they did not have to deal with other political forces in the country; through regional rebellions and secession, by withdrawal from the state or by eluding its clutches; and, for some of those who could afford it, through migration. Only occasionally, fleetingly, have protagonists in large scale conflicts sought to negotiate a general and binding settlement of differences that would also lay down the fundamental terms of political association. In some countries certain ground rules were established that may have laid the foundations for further elaboration in the future (e.g., federalism in Nigeria). In many other countries, however, powerful groups have, quite realistically, judged that they had no problems whose resolution turned on the making of an effective and binding constitution. Sometimes, their interests have been best served by the feebleness of laws and institutions and the existing constitutional void.

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Economic failure, dramatized by the recession of the 1970s and 1980s and growing external indebtedness, has provoked opposition to African regimes, directed particularly against the dominance of the state in economic life and its lack of political accountability. Agitation for democracy has occurred across the continent, on occasion successfully forcing the scrapping of single-party constitutions and the holding of competitive elections. In contradictory ways, this domestic movement, as yet of uncertain depth and durability, has benefited considerably from international pressures of aid donors and creditors who favor economic liberalization. External criticism has merely underscored internal discontent, but the privatization of public assets, in its own way, reinforces the need felt for greater democracy not merely as a means to constrain the economic excesses of the state or, in

prevailing parlance, to strengthen “civil society,” but also to democratize political life. Benefiting from extremely imposed economic liberalization, the political movement is often animated by radical sentiments that seek to constrain external influence and to bring the process of economic adjustment under popular control. What kinds of constitutionalism may eventually emerge remains uncertain, being part of what is (and may come to be seen to be) at issue?

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The end of the Cold War has provided not only an opportunity for liberalization and democratization in the Soviet Union and Eastern Europe, but the occasion for a revival of intellectual and political interest in fundamental questions of political association. These developments have had some effect on political expectations and rights consciousness in Africa. They have fed expectations in Africa while adding, for what it is worth, to demands that western governments and publics should demonstrate concrete support for human rights movements in the continent.

At the level of ideas, too, developments elsewhere have an impact on the continent’s politics. The growing concern in the west about ecology adds a further dimension to African notions of public good that can be the object of collective rights. Similarly, the growth of the feminist movement in the West has helped to draw greater attention to gender issues in African politics than might otherwise have been the case. Needless to say such movements do not always address strictly constitutional questions nor do they express themselves in constitutional terms.

The international climate is, therefore, important for the growth of constitutionalism in Africa. Indeed, if the progressive ideals of constitutionalism regain their importance more widely, they will likely flourish in Africa as well. Here, Mahmood Mamdani’s observation is relevant: constitutionalism is inherently a contested field. It is as a contested field that it should come to prominence once more elsewhere, particularly in the countries that set examples, for the real contest to be waged more fully in Africa also. Yet, at the same time, the idea of constitutional government is precisely that of a political struggle that culminates in accommodation and inclusion, one, therefore, that, in its own domain, is not conclusively won by any one particular side, and never exclusively.

Questions and Discussions

1. Identify the problems Yash Ghai identifies as contributing to the absence of the rule of law and constitutionalism in Africa.
2. Discuss each of those problems critically to see whether you accept them or not. If you feel differently about some of those problems than the way Ghai argues, state why you disagree with his ideas.
3. Ghai says that the character of the state and the nature of the process of accumulation in most Third World countries are the things that critically undermine constitutionalism. How do these two undermine constitutionalism according to his explanation? Do you agree? What do you think should be done about these problems?
4. Samuel C. Nolutshungu says that none of the African leaders consider themselves much bound by constitutions on matters such as the limitation of government power, the rights of citizens, the division and separation of powers, or, above all, on the objective enforceability of the provisions of the constitutions. Indeed, those elements of the constitutions that place limits on executive power are least respected. Do you think this is a correct characterization of the leadership in Africa? Discuss this with reasons.

5. What are the problems that Samuel C. Nolutshungu identifies that make it impossible for people to oppose undemocratic governments in Africa? Do you agree with his characterization of the problems?
 6. Read Nolutshungu's very interesting observation of the operation as well as economic and political ideology of African leaders again, and reflect upon them. Do those characterizations apply to past and present governments of Ethiopia?
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2. Constitutionalism at Sub-National Level in Federations

In federal systems, constitutional institutions and governance at state levels also need to be closely scrutinized. As a matter of fact, most of the interactions between governments and citizens in federal systems take place at subnational levels. Although citizens are both legally bound to and beneficiaries of both levels of government, they are more affected by the goings-on at the state level. Therefore, the concern for constitutionalism must hold the subnational level institutions and laws accountable to basic standards of rights and freedoms.

The 1995 Constitution of Ethiopia may be considered to have taken up the challenge of overseeing the accountability of subnational state institutions to itself. The most meaningful step taken by the Constitution of course is its decision to make the fundamental rights and freedoms in its third chapter binding on all levels of Federal and State legislative, executive and judicial organs (Art. 13(1)). To add to this is its decision that the fundamental rights and freedoms specified in Chapter Three shall be interpreted in a manner conforming to the principles of the Universal Declaration of Human Rights, International Covenants on Human Rights and international instruments adopted by Ethiopia (Art. 13(2)).

These constitutional rules have established a national minimum standard for the protection and enforcement as well as interpretation of the most basic fundamental rights and freedoms covered in the Constitution. There are other provisions of significance in the Constitution regarding subnational constitutionalism. Art. 52 of the Constitution directs that States shall establish a state administration that best advances self-government, a democratic order based on the rule of law. It also states that a state government shall be established at state and other administrative levels within the state as may be necessary, and importantly that "adequate power shall be granted to the lowest units of government to enable the People to participate directly in the administration of such units" (Art. 50). It further stipulates that the states' constitutions should be consistent with the federal Constitution. (Art. 52).

These constitutional provisions, along with relevant others in the Constitution, significantly contribute to the maintenance of subnational constitutionalism in Ethiopia. But this would be just half of the solution as most of the challenges to constitutionalism and the rule of law, as always have been, come not from the lack of legal protection but from the government's practical disregard of the laws, including the constitution. In the following excerpt from James A. Gardner you will be directed to some interesting dynamics and issues on subnational constitutionalism. He asks the interesting question of whether subnational constitutions are matched by subnational constitutionalism, the question which is squarely relevant to our own federal system, what might contribute to a lack of subnational constitutionalism.

James A. Gardner, *In Search of Sub-National Constitutionalism*, a paper Prepared for Seventh World Congress, International Association of Constitutional Law, Athens, Greece, 11-15 June, 2007. Footnotes omitted.

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. . . [T]he spread of federalism has, perhaps predictably, been accompanied by a proliferation of subnational constitutions. Today, documents that can fairly be described as constitutions govern the affairs of subnational divisions of nations on every continent. Among nations in which federalism is the prevailing form of governmental organization, all the Australian states, Austrian and German Länder, Swiss cantons, and American states have their own constitutions. States and provinces in Argentina, Brazil, Ethiopia, Malaysia, and Mexico have adopted constitutions, as have subnational units in Russia, Spain, and the United Kingdom. One South African province, one Indian state, and even one Canadian province has formally adopted written constitutions.

While it is clear that the spread of federalism has been a precondition for the spread of subnational constitutions, it is less clear what the recent flowering of subnational constitutions signifies about the global practice of constitutional self-governance. In particular, the interesting question for constitutional law is whether the proliferation of subnational constitutions indicates a corresponding proliferation of the practice of subnationalism constitutionalism – whether, that is, the appearance of subnational constitutions around the globe evinces a spreading ideological commitment to a strong role for subnational governments in shaping the lives, and protecting the liberty, of citizens of federal states.

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Sub-national Constitutionalism

Subnational constitutionalism is nothing more than the application of the principles of constitutionalism at the subnational level. An ideology of subnational constitutionalism accordingly conceives of state, provincial, or regional constitutions as charters of self-governance self-consciously adopted by subnational populations for the purpose of achieving a good life by effectively ordering subnational governmental power and by protecting the liberties of subnational citizens. For example, an ideology of subnational constitutionalism clearly guided the Texas Supreme Court when it claimed in a 1992 case that the Texas Constitution must be understood, unlike the U.S. Constitution, to “reflect Texas’ values, customs, and traditions,” and must therefore be interpreted in view of the “experiences and philosophies” of the state’s founders, whose beliefs about self-governance were shaped by “years of rugged experience on the frontier.”

The main point for present purposes is simply that an ideology of subnational constitutionalism conceives of subnational units as having an independent role – a role of constitutional stature – in the collective self-governance of a nation. This would mean, typically, that subnational units are, in the words of the U.S. Supreme Court, “not mere political subdivisions of the [nation], and state governments are neither regional offices nor administrative agencies of the federal government.” Instead, subnational units have a degree of autonomy sufficient to make them efficacious representatives and agents of subnational populations, and their constitutions meaningful documents of self-governance that provide to some significant degree for independence from processes of self-governance employed at the national level by the national polity.

Because subnational constitutionalism forms the matrix for what is in essence a legal culture, its presence cannot really be detected without a correspondingly wide-ranging inquiry into the constitutional culture of the place in question. It is unlikely, for example, that the existence of subnational constitutionalism can reliably be inferred from an examination of constitutional texts alone. Nevertheless, constitutional texts can certainly furnish useful evidence of subnational constitutionalism. Two types of evidence could be of particular value, both having to do with the potential capacity of subnational constitutions to protect the liberty of subnational citizens.

Within a federal system, subnational constitutions might protect liberty in one of two ways. First and most obviously, subnational constitutions might protect liberty directly, through the identification and explicit protection of human rights in a charter of rights or its equivalent. Second, subnational

constitutions might protect liberty indirectly, by granting subnational governments affirmative powers sufficient to permit them to shield their citizens from abuses of centralized power at the national level.

This indirect method of subnational liberty protection is most closely associated with the justification for U.S. federalism articulated by James Madison. “The accumulation of all powers . . . in the same hands,” wrote Madison in Federalist No. 47, “may justly be pronounced the very definition of tyranny.” To protect liberty, on this view, power must be divided. Federalism serves this purpose by parceling out government powers among different levels of government, giving each level of government, national and subnational, powers sufficient to allow each to monitor and check the abuses of the other. Although power is fragmented in such a system, its use is ultimately unified because each level of government pursues the same goal: serving the interests of the people. As Madison put it, “[t]he federal and State governments are in fact but different agents and trustees of the people, constituted with different powers and designed for different purposes.” Federalism, on this model, is thus a dynamic system designed to be manipulated by the people to produce results they desire. . .

On the Madisonian view of federalism, then, popular allegiance to any government is not organically fixed, but rather will ebb and flow according to that government’s instrumental value to the populace at any given time. Federalism therefore does not define a static relation among national and subnational governments, but a living, dynamic one, and subnational governments must accordingly have sufficient autonomy and power to hold up their end of the bargain.

This analysis suggests that the presence of subnational constitutions need not imply the presence of subnational constitutionalism. Just as it is possible to have what Jan Erk refers to as a “federation without federalism,” so it is possible to have a constitution without constitutionalism. A subnational constitution that neither embodies the values of the populace that framed and adopted it, nor establishes for the subnational government any significant role in the direct or indirect protection of the liberty of subnational citizens, is not likely to be a document that draws upon an underlying popular ideology of constitutionalism. For example, a subnational constitution that does nothing more than formalize the administrative subordination of the subnational to the national government would lack the qualities that indicate an underlying popular commitment to subnational constitutionalism.

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Signs of Subnational Constitutionalism

It is easy, and for Americans undoubtedly quite natural, simply to assume that federalism implies subnational constitutionalism – that subnational constitutionalism, in other words, is in some sense an inevitable consequence of the creation of a genuinely federal system of governance in which subnational units possess the authority to draft and adopt their own constitutions. I consider below at least four reasons why this might be the case. The first possibility, and the one that represents the strongest claim, is that federalism by definition gives rise to subnational constitutionalism. A second and somewhat more restrained claim is that the U.S. experience with federalism demonstrates that federalism is capable of producing subnational constitutionalism, and that the U.S. experience can be extrapolated to support the conclusion that federalism empirically generally does produce subnational constitutionalism, even though no theoretical imperative so requires. Third, increasingly prevalent ethno cultural justifications for federalism may suggest that subnational constitutions often, or even typically, reflect distinctive values and choices of subnational populations, a situation consistent with the widespread existence of subnational constitutionalism. The fourth and mildest claim is that the characteristics of at least some actual subnational constitutions in federal states demonstrate the existence of subnational constitutionalism in those states.

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Ethno cultural self-determination as a justification for federalism

Modern accounts of federalism have gone well beyond Madison to broaden substantially the range of considerations accepted as justifications for the creation of a federal structure of governance. One of the most prominent of these justifications holds that federalism is desirable because of its capacity to permit some degree of self-determination to ethno culturally distinctive subgroups when they are geographically concentrated.

As federalism has spread around the globe, ethno cultural self-determination has increasingly been invoked as a justification for adoption of a federal system. Such reasoning has long played a role in Canadian debates about the status of Quebec, for example, but it also provides the main justification for the more recent adoption in Spain of devolutionary *Estatutos de Autonomía*, an action taken mainly in response to demands for self-determination by Basque and Catalanian subpopulations. Claims of ethno cultural pluralism have played a role in shaping federalism in Belgium, Bosnia, India, Nigeria, Russia, Switzerland, and even the United Kingdom, among others.

The justification of federalism as a vehicle to provide self-determination to ethno cultural subgroups resonates strongly with the conceptual foundations of subnational constitutionalism. If a constitution is in some sense an expression of the beliefs of a self-governing populace as to how its members ought to live, and some ethno cultural groups see themselves as sufficiently distinct from the national populations among whom they reside to justify some form of subnational self-determination, then any subnational constitution such a group creates for itself might be very likely to reflect the distinctive traits that by hypothesis entitle the group to political self-determination in the first place. Ethno cultural justifications for federalism thus may lend plausibility to the premises of subnational constitutionalism.

The characteristics of actual subnational constitutions

Subnational constitutionalism rests on the premise that an important purpose of subnational constitutions is the direct or indirect protection of liberty through the independent agency of subnational power. Many existing subnational constitutions contain provisions that are clearly intended to specify and protect the rights of subnational populations in ways that are consistent with the premises of subnational constitutionalism.

The most direct and obvious method of protecting rights in subnational constitutions is through express specification in a charter or declaration of rights. In Argentina, for example, the provincial constitution of Buenos Aires provides specific protections for private religious freedoms. The Argentine provincial constitution of Jujuy specifically recognizes a host of rights including rights to dignity, life, personal integrity, health, equality, speech, and many others. In Germany, the Land constitution of Bavaria expressly protects rights of human dignity, personal freedom, private property, conscience, speech, and press, among others. The constitution of North Rhine-Westphalia provides express protection for rights of religious association and the right to work. The constitutions of the Swiss cantons of Geneva and Lucerne both guarantee rights of equality, property, religion, and free speech.

Interestingly, provisions found in subnational declarations of rights often duplicate protection for rights entrenched in the national constitution. The above-mentioned rights of religious liberty guaranteed by the Argentine provincial constitutions of Buenos Aires and Jujuy, for example, seemingly duplicate provisions found in Article 14 of the Argentine Constitution. Bavarian constitutional protections for human dignity, freedom of action, and freedom of the person replicate similar protections provided in the German Basic Law. Numerous subnational constitutions appear to provide duplicate protection for entire sets of nationally guaranteed rights that are simply incorporated by reference. The constitution of the Mexican state of Baja California, for example, provides that the rights of “inhabitants of the State [are] those granted by the General Constitution of the Republic . . .” The constitutions of Spain’s subnational regions similarly tend to incorporate by reference rights established nationally; Catalonia’s provision, which is typical, provides: “The citizens of Catalonia have the fundamental rights and duties that are set out in the national Constitution.”

Duplicate protection of rights at the national and subnational levels might well provide evidence, where it occurs, of subnational constitutionalism. Where a supreme national constitution already provides express protection for some kind of right, protection of the same right in a subnational constitution appears at first glance to be superfluous. In the United States, where such duplication occurs with some frequency, the best explanation seems to be that subnational units intend thereby to assert a kind of simultaneous jurisdiction over the protection of the rights in question. Subnational units, in other words, do not simply cede to the national government responsibility for protecting the duplicated right, for it is always possible that the national government will fail to protect the right with sufficient vigor. If the subnational unit possesses independent authority to protect the same right, then it may be able to fill any void left by a failure of national power or national will. Such a relationship between national and subnational power seems to reflect the workings of a Madisonian subnational constitutionalism. It suggests that subnational units understand themselves not only as independent agents for the protection of popular liberty, but, at least potentially, as competitors with the national government for popular allegiance based on the effective performance of the function of protecting human rights.

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Questions for Discussion

1. According to James A. Gardner there are points of interface between subnational constitutionalism and federalism. Identify and discuss those points.
2. Discuss also the challenges to constitutionalism at the sub-national level. What are some factors that affect the reign of subnational constitutionalism in some federations? Reflect in your discussions on how that relates to the case of Ethiopia.

CHAPTER TWO

FRAMING CONSTITUTIONS: CONSTITUTIONAL MOMENTS AND TRANSITIONS

1. On Constitution-Making in General

As noted in Chapter one, the importance of having a constitution is one of the least controversial things in political and legal discourse at the present time. As Oketh-Ogendo notes, even the most despotic of regimes are inclined towards keeping constitutions around, albeit those that are crafted to legitimize and institutionalize their mode of exercise of state power. We have also alluded to the genesis of the notion of constitutions in the preceding Chapter. It is important to relate to that discussion the triggers for the framing or making of a constitution by a polity. What is the moment at which a given political society embarks upon crafting a new constitution or overhauling or revising its incumbent constitution? What kind of constitution needs to be framed for what kind of society? There is an ongoing debate that the reason why constitutionalism has largely failed to take roots in Africa is mainly because the constitutions are closely modeled on European constitutional structures of governance which have marked differences from governance system of African societies. Do you think this is a plausible argument? Michele Brandt et al (2011) note that a fundamental question to ask when constitution making is contemplated is whether the country in question needs an entirely new constitution or, alternatively, whether an amendment or revision of the existing constitution can accommodate the desired change. It seems to me that this question is relevant to Ethiopia at the moment in relation to the 1995 Constitution. The lingering objections to parts of the Constitution that accompanied it for its entire career need to be dealt with, and therefore the how question needs to be answered. Should the decision be made to discard the 1995 Constitution altogether (and go for a new one) or should its revision or amendment be opted for?

Blount et al note that the broad principles of “participatory” constitution-making consists of public participation, inclusiveness (including gender equity) and representation, transparency, and national ownership of the process. Hannah Arendt (1992), observes that constitution-making is the highest exercise of political freedom. This she says is manifested in the aftermath of a true revolution where the people break free from the constraints of history or tradition to determine their own political destiny. It is the novelty of revolution that fascinates Arendt, that it cannot be predicted or traced back to antecedent causes, but rather exhibits the human capacity and power to generate its own terms of political existence. It radically breaks with the past to inaugurate a new future. The people deliberate and act together to begin ‘anew’, to begin ‘an entirely new story, a story never known or told before’. While Arendt celebrates the people’s freedom, she also fears it. She emphasizes that after a revolution, ‘constitutional government, if it came into existence at all, had a tendency to be swept away by the revolutionary movement which had brought it into power. She rightly observes that not constitution, the end product and also the end of revolutions, but revolutionary dictatorships, designed to drive on and intensify the revolutionary movement, have thus far been the more familiar outcome of modern revolution. All too often, triumph gives way to disappointment, and the revolution eats its own children. This view of Arendt resonates with Ethiopia’s own history of revolutionary break with its past in 1974. The revolution that swept Emperor Haile Selassie out of power through concerted efforts of student revolutionaries and the wider sections of the society was finally hijacked by the military that ended up establishing a totalitarian dictatorship, posturing to rule in the name of the Ethiopian people. Another violent change of government came in 1991, spearheaded by the Ethiopian People’s Revolutionary Democratic Front (EPRDF) which again, in an attempt to implement its own revolutionary script, nearly repudiated all the past traditions of governance to put in place a new one it thought was a panacea to Ethiopia’s age-old political problems. Then came April 2018, when a “reform” of the “revolutionary” governance style is rolled out. Four years and one general elections into this new style, things stand as precarious (if not more) for the Ethiopian people as it ever was. So what does these say about

revolutions and revolutionary changes of government? Should citizens for politics reject revolution and always look for other ways of making changes to their political system?

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One of the intriguing issues in constitution making is that of popular participation. This question starts with the very basic question of whether popular participation in constitution making is an essential precondition for its legitimacy or not. What if an excellent constitution is drafted by a body of experts and submitted to the public or to an elected assembly for its approval? Would that be different from the draft being discussed widely by the various sections of the society and then discussed by a body like constituent assembly or a parliamentary assembly in systems using the latter to ratify constitutions? Another very relevant issue is that of how to ensure quality popular participation. This is particularly a problem in African societies, where the majority of the populace are illiterate and lack exposure to sophisticated, abstract issues. How would we be able to involve the public meaningfully in such situations? The issue of feasibility -- of meaningfully involving everybody in a large society of millions -- poses its own difficulty, too.

Important problems of a political nature also often arise in the process of constitution making. The group that controls political power at a given time may fail to be inclusive and to allow ideas from all segments of society to come to the table to create a broad-based and accommodative constitution. We have seen in history around us that when important factions such as ethnic, religious or political groups are excluded from participating on equal basis with the ruling group in the constitution-making process, there often arises serious political problems heralding the denigration of the new constitution before its career even begins. In what follows, I have included some excerpts from works of renowned comparative constitutional law jurists to help you have a broader view of constitution-making issues. The excerpt from Gabriel L. Negretto's work discusses the various processes of constitution-making in Latin America and their impact on the legitimacy and longevity of the Constitution among other things.

Gabriel L. Negretto, "Constitution making and constitutionalism in Latin America: the role of procedural rules" in Roxalind Dixon and Tom Ginsburg (eds), *Comparative Constitutional Law in Latin America* (Edward Elgar Publishing, 2017) 17. Endnotes omitted.

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1. Constitution-Making Processes in Latin America

Debates about procedures have been central to the constitution-making experience of Latin America. During independence and throughout the nineteenth century, significant struggles took place about the rules of representation in the constitution-making body. Starting at the beginning of the twentieth century, both during transitions to democracy and within the context of existing democratic regimes, political and legal conflicts emerged about the role of the pre-existing constitution, the design of the constituent body, and the degree of citizen involvement in the process.

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(...). New constitutions are supposed to be created at the founding of a new state, during a transition to democracy, after a revolution, or following the breakdown of the previous legal order, as in a coup. For this reason, constitutional replacements imply a legal break with the past and are not supposed to be regulated by the pre-existing constitution. By contrast, amendments maintain the legal continuity of the constitution in force by making possible periodical adaptations based on its own procedures. In practice, however, this distinction is not always accurate. Whereas the procedural rules for making a new

constitution are often created in an extra-legal way, in some cases they are provided by the constitution in force. In particular, about 20 per cent of constitution-making episodes in Latin America show some form of continuity between the old and the new legal order. This subset of cases goes up to 35 per cent if we look only at constitutions created under relatively competitive conditions.

A few constitutions in the early decades of the twentieth century, several in the 1940s, and most between the late 1970s and early 1990s emerged from a process of transition to democracy. These processes have usually been regulated outside the existing constitutional order, either because the pre-authoritarian constitution was suspended or the constitution enacted by the dictatorial regime was not seen as a legitimate legal document. Procedural rules were established by negotiations between the outgoing authoritarian government and democratic opposition forces or by agreement between democratic parties alone. In some cases, however, existing amendment procedures (or a revised version of them) and institutions provided for by the constitution in force served as the basic legal framework to set in motion the constitution-making process.

In a transition to democracy, preserving some degree of legal continuity may be part of a compromise between the outgoing authoritarian regime and democratic forces in order to make the process more predictable and changes less radical. This was the case of Brazil. Whereas the most progressive sectors of the Partido do Movimento Democrático Brasileiro (PMDB) wanted to replace the 1967 Constitution and enact a new democratic constitution in an independently elected constituent assembly, the military preferred keeping the 1967 Constitution through a series of amendments implemented by the legislature elected in 1982. As neither actor could impose its preferred option, a compromise was reached so an amendment to the 1967 Constitution would legalize the making of a new constitution by the existing Congress. In other cases, the military managed to impose a stronger form of legal continuity, namely the maintenance of an authoritarian constitution in amended form. Such was the case of Chile with the 1980 Constitution reformed in 1989, and the case of Panama with the 1972 Constitution reformed in 1983.

[In his essay excerpted below, Jon Elster discusses the mechanics of making new constitutions. He also addresses what he calls the optimal design of the constitution-making process and the constraints as well as motivation of different actors in the constitution making process where decisions are made on collective choices]

Jon Elster, "Forces and Mechanisms in the Constitution-Making Process", *Duke Law Journal*, Vol 45 (1995) 364. Footnotes omitted.

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I. Waves of Constitution-Making

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For reasons that I shall discuss later, constitution-making tends to occur in waves. From the late eighteenth century to the present, one can identify at least seven such waves. Modern constitution-making began in the late eighteenth century. Between 1780 and 1791, constitutions were written for the various American states, the United States, Poland, and France. The next wave occurred in the wake of the 1848 revolutions in Europe. Counting all the small German and Italian states, revolutions took place in more than fifty countries. Many of these also adopted new constitutions—often replaced within a short period by constitutions imposed by the victorious counterrevolutionary forces.

A third wave broke out after the First World War. The newly created or recreated states of Poland and Czechoslovakia wrote their constitutions." The defeated German state adopted the Weimar Constitution. Next, the fourth wave occurred after the Second World War. The defeated nations—Japan, Germany and Italy—adopted new constitutions under the more or less strict tutelage of the Allied Powers. A fifth wave was connected with the breakup of the French and British colonial empires. It began in India and Pakistan in the 1940s, but the process did not really gain momentum until the 1960s. In many cases, the new constitutions were modeled closely on those of the former colonial powers. To name only a few examples, the constitution of the Ivory Coast was modeled on that of the Fifth French Republic, whereas those of Ghana and Nigeria followed the British "Westminster model."

A next wave is linked to the fall of the dictatorships in Southern Europe in the mid-1970s. Between 1974 and 1978, Portugal, Greece, and Spain adopted new democratic constitutions.⁴ Finally, a number of former Communist countries in Eastern and Central Europe adopted new constitutions after the fall of communism in 1989. Although I do not have an exact count, there must be a couple of dozen new constitutions in the region.

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(...). The fact is that new constitutions almost always are written in the wake of a crisis or exceptional circumstance of some sort. There are some exceptions. The Swedish Constitution of 1974, for instance, was made under entirely undramatic circumstances. The new Canadian Constitution of 1982 may also count as a counterexample, although the context here was somewhat more tense. By and large, however, the link between crisis and constitution-making is quite robust. I have identified a number of circumstances that induce constitution-making. First, there is social and economic crisis, as in the making of the American Constitution of 1787 or the French Constitution of 1791. Let me emphasize that the making of the first French constitution was not an effect of the French revolution, but rather its cause: The economic crisis caused the constitution-making process, which eventually turned into a political revolution. Second, there is revolution, as in the making of the 1830 Charter in France or the French and German 1848 Constitutions. Third, there is regime collapse, as in the making of the new constitutions in Southern Europe in the mid-1970s and in Eastern Europe in the early 1990s. Fourth, there is fear of regime collapse, as in the making of the French Constitution of 1958, which was imposed by de Gaulle under the shadow of a military rebellion. The making of the 1791 Polish Constitution also illustrates this case. Fifth, there is defeat in war, as in Germany after the First and Second World Wars, or in Italy and Japan after the Second. Sixth, there is reconstruction after war, as in France in 1946. Seventh, there is the creation of a new state, as in Poland and Czechoslovakia after the First World War. Eighth and finally, there is liberation from colonial rule, as in the United States after 1776 and in many third world countries after 1945.

We are now in a position to understand the phenomenon of constitution-making waves. First, we may dismiss some of the waves as spurious or accidental. The temporal proximity of the American Constitution of 1787 and the French and Polish Constitutions of 1791 is just a coincidence. The same is true, I believe, of the almost simultaneous collapses of the South European dictatorships around 1975. The other waves, however, are nonspurious.

In some cases, the constitution-making episodes came in clusters because they were triggered by the same event. Here, the clustering is explained by the principle "similar causes, similar effects." This argument applies to the waves of constitution-making in the United States after 1776, in the third world after decolonization, and in numerous European countries after the First or the Second World War. In other cases, the triggering events occurred in a chain reaction. By this I do not mean that constitution-making in one country triggered constitution-making in another, but that the event that caused constitution-making in one country triggered similar events, with constitution-making consequences, in another.

The chain reaction cases can be further subdivided into two categories. First, one triggering event can serve as a cognitive model for another. This was the mechanism by which the outbreak of the French Revolution of 1848 triggered many similar events in Germany. By appealing to this mechanism we can also assert, I think, that the 1992 breakup of the Czechoslovak federation was triggered by the earlier breakups of the Yugoslav and Soviet federations. What happens in such cases is that courses of action that previously were unthinkable or appeared as mere abstract possibilities suddenly become vivid and realistic options.

Second, what happens in one country may influence what happens elsewhere by the mechanism of upgrading of beliefs. An example is provided by the classical domino theory that governed American foreign policy for many years. The idea was that if the Americans yielded in, say, Vietnam, this would send a signal to other governments in the region—and to the insurgency movements—about the willingness of the Americans to intervene. Much the same idea underlies recent Russian policy in Chechnya. More relevantly for the present purposes, the 1989-1990 Round Table Talks in Eastern Europe illustrate the same pattern. The lack of Soviet intervention in Poland enabled the Hungarians to upgrade their beliefs about the likelihood of Soviet intervention in their country. For the Czechoslovaks, it was the Soviet nonintervention in East Germany that made them understand that there would not be a repetition of 1968. In addition, the Polish institution of Round Table Talks between the regime and the opposition provided a cognitive model for all the later transitions.

II. Constraints

(...). My focus will be on constitution-making in constituent assemblies, although I shall also refer to constitutions that were more or less imposed by a single political actor. Consider first the constraints. Although most constituent assemblies in recent times have been relatively unconstrained, there are some important exceptions, notably the assemblies that created the American Constitution, the French Constitution of 1791, and the German Constitution of 1949. This part will focus on these three episodes. Let me first distinguish between upstream and downstream constraints. Upstream constraints are imposed on the assembly before it starts to deliberate. Downstream constraints are created by the need for ratification of the document the assembly produces. As we shall see, this division is somewhat misleading, but it serves as a useful starting point.

Constituent assemblies are rarely self-created; rather, they have an external creator. In fact, they usually have two creators. On the one hand, there is the institution or individual that makes the decision to convene a constituent assembly. In the United States in 1787, this decision was made by the Continental Congress. In France in 1789, it was made by the King. In Germany in 1949, it was made by the Western occupying powers. On the other hand, there is the institutional mechanism that selects delegates to the constituent assembly. In the United States and in Germany, the delegates were selected by the state legislatures. In Germany, the selection of delegates was subject to a constraint imposed by the Allied Powers, namely that their number be proportional to the population of the states. In France in 1789, the delegates were selected by the three estates, with the King having decided that the Third Estate should have as many delegates as the two other estates taken together.

These upstream actors or agencies will often seek to impose constraints on the procedures of the assembly or on the substance of the constitution. The Continental Congress instructed the Federal Convention to propose changes to the Articles of Confederation, not to propose an entirely new constitution. The delegates from Delaware came to the Convention with instructions from the state legislature to insist on equality of voting power for all states in the new constitution; in fact, they had asked to be so instructed. In France, many delegates came with instructions from their constituency to vote for an absolute veto for the King in the new constitution and to insist on voting by estate rather than by head. In Germany, the occupying powers insisted that the new constitution had to vest most powers in the states because they feared that a strong federal government might give rise to a new authoritarian regime.

Downstream constraints arise from the process of ratification. If the framers know that the document they produce will have to be ratified by another body, knowledge of the preferences of that body will act as a constraint on what they can propose. In the United States, the fact that the Constitution had to be ratified by the states meant that the framers were not free to ignore the interests of the states. In France, the King claimed a power of veto over the constitution—a veto he was certain to exercise unless he got a veto in the constitution. In Germany, the Allied Powers also reserved for themselves the right to approve the constitution before it was passed on to approval by popular referendum. We now see why the division between upstream, self-imposed, and downstream constraints is somewhat arbitrary. Typically, the downstream constraints are in fact imposed by the upstream authority. Another even more important difficulty is that the very idea of external constraints is misleading in this context. Constitution-makers do not always respect the instructions from their upstream creators, including instructions about downstream ratification. And a constraint that can be ignored is no constraint. At the Federal Convention, the framers ignored the instructions from the Continental Congress on three crucial points when they decided to write an entirely new constitution, to seek ratification by state conventions rather than state legislatures, and to require ratification by nine states rather than by unanimity. In France, the constituent assembly decided to ignore the instructions of their constituencies with regard to both the voting procedures and the King's veto. In Germany, finally, the constituent assembly successfully insisted on ratification by the state legislatures rather than by popular referendum. The German framers also managed to resist some, although not all, of the decentralizing instructions that the Allies had given them.

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The German case is more complicated. The most important factor was that the new political climate created by the Prague Coup of February 1948 enabled the German framers to ignore many of the instructions of the occupying powers. They successfully argued that ratification by referendum would give a dangerous scope for Communist propaganda. Also, they got a hearing for their claim that an excessively decentralized Germany would be an easy prey for Communist takeover. They were able to play on internal division among the Allied Powers and exploit the fact that the British wanted to be relieved quickly of the costs of occupation.

III. Desires and Beliefs

(...). On the one hand, the framers themselves may be swayed by a number of more or less respectable motivations. On the other hand, they regularly make certain assumptions about the motivations of future voters, politicians, judges, central bankers, and other actors whose behavior is to be regulated by the constitution. There is no reason to expect these assumptions to mirror the motivations of the framers themselves. The American framers, for instance, certainly saw themselves as moved by loftier motives than those for whom they were legislating. At the Federal Convention, a dispassionate and disinterested framer such as James Madison consistently argued that the Constitution had to be written on the Human assumption that "every man must be supposed a knave." ... Roughly speaking, interest divides into personal interest, group interest, and institutional interest.

A. Interest

1. Personal Interest

The personal interest of constitution-makers in specific constitutional clauses is a relatively marginal factor, although it does play a certain role in some cases. While few today would defend the Beard thesis that the framers at the [US] Federal Convention were motivated mainly by their own economic interests, statistical analysis of the vote patterns suggests that these interests have some explanatory power. In the making of the recent Romanian and Bulgarian constitutions, several provisions apparently owe their origin to a desire of the former Communists to escape criminal prosecution. The most blatant example I know is found in the making of the Czech Constitution of 1992. The decision by the Czech Parliament to create a bicameral parliament in the new constitution was widely seen as an incentive

offered to the Czech deputies in the Federal Assembly to pass a constitutional law abolishing the federation in exchange for a place in the new Senate....

2. *Group Interest*

Group interest is a much more important factor in the constitution-making process. At the Federal Convention, the interests of the states were a crucial determinant of the outcome. These interests were reflected both in substantive and procedural provisions of the Constitution. Substantively, the Constitution embodies a compromise between the interests of the slave states and those of the trading states. Procedurally, the small states successfully insisted on equality of voting power for all states in the Senate.

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In modern constituent assemblies, the interests of political parties are often decisive in shaping electoral laws and various parts of the machinery of government. Typically, large parties prefer majority voting in single-member districts, whereas smaller parties insist on proportional elections. The making of several post-Communist constitutions in Eastern Europe illustrates this idea. In the immediate aftermath of 1989, for instance, the small Communist or ex-Communist parties in Poland and Czechoslovakia insisted on proportional elections. Large parties with a reasonable chance of forming the government may also insist on a constructive vote of no confidence, which strengthens the position of government vis-a-vis parliament. The making of the Spanish Constitution of 1978 illustrates this point. Parties with a strong presidential candidate tend to insist on a strong presidency, whereas other parties try to reduce the power of that office. The making of the Polish Constitution of 1921 illustrates that connection.

In federally organized states such as Germany, Canada, or the former Czechoslovakia, the interests of the states are invariably a key factor. As was the case at the Federal Convention, the smaller states argue for equal representation in the federal government, and the larger states for proportionality. In Czechoslovakia, for instance, Slovakia, with one-third of the population, managed to ensure that half of the judges of the constitutional court would be Slovaks and that the chairmanship of the central bank would rotate annually between a Czech and a Slovak.

* * *

3. *Institutional Interest*

Institutional interest in the constitution-making process operates when a body that participates in that process writes an important role for itself into the constitution. We can observe this factor at work in many cases, as in the making of the Polish Constitution of 1921 or the French Constitution of 1946. In both cases, the parliament that wrote the constitution did its best to reduce the role of the executive and to promote the role of parliament. I conjecture that institutional interest has also been the most important factor in the making of the post-1980 constitutions in Eastern Europe. Let me briefly sketch four implications of that hypothesis and see how well they are verified. A first implication is that constituent assemblies that also serve as ordinary legislatures will give preponderant importance to the legislative branch at the expense of the executive-president and cabinet and the judiciary. In Eastern Europe, this implication is relatively well confirmed. All the constituent assemblies were also ordinary legislatures. Except in Poland, the presidents are not strong. That exception does not, however, count as evidence against the hypothesis, as the presidency in that country was an artifact of the Round Table Talks rather than the creation of a democratic assembly. Except for Hungary, which adopted the constructive vote of no confidence, no country has adopted provisions that would strengthen the position of the executive vis-a-vis parliament. It counts against the hypothesis, however, that the constitutional courts are quite strong, except for Poland and Romania, where their decisions can be overruled by parliament with a two-thirds majority (Romania) or even a simple majority (Poland).

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Justin Blount, et al. “Does the Process of Constitution-Making Matter?” in Tom Ginsburg (ed) *Comparative Constitutional Design* (Cambridge University Press, 2012) 31-65. Footnotes omitted.

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Constitutional design: modes, actors, and constraints

Any particular instance of constitutional design must deal with certain basic questions of organization and process. These include designating who is to be involved; when that involvement takes place; and how the actors are to proceed in terms of formulating, discussing, and approving a text. There are conceivably as many variants on the process as there are constitutions, but several common patterns emerge. Constitution making occurs in discernible stages, some of which resemble an ordinary legislative process familiar to many drafters in consolidated democracies. (...)

These different stages interact with the possible actors who might fill the roles to create a matrix of options for designers. Afghanistan’s constitution of 2004, for example, was drafted in relative secrecy by a commission with foreign advice and then sent to the president’s office before deliberation and adoption at an inclusive constituent assembly, the Loya Jirga (Huq 2009). In this model – which appears to be relatively common – each stage is potentially consequential, although it is likely that inertial forces and the power of agenda setting will apportion disproportionate influence to those actors involved at earlier stages. Still, it is quite possible that early-stage actors will anticipate the preferences and needs of later-stage actors, thus mitigating any sequence effects. Elster (1995) develops the vivid distinction between “upstream” and “downstream” constraints in the process: Upstream constraints are imposed by the powers setting up the constitution-drafting body, whereas downstream constraints result from the anticipation of preferences of those involved in later stages. Ratification by public referendum, for example, is a downstream constraint that can hamstring leaders in an earlier stage, who recognize that their document must ultimately obtain public approval.

As this discussion of constraints implies, a critical variable in constitution making has to do with which actors are included in the process. Institutional scholars are used to thinking of actors as “veto players” (Tsebelis 2002), and the constitutional design realm is no different. As Widner (2007b) describes, actors involved in constitution making can include expert commissions, legislative bodies or committees, the executive, the judiciary, national conferences, elite round tables, transitional legislatures, specially elected constituent assemblies, interest groups and nongovernmental organizations, foreign advisors, and the public itself. Public involvement, discussed later in the chapter, has become the subject of particular attention in recent years, and is urged by scholars, governments, and international organizations. But not all constitutions involve the public, and some are drafted by a handful of leaders behind closed doors.

To sketch some patterns of actor involvement, we have gathered data on the process of adoption for 460 of the 899 national constitutions promulgated in the period between 1789 and 2005. The information on process reveals a pattern of constrained variation in the choice of actors. The principal actors include constituent assemblies, executives, ordinary legislatures, and the public through ratification referenda. At least one of these actors is formally included in 95 percent of the design processes in the sample.

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Certainly, a central dimension on which constitution-making processes differ is the degree of public participation. Because the constitution is the highest level of law-making and provides the ultimate rule of recognition for lawmaking processes, it requires the greatest possible level of legitimation in democratic theory. In an ideal world, one would desire universal consent over the rules of society, a standard that is obviously impractical. Our sense is that actual constitutional design processes employ scattered and usually rather anemic forms of popular participation and oversight to substitute for actual consent. Higher levels of participation are presumed to function like supermajority rules, restricting the

adoption of undesirable institutions and protecting prospective minorities in the democratic processes that are established. Participation thus legitimates and constrains, substituting process for consent to make effective government possible.

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Still another mode of participation involves direct consultation with the public or representative groups at various stages, which might occur before, during, or after the drafting of the initial text. The drafting phase would seem to be especially crucial, because we can expect a fair degree of inertia in the later stages of the process. But the phase is also likely to be the least participatory, given the challenges of writing-by-committee, much less “writing-by-nation.” Indeed, in some well-known cases, the public is excluded from the drafting process and not consulted at all.

Of course, actors and their accompanying constraints may come from outside, as well as inside, a state’s borders. An extreme case is that of the “Occupation Constitution, a document drafted when a country is under the control of a foreign military power. Such constitutions are usually presumed to have less involvement on the part of local actors, and hence to be less legitimate. Burnell (2008) believes that international involvement creates disincentives to enforce the constitution locally, as actors will strategically acquiesce to conditions they have no intention of fulfilling simply to remove external oversight. He cites Zimbabwe and the Lancaster House Agreement of 1979 as a prime example of this kind of behavior.

The voluminous literature on policy diffusion reminds us that policy reform is a highly interdependent process. Constitution making – often undertaken during moments of crisis when states are at their most amenable to foreign models and “suggestions” – may be especially interdependent and “networked” (Elkins 2009). Certainly, scholars have long noted a high degree of similarity across documents, and nearly anyone privy to the details of a case of constitution making can recount an episode of international borrowing. John Meyer and other sociologists working within the “world society” perspective point to constitutional isomorphism as case in point in their compelling globalization narratives. The persistence of presidentialism in Latin America, the use of French and Westminster models of government in former colonies, and the recent use of national conferences in Francophone Africa (Clark 1994) are all examples of diffusion, which occur on a subglobal level.

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The process can also vary in terms of time involved. At one extreme, the secretive process that led to Myanmar’s 2008 constitution took seventeen years. At the other extreme, a small group of American bureaucrats working for the occupation authorities drafted the basic form of Japan’s 1946 constitution in a little more than a week, and the entire process, including elections, legislative deliberation, and approval by the emperor, took a mere eight months (Moore and Robinson 2004). Which of these cases is closer to the mean? Japan, it seems, by a long shot. We randomly sampled 150 of the 806 cases of constitution making (new and replacement constitutions) since 1789, and were able to identify the start and end dates for the processes in 148 of those cases. On average, constitution making took 1.32 years in those 148 cases, with a standard deviation of 1.84. The median process length of the surveyed cases was 0.83 years.

Anecdotally, those constitution-making processes involving either a very short or very long amount of time seem to occur in non-democracies. Speedy processes do not allow sufficient time for mobilization of the public and civil society, whereas extended processes are unlikely to hold public attention for the duration. The record for shortest process, formally at least, may belong to the Romanian constitution of 1938, which instituted a brief period of royal dictatorship. A new cabinet taking power on February 12 of that year announced its intention to appoint a commission to draft a new constitution. A new text was published February 21, a referendum conducted using oral voting under a state of siege was held on

February 24, with promulgation by the king occurring three days later. This was an expeditious process, to say the least.

Another dimension on which processes differ is the size of the deliberative body. Bannon (2007) argues that the Kenyan constitutional design process was too bloated, with more than 600 delegates and two bodies producing drafts. Textual coherence and internal consistency appear to have been casualties of the process. Even Yash Ghai, the former chairperson of the Review Commission, noted that Uganda and South Africa managed the process with 300 delegates. To mitigate this problem in the future, Bannon recommends a smaller deliberative body with a greater focus on public consultation at the expense of extensive representation of all interests.

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Connecting process and outcome: micro-foundational assumptions

Assumptions about the motives of those participating in the process, be they elites or citizens, turn out to be central to hypotheses about the relation between process and constitutional outcomes. Nearly all the normative and positive work on constitutions proceeds from the assumption that constitutional politics are fundamentally different in character from ordinary politics. This is a central assumption of constitutional political economy, but also of much other thinking about constitutions and constitutionalism (Ackerman 1993). The basic idea is that legal or political entrenchment distinguishes choice about rules from choice within rules. Because constitutional designers operate without certain knowledge of their prospective position in post constitutional governance, they are presumed to pay greater attention to the public rather than the private interest. Furthermore, it is argued, constitutions are typically adopted during moments of crisis, and so likely to produce more attention to the general welfare and less likely to be dominated by special interests. Assumptions about motive also inform normative work on constitutional design processes. If one believes designers will act in their own self-interest, one might want to ensure maximum participation in the process to counter this tendency. On the other hand, if one believes that designers can take the public interest into account, one might design a process with more limited public involvement so as to facilitate elite deliberation. Elster (1995) postulates three types of motivations that necessarily are balanced in the constitutional design process: reason, passions, and interests. Reason represents disinterested principles; passions refers to emotional factors such as religious or ethnic animosities or sudden, impulsive desires; and interests may refer to those motives identified with the welfare of drafters, or broader groups or institutions of which they are a part. Elster believes that balance is necessary: A constitution that is too crudely identified with self-interest may fail to be adopted, as might one that is perfect in theory but fails to meet key needs of certain players (...)

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Hypotheses and evidence linking processes to outcomes

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Institutional Self-Dealing

It is common to think of constitutions as the product of various competing interest groups organized along economic goals, ethnic claims, or political ideology. It also seems plausible that drafters who occupy or seek to occupy government positions may act in the interest of their respective institutions. Once we consider this possibility, the institutional identity of actors in the design process becomes paramount. One theme in the literature is suspicion of legislators as constitution makers. As we described earlier, the legislative model of constitutional design involves electing a legislature to accomplish both ordinary and constitutional rule making, so that choices about constitutional design are bundled with the concerns of ordinary law. One problem with this bundling concerns interest aggregation: the voter's constitutional preferences may be traded off against other concerns in choosing

a representative. It may be that the qualities that make a legislator attractive to a voter (e.g., attention to local interests) are not what that voter would look for in a founding father or mother. More centrally, however, there is a reasonable suspicion that legislators will aggrandize their own institution in designing a governance structure. As summarized by Elster (1998:117): “To reduce the scope for institutional interest, constitutions ought to be written by specially convened assemblies and not by bodies that also serve as ordinary legislatures. Nor should legislators be given a central place in ratification.” The skepticism regarding institutional self-interest is certainly not limited to sitting legislatures. The critiques of legislative-centered processes would presumably be even more scathing for constitutions drafted in executive-centered processes, given the distrust of heavy-handed executive rule in democratic governance. Indeed, it is hard to imagine that a constitution such as that recently produced in Myanmar, ruled by a military junta that handpicked the drafters and the deliberative body, would undercut executive power. In another example, the Armed Forces Ruling Council in Nigeria, which reserved for itself a decisive editing role at the end of the constitutional process, rejected as tautological a provision drafted by the Constituent Assembly that would have made coup participants punishable by law (Ehinderro 1991). A general expectation of institutional self-dealing means that we ought to expect that executive-centered processes will lead to stronger executives in the resulting constitution.

Public Participation and Oversight

Elster (1997) generalizes that constitutions produced in more democratic processes will tend to be more democratic. Given the recent trend toward participation in constitutional design, it is worth inquiring how constitutions produced through participatory processes may be systematically different from other constitutions. A small literature nested in the larger trove of work on political participation more generally has generated a host of hypotheses. First, participatory constitutional design processes may undermine textual coherence (Voigt 2003). As Horowitz (2002) notes, even under the best of circumstances, constitutional “design” – a term he reserves for a cohesive process – is quite rare, with some process of incremental construction more the norm. Constitution making frequently consists of a combination of institutional borrowing, wholesale grafting, logrolling, and improvisation. As new, and more, actors become involved in the process, bargaining and negotiation becomes both more extensive as well as intensive. In addition, the populace may be subject to cascades that exacerbate the element of “passion” in constitutional design (Elster 1995). The constitution that emerges from this process will almost certainly be an ad-hoc creation, rife with internal inconsistencies and institutional mismatches. The loss of design consistency may be offset by resultant gains in legitimacy (Horowitz 2002), but it may also render the constitutional scheme unworkable. Additionally, simply increasing the number of actors is no guarantee of a more equitable outcome. The composition of a deliberative body is as important to the ultimate outcome as the number of members; extreme outcomes can emerge from a collective decision-making process (Sunstein 2001). A related point is that participation may also lead to more specific and detailed constitutional documents. Analogizing to the contracts literature, more diverse parties are likely to want to specify their bargain in greater detail because of distrust of counterparties and concerns about strategic nondisclosure of preferences during the bargaining process. Thailand’s 1997 document, for example, was designed to limit political institutions by setting up a large number of watchdogs, all elaborated in excruciating detail in the constitution. Similarly, if the public perceives opportunities for participation to be episodic, there may also be a tendency to seek to constitutionalize various institutions that would ordinarily be left to non constitutional politics. An example here is Brazil, whose 1988 process was a model of public participation involving citizen proposals on content. The resulting document is one of the world’s longest, at more than 40,000 words.

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A different line of critique emphasizes the difficulty of reaching agreement. More actors will, *ceteris paribus*, increase the transaction costs of negotiation, particularly when participants have veto powers over the adoption of new rules (Tsebelis 2002). A more open process can also make bargaining and the granting of concessions more difficult (Arato 1995; Elster 1995; Sunstein 2001). This is in part because the drafters will feel the need to signal positions to their constituents outside the process, potentially

leading to more extreme positions. The drafters may also be interested in using the bargaining process to grandstand, decreasing the possibility of agreement. Open processes of negotiation will tend to hinder tough choices and compromise. This suggests that participatory processes are less likely to produce a constitution, although arguably the documents that do emerge will be more legitimate.

The claim that participatory design processes generate constitutions with higher levels of legitimacy and popular support has been subject to only limited study. We can find case studies that seem to support both the more optimistic and more pessimistic hypotheses. South Africa is rightly celebrated as a case in which participation was extensive, and the resulting document scores well on measures of rights, endurance, and enforcement. On the other hand, Eritrea, Ethiopia, and Thailand utilized broadly participatory processes that had little to no effect on the subsequent political system. Thailand's 1997 process included a provision disallowing constitutional drafters from running for post-constitutional office for a period – a suggestion approved by the theoretical literature (Voigt 2003) – but this did not prevent electoral corruption from reviving. In fact, Thailand's participatory process appears not to have built a reservoir of support for the constitution, which died in a coup in 2006 without much ado (Kuhonta 2008). On the other hand, the constitutional orders in Germany, Japan, and Eastern Europe appear healthy despite the fact that these documents were either imposed by foreign powers or were the result of elite-level round table negotiations.

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One of the strongest theoretical claims about popular participation concerns its implications for constitutionalism – that is, a constitution's ability to constrain government. If citizens are to effectively police the actions of government, it must be sufficiently clear what constitutes a violation of the limits of governmental power so that citizens can mobilize to prevent it. Constitutions help resolve this coordination problem by generating common knowledge about the scope of acceptable government behavior and by providing a focal point for citizens to organize enforcement efforts. To the extent that popular participation in a constitutional design process serves to construct focal points, it will facilitate the coordination needed to deter potential constitutional violations by government. In the most optimistic scenario, the presence of a focal point in the written text, when coupled with the more robust civil society that emerged as part of a participatory design process, will ensure that the constitution will be enforced and not serve as a mere parchment barrier.

It follows logically that constitutional endurance, an important criterion of constitutional success (Voigt 2003), will be closely related to enforcement. Public involvement should enhance endurance by making enforcement more likely. Elkins, Ginsburg, and Melton (2009), in a book-length study of constitutional endurance at the national level, find that public involvement in constitutional adoption, as captured in the existence of a referendum or popularly elected constitutional assembly, was positively correlated with constitutional lifespan, at least for democracies. For example, South Africa's celebrated 1996 document has already lasted longer than the historical mean for constitutions on the African continent. Even though the world's oldest constitution (that of the United States) was not adopted by referendum, there was a relatively high level of involvement in its approval if not its drafting.

We might also speculate on further implications of participation for constitutional design. One influential view of constitutions conceives of them as a social contract among the citizenry, designed to limit demands by the state. In this view, one would expect that more participatory processes work like supermajority rules. As the veto power of minorities increases, one might expect the adoption of more minoritarian institutions, such as judicial review (Ginsburg 2003), bicameralism, and, assuming that relevant cleavages are geographically concentrated, federalism. Super majoritarian processes might produce super majoritarian rules and institutional configurations, to the extent that a rule-making body will produce others in its likeness. One can also expect that the use of referenda to approve the constitution may be mimicked with direct democracy institutions in the constitution itself. (...)

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(...). Inclusive processes will lead drafters to create more independent bodies, delegating powers away from the legislature... [P]articipatory documents will be more stable, in that there will be fewer demands for renegotiation down the road, and more legitimate. We might also expect that as the power of the citizenry in design processes increases, the number and extent of constitutional rights will increase as well. The American case, in which the Bill of Rights was inserted only after public discussion and debate, makes the point quite dramatically.... In more recent examples, we might expect that participation would be associated with “positive” socioeconomic rights, as the constitution becomes an instrument of redistribution.

[Kostas Chryssogonos below discusses the reasons that necessitate fresh constitution-making; whether the power of making constitutions of some groups should be limited or not (and the danger of not limiting that); and the impact on the constitution of the nature of its makers and how it is made.]

Kostas Chryssogonos, *Popular Involvement in Constitution-Making* (Presented at the World Congress of Constitutional Law, Athens, Greece, 11– 15 June, 2007). Footnotes omitted.

The nature of constituent power

The making of a formal, written Constitution can normally be attributed to a particular power, the constituent power, which is activated in a particular historical moment, following a fundamental political event. Such an event is (a) the creation of a new state, wherein the Constitution is intended to function, inter alia, as a kind of “birth certificate” for this newborn state, or (b) the end of a period of absolute use (and often abuse) of power, usually after a successful revolution, or (c) the abolition of an old Constitution and its replacement by a new one, which often coincides with a major institutional and social reconstruction of a country.

In any case, the exercise of constituent power is an unusual phenomenon with limited duration, because by enacting the Constitution this power fulfils its purpose and therefore ceases to exist. Only constituted powers (or functions), in other words powers provided for and limited by the Constitution itself, such as the legislative, executive, judicial and amending powers, can exist after the enactment of the Constitution. Of course, this does not preclude, from a historical perspective, the reappearance of the constituent power in the future, which will lead to the abolition of the Constitution and the enactment of a new one. However, it does mean that this reappearance is not legally scheduled and prescribed, since logically the Constitution cannot provide for its self-annulment (with some marginal exceptions, such as article 146 of the German Fundamental Law of 1949, which stipulated that the validity of the Fundamental Law would cease on the day of the enactment of a Constitution through the free decision of the German people, implying the prospect of reunification of Germany).

The first scholarly approach of the notion of constituent power, which determined the whole discussion, comes from the French priest Emmanuel Sieyès. In his (anonymous) leaflet, during the French Revolution of 1789, entitled “*Qu’est-ce que le Tiers Etat?*,” Sieyès declared the nation as the holder of a supreme power, which he called constituent. This power abides by no rules, substantive or procedural, and thus forms freely, based solely on the nation’s will, the framework of the organization and function of the (henceforward constituted) state powers. Deductively, the exercise of constituent power brings about a major historic split, namely it disrupts the normal sequence of the existing legal order and imposes the creation of another, at the top of which stands a new Constitution. Thus, not only is the former Constitution replaced (if there was one), but the validity of the whole existing legal edifice continues only provided that it will be either wanted or tolerated by the constituent power. Therefore, the latter cannot be judged against legal criteria, in other words on the basis of some kind of “legality,” since it abolishes the hitherto notion of legality, but only against pragmatic and political criteria, such as that of “legitimacy,” i.e. its social approval. Posed differently, constituent power is not defined by the law but rather defines the law itself, holding the “competence of competence,” namely the power to determine the powers of all state organs.

Conditions of the exercise of constituent power

The crucial question posed is when and how this legitimacy (or, according to Sieyès, the “nation’s will”) exists and expresses itself, given that there are no specific procedural stipulations. In other words, the conditions of the exercise of constituent power have to be clarified. During the first quarter of the 20th century there was an attempt to provide an answer in a “realistic” approach. Under this perspective, when a state is initially formed, as well as when it is constitutionally organized for the first time, we are dealing with a purely pragmatic fact, which cannot be legally categorized, since it is not governed by legal rules. The problem as to which organs in these cases express the nation is rejected as non-legal. Also later, when there is a political overthrow, due to a coup d’état (namely when this overthrow results from the actions of the repressive mechanisms of the state) or a revolution (when it is the presence of the people, or at least of a big part of it, which is predominant), there are no legal or constitutional rules anymore and “the constituent power will fall in the hands of the most powerful.”

This construction of the “most powerful” does not distinguish between an arbitrary power which seeks to perpetuate itself, even under the cover of a figurative (or sham) constitution, and a genuine constituent power, which by definition intends to establish a normative (authoritative) Constitution and at the same time ceases to exist (as it is obvious that the actual capacity of imposition is a general prerequisite to exercise power and establish law, without, however, being always sufficient to that end and, more importantly, without being able *per se* to lead to conclusions with respect to the kind of law or power). Since it omits this elementary distinction, the aforementioned theory may be used to legitimize efforts to break down the constitutional legality under the pretext of a supposed exercise of constituent power.

For instance, in Greece, the Supreme Civil and Criminal Court (Areios Pagos) gave a similar reasoning in order to approve the validity of the “constituent acts” issued by the military dictatorship (1967-1974) and “embellish” it as a “revolution.” More specifically, it was held that a “constituent act” of that time “is fully valid, as issued by a Government arising from a revolution which has prevailed and created law.” Concerning another “constituent act” during the same dark period, it was held that “it is valid ... since all legal obligations under the preexisting Constitution have been terminated” and indeed “it constitutes a revolution as turning against the supreme institution in the state hierarchy.” In that respect, the reversal in relevant judicial decisions subsequent to the restoration of democracy in July 1974 is notable: Both Areios Pagos and Council of State (supreme administrative court) recognized the “primary constituent power” of the new government of “national unity” by referring to the “unanimous” decision of the politicians and the armed forces on its formation as well as to the universal consent of the people. That was in fact a return to the theory of the nation as holder of the constituent power, although now it was the people who emerged in its place, without however making clear how the will of the people could be expressed in these cases.

In German constitutional doctrine in the period between the two World Wars, an answer equally dangerous –both ideologically and politically– as the notion of the “most powerful” was given to that question: It was maintained that the election of a representative body by secret ballot constituted a “method of the 19th century,” which would be mistakenly considered as an “absolute and definitive rule of democracy,” and that the will of the people “can only be proved in fact and not through a process that is legally prescribed.” According to this rationale, “the natural form of direct expression of the will of the people is the acclamation and the approval of the gathered crowd.” Seen in the historical context, this statement was paving the way for National Socialism. As opposed to that, it must be agreed that the process of exercising constituent power which aims to, and results in, the enactment of a normative, authoritative Constitution definitely entails a, more or less determinant, participation of a collective representative body that has been freely (that is to say with a multitude of candidacies, secret ballot, etc.) elected by the people.

The holder of constituent power

This leads us to the question concerning the holder of constituent power. Based on this criterion, we could make a distinction between “conceded” Constitutions, “Constitutions-conventions” and “democratic” Constitutions. We talk about a “conceded” Constitution when the person possessing the state power and the capacity of actual (violent) imposition, usually an absolute monarch, decides to share the power with his subjects and records this concession in a Constitution enacted unilaterally by himself. In any case, “concessions” of this kind, which were quite frequent in the German-speaking area during the first half of the 19th century, with the ultimate aim of preventing an emerging revolutionary outbreak, were limited in scope and occasionally repealed, as if the Constitution were a simple administrative act (as was the case in the kingdom of Hanover in 1837).

On the contrary, a “Constitution-convention” is established through the cooperation of the sovereign and the elected representatives of the people, whatever their name (constituent assembly, national assembly, etc.), thus expressing a compromise between the hitherto absolute monarchy and the social powers which support it, on the one hand, and the movement of constitutionalism (namely, mostly the emerging civil class) on the other hand. A compromise of this kind was also quite common in the 19th century, being on some occasions temporary and on other more permanent, together with a durable decline of the monarchic elements of government.

A Constitution may be characterized as democratic, from the point of view of the holder of constituent power, when it has been elaborated and voted by a collective representative body (constituent assembly, national assembly, etc.), elected through universal, equal and secret suffrage by the people, occasionally with some form of direct participation of the latter. This participation can take the form of submission of specific proposals through the collection of a number of citizens’ signatures or the form of public meetings and debates, or the form of consultation of a wide variety of non-governmental organizations, or, most often, the form of a referendum, either to approve in general the constitutional text decided upon by the representative body, or specifically to resolve a crucial issue (e.g. elected vs. hereditary head of state). In the case of a federal Constitution, the participation of the member states of the federation is frequent, e.g. by conducting separate referenda or calling ad hoc assemblies in each of them. It should be emphasized that a Constitution, which has been elaborated by the organs of an authoritarian regime and submitted directly to a referendum, is not a “democratic” one, in that sense, since in this way the people are deprived of the possibility to have an influential impact on its content. Moreover, historical experience shows that most often this process does not lead to the enactment of a normative (authoritative) Constitution, but only serves to disguise pure violence in a cloak of pretentious legality (e.g. the French referenda of 1799 and 1804 to approve Napoleon Bonaparte’s regime).

It is furthermore obvious that the procedure which leads to the enactment of a democratic Constitution, or even of a Constitution-convention, has to be regulated through legal rules. The will of the people is neither uniform, nor pre-existent, as far as the exercise of constituent power is concerned. It has therefore to be built and detected through organized, complex procedures of deliberation and voting. The rules that deal with those matters (e.g. the electoral system for the election of a constitutional assembly, the majority necessary for the approval of the constitution etc.) form a kind of a temporary pre-constitution. This pre-constitution has to come from the constituent power and could theoretically be changed at any time, since the constituent power recognizes no legal limits to itself. The need, however, to preserve the political credibility of the constituent power, during its exercise, puts practical limits to such changes. Therefore, the road map of the constituent power towards the conclusion of its work is marked by self-limitations, which are necessary in order to come to this conclusion.

The Interrelation between the Constitution-making process and the normative quality of the Constitution

In the most cases the genesis of a Constitution has a lasting impact on its existence thereafter. A conceded Constitution, for example, has probably only a limited chance of becoming a “normative” or

authoritative Constitution, which effectively sets the ground rules of political practice and constraints the government. The person (e.g. a hereditary monarch or a dictator) or the collective entity (e.g. a political party ruling a one-party state) that makes such concessions, often has the intention to give up only a very limited part, or indeed no part at all, of political power. In other words, their real aim is not to install a constitutional form of government but to prolong and/or disguise their authoritarian or totalitarian regime.

Therefore, conceded constitutions often turn out to be only figurative or sham or pseudo-constitutions. A constitution could be classified as figurative when it formally appears to be a valid constitution but will not be implemented or when it will be applied only selectively (in other words, under the precondition that its enforcement benefits the ruling political elite). We could further distinguish two categories of figurative constitutions.

There are, first of all, many declaratory or descriptive constitutions, which are phrased in a way which makes more or less clear that they do not contain a body of rules meant to be obligatory for everyone, but mainly political and ideological declarations. This happens when the (pseudo-constitutional) text has a narrative character (e.g. the extensive preamble of the Constitution of the U.S.S.R. of 1977, which was dedicated to the history of the revolution of 1917) or contains mainly general assumptions without any prescript or completely indefinite (and therefore subject to arbitrary definition from the agents of a totalitarian state) obligations for the citizens (as was the case with most articles of the aforementioned Constitution of the U.S.S.R.). In those cases, the pseudo-constitutional text is only a triumphant declaration of the “achievements” of the regime and not a binding fixation of its future course.

A second category of figurative or sham or pseudo-constitutions are those that serve merely as a pretense for the person or the ruling political elite that elaborated or “conceded” it. The normative deficit of those pretentious constitutions is not evident from their text solely, but can be found out by correlating special features of the text with the lack of respect for its norms in political practice. For example, immediately after the end of the French colonial rule, some African countries had given themselves constitutions based on the pattern of the Constitution of France of 1958. In several cases, the practical result was not, as in France, a semi-presidential system, but a “presidential” dictatorship, combined with a privileged political position for the members of one among the country’s many ethnic groups.

On the other hand, historical experience shows that constitutional texts which have been produced by a democratically elected constituent assembly tend in most cases to become normative or authoritative constitutions. A precondition, however, is that this assembly, or the political forces which are represented in it, have a real and effective hold on power during the constitution-making process and at its end. For example, the German constituent assembly that drafted the so-called “Constitution of the Paul’s Church” (Paulskirchenverfassung) on March 27, 1849 in Frankfurt, could not bring it into life, because in the meantime (between its election and the completion of its work) the hereditary rulers of the various German-speaking states had regained power after temporarily and partially losing it during the 1848 revolutions. This kind of constitution could be characterized as stillborn.

It should be noted that the aforementioned categories of constitutions are only ideal types, to which historic constitutions approach more or less but almost never fully correspond. Therefore, even authoritative or normative constitutions often contain some provisions which are not fully operative in practice, and, vice versa, figurative constitutions may include a number of operative provisions. The critical element in order to classify them as normative or figurative is whether the fundamental decision reflected in the constitutional text was to build a representative democracy or to disguise, or simply describe, a dictatorship.

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Mabvuto Herbert Hara, *Popular Involvement in Constitution-Making: The Experience of Malawi* (Paper Presented at the World Congress of Constitutional Law, Athens, Greece, 11–15 June, 2007). Footnotes omitted.

[Below you will first encounter a short excerpt from Herbert Hara's paper wherein you will note the peculiar approach that Malawi used in making its 1994 Constitution by first adopting an interim constitution for one year, although the author discusses the lack of genuine popular participation in the process. The practice of adopting or ratifying an interim constitution was first undertaken in South Africa in 1993; perhaps Malawi was influenced by the former's thrilling experience. Remarkably, South Africa's constitutional transition was undertaken as a discussed outcome between the forces represented largely by the white racial minority and the black majority. As it happened, the two camps first agreed on 34 supra-constitutional principles before going on to drafting and then adopting the interim constitution. Once the interim constitution was adopted, it was submitted to the constitutional court for the latter to certify the interim constitution against the 34 principles agreed upon by the political negotiations as overarching principles. Following the certification decision of the constitutional court, the two camps again renegotiated their differences based on the decision of the court, after which they resubmitted their agreed-upon document to the court. The 1996 Constitution of South Africa came out after all of these processes. Do you think the 1995 Constitution of Ethiopia should have gone through a similar making process? Would that have given it a different stature than it has today?]

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AN OVERVIEW OF POPULAR INVOLVEMENT IN CONSTITUTION-MAKING

Constitution-making has assumed greater prominence in the last decade than at any other time before in the quest for democracy. Modern Constitution-making requires the participation of ordinary people beyond the traditional power brokers. This has introduced the concept of ownership by the majority as a fundamental prerequisite to legitimacy. A Constitution must be a reflection of a people's history, fears, concerns, aspirations, vision and the soul of the nation. While a Constitution reflects the will of the majority, it must take into account the fears and concerns of the minorities. It must provide a common framework within which people of diverse or even diametrically opposed views, beliefs and cultures, are enjoined to interact without resorting to the force of arms.

To achieve popular involvement in Constitution-making certain requirements have to be satisfied.

First, the population must be educated about the role they will play in the formulation of the new constitution. Such involvement usually commences with public education, which is often a necessity in countries where democracy is a novel concept. Then, the populace must be informed about how democracy and constitutional supremacy work in general, and more specifically, about the possible considerations available to them in forming the Constitution. It is this involvement of the populace that gives the Constitution-making process legitimacy.

Second, the process of consultation must be inclusive. Consultation must not be limited to the elite or principal power brokers, but all classes of society must be afforded the opportunity to participate. Ordinary people must be empowered to make effective contributions to the debate and they must be provided with the necessary tools to participate through ongoing public programs using appropriate media and other methods to involve especially the disadvantaged and the marginalized.

Third, deliberate effort should be made to empower civil society. It has been observed that in Africa political parties have rarely been able exclusively to articulate the aspirations, vision, fears and concerns of ordinary people – civil society, with its shortfalls, has well filled this gap.

Fourth, the process must be open and transparent: the public must be informed and involved at all stages of the process of Constitution-making. The process by which citizens can make contributions must also

be made accessible in terms of physical proximity and language. There must be a continuous review and evaluation of the process to ensure that operating principles and standards are being adhered to. To remain true to the principles of public participation, constitutional bodies must be seen to be accountable. Thus working drafts may have to be made available to those who made submissions. The responsiveness of the consultation body can thereby be assessed.

The role of political parties on the Constitution-making process must be recognised; although they generally pursue partisan interests, they play a role in bringing issues for debate to the people at grassroots level.

The role of experts in the Constitution-making process also has a bearing on popular involvement in the Constitution-making process. To achieve popular involvement, the experts must be treated as advisors only, and they must not be allowed to arrogate to themselves the right to decide what the content of the Constitution should be.

POPULAR INVOLVEMENT IN CONSTITUTION—MAKING: THE EXPERIENCE OF MALAWI

* * *

1994 CONSTITUTION

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The Actual Process of Constitution-making

When some space had been created, many members of the pro-democracy movement came into the open. On 28th August, 1992, initially under the name “National Affairs Committee,” at a meeting attended by 15 members of the Movement, including representatives of the Catholic, Anglican and Presbyterian churches, the Muslim Association as well as the Law Society and the Associated Chamber of Commerce and Industry, the Public Affairs Committee (PAC) was founded. The PAC wrote to the Government demanding dialogue with the regime. After some resistance, the Government agreed. On the regime’s side, in October, 1992, the Presidential Committee on Dialogue (PCD), consisting of MCP executive committee members and cabinet ministers, was set up by the President. Thus began an institutionalised process of negotiations.

Following the defeat of the MCP in the referendum, the opposition demanded greater participation in shaping the process of democratization. This was the basis for the post-referendum agreement between PAC and the PCD to create an institutionalised negotiating council to implement the transition to democracy. They agreed to admit only representatives of political parties registered in Malawi. This excluded such civil society organisations as the churches, which had played a decisive role in the initial phase of democratisation. The National Consultative Council (NCC) consisted of seven representatives of each of the parties that were registered before November 30.

NCC began its work on August 28, 1993, although its legal basis was not established until December of that year. The NCC was established by an Act of Parliament “to oversee the transition from the one party political system to a multiparty political system in Malawi following a national referendum held on 14th June, 1993.” The function of NCC included participating in formulation of policies, initiation of legislative measures necessary for the transition, drafting new electoral law suitable for a multiparty political system, review law governing registration of political parties, preparing draft of a new Constitution to become effective after the first multiparty elections, and preparing draft Bill of Rights.

The Act also created an Executive Committee of the Council called “National Executive Committee.” The functions of the Committee included monitoring implementation of policies governing the transition, consulting with the Cabinet on measures relating to the transition to be taken in the management of the transition, and monitoring implementation by Government of legislation relating to the transition. The Council and the Executive Committee were served by a secretariat of public servants.

Drafting of the Constitution

As noted above, the draft Constitution was produced by the NCC. The drafting was delegated to experts from the various political parties, and, international experts with an advisory function only. The Constitution Committee had in its work oriented itself on the Constitutions of a number of Western countries (USA, the United Kingdom, German) as well as African models (Namibia, South Africa) because time was limited, and, because of a number of organisational problems, the Constitution was drafted in haste. The NCC approved the draft in a hurry, final changes were agreed a bare two weeks before the Constitution was proclaimed. The MCP approved the draft with reservations. The Constitution was then to be passed by Parliament.

International experts were involved in formulating clauses of the Constitution. National Democratic Institute (NDI) of the USA advised NCC on formulating the Constitution, highlighting problems and citing examples and alternatives from other countries. It has been observed that the external influence in the writing of the Constitution was great, since many members of the NCC had no knowledge of Constitutional Law, and thus no basis for comparison.

Popular Involvement in the Constitution-Making Process

Reflecting on the process, it becomes apparent that there can be no valid claim to popular involvement in the Constitution-making process. In the first place, none of the members of NCC were such by virtue of any popular elections; they did not have any direct mandate from the people to determine even the most basic framework of the Constitution.

Secondly, the NCC membership was limited to political parties (whose leadership was generally unelected at that time), excluding other members of the PAC who had played a crucial role in the dialogue with Government for change. The excluded members, who included the Faith Community, the Law Society and the Associated Chambers of Commerce and Industry, in Malawi, represented important constituencies, (Civil Society) whose views were important on what the Constitution should be. The process did not thereby satisfy the process of legitimisation.

It is noted that NCC did organise a seminar in November, 1993 which initiated the debate on changing the Constitution (the seminar resolved that rather than amending the 1966 Constitution, a new Constitution should be drafted). In February, 1994 NCC organised another Constitutional Drafting Conference with the guidance of the Legal Resources Centre attended by various social groups. However, a comprehensive, complex document could not be usefully discussed in four days.

The Constitution-making process further failed to satisfy the requirements of popular participation in that it was taken to the people through a referendum or similar process.

Further, the haste in which the Constitution was drafted did not allow room for popular participation in the Constitution-making process. The Constitution needed to be translated from English into the local languages and made accessible to the people before it could be adopted. The population was not at all educated on Constitution-making.

It is also quite clear that the significant influence of the “international experts” in the drafting process substantially influenced the content of the Constitution. Some of the recommendations of the international experts seem to reflect the Western Donors’ views of the Constitution to be created. It has been observed that the Constitution may arguably be among the world’s most liberal constitutions. But the question remains: Were the foreign experts’ recommendations applicable to the specific circumstances prevailing in Malawi? There was need for Malawians to understand, for instance, the nature of the relationship between indigenous moral values and constitutional principles, indigenous culture and human rights.

The Permanent Adoption of the Constitution

As noted above, the Constitution came into force on the 18th of May, 1994 provisionally for one year. Within 14 days of the first sitting of Parliament, Parliament appointed a Constitution Committee of the Speaker as Chairman, and, other ten members appointed by the National Assembly. The functions of the Committee included organising national education on the Constitution; organising a national conference fully representative of Malawian Society; inviting and considering proposals from citizens; receiving written submissions or hearing citizens personally, and laying a report of responses before Parliament.

Depending on the extensiveness of the proposals for amendments to the provisional Constitution, Parliament would either amend or repeal the Constitution.

The Committee conducted hearings on the Constitution in the 24 administrative districts of Malawi, which any citizen could attend and make proposals. However, this attempt to include the rural population (and the Malawi population is largely rural!) was largely ineffective. A number of hearings were not useful because the copies of the Constitution, which had been translated into the most important tribal languages, were not distributed in time, or only on the day of the hearing.

The Committee also did organise a national constitutional conference in February, 1995 which was attended by the 274 delegates from political parties, including those not represented in Parliament, and many Civil Society Organisations, such as the Churches, the Law Society, the Trade Unions, the Women's Associations and other NGO's, along with Traditional Authorities, the University, the National Bank, the legal system and the armed forces. The five-day conference discussed only contentious provisions of the Constitution. Every subject area was introduced by a brief lecture given by a Malawian expert and subsequently discussed in plenary. If no consensus was reached, a vote, by secret ballot, was taken. On a number of important issues, the conference participants voted against the proposals put forward by the United Democratic Front (UDF)/Alliance for Democracy (AFORD) Coalition Government. These included the senate as a second chamber, which delegates voted to retain in the Constitution; the right to re-call members of Parliament; creation of the Office of Second Vice President which delegates rejected; limit size of the cabinet. Out of 63 resolutions, 45 were unanimously voted for.

It is important to note that when the Constitution came before Parliament, the UDF/AFORD majority in Parliament ignored all the decisions of the Conference on which the Conference had voted against their positions, and pushed through their own amendment proposals. Thus Parliament suspended the Senate provision, which eventually was repealed, the recall provision was repealed, and the office of Second Vice President was created. On 18th May 1995 the Constitution came into force permanently.

It can be clearly seen here that the Conference, where the wider society had the opportunity to express their views on the form the Constitution should take, had virtually no impact on the Constitution-making process. Parliament had to decide what the Constitution should be. And this was a Parliament of members who had just been elected into power. There can be no pretending that the UDF/AFORD majority members of Parliament were motivated by the desire to promote national good. Clearly, there was a desire to consolidate their power, and make the exercise of their power less accountable. Perhaps herein lies the weakness of adopting a new constitution through Parliament without a referendum.

The desire to use or amend the Constitution to consolidate power against the wishes of the people, manifested itself again in 2002 and 2003 when attempts were made by the UDF Government, supported in Parliament, by AFORD and MCP, to amend the Constitution to remove the Presidential term limit of two. The plan was eventually abandoned due to pressure from the churches and civil society and donors. This experience is reminiscent of the making of the 1966 Constitution and its subsequent amendments.

Review of the Constitution after Ten (10) Years

Recognising that the Constitution was hurriedly drafted, and considering the volume of Constitutional litigation, especially among political players, prior to August 2004, calls were made upon the Malawi Law Commission to carry out a comprehensive review of the Constitution. The Law Commission proposed to the Government, and the Government agreed. In August, 2004, by a Press Notice, the Commission called for submissions from the general public to highlight problematic areas in the Constitution. The Commission also organised consultative meetings with target groups in all the three regions of the country, including civil society, politicians, chiefs, judicial officers and the youth. By March, 2006 the Commission had produced a 58-page Consultation Paper containing people's views on specific provisions. In March, 2006 the Commission held a three-day National Constitutional Conference bringing over 300 delegates together from a cross-section of the population. Issues were raised and views received from the floor. In June, 2006 a special Law Commission for the Review of the Constitution was set up in terms of the Constitution. The Commission has continued the work of countrywide consultations, through field trips, Phone-in Radio programs, Television programs, and many other forms of communication.

In April, 2007 the Commission held another three-day Conference where the interim report of the Commission was presented with recommendations, and further views from the floor were received.

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Mulisa Tom, *Public participation in constitution-making: A critical assessment of the Kenyan experience*, LL.M Thesis (Faculty of Law, University of Pretoria, 2009). Footnotes omitted.

[Below, you will see the discussion on another example of popular participation, this time in Kenya, that has been underway for over a decade. The process of approving a new constitution in Kenya gained momentum after the 2007 election crisis. The process has culminated in the adoption of the constitution by popular referendum on 4th of August 2010 and subsequent signing into law by President Mwai Kibaki, on 27th August 2010. In the paper excerpted below, Mulisa Tom, discusses important theoretical issues of popular participation as well as some problems perceived in the process of popular participation in Kenya.]

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Normative standards for constitution making

Effective Participation: The right of rights.

The notion of public participation has not been fully defined. It is, however, a concept that is widely recognised by both international and regional legal instruments. Participation purports the legitimisation of a new political order by creating a link between the framers of the constitution and the public. The right to constitution making is derived from the right to “democratic participation” as provided under the United Nations Declaration of Human Rights. Article 21 of the United Nations Declaration on Human Rights recognises the concept of public participation as “democratic participation” whereas Article 25 of the International Covenant on Civil and Political rights provides for every citizen's rights to take part in the conduct of public affairs. Article 13 (1) of the African Charter provides for public participation. The content of public participation has been expanded and developed to include other rights like political equality, freedom of speech and association. In the context of constitution making, public participation has been viewed to include openness throughout the constitution making process, access to information and shared responsibilities between the government and the civil society.

Effective public participation implies the involvement of the public at all stages of the constitution making including in the selection of members of the review process. The process of constitution making can only claim legitimacy and credibility if the people have been meaningfully involved in each stage of the process. There is need to involve the people at all levels whether in a constituent assembly or through a referendum. In some cases, the role of the public is limited to providing input in the drafting of the constitution and in the final decision making process of voting through referendum. Often, the public is not informed about the key individual players including the review commissioners and experts although the selection of the commissioners and experts marks the formal beginning of the process.

Issues like how and when the people should be involved in the constitution making process have been a subject of debate. In constitution making, public participation can come in different forms: namely a constituent assembly, public meetings and a referendum. Public participation can also be conducted in various ways, such as using the media and organising public meetings, depending on the available resources and the geographical area of coverage. This is not always an easy task. The South African constitution making process demonstrates the difficulty of engaging in effective dialogue with a wide population of 40 million people in a constitution making process. The people should decide whether the process should be carried out by a general convention gathering, target groups or visiting each constituency in order to get their views on the process and content. Effective participation also implies that each community, including minorities and the disadvantaged should be consulted. The quality of the process is determined by ensuring the participation of all those who have views and grievances which makes participation genuine and not a charade.

Consultation on the process and the content

The process of constitution making should be guided by consultation which yields to accountability. The consultation process should be transparent and inclusive. The South African Constituent Assembly pursued consultation based on the fundamental components of political representation, organized formations outside parliament and individual citizens. The South African process aimed at not only ensuring that people are part of the process but also that the process had to be seen as transparent and open. Consultation empowers the people since they are able to make effective contributions and submissions, indicating what they want to be included in the constitution.

The people as the custodians of the constitution should be involved in identifying the contentious issues and setting up the agenda for the constitution review commissions. Empirical evidence regarding the process of constitution making indicates that the process itself is not decisive without considering its prior creation and adoption. In situations where the people are not consulted in determining the contentious issues and challenging the credibility of the commissioners, the process risks legitimacy. The process of consultation should not be limited to the residents of urban areas but should be also extended to the rural population. The process must also be inclusive so as to cater for the various interests of the different groups in society, otherwise the process might end up being an elite driven process rather than a people driven process.

Inclusiveness of the process

The role of civil society organisations.

Civil society organisations have been recognised as an important force in constitution making process. Members of the civil society, both registered and unregistered, should be allowed to present their views both on the content and the process of constitution making. The South African constitution making process demonstrated the important role of the civil society in constitution making. The submissions by gender activist groups and other civil society organisations clearly had an impact on the constitution making process. The South African experiences show that civil society organisations were successful when they worked together on issues, especially lobbying for a comprehensive bill of rights in the constitution. Civil society organisations in South Africa, such as the Legal Resource Centre and the

National Association of Democratic Lawyers provided submissions for the inclusion of socio economic rights in the constitution.

During the South African constitution making process, members of the civil society took ownership of the process by contributing substantially to the process and carried out and disseminated information about constitution making to the members of their organisations. Ebrahim has noted that, since the South African constituent assembly could not reach more than 40 million people, the strategy of reaching the “people who reach the people” worked out better and had an impact on the constitution making process.

It has been argued that since most African societies are divided along ethnic lines, initiatives from civil society groups will address divisions. This is especially true of civil society organisations that are representative of groups, tribes and ethnicities. The capacity of these civil society organisations to listen and represent their people is drawn from Bratton’s argument that ethnic heterogeneity in leadership and staffing is as relevant to maintaining legitimacy in civic organisations as in the African state. The civil society organisations that are capable of representing the people are those that are ethnically based and structured.

The role of religious leaders

The right to religion and belief is enshrined in most international human rights documents. Each religious group ought to be represented and their views need to be taken into consideration. Religion plays an important role in society’s organisation and functioning. The constitution making process ought to include the various religious leaders and faith groups so as to achieve an inclusive constitution.

The role of women

Constitution making ought to be inclusive and must protect all especially vulnerable members of the community. In most African patriarchal societies where women have limited or no rights, constitution making is an opportunity to address gender inequality. Women’s participation in the constitution making process is also very important for fostering democracy and human rights. Women’s associations, both rural and urban, should be involved in the consultation phase. In South Africa, [w]omen played an important role in the... constitution making process.... [and] were able to bring shared experiences and perspectives, across party lines. More important, women were able to act in a united way in respect of gender-related issues like treatment of rural women under customary law. These issues were later resolved in favour of the equality of women.

* * *

Minorities and marginalised

The process of constitution making should put into account the concerns of minorities and the marginalised. The minorities could be tribal, religious or other divides depending on a particular society. The disadvantaged include all those who have been exploited by the political, economic and social structures. In any process of decision making, equal rights and justice should be of primary consideration. The exclusion of minorities from the process of constitution making affects the democratic character of the process. As noted by Osisa,

. . . [I]f an elite group determines the fundamental rights which are an essential component of democracy they face the charge of being undemocratic. If it is left to the majority to determine these rights, the majority, in its own interest, exclude a norm, such as that of equality, which by some international standards is regarded as an essential component of democracy.

Control of the agenda

Constitutional law expert Vivien Hart suggests that the people should be involved in all stages including the pre, during and post phases of the drafting of a constitution. The constitution making process should be controlled and owned by the people who form the “constituent power.” McWhinney weighs the role of the technicians and the people to whom he refers to as the general community. He is of the view that even if both are needed, the people need to have greater role on what should be included in the Constitution.

The question of control of the agenda arises in especially situations of power sharing where the constitution becomes a negotiated instrument among political players. In both South Africa and Rwanda, the elites framed the campaigns and provided personnel to the constitution making process but gave room for the public to effectively participate in the process by receiving submissions and visiting the rural communities.

In some situations, Parliament and political parties drive the process and the people are often neglected throughout the process. There have been controversial debates on the repository of the sovereign power since even constituent assemblies are representatives of the people. The people ought to participate through a structured process at all stages and the parliament should not determine the process. There were instances where the people have clearly rejected the role of parliament to control the agenda of constitution making. Political struggles and infighting within the various political parties in parliament may usurp the process from being a people driven process to a parliamentary driven process. This renders the people’s participation marginal as the process becomes politicised. The element of ownership leading to legitimacy can only be effective in case there has been enough civic education and understanding by the public. The participation can only be effective when the public understands the process as well as the content.

The level of civic education and awareness campaigns

The process of constitution making must empower the people through civic education programs. The population must be educated about the role they are supposed to play in the process of constitution making. The people must be informed about the constitutional framework and the possible considerations available to them in forming the constitution. The Rwandan and South African constitution making processes have been hailed for the levels of education campaign they conducted both in the rural and urban communities.

The South African experience of constitution making provides a good example on the role of a civic education programme that targets grassroots. The South African Constituent Assembly decided to run an extensive constitution education programme before seeking for public submissions. It has been noted that constitutional education is not only important for quality submissions but it also creates awareness in the community. The public education programs help in situations where the process is politicised and the people are inclined to vote for parties and leaders instead of the document.

Civic education programs should target all groups of people including women, the marginalised and disadvantaged communities. Civic education can take various forms including disseminating information in public gatherings, workshops and the media. It should also include visiting constituencies since the majority of the people cannot access newspapers, radio and television. In the case of South Africa, Skjelten notes that

Due to the fact that a significant proportion of South African population, often illiterate or semi illiterate was unable to access information about the constitution- making process, either in print media or television, the need for constitutional education about the public participation programme was crucial.

The provision of information is one of the basic elements of rulemaking as the beneficiaries are aware of their role in the process of rulemaking. The people should be provided the necessary tools, making it possible for them to make effective contributions to the debate. A constitutional making process need workshops, seminars, public meetings and people that are trained and knowledgeable about the process and the constitutional issues involved. In some countries, local offices are established all over the country to provide an access point to equip the people with relevant information pertaining to the constitution. In particular, this should be the case with the disadvantaged and marginalized.

Credibility and competence of the reviewing organ

The organs tasked to carry out the review process must enjoy a sense of credibility in the process. The commissioners and experts must be trustworthy, reliable, competent and persons of integrity. The organs of the review process must be de-linked from the political struggles of those in power and be able to serve the interest of the people who are the custodians of the process. The credibility and competence of the organs, commissioners and experts has an impact on the outcome of the process. The commissioners and experts should work towards implementing the wishes of the people than safeguarding the interests of the various political players in government. The credibility and competence of organs, commissioners and experts has an impact on the outcome of the process.

Since independence it has been a practice for many African countries to adopt constitutions through the use of commissions and experts. These commissions and committees of experts have come under criticism for failing to produce durable and long lasting constitutions. The commissions and committees have always been susceptible to manipulation by those in power who have often imposed their own constitutional order. The Zambian experience of the draft Constitution of 1996 demonstrates how constitutional making by the Commissions can be influenced by the government in power for their own interests and commissioners being divided along the different power struggles. The selection and final appointment of the commissioners should be credible and impartial so as to gain legitimacy and confidence from the public who are the custodians of the constitution. The danger of constitutional elitism surfaces in cases where those engaged in the constitution making process are well known politicians with vested interests. Sajo describes the authenticity of a constitution as a product of the personal credibility of individuals who are not influenced by socially acceptable interests and whose personal integrity is respected in the community.

Political will

Constitution making is also a political process. The people in positions of power will ensure a process and machinery that protects their interests. The opposition parties will see this as an opportunity to change the government. In power sharing governments, the question seems to be more complex as there is always no consensus on leadership and policy issues. It has been argued that governments, aware of the politics involved in constitution making, have often shaped the choice and process of constitution making with the view to protect their interests. The Eritrean conference and Kenya's Bomas conference were constitutional making processes which fulfilled most of the requirements of participatory democracy but were brought down by leaders. It has been suggested that the political leadership needs to be an honest broker throughout the whole process with the spirit of nation building. It is believed that "Society will not attribute legitimacy to the constitution if the leadership is seen corrupt or having mala fides." Political will remains one of the fundamental and underlying foundations of achieving a constitutional order.

Timing

In constitution making, the time allocated for each stage and phase matters. The problem is that in most countries, the constitution making process sets the foundation in post conflict countries for incoming elections. This leads the drafters and the organs to work under time constraints, sometimes even omitting important information that would have been received from the public. It is also more

problematic when the constitution making process happens immediately after or before a political moment in country's history. In countries that are preparing for elections, it would be difficult to identify the genuine interests of the various groups and parties as some of contributions will be based on partisan politics and power. Ebrahim provides the difficulty of timing in South Africa as the constitution making process happened after what he describes as a "liberation election." It was difficult for the ordinary South African citizens to distinguish the process from the government 's delivery of services.

More important are the time frames allocated for the constitution making process and how they impact the outcome. The South African constitution making process took six years owing to the history of apartheid and the prolonged dialogue between the stake holders. The Nigerian Debate Coordinating Committee in Nigeria was given two months and this was criticized as minimal and impugned upon the quality of the content. If the time allocated to the organs and a commission charged with constitution making is minimal, it will have an impact on the outcome of the process. An effective constitution making process should allocate sufficient time to each stages of constitution making process to allow effective, professional and efficient process.

The referendum

The constitution making process sometimes ends with the people deciding through a referendum. A referendum is a mechanism which provides an opportunity to the people to decide on a particular issue or decision made by a governmental body. In constitution making, the referendum will be the endorsement of the people to the constitution by the people.

The process of how a referendum is organized is as important as the outcome of a referendum. The public should be educated about the referendum politics. In some situations, this becomes an opportunity for those who are not satisfied with the process to hinder the constitution making process. The people must be educated and knowledgeable about the referendum process and how it is conducted. The people should be aware of what they are approving and disapproving through a referendum. The choice of the terminology of what to vote for in a referendum is as important as the contents of the referendum. The referendum organizing body should determine what people are voting for and against other than the referendum being an extension of political scuffles and fights. Referendums should be seen as making decisions on laws that will affect policy and decisions, not voting for political parties in power.

* * *

Questions and Discussion

1. How do you view the significance of popular participation in the process of constitution-making? Suppose that a certain government of a certain state has commissioned a very experienced group of experts and drafted an excellent constitution which is relevant to the state in question, and that this constitution was ratified by the legislative assembly of that state. Do you think the legitimacy of this constitution will be affected? Reflect on the above question after thoroughly reading Mulisa Tom's piece in particular.
2. In situations where popular participation is to be made possible, what are the conditions to be fulfilled in order to create an effective participation?
3. Kostas Chrysogonos list some of the instigators of constitution making exercises in his article. Do you agree with him that those are the major instigators for embarking upon a constitution making course in a nation's career?
4. Kostas Chrysogonos discusses in connection with the difficulty (and the danger of) determining popular will in constitution making process to various types of constitutions as "conceded Constitutions", "Constitutions-conventions" and "democratic" Constitutions. First reflect on his discussion on the difficulty and danger associated with establishing popular will, and then discuss

the three categories he created for constitutions on the basis of their making approach. Following his approach, where would we place the 1931 Constitution? The 1955 Constitution? The 1987 Constitution? The 1991 Charter of the Transitional Government of Ethiopia? And the 1995 FDRE constitution?

5. Chrysogonos also creates an interesting parallel between the normativity and longevity of constitutions with the category in which the constitutions are found. Do you agree with his observations in this regard?
6. Mabvuto Herbert Hara says that constitution-making has assumed a great intensity in the 1990s. Is that observation a sound one? What was special about the 1990s?
7. Gabriel L. Negretto discusses about moments when new constitutions are enacted and other cases where the problems of the existing constitution can be addressed through constitutional amendment. What are the different settings he refers to? Do you agree with his position? Suppose Ethiopia wants to address problems in the existing 1995 Constitution? Which way do you recommend for Ethiopia to go? Why?
8. What are the reasons Jon Elster discusses as precursors of constitution-making processes? Do you think the presented reasons apply to Ethiopia as well? Elster also mentioned that events in one country trigger similar ones in other countries. What are the examples he considered? Does his argument resonate with what has happened in Africa in the 1960s and 1990s?
9. Professor Elster also talked about “upstream constraints” and “downstream constraints” what do these notions signify in Elster’s discussion of constitution-making processes?
10. Justin Blount et al. discuss determinants of constitution-making that contribute towards the effective implementation of the constitution once the constitution has entered into force. What are those determinants? Do you agree with their view?
11. Justin Blount et al. also state that constitutional politics is different from ordinary politics. What do they mean by that?
12. What are the problems Justin Blount et al. say may be brought about by constitution-making through public participation?

2. The Making of the 1995 Ethiopian Constitution

The making of the 1995 Constitution of Ethiopia does share in both the good and bad stories of constitution making around the world. You may take an interest in and look at the fact that its making was held as a political program by the winners of the liberation struggle as this was expressly stated in the Charter of the Transitional Government. The making process by and large followed the policy declaration that was made in the 1991 Transitional Charter. In 1992, a constitution-drafting commission was established by law (Proclamation No. 24/1992). At the first meeting (on 12 April 1994) of the Council of Representatives (CoR) of the Transitional Government, which met to discuss the draft constitution, the Chairperson of the constitution drafting commission (CDC), Mr Kifle Wodajo, stated that the Commission undertook its tasks based on article 10 of the Transitional Period Charter and Proclamation No. 24/1992 by undertaking several public consultations on various constitutional concepts. He also noted that the Commission had undertaken the drafting task by dividing itself up into four committees: governmental structure committee; individual and group rights committee; legal affairs committee and miscellaneous committee. He went on to briefly state the fundamental structures of the draft constitution, such as forms of government, its republican nature, independence of the judiciary, and individual and group rights recognized in the draft.

Looking at the minutes of the CoR which show the content of the draft presented to it, one can see the many fundamental changes that were introduced down the line up to the point when the constitution was ratified by the Constituent Assembly on 8 December 1994. The major changes include: the decision to strip the House of Federation of the legislative power on state-related matters; the removal of constitutional court (replacing it with the current Council of Constitutional Inquiry); and equal representation of the regional states in the House of the Federation. The changes brought about in the

individual articles and provisions were also quite considerable. To just mention an example, the CoR has approved the draft that made the right to life non-derogable in public emergencies.⁵ But when the constitution was finally ratified it came out with a provision that makes the right to life derogable during public emergencies.

The following excerpt from Tsegaye Regassa's article provides a helpful account of the making process of the Ethiopian Constitution. Read critically Tsegaye's interpretation of some of the events that were documented and make your own reflections upon them.

Tsegaye Regassa, "The Making and Legitimacy of the Ethiopian Constitution: Towards bridging the gap between constitutional design and constitutional practice," in *Afrika Focus*, Vol. 23, No. 1. (2010).

* * *

The Making of the Constitution. The process of the making of the 1995 constitution was principally guided by the provisions in the Transitional Charter. According to the Charter:

"The Council of Representatives shall constitute the Constitutional commission [sic] to draw up a draft constitution. The Constitutional Commission shall submit to the Council of Representatives the draft constitution." (Article 11).

"Upon adoption of the draft constitution by the Council of Representatives the constitution shall be presented to the people for discussion. The final draft shall be presented for adoption in the constituent assembly to be elected pursuant to the final draft of the constitution." (Article 12).

These two provisions guided and permeated the constitution making process in Ethiopia. One notes that the issue of the composition of the drafting commission was not detailed in the Charter. One also notes the important role the COR [Council of Representatives] is anticipated to play in the deliberation on the constitutional draft, in addition to its role of establishing the Commission, deciding on the commission's budget, and overseeing its activities.

In 1992, the Constitutional Commission was legally established. Proclamation no. 24/1992, alias "Constitutional Commission Establishment Proclamation," was adopted by the COR. Physically placed in the premises of the Institute of Ethiopian Nationalities (as per article 3) – one cannot help but to note that this was also the place where the PDRE Constitution of 1987 was drafted, and speculate on whether there is more continuity than we normally assume – the Commission had the mission of preparing the draft, submitting the same to the COR, presenting the draft as adopted by the COR to the people, incorporating the comments in the final draft as may be deemed necessary, and finally submitting the final draft to the Constituent Assembly (art 4). The tasks (under art 5) included drafting the text, conducting seminars, symposia, and educational discussions (perhaps with a view to creating the "festive mood" that attends a "constitutional moment"), disseminating the draft constitution to the public, gathering comments (especially from the regions and districts), explaining the draft to the public in the course of the discussions, preparing the final draft, submitting periodic reports to the COR, and others. It is interesting that art 5(5) says that the commission has "to receive comments from national/regional and Woreda councils on the draft constitution." This was perhaps meant to make sure that the exercise was not going to take merely a top-down approach. Moreover, the Commission was given the mission to prepare the draft "*in conformity with the spirit of the Charter*" (art 4). It was

⁵ See minutes (Amharic) of the 94th Ordinary Session of the Transitional Government Council of Representatives (April –May 1994), p. 289.

obvious that the constitution was meant to be an instrument of advancing the aspirations of those who negotiated the Charter. To that extent, then, it was the extension, a natural historical outgrowth, of the Charter.

The Commission was organized in such a way that it had a 29-member General Assembly (GA), an Executive Committee, and various other (expert) committees (art 6). The composition of the GA was as follows (as per art 7): 7 members from the COR, 7 members representing various political parties, 3 members from Trade Unions, 2 members each from three professional associations (of Teachers, Lawyers, and Health Professionals), 3 members from the Ethiopian Chamber of Commerce, and 3 members representing women. With regard to the representatives of women, it is unclear as to how, and from where, they were to be selected. It was not clear if political parties represented in the COR were also to be part of the GA thereby doubling the representation of the dominant party in the COR. The GA was granted the powers and duties vested in the Commission (art 8). So the GA was a proxy for the Commission. The Chairs (both the Chief and the Deputy) and the Secretary of the GA were to be appointed by the COR, and, indeed, were so appointed.

Steps in the Making. As is the case wherever constitution-making is considered, the making of the Ethiopian constitution underwent the stages of drafting, deliberation, adoption, and ratification. More or less in a manner the proclamation dictates, the drafting process was accomplished in the Commission. In the Commission, as observed by Meaza Ashenafi (2003):

debates were lively. The chairperson of the Commission encouraged decisions by consensus, though it was not always possible to reach a unanimous decision. The diversity of the Commission members meant that a great number of interests were represented. Informal lobbying and negotiations were part of the process. Nonetheless, the Ethiopian Peoples' Revolutionary Democratic Front (EPRDF), the ruling party, always dominated when an issue came to a vote, as it had the largest delegation.

In the course of producing the draft, the Commission also consulted a large number of foreign and local experts. In an attempt to benefit from comparison, other countries' constitutions were also referred to (Ashenafi 2003). Concept papers that outline various alternatives (of principles, institutions, and systems of government) were prepared and disseminated to the public for discussion (Ashenafi 2003). This effort was often aided by Inter-Africa Group (IAG), a Civil Society Organization active in the process. The IAG helped organize a number of workshops and symposia and published the papers presented in the course of the proceedings. Nevertheless, Ashenafi (2003) concludes, "this should not give the impression that the process was fully participatory. Those who were not sympathetic to the transitional government and were dismissive of the whole process did not take part in the consultation; they believed that participation would be "legitimizing" the process. Another group, which was not politically active, was not interested." Ashenafi is not clear as to which ("other") group was uninterested. The point stands, however, that the process was not fully participatory.

In a similar vein, James C.N. Paul observes that

there was little meaningful public participatory debate, especially debate focused on devolution versus ethnic federalism, let alone sovereignty or self-determination. [...], opposition parties withdrew. Instead of debating the content of the constitution, they denounced the legitimacy of the whole project. Just as the EPRDF controlled the Constitutional Commission's work, so it controlled the election, and then the deliberations, of the Constitutional Assembly. (Paul 2000: 189).

Paul also refers, albeit only tangentially, to the fact that, on assumption of power, the TPLF was instrumental in "establishing an essential foundation for a federal constitution, creating de facto one-party rule, marginalizing Amhara and Oromo opposition, and liquidating the Eritrean problem." The issue of the exclusion of the numerically dominant Oromo and Amhara groups from the constitution-

making process is more boldly spelt out by Ugo Mattei (1995: 114) who points to the weak popular support for the constitution among these groups. In his own words, he says, “none of the political and ethnic forces which make the opposition to [...] (EPRDF) had participated in the Constitutional making. All opposition parties, most importantly, those representing the Amhara and Oromo groups (38 and 35% respectively) withdrew from the electoral competition. The new constitution is therefore supported politically and ethnically only by the Tigrayan minority which counts less than 10% of the population.” Paul (2000: 189) also observes that “in view of the constitution’s content, it seems regrettable that the processes for making it were so flawed”. It is interesting to note, as shall be argued later, that the content of the constitution – in spite of the “flaws” associated with the making – is what warrants the project of redemptive constitutional practice.

The draft was subsequently presented to the COR in 1994, and there the first phase, the phase of drafting, was completed. At the COR, there was a lengthy discussion on every provision of the draft for [12 sessions (days) between 12 April and 2 May 1994]. There is, in fact, a voluminous body of compilations of the minutes of the meetings of the COR on the constitution for those of us who would like to learn about the substance of the discussion and about who said what. The details described rather copiously, I assume, are rather staggering. Most of the sessions of the discussion and the (at times spirited) debates were nationally televised. The discussion was informative in many ways. To most of my contemporaries, there was much more fun than might be expected of something that determines the destiny of the polity for years to come. After the draft was deliberated upon and was eventually adopted by a majority vote in the COR, it was presented by the Commission to the public. Thus, discussions were staged in the Kebeles. In Addis Ababa, school premises were used for the popular discussions. The turnout was low. Interest was at its minimum for a constitutional deliberation. (This is in part based on personal observation of the situation in the Summer of 1994). At the end of the public discussions, the second phase, the phase of deliberation, was closed although a new discussion, meant only for adoption, is yet to start in the Constituent Assembly. Regarding the process of the discussions that led to the adoption of the constitution, John Markakis (2007: 58) observes that it was “largely unanticipated,” and followed “a brief but intensive period of publicity to mobilize support.” He goes on to say that, because the process was rushed, “it is fair to say that not many Ethiopians who live in the countryside have a clear notion of what federalism means, or had the opportunity to express an opinion on its merits. There was simply no time to form a national consensus on the legitimacy of the new political system.”

The third phase, the phase of adoption of the draft constitution (as enriched by comments from the COR and the people, much less by the latter), started immediately upon the election of the members of the Constituent Assembly. The discussion in the Constituent Assembly was also lengthy. The discussions ended with the adoption of the final draft submitted by the Commission to the Constituent Assembly apparently after incorporating the comments in December 1994. With it ended the third phase and the formal process of constitution-making in Ethiopia. One can take the adoption by the Constituent Assembly as a form of ratification of the constitution by the people albeit indirectly through their representatives. Consequently, but unlike other systems, there was not a popular ratification of the constitution through referendum. Ratification through popular referendum, it is argued, would bolster the degree of popular support the constitution now commands. But given the general lack of the festive mood attendant to constitutional moments, and the fact that the process was rather speedy, as Markakis (2007) observed, one wonders if the referendum, apart from allowing one more opportunity for participation, would result in a different content.

Who are the makers? Formal legal analysis aside, who are the real makers of the constitution? Who are the key actors involved at the drafting, deliberation, and adoption stages of the constitution-making process in Ethiopia? The question of who, the “political question” (à la Rorty 1996), is important in constitution-making perhaps because, as Elazar (1994: 14) says, constitution-making is the “pre-eminently political act.” The answer to the “who” question requires substantive research into the identity, the political affiliation, and the educational orientation, etc., of the members that constituted the GA of the Commission, the COR, and the Constituent Assembly. This has not been undertaken in the research leading to the writing of this article. But one can conjecture as to the political- party

composition of the COR and the Constituent Assembly; at least one can state without exaggeration that the EPRDF was a dominant partner in both institutions, and so in the entire process (see Ashenafi 2003 and Paul 2000). This is partly the cause of the discontent seen among some political corners. Not entirely unexpectedly, the discontent undermined legitimacy.

* * *

Questions and Discussion

Twenty-six years after its entry into force, the 1995 Constitution of Ethiopia has not been formally amended at all. Of course changes to the Constitution have been brought about by political practice and through constitutional interpretation as well. One can cite changes made to article 98 (on joint taxation power) as one such change through informal policy adjustment primarily by the decision of the national government. An example of the change through constitutional interpretation is the procedures for determining identity claims presented by communities to be recognized as distinct nation/nationality/people. This change was brought about by the decision of the House of Federation in the *Silte* case (further discussed in chapter 12) below. Other than these very limited changes, the constitution remained unchanged. It obviously is strange to see that the Constitution was not amended even once so far. What do you think is the main reason for this state of fact? Do you think this is because of the resonance of the Constitution with most of the Ethiopian people?

It is possible that you may see the reason for the Constitution's not being amended till 2022, even once, from a lot of different angles. One thing that has always been there but has emerged more clearly over the past few years is the demand for amending or even discarding the Constitution in order to solve the socio-political and legal problems of Ethiopia. The calls permeate political party and ethnic lines. Those who were highly attached to the making of the Constitution, Primarily the Tigriyan People's Liberation Front (TPLF), the Oromo People's Liberation Front and others having closer political outlook are largely against amending or changing the Constitution. Others, especially those in favour of the prominence of national citizenship (rather than ethnic citizenship) and also those who felt excluded from taking part in the making of the constitution and overall political transition since 1991 (such as parties and intellectuals purporting to cater for the Amhara, cosmopolitan citizenry, and those who can generally be termed "pan-Ethiopianists") are in favour of either overhauling the constitution or discarding it in favour of a new social contract.

The latter group accuse the Constitution of institutionalizing the most formidable ethnic politics; weakening the country by declaring an unconditional right to self-determination, including secession, of the ethno-linguistic communities in the country; territorializing ethnicity thereby turning Ethiopian citizens into owners and non-owners of ethnic regions and sub-regional entities. They also accuse the Constitution of undermining the synergy and natural integration of the Ethiopian society.

The existence of these polarized views about the Ethiopian Constitution is a reflection of the polarized (mostly left-leaning) political views of the elites from 1960s on wards. The mainstream political view embodied by the TPLF and allies that seized power by defeating the Derg subscribes to the view that Ethiopian political crises have emanated from national oppression. This view holds that the Amhara dominated Ethiopian state that incorporated most of the societies other than the Amhara and Tigre communities by the early 20th century has had oppressed these newly incorporated societies. The argument goes thus that rolling out the right to self-determination to the "oppressed" ethno-national groups is the solution to deal with the political crises. Do you think this is a sound characterization of Ethiopia's political problems of the 20th century? Do you think there has been a national oppression in Ethiopia during the times of Emperor Menelik II? Haile Sellassie I? Mengistu Haile-Mariam? Was the governance and political realities of Ethiopia during the EPRDF (r. 1991-2018) different from the Derg under Mengistu? What are the differences if any? How do you see the governance reality under the post-2018 administration?

In a paper I wrote in 2018 (published in vol 25, no.1 of the *International Journal on Minority and Group Rights* (2018), pp. 1-50), I argued that the real problems of Ethiopian politics is the lack of democratic governance. All governments of Ethiopia from the 20th century till the present—although the post 1991 government responded to some issues while creating new problems and worsening some existing ones—have been undemocratic and even authoritarian. If true and genuine democracy were put in place with well-crafted-agreed-upon policy regarding self-government, linguistic and cultural rights of the ethno-linguistic communities, Ethiopia would have no doubt been a well-functioning society. The long interacting and intermixing society it has forged through millennia have more in common than that sets its members apart.

My view still is that we can create a strong and vibrant Ethiopian society, before which great future lies, if we resolve the democracy deficit by creating a well negotiated mode of organization of political power both at the national and sub-national levels. In my view, looking at the Ethiopian political crises through the prism of ethnic oppression breeds more division, isolation and animosity among the Ethiopian ethno-linguistic communities than help deal with the political problems. I contend that after three decades since the purported implementation of the rights to self-determination in line with the thesis of national oppression, we still find ourselves in more or less the same political quagmire. Major issues of the grass-roots communities have not been resolved. This demonstrates beyond a shadow of doubt that the real problem was that of lack of inclusive democratic governance than anything else.

Do you agree with the view I advance? Or are you rather persuaded by the national oppression thesis? I hope you will deeply engage in deciphering these issues by agreeing, or disagreeing with your fellow students who have views different from yours. That is how we should advance our points of view. By trying to understand the points of view of other persons who happen to hold views different from our views. Respectfully disagreeing with points of view you do not agree with is an aspect of a mature deliberation.

CHAPTER THREE

AMENDMENT AND REVISION OF CONSTITUTIONS

Walter Murphy (in Walter F. Murphy, “Constitutions, Constitutionalism and Democracy,” in Douglas Greenberg, et al. (eds), *Constitutionalism and Democracy: Transitions in the Contemporary World* (Macmillan Publishers Ltd., 1993)) says that the constitutional text of every major nation explicitly provides for its own amendment. Amendment is without any doubt the most formal way in which a constitution takes care of problems from which it suffers. He accurately also notes that there are other means to change a constitution, usage and interpretation being among the most common.

Donald Lutz (“Towards a Theory of Constitutional Amendment” 88(2) *American Political Science Review* (1994) 355-70) observes that the notions of popular sovereignty, human fallibility, efficacy of deliberation and the distinction between ordinary matters and constitutional matters undergird the necessity of amendment of constitutions. Thus, since human beings are fallible, provisions for altering institutions when experience reveals their flaws and unintended consequences. Related to this again is the human shortcomings as being unable to foresee all the future needs to devise a perfectly complete constitution. The notion of deliberation is linked to the making as well as amendment of constitutions because of the fundamental importance attached to constitutions that requires extra-ordinary number of national population to deliberate in the amendment as in the design. This also explains the third point for the theory of constitutional amendment, i.e., the distinction between constitutional matters and ordinary matters. This distinction implies that constitutional matters require a distinctive, highly deliberative process and thus implies the need for an amendment procedure more difficult than that used for normal legislation. These notions justify the importance given to Constitutional amendment. At the same time, they explicitly underscore the necessity as well as inevitability constitutional amendment.

In terms of the historical pedigree of constitutional amendment, Lutz indicates that the constitution of the American state of New Jersey of 1776 contained the first known implicit reference to amendment, followed by an explicit reference to the process (to be by a convention method) in the 1776 Pennsylvania document. By 1780, almost half the states of the US had an amendment procedure, and the principle that the fundamental law could be altered piecemeal by popular will was firmly in place. From the 19th century onwards, amendment provisions have become integral part of almost all written constitutional texts.

Although, the integrality of amendment rules and procedures to constitutions is a settled matter now, the question of when should amendment as a way of altering or changing constitutional texts be resorted to (in view of the existence of other less formal way of changing constitutions) is still relevant. Read the following excerpt from Murphy, cited above, as regards to which mechanism of constitution changing should be resorted to in a particular case.

* * *

According constitutional change as inevitable still leaves open questions of whether some paths can lead to legitimate change and whether there are limits to valid mutation. One might argue for a hierarchy of efforts at legitimate constitutional modification, from usage to interpretation to formal amendment: the more fundamental the change, the more weighty the reason for resorting to formal processes and the more weighty the reasons for directly involving the people themselves, as do Australia, Ireland, and sometimes Italy.

The second question poses greater intellectual difficulty. Are there substantive limits to valid constitutional change? Under two circumstances, the case for such limits is very forceful. First, if the text is authoritative and specifies limits, they should be observed or changed only in accordance with the document’s terms. And some texts do contain “unamendable” provisions. For example, Article V of the U.S. document forbids denying any state, without its consent, equal representation in the Senate. Article

79 (3) of West Germany’s Basic Law forbids amendments that would destroy the federal, democratic, or social nature of the nation, release legislation from the constitution’s restraints or the executive or judiciary from those of “law and justice,” lessen human dignity, or remove the right of the people to resist subversion of their constitutional order.

The second circumstance under which the case for restrictions on constitutional change is strong occurs when a constitutional text represents an agreement among a people, functions as a limitation on as well as charter for government, states a people’s goals and aspirations, and embodies normative political theory(ies). Then the very nature of the document itself may outlaw some kinds of amendment—for instance, those curtailing rights to political participation. As we have seen, some German, Indian, and even U.S. judges have directly addressed this issue: Certain principles bind those who would amend as well as those who would create constitutions in a democratic-constitutionalist mold. Provisions that violate those principles, even if lodged in the basic text itself, are void.

As applied to constitutional amendments, the gist of the argument is that “to amend” comes from the Latin “emendare,” to correct. Thus an “amendment” corrects or modifies the system without fundamentally changing its nature. An “amendment” operates within the theoretical parameters of the existing constitution. A proposal to transform a central aspect of the compact to create another kind of system—for example, to change a constitutional democracy into an authoritarian state, as the Indian Court said Mrs. Gandhi tried to do—would not be an amendment at all, but a re-creation of both the covenant and its people. That deed would lie outside the authority of any set of government bodies, for all are creatures of the people’s agreement. Insofar as officials destroy that compact, they destroy their own legitimacy.

This argument does not deny the legitimacy of radical constitutional reformation, but it does deny that such changes could find justification in the old text or in the compact that text reflects. Using extraconstitutional means, the people might reconstitute themselves; but it would be the people’s exercising their constituent power, not the old constitution’s benediction, that validates the new order.

Richard Albert, “Introduction”, in Richard Albert at al., (ed), *The Foundations and Traditions of Constitutional Amendment* (Hart Publishing, 2017) 1. Footnotes omitted.

[In codified constitutions], amendment rules are the gatekeepers to the constitutional text. They give political actors a roadmap to alter a constitution, they identify what is subject to or immune from change, they encourage public deliberation on constitutional meaning, they foster stability by making a constitution harder to change than regular legislation, and they make it possible to make transformative constitutional changes without recourse to revolutionary means. By their nature, the rules of constitutional amendment reflect both faith and distrust in political actors: they authorise political actors to make alterations to a constitution, just as they limit how and when political actors may do so. Given the many essential functions served by constitutional amendment rules, we would expect constitutions to entrench them, and indeed almost all of them do. (...)

* * *

The study of constitutional amendment must begin with the way codified constitutions are actually altered. Lester Orfield long ago taught us that ‘[t]he idea of amending the organic instrument of a state is peculiarly American’. Early state constitutions in the United States entrenched formal amendment rules of their own. But the first national constitution in the modern era to entrench a formal amendment rule is the Articles of Confederation, America’s first constitution. Adopted in 1777, the Articles did not make amendment easy. It required approval from the unicameral Continental Congress along with the unanimous agreement of the 13 states in order to alter its text, no small feat for any federal state:

And the Articles of this Confederation shall be inviolably observed by every State, and the Union shall be perpetual; nor shall any alteration at any time hereafter be made in any of them; unless such alteration be agreed to in a Congress of the United States, and be afterwards confirmed by the legislatures of every State.

Every proposal to amend the Articles failed. There predictably came a point in time when some constitutional change became necessary for the improvement of the Union if not for its survival. Yet instead of abiding by the impenetrable unanimity rule in the Articles, the Philadelphia Convention that had been assembled ‘for the sole and express purpose of revising the Articles of Confederation’ decided to cast aside the constraints in the Articles and instead to propose an altogether new constitution subject to a lower yet still considerably difficult amendment threshold: approval from two-thirds of the bicameral legislature and agreement from three-quarters of the states. This is the amendment rule that now entrenches the United States Constitution. (...)

* * *

A. Unamendability

For some, the idea of an unconstitutional constitutional amendment is problematic from a democratic perspective. It seems contrary to the very idea of a constitution—which ought to reflect the views and wishes of those bound by it—that there could be enforceable limits to what the people may do acting through their representatives when they amend their constitution in perfect conformity with the entrenched procedures for constitutional change. The question becomes one of institutional competence where a court identifies those limits to the amendment power against the backdrop of a codified constitution that in its own text makes no mention of such limits. The Court’s judgment about what is or is not unamendable cannot help but be rooted in the political philosophy of its individual members. Perhaps this line-drawing would be better assigned to a legislature than a court?

The calculation may change where a constitution entrenches a formally unamendable provision. Constitutions often make principles, structures, and symbols impervious to formal amendment by removing them from the realm of amendable provisions. For example, republicanism, democracy, federalism, the separation of powers, and secularism are often made unamendable, as are rights and freedoms, pluralism, national borders, and even national flags. Constitutional designers may have many reasons to adopt formal unamendability as a focal feature of their constitution, whether to formalise a bargain or to preserve a founding norm, to transform the state or to reconcile previously warring groups, or quite simply to express a constitutional value, whether authentic or not. Whatever the motivation for making a provision formally unamendable, it will be necessary to interpret the scope of its formal unamendability against any set of facts that arise. Here, the case may be stronger for a judicial role on the front lines of enforcing unamendability because the task is squarely within the judicial competence of constitutional interpretation. But interpreting what is unamendable within the four corners of the codified constitution where its text identifies nothing as formally unamendable is a qualitatively different kind of undertaking, one that appears to be closer to the task of making a constitution than interpreting one.

Yet formal unamendability does not obviate the question whether a legislature may be better positioned than a court to enforce the unamendable provision. The Norwegian Constitution, for instance, entrenches a formally unamendable provision but nonetheless assigns to the legislature the power to protect the contours and content of that provision. Whatever a constitution entrenches against amendment and whoever assumes the responsibility to protect it from violation, the very fact that constitutional designers chose to make one or more items unamendable tells us a lot about that constitution and its essential values.

B. The Operation of Constitutional Amendment

One of the first building blocks in the procedures of constitutional amendment is the power to initiate a constitutional amendment. Designing the power to initiate is a binary choice. One option is to restrict the power to a single actor. In Germany, for instance, only the national legislature may initiate an amendment: the Basic Law is amendable only by two-thirds approval in each of the Bundestag and the Bundesrat. The power of initiation may alternatively be held by multiple actors, as in Canada, where three of its five amendment procedures may be initiated by either the national legislature or any of the subnational legislatures. The Spanish Constitution likewise assigns the power of initiation to several actors, including the government, the national legislature, and the country's autonomous communities indirectly through their legislatures.

Related to but distinct from the power of initiation is the scope of the procedures available to political actors to amend the Constitution. Some constitutions provide one or more avenues to amend all of the amendable parts of the text while others entrench multiple procedures that are expressly designated for use in relation to a limited category of amendable matters. We may identify these as either comprehensive or restricted in scope. In Japan, for example, the Constitution entrenches only one comprehensive amendment procedure that may be used to amend all of the amendable parts of the text: in order to pass a valid amendment, the bicameral national legislature must approve an amendment proposal by a two-thirds super-majority, the proposal must then be approved in a national referendum by a simple majority vote, and the Emperor must then promulgate amendment. In France the Constitution entrenches multiple comprehensive procedures that may be used to amend all the amendable parts of the text: in order to pass a valid amendment, the President or any member of the national legislature may propose an amendment, and both houses of the legislature must then approve the proposal before it must go before the people in a referendum for their approval.

But elsewhere, as in South Africa, the Constitution creates three procedures of formal amendment, and each is deployable only to amend certain provisions or principles. One procedure requires approval from three-quarters of the National Assembly and two-thirds of the National Council of Provinces in order to amend the Constitution's declaration of constitutional values and the formal amendment rules themselves. Another procedure requires two-thirds approval in each of the National Assembly and the National Council of Provinces to amend the Bill of Rights and provincial rights, prerogatives and matters. The third and final procedure requires two-thirds approval in the National Assembly; this procedure must be used to amend all other items in the Constitution. Each of these three South African amendment procedures is restricted in scope, in contrast to the comprehensive scope of the Japanese and French amendment procedures. There may be good reason to entrench multiple procedures for amendment, be they comprehensive or restricted in scope. In constitutional democracies where the text is difficult to amend, it may be wise to offer political actors many routes to formal amendment so as to avoid the possibility that the text becomes frozen and unchangeable despite mounting political and popular will to update it. In the United States, for instance, all routes of formal amendment must pass through the Congress. Under Article V, two-thirds of both houses of Congress may propose an amendment, and to be valid three-quarters of the states must ratify it in either a legislative vote or a convention, the choice being up to Congress; alternatively, two-thirds of the states may petition Congress to call a convention to propose one or more amendments, and in order to be valid three-quarters of the states must ratify it or them either in a legislative vote or a convention, and again the choice is up to Congress. In all of these four procedures, Congress plays a gatekeeping role. In an age of congressional division and dysfunction, the requirement to assemble the required congressional majorities becomes a serious impediment to an amendment. Today, for example, it appears unlikely that any amendment could be proposed by the divided Congress even though it might well be ratifiable by a supermajority of states. A non-congressional track to amendment could perhaps make amendment possible in the United States.

Returning to the basic building block of constitutional amendment procedures, constitutions sometimes disable the power to initiate an amendment. It may be disabled during periods of national emergency,

martial law or a state of siege or war. The Estonian Constitution illustrates how: an ‘amendment of the Constitution shall not be initiated, nor shall the Constitution be amended, during a state of emergency or a state of war’. The same applies for periods of regency or succession. When the ruling monarch is absent or otherwise unable to serve, some constitutions might forbid their own amendment, as in Luxembourg where the Constitution declares that ‘during a regency, no change can be made to the Constitution concerning the constitutional prerogatives of the Grand Duke, his status as well as the order of succession’. The Belgian Constitution is similar. There may also be temporal restrictions on the power to initiate a constitutional amendment. Some constitutions require political actors to deliberate on an amendment proposal for a maximum amount of time. We see this in the Costa Rican Constitution. Others, like the South Korean Constitution, impose a minimum amount of time during which political actors must deliberate on a constitutional amendment. Constitutional amendment procedures may also be disabled in the period following a successful or failed amendment, as in Greece, and in the period immediately following the adoption of a new constitution, as in Cape Verde. The use and manipulation of time and contingency in the design of constitutional amendment rules is a fascinating subject that deserves more scholarly attention. Another important device in the operation of formal amendment rules is the referendum. Whether entrenched in the rules of formal amendment themselves or used as a political imperative to supplement them, referenda are often viewed as a legitimating procedure without peer in constitutional democracies. In recent years, we have seen what seems like a proliferation of referenda with significant consequences for rights and liberties, and also for fundamental constitutional structures and arrangements. Think only of the Brexit referendum in the United Kingdom in 2016, the Peace Process referendum in Colombia in the same year, the Scottish independence referendum in 2014, and the marriage and Senate referenda in Ireland in 2015 and 2013, respectively. A referendum may in the years ahead become by default a requisite part of constitutional amendment procedures whether or not the constitutional text requires it. (...)

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III. AMENDMENT AS CONSTITUTION

Herman Finer famously wrote that ‘we might define a constitution as its process of amendment’. More metaphorical than empirical, Finer nonetheless put into words an intuition we have about the rules of constitutional amendment. No part of a constitution is more important, not only for formal and functional reasons but also for symbolic ones. Formally, constitutional amendment rules distinguish constitutional from ordinary law, the latter generally subject to simple majority legislative repeal while the former is commonly entrenched under heightened thresholds or special procedures. Functionally, constitutional amendment rules provide an orderly and transparent procedure to correct flaws or outright mistakes that time and experience reveal. Symbolically, the very design of amendment rules may reveal the deepest values of the constitution they entrench. What sets amendment rules apart from other constitutional rules are their twin constructive and destructive capacities. On one hand, amendment rules are essential for changing, in a lawful manner, the rules of the game that a constitution creates in the first place. They allow political actors to enact reforms they believe are needed for either intrinsic or instrumental reasons. Yet the idea of constitutional amendment need not be rooted in normative principles. Seen as a neutral device, perhaps as an empty vessel suited to any purpose, amendment rules expose themselves to the possibility of their own misuse. As Ulrich Preuss has warned, the amending power ‘is necessary to preserve the flexibility and sustainability of the constitutional order, but it can destroy it by amending the constitution in an anti-constitutional tenor’. Stated less ominously though no less accurately, amendment rules are, in the words of Akhil Amar, ‘of unsurpassed importance, for these rules define the conditions under which all other constitutional norms may be legally displaced’.

Constitutional amendment rules are both sword and shield. Political actors may use them to build or break the constitutional order, to strengthen or weaken institutions, to expand or retrench rights, to ‘deconstitute and reconstitute’, as Finer well recognised. In the United States, for example, what was proposed and partially ratified as the original Thirteenth Amendment would have given states the

unamendable power to enslave persons within their jurisdiction. The Civil War intervened to put a stop to the ratification vote, and what ultimately became entrenched in the Thirteenth Amendment was instead the abolition of slavery. An amendment, then, can be both democracy-promoting and democracy-demoting.

As profound as Finer's words may be, they do not quite capture the reality that amendment rules and their constitutions are rooted in meta-constitutional contexts shaped by history, law, politics and society. From a perspective internal to a constitutional regime it may well be difficult to contest the claim that we can learn much about any given constitution by looking at its amendment rules. These rules often create a constitutional hierarchy of entrenchment that indicates what is most important in a constitution and what is relatively more or less important. The South African Constitution's escalating multiple thresholds of constitutional amendment is just one of many illustrations. But from an external perspective we can appreciate more immediately what political actors within a constitutional system can less clearly see: that whether, when, and how often or infrequently political actors choose to deploy amendment rules is driven by factors better explained by constitutional culture than the theoretical rigidity or flexibility of a constitution itself. The phenomenon of constitutional culture is sometimes reflected in constitutional texts, for instance in how powers are allocated, which institutions exercise them, and how citizens interact with them. But sometimes the phenomenon of constitutional culture escapes formal entrenchment and perhaps also even recognition by political actors in their own understanding of its sources and consequences. (...)

Excerpts from two authors on African problems of instrumentalization of constitutional amendment (and constitutions in general) are presented below. In the following rather well-researched piece, Charles Manga Fombad argues that amendment rules and procedures of constitutions must contain both sufficient flexibility to enable change when constitutions trek behind times and the wishes of the society, and sufficient rigidity to protect itself from "arbitrary, hasty and opportunistic changes." He recounts the changes that were made to post-colonial African constitutions by African governments essentially to weaken checks and balances systems and limitations on government powers, thereby devastating any hope for constitutionalism to take root. He argues that placing limits on the government's ability to amend a constitution is fundamental to modern constitutionalism. Similarly, Duncan Okubasu also argues that constitutions of African states have been deployed as instruments of executing normal politics, rather than the lofty constitutional politics.

Charles Manga Fombad, *Limits on the Powers to Amend Constitutions: Recent Trends in Africa and their Potential Impact on Constitutionalism* (Paper Presented at the World Congress of Constitutional Law, Athens Greece, 11 – 15 June 2007). Footnotes omitted.

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THE RATIONALE FOR SPECIAL PROCEDURES TO AMEND THE CONSTITUTION

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The need to amend a constitution inheres in the very nature of a constitution itself. Far from being a document that contains "time-worn adages or hollow shibboleths," or a "lifeless museum piece," a constitution must be regarded as a living document which is designed to serve present and future generations as well as embody and reflect their fears, hopes, aspirations and desires. It is an undeniable reality that hardly any political system, whether dictatorial or democratic, will survive for long without striving to reflect the political realities of the day in its constitution. As Donald Lutz rightly points out,

every political system needs to be modified over time as a result of some combination of any of the following: changes in the environment within which the political system operates (including economics, technology, foreign relations, demographics, etc.); changes in the value system distributed across the population; unwanted or unexpected institutional effects; and the cumulative effect of decisions made by the legislative, executive, and judiciary.

Another reason that renders constitutions amenable to revision is the fallibility of human nature that is usually reflected in its content. If human beings were perfect and omniscient there would be no need for constitutions in the first place. Since fallibility is part of human nature, provision needs to be made for revising constitutions to take account of those shortcomings that are revealed by time and practice.

Perhaps the fundamental rationale for providing a special method for amending a constitution is the fact that, unlike any other law, it is in almost all systems explicitly or implicitly declared to be the supreme law of the land. In fact, as Amissah P. said in the famous Botswana case of *Attorney-General v Dow*:

A written Constitution is the legislation or compact which establishes the State itself. It paints in broad strokes on a large canvass the institutions of that State; allocating powers, defining relationships between such institutions and between the institutions and the people within the jurisdiction of the State, and between the people themselves.

...

It is a document of immense dimensions, portraying, as it does, the vision of the peoples' future. The makers of a Constitution do not intend that it is amended as often as other legislation; indeed, it is not unusual for provisions of the Constitution to be made amendable only by special procedures imposing more difficult forms and heavier majorities of the members of the legislature.

Because of its very nature and origins, a constitution will lose its value as the supreme law of the land based on the sovereign will of the people if it could be altered easily, casually, carelessly, by subterfuge or by implication through the acts of a few people holding leadership positions, as was the case in most African countries prior to the constitutional rights revolution brought about by the so-called "third wave" of democratisation in the 1990s. Popular sovereignty therefore implies that all constitutional matters should be based upon some form of popular consent, which in turn implies some special method for amending the constitution which will ensure that it is based on popular will.

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CONSTITUTIONAL AMENDMENT PATTERNS IN POST-1990 AFRICAN CONSTITUTIONS

The analytical framework

An overview of the amendment patterns suggests that these, by and large reflect, with slight modifications in some cases, the main Western constitutional models that have been received in Africa viz, the Westminster model, which in this particular respect has been modified by the US presidential model and is found in most Anglophone Africa and the Gaullist model widely adopted in Francophone Africa with variations of this found in the constitutions of Luxophone African countries. In spite of the common origins, in terms of models, there are significant variations in the actual patterns adopted in the different countries to make any attempt at generalisation misleading. The following five points provide the basic framework within which to appreciate the different patterns that emerge:

1. Those who can initiate amendments. It is important here to see to what extent the ordinary citizen or groups of them can initiate an amendment of the constitution. The critical question here is whether there are restrictions which could make it difficult for it to be said that the amendments have a broad public support.

2. The nature and scope of legislative majority required to approve amendments. What is likely going to make the procedure special is the fact that a supermajority of sorts, quite different from the normal majority required to approve an ordinary Bill is required. In the case of a bicameral legislature, the supermajority is required in both bodies and in some cases it is specifically stated that the two bodies must sit in special joint session called a “congress.” In some cases, as an addition and in others, as an alternative to approval by supermajority in the legislature, it is required that the people should be consulted by way of a referendum. In federal or quasi-federal systems, it is often provided that in addition to approval by the central legislature, a certain percentage of the different component units through their legislatures must also approve the Bill.
3. The nature and circumstances of a referendum. As indicated above, a referendum may either be provided in addition to approval of a Bill by the legislature or as an alternative or in some situations, in addition to approval by the legislature.
4. The existence of specified time lines. In some constitutions, to ensure that constitutional amendments are not hastily carried out without enough time and opportunity being given to the population to be consulted, time lines are given which indicate a minimum period between which such amendments could be introduced and the time when they can be approved and take effect.
5. The scope of matters that are not subject to amendment. In many constitutions, especially those of Francophone countries, there are a number of matters which are expressly stated not to be subject to amendment either generally or during a certain period. This raises quite interesting theoretical issues that will be examined in the next section.

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IMPLICATIONS OF CONSTITUTIONAL AMENDMENTS ON THE ENTRENCHMENT OF CONSTITUTIONALISM IN AFRICA

Africa’s constitutionalism deficit has been caused less by the absence of constitutions or purported constitutional governance than by the abuses to which constitutions have been subjected. Modern constitutionalism may be defined as resting on two fundamental pillars viz, the existence of certain limitations imposed on the State, particularly in its relation to its citizens, and the existence of a clearly defined mechanism for ensuring that these limitations on the government are legally enforceable. Thus defined, constitutionalism rests on a number of core elements, one of which is the control over the amendment of the constitution. If a constitution, based as it usually is, on the general will of the people can be easily, casually, carelessly, by subterfuge or by implication amended, then the will of the people will be defeated and this will clearly undermine the whole purpose of a constitution operating as a limit on government and also diminish any prospects of genuine constitutionalism. It is therefore contended that any constitution that stands any chance of promoting constitutionalism should not be subject to arbitrary revision. The question therefore is whether the modern African constitutions . . . control the manner of amending their provisions in a way that can promote constitutionalism.

Whilst it is clear that many countries have gone to considerable lengths to adopt provisions that control and limit the process of constitutional amendment, there are still some that have not given the issue the attention it deserves. Examples of Constitutions where very little or symbolic attempts have been made to address the dangers of arbitrary constitutional amendments include the Constitutions of Libya, Equatorial Guinea and Guinea-Bissau.

In analysing the provisions controlling and restricting the processes of amending a constitution, the general assumption is that the aim of constitutional designers is not to block amendments completely but rather to ensure that the process is reasonably difficult to check against arbitrary and whimsical changes to the constitution. How easy or difficult this process depends on the number of legal and practical obstacles that have been built into the process. In many respects, each of the five factors discussed above may potentially make the amendment process easy or difficult. The extent to which they can

effectively control and check arbitrary changes to the constitution certainly impacts the ability of the constitution to promote constitutionalism.

On the issue of who should initiate constitutional amendments, the general assumption where there is silence is that the normal procedure for amending legislation applies. It becomes a potentially problematic matter where the constitution uses language that appears to restrict the initiative in such matters to certain persons. An interesting innovation is found in the Burkina Faso Constitution, which states that at least 30,000 citizens who qualify to vote can present before the National Assembly a petition containing the proposals for an amendment of the Constitution. Be that as it may, the reality is that in almost all countries, legislation or amendments to legislation are usually initiated by the government and this is likely going to be the case with amendments to the Constitution. The major challenge is to ensure that the legislature, which in constitutional theory, represents the sovereign will and is the law-making body, is able to play an important and effective role in the process.

. . . [I]n the case of some federal or quasi-federal states, such as Ethiopia, Nigeria and South Africa, there is an additional requirement that there should also be an affirmative vote from a qualified majority of 2/3 or 3/5 of all the component parts of the State. These special requirements for qualified majorities in the different legislatures would under normal circumstances have ensured that only amendments that have a broad support of the people's representatives could be approved. However, the ghost of the discredited rubber stamp one party parliaments still looms very large over the African legislative horizon today. In spite of the "third wave" of democratisation that swept over the continent from the 1990s, and supposedly brought with it multipartism, the reality is that the *de jure* one party system has steadily and progressively degenerated into *de facto* one parties in the form of dominant parties. This has been aggravated by the ease with which opposition parties, with the complicity of the dominant parties have been reduced to divided, fragmented, self-serving groups who are more of a threat to each other than to the ruling dominant parties. . .

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However, some Constitutions make this slightly more difficult by providing for a referendum in addition to or as an alternative to parliamentary approval or even as the sole method of approving an amendment to the Constitution or certain provisions of it considered as of especial importance. This is potentially the most effective way of ensuring that the citizens are actively involved in such an important process that affects the very foundational document on which the State rests. However, African referenda cannot and have not been different from African elections, even in this era of democratic revival. African leaders have transformed elections into theatrical exercises in self-reproduction and self-perpetuation by regularly using carefully crafted perpetual incumbency machines that ensure that they always win or are declared winners. Hence, with the diminishing prospects for free and fair elections, it is most unlikely that the present leaders will organise referenda to obtain approval of constitutional amendment proposals without taking the usual extreme measures they take to win elections, to ensure the outcome they want. The most recent example of how a referendum exercise can be abused took place recently in Chad. On 26 May 2006, the Chadian Parliament, dominated by the ruling Patriotic Salvation Movement (MPS) easily approved an amendment to the 1996 Constitution, which replaced the two terms presidential tenure limits in the Constitution with an open term, thus allowing the incumbent, Idriss Deby to stand as presidential candidate for an unlimited number of five year terms. This was despite the fact that during his 2001 presidential campaign, Deby had promised to step down at the end of his second term. The embattled opposition, with only 45 seats in Parliament protested by walking out of parliament during the vote and called for a strike as well as a "No" vote during the referendum that had to approve this change. The results of the referendum were however a foregone conclusion. In the two presidential elections that Deby had declared himself winner, both the national and international observers had declared that there had been such massive vote rigging, fraud and other electoral irregularities as to cast doubts on the legitimacy of the elections. Besides this, the legitimacy of referenda as an effective means to involve the people and obtain their consent in the constitution-amendment process can be called into question by voter apathy. An example of this was the referendum

that took place in Botswana on 3 November 2001 seeking approval of certain constitutional amendments dealing with the judiciary. Out of 460,525 eligible voters, only 22,577 bothered to vote, that is a voter turnout of 4.9%. Although an overwhelming majority voted in favour of the amendments, it is debatable whether results obtained after such a massive boycott accurately reflects the will of the people. Some constitutional framers have tried to overcome this potentially absurd situation in diverse ways. For example, Article 79 of the Zambian Constitution provides that the constitutional amendment Bill must have been approved in a referendum in which at least 50% of the registered voters participated. Under the Mauritian and Namibian Constitutions, certain constitutional amendments require the approval of at least 3/4 and 2/3 of the electorate in a referendum respectively. Under the Ghanaian Constitution, Article 290(4) provides with respect to the amendment of the specially entrenched provisions that, after the Bill has been read for the first time in Parliament, it must be submitted to a referendum in which at least 40% of those entitled to vote actually vote and at least 75% of those who actually vote cast their votes in favour of passing the Bill. Whilst all these precautions cannot entirely eradicate the frequent abuses that have become a common practice in African polls, they may nevertheless make such irregularities more difficult to accomplish and to this extent improve the chances that the outcome of such consultations will genuinely reflect the wishes of the people.

The inclusion of strict time lines reflects a desire by constitutional designers that constitutional amendments should not be hastily and perhaps stealthily carried out without the full knowledge and active involvement of the public. This check against hasty constitutional changes is reflected in a number of ways in certain constitutions. Under Article 198(2) of the Mozambican Constitution, the draft amendment must be submitted to the Assembly of the Republic 90 days before the opening of the debate, thus giving members of parliament enough time not only to acquaint themselves with the proposed changes but also to consult their constituents. Under some constitutions, the full text of the Bill must be published in the official Gazette at least 30 days before it is introduced to Parliament. There are two elaborate and possibly commendable examples of the use of strict time lines to possibly ensure broad consultation as well as check against hasty changes to the constitution. The first of this is the Botswana Constitution under which the effect of these time lines ensures that a constitutional amendment may take at least five months from when it is introduced to Parliament before it becomes effective. The second example is under the Ghanaian Constitution where Article 290(3) states that a Bill amending an entrenched provision shall not be introduced into Parliament until after the expiry of six months after its publication in the *Gazette*. For the amendment of non-entrenched provisions, this period is reduced to three months and ten days. By contrast, under the Cameroonian Constitution, where no time limits are provided, the Bill amending the 1972 Constitution was only made available to parliamentarians on the eve of the day that they had to vote on it. It is no surprise that it is one of the few African Constitutions that merely reinforces the pre-1990 system of personal power and many of the token changes to reflect the open and participatory democracy have never been implemented.

Finally, there is the category of matters which are expressly stated in some constitutions as not being subject to amendment. This is found in almost all the Constitutions of Francophone and Luxophone countries, with Namibia being a notable exception amongst Anglophone countries. The concept of unamendable provisions must be distinguished from those situations where constitutional provisions prohibit the amendment of the Constitution in certain specified circumstances, such as during the period when there is an emergency such as a state of emergency or state of siege or when the president is temporarily or permanently incapacitated and a person is acting for a specified period. It is understandable why there is need to ensure that no leader or acting leader exploits the crisis to change a Constitution in a way that would often serve to perpetuate their stay in power. Unamendable provisions on the other hand, usually reflect a desire to protect and perpetuate certain values, principles or concepts that the constitutional engineers feel should never be infringed, threatened or changed. A typical example of these so-called unamendable provisions is Article 178 of the Algerian Constitution which states as follows:

Any constitutional revision cannot infringe on:

1. the republican nature of the State;
2. the democratic order based on multi-party system;
3. Islam as the religion of the State;
4. Arabic as the national and official language;
5. fundamental liberties, and citizens' rights;
6. integrity of the national territory.

Although the concept of unamendable provisions is borrowed from advanced constitutional models such as the Constitution of the Fifth French Republic as well as the German Constitution, there are a number of serious conceptual and theoretical difficulties with the whole concept. Firstly, nothing is utterly immune from change. The purpose of a controlled amendatory procedure is not to prevent changes but rather to prevent the process being abused by dictators to serve their own selfish ends. The concept of unamendable provisions is not only an illusion but also potentially dangerous. A constitution or provisions in it, could with time become antiquated and if there is no procedure for amending it or if this is too cumbersome, it may provoke violent changes through revolutionary means. Secondly, each generation has and should have its cherished values and political principles that reflect its current predicaments and preoccupations. No generation has the right to impose its own values and political principles on a later generation. Colvin R. de Silva captured this concern very aptly when he said:

Constitutions are made in terms of the stage of development at which any given society or country has arrived. In terms of that stage of development it looks upon things, and for any generation of people to imagine that it can so completely project itself into the infinity of the future so as to be able to decide its own generation that it will constrain a future generation or generations for ever within the confines of its own postulates is to make the mistake of thinking that any human collectivity is the equivalent of the divinity.

Perhaps more fundamentally, it can be argued that one constituent body cannot make constitutional provisions that prevent a future constituent body from repealing the constitution, even where it introduces an express provision that purports to do this. This, it can be argued is based on the principle that a constituent body is omnipotent in all save the power to destroy or limit its own omnipotence.

There are however, a number of constitutions which provide excellent examples of a legitimate and more realistic way of protecting specially cherished constitutional values and principles against capricious or arbitrary revision. The best example of this is the Ghanaian Constitution which distinguishes between specially entrenched provisions and entrenched provisions. An examination of these specially entrenched provisions show that most of the values and principles protected are the same or similar to what is contained in the unamendable provisions in Francophone and Luxophone constitutions. The Ghanaian Constitution makes the process of amending the specially entrenched provisions quite protracted and difficult. Similar distinctions, with more protracted requirements being made for amending constitutional provisions considered as particularly important or fundamental, are found in the Constitutions of Botswana, Ethiopia, Lesotho, Mauritius, Nigeria and Tanzania, although the degree of effectiveness varies from one Constitution to the other. A better approach to the concept of unamendable provisions is to strictly regulate and control the manner in which amendments can be done to make them more stringent rather than attempt to do the impossible; to immortalise what can simply not be immortalised....

Duncan Okubasu, "The Implication of Conflation of Normal and 'Constitutional Politics' on Constitutional Change in Africa" in Richard Albert et al., (eds), *The Foundations and Traditions of Constitutional Amendment* (Hart Publishing, 2017) 327

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III. EXPRESSION OF NORMAL POLITICS IN CONSTITUTIONAL POLITICS

The relationships between political and constitutional regimes in most African states reveal that there is an untoward conflation of these genres of politics. Untoward in the sense that there is a failure of normal politics and an attendant use of constitutional politics in normal politics. The failure of normal politics is occasioned by frustration of electoral democracy through a regression into electoral authoritarianism, meaning that the decision to choose decision making agents in the government is hijacked and the ballot cannot be used to hold accountable decision makers for inept decisions relating to normal politics. Constitutional politics are also appropriated by the ruling elites such that a constitution is important as formally legitimising a regime and also for thwarting threats towards the regime.

The countenance of this malady is that: (a) constitutional change processes are initiated and controlled by the ruling administration, (b) such changes help entrench political powers of the ruling parties, (c) they are made in the name of the people though without their meaningful involvement, and (d) are seen as also providing political grievance for opposition groups that want to ascend into political power—without having to resort to unconstitutional measures. In sum, a constitution is presented by political elites, either in government or opposition, as the cause of the problem that should ordinarily be addressed by normal politics. When this happens, the process of changing a constitution is trivialised just as that of electing political leaders and both of them are similar because in reality they are made by political elites.

The foregoing pre-condition results in a scenario where first, the connection between political regimes and constitutional lifespan and durability is apparent in most African countries. Save for cases such as Ghana, constitutions in Africa are seen to endure to the extent that they serve only one political regime or players. South Africa's 1996 Constitution has not been substituted, debatably, because it has served only the African National Congress (ANC) party since its promulgation. It is not, however, surprising that the same ANC has on myriad occasions called for its replacement noting at one point that it 'may have been appropriate for a political transition, but it has proven inadequate and even inappropriate for a social and economic transformation phase'. This is not because the 1996 Constitution has not constricted the rules of constitutional change, structured an effective government or failed to protect and promote rights; but it is perhaps because its attractive formal values can be used to defeat ANC dominance. Uganda has had one constitution since 1995. Yoweri Museveni has also been Uganda's president since then. The Constitution of Rwanda, adopted in 2003 has served only Mr Paul Kagame's regime. Chama Cha Mapinduzi in Tanzania has operated under one constitution since Tanzania's independence (though there are proposals for a new constitution) and even in Kenya and Senegal where other political parties have come into leadership, there is only change of political party names and not actual change of players. Kibaki and Uhuru, Kenya's third and fourth presidents, who have served under the 2010 Constitution, were members and officials in the dominant post-independence Kenya's political party, the Kenya African National Union (KANU). In fact, Uhuru Kenyatta was first nominated to be a presidential candidate by long-serving President Moi of KANU. President Macky Sall of Senegal has an identical political history; he defected to form the Alliance for the Republic having been a faithful of the Senegalese Democratic Party.

Secondly, decisions by elites in government manifest in constitutional alteration processes more so in constitution making. As hinted, the processes are trivialised because the outcome aims at seeking ordinary partisan assurances. This trivialisation is achieved through essentialising constitutional change in political party's manifestos, which arguably distracts the attention of the populace. Though implicit, the manifesto of South Africa's Economic Freedom Fighter (EFF) led by Julius Malema that promises a struggle for 'democratic ownership and control of key factors of production by our people ... as a Marxist Leninist fanonian organization' sees the solution to the problems bedeviling South Africa in constitutional change. Most political parties in Kenya in 2007, including those in opposition, such as the Orange Democratic Movement (ODM) had, as one of their manifestos, the delivery of a new constitution. The political manifesto for Zimbabwe's opposition party, Movement for Democratic Change (MDC) does not have a constitutional substitution promise but an implementation agenda,

understandably because of the explanation in the manifesto that change of the Lancaster constitution was one of their founding objectives together with the fact that its President Morgan Tsvangirai was the Chairperson of the National Constitutional Assembly at its initiation, also contained in its manifesto. Constitutional change intentions are also exhibited in Uganda's opposition party Forum for Democratic Change (FDC) manifesto 2010–2016. UDF sought to be elected so that it can 'honour the views of Ugandans as expressed in the Odoki and Ssempebwa Commission Reports, hold dialogue, agree and implement a viable federal system of governance across Uganda where power and resources shall be shared equitably between the regions and the central government'. Constitutional change to entrench land ownership is explicitly listed as part of Uganda's opposition party intentions. Nigeria's opposition party led by Muhammadu Buhari that won the 2015 Nigeria's general election had indicated that it planned to 'initiate action to amend the Nigerian Constitution with a view to devolving powers, duties, and responsibilities to states in order to entrench true Federalism and the Federal spirit ...' and to 'amend the Constitution to remove immunity from prosecution for elected officers in criminal cases ... amend the Constitution to require Local governments to publish their meeting minutes, service performance data, and items of spending over N10M ...'.

As a consequence, constitution-making processes in most African countries are commandeered as typical political strategies. Dominant political parties appropriate the process and use it to entrench party or individual ideologies. Ndulo notes in this regard that the use of constitutional commissions has been ineffective because the ruling parties manipulate the process which results in the imposition of desired constitutional models by the ruling elites. Uganda's constitution-making process was described as 'undemocratic' because of the role played by the ruling party. Tripp laments regarding it that 'the undemocratic characteristic of 1995 Constitution can be traced in the undemocratic aspects of constitution making'. In this respect, political elites see in constitution-making processes, first an opportunity to pre-empt constitution making demands particularly by the opposition groups, and also a chance to entrench their status in the polity. It is unsurprising against such a setting that literature on constitution making in Africa decries exclusion and interference by dominant parties. A 2003 attempt by Kenya to have a new constitution was thwarted after the then president, Mwai Kibaki, was uncomfortable with some power sharing arrangements in a draft constitution produced in 2003 known as the 'Bomas Draft'. Zimbabwe's ZANU PF is also accused of hijacking the constitution-making process in Zimbabwe. Dzinesa writes about Zimbabwe's constitution-making process that:

while the government invited members from a cross-section of society in an effort to give the commission a semblance of being fully representative, the majority of the commission's 400 members were ZANU-PF members or supporters—for example, all 150 members of parliament were included (of which only three belonged to other political parties).

Likewise, Tanzania's Chama Cha Mapinduzi (CCM) has been accused of taking over the constitution-making process in Tanzania. This means that the ruling parties in Africa see in the constitution-making processes, opportunities to entrench their preferred models that can help them retain their political power. Thirdly, democracy supporting rights are made a subject of easy abridgment. Though most, if not all constitutions in Africa, contain a catalogue of rights intended to facilitate electoral democracy such as expression, assembly, thought and conscience and liberty, they contain limitation clauses, vaguely framed, that allow for the criminalisation of exercise of those rights on the basis of vague conceptions such as national 'security', 'interest' or 'health'. What therefore should be preserved to strengthen democracy as a core value of the state is abridged using normal politics through normal legislation such as those that criminalise 'insult to president'. The significance of those rights—the effective content of rights—is changed through legislation. Because of the vague formulations, the effective constitution is changed through qualification of democracy supporting rights via normal politics. This would be directed at suppressing opposition. Fombad captures the resultant scene thus:

Opposition political parties, long considered to be an essential structural feature of modern liberal democracy are barely tolerated on the continent. The large numbers of opposition parties in Africa have often degenerated into narrow ethnic opportunistic alliances. Fractious and diverse, many of the opposition parties, even in countries like Botswana, Africa's 'best example

of successful multiparty democracy' spend their time squabbling and in most cases pose more competition for each other than for the ruling parties.

The other area of fusion of normal politics in constitutional affairs has been on presidential 'term limits'. Griner contextualises the essence of terms limits in democratic consolidation noting that 'with term limits, transitions take place as a natural course of events' and hence 'politics ceases to be viewed as a zero-sum game. Ruling parties are able to cultivate new leadership which can carry on the successful policies of their former leaders, but also correct for past missteps'. Despite the third wave of democratisation, amendment of constitutions to eliminate presidential term limits has been a keen concern of ruling elites in a number of countries. The latest effort in this respect was Burundi's amendment of the Constitution to allow President Nkurunziza to run for another term after expiry of the prescribed two terms. Daniel Vancovsky writes on constitutional amendments to extend term limits as follows:

Seven presidents, most of them long-serving leaders of their countries, secured constitutional amendments that allowed them to stand for a third term in office, and all seven won subsequent re-elections. These were presidents Blaise Compaore of Burkina Faso, Idriss Deby of Chad, Omar Bongo of Gabon, Lansana Conte of Guinea, Sam Nujoma of Namibia, Gnassingbe Eyadema of Togo and Yoweri Museveni of Uganda

In most of these endeavours, the common denominator is substantive exclusion of the people as there are no high minded merit based deliberations on the proposal to amend a constitution. In the context of Kenya, it is only the 2010 Constitution that appears to be a product of valuable participation of 'we the people'. The 1963, 1964 or 1969 constitutional change processes that were ruinous to democratic rights and processes were an exclusive enterprise of the then dominant political party, KANU. The 1963 Constitution was negotiated in Lancaster with KANU and KADU and none of the amendments to it were made through popular participation—referendum— including the significant one that transmuted Kenya into a republic and abolished the office of the prime minister replacing it with that of the president. South Africa has had four considerably different constitutions since 1960. These were in the 1961, 1983, the interim one of 1993 and the Final Constitution of 1996. The politics resulting in the 1961 and 1983 Constitutions were certainly not an affair of 'we the people' but exclusionary towards a significant part of the polity, the black population. The aim of the pre-1993 constitutional developments was to entrench and ensure racial segregation and had to purposefully disregard the majority black population that would obviously have thwarted the amendments had they been involved. It is the involvement of the entire South African populace in the post 1993 constitutional developments that saw the creation of what is acclaimed to be a progressive constitution. The next segment attempts an assessment of how this relationship has implicated on stability.

* * *

V. CONSTITUTIONAL IRRELEVANCE

Other than formally constituting a people into a polity, a functional constitution should be understood to play the important role of establishment or recognition and of control. Scholars describe constitutional function as constitutive, attributive and regulative. Classically, there are three mostly classified functions of a constitution, the first being establishment of government, the second being the protection of rights and the third being the prescription on rules of change. A functional constitution must have an effect in society in the sense that it forms a basis for consideration of legality or otherwise of state actions and should be the actual basis for power creation, use and distribution, including popular sentiments on governance. A constitution is thus relevant if it actually frames or officially recognises an effective government. If power is created and distributed by extra-constitutional sources it becomes irrelevant to the extent that those extraconstitutional authorities will be responsible for power use, control and distribution. If a constitution is to frame an effective government, it should provide a framework for shielding institutions from capture and furtherance of sectarian interest. In such cases, the mechanisms of checks and balances are weakened as other arms of government are subservient to the

capturing arm(s). A power imbalance would also most likely result in deflating the essence of stabilising institutions such as judicial review. When normal politics formulate institutional models that are preferred by a social or political fraction, it is more likely that those institutions be obsolete to a new political regime. Conceivably, this is one possible explanation for constitutional instability in some African countries. Most constitutions created power, yet failed to either constrict the exercise of that power to what secures public good and justice or structured government in a manner that rendered the judiciary subservient to the executive and legislature.

A relevant constitution is also one that is expected to substantively secure commitment to its rules of change. Predominantly, constitutions directly control formal but not informal change. Since constitutions generally lack provisions that render legitimate other provisions when others are impugned, contempt for any of its provisions arguably signifies contempt for it in its entirety. This is because in theory, constitutions, unlike normal legislation, function when they are considered as legitimately binding to the main political actors. It is possibly safe to conclude that blatant disregard to constitutions generally in some parts of Africa is a result of disdain of their rules of change. In the end, there is a lack of loyalty on the part of the political elites which leads to instability because it also provides precedent and justification for anti-constitutional forces to resort to extra-constitutional means of constitutional alterations.

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Questions and Discussion

- 1 Charles Manga Fombad states that there must be an effective and efficient process to ensure that they can be regularly updated to avoid the twin dangers of extra-legal or revolutionary methods of change on one hand and arbitrary, hasty and opportunistic changes on the other. What does he mean by the “twin dangers”? Discuss it with examples. One fitting example is the 1974 Ethiopian revolution. As it happened, Emperor Haile Sellassie agreed to a last minute constitutional revision in 1974 which among others was meant to provide for a constitutional monarchy (just like the UK, Denmark, Norway, Sweden or Japan). By the time the draft was completed the events leading up to the revolution were unstoppable, rendering the draft constitution useless. Many believe that if the changes sought in the draft constitution had been phased in two years or even one year earlier, it would have made a world of differences that might have turned around the subsequent history of our nation. Do you agree?
2. Charles Manga Fombad brought out some outstanding distinctions among African constitutions that are briefly covered in the excerpt. Discuss some of those features and the reasons that accounted for the distinctions.
3. Fombad also discusses the interrelationships between constitutional entrenchment, constitutionalism and constitutional amendment in Africa. Do you agree with his conclusions? Look closely at the arguments made and reflect on them substantively.
4. Duncan Okubasu discusses the problem of African constitutionalism as the deployment of the constitution by ruling elites to perform ordinary politics. What does he mean by this? How does that interplay with the amendment provisions of constitutions?
5. Many Constitutions have entrenched unamendable provisions or principles either explicitly or by implication. As Richard Albert, excerpted above, discusses there are arguments for and against unamendability of constitutional provisions. Review the arguments that are presented by Albert on both sides. Do you see value in unamendability of constitutional provisions or principles?

David A. Strauss “The Irrelevance of Constitutional Amendments,” in *Harvard Law Review*, Vol. 114, No. 5 (2001). Footnotes omitted.

[In this article, David A. Strauss discusses the true value of constitutional amendment as a political act in view of the existence of other ways of changing constitutions: notably, political practice and constitutional interpretation. Strauss discusses the role written constitutions play in non-established democratic systems, and the interrelationship between amendment as a means of constitutional change and other political and social activities. He also discusses the various ways in which amendments reflect the consensus in the society. He also discusses the varied significance of amendment in mature, and fledgling democracies on the one hand and amendments that may prove to be regrettable in time. Read his arguments and analysis thoroughly and reflect on them together with the ideas of Charles Manga Fombad considered above.]

CONSTITUTIONAL CHANGE AND CONSTITUTIONAL AMENDMENTS

What Amendments Do

* * *

Two qualifications are in order. First, I consider this claim about the irrelevance of the amendment process in the context of a mature democratic society, not a fledgling constitutional order. It is a claim about how a constitutional system changes, not about how one becomes established in the first place. For that reason, I do not try to argue that the first twelve amendments to our Constitution made no difference, although such an argument may be stronger than it appears to be at first. The Constitution of 1787 built on a system that was already well established in many ways, and it might be possible to argue that the text of the original Constitution and the early amendments were relatively insignificant, compared to forces already operating in society, just as (I argue) the later textual amendments were relatively insignificant.

Be that as it may, when a constitutional system is first getting underway and making its shakedown voyage, so to speak, amendments are more properly seen as part of the initial establishment of the regime, rather than as a means of changing it. When a regime is being established, formal texts are more important; the traditions, institutions, and understandings that bind a mature society together, and that make orderly change possible without formal amendments, are less well developed. But once a constitutional system has survived for, say, a generation or two, formal constitutional amendments of the kind Article V envisions become incidental to the main processes of constitutional change.

The second qualification is that constitutional amendments do serve certain ancillary functions. For example, several constitutional amendments have played the familiar role of establishing “rules of the road” - settling matters that are not themselves controversial but that must be settled clearly, one way or another. The Twenty-fifth Amendment, which spells out what to do if a President is disabled, is an example. This is not a trivial function, but it is far from central to the process of constitutional change, and it probably does not require a formal amendment procedure. If a formal amendment process were unavailable, it seems likely that our system would develop some other way of settling these issues, at least in most cases. Constitutional amendments also serve the distinct function of suppressing outliers. When the nation has reached a nearly universal consensus on a subject, the formal amendment process is a way of bringing the stragglers into line. It turns all-but-unanimity into unanimity. The Twenty-fourth Amendment, which bans poll taxes in federal elections, is an example: by the time it was adopted, only five states had poll taxes. In this way, constitutional amendments do cause changes, but changes around the edges, as it were, rather than at the core. This relatively minor function, too, may be even less significant than it appears. In each of these instances, the outliers might not have held out much longer against the nearly unanimous opposing consensus even if there had been no constitutional amendment. And again it seems reasonable to conjecture that, if there were no formal amendment process at all, the courts would allow Congress greater power to act in areas in which the national consensus was strong. . . [D]uring the New Deal and during the civil rights era—a strong national

consensus led to expansions in congressional power, even without a formal amendment - once even after an amendment formally authorizing the change was explicitly rejected. Legislation, rather than constitutional amendments, suppressed the outliers. Probably the most accurate description of amendments that suppress outliers, then, is that they allow near-unanimity to become unanimity a little sooner than would otherwise have happened. Again this is a far cry from serving as the principal engine of constitutional change.

Why Don't Amendments Matter?

On reflection, perhaps it should not be so surprising that a formal, super majoritarian amendment process matters so little in a mature constitutional regime. One characteristic of a mature liberal society is that there are ways other than formal amendments adopted by a supermajority to change the Constitution in fact if not in name. Those other mechanisms exist because over time people have developed institutions that they trust. By contrast, in a fledgling society that lacks well-established understandings, traditions, and patterns of mutual trust and accommodation, the formal, written text may be the only usable institution.

In this respect, a mature society might be compared to a long-term contractual agreement. The parties to such contracts often do not rely solely, or even substantially, on the text of the contract to govern their day-to-day relationship; they have developed extra textual understandings. Similarly, in a mature society, people accept the acts of legislatures, courts, and executive agencies - and the political and non-political acts of their fellow citizens - even when those acts augment or arguably conflict with the foundational text. In a newly formed political society, any apparent deviation from the words of a constitution might be seen as revolutionary and might cause the society to break apart; in a mature society, relationships and patterns of trust are so well developed that that does not happen.

As a result, by the time an Article V supermajority is galvanized into action, chances are good that much of society has already changed by one of these other means. And if a formal amendment process were unavailable, society would find another way to enforce the change it has determined to make - by legislation and judicial interpretation, or by alterations in social understandings and private sector behavior. The change might not be accomplished as neatly or as decisively; outliers might not be brought into line as quickly, for example. But relatively speaking, that is a detail. Those other institutions - not super majoritarian constitutional amendments - will be the truly important means of constitutional change. This explains why, when society has changed enough to produce a supermajority in favor of a formal amendment, the amendment is probably unnecessary.

One cannot, however, just say simplistically that any set of political forces strong enough to bring about a constitutional amendment is strong enough to change society in some other way, because that is not always true. A supermajority might act, and adopt an amendment, even if society has not fundamentally changed. An amendment might represent a momentary high-water mark of popular sentiment on a question, or an effective effort by an interest group at the height of its power to secure its position." At a later time, many people, even a majority, might decide that the amendment was a mistake - but there it is, entrenched in the Constitution.

On these occasions the formal amendment will be relatively insignificant for a different reason. When there is no lasting social consensus behind a textual amendment, the change in the text of the Constitution is unlikely to make a lasting difference - at least if it seeks to affect society in an important way - unless society changes in the way that the amendment envisions. Until that happens, the amendment is likely to be evaded, or interpreted in a way that blunts its effectiveness. This is, in a sense, the other side of the fact that a mature society has a variety of institutions, in addition to the text of the Constitution, that can affect how the society operates. Those institutions can change society without changing the Constitution; but they can also keep society basically the same - perhaps with some struggle, but still basically the same - even if the text of the Constitution changes. This was, most notoriously, the story of the Fourteenth and, especially, the Fifteenth Amendment. The Fifteenth

Amendment was somewhat effective in the short run, but within a generation it had been reduced to a nullity in the South.

It does not follow that, owing to some kind of historical necessity, formal amendments cannot ever cause important changes. Rather the point is that the formal amendment process will be the means of significant change only in certain limited circumstances that hardly ever occur in a mature society. In particular, three conditions must be present for the amendment process to make a difference.

First, a formal super majoritarian amendment process is unlikely to be an important means of change unless the other usual means of change, such as legislation and judicial interpretation, are unavailable for some reason. If other means of change are available, they will probably have effected the change to a significant degree before a supermajority can be assembled to amend the Constitution.

Second, a formal amendment process is likely to make a difference only when the supermajority that adopts the amendment is a temporary one that was assembled even though society had not fundamentally changed. Deep, enduring changes in society will find some way to establish themselves with or without a formal amendment - if not through legislation or changes in the composition of the courts, then through changes in private behavior. The formal amendment process will have its most significant effect when the supermajority sentiment does not persist.

Finally, for an amendment to matter, it must be unusually difficult to evade. An amendment that specifies a precise rule, for example, is more likely to have an effect than one that establishes only a relatively vague norm. If its text is at all imprecise, an amendment that is adopted at the high-water mark of public sentiment will be prone to narrow construction or outright evasion once public sentiment recedes, as the Fourteenth and Fifteenth Amendments were.

If all these circumstances occur together, a temporary supermajority's ability to adopt a formal amendment might bring about a permanent change that would not have occurred without the formal amendment. But this confluence of conditions is unlikely to happen very often. I suggest below one instance in which it might have happened - the Twenty-second Amendment, which limits presidents to two terms. Even that example is not entirely clear. But that may be the only occasion since the early days of the Republic when the formal amendment process seems to have made a substantial difference.

* * *

Anne Twomey, *The involvement of sub-national entities in direct and indirect constitutional amendment within federations* (Paper Presented at the World Congress of Constitutional Law, Athens Greece, 11 – 15 June, 2007). Footnotes omitted.

[Amendment of a federal constitution may not be handled in the same fashion as that of a unitary constitution. It is appropriate to advocate for an entrenchment of the amendment procedure of a federal constitution because it is a pact that gives rise to the federal arrangement by defining the respective jurisdictions of the tiers of government involved. An aspect of ensuring the entrenchment is putting in place amendment procedures that give adequate sway for the sub-national governments. Anne Twomey's article, excerpted below, discusses different jurisdictions' approaches to involving sub-national entities in the decision making of constitutional amendments.]

* * *

The involvement of sub-national units in national constitutional amendment

The initiation of constitutional amendments

In most federations, it is the national Parliament which has the power to initiate constitutional reforms. This “contributes to the centralist bias built into most federations.” There are some exceptions. For example, in Brazil constitutional amendments may be initiated by more than half the legislative assemblies of the States.

In Spain the legislatures of the Autonomous Communities have the power to initiate constitutional amendment. In Russia, the legislative bodies of the constituent units of the Federation may initiate constitutional amendments. In the United States two-thirds of State legislatures may petition the Congress to convene a constitutional convention, but it is up to Congress as to whether to call a Convention into being. In Switzerland, of course, amendments may be initiated by the people.

The right of sub-national units to initiate constitutional change is not a significant right if the national Parliament can still veto the passage of any such amendment. In Australia, a Constitutional Commission recommended that the Constitution be amended to provide that if at least half the State Parliaments, representing a majority of Australians overall proposed a constitutional amendment, it be put directly to the people for approval by way of a referendum. Unsurprisingly, the Commonwealth Parliament has never agreed to put such a referendum proposal to the people.

Constitutional amendment primarily by national Parliaments

In some federations, the amendment procedure is left to the national Parliament with no additional involvement of sub-national units or the people. Special majorities of three-fifths or two-thirds are required to ensure that there is wide cross-party political support for constitutional amendments and adequate protection for minorities. However, special majorities are not effective constraints in countries where there is a dominant political party, as in Malaysia and South Africa, or where it is customary, as in Austria, to govern in broad coalitions that hold two-thirds of the votes in the Parliament.

On its face, such a system is not consistent with federalism as it grants one party to a federal compact the power to change the terms of that compact. However, if the national Parliament is truly federal in its nature, with an upper House representing the interests of sub-national units, and a lower House representing national interests, then an appropriate balance may still be maintained. Much will depend upon whether the upper House is an effective forum for protecting sub-national interests. This, in turn, will depend on factors such as the way those representatives are chosen and the dominance of political parties at the national and sub-national level.

There are three basic models for constitutional reform by national Parliaments in federations. The first model gives virtually no effective input to the sub-national units and all power to the national Parliaments. For example, art 159 of the Malaysian Constitution provides that constitutional amendments may be made by a majority of two-thirds of the total members of each House. No additional State involvement is required, except in relation to certain constitutional amendment affecting the constitutional position of the States of Sabah and Sarawak, where the consent of the Governor of the State is also required.

Although the Malaysian upper House is comprised in part of persons chosen by the State Legislatures, it is dominated by persons appointed upon the advice of the federal Cabinet. Further, voting is dominated by party politics rather than the representation of State interests. Thus the Senate is not truly a State's House and does not in practice protect the interests of the States with regard to constitutional amendments. As the Government has traditionally held a two-thirds majority in the Malaysian Parliament, constitutional amendments have occurred frequently and often with little scrutiny, some having passed all legislative stages and come into effect in a matter of hours. From 1957 to 2003 the Malaysian Constitution was amended 43 times, giving rise to 643 amendments to individual articles.

In Brazil, although a majority of States may collectively initiate proposals for constitutional amendments, when it comes to approving the amendments, this must be done by three-fifths of members in each House of the National Congress on each of two readings of the Bill. While the Senate is comprised of three representatives from each State, they are directly elected by the people, rather than by State governments or legislatures. The only influence the States have on the process is through the State-based strength of political parties and the role of State Governors as political power-brokers.

Theoretically, Belgium also falls within this first model. Its formal constitutional amendment mechanism was not changed when it transformed from a unitary to a federal state. It therefore only involves the national Parliament, requiring one Parliament to identify the provisions needing reform, a dissolution, and then the newly elected Parliament to approve those amendments with a two-thirds majority in each House.

However, most of the detailed provisions concerning federalism, including the distribution of powers and financial arrangements, are to be found in “special laws” rather than the Constitution itself. The amendment of special laws requires not only the approval of a two-thirds majority in each House of Parliament, but also a majority in each language group. “In practice this means that the governments of the regions and communities must accept the proposal.”

The second model is the German model, where sub-national units have far more effective representation in the upper House giving them genuine involvement in constitutional reform. In Germany, the Basic Law is amended by a special majority of two-thirds in both the Bundestag (lower House) and the Bundesrat (upper House). The Bundesrat, however, is composed of representatives chosen by the Länder, who vote in a bloc upon the instructions of the Länder. The Länder therefore have a direct voice in constitutional reform.

The German model was largely adopted in South Africa, where the representatives of the Provinces in the National Council of Provinces (upper House) vote as a bloc on matters affecting the Provinces. The level of approval required, however, varies depending upon the nature of the constitutional amendment. The highest threshold is set for amendments to s 1 (the founding provision) and s 74 of the South African Constitution (the constitutional amendment procedure). It requires the approval of 75% of members of the National Assembly (lower House) and 6 of the 9 Provinces in the National Council of Provinces (upper House). Amendments to Chapter 2 of the South African Constitution (Bill of Rights) require the support of two-thirds of members of the National Assembly and 6 provinces in the National Council of Provinces. Other constitutional provisions just require the support of two-thirds of members of the National Assembly, unless they relate to matters that affect the National Council of Provinces, alter provincial boundaries, powers, functions or institutions or amend a provision that deals specifically with a provincial matter, in which case the approval of 6 Provinces in the National Council of Provinces is also required.

The third model combines a system of parliamentary approval with a compulsory referendum where a total revision of the Constitution is proposed, or an optional referendum for partial revisions, which can be initiated by a minority in either House. Although the element of a referendum does not necessarily result in the protection of the interests of sub-national units, it dilutes the power of the national Parliament and forces it to put the case for change to the public. The two examples of this model are Austria and Spain.

In Austria, constitutional amendments must be approved by two-thirds of members voting in the Nationalrat (lower House), as long as at least half its members have participated in the vote. In the ordinary case, the Austrian Bundesrat (upper House) only has a suspensive veto of such amendments. If, however, the amendment restricts the competence of the Länder in legislation or its execution, then the same special two-thirds majority is required in the Bundesrat. Although the Austrian Bundesrat is comprised of delegates elected by the legislatures of the Länder, they tend to vote according to party affiliation rather than in the interests of their respective Länder. A further difference from Germany is

that a referendum may be held in relation to partial revisions of the Austrian Constitution if one third of either House so requires, and a referendum is compulsory for total revision.

In Spain, although the legislatures of the Autonomous Communities have the right to initiate constitutional amendments, the passage of those amendments is through the Cortes Generales (national Parliament). Constitutional amendments must be approved by a majority of three-fifths in each House. The Senate (upper House) represents territorial provinces as well as the Autonomous Communities. The Autonomous Communities have a degree of influence in the Senate, but not control. If a majority of three-fifths of the Senate is not achieved but the amendment is approved by a majority in the Senate, it will pass if the Congress (lower House) adopts the amendment by a two-thirds majority. If, after the passage of the amendment, one tenth of the members of either House so request, a referendum upon the amendment is held.

The total revision of the Spanish Constitution, or the revision of certain parts of it (such as those concerning fundamental rights and freedoms and the Crown) require two-thirds majorities in each House, the dissolution of the Parliament, the passage of the Bill by two-thirds majorities in the newly elected Houses and a compulsory referendum. A referendum is held in relation to ordinary amendments if requested by one tenth of the members of either House.

Amendment by a combination of the national Parliament and sub-national units

A more common method of constitutional amendment in federations is to require the approval of both the national Parliament and a proportion of sub-national units in relation to all amendments or those of particular importance to sub-national units. The United States Constitution, as the first modern federal Constitution, has been a significant influence on other federations.

Article V of the United States Constitution gives a role to the national Congress at the initiation stage and a role to the States at the ratification stage. Constitutional amendments may be initiated by the Congress itself by being passed by a two-thirds majority in each House of the Congress. Alternatively, the Congress may call a Convention for the consideration of proposed amendments if petitioned by the legislatures of two-thirds of the States. This second alternative has not been utilised. Once proposed, amendments must be ratified either by the legislatures of three-fourths of the States or by Conventions in three-fourths of the States. State Conventions have only been used once for this purpose. In practice, the primary procedure is passage by two-thirds of each House of the Congress and by the legislatures of three-fourths of the States.

The United States system has influenced those in Mexico and Nigeria. In Mexico, constitutional amendments require the approval of a special majority of two-thirds of those present and voting in each chamber of the national Congress and approval by more than half the State legislatures. In Nigeria, constitutional amendments also require the approval of two-thirds majorities in each House of the National Assembly, but must reach the higher standard of approval of two-thirds of the State Houses of Assembly. However, changes to the amending provision and provisions concerning State borders and fundamental rights must receive the support of four-fifths of all the members of each House in the Nigerian National Assembly as well as majorities in Houses of Assembly of two-thirds of the States.

In India, Canada and Russia the level of involvement of the sub-national units depends upon the nature of the provisions that are proposed to be changed. The different amendment procedures for different types of amendments become increasingly more complicated.

In India, changes to some constitutional provisions are deemed not to amount to constitutional amendments, and may therefore be implemented by ordinary legislation. Most constitutional amendments, however, require approval by a two-thirds majority of each House of the Indian Parliament. The Council of the States (upper House), primarily comprises representatives of the States who are elected by the Legislative Assembly of each State. Hence, the States retain an influence upon constitutional amendment through their representation in the upper House.

Certain provisions of the Indian Constitution, however, require additional State approval. They mainly concern federal matters, being: (a) the election of the President (arts 54-5); (b) the extent of the executive power of the Union (art 73); (c) the extent of the executive power of the States (art 162); (d) the Union judiciary (Ch IV of Part V); (e) high courts in the States (Ch V of Part VI); (f) the distribution of legislative power (Ch I of Part XI) and the lists in the 7th Schedule setting out those powers; (g) the representation of the States in Parliament; and (h) provisions dealing with amendment of the Constitution. Amendments to these provisions must be passed by a two-thirds majority; each House of the Indian Parliament and must then be ratified by the legislatures of not less than half the States before being presented to the President for assent.

Since 1982, Canada has had an even more complex system of constitutional amendment. Some amendments, such as those concerning the office of the Queen, and the amendment process itself, require support by majorities in both Houses of the national Parliament and the legislative assembly of each Province. Provisions concerning the executive government of Canada or the Senate and House of Commons can be amended by the Canadian Parliament alone, just as amendments to the constitution of a Province can be made by the legislature of the Province. Where an amendment concerns one or more, but not all, Provinces, it must be approved by both Houses of the Canadian Parliament and the legislative assemblies of the Provinces to which it applies.

The general procedure for amending the Canadian Constitution requires the approval of majorities in both Houses of the Canadian Parliament and in the legislative assemblies of at least two-thirds of the Provinces (currently seven Provinces) having in aggregate at least fifty percent of the Canadian population (known as the 7/50 procedure). An amendment will ordinarily bind all Provinces, including those that do not support it. However, in relation to some types of amendment, one or more of the non-supporting Provinces may formally ‘dissent’ from the amendment, in which case it will not apply to the dissenting Provinces.

The Russian Constitution wins the prize for the most diverse constitutional amendment procedures. It utilizes the mechanisms of parliamentary special majorities, sub-national approval, constitutional assemblies and referenda. Constitutional amendments to Chapters 3 to 8 of the Russian Constitution require the approval of three-quarters of the members of the Federation Council (the upper House of the Federal Assembly) and two-thirds of the members of the State Duma (lower House). They must then be approved by at least two-thirds of the constituent units of the federation.

Proposals to amend Chapters 1, 2 or 9 of the Russian Constitution (which deal with the fundamentals of the constitutional system, human rights and constitutional amendment) are dealt with differently. They must be sent to a constitutional assembly, which can only be convened by a special majority vote of three-fifths of both the Federation Council and the State Duma. The constitutional assembly can confirm that these provisions are inviolable or propose a new draft constitution, which must be approved by a two-thirds majority of the constitutional assembly or submitted to the people in a referendum. The referendum is deemed to have passed if it is approved by a majority of those participating, as long as at least half the electorate takes part.

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Referenda and direct democracy

In Australia, constitutional amendments must be passed by an absolute majority of each House of the national Parliament and then submitted in each State and certain Territories to electors in a referendum. The amendment must be approved by a majority of electors voting in a majority of the States, and a majority of electors overall. Australia has had a low success rate in constitutional reform at the national level. Only eight out of 44 proposals have succeeded in over 100 years. Many have theorised as to why this is so. Some have criticised the use of referenda, arguing that the people tend to vote “no” if they do not understand or are uncertain about the potential impact of a constitutional proposal. However, other

elements have played a role. Referenda may only be initiated by the Commonwealth and must be passed by the Commonwealth Parliament before they can be put to the people. The consequence is that most referenda have proposed an increase in Commonwealth power at the expense of the States and the people. This too may be a reason why they tend to fail. In contrast, referenda at the State level tend to be more successful. For example, in New South Wales the success rate for constitutional referenda has been approximately 85%.

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In Switzerland, constitutional amendments must be put to the people and the Cantons in a referendum and must be approved by a majority of people overall and a majority of the people in a majority of Cantons. In Switzerland, however, the popular initiative of constitutional amendment is permitted. The people may initiate a partial or complete revision of the Constitution by collecting 100,000 signatures. If the Parliament disagrees with a popular initiative, it may submit its own counter-proposal to a referendum at the same time as the popular initiative. It cannot, however, prevent the people from voting on the popular initiative. In practice, the success rate of constitutional amendments proposed by the Swiss Parliament is relatively high (around two-thirds), whereas most popularly initiated referenda fail.

Although the outcomes of referenda do not necessarily reflect the interests of sub-national units, if a referendum proposal is disadvantageous to sub-national units generally or to some in particular, it is likely to fail, especially where there is a requirement that it be passed by majorities in a majority of sub-national units.

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The level of difficulty in amending the national Constitution

The involvement of sub-national units in the constitutional amendment process helps ensure that the federal balance is not tipped too far in favour of national power and protects the special interests of sub-national units. It may also have the advantage of preserving liberty by checking the power of the national government. The ease with which national constitutions can be amended in countries such as Zimbabwe has contributed to their social and economic problems.

* * *

Inviolable protection of the federal structure

Some federal Constitutions refer to their federation as “indissoluble” or “indivisible,” or otherwise expressly prohibit its dissolution. It is not always clear whether such statements are simply aspirational in nature, or whether there is an intention to prohibit constitutional amendments that would abolish sub-national units and the federal system.

Some federal Constitutions expressly include provisions that are said to be “inviolable” while some state that certain principles or constitutional features may not be breached or altered, even by constitutional amendment. In Brazil, amendments to the Constitution may not be considered if they propose the abolition of the federal system, direct secret universal periodic votes, the separation of powers or human rights. The immutability of the federal system was first included in the Brazilian Constitution in 1891 and has been maintained in all Constitutions since. Such a provision, however, does not prevent a new Constitution being brought into effect which is unitary in nature.

Germany has a constitutional provision known as the “eternity clause” which prohibits amendments to the Basic Law that would remove the federal system or impinge on the basic principles set out in Articles 1 and 20 (which include human rights, the separation of power, a republican system of government, democracy, the welfare state and the federal order). The German Constitutional Court has

therefore held that constitutional amendments may be null and void if they are contrary to these fundamental constitutional provisions. In Switzerland, in contrast, all provisions of the Constitution may be amended, but initiatives for constitutional revision or amendment cannot proceed if they would breach mandatory international law.

The position in India is the most interesting. On its face, the Indian Constitution permits the amendment of all provisions. However, in a series of cases, the Supreme Court of India has imposed limits on this power. At first, in *I C Golak Nath v State of Punjab*, the Supreme Court held that fundamental rights under the Constitution could not be amended. This was later overturned by the Supreme Court in *His Holiness Kesavananda Bharati Sripadagalvaru v State of Kerala*, where a majority held that although any provision of the Constitution could be amended, this could not be done in such a manner as to alter the “basic structure and framework” of the Constitution. This includes the federal character of the Constitution, as well as the rule of law, the separation of powers, the democratic and secular character of the Constitution. The Supreme Court’s judgment in *Kesavananda* has since been affirmed upon a number of occasions and is now well accepted in India. The attempt of the Indian Parliament to remove the jurisdiction of the Court and restore its full power to amend the Constitution, through the enactment of the forty-second amendment, was rejected by the Supreme Court in *Minerva Mills Ltd v Union of India*. The Court held that the 42nd Amendment was invalid because the Parliament could not use its limited power of amendment to expand it into an absolute power.

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As a general principle, the inclusion of inviolable provisions in a Constitution is anti-democratic and denies ultimate sovereignty to the people. In contrast, art 39 of the Mexican Constitution expressly states that sovereignty resides in the people, and as a consequence the people at all times have the inalienable right to alter or modify their form of government. However, even if certain provisions of a Constitution may not formally be amended according to the terms of that Constitution itself, this does not prevent the repudiation of that Constitution and the bringing into being of a new Constitution that represents the will of the people. In reality, inviolability provisions tend to be both symbolic, expressing in constitutional form the principles that are most important to the people, as well practical in discouraging constitutional change on certain fundamental matters without the overwhelming support of the people.

Representation in the upper House of the national Parliament

Most federations have bicameral national Parliaments with the upper House of that Parliament representing to some extent the interests of sub-national units. Sub-national representation in upper Houses is important both in relation to the passage of national legislation which may affect sub-national units, and in relation to constitutional amendment.

Three factors tend to influence the effectiveness of sub-national representation in national upper Houses. The first is the extent of sub-national representation. In most cases each sub-national unit is given equal representation regardless of size or population (e.g. Argentina, Australia, Brazil, Malaysia, Mexico, Nigeria, Russia, South Africa and the United States). This can lead to significant over-representation of smaller States. For example, California has 66 times the population of Wyoming, but both have two Senators in the Senate.

In some cases, a basic level of equal representation is given with additional weighted levels of representation for those sub-national units with greater population (e.g. Austria, Germany and Spain), or sub-national units are given different levels of representation, largely based upon population or regional representation at particular points of time (e.g. Canada and India). Additional elements may also be represented in national upper Houses, such as appointees with experience in different fields (e.g. Malaysia and India) or representatives of other territorial areas (e.g. Spain), language communities (e.g. Belgium), or the nation as a whole (e.g. Mexico).

The second factor is the system used for choosing sub-national representatives in the upper house. Where representatives are appointed by the federal government, then party politics tends to prevail (e.g. Canada). Where the system is one of direct popular election, representatives also tend to regard themselves as being beholden to party interests rather than the interests of the sub-national unit which they formally represent. This is particularly the case where a party list system is used (e.g. Australia and Argentina). Where representatives are chosen by the legislature or government of the sub-national unit (e.g. Austria, Germany, India, Malaysia, Russia and South Africa), they are more likely to regard themselves as representing the interests of that sub-national unit, although party interests may still play a significant role (e.g. Austria, India and Malaysia). Where, however, representatives must vote in blocs upon the instructions of the government or legislature of the sub-national unit (e.g. Germany and South Africa), then the upper House is more likely to represent the interests of the sub-national units.

Special protection of the amending formula

In those federal countries where different types of constitutional provisions are afforded different levels of protection, the amendment provision itself is usually granted the highest level of protection available. If not, the less stringent amendment procedures could be used to remove the more stringent amendment procedures by way of altering the amendment formula itself. The amendment procedure therefore needs to be entrenched by the highest level of protection available.

For example, the constitutional amendment procedure in s. 368 of the Indian Constitution can itself only be amended by special majorities of two-thirds of the members of each House present and voting, and by resolutions of the Legislatures of not less than half of the States. In South Africa, the amending formula is subject to the highest level of constitutional entrenchment, being the approval of 75% of the members of the National Assembly and the approval of six of the nine Provinces in the National Council of Provinces. In Canada, the unanimous agreement of the Canadian Parliament and the legislative assembly in each Province is required to make any amendment to the amending formulae.

In Nigeria, the amendment provision is protected by the requirement for a higher special majority of four-fifths in each chamber of the National Assembly, as well as the approval of two-thirds of the State Houses of Assembly, before it may be amended. In Russia, the amendment procedure cannot be amended at all by the Federal Assembly. If an amendment is proposed to it by three-fifths of the total number of deputies of the Federation Council and State Duma, a constitutional assembly must be convened to determine whether the provisions are inviolable or may be amended. A constitutional change to these provisions can then only be approved by a two-thirds majority of the constitutional assembly, or a popular vote where at least half the electorate takes part.

It is unclear whether the amending formula in s. 128 of the Constitution of the Commonwealth of Australia is itself entrenched to a higher degree than other provisions. It may indeed be the case that the framers of the Constitution assumed that s. 128 could not itself be amended. However, as s. 128 was not expressly excluded from the potential application of the amending formula that it contains, it has been generally accepted that the provision may itself be amended, and it was indeed amended in 1977 to give the voters of any Territory represented in the Commonwealth House of Representatives the right to vote in constitutional referenda.

It is likely, however, that paragraph 5 of s. 128 (which requires a successful referendum in each affected State if a constitutional amendment affects state boundaries or diminishes proportionate representation in the Parliament) is doubly entrenched because it also extends to alterations “in any manner affecting the provisions of this Constitution in relation thereto.” Its procedure would therefore apply not only to any amendment that diminished the proportionate representation of any State in either House of the Commonwealth Parliament or altered the limits of a State, but also to any amendment to s. 128 which removed this special requirement.

Different procedures for the amendment of subnational constitutions

Where sub-national constitutional matters are largely or completely incorporated in national Constitutions, then the mechanism for national constitutional amendment, as discussed above, is of vital importance.

Where sub-national units have their own Constitutions, the means of amending them sometimes mirrors the means of amending national Constitutions, especially when this method is dictated by the national Constitution (e.g. Austria, Malaysia, and South Africa). However, the mechanism for amending the national Constitution of a federation tends to take the form that it does in order to provide a degree of protection for the autonomy of sub-national units within the federation. This rationale is not relevant at the sub-national level, unless the interests of local government are represented and protected in the amendment process at the sub-national level in the same way that sub-national interests are protected at the national level. For example, in some Mexican States the approval of more than half the ayuntamientos (municipal councils) is required before a change may be made to the State Constitution. Local government is also given a role, albeit more minor, in the amendment of some other sub-national Constitutions.

Otherwise, the reasons for making a Constitution difficult to change relate to other matters, such as ensuring that change is not precipitous or ill-considered and ensuring that fundamental change has the support of the people. It is therefore often the case that the mechanism for constitutional amendment at the sub-national level is easier to satisfy than at the national level. For example, in Australia and Canada, most provisions of sub-national Constitutions can be amended by ordinary legislation. In the United States the history of State constitutional amendment provisions has shown a trend towards the removal of many impediments to constitutional reform (such as requirements that amendments be passed by a legislature in consecutive sessions, and special majorities both within the legislature and in referenda) as well as an increase in the involvement of the people through popular initiative.

The means of amending sub-national constitutions are far more diverse than those for amending national Constitutions and cannot be described in detail in this paper. Three observations, however, may be made. First, it is interesting to note that within a federation, sub-national units may choose widely different mechanisms for amending their constitutions. There is no necessity for uniformity. Secondly, sub-national units tend to make greater use of different mechanisms of constitutional reform such as conventions or constituent assemblies (e.g. Argentina, Mexico, United States and Switzerland) and referenda (e.g. Australia, Germany, Mexico, Russia, Spain, Switzerland, United States). Thirdly, there is a greater tendency in sub-national units to involve the people directly in constitutional reform through popular initiative (e.g. Brazil, Mexico, Switzerland, United States). This may be because sub-national governments are closer to the people or perhaps because such a system is more manageable on a smaller scale. Another factor may be that because sub-national Constitutions are to some degree subordinate to a national Constitution which is likely to provide overriding protection for fundamental constitutional principles and human rights, there is a significantly reduced risk that popular initiative will result in the oppression of minorities by the majority.

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Questions and Discussion

1. As introduced, Anne Twomey's article discusses the different jurisdictions' approaches to involving sub-national entities in the decision making regarding constitutional amendment. Of the various approaches she has outlined in her article, which ones have impressive and well-designed mechanisms?
 2. The constitutions discussed by Twomey demonstrate that political systems have amazingly diversified ways of undertaking constitutional amendments, the most important ones being direct (referenda), and indirect (through representative assemblies), with some variation within the two modes as well. Evaluate the pros and cons of these approaches.
 3. As discussed earlier, some constitutions assert the inviolability of certain constitutional provisions as not subject to constitutional amendment. What is your opinion on this matter?
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C. The Amendment Procedure of the 1995 Constitution of Ethiopia

The procedures as well as requirements for the amendment of the Ethiopian Constitution have many things in common with one or the other of the constitutions discussed earlier. In that regard, its similarity would be closer to the federal constitutions rather than non-federal ones. We note that amendment of the Ethiopian Constitution is governed by Arts. 104 and 105. The Constitution does not regulate how proposals for amendment should be conceived. Do you think the people can directly table constitutional amendment proposals for consideration in the absence of a clear procedure in this regard?

As you can see from Art. 104, without a clear indication as to how the proposal may get to the table, it is stated that if a proposal for constitutional amendment is supported by two-thirds majority vote in the HoR or by the same majority in the House of the Federation ("HoF") or by a majority each in one-third of state legislatures in the Federation, the proposal would be submitted for discussion and decision to the general public and to those whom the amendment of the Constitution concerns. This stage is technically known as initiation of amendment. Once amendment is initiated at either level, the next process is its submission for discussion and "decision" to the general public and others particularly interested.

One perplexing issue here is the idea of "decision" on the initiated amendment. What does decision mean here? How would the general public decide on an amendment "initiated" but not subjected to the Art. 105 procedure? What is the consequence of "rejection" by the general public of the initiated amendment? Would it return the initiated amendment to second consideration of the body that initiated the amendment? What other possible consequence does it have? On the contrary, what would be the consequence of approval by the general public of the initiated amendment? Would it make the Art. 105 procedure redundant or unnecessary?

It is difficult to understand the real term meaning of the idea of "decision" by the general public in Art. 104. Obviously it cannot be taken as a referendum because it was not intended to be a final decision on whether the amendment should be ratified or not; there is no indication to that effect either in Art. 104 or 105. One may think that it may be a decision by the general public and those concerned to say the initiated amendment is fine with them, or may be to modify the amendment after their deliberation. If this argument is correct, then it means that there would be three procedural decision making stages in amending the Constitution: initiation by the elected bodies as provided in Art. 104; discussion and decision by the general public and those concerned, again as in Art. 104; and finally ratification of the amendments as per Art. 105. But even if we accept this argument, the possible conflict between decision by the elected bodies under Art. 104, and sort of direct democratic decision in the same article is apparent and there is no mechanism designed to solve these problems. Some commentators are tempted to say that in the absence of a clear regulation as to how the two systems under Art. 104 relate, there is no way out except disregarding the term "decision" in Art. 104.

As regards the approval of the initiated amendment, Art. 105 lays down two tracks: one more stringent and relating to Arts. 104, 105, and those of Chapter Three of the Constitution, and the other relatively less stringent, embracing the remaining provisions of the Constitution. In the case of the first track, for a given amendment to be made part of the Constitution it will have to be approved by a majority of all State Councils; two-thirds vote of the House of Peoples' Representatives; and by a two-thirds majority vote of the House of the Federation. In the case of the other constitutional provisions, approval by a two-thirds majority of a joint session of the House of Peoples' Representatives and the House of the Federation; and by a simple majority in two-thirds of the Councils of the member States of the Federation.

Both procedures described above could be considered as very rigid procedures. Especially as regards the first track, we can say that the Constitution fulfills what is generally known as entrenchment of human rights in national constitutions by protecting both the rights provisions and the procedure for amending the constitution from being easily changed. As the Constitution has not been formally amended so far, it is not possible to consider a practical example of how these procedures work. There was an attempt a few years back to amend Art. 98 of the Constitution dealing with joint taxation sources. According to my information, the amendment was both initiated and passed by the federal houses, but was never clear whether it was submitted to the states or not. Perhaps it is interesting to see that the amendment sought to be brought about in the proposed amendment of Art. 98 has been de facto put into action. This in some way explains what David A. Strauss calls the “irrelevance of amendments.” Do you agree with this opinion?

CHAPTER FOUR

ETHIOPIAN CONSTITUTIONAL DEVELOPMENT

A. The Pre-Written Constitutional Era

Ethiopia has existed as a state in different shapes and sizes, expanding and shrinking, for many centuries. Although the historically attested date holds that the Ethiopian state has existed for two millennia, legend adds about one or two millennia as the start of the existence of the ancient Ethiopian state. Some scholars, such as Donald Levine, maintain that relationships among the peoples in today's Ethiopian region dates back to 2000 BC, if not longer, at which point they began to separate into five core groups with different languages and cultures: namely, the Northern Cushites (e.g. the Bedawie in Northern Eritrea); the Central Cushites (the Agew); the Eastern Cushites (some two dozen tribes having the gada social organization); the Semitic Speakers (which formed about seven ethnic clusters); and the Omotic-speaking peoples settled in the South-west (the most diversified who divided into about 50 small societies with distinct languages and cultures). (See Donald N. Levine, *Greater Ethiopia: The Evolution of a Multi-Ethnic Society* (1st ed., 1974)). Levine says that these proto linguistic and cultural groups were constantly penetrated and influenced by outside people such as the Negroid and Nilotic peoples of the present Southwest and Western Ethiopia and intermixed with them, adding more diversity to the people.

These relationships between what Levine calls "proto-Ethiopians" continued with greater intensity and complexity during the first and the second millennia AD. No doubt that there have been peoples' movements in different directions with trade and other man made (e.g. war) and natural (such as famine) catalysts over the past long history of their existence. The various notable expansions and re-expansions of the Sidama, the Oromo, and the Christian northern people during the 15th to 17th centuries are among the most important events that intermeshed the Ethiopian people. The unfortunate bloody wars between the Christian north and the eastern Ethiopian Muslim principalities, the most devastating one being the war during the Emirship of Ahmed *Grag*n (1527-1543), over the long history of Ethiopia for the first half of the second millennium reflect instances of sour relationships reminiscent of the unaccommodating relationships between faiths viewed from an angle of power-relations.

It is also noteworthy that during most of the second half of the second millennium, the various Ethiopian peoples (termed in the 1995 Constitution of Ethiopia as "nations, nationalities and peoples") to a large extent were autonomous, which was of course more regional than ethnic. There were several autonomous Oromo entities like Qeelem, Wallagaa, Borana, and the well-known five Gibe states; the same was the case with the northern people of Amhara stock like Gojjam, Begemder, and Shewa. This applies to the people of Tigre stock as well. During most of the second millennium, autonomous regions, and groups as they existed at a given time and place, including, for example, the eastern Muslim principalities such as Adal and Aussa, were accountable to the Ethiopian monarch to a varying degree depending on the strength or weakness of his military power. The autonomous regions acted like independent entities and refused to pay tributes to the monarch and disobeyed him when they perceived the latter was weak. A powerful monarch would, however, reestablish his suzerainty over them. This was how it had always been until the second half of the 16th century, when owing to the Oromo expansion and *Grag*n's war, the Christian empire was forced to shrink.

A centralised Ethiopia was initially conceived in the late 19th century by then little-known Kassa who was later enthroned as Tewodros II. Petrified by the developments of the *Zemene Mesafint* (1769 -1855) – a historical epoch during which the monarch, then based in Gondar, was reduced to a mere puppet with the regional warlords running their regions as independent entities. The rise of Emperor Tewodros II ushered in an era of power centralization that affected not only the northern core of the Ethiopian state but also other parts of "Greater Ethiopia" in the east, south and

southwest. Beginning from the time of Gonderine court politics, both the reorganization of Ethiopia and the assumption of power in a reorganized Ethiopia were visions to which most groups in Ethiopia (but more directly the Amhara, Oromo and Tigre) had a shared interest. (See for further reference on the above summary: Harold Marcus, *A History of Ethiopia* (2002); Teshale Tibebe, *The Making of Modern Ethiopia, 1896-1974* (1st ed., 1995)).

A centralized Ethiopia was less than accommodative of all peoples and cultures mainly due to the feudal and backward nature of the power elites. Peoples who were to the south of the traditional northern core of the Ethiopia state (commonly known as Abyssinia) were for the most part not treated as coequals, and were exposed to abuse and exploitation by the aristocracy associated with the state power. It is worth noting here what Harold Marcus has stated about the relationship between the state machinery of Emperor Menelik II and the southern peoples brought under central administration. He notes that the political centralization, thereby attempting to create a uniform mode of governance throughout the empire, and the presentment to the southern society of the Christian Abyssinian culture and religion through extended central administration (which he calls “political and cultural assimilation”) did not bring disrespect to the individual.

“Local southerners were able to enter the political life of the empire by means of the preliminary experience acquired from actual observation of life among the dominant northerners, by learning Amharic, the lingua franca of Menelik’s state and by Christian conversion and baptism. With the acquisition of a thin but necessary veneer of Amhara culture, the new citizen of the empire might rise to the limits of his ability, ambition and good fortune” (*The Life and Times of Menelik II: Ethiopia 1844-1913* (Clarendon Press: 1975, p. 2).

In any case, the relationship created by the political economy of the time did maintain stratification of some sort that was in fact destructible and not at all based on ethnicity. It also bears noting that this kind of feudalistic relationship had been the case with many societies around the world. But Ethiopians have never developed any kind of animosity on individual levels on any grounds. The fact that the Ethiopian people stuck together through bad and good times – for example in the face of a clear agitation for truncation of various groups from Ethiopia by the Italians during the five years of Italy’s occupation (1936-41) – demonstrate the indestructible nature of the relationship among Ethiopians.

Now, with the old feudal relationships among our peoples out of the way, new forms of unfair relationships should not be allowed, and should be legally and politically condemned wherever they may occur, regardless of the victim and the perpetrator. The current situation (as we speak) in which all Ethiopian citizens and groups are again made deeply unhappy with the way politics is being run from Addis Ababa and the regional state capitals shows our inability to genuinely break from the past hegemonic and instrumentalist approach to political power. In Ethiopia, political power is yet to become truly the people’s power. Unless and until that happens, freedom, democracy, just peace, and transformative development as well as the survival of Ethiopia as a nation will always hang in the balance.

In what follows, in line with the topic of the section, we will see two brief accounts by Assefa Fiseha, and John Markakis and Asmelash Beyene about some aspects of Ethiopia’s public life before the written Constitutional era that began in the 1930s under Emperor Haile Sellassie. Their insights will flesh out some of the points highlighted above.

Assefa Fiseha, *Federalism and the Accommodation of Diversity in Ethiopia: A Comparative Study* (Wolf Legal Publishers, 2006). Footnotes omitted.

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Ethiopian history dates back to the tenth century BC or at least official records take it to the Axumite civilization (first century AD to 1150) . . . Yet, like many other issues in Ethiopia, its historiography is full of controversy. In terms of timing, some take it to millions, others to thousands and a few others to only hundreds of years, mainly to the emergence of the modern Empire state in the last quarter of the 19th century....

In terms of its coverage, the dominant approach has been to portray Ethiopian history as “a story of succession of rulers and dynasties” and as a result, because of the dominant position of the Amharas and the Tigrayans, it was equated with what the ferengis call “the Abyssinian culture.” The bulk of the people were then left out. The range of other ethno-linguistic groups in Ethiopia has scarcely been visible and until recently little interest has been shown towards understanding their cultures and tradition. It is an obvious fact that Ethiopia was portrayed in both official presentations and books as the land of the Abyssinians.

(...) the writing of history in the Ethiopian context has failed to transcend at least two constraints. On the one hand, Ethiopia had to define herself as the only country in Africa that defeated European colonizers, with the rest of the world being hostile to Africa. It had to prove to the rest of the world that it is a state that should join the international community and to do so, it had to train elites to write the history of this “nation-state.” This is not without consequences. The history thus written in this global context had to focus on the state and its institutions, as it was an instrument of nation building. “It tended to extol the centralizing and unitary role of Ethiopian monarchs and concentrated on their innovative and modernizing role within the Ethiopian society, the church and state tradition in so far as it focused on the development and growth of an independent and literate Christian nation.” The state itself was not inclusive and the history too was not inclusive and hence the controversy.

On the other hand, the Ethiopian Student Movement of the 1960s brought a new generation of historians as well as a new approach to writing history. While trying to fill the gap, this group of intellectuals have fallen into another trap and at times served as ideologues for national liberation movements. By undermining or at least giving less emphasis to the shared history, they have focused more on scoring the point that pre-Menelik Ethiopia constituted an amalgam of semi-autonomous kings and after Menelik’s coming to power Ethiopia became “the prison house of nationalities.” The history they write, although it contributes to the other dimension of the peoples’ life, lacks at times objectivity or even evidence, serving then only as an instrument of nationalist movements.

As a result, one should not be surprised if the name Ethiopia itself has come to signify different things to different people. For some, Ethiopia is the oldest Christian polity in Africa, a country that was “Christian when the rest of the world was prostrating in front of the pagan idols.” A Christian island and after Adwa in 1896, the sole remaining pride of Africans and Negroes, symbol of “unflinching defiance” in which any freedom lover will take immense pride. It is a country that has had its own constitution and codified laws since the thirteenth century . . . For some, Ethiopia is a multicultural and multi-religious state that should accommodate its diversity to make peace with itself....

Except for the twentieth century, a cursory reading of history reveals that Ethiopia has for the most part been under a decentralized rather than a centralized system of governance. This observation essentially characterizes all periods that preceded the coming to power of Emperor Haile Selassie in 1930, leaving certain exceptions of brief unitary attempts by Emperors Tewodros (1847-1868) and Menelik II (1889-1913).

One observes a co-existence of a duality of authorities, mainly that of the Imperial throne, representing the center and a number of provincial nobilities effectively exercising decentralized power. Among other things, the nobilities from Gondar, Wello, Gojjam, Showa and Tigray shared

power with the crown and at times claimed the throne itself. Indeed, the rivalry among these regional forces and the corresponding weakening of the imperial authority was one of the factors that contributed to the absence of a fixed capital or rather to the presence of shifting capital for a long period. Several authors contend that regionalism or provincialism, one essential element of diversity that defined the Ethiopian state, characterized the relationship between the center and the provinces. Provincialism is slightly different from the notion of ethnic attachments. It refers to a special attachment or affection between a person or group indicating one's origin. It represented a sense of parochial identities and diversity of sentiments and interests. It had distinct boundaries and historical traditions of its own nurturing a passionate attachment to self-rule under the framework of imperial administration. The territory defined as a province also represented economic and political interests, which it defended collectively against trends of centralization, under the leadership of the local nobility. It is comparable to the Swiss notion of Cantonalism, although the latter goes much further in protecting linguistic and religious rights.

Equally, autonomous kings existed on the South and Southwestern side of the country. Between the years of 1570-1860, Mohammed Hassen, for instance, contended with loose political as well as trade relations with the center, "the Oromo led an autonomous existence as masters of their destiny and makers of their own history." This reached its climax with the establishment of five kingdoms around the Gibe region, namely Limmu-Ennarya, Gomma, Guma, Gera and the Kingdom of Jimma. They were all absorbed into the Ethiopian state after the 1880s and only the last survived until 1932. On June 6, 1882 at Embabo, Menlik defeated king Teklahaymanot of Gojjam and was able to end not only the Gibe Monarchy but also the Oromo of Wallaga and Illubabor. One also finds, for instance, the kingdom of Kaffa, Wolayta (Nigus Tona succumbed to Menlik in 1894), Sidama, Kambata and Janjaro mainly situated near the vicinity of the Omo River and the Rift Valley area. These kingdoms claim their origins back to the fourteenth and fifteenth centuries.

On the Eastern side we find the Afar sultanate, the Somalis and the Emirate of Harar representing another important center of Islamic power and influence. For the major part of their history, the Afars lived under great autonomy of their own, with minimal intervention from the highland kingdoms in Afar affairs. The Awsa sultanate was a vassal of Menelik but after agreeing to pay tribute, the sultan won recognition of his authority over his subjects. The Afars were identified as a distinct group with their own mode of existence, predominantly nomadic pastoral, and their own traditional hierarchy, culture and religion. Their relative autonomy came to an end with the coming to power of Haile Selassie in 1930. Harar, the center of Islam, a religion which must have begun spreading in the Ethiopian region by the middle of the 8th century AD, played a role as the springboard for Ahmed Grag'n's attack against the center [in the 16th century], when its leader Abdullahi was deposed, after the Battle of Chalanko on January 6, 1887 and in his place, Haile Selassie's father, Ras Mekonnen was appointed governor. The people inhabiting present day Benishangul-Gumuz and Gambela regions were loosely integrated into the Ethiopian state. They were incorporated in the 19th century and have remained since then peripheral to the Ethiopian state, . . . geographically, sociologically, politically and economically speaking. It is with the introduction of commercial farms in the 1940s that the lowland area's social foundation was penetrated. In short, the majority of the Kingdoms of the South, South West and Eastern sides existed as autonomous units only indirectly associated with the center usually marked by the payment of tributes.

This cluster of kingdoms existed effectively for centuries until they were finally incorporated into the Ethiopian state in the second half of the 19th century. They predate the centralized Ethiopian state of the 20th century. However, it needs to be emphasized that despite their semi-autonomous existence there always existed a network of trade relationships as well as relationships based on religion. The imperial throne served as a symbol of unity and the political system combined a balance of forces between the monarchy and regional nobility, the former playing a centripetal role and the latter moderating the power of the center. No historical evidence has so far been adduced that disproves this very fact.

Although it may be difficult to ascertain beyond doubt the exact autonomy and power of the kings, there are clear evidences indicating the fact that except during the tenth century when Yodit/Gudit attacked the Christian empire, during the campaign of Imam Ahmed (1527-1543) and during the . . . Zemene Mesafint [Age of Princes], 1769-1855, three important periods in which the power at the center had to subject itself almost completely to regional forces, the balance often swayed, albeit slightly to the Niguse Negast (King of Kings). Yet, the regional notables held important powers. Defined in broad terms, the regional nobility submitted to the throne, contributed a fighting force in time of crisis or rebellion and collected and paid tributes to the monarchy: the collection of tribute and maintenance of national security being the function of the emperor. In return for this administrative and military function, the nobility were granted autonomy and the right to retain some amount from the tributes they collected for the center. They had their own army. This was indeed true until the coming to power of Haile Selassie, when the army of regional forces had to be dissolved and replaced by national armed forces organized along modern lines. Among others, the regional nobilities not only had military and taxation powers but were also entitled to regulate trade and commerce, impose duties and demand men and material to maintain armies. They also controlled the extraction and distribution of valuable commodities, such as metals, salt and ivory. They were sometimes economically stronger than the emperor and often defied him. The general arrangement was, however, that such kings would submit at least symbolically by paying tribute to the king of kings at the center of political power. Of course, the scope of the nobility's power varied with the strength of the emperor. The stronger the imperial power, the smaller the autonomy would be and vice versa, but it appears that regional power was far from being a mere instrument of central power although its economic and social foundation was entrenched in the imperial system. Rather, a mutual dependence between the two forces seems to have been the dominant feature of historic Ethiopia.

On the other extreme, it was Tewodros (1847-1868) who by bringing to an end the regional lords, set the scene for centralization, but at the same time caused his downfall. Menelik picked up the current of centralization, although not completely, but none other than Haile Selassie and the Derg carried this mission to its extreme. The former stripped the nobility and the regions of their traditional autonomy and powers and the Derg intensified it. It is not surprising then that the major peasant revolts (Tigray, Gojjam, Bale) and the student uprising occurred during the former and all sorts of national and regional forces resisted the latter. We should note that unlike what is portrayed in some corners, these two regimes are the "main incubators" of national and regional forces.

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The beginning of the twentieth century marked the first serious attempt to curb the autonomy of the regional forces. It was reported in 1906 that Emperor Menelik II (1889-1913) could at any time take away the authority of the highest *rases* without giving any reasons for his action. But this is far from the measures taken by Haile Selassie. According to Levine, Menelik did not decisively undercut the authority of the great provincial lords and towards the end of his reign the provincial *rases* became largely independent. It is true that the power of Jimma Aba Jifar II survived for instance until 1932.

The coming to power of Emperor Haile Selassie in 1930 and the subsequent issuance of the 1931 Constitution, the first written constitution in the history of the country, marks a new epoch. It heralded the end of the role of the duality that existed for centuries. Provincialism and/or the autonomous kingdoms, the traditional check against the power of the king of kings, were completely absorbed into the centralized administration. In conformity with his policy of centralization, Haile Selassie refused to confer the title of kings, thereby disappointing expectations at the time of his coronation. This is particularly clear from the nature of the two houses established under the 1931 Constitution. The emperor made sure that all potential contenders for power were members of these chambers that in effect had only an advisory role.

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The process of centralization, modernization, nation building or by whatever name it was conducted and with good intentions, was not without consequences. Firstly, the incorporation of the South, the Southwest and the Eastern sides from their previously autonomous position to complete absorption meant that the notion of the state, its institutions and culture were imposed on the incorporated kingdoms. Secondly, it brought about all sorts of diversities in terms of religion, language, tradition and culture. Because the state failed to accommodate them, the religious, lingual, cultural as well as political and economic dominance gave birth to the “question of nationalities.” Thirdly, the state became extremely centralized at the expense of regional rulers. The political marginalization of the bulk of the community led to civil wars whose cause fundamentally differed from earlier ones. This time resistance not only called for state reform but even at times challenged the state itself. Several studies hinted that conflict in traditional Ethiopia was mainly an instrument for asserting some level of regional autonomy and not for upsetting the whole system, nor was it for separation. “God cannot be blamed; the King cannot be accused” was the main tenet. The opposition mainly looked for adjustment and restoration of violated rights like better administration, lower taxes, respect for local autonomy and reduction of corruption. By and large the legitimacy of the Monarch and its ideological roots were not attacked. In the 1960s, however, things started to change. The new forms of resistance changed significantly in terms of leadership, social composition, motivation and ideological orientations.

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John Markakis and Asmelash Beyene, “Representative Institutions in Ethiopia” in *Journal of Modern African Studies*, Vol. 5, No. 2 (1967). Footnotes omitted.

Legitimate Authority in the Transitional Society

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Like similar institutions elsewhere, the Ethiopian Crown served primarily as a symbol and guarantee of the unity and integrity of, initially, the Christian group and, more recently, the Ethiopian nation. In the highlands of Ethiopia the nature of the terrain fosters and protects local autonomy, and Ethiopian society was riven by regional, provincial, clan, and other divisions. In theory, if not always in practice, the King of Kings, as the title indicates, transcended in authority all lesser potentates and provided the focal point of the centripetal forces holding the group together. Despite perennial power struggles, dynastic feuds, and provincial rebelliousness, the Crown, its powers waxing and waning depending upon the ability of the incumbent and the challenges facing him, remained the most important institution symbolic of group unity. In recent times, the Crown has successfully performed this role for the Ethiopian nation, a grouping of peoples of diverse origins and religions.

The monarchy also served as the protector of independence and national power. Until recently, this was far from being merely a symbolic function. Indeed, the Emperor was expected to provide personal military leadership. This was a role of the highest significance for the Christian group, which was perennially involved in armed conflict with Muslim intruders, and later in wars of conquest which finally established its domination over the present boundaries of Ethiopia. Another aspect of the Crown's role has traditionally been the defence of Christianity and the protection of the Ethiopian Church. Historically, the two main institutions of Ethiopian society, Crown and Church, have been linked together in an intimate, mutually reinforcing relationship. The defence of orthodox Christianity and of the Christian Church has been a fundamental requirement of the imperial role. Those monarchs who neglected this duty did so to their ultimate sorrow. The Crown protected the welfare of the Church, which became a vast tax-exempt landowner, and a beneficiary of many privileges in traditional society. Church-building became a favourite activity of the imperial power. In return, the Church supported the throne with spiritual sanction and the assiduous

propagation of the Solomonic legend, the two symbolic foundations of traditional legitimacy in Ethiopia.

Ethiopian society has always been an aristocratic, socially stratified society, in which the throne is both the apex of the social pyramid and the fountain-head of all honour, titles, and offices. The Ethiopian aristocracy is not hereditary. Titles and offices are granted for life, or for a period depending upon the pleasure of the Crown, although certain families came to exercise a virtual monopoly over certain titles and offices in their area. Although landed, the Ethiopian aristocracy has never, strictly speaking, been feudal. Land, or control over an area of land, which forms the basis of aristocratic status, was traditionally attached to offices in the service of the Crown, and was distributed and withdrawn by the Emperor, as were the offices.

Its role in allocating honours and offices also meant that the Crown allocated economic resources, whether in land or in other forms of payment for services rendered. By and large, the aristocracy derived its material as well as social status from appointment to office in the central and provincial administration. Control over considerable areas of land was attached to such offices. These were personally allocated by the Emperor and could be withdrawn by him. Outright grants of land were also a common royal dispensation to faithful servants. Thus the Emperor performed the role of allocating scarce resources to the only politically active group in the population. Today, although a civil service has been formally established, appointive power is still widely exercised by the Emperor personally, and he is still the only source of honours and titles.

Finally, the Emperor served as the dispenser of justice. His personal court was the highest court of the land, acting in cases of first instance as well as on appeal, and a good part of the monarch's time was spent in personally dispensing justice to litigants who came from far and wide for this purpose. Despite the establishment of a judicial system, the Emperor today still performs this function in a special session known as *chelot*.

The above summary of the various functions performed by the monarchy as an institution in Ethiopian society explains the derivation of legitimacy as the foundation of traditional authority in Ethiopia. Legitimacy is not built simply on myth, nor is it merely handed down by tradition. Rather, it is built on the proven functional utility of the institution over a period of time. It is to be expected that as a traditional society begins to undergo rapid change—that is, to enter a period of transition which is commonly assumed to lead to modernisation—a change of attitudes and beliefs will accompany the transformation of traditional institutions and the reordering of traditional socio-economic and political arrangements. Inevitably, in a society going through this kind of transition, there is a gradual erosion of the legitimacy of the traditional authority. Most affected by this process are groups forming the vanguard of the process of socio-cultural change—such as the western-educated intelligentsia, the urbanised community, the new economic groups of businessmen, workers, and others. The factor that must be stressed, however, is that the attitudes of such groups towards the traditional authority derive not from any external inspiration unrelated to their socio-economic and political situation, but from the very fact that the traditional authority gradually loses its utility in a changing society, and proves increasingly ineffective in performing those functions that previously had gained it legitimacy.

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Questions and Discussion

1. Assefa argues that Ethiopia before Emperors Menelik and Haile-Silassie's centralization of the state authority was a de facto federal state. Some people for various reasons dispute this assertion by Assefa. Are you convinced that Assefa's presentation of facts from Ethiopian history is capable of supporting his conclusions? What possible arguments may be made against Assefa's position?

2. Assefa (also others like Clapham, Markakis and Levine) spoke about important constitutional conventions that kept the Ethiopian polity together for centuries even when the king or king of kings was not strong enough to oversee all of the country. Discuss these conventions. Do you think such an assertion is well-founded?

B. The Haile Sellassie I Era (1930-1974)

The Haile Sellassie era was a time when many changes along the line of Western state conception were introduced in the Ethiopian state power and public life. For example, this was the first time when a law that was described as a “constitution was enacted in Ethiopia. Many laws were enacted during this time through the medium of, since 1941, an official law gazette – the *Negarit Gazeta*. The six legal codes – the Penal Code (1957), the Civil Code (1960), the Commercial Code (1960), the Maritime Code (1960), the Criminal Procedure Code (1961) and Civil Procedure Code (1965) – were all enacted during his time, in most cases with the Emperor himself putting together the expert draftspersons (like the well-known French comparative law jurist, Rene David) and supervising their work. The state bureaucracy and functions also obtained a meaningful shape during the reign of Emperor Haile Sellassie.

The 1931 Constitution with its modest but important contributions existed until 1955, when it was revised owing largely to the Federation of Eritrea with Ethiopia in 1952 through the decision of the UN General Assembly passed in 1950. Both the pieces by Assefa, and Markakis and Asmelash will discuss the significant contributions and the problems that existed during the long reign of Emperor Haile Sellassie. They discuss the political considerations behind the enactment of the 1931 Constitution and many other measures that were taken by the center. I call your particular attention to the rare account on the parliament in the era under consideration. They discuss a firsthand account of the attitudes of Ethiopians to the parliament, the elections that took place, the participants in the election, and the overall nature of Haile Sellassie’s parliament as a representative institution.

John Markakis and Asmelash Beyene, “Representative Institutions in Ethiopia,” in *Journal of Modern African Studies*, Vol. 5, No. 2 (1967)

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THE 1931 CONSTITUTION

The first Ethiopian Constitution was proclaimed by Emperor Haile Selassie I on 16 July 1931, in the second year of his reign. This brief constitution consisted of 55 articles which formalised what had already prevailed defacto – i.e. that the power of government in Ethiopia rested essentially with the Emperor. In form, it was closely modelled on the Japanese Imperial Constitution. At the outset it defined the nature of legitimacy: “By virtue of His Imperial Blood, as well as by the anointing which He has received, the person of the Emperor is sacred. His dignity is inviolable and His power indisputable.” The gist of the Constitution was contained in Article 6, which stated simply: “In the Ethiopian Empire, supreme power rests in the hands of the Emperor.”

One significant innovation was the introduction of quasi-representative structures in the forms of two “Deliberative Chambers”: the Senate (yaheg Mawossena Meker-beth), and the Chamber of Deputies (yaheg Mamria Meker-beth). Neither of these was elected nor, strictly speaking, representative. The members of the Senate were appointed by the Emperor “from among the Nobility and the local Chiefs, who served his Empire as Princes or Ministers, Judges, or high military officers.” As for the Chamber of Deputies, “temporarily, and until the people are in a

position to elect them themselves, the members of the Chamber of Deputies shall be chosen by the Nobility and the local Chiefs.” Neither the size of the chambers, nor the duration of their sessions, or the length of their members’ terms of service were specified in the Constitution. These were presumably left to the discretion of the Emperor. As for the powers of these institutions, they were predictably innocuous. Article 34 stated that “no law may be put into force without having been discussed by the Chambers and having obtained the confirmation of the Emperor.” However, their active participation in the decision-making process was limited to the following provision: “When the Deputies have an idea which could be useful to the Empire or to the nation, the law reserves to them the right to communicate it to the Emperor through their President, and the Chamber shall deliberate on the subject if the Emperor consents thereto.”

The Constitution also formalised the existence of Ministers, but not as a collective body. Ministers were individually appointed by, and were personally responsible to, the Emperor. The deliberative chambers were bound to receive and deliberate on the proposals submitted to them by the Ministers.

One might well wonder about the motives behind the introduction of a constitution by a monarch whose legitimate authority stems from powerful traditional sources and is, at least in theory, unlimited. Certainly there was no discernible popular demand for a constitution at the time. If there was any reaction, it was the opposition of the conservative nobility, which, at that time, retained a highly influential position. The Emperor's statement, in the speech proclaiming the Constitution, that it was voluntarily granted, “unasked and of our Own free will,” must be very close to the truth.

Be that as it may, the major responsibility for the innovation lies with the Emperor, and it is here that one should search for the underlying motivation. It has been characteristic of the traditional authority in the Ethiopian society to function as the innovator, and recent rulers have freely exercised their prerogative. Practically all major changes introduced into Ethiopian society in modern times have been initiated by progressive emperors. Not surprisingly, the scope for innovation has been greater in areas where reform does not directly impinge upon well-established traditional attitudes and interests. In areas consecrated by tradition, the jurisdiction of the Crown tends to be more clearly defined, and attempts at innovation tend to arouse passionate opposition. A key motivation for the constitutional innovation, therefore, was the progressive inclination of the monarch.

A related motive was the Emperor's high regard for world respect, and his concern for improving his country's image abroad, an image that was none too bright at the beginning of this century. To this end he has worked assiduously throughout his long reign, and with no little measure of success. A constitution is universally, though uncritically, regarded as the foundation of stability and legality in government, and, of course, the essence of modernity in the political process. There is no doubt that these considerations contributed to the Emperor's decision to grant the 1931 Constitution.

There were other, more pressing considerations. The Ethiopian political system has always contained powerful centrifugal forces which constantly posed the threat of disintegration and occasionally succeeded in virtually eliminating the central authority of the King of Kings. These forces were represented by the great provincial lords, with the title of Ras, whose claim to rule their provinces with a minimum of imperial interference was effectively supported by substantial military forces under their command. In the absence of a centralised administration, a national army, a national treasury and revenue system, and codified legislation, the provincial lords ruled their areas like pure autocrats, zealously guarded their domains against imperial incursion, and often set out to win the imperial throne for themselves. Since his emergence as Regent in 1916, Haile Selassie had successfully faced a series of challenges to his position. By 1930, having made himself the master of the rebellious lords, he felt secure enough to continue the process of centralisation that had begun under Emperor Theodoros and continued under Emperor Menelik. This process followed many paths, such as the establishment of the Imperial Bodyguard and, later, of a national army under imperial control, the organisation of administrative services which took

over many of the former functions of the provincial governor – such as revenue collection-the setting up of a gendarmerie, and the subordination of the provincial administration to the Ministry of Interior.

The Constitution was designed to play a key role in this process by establishing the legal framework, bases, and limits for the exercise of governmental power. It aimed thus to eliminate gradually the personal and arbitrary power of the nobles by tightening the legal reins on its exercise. As long as the Emperor retained complete control of the constitutional process of legitimation – and the Constitution was designed to ensure such control-there would be no legal justification for such powers. The Constitution was thus designed to provide a statutory basis for what was slowly becoming a *de facto* situation: that all power emanated from the Emperor and could be enjoyed by others only in the form of temporary and revocable delegation by him. “The country,” said the Emperor in his proclamation speech, “must be subjected to a common rule by a Constitution and governed by an Emperor.” In this case, therefore, the Constitution was used by the traditional authority as a means of facilitating the centralisation of power in its hands. Within a short period of time, the Emperor had concentrated in his own hands all real and formal authority. This was the main import of the Constitution.

The two deliberative chambers were designed, of course, as the foundation of the constitutional structure. The former role of these institutions is difficult to define. They certainly were not intended to participate in decision-making, since the letter of the Constitution limited their initiative to communicating any original suggestions they might have had to the Emperor. They were bound to discuss proposals submitted to them, but had no veto power. Any advisory function ascribed to them would be quite peripheral, since the opportunity to press advice on the Emperor was closely controlled by him. Nor did the members possess the background and information necessary for such a role. The chambers had the constitutional right to reject decrees promulgated by the Emperor during their recess; however, there is no recorded instance of their ever having exercised this right.

Since, as mentioned above, the main function of the Constitution was to consolidate the legitimate exercise of power in the hands of the Emperor, the real design for and functioning of these institutions should be examined from that point of view. The chambers provided the mechanism through which, as the Emperor put it, “all who are worthy may participate” in the governmental process. In view of the position of the chambers in that process, such participation was obviously intended to be strictly formal. The quasi-parliamentary institutions provided the means for associating the still influential nobility with the centralising and innovating processes carried out by the monarchy. The co-operation of the nobility was still essential at that time. The draft Constitution was discussed with their most important members, the majority of whom expressed their opposition. Some of the great nobles, whose families had come to hold practically hereditary fiefs in the provinces, were rightly disturbed by the lack of recognition in the Constitution of their unique position. The Senate and the Chamber of Deputies were reserved for the nobility, through the appointing power of the Emperor. Among the first members of the Senate were the most important and contentious nobles, such as Ras Seyoum Mengesha, Ras Hailu Tekle Haimanot, and Ras Kebede Mengesha. Their presence there, despite their obvious reluctance and their lack of familiarity with modern constitutional and legal methods, was designed to lend their still considerable prestige to the new institutions, and through these, in effect, to endorse the consolidation of authority in the hands of the Emperor. In the words of Fitawrari Tekle Hawariat, who had been intimately involved in the drafting of the Constitution and explaining its significance to the nobles, and later became Minister of Finance:

At that time, we did not want a person who could work well in the parliament and legislate good and modern laws. We wanted people to accept those laws which were to be legislated, and these laws could only get acceptance if they were discussed by the nobility and accepted by them first. Thus, we had brought important personalities who had considerable influence in the provinces and had them appointed in both houses according to their power of influence and importance in the public eye. We

wanted to speak to the people of Ethiopia through these personalities. Thus, we used them as instruments for the achievement of our plans and goals.

As it was, the deliberative chambers did not figure prominently in the political process during the eventful years that followed. There is no accurate information concerning the size and composition of either chamber, the length of the sessions, or the nature of their deliberations. The silence of the record is itself an indication of the lack of attention paid to the chambers. Their size varied according to the number and timing of appointments. The figures appear to have been approximately 28 for the Senate and 56 for the Chamber of Deputies. The sessions seem to have been limited to about three months, due to the difficulties of time-consuming travel, the dictates of the rainy season, and the pressure of private affairs. There is no record of the business conducted by the chambers during the years before the Italian war, nor is there any evidence of their having made themselves conspicuous through the exercise of any initiative.

Parliament was suspended at the beginning of the Italian war. It was reconvened after the liberation, in November 1942; but before that a law proclaimed in March 1941 established a method of indirect election for the Chamber of Deputies. Each of the 12 provinces of Ethiopia was assigned five representatives. The term of office remained indefinite, and the reconvened Parliament sat until it was dissolved in 1957. Many of the members died, retired, or were appointed to different governmental posts. Some sat out the full 15 years. The social composition of Parliament did not change; it remained representative of the nobility.

During those years, the personal popularity of the Emperor reached its apex, and his power became well-nigh absolute. The power of the nobility decreased commensurably. Parliament acquired some ceremonial prominence during this period, largely because of the Emperor's use of it as a platform from which to address the nation. The annual opening of Parliament has been marked by considerable ceremony surrounding the Emperor's speech, which he delivers personally to the assembled members of both chambers. This, like all the activities of the Emperor, is given wide publicity, and Parliament briefly basks in reflected glory. Until quite recently this marked practically the only occasion on which news of happenings in Parliament reached the press and other national media of communication. Also, Parliament ratified the United Nations Charter and the Eritrean Constitution, although such ratification was not required by the 1931 Constitution. During the same period, we find a few signs of self-assertion on the part of the lower house, the Chamber of Deputies. In the early 1940's it refused to approve a financial measure on the ground that the Government had failed to draft and submit a budget to Parliament, as required by article 55 of the 1931 Constitution. The first annual budget made public was for the year 1945. Amendments to proposed legislation were not unusual in this period, although invariably they were of minor importance. The best known example, though hardly progressive, is the introduction of flogging as a punishment into the Penal Code of 1957.

THE 1955 CONSTITUTION

The present Constitution of Ethiopia, a revised form of the 1931 Constitution, was proclaimed on 4 November 1955, on the occasion of the 25th anniversary of the coronation of Emperor Haile Selassie I. Two of the basic motives that inspired constitutional reform in 1955 were the same ones that had inspired the experiment of 1931, namely, a concern for Ethiopia's international image, and the centralisation of governmental authority in the hands of the Emperor. The 1931 Constitution, based as it was on a model considered archaic in its own time, had obviously outlived its usefulness, and had become the subject of adverse comment abroad. Other African states, soon to become independent, were adopting constitutions of the most advanced kind; and Eritrea, with whom Ethiopia had formed a federal union, already possessed a Constitution far more modern than Ethiopia's. Always very sensitive to international opinion, the Emperor of Ethiopia desired to eliminate the grounds for adverse criticism, provided that the process of revision did not threaten the established authority of the throne. Far from threatening that authority, the new Constitution

greatly reinforced it by continuing the formal process of centralisation begun by the 1931 Constitution. The older Constitution's sketchy provisions regarding the powers and prerogatives of the Throne were greatly expanded and elaborated in the new document. Some significant examples will suffice to illustrate this point. While article 6 of the old Constitution vested "supreme power" in the hands of the Emperor, article 26 of the new Constitution invests the Emperor with "the Sovereignty of the Empire" as well as with supreme authority over all its affairs. The vesting of sovereignty in the Emperor is also related to the implications inherent in the federal relationship with Eritrea, which will be discussed below. Similarly, detailed provisions vested in the Emperor complete power over the army, foreign affairs, local administration, and other matters.

Another motive for the constitutional revision of 1955 sprang from the deep concern of the Ethiopian Government for the territory of Eritrea. Traditionally considered an integral part of the Ethiopian empire, the Red Sea coast had been invaded by the Italians in the 19th century. Despite the crushing defeat inflicted upon them by the Ethiopians at Adowa in 1896, the Italians retained control over Eritrea, whence they launched their second invasion of Ethiopia in 1935. Following its liberation in 1941, Eritrea was placed under British military control. During the ensuing years, speculation about the future of the region mounted, and so did Ethiopian concern. In 1950 the United Nations decided that Eritrea should become part of a federal system with Ethiopia, maintaining self-government in domestic affairs, and having her own parliament, chief executive, and administration. Eritrea adopted a modern constitution and a surprisingly effective administration. The Ethiopian Government, however, was deeply concerned over incipient separatist tendencies in that region and the opportunity for their growth provided by regional autonomy. It was determined to consolidate central control over this area, and the revised Constitution provided the legal basis for such an arrangement. The 1931 Constitution had not applied to Eritrea. Article I of the revised Constitution settled the question of sovereignty by declaring that "the Empire of Ethiopia comprises all the territories, including the islands and the territorial waters, under the sovereignty of the Ethiopian Crown. Its sovereignty and territory are indivisible." There is not a single mention of federation or any federal provisions in the 1955 Constitution.

Finally, the internal political situation had changed significantly between 1931 and 1955. The processes of economic transformation, urbanisation, education, and the development of communications and transport had produced a small but very important group of Ethiopians, for whom the sanction of traditional legitimacy was no longer compelling. The maintenance of the political system requires their acquiescence, which can be procured only if the authority of the state is provided with a basis meaningful to them. Although there was no overt demand for such reform in the early 1950's, there was obvious disaffection within this group, a state of affairs which promised that such demands would be forthcoming. To have delayed the revision of the Constitution until such pressures became overt would have involved the risk of compromising the position of the traditional authority, since it would appear to have lost initiative and invited further demands. As it was, the granting of reform at this time appeared to preserve the initiative and absolute authority of the Crown, the act of revision being presented as purely voluntary on its part. The infusion of a formal, legalistic element of authority into an essentially traditional system is perhaps a common feature of transitional societies. In the Ethiopian political system this element is reflected by the representative institutions which, nominally at least, participate in the decision-making process. A basic change effected by the 1955 constitutional revision was the introduction of the representative principle. While under the 1931 Constitution both chambers were appointed by the Emperor, the 1955 reform made the Chamber of Deputies elective, on the basis of universal adult suffrage. The Senate remains an appointive chamber reserved for the nobility. The terms of office are fixed by the Constitution at six years for senators and four years for deputies. Qualifications for voters and candidates are defined. The time for regular sessions is also prescribed. The Emperor retains the right to postpone, extend, and suspend sessions, and to dissolve Parliament. The chambers have the right to determine their own rules of procedure, and the Chamber of Deputies to elect its own president. The president of the Senate remains the appointee

of the Emperor. Furthermore, Parliament was given the right to summon Ministers to answer questions before it. Otherwise, the position of the representative institutions in the decision-making process was not appreciably changed by the constitutional reform. The Constitution envisages a two-way communication between Parliament and Emperor, with the Prime Minister playing the role of the middleman. The Prime Minister to Parliament transmits proposals for legislation originating with the Emperor, or with the Council of Ministers and approved by the Emperor. The Prime Minister to the Emperor for approval transmits proposals originating with 10 members in either chamber or having secured the approval of both chambers. Predictably, in practice legislative traffic has been mostly one-way, with Parliament playing a very minor role in initiating legislation. A bill becomes law only with the approval of the Emperor. The Constitution is silent concerning the fate of proposals that fail to secure the approval of Parliament. The Emperor has the right to issue decrees with the force of law in cases of emergency or when Parliament is not sitting. Such decrees must subsequently be submitted to Parliament for approval. The two chambers are co-ordinate and, in cases of disagreement between them, a full report must be made to the Emperor, who then may transmit to Parliament his observations on the subject. Parliament was granted no control over the Ministers-individually or collectively-and they remain responsible to the Emperor. In his address to the first elected Parliament, Emperor Haile Selassie told the representatives: "You are the bridge that connects Us with our people"; and again, "You are the link between Us and our people in putting into tangible form the fruit of our efforts and in enlightening and guiding our people". This was no mere figure of speech. It was the expression of a hope that the newly introduced representative institutions would establish a basis of legitimacy for the political system among those groups for whom the traditional basis was no longer meaningful. This is probably the most crucial function assigned to representative institutions in the political systems of transitional societies. They are not expected to play a major role in the decision-making process, the essential requirements for which, at any rate, are not met by these institutions. Nor can they be expected to exercise meaningful control over those who have the power of decision-making, a fact that is illustrated by the dominant tendency towards the one-party system. They are, however, intended to reinforce the legitimate authority of those who exercise control over the decision-making process. This is done through the association (nominal or qualified) in this process of representatives of groups alienated from the traditional sources of legitimacy.

PARLIAMENT

It remains now to examine the functions of the Ethiopian Parliament in order to assess its role in the political process. The first election in the history of the nation was held in 1957, two years after the constitutional revision. In 1957 the National Board of Elections launched an educational campaign, which lasted several months, to encourage voters to register. This was followed, in the spring of the same year, by a two-month registration period. The Board's efforts met with qualified success. Approximately 3-5 million registered to vote. The Board's estimate of the total population of Ethiopia in 1957 was 20.8 million. A very rough estimate puts the number registered at 30 per cent of those eligible to vote. The reasons for the low turn-out are, of course, not difficult to find. Widespread ignorance of the purposes of registration and general lack of interest in the election itself were the major factors. The traditionally oriented folk in the provinces could not readily comprehend the meaning of parliamentary representation, nor did they feel the need for such an institution. Many avoided registrations out of fear, spread by rumours, that it was a preliminary step to a new system of taxation or to military conscription. Women abstained heavily, particularly in the Muslim areas. Often, the head of the family, exercising his patriarchal prerogative, registered him self-alone. The rate of registration was higher in the cities, and in Addis Ababa it came close to 50 per cent of those eligible. During the voting period, which lasted one month, about 2-5 million people exercised their newly acquired right, while one million of those who had registered failed to vote.

During the second election, in 1961, the number of registered voters rose to about 4-5 million, while the actual votes cast were close on 4 million. In the latest election, held in 1965, the number

registered rose again to 5,137,157, while surprisingly the number of actual voters fell to 3,203,113. The National Electoral Board's population estimate for 1965 was 27-8 million. According to these figures, the number of actual voters in the third election was lower than the number of registered voters in the first. Given the population increase estimated above, the proportion of actual to potential voters was smaller in 1965 than it had been in 1957. These figures indicate that the introduction of representative institutions did not generate unusual interest among the rural population, which comprises about 90 per cent of the total population of Ethiopia. The rate of participation was higher in the urban centers, but not considerably so.

By contrast, there has been a considerable increase in the number of individuals who found the idea of serving in Parliament attractive enough to declare their candidacy. In the first election (1957), 597 candidates vied for the 210 seats. The number of candidates rose to 940 in the second election (1961), and increased to 1,308 in the third (1965). Since the size of the Chamber of Deputies was enlarged to 250, there were an average of five candidates for each seat in 1965. The lure of a parliamentary seat is manifold. A primary consideration seems to be financial. The salary of members of Parliament was raised from Eth. \$380 initially to Eth. \$750 (£ 110) per month. This represents many times the average salary of a civil servant serving in the provinces, and many more times again the average per capita income in the country. Civil servants, including teachers, make up the bulk of candidates. Election to Parliament is viewed as a definite advance in a person's career. In turn, it may, and often does, lead to an appointment at a much higher administrative level. It also offers a chance for the energetic and ambitious to escape the monotony of provincial life. There is some, though not great, prestige attached to the role of member of Parliament, arising out of the general impression that he is in a position to meet and treat with the powerful figures of government.

In the absence of political parties, and with only the beginnings of group organisation along modern lines, the candidates are usually self-chosen and privately promoted. The motive for declaring one's availability is usually personal, though few would admit it. Ethiopians, like people elsewhere, are loath to appear to pursue private advantage through public means. When questioned concerning their reasons for seeking election, practically all respondents declared their wish to serve their country and Emperor, though few had any precise notion of how this could be done. In numerous cases, however, a well-known and respected person will be asked by community leaders to offer himself as a candidate. In other cases, a local noble, or the scion of a noble family, will exercise his traditional prerogative to be the spokesman of the community and will demand its support for his election. In view of the absence of political parties, and the general constraint on the discussion of political issues, campaigning for Parliament in Ethiopia takes on some unique aspects. The effort exerted by most candidates is minimal. The campaign is conducted in a desultory fashion during their spare time. The candidates rely on their own resources and the assistance of their relatives and friends. Expenses are very low. The usual items listed are transport, photographs, and pamphlets. Several members of Parliament claimed to have spent no money and no time at all in campaigning. Most claimed to have expended very little of either. While this may partially reflect the general desire to portray oneself as the obvious and only choice of the community, it is true that remarkably those who seek election exert little effort. Also reflected is the fact that in many rural communities the choice is preordained by traditional norms, and that the candidate need exert little effort to secure election.

The campaign methods employed are adapted to the nature of the rural and largely traditional society in which most candidates compete. The greatest amount of effort is expended in informing the electorate of one's candidacy. For that purpose, photographs and pamphlets are printed and distributed. The contents of the pamphlets are limited to an introduction of the candidate and a statement of his avowed willingness to serve the country and the Emperor. The aspiring candidate will spend most of his campaigning time approaching local leaders- such as chiefs, clergy, nobles, and landowners-seeking their endorsement. Most of his money will be spent on transport and entertainment while making the rounds of these traditional opinion-makers. Direct appeals to the

population at large are rare. The commonest form is attendance at public functions-such as feasts, market days, weddings, funerals, and public ceremonies-where the candidate is seen but not heard. Public addresses are seldom, if ever, given. For one thing, in the rural areas it is difficult to assemble the public in order to address them. In addition, most candidates would be at a loss as to what to say, since their own understanding of what they are being drawn into is usually quite vague. Being known to the public is considered the greatest asset, and the campaign, such as it may be, is directed to that end. A very large number of civil servants run for Parliament on the strength of their familiarity with their clientele. In their contact with the public, candidates rarely broach public issues. When they do, it is on the most abstract and most highly patriotic plane. On another plane, candidates make promises of assistance to their constituents individually and collectively. They promise to intercede with the authorities in the capital, to act as advocates and witnesses, to provide loans and act as guarantors, to offer hospitality to constituents travelling to the capital, and so on. They also promise to importune the bureaucracy to implement long-promised projects in the area, such as the building of roads, schools, and hospitals, or the installation of telephones. By far the greatest amount of energy and imagination, however, is expended in an effort to establish one's reputation and to demolish that of one's opponents. An inordinately high measure of pure mud-slinging takes place during the campaign. All sorts of charges are levelled at one's opponents, ranging from lack of qualifications to collaboration with the Italian invaders during the last war. In self-defence, each candidate reinforces his claim through understandable exaggeration, and the contest often becomes one of unabashed boasting. Nor is the fracas ended by the election, for most winners are accused of bribery, and the litigious Ethiopian soul is aroused to court action.

Under such conditions, the rate of turnover in the Chamber of Deputies is extremely high. Although most of the old members sought re-election in 1965, only 87 were re-elected. The present membership includes 248 men and two women. Former government employees made up by far the largest group, about three-quarters of the total, including many teachers. Civil servants are released for three months without pay in order to run for election. They have the highest motivation for seeking election, and due to the public nature of their profession, they have an advantage over other candidates. They have also acquired familiarity with the electoral process, since they are employed to administer it, and their appetite for public office has been whetted by this experience. The second largest group, though very much smaller by comparison, is made up of landowners. It should be noted that in Ethiopia practically everyone owns or rents some land. At least two-thirds of the civil servants who responded to the questionnaire owned land. Merchants, self-professed lawyers, and clerks make up the rest of the members. The educational background of the deputies is quite limited: four members were illiterate, 160 had had only basic education in church schools, 45 had attended primary school, 40 secondary schools, and one member was a college graduate. The two major faiths of Ethiopia are represented, although not proportionately, with 217 Christians and 33 Muslims.

The Senate remains an appointed chamber, members being selected by the Emperor "from amongst those who have, by their acts, secured the confidence and esteem of the people, and from amongst those who have served their country and their government with distinction." To be eligible for appointment a person must be at least 35 years old, a prince or other dignitary, a former high government official, "or other person generally esteemed for his character, judgment and public service." Senators are appointed for six years and are eligible for reappointment. The size of the Senate, according to the Constitution, should not exceed one-half the size of the Chamber of Deputies; its actual size fluctuates according to the timing of appointments. A system of rotation, according to which one-third of the Senate is appointed every two years, is stipulated in the Constitution.

The composition of the Senate should make it a more influential body than the lower house. Composed of former high officials in the administration and armed forces, it commands talent and experience that is not found in the Chamber of Deputies. Paradoxically, appointment to the Senate may come either at the apex or the nadir of a man's career. Some are appointed once they have reached the peak of influence and administrative hierarchy. Others reach the Senate after having been removed from their position due to obvious loss of usefulness. Many regard their appointment

as an involuntary retirement from active governmental service. Occasionally, however, senators are reappointed to influential positions in the administration. As far as can be ascertained, senators are more active in attempting to influence legislation than their counterparts in the lower house, though no more successful. Parliament's role in the decision-making process is, as one would expect, severely limited. By political reality and constitutional design, Parliament is not a partner in the process of making decisions, but a body which has the right to scrutinise and comment upon proposed decisions and, in the ordinary course of events, to give its approval. As mentioned above, approval by the representative body is designed to reinforce the legitimate authority of the decision-makers. Parliamentary initiative in this process is practically non-existent. Theoretically, any ten members have the right jointly to propose legislation. In practice, although a considerable number of proposals are made by members in both houses, almost none progress beyond that stage. Some of them tend to be frivolous, such as a senator's demand that Ethiopians be forbidden to marry foreigners. Others reflect the inevitable parochial concern of deputies with their districts, and their understandable desire to fulfil campaign promises. Still others, however, represent sensible attempts to deal with national issues.

Does the right of approval imply the right of disapproval? Formally speaking, this would seem to be the case. In practice, however, this is an unsettled constitutional point. To begin with, there is no constitutional distinction between the matters subject to executive decree and those subject to legislation. In practice, the former power is widely exercised. Furthermore, the Emperor retains widespread decree power, as previously mentioned. Such decrees, however, require subsequent Parliamentary approval. Realistically speaking, Parliament is not expected to, and ordinarily does not, thwart the executive. As the Emperor pointedly reminded members in 1964, "laws proposed to you have been prepared by experts, reviewed by the responsible Minister and the Council of Ministers as a whole and approved by us. Only when they have been found to serve the interest of the nation are they submitted to you.

Parliament, nevertheless, occasionally makes a show of opposition. In 1964, a proposal regulating landlord-tenant relations concerning the sharing of crops was permanently blocked by the Senate. The members of Parliament seem to be extremely sensitive to financial proposals, particularly loans from foreign sources. In 1964, a proposed loan from the Italian Government aroused intense opposition, and was rejected by the Senate. In 1966 a proposal by the Telecommunications Board for a loan by the World Bank was twice voted down in the Chamber of Deputies. Nevertheless, both proposals were eventually approved. It is obvious that in such instances, when Parliament tries to oppose the executive, it becomes subject to pressures it cannot resist. Again, in 1966, Parliament rejected a proposed tax on land for the purpose of financing health services. In view of the large number of landowners among its members, this was an understandable reaction. What opportunities Parliament has to amend the executive's proposals, and how such opportunities are used, it is very difficult to say. One may assume that there are more opportunities to modify than to reject legislation. On the other hand, one may question the ability of the average member to grapple with technical detail.

A function, which Parliament seems very eager to exercise, is supervision and control over the executive; many members appear to share the view that the major function of Parliament is precisely that. This eagerness is not difficult to understand. By focusing its attention on Ministers and subordinate officials, Parliament feels more certain of itself and at the same time avoids a clash with the highest authority, the Emperor. In asserting itself in this way, Parliament sees an opening that can be exploited in order to expand its own powers. Furthermore, in exerting pressure on the administrators, members of Parliament seek to serve another major interest, that is, getting some action on behalf of their constituents. Parliament has no real means at this point of compelling executive compliance. The Constitution does not make the Ministers responsible to Parliament, nor does Parliament have any political sanctions. The means employed are mostly indirect. Opposition to legislative proposals is often directed not at the proposal itself, but at the Minister responsible for it. Such opposition may be designed to pressure executive officials into responding to requests

made by members on behalf of their constituents. Compelling officials to testify and submit to interrogation before Parliament is another method used. Members of Parliament are at their most aggressive when they have a Minister or high administrative official on the stand. Such sessions can be quite rough on the officials. Parliamentary criticism and the resulting publicity cannot fail to have some effect on the executive.

The members' conception of themselves as representatives of constituency interests, and the recognition of the inevitable link between these interests and their political future, are becoming increasingly clear. In pursuit of this role, members employ the usual techniques of parliamentarians everywhere, ranging from the introduction of special legislation to importuning the responsible officials. For example, a deputy from the southern province of Ogaden, who was elected with the support of soldiers and policemen stationed in what is considered a hardship post, introduced a bill limiting the period of service in that area. The demands of this role also tend to promote confrontation between members of Parliament and administrators, and to intensify the appetite of the former for some control over the latter. Occasionally members' efforts on behalf of their constituencies are successful. For example, the long but fruitless efforts of the Gurage District representatives to have a road built into their district succeeded only after they had raised the matter in Parliament. More often, however, lacking real political or constitutional weapons, members of Parliament can hope to do no more than make a nuisance of them selves.

There is no evidence of any group formation in Parliament. Ethiopia includes a number of well-defined and self-conscious groups whose distinctiveness is based on a combination of ethnic, regional, religious, and linguistic factors. It is along these lines, in the absence of political parties, that one would expect intra-parliamentary group formation to take place. That no such groups have emerged is probably the result of several factors. Primarily it is the result of the fact that Ethiopia has moved further along the road to nationhood than most other African states. Secondly, since Parliament as a whole has little influence in the decision-making process, the incentive for the formation of groups aimed at maximising influence over this process is lacking. Consequently, if any group competition does take place it must be within the executive branch where power is concentrated. Thirdly, the very high turnover rate among the members of Parliament militates against the formation of such a group. Nor is there any evidence of member alignment along ideological lines. The dominant orientation is conservative, and even apolitical. The few who have formulated political convictions prefer to remain inconspicuous.

To date, Parliament has not made any significant impact on the political process of Ethiopia. As far as this process is concerned, the traditional orientation is still dominant, and traditional values and institutions show amazing tenacity. The incursion of modernity is making progress. Parliament itself is an example of the uneven mixture of tradition and modernity. The members' conception of their role is only a little less encumbered by tradition than the conception of that role held by the electorate and the nation at large. Mesmerised by the aura of authority surrounding the traditional ruler, Parliament regards itself as being entitled to only a very limited role in the governmental process. Parliament shows no will to challenge authority for a greater role in the political process, although it seems willing enough to do battle for its share of the power relinquished by the traditional ruler.

The public image of Parliament is, at best, extremely vague. The majority of the Ethiopian people have never participated in parliamentary elections, and for them Parliament might as well not exist. The electorate's conception of the nature and role of Parliament is highly obscure, ranging from complete ignorance to vague notions of Parliament as an advisory council to the Emperor. Public interest in the work of Parliament is only now beginning to manifest itself. Mention of parliamentary activities in the public media of communication was quite rare until very recently, and was usually limited to occasions connected with the appearance of the Emperor before Parliament. Lately, however, the government press has shown new interest in parliamentary affairs.

Still, Parliament figures only peripherally in political discussion, which is normally concerned with the activities of the monarch and the executive.

Discussion

1. John Markakis and Asmelash Beyene discuss representative institutions in the past Ethiopia during a given period of time. Read their versions and interpretation of events and ideas critically. Identify with reasons those you think have not been accurately interpreted with your own views to recast the debate.
2. Discuss the political considerations that were behind the enactment of the 1931 Constitution.

Assefa Fiseha, *Federalism and the Accommodation of Diversity in Ethiopia: A Comparative Study*: Wolf Legal Publishers, 2006). Footnotes omitted.

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The Era of Written Constitutions

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The 1931 Constitution

The coming to power of Emperor Haile Selassie in 1930 and the subsequent grant of the 1931 Constitution marks a new epoch. On the one hand this epoch reinforced the traditional position of the emperor as “Siyume Egziabiher, Niguse Negast Za-Ethiopia” which literally means: Elect of God, King of Kings of Ethiopia,” but on the other marked the end of the role of the nobility or at least the gradual reduction of their role in local leadership, the traditional check against the power of the king of kings, to insignificance. Yet, it is important to note that Haile Selassie was crowned with full support of the pre-war modern elite with a mission of “Japanizing Ethiopia.”

This also marked the beginning of the culmination of the struggle for centralization, which began with the attempt at unification by emperors during the 19th century and reached its consolidation under the absolutist rule of Emperor Haile Selassie to be further reinforced by the military. The consequence was the alienation of the bulk of the regional actors leading to the center periphery polemics.

The first measure the Emperor took along the process of centralization was the grant of the Constitution. It was a fairly brief Constitution containing fifty-five articles. The first chapter with five articles dealt, as one might expect, with the emperor and the succession to the throne. The famous article three states “...the imperial dignity shall remain perpetually attached to the line of his majesty Haile Selassie I, descendant of king Sahle Selassie whose line descends without interruption from the dynasty of Menelik I, son of King Solomon of Jerusalem and of the Queen of Sheba.” Article four stipulated about the succession to the throne and the subsequent provision explained “the person of the emperor as sacred, His dignity inviolable and His power indisputable.” His authority was unlimited and unquestionable and his function multi-faceted: the emperor was the head of the executive, the fountain of justice, the agent of change and the law-giver, albeit moderated by parliament that lacked the competence to enact law. To a careful observer such clauses represent a significant departure from the Ethiopian tradition of the right to rule which was open for any one (presumably from the regional nobility) who combines competence, might and Solomonic legend. With the coming to power of Haile Selassie and his constitution, it was planned to take a different course.

The bulk of the other provisions provided about the power and prerogatives of the emperor. The Constitution vested supreme power in the hands of the emperor and heralded the establishment of the institutions of the chamber of Deputies and the Senate. These two houses were important instruments for curbing the power of the nobility. Close scrutiny over the provisions and the practice revealed that both houses were merely meant to play a strictly advisory role. According to Article 31 members of the Senate were appointed by the emperor from among the nobility and the local chiefs. As for the chamber of Deputies, they were chosen by the nobility and the local chiefs. The presence of the nobility while providing some semblance of legitimacy at the center, on the other hand became part of a toothless legislative body and in a way remained the instrument of the centralizing and modernizing process launched by the regime. "They simply found a place for honorable retirement, as they were kept in the capital under close surveillance."

Consequently, the Constitution's major outcome was its ability to establish the legal framework within which governmental power was to be channeled and distributed. It was aimed against the personal, arbitrary and ill-defined powers traditionally held by the nobility. It reflected the traditional principle of absolute imperial power without any practical limitations. The Emperor was granted full executive power over both central and provincial government and the nobility and provincial governors were granted no independent authority.

The 1955 Revised Constitution

The Revised Constitution continued to reinforce the process of centralization. The sketchy provisions regarding the powers and prerogatives of the Emperor were extensively elaborated in the new Constitution. The Constitution spent one chapter settling the issue of succession on the rule of male primogeniture. Detailed provisions vested in the Emperor wide powers over the military, foreign affairs, local administration and so forth. Interestingly enough it also contained an elaborate regime of civil and political rights for the subjects. In theory, the Constitution was the supreme law of the land governing even the Emperor. It contemplated even an independent ministerial government responsible to the monarch and parliament, an elected chamber and independent judiciary, but these liberal provisions were overshadowed by executive prerogatives reserved to the Emperor who exercised them expansively. Despite the apparent inclusion of the notion of separation of powers, little change was introduced regarding the position of the Emperor. He was both the head of state and of the government and he continued to oversee the judiciary through his Chilot (Crown Court).

A basic development in the revised Constitution compared to its predecessor was the introduction of the representative principle for the chamber of Deputies, whose members were elected on the basis of universal adult suffrage. But parliament was granted no control over the ministers indirectly or collectively, who remained responsible to the Emperor. A measure of population representation with divine right of kings was resolved decisively in favor of the latter, with the Emperor retaining direct control over the executive, with the power to appoint ministers and regulate the whole of the executive branch. While one of the two chambers of parliament was popularly elected, it was balanced by the senate, which was appointed by the Emperor. There was a parliament but those who were eligible to be candidates were the nobility and wealthy landlords who were opposed even to modest land reform and by so doing they were the ones that made the Revolution inevitable. A law approved by both houses could not override the position of the Emperor.

Indeed, critics state that, even more than its predecessor, the Revised Constitution was a legal charter for the consolidation of absolutism. The absolute powers of the emperor were spelt out in unmistakable terms. "By virtue of his imperial blood as well as by the anointing which he has received, the person of the emperor is sacred, his dignity is inviolable and his power indisputable." One author noted, "in essence the constitutional provisions amount to little more than a formal statement of the facts of political life in Ethiopia. It reinforced the ultimate power of authoritarian regime, and the human rights regimes were certainly luxury, which the government has not taken

seriously, nor had anyone expected that it would. Most of the provisions were dead letters. It served to the regime's penchant for what amounts to rather crude formalism."

In 1966 the recommendation to make the Prime Minister become the effective head of the executive with the power to appoint his cabinet, leaving the Emperor in a largely ceremonial role was partly implemented when the Prime Minister became formally responsible for selecting other ministers, but later developments indicated that it was a far too premature gesture to be taken seriously. The same dilemma was to be repeated in 1974 when the Revolution was about to erupt.

Beyond these constitutional provisions, there are other factors that explain the complexity of the process of centralization and its impact on the regional nobilities. We have already noted the fact that the power of the chamber of deputies was not that significant. The hereditary aristocracy was marginalized and if they had any voice it was through the Crown Council, which served as an advisory body to the emperor. Such leading figures of the nobility as Ras Kassa Hailu, Ras Seyoum Mengesha, Ras Mesfin Sileshi and Ras Emiru Haile Selassie as well as the Abun were members of the Council at various times. Furthermore, other factors contributed to the gradual decline of the nobility. Although historically they were in charge of military and administrative functions, their position declined due to the state's creation of modern civilian and military bureaucracy. The creation of a modern army was of particular significance as they lost all their power with it. Lastly, regional nobility were weakened with the result that the nobility drawn from Showa replaced the regional nobility. This led to what Andargachew calls "the Showanization of the state," that weakened not only the nobility but also the bond between the government and the people.

Thus, towards the 1960s the regime was caught between series of contradictions: between the need for further modernization that needs efficient and decentralized administration on the one hand and the reliance on a personally appointed and centralizing regime, on the other; the growing contradiction between the traditional elite and the rising modern elite that felt isolated and was able to decipher the stagnation; and the narrowly defined identity versus the large heterogeneous population.

The Ethio-Eritrean Federation (1952-1962)

The Ethio-Eritrean federation, as already pointed out, was a significant political factor that influenced the revision of the 1955 Constitution. The crisis related to the dissolution of the federation remained to be the central challenge to three consecutive Ethiopian governments, including the present one. Much has been written about it, but as it goes some way to explaining the operation of a federal system in the continent, we must devote some words to it as well.

The territory now called Eritrea was historically an integral part of Ethiopia since the Axumite Era in the first century AD. Eritrea did not exist as an entity of its own prior to 1890 when it was created by Italy. The historical and cultural background of the Christian Eritreans is identical to those in Tigray. The language *Tigrigna* is the same as the one spoken in Tigray and belongs to the family of Semitic languages. The Tigrayan, therefore, form a solid bridge connecting Eritrea with the rest of Ethiopia. The death of Emperor Yohannes in 1889 and the shift of center of power from Tigray to Showa created a favorable condition for Italian colonial expansion.

Between the years 1869-1889 Italy insisted on expanding southwards, despite suffering defeats brought upon them by Ras Alula at Dogali. As early as 1887, Menelik the King of Showa had expressed readiness to negotiate with the Italians about supplies of arms in exchange for cession of territory, if this would ensure his speedy accession to power. Menelik seized the opportunity provided by the political vacuum created and sealed an Italo-Ethiopian pact, the treaty of Wuchale, in May 1889. As a result, part of the territory was ceded and in January 1890, Eritrea was born as an entity. In spite of the treaty of Wuchale, Italy continued expanding southwards and occupied some territories leading to the famous Battle of Adwa in 1896. Even after the battle of Adwa, the

treaty of Addis Ababa (October 1896) which abrogated the treaty of Wuchale, recognized the independence of Ethiopia, but confirmed the Italian possession of Eritrea until 1941.

. . . Controversies exist as to why Menelik did not insist on expelling Italy from the whole of Eritrea as a victor of this famous war in history. One version of the controversy states that he was compelled to halt further Italian expansion into his territory owing to geopolitical and logistic reasons. If Menelik pursued pushing the Italians out as Ras Alula had wished, then Italy could send more reinforcement and the hard won victory could be lost. Whereas the other version states that the territorial cession is seen from the angle of the then existing rivalry between Tigray and Showa. One should note the fact that Menelik was consolidating his power both in terms of weapons and territory when Emperor Yohannes was busy fighting foreign forces. Because of this, they believe Menelik gave the territory to Italy in a bid to weaken his northern rivals. For instance, James Paul recently wrote: "Menelik's 1896 post Adwa treaty with Italy guaranteed Ethiopia's independence within settled borders in exchange for its recognition of Rome's sovereignty over the territory still occupied (even after Adwa) by reinforcing Italian armies based in Asmara. Thus was created in a legal sense a new typical artificial colonial territory, which Rome named Eritrea. Menelik was praised for his realpolitik but in appeasing Italy's colonial appetite he had sanctioned the partitioning of the Tigrayan peoples: those north of the Mereb River became subjects of an Italian colonial rule and those to the south remained independent Ethiopians but were governed by a new monarchy from distant Showa."

As a result, from 1890 until its liberation in 1941, Eritrea was administered as a colony by the Italian Colonial Ministry, under a governor nominated by the Italian king. After liberation Eritrea remained under British rule till 1952. After World War II Italy renounced all right and title to its colonies and the Treaty of Peace signed in Paris in 1947 provided for the final disposal of the former Italian colonies to be determined by agreement among the four allied powers, the USA, USSR, UK and France. Failing agreement, the matter would be submitted to the UN General Assembly for disposition. The four victorious allies established an investigating committee to come up with a proposal on the future of Eritrea. The United States based on its interest in the region and good relations with the Emperor was keen to see Eritrea joined to Ethiopia in unity. The USSR and some Afro-Arab countries were on the other hand opposed to this move. They took the position that only separate existence could guarantee the sovereignty and progress of Eritrea. At the same time, however, they were sympathetic to Ethiopia's need for access to the sea. Because of disagreements the matter was referred to the United Nations. In November 1949 the General Assembly set up the United Nations Commission for Eritrea, constituting members from Burma, Guatemala, Norway, Pakistan and South Africa whose task was to visit Eritrea and after taking into account the interests of the inhabitants and the interests of all the countries involved to report its findings to the UN. The findings were however divided. Burma and South Africa proposed federation with Ethiopia, Norway proposed union with Ethiopia while Pakistan and Guatemala proposed UN trusteeship for ten years and independence to follow thereafter.

In the period preceding the federation, the demand of political parties in Eritrea was diverse concerning the destiny of Eritrea. Many Eritreans demanded unity with Ethiopia, others requested for immediate independence and still others urged for a partition or at least a different status for the western side of the province. In short, the internal situation was divided.

On the Ethiopian side, Haile Selassie demanded the full incorporation of Eritrea and nothing less. Ethiopia's claim was based on her need for access to the sea and by the claim of historical title and cultural affinity of the two populations. Furthermore, Ethiopian diplomats successfully invoked the OAU principle of non-territorial intervention in the internal affairs of the state and the need to respect the territorial integrity of African States whose territories were defined by colonial borders. Ethiopia argued that if Eritrea's plea received a hearing, it would upset the entire post-colonial African state system as legitimized by the Cairo Resolution of the OAU in 1964.

The proposal by South Africa, Norway and Burma, constituting a majority, was finally approved by 46 to 10 with four abstentions. The Eritrean domestic situation, the international context and Ethiopia's case finally brought what is commonly described as the "compromise formula," which became UN General Assembly Resolution 390 A(v). The UN General Assembly passed this resolution on December 2, 1950 and the Resolution stated that Eritrea should form "an autonomous unit federated with Ethiopia under the sovereignty of the Ethiopian crown." The first seven Articles of the Resolution passed by the UN General Assembly on December 2, 1950 formed the Federal Act. A draft constitution prepared by UN experts was submitted to an Eritrean Assembly and the latter adopted it on 10 July 1952. By proclamation Number 124 of 11 September 1952 the Eritrean Constitution with the Federal Act was put into force in Negarit Gazette. At this point in time, the federation of Eritrea with Ethiopia came into effect. The Federal Act as well as the Eritrean Constitution provided for a "federal arrangement" between the two governments. According to the Constitution "Eritrea is an autonomous unit federated with Ethiopia under the sovereignty of the Ethiopian Crown." The government of Eritrea was authorized, as a manifestation of its autonomy, to exercise legislative, executive and judicial powers. The actual division of power under the federal act vested a number of basic functions in the federal government: notably defense, foreign affairs, currency and external trade while reserving residual powers to the Eritrean government. These included civil and criminal law, police, health, education, natural resources, agriculture, industry and internal communication.

Many controversies arose over the ambiguity of some of the concepts included in the documents as well as over the whole federal compromise. There seemed a consensus though that the term autonomous unit signified not a sovereign state but rather a politically organized unit linked federally with Ethiopia and that the phrase under the sovereignty of the Ethiopian crown implied that the federation, not the autonomous unit, enjoyed sovereignty.

More controversial were the status of the federation and its subsequent dissolution in 1962. Closer observation of the 1955 Constitution and the Eritrean Constitution seems to suggest that Eritrea was only an autonomous region rather than a full-fledged unit in a federation, as we understand it today. The Resolution characterized Eritrea as "an autonomous unit federated with Ethiopia under the sovereignty of the Ethiopian Crown." It did not accord Eritrea the status of a state in a federal union with Ethiopia. In a federation resulting from two units, one would expect there to be three institutions. The two constituent units and one other overarching federal government for both of them. Furthermore, a supreme constitution which both units submit to, is a requirement. None of them existed in the UN sponsored federal compromise. The Resolution had provided for a Federal Council, an institution that was a faint approximation of a federal body. This body was to comprise Ethiopian and Eritrean representatives in equal numbers and advise the Emperor on matters of the federation. The Council was simply ignored and practically done away with before it could even start functioning. As a result, the federal powers belonged to the Ethiopian government. The Ethiopian Emperor was the sovereign, the Ethiopian courts were the federal courts and the Ethiopian Ministers were the ministers of the federal government. Tekeste states, "For all intents and purposes the resulting relationship between Ethiopia and Eritrea was not in the least federal. Even according to the intentions of the union, Eritrea was not granted a federal status but only a status of autonomy."

However, this constitutional ambiguity could not serve as a justification for not implementing even the regional autonomy. Even Eritrea's mere status of autonomous region was not tolerated by Haile Selassie's regime. The reasons as stipulated by many writers seem to relate to the nature of the two incompatible Constitutions. Ethiopia by then had a feudo-monarchichal system of government, ideologically sustained by some notion of the divine right of kings. It was imperial. The emperor ruled as an absolute monarch and as head of an empire, every part of which he sought to subordinate to himself. The government had a notion of territorial integrity that was incongruent with federal or other structures of decentralization and hence the dissolution was no surprise. By contrast, the Eritrean Constitution was one modeled on those of Western democracy. It provided for

three branches of government based on the rule of law, it stipulated for fundamental freedoms and a multi-party system.

Haile Selassie demonstrated a considerable diplomatic success when he orchestrated a federation between Ethiopia and Eritrea with the approval of the UN. However, the regime lacked the political wisdom and political will to maintain the regional autonomy. As early as 1955 the Emperor's representative in Eritrea already hinted at the fact that "there are no internal or external affairs as far as Ethiopia is concerned . . ." and pointed out that "the affairs of Eritrea concern Ethiopia as a whole and the Emperor." In 1958 the Eritrean Assembly voted unanimously to abolish the Eritrean flag and use only the Ethiopian flag. In 1959 the Ethiopian penal code replaced the existing legislation in Eritrea. In 1960 the Eritrean assembly voted unanimously to change the name Eritrean government to Eritrean administration and other adjustments connoting its lower position than a federation. On 14 November 1962 again the Assembly voted unanimously for the abolition of the federation. Whether this important series of events was undertaken with full backing from the Ethiopian side or not is a troublesome question. But few seem to doubt the fact that these events were taking place with full knowledge and influence from both sides of the "federation." In as much as the Imperial regime had wanted to terminate the federation, the Eritrean Union party, the then governing party in Eritrea, cooperated equally in the demolition of the autonomous status.

The controversial debate among Ethiopian and Eritrean intellectuals as well as foreign writers begins with the status of the "federation" that was in force from 1952-1962. The controversy gets reinforced with the impact of its dissolution in 1962. Many believe that by virtue of this compromise formula, the Resolution formalized the decolonization of Eritrea at this moment in time. Others believe that Eritrea was formally decolonized in 1993.

The bulk of Ethiopian intellectuals believe that the Eritrean case is a case of secession rather than decolonization. The argument is that neither the terms of the Resolution nor international opinion following the dissolution allow the General Assembly to reserve residual power to itself upon any violation. The arrangement under the Resolution merely conceived of Eritrea as an autonomous decentralized unit, which is conceptually different from confederation and federation. Legally speaking, such an autonomous status can be modified by the central government and the Ethiopian Crown, being sovereign, had every right to do whatever it wanted, though politically it was not advisable. Consequently, Eritrea did not have a legal personality under international law until 1993. Regarding the charge that the re-incorporation of Eritrea in 1962 was illegal, it is important to note that it was the elected Eritrean Assembly that unanimously decided to terminate the federation in the first place. A minority of Eritreans also shares this view. Tekeste for instance wrote, "the war in Eritrea had neither [a] colonial character nor that of [a] war fought against [a] foreign dominator. It was an internal war for power sharing or control of state power."

Another point of equal importance is the fact that parallel to the series of measures indicated earlier on, the Muslim League was more or less consistently opposing the measures taken by the Eritrean assembly. It is no surprise therefore that the first armed opposition came from this group. It was to constitute the Eritrean Liberation Front (ELF). As a protest to the dissolution of the federation, a clandestine movement started around the same period first by the ELF and later by the (Eritrean People Liberation Front) EPLF and continued until 1991. Many consider the dissolution of the federation a cause of the protracted war that stayed for thirty years.

The armed struggle in Eritrea began in 1961 with the formation of the ELF by Eritrean exiles in the Middle East under the leadership of the veteran shifita Idris Awate. Syria and Iraq regarded Eritrea as an integral part of the Arab world and indeed the ELF portrays Eritrea even today as a Muslim nation with a Christian minority. Egypt particularly allowed opponents of the Ethiopian regime to enjoy a safe haven. Its policy is based on dividing and weakening Ethiopia in the hope that the latter remains incapable of harnessing the huge water resources of Ethiopia that flow through the Nile to the Sudan and Egypt. It must be noted here that Ethiopia supplies 86 per cent of the water that flows from Abay (the Nile). When ELF succumbed to its own internal squabbles and failed to absorb the then fast growing Christian opposition joining the struggle, the EPLF evolved as a

powerful party to lead the struggle. The struggle both in its own right and in radicalizing the influence it exerted on the Ethiopian opposition in general played a significant role in the regime's collapse in 1974 and the military in 1991. After 30 years of struggle, EPLF de facto controlled Eritrea in 1991 and a referendum held in 1993 resulted in Eritrean independence.

Considering Haile Selassie's ambition of centralizing power, the failure of the Ethio-Eritrean short-lived autonomous experience was no surprise. What is more remarkable is that the regime was not willing to tolerate it even though there were clear indicators of the probable long-term consequences of the collapse. The failure of the decade of federal experience also fits the hypothesis that a federal system should be based on a covenant, should have internal support and should not result from outside. Most post-colonial federal experiments in Africa failed for similar reasons. There is another bitter lesson for those who still claim to follow the Eritrean example of secession. Secession or the emergence of an independent state does not necessarily result in the establishment of a stable and democratic state. This is evident not only from the experience of post-independence Eritrea but also from many other of the post-independence African states. Secession or independence simply replicates the nation state without resolving the controversial and normative question of how to politically integrate, share power and resources among several contending forces.

Overtaken by events, Haile Selassie's government scrambled to take last-minute desperate actions. The appointment of new Prime Minister, Lij Endalkachew Mekonnen and the decision to replace the 1955 Revised Constitution with a new Constitution announced by the Emperor Mid February 1974 were the two noteworthy attempts of constitutional significance. A constitution drafting commission Imperial Order established—the High Constitutional Conference—on March 9, 1974. The Conference of 30 persons, started its deliberations on 29th of March and completed its tasks of drafting the new constitution on August 6, 1974.

Ato Israel Tekle (AAU Law School Class of 1973), who as a young lawyer was one of the technical assistants to the High Constitutional Conference, has the following to say⁶ about the last moments of the draft constitution that was soon to be consigned to history.

* * *

The final compiled draft constitution was reproduced and after each member signed on each page it was agreed to be handed on Hamle 30 1966 (August 06, 1974) to the Prime Minister at the time, Lij Michael Emiru and, through him, to the Emperor. (Tekletsadik M. p 263) This draft constitution, prepared in the Amharic language only, was reproduced and bound by the Commercial Bank of Ethiopia whose General Manager, Ato Tefera Degife was also a member of the Conference (...).

The author of this compilation, who was one of the lawyers (technical assistants) assigned to the Conference and to [one of the working groups], had attended the Conference's session on Hamle 30, 1966. My recollection is that this document was signed in the morning of Hamle 30, 1966 for official handing to the Prime Minister in the same afternoon. The signing session was held in the hall of the present Ministry of Transport and Logistics, the venue of the Conference, in the building then known as the New Post Office Building on Churchill Road (Addis Ababa). While the signing was going on, rumor telling that members of the Coordinating Committee of the Armed Forces

⁶ Israel Tekle, "Prelude", Constitution of Ethiopia-Draft- Presented by the the Supreme Constitutional Conference Hamle 30, 1966 (August 06, 1974). Israel has generously donated a hand-signed copy of the draft constitution to the Institute of Ethiopian Studies in 2021. He translated the Amharic version of the draft Constitution and some explanatory notes accompanying the draft which he graciously donated to the School of Law AAU. This excerpt is taken from this work.

[Derg] would be coming and that handing over of the draft Constitution was desired to be delayed or floated. As this was a time when Government Officers were being picked-up and put to detention, and already some members of the Conference had met this fate, panic was observed. When those looking out of the fifth floor windows announced that military Jeeps with mounted guns had entered the compound, we all took our seats. Military officers came in and three of them stood on the right hand side of the conveners of the Conference while another two stood by the door to the Hall.

My colleagues and myself sitting next to each other soon noticed that the military officers who stood next to those Heads of the Conference were, Major Mengistu Hailemariam, Captain Sisay Habte and Major Birhanu Bayeh. One of the officers who stood at the door was Commander Yehwalashet Girma. I knew Major Birhanu Bayeh as a graduate of the School of Law and as the brother of a member of this Conference. I also knew Commander Yehwalashet Girma since my elementary school days where he was my senior of mine by some years.

What I recall is that when asked what the purpose of their coming was, Major Mengistu replied in a tone that was akin to an order: “this has become necessary so that this draft will not be giving intangible hopes to the Ethiopian people, the Coordinating Committee has decided it receives copy of the draft to study it first and that the draft not be made public until then.” They left with a copy availed to them.

Relating this incident in his own recollection, the Chairman of the Conference, At Tekle-Tsadik Mekuria, says in his above cited autobiography that he had left the Chairmanship to his Deputy Ato Amanuel Amdemichael and gone to attend a Council of Ministers meeting that day. On being told while there that “the Derg would like to see him” at the Conference, he returned to the Conference Hall and asked Ato Amanuel “what was going on”. Ato Amanuel informed him “they were asking the handing over of the draft constitution be deferred”. He then asked the military officers “what their reason for postponement was.” One from amongst them (as I said above, I recall this officer was Major Mengistu Hailemariam) said “they wish to have copy of the Draft Constitution and time to study it while the handing over is deferred.” (Page 269-270). This is not very far from what I recalled I believe. However, Mengistu’s statement “so that this draft will not be giving intangible hopes to the Ethiopian people” has been ringing in my ears ever since.

Following this, members of the Conference, Officers of the Secretariat and the Technical Assistants in attendance left with a copy of the draft in their hands (...).

* * *

As part of the thinking of Ethiopian constitutional development, it is interesting to see some very dynamic aspects of the draft constitution. It basically established a monarchical system whose power is limited by the constitution. It made the prime minister accountable to the *biherawi* (national) *Shengo* it established as a legislative body. The national *Shengo* had full-lawmaking power unlike the legislature under the 1955 constitution. Also, it declared: “the Prime Minister’s regular term of office is four years”. “If re-elected consecutively, he may serve for three regular terms only” (art 95).

C. The Military and PDRE Governments (1974-1991)

In the following excerpt from Assefa’s book, you will note a very helpful discussion of political changes that swept the age-old monarchy out of power, and ushered in its place a military dictatorship, the very costly political upheaval that left behind a profound scar in the political life of the country. Assefa discusses the various misguided political decisions taken by the Military government that deepened the crisis in the country; made the issue of secession of Eritrea unstoppable; and the mistrust between the Ethiopian people very serious. He also discusses the

contents of the 1987 PDRE Constitution as well as other legal developments before and after this constitution.

From Assefa Fiseha, *Federalism and the Accommodation of Diversity in Ethiopia: A Comparative Study*: Wolf Legal Publishers, 2006). Footnotes omitted.

* * *

The Revolution and the Coming to Power of the Military

Towards the end of the imperial regime, the centralization and the tension between the traditional forces backing the regime and the modern elite was gaining momentum. Opposition to the regime took many forms. Perhaps the 1960 attempted coup d'état was a watershed. Infuriated with Ethiopia's backwardness compared to the newly emerging states in Africa, the designers wanted to restore Ethiopia to its proper place. They promised new factories and schools and also had a plan of introducing a constitutional monarch although the land issue was not raised. Despite its failure the coup succeeded to attract the attention of the university students who became the heirs of the rebels. It was fundamental in the sense that for the first time many realized that the regime whose legitimacy came from the divine right to rule could be overthrown.

The aristocracy that had lost its military and administrative functions to the new elite was no longer the pillar of the monarchy. The young returnees from school abroad on the other hand thought they were working for a regime in which personal loyalty was of prime importance. It was clear to them to see how ignorant, corrupt and inefficient their superiors were. In the course of the 1960s and 1970s the new elite armed with western ideology became the main antithesis of the ancient regime. Alienated from the center and backed by Ethiopia's traditional opponents of the Middle East, Somalia, Eritrea, Oromos of Bale and the Ogaden were challenging the center. Finally, in the early 1970s, the regime lost two of its Western allies, the United States and Israel at a time when the Middle East was in ascendance because of the power and prestige it derived from its ability to control oil prices. With a view to end hostilities in Eritrea and Somalia and following Arab-Israeli war in 1973 Ethio-Israeli relations were severed. This was followed by cold diplomatic reactions from the United States, apparently taken to accommodate the Arabs.

Finally, the urban uprising of 1974, the events of January to June of the same year showed a total collapse of the regime and the absence of any obvious successor to it. It should be noted though that when the revolution was about to erupt, the nations teachers, taxi drivers, students, unemployed and the labor union had shown a stake in it thus making it very popular at inception. Towards the end of February, the cabinet of Aklilu Habtewold was forced to resign and Endalkachew Mekonen was instructed to form a new cabinet but despite the good profile of the team, it never succeeded to stop the course of the Revolution. "The plea for patience (*fata*) fell on deaf ears and indeed the radicals insisted '*gulcha bikeyer wot ayatafitim*' (changing the stove does not make the stew any better)." Endalkachew was removed in July and replaced by Mikael Imiru, the latter to be replaced soon by the Derg.

Another crucial aspect of the Revolution, however, came from the military. It started with a modest request for economic and social reform like food and uniforms for their members but as many have described it became a "creeping coup" implying the slow but systematic erosion of imperial power culminating in the deposition of the Emperor. Towards June of 1974 the Derg (which means committee in Amharic) which started as a movement within the capital was subsequently broadened with the inclusion of representatives of various units from all over the country and slowly it grew into a military parliament, constituting some 120 members under the chairmanship of General Aman Mikael Andom and Mengistu as the first vice chairman, mainly constituting

lower ranking officers. Taking the lessons of the 1960s, the Derg expressly declared loyalty to the emperor and did not show any ambition to seize power.

As far as the affairs of the government were concerned dual power prevailed for something like a month between that of the Endalkachew cabinet and the Derg but power continued to shift out of the hands of the former to the latter. However, the Derg had already the armed forces, the media and police behind it and also secured the blessing of the Emperor. The cabinet was already divided between those working with the Derg and those who opposed it. The Derg continued to replace or isolate those who were not amenable to its whims. As a result, Micheal Imiru replaced Endalkachew Mekonen as a Prime Minister on July 22. The Derg arrested the then Minister of defense Abiye Abebe and replaced him with Aman Andom. This time the Derg's control of the cabinet was almost complete.

The Derg continued to weaken and abolish all institutions associated with the Emperor and finally confiscated businesses owned by the Emperor and the royal family. On 11 September, the ultimate attack against the Emperor was perpetrated as the famous film on the 1973 famine (that was kept secret) produced by Jonathan Dimbleby was made public. On September 12, 1974 the Derg suspended the Constitution, deposed the Emperor, and dissolved parliament, thus ending the regime. Although the Derg took over power from June 1974 with the set-up of a military committee, 12 September 1974 marks the official taking over of power.

A convergence of domestic as well as international factors fueled by the urban uprising reflecting regional, ethnic as well as class contradictions as championed by the student movement, was accelerated by the military, thus ending the regime with its Solomonic legend. Not only did it end the Monarchy but this time the Derg filled the political vacuum by introducing socialism, a complete change of direction.

What is unfortunate about the Revolution was that despite its popular background, there was no organized civil force that could articulate "a road map" for the masses. It was only the military that was organized and that filled the political vacuum. The two leftist political groups that were in existence allegedly, MEISON (All Ethiopian Socialist Movement) as of 1968 and EPRP (Ethiopian Peoples Revolutionary Party) as of 1972 had remained clandestine and their activities were limited to their student constituency. The military as the only organized force, therefore, exploited the existing power vacuum and easily took over leadership of the revolution. Because of this, what came to power was the military, not the revolutionaries, defeating the cause of the revolution. Through the mentors, mainly MEISON, the Derg was able to catch up with the leftist dialogue and declared the National Democratic Revolution (NDR) Program in 1976 and its ultimate objective was the setting up of the Peoples Democratic Republic of Ethiopia (PDRE) which came out in 1987. From 1974 up to 1987 the Derg ruled by decree.

After consolidating power, the first measure the Derg took was to herald, the same date of its crowning, by decree all demonstrations and assemblies illegal. The proclamation that deposed the Emperor transformed the Derg into the Provisional Military Administrative Council (PMAC), which assumed full state power. Simultaneously it suspended the Constitution, dissolved parliament, banned all strikes and demonstrations and declared *Ethiopia Tikdem* (Ethiopia First) with its socialist doctrine.

As it started to catch up with Marxist thoughts it nationalized financial institutions and private commercial and industrial enterprises in January 1975. This was followed by the nationalization of urban land and extra houses. According to Bahru the nationalization measures transferred resources from private to government hands and thereby constituted the economic foundations of totalitarianism.

The Derg also proclaimed the land reform in March 1975. Since 1965 University students had already popularized the slogan "land to the tiller," calling for an end to the *Neftegna* and *Gebar*

system in the South. The land reform, in as much as it eradicated centuries of social inequalities, appears to have had an enduring positive impact. Indeed, by doing this the Derg was able to rob one of the causes of the revolution and at this point in time the Derg was at the height of its popularity. The proclamation abolished all forms of private land ownership and prohibited the sale, lease or mortgage of rural land. In short, it put an end to landownership. Thus, a large section of the people of the south as such was emancipated from servitude, at least in the short run. The large section of the peasantry saw a stock in the emerging regime and was to constitute the bulk of the army. However, even this popular measure had its own drawbacks. Not only did the proclamation fall short of making the peasant the absolute master of the plot but it was also accompanied by a series of unpopular measures. These measures ranged from state control of agricultural marketing that required the peasant to supply produce at fixed government prices to forced resettlement, collectivization and the relocation of peasant neighborhoods to new sites selected by government cadres (villagization). At later stages dissatisfaction with these measures was to be one of the factors for the rallying of the northern peasantry behind the EPRDF in its campaign to bring the Derg rule to an end.

The Derg continued to consolidate power by crushing all sorts of opposition and on November 24, 1975 it announced the shocking news of the death of its chairman General Aman and the execution of some sixty top government officers of the imperial regime. This initiated the cult of political violence that attained its climax in the so-called Red Terror. It was first aimed at the urban guerilla resistance by EPRP members in which thousands of young intellectuals were killed but at later stages, MEISON too was a victim of this terror. It was the official launching of the state killing of anyone suspected of dissenting from the regime, including the EPLF and TPLF.

The 1987 Constitution

The final stage to complete the institutionalization and monopolization of power was the promulgation of a new constitution and the proclamation of the Republic. The process of establishing a vanguard and single party culminated with the set-up of the (Workers Party of Ethiopia) WPE in September 1984 with its chairman Mengistu. Interestingly, its formation was against the background of the worst famine in the country. A regime that got to power by publicizing another famine in 1973 was celebrating its new party when lives were lost for the same reason. The draft constitution was completed in 1986 and was formally submitted to public debate and ratified by a referendum in February 1987. In an election in which a single party, WPE members, participated members of the National Shengo (parliament) were elected. While formally the Shengo constituted the highest legislative body, in practice, the Shengo was not to be sitting continuously but only once a year for a set period. The role of the Shengo was undertaken by the State Council. It was the visible administrative organ of state power with the highest responsibility for undertaking the day-to-day state functions. It was also the permanent executive, legislative and administrative organ of the National Shengo. Thereby the National Shengo's role was reduced to a rubber-stamping body of the WPE.

The Constitution stated that Ethiopia is a unitary state constituting administrative and autonomous regions. It stated that the nationalities are equal and ensured the equality of nationalities "through . . . combating chauvinism and narrow minded nationalism, [and by enhancing] the equality, respectability of the languages of nationalities as well as through equal participation in political, economic, social and cultural fields and through realization of regional autonomy."

An important political development of the 1980s Derg epoch was the recognition of the fact that despite all the forces the regime employed to destroy all opposition, the struggle to overthrow the regime persisted in some quarters of the country, mainly in Eritrea and Tigray. With a view to calm this resistance and to rob the rebels' cause, the PDRE Constitution expressly stated the possibility of organizing regional autonomies. This Constitution was also the first to recognize the presence in Ethiopia of different nationalities. It sought to combine the recognition of the cultural identity of

ethnic or national groups and a measure of autonomy for them, with overall subordination to the center in the name of the ultimate supremacy of class solidarity over national identity. What is mysterious is why it came to this point late in time as the regime hinted its acknowledgement of the nationalities' right to self-determination as early as it took power.

As the Ethiopian Student Movement had already popularized it, belatedly the Derg also tried to address the "question of nationalities." Given Ethiopia's existing situation, the problem of nationalities, it was stated, could be resolved if each nationality was accorded full right to self-government. This means that each nationality would have regional autonomy to decide on matters concerning its affairs. As stated above the Constitution of FDRE was a unitary one but the unitary state comprised administrative and autonomous regions. The National Shengo was empowered to determine by subsequent legislation the autonomous regions, their powers and boundaries. Accordingly, the Shengo proposed five autonomous regions and twenty-four administrative regions. The five autonomous regions were Eritrea but without its Afar inhabited areas, Tigray, Assab for the Afars, Dire Dawa for the Issas, and Ogaden. Subsequent proclamations defined more the powers and duties of the autonomous regions. The fact that special status was granted to some administrative regions reflects the long-standing recognition on the part of the government that there was a serious problem that deserved attention. The new regional structure announced sought to reorganize the entire basis of regional government according to nationalities as determined by the Nationalities Institute, while dividing several of the larger nationalities, including notably the Oromos, Amharas and Somalis, over a number of regions. Its most noticeable legacy may well be in the formal recognition of nationalities and in the groundwork for the division of Ethiopia along ethno-linguistic lines, carried out by the Nationalities Institute.

Again formally speaking an attempt was made to decentralize power and the decision-making process after thirteen brutal years of centralized military administration. A fresh start was made to set up autonomous regions in the areas, which had been a focus of civil strife, ethnic violence and war.

Yet, it soon became clear that the PDRE project with its approach to the regional autonomy of some districts were all a means never taken seriously. Critics are unanimous in pointing out that it was a sham attempt. Opposition to the regime stated "It remained the Derg's Republic not a people's republic. Real power continued to be exercised by those who seized power on 12 September 1974, that is, the same military officers who have ruled the country under the PMAC continued to rule under the People's Democratic Republic, everything else being window-dressing. Those familiar faces who were in power before the establishment of the Republic were indeed serving the new Republic and by the new Constitution they acquired a democratic legitimacy." If anything, the process only resulted in transfer of power from the military and PMAC to the PDRE, but in the end the same people who were responsible for all the turmoil emerged as leaders in a civilian dress. As expected, Mengistu became the President of the Republic and remained an accomplished dictator. The question of the return of the military to the barracks and the formation of democratic institutions remained unresolved. Thus, it was an "attempt to wrap the military clique in civilian clothes bearing a new name, People's Republic, but remained the same old dictator."

With the coming to power of Mengistu Hailemariam as uncontested dictator after all the mass killings and unpopular measures, including the persistent use of force to settle political differences with all sorts of opposition, some have even doubted if any revolution occurred at all. It is a contradiction in terms. Regardless of their sweep to power, the soldiers did not bring about anything revolutionary to the existing power relations. True that the Emperor and the basis of his legitimacy (Solomonic line with divine right to rule) was overthrown but the centralized state with its narrowly defined Ethiopian identity remained unchanged. The ideological vacuum for legitimizing the state shifted to Marxism-Leninism as they perceived a relationship between oppressed nationalities and an oppressor nation, which they traced in the image of the state. It also advocated secularism and declared the equality of religion and to this effect the Derg removed

some symbols associated with the old regime including the loss of the Orthodox Church as a state religion. As already noted even the land reform failed to maintain its popularity. The nationality issue, the legacy of the old regime and as championed by the students remained unresolved and when the military tried to address it towards the end of its regime, it was not only half-hearted but was also too late. To this extent then one clearly sees the continuity, to an even aggravated degree of the political and social ills of the old regime.

The continuity in the state structure with the old regime was clear. The centralization of power by far exceeded the old regime. Clapham speaks of encadrement, “incorporation into structures of control”, implying the complete control of the political space by the Derg in all aspects of life, for instance, through the peasant associations, youth associations, women associations, the kebele and all forms of associations one can imagine giving no space for individual autonomy. The tradition of concentration of power in the emperor transferred wholesale to the new head of state, the President, backed by the only party allowed to operate, the WPE, itself controlling the dozen associations. In this respect Clapham’s remark on the similarity of patterns between the 1955 and 1987 Constitution is worth quoting. “In a sense the two documents could scarcely be more different. The first was issued in the name of Haile Selassie I elect of God emperor of Ethiopia, conquering Lion of the Tribe of Judah, the second in the name of “we the working people of Ethiopia,” the role which in one is played by God and the emperor was in the other taken over by the alliance of the workers and peasants, the vanguard party. But in a sense the two can be seen as very similar documents. Both of them were intended to consolidate the power of an existing regime by giving it a formal basis, which on the one hand sought to convey an impression of legality and participation to the domestic population and on the other sought external support and recognition by adopting an acceptable external model....

Under these circumstances, the Derg’s commitment to regional autonomy was viewed with suspicion. The extent of the administrative and autonomous regions to exercise power decentralized to them was severed by the WPE’s centralized decision-making structure and regional autonomy remained a dream that was never fulfilled. It was a grant from the centralized government that could easily be revoked but besides that it was too little too late. While it was originally argued that this move is right on the mark in line with the program of the NDR and deserves wide support, however, as expected, none of the liberation fronts participated in nor welcomed the move. It was never considered a genuine attempt to solve the problem of the nationalities in Ethiopia. Indeed, the Derg through its war policy gave further vigor to ethnic nationalism. The nationalities question was pressed right after the revolution by the Oromo, Tigrayan and Eritrean radicals. Certainly, the belated measure did not attract the Eritrean groups for which an early federal accommodation would have been more appealing.

As one writer noted it was modeled after the former USSR’s approach to the question of nationalities. The nationalities would enjoy cultural rights and a limited amount of administrative autonomy within their own home areas subject to the overarching control of the communist party. In the Ethiopian situation the WPE played this role and in the end not even the minimal versions of self-autonomy were put into practice. All discontents had to be resolved along class lines under the vanguard WPE and the regime simply paid lip service to regional autonomy.

The Constitution in dealing with regional autonomy did not offer any hope in terms of reconciliation for peace with the opposition. A political solution to the crisis was never wholeheartedly pursued. Political will on the part of the actors was manifestly absent. Indeed, the Derg’s single-minded reliance on coercion on the northern periphery was an essential ingredient in the sequence of events that followed. By totally alienating peasants in Tigray and Eritrea and by creating the conditions for a series of diasporas that began to interact with local politics the Derg set favorable conditions for the rise of the (Tigray People’s Liberation Front) TPLF and EPLF....

D. The Transformative Re-Organization of the Ethiopian State Since 1991

As it is clearly evident from the life we have lived in Ethiopia since 1991, in a manner clearly reflecting the ways in which the struggle between centralists and regionalists of Ethiopian politics was concluded, the state has been fundamentally reorganized, but more so legally. The 1991 Charter redefined the source of authority in Ethiopia to be the nations, nationalities and peoples (NNPs) in the country. It entrenched many fundamental groups' rights for the NNPs including the right to secession. It decentralized power in a manner that foreshadowed the federal arrangement that came into being in 1995 with the Constitution. 14 regional self-governments were formed on the basis of Proclamation No. 7/1992. Assefa has dealt at length with the reasons that brought about Ethiopia's problems of the 20th century. Below is a short excerpt from his book.

Assefa Fiseha, *Federalism and the Accommodation of Diversity in Ethiopia: A Comparative Study* (Wolf Legal Publishers, 2006). Footnotes omitted.

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The Challenges of Building a Multicultural State

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Explaining the Crisis

With the emergence of centralized administration, Ethiopia faced serious state crisis. Attempts at explaining the cause of the state crisis have not only been less satisfactory but are also found to be diverse ranging from those who even today consider it was all a normal process of "nation building" and hence consider the liberation struggle as a form of tribalism to the instrumentalists that focus on the concentration of political and economic resources at the center as a core source of tension and that emphasize the proliferation of ethnicity as an erroneous comprehension of political and economic deprivation and the ruling party- Ethiopian Peoples Revolutionary Democratic Front (EPRDF), a product of the 1960s Ethiopian Student Movement that focused on the "operation of nationalities," that is, a ruling elite dominantly from one nationality controlling power, resources and narrowly defining the values and institutions of the state as a main cause. A few political elites even went further to state that it must be seen as a form of "internal colonialism." Needless to say all approaches seem to have their own serious limitations.

Certainly the advocates of the "nation building" process and the instrumentalists fail to grasp one of the central issues of the debate in diverse societies like Ethiopia. The Ethiopian state that emerged as a result of the centralizing trend was qualitatively different from historic Ethiopia, not only in terms of its territorial size but also in terms of ethno-linguistic composition and religious diversity. The majority of the ethno-linguistic groups incorporated were told in no ambiguous terms to assimilate into this state. Rather than attempting to forge a state from the newly introduced diversity, the regimes imposed a narrowly defined state, whose cultural, social, political and religious foundation and its institutions failed to reflect the existing diversity on the ground. It is not surprising then that the legitimacy of the government, its institutions and the values upon which it is established remain one of the sources of tension and at times the cause of its terminal crisis. In other words, the challenging issue is how to constitute a legitimate government from all the ethno-linguistic groups that do not squarely fit the usual notion of national majorities versus national minorities. The traditional "nation-state" project certainly assumes the existence of a dominant national group and in countries like Ethiopia where there is no such clear dominant majority, it becomes a mask for the "majority's" culture, language, religion to become the national culture, language or religion. None other than Paul and Clapham have understood the importance and role of tradition in societies like Ethiopia.

To study tradition is not simply to study what happened long ago: it is to study an interlocking system of ideas and attitudes which have been held by a people over a long period, and which continues to affect their ideas and behavior in a large number of ways. Tradition is always with us; it may be changed, partly destroyed, or adapted by education or by social and economic development, but it can never be abolished . . . it is a force that binds a people together and gives them a national coherence and identity...

Perhaps the absence of a numerical majority that dominates the political process at the center has a lot to explain for the persisting regime instability, the interethnic tension and rivalry among the groups for exclusive control of power. One need to note how other multicultural societies like India and Switzerland faced this reality.

Thus depending on the strength of the claims, identity and history of minorities, however, a decentralized or federal system of government appears to be the genuine solution if the state is to survive by accommodating diverse groups while maintaining unity and avoiding fragmentation.

There is the additional crucial point that the “nation builders” and the instrumentalists fail to realize. Post-Cold War developments as well as empirical evidence from multicultural societies hints that identity does not necessarily vanish from the face of the political discourse even if political and economic situations are favorably accommodative, let alone when it is a state target of destruction under the guise of “nation-building.” Thus, while the nation builders have a point as they emphasize the shared values and the difficulties of integration and the instrumentalists by focusing on the economic and political factors, two of the core causes of political instability, they often fail to consider the identity factor as a cause of tension in multicultural societies.

“Nation-building” in Plural Societies and the Issue of Identity and Values of the State

Part of the reason why the “nation building” project in multiethnic/multicultural/ multinational societies becomes problematic is that the process is based on a wrong transplantation of Western ideas that assume the existence of a dominant national group that commands a clear democratic majority. In many parts of Africa including the Sudan and Ethiopia, the nation building project aimed at politically and culturally integrating the various groups into a narrowly defined state values: in the case of the former, the Arabic language and Islam, and in the latter, the Amharic language and the Christian religion. This raises conflicting perspectives on the identity of the state. In the Sudan for example, the dominant elite mostly from the North desires the country to be Arab and Muslim, while the Southern elite needs it to be African and De-Arabized or at least heterogeneous. Interestingly both dominant elite groups (from both countries) that defined such state values by equating themselves with the state and by marginalizing others do not constitute a majority. Thus it was not only based on a wrong transplantation of Western ideas, but it was also an undemocratic nation building project that was bound to fall, only waiting for the opportune moment to happen. The attempt to homogenize also contradicts the multicultural nature of these countries and negates the idea of mutual recognition. This has implications in the establishment of public institutions, in the design of national symbols such as the flag, national anthem, currency and values of the state. As one of the prominent experts on federalism aptly wrote, in a diverse society, the most essential element for stability and order is the acceptance of the value of diversity and of the possibility of multiple loyalties expressed through the establishment of constituent units of government with genuine autonomy for self-rule over those matters most important to their distinct diversity. Thus for the nation building to be effective, the first measure that the countries (particularly the Sudan) need to do is to abandon the concept of basing such a process on one culture and religion and embrace multiculturalism as this will open a space for mutual recognition and multiple identity which is an important infrastructure for federalism.

The National Oppression Thesis and the Question of Nationalities

Distinct from the instrumentalist, colonial and Greater Ethiopia version of the story came the view that holds that Ethiopia should be viewed as a multicultural state and the nationalities need to be treated equally and have to be “liberated from” the degrading situation they were put in, be it in the south or the north. But despite this general foundation and common understanding, the authors of this view could not agree on further details. As a result, it gave rise to various divisions and sub-divisions. The “national oppression” thesis came into the Ethiopian political discourse with the ascendancy of the Ethiopian Student Movement (ESM) in the 1960s.

The events of the 1960s and 1970s were particularly crucial and still have repercussions on the present state structure and the ideology behind it. For instance, the major political parties including those in power as well as in exile claim their origin to this particular moment in history. Frustrated by stagnation of the economy and the imperial regime’s inability to bring any change, young, radical and leftist university students organized themselves both at home and abroad to overthrow the regime and the ESM was a tool. The ESM was mainly a multinational force whose members were drawn from all the varied groups of Ethiopia. Their slogans “land to the tiller,” “national equality,” and “social justice,” were very popular in their challenge to the imperial regime. MEISON since 1968 and EPRP since 1972, which dominated the country’s politics in the early days of the Ethiopian Revolution, were direct offspring of the ESM. With the exception of EDU, almost all of the Ethiopian opposition forces derived their origins and inspiration from the student movement, and the central premise of that movement was that Ethiopia constituted a “prison of nationalities.” Ethiopia was portrayed for the first time as a multicultural country and the movement clearly acknowledged that the nationalities should be treated equally.

The gist of the view is that ESM believed there was “one oppressor nation” whose political system, culture and language dominated the others and on the other, many “oppressed nationalities” who were politically and economically marginalized, culturally and linguistically dominated. The (Showan) Amhara was identified as the “oppressor nation” and the rest the “oppressed nationalities.” . . .

This was a fundamental challenge to the nation-building project and to the then discourse of multicultural Ethiopia. A challenge to the “one Ethiopia, one nation” thesis. This paved the way to the national, nationalities’ right to self-determination.

However, all were inspired by leftist orientations and even if they shared the manner in which the nationality question was to be resolved, particularly the EPRP and MEISON, they ended up in becoming one another’s worst enemy. The dispute clearly remained a struggle for power between rivals. Despite their adherence to the same political goals, the two oldest political organizations in Ethiopia became bitter enemies. They fought each other more than they fought the military regime. By 1973, following the Berlin conference, the split was getting clearer and the amorphous student movement evolved into two separate political parties: EPRP and MEISON. From then on the issue of nationalities remained unresolved and an Achilles heel to all political parties.

As a solution to the “national oppression” described by the ESM there emerged contending views. Those who advocated for the regional autonomy formula as in the Waz League, those like MEISON and EPRP that in principle acknowledged the existence of “national oppression” but whose dominant orientation was towards unity and they saw the struggle of the oppressed people as indivisible, a solution to be sought within class rather than along national lines and the third set constituted all the ethno-nationalist movements who preferred to define their struggle on the basis of “nationality” than class. The last group held that a new and democratic Ethiopia could only be constructed through the voluntary and consensual association of its parts. It is important to mention that apart from sharing the view that the nationality question needs to be addressed, the exact meaning and scope of this vague clause was never clear. It is hardly possible that all groups meant the same thing. Even within the TPLF, the hard core of the ruling party, at the first phase of its evolution, it meant the self-determination of Tigray, within a democratic and multicultural context of Ethiopia and that implied self-autonomy, fair distribution of power and resources and equal

recognition of culture, religion and language. Yet as included in the TPLF manifesto of 1976, secession was not ruled out. This position was abandoned for a long time and again came back with the establishment of MLLT (Marxist Leninist League Tigray) in 1986 and with it national self-determination up to and including secession, hence Article 39 of the federal Constitution.

As was noted already, in the end, when the multinational parties fall into crisis partly due to internal problems and partly because the Derg annihilated them in turns, the national liberation movements emerged as the only viable forces to challenge the Derg and as a dominant political force particularly in the post 1991 Derg period.

EPRDF, the ruling party, as a champion of the nationalities right to self-determination in a bid to liberate the nationalities from “national oppression” interprets the crisis as something resulting from national oppression. It considers the political, economic and cultural factors as something resulting from national oppression, a deliberate design of Showan Amhara elite. It considers both regimes that have defined the much broader notion of Ethiopian nationalism narrowly, structured the state accordingly and left the others at their mercy. The centralization of power and economic resources at the center is, therefore, viewed as a secondary rather than primary cause of the state crisis. Based on this premise, the ruling party defined its struggle not on the basis of class or multinational principles but as a nationalist one. It believed that emphasizing the nationality question was the right strategy to rally the oppressed people by rejecting the class-based approach of the ESM that EPRP and MEISON chose to follow. It is from this that the argument for national self-determination of nationalities and structuring the state based on a federal system that grants at least the major nationalities their own constituent states springs . . .

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Questions and Discussion

1. What are the main reasons for the state crisis of the 20th century in Ethiopia according to Dr. Assefa? After fully understanding his arguments, do you think that Assefa has been able to diagnose the main reason for the state crisis in his book excerpted above?
2. Do you believe from Assefa’s discussion that the most fundamental cause of the state crisis in Ethiopia during the 20th century was “national oppression”? Why/why not?

CHAPTER FIVE

DEMOCRACY, ELECTIONS AND THE RULE OF LAW

Introduction

Earlier in chapter one of this textbook, we have explored materials on constitutionalism. The materials that were made available for the discussion on constitutionalism make reference to democracy as a notion closely intertwined with constitutionalism. The Excerpt from Walter Murphy's 1993 work is a case in point. Murphy succinctly discusses the two competing theories: democratic theory and constitutionalist theory. Please refer back to that materials to refresh your memory.

In this chapter we will deal with each of the three notions in the chapter's heading in detail in order to understand their substantive trust. Of course these notions are interrelated. For example, elections are the most important mechanisms for gauging the level of democratic governance that exists in one political system. A democratic system without respect for the tenets of the rule of law cannot be considered as a well-functioning democratic system. As you study the theoretical discussions on these notions, use them as a mirror to reflect on the state of affairs of the notions in Ethiopia. What is present in our political system? What is missing? You will also find materials specific to Ethiopia to engage in some practical aspects of the notions.

Democracy

One of the most common terminologies that are in everyday public lexicon is the term "democracy". What does it really mean? Democracy is a term that is used to describe a political system that puts in place rules and procedures through which the people govern themselves through representatives they periodically elect. Democracy also connotes a system through which the people directly take part in decision making and conduct of public affairs. The roots of "democracy" are the Greek words *demos* and *kratos*. *Demos* means the people, while *kratos* means rule; hence, rule by the people. As is well known, in ancient Greece, most of the fundamental public decisions were made through direct democracy in which the citizens of the city-states sat in assemblies and voted on decisions such as the election of generals. But with time and exigency, indirect democracy, more conventionally known as representative democracy, became the most effective form of democracy. Today, all genuinely republican forms of government are synonymous with representative democracy, in which the *demos* elect their representatives periodically and govern themselves as such.

As you can glean from the myriad of literature on the subject, the term has come to acquire different adjectives. It is worthwhile to note also that there is no total agreement on the nature of democracy, its fundamental characteristics and processes around the world. Some try to present it as a Western value. Some still want to deselect and denounce some of democracy's requirements and redefine its workings. As will be noted in the other parts of these materials, African political rulers wanted to get out of the trappings of rule of law and constitutionalism under the guise of traditional values of governance. The same is true with democracy. Looking at the disastrous state of democracy and governance in most of Africa and some other parts of the world, scholars and practitioners have started to contemplate whether democracy needs a precondition to emerge and flourish or not. The following scholarly works look at such contestations and exchanges of ideas on above highlighted debatable issues of democracy. Below, Amartya Sen argues that democracy is a universal value despite contrary arguments. It is the only way to both economic prosperity, and equality and the dignity of human beings. Sen maintains that unlike the 19th century, today we do not any more debate whether a state is fit for democracy or not because there is a consensus now that there cannot be such a thing that a state is unfit for democracy. He contends that in India, which is one of the main battlegrounds of the debate whether democracy has worked or not, it has

worked well enough. He rejects as unconvincing and indeed undesirable the idea that authoritarian regimes developed more economically than less authoritarian ones. Sen also convincingly argues against the assertion that democracy could be incompatible with certain Asian traditions. Another excerpt below is Julius O. Ihonvbere's article that poses an interesting question regarding the "third wave" of democratization in Africa. He argues that just like it was the case with the 1960s anti-colonialist movements that presented high hopes of political, economic and social transformation, only to be dashed before long, the 1990s popular movements seem to also have had similar unfortunate trajectory.

Amartya Sen, "Democracy as a Universal Value," in *Journal of Democracy*, Vol. 10, No. 3 (1999). Footnotes omitted.

. . . [A]mong the great variety of developments that have occurred in the twentieth century . . . the preeminent development of the period . . . [is] the rise of democracy. This is not to deny that other occurrences have also been important, but I would argue that in the distant future, when people look back at what happened in this century, they will find it difficult not to accord primacy to the emergence of democracy as the preeminently acceptable form of governance.

The idea of democracy originated, of course, in ancient Greece, more than two millennia ago. Piecemeal efforts at democratization were attempted elsewhere as well, including in India. But it is really in ancient Greece that the idea of democracy took shape and was seriously put into practice (albeit on a limited scale), before it collapsed and was replaced by more authoritarian and asymmetric forms of government. . .

Thereafter, democracy as we know it took a long time to emerge. Its gradual--and ultimately triumphant--emergence as a working system of governance was bolstered by many developments, from the signing of the Magna Carta in 1215, to the French and the American Revolutions in the eighteenth century, to the widening of the franchise in Europe and North America in the nineteenth century. It was in the twentieth century, however, that the idea of democracy became established as the "normal" form of government to which any nation is entitled--whether in Europe, America, Asia, or Africa.

The idea of democracy as a universal commitment is quite new, and it is quintessentially a product of the twentieth century. The rebels who forced restraint on the king of England through the Magna Carta saw the need as an entirely local one. In contrast, the American fighters for independence and the revolutionaries in France contributed greatly to an understanding of the need for democracy as a general system. Yet the focus of their practical demands remained quite local--confined, in effect, to the two sides of the North Atlantic, and founded on the special economic, social, and political history of the region.

Throughout the nineteenth century, theorists of democracy found it quite natural to discuss whether one country or another was "fit for democracy." This thinking changed only in the twentieth century, with the recognition that the question itself was wrong: A country does not have to be deemed fit for democracy; rather, it has to become fit through democracy. This is indeed a momentous change, extending the potential reach of democracy to cover billions of people, with their varying histories and cultures and disparate levels of affluence.

It was also in this century that people finally accepted that "franchise for all adults" must mean all--not just men but also women. When in January of this year I had the opportunity to meet Ruth Dreyfuss, the president of Switzerland and a woman of remarkable distinction, it gave me occasion to recollect that only a quarter century ago Swiss women could not even vote. We have at last reached the point of recognizing that the coverage of universality, like the quality of mercy, is not strained.

I do not deny that there are challenges to democracy's claim to universality. These challenges come in many shapes and forms--and from different directions. Indeed, that is part of the subject of this essay. I have to examine the claim of democracy as a universal value and the disputes that surround that claim. Before I begin that exercise, however, it is necessary to grasp clearly the sense in which democracy has become a dominant belief in the contemporary world.

In any age and social climate, there are some sweeping beliefs that seem to command respect as a kind of general rule--like a "default" setting in a computer program; they are considered right unless their claim is somehow precisely negated. While democracy is not yet universally practiced, nor indeed uniformly accepted, in the general climate of world opinion, democratic governance has now achieved the status of being taken to be generally right. The ball is very much in the court of those who want to rubbish democracy to provide justification for that rejection.

This is a historic change from not very long ago, when the advocates of democracy for Asia or Africa had to argue for democracy with their backs to the wall. While we still have reason enough to dispute those who, implicitly or explicitly, reject the need for democracy, we must also note clearly how the general climate of opinion has shifted from what it was in previous centuries. We do not have to establish afresh, each time, whether such and such a country (South Africa, or Cambodia, or Chile) is "fit for democracy" (a question that was prominent in the discourse of the nineteenth century); we now take that for granted. This recognition of democracy as a universally relevant system, which moves in the direction of its acceptance as a universal value, is a major revolution in thinking, and one of the main contributions of the twentieth century. It is in this context that we have to examine the question of democracy as a universal value.

The Indian Experience

How well has democracy worked? While no one really questions the role of democracy in, say, the United States or Britain or France, it is still a matter of dispute for many of the poorer countries in the world. This is not the occasion for a detailed examination of the historical record, but I would argue that democracy has worked well enough.

India . . . [i]ndeed, . . . is held together by its working democracy.

India has . . . survived the tremendous challenge of dealing with a variety of major languages and a spectrum of religions. Religious and communal differences are, of course, vulnerable to exploitation by sectarian politicians, and have indeed been so used on several occasions (including in recent months), causing massive consternation in the country. Yet the fact that consternation greets sectarian violence and that condemnation of such violence comes from all sections of the country ultimately provides the main democratic guarantee against the narrowly factional exploitation of sectarianism. This is, of course, essential for the survival and prosperity of a country as remarkably varied as India, which is home not only to a Hindu majority, but to the world's third largest Muslim population, to millions of Christians and Buddhists, and to most of the world's Sikhs, Parsees, and Jains.

Democracy and Economic Development

It is often claimed that non-democratic systems are better at bringing about economic development. This belief sometimes goes by the name of "the Lee hypothesis," due to its advocacy by Lee Kuan Yew, the leader and former president of Singapore. He is certainly right that some disciplinarian states (such as South Korea, his own Singapore, and post reform China) have had faster rates of economic growth than many less authoritarian ones (including India, Jamaica, and Costa Rica). The "Lee hypothesis," however, is based on sporadic empiricism, drawing on very selective and limited information, rather than on any general statistical testing over the wide-ranging data that are available. A general relation of this kind cannot be established on the basis of very selective evidence. For example, we cannot really take the high economic growth of Singapore or China as

“definitive proof” that authoritarianism does better in promoting economic growth, any more than we can draw the opposite conclusion from the fact that Botswana, the country with the best record of economic growth in Africa, indeed with one of the finest records of economic growth in the whole world, has been an oasis of democracy on that continent over the decades. We need more systematic empirical studies to sort out the claims and counterclaims.

There is, in fact, no convincing general evidence that authoritarian governance and the suppression of political and civil rights are really beneficial to economic development. Indeed, the general statistical picture does not permit any such induction. Systematic empirical studies (for example, by Robert Barro or by Adam Przeworski) give no real support to the claim that there is a general conflict between political rights and economic performance. The directional linkage seems to depend on many other circumstances, and while some statistical investigations note a weakly negative relation, others find a strongly positive one. If all the comparative studies are viewed together, the hypothesis that there is no clear relation between economic growth and democracy in either direction remains extremely plausible. Since democracy and political liberty have importance in themselves, the case for them therefore remains untarnished.

The question also involves a fundamental issue of methods of economic research. We must not only look at statistical connections, but also examine and scrutinize the causal processes that are involved in economic growth and development. The economic policies and circumstances that led to the economic success of countries in East Asia are by now reasonably well understood. While different empirical studies have varied in emphasis, there is by now broad consensus on a list of “helpful policies” that includes openness to competition, the use of international markets, public provision of incentives for investment and export, a high level of literacy and schooling, successful land reforms, and other social opportunities that widen participation in the process of economic expansion. There is no reason at all to assume that any of these policies is inconsistent with greater democracy and had to be forcibly sustained by the elements of authoritarianism that happened to be present in South Korea or Singapore or China. Indeed, there is overwhelming evidence to show that what is needed for generating faster economic growth is a friendlier economic climate rather than a harsher political system.

To complete this examination, we must go beyond the narrow confines of economic growth and scrutinize the broader demands of economic development, including the need for economic and social security. In that context, we have to look at the connection between political and civil rights, on the one hand, and the prevention of major economic disasters, on the other. Political and civil rights give people the opportunity to draw attention forcefully to general needs and to demand appropriate public action. The response of a government to the acute suffering of its people often depends on the pressure that is put on it. The exercise of political rights (such as voting, criticizing, protesting, and the like) can make a real difference to the political incentives that operate on a government.

I have discussed elsewhere the remarkable fact that, in the terrible history of famines in the world, no substantial famine has ever occurred in any independent and democratic country with a relatively free press. We cannot find exceptions to this rule, no matter where we look: the recent famines of Ethiopia, Somalia, or other dictatorial regimes; famines in the Soviet Union in the 1930s; China's 1958-61 famine with the failure of the Great Leap Forward; or earlier still, the famines in Ireland or India under alien rule. China, although it was in many ways doing much better economically than India, still managed (unlike India) to have a famine, indeed the largest recorded famine in world history: Nearly 30 million people died in the famine of 1958-61, while faulty governmental policies remained uncorrected for three full years. The policies went uncriticized because there were no opposition parties in parliament, no free press, and no multiparty elections. Indeed, it is precisely this lack of challenge that allowed the deeply defective policies to continue even though they were killing millions each year. The same can be said about the world's two contemporary famines, occurring right now in North Korea and Sudan.

Famines are often associated with what look like natural disasters, and commentators often settle for the simplicity of explaining famines by pointing to these events: the floods in China during the failed Great Leap Forward, the droughts in Ethiopia, or crop failures in North Korea. Nevertheless, many countries with similar natural problems, or even worse ones, manage perfectly well, because a responsive government intervenes to help alleviate hunger. Since the primary victims of a famine are the indigent, deaths can be prevented by recreating incomes (for example, through employment programs), which makes food accessible to potential famine victims. Even the poorest democratic countries that have faced terrible droughts or floods or other natural disasters (such as India in 1973, or Zimbabwe and Botswana in the early 1980s) have been able to feed their people without experiencing a famine.

Famines are easy to prevent if there is a serious effort to do so, and a democratic government, facing elections and criticisms from opposition parties and independent newspapers, cannot help but make such an effort. Not surprisingly, while India continued to have famines under British rule right up to independence (the last famine, which I witnessed as a child, was in 1943, four years before independence), they disappeared suddenly with the establishment of a multiparty democracy and a free press.

. . . The positive role of political and civil rights applies to the prevention of economic and social disasters in general. When things go fine and everything is routinely good, this instrumental role of democracy may not be particularly missed. It is when things get fouled up, for one reason or another, that the political incentives provided by democratic governance acquire great practical value.

There is, I believe, an important lesson here. Many economic technocrats recommend the use of economic incentives (which the market system provides) while ignoring political incentives (which democratic systems could guarantee). This is to opt for a deeply unbalanced set of ground rules. The protective power of democracy may not be missed much when a country is lucky enough to be facing no serious calamity, when everything is going quite smoothly. Yet the danger of insecurity, arising from changed economic or other circumstances, or from uncorrected mistakes of policy, can lurk behind what looks like a healthy state.

The recent problems of East and Southeast Asia bring out, among other things, the penalties of undemocratic governance. This is so in two striking respects. First, the development of the financial crisis in some of these economies (including South Korea, Thailand, Indonesia) has been closely linked to the lack of transparency in business, in particular the lack of public participation in reviewing financial arrangements. The absence of an effective democratic forum has been central to this failing. Second, once the financial crisis led to a general economic recession, the protective power of democracy--not unlike that which prevents famines in democratic countries--was badly missed in a country like Indonesia. The newly dispossessed did not have the hearing they needed.

A fall in total gross national product of, say, 10 percent may not look like much if it follows in the wake of a growth rate of 5 or 10 percent every year over the past few decades, and yet that decline can decimate lives and create misery for millions if the burden of contraction is not widely shared but allowed to be heaped on those--the unemployed or the economically redundant--who can least bear it. The vulnerable in Indonesia may not have missed democracy when things went up and up, but that lacuna kept their voice low and muffled as the unequally shared crisis developed. The protective role of democracy is strongly missed when it is most needed.

The Functions of Democracy

What exactly is democracy? We must not identify democracy with majority rule. Democracy has complex demands, which certainly include voting and respect for election results, but it also requires the protection of liberties and freedoms, respect for legal entitlements, and the guaranteeing of free discussion and uncensored distribution of news and fair comment. Even elections can be deeply defective if they occur without the different sides getting an adequate opportunity to present their respective cases, or without the electorate enjoying the freedom to obtain news and to consider the views of the competing protagonists. Democracy is a demanding system, and not just a mechanical condition (like majority rule) taken in isolation.

Viewed in this light, the merits of democracy and its claim as a universal value can be related to certain distinct virtues that go with its unfettered practice. Indeed, we can distinguish three different ways in which democracy enriches the lives of the citizens. First, political freedom is a part of human freedom in general, and exercising civil and political rights is a crucial part of good lives of individuals as social beings. Political and social participation has intrinsic value for human life and well-being. To be prevented from participation in the political life of the community is a major deprivation.

Second, as I have just discussed (in disputing the claim that democracy is in tension with economic development), democracy has an important instrumental value in enhancing the hearing that people get in expressing and supporting their claims to political attention (including claims of economic needs). Third--and this is a point to be explored further--the practice of democracy gives citizens an opportunity to learn from one another, and helps society to form its values and priorities. Even the idea of "needs," including the understanding of "economic needs," requires public discussion and exchange of information, views, and analyses. In this sense, democracy has constructive importance, in addition to its intrinsic value for the lives of the citizens and its instrumental importance in political decisions. The claims of democracy as a universal value have to take note of this diversity of considerations.

The conceptualization--even comprehension--of what are to count as "needs," including "economic needs," may itself require the exercise of political and civil rights. A proper understanding of what economic needs are--their content and their force--may require discussion and exchange. Political and civil rights, especially those related to the guaranteeing of open discussion, debate, criticism, and dissent, are central to the process of generating informed and considered choices. These processes are crucial to the formation of values and priorities, and we cannot, in general, take preferences as given independently of public discussion, that is, irrespective of whether open interchange and debate are permitted or not.

In fact, the reach and effectiveness of open dialogue are often underestimated in assessing social and political problems. For example, public discussion has an important role to play in reducing the high rates of fertility that characterize many developing countries. There is substantial evidence that the sharp decline in fertility rates in India's more literate states has been much influenced by public discussion of the bad effects of high fertility rates on the community at large, and especially on the lives of young women. If the view has emerged in, say, the Indian state of Kerala or of Tamil Nadu that a happy family in the modern age is a small family, much discussion and debate have gone into the formation of these perspectives. Kerala now has a fertility rate of 1.7 (similar to that of Britain and France, and well below China's 1.9), and this has been achieved with no coercion, but mainly through the emergence of new values--a process in which political and social dialogue has played a major part. Kerala's high literacy rate (it ranks higher in literacy than any province in China), especially among women, has greatly contributed to making such social and political dialogue possible.

Miseries and deprivations can be of various kinds, some more amenable to social remedies than others. The totality of the human predicament would be a gross basis for identifying our "needs."

For example, there are many things that we might have good reason to value and thus could be taken as “needs” if they were feasible. We could even want immortality, as Maitreyee, that remarkable inquiring mind in the Upanishads, famously did in her 3000-year old conversation with Yajñvalkyā. But we do not see immortality as a “need” because it is clearly unfeasible. Our conception of needs relates to our ideas of the preventable nature of some deprivations and to our understanding of what can be done about them. In the formation of understandings and beliefs about feasibility (particularly, social feasibility), public discussions play a crucial role. Political rights, including freedom of expression and discussion, are not only pivotal in inducing social responses to economic needs, they are also central to the conceptualization of economic needs themselves.

Universality of Values

If the above analysis is correct, then democracy's claim to be valuable does not rest on just one particular merit. There is a plurality of virtues here, including, first, the intrinsic importance of political participation and freedom in human life; second, the instrumental importance of political incentives in keeping governments responsible and accountable; and third, the constructive role of democracy in the formation of values and in the understanding of needs, rights, and duties. In light of this diagnosis, we may now address the motivating question of this essay, namely the case for seeing democracy as a universal value.

In disputing this claim, it is sometimes argued that not everyone agrees on the decisive importance of democracy, particularly when it competes with other desirable things for our attention and loyalty. This is indeed so, and there is no unanimity here. This lack of unanimity is seen by some as sufficient evidence that democracy is not a universal value.

Clearly, we must begin by dealing with a methodological question: What is a universal value? For a value to be considered universal, must it have the consent of everyone? If that were indeed necessary, then the category of universal values might well be empty. I know of no value--not even motherhood (I think of Mommie Dearest) --to which no one has ever objected. I would argue that universal consent is not required for something to be a universal value. Rather, the claim of a universal value is that people anywhere may have reason to see it as valuable.

When Mahatma Gandhi argued for the universal value of non-violence, he was not arguing that people everywhere already acted according to this value, but rather that they had good reason to see it as valuable. Similarly, when Rabindranath Tagore argued for “the freedom of the mind” as a universal value, he was not saying that this claim is accepted by all, but that all do have reason enough to accept it--a reason that he did much to explore, present, and propagate. Understood in this way, any claim that something is a universal value involves some counterfactual analysis--in particular, whether people might see some value in a claim that they have not yet considered adequately. All claims to universal value--not just that of democracy--have this implicit presumption.

I would argue that it is with regard to this often implicit presumption that the biggest attitudinal shift toward democracy has occurred in the twentieth century. In considering democracy for a country that does not have it and where many people may not yet have had the opportunity to consider it for actual practice, it is now presumed that the people involved would approve of it once it becomes a reality in their lives. In the nineteenth century this assumption typically would have not been made, but the presumption that is taken to be natural (what I earlier called the “default” position) has changed radically during the twentieth century.

It must also be noted that this change is, to a great extent, based on observing the history of the twentieth century. As democracy has spread, its adherents have grown, not shrunk. Starting off from Europe and America, democracy as a system has reached very many distant shores, where it

has been met with willing participation and acceptance. Moreover, when an existing democracy has been overthrown, there have been widespread protests, even though these protests have often been brutally suppressed. Many people have been willing to risk their lives in the fight to bring back democracy.

Some who dispute the status of democracy as a universal value base their argument not on the absence of unanimity, but on the presence of regional contrasts. These alleged contrasts are sometimes related to the poverty of some nations. According to this argument, poor people are interested, and have reason to be interested, in bread, not in democracy. This oft-repeated argument is fallacious at two different levels.

First, as discussed above, the protective role of democracy may be particularly important for the poor. This obviously applies to potential famine victims who face starvation. It also applies to the destitute thrown off the economic ladder in a financial crisis. People in economic need also need a political voice. Democracy is not a luxury that can await the arrival of general prosperity.

Second, there is very little evidence that poor people, given the choice, prefer to reject democracy. It is thus of some interest to note that when an erstwhile Indian government in the mid-1970s tried out a similar argument to justify the alleged “emergency” (and the suppression of various political and civil rights) that it had declared, an election was called that divided the voters precisely on this issue. In that fateful election, fought largely on this one overriding theme, the suppression of basic political and civil rights was firmly rejected, and the Indian electorate—one of the poorest in the world—showed itself to be no less keen on protesting against the denial of basic liberties and rights than on complaining about economic deprivation.

To the extent that there has been any testing of the proposition that the poor do not care about civil and political rights, the evidence is entirely against that claim. Similar points can be made by observing the struggle for democratic freedoms in South Korea, Thailand, Bangladesh, Pakistan, Burma, Indonesia, and elsewhere in Asia. Similarly, while political freedom is widely denied in Africa, there have been movements and protests against such repression whenever circumstances have permitted them.

The Argument from Cultural Differences

There is also another argument in defense of an allegedly fundamental regional contrast, one related not to economic circumstances but to cultural differences. Perhaps the most famous of these claims relates to what have been called “Asian values.” It has been claimed that Asians traditionally value discipline, not political freedom, and thus the attitude to democracy must inevitably be much more skeptical in these countries. . . .

It is very hard to find any real basis for this intellectual claim in the history of Asian cultures, especially if we look at the classical traditions of India, the Middle East, Iran, and other parts of Asia. For example, one of the earliest and most emphatic statements advocating the tolerance of pluralism and the duty of the state to protect minorities can be found in the inscriptions of the Indian emperor Ashoka in the third century B.C.

Asia is, of course, a very large area, containing 60 percent of the world's population, and generalizations about such a vast set of peoples is not easy. Sometimes the advocates of “Asian values” have tended to look primarily at East Asia as the region of particular applicability. The general thesis of a contrast between the West and Asia often concentrates on the lands to the east of Thailand, even though there is also a more ambitious claim that the rest of Asia is rather “similar.” Lee Kuan Yew, to whom we must be grateful for being such a clear expositor (and for articulating fully what is often stated vaguely in this tangled literature), outlines “the fundamental difference between Western concepts of society and government and East Asian concepts” by explaining,

“when I say East Asians, I mean Korea, Japan, China, Vietnam, as distinct from Southeast Asia, which is a mix between the Sinic and the Indian, though Indian culture itself emphasizes similar values.”

Even East Asia itself, however, is remarkably diverse, with many variations to be found not only among Japan, China, Korea, and other countries of the region, but also within each country. Confucius is the standard author quoted in interpreting Asian values, but he is not the only intellectual influence in these countries (in Japan, China, and Korea for example, there are very old and very widespread Buddhist traditions, powerful for over a millennium and a half, and there are also other influences, including a considerable Christian presence). There is no homogeneous worship of order over freedom in any of these cultures.

Furthermore, Confucius himself did not recommend blind allegiance to the state. When Zilu asks him “how to serve a prince,” Confucius replies (in a statement that the censors of authoritarian regimes may want to ponder), “Tell him the truth even if it offends him.” Confucius is not averse to practical caution and tact, but does not forgo the recommendation to oppose a bad government (tactfully, if necessary): “When the [good] way prevails in the state, speak boldly and act boldly. When the state has lost the way, act boldly and speak softly.”

Indeed, Confucius provides a clear pointer to the fact that the two pillars of the imagined edifice of Asian values, loyalty to family and obedience to the state, can be in severe conflict with each other. Many advocates of the power of “Asian values” see the role of the state as an extension of the role of the family, but as Confucius noted, there can be tension between the two. . . .

The monolithic interpretation of Asian values as hostile to democracy and political rights does not bear critical scrutiny. I should not, I suppose, be too critical of the lack of scholarship supporting these beliefs, since those who have made these claims are not scholars but political leaders, often official or unofficial spokesmen for authoritarian governments. It is, however, interesting to see that while we academics can be impractical about practical politics, practical politicians can, in turn, be rather impractical about scholarship.

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Due to the experience of contemporary political battles, especially in the Middle East, Islam is often portrayed as fundamentally intolerant of and hostile to individual freedom. But the presence of diversity and variety within a tradition applies very much to Islam as well. In India, Akbar and most of the other Moghul emperors (with the notable exception of Aurangzeb) provide good examples of both the theory and practice of political and religious tolerance. The Turkish emperors were often more tolerant than their European contemporaries. Abundant examples can also be found among rulers in Cairo and Baghdad. Indeed, in the twelfth century, the great Jewish scholar Maimonides had to run away from an intolerant Europe (where he was born), and from its persecution of Jews, to the security of a tolerant and urbane Cairo and the patronage of Sultan Saladin.

Diversity is a feature of most cultures in the world. Western civilization is no exception. The practice of democracy that has won out in the modern West is largely a result of a consensus that has emerged since the Enlightenment and the Industrial Revolution, and particularly in the last century or so. To read in this a historical commitment of the West--over the millennia--to democracy, and then to contrast it with non-Western traditions (treating each as monolithic) would be a great mistake. This tendency toward oversimplification can be seen not only in the writings of some governmental spokesmen in Asia, but also in the theories of some of the finest Western scholars themselves.

As an example from the writings of a major scholar whose works, in many other ways, have been totally impressive, let me cite Samuel Huntington's thesis on the clash of civilizations, where the heterogeneities within each culture get quite inadequate recognition. His study comes to the clear conclusion that "a sense of individualism and a tradition of rights and liberties" can be found in the West that are "unique among civilized societies." Huntington also argues that "the central characteristics of the West, those which distinguish it from other civilizations, antedate the modernization of the West." In his view, "The West was West long before it was modern." It is this thesis that--I have argued--does not survive historical scrutiny.

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Where the Debate Belongs

I have tried to cover a number of issues related to the claim that democracy is a universal value. The value of democracy includes its intrinsic importance in human life, its instrumental role in generating political incentives, and its constructive function in the formation of values (and in understanding the force and feasibility of claims of needs, rights, and duties). These merits are not regional in character. Nor is the advocacy of discipline or order. Heterogeneity of values seems to characterize most, perhaps all, major cultures. The cultural argument does not foreclose, nor indeed deeply constrain, the choices we can make today.

Those choices have to be made here and now, taking note of the functional roles of democracy, on which the case for democracy in the contemporary world depends. I have argued that this case is indeed strong and not regionally contingent. The force of the claim that democracy is a universal value lies, ultimately, in that strength. That is where the debate belongs. It cannot be disposed of by imagined cultural taboos or assumed civilizational predispositions imposed by our various pasts.

Julius O. Ihonvbere, "Where is the Third Wave? A Critical Evaluation of Africa's Non-Transition to Democracy" 43(4) *Africa Today* (1996) 343. Footnotes omitted.

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The Rise of New Struggles for Democracy in Africa

The struggles for genuine democracy in Africa started immediately after political independence was won. The masses quickly realized that the new inheritors of power had no intention of fulfilling the promises of the nationalist struggles. The new elites occupied the seats of power, the mansions of the departing colonial officers, and presided over the allocation of resources and power. They concentrated resources in urban centers, marginalized rural people and areas, as well as women, and initiated processes for the depoliticization, intimidation, and domestication of popular communities and constituencies. In Kenya under Jomo Kenyatta, Nigeria under Abubakar Tafawa Balewa, Ghana under Kwame Nkrumah, and Senegal under Leopold Sedar Senghor, as well as in other postcolonial societies, the relationship between the people and their communities on the one hand and the elites on the other not only soured but also became antagonistic, suspicious, and at times violent. The emergence of several self-help associations, trade unions, and opposition political associations was evidence of the decreasing lack of faith in the new elites. Moreover, the fact that non-bourgeois forces were compelled to design several overt and covert methods of resistance and struggle against the new elites was a consequence of the failure of the nationalist project, in terms of meeting the basic needs of the people and providing a propitious environment for creativity, innovation, and productivity. People came to see independence as a sort of punishment that brought nothing but misery, pain, dashed hopes, terror, exploitation, marginalization, frustration, and hopelessness. Conditions of living deteriorated, and many began to look at the brutal colonial era with nostalgia. Nationalists of yesterday became ruthless dictators,

life presidents, and little gods of today, and hopes for a better life receded into the distant future. At this point, women, students, workers, the unemployed, and professionals began to call for a true and second uhuru (independence). The new governments became corrupt and distant from the people. Politicians violated all known rules of politics and political competition. They neglected the economy and concentrated on the extraction of surpluses from already impoverished communities. They strengthened lucrative but unproductive relationships with foreign capital. Several years after political independence, the new regimes fell prey to the military.

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The Containment of the "Third Wave" in Africa

While the efforts of Africa's new democratic movements are commendable, a critical evaluation must be made of their structures, platforms, leadership, mobilization strategies, effectiveness, fund-raising activities, alignment and realignment with other forces, degrees of internal democracy, and survival capabilities. Such evaluation is necessary in order to avoid an initial euphoria that is characterized by an uncritical acceptance and support for movements that are clearly opportunistic and undemocratic. In some instances, such movements are created or funded by the incumbent regimes in order to divert attention, generate crisis within the prodemocratic community, or stall the march to democracy.

The Association for a Better Nigeria (ABN), led by Arthur Nzeribe, was funded and encouraged by General Ibrahim Babangida as part of his hidden agenda to remain in power permanently. The ABN succeeded in stalling the march to democracy and precipitating a political impasse that has culminated in another military coup, executions, political violence, the total bifurcation of the country along primordial lines, and the further closure of democratic spaces. The new political parties and movements have not effectively and decisively challenged the autocratic basis and patterns of politics on the continent. True, military regimes are being forced to give up power or to civilianize, as in Ghana, and one-party governments are being compelled to open up, as in Kenya. Yet the autocrats remain effectively in power. As Peter Anyang'Nyong'o has noted, the "character of the state" has remained the same, characterized by "power for the few and limited democratic freedoms." In Zaire the prodemocratic movements have not succeeded in shaking the political foundations of Mobutu Sese Seko, and in Cote d'Ivoire Henri Konan Bedie is more or less a direct continuation of the Houphouet-Boigny tradition. In Togo, Gnassingbe Eyadema is still in power, while Kerekou was returned to power in Benin. Frederick Chiluba in Zambia had to devise several dirty tricks to keep Kenneth Kaunda out of the political terrain as his popularity grew and the public was willing to overlook his terrible record.

As *Africa Demos* has noted, "Autocracy is still alive and kicking in Africa. In fact, it is more cunning than ever, image-conscious, and sophisticated in its ability to manipulate the language of democracy, human rights and social justice. To know it therefore, we must pay more attention to its actions than its words." Autocratic regimes are thriving in Africa because many of the prodemocracy movements have a limited agenda and are led by persons who are democratic in name only. The incumbent leaders know them, have worked with them, and can predict their moves with ease. That is the situation in Zambia, where more often than not, Chiluba's ministers were at one time or another sacked, disgraced, or manipulated by Kenneth Kaunda in his twenty-seven-year rule of the country. Simply put, the new leaders have not come up with any drastically new pattern of political recruitment, mobilization, and practice.

The new prodemocracy movements and "third wave" political parties have not quite carved an image of autonomy, credibility, effectiveness, and stability for themselves: groups such as the Movement for Multiparty Democracy (MMD), the Caucus for National Unity (CNU), and the National Party (NP) in Zambia; the Social Democratic Front (SDF), Union Nationale pour la Démocratie et le Progrès (UNDP), Union Démocratie Camerounaise (UDC), Union pour Population Camerounaise (UPC), and Mouvement pour la Démocratie de la République (MDR) in Cameroon; the Union of Democratic Forces and the Ivorian Popular Front in Cote d'Ivoire; Forum for the

Restoration of Democracy (FORD) and the Social Democratic Party (DSP) in Kenya; the Movement for Freedom and Justice (MFJ) in Ghana; the Alliance for the Restoration of Democracy (AFORD), and the United Democratic Front (UDF) in Malawi; and the Campaign for Democracy (CD) and the National Democratic Coalition (NADECO) in Nigeria. True, it takes time to acquire these attributes, especially in an environment that until recently had been dominated by corrupt, ruthless, and extremely manipulative dictators.

Many of the movements are dominated or directly or indirectly controlled by wealthy elements, professionals, retired military officers, professional political agitators, politicians of the 1960s, or persons marginalized from current power dispensations. This is even more pronounced in the third wave political parties, which are led mostly by politicians who can easily be identified with one or more of the previous regimes. In Nigeria, it was easy for a wealthy multimillionaire, Chief M. K. O. Abiola to become the presidential candidate of the Social Democratic Party (SDP) despite his short-term membership in the party. In Malawi, not only had Bakili Muluzi of the UDF "been convicted of theft in the sixties" but the party's "top leadership contained many people who had been prominent" in Kamuzu Banda's Malawi Congress Party (MCP). Similarly, in Zambia, the MMD had been bankrolled by business interests that were dedicated to keeping business as usual. The leading opposition and prodemocracy movement in Nigeria today, NADECO, has been led by such figures as retired military officer Commodore Dan Suleiman, Chief Ralph Obioha, ex-governor Odigie Oyegun, ex-minister Bolaji Akinyemi, and wealthy businessmen Alfred Rewane and Anthony Enahoro.

These credentials do not automatically discredit these party's political relevance, but given the way power and politics are acquired and deployed in Africa, there is reason to be skeptical about their capacity to effectively challenge and dismantle a status quo that they constructed. Thus, the new movements and parties reflect more the interest and politics of narrow, conservative, and urban-based elites who have only opportunistic relations with rural and vulnerable communities. As Nzongola-Ntalaja recently concluded:

Just as it was during the struggle for independence, there is a contradiction between the deepest aspirations of the masses who constitute the rank and file of the democracy movement and the narrow class interests of its leadership. The latter is made up in most cases of deserters from the ruling circles of the ancient regime who are more interested in settling accounts with their former boss and his entourage than in transforming the state radically by democratizing it and increasing its capacity to serve the people.

Leadership and Personalization of Politics in the New Movements

The personalization of politics has direct implications for the credibility and quality of leadership in contemporary Africa. Many new leaders are nothing but "emergency democrats," trying to feed into the new global dispensation and exploit the frustrations and pains of the people as a quick route to power. These leaders are abnormally fixated on power, so much so that even within their movements, democracy is suppressed. The leader serves as chair of the movement and the presidential candidate over and over again. As in the 1960s, when the third wave leaders get to positions of power, they spend much money, time, and energy trying to liquidate real and imaginary opposition. The third wave leaders are willing to share power with the "devil of yesterday"; Malawi, Togo, Nigeria, and Cameroon are instructive cases. The conduct of these leaders has forced many initial sympathizers to become skeptical about their ability to make a difference and transcend the opportunistic politics of the past: Like most of the petit-bourgeois leaders of the independence struggle, the new leaders are for the most part self-centered seekers of political power and material benefits. Their main preoccupation is to position themselves for political office in the new dispensation of the post-authoritarian era. Evidence from both failed and aborted transitions (Zaire, Togo, Kenya, Gabon, Cameroon, Ghana, Sudan) and countries where elected governments have replaced the former dictators (Benin, Mali, Niger, Congo, CAR, Zambia, Malawi) suggests that there is little commitment to democratization as a process within the political class as a whole,

even among prominent leaders of the democratic opposition or the democracy movement. Both power-holders and those seeking to replace them share a common political culture, one "that puts less emphasis on respect for the democratic process of open debate and transparent decision making than on deal making among politicians." Nzongola-Ntalaja goes on to point out that the brand of politics effectively practiced by many of these new movements reflects a "political culture in which opportunism takes precedence over principle, with nearly everyone failing to honor one's agreements. Decisions taken at democratic gatherings like the national conference can easily be overturned behind closed doors by self-serving politicians, away from the vigilant eye of the masses." How else can we explain the ease with which General Sani Abacha got Baba Gana Kingibe (who would have been Nigeria's vice president if the 12 June 1993 elections had not been annulled), Iyorchia Ayu, the elected senate president, and leading members of the prodemocracy community such as Lateef Jakande, Abubakar Rimi, Ebenezer Babatope, and Olu Onagoruwa to join his junta and help dismantle democratic structures and totally remilitarize Nigeria's political terrain? How do we explain that opposition parties call press conferences to tender apologies to Moi and the ruling Kenya Africa National Union (KANU) and then defect to the ruling party? How do we explain the fact that anyone who disagrees with Frederick Chiluba in Zambia simply forms his or her own political party, a trend that has resulted in the emergence of over thirty opposition parties between 1992 and 1995? How do we explain the ease with which leading opposition politicians in Cameroon such as Augustin Koukoko of the UPC and Dakole Daissala of the MDR joined the government of Paul Biya without apologies to their constituencies? Finally, how do we explain the political vacillations of AFORD leader, Chakufwa Chihana, who started off attacking Kamuzu Banda, then campaigned for support and sympathy for Banda and the MCP, then made an alliance with the MCP, and in September 1994 accepted a position of second vice president in Bakili Muluzi's UDF government?

This hunger for power has encouraged political prostitution, grandstanding, corruption, intolerance, and strange alliances that directly compromise the ability of the new movements and parties to make a difference. The hunger for power has also made it easy for incumbent leaders to manipulate and divide the opposition. Most important, the hunger for power among the opposition leaders has affected the character of politics, mediated the political platforms of the movements, affected the quality of debates, and seriously disillusioned their supporters.

Capitalizing on Africa's economic dislocation and disaster has been one of the strong points of the new parties and prodemocracy movements. Without doubt, the economic failures of incumbent regimes across the continent has provided ample ammunition for the opposition: the problems of inflation, unemployment, rural decay and drift to urban centers, the collapse of amenities, crime, dilapidated schools, hospitals without drugs, roads with potholes, food scarcity, huge foreign debts, deindustrialization, declining foreign aid, and declining investor confidence and interest. (...)

Angry, frustrated, hungry, and desperate peasants, women, workers, professionals, and the unemployed have responded to the calls of the new movements and joined in the struggles against dictators-military and civilian alike. Benin was probably the country that most dramatically demonstrated the impact of economic crisis, with the delegitimization of an incumbent government and the rapid legitimization of the opposition agenda, culminating in the easy defeat of Mathieu Kerekou through the efforts of a national conference. However, as has become evident in Zambia, Togo, Cameroon, Niger, Benin, Botswana, Kenya, and other African states, the new parties have made little or no difference in the living conditions of the people in spite of the numerous promises the parties made. In fact, in many instances, they have worsened the situation.

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Charles Tilly *Democracy* (Cambridge University Press, 2007). Notes and references omitted.

To take democracy seriously, we must know what we are talking about. Developing a precise definition of democracy is particularly important when trying – as we are here – to describe and explain variation and change in the extent and character of democracy.

Observers of democracy and democratization generally choose, implicitly or explicitly, among four main types of definitions: constitutional, substantive, procedural, and process-oriented. A constitutional approach concentrates on laws a regime enacts concerning political activity. Thus we can look across history and recognize differences among oligarchies, monarchies, republics, and a number of other types by means of contrasting legal arrangements. Within democracies, furthermore, we can distinguish between constitutional monarchies, presidential systems, and parliament-centered arrangements, not to mention such variations as federal versus unitary structures. For large historical comparisons, constitutional criteria have many advantages, especially the relative visibility of constitutional forms. As the cases of Kazakhstan and Jamaica show, however, large discrepancies between announced principles and daily practices often make constitutions misleading.

Substantive approaches focus on the conditions of life and politics a given regime promotes: Does this regime promote human welfare, individual freedom, security, equity, social equality, public deliberation, and peaceful conflict resolution? If so, we might be inclined to call it democratic regardless of how its constitution reads. Two troubles follow immediately, however, from any such definitional strategy. First, how do we handle tradeoffs among these estimable principles? If a given regime is desperately poor but its citizens enjoy rough equality, should we think of it as more democratic than a fairly prosperous but fiercely unequal regime?

Second, focusing on the possible outcomes of politics undercuts any effort to learn whether some political arrangements – including democracy – promote more desirable substantive outcomes than other political arrangements. What if we actually want to know under what conditions and how regimes promote human welfare, individual freedom, security, equity, social equality, public deliberation, and peaceful conflict resolution?

Advocates of procedural definitions single out a narrow range of governmental practices to determine whether a regime qualifies as democratic. Most procedural observers center their attention on elections, asking whether genuinely competitive elections engaging large numbers of citizens regularly produce changes in governmental personnel and policy. If elections remain a non-competitive sham and an occasion for smashing governmental opponents as in Kazakhstan, procedural analysts reject them as criteria for democracy. But if they actually cause significant governmental changes, they signal the procedural presence of democracy. (In principle one could add or substitute other consultative procedures such as referenda, recall, petition, and even opinion polls, but in practice procedural analysts focus overwhelmingly on elections.)

Freedom House evaluations incorporate some substantive judgments about the extent to which a given country's citizens enjoy political rights and civil liberties. But when it comes to judging whether a country is an "electoral democracy," Freedom House looks for mainly procedural elements:

1. A competitive, multiparty political system
2. Universal adult suffrage for all citizens (with exceptions for restrictions that states may legitimately place on citizens for criminal offenses)
3. Regularly contested elections conducted in conditions of ballot secrecy, reasonable ballot security, and in the absence of massive voter fraud that yields results that are unrepresentative of the public will
4. Significant public access of major political parties to the electorate through the media and through generally open political campaigning.

According to these criteria, in 2004 Kazakhstan failed to qualify procedurally as an electoral democracy, but Jamaica, despite its documented assaults on democratic freedoms, made the grade. Here, then, is the trouble with procedural definitions of democracy, democratization, and de-democratization: despite their crisp convenience, they work with an extremely thin conception of the political processes involved.

Process-oriented approaches to democracy differ significantly from constitutional, substantive, and procedural accounts. They identify some minimum set of processes that must be continuously in motion for a situation to qualify as democratic. In a classic statement, Robert Dahl stipulates five process-oriented criteria for democracy. Speaking first of how they might work in a voluntary association, he proposes:

Effective participation. Before a policy is adopted by the association, all the members must have equal and effective opportunities for making their views known to the other members as to what the policy should be.

Voting equality. When the moment arrives at which the decision about the policy will finally be made, every member must have an equal and effective opportunity to vote, and all votes must be counted as equal.

Enlightened understanding. Within reasonable limits as to time, each member must have equal and effective opportunities for learning about the relevant alternative policies and their likely consequences.

Control of the agenda. The members must have the exclusive opportunity to decide how and, if they choose, what matters are to be placed on the agenda. Thus the democratic process required by the three preceding criteria is never closed. The policies of the association are always open to change by the members, if they so choose.

Inclusion of adults. All, or at any rate most, adult permanent residents should have the full rights of citizens that are implied by the first four criteria. Before the twentieth century this criterion was unacceptable to most advocates of democracy.

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When Dahl moves from local associations to national regimes, he holds on to his process-oriented insights, but shifts to talk of institutions. Institutions, for Dahl, consist of practices that endure. The sort of regime that Dahl calls a “polyarchal democracy” installs six distinctive institutions: elected officials; free, fair, and frequent elections; freedom of expression; alternative sources of information; associational autonomy; and inclusive citizenship. Once again, the procedure of voting appears on the list. But taken together Dahl’s criteria for polyarchal democracy describe a working process, a series of regularized interactions among citizens and officials. These go far beyond the usual procedural standards.

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Larry Diamond, “Breaking Out of the Democratic Slump” 31(1) *Journal of Democracy* (January 2020) 36. Endnotes omitted.

For the past twelve years or so, democracy around the world has been in a funk. It was inevitable, of course, that the remarkable “third wave” of global democratization (which began in the 1970s) would slow, if not grind to a halt. By the mid-1990s, most of the countries with favorable conditions for democracy—at least middling levels of education and per capita income, prior histories of democracy, and benign regional neighborhoods—had already become democracies. In

the late 1990s and early 2000s, some of the additional likely candidates joined the ranks of new democracies, particularly following the “color revolutions” in several post communist states. But by 2006, democracy started trending downward. In every year since then, Freedom House has found that more countries have declined in freedom than have gained, reversing the pattern of the early post–Cold War era. The Green Wave movement in Iran in 2009, the Arab uprisings of 2010–12, and the stirring electoral challenges to autocracy in Venezuela and Zimbabwe in 2018 sparked hope that a new burst of democratic progress might be imminent. But almost all these liberating possibilities fell short. With the notable exception of democratic Tunisia, the Arab Spring left in its wake heightened repression and civil wars. Popular protests in Ukraine forced the increasingly autocratic pro-Kremlin president Viktor Yanukovych from power in 2014, but then Russia went to war against Ukraine’s revived democracy. Since then, the Gambia, Malaysia, and Nigeria have seen stunning defeats of autocratic incumbents, but none seems to have made a sufficiently clean break with the old ways of politics to be called even an electoral democracy.

The long democracy slump has seen a surge in democratic failures. If we break the period since 1976 into four equal segments of eleven years each, we find that the rate of democratic failure declined from 14 percent in the first period (1976–86) to under 11 percent in the next two segments. In the most recent period (2009–19), however, this figure has increased to 18 percent, with democracy failing in key states including Bangladesh, Thailand, and Turkey, and for the first time in an EU member state, Hungary. The trend probably does not quite yet amount to what Samuel P. Huntington would have called a “reverse wave” of democratic breakdowns, but it is getting uncomfortably close. The ill winds are affecting every kind of regime. A number of liberal democracies are becoming less liberal. Many electoral democracies are descending into competitive authoritarianism. Some competitive authoritarian regimes, such as Cambodia and Uganda, are losing many of their pluralistic features, as space for dissent slowly narrows. And the more blatant authoritarian regimes—China, Russia, Saudi Arabia, and now Egypt, among others—are becoming more intensely repressive, often aided by new digital technologies of surveillance and control. Yet despite the pattern of democratic decline, there have been recent encouraging signs of pushback against a principal agent of democracy decay in our time: illiberal populism. Among states with populations of more than one-million people, the share of electoral democracies has recently fallen to less than half for the first time since the very early days of the post–Cold War world. To be sure, many of these failures involve incremental and subtle deterioration. Senegal, for example, retained the same president and superficially the same institutions, but President Macky Sall was reelected in 2019 only after jailing his two most popular challengers and then imposing a controversial new electoral law that narrowed the remaining field of opposition candidates to the smallest in three decades. The assaults on constitutional principles have been more brutal in the Philippines, but they have produced a similar effect. The military did not overthrow the elected government (as it did in Egypt in 2013 and Thailand in 2014). The elected president, Rodrigo Duterte, did not suspend the constitution or close down the Congress. Indeed, he scored a breathtaking victory in May 2019 midterm elections, winning all twelve of the Senate seats at stake—in a political context that could no longer be called democratic.

“Coups” of the officially declared sort are not generally how democracy dies these days. Rather, death occurs step by step, through the steady degradation of political pluralism, civil liberties, and the rule of law, until the Rubicon has been crossed as if in a fog, without our knowing the precise moment when it happened. Yet the outcome is the same as it would be if democracy had succumbed to a sudden swift blow: Opposition parties, civil society, and independent institutions find themselves within a system where it is almost impossible to depose the ruling individual or party through free elections; where there is no longer anything close to a level playing field; and where criticism of the president and efforts to check his arbitrary power can be dangerous as well as futile.

During 2019, at least five more countries fell out of the ranks of the world’s democracies. The most significant was the Philippines, the world’s thirteenth-largest country and a longtime strategic ally

of the United States. Opposition media have been shut down and intimidated; Duterte's fiercest critics on the Supreme Court and in the Senate have been ousted and jailed; the Supreme Court has been politicized to serve the president's political aims; other independent leaders of accountability institutions have been threatened, hounded, and denounced; discredited figures from the authoritarian past have been rehabilitated; and election anomalies have grown more common. President Duterte and his allies are steadily subduing all countervailing power centers and using the law as a weapon against political opponents. Meanwhile, an estimated twelve thousand Filipinos have been killed by extrajudicial means in Duterte's "war on drugs." Sadly, democrats in civil society and the party system have been too weak, divided, and under-resourced to mount much resistance. With the demise of Philippine democracy, only six of the world's fifteen most populous countries (India, the United States, Indonesia, Brazil, Japan, and Mexico) are now democracies. In most of these, the trend has been toward growing concentration of power in the executive at the least, and often toward more full-blown illiberal populism.

With the United States and Europe distracted if not apathetic, democracy has continued to erode in Latin America and Africa. Danie Ortega met with remarkably little resistance from the United States as he crushed opposition parties and civil society in Nicaragua and coasted to a third consecutive term as president in 2016. Why? Because his second run at authoritarianism (unlike the first, made in his earlier incarnation as a Sandinista rebel) did not mobilize revolutionary antagonism to the United States, the local business community, or the Catholic Church. Instead, Ortega reinvented himself as an old-fashioned caudillo, who merely sought to give himself, his friends, and his family (including his wife, the vice-president) a chance to loot the country. In Bolivia, years of escalating erosion of democratic norms took a more blatant turn in 2019 as the economy grew weaker and resistance to the rule of President Evo Morales surged. Morales, first elected in 2006, ran for a fourth term in 2019 despite having lost a referendum held three years earlier on his right to do so. He then claimed a first-round victory in a highly disputed October 2019 election, which the Organization of American States condemned as marred with irregularities. Amid widespread street demonstrations and under military pressure, President Morales resigned on November 10, leaving the future of the political system uncertain. In Guatemala, a right-wing former director of prisons won the presidency in August 2019 with only 42 percent turnout. His victory followed the disqualification of the most serious opposition candidate, a former attorney general and anticorruption crusader who had opposed the incumbent president's closure of a UN-backed commission seeking to end corruption and impunity.

Few outside Senegal complained when Macky Sall narrowed the electoral playing field to a set of candidates that would ensure him a comfortable victory. In Benin, the first African country to democratize after the end of the Cold War, President Patrice Talon gradually turned the screws on civic and political pluralism after his election in 2016. Following the playbook of elected autocrats from Russia's Vladimir Putin to Hungary's Viktor Orbán to Turkey's Recep Tayyip Erdogan, Talon shut down opposition newspapers, arrested prominent critics, and imposed new electoral rules that made it almost impossible for his opponents to win office or even run for parliament. After an opposition boycott of the 2019 parliamentary elections, human-rights violations escalated, Talon's leading opponents fled into exile, and Benin went from an African success story to a harsh autocracy, with scarcely any protest from Western democracies.

Neutering Democratic Institutions

None of these defections from democracy were heralded with martial music, tanks in the streets, or presidential broadcasts suspending the constitution. Instead, elected presidents (or prime ministers, such as Sheikh Hasina Wajed in Bangladesh) have managed to neuter or take over the institutions meant to constrain those—courts, prosecutors, legislatures, mass media, oversight and regulatory agencies, electoral administrations, and the like. Once conquered, these institutions are then deployed as weapons against opponents. Eventually, a pall of fear and resignation descends over the political arena. Opportunists in politics and civil society join the autocrat's bandwagon to sustain their careers, to enrich their families and cronies, or simply to stay out of harm's way. A

dwindling band of courageous democrats fight the good fight, but they find themselves outgunned and on treacherous ground. These liberals, based among the educated class of urban, cosmopolitan elites, cannot match the authoritarian populists' ability to speak the language of rural and less educated constituencies, to manipulate the symbols and grievances of identity politics, and to stir nationalist fears and ambitions.

Then, too, once authoritarian populists win power, they have the national treasury at their disposal and can use it to dispense patronage, enrich loyal crony capitalists, and expand welfare payments in order to solidify the support of swing constituencies. In EU member states such as Hungary, Poland, and the Czech Republic, populist strongmen have also taken advantage of a US\$65-billion-a-year system of agricultural subsidies that is "shrouded in secrecy" and "warped by corruption and self-dealing." Populists have reaped hundreds of millions of dollars in EU transfers, with broad discretion as to how the funds are spent and little accountability; billionaire Czech prime minister Andrej Babiš collected \$42 million for his companies in 2018.

Despite the steady downward trend, there continue to be glimmers of hope that underscore the universal appeal of democracy, human rights, and good governance. In December 2018, Armenia held democratic parliamentary elections following a grassroots "Velvet Revolution" that evicted a semi-authoritarian ruler in this post-Soviet country despite its vulnerability to Russian pressure. Eight months of popular protests last year forced the military to depose Sudanese president Omar al-Bashir in April 2019, after three decades of corrupt and murderous rule. A three-year transitional power-sharing arrangement between the military and the popular Forces of Freedom and Change has opened a transitional process that could restore democracy. Mass prodemocracy protests similarly toppled decrepit Algerian dictator Abdelaziz Bouteflika in April 2019. Months of valiant (though not always nonviolent) popular protests forced Hong Kong's government to withdraw an odious bill that would have made it possible for any Hong Kong citizen to be extradited to mainland China, with no legal protections. Then, in the November district-council elections, prodemocracy forces tripled their seats and won majorities in seventeen of the eighteen councils, dealing the pro-Beijing parties a stunning defeat. None of these four mass movements, however, has yet produced a democracy (though Armenia is on the brink of it), and all must labor to defy the discouraging record of mass protests failing to produce democratic transitions in such deeply authoritarian countries as Egypt, Iran, Venezuela, and Zimbabwe.

The Illiberal Populist Wave

The predominant trend thus remains decidedly negative. Much of that negative momentum has been generated by one force: populism. Elected rulers and parties are diminishing democracy with populist appeals that polarize the polity and marginalize their opponents, whom they depict as self-serving, effete elites or undeserving minorities who do not understand or care about the deserving majority. This logic pits the leader and his party against the corrupt politicians and "deep state" who, if they are not bending to the will of the populist leader, by definition are not serving the people. This brand of populism is illiberal in its demonization of minorities and critics as well as in its preference for plebiscitary mechanisms over the filters and deliberation of representative democracy. But it is also antidemocratic in its hostility to political pluralism, its aspirations for political hegemony, and its tendency to exalt the leader above all other democratic actors and institutions. The danger of illiberal populism, intrinsic to large-scale democratic politics, was recognized from the outset by Alexander Hamilton in Federalist 1: "Of those men who have overturned the liberties of republics, the greatest number have begun their career by paying an obsequious court to the people; commencing demagogues, and ending tyrants." That neatly sums up the career trajectories of autocrats such as Hugo Chávez in Venezuela and Recep Tayyip Erdogan in Turkey. In the past two years, the percentage of the world's population living in democracies has dipped below fifty for the first time since 1993. That it has not fallen much lower is due to the persistence of democracy in India, home to more than one-sixth of humanity. Since Narendra Modi was elected prime minister in 2014, India has had stronger government. But that government has grown less and less respectful of dissent and minority rights. With the landslide

reelection of Modi and his Hindu nationalist Bharatiya Janata Party (BJP) in the May 2019 parliamentary contest, Indian democracy has entered a new era of peril. The story bears a close resemblance to many other cases where illiberal populists rode to power on a fierce backlash against governments seen to be feckless and corrupt, even if they were also relatively tolerant and democratic. In come populists pledging to clean out the Augean stables, serve the real people rather than a careerist ruling elite, promote the dominant religion and culture, and make the country great again. This narrative can play well politically for quite some time, but at a significant cost to freedom. Even during Modi's first term, the quality of Indian democracy gradually eroded, with growing discrimination and violence against India's Muslim minority—whose nearly two-hundred-million members account for around 15 percent of the population but less than 5 percent of the members of Parliament. Prominent critics of the BJP have been detained, legally harassed, and in a few cases assassinated for their dissenting views. ... India's "once-feisty" press has been "largely cowed" due to political pressure and legal intimidation directed at critical media enterprises, as well as violence against journalists. Universities are under pressure to avoid what the BJP chief minister of India's largest state called "antinational activities," a designation that allows the application of draconian sedition laws. And critical independent institutions—the Election Commission, the Reserve Bank of India, the Supreme Court, and law-enforcement bodies—are coming under pressure from Modi's government. Most disturbingly, on 5 August 2019, with relatively little parliamentary debate, the BJP government terminated the special federal status of Jammu and Kashmir (India's only Muslim-majority state), dismissed its elected government, and imposed direct central-government rule. As of this writing in December 2019, Kashmir festers in a state of fear and occupation, subject to recurrent internet and telecommunications shutdowns. A recent UN report also notes mounting arrests of "political figures, journalists, human rights defenders, protesters and others."

Distinguished analysts fear that such actions are transforming India into a highly illiberal and majoritarian democracy. Yet the trajectory of chauvinistic populism elsewhere—especially where it has been laced with claims to religious legitimacy—does not inspire confidence that Indian democracy's downward path will level off at "illiberal majoritarianism." The incremental erosion of liberal norms and institutions does not cease of its own accord. Rather, it must be met with countervailing pressure from political actors, civil society, and what remains of independent institutions. In some circumstances, international pressure can also make a difference—but India is too big and too proud to allow much scope for that. In the absence of effective countervailing pressure from within, the world's largest democracy will be at risk of failing altogether. A similar story is now unfolding in Poland. Like the BJP a few months earlier, Poland's incumbent populist party (Law and Justice, or PiS) returned to power in October 2019 with an absolute majority of seats in parliament. Like the BJP, Law and Justice took a share of votes that fell well short of a majority but was nevertheless impressive in a fragmented field. Like the BJP, PiS waged a potent populist campaign built around religion, tradition, and resentment of liberal elites, while also expanding welfare payments to financially pressed constituencies. The "mix of faith, financial largess and aggrieved nationalism" played well with "the country's rural heartland" and small towns bypassed by India's economic boom. And like the BJP, PiS seeks something more than the authority to govern; it wants political and cultural dominance. Since winning power in 2015, PiS has aggressively transformed state media into an instrument for government messaging. In the 2019 election campaign, PiS pounded away at familiar right-wing populist themes: identification with the real and forgotten people, condemnation of liberal elites who threaten traditional families with a gay-rights agenda, and fear of migrants bringing rape and other crime. The election results place PiS in a position to resume its pressure on independent media and the courts, and thus on liberal democracy. But Poland's democrats were able to deny the ruling party control of the upper house of parliament, and hence the unilateral ability to amend the Polish constitution. And in contrast to the Indian case, liberal democrats in Poland are backed by meaningful if inadequate external pressure from the European Union. The EU has brought its diplomatic and financial weight to bear on Poland and, much too belatedly, on Hungary, seeking to rein in their assaults on the media and the

courts. More pressure will be needed to check the authoritarian ambitions of Poland's ruling populists.

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Causes

The structural factors conducive to democratic failure are well known. In particular, democracies are much more likely to die in poor countries. As Adam Przeworski and his colleagues reported in these pages a quarter century ago, with each step down the ladder of per capita income, the probability of a democracy dying in any given year increases. The democratic fragility that comes with poverty can be managed, but it requires avoiding economic crisis, maintaining brisk economic growth with low inflation, and reducing income inequality. While Przeworski and his coauthors found that parliamentary systems are more conducive to democratic survival, Ethan Kapstein and Nathan Converse found the opposite. They concluded that the more consequential factor is the strength of constraints on executive power. Democracies with weak constraints on power are dramatically more likely to break down.

These and other studies stress another consequential factor: the international environment. One major theme of Huntington's seminal study of the third wave of democratization was the importance of international factors, especially the democratic resolve, power, and example of the United States. A favorable international environment—in particular U.S. and European commitment to supporting democratic change and pressuring or sanctioning authoritarian regimes—was key to the third wave's strength and endurance.

In the early period of the third wave—from the mid-1970s up until the late 1980s—democracy spread mainly to countries with favorable conditions. These were countries in or beyond what Huntington called the “zone of transition,” with some claim to at least middle-income status. Moreover, many of these countries had been democracies before, or at least they were in regions—Western Europe, Latin America, East Asia—that had either many democracies or a strong linkage to the United States. Then, with the fall of the Berlin Wall, democracy spread to former communist states and to many of the poorest states in the world, principally in Africa but also in Asia. European and U.S. pressure, support, and conditionality were crucial to holding these democracies in place. New democracies knew that generous flows of Western aid, investment, and diplomatic support depended in part on them respecting democratic norms—free elections, presidential term limits, judicial autonomy, and space for independent media and civil society organizations. Non-democracies knew that they would fare better with the West if they at least gestured toward these democratic values and restrained their authoritarian tendencies.

In the former communist states of Central and Eastern Europe, Western democracy assistance and the conditioning of EU membership on adherence to liberal-democratic norms powerfully reinforced homegrown democratic movements. All this international pressure helped to shore up such constraints on executive power as independent judiciaries, parliaments, media outlets, and civil societies—precisely the sectors that aspiring autocrats target. In most low-income and even many middle-income new democracies, the rule of law was still weak, strained by frequent attempts at using public power to corruptly benefit the chief executive and his family, friends, and party. But there were forces at work trying to improve the rule of law, especially by exposing and punishing corruption.

Then, several things changed in the international environment. First, the Western democracies became preoccupied with the Global War on Terror and other “hard” security and economic interests. Security concerns had heightened after the 9/11 terror attacks, and they grew steadily in importance with the rise of radical Islamist groups in East and West Africa and Southeast Asia. More recently, concern with stemming the tide of immigration, especially from the Middle East and Africa, has shaped the foreign policies of European countries. Second, China and Russia emerged

as powerful competitors for international influence. China became the largest builder of physical infrastructure in developing countries, as well as the largest provider of development assistance (if one ignores the extent to which this “aid” was delivered through lending at commercial rates, creating a fearsome debt trap in many countries). In addition, both China and Russia were developing tools of sharp-power projection to penetrate, sway, discredit, and undermine democracies while stifling or muddying criticism of their own repressive systems. By the early years of the twenty-first century, the democratic West was not the only game in town; autocrats had alternatives, and when they touted this fact, the Western democracies grew reluctant to call them out.

Around 2004–2005, the global dynamic shifted in another way. When the George W. Bush administration invaded Iraq in 2003 and did not find evidence of weapons of mass destruction, it sought to justify the costly invasion with a massive, high-stakes effort at democratic nation-building. The result was a prolonged period of violent conflict in which the formal introduction of democratic institutions was undermined by insurgency and civil strife. This tarnished the idea of “democracy promotion,” as well as perceptions of the American democracy’s effectiveness and ability to realize its will abroad. The very limited success of the parallel U.S. effort in Afghanistan further contributed to the backlash. No U.S. president in modern times has evinced a stronger and more deeply felt commitment to promoting democracy and freedom around the world than George W. Bush. But even he began to retreat in the face of global realities, including the surprise electoral victory of the terrorist group Hamas in the 2006 Palestinian legislative elections (which the Palestinian National Authority held under heavy pressure from the Bush Administration).

U.S. power and standing in the world suffered another blow in September 2008, when deepening disarray in the subprime-mortgage market in the United States erupted into the worst global financial crisis since the Great Depression. This was a crisis bred by greed and the failure of government oversight in the United States, and it added to the swelling global cascade of doubts about the model of liberal democracy plus market capitalism. All these shocks spawned a crisis of confidence within the democratic West and hastened its pullback from the most forward-leaning days of democracy promotion—a trend that has become particularly pronounced under the current U.S. president. It is not surprising, then, that the remarkable thirty-year period of democratic expansion drew to a halt around 2006, as these global developments were dramatically changing the balance of international power and perceptions. Adding to the mix were several deeper trends driven by technological change (especially the revolutions in information technology and artificial intelligence), the uneven distribution of the gains from globalization, and the weakening of government regulation and social policy. Inequality was dramatically increasing, and a gulf was opening up in advanced industrial democracies between the younger, more educated, cosmopolitan, and technologically sophisticated populations of the cities and the older, less “globalized” populations of rural and small town areas. In the United States and many European democracies, this provided rich social fodder for appeals by illiberal populists and a sharper fault line for deepening political polarization. Social media—initially seen as liberating tools of democratic expression and mobilization—increasingly proved to be explosive instruments for fanning grievances and intensifying polarization. They also proved highly vulnerable to Russian efforts to manipulate public sentiment, spread disinformation, and amplify social divisions. These long-term trends were crystallizing even as democracies were reeling under the impact of the abovementioned short-term shocks.

Remedies

Given these unfavorable trends, perhaps the surprising thing is that we are not (yet) seeing a clear reverse wave of democratic breakdowns. Perhaps we are on the precipice of such a wave. But another possibility is that elected leaders are still constrained by public opinion in their countries. While popular support for democracy has been eroding somewhat in Asia and Latin America, majorities in most countries still prefer a democratic form of government—broadly and overwhelmingly so in Africa. Budding autocrats such as Erdogan, Orbán, and Duterte may initially mobilize considerable popular support behind their political projects, but ultimately leaders have to

deliver. Even populists can lose the support of “the people” when they are no longer able to deliver economic growth and the appearance of clean government, and when their corruption and other failures can no longer be concealed by fear-mongering. Thus, there is still an opportunity to pull the world out of this slump and to renew democratic progress. What is most needed is democratic conviction and resolve. The advanced democracies, above all the United States, must shake themselves loose from their current political malaise and return to first principles. Whatever its failings, democracy is still the best form of government for protecting human rights and improving human well-being. It is in the U.S. national interest to return to a foreign policy in which this fact is clearly stated and clearly informs our diplomacy, investment, and aid. Such a policy can make a real difference, but this will happen only if we are ready to call out and condemn departures from democratic norms. After President Yoweri Museveni (then already in power for 31 years) sent troops into Uganda’s Parliament in September 2017 to beat up legislators who were resisting a constitutional amendment that would allow him to run for reelection indefinitely, a prominent Ugandan human-rights activist lamented to me: “The whole region is in a democratic recession because of the loud silence from their Western allies.” If authoritarian backsliding and impunity are to be slowed and ended, the Western democracies must recover their voice. And they must use it to defend embattled democrats, free elections, and civic space.

But that is not enough. We also need a renewed effort, using a variety of technologies new and old, to promote the ideas and values of democracy, along with an understanding of democratic institutions. In this new era of geopolitical competition, China, Russia, and Iran are actively working to promote their authoritarian values and to fan doubt and suspicion about democracy. But these are decadent, corrupt, repressive systems that do not offer a compelling alternative. China’s once meteoric economic growth rate has slowed by at least half, and its political “model” involves comprehensive surveillance of every citizen and the oppression of religious minorities such as the Muslim Uyghurs of Xinjiang. We can win a global campaign to counter authoritarian propaganda, but we must reinvest in our capacity to wage this battle. As Edward R. Murrow, the award-winning former journalist, and U.S. Information Agency director, stated in 1963, “Truth is the best propaganda and lies are the worst. To be persuasive we must be believable; to be believable we must be credible; to be credible we must be truthful.” But to be any of these things, we must be in the arena with the resources and the new digital-communications technologies needed to reach people in both emerging democracies and authoritarian regimes. There are many things that we must do to counter Russian and Chinese malign influence around the world and to push back against creeping authoritarianism. These include modernizing our voting and voter-registration systems to guard against foreign digital interference; applying the Global Magnitsky Act to impose targeted sanctions on officials responsible for serious human-rights violations, including disruptions of democracy; vigilantly monitoring Beijing’s efforts to penetrate our universities, media, and think tanks, to control expression in these forums, and to misappropriate technological innovations and digital data; and undertaking a new generation of legal initiatives to counter the kleptocratic flows of ill-gotten wealth washing onto democratic shores.

But all this can work only if we repair, reform, and improve our own democracies. There are promising political reforms, such as ranked-choice voting, that can help to reduce polarization by generating incentives for moderation and compromise. The first imperative, however, is to rededicate ourselves to the idea that freedom and democracy are transcendent values which require from every citizen a commitment higher than allegiance to any political party or electoral outcome.

Bruce Gilley, “Is Democracy Possible?” in *Journal of Democracy*, Vol. 20, No. 1 (2009). Footnotes omitted.

[Gilley asks a seemingly ill-thought but very insightful question regarding the realizability of democracy in a world where the number of non-democratic systems is significant with no signs of

transition to democracy in sight. Think of most of Africa where, despite the emergence of one liberation movement after another, the same old authoritarian regimes rule in succession one after the other. The critics of democracy however look at more fundamental issues such as the apparent impossibility of making public choices, the “ignorant public” that are incapable of making intelligent choices, etc. Gilley argues that criticisms against democracy as infeasible and unworkable are misguided.]

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As David Spitz wrote in his 1949 classic *Patterns of Anti-Democratic Thought*, critiques of democracy have long come in two varieties. The first questions democracy’s feasibility, while the second questions its desirability. Dissenting claims about the desirability of democracy are often grounded in personal dissatisfaction with democratic outcomes: Rightists decry the debasement of virtue or the purloining of property, for example, while leftists denounce the repression of women or the poor, or the degree to which private property is protected. This is all fairly easy to dismiss as routine complaining so long as those outcomes remain within some limits, which they usually do. Democracies tend to produce polities that are stabler, wealthier, fairer, more innovative, and better at respecting rights than any available alternatives.

Dissenting claims that democracy is infeasible are more corrosive, however. They threaten to weaken the very ideal of democracy—the notion that citizens, situated as political equals, can exercise common control over political power. Democracy, the prophets of infeasibility contend, is based upon a Great Lie, or several Great Lies. The sooner we wake up to this, they add, the sooner we will be able to move on to some better age, untrammelled by democratic delusions. When compared to the promised benefits of these alternatives—more prosperous economies, scientific policies—actually existing democracy can appear shabby indeed.

In many cases, critics of democracy’s feasibility are moved by dissatisfaction with democracy’s outcomes. A government that does not rule for the people must not be a government by the people. Critics of both right and left are prone to rationalize their discontent with democratic outcomes by mounting sophisticated critiques of the process itself (at least until those outcomes come back into line with their own views, at which point the procedural constraints on the “silent majority” are said to have magically vanished). But this tactical shift to the question of democratic feasibility is harder to unmask as mere ire at democratic results.

As a general rule, feasibility critics on the right focus on the unwillingness or inability of citizens to take up the heavy burdens of self-rule, or on the logical problems of translating individual preferences into public choices. Critics on the left focus on differences in power and resources, or on elites’ efforts to fool or mystify the people. Critics on the right, in other words, are suspicious about all citizens while critics on the left are suspicious about only some of them. The historical trend has been for such criticisms to migrate from the right (Plato through Burke) to the left (Marx through Chomsky). But in the past decade, the critiques traditionally offered from the right have enjoyed a resurgence, and indeed something of a boom.

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Unpublic Choice

Feasibility critiques of the right long aimed a good deal of analytical throw weight at the aggregate level of democratic policy making, often under the rubric of “public-choice theory.” Accepting the assumption of rational and informed citizens, public-choice theory asks whether it is possible to take a set of individual preferences or judgments and translate them into a public policy that reflects those views.

In 1785, the Marquis de Condorcet noticed that when public preferences are fairly evenly spread across three choices, the option that wins the most votes might be inferior to another one in the minds of most voters—Margaret Thatcher’s Conservative victory over a divided opposition in 1983 is a commonly cited example. In modern times, political scientists such as William H. Riker have had a field day devising examples where “majority rule” however conceived does not lead to a “popular” outcome (or in the jargon of the field, a “Condorcet winner”). Democracy, the reasoning goes, is thereby exposed as meaningless, and struggles for it as misconceived. Riker wanted democracy, which he derided as “populism,” replaced with rule by virtuous philosopher-guardians, who were supposed to spearhead a system that he misleadingly called “liberalism.” Right-wing East Asian critics of democracy from Singapore’s Lee Kuan Yew to China’s neo-Confucianist Kang Xiaoguang are heirs to Riker’s elitism. So are such Western critics of “illiberal democracy” as journalist Fareed Zakaria and political scientist Jack Snyder.

Not everyone who studies the problems of public choice concludes that democracy is a sham, of course. Indeed, most of the important work in this field has been done by scholars searching for ways to minimize rather than eliminate the difficulties that can arise when many individuals try to arrive at a single decision. Yet the challenges of public choice have driven many to despair, giving rise to the conclusion that democracy is impossible and should therefore be abandoned. In his important 2003 work *Defending Democracy*, Gerry Mackie considers classic “problems of public choice” and finds that upon closer examination they are better described not as problems inherent in the decision-making process itself, but rather as dilemmas of competing values or preferences that reflect the complexities of the real world in which people and groups must make their choices and take their chances. Moreover, determines Mackie, few of the problems touted by public choice theory actually erupt in practice. Logical possibilities conjured by the academic mind are not in the same as empirical probabilities in real-world democracies. While outcomes never align perfectly with the common will, they are seldom much at odds with it either, at least in wellfunctioning democracies. Agenda-setting and manipulation, for instance, are rare in real-world politics because all players tend to be well aware of—and on guard against—such tactics. When manipulations do occur, fairly simple institutional fixes that improve rather than reject democracy are capable of solving the problem.

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The Ignorant Public

More recently, right-wing critics of democracy’s feasibility have returned to an older concern, the quality of citizens themselves. In particular, the hottest claim today is that citizens are too ignorant, irrational, or both to rule themselves. Democracy is impossible because the *demos* are defective. “Idiocracy” and “dumbocracy” are the favorite terms of abuse. In Thailand, middle-class protestors who backed the 2006 military coup and now agitate for weighted-voting rules that would disenfranchise most of their country’s rural dwellers and hand vast powers to unelected experts are willing to say openly that “it’s too easy to manipulate poor people.”

The public-ignorance critique, which has been led in the United States by the Texas-based journal, *Critical Review*, says that citizens lack even the minimal information needed to make intelligent choices. Commentators in this tradition like to make sport of citizens’ ignorance regarding basic political facts such as the identity of their local legislative representative or where a certain country is located on the map. The argument is not that citizens should be better informed so that democracy will work better, but that any imaginable level of citizen information is still too low for democracy to be possible in our day and age. The U.S. jurist and legal scholar Richard Posner, for example, argues in his 2003 book *Law, Pragmatism, and Democracy* that since people are and always will be “basically ignorant” about politics, U.S. democracy should never aspire to be anything other than a means of rotating elites. Similarly, George Mason University law professor Ilya Somin says that ignorance makes claims of democracy untenable because citizens are unable to choose the policies or leaders that best fit their interests.

Like many antidemocratic critiques, the public-ignorance critique has a long pedigree—in this case going all the way back to Plato. Its more enduring modern formulation began with Phillip Converse, who in a 1964 paper called “The Nature of Belief Systems in Mass Publics” argued that most people have only half-baked attitudes subject to easy manipulation by informational assault . .

As Converse’s descent into unintentional self-parody hints, the public ignorance critique has a paradoxical quality. People may well count it as one of the blessings of life in a free and stable society that they face no urgent need to learn about politics. Moreover, in a truly democratic society where each person’s voice counts equally, the impact of a single voice is so slight as to make investing in political learning seem irrational. The democratic reply to this is that fairness demands that beneficiaries of a free society devote sufficient attention to politics to ensure that leaders and policies continue to aim at the common good, somehow conceived.

The word “sufficient” is key: How much and what kind of information do citizens need in order to do their civic duty? And what exactly does it mean for citizens to “exercise” political power in an era in which government has grown in size and complexity such that even heads of state can be at best only generally aware of what occurs within the states they head?

. . . Citizens need to know—and often do know—whether or not their local roads are being repaired, their neighbors harassed by police, or their taxes rising. Citizens, in other words, can and do carry out their democratic mandates, even if they cannot list all the constitutional powers that subnational governments enjoy in their country. From this perspective, being “well-informed” may be easier than antidemocratic critics allow.

In addition, being “well-informed” is not the same as agreeing with the views of some academics. In an era of multibillion-dollar media industries all jostling to be seen as “fair” and “objective,” not to mention research universities and policy think tanks generating extensive research, valid information is not in short supply. Even the “attack ads” so often decried as a feature of U.S. politics often contain valuable information, as John Geer has pointed out. Highly educated and amply informed people still disagree on many basic issues. Complaints about “public ignorance” may mask an inability of critics to come to terms with the fact of complex moral and empirical disagreement.

* * *

Even where citizens patently do lack the information needed to make rational choices linked to their self-identified interests, they may be able to rely on the opinions of people who make it their business to be well informed. Experts, groups focused on particular issues, and political leaders can all act as “shortcuts” that allow citizens to become quickly informed by proxy, in essence delegating the job to trusted others. Robert Erickson, the coauthor of a book that shows how U.S. democracy works well in tracking public opinion, argues that even if people should happen to become better informed, U.S. public policies would not change much. Signals, in other words, are effective substitutes for personal learning.

Where ignorance persists, it is still not clear that this means democracy is a failure. A well-known finding is that if 95 percent of the population is ignorant and votes randomly, the better-informed 5 percent will still be the deciding voters, leading to the best choice most of the time thanks to the “wisdom of crowds” described in James Surowiecki’s 2004 book of the same title. In a two-party system such as the one found in the United States, that better-informed (and therefore “swing”) vote can be critical to electoral success.

The public-ignorance thesis, then, is false or else true but not threatening to democracy. As such, this critique does not come close to challenging the democratic tenet that citizens “exercise” collective political power in the sense of taking actions that reflect credible facts about the political

world. Claims of public ignorance are certainly more provocative than those of unpublic choice. But they quickly reveal problems of disagreement more than ignorance.

The Irrational Public

This leaves the claim that citizens are irrational, or cognitively incompetent, as the final charge of infeasibility from the right that could doom the democratic project. Such a charge verges most nearly on the misanthropic since it concerns inherent rather than remediable defects in the demos. In new democracies, we are told, citizens are too tribal or too easily swayed by demagogues to exercise self-rule. In established democracies, citizens simply refuse to act logically. If this is so, the “miracle of aggregation” that underpins the wisdom of crowds must fail because citizens are not merely ignorant and given to believing random things, but are actively irrational and persistently believe things that make no sense. The rational and well-informed 5 percent is swamped by the crazed 95 percent.

The most recent and public example of this line of argument is Bryan D. Caplan’s 2007 book *The Myth of the Rational Voter*. Columnist Nicholas D. Kristof of the *New York Times* called it “the best political book this year,” while *The Economist* called it “a treat.” It is probably the most widely read antidemocratic work of the post–Cold War era. It has found a wide audience beyond the United States. Its enthusiastic readers include elites in China who have long been fond of arguing that their country’s peasants are both ignorant and irrational.

Caplan, who is a professor of economics at George Mason University, argues that citizens systematically vote for economic policies which make them worse off (and that politicians duly heed their wishes), not because citizens are ill-informed but because they are irrational (or “boneheaded” as he wrote in one essay based on the book). As evidence, Caplan cites studies in which voters are systematically at odds with economists concerning the correct economic policies in areas such as trade, regulation, employment, and taxes.

It is far from clear that the mistakes which Caplan purports to identify are in fact errors. For instance, Caplan believes that voters irrationally support minimum-wage laws despite the role that such laws play in worsening the plight of the poor by making jobs more scarce. Although economists generally concur that minimum-wage laws decrease employment, there is no agreement on the magnitude of such decreases, which many studies show to be minimal. If so, then citizens who are also concerned about worker dignity and overall income distribution (taking into account unemployment benefits) may quite rationally decide to support minimum-wage laws. In this case, Caplan’s claim of irrationality is glossing over an area where the rational truth is far from evident. The same goes for his arguments about corporate regulation and trade barriers.

Caplan is right that voters do make some patently irrational mistakes. But their impact is limited, especially in the United States. Caplan struggles to unearth the ravages that democracy should, by his telling, have wreaked upon American economic policy. His results do not impress. He notes, for example, that most U.S. citizens believed that the North American Free Trade Agreement (NAFTA) would worsen their living standards, yet President Bill Clinton signed it into law anyway (not exactly an example of a politician slavishly following irrational citizens). When regulation becomes inefficient it is usually reformed, whatever its popularity. Irrational tax breaks for the ethanol industry are being challenged by state governments in the United States. Democracy is self-correcting in a way that alternatives are not. Caplan notes the “pessimism bias” of people thinking things are worse than they really are. But the same logic applies to his own pessimism about the depredations of democracy.

Perhaps the greatest weakness of Caplan’s critique, however, concerns the meaning that he assigns to rationality. Economists often operate on the presumption that some narrowly defined material self-interest is the only rational basis of choice (a view with its roots in the political economy of the

Scottish Enlightenment and later, Marxism). Yet emotion, community, fairness, freedom, and dignity are typically no less important, especially in wealthier societies such as the United States where increased material well-being often has a steeply declining utility. Caplan, then, forgets or dislikes the variety of human motives, especially in wealthy, postindustrial societies. As with claims of citizen ignorance, being rational is not the same thing as agreeing with the views of certain intellectuals. The rationality critics have not thought hard enough about what it means for a pluralistic society to be truly democratic, or more accurately for a democratic society to be truly pluralistic.

All three lines of right-wing feasibility critique can thus be refuted. Democracy, or rule by the people, can be defended as the first-best system—rule for the people. But these critiques will persist and in some instances may be proven all too true. After all, people can easily be uninformed or boneheaded, and sometimes democratic outcomes satisfy no one. Democracy's defenders can then fall back to the Churchill trench, resisting not this or that critique of the democratic ideal, but instead denying the superiority of any proposed alternative. Can this battle be won as well?

Those who adopt "rightist" critiques of democracy typically call first for a reduction or elimination of democratic participation. If citizens are the problem, out of the judgment seat they must go. Public-choice critic Russell Hardin argues that "[t]he more of these issues we can get off the collective agenda, the better for making collective choice coherent." Public-ignorance critic Jeffrey Friedman writes that "[i]f the public doesn't know what it's doing politically, why should it have the power to do so much?" And public-irrationality critic Caplan wants to "reduce or eliminate efforts to increase voter turnout" since that would discourage the uneducated and the poor from voting.

Democracy's Divided Opposition

It is notable that this first step of departicipation is the polar opposite of the prescription demanded by left-wing critics of electoral democracy. They want citizens to be more empowered, to "take back power" from nefarious actors such as lobbyists, corporations, political operatives, and the media. This is a reminder that even when it is up against the ropes, democracy often remains standing because its opposition is so divided.

Is departicipation even feasible in a democratic age? Given the popularity of democracy, is it not more cost-effective to educate and inform rather than try to disempower citizens? The legitimacy and thus stability of even the "correct" policies delivered by other means of rule might be gravely undermined if unceremoniously taken out of the hands of voters. Given that most of these critics see democracy as a means to an end, the danger of these ends being undermined by popular discontent is a serious problem. Many critics recognize this, and argue that departicipation should come only through democratic consent. But why would supposedly ignorant, irrational citizens do the putatively well-informed, rational thing by disempowering themselves?

Let us suppose for the sake of argument that it would be relatively easy to convince democratic citizens that it is a good idea for them to back voluntarily away from the exercise of political power. The sober arguments of these critics are exactly attempts at such persuasion, and they have certainly found a sympathetic audience that could broaden. Will the alternatives be less bad than democracy?

In place of democracy, these critics usually propose some combination of three things: markets, experts, and freely formed associations. A fourth proposal—giving the better educated or the wealthier more voting power—is less often heard these days, although arguably the appeal to experts is its close cousin. And it does crop up, as current events in Thailand show.

In many realms of social choice, there is little doubt that experts, markets, and free associations work better than democracy. Indeed, that is why most democratic countries already leave so much

in the hands of precisely these three forces. It is no small irony that the country on which the vast majority of democracy's right-wing feasibility critics have based their views, the United States, is the one where those prescriptions have been taken most seriously. The U.S. economy is one of the most liberalized in the world and delegates many complex decisions (some prodemocratic critics say too many) to institutions such as the Federal Reserve Board and the Supreme Court. Parties and governments with reputations to protect make sure they get key policies right even by ignoring public opinion (on issues such as NAFTA). Price controls have been unheard of since Richard Nixon, and free-trade agreements are nearly sacrosanct. In many ways, then, these critics are preaching to the choir. Their message would be more controversial, and possibly more germane, in "overmobilized" democracies such as France or the Philippines.

But markets, experts, and free association are not infallible. Indeed, the ongoing debate in most democracies is when to adopt them and when to nullify them. Markets in particular are easiest to judge because they are subject to many of the same problems that critics attribute to democracy. The delegation of U.S. health care to markets, for instance, leads to "public" choices that no one prefers, and is plagued by problems of citizen misinformation (especially about the likelihood and costs of care options) and irrationality (over insuring or underinsuring). In highly marketized Hong Kong, public decisions are made by a small group of property developers, prompting an ongoing struggle for democratic control there.

Experts and their political judgements, meanwhile, have come under sustained critique as being boneheaded themselves of late. Experts appear to be no better than non-experts at coming up with "correct" policies, and are subject to their own "spirals of conviction" about the right thing to do. Worse still, mistakes made by experts with unrestrained power tend to have higher social, environmental, and economic costs. Hapless citizens of many developing countries have suffered one wave after another of rule by economists, often with only wreckage to show for it. As Machiavelli wrote in his *Discourses*: "The defect[s] with which writers usually charge the multitude may also be charged to individual men, and particularly to princes . . . [In fact] the people are more prudent, more stable and more judicious than princes." As public-ignorance critic Friedman, after contemplating the problems with experts, ruefully concedes: "If the actual alternative to rule by the ignorant is rule by the doctrinaire, then modern democracy poses a true Hobson's choice."

Rule by free association, finally, can yield some truly democratic results, as one finds in the autonomous cultural spaces that minorities have created in many democratic countries. But the problem of political inequality inherent in such unstructured decision making can easily create a problem shared with markets and experts, an overweighting of the interests of the powerful. Free association—based land-use zoning in Houston, Texas, caused widely acknowledged environmental, economic, and social harm. The free association of fundamentalist Christian communities in Arizona, Utah, and Texas led to the spread of coercive polygamy.

None of these comparisons are easy, of course, and it may be that there is indeed greater scope for markets, experts, and free association in most democracies. But once one enters into this comparison, democracy is unlikely to be pushed aside completely, and indeed might expand its remit in a country such as the United States. It is surprising how rarely feasibility critics of the right point to any other country as an example of how things could work better.

Caplan's flippant dismissal of comparative analysis ("It beats life in the Middle Ages") ignores the many non-democracies that might serve as examples of his advice. Does it beat life in Singapore today, or the United States of the nineteenth century? Antidemocrats of the right typically want to avoid having to attack Churchill's trench, often arguing that the question of what might beat democracy is "far too complex to be settled here." Yet allowing the debate to be held on these terms is already a concession to the critiques of democracy as a first-best system. The least they can do is accept a vigorous debate on the alternatives.

It is hard to avoid concluding that, given the unalterable facts of pluralism and social complexity, democracy as actually practiced in most of the world's democracies is the first-best and therefore unbeatable means of political organization. It need not be defended as merely less bad than existing alternatives that might yet prove superior. The enduring challenge posed by democracy, then, is not just to strive to fulfill the radical implications of political equality and public control of politics, but to do so in the full knowledge that serious alternatives are wanting. This latter condition may be the most challenging of all, because it affords room for democracies to slip into complacency.

In some obtuse way, then, even the unfair and invalid cavilings of democracy critics such as those discussed here may play a constructive role. There is an almost functionalist sense in which democracies that are hampered by their inherent superiority produce critiques such as these just to keep themselves on their toes, shadow-boxing in the absence of any real challenger. To be forced to reckon again with the alternatives is to be reminded of why so many different peoples in so many different contexts have chosen democracy. If this functionalist logic is valid, then one would suppose that the virulence (and cleverness) of feasibility critiques will increase in proportion to the strength of a country's democratic commitment. The reason that these criticisms have multiplied with such fecundity in the United States may be that it is where the democratic ideal is strongest, and therefore the dangers of complacency greatest. It is also the place where, in any comparative sense, taking into account its huge and diverse population of 300 million, democracy works "pretty good." By grilling U.S. democracy about its peccadilloes, these critics end up saving it from backsliding. In an ironic way, then, they are democracy's benefactors. Unfortunately, the possible benefits for established democracies might be outweighed by the damage done to new and struggling ones, where authoritarian rule is still a very serious alternative.

It takes tolerance, a feel for context, and most of all a full understanding of the varieties of human motivation to see why feasibility critics of the right are so frighteningly wrong in their analysis of democracy. Democracy is possible not just because no one has quite worked out the details of the promised alternatives. Rather, it is possible for the simple reason that it is the one form of government which evolves constantly to ensure that it is possible. It is a self-correcting system in a way that others are not. And the reason, ultimately, is that the *demos* has chosen to make it that way—people decide to be democratic. In the final analysis, that is the most compelling evidence for the continuing possibility of democracy.

Questions and Discussion

1. While A. Sen says that democracy is a universal value and that in principle all states are fit for democracy, Bruce Gilley asks if democracy is possible at all. Discuss and evaluate these arguments.
2. Professor Sen admits that there are ostensible challenges to democracy as a universal value. What are the challenges he points out? Do you think he has made his points well that democracy is still a universal value in spite of these challenges?
3. How does Sen respond to the often raised argument that more authoritarian governments have grown more than the less authoritarian ones in the same span of time? Which argument do you find more persuasive and why?
4. Bruce Gilley argues against the detractors of democracy who raise many challenges, including the quality of the participation which they allege is undercut by an "ignorant public". Summarize his arguments against these challenges. What do you think about the challenges, some of which seem to be really tough?
5. Julius O. Ihonvbere likens the late 1980s and 1990s movements for democracy in Africa to the 1960s mass movements against colonialism in terms of initial enthusiasm and the dashed hopes of the masses. He raises a number of reasons for the problems most of which have to do with the political elites staffing both the opposition and the governing parties. What are the main

charges he levels against the elites? Do you agree with his arguments and findings? Do you see any parallel between the cases Ihonvbere explains and those of Ethiopia from the 1960s onwards to the present?

6. How Does Dahl's criteria differ from constitutional, substantive, and procedural standards for democracy that were outlined earlier by Tilly? Do you think that the fulfillment of Dahl's six considerations would make a given polity democratic?
7. Larry Diamond, observes in relation to the backsliding of democracy in recent years saying: "Coups" of the officially declared sort are not generally how democracy dies these days. Rather, death occurs step by step, through the steady degradation of political pluralism, civil liberties, and the rule of law, until the Rubicon has been crossed as if in a fog, without our knowing the precise moment when it happened'. Reread the excerpt from Diamond's article above. Do you agree with his analysis of the state of democracy from mid 2000s onwards? In this 2020 piece, Diamond also observes that democracies like India (under BJP) are also on a path to "illiberal majoritarianism" at the moment. What are the reasons that have led him to believe so? What actions does he suggest in order to arrest the descent into illiberalism? Do you think the current ruling party of Ethiopia, the Prosperity Party, has the capability to establish illiberal majoritarianism as BJP? Why or why not?
8. What does Diamond mean by neutering democratic institutions? Why does he say this is necessary? Does this explain what Ethiopian governments from the Derg era onwards do? Discuss the manifestations with your class. Diamond suggests some remedies to turn the apparent bad fortune of democracy around. What are those? Do you think they really work for societies like Africa? What do you suggest in addition or instead of those he proposes?
9. Earlier in his 1997 piece— "The Rise of Illiberal Democracy" (in *Foreign affairs* (Nov/Dec 1997, p. 22)—Fareed Zakaria warned that illiberal democracy "is a growth industry" and that it does not seem to be a transitional thing. It rather is here to stay as one variant of democracy. Thirteen years after Zakaria's piece Larry Diamond also confirms more threatening moves towards illiberalism. What are the main differences between liberal and illiberal democracy? What do you think should be done to reverse the advance of illiberal democracy and re-establish liberal democracy as the main form of democracy around the world?

THE THIRD WAVE OF DEMOCRATIZATION

In his now famous line of thought – the third wave – Samuel Huntington discusses the development of democracy in different parts of the world during the time he dubbed as experiencing the "third wave" of democratization. He briefly recounts the earlier waves and reverse waves of democracy, and explains the major factors that have significantly contributed to the coming about, and the timing of the third-wave transitions to democracy. He discusses the "domino effect" of democratization happening in some parts of the world engendering similar moves elsewhere but also that external factors must be matched by internal conducive factors for the snowballing effects to take hold in the latter.

Samuel P. Huntington, "Democracy's Third Wave," in *Journal of Democracy*, Vol. 2, No. 2 (1991). Footnotes omitted.

Between 1974 and 1990, at least 30 countries made transitions to democracy, just about doubling the number of democratic governments in the world. Were these democratizations part of a continuing and ever-expanding "global democratic revolution" that will reach virtually every country in the world? Or did they represent a limited expansion of democracy, involving for the most part its reintroduction into countries that had experienced it in the past?

The current era of democratic transitions constitutes the third wave of democratization in the history of the modern world. The first “long” wave of democratization began in the 1820s, with the widening of the suffrage to a large proportion of the male population in the United States, and continued for almost a century until 1926, bringing into being some 29 democracies. In 1922, however, the coming to power of Mussolini in Italy marked the beginning of a first “reverse wave” that by 1942 had reduced the number of democratic states in the world to 12. The triumph of the Allies in World War II initiated a second wave of democratization that reached its zenith in 1962 with 36 countries governed democratically, only to be followed by a second reverse wave (1960-1975) that brought the number of democracies back down to 30.

At what stage are we within the third wave? Early in a long wave, or at or near the end of a short one? And if the third wave comes to a halt, will it be followed by a significant third reverse wave eliminating many of democracy's gains in the 1970s and 1980s? Social science cannot provide reliable answers to these questions, nor can any social scientist. It may be possible, however, to identify some of the factors that will affect the future expansion or contraction of democracy in the world and to pose the questions that seem most relevant for the future of democratization.

One way to begin is to inquire whether the causes that gave rise to the third wave are likely to continue operating, to gain in strength, to weaken, or to be supplemented or replaced by new forces promoting democratization. Five major factors have contributed significantly to the occurrence and the timing of the third-wave transitions to democracy:

- 1) The deepening legitimacy problems of authoritarian regimes in a world where democratic values were widely accepted, the consequent dependence of these regimes on successful performance, and their inability to maintain “performance legitimacy” due to economic (and sometimes military) failure.
- 2) The unprecedented global economic growth of the 1960s, which raised living standards, increased education, and greatly expanded the urban middle class in many countries.
- 3) A striking shift in the doctrine and activities of the Catholic Church, manifested in the Second Vatican Council of 1963-65 and the transformation of national Catholic churches from defenders of the status quo to opponents of authoritarianism.
- 4) Changes in the policies of external actors, most notably the European Community, the United States, [and the Soviet Union].
- 5) “Snowballing,” or the demonstration effect of transitions earlier in the third wave in stimulating and providing models for subsequent efforts at democratization.

I will begin by addressing the latter three factors, returning to the first two later in this article. . . . The third wave of the 1970s and 1980s was overwhelmingly a Catholic wave.

Beginning in Portugal and Spain, it swept through six South American and three Central American countries, moved on to the Philippines, doubled back to Mexico and Chile, and then burst through in the two Catholic countries of Eastern Europe, Poland and Hungary. Roughly three quarters of the countries that transited to democracy between 1974 and 1989 were predominantly Catholic.

By 1990, however, the Catholic impetus to democratization had largely exhausted itself. Most Catholic countries had already democratized or, as in the case of Mexico, liberalized. The ability of Catholicism to promote further expansion of democracy (without expanding its own ranks) is limited to Paraguay, Cuba, and a few Francophone African countries. By 1990, sub-Saharan Africa was the only region of the world where . . . [people] lived under authoritarian regimes in a large number of countries.

The Role of External Forces

During the third wave, the European Community (EC) played a key role in consolidating democracy in southern Europe. In Greece, Spain, and Portugal, the establishment of democracy was seen as necessary to secure the economic benefits of EC membership, while Community membership was in turn seen as a guarantee of the stability of democracy. In 1981, Greece became a full member of the Community, and five years later Spain and Portugal did as well.

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During the 1970s and 1980s the United States was a major promoter of democratization. Whether the United States continues to play this role depends on its will, its capability, and its attractiveness as a model to other countries. Before the mid-1970s the promotion of democracy had not always been a high priority of American foreign policy. It could again subside in importance. The end of the Cold War and of the ideological competition with the Soviet Union could remove one rationale for propping up anti-communist dictators, but it could also reduce the incentives for any substantial American involvement in the Third World.

American will to promote democracy may or may not be sustained. American ability to do so, on the other hand, is limited. The trade and budget deficits impose new limits on the resources that the United States can use to influence events in foreign countries. More important, the ability of the United States to promote democracy has in some measure run its course. The countries in Latin America, the Caribbean, Europe, and East Asia that were most susceptible to American influence have, with a few exceptions, already become democratic. The one major country where the United States can still exercise significant influence on behalf of democratization is Mexico. The undemocratic countries in Africa, the Middle East, and mainland Asia are less susceptible to American influence.

Apart from Central America and the Caribbean, the major area of the Third World where the United States has continued to have vitally important interests is the Persian Gulf. The Gulf War and the dispatch of 500,000 American troops to the region have stimulated demands for movement toward democracy in Kuwait and Saudi Arabia . . .

The U.S. contribution to democratization in the 1980s involved more than the conscious and direct exercise of American power and influence. Democratic movements around the world have been inspired by and have borrowed from the American example. What might happen, however, if the American model ceases to embody strength and success, no longer seems to be the winning model? At the end of the 1980s, many were arguing that "American decline" was the true reality. If people around the world come to see the United States as a fading power beset by political stagnation, economic inefficiency, and social chaos, its perceived failures will inevitably be seen as the failures of democracy, and the worldwide appeal of democracy will diminish.

Snowballing

The impact of snowballing on democratization was clearly evident in 1990 in Bulgaria, Romania, Yugoslavia, Mongolia, Nepal, and Albania. It also affected movements toward liberalization in some Arab and African countries. In 1990, for instance, it was reported that the "upheaval in Eastern Europe" had "fueled demands for change in the Arab world" and prompted leaders in Egypt, Jordan, Tunisia, and Algeria to open up more political space for the expression of discontent.

The East European example had its principal effect on the leaders of authoritarian regimes, not on the people they ruled. President Mobutu Sese Seko of Zaire, for instance, reacted with shocked horror to televised pictures of the execution by firing squad of his friend, Romanian dictator Nicolae Ceaușescu. A few months later, commenting that "You know what's happening across the

world,” he announced that he would allow two parties besides his own to compete in elections in 1993. In Tanzania, Julius Nyerere observed that “if changes take place in Eastern Europe then other countries with one-party systems and which profess socialism will also be affected.” His country, he added, could learn a “lesson or two” from Eastern Europe. In Nepal in April 1990, the government announced that King Birendra was lifting the ban on political parties as a result of “the international situation’ and “the rising expectations of the people.”

If a country lacks favorable internal conditions, however, snowballing alone is unlikely to bring about democratization. The democratization of countries A and B is not a reason for democratization in country C, unless the conditions that favored it in the former also exist in the latter. Although the legitimacy of democratic government came to be accepted throughout the world in the 1980s, economic and social conditions favorable to democracy were not everywhere present. The “worldwide democratic revolution” may create an external environment conducive to democratization, but it cannot produce the conditions necessary for democratization within a particular country.

In Eastern Europe the major obstacle to democratization was Soviet control; once it was removed, the movement to democracy spread rapidly. There is no comparable external obstacle to democratization in the Middle East, Africa, and Asia. If rulers in these areas chose authoritarianism before December 1989, why can they not continue to choose it thereafter? The snowballing effect would be real only to the extent that it led them to believe in the desirability or necessity of democratization. The events of 1989 in Eastern Europe undoubtedly encouraged democratic opposition groups and frightened authoritarian leaders elsewhere. Yet given the previous weakness of the former and the long-term repression imposed by the latter, it seems doubtful that the East European example will actually produce significant progress toward democracy in most other authoritarian countries.

By 1990, many of the original causes of the third wave had become significantly weaker, even exhausted. Neither the White House, the Kremlin, the European Community, nor the Vatican was in a strong position to promote democracy in places where it did not already exist (primarily in Asia, Africa, and the Middle East). It remains possible, however, for new forces favoring democratization to emerge. After all, who in 1985 could have foreseen that Mikhail Gorbachev would facilitate democratization in Eastern Europe?

In the 1990s the International Monetary Fund (IMF) and the World Bank could conceivably become much more forceful than they have heretofore been in making political democratization as well as economic liberalization a precondition for economic assistance. France might become more active in promoting democracy among its former African colonies, where its influence remains substantial. The Orthodox churches could emerge as a powerful influence for democracy in southeastern Europe and the Soviet Union. A Chinese proponent of glasnost could come to power in Beijing, or a new Jeffersonian-style Nasser could spread a democratic version of Pan-Arabism in the Middle East. Japan could use its growing economic clout to encourage human rights and democracy in the poor countries to which it makes loans and grants. In 1990, none of these possibilities seemed very likely, but after the surprises of 1989 it would be rash to rule anything out.

A Third Reverse Wave?

By 1990 at least two third-wave democracies, Sudan and Nigeria, had reverted to authoritarian rule; the difficulties of consolidation could lead to further reversions in countries with unfavorable conditions for sustaining democracy. The first and second democratic waves, however, were followed not merely by some backsliding but by major reverse waves during which most regime changes throughout the world were from democracy to authoritarianism. If the third wave of democratization slows down or comes to a halt, what factors might produce a third reverse wave?

Among the factors contributing to transitions away from democracy during the first and second reverse waves were:

- 1) the weakness of democratic values among key elite groups and the general public;
- 2) severe economic setbacks, which intensified social conflict and enhanced the popularity of remedies that could be imposed only by authoritarian governments;
- 3) social and political polarization, often produced by leftist governments seeking the rapid introduction of major social and economic reforms;
- 4) the determination of conservative middle-class and upper-class groups to exclude populist and leftist movements and lower-class groups from political power;
- 5) the breakdown of law and order resulting from terrorism or insurgency;
- 6) intervention or conquest by a nondemocratic foreign power;
- 7) "reverse snowballing" triggered by the collapse or overthrow of democratic systems in other countries.

Transitions from democracy to authoritarianism, apart from those produced by foreign actors, have almost always been produced by those in power or close to power in the democratic system. With only one or two possible exceptions, democratic systems have not been ended by popular vote or popular revolt. In Germany and Italy in the first reverse wave, antidemocratic movements with considerable popular backing came to power and established fascist dictatorships. In Spain in the first reverse wave and in Lebanon in the second, democracy ended in civil war.

The overwhelming majority of transitions from democracy, however, took the form either of military coups that ousted democratically elected leaders, or executive coups in which democratically chosen chief executives effectively ended democracy by concentrating power in their own hands, usually by declaring a state of emergency or martial law. In the first reverse wave, military coups ended democratic systems in the new countries of Eastern Europe and in Greece, Portugal, Argentina, and Japan. In the second reverse wave, military coups occurred in Indonesia, Pakistan, Greece, Nigeria, Turkey, and many Latin American countries. Executive coups occurred in the second reverse wave in Korea, India, and the Philippines. In Uruguay, the civilian and military leadership cooperated to end democracy through a mixed executive-military coup.

In both the first and second reverse waves, democratic systems were replaced in many cases by historically new forms of authoritarian rule. Fascism was distinguished from earlier forms of authoritarianism by its mass base, ideology, party organization, and efforts to penetrate and control most of society. Bureaucratic authoritarianism differed from earlier forms of military rule in Latin America with respect to its institutional character, its presumption of indefinite duration, and its economic policies. Italy and Germany in the 1920s and 1930s and Brazil and Argentina in the 1960s and 1970s were the lead countries in introducing these new forms of nondemocratic rule and furnished the examples that antidemocratic groups in other countries sought to emulate. Both these new forms of authoritarianism were, in effect, responses to social and economic development: the expansion of social mobilization and political participation in Europe, and the exhaustion of the import substitution phase of economic development in Latin America.

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. . . [S]ystemic failures of democratic regimes to operate effectively could undermine their legitimacy. In the late twentieth century, the major nondemocratic ideological sources of legitimacy, most notably Marxism-Leninism, were discredited. The general acceptance of democratic norms meant that democratic governments were even less dependent on performance legitimacy than they had been in the past. Yet sustained inability to provide welfare, prosperity, equity, justice, domestic order, or external security could over time undermine the legitimacy even of democratic governments. As the memories of authoritarian failures fade, irritation with democratic failures is likely to increase. More specifically, a general international economic collapse on the 1929-30 model could undermine the legitimacy of democracy in many countries. Most democracies did survive the Great Depression of the 1930s; yet some succumbed, and

presumably some would be likely to succumb in response to a comparable economic disaster in the future.

Second, a shift to authoritarianism by any democratic or democratizing great power could trigger reverse snowballing. The reinvigoration of authoritarianism in Russia or the [Soviet Union] would have unsettling effects on democratization in other Soviet republics, Bulgaria, Romania, [Yugoslavia], and Mongolia; and possibly in Poland, Hungary, and [Czechoslovakia] as well. It could send the message to would-be despots elsewhere: "You too can go back into business." Similarly, the establishment of an authoritarian regime in India could have a significant demonstration effect on other Third World countries. Moreover, even if a major country does not revert to authoritarianism, a shift to dictatorship by several smaller newly democratic countries that lack many of the usual preconditions for democracy could have ramifying effects even on other countries where those preconditions are strong.

If a nondemocratic state greatly increased its power and began to expand beyond its borders, this too could stimulate authoritarian movements in other countries. This stimulus would be particularly strong if the expanding authoritarian state militarily defeated one or more democratic countries. In the past, all major powers that have developed economically have also tended to expand territorially. If China develops economically under authoritarian rule in the coming decades and expands its influence and control in East Asia, democratic regimes in the region will be significantly weakened.

Finally, as in the 1920s and the 1960s, various old and new forms of authoritarianism that seem appropriate to the needs of the times could emerge. Authoritarian nationalism could take hold in some Third World countries and also in Eastern Europe. Religious fundamentalism, which has been most dramatically prevalent in Iran, could come to power in other countries, especially in the Islamic world. Oligarchic authoritarianism could develop in both wealthy and poorer countries as a reaction to the leveling tendencies of democracy. Populist dictatorships could emerge in the future, as they have in the past, in response to democracy's protection of various forms of economic privilege, particularly in those countries where land tenancy is still an issue. Finally, communal dictatorships could be imposed in democracies with two or more distinct ethnic, racial, or religious groups, with one group trying to establish control over the entire society.

All of these forms of authoritarianism have existed in the past. It is not beyond the wit of humans to devise new ones in the future. One possibility might be a technocratic "electronic dictatorship," in which authoritarian rule is made possible and legitimated by the regime's ability to manipulate information, the media, and sophisticated means of communication. None of these old or new forms of authoritarianism is highly probable, but it is also hard to say that any one of them is totally impossible.

Obstacles to Democratization

Another approach to assessing democracy's prospects is to examine the obstacles to and opportunities for democratization where it has not yet taken hold. As of 1990, more than one hundred countries lacked democratic regimes. Most of these countries fell into four sometimes overlapping geocultural categories:

- 1) Home-grown Marxist-Leninist regimes, including [the Soviet Union], where major liberalization occurred in the 1980s and democratic movements existed in many republics;
- 2) Sub-Saharan African countries, which, with a few exceptions, remained personal dictatorships, military regimes, one-party systems, or some combination of these three;
- 3) Islamic countries stretching from Morocco to Indonesia, which except for Turkey and perhaps Pakistan had nondemocratic regimes;

- 4) East Asian countries, from Burma through Southeast Asia to China and North Korea, which included communist systems, military regimes, personal dictatorships, and two semi democracies (Thailand and Malaysia).

The obstacles to democratization in these groups of countries are political, cultural, and economic. One potentially significant political obstacle to future democratization is the virtual absence of experience with democracy in most countries that remained authoritarian in 1990.

Twenty-three of 30 countries that democratized between 1974 and 1990 had had some history of democracy, while only a few countries that were nondemocratic in 1990 could claim such experience. These included a few third-wave backsliders (Sudan, Nigeria, Suriname, and possibly Pakistan), four second-wave backsliders that had not redemocratized in the third wave (Lebanon, Sri Lanka, Burma, Fiji), and three first-wave democratizers that had been prevented by Soviet occupation from redemocratizing at the end of World War II (Estonia, Latvia, and Lithuania). Virtually all the 90 or more other nondemocratic countries in 1990 lacked significant past experience with democratic rule. This obviously is not a decisive impediment to democratization--if it were, no countries would now be democratic--but it does make it more difficult.

Another obstacle to democratization is likely to disappear in a number of countries in the 1990s. Leaders who found authoritarian regimes or rule them for a long period tend to become particularly staunch opponents of democratization. Hence some form of leadership change within the authoritarian system usually precedes movement toward democracy. Human mortality is likely to ensure such changes in the 1990s in some authoritarian regimes. In 1990, the long-term rulers in China, Cote d'Ivoire, and Malawi were in their eighties; those in Burma, Indonesia, North Korea, Lesotho, and Vietnam were in their seventies; and the leaders of Cuba, Morocco, Singapore, Somalia, Syria, Tanzania, Zaire, and Zambia were sixty or older. The death or departure from office of these leaders would remove one obstacle to democratization in their countries, but would not make it inevitable.

Between 1974 and 1990, democratization occurred in personal dictatorships, military regimes, and one-party systems. Full-scale democratization has not yet occurred, however, in communist one-party states that were the products of domestic revolution....

One serious impediment to democratization is the absence or weakness of real commitment to democratic values among political leaders in Asia, Africa, and the Middle East. When they are out of power, political leaders have good reason to advocate democracy. The test of their democratic commitment comes once they are in office. In Latin America, democratic regimes have generally been overthrown by military coups d'état. This has happened in Asia and the Middle East as well, but in these regions elected leaders themselves have also been responsible for ending democracy: Syngman Rhee and Park Chung Hee in Korea, Adrian Menderes in Turkey, Ferdinand Marcos in the Philippines, Lee Kwan Yew in Singapore, Indira Gandhi in India, and Sukarno in Indonesia. Having won power through the electoral system, these leaders then proceeded to undermine that system. They had little commitment to democratic values and practices.

Even when Asian, African, and Middle Eastern leaders have more or less abided by the rules of democracy, they often seemed to do so grudgingly. Many European, North American, and Latin American political leaders in the last half of the twentieth century were ardent and articulate advocates of democracy. Asian and African countries, in contrast, did not produce many heads of government who were also apostles of democracy . . . Why is this? This question inevitably leads to the issue of culture.

Culture

It has been argued that the world's great historic cultural traditions vary significantly in the extent to which their attitudes, values, beliefs, and related behavior patterns are conducive to the development of democracy. A profoundly antidemocratic culture would impede the spread of democratic norms in the society, deny legitimacy to democratic institutions, and thus greatly complicate if not prevent the emergence and effective functioning of those institutions. The cultural thesis comes in two forms. The more restrictive version states that only Western culture provides a suitable base for the development of democratic institutions and, consequently, that democracy is largely inappropriate for non-Western societies. In the early years of the third wave, this argument was explicitly set forth by George Kennan. Democracy, he said, was a form of government "which evolved in the eighteenth and nineteenth centuries in northwestern Europe, primarily among those countries that border on the English Channel and the North Sea (but with a certain extension into Central Europe), and which was then carried into other parts of the world, including North America, where peoples from that northwestern European area appeared as original settlers, or as colonialists, and laid down the prevailing patterns of civil government." Hence democracy has "a relatively narrow base both in time and in space; and the evidence has yet to be produced that it is the natural form of rule for peoples outside those narrow perimeters.' The achievements of Mao, Salazar, and Castro demonstrated, according to Kennan, that authoritarian regimes "have been able to introduce reforms and to improve the lot of masses of people, where more diffuse forms of political authority had failed." Democracy, in short, is appropriate only for northwestern and perhaps central European countries and their settler colony offshoots.

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A less restrictive version of the cultural obstacle argument holds that certain non-Western cultures are peculiarly hostile to democracy. The two cultures most often cited in this regard are Confucianism and Islam. Three questions are relevant to determining whether these cultures now pose serious obstacles to democratization. First, to what extent are traditional Confucian and Islamic values and beliefs hostile to democracy? Second, if they are, to what extent have these cultures in fact hampered progress toward democracy? Third, if they have significantly retarded democratic progress in the past, to what extent are they likely to continue to do so in the future?

Confucianism

Almost no scholarly disagreement exists regarding the proposition that traditional Confucianism was either undemocratic or antidemocratic. The only mitigating factor was the extent to which the examination system in the classic Chinese polity opened careers to the talented without regard to social background. Even if this were the case, however, a merit system of promotion does not make a democracy. No one would describe a modern army as democratic because officers are promoted on the basis of their abilities. Classic Chinese Confucianism and its derivatives in Korea, Vietnam, Singapore, Taiwan, and (in diluted fashion) Japan emphasized the group over the individual, authority over liberty, and responsibilities over rights. Confucian societies lacked a tradition of rights against the state; to the extent that individual rights did exist, they were created by the state. Harmony and cooperation were preferred over disagreement and competition. The maintenance of order and respect for hierarchy were central values. The conflict of ideas, groups, and parties was viewed as dangerous and illegitimate. Most important, Confucianism merged society and the state and provided no legitimacy for autonomous social institutions at the national level.

In practice Confucian or Confucian-influenced societies have been inhospitable to democracy. In East Asia only two countries, Japan and the Philippines, had sustained experience with democratic government prior to 1990. In both cases, democracy was the product of an American presence. The Philippines, moreover, is overwhelmingly a Catholic country. In Japan, Confucian values were reinterpreted and merged with autochthonous cultural traditions.

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The East Asian Model

The interaction of economic progress and Asian culture appears to have generated a distinctly East Asian variety of democratic institutions. As of 1990, no East Asian country except the Philippines (which is, in many respects, more Latin American than East Asian in culture) had experienced a turnover from a popularly elected government of one party to a popularly elected government of a different party. The prototype was Japan, unquestionably a democracy, but one in which the ruling party has never been voted out of power. The Japanese model of dominant-party democracy, as Pye has pointed out, has spread elsewhere in East Asia. In 1990, two of the three opposition parties in Korea merged with the government party to form a political bloc that would effectively exclude the remaining opposition party, led by Kim Dae Jung and based on the Cholla region, from ever gaining power. In the late 1980s, democratic development in Taiwan seemed to be moving toward an electoral system in which the Kuomintang (KMT) was likely to remain the dominant party, with the Democratic Progressive Party confined to a permanent opposition role. In Malaysia, the coalition of the three leading parties from the Malay, Chinese, and Indian communities (first in the Alliance Party and then in the National Front) has controlled power in unbroken fashion against all competitors from the 1950s through the 1980s. In the mid-1980s, Lee Kwan Yew's deputy and successor Goh Chok Tong endorsed a similar type of party system for Singapore:

I think a stable system is one where there is a mainstream political party representing a broad range of the population. Then you can have a few other parties on the periphery, very serious-minded parties. They are unable to have wider views but they nevertheless represent sectional interests. And the mainstream is returned all the time. I think that's good. And I would not apologize if we ended up in that situation in Singapore.

A primary criterion for democracy is equitable and open competition for votes between political parties without government harassment or restriction of opposition groups. Japan has clearly met this test for decades with its freedoms of speech, press, and assembly, and reasonably equitable conditions of electoral competition. In the other Asian dominant-party systems, the playing field has been tilted in favor of the government for many years. By the late 1980s, however, conditions were becoming more equal in some countries. In Korea, the government party was unable to win control of the legislature in 1989, and this failure presumably was a major factor in its subsequent merger with two of its opponents. In Taiwan, restrictions on the opposition were gradually lifted. It is thus conceivable that other East Asian countries could join Japan in providing a level playing field for a game that the government party always wins. In 1990 the East Asian dominant-party systems thus spanned a continuum between democracy and authoritarianism, with Japan at one extreme, Indonesia at the other, and Korea, Taiwan, Malaysia, and Singapore (more or less in that order) in between.

Such a system may meet the formal requisites of democracy, but it differs significantly from the democratic systems prevalent in the West, where it is assumed not only that political parties and coalitions will freely and equally compete for power but also that they are likely to alternate in power. By contrast, the East Asian dominant-party systems seem to involve competition for power but not alternation in power, and participation in elections for all, but participation in office only for those in the "mainstream" party. This type of political system offers democracy without turnover. It represents an adaptation of Western democratic practices to serve not Western values of competition and change, but Asian values of consensus and stability.

Western democratic systems are less dependent on performance legitimacy than authoritarian systems because failure is blamed on the incumbents instead of the system, and the ouster and replacement of the incumbents help to renew the system. The East Asian societies that have adopted or appear to be adopting the dominant-party model had unequalled records of economic success from the 1960s to the 1980s. What happens, however, if and when their 8-percent growth

rates plummet; unemployment, inflation, and other forms of economic distress escalate; or social and economic conflicts intensify? In a Western democracy the response would be to turn the incumbents out. In a dominant-party democracy, however, that would represent a revolutionary change. If the structure of political competition does not allow that to happen, unhappiness with the government could well lead to demonstrations, protests, riots, and efforts to mobilize popular support to overthrow the government. The government then would be tempted to respond by suppressing dissent and imposing authoritarian controls. The key question, then, is to what extent the East Asian dominant-party system presupposes uninterrupted and substantial economic growth. Can this system survive prolonged economic downturn or stagnation?

Islam

“Confucian democracy” is clearly a contradiction in terms. It is unclear whether “Islamic democracy” also is. Egalitarianism and voluntarism are central themes in Islam. The “high culture form of Islam,” Ernest Gellner has argued, is “endowed with a number of features--Unitarianism, a rule-ethic, individualism, scripturalism, puritanism, an egalitarian aversion to mediation and hierarchy, a fairly small load of magic--that are congruent, presumably, with requirements of modernity or modernization.” They are also generally congruent with the requirements of democracy. Islam, however, also rejects any distinction between the religious community and the political community. Hence there is no equipoise between Caesar and God, and political participation is linked to religious affiliation. Fundamentalist Islam demands that in a Muslim country the political rulers should be practicing Muslims, Shari'a should be the basic law, and ulema should have a “decisive vote in articulating, or at least reviewing and ratifying, all governmental policy.” To the extent that governmental legitimacy and policy flow from religious doctrine and religious expertise, Islamic concepts of politics differ from and contradict the premises of democratic politics.

Islamic doctrine thus contains elements that may be both congenial and uncongenial to democracy. In practice, however, the only Islamic country that has sustained a fully democratic political system for any length of time is Turkey, where Mustafa Kemal Ataturk explicitly rejected Islamic concepts of society and politics and vigorously attempted to create a secular, modern, Western nation-state. And Turkey's experience with democracy has not been an unmitigated success. Elsewhere in the Islamic world, Pakistan has made three attempts at democracy, none of which lasted long. While Turkey has had democracy interrupted by occasional military interventions, Pakistan has had bureaucratic and military rule interrupted by occasional elections.

The only Arab country to sustain a form of democracy (albeit of the consociational variety) for a significant period of time was Lebanon. Its democracy, however, really amounted to consociational oligarchy, and 40 to 50 percent of its population was Christian. Once Muslims became a majority in Lebanon and began to assert themselves, Lebanese democracy collapsed. Between 1981 and 1990, only two of 37 countries in the world with Muslim majorities were ever rated “Free” by Freedom House in its annual surveys: the Gambia for two years and the Turkish Republic of Northern Cyprus for four. Whatever the compatibility of Islam and democracy in theory, in practice they have rarely gone together.

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In the late 1980s, domestic economic problems combined with the snowballing effects of democratization elsewhere led the governments of several Islamic countries to relax their controls on the opposition and to attempt to renew their legitimacy through elections. The principal initial beneficiaries of these openings were Islamic fundamentalist groups. In Algeria, the Islamic Salvation Front swept the June 1990 local elections, the first free elections since the country became independent in 1962. In the 1989 Jordanian elections, Islamic fundamentalists won 36 of 80 seats in parliament. In Egypt, many candidates associated with the Muslim Brotherhood were

elected to parliament in 1987. In several countries, Islamic fundamentalist groups were reportedly plotting insurrections. The strong electoral showings of the Islamic groups partly reflected the absence of other opposition parties, some because they were under government proscription, others because they were boycotting the elections. Nonetheless, fundamentalism seemed to be gaining strength in Middle Eastern countries, particularly among younger people. The strength of this tendency induced secular heads of government in Tunisia, Turkey, and elsewhere to adopt policies advocated by the fundamentalists and to make political gestures demonstrating their own commitment to Islam.

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The Limits of Cultural Obstacles

Strong cultural obstacles to democratization thus appear to exist in Confucian and Islamic societies. There are, nonetheless, reasons to doubt whether these must necessarily prevent democratic development. First, similar cultural arguments have not held up in the past. At one point many scholars argued that Catholicism was an obstacle to democracy. Others, in the Weberian tradition, contended that Catholic countries were unlikely to develop economically in the same manner as Protestant countries. Yet in the 1960s, 1970s, and 1980s Catholic countries became democratic and, on average, had higher rates of economic growth than Protestant countries. Similarly, at one-point Weber and others argued that countries with Confucian cultures would not achieve successful capitalist development. By the 1980s, however, a new generation of scholars saw Confucianism as a major cause of the spectacular economic growth of East Asian societies. In the longer run, will the thesis that Confucianism prevents democratic development be any more viable than the thesis that Confucianism prevents economic development? Arguments that particular cultures are permanent obstacles to change should be viewed with a certain skepticism.

Second, great cultural traditions like Islam and Confucianism are highly complex bodies of ideas, beliefs, doctrines, assumptions, and behavior patterns. Any major culture, including Confucianism, has some elements that are compatible with democracy, just as both Protestantism and Catholicism have elements that are clearly undemocratic. Confucian democracy may be a contradiction in terms, but democracy in a Confucian society need not be. The real question is which elements in Islam and Confucianism are favorable to democracy, and how and under what circumstances these can supersede the undemocratic aspects of those cultural traditions.

Third, cultures historically are dynamic, not stagnant. The dominant beliefs and attitudes in a society change. While maintaining elements of continuity, the prevailing culture of a society in one generation may differ significantly from what it was one or two generations earlier. In the 1950s, Spanish culture was typically described as traditional, authoritarian, hierarchical, deeply religious, and honor-and-status oriented. By the 1970s and 1980s, these words had little place in a description of Spanish attitudes and values. Cultures evolve and, as in Spain, the most important force bringing about cultural changes is often economic development itself.

Economics

Few relationships between social, economic, and political phenomena are stronger than that between the level of economic development and the existence of democratic politics. Most wealthy countries are democratic, and most democratic countries--India is the most dramatic exception--are wealthy. The correlation between wealth and democracy implies that transitions to democracy should occur primarily in countries at the mid-level of economic development. In poor countries democratization is unlikely; in rich countries it usually has already occurred. In between there is a "political transition zone:" countries in this middle economic stratum are those most likely to transit to democracy, and most countries that transit to democracy will be in this stratum. As countries develop economically and move into the transition zone, they become good prospects for democratization.

In fact, shifts from authoritarianism to democracy during the third wave were heavily concentrated in this transition zone, especially at its upper reaches. The conclusion seems clear. Poverty is a principal--probably the principal--obstacle to democratic development. The future of democracy depends on the future of economic development. Obstacles to economic development are obstacles to the expansion of democracy.

The third wave of democratization was propelled forward by the extraordinary global economic growth of the 1950s and 1960s. That era of growth came to an end with the oil price increases of 1973-74. Between 1974 and 1990, democratization accelerated around the world, but global economic growth slowed down. There were, however, substantial differences in growth rates among regions. East Asian rates remained high throughout the 1970s and 1980s, and overall rates of growth in South Asia increased. On the other hand, growth rates in the Middle East, North Africa, Latin America, and the Caribbean declined sharply from the 1970s to the 1980s. Those in sub-Saharan Africa plummeted. Per capita GNP in Africa was stagnant during the late 1970s and declined at an annual rate of 2.2 percent during the 1980s. The economic obstacles to democratization in Africa thus clearly grew during the 1980s. The prospects for the 1990s are not encouraging. Even if economic reforms, debt relief, and economic assistance materialize, the World Bank has predicted an average annual rate of growth in per capita GDP for Africa of only 0.5 percent for the remainder of the century. If this prediction is accurate, the economic obstacles to democratization in sub-Saharan Africa will remain overwhelming well into the twenty first century.

The World Bank was more optimistic in its predictions of economic growth for China and the non-democratic countries of South Asia. The current low levels of wealth in those countries, however, generally mean that even with annual per capita growth rates of 3 to 5 percent, the economic conditions favorable to democratization would still be long in coming. In the 1990s, the majority of countries where the economic conditions for democratization are already present or rapidly emerging are in the Middle East and North Africa.... The economies of many of these countries (United Arab Emirates, Kuwait, Saudi Arabia, Iraq, Iran, Libya, Oman) depend heavily on oil exports, which enhances the control of the state bureaucracy. This does not, however, make democratization impossible. The state bureaucracies of Eastern Europe had far more power than do those of the oil exporters. Thus at some point that power could collapse among the latter as dramatically as it did among the former.

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In China, the obstacles to democratization are political, economic, and cultural; in Africa they are overwhelmingly economic; and in the rapidly developing countries of East Asia and in many Islamic countries, they are primarily cultural.

Economic Development and Political Leadership

History has proved both optimists and pessimists wrong about democracy. Future events will probably do the same. Formidable obstacles to the expansion of democracy exist in many societies. The third wave, the "global democratic revolution" of the late twentieth century, will not last forever. It may be followed by a new surge of authoritarianism sustained enough to constitute a third reverse wave. That, however, would not preclude a fourth wave of democratization developing sometime in the twenty-first century. Judging by the record of the past, the two most decisive factors affecting the future consolidation and expansion of democracy will be economic development and political leadership.

Most poor societies will remain undemocratic so long as they remain poor. Poverty, however, is not inevitable. In the past, nations such as South Korea, which were assumed to be mired in economic backwardness, have astonished the world by rapidly attaining prosperity. In the 1980s, a new consensus emerged among developmental economists on the ways to promote economic growth.

The consensus of the 1980s may or may not prove more lasting and productive than the very different consensus among economists that prevailed in the 1950s and 1960s. The new orthodoxy of neo-orthodoxy, however, already seems to have produced significant results in many countries.

Yet there are two reasons to temper our hopes with caution. First, economic development for the late, late, late developing countries--meaning largely Africa--may well be more difficult than it was for earlier developers because the advantages of backwardness come to be outweighed by the widening and historically unprecedented gap between rich and poor countries. Second, new forms of authoritarianism could emerge in wealthy, information-dominated, technology-based societies. If unhappy possibilities such as these do not materialize, economic development should create the conditions for the progressive replacement of authoritarian political systems by democratic ones. Time is on the side of democracy.

Economic development makes democracy possible; political leadership makes it real. For democracies to come into being, future political elites will have to believe, at a minimum, that democracy is the least bad form of government for their societies and for themselves. They will also need the skills to bring about the transition to democracy while facing both radical oppositionists and authoritarian hard-liners who inevitably will attempt to undermine their efforts. Democracy will spread to the extent that those who exercise power in the world and in individual countries want it to spread. For a century and a half after Tocqueville observed the emergence of modern democracy in America, successive waves of democratization have washed over the shore of dictatorship. Buoyed by a rising tide of economic progress, each wave advanced further—and receded less--than its predecessor. History, to shift the metaphor, does not sail ahead in a straight line, but when skilled and determined leaders are at the helm, it does move forward.

Questions and discussion

1. What does Huntington mean by bureaucratic authoritarianism? Where can, according to him, such authoritarianism be found?
2. Huntington explains various scenarios of reverse waves of democracy, and the reasons for the same. Do you agree with his reasons as relating to Africa?
3. He also talks about “obstacles to democracy” in three geo-cultural regions, including sub-Saharan Africa. Explain what he means, and then critically examine whether the obstacles he discusses are the real and most important ones, or that he misses some other important ones that you could think of.
4. Huntington argues that there is a direct correlation between the existence of economic development and democratic politics. He says that “the correlation between wealth and democracy implies that transitions to democracy should occur primarily in countries at the mid-level of economic development. In poor countries democratization is unlikely.” Do you agree? What do you think are the implications of such arguments?
5. Speaking of the role of political leadership to democracy, Huntington says that “for democracies to come into being, future political elites will have to believe, at a minimum, that democracy is the least bad form of government for their societies and for themselves.” Do you agree?

ARE WE SEEING HOPEFUL TREND OF ROTATION OF AFRICAN LEADERSHIP?

[In the following paper, Posner and Young will take you through an interesting optimism they see regarding African leaders' leaving of office through voluntary course than through coup or violence. Based on the wide range of cases they have studied; they conclude that there is a reason for cautious optimism that rules of the game such as constitutions are increasingly becoming binding on political power. But they also bring out the interesting fact that all is not well with

everything that is apparently improving. They point at what they call the “institutionalization” of political power. They also caution us that the fact that the leaders have left power voluntarily does not necessarily mean that the executive had functioned squarely within the legal rules and procedures during its tenure. They also point at how elections have increasingly become very important political occurrences but at the same time that incumbents mostly create serious hardships for political opponents to compete, while at the same time they engage in massive rigging of elections.]

Daniel N. Posner and Daniel J. Young, “The Institutionalization of Political Power in Africa” in *Journal of Democracy*, Vol. 18, No. 3 (2007). Footnotes and figures omitted.

On 16 May 2006, after months of intense and divisive national debate, the Senate of Nigeria rejected a bill which would have changed that country’s constitution to permit President Olusegun Obasanjo a third term in office. By asserting the supremacy of the constitution (with its two-term limit) over the desires of President Obasanjo’s supporters that the popular leader be permitted to run for a third term, the Senate’s vote marked a watershed in Nigeria’s political history. As important as the outcome was the way in which the conflict was resolved –by the votes of duly elected legislators rather than through force or the threat of same. Given that Nigeria’s First and Second Republics (1963-66 and 1979-83) were overthrown by military coups, the settlement of this political struggle via the Senate chamber rather than the gun barrel represents a major shift in the way that decisions over executive tenure in Nigeria have been made.

Both the outcome of Obasanjo’s third-term campaign and the process through which it was reached signal a growing trend in sub-Saharan Africa: The formal rules of the game are beginning to matter in ways that they previously have not. Scholarly and popular writers alike have traditionally depicted Africa as a place where formal institutional rules are largely irrelevant. Although every African country has a constitution as well as a body of laws and administrative procedures that place formal limits on executive power, the long-held consensus among observers has been that these rules play little role in actually constraining leaders’ behavior. This view is reflected in the “personal rule” or “Big Man” paradigm that has dominated the study of African politics for the past thirty years. This paradigm’s foundational idea is that personal relationships are more important than formal rules and that a leader’s decisions will always take precedence over the laws that those decisions might contradict. The field’s conventional wisdom has been that rules do not shape leaders’ behavior; leaders’ behavior trumps rules.

The significance of the Nigerian Senate’s actions must be seen against the backdrop of this entrenched view. Contrary to depictions of African politics as “not beholden to formal procedures but to personal decisions,” President Obasanjo was forced by the rules of the game (the constitution) to accept something other than his preferred outcome. Also, contrary to portrayals of political conduct in Africa as “governed by the awareness that constitutional rules or administrative regulations can, and probably ought, to be evaded,” both supporters and opponents of the president’s bid for a third term sought to achieve their goals by working through, not around, formal institutional channels. Although these efforts did involve attempts to bribe and otherwise influence the governors and senators who would vote on the third-term issue, what is more important is that the actors whose support was being sought were politicians- people whose influence stems from their position within the formal political system-rather than soldiers’ or other elements’ operation outside of it.

Across sub-Saharan Africa, formal institutional rules are coming to matter much more than they used to, and have displaced violence as the primary source of constraints on executive behavior. From decolonization in the early 1960s through the 1980s, most African rulers left office through a coup, assassination, or some other form of violent overthrow. Since 1990, however, the majority have left through institutionalized means-chiefly through voluntary resignation at the end of a

constitutionally defined term or by losing an election. Elections are also becoming more important as a mechanism for selecting leaders in Africa, as reflected in the large increase in both their number and their competitiveness. The fact that incumbents still almost always win, however, underscores that the major challenge connected with the task of limiting presidential power in Africa today is not so much promoting elections as making certain that leaders adhere to constitutional limits on their continued eligibility to contest them.

Some African leaders have managed to circumvent restrictions on seeking more than two terms in office, yet have done so through formal institutional channels rather than extra-constitutional means. Thus, while institutional rules may not yet always determine outcomes in Africa today such rules are consistently and dependably affecting the strategies through which those outcomes are reached. This represents a major change in how power is exercised, and it challenges us to ask again Whether the Big Man still bestrides the world of African politics with as much ease as he once did.

How Leaders Exit Power

During its first decade after independence in 1960, the small West African country of Benin had no fewer than twelve heads of state, every one of whom was overthrown in a coup d'état. This striking record of serial leadership change by force stands in complete contrast to Benin's record since 1990. From that date to 2006, Mathieu Ke're'kou and Nice'phore Soglo alternated as president following wins and losses in national elections. Moreover, both men have refrained from running for terms beyond those allowed by constitutional limits. While Benin provides perhaps the most dramatic example of the change that has taken place in how leaders leave power in Africa, it is nonetheless indicative of a broader trend.

To document this trend, we have collected data on how every African head of state exited power between independence and the end of 2005. Our sample includes some 227 leaders from 46 sub-Saharan African countries. . .

Overthrow or assassination . . . in the 1980s . . . dropped to just below 70 percent, and by the 1990s it was surpassed by the share of those who left power through natural death, voluntary resignation, or electoral defeat Between 2000 and 2005, the share of leaders leaving power through irregular means dropped to just 19 percent. Whereas the modal means by which heads of state in Africa left office used to be coup or assassination, it is now voluntary resignation, in most cases triggered by constitutional term limits (9 of the 17 cases between 2000 and 2005).

. . . Whereas African leaders were two to three times more likely than leaders elsewhere in the world to leave power by violent means in the 1960s, 1970s, and 1980s, they are equally likely-or to be more precise, equally unlikely-to leave power under violent circumstances today.

These trends point to the increasing institutionalization of political power in Africa. Whereas political power used to change hands principally through violence- at a time and in a manner chosen by coup plotters-it now changes hands principally in accord with institutional rules. Of course, the manner in which executives leave office is only one indicator of how beholden they are to formal constraints in their exercise of power more generally. It says nothing, for example, about the extent to which they adhere to objective procedures when they allocate jobs, award contracts, enforce regulations, or exercise other powers of office. Nonetheless, whether a leader departs office via regular as opposed to irregular means is critical. A regular departure means that there is an understood set of basic limits on how long a head of state may stay in power, as well as on how his opponents may seek to replace him. It therefore marks the most important step toward restraining executive power and institutionalizing political authority more broadly.

One of the clearest manifestations of the increasing institutionalization of executive power in Africa is the increasing importance of elections. Elections have been held in Africa since the independence era, albeit sometimes only intermittently and with varying degrees of contestation. Even so, both

the total number of elections held per decade and the share of elections that are meaningfully contested have risen over time, particularly since the early 1990s.

In the 1960s and 1970s, sub-Saharan Africa saw an average of 28 elections per decade. That number climbed slightly to 36 in the 1980s, and then shot up to 65 in the 1990s, a decade that began auspiciously with the national-conference movement in Benin and the beginning of the end of apartheid in South Africa. From 2000 through the end of 2005, 41 elections had already been held in Africa, and thus this upward trend appears to be continuing. This pattern is largely a product of two developments. First, countries such as Malawi that did not hold elections in the immediate post-independence period have begun to hold them. Second, countries such as Togo that once held sporadic elections have begun to regularize their electoral processes.

Elections are also becoming more intensely contested. In only two of the 26 presidential elections held in Africa in the 1960s did the incumbent actually face an opponent. The vast majority of presidential elections during this period were little more than plebiscites or grassroots-mobilization exercises in which the head of state stood no risk of losing power. By the 1990s, however, more than 90 percent of presidential elections were contested, and by the 2000-2005 period, this share had risen to 98 percent. This dramatic change reflects the growing recognition by African leaders that, to maintain their legitimacy in the eyes of both their own citizens and the international community, they must subject themselves to elections in which opponents have at least a theoretical possibility of winning.

Permitting a challenger to run, however, is not the same thing as putting oneself at real risk of losing power. In many cases, African leaders who bowed to popular or international pressure to hold contested elections found ways of rigging them so that the contests never brought a meaningful risk that the incumbent would be unseated. Nonetheless, our data suggest that such rigging is becoming harder to accomplish. When we compare across decades the reelection rates of presidents who permitted challengers to run against them, we find that elections in Africa are not only becoming more often contested but also more robustly competitive. During the entire period between 1960 and 1990, only one African president lost an Election—Aden Abdullah Osman of Somalia, who was defeated by challenger Abdirashid Ali Shermarke in 1967. Since 1990, the loss rate of incumbents has risen to a modest but nonetheless meaningful 14 percent (incumbents lost 14 times in 100 opportunities). African presidents today are thus more than twice as likely to lose power if they subject themselves to contested elections than they were before 1990, when the loss rate was just over 6 percent (just a single electoral defeat in 16 contested elections).

Despite this trend of increasing competitiveness, however, the more important point to underscore is that African leaders who want to stay in power are usually able to do so, even if they allow competitive elections. Incumbent presidents in Africa today still win reelection more than 85 percent of the time. The advantages of incumbency in Africa are so great that elections alone—even free and fair elections—are not enough to put meaningful limits on presidential power. The institutionalization of political power thus depends less on whether sitting presidents are willing to permit challengers to run against them than on whether incumbents will stand down (thereby forgoing likely reelection) when they have completed as many terms as their respective countries' constitutional laws allow.

Third-Term Experiences

Since 1990, more than three dozen African countries have adopted new constitutions, the vast majority of which have included prohibitions against a president serving more than two terms . . .

. . . [E]ighteen African presidents during this period have found themselves in the position of having completed two terms and being constitutionally barred from seeking a third. These incumbents have had three options: 1) abide by the constitutional term limit and stand down; 2)

attempt to change the constitution to permit a third term; or 3) scrap the constitution altogether and prolong their tenure through extra-constitutional means. No African leader has thus far taken this third course, which indicates just how much has changed in the region.

In the 1960s and 1970s, it was commonplace for leaders who wanted to perpetuate their rule to have themselves declared “president for life” –as did the Central African Republic’s Jean-Bedel Bokassa (who later promoted himself to “emperor”), Equatorial Guinea’s Francisco Macias Nguema, Ghana’s Kwame Nkrumah, Malawi’s Hastings Kamuzu Banda, Togo’s Gnassingbe Eyadema, Uganda’s Idi Amin, and Zaire’s Mobutu Sese Seko. Today that option would appear to be closed.

All eighteen directly elected presidents who faced term limits heard strong calls from their supporters to find a way to stay in power. Nine of these chief executives-Kerekou of Benin, Antonio Monteiro of Cape Verde, Jerry Rawlings of Ghana, Daniel arap Moi of Kenya, Alpha Konare of Mali, Joaquim Chissano of Mozambique, Miguel Trovada of Sao Tome and Principe, France-Albert Rene of Seychelles, and Benjamin Mkapa of Tanzania-resisted these appeals and announced that they would abide by their countries’ constitutions and refrain from seeking a third term. It is unclear whether this was because these leaders feared that they lacked the votes needed to change the constitution, were wary of the concerted opposition that they would face, worried that they might lose a third election, or simply believed that abiding by the constitution was the right thing to do. The answer almost certainly lies in a combination of these considerations and varies from case to case.

Whatever the rationale may have been, the point to emphasize is that stepping down was not necessarily these presidents’ most preferred outcome. They agreed to relinquish power because the constitutional prohibition on extending their rule raised the cost of staying in power beyond a level that they were willing to bear. Indeed, several leaders (Moi, Chissano, and Mkapa) made initial moves in the direction of seeking a third term only to change course when it became clear that powerful coalitions were ready to oppose them. Such voluntary relinquishment of power in the face of formal rules telling them that their time was up directly challenges the caricature of Africa as a place where “abstract constitutions and formal institutions exist on paper, but they do not shape the conduct of individual actors, especially those in power.”

Still, the nine leaders who agreed to step down represent just half the universe of sitting presidents who faced term limits. The other nine tried to change their respective constitutions to make a third term possible. Presidents Fredrick Chiluba of Zambia, Bakili Muluzi of Malawi, and Obasanjo of Nigeria were rebuffed in their efforts. Chiluba’s attempt to secure a third term was undermined by a groundswell of public opposition from civil society groups and a deep split within his own party. Fifteen senior members of the National Executive Committee of the ruling Movement for Multiparty Democracy (MMD) publicly opposed his bid to amend the constitution, and 59 MMD lawmakers, including several cabinet ministers and his own vice-president, signed a document in which they pledged to block any effort to allow him to run for a third term. In the face of such solid opposition, Chiluba backed down. Muluzi also faced strong public opposition to his bid for a third term. Even so, he very nearly succeeded: An amendment that would have abolished term limits fell just three votes short of the necessary two-thirds majority in the legislature. As discussed earlier, Obasanjo’s bid for a third term failed in the Nigerian Senate.

In six other cases, leaders facing term limits were able to change the constitutional provisions that prevented them from running for reelection and continuing their rule. Presidents Idriss Deby of Chad, Omar Bongo of Gabon, Lansana Conte of Guinea, Samuel Nujoma of Namibia, Gnassingbe Eyadema of Togo, and Yoweri Museveni of Uganda all succeeded in changing their constitutions to allow themselves the ability to compete for third terms, and all six won their ensuing elections handily. In Gabon, Namibia, Togo, and Uganda, the constitution was amended by an act of parliament. In Guinea, the amendment came through a national referendum (which third-term supporters won with 98 percent of the vote). In Chad, the change was achieved through both

mechanisms: A two-thirds parliamentary vote in favor of amending the constitution triggered a national referendum on the question, which was carried by a two-to-one margin.

These cases remind us that many African leaders still possess the power to shape outcomes to suit their preferences, even when those preferences conflict with formal limitations on what they are legally permitted to do. Presidents Deby, Bongo, Nujoma, and Eyadema were able to change their countries' constitutions because their respective parties controlled more than two-thirds of the seats in parliament. President Museveni lacked the supermajority required to change the constitution, but was able to use his control of state resources to buy the parliamentary votes he needed to pass the third-term amendment—just as Nigeria's Obasanjo tried to do, unsuccessfully. In contrast to the cases described earlier, these examples would appear to vindicate the view of Africa as a place where leaders monopolize political and economic power so completely that their preferences do in fact take precedence over the formal rules of the game.

Yet this conclusion ignores these rulers' decision to use their considerable powers to work within, rather than around, institutionalized channels. Each of these leaders was probably strong enough to have voided his country's constitution and declared himself president for life, as many previous African leaders once did. Yet each of these more recent presidents felt the need to spend considerable political and financial capital trying to secure the votes to change the constitution—a feeling that in itself shows how heavily the formal rules have come to weigh. Even in the six cases where the rules and their boundaries were circumvented, the very presence of the rules shaped the strategies that the leaders pursued to achieve their favored outcomes.

* * *

Explaining Third-Term Outcomes

The institutionalization of executive power in sub-Saharan Africa depends heavily on third-term issues. Thus an important question to ask is why certain term-limited executives decide either to step down or to attempt to amend the constitution in order to extend their tenure. One potential factor is public opinion. Popular leaders who believe that they will win reelection presumably have a greater incentive to try to change the constitution than those who have reason to doubt their electoral prospects. The contrasting examples of Kenya's Moi and Namibia's Nujoma illustrate this logic. Moi was elected to his second term in 1997 with only 40 percent of the vote and decided not to try to change the rules to allow himself a third term in 2002, while Nujoma, who began his second term in 1994 with 76 percent of the popular vote, decided to push for an amendment that would allow him to run for a third term in 1999. Among the eighteen African presidents who faced term limits between 1990 and 2005, the median margin of victory in the previous election among the nine presidents who decided to try to seek third terms was 41.5 percent. Among the nine who did not, it was only 17.8 percent.

A second potentially relevant factor is a leader's expected benefits of staying in power. It seems a fair assumption that younger leaders—who can expect to spend more years benefiting from office and also more years when they might be out of power and worried about prosecution—will have a stronger urge than older rulers to hang on to power. Our data appear to bear this out: At the time that their second terms expired, the nine presidents who faced term limits between 1990 and 2005 and who attempted to secure a third term had a median age of 60, whereas the median age of the nine who chose to stand down was 66.

A third factor focuses not on the value of staying in power but on the cost of trying to change the constitution. Given the strong emphasis that Western donors have put on the rule of law since the end of the Cold War, the ability of donors to impose their will in a given country should affect whether or not that country's president will try to alter the rules to permit a third term. To the extent that a country's reliance on foreign aid indicates its susceptibility to donor pressure, we should

expect presidents in countries that receive high levels of aid relative to GDP to be less likely to seek third terms than presidents in countries that receive low levels of aid relative to GDP. . .

* * *

The suggestion that donor pressure may be at least partly responsible for the decisions of African leaders who face third-term limits raises the critical question of whether the changes that we have documented with respect to the more general institutionalization of political power may be epiphenomenal- a product of outside forces rather than internal change. Yet even if donor pressure (or the broader international norm that leaders who come to power by means other than elections will not be viewed as legitimate) has contributed to making the rules matter, it remains true that the rules do matter much more than they have in the past. This realization directly contradicts some of the central assumptions so often heard about African politics.

A Case for Cautious Optimism

In 1982, Robert Jackson and Carl Rosberg wrote that “the inquiring student of African politics may be better advised to read Machiavelli or Hobbes than the ‘constitutions,’ official plans, or party programs of most African governments if he wishes to understand their central characteristics and dynamics.” They saw “little sign that the drama of personal rule will soon give way to more settled institutional forms of conducting the affairs of state.” Nearly twenty-five years later, Goran Hyden maintained the same position when he wrote that, in Africa, “the notion that constitutional norms and principles are binding on political leaders is still very much in doubt.” Yet recent evidence suggests that the personal-rule paradigm that has been used to understand African politics for the past thirty years needs to be rethought.

By highlighting the growing importance of formal rules and their constraining effect, we would like to suggest a shift in emphasis in African political studies from its current preoccupation . . . to a focus on the factors that constrain executive power. An astute reader may have noticed that the word “democracy” has not appeared in this essay. The omission has been deliberate. In the past twenty years, there has been much debate about whether various African regimes should properly be viewed as “pseudo-democracies,” “façade democracies,” “hybrid democracies,” or in terms of some other label that connotes democratic imperfection. Such efforts, we believe, risk diverting attention from the more basic issue of whether or not the behavior of political actors is constrained and, if so, whether by rule or by violence or the threat of violence. A focus on the degree to which formal rules matter (or the degree to which formal rules have displaced informal ones-a topic treated by Michael Bratton elsewhere in this issue) will lead to research and typologies that better capture the salient characteristics of African politics today.

We are making broad claims, and should offer a few cautions and clarifications. First, we are not saying that African leaders today have any less desire to stay in power than their predecessors did; our claim is simply that leaders today are more constrained by formal rules in trying to achieve their most preferred outcomes. They accept electoral defeats when they might prefer to stay in office. Many of them (roughly half) stand down in the face of two-term limits when they would prefer to run for a third term. Or they change the rules so that their preferred outcome no longer violates those rules (in which case the impact of the rules is felt not in the outcome that is reached but in the way it is achieved).

As a final caution, we remind the reader that there are important exceptions to these general trends. There have been recent coups in the Central African Republic, Mauritania, and São Tomé and Príncipe, as well as reversals in the institutionalizations of political power in the Gambia, Zimbabwe, and Uganda (as Andrew M. Mwenda shows elsewhere in this issue). Leaders who have ruled for decades remain in power in Equatorial Guinea and Gabon. Furthermore, one could make a compelling case that reversals are not out of the question in several of the countries that fit the trends we have described-including Nigeria, the country with which we began our discussion. It is

therefore important to temper whatever optimism might arise from the arguments and evidence we have presented with the recognition that, despite these general trends, not every African country is moving in a direction of greater institutionalization of political power, and that reversals remain possible in some of the countries that currently appear to be heading toward greater institutionalization. Nonetheless, in the past fifteen years there has been a substantial change in African politics. It is entirely possible that the power of formal constraints over some African rulers may decline, or that the frequency of coups d'état may again rise, but . . . [i]n order to grasp this new reality we need to adjust our theories. African politics needs to be viewed through a lens that recognizes the formal constraints on executives and rejects the assumption that African leaders simply get what they want.

Questions and Discussion

1. How relevant do you think written constitutions are in Africa given the many coups and amendments to extend the rule of individuals?
2. Have written constitutions been able to muster acceptance by the African political elite? Do you agree with Posner and Young's analysis of the African situation? Perhaps a million-dollar question is why is it so difficult to put in place a system by which constitutional arrangements such as term limits or free and fair elections are respected in Africa? Why is achieving these goals so elusive in Africa while this was done centuries ago in much of the world?
3. Discuss the factors described by the authors that have caused the institutionalization of political power in Africa. Do you agree with their characterization and analysis of the factors? Posner and Young have expressed their cautious optimism about the improving political culture of the power elites and a possible degeneration. Do you share their optimism and expectation of a backlash?

Nathan Glazer, "Democracy and Deep Divides," in *Journal of Democracy*, Vol. 21, No. 2 (2010).
Footnotes omitted.

[In the following excerpt, Glazer discusses one of the most difficult and practical issues of democracy that is relevant to so many culturally diverse countries to which almost all African nations belong, our own Ethiopia being one of the most diverse nations. Glazer concludes that in distinct ways the political systems of Canada and India (and to some extent of the U.S.A. also) have dealt with the deep divide of their societies' different interest – linguistic, caste, racial, religious, etc. – through democracy. He describes how, in each country, free political parties competing for votes, including the votes of minorities, are a key factor in moderating these divides and in bringing forth the measures that produce a degree of stability in those countries. He also notes that the role of courts in those systems is crucial as the ultimate arbiters. Glazer analyzes the inherent tension between exceptionalism in favor of a minority group and the general rule of equal individual rights for all, and describes the path that each great democracy has taken in making democracy more suitable to those who live in a given political society.]

[The] divisions by birth within nations are near universal. Walker Connor some years ago calculated that, out of all the countries in the world, only seven did not have significant minorities or divisions based on ethnicity, race, religion, or language. With increasing immigration, large refugee flows, and expanded international business and commerce, even Connor's few homogeneous countries are more heterogeneous today. The only major exceptions to this trend toward greater heterogeneity are some Muslim countries from which long-established minorities have fled.

In an ideal liberal-democratic world, such divisions should not matter: Liberalism calls for all persons to be treated equally without regard to race, ethnicity, religion, or language; if they are so treated, what more is needed? But even democratic liberalism has its problems with these divisions, particularly when those bearing a distinctive identity make claims for their group or demand protections for their religion or culture that in some way violate the equality of persons or individual rights that liberalism entails. Equal treatment for individuals (applying the same tests to everyone, for example) may result in an unequal condition for any given group. The debate in the United States over affirmative action centers around this tension between individual and group equality, and the classic arguments for liberal democracy do not give an immediate or obvious solution.

So how do democracies manage these divisions? Does democracy have advantages over nondemocratic forms of government in dealing with such issues? Or, on the contrary, does it have distinctive liabilities in managing plural societies, as every group in a democracy is free to make demands?

* * *

Marks of complete failure are clear, such as civil war or the abject subjection of a minority group. But what is the measure of success? Equality in economic condition? Contentment with living in a state where a different group is the majority? Absence of separatist and independence movements? Not only are the markers of success less clear-cut, sometimes they are contradictory: The Basque and Catalan areas of Spain are more prosperous than the rest of the country, yet they are dissatisfied with their place within the Spanish state, and strong separatist and autonomist movements are present in both regions.

Despite such conceptual difficulties, excellent statistical studies have been done on these kinds of questions, and some have yielded some generally accepted conclusions. Lipset himself wrote a seminal article that used this approach to establish a relationship between democracy and economic development. As Fareed Zakaria recounts, "In 1959, Seymour Martin Lipset made a simple, powerful point: "The more well-to-do a nation, the greater its chances to sustain democracy." . . . Lipset's thesis has spawned schools and counter-schools, gathering data, running regressions, and checking assumptions. After forty years of research, with some caveats and qualifications, his fundamental point still holds."

While a statistical analysis of a large range of countries has its virtues, it also has limitations. It seems problematic to bring into the same universe of explanations large countries and small ones, new countries and old ones, well-established democracies and those that barely deserve the name. Moreover, as Lipset himself noted, "Comparative generalizations dealing with complex social systems must deal rather summarily with particular historical features of any one society." That is why experts on a particular country are so often puzzled by the way it is rated in international comparisons.

. . . I will focus here on only three: Canada, India, and the United States, and my references to the United States will be only tangential.

Why these? First, they are distinctively marked by deep divisions: the United States by the racial divide that has been so central to its history; Canada by the founding division between Francophone and Anglophone; and India by grave divisions in caste, religion, and language. Second, India and the United States are the two largest democracies in the world. . .

There is another key reason why I must include India: It is the great exception to that major generalization about the relationship between wealth and democracy that Lipset first identified in 1959. India, despite its recent economic progress, is a poor country, and yet it is a well-established

democracy with hotly contested elections that have major consequences for how it is governed and that have recurred at regular intervals for the sixty years since independence. Indian democracy was interrupted once for two years by a state of emergency imposed by Prime Minister Indira Gandhi, but this was itself overcome by a free election that Gandhi called for and decisively lost. For much of the time since its independence, India's population has comprised a good part of all the people in the world living under democracy. India's example may transcend in significance any generalization that would emerge from a statistical test of the relationship between democracy and success in dealing with diversity.

Canada and the United States

* * *

Just as the U.S. civil-rights revolution was erupting in violence, the Quebec independence movement reached a crescendo of rare violence for Canada: A Quebec terrorist group planted bombs and kidnapped an English official and a minister of the Quebec government (whom they killed), leading to a crisis in which hundreds of activists were arrested under emergency provisions declared by the federal government, then headed by Pierre Trudeau. At the time, Quebecers and Francophones held many seats in Parliament, made up a third of the Supreme Court, and occupied a large number of government positions—and Canada's prime minister was a Francophone Quebecer. Yet the sense of resentment in Quebec over the province's position in the Canadian economy and political system was all too real, difficult as it may have been for other Canadians to understand.

As Anglophone Canada grew in the nineteenth and twentieth centuries with immigration from the British Isles and, later, other parts of Europe, the position of Francophone Quebec declined demographically. In the 1950s and 1960s, Quebec underwent a striking change known as the Quiet Revolution. The Church-dominated, rural, traditional society rapidly modernized to the point where the Church lost its dominance in education and culture, industry and commerce grew, and family size dropped precipitously, dashing the hopes of Quebecers for a "revenge of the cradle." Quebec's rapid secularization was accompanied by a rising nationalist movement that questioned Anglophone dominance of Montreal's economy and feared for the future of French language and culture in an English-speaking continent.

The first federal responses to this rising sentiment already indicated a moderate, distinctly Canadian approach. In 1963, the government established the Royal Commission on Biculturalism and Bilingualism, co-chaired by an Anglophone and a Francophone, to deal with the Quebec issue. It eventually resulted in the 1969 Official Languages Act, which emphasized the equal place of French and English speakers in public life. All laws and public documents were to appear in both languages, and civil servants were to be competent in both. A frenzy of French language-learning by English-speaking civil servants ensued.

During the course of its multiyear hearings, the commission realized that Anglophone and Francophone Canada had been joined by yet another Canada—one composed of immigrants of various European tongues who seemed to retain stronger attachments to their native culture and language in Canada than did their fellow immigrants in the United States. The commission proposed official recognition for the cultures of these groups, and the government created a department of multiculturalism, which awarded grants to assist their linguistic and cultural expression. Canada subsequently proclaimed itself officially multicultural, and this was rapidly accepted in the popular imagination. Unlike in the United States—where in 1995 the U.S. Senate would vote 99 to 1 against a report proposing a more "multicultural" and "multiracial" treatment of American history—in Canada, multiculturalism became part of the national identity: Canada was a "mosaic," not a "melting pot."

The new acceptance of multiculturalism did nothing to calm Quebec. Quite the contrary, Quebecers felt that it lowered the province's special status as one of the two founding nations of Canada. Prime Minister Trudeau hoped that Quebec could be mollified by the Official Languages Act, but that was hardly enough for rising Quebec nationalism. In 1976, the new pro-independence Parti Québécois gained power in the province. It passed its own Official Languages Act in defense of the French language and offered Quebecers the opportunity to vote in a referendum on whether they wanted "sovereignty"—in effect, independence for Quebec with some unspecified relationship to Canada remaining. The 1980 referendum was contested passionately and lost.

The Quebec language legislation required the use of French in large companies' labor relations and official communications and also called for French to be the language of instruction, not only for the Francophone population (which of course it was) but also for the children of immigrants and Canadian migrants settling in Quebec. The law further demanded the removal of English from public signs and notices. It was enforced with all seriousness by the Quebec Commission for the Protection of the French Language, with the support of volunteers.

But then what of the rights of Quebec's large English-speaking minority and the rights of non-native residents of Quebec to educate their children in English? French speakers had equal rights throughout Canada, but speakers of English and other languages did not have the same rights in Quebec.

While Quebec nationalists were fighting for a "yes" vote in the 1980 referendum, Prime Minister Trudeau, a French-speaking Quebecer but a *Canadian* nationalist, was engaged in a vigorous effort to "Canadianize" the constitution, which until then remained an 1867 act of the British Parliament. He fought for a "no" vote in the referendum, reassuring Quebecers that the new constitution would satisfy them. When the new constitution, with its Charter of Rights and Freedoms, was presented to Canada, however, Quebec was terribly disappointed, and the Quebec nationalists felt betrayed. The new document had no provisions recognizing Quebec's special position in Canada, and the language provisions insisted on equal rights for non-French speakers in Quebec. The constitution became the law of the land without the assent of Quebec, which has to this day refused to accept it.

The Charter of Rights and Freedoms, like the U.S. Bill of Rights, is the heart of Canada's constitution and is locked in what seems to be permanent conflict with Quebec's language laws. The Charter emphasizes equal and universal rights in the spirit of classic liberalism, but allows special rights for distinct groups. After the key passage—"Every individual is equal before the law and has the right to the equal protection of the law without discrimination based on race, national or ethnic origin, colour, religion, sex, age, or mental or physical disability"—we find language that provides for exceptions: "[This provision] does not preclude any law, program, or activity that has as its object the amelioration of conditions of disadvantaged individuals or groups." Reflecting a new liberal sensibility, Canada's constitution, unlike the eighteenth-century U.S. charter, makes affirmative action constitutional. In the United States, by contrast, it has required all the acrobatics of the Supreme Court to make legal the degree of affirmative action that now exists.

In the late 1980s and early 1990s, there were lengthy negotiations to gain Quebec's acceptance. They failed, and Quebec went on to hold a second hotly contested referendum on sovereignty in 1995. It was narrowly defeated, undoubtedly because of a strong "no" vote among the large minority of Anglophone Quebecers. And so matters stand. Although it did not sign the constitution, the Quebec government lives with it. When the Supreme Court declared Quebec's language law unconstitutional, the province made use of a clause in the latitudinarian constitution that permits provinces to declare that an act shall operate "notwithstanding" its violation of the Charter's provisions for equal rights.

Most Canadians have now wearied of the conflict and claim not to mind Quebec's leaving if Quebec so chooses. Quebec is quiescent also, and the rest of Canada seems willing to let the province maintain its refusal to accept the constitution. Whatever Quebec decides, there will be no

forceful or armed effort to keep it within Canada—that would go against everything Canadian. While Quebec is often governed by a party that calls for sovereignty, and on occasion a majority of public opinion supports it, the Quebec government never goes all the way, perhaps because of the incredible complexity and economic costs of fully divorcing itself from the rest of Canada.

Today the issue of Quebec's place in Canada has become mainly symbolic: Practically speaking, Quebec manages to do almost anything that it wishes. Canadian provinces are more powerful than U.S. states, and Quebec is more powerful in insisting on its differences than are other provinces. Quebec demands to be recognized as a "distinct" society, not just another province like Alberta, Prince Edward Island, and the others.

* * *

So how does democratic Canada rate in dealing with its great divide? All in all, it must at this moment be considered a success. Violence has been and will be avoided. The position of Quebec's French-speaking population has improved, both economically and socially, and it has attained a greater degree of equality, though not enough to satisfy the nationalists. At the same time, Anglophone Quebec seems at ease with the restrictions of the Quebec language legislation.

This success is due to democratic politics. The national parties must pay attention to Quebec's demands, because it elects a substantial portion of the House of Commons, which forms the ruling government. The parties must engage in a balancing act between Quebec and the rest of Canada, which often wearies of Quebec's demands. The judicial system also plays an important role, reining in Quebec's aggressive defense of its interests and, in so doing, assuring the rest of Canada that there will be limitations on Quebec's pursuit of its special position. But to Democratic Party politics and the Supreme Court we must add that unique Canadianism—that spirit of good sense and inherent moderation—to our understanding of what has made possible the relative success of Canada's efforts in dealing with its deep divide.

* * *

The overall judgment that democracy has worked does seem justified in this case. Canada remains successful and well regarded by its own citizens as well as many others who hope to become Canadians, and meanwhile the French language and culture of Quebec flourish. Did it need the legal palisades that have been erected to defend it? I wonder. Nevertheless, this is the way that democracy has worked in Quebec and in Canada.

The Case of India

Despite its complexities, the Canadian situation is gratifyingly simple compared to the Indian one. India has many problems as a democracy, beginning with unsettled frontiers—with Pakistan to the West and China to the North—that require the presence of large armed forces along the disputed borders; long-term internal insurrections that have been difficult to end or suppress; widespread deficiencies in police behavior; and a legal system that operates slowly and inefficiently. But the key characteristics of democracy are maintained: Lipset, in *Political Man*, described democracy as "a political system which supplies regular constitutional opportunities for changing the governing officials, and a social mechanism which permits the largest possible part of the population to influence major decisions by choosing among contenders for political office." This definition is generally accepted, and in those terms India is a democracy.

India began its independent life with a monumental and tragic division into two nations. Its independence movement, in the form of the Indian National Congress, could not overcome the fears of the minority Muslims—a quarter of the population of undivided India—of domination by the majority Hindus. Perhaps Muslim fears were stoked by colonial Britain's "divide and rule" policies

(Britain reserved places for India's religious minorities, particularly Muslims, in governors' councils and provincial legislatures), as many Indian nationalists claim, or perhaps they were stirred by ambitious Muslim leaders. But in the end, these fears could not be assuaged by the leaders of the Indian independence movement. Thus, as India won freedom, Pakistan—a Muslim nation composed of areas of British India with large Muslim populations—also came into being.

This initial division was accompanied by terrible scenes of massacre and murder, as Hindus and Sikhs fled the new Pakistan into the new India and Muslims fled in reverse. In the end, Pakistan included very few non-Muslims. But a huge Muslim population, now 12 percent or so of the population, remained in India and was spread throughout the country.

That is one of the key divisions within India, but we must not exaggerate its scale or intensity, despite the occasional explosion into deadly conflict: Hindus and Muslims have lived and worked together for centuries, and still do. Muslims have served independent India as president, Supreme Court justices, high ministers, and ambassadors. The relationship between Hindus and Muslims is nothing like the division between whites and blacks in U.S. history or even today. Yet despite long historical and cultural ties, the economic and political position of Muslims poses a permanent problem for India: Compared to their proportion of the population, they are underrepresented in parliament, government service, the army, and institutions of higher education.

In its first years, India also had to deal with divisions of language. India is home to innumerable independent languages, some belonging to populations and territories as large as major European nations. India's nascent democracy succeeded in finding compromises to prevent the country's break-up into separate language-based nations, as some at the time feared would happen.

Another major divide separates those once called untouchables from the rest of the majority Hindu population. Traditional Hindu society was divided into castes, arranged hierarchically. Below all other castes were the so-called untouchables, who served the higher castes by handling those aspects of life considered to be polluting—primarily the removal of human and other wastes. They were not allowed to enter temples, to draw water from village wells, to eat with other Hindus, or to attend schools. Many reform movements, including Gandhi's heroic efforts, tried to overcome caste discrimination. "Untouchability" was banned in the new constitution of India. But this great division, despite much official policy aimed at amelioration and social change, remains.

* * *

The plight of the untouchables was a different matter. A dominant figure in shaping the constitution was B.R. Ambedkar, a scheduled-caste person himself, who had attended graduate school in England and the United States under the patronage of the liberal ruler of a princely state. So while reservations for religious minorities were eliminated, one basis for reservations in the national parliament, government jobs, and university admissions survived and was entrenched in the new constitution: "Scheduled castes" and "scheduled tribes," categories created by the British, remained as groups deserving preference in the new India.

Key provisions in India's constitution proclaim equality before the law and ban discrimination on grounds "of religion, race, caste, sex, place of birth, or any of these." But right after the requirement of equality of opportunity in state employment is a key qualification: "Nothing in this article shall prevent the state from making any provision for the reservation of appointments or posts in favour of any backward class of citizens." Affirmative action was thus built into the new constitution from its adoption in 1949. But it was to be only for the scheduled castes, scheduled tribes, and "other backward classes," not for any group defined by religion. "Backward classes" could have been defined simply as the poor and disadvantaged. Instead, only those belonging to specific castes or sub-castes and specific tribes have been granted the right to reservations. Quotas and preferences in state jobs and in educational institutions went unchallenged and became entrenched in the Indian polity.

Alongside the scheduled castes and tribes, there are now the “other backward classes,” castes above the former untouchables, who also receive reservations in civil-service jobs and postsecondary education. Their power has grown as they have become politically literate, and parties compete for their votes, generally with the promise of reservations. They have also organized their own parties and have increasingly come to share power in state government and, indeed, nationally.

After the ratification of the constitution, India’s Supreme Court was called on almost immediately to resolve the contradiction between equal rights and preferences. Since then, the Court has had to hear the issue repeatedly, as it is the only institution that can limit the spread of preferences, given that political parties now use reservations to attract votes. The Court has attempted to limit preferences to less than 50 percent of available government posts or university admissions. Recently the Court has tried to prevent reservations for admission into India’s elite educational institutions—the Institutes of Technology and Administration. Unlike other universities, these highly regarded, highly selective schools have so far not been subject to reservations. It is questionable whether they could preserve their distinction if they had to accept large numbers of students on the basis of reservations.

The original preferences (15 percent for scheduled castes and 7 percent for scheduled tribes) were intended to last for only ten years, but they have instead been steadily extended and expanded. Recently, there have been proposals to extend reservations to include private-sector jobs and in some degree to cover Muslims. Indeed, quotas for Muslims have already been instituted in some states.

How well has Indian democracy managed its deep divides? It has to some extent improved the condition of the scheduled castes and tribes. But the path chosen has not effectively reached those who live in villages (the vast majority). With limited access to good elementary education, villagers have little chance at getting the government jobs or university slots that are reserved for them. Thus some scholars contend that the amelioration would have been faster had India put as much energy into providing universal elementary education and health care as it did into the extension of reservations. Moreover, despite the constitutional ban on untouchability, age-old caste restrictions prevail in many aspects of village life. In some parts of India, when the lowest castes try to improve themselves, they become victims of arson or murder, and the police cannot be depended upon to prevent these outrages.

How do the Muslims, without benefit of reservations, fare? Research shows that Muslims regularly trail Hindus in education, income, and government posts. Just as serious a concern for Muslims is the possibility of mass assaults on their communities, which have occurred a number of times, most recently in the state of Gujarat. Gujarat is ruled by the Bharatiya Janata Party (BJP), which advocates Hindutva, an ideology holding that India should be defined by Hindu culture. While Hindutva considers Jains, Buddhists, and Sikhs to be adherents of indigenous Indian religions, it excludes Muslims and Christians. The BJP does appeal for Muslim votes in some states and may put up an occasional Muslim candidate—electoral necessity will moderate even deep prejudices. Overall, however, it views Muslims as not sufficiently Indian, and its appeal to anti-Muslim sentiments helped it to become the dominant party in the coalition that governed India from 1999 to 2004.

The BJP rose to national prominence in the 1990s with a campaign to demolish a Muslim mosque that it claimed had been erected on the site of a Hindu temple. This campaign led to the demolition of the mosque and mass anti-Muslim violence. Anti-Muslim riots again erupted in the state of Gujarat in 2002. A thousand or more Muslims perished, and a hundred thousand or more fled. The police did not stop these assaults, and the state took no action against the perpetrators, despite interventions by the Supreme Court.

Security is as important for a minority as its economic or political position. The widespread lynching of blacks in the U.S. South became a rallying cause for the civil-rights movement. Events like the Gujarat riots are rare, but have enormous influence on how Muslims see their place in

India. India's unresolved conflict with Pakistan also threatens Muslims' position in India. Fortunately, however, the loyalty of Indian Muslims has not been generally questioned, and no issue has been made of possible Muslim sympathy for Pakistan. Rather, the key problem in the eyes of the BJP is that Muslims cannot be good Indians because theirs is an outsider religion and culture.

Yet even in this difficult situation, we see the moderating power of a democratic political system. The BJP was indeed returned to power in Gujarat after the 2002 massacre, but it lost power nationally in the next election. It is now in serious decline, perhaps permanently. In some states, the BJP has even tried to redefine itself and by putting up Muslim candidates. Elsewhere, reservations for Muslims have been instituted. Again, these are the result of Democratic Party politics, in which governing parties try to attract Muslim voters.

So how do we sum up India's efforts to deal with its deep divides? It has taken the route of reservations and quotas in dealing with lower castes, and may do the same with regard to Muslims. This is not ideal according to those who desire a society blind to group differences that gives equal rights to all, but it is the path that India—operating through free political competition—has chosen. The lower castes have been full participants along the way; they vote in higher percentages than do the higher castes. Quotas and reservations in India are pre-eminently a democratic choice. Experts may decry this choice, but they do not have the votes.

In much smaller measure, this is the route that the United States has taken in the form of affirmative action, now being restricted by the Supreme Court. It is also to some degree the route that Canada has chosen in relation to Quebec, allowing its distinctness and tolerating its efforts to preserve the primacy of French.

How do democracies deal with deep divides? One generalization that emerges from our consideration of two great nations, with side observations on a third, is that free political parties competing for votes, including the votes of minorities, are a key factor in moderating these divides and in bringing forth the measures that produce a degree of stability—firm in Canada, shakier in India. Another is the role of high courts, more active in the United States than in Canada and India, but accepted in all three as ultimate arbiters not to be irresponsibly challenged. Courts can take unpopular positions that elected representative bodies cannot or do not, and in so doing they sustain the liberal objectives of the three democracies. A third is the role of exceptions to a universal equal-rights liberalism that may be necessary to placate or to improve the situation of a disadvantaged or dissatisfied ethnic group. Such exceptions are enshrined in the twentieth-century constitutions of India and Canada, and have been inserted to some degree into constitutional law by the U.S. Supreme Court, operating under an eighteenth- and nineteenth-century constitution.

Not every democracy will succeed in dealing with its deep divides. But democracy has institutional features which offer the hope that every part of the population will feel part of the whole—its concerns addressed, its prosperity enabled, its security protected. Thanks to free political parties, a free press, contested elections, and an accepted supreme arbiter in the courts, democracy promises to address deep divisions more successfully than any alternative.

Questions for Discussion

- 1 Seymour Martin Lipset once said that “the more well-to-do a nation, the greater its chances to sustain democracy.” Do you agree with this statement? Why/why not?
2. Compare the affirmative action policies of the Ethiopian Constitution with those of the Indian Constitution discussed by Glazer. Do you agree with Glazer that affirmative action policies can be good instruments for dealing with deep divisions in the society?

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DOES DEMOCRACY REQUIRE PRECONDITIONS TO EMERGE AND THRIVE?

[Read the following two essays by Sheri Berman and Thomas Carothers, and discuss whether democracy requires preconditions to emerge and to be nurtured. A somewhat detailed account of the history of Western democracy has been included in the following excerpt to give you a sense of the ups and downs through which the states mentioned have passed in order to arrive at the stage where they stand today. But the question remains whether we should understand these diverse kinds of developments as occurring because of the lack of the preconditions that would jump-start democracy in a “Big Bang” manner, or whether they show that the precondition thesis is a chimera.]

Sheri Berman, “How Democracies Emerge: Lessons from Europe,” in *Journal of Democracy*, Vol. 18, No. 1 (2007). Footnotes omitted.

Few serious observers today doubt that democracy is the best form of modern political governance. Solid scholarship has shown that democracies are less likely to abuse their own citizens, rarely if ever wage war upon one another, and do at least as well as other regimes in promoting economic development. Unlike during much of the twentieth century, when radicals on both the right and the left were skeptical of democracy’s value, today the most important political discussions concern not whether it is desirable but rather how to promote and nurture it.

In this regard, a long-running debate has pitted what might be called “preconditionists” against “universalists.” The former believe that democracy generally emerges from a particular set of conditions and experiences, while the latter claim that it can come about in all sorts of ways and settings. During the 1950s and 1960s, the debate was dominated by the preconditionists, who stressed the importance of various national prerequisites and deep structural factors such as levels of socioeconomic development, degrees of socioeconomic equality and group polarization, patterns of land ownership or agricultural production, or the prevalence of certain beliefs or cultural traits. Where certain configurations of these factors were present, successful democratization was likely; where they were absent, it was unlikely. Policy makers, the preconditionists argued, needed to take this into account, and accept “the disagreeable, perhaps even tragic, fact that in much of the world the conditions most favorable to the development and maintenance of democracy are nonexistent, or at best only weakly present.”

In contrast, universalists contended that democracy could emerge through diverse paths and flourish in diverse circumstances. They believed, as Dankwart Rustow put it in 1970, that scholars should “abandon the quest for “functional requisites” and be skeptical of the idea that a “minimal level of economic development” or particular types of societal structure are “necessary prerequisites for democracy.” The “third wave” of global democratization that began in 1974 gave a strong push to the universalist view, as the shift from authoritarian to democratic rule was made in dozens of countries—including many that preconditionists would not have considered ripe for such a move. As a result, scholarship began to focus less on the structures supposedly associated with successful democracy and more on the process of democratic transitions.

* * *

By the late 1990s, however, as few new democratic transitions had been taking place and some of the earlier ones had even stalled or reversed, weariness and disappointment began to set in. The Clinton administration had made democracy promotion a highlight of its agenda; in keeping with the times, the George W. Bush administration took office in 2001 pledging a “humbler” foreign policy and more emphasis on traditional great-power relations.

The 9/11 attacks shifted the ground yet again, leading many to see democracy promotion as more important than ever. To the Clinton team's arguments that democracy was a positive good, the newly zealous Bush team added the notion that the lack of democracy was dangerous and a potent source of anti-American radicalism. They saw democracy promotion as not simply a worthwhile discretionary activity, but the necessary solution to the urgent security problems posed by tyranny and terrorism. Despite what the preconditionists might have argued, these new universalists claimed that it was precisely the sickest patients—the authoritarian regimes of the Muslim Middle East—that it was most important to cure. They were convinced that democracy could thrive where it had never before existed. Indeed, they seemed to believe in a “shock-therapy” or “Big Bang” approach, in which the key to democratization was the removal of the authoritarian elites standing in its way, after which the structures and institutions of democracy would develop spontaneously out of the desire of all peoples for freedom and self-rule.

The post-9/11 Bush administration's approach has been epitomized by the Iraq war. But as Iraq's postwar democratic experiment has floundered—and as democratic elections in Lebanon and Palestine have empowered radical Islamists such as Hezbollah and Hamas—the Bush team's approach has come under attack as being both naive and reckless. One consequence of this has been the rise of a new crop of preconditionists. They acknowledge that democracy may indeed embody all the wonderful qualities claimed for it, but insist that in practice it flourishes only where certain conditions are in place and a particular developmental path has been followed. Fareed Zakaria argues that democratic experiments embarked upon in countries with no history of liberalism (meaning the rule of law and a state willing and able to protect individual freedom) are likely to run into trouble. Edward Mansfield and Jack Snyder stress the “dangers that can arise when democratic transitions do not follow an auspicious sequence,” one in which “the strong political institutions that make democracy work (such as an effective state, the rule of law, organized parties . . . and professional news media)” develop before democratization occurs.

Preconditionists tend to believe that indiscriminate democracy promotion is ill advised, because the result in inauspicious cases is apt to be not progress but instability and illiberalism. Zakaria, for example, is explicit in his support for authoritarian regimes in many situations, not least because he believes that they are more likely than weak democratic ones to create the prerequisites for successful democratization later. Mansfield and Snyder argue that “ill-prepared attempts to democratize” countries “where the institutional requisites for successful consolidation are not yet in place . . . may lead to costly warfare in the short run, and may delay or prevent real progress toward democracy over the long term.”

Pointing to the ebbing of the third wave and the problems encountered in Mesopotamia and the Levant, the new preconditionists consider themselves to be realists. Ironically, the problem with their view is that it is not actually very realistic at all. It champions a developmental model that has been extremely rare in the past and remains so today. The history of almost all democracies has been filled with turmoil, conflict, and even violence. The main lessons this history teaches, in fact, are ones that do not mesh easily with either the simple universalist or simple preconditionist perspective: All sorts of countries can indeed undergo successful democratic development, it turns out, but the process is usually long and painful for even the most fortunately positioned of them. Understanding past cases is thus a crucial step in putting today's discussions of democratization and democracy promotion into their proper intellectual and historical context.

Democracy's Backstory

The best way to understand how stable, well-functioning democracies develop is to analyze the political trajectories that such countries have actually followed. For the most part, this leads to an examination of Western Europe and North America. Indeed, many have long regarded England in particular as the exemplar of the sequence or type of political development most likely to lead to a stable democratic outcome—a type that features gradual change, with liberalism and a well-

functioning state emerging before the transition to democracy. The United States, Scandinavia, and the Low Countries are often placed in this category with England as well, though many scholars have questioned how well any of these countries actually fits this developmental model. Among contemporary mature liberal democracies, very few have followed anything like the purported English developmental path. Instead, most have backstories that turn out on inspection to be as turbulent and unprepossessing as anything that the contemporary developing world has to offer.

In Europe, the modern struggle for democracy began with the French Revolution in 1789. Just as the twentieth century's third wave of democratization was greeted with jubilation by observers around the world, so too was the collapse of the hereditary authoritarian regime in France seen by many contemporaries as signaling the dawn of a new era. Supporters across the continent began to dress like the Jacobin revolutionaries, while intellectuals rushed to Paris to be part of the great progressive upheaval. . .

The problems started almost as soon as France's ancient régime began to fall apart. The first real attempt to construct a new political order came in 1791, with the proclamation of a constitutional monarchy with limited suffrage—the type of moderate reform that scholars applaud but publics rarely find satisfying. Both reactionaries and radicals objected, and the latter prevailed. In 1793, King Louis XVI was beheaded and a republic was declared, with universal suffrage and a commitment to a broad range of civil and political rights. Europe's first modern democracy had come into being.

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In the space of a decade, France had moved from hereditary dictatorship to democracy, to war and domestic chaos, and then back to dictatorship—albeit in the new and perhaps even more ominous form of a military dictatorship. Yet despite French democracy's rapid and inglorious collapse, its legacies were powerful and long-lived. One such legacy was a barrier to any revival of traditional absolutism. Attitudes and expectations had changed, and reforms instituted during the revolutionary period undercut many of the socioeconomic and political structures that had supported the old regime. Even when a new Bourbon king, Louis XVIII, took over from Napoleon in 1814, he ruled under a constitution that provided for a two-chamber parliament; granted suffrage to men of means; and established equality before the law, freedom of the press, and other civil liberties.

Another, less positive legacy was an extremely divided society—and as has often happened since, these divisions manifested themselves in political instability and violence. Unable to gain full control of the situation and worried about the possibility of a “White Terror” unleashed by reactionaries, Louis XVIII (d. 1824) and his successor Charles X (both younger brothers of the guillotined Louis XVI) resorted to increasing repression and sought an alliance with religious conservatives, who were granted substantial control over education, cultural affairs, and public morals in return for their support. This trend culminated when Charles X appointed Jules de Polignac, a religious fanatic, as a top minister in 1829. The government's resulting extremism and disconnect from popular needs sparked a civil war the following year.

In the end, Charles X was shipped off to exile and replaced in 1830 by a fairly moderate and liberal political order under a new king from the House of Orléans, Louis-Philippe. The new regime tried to diminish the power of the clergy and aristocracy while expanding the suffrage to include the middle (but not the lower) classes. Yet such a course—one which might now be called “liberal authoritarian”—once again met with rejection by broad swaths of French society. Reactionaries, democrats, and the lower classes alike all found reasons to resent it, and ultimately it proved unable even to satisfy sectors of the middle class. The result was renewed instability and violence. By 1848, pressure for political change had reached a critical juncture in France as well as in much of the rest of Europe.

The Revolutions of 1848

Political unrest took relatively peaceful forms at first, with French middle-class groups organizing “reform banquets” featuring antiregime rhetoric and discussions of alternative policies. The Orléanist monarchy tried to ignore the discontent, but as that became more difficult, it switched to trying to shut it down. This served only to inflame ever-growing sections of the population and fuel more and larger confrontations. One such skirmish between a crowd and government troops ended with the death of forty people. With these killings, Paris exploded. Faced with growing violence, the king fled to England.

Just as it had six decades earlier, the collapse of the French regime in 1848 sent political shock waves across Europe. From the Netherlands to Switzerland and from Scandinavia to Italy, protestors took to the streets demanding political change. Even the continent’s seemingly sturdiest dictatorships proved vulnerable. In the Austrian Empire, for example, Emperor Ferdinand found himself forced to abandon Klemens von Metternich (who had essentially run the Empire for decades), accept reforms that undercut the privileges of the imperial nobility, and give the Empire’s constituent nations elected national assemblies. Ferdinand’s Prussian counterpart King Frederick William IV, meanwhile, had to promise to call a national assembly and accept a reform constitution. As one scholar notes, “the events in Prussia seemed to complete and make definitive the collapse of absolutism” in Europe.

Although the protestors of 1848 were united in their opposition to the existing authoritarian and semi authoritarian orders, they disagreed on much else. Once again, therefore, it proved easier to bring down old regimes than to stabilize new ones. More than eight-hundred delegates from across the German-speaking lands met in Frankfurt in May 1848 to convene the first democratically elected parliament in German history, which issued a “Declaration of Fundamental Rights” calling for freedom of speech and religion, equality before the law, and representative government. But radicals and moderates disagreed over whether to call for the establishment of a republic, while other factions battled over whether the new country should include Austria. Frederick William IV simply bided his time, recognizing that the longer the reformers argued and dithered, the stronger his position would be. When the Frankfurt parliament finally offered him the crown of a new, liberal, and united Germany in April 1849, he turned it down, dismissed the parliament, and crushed the uprisings that broke out in response.

In France, meanwhile, the newly elected National Assembly was determined to prevent any outbreaks of disorder or radicalism. The Assembly called out the National Guard to deal with workers who were demanding sweeping political and economic reforms. By the time the dust settled, about 4,500 people had been killed and 12,000 arrested. This allowed the government to maintain control, but only at the price of alienating large sections of the working and lower classes. When presidential elections (under universal suffrage) were held in December 1848, the populist Louis-Napoleon Bonaparte (the previous Napoleon’s nephew) emerged as the winner.

Louis-Napoleon began to weaken the republic by circumventing its institutions and appealing directly to the people. After the Assembly refused to revise the constitution to allow him a second four-year presidential term, he decided to attack the legislature head-on. In December 1851, he had forces loyal to him occupy Paris and arrest his opponents. After brutally suppressing uprisings against this self-coup, he offered the public a plebiscite to ratify his rule. A majority ultimately allowed him to remain in office, and in the coming months he promulgated a new constitution. This gave France a sort of populist-authoritarian political system in which the president’s term of office and powers were greatly extended and the powers of the legislative branch concomitantly diminished.

Toward the First World War

By the beginning of the 1850s, the democratic wave that had swept the continent in 1848 had largely receded. But as before, significant legacies were left behind. For the first time, many Europeans had witnessed the convening of democratic parliaments and had come together to demand political change. This proved insufficient to sustain democracy, but authoritarian rulers were put on warning that if they ignored the demands of their increasingly mobilized and politically savvy populations, they would be doing so at their own peril. And indeed, the late nineteenth century turned out to be a period of significant political ferment in Europe.

In Italy and Germany, processes of national unification returned questions of political representation to the top of the political agenda. In Italy, unification was more or less complete by the 1860s; the new country was ruled by what would now probably be referred to as a liberal (although not a democratic) regime, which featured a constitutional monarchy, parliamentary government, and a lower house elected by limited suffrage. The regime, however, proved unable to deal with the new country's myriad problems and became mired in its own special form of corruption and inefficiency, termed *transformismo*. Growing frustration and dissatisfaction led to decades of instability, extremism, and even violence.

In Germany, the unified Reich that came into being in 1871 after Prussia's military defeat of France had what would now probably be characterized as a soft or liberal authoritarian regime. The Prussian king, now promoted to kaiser (caesar), was given sole control over foreign policy but had to share domestic authority with two legislative bodies: a more conservative Bundesrat (composed of delegates from Germany's constituent states, whose suffrages ranged from broad to severely restricted) and a democratically elected Reichstag. The kaiser ruled indirectly through a chancellor (who needed parliament's approval to pass important legislation but not to stay in power) and with a fairly efficient civil service that operated in the context of the rule of law.

This political halfway house began running into trouble even before Otto von Bismarck, the architect of German unification and the Reich's first chancellor, was pushed into retirement in 1890. Growing sectors of the population became increasingly frustrated by their inability to induce the government to respond to their needs and demands. The regime attempted to silence advocates of political change (such as social democrats and Catholics), but this ultimately served only to solidify and increase these groups' political support. During the late nineteenth and early twentieth centuries, these groups and others used their growing popular support and voice in the Reichstag to increase pressure for political reform.

By 1914, parties favoring political liberalization and even democratization had the backing of most voters. But with this trend came another, more disturbing one: In response to the perceived lack of responsiveness of national political institutions, increasing numbers of Germans began to turn away from the national political arena and toward increasingly polarized and often extremist civil society groups. The result was that by the eve of the First World War, Germany faced governmental deadlock, rising social tension, growing political alienation, and a willingness on the part of some conservatives to embrace risky military adventures in order to divert the public's attention and head off impending democratization.

The decades preceding the First World War saw growing political dissatisfaction and pressure for political change in other parts of Europe as well. The Austrian (or after 1867, Austro-Hungarian) Empire, for example, responded with significant reforms, including the establishment of parliamentary government and the widening of the suffrage in Austria; the resurrection of provincial legislatures; and a reinstatement of the 1848 constitution in Hungary. But these moves did not satisfy critics, and thus by the start of the First World War, the Empire's political structures and practices were already coming under mounting stress.

Spain was also experiencing political instability and transition. Having decided to depose the queen in 1868, the country could not agree on who or what should replace her. The result was a brief republican interlude from 1873 to 1874, followed by a new constitution in 1876. This constitution was modeled roughly on the key laws undergirding the unwritten British constitution, and featured restricted suffrage, a two-chamber parliament, and government ministers responsible to the legislature. Like many of its contemporary counterparts, however, this regime proved unable to deal with the country's problems and even made things worse by consistently ignoring the demands of the lower classes—thus spawning growing instability and violence.

In France, military defeat at the hands of the Germans and the resulting fall of Louis-Napoleon set off battles within French society and led to the Paris Commune's March to May 1871 takeover of the capital. Like the original Communards of the Revolutionary-era Paris city government eight decades before, the latter-day Communards demanded radical change while ignoring many of the practical problems facing the country. This allowed the Commune's opponents to recoup support and organize a military assault on Paris. By the time the dust settled, 20,000 were dead, the Commune had been extinguished, and the country set about once again trying to reconstruct a functioning political order. The Third Republic was established in 1875, and in the ensuing decades managed to safeguard and expand civil and political liberties; improve conditions for workers; and carry out important educational, cultural, and economic reforms. But its functioning was hindered by continued hostility from conservative, monarchical, and religious forces, as well as by the deep political and social divisions that plagued the country and would later explode in the bitter Dreyfus Affair of 1894 to 1906.

The Stars Align

By the time that the First World War began in 1914, Europe had already experienced decades of rising political discontent, growing political mobilization, and deepening social divisions. Significant changes had occurred, but few countries had been able to make the transition to full political democracy. The war itself had dramatic but mixed political effects. Its end brought the collapse of the old order and helped to create a democratic wave that would sweep across Germany, Austria, Sweden, Poland, Finland, Hungary, Czechoslovakia, and other countries (including at first even Russia, albeit with gains later to be catastrophically reversed by the Bolshevik Revolution). But the war's consequences and aftermath bequeathed to these new regimes and their inexperienced publics vast challenges: the reintegration of huge numbers of veterans into peacetime society; economic devastation, inflation, and sometimes an obligation to pay reparations; paralyzing political divisions; violent oppositional movements of both right and left; and, for the losers, national humiliation.

Not surprisingly, many of these young democracies were simply overwhelmed. Most of them turned out to be weak, and many were plagued by growing political violence. The results are well known. Italy collapsed into Fascism starting in 1922, with Germany falling into National Socialism, and Spain and Austria into civil war and dictatorship in the 1930s. Others—including a still seriously divided France—were weakened and left easy prey for the Nazi war machine that Hitler first unleashed against Poland in 1939. By mid-1940, Britain was standing in near-desperate isolation against the Nazis, while the democratic wave that had swept the continent just a generation earlier was little more than a memory.

In fact, it was only with the end of the Second World War in 1945 that Europe's protracted struggles with democratic development finally came to an end (and even then, only in the Western half). It now seems clear that the war and its aftermath created perfect conditions for the consolidation of democracy. The continent's old authoritarian regimes were completely defeated and in many cases replaced with relatively long-term occupations; authoritarianism more generally was discredited and its social, political, and economic support largely undermined; the world's strongest democracy—the United States—made a clear commitment to political and economic

reconstruction; and European publics themselves, after having sampled various alternatives, recognized that democracy was the superior political option.

As they went about building their new regimes, European nations were able to draw on a great deal of democratic experience. Even in places such as Italy and Germany where homegrown dictatorships had ruled, key institutions and practices of democracy—political parties, parliaments, local governments, and a free press—left over from previous periods of political liberalization were available for reclamation from the ashes and a new lease on life. With the stars finally in alignment, the battle for democracy that had begun in Europe a century and a half earlier was at last brought to a successful close.

The Twisting Path to Democracy

What does this brief historical survey show? If nothing else, it reveals that the hard-edged versions of both the preconditionist and the universalist perspectives are misguided. Democracy developed in various ways and in various local contexts across Western Europe. But it never came easily, peacefully, or in some straightforward, stage-like progression.

Even the cases most often heralded as closely meeting Weberian “ideal types” of democratic development had far more trouble reaching a stable and mature democratic endpoint than many recognize. Contrary to popular belief, the development of democracy in England had a very turbulent backstory—once you take into account the intensely violent period of the English Civil War (with intermittent fighting from 1642 to 1651), followed by Oliver Cromwell’s republican but dictatorial Commonwealth (1649–53) and then Protectorate (1653–59), a period of overt one-man rule first by Cromwell and then by his son Richard, whose May 1659 resignation set the stage for the restoration of the Stuart monarchy in 1660.

As Barrington Moore, Jr., and others have noted, without the violence and disruptions of the seventeenth and eighteenth centuries in England (the last major land battle fought in the British Isles was at Culloden Moor near Inverness, Scotland, in 1746), the peaceful development of democracy during the nineteenth century would not have been possible. Did England avoid so much of the turbulence that Europe experienced from 1789 to 1914 because England had endured so much of its own turmoil in the seventeenth century? For its part, the United States required the Civil War (1861–65)—far and away the bloodiest conflict in its history—to place it on the path of true democracy, and then another century for its national state to bring democratic rights and freedoms to the entire population.

The idea that a gradual, liberal path to democracy exists and that it makes sense to discourage countries that do not follow it from democratizing is a chimera based on a misreading or misinterpretation of history. Although such a path is certainly attractive in theory, there are in fact very few cases of stable and well-functioning democracies that have developed in this manner. Indeed, the political backstory of most democracies is one of struggle, conflict, and even violence. Problems and even failures did not preclude the success of democracy; in retrospect, problems and failures can even be seen as integral parts of the long-term processes through which nondemocratic institutions, elites, and cultures are delegitimized and eventually eliminated, and their democratic successors forged. Many contemporary analysts do not seem to realize this because of a lack of historical perspective: They often ignore or misread the frequently messy and unattractive manner in which the current crop of stable democracies actually developed.

It should hardly surprise us that many young democracies today are proving to be weak, ineffectual, illiberal, and often little more than arenas for extra parliamentary and even violent contestation. Many countries’ first or early experiments with democracy were not smooth, so why should today’s fledglings be that different? If it took France—the birthplace of modern European democracy—more than 150 years and significant amounts of violence to achieve a set of stable and successful

democratic institutions, why should democracy be expected to consolidate itself in many other parts of the world within just a few years? As was the case in France and in other parts of Western Europe, such failed experiments might well turn out to be crucial parts of long-term processes involving cultural learning and institution building—processes that eventually allow democratic governance to emerge and flourish.

The universalists are certainly correct to stress that good things such as peace, freedom, and prosperity have their best chance to blossom and grow under democracy, and to insist that its absence can indeed contribute to extremism and even terrorism. The preconditionists are also right, however, to insist that making democracy work is a painstaking project and that the initial democratization of formal institutions is but the first stage of a long and arduous process. In the end, policy makers concerned with democracy promotion face a choice between two options. Their first option is to turn their backs on progressive political development, adhere to the chilly calculus of authoritarian stability, and hope that any fallout happens well after their watch and without too much blowback. The second option is to accept that many new democracies are likely to prove uninspiring or even to fail, and to acknowledge that most outside efforts will have at best a marginal impact on democratization or democratic consolidation; knowing these suppositions, they can still decide to provide support, recognizing that stable democracy is something likely to develop over the long term only in fits and starts and possibly with much turmoil. The sad truth is that in politics, as in economics, there is no free lunch.

* * *

Questions for discussion

1. Preconditionists maintain democracy cannot start in a given political society unless and until certain conditions, such as, some level of cultural and economic development are achieved. Do you agree?
 2. Looking at the conditions of the world today, and the situations in the third world countries now, is it possible to draw similarities with the situations in European countries described in the above essay? If so, what does this say about the argument of the preconditionists?
 3. Again looking at the situation of the 17th to 19th century European states what possible arguments can you think to counter the argument that democracy needs a precondition to thrive in developing countries today?
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Thomas Carothers, “The ‘Sequencing’ Fallacy,” in *Journal of Democracy*, Vol. 18, No. 1 (2007). Footnotes omitted.

[In the same fashion as the thoughts entertained in the previous article, we see in this piece an idea that doubts the ability of democracy to triumph in the Third World states where there is no rule of law or vibrant institutions of state. The argument goes that rather than trying to jump onto the bandwagon of democratization in countries without the necessary preconditions for democracy, it is preferable to stay with stable dictators and autocrats. Carothers objects to this pattern of thought and concludes that it is fallacious.]

In the second half of the 1990s, a counter reaction emerged to the heady enthusiasm about democracy and democracy promotion that flourished during the peak years of democracy’s “third wave” in the late 1980s and early 1990s. Believing that the global democratic wave had been oversold, several policy experts and scholars produced a series of influential articles articulating a

pessimistic, cautionary view. Fareed Zakaria, alarmed by what he saw as a dangerous rash of newly elected leaders restricting rights and abusing power from Peru and Argentina to the Philippines and Kazakhstan, warned that rapid democratization was producing a plague of “illiberal democracy.” Troubled by violent conflicts breaking out in former Yugoslavia, the former Soviet Union, and elsewhere, Edward Mansfield and Jack Snyder argued that democratizing states are in fact more conflict-prone than stable autocracies. Disturbed by the specter of ethnic conflict in different parts of Asia, Amy Chua asserted that the simultaneous pursuit of democracy and market reform in countries with “market-dominant minorities” leads to ethnic conflict and anti-market backlashes.

Although their specific areas of focus and analytic frameworks varied, these different accounts coalesced around a central argument that appealed to what might be called the need for democratic sequencing. In this view, it is a mistake to assume that democratization—especially open national elections—is always a good idea. When tried in countries poorly prepared for it, democratization can and often does result in bad outcomes—illiberal leaders or extremists in power, virulent nationalism, ethnic and other types of civil conflict, and interstate wars. To prevent such results, certain preconditions, above all, the rule of law and a well-functioning state, should be in place before a society democratizes. Therefore, the United States, and the West generally, should rethink their approach and commitment to democracy promotion. In some countries, staying with an existing autocratic regime is a better alternative. Where outside actors do want to promote positive political change in a nondemocratic society, they should concentrate first on helping it to achieve the rule of law and a well-functioning state. Only much farther down the road, when those preconditions are established, should outsiders push for elections and the other associated elements of what sequentialists refer to, warily, as “mass political participation” or “mass plebiscites.”

Democratic sequentialism is one part of a wider body of skeptical thinking about democracy’s global prospects that gained popularity in the 1990s in reaction to third-wave enthusiasm. This wider body, which might be called “democratic pessimism,” is represented most vividly in the much-discussed writings of journalist Robert Kaplan. Sequentialism has found a vital place in this more generalized pessimism thanks to its concrete policy implications and intuitive appeal: Pursuing a sequential path promises to rationalize and defang democratic change by putting the potentially volatile, unpredictable actions of newly empowered masses and emergent elected leaders into a sturdy cage built of laws and institutions.

Sequentialism met a warm welcome from various parts of the international policy community. Traditional realists, who had been uneasily eyeing the ascendancy of a prodemocratic policy outlook in the 1980s and 1990s, were happy to have an additional set of arguments for downplaying democracy promotion and maintaining cordial relations with friendly autocracies. Traditional developmentalists, still loyal to old-school modernization theory’s notion that development must precede democracy and feeling upset by democracy promotion’s sudden rise to prominence, were delighted to have a new set of contrarian allies. Finally, power holders in some nondemocratic countries eagerly embraced sequentialism in order to argue that their reticence about opening up political competition actually reflected a deeper commitment to democracy in the long term.

. . . Democracy’s continued trials and tribulations, from the backsliding in the former Soviet Union to the swelling populist currents in Latin America, have provided plentiful grist for pessimism regarding this form of government. The troubling results of the Bush administration’s loudly proclaimed drive for democracy in the Middle East have been especially rich fodder. Sequentialists interpret the searing, dispiriting experience of attempted democracy-building in post-Saddam Iraq as telling evidence of the consequences of an extreme application of a “no-preconditions” outlook on democratization. Similarly, the gains of Islamists in recent elections in Egypt, Iraq, Lebanon, and Palestine appear to some observers to be further indications of the dangers of moving quickly toward elections in countries with little democratic history.

Don't Wait for the Rule of Law

The idea of sequencing rests on a mistaken two-part premise: that a significant number of autocrats can and will act as generators of rule-of-law development and state-building, and that democratizing countries are inherently ill suited for these tasks. Autocracy, however, whether liberal or nonliberal, is inherently in tension with both rule-of-law development and state-building. New or struggling democracies certainly encounter many difficulties in building the rule of law and the state, but they do not face any such inherent contradiction in doing so and enjoy at least a few advantages as well.

With regard to rule-of-law development, the presumption of sequentialists appears to be that autocrats—at least the liberal ones who figure so large in sequentialist accounts—will sedulously pursue reform either because they are enlightened and thus instinctively committed to reform, or because they feel impelled to do so by the imperatives of economic development. That is to say, in order to advance economically—which they presumably want their countries to do to keep citizens happy—they will try to strengthen the rule of law on the assumption that more efficient courts, clear and predictable laws, and other such legally related reform elements are necessary for economic progress. The reality, however, is otherwise. Despite the persistent hopes of the sequentialists, few autocrats are in fact enlightened. That is to say, few keep repression to a minimum, respect law, and are committed to a serious long-term path of gradual political and governance reforms. Bluntly stated, for every Lee Kuan Yew of Singapore there have been dozens or even hundreds of rapacious, repressive autocrats posing as reformers, leaders for whom the rule of law represents a straitjacket to be avoided at all costs.

As for the notion that a desire for economic development leads naturally to rule-of-law reform, this mechanism is weaker than it may first appear. Some autocratic regimes are simply uninterested in economic development and the welfare of their citizens. These regimes care only about holding onto power and are willing to use unrelenting, harsh repression to do so. Many autocrats have some interest in developing their country but they subordinate it to other interests that not only compromise their socioeconomic policies but undermine any serious pursuit of the rule of law. Thus, despite some commitment to socioeconomic progress, such leaders may also be fixated on enriching themselves, protecting certain privileged groups or sectors in the society, and undercutting potential political rivals. These other interests usually require deforming the rule of law in significant, even systematic ways. The terrible socioeconomic conditions and weak rule of law apparent in so many developing countries are, in many cases, a legacy of decades of misrule by autocratic regimes that claimed a deep commitment to developmental goals but in fact gave greater priority to narrower, self-interested, and countervailing concerns.

A small number of nondemocratic governments are sufficiently committed to economic development to put other interests on a lower tier for the sake of pressing forward with hard, costly reform policies. The developmentally successful East Asian states, past and present, that sequentialists usually cite as models belong to this small set. These governments may well find that their economic drive does create a need for at least some rule-of-law reforms, such as updating commercial legislation and creating functional commercial courts. Yet it remains true that substantial economic progress can be achieved without major progress toward the rule of law. The cases of China and Vietnam are telling in this regard, and they weigh heavily in the calculations of policy elites in nondemocratic countries around the world as they contemplate their developmental options. Both countries are remarkable economic success stories, particularly in terms of lifting large numbers of people out of poverty, yet they have produced sustained growth without adopting substantial parts of the overall rule-of-law agenda.

In other words, to the extent that some autocratic governments do feel pushed toward rule-of-law reform by the desire for successful economic development, it is only in the direction of a highly truncated version of the rule of law. This version usually emphasizes elements directly relating to

the commercial domain. Missing from it will be cardinal rule-of-law features such as civil and political liberties, the subordination of political power to the law, and independence of the judiciary. Some Western observers hope that reforms in the commercial law domain will over time engender reforms in the more political areas of the rule of law, with commercial law reform functioning as a sort of Trojan horse for broader rule-of-law change. Appealing though this idea may be, it is based more on hope than on experience. The story of rule of law development in countries with well-developed rule-of-law systems is not one in which the commercial domain drove progress in other areas. And careful analyses of whether the spreading of reforms across domains is actually happening in countries such as China have been reaching skeptical conclusions.

Some autocratic governments trumpet their embrace of rule-of-law reform for reasons other than those of economic development. This embrace usually takes the form of anticorruption campaigns or crime-reduction policies. Again, however, these programs are typically quite limited in scope and avoid essential components of genuine rule-of-law reform. The anticorruption campaigns, for example, usually consist of some technocratic legal changes, public education about the evils of corruption, the establishment of an anticorruption commission, and perhaps a few selective prosecutions of corrupt officials. The campaigns rarely entail a serious effort to produce deep-reaching systemic change, starting from the top and working down, by applying the law impartially and fully to all public officials and eliminating political constraints on and manipulation of the principal law-enforcement agencies. Such campaigns are not natural precursors to democratization. On the contrary, they typically form part of a defensive strategy designed to mollify public discontent and undercut rivals, all with the aim of enhancing rather than reducing the durability of the autocratic government's grip on power.

Autocracy versus the Rule of Law

The core point is that rule-of-law development and autocracy (liberal or otherwise) go poorly together. Key elements of the rule of law directly threaten autocratic rule. An independent judiciary will be a source of power and authority beyond the executive's reach. Impartial adjudication, fair and equal treatment of all persons before the law, respect for political and civil rights—all these essential components of the rule of law restrict or remove the tools that autocrats typically employ to control political life and stay in power. Autocrats tend to block or at least truncate the rule of law. Thus the idea that rule-of-law development under autocracy is a natural precursor to democracy gets the story backwards. It is the lack of democracy—that is, the persistence of autocracy in many countries—that is a fundamental obstacle to rule-of-law development.

Egypt is a telling case in point. During the 1990s, the U.S. government pushed the government of President Hosni Mubarak to carry out rule-of-law reforms, especially judicial reform, to facilitate Egypt's attempted economic reforms and to help lay the foundation for political reform and democratization further down the road. The U.S. Agency for International Development mounted one of its largest-ever rule-of-law assistance programs to help the Egyptian government move ahead in this domain.

Despite these efforts, however, rule-of-law reform made little progress in those years and remains blocked today. The Egyptian government continues to exert political control over the adjudication of sensitive cases and to oppose efforts by judges to exert greater independence. The Egyptian security forces continue to operate in an opaque and frequently abusive manner. The government maintains the 25-year-old state of emergency, limiting citizens' basic rights and preserving wide discretionary legal authority for the government. Whether it is Western or Egyptian officials who voice it, the argument that Egypt must lay down a rule-of-law foundation before it can raise the edifice of democratization verges on the self-serving. It seems to provide a way for the West to justify its continued tolerance of a lack of democracy in Egypt, and for the Mubarak government to excuse its own nondemocratic behavior. Democratization in Egypt does not await the rule of law. Rather it is the lack of genuine democratization there—thanks to the Mubarak government's

paralyzing grip—that is preventing rule-of-law development. Only if there is a serious political opening, including free and fair competition for the presidency, will there be any real hope for deep-reaching reforms to build the rule of law.

Russia provides another relevant example. When President Vladimir Putin came to power in 2000, rule-of-law reform was one of his declared priorities. Many Russians, as well as Western officials, applauded this emphasis, believing that Russia had erred in the 1990s by proceeding too rapidly with democratization without having first created a proper rule-of-law base. Yet Putin's rule-of-law drive has foundered. The exercise of law in Russia today is marred by serious, systematic deficiencies that stem from Putin's approach to wielding political power: the politicized use of statutes to punish political opponents, the continued growth of a shadowy and unaccountable security elite with its hands on the state apparatus, and politically based favoritism and interference in adjudication.

Putin's backing away from democracy feeds these rule-of-law problems. Reduced media freedom, diminished tolerance for political opposition, and the undermining of electoral mechanisms that might establish basic political accountability undercut the capacity of Russian society to call attention to and push back against rule-of-law abuses and shortcomings. As in Egypt, prescribing more rule of law in Russia as the basis for eventual democratization gets it backwards: More democratization is vital to strengthening the rule of law.

Highlighting the intrinsic tensions between autocracy and the rule of law does not mean that rule-of-law development will be simple or inevitable under democracy. Democratizing countries struggle hard with rule-of-law development and fall short in countless ways. Various aspects of democratization can directly contribute to rule-of-law problems. The introduction or reintroduction of elections into a formerly closed society can heighten political patronage in the judicial domain. The relaxation of authoritarian controls can fuel a generalized weakening of law enforcement, leading to a surge in crime. Political parties grasping for power in new democracies exhibit a distressing tendency to become cesspools of corrupt financing and influence.

At the same time, other aspects of democratization facilitate rule-of-law development. As Rebecca Bill Chavez shows in her illuminating study of the state of law in two Argentine provinces, alternation in power contributes significantly to rule-of-law progress by helping to break up stagnant concentrations of power. The lines of accountability between citizens and the state that elections help to create, however imperfectly, fortify efforts to hold public officials to the law, a central part of rule of law development. Despite frequent failings in criminal-law enforcement, even very weak democratizing governments usually greatly reduce gross abuses of human rights compared to their authoritarian predecessors.

Most importantly, unlike with autocracy, no inherent conflict exists between democracy and the rule of law. On the contrary, the two concepts are inextricably intertwined. They share crucial components such as respect for political and civil rights and the subordination of power holders to law. Many elements of democratization bring progress toward the rule of law and vice-versa. The close association around the world of established rule of law and consolidated democracy is not a coincidence. As Marc F. Plattner has argued, attempting to draw a line or posit a sequential path between rule-oriented liberalism and liberal democracy is futile—the history of the established Western democracies is in many places a story of their simultaneous development and mutual reinforcement.

The State-Building Challenge

Similar arguments apply to state-building, the other precondition for democracy that sequentialists frequently prescribe. It is true that many democracy promoters have tended to underestimate the importance of a capable state. They have taken too long to move away from the assumption, which

took hold during the peak years of the third wave, that the core challenge for democracy promotion in countries moving away from authoritarianism is diminishing or counterbalancing an overly strong state. In many authoritarian societies, the state is heavy-handed and repressive but weak in terms of core capacity, for reasons discussed below. Thus in most postauthoritarian contexts, strengthening state capacity should usually be a priority alongside democratization.

In certain situations, democratization does need to wait for state-building. Where a state has completely collapsed or failed under the lash of civil conflict or other accumulated or acute calamities, moving rapidly toward open political competition and elections makes no sense. The state will need to have at least minimal functional capacity as well as something resembling a monopoly of force before such a country can pull itself onto the path of sustainable, pluralistic political development.

Yet the sequentialists are misguided in propounding the idea that democratization must wait until there exists not merely an adequate but a well-functioning state—one with capable, impartial institutions and a solid capacity to develop, legislate, and implement effective policies. This mistaken idea rests on the seductive but illusory notion that autocrats are natural state builders, harking to the image of firm, sober strongmen imbued with a state-building ethos, à la Mustafa Kemal Atatürk or Otto von Bismarck. Yet as with rule-of-law development, for every effective state-building strongman of the past century, there have been dozens more autocrats whose self-serving, erratic leadership has resulted in tremendously debilitated states rife with patronage, corruption, and incompetence.

As Joel Migdal observes in his definitive work on state-building in developing countries, autocrats are in fact poorly suited for the second phase of state-building—that is, the one that goes beyond asserting a monopoly on force and creating a basic state framework in order to develop an effective state bureaucracy that can carry out the many functions demanded of a modern state. It is this second phase that sequentialists emphasize when they talk about the need for “a developed infrastructure of impartial administration” prior to democratization. Like rule-of-law development, with which it is linked, this second phase of state-building is in fundamental tension with autocratic rule. Autocrats habitually misuse the state—as a source of corrupt income for themselves and their cronies, as a tool to persecute and suppress critics or rivals, and as a parking place for favored friends and groups. Conventional state-building goals such as efficiency and impartiality only render a state apparatus less malleable for the autocrats’ purposes....

Fledgling democratic governments also struggle with state-building. As with rule-of-law development, various aspects of democratization can complicate the task. New political parties looking for sources of strength may abuse the state in their push to build patronage networks. A period of weak, shifting coalition governments can set back institution-building and sustained policy implementation. At the same time, however, some parts of a democratization process can contribute to state-building. The establishment of public accountability through voting may create incentives for good state performance. Opening up a closed media will allow greater public scrutiny of poorly performing areas of state function. Creating space for independent civil society permits advocacy groups to monitor and critique state performance and work together with the state to offer new policy ideas.

State-building is not necessarily successful in new democracies. Yet unlike with autocracies, there is no basic underlying tension between an effective state and a successful democratic government. It is no coincidence that almost all of the most effective states in the world today are in democratic countries. As with the rule of law, state-building beyond the initial stage is best pursued at the same time as democratization, with an effort to find points of complementarity and mutual reinforcement. Doing this will involve many complications, of course, but the alternative—betting that an autocratic government will avoid lapsing into the dysfunctional habits that have undermined the state performance of so many autocracies in the past—is usually worse.

Gradualism, Not Sequencing

Sequentialists' ideas about democratic preconditions go too far. Their raising of the issue, however, is helpful. It highlights the need to pay more attention to the effects that a country's underlying economic, social, and political conditions, structures, and historical legacies will have on the chances that a democratic transition can succeed there. With striking breadth and speed, the third wave upended the lingering conventional wisdom from the 1960s about democratic preconditions, which stressed the need for a middle class and other attributes of economic development. Democracy promoters in the 1980s and 1990s embraced the view that democracy could succeed anywhere, and could do so quickly. They focused on the mode of transition as a key determinant of success. In so doing, they tended to underestimate the complications that different underlying conditions could present and to overestimate the power of elections alone to produce fundamental political change.

As the third wave has aged, however, and many "transitional countries" have fallen short of early hopes, the importance of underlying conditions and structures for democratic success has become increasingly evident. A large array of such factors is relevant, but the record of recent years indicates that five are of particular importance:

- Level of economic development: In general, the wealthier a country is, the better will be its chances of consolidating a democratic transition.
- Concentration of sources of national wealth: Countries whose national wealth comes mainly from highly concentrated sources (such as oil or mineral deposits) tend to experience significant difficulties with democratization.
- Identity-based divisions: Countries where the population is divided along ethnic, religious, tribal, or clan lines often have a harder time with democratization than more homogeneous societies.
- Historical experience with political pluralism: Countries with little record of political pluralism almost always have a harder time with democratization than those having such experience.
- Nondemocratic neighborhoods: Countries in regions or sub regions where most or all of the countries are nondemocratic usually struggle more with democratization than do countries in more democratic neighborhoods.

These five factors should not be thought of as preconditions, a term that causes considerable confusion among analysts. The factors are not prior requirements, without which democratization cannot advance significantly. Rather they are core facilitators or no facilitators. We should understand them as making democratization harder or easier, and not either certain or impossible. When several or all of them lean decisively in a positive direction, a country has a much better chance of succeeding with democratization than when they lean in the other direction. All of them come in gradations; they are not black-or-white conditions. Taken together they form a continuum of likelihood of democratic success, not a bipolar division between countries that can be democratic and countries that cannot.

We can see that these factors are not preconditions by thinking of the counterexamples that can be named with relation to each. The ranks of democracies, after all, include poor countries: not only India, that perennial favorite, but also Panama, Suriname, Botswana, Lesotho, and Senegal. At least one very successful democracy, Norway, has highly concentrated sources of national wealth (North Sea oil). Many democracies, including some longstanding ones such as Switzerland, Canada, and Belgium, contain deeply entrenched identity-based divisions. A lack of experience with political pluralism has unquestionably hurt many third wave democratic efforts, but at least a few countries lacking such experience (Mongolia, Georgia, and Ukraine), have made a partially successful run at democracy. Nondemocratic neighborhoods are problematic but not a complete bar, as evidenced by

India in the first few decades of its postcolonial existence, Costa Rica in the 1960s and 1970s, and Israel for decades.

* * *

One avenue of this search leads to a more gradualistic approach to democratization and democracy promotion. Democratic gradualism is different from sequencing. It does not entail putting off for decades or indefinitely the core element of democratization—the development of fair and open processes of political competition and choice. It involves reaching for the core element now, but doing so in iterative and cumulative ways rather than all at once. Gradualism can take different forms depending on the context.

With respect to societies emerging from violent conflicts, for example, a valuable debate has emerged among democracy promoters in recent years about the dangers of “premature elections.” Advocates of moving more gradually toward elections in such contexts are not arguing for indefinite delay pending the creation of deep structural conditions. The idea, rather, is to put off elections for at most several years to allow in-depth negotiations between contending political groups, so that the main political forces can get used to dealing with one another peacefully and agree on the rules of the game before potentially divisive elections are held. As the case of South Africa’s unhurried approach to elections in the early 1990s demonstrates, citizens eager to have their chance to vote will be willing to wait if the delay in voting is clearly limited and if it is tied to an inclusive process of building a national consensus.

Authoritarian governments that show some genuine interest in reform, usually as part of a quest for economic development, often claim that they are gradualist democratizers. Such claims are usually false. The brand of pseudo democratic gradualism that authoritarians tout typically overstates the political impact that economic reforms will likely exert, and limits political reforms to very minor steps. In places such as China and parts of the Middle East, democracy promoters are increasingly seeking a middle path between unrealistic calls for sudden political openings and excessive praise for minor reforms. This new approach highlights the need for small but significant steps that create space and mechanisms for true political competition and point the way to an eventual end of the rulers’ monopoly on power. Such steps might include allowing independent civil society organizations that engage in politically related advocacy; permitting the establishment of political associations or other types of protoparties independent of the ruling party; holding local or provincial elections in which not just independent candidates but candidates representing these political associations can compete; and tolerating a modicum of open public space in which truly independent media can operate and criticism of the rulers can find voice.

In semiauthoritarian countries, power holders often abuse the concept of gradualism by claiming that their partial political liberalization is a necessary halfway house on the way to democracy, when in fact it is a means to avoid altogether the kinds of far-reaching political changes that would threaten semiauthoritarian rule. Democracy promoters who are determined to avoid becoming enablers of such false gradualism should focus on strategies aimed at rendering more meaningful such political competition as does exist. A list of such strategies would feature the creation of a genuinely independent system of electoral administration; the legalization of excluded political parties; the reinforcement of those institutions, such as legislatures, in which a degree of real pluralism is already extant; the securing of permission for independent citizens’ groups to monitor and criticize elections and other key aspects of the political process; and the diminution via constitutional reform of those zones of political power that remain exempt from the competitive process.

Gradualism is not a magic bullet. It can be easily misused by those who are insincere about democratization. It gives democracy promoters no great new forms of influence that they can use to enhance their mostly modest role. It does not mean that democracy will never go awry or disappoint. And it is not universally applicable—there will still be places where pushing for rapid

movement toward elections makes sense, and others where no signs of movement toward political pluralism are detectable at all. But gradualism is a vital additional approach that is being added, and should be further developed as part of the broader evolution of democracy promotion away from a standard transitional template. The difference between gradualism and sequentialism may at first appear subtle or merely semantic. In fact, however, it is fundamental. Gradualism is a different way of engaging in or pushing for democratization now, in service of a belief in democratic possibility. Sequentialism is a method for putting off democratization until some uncertain future time, rooted in skepticism about democracy's value and chances.

Questions for discussion

1. The discussion in Carothers' as well as Berman's articles regarding preconditions for democracy raise the issue of which – democracy or constitutionalism and the Rule of Law – should come first. Is this a serious question which is worth exploring?
 2. What are the two areas which sequentialists particularly target as needed before democracy can be put in place? How does Berman respond to the arguments raised by sequentialists?
 3. How do you understand Carothers' idea of gradualism? How is it different from sequentialism? What arguments does he offer so that "gradualism" is not abused by tactful authoritarians? Are you convinced by his arguments on gradualism?
 4. Carothers talks about what he calls "core facilitators or non-facilitators" of democracy, the existence of which make democratization harder or easier. Do you agree with his assertion in relation to each of those "core facilitators or non-facilitators"?
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IS THERE A RIGHT TO DEMOCRATIC GOVERNANCE?

[Thom Franck argues that there is an emerging right to democratic governance. Read the following excerpt from his 1992 essay and see how persuasive his arguments are. Earlier Sen has argued that democracy is a universal value; now Franck takes that a bit further and says there is a right to democratic governance. A key question remains: how citizens of authoritarian regimes will be able to exercise this right. Keep this challenge in mind as you read Franck's argument excerpted below.]

Thomas M. Franck, "The Emerging Right to Democratic Governance," in *The American Journal of International Law*, Vol. 86, No. 1 (1992). Footnotes Omitted.

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THE POWER OF DEMOCRATIC LEGITIMACY

More than two centuries have elapsed since the signatories of the U.S. Declaration of Independence sought to manifest two radical propositions. The first is that governments, instituted to secure the "unalienable rights" of their citizens, derive "their just powers from the consent of the governed." We may call this the "democratic entitlement." The second proposition, perhaps less noted by commentators, is that a nation earns "separate and equal station" in the community of states by demonstrating "a decent respect to the opinions of mankind." The authors of the Declaration apparently believed that the legitimacy of the new Confederation of American States was not made evident solely by the transfer of power from Britain but also needed to be acknowledged by "mankind." This we may perceive as a prescient glimpse of the legitimating power of the community of nations.

For two hundred years, these two notions have remained a radical vision. The purpose of this essay is to demonstrate that the radical vision, while not yet fully word made law, is rapidly becoming, in our time, a normative rule of the international system. In the process, the two notions have merged. Increasingly, governments recognize that their legitimacy depends on meeting a normative expectation of the community of states. This recognition has led to the emergence of a community expectation: that those who seek the validation of their empowerment patently govern with the consent of the governed. Democracy, thus, is on the way to becoming a global entitlement, one that increasingly will be promoted and protected by collective international processes.

THE VALIDATION OF GOVERNANCE

. . . Equally significant is the reaction of governments in the Organization of American States and the United Nations General Assembly to the overthrow, in September 1991, of the elected President of Haiti, Jean-Bertrand Aristide, by a military coup. On October 11, the Assembly unanimously, without vote, approved a ground-breaking resolution demanding the return of Aristide to office, full application of the Haitian Constitution and full observance of human rights in Haiti. The OAS, a week earlier, had unanimously recommended that its member states take “action to bring about the diplomatic isolation of those who hold power illegally in Haiti” and “suspend their economic, financial, and commercial ties” with the country until constitutional rule is restored.

In both [the failed coup in the Soviet Union in August 1991] . . . and the Haitian cases, the leaders of states constituting the international community vigorously asserted that only democracy validates governance. This dramatic statement attains even more potency if, as in the Haitian case, it is transposed from political philosophy, where it is “mere” moral prescription, to law, where a newly recognized “democratic entitlement” was used in both the OAS and the UN General Assembly to impose new and important legal obligations on states. The OAS resolution, for one, stated that “the solidarity of the American states and the high aims which are sought through it require the political organization of those states on the basis of the effective exercise of representative democracy.” Undeniably, a new legal entitlement is being created, based in part on custom and in part on the collective interpretation of treaties.

This newly emerging “law”—which requires democracy to validate governance—is not merely the law of a particular state that, like the United States under its Constitution, has imposed such a precondition on national governance. It is also becoming a requirement of international law, applicable to all and implemented through global standards, with the help of regional and international organizations.

The transformation of the democratic entitlement from moral prescription to international legal obligation has evolved gradually. In the past decade, however, the tendency has accelerated. Most remarkable is the extent to which an international law-based entitlement is now urged by governments themselves. This is a cosmic, but unmysterious, change. For nations surfacing from long, tragic submergence beneath bogus “people’s democracy” or outright dictatorship, the legitimation of power is a basic, but elusive, move in the direction of reform. As of late 1991, there are more than 110 governments, almost all represented in the United Nations, that are legally committed to permitting open, multiparty, secret-ballot elections with a universal franchise. Most joined the trend in the past five years. While a few, arguably, are democracies more in form than in substance, most are, or are becoming, genuinely open to meaningful political choice. Many of these new regimes want, indeed need, to be validated by being seen to comply with global standards for free and open elections.

That governments themselves now argue for the entitlement merely indicates their long-overdue recognition of an immutable fact of life: government cannot govern by force alone. To be effective, pace Austin, law needs to secure the habitual, voluntary compliance of its subjects; it cannot rely entirely, or even primarily, upon the commanding power of a sovereign to compel obedience.

Consequently, governments no longer blinded by the totalitarian miasma seek to validate themselves in such a way as to secure a high degree of voluntary public acquiescence in the governing process. Consent benefits the governing as much as the governed: that sociological truism is at last becoming a political axiom. In western industrialized nations, at least since the middle of the nineteenth century, such validation has increasingly been sought and achieved by governments. This is the hard-won tradition most of the world now seeks to emulate.

Since the beginning of the twentieth century, however, there has also been a countertendency. The notion of democracy as validation has been challenged, quite powerfully, first, by the notion of the “dictatorship of the proletariat” and, more recently, by a related theory of forced-march “modernization.”

The doctrine of the dictatorship of the proletariat argued, with considerable force, that governing, especially in an industrial society, should not be an art but a science. It postulated, at least in theory, a dictatorship of trained and doctrinally correct economists, administrators, sociologists and political scientists capable of implementing correct policies. The complexities of governance were thought to be too great to be left to amateurs selected by the vagaries of popular passion.

The contemporary theory of “modernization,” which originated in the European fascist-charterist dictatorships of the 1930s, found new respectability among leaders of postcolonial Latin America, Africa and Asia, as well as some western friends of the Third World. In the Third World, it was argued, the task of modern nation building-melding disparate tribes and clans to create new economies of scale-was said to warrant suspending imported bourgeois democratic values which, at any rate, were virtually meaningless in a largely rural, communal and illiterate society. The model was not a pompous Mussolini making Italian trains run punctually but Oliver Cromwell dismissing Parliament and getting Britain organized. In a few Countries-Singapore, South Korea and Taiwan-the model seemed to work for a time, in the sense that much social and economic progress was achieved. In most instances, however, the implied promise was not kept.

Since the middle of the 1980s, both the “dictatorship of the proletariat” and the theory of “modernization” have collapsed under the weight of their evident failure. Throughout socialist Eastern Europe and in most of the dictatorships of Africa and Asia, the people have rejected both theories, together with the espousing governments, beginning with the televised popular revolution against Ferdinand Marcos in the Philippines. Instead, people almost everywhere now demand that government be validated by western-style parliamentary, multiparty democratic process. Only a few, usually military or theocratic, regimes still resist the trend. Very few argue that parliamentary democracy is a western illusion and a neocolonialist trap for unwary Third World peoples.

This almost-complete triumph of the democratic notions of Hume, Locke, Jefferson and Madison-in Latin America, Africa, Eastern Europe and, to a lesser extent, Asia-may well prove to be the most profound event of the twentieth century and, in all likelihood, the fulcrum on which the future development of global society will turn. It is the unanswerable response to those who have said that free, open, multiparty, electoral parliamentary democracy is neither desired nor desirable outside a small enclave of western industrial states.

* * *

Questions for Discussion

1. Do you agree with Franck that there is an emerging right to democratic governance to be enforced by organized international bodies like the UN or the African Union (AU)?
2. The AU adopted the African Charter on Democracy, Elections and Governance in 2007 which entered into force on 15 February 2012, 30 days after the deposit of the 15th ratification by Cameroon. The Charter contains several interesting matters that if genuinely enforced will make it a vanguard of democracy, free and fair elections, and good governance. Art. 23 of the Charter provides that the use of *coup d'état* against a democratically elected Government; any

intervention by mercenaries to replace a democratically elected government; any replacement of a democratically elected government by armed dissidents or rebels; any refusal by an incumbent government to relinquish power to the winning party or candidate after free, fair and regular elections; or any amendment or revision of the constitution or legal instruments, which is an infringement on the principles of democratic change of government are illegal means of accessing or maintaining power and constitute an unconstitutional change of government which shall draw appropriate sanctions by the AU. The Charter then details out in Arts. 24 and 25 measures that will be taken by the Peace and Security Council of the AU regarding the illegal government and the personalities involved in that illegal activity. Nevertheless, Coups have taken place after the entry into force of the Charter, for example in Mali (2012, 2020 and 2021), Burkina Faso (2014), Sudan (2019, 2021), Guinea (2021), and Chad (2021). Although, the pressures against coups by the international bodies like the AU are encouraging developments, many African citizens still doubt that the AU will emerge as a meaningful promoter of democracy, given that so many coups have taken place under its watch. What is your opinion about the potential effectiveness of the AU's efforts to support democratic change in the short run?

B. ELECTIONS AND ELECTORAL SYSTEMS

The foregoing discussion on democracy has, in one way or another, brought the issue of elections to your attention. What runs through the discussions by the scholars whose works have been highlighted is the centrality of elections to democracy and democratic governance. Granted, democratic governance requires more than the conduct of free and fair periodic elections. It entails government to be open and transparent, ready to allow popular participation and consultation on major national issues, genuinely committed to the protection of individual and minority rights.

As regards electoral systems, countries have adopted different types of electoral systems. The major ones are the “majority” electoral system, the most well-known variant of which is the “First Past the Post” (FPTP) system, and “Proportional Representation” (PR) system. There is also a third election system, which is known as the “Semi-proportional Representation System” or hybrid (mixed) system. Proportional Representation can take many forms, such as the “List System,” the “Mixed Member System” and the “Preference Voting System.”

FPTP is a system whereby a single member is elected from an electoral district. In this system, the candidate that obtains more votes than others is elected, theoretically, even if that person only receives less than 50 percent of the votes cast in the concerned constituency. The countries that use this system of election include the U.S.A., Canada, G. Britain, France, Bangladesh, Gambia, Ghana, Guatemala, Ivory Coast, Jamaica, Kenya, Kazakhstan, N. Korea, S. Korea, Malawi, Malaysia, Nepal, Nigeria, Papua New Guinea, Rwanda, Singapore, Sudan, Swaziland, Botswana, Tanzania, Uganda, Zambia, Zimbabwe, Ethiopia, and India.

The PR system is an electoral system in which representatives are elected from multi-seat districts in proportion to the number of votes received. The number of seats a party obtains depends on the percentage of the votes cast in its favor. This very roughly means that if a party receives 30% of the votes, it also receive approximately 30% of the seats in the relevant legislative assembly; 10 % of the votes receive 10% of the seats in the legislature, and so on. A minimum number of seats is required as a threshold to earn representation in the legislature, and usually a 5% threshold is used. Israel uses a 3% threshold. Countries that follow some version of the PR system include Germany, Sweden, Switzerland, Belgium, Denmark, Holland, Austria, Australia, Italy, Japan, Israel, Brazil, and Norway.

Both FPTP and PR types of electoral systems have their own strong and weak points. The FPTP is simple to understand and gives voters the chance to express a view on which party should form the next government. The system also tends to produce a single party government which can adopt policies and legislation without the need to rely on the consent and support of any other party. FPTP provides a close link between members of the legislature and their constituency, and it also represents the views of the people, as the candidate with the greatest support wins through a fair process. The problem with FPTP is that it leads to wastage of votes since only a single candidate is to be elected from a given constituency. It also is said that it will result in a lack of choice given to the voters. As the candidates are selected by a small number of party members (and, in most cases, voters can only choose between parties), if the candidate selected for your party has views with which you disagree, you are left with no alternative within that party. FPTP might also result in the unequal representation of voters.

The PR system, on the other hand, creates a system whereby votes cast would not be wasted and thus encourages greater voter turnouts. It gives the chance for diverse representation diverse political parties and, thus, political opinions. It encourages candidates to run cleaner campaigns on the issues than in the FPTP system. It gives a better chance for minorities and women to be represented. The disadvantages of the system are that it will not give voters a chance to choose their favorite representative in their constituency. It may also result in a very fragile government that is not in a position to implement its policies.

Indeed, there is no single electoral system that is optimal or best for all political contexts. Political systems vary in respect to such aspects as the nature, ideology and composition of major political groupings that seek power and which shape the systems' politics. It is generally agreed upon that the basic test for choosing an electoral system is the consensus of the political elites and ordinary citizens that the chosen system constitutes a viable set of rules to sustain the electoral process and enable the conduct of free and fair elections. It is also a decision that requires a high level of consensus and compromise among the political leaders, elites, and ordinary citizens.

Universal Instruments and Elections

Article 21 of the 1948 Universal Declaration of Human Rights, summarized above, sets out the basic premises for "election rights," which were later developed in article 25 of the 1966 Covenant on Civil and Political Rights:

Every citizen shall have the right and the opportunity, without any of the distinctions mentioned in article 2 and without unreasonable restrictions:

- (a) To take part in the conduct of public affairs, directly or through freely chosen representatives;
- (b) To vote and to be elected at genuine periodic elections which shall be by universal and equal suffrage and shall be held by secret ballot, guaranteeing the free expression of the will of the electors;
- (c) To have access, on general terms of equality, to public service in his country.

Such a formal provision might be of little substantive impact, however, were it not for the "political and campaign rights" that are "critical to a meaningful election process." Articles 19, 21 and 22 of the Covenant are particularly relevant:

Article 19

1. Everyone shall have the right to hold opinions without interference.
2. Everyone shall have the right to freedom of expression; this right shall include freedom to seek, receive and impart information and ideas of all kinds, regardless of frontiers,

either orally, in writing or in print, in the form of art, or through any other media of his choice.

3. The exercise of the rights provided for in paragraph 2 of this article carries with it special duties and responsibilities. It may therefore be subject to certain restrictions, but these shall only be such as are provided by law and are necessary:

- (a) For respect of the rights or reputations of others;
- (b) For the protection of national security or of public order (*ordre public*), or of public health or morals.

Article 21

The right of peaceful assembly shall be recognized. No restrictions may be placed on the exercise of this right other than those imposed in conformity with the law and which are necessary in a democratic society in the interests of national security or public safety, public order (*ordre public*), the protection of public health or morals or the protection of the rights and freedoms of others.

Article 22

1. Everyone shall have the right to freedom of association with others, including the right to form and join trade unions for the protection of his interests.

2. No restrictions may be placed on the exercise of this right other than those which are prescribed by law and which are necessary in a democratic society in the interests of national security or public safety, public order (*ordre public*), the protection of public health or morals or the protection of the rights and freedoms of others . . .

These above political rights, coupled with the collective entitlement to free and fair elections, together offer a legal basis for a claim to representative government. The simple existence of the rights to elect and be elected remains meaningless unless these democratic rights are concomitantly respected in a political system.

Declaration on Criteria for Free and Fair Elections

[The following Declaration was adopted by the Inter-Parliamentary Council at its 154th Session in Paris on 26 March 1994. Of the Union's 129 Member Parliaments, 112 were represented at the Conference when the Declaration was adopted.]

* * *

1. Free and Fair Elections

In any State the authority of the government can only derive from the will of the people as expressed in genuine, free and fair elections held at regular intervals on the basis of universal, equal and secret suffrage.

2. Voting and Elections Rights

- (1) Every adult citizen has the right to vote in elections, on a nondiscriminatory basis.
- (2) Every adult citizen has the right to access to an effective, impartial and non-discriminatory procedure for the registration of voters.
- (3) No eligible citizen shall be denied the right to vote or disqualified from registration as a voter, otherwise than in accordance with objectively verifiable criteria prescribed by law, and provided that
Such measures are consistent with the State's obligations under international law.
- (4) Every individual who is denied the right to vote or to be registered, as a voter shall be entitled to

appeal to a jurisdiction competent to review such decisions and to correct errors promptly and effectively.

- (5) Every voter has the right to equal and effective access to a polling station in order to exercise his or her right to vote.
- (6) Every voter is entitled to exercise his or her right equally with others and to have his or her vote accorded equivalent weight to that of others.
- (7) The right to vote in secret is absolute and shall not be restricted in any manner whatsoever.

4. Candidature, Party and Campaign Rights and Responsibilities

- (1) Everyone has the right to take part in the government of their country and shall have an equal opportunity to become a candidate for election. The criteria for participation in government shall be determined in accordance with national constitutions and laws and shall not be inconsistent with the State's international obligations.
- (2) Everyone has the right to join, or together with others to establish, a political party or organization for the purpose of competing in an election.
- (3) Everyone individually and together with others has the right:
 - To express political opinions without interference;
 - To seek, receive and impart information and to make an informed choice;
 - To move freely within the country in order to campaign for election;
 - To campaign on an equal basis with other political parties, including the party forming the existing government.
- (4) Every candidate for election and every political party shall have an equal opportunity of access to the media, particularly the mass communications media, in order to put forward their political views.
- (5) The right of candidates to security with respect to their lives and property shall be recognized and protected.
- (6) Every individual and every political party has the right to the protection of the law and to a remedy for violation of political and electoral rights.
- (7) The above rights may only be subject to such restrictions of an exceptional nature which are in accordance with law and reasonably necessary in a democratic society in the interests of national security or public order (*ordre public*), the protection of public health or morals or the protection of the rights and freedoms of others and provided they are consistent with States' obligations under international law. Permissible restrictions on candidature, the creation and activity of political parties and campaign rights shall not be applied so as to violate the principle of nondiscrimination on grounds of race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status.
- (8) Every individual or political party whose candidature, party or campaign rights are denied or restricted shall be entitled to appeal to a jurisdiction competent to review such decisions and to correct errors promptly and effectively.
- (9) Candidature, party, and campaign rights carry responsibilities to the community. In particular, no candidate or political party shall engage in violence.
- (10) Every candidate and political party competing in an election shall respect the rights and freedoms of others.
- (11) Every candidate and political party competing in an election shall accept the outcome of a free and fair election.

4. The Rights and Responsibilities of States

- (1) States should take the necessary legislative steps and other measures, in accordance with their constitutional processes, to guarantee the rights and institutional framework for periodic and genuine, free and fair elections, in accordance with their obligations under international law.

In particular, States should:

- Establish an effective, impartial, and non-discriminatory procedure for the registration of voters;
 - Establish clear criteria for the registration of voters, such as age, citizenship and residence, and ensure that such provisions are applied without distinction of any kind;
 - Provide for the formation and free functioning of political parties, possibly regulate the funding of political parties and electoral campaigns, ensure the separation of party and State, and establish the conditions for competition in legislative elections on an equitable basis;
 - Initiate or facilitate national programs of civic education, to ensure that the population are familiar with election procedures and issues;
- (2) In addition, States should take the necessary policy and institutional steps to ensure the progressive achievement and consolidation of democratic goals, including through the establishment of a neutral, impartial or balanced mechanism for the management of elections. In so doing, they should, among other matters:
- Ensure that those responsible for the various aspects of the election are trained and act impartially, and that coherent voting procedures are established and made known to the voting public;
 - Ensure the registration of voters, updating of electoral rolls and balloting procedures, with the assistance of national and international observers as appropriate;
 - Encourage parties, candidates and the media to accept and adopt a Code of Conduct to govern the election campaign and the polling period;
 - Ensure the integrity of the ballot through appropriate measures to prevent multiple voting or voting by those not entitled thereto;
 - Ensure the integrity of the process for counting votes.
- (3) States shall respect and ensure the human rights of all individuals within their territory and subject to their jurisdiction. In time of elections, the State and its organs should therefore ensure:
- That freedom of movement, assembly, association and expression are respected, particularly in the context of political rallies and meetings;
 - That parties and candidates are free to communicate their views to the electorate, and that they enjoy equality of access to State and public-service media;
 - That the necessary steps are taken to guarantee non-partisan coverage in State and public-service media.
- (4) In order that elections shall be fair, States should take the necessary measures to ensure that parties and candidates enjoy reasonable opportunities to present their electoral platform.
- (5) States should take all necessary and appropriate measures to ensure that the principle of the secret ballot is respected, and that voters are able to cast their ballots freely, without fear or intimidation.
- (6) Furthermore, State authorities should ensure that the ballot is conducted so as to avoid fraud or other illegality, that the security and the integrity of the process is maintained, and that ballot counting is undertaken by trained personnel, subject to monitoring and/or impartial verification.
- (7) States should take all necessary and appropriate measures to ensure the transparency of the entire electoral process including, for example, through the presence of party agents and duly accredited observers.
- (8) States should take the necessary measures to ensure that parties, candidates and supporters enjoy equal security, and that State authorities take the necessary steps to prevent electoral violence.

- (9) States should ensure that violations of human rights and complaints relating to the electoral process are determined promptly within the timeframe of the electoral process and effectively by an independent and impartial authority, such as an electoral commission or the courts.
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Question for Discussion

How do you see the Ethiopian Constitution in relation to the above international rules on elections?

Regional instruments

The idea of popular government is common also to the African Charter on Human and Peoples' Rights, the American Convention on Human Rights, and the European Convention on Human Rights. The Preamble to the latter Convention reaffirms the "profound belief" of the contracting States, in those fundamental freedoms which are the foundations of justice and peace in the world and are best maintained . . . by an effective political democracy.

The European system had to work its way towards recognizing the individual rights dimension in the electoral context. The 1966 Covenant on Civil and Political Rights, the OAS Convention and, to a lesser extent, the African Charter, made that clear from the start. As is shown below, the general principles relating to State responsibility in regard to elections are widely reflected in the practice of States throughout the world, and have been integrated in the supervision, observation and monitoring activities of the United Nations and non-governmental organizations. What also emerges is a picture of how the principle of effectiveness of obligations provides the means to accommodate cultural, historical, and political variations within a process that remains formally committed to the objective of "free and fair elections."

Administration of Elections

In a free and fair election, an independent and impartially administered electoral process is essential. Countries in transition frequently also suffer a lack of trust among the political players; for a democratic election to occur, all major parties . . . must accept the process and respect the results. Experience shows that confidence is only likely where the election machinery is and appears to be impartial. Frequently, and particularly in established democracies, administration is handled by national and local government officials and disputes are settled by ordinary courts having a tradition of fairness and neutrality, all of whom enjoy the confidence of the electorate on that account alone. In France, for example, the local *bureau de vote* comprises a president, generally the mayor, deputy mayor or a municipal counsellor, and four assessors and a secretary, chosen from among the electors of the commune. Local electoral committees in Norway are drawn from municipal executive boards; those in Sweden are appointed by the municipal council; the electoral registration officials in England and Wales are either the chief executive officers or other senior officers of local government authorities, while the returning officer responsible for administering the election will again be a senior local official, with election staff usually local government employees on temporary transfer.

At a practical administrative and oversight level, the institution of an independent *Electoral Commission* is now widely adopted as an important step in building traditions of independence and impartiality, and the confidence of the electorate and parties alike. Eastern European countries, including Hungary, Slovenia, Romania, Poland, Czechoslovakia, and Bulgaria all established central commissions for the crucial elections of 1989-90. Different systems were employed, including commissions made up of an equal number of representatives of parties contesting the election; party commissions with the addition of government-selected members; party representatives in proportion to the numbers of candidates fielded, plus a number of judges or

jurists selected by lot; and commissions with members designated by parties involved in pre-election negotiations.

In practice, the election machinery can either be impartial, or in balance; if impartial members who enjoy the confidence of all parties cannot be found, then balance must be created by the appointment of party representatives. In East Germany, election administration for the reunification vote was handled by the forty-eight member National Election Commission, comprising two representatives from each of the twenty-four parties on the ballot; below it were district and local election commissions. The institution of an electoral commission was not new, but its commitment to free elections was. It rapidly established a reputation as fully independent and non-partisan, enjoyed ready access to the media, which it used in the interests of voter education, and supervised the reporting of both preliminary and final results. In Hungary, four levels of election committee operated: national, county, constituency and polling place. Their membership comprised three non-party members appointed either by the national legislature or municipal council, together with representatives from each party with a candidate standing in the jurisdiction. The process was reported as having worked smoothly, and all parties appeared to trust the integrity of the election officials.

The Ethiopian Election System

The earlier discussions on election should be studied in order to understand and evaluate the Ethiopian election systems and laws. The Ethiopian legal regime on election comprises various laws and regulations that one way or another deal with elections in Ethiopia. The main ones are the 1994 Constitution of the Federal Democratic Republic of Ethiopia (FDRE), Proclamation No. 1133/2019 (Electoral Board of Ethiopia Establishment Proclamation), Proclamation No. 1162/2019 (Ethiopian Electoral, Political Parties Registration and Election's Code of Conduct Proclamation), Proclamation No. 88/1997 (Proclamation on the Loss of Mandate of Members of the House of Peoples' Representatives), and many other directives of the National Election Board of Ethiopia (NEBE). From the international laws and standards applicable to Ethiopia, the International Covenant on Civil and Political Rights of 1966, the 1948 Universal Declaration of Human Rights, The United Nations Human Rights Standards Regarding Elections in General and the 1994 Inter-Parliamentary Council's Declaration on Criteria for Free and Fair Elections deserve to be mentioned.

Article 38 of the Ethiopian Constitution provides that every Ethiopian national has the right to vote and to be elected, in accordance with the law, without any discrimination on the basis of color, race, nation, nationality, sex, language, religion, political or other opinion or other status. It also provides in a clear manner that elections shall be by universal and equal suffrage and shall be held by secret ballot, guaranteeing the free expressions of the will of the electors. The Constitution also guarantees everyone the right to be a member in a political organization. It also guarantees to everyone the right to freedom of association for any constitutional or legal purpose or cause.

Proclamations 1162/2019 and 1133/2019 provides for a comprehensive set of election rules. Proclamation No. 1133/2019 establishes a National Election Board (NEBE) as an independent entity with legal personality accountable to the House of Peoples' Representatives. NEBE has now 5 members that are designated by the House of Peoples' Representatives (HoPR) who work on full-time basis. The law requires that a nomination committee be established by the prime minister. The committee accepts nominations from the public and political organizations. The persons nominated could be considered for the Board's membership if they fulfill the criteria under art 6 of the same Proclamation: being an Ethiopian national, not a member of any political party, having a professional qualification in law, political science, public administration, or related fields, and having good ethics and character and high leadership capacity. The prime minister after receiving the list of nominees shall have consultation with representatives of competing political parties on the nominees presented to him. Once the consultation is undertaken, the prime minister

recommends the nominee(s) to the HoPR for appointment. The composition of Board members shall take into consideration national composition, and gender representation (Art. 6).

NEBE is entrusted with such important powers and duties as to conduct any election in the country that is carried out in accordance with the Constitution and Proc. No 1162/2019, to issue directives necessary for the implementation of the Proclamation, to evaluate the conduct of elections held from time to time and cause studies to be conducted, to provide public civic education regarding elections, to organize and train the manpower required for conducting elections, to investigate, cancel election results and order re-election where it has evidence to believe that the scope and nature of any fraudulent practice in the course of elections is bound to determine the outcome of the election, to rectify electoral irregularities and decide on complaints submitted to it, and to confirm and officially announce electoral results (see Proc. No. 1133/2019).

Proc. No. 1162/2019 clearly sets forth the principle that any election shall be based on free, direct, and equal popular suffrage, and that voting shall take place in secret. It also provides that any Ethiopian whose electoral rights are not legally restricted shall be eligible to elect and to be elected. The legal restrictions to be registered as a voter are also specified in the Proclamation. These are the requirements to be an Ethiopian, to reside in the constituency for the time specified in the law (except when on study leave or work leave) and to be 18 years or above on the date of registration. Further, notoriously insane persons and persons serving a term of imprisonment upon conviction are not eligible to be voters. Therefore, so far as the Ethiopian legal regime is concerned these are the only restrictions recognized.

The above is just meant to highlight the contents of the election proclamation. You are advised to see the details of the election proclamation for an in-depth understanding of the law. An excerpt of an article that highlights the major changes incorporated in the two new laws is presented below.

Getachew Assefa and Sisay Alemahu, “Revamping the Electoral laws of Ethiopia: Major Areas of Change and Lessons Learned” in Sisay A. Yeshanew and Abadir M. Ibrahim (eds), *Righting Human Rights through Legal Reform: Ethiopia’s Contemporary Experience* (Addis Ababa University, 2020). Footnotes omitted.

* * *

Appointment of Board members – process, number and criteria

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According to article 5 of Proclamation No. 1133/2019, the [prime minister] establishes an independent committee composed of eight representatives of religious institutions, trade unions, employer association, the national human rights commission, civil society, and elders, who will prepare a shortlist of nominees for Board membership. The Committee then receives nominations from the public, political parties and civil society organizations and prepares a shortlist of nominees twice the number of vacant positions through transparent and competitive processes and sends it to the PM. After that, the PM conducts consultations with representatives of competing political parties on the shortlist and presents nominees to the available position/s to the HoPR, by identifying the nominee for Chairperson and Deputy Chairperson, in case those positions are open. A nominee gets confirmed a member of the Board if s/he receives a majority vote of the HoPR. While some political party representatives were not satisfied that the law does not require their consent, rather than consultation, on the nominee to be presented to parliament and the super-majority vote proposed for HoPR’s confirmation was not accepted, the process of appointment is as participatory as it could be within the appointment process defined by article 102 of the Constitution.

Under Proclamation No. 532/2007, NEBE was constituted of nine members, of which only the Chairperson, and in later years the Deputy Chairperson, served on a full-time basis in practice. The number of Board members is reportedly a result of political party negotiations after the disputed 2005 elections, the aim being to have representation of the nine regions of the federation. The other Board members held regular assignments in other institutions and their *ad hoc* involvement was considered to be one of the reasons why the Board had not been able to properly carry out its long list of responsibilities in practice.

(...). After consultations with political parties and experts in the area, a five-member permanent Board was proposed and accepted. The revised Proclamation provides for what it calls a “Management Board” consisting of five members that serve fulltime and lead the various departments of the Board based on the decision of the Chairperson. The Board may establish subcommittees that may be necessary for the execution of its duties.

Finally, the criteria of selection of members of EMBs should be imbued with requirements of independence, impartiality, moral stature and competence. Under the previous law, Board members to be nominated by the PM are expected to be loyal to the Constitution, be non-partisan, have professional competence and be known for their good conduct. The composition of the Board should take into consideration nationality or ethnicity and gender representation, and at least one of the members shall be a lawyer. It was not clear if nominees or members were required to have election-related knowledge and skills. The criteria of good conduct needed to be defined more specifically and leadership skills were considered important.

After deliberations on the proposed eligibility criteria, the revised law provides that a person can become a management board member only if he/she is: a) an Ethiopian by birth and an Ethiopian national; b) not a member of any political party; c) has advanced professional qualification on matters related to elections, especially law, political science, public administration, statistics, information technology and other related fields; d) of good ethics and character; e) high leadership capacity that enables him/her to carry out the responsibilities assigned to him/her. The composition of board members was also to take into account ethnic and gender representation. The Proclamation further defined ethical (mis)conduct in terms of widely-held moral values and professional ethics. The WG had considered the inclusion of further requirements on non-partisanship, including number of years since leaving a political party, especially for those who held leadership positions, and minimum age requirements, both of which did not make it into the Proclamation as adopted.

Tenure and Removal of Board Members

The tenure of appointment of members of EMBs is a factor that affects their independence. Members of EMBs are often appointed for fixed terms, which may be renewable. The term of commissioners may range from three years, as in Rwanda, to seven years, as in South Africa, or to ten years, as in Botswana. In a few countries, members serve until they reach their retirement age, e.g. Ghana and Malaysia. A system where the term of the commission is the same as the term of the appointing parliament or government may systematically advantage the winning party in the appointment process. Reelection is often limited to specified terms, while some countries prohibit it altogether. The duration of the term of members should consider the need to ensure regular institutional renewal of EMBs, while allowing enough time to enable the development of needed experience. In this regard, a staggered replacement arrangement can provide a useful way of transferring and continuing useful institutional experience and smooth leadership succession while enabling regular renewal, as is the case in South Africa and Senegal.

Under the previous law, members of NEBE were elected for a five-year term, renewable for only once. With the stature the Board had at the time of reform and the part-time nature of its members, some commentators observed that the five-year term of office, which coincided with the parliamentary term, enables winning parties to appoint members for each election. With a view to addressing this and other concerns, the WG proposed that Board members be elected for one 9-year

term or a 6-year term, renewable once. In addition to the security of tenure that this period gives for at least two election cycles, the proposal included benefit packages upon the departure of a Board member and exclusion from senior governmental appointments for at least two years to avoid tit for tat. The WG further recommended that the replacement Board members should be staggered, with the time depending on the number and term of office of the members. The members to be replaced first could be determined by lot (at the beginning of their term) or determined upon appointment by the HoPR, excluding the Chair and Deputy of the Board.

The HoPR accepted the second option on the term of office and hence the new Proclamation provides that the term of office of Board members shall be six years, with a possibility of reappointment for an additional one term. It had unfortunately not accepted the proposal to stagger the period of appointment for the purposes of institutional memory and smooth transition. The Proclamation further provides that a Board member shall not be appointed to any high government office, which it defines as including the positions of Minister, State Minister, Ambassador, Commissioner, and deputy Commissioner, for two years after finishing his/her term of office or resigning on his/her own accord. On the other hand, article 18 of the Proclamation leaves the benefits of outgoing Board members to be determined separately. It is not clear who decides the benefit packages and how, and hence it appears that there is no benefits for outgoing members as of now. This may affect the prestige of the position, its attractiveness to suitable candidates and the integrity of its holders.

To ensure their independence and impartiality, members of EMBs should be protected from undue threats of dismissal or other disciplinary actions, such as cuts in their conditions of service. The grounds for removal must be clearly outlined and relate to gross misconduct, incompetence, and physical or mental incapacity. The process of removal should also be specifically outlined. The members of EMBs may enjoy the protection, status and positions equivalent to high level officials, such as the highest judges.

Under Proclamation No. 532/2007, the HoPR may terminate the term of a Board member if s/he resigns for personal reasons or if the House believes that the member is unable to properly carry out her/his duties due to illness, or s/he has committed serious misconduct. Although the ethical standards that members of the Board must respect in relation to partisanship, confidentiality and other acts that damage their credibility, impartiality and independence (art 12) may provide useful insights, what qualifies as “serious misconduct” remained unclear. Other than the right to be free from “any influence and interference” (art 11), the proclamation did not provide for specific legal protection, such as immunities, to the Board members. Under the new law, a NEBE member may be relieved of duty if s/he resigns on his personal accord or is removed by the HoPR because of inability to carry out his functions for health reasons, evident lack of capacity or competence, serious ethical misconduct, or absence from work for a consecutive period of six months. While these are generally accepted standards of removal, seen in the light of competency requirements for appointment of a Board member, the nature and temporal scope of evident lack of competence may raise issues. The Proclamation makes an attempt at defining “ethical misconduct” as actions that are contrary to the moral values that the majority of Ethiopians abide by as well as to principles grounded in legal and professional ethics. This is still broad, but it provides some insight into what qualifies as misconduct.

The procedure of removal should be strict enough to protect the independence and impartiality of the members. A number of countries create different layers of mechanism to insulate the process from political abuse. In Kenya, for example, petitions seeking the removal of a member of the electoral commission are submitted to the National Assembly. If satisfied that there are serious grounds for removal, the Assembly requests the president to establish an independent tribunal. The president is required to act in accordance with the decision of the tribunal. In the Seychelles, the Constitutional Appointments Authority is in charge of constituting a tribunal to determine whether a member of the commission should be removed for inability to perform the functions of the office, whether arising from infirmity of body or mind or from any other cause, or for misbehavior. In South Africa, the mandate to ascertain whether the grounds for removal have been fulfilled belongs to a cross party committee of the National Assembly, subject to a resolution of the plenary of the

Assembly approving the decision. Under the previous Ethiopian electoral law, while the procedure by which the HoPR makes its decision is not clear, once it decides on the removal of a Board member based on the criteria mentioned above, it instructs the PM to recommend another nominee in accordance with the Constitution. The law does not clearly say if the PM needs to have “sufficient consultation” with political parties with seats in the case of replacement. The only relevant provisions to the procedure of removal of Board members was the procedure for recusal and submission of complaints where a Board member is involved in matters or decisions in which s/he has (financial or any other) conflict of interest.

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(...) any interested person may submit an application for removal to the Speaker of the HoPR, who after a preliminary investigation may reject the application or ask the HoPR to establish a committee composed of committee composed of one Federal Supreme Court judge, a technical expert whose area of expertise is directly related to the matter at hand and one person representing the Ethiopian Human Rights Commission to investigate the matter. The Committee will then present its recommendation to the Speaker of the HoPR and the House may decide to remove the member by majority vote. The Speaker may suspend the member from his duties in the course of the investigation and the Board member shall have the right to heard before the investigating Committee.

Proclamation No. 532/2007 did not define the status of Board members including in equivalence terms. The WG explored various country experiences, such as that of India where the commissioners enjoy the same status as Supreme Court judges with a view to provide security of tenure to the members of the commission. It proposed that members of the Board have the status and conditions of service of judges of the Federal Supreme court, with the Chair and Deputy having the status of the President and Vice-President of the Court, respectively. Alternatively, and considering that the conditions of service of regular judges of the Federal Supreme Court is not well defined in law, the WG recommended that of a Minister for the Chair and of State Minister for the other members. The new law does not provide for the status of the members of the Board even in terms of equivalence and leaves the determination of their salary and benefits for separate determination. It is not clear if this is to be determined by executive order or a decision of the HoPR. Meanwhile, it leaves the position unattractive for high level experts. On the other hand, a Board member enjoys immunity from being arrested or prosecuted unless s/he is caught while committing a crime or the HoPR removes his/her immunity.

Mandate of NEBE

There are no hard and fast rules that determine the scope of powers of EMBs. However, the definition of their mandate should take into account the capacity of the EMB, the number of its members, whether or not it is permanent or temporary, and the need to clearly demarcate its mandate with other institutions that could perform election-related functions. It is also important to make sure that disagreements over non-essential election related functions, which may be politically sensitive, do not affect the performance and perceived credibility of the EMB in discharging its core functions. The existence of a separate entity to deal with political party registration and regulation (e.g. Kenya) or with the determination and regular revision of electoral constituencies (e.g. Botswana) could help ensure that disputes on related activities do not taint the credibility of the EMB in the administration of its (core) functions. As indicated earlier, Ethiopia established one institution to carry out all election-related functions in the country and hence NEBE runs the “political-tainting” risk in carrying out its responsibilities. However, as noted, the WG was not able to propose severing some of the functions and putting them under another institution because that would have required constitutional amendment.

NEBE has a long list of powers relating to its principal mandate of administering all forms of elections and referendum all over Ethiopia, ranging from preparing and distributing election materials to certifying and officially announcing election results. Under the previous electoral law,

the mandate of NEBE includes providing civic and voter education, registering and regulating political parties, apportionment and control of state financial support for political parties, recruiting, training, supervising and protecting electoral officers at all levels, licensing election observers, resolving electoral disputes and taking cases of electoral offences to court, issuing election-related regulations and directives, evaluating periodic elections and electoral laws, proposing important reforms and ways of enabling Ethiopian Diaspora to participate in elections. The mandate of the Board to study and present proposal on the list of constituencies for the approval and announcement of the House of Federation was provided for in a separate section of the law. All these powers were to be carried out by the Board, but at least in relation to voter education, it may issue license to other institutions. The WG considered the mandate of the Board relating to constituency mapping too crucial not to be put under the article defining the mandate of the Board. As the name “Board” was used in the Proclamation to refer to the nine-member body as well as this body together with the Secretariat that is led by a Chief Executive and two deputies, the WG recommended that the functions to be carried out by the Board members as a whole be separated from those which are performed by the institution as a whole.

The new Proclamation separated the powers and duties of the Board as a whole and those of the now five-member body called “Management Board”. It defined the role of the Board in constituency mapping more clearly and sharpened its other powers and duties. The Proclamation further defines the mandate of the Management Board as one of determining overall policy directions, adopting directives and making final decision on all election-related matters. One notable mandate is the power to appoint the Chief Executive and Deputy Chief Executive of the Secretariat, which was done by the HoPR under the previous law. As discussed later, this was essential to ensure the subordination of the Secretariat to the Management Board, which could be considered delegated by the HoPR on account of its members being elected by the House. Another notable change is the fact that the Board no more has power to adopt regulations, which it had under the previous Proclamation. While this was rightly the case because the Board is directly answerable to the HoPR and not to the Council of Ministers, which normally issues regulations, the fifth HoPR held the position that it is within its mandate to issue regulations for independent institutions that report to it, despite arguments to the contrary. Consequently, under Proclamation No. 1133/2019, the Board can adopt only directives.

Financial Autonomy

In addition to the composition and tenure of members of EMBs, their independence also depends on their financial autonomy. Modern practice in relation to independent models of EMBs empower the commission to draft its own budget and submit the same either directly to parliament or through the ministry responsible for finance, which does not have the authority to make significant changes to the proposed budget. The EMB may be given the authority to directly make submissions to parliament on its proposed budget. The funds should be considered, approved and released promptly to enable the EMB to discharge its functions without delay. For instance, in Kenya, the secretary of the electoral commission prepares, with the approval of the commission, an estimate of its budget before the commencement of each year. These estimates are presented to parliament through the minister responsible for finance. In Nigeria, the recurrent expenditure of the Independent National Electoral Commission, including the salaries and allowances of the commissioners, is charged directly from the Consolidated Revenue Fund of the Federation. In Fiji, the electoral commission must submit to Parliament a multi-year budget for each electoral cycle of four years for planning purposes, and submits to Parliament on an annual basis an estimated budget for the following year, based on which the budgetary funding for the Fijian Elections Office for the following year will be determined.

Proclamation No. 532/2007 empowered both the Board and its Secretariat to prepare budget. Among the powers of the Board was to prepare its budget and utilize the same upon approval, while the Chief Executive of the Secretariat was also mandated to prepare and submit the budget of the

Secretariat (along with its work plan) to the HoPR and implement the same upon approval. The law also included a general provision to the effect that the Board shall prepare its budget and submit to the HoPR for approval. In practice, the Secretariat prepared the budget of NEBE and, through the Board, submitted it to the Ministry of Finance and Economic Development (MoFED), which made final decision on the allocations. It is not clear if the budget allocations for the Board were clearly stated in the yearly budget law that the parliament adopted. According to key informants, the Board never received budget allocation that matched its plans and requests in timely manners, as MoFED almost always approved its budget with significant cuts. In election years, the informants recount, MoFED often released the budget too close to elections for necessary disbursements, especially to ensure the advance recruitment and training of temporary electoral staff.

The WG recommended that NEBE defend its budget directly before the HoPR, which should allocate sufficient wring-fenced yearly budget for the Board to receive and administer with full autonomy, subject only to appropriate rules of accounting, reporting and audits. It also proposed the approval of a multi-year budget, such as for the two years before the date of election, to enable the Board to perform its tasks without delay. In addition, the Board may be allowed to receive grants subject to applicable rules. Most of these proposals were accepted and hence the new Proclamation provides that the budget of the Board directly submitted to and approved by the HoPR shall be credited to its account by MoFED within one month of the approval. The Board may further request the HoPR to approve a three-year budget plan and accept gifts and aid from third parties in accordance with relevant laws.

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The conduct of elections – from constituency mapping to vote counting

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In order to realize the principle of every vote carrying equal weight, recognized in [it], Proclamation No. 1162/2019 requires that constituencies shall comprise of comparable size of population and the disparity between them may not in any case exceed 15%. Proclamation No. 1162/2019 also departs from the previous electoral law of the country in two other important declarations. The first one has to do with its provisions on referendum. The previous electoral law did not say much about the conduct of referendum. This paucity of guidance gave way to haphazard implementation of past referenda in the country. Proc. No. 1162/2019 thus provides: “The Board shall, in consultation with the constitutionally authorized body, determine the polling date, the voters’ criteria to participate in a referendum, the choices to be put on the ballot paper and the types and contents of campaigns relating to a referendum”. The law further authorizes the Board to enact a directive and provide details for its implementation.

Another noteworthy departure made in the new law relates to the necessary level of standard setting and exercise of supervision by NEBE and the national government on local elections. The previous law completely relegated the matter to regional governments’ decisions. Although the new law maintains the regime that the number of representatives elected for councils at various level in a constituency for a local election be determined by regional laws, it however introduced new standard setting provisions and possibilities. It thus provides that “the House of Peoples’ Representatives may, in accordance with Article 55 (2)(d) and Article 51 (15) of the FDRE Constitution, pass a legislation related to local elections that sets standards applicable to these elections”. It further stipulates that regional laws that pertain to local elections must be consistent with the relevant provisions of the Ethiopian Constitution and the Proclamation itself. The law further empowers the Board to put in place standards for local elections by issuing a directive to that effect.

Proclamation No. 1162/2019 lays down the principles, rules and procedures on the conduct of democratic elections. It guarantees broadly defined right to vote by providing only minimal restrictions. This is apparent from the provisions of the Proclamation that states every Ethiopian of 18 or above years of age, who resided in the constituency for six or more months, and who is not deprived of his right to vote due to inability to make sound decision owing to mental illness or judicial decision has the right to vote. In order to make sure that these minimum restrictions are not posed as pretext to restrict citizens' right to vote, the law provides sufficient guidance to election officials on how to carry them into effect. For example, regarding the ascertainment of the duration of residence, the law accepts not only residence ID cards but also many other identification documents and even sworn oral testimonies made by acquaintances, in case of undocumented voters.

Likewise, the law maintains minimum requirements for candidature. One of the most important achievement of the reform of the electoral law is the change made to the language requirement for candidacy that was maintained in the repealed electoral law, which prescribed knowledge of the language of the regional state or the area of his/her intended candidature as one of the requirements for candidature. The removal of this requirement from the electoral law makes the law consistent with both the country's Constitution and international standards. Other requirements for candidature in the new law are citizenship, being 21 years of age at the time of registration and one-year continuous residence in the constituency of intended candidature. The law also removes the cap placed on the number of candidates that can be fielded in one constituency which was 12 in the previous election law. However, the new Proclamation introduced a requirement for endorsement signatures for political party candidates which was not the case in the previous election law. It has also increased the number of endorsement signatures for independent candidates from 1000 to 5000. These are meant to regulate candidature through stronger entry requirements than by capping the number of candidates per constituency, which would unduly limit the constitutional right to be elected.

The new electoral law guarantees candidates and political parties taking part in elections robust protections and freedoms. For example, it provides that candidates registered for elections cannot be arrested or prosecuted until election results are officially known, unless he/she is apprehended *flagrante delicto*. The law also guarantees candidate's right to campaign freely. Thus, a registered election candidate, on her/his own or through her/his supporters, has the right to call rallies and organize peaceful demonstrations without the need to request permission from the administration or municipality but by simply sending a written notification and respecting his/her legal duties. The law requires also that election campaigns shall be conducted by respecting the constitution and other relevant laws, the rights of voters and the right of other candidates to contest in a peaceful and democratic manner. Candidates also enjoy equal access to state-owned media such as radio, TV and newspapers. It unequivocally stipulates that government officials at any level shall have the obligation to create conducive conditions for candidates to utilize such facilities as radio and television stations, newspaper, and assembly halls under their respective authority without discrimination. The new law's provisions regarding the composition and election of election officials need to be brought to attention. Again, with the purpose of shoring up the confidence of opposition political parties in the electoral legal regime, professional competence, character, independence form political parties are made the requirements for the recruitment of election officials. The right of participation given to political parties and independent candidates in the selection process of election officials and the requirement for gender balance in the composition of the officials are other important additions made in the new law.

The law also pays specific attention to the processes of voting and counting and announcement of results in an election. It clearly lays down the requirements to keep polling stations secure in the lead up to the conduct of elections. It prohibits persons with guns or intoxicated individuals from being found within 500 meters' radius of polling stations. In the event of any security concerns, the polling station head can ask for assistance of police and that the police is obliged to cooperate and respond quickly in such instances. The law also attempted to remedy the previous election law's

gaps in the voting process. For example, it allowed persons who need assistance to vote to bring their own helpers. Other improvements brought about in the new law relate to the ballot paper and ballot box. Thus, it requires that the ballot paper shall be of a quality secure against forgery and that they contain photos of the candidates. It also requires that the ballot paper be made up of transparent or translucent materials.

In regard to vote counting the new election law introduces some significant changes. A noteworthy addition is the requirement for the ascertainment of the existence of sufficient artificial or natural light before vote counting begins. The law states that vote counting should take place at the polling stations where voting took place unless there are security problems in which case it can be moved to the constituency office of the area with members of grievance hearing committee, agents, and other election observers of the concerned polling station. The law also lays down specific requirements for vote counting and for results announcement from polling station level up to the declaration of final results by NEBE.

The registration and regulation of political parties

A political party is an association created by individuals who want to take part in the management and administration of public affairs of their country by assuming different public roles through democratic elections and various other ways. For the purpose of undertaking these tasks, political parties usually have political programs and a large number of members and supporters. As an important part of individuals' right to freedom of association, political parties can be created for all kinds of lawful purposes. Legal regulation of political parties is relatively a recent phenomenon even in the Western democracies. The US, which seems to be the first nation to do so, started to regulate political parties in the second half of the 19th century. But beginning from the end of WWII, legal regulation of political parties has become common practice.

Regulation of political parties is justified on at least two grounds. One is the fact that political parties are special types of 'public utility' associations whose purposes are among others to assume political power on behalf of the electorate, 'linking the citizen and the state'. As it is succinctly stated by Boards, political parties have two broad functions: representative function and institutional function. Thus, the centrality of the role of political parties in the democratic process necessitates the establishment of some ground rules according to which all political parties function. The Second reason is the growing challenges in regard to political/party financing involving all kinds of irregularities, corruptions and scandals. Financial regulation of political parties has become almost the norm in most parts of the world now also because of the public funding of political parties. Political parties obtain substantial amount of money in public funding. The state therefore wants to make sure that the funding it provides are properly utilized and accounted for.

The legal regulation of political parties needs to observe certain fundamental principles, the underlying purposes of which are to allow parties to freely function within a society and obtain legal protection from unnecessary interference in their internal affairs. Thus, there is a need to balance the regulatory disposition with the freedom to associate for political purposes. A government's regulatory regime has to aim at creating conducive environment for those political associations that want to genuinely take part in public affairs while ensuring accountability of the parties in a manner acceptable to the members of the society in which the parties function.

Proclamation No. 1162/2019 is consistent with the basic principles briefly outlined above. It reiterates that everyone has the right to form and be part of a political party, with the exclusion of limited group of persons it has identified. Attempt has been made to rectify the shortcomings of the previous political parties' regulation legislation, that is, Proclamation no. 573/2008. The new law

also introduced some changes that are believed to make political parties more transparent in their decisions, and more accountable to the public and their members.

One area of significant change brought about by the new electoral law is the required minimum number of founding members for the establishment of a political party. Accordingly, ten thousand founding members are required in order to establish a national party, and such party must have at least 15% membership in five regions of the country and its members from any one region must not exceed 40% of the required number of founding members. In the case of regional parties, the law requires 4000 founding members, of which more than 60% should be permanent residents of the designated region. The law also provides for the requirements to verify the truthfulness of the identity of the founding members during registration as well as after the party has been registered. Whether or not a national or regional political party has maintained the requisite minimum number of members needs also to be verified by the Board every two years based on the list of founding members that the party supplies.

Registration is a requirement for legality of political parties in Ethiopia. But Proclamation No. 1162/2019 introduces the notion of provisional license to political parties, which was not part of the previous law on party registration, bestowing semi-legal personality on some founders. Thus, when a written request for registration; meeting minutes with 200 signatures for a nationwide party or 100 signatures for a regional party; the provisional name of the party to be established; a confirmation to abide by the election law and other relevant laws are submitted to the Board, it shall grant a certificate of provisional registration that could serve for up to six months for the purpose of undertaking activities required to get the party registered.

The new law also pays special attention to enhancing the participation of members in the governance of political parties. It further requires the parties to standardize their bylaws and function in keeping with the principles of accountability and transparency. The provisions of the law pay serious attention to ensuring the internal democracy of political parties. The Proclamation provides thus that the bylaws of a political party shall include: details of the various organs of the party, the procedure for their election, their tenure and description of their respective functions; a stipulation that the quorum for the party's general meeting shall be constituted by at least 5 percent of the minimum number of founding members required in the Proclamation; a stipulation that the party's general meeting shall be held at least once every three years; the procedure for the nomination of party members for national and other various level elections; and the stipulation that the election of its leadership and other officials at all levels must be conducted in a transparent, free and fair manner, where secrecy of the ballot is protected.

Another area that can be characterized as a paradigmatic shift in the new law has to do with government funding and the regulation of the overall finance of political parties. The law introduces new set of criteria for government funding of political parties in the form of valid votes won in federal and regional parliamentary elections (as opposed to the previous criterion of the number of seats won), and also a matching fund element that encourages parties to raise their own funding for it to be matched by government grant. The law also states specific dates both for the parties to make requests for public funding and for the Board to disburse public funding for those that meet the reporting requirements. This is believed to solve the previous complaints of political parties that disbursement of public funding often came at times when it was too late to utilize it for their purposes.

As mentioned earlier, the law also embraces provisions regulating sources of finance, auditing and reporting obligations of political parties that meet good comparative practices to control the evils of money in politics. It allows political parties to engage in public fund-raising activities without requesting permissions from the federal, regional or local government authorities. The law also clearly stipulates the proscribed sources of finance for political parties and those that are allowed.

Electoral Code of Conduct

Codes of conduct for participants in the elections held around the globe are one of the notions that attract much attention in post-cold war world. These are reflected in, for example, the works of International IDEA. Electoral code of conduct in which ethical standards are delineated in regard to political parties, their leaders, political party and independent candidates, members, and supporters of political parties is the other important part of Proclamation No. 1162/2019. The provisions of the new law relating to electoral code of conduct are a condensed and more sharpened versions of the general principles of election code of conduct laid out in Proclamation No. 532/2007 and unpacked in details in the agreement between political parties that turned into the Electoral Code of Conduct for Political Parties Proclamation No. 662/2009. The new law opted for providing for the most important ethical standards, leaving most others to the political parties own joint political platforms and agreements.

The code of conduct provisions of the Proclamation consists of four major components. The first component deals with ethical standards expected of political parties, their leaders, political party and independent candidates, members, and supporters of political parties. The second part deals with what it calls ‘responsibilities of stakeholders’, in which the respective roles and duties of the Board, political parties, candidates, council or forums of political parties and other organs are set out. The third part deals with acts or omissions that amount to ethical violations. The last part provides for measures to be taken by the Board and/or courts of law if and when ethical misconducts delineated by the law occur.

Electoral dispute resolution mechanisms

Provisions dealing with electoral justice are also entrenched in Proclamation No. 1162/2009. The settlement of electoral disputes in the Proclamation comprise both administrative avenues for settlements of major electoral disputes from the polling stations all the way to the Management Board of NEBE as well as judicial review of the administrative decisions. The new law leaves the Political Organizations’ Joint Forum as a platform of optional and voluntary resolution of disputes relating to elections. The most noteworthy changes introduced in the new proclamation is the entrenchment of judicial review of the administrative decisions of various structures of NEBE by various levels of courts, including those of the Management Board.

The decisions of the Management Board on administrative matters, such as political party registration, can go on appeal to the Federal High Court whereas decisions relating to electoral processes and results are appealable to the Federal Supreme Court. The new proclamation recognizes that the involvement of the Board administrative issues such as party registration and regulation may affect its other functions such as the conduct of elections and dispute resolution, one reason why in some countries, such as Kenya, the regulation of political parties and the conduct of elections and dispute resolution are placed under separate institutions. The law allows the Board to establish inquiry councils that investigate facts, collect evidence and provide recommendations for its decision.

Regarding appeals from the decisions of Grievance Hearing Committees at the polling station, constituency and regional office levels, there was a debate as to whether regional courts can have jurisdiction over electoral disputes, except by way of delegation, considering that legislation on electoral and political party matters are within the exclusive powers of the Federal Government. However, this legislative jurisdiction was distinguished from adjudicative jurisdiction and hence regional courts of different levels have been authorized to consider cases on appeal from the grievance committees.

The law also attempted to deal with outstanding complaints by political parties on the previous legal regime regarding the composition and nature of the lower level administrative decision-making bodies, known as ‘grievance hearing committees’, which are unique to the Ethiopian election dispute settlement system. The Law disbanded the so-called “public observers” from which most of the members of the grievance hearing committees of various stages used to be selected.

The grievance hearing committee members at the polling stations and constituencies are now directly elected from the voters who live in the respective constituencies. The law also requires that the members of the grievance hearing committee should not be members of any political party and be personalities known for their integrity and be representative of gender.

Other important changes are also made to ensure the fairness of the election dispute settlement system. For example, the law now requires not only that all decisions of the grievance hearing committees should be in writing, but also that the grievance hearing bodies shall give proof of receipt of complaints stating the date and time of application. This ensures the documentation of complaints and decisions to expedite appellate processes as well as avoid the abuse of power that may result from leaving things to oral complaints and responses. Aggrieved parties can go to the next higher level committee not only in objection to the decisions given but also when the concerned committee fails to give decisions within the time specified by the law. The higher level committee is now required to consider the indecision of the lower level as a decision against the complainant and proceed to settling the case within the time period specified by the law. The members of the grievance hearing committees are clearly empowered to summon any government official or other relevant person to provide information or testimony.

The law also prescribed specific time for settlement of the disputes, including by the Board and the Federal Supreme Court that are required to hand down their decisions with ten days and one month, respectively, from the time of receipt of the complaints. The sufficiency of the time limit for the decision of the Supreme Court raised concerns considering that the Court is expected to review all the necessary evidence, not limited to bases of decision by the Board, before reaching a decision. Depending on the magnitude of complaints and breadth of evidence that may be introduced and reviewed anew, it is argued, one month may be enough. In fact, the possibility of consideration of cases *de novo* is another addition to the electoral dispute settlement system.

Questions and Discussion

1. There is a scholarly debate on the kind of political context in which either of the two electoral systems discussed above would be appropriate despite both system being accepted as democratic. For example, scholars such as Lijphart and Horowitz maintain that the PR system suits diverse societies much more than FPTP system. Discuss these issues thoroughly and come up with your own position on them.
2. The extent of the right to be elected under the FDRE Constitution was put to test when the Benishangul-Gumuz region adopted a law requiring to be able to speak one of the five endogenous languages of the region in order to be eligible to be a candidate in the region. The case was brought sometime in 2000 by members of the Amhara and other groups living in the regional state since the 1980s. Thousands of members of Amhara, Oromo, Tigray and other groups were taken to this state as part of the Derg's resettlement programme. The state law was said to be based on the former Election Proclamation 111/95 which in its Art. 38 says that a candidate must be versed in the vernacular of the regional state of his/her intended candidature. The complainants argued that Art. 38 of Proc. No. 111/95 violated Art. 38 of the Constitution which prohibits discrimination in voting and candidacy rights on the basis of language. The HoF did not deal with the constitutionality issue. But it said in its 2000 decision that if the candidate can speak the working language of the state, s/he can run for election. So by implication the decision means one cannot be a candidate in a region unless he/she speaks the working languages of the region. Do you think this decision is consistent with the requirements of Art. 38 of the Ethiopian Constitution? It is worthwhile to note that Proclamation No. 1162/2019 has removed the requirement for proficiency in any language from being a criterion for candidacy. How do you assess the effect of the new proclamation on the decision of the HoF on the *Beneshangul-Gumuz* case? Does it render it nugatory?

ELECTORAL SYSTEM DESIGN

As noted above, electoral systems have to be designed by taking into account the nature of the political society and the various diversities that exist in the country. Based on these considerations, appropriate electoral system need to be designed through the participation of the public and the stakeholders. International IDEA advises that certain considerations be made in the choice and design of electoral systems. Please read the following excerpt from IDEA's *Electoral System Design* (2005) handbook (pp. 9-14).

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Criteria for Design

When designing an electoral system, it is best to start with a list of criteria which sum up what you want to achieve, what you want to avoid and, in a broad sense, what you want your legislature and executive government to look like. The criteria which follow cover many areas, but the list is not exhaustive and the reader may add a host of equally valid items. It is also true that some of the criteria outlined overlap and may appear contradictory. This is because they often are contradictory: it is the nature of institutional design that trade-offs have to be made between a number of competing desires and objectives. For example, one may want to provide the opportunity for independent candidates to be elected, and at the same time to encourage the growth of strong political parties. Or the electoral system designer may think it wise to craft a system which gives voters a wide degree of choice between candidates and parties, but this may make for a complicated ballot paper which causes difficulties for less-educated voters. The trick in choosing (or reforming) an electoral system is to prioritize the criteria that are most important and then assess which electoral system, or combination of systems, best maximizes the attainment of these objectives.

Providing Representation

Representation may take at least four forms. First, geographical representation implies that each region, be it a town or a city, a province or an electoral district, has members of the legislature whom it chooses and who are ultimately accountable to their area. Second, the ideological divisions within society may be represented in the legislature, whether through representatives from political parties or independent representatives or a combination of both. Third, a legislature may be representative of the party-political situation that exists within the country even if political parties do not have an ideological base. If half the voters vote for one political party but that party wins no, or hardly any, seats in the legislature, then that system cannot be said to adequately represent the will of the people. Fourth, the concept of descriptive representation considers that the legislature should be to some degree a 'mirror of the nation' which should look, feel, think and act in a way which reflects the people as a whole. An adequately descriptive legislature would include both men and women, the young and the old, the wealthy and the poor, and reflect the different religious affiliations, linguistic communities and ethnic groups within a *society*.

Making Elections Accessible and Meaningful

Elections are all well and good, but they may mean little to people if it is difficult to vote or if at the end of the day their vote makes no difference to the way the country is governed. The 'ease of voting' is determined by factors such as how complex the ballot paper is, how easy it is for the voter to get to a polling place, how up-to-date the electoral register is, and how confident the voter will be that his or her ballot is secret.

Electoral participation—at least as a free choice—is also thought to increase when the outcome of elections, either at a national level or in the voter's particular district, is likely to make a significant difference to the future direction of government. If you know that your preferred candidate has no

chance of winning a seat in your particular district, what is the incentive to vote? In some electoral systems the 'wasted votes' (i.e. valid votes which do not go towards the election of any candidate, as distinct from spoiled or invalid ballot papers, which are excluded from the count) can amount to a substantial proportion of the total national vote.

Lastly, the actual power of the body being elected helps determine whether its election has any meaning. Hollow elections in authoritarian systems which offer no genuine choice, where legislatures have little real influence on the formation of governments or on government policy, are far less important than elections to legislatures which actually have the power to determine central elements in people's everyday lives.

Even within democratic systems, the choice of electoral system can influence the legitimacy of institutions. For example, the Australian Senate between 1919 and 1946 was elected by a highly disproportional electoral system (the Alternative Vote in multimember districts), which produced lopsided and unrepresentative results. This tended to undermine the actual legitimacy of the Senate itself in the eyes of both electors and politicians and, some observers argued, also undermined public support for the institutions of federal government in general. After the system was altered to a fairer proportional system (the Single Transferable Vote) in 1948 the Senate began to be perceived as more credible and representative, and thus respect for it and its relative importance in decision making increased. Providing Incentives for Conciliation

Electoral systems can be seen not only as ways to constitute governing bodies but also as a tool of conflict management within a society. Some systems, in some circumstances, will encourage parties to make inclusive appeals for electoral support outside their own core vote base; for instance, even if a party draws its support primarily from black voters, a particular electoral system may give it the incentive to appeal also to white, or other, voters. Thus, the party's policy platform would become less divisive and exclusionary, and more unifying and inclusive. Similar electoral system incentives might make parties less ethnically, regionally, linguistically or ideologically exclusive. Examples of how different electoral systems have worked as tools of conflict.

On the other side of the coin, electoral systems can encourage voters to look outside their own group and think of voting for parties which traditionally have represented a different group. Such voting behaviour breeds accommodation and community building. Systems which give the voter more than one vote or allow the voter to order candidates preferentially provide the space for voters to cut across preconceived social boundaries. At the 1998 Good Friday agreement election in Northern Ireland, for instance, vote transfers under the STV system benefited 'pro-peace' parties while still providing broadly proportional outcomes. At the 2003 election, however, a shift in first-preference votes towards hardline parties tended to outweigh such effects.

Facilitating Stable and Efficient Government

The prospects for a stable and efficient government are not determined by the electoral system alone, but the results a system produces can contribute to stability in a number of important respects. The key questions are whether voters perceive the system to be fair, whether government can efficiently enact legislation and govern, and whether the system avoids discriminating against particular parties or interest groups.

The perception of whether results are fair or not varies widely from country to country. Twice in the United Kingdom (UK) (in 1951 and 1974) the party winning the most votes in the country as a whole won fewer seats than its opponents, but this was considered more a quirk of a basically sound system (...) than an outright unfairness which should be reversed. Conversely, similar results in New Zealand in 1978 and 1981, in which the National Party retained office despite winning fewer votes than the Labour opposition, are credited as starting the reform movement which led to the change of electoral system (see the case study on New Zealand).

The question whether the government of the day can enact legislation efficiently is partly linked to whether it can assemble a working majority in the legislature, and this in turn is linked to the electoral system. As a general rule of thumb, plurality/majority electoral systems are more likely to produce legislatures where one party can outvote the combined opposition, while PR systems are more likely to give rise to coalition governments. Nevertheless, it has to be remembered that PR systems can also produce single-party majorities, and plurality/majority systems can leave no one party with a working majority. Much depends on the structure of the party system and the nature of the society itself.

Finally, the system should, as far as possible, act in an electorally neutral manner towards all parties and candidates; it should not openly discriminate against any political grouping. The perception that electoral politics in a democracy is an uneven playing field is a sign that the political order is weak and that instability may not be far around the corner. A dramatic example of this was the 1998 election in Lesotho, in which the Lesotho Congress for Democracy won every seat in the legislature with only 60 per cent of the votes under an FPTP system. The public unrest that followed, culminating in a request for military intervention in the country by the Southern African Development Community, demonstrated that such a result was not merely unfair but also dangerous, and the electoral system was consequently changed for future elections (see the case study on Lesotho).

Holding the Government Accountable

Accountability is one of the bedrocks of representative government. Its absence may indeed lead to long-term instability. An accountable political system is one in which the government is responsible to the voters to the highest degree possible. Voters should be able to influence the shape of the government, either by altering the coalition of parties in power or by throwing out of office a single party which has failed to deliver. Suitably designed electoral systems facilitate this objective.

The conventional wisdom in this area may be simplistic. Traditionally, plurality/ majority systems like FPTP were seen as leading to single parties taking office, while PR systems were associated with multiparty coalitions. While the broad logic of this association remains valid, there have been sufficient examples in recent years of FPTP elections leading to multiparty cabinets (e.g. in India) or of PR elections leading to the election of a strong single-party government (e.g. in South Africa) to raise doubts about the automatic assumption that one kind of electoral system will lead to particular governance outcomes. But clearly, electoral systems do have a major impact on broader issues of governance, for both presidential and parliamentary systems.

Holding Individual Representatives Accountable

Accountability at the individual level is the ability of the electorate to effectively check on those who, once elected, betray the promises they made during the campaign or demonstrate incompetence or idleness in office and ‘throw the rascals out’. Some systems emphasize the role of locally popular candidates, rather than on candidates nominated by a strong central party. Plurality/majority systems have traditionally been seen as maximizing the ability of voters to throw out unsatisfactory individual representatives. Again, this sometimes remains valid. However, the connection becomes tenuous where voters identify primarily with parties rather than candidates, as in the UK. At the same time, open and free list systems and STV are designed to allow voters to exercise candidate choice in the context of a proportional system.

Encouraging Political Parties

The weight of evidence from both established and new democracies suggests that longer-term democratic consolidation—that is, the extent to which a democratic regime is insulated from domestic challenges to the stability of the political order—requires the growth and maintenance of strong and effective political parties, and thus the electoral system should encourage this rather than

entrench or promote party fragmentation. Electoral systems can be framed specifically to exclude parties with a small or minimal level of support. The development of the role of parties as a vehicle for individual political leaders is another trend which can be facilitated or retarded by electoral system design decisions.

Most experts also agree that the electoral system should encourage the development of parties which are based on broad political values and ideologies as well as specific policy programs, rather than narrow ethnic, racial or regional concerns. As well as lessening the threat of societal conflict, parties which are based on these broad 'crosscutting cleavages' are more likely to reflect national opinion than those which are based predominantly on sectarian or regional concerns.

Promoting Legislative Opposition and Oversight

Effective governance relies not only on those in power but, almost as much, on those who oppose and oversee them. The electoral system should help ensure the presence of a viable opposition grouping which can critically assess legislation, question the performance of the executive, safeguard minority rights, and represent its constituents effectively. Opposition groupings should have enough representatives to be effective (assuming that their performance at the ballot box warrants it) and in a parliamentary system should be able to present a realistic alternative to the current government. Obviously the strength of the opposition depends on many other factors besides the choice of electoral system, but if the system itself makes the opposition impotent, democratic governance is inherently weakened. A major reason for the change to an MMP electoral system in New Zealand, for example, was the systematic under-representation of smaller opposition parties under FPTP. At the same time, the electoral system should hinder the development of a 'winner takes all' attitude which leaves rulers blind to other views and the needs and desires of opposition voters, and sees both elections and government itself as zero-sum contests.

In a presidential system, the president needs the reliable support of a substantial group of legislators: however, the role of others in opposing and scrutinizing government legislative proposals is equally important. The separation of powers between legislature and executive effectively gives the task of executive oversight to all legislators, not only the opposition members. This makes it important to give particular thought to the elements of the electoral system which concern the relative importance of political parties and candidates, alongside the relationship between parties and their elected members.

Making the Election Process Sustainable

Elections do not take place on the pages of academic books but in the real world, and for this reason the choice of any electoral system is, to some degree, dependent on the cost and administrative capacities of the country involved. Although donor countries often provide substantial financial support for the first, and even the second, election in a country in transition to democracy, this is unlikely to be available in the long term even if it were desirable. A sustainable political framework takes into account the resources of a country both in terms of the availability of people with the skills to be election administrators and in terms of the financial demands on the national budget.

For example, a poor country may not be able to afford the multiple elections required under a Two-Round System or be able easily to administer a complicated preferential vote count. However, simplicity in the short term may not always make for cost-effectiveness in the longer run. An electoral system may be cheap and easy to administer but it may not answer the pressing needs of a country—and when an electoral system is at odds with a country's needs the results can be disastrous. Alternatively, a system which appears at the outset to be a little more expensive to administer and more complex to understand may in the long run help to ensure the stability of the country and the positive direction of democratic consolidation.

Taking into Account ‘International Standards’

Finally, the design of electoral systems today takes place in the context of a number of international covenants, treaties and other kinds of legal instruments affecting political issues. While there is no single complete set of universally agreed international standards for elections, there is consensus that such standards include the principles of free, fair and periodic elections that guarantee universal adult suffrage, the secrecy of the ballot and freedom from coercion, and a commitment to the principle of one person, one vote. Moreover, while there is no legal stipulation that a particular kind of electoral system is preferable to another, there is an increasing recognition of the importance of issues that are affected by electoral systems, such as the fair representation of all citizens, the equality of women and men, the rights of minorities, special considerations for the disabled, and so on. These are formalized in international legal instruments such as the 1948 Universal Declaration of Human Rights and the 1966 International Covenant on Civil and Political Rights, and in the various conventions and commitments concerning democratic elections made by regional organizations such as the European Union (EU) and the Organization for Security and Co-operation in Europe (OSCE).

* * *

C. THE RULE OF LAW

1. Conceptual and Global Overview

The first most important and comprehensive work on the rule of law is the one offered by A.V. Dicey in his book: *Introduction to the Study of the Law of the Constitution* published in 1885. In this book, Dicey set out to explain the concept of rule of law from the point of view of the English constitutional system. But, most of the meanings given to the concept of rule of law by him have become relevant to other systems.

Dicey said the term “rule, supremacy, or predominance of law,” means in the first place that no man is punishable or can be lawfully made to suffer in body or goods except for a distinct breach of law established in the ordinary legal manner before the ordinary Courts of the land. In this sense the rule of law is contrasted with every system of government based on the exercise by persons in authority of wide, arbitrary, or discretionary powers of constraint.

The second meaning of the “rule of law” by Dicey is that no man is above the law and that every man, whatever be his rank or condition, is subject to the ordinary law of the realm and amenable to the jurisdiction of the ordinary tribunals. He says that the idea of legal equality, or of the universal subjection of all classes to one law administered by the ordinary courts, has been pushed in England to its utmost limit. Every official, from the Prime Minister down to a constable or a collector of taxes, is under the same responsibility for every act done without legal justification as any other citizen. The third meaning of rule of law by Dicey is that general rules of constitutional law are results of the ordinary law of the land. This is the idea that the English constitution has not been created at one stroke, and, far from being the result of legislation, in the ordinary sense of that term, is the fruit of contests carried on in the courts on behalf of the rights of individuals. Dicey says “Our constitution, in short, is a judge-made constitution, and it bears on its face all the features, good and bad, of judge-made law.”

There is in the English constitution an absence of those declarations or definitions of rights so dear to foreign constitutionalists. Such principles are, like all maxims established by judicial legislation, mere generalizations drawn either from the decisions or dicta of judges, or from statutes which, being passed to meet special grievances, bear a close resemblance to judicial decisions, and are in effect judgments pronounced by the High Court of Parliament. To put what is really the same thing

in a somewhat different shape, the relation of the rights of individuals to the principles of the constitution is not quite the same in countries like Belgium, America or Ethiopia, where the constitution is the result of a legislative act, as it is in England, where the constitution itself is based upon legal decisions.

Dicey further explains his meanings of the rule of law: in the first place, it means the absolute supremacy or predominance of regular law as opposed to the influence of arbitrary power, and excludes the existence of arbitrariness, of prerogative, or even of wide discretionary authority on the part of the government. He says “Englishmen are ruled by the law, and by the law alone; a man may with us be punished for a breach of law, but he can be punished for nothing else.”

It means, again, equality before the law, or the equal subjection of all classes to the ordinary law of the land administered by the ordinary Law Courts; the “rule of law” in this sense excludes the idea of any exemption of officials or others from the duty of obedience to the law which governs other citizens or from the jurisdiction of the ordinary tribunals. “[T]here can be with us,” says Dicey, “nothing really corresponding to the “administrative law” (*droit administratif*) or the “administrative tribunals” (*tribunaux administratifs*) of France.

In his last point, Dicey was very critical of systems that maintain separate administrative law regimes, particularly the French system. He says the notion which lies at the bottom of the “administrative law” known to foreign countries is, that affairs or disputes in which the government or its servants are concerned are beyond the sphere of the civil courts and must be dealt with by special and more or less official bodies. This idea is utterly unknown to the law of England, and indeed is fundamentally inconsistent with our traditions and customs.

The concept of rule of law since has been very extensively developed in a manner interwoven with constitutionalism and constitutional democracy. While it is expanding, there are also controversies on the exact meaning of the notion. In this regard, we can distinguish two major approaches to the understanding of the notion: thin meaning and thick meaning or formal meaning or substantive meaning. The proponents of formal or procedural meaning (also known as thin meaning) hold that the concept of the rule of law as a political ideal must be concerned with certain procedural issues of the law and limited institutional dispensations for the implementation of the law.

Joseph Raz and Lon Fuller are the prominent theorists in this category. Joseph Raz has attributed eight “postulates” to the concept of rule of law, which in short are:

1. All laws should be prospective, open, and clear;
2. Laws should be relatively stable;
3. The making of particular laws must be guided by open, stable, clear, and general rules;
4. The independence of the judiciary must be guaranteed;
5. The principles of natural justice must be observed (i.e., open and fair hearing and absence of bias);
6. The courts should have review powers to ensure conformity to the rule of law;
7. The courts should be easily accessible; and
8. The discretion of crime preventing agencies should not be allowed to pervert the law.

A groundbreaking contribution has been also made to the development of the important concept of rule of law by the International Commission of Jurists (ICJ)⁷. ICJ conducts annual/biannual conferences on different themes beginning from its first congress in 1955 in Athens. Its second Congress held in New Delhi in 1959 was devoted to deliberations on rule of law under the theme

⁷ ICJ is an international NGO established in 1952 in Berlin in memory of a German human rights defender (W. Linse) murdered by the USSR. Raz condemns the ICJ as corrupting the meaning of the rule of law taking it out of its formal meaning and making it mean almost everything.

“The Rule of Law in a Free Society.” The following are the conclusions drawn up at this Congress. Please pay attention to the four thematic areas elaborated by ICJ below.

**New Delhi, India⁸,
5-10 January 1959**

The theme of the New Delhi Congress was “The Rule of Law in a Free Society.” The Congress further developed the principles and procedures underlying the Rule of Law as well as defining and clarifying the concept itself.

The Delhi Congress gave rise to three important elements in the concept of the Rule of Law. First, that the individual is possessed of certain rights and freedoms and that he is entitled to protection of these rights and freedoms by the State; second, that there is an absolute need for an independent judiciary and bar as well as for effective machinery for the protection of fundamental rights and freedoms; and third, that the establishment of social, economic, and cultural conditions would permit men to live in dignity and to fulfill their legitimate aspirations.

In total over 185 Judges, Lawyers, and Law Professors from 52 countries participated in the Congress.

In preparation of the Congress, the Commission held a preparatory meeting in The Hague, Netherlands on the 7 and 8 July 1958, where the drafting of the Congress Working Paper on the Rule of Law was mandated to former ICJ Secretary-General, Mr. Norman Marsh. The 134-page paper was based on information gathered in an international survey of lawyers and legal institutions conducted by the ICJ Secretariat in the course of 1957. The information gathered was divided into the following sections:

1. The Legislative and the Rule of Law;
2. The Executive and the Rule of Law;
3. Criminal Process and the Rule of Law; and
4. The Judiciary and Legal Profession under the Rule of Law.

The committees set up during the congress were each dedicated to one of the four themes with the Working Paper providing the basis of the discussions. The reports and conclusions of the committees were presented in two plenary sessions and the texts were subsequently referred to a Steering Committee, which issued the conclusions at the closing plenary session.

A Summary of the Conclusions of the Committees:

1. The Legislative and the Rule of Law:

In its conclusions, the committee on the legislative stated that under the Rule of Law, the legislature carried out the function of creating and maintaining conditions that would uphold the dignity of man. This would include recognition of civil and political rights as well as the establishment of the social, economic, educational, and cultural conditions, which the committee deemed essential to the full development of the individual's personality.

The committee also stated that minimum standards and principles regulating the individual within society were essential for the Rule of Law. Such standards would, however, imply certain

⁸ Taken from the website of ICJ.

limitations on legislative power. The limitations on the legislative power should be enshrined in a constitution and safeguarded by an independent judicial tribunal.

According to the conclusions of the committee, the legislature had the responsibility to: abstain from enacting retroactive penal legislation; not discriminate in its laws between one citizen and another; not interfere with freedom of religious belief; not deny members of society the right to responsible government; not place restrictions on the freedom of speech, assembly or association; not impair the exercise of fundamental rights and freedoms of the individual; and provide the procedural mechanisms to protect the above-mentioned freedoms (“procedure of due process”).

2. The Executive and the Rule of Law

The committee on the executive concluded that the granting of power by the legislature to the executive should be undertaken within the narrowest possible limits and that legislature should define the extent and purpose of such delegated powers, as well as the procedures by which such delegated power was to be brought into effect. An independent judicial body should be given the power to review the legislation passed by the executive (Judicial review).

When the executive directly and adversely affected a person or the property rights of an individual, he or she should have the right to present his or her case before a court as well as the right to an adequate remedy. In the absence of a judicial review mechanism, antecedent procedures of hearing, enquiry and consultation should be established, through which parties whose rights or interests would be affected can have an adequate opportunity to make representation.

The committee also concluded that the Rule of Law would be strengthened if the executive were to be required to formulate its reasons when reaching its decisions, and at the request of a concerned party, to communicate them.

3. Criminal Process and the Rule of Law

The committee considered the practical application of the Rule of Law in the field of criminal process. The committee clarified rules which it regarded as the minimum necessary to ensure the observance of the Rule of Law.

The committee made its conclusions regarding the prohibition of retrospective enactment of penal legislation (certainty of the law) as well as on the principle of presumption of innocence, which in the committee's view required that the burden of proof should only be shifted once facts creating a contrary presumption had been established.

Concerning the arrest of an individual, the power to arrest should be regulated and the arrested person should be told at once the grounds of his or her arrest. He or she should be entitled to a legal adviser and be brought before a judicial authority within a short period of time.

In relation to pre-trial detention, the committee listed the rights of the arrested, including the right to apply for bail.

Conclusions were also made in respect to the preparation and conduct of the defense and the minimum duties of the prosecution. These included the requirement that the prosecution not withhold favourable evidence from the accused.

Regarding the examination of the accused, the committee laid down minimum standards, such as respect for the right not to incriminate oneself and provisions that guarantee the physical and psychological integrity of the accused.

The committee also made conclusions regarding trial in public for criminal cases and the right to appeals and remedies.

Lastly, the committee concluded that the Rule of Law did not require any particular theory regarding punishment, but must necessarily condemn cruel, inhuman or excessive preventive measures or punishments and thus the committee supported the adoption of reformatory measures wherever possible.

5. The Judiciary and the Legal Professions under the Rule of Law

The committee on the Judiciary and the Legal Profession emphasised the importance of an independent judiciary in upholding the Rule of Law. The independence of the judiciary would be safeguarded by certain measures, including co-operation between at least two branches of the state (i.e. judiciary and legislative) on the appointment of judges. Furthermore, the committee perceived the “irremovability” of the judiciary as an important safeguard of the Rule of Law.

Regarding the legal profession, the committee deemed an organised legal profession free to manage its own affairs to be essential. While a lawyer should be free to accept any case which is offered to him, he should also in some cases be obliged to defend persons with whom he does not sympathize.

The committee also addressed the issue of equal access to the justice. It was perceived to be the primary obligation of the legal profession to use its best efforts to ensure that adequate legal advice and representation were provided. The state and community would however have the obligation to assist the legal profession in carrying out this responsibility.

A more recent and more comprehensive rule of law theory has been developed by Brian Z. Tamanaha (*On the Rule of Law: History, Politics*, 2004). He presents in his study alternative theoretical formulations that are advanced by various scholars.

Thinner-----> to -----> Thicker			
FORMAL VERSIONS	1. Rule-by-Law – law as instrument of government action	2. Formal Legality - general, prospective, clear, certain	3. Democracy + Legality - consent determines content of law
SUBSTANTIVE VERSIONS:	4. Individual Rights - property, contract, privacy, autonomy	5. Right of Dignity and/or Justice	6. Social Welfare - substantive equality, welfare, preservation of community

Tamanaha explains (pp. 91-92): Generally speaking, each subsequent formulation incorporates the main aspects of preceding formulations, making them progressively cumulative. It is standard within legal theory to separate rule of law conceptions into formal and substantive branches. This description of the contrast will help serve as a preliminary guide to the excursion: Formal conceptions of the rule of law address the manner in which the law was promulgated (was it by a properly authorized person . . .); the clarity of the ensuing norm (was it sufficiently clear to guide an individual’s conduct so as to enable a person to plan his or her life, etc.); and the temporal dimension of the enacted norm (was it prospective...). Formal conceptions of the rule of law do not however seek to pass judgment upon the actual content of the law itself. They are not concerned with whether the law was in that sense a good law or a bad law, provided that the formal precepts of the rule of law were themselves met. Those who espouse substantive conceptions of the rule of law seek to go beyond this. They accept that the rule of law has the formal attributes mentioned above, but they wish to take the doctrine further. Certain substantive rights are said to be based on,

or derived from, the rule of law. The concept is used as the foundation for these rights, which are then used to distinguish between “good” laws, which comply with such rights, and “bad” laws which do not. The basic distinction can be summarized thus: formal theories focus on the proper sources and form of legality, while substantive theories also include requirements about the content of the law (usually that it must comport with justice or moral principle). While the distinction is informative, it should not be taken as strict – the formal versions have substantive implications and the substantive versions incorporate formal requirements. (...) a majority of Anglo-American legal theorists have adopted the second formal version, what I have labeled “formal legality.” (...)

Richard H. Fallon, Jr. “The Rule of Law” as a Concept in Constitutional Discourse,” in *Columbia Law Review*, Vol. 97, No. 1 (1997). Footnotes omitted.

[One of the recent controversies surrounding the “Rule of Law” concept is its possible chameleon nature in a sense that whatever is enacted by a sovereign (whether it is a Hitler or an Idi Amin Dada type sovereign or not) may claim to be called the rule of law. This can abide well with the positivists who argue that law should not be defined in relation to justice; those who, in the words of Fallon, want to consider the Rule of Law as “a mirror of what is done”. Richard H. Fallon aims in his piece excerpted below to qualify and revise the existing understanding of the Rule of Law as understood in its crude sense that presents it as opposed to the “rule of men.” He attempts to clarify the competing views on the rule of law in political and legal discourses.]

* * *

The Rule of Law is a much celebrated, historic ideal, the precise meaning of which may be less clear today than ever before. Significantly, however, the meaning of the phrase “the Rule of Law”—which I shall refer to as “the Rule-of-Law ideal”—has always been contested. Within the Anglo-American tradition, perhaps the most famous exposition came from a turn-of-the-century British lawyer, A.V. Dicey, who associated the Rule of Law with rights-based liberalism and judicial review of governmental action.

Some have traced the modern ideal to Aristotle, who equated the Rule of Law with the rule of reason; others have identified the Rule of Law with natural law or respect for transcendent rights. In another famous account—perhaps the most influential of the past half-century—Lon L. Fuller argued that the Rule of Law requires publicly promulgated rules, laid down in advance, and adherence to at least some natural-law values. By contrast, positivists have insisted that the Rule of Law is one thing, its moral virtue or abomination something else.

In American legal discourse, debates about the historical and conceptual foundations of the Rule-of-Law ideal are seldom engaged directly. Indeed, many invocations of the Rule of Law are smug or hortatory. Within the twentieth century, however, references to the Rule of Law have increasingly acquired either defensive or accusatory tones. The sources of unease are multiple, and possibly even conflicting. But any account should begin with the familiar contrast between “the Rule of Law” and “the rule of men [sic].” Within perhaps the most familiar understanding of this distinction, the law—and its meaning—must be fixed and publicly known in advance of application, so that those applying the law, as much as those to whom it is applied, can be bound by it. If courts (or the officials of any other institution) could make law in the guise of applying it, we would have the very “rule of men” with which the Rule of Law is supposed to contrast.

* * *

Politically, twentieth-century legislatures have vastly expanded the sweep of governmental regulation, and they have frequently relied on administrative agencies with vague mandates and a

mixture of enforcement, rulemaking, and adjudicative powers to implement regulatory policies. Administrative adjudication has sometimes been an explicit occasion for policymaking. Jurisprudentially, courts have often strayed from the originally understood meaning of statutory and constitutional provisions. Intellectually, the Legal Realists and their followers have advanced powerful claims that there is broad room for judicial choice about which rule to apply to particular facts, about how rules should be formulated, and about whether exceptions to recognized rules should be permitted. Even some ardent defenders of liberal legal institutions have acknowledged that legal interpretation is inherently “political.”

If administrative agencies can mix executive, lawmaking, and judicial functions in implementing vague statutory mandates; if courts are not bound by the originally understood or intended meaning of authoritative legal texts; and if rules do not determine outcomes, then what, if anything, could be left of the Rule of Law? The Rule of Law is a regulative ideal, not a mirror of what is done. ...

* * *

I. GROUNDS OF AGREEMENT AND DISAGREEMENT

The Rule of Law is what some philosophers have called an “essentially contestable concept”: it has evaluative as well as descriptive elements, and its correct application cannot be fixed simply by appeal to ordinary usage. In more concrete terms, the “true,” “best,” or “preferred” meaning of the Rule of Law depends on the resolution of contestable normative issues; disagreements are therefore to be expected. Nonetheless, there is enough common ground for it to be relatively clear how particular disputes fit into broader patterns.

A. Purposes and Elements of the Rule of Law

Efforts to specify the meaning of the Rule of Law commonly appeal to values and purposes that the Rule of Law is thought to serve. Three such purposes-against which competing definitions or conceptions can be tested-appear central. First, the Rule of Law should protect against anarchy and the Hobbesian war of all against all. Second, the Rule of Law should allow people to plan their affairs with reasonable confidence that they can know in advance the legal consequences of various actions. Third, the Rule of Law should guarantee against at least some types of official arbitrariness.

Against the background of these purposes, leading modern accounts generally emphasize five elements that constitute the Rule of Law. To the extent that these elements exist, the Rule of Law is realized. (1) The first element is the capacity of legal rules, standards, or principles to guide people in the conduct of their affairs. People must be able to understand the law and comply with it. (2) The second element of the Rule of Law is efficacy. The law should actually guide people, at least for the most part. In Joseph Raz’s phrase, “people should be ruled by the law and obey it.” (3) The third element is stability. The law should be reasonably stable, in order to facilitate planning and coordinated action over time. (4) The fourth element of the Rule of Law is the supremacy of legal authority. The law should rule officials, including judges, as well as ordinary citizens. (5) The final element involves instrumentalities of impartial justice. Courts should be available to enforce the law and should employ fair procedures.

B. Bases for Disagreement

Generally acknowledged elements suffice to mark a single, shared concept of the Rule of Law, but they also leave room for significant disagreement and misunderstanding. First, several of the elements – such as the requirement that the law should be “reasonably stable” – are vague. People obviously will disagree about how vague terms are best understood. Second, no agreed standard exists for measuring the relative significance of departures from the Rule of Law’s different elements. Nor is there agreement concerning which kinds of departures are the primary objects of concern. The Rule of Law is an ideal that can be used to evaluate laws, judicial decisions, or legal

systems. A legal system that on the whole comports with the Rule of Law may nevertheless include regulations or decisions that do not.

Third, the extent to which a legal system approaches the Rule-of-Law ideal is itself a matter of degree. Probably no legal system realizes any of the desiderata perfectly. Moreover, the defining elements of the Rule of Law can sometimes conflict. For example, a relatively vague legal standard may be less capable of effectively guiding conduct than a clear rule, but a judicial decision replacing a standard with a rule might depart from the element of stability. In addition, if a court were to substitute a clear rule for a legislatively adopted standard, the question would arise whether the court, in promulgating the rule, was itself ruled by law in the relevant sense.

Fourth, and most important, it seems impossible to specify the elements of the Rule of Law without reference to “the law.” Among the most crucial questions, however, is what this reference can, should, or must mean, especially insofar as the Rule of Law implies that officials, including judges, must be ruled by law. For example, does the ideal of judges acting under the law require that their decisions be determined by rule? Does it demand that they be bound by the original understanding or the Framers' intent? Does it suffice if judges, though not strictly bound by rule or the original understanding, are constrained by legal conventions and requirements of reasoned justification? Does the ideal of law necessarily import moral standards?

These, obviously, are among the leading questions of jurisprudence, and it may ultimately prove impossible to reach a deep understanding of the Rule of Law without exploring their complexities. . . If the Rule of Law is an ideal, which can be approached more or less closely, then the concept of “law” that the Rule of Law presupposes may admit of more and less ideal approximations. In other words, “law” may be more or less law-like (in the ideal sense of the term). This should be agreed in principle even among those with strong disagreements about how, precisely, the ideal of law presupposed by the Rule of Law ought to be conceived. For example, even a positivist, who thought law conceptually distinct from morals, might believe that the ideal of the Rule of Law could be more or less closely realized, depending on the extent to which prevailing legal norms were clear and complete and thus minimized reliance on judicial discretion.

FOUR RULE-OF-LAW IDEAL TYPES

. . . [There are] four ideal-typical conceptions of the Rule of Law: a historicist, a formalist, a Legal Process, and a substantive ideal type. Each of these ideal types reflects assumptions about what law must or should be to fulfill the requirements of the Rule of Law that are familiar in constitutional discourse. Moreover, each represents a plausible approach to the protection of values reasonably associated with the Rule of Law.

* * *

The Historicist Ideal Type

Historicist conceptions associate the Rule of Law with rule by norms laid down by legitimate lawmaking authorities prior to their application to particular cases. At least two concerns animate this approach. First, historicist conceptions aim to explain how judges (as well as ordinary citizens) can be ruled by law, rather than creating it in adjudication. The second aspiration, which is equally important, is to respect an ideal of legal legitimacy by associating the law's substantive content with past, publicly accountable acts by decision makers who are recognized under historically established norms as possessing legitimate lawmaking power. Theories associated with the historicist ideal type typically regard lawmaking as irreducibly political and rife with potential for arbitrariness and partisanship; many proponents appear to view lawmaking as politically legitimate only when it satisfies relatively stringent norms of democratic accountability.

The historicist ideal type of the Rule of Law is intended to model some of the shared assumptions of – while avoiding commitments on the issues that divide – approaches to constitutional and statutory interpretation that became prominent during the 1980s. With respect to constitutional interpretation, “originalism” has emerged as the generic name for theories maintaining that constitutional meaning should be fixed, as determinately as possible, either by the “original understanding” of the constitutional language or by the “intent” of the Framers and ratifiers. . .

Critics of constitutional originalism, often steeped in “hermeneutic” theory, have argued that the originalist project would be difficult or even impossible to effectuate. It is clear, for example, that neither the intent of a group of lawmakers nor the original meaning of a legal text is a simple historical fact awaiting discovery by diligent researchers. Intent is a complex and multifaceted concept. And fixing the relevant intent of a multi-member body, concerning specific issues that some members never considered and as to which others may actually have diverged, is a constructive enterprise from which an interpreter's assumptions, values, and goals can never be excluded entirely. Identifying the original understanding of a legal text similarly depends on an ascription of purpose; especially as historical circumstances change, the ascription of purpose inevitably occurs in light of the assumptions, values, and goals of an interpretive community, if not an individual interpreter.

Although critics have often viewed these arguments as devastating to positions associated with the historicist ideal type, defenders have generally dismissed the attacks, and not wholly without reason. If the Rule of Law is an ideal, to show that it can never be realized completely by no means establishes that the ideal should be abandoned. Sensible defenders of the methods associated with the historicist ideal type claim no more than to approximate the Rule of Law as closely as possible.

The Formalist Ideal Type

According to a formalist conception of the Rule of Law, the ideal if not necessary form of “law” is that of a “rule,” conceived as a clear prescription that exists prior to its application and that determines appropriate conduct or legal outcomes. Underlying the formalist ideal type is a picture of human beings as rational planners and maximizers, who reasonably demand to know in advance the legal consequences of alternative courses of action. On this view, rules provide maximally effective guides to behavior and ensure that judges, as much as other officials, are bound by law. Because blurry lines of authority promote uncertainty, formalism also idealizes a sharp division between the legislative and judicial functions.

In contemporary debates, perhaps the most prominent formalist is Justice Antonin Scalia, author of a celebrated article entitled “The Rule of Law as a Law of Rules.” Justice Scalia portrays rules as uniquely consonant with Rule-of-Law values and maintains that both statutes and constitutional directives, when properly read, typically yield clear, rule-like meanings. There are also formalist strands in the works of writers as diverse as Dicey, Hayek, and Rawls, all of whom have lauded determinate rules as necessary to protect particular substantive values, and Fuller, who emphasized the necessary connection between legal form and the efficacy of law in achieving any substantive end.

Despite distinguished support, the formalist ideal type has been largely on the defensive since the assault mounted by Legal Realism. One important strand of criticism, rule skepticism, objects that legal rules – abstracted from human assumptions, conventions, aims, and biases – neither do nor could determine legal outcomes. No rule, it is said, can determine its own extension. As a result, the question whether a rule applies to particular facts can always arise. To say that the question can arise is not, of course, to say that it cannot be answered, or even that there will not be broad agreement concerning the correct answer; frequently, perhaps typically, one will seem right or natural. But, the rule skeptic insists, what makes one answer seem right or natural will be external to the rule, and it may be culturally contingent, politically biased, or otherwise contestable.

Cast in this form, rule skepticism does little damage to any sensibly formulated version of Rule-of-Law formalism. Formalism requires only that legal directives be generally and rationally comprehensible as mandating particular conduct or outcomes. As long as rules are experienced as effective in guiding conduct – as long as those at whom rules are directed generally concur in their understandings – the central claims and aspirations of formalism remain relatively intact. A second ground of challenge depicts formalism as an unattainable and, in any event, an unattractive ideal. This criticism begins with a claim that vagueness and open texture are inherent in language. Clear rules are not always possible. In addition, uncertainty of aim is ineliminable in legislation. Once uncertainty of aim is recognized, it may frequently be undesirable for the legislature to attempt to provide an advance, rule-like resolution of all legal questions that may arise, or for courts to assume that the legislature would have intended to do so.

* * *

The Legal Process Ideal Type

Legal Process conceptions find the requisites of “law” necessary for the Rule of Law to be satisfied by a mixture of (i) procedural fairness in the development and application of legal norms, (ii) an (assumed) internal connection between notions of law and reasonableness, (iii) reasoned elaboration of the connection between recognized, preexisting sources of legal authority and the determination of rights and responsibilities in particular cases, and (iv) judicial review as a guarantor of procedural fairness and rational deliberation by legislative, executive, and administrative decision makers. Defined in this way, Legal Process conceptions deny that law necessarily consists solely of rules that pre-exist the occasions of their application; in more practical terms, they dispute that it necessarily violates the Rule of Law for administrative agencies to treat adjudication as an occasion for policymaking, for courts to weigh arguments of principle and policy rather than apply rules mechanically, or for the Supreme Court to adapt constitutional doctrine to reflect historically evolving needs, expectations, and values. Instead, the Legal Process ideal type attempts to root law at least partly in a current, normative consensus perceived as adequate to validate particular decision-making processes and their outcomes as lawful. On the one hand, consensus identifies the kinds of institutions appropriate to render particular kinds of decisions; on the other, consensus roughly frames the substantive and procedural demands that such institutions must satisfy in order to legitimate their judgments. Especially in their characterization of courts and the judicial role, theories approaching the Legal Process ideal type tend to conceive the subjects of legal justice as reasonable persons, open to argument and persuasion, and deserving of reasoned explanations that the law should aspire to provide.

Legal Process conceptions of the Rule of Law rose to prominence beginning in the 1950s, in the wake of Legal Realism, largely in response to perceived inadequacies of the historicist and especially the formalist ideal types. The impulse behind much of the work that this conception aims to model is explicitly rationalizing: it seeks to explain how the American legal system could satisfy at least the minimum requisites of the Rule of Law despite conspicuous departures from the formalist conception.

Noting the partly justificatory purposes for which Legal Process theories were developed, critics have offered forceful arguments that those purposes are not realized in fact. One criticism emphasizes the Legal Process ideal's relative flaccidity. Notoriously, reasonable people can differ about the sufficiency of procedural safeguards and about the adequacy of particular attempts at reasoned elaboration to justify a result. Consequently, the Legal Process ideal type may provide less sharp normative guidance than other ideal types, and it may invite uncertainty and confusion about the Rule of Law. A related objection holds that there is less consensus in society than those who developed the Legal Process conception typically supposed. As a result, critics argue, current, normative consensus cannot be relied on to bound the domain of properly legal decision-making, and thus help to legitimate decisions reached within that domain, in the way that the Legal Process conception assumes.

The Substantive Ideal Type

A final, substantive ideal type insists that not merely any “rule,” not merely any “posit” of a lawgiver, and not merely any product of a reasoned deliberative process can satisfy the Rule of Law. According to this conception, the Rule of Law implies the intelligibility of law as a morally authoritative guide to human conduct. In this view, the forms of law – which may encompass rules, conventions of legal reasoning, and processes of legal deliberation – are unintelligible as legal forms in the absence of rationally cognizable purposes that possess reasonable claims to moral allegiance.

Although there are few consistent adherents of substantive conceptions of the Rule of Law, the substantive ideal type is at least approximated by a good deal of contemporary scholarship positing an internal or conceptual link between law (or some particular body of law) on the one hand and substantive political theory on the other. Once this view is adopted, it is impossible to achieve consistency with the Rule of Law unless the law that is enforced by officials satisfies a substantive test of moral correctness or at least acceptability. To cite just a few examples, a substantive conception of the Rule of Law makes appearances, at least, in the writings of Ronald Dworkin, Richard Epstein, and Frank Michelman. Dworkin's complexly layered theory equates the Rule of Law with the consistent application of sound principles of political morality reflected in authoritative legal materials. Insofar as extant legal materials fail to reflect a consistently ordered and rationally defensible set of principles, a society will fall short of the ideal. At least some of the argumentation in Epstein's book *Takings* also appears to presuppose a substantive conception of the Rule of Law. The Takings Clause of the Constitution forbids the taking of “private property” for “public use” without payment of “just compensation.” According to Epstein, courts can protect property in the consistent, principled fashion that the Rule of Law requires only if they adhere to a particular, substantively defined conception of the “property” that they must protect. In other words, a particular, substantive conception of property, which Epstein finds supported both by Lockean natural rights theory and by utilitarianism, must be imputed to the Constitution in order for determinations of legal rights to be dictated by law, rather than rendered by courts on ad hoc and inconsistent bases.

As a final example, Frank Michelman's “Law's Republic” appears to treat a substantive conception of the Rule of Law as necessary to explain the possibility of freedom under law. Americans, Michelman maintains, commonly view themselves as “free” insofar as (i) they are self-governing, and (ii) their government is one of “laws, and not of men.” But how can government under laws made by men be regarded as freedom, rather than a form of majority tyranny? The answer, according to Michelman, must lie in the assumption that law worthy of the name is law that everyone could imagine as being self-given; only on this hypothesis could rule by law be equated with self-rule and thus with freedom. For Michelman, accordingly, the ideal of the Rule of Law is the ideal of rule by precepts that satisfy a substantive standard: the substantive content of legal rules and decisions must be such that they can command, or at least be capable of commanding, universal assent. Michelman believes that laws with some substantive content—those, for example, that deny equal citizenship to minority groups or impinge on liberties basic to self-identity—are not imaginably capable of satisfying the universal-assent standard and thus are incompatible with the Rule of Law.

Perhaps the principal objection to the substantive ideal type is that it turns the Rule of Law into a partisan ideal; questions about the meaning, existence, and requirements of the Rule of Law are joined, at least in some cases, to substantive disagreements about what the law ought to be. But more than “the concept of law,” which positivists and natural law theorists have routinely tangled over, “the Rule of Law” is explicitly an ideal. This being so, it seems inevitable that any plausible conception of the Rule of Law will include at least minimal moral elements—for example, standards defining kinds of official arbitrariness that would be incompatible with the Rule of Law even if authorized in terms satisfying positivist standards of legal validity. Once the foot is in the door, it

also seems inevitable that there will be debates about how extensively the ideal of the Rule of Law is suffused with moral premises and, in particular, how those premises should be conceived.

In any event, substantive conceptions of the Rule of Law are clearly not precluded by any publicly agreed meaning of the term. The argument to exclude substantive content from the ideal of the Rule of Law must itself rely on substantive claims of political morality, which adherents of the substantive ideal type can reasonably reject.

RULE-OF-LAW IDEAL TYPES IN CONSTITUTIONAL DEBATES

Contemporary disagreements about the Rule of Law frequently are reflected in substantive debates involving constitutional interpretation- most often among commentators, sometimes among judges and Justices. A recent, prominent example of express judicial disputation about the Rule of Law is *Planned Parenthood v. Casey*. In that case, a bare five-to-four Supreme Court majority surprised many observers by purporting to uphold the central abortion right first recognized in *Roe v. Wade*, even though reducing the scope of that right by permitting “incidental” restrictions on abortions that do not amount to “undue burdens.” A plurality of the Justices, including two who previously had taken positions sharply critical of *Roe*, relied explicitly on the Rule of Law to justify their decision. In an opinion that resonated in part with the Legal Process ideal type, the plurality reasoned that regardless of *Roe*’s correctness as an original matter, the Rule of Law demanded respect for precedent, and it especially required that constitutional law, as a product of judicial reason, not be perceived as compromised in response to political pressure of the kind that *Roe* had engendered.

The dissenting Justices, however, were no less vehement that the Rule of Law required *Roe*’s reversal. Echoing the historicist ideal type, Justice Scalia’s dissenting opinion maintained that *Roe* lacked any grounding in constitutional text or tradition and therefore represented a judicial usurpation of lawmaking power incompatible with the Rule of Law. Another theme in Justice Scalia’s opinion appealed to the formalist ideal type. He pointed out that the plurality substantially reshaped *Roe*, even while purporting to reaffirm its core, and mocked the plurality’s “undue burden” standard as too uncertain to be applied consistently with the Rule of Law. The Rule of Law, the dissenting Justices implied, requires decision according to rules.

As mentioned above, the Rule-of-Law ideal types introduced in Part II are intended only as heuristically useful abstractions and not as fully accurate descriptions of anyone’s thought, including that of the Justices in *Casey*. Nonetheless, the ideal types help sufficiently to clarify the assumptions of actual constitutional arguments to merit further examination and testing. One purpose of this Part is to explore the implications of the various Rule-of-Law ideal types for constitutional law. An even more important aim, however, is to show the limitations of the ideal types themselves. When the ideal types are tested against substantive and methodological issues familiarly arising in constitutional law, it becomes clear that none provides an adequate, free-standing interpretation of the Rule of Law. Although the ideal types help to elucidate the presuppositions of particular Rule-of-Law claims, an adequate theory of the Rule of Law must include multiple, complexly interwoven strands.

The Historicist Ideal Type

At first blush, historicist conceptions of the Rule of Law would appear to furnish a straightforward prescription for constitutional interpretation: constitutional interpretation should follow originalist principles. Difficulties break out, however, if there is less than total congruence between the historicist ideal of the Rule of Law and the constitutional law of the United States. Lack of congruence has implications, not only for constitutional theory, but also for the requirements of a plausible conception of the Rule of Law.

A theoretical problem for the historicist ideal type, developed in the extensive literature on originalism, involves a distinction between the substantive and “interpretive” understandings of the

Constitution's Framers and ratifiers. It is possible that the Framers and ratifiers shared substantive understandings of the Constitution's meaning, but did not contemplate that subsequent interpreters would be bound by their substantive understandings. If so, the "interpretive" understandings of the Framers and ratifiers would, paradoxically, deny judges and Justices the historically established substantive rules of decision that the historicist ideal type portrays as necessary to the Rule of Law. If this turned out to be the case, adherents of originalist theories might supplement their theories of the Rule of Law to specify the approach that was second-best under these peculiar circumstances. But the supplementation, if it occurred within a theory of the Rule of Law, would implicitly recognize that the Rule of Law is a more complex ideal than the unamended historicist ideal type acknowledges.

A more demonstrable lack of congruence emerges from the acknowledgment-as readily made by originalists as by their opponents- that the constitutional law of the United States has departed far from originalist principles. Confronted with this situation, a proponent of the historicist ideal type might take the position that decisions incompatible with the original understanding are not "real" law in some sense, or – as the dissenting Justices appear to have suggested in *Casey*-lack authority to bind the Supreme Court. But the view that non-originalist decisions neither are nor could be law seems both clearly mistaken and incompatible with views that most self-described originalists in fact hold. Law owes its roots largely, even if not exclusively, to convention and social fact. The Constitution, for example, is law not because the Framers and ratifiers said so, but because we today accept it as such. And the same sort of acceptance that validates the Constitution as law is equally capable of validating, and indeed has validated, non-originalist decisions as law and non-originalist principles of interpretation as lawful within our constitutional culture. Many originalists implicitly concede as much when they accept at least some non-originalist principles and decisions as binding law.

An alternative originalist response to entrenched non-originalist doctrine would be to emphasize that the Rule of Law is an ideal that may be approximated more or less perfectly. Within this framework, non-originalist precedent would be less than an ideal form of law, and a legal system laden with non-originalist precedent would have departed troublingly far from the Rule-of-Law ideal. But precedent is law nonetheless, and acceptance of its authority-from the perspective of the Rule of Law-may be the lesser of two evils.

This argument is surely plausible, but its validity again depends on a broader theory of the Rule of Law than that reflected in the historicist ideal type. The argument that judicial precedent departing from the Framers' intent or original understanding is law, even if second-best or deficient law, requires a theory that comprehends a broader range of Rule-of-Law considerations. And within such a theory, there may well be room, at least in cases of practical exigency, for departure from the original understanding even beyond the scope of *stare decisis*. Perhaps an intimation of this kind explains why Justice Scalia has classified himself as a "faint-hearted" originalist-a characterization more than amply supported by his performance on the bench.

The Formalist Ideal Type

The formalist ideal type associates the Rule of Law with form, not substance, and implies that constitutional decision-making should, to the extent possible, be cast in the form of rules. This prescription is certainly intelligible, but it proves more difficult to integrate into the culture of constitutional argument than might be anticipated. The first, obvious difficulty is that the formalist ideal type by itself gives no indication what the substantive content of constitutional rules ought to be. Justice Scalia, perhaps the leading contemporary champion of rules over more loosely defined standards and especially over multi-factor balancing tests, appears to assume that originalist methods will furnish the governing rule. But there is no assurance, of course, that the original understanding will always prove rule-like.

When his preference for rules conflicts or threatens to conflict with his originalist commitments, Justice Scalia on at least several occasions appears to have opted, perhaps reflexively, for rules. In *Employment Division v. Smith*, for example, the Justice brusquely dismissed textually based arguments that, under the Constitution's Free Exercise Clause, a state must exempt religiously mandated conduct from general criminal prohibitions unless it has a powerful justification for refusing to do so. The constitutional language, he concluded, could be read as requiring religious exemptions, but it did not compel such an interpretation. What is striking is that, self-professed originalist though he is, Justice Scalia "did not pause to consider whether the historical context surrounding the adoption of the Free Exercise Clause might have a bearing on" which of the "permissible readings of the text" ought to be adopted, despite at least some evidence suggesting that the original understanding would have demanded religiously based exemptions. I do not mean to judge the historical question—merely to point out that Justice Scalia never so much as noted it. Regardless of how the historical evidence should have been evaluated, Justice Scalia's total inattention to history, coupled with his tendentious treatment of precedents that appeared on their face to establish rights to religious exemptions in the absence of a compelling government interest in denying them, seems explainable only by his belief that case-by-case balancing is incompatible with the ideal of the Rule of Law as a law of rules: "To make an individual's obligation to obey [a generally applicable criminal law] contingent upon the law's coincidence with his religious beliefs, except where the State's interest is "compelling," would "permit[] him, by virtue of his beliefs, "to become a law unto himself."

When the best or most appropriate rule cannot be extracted directly from the original understanding, candidates must be assessed at least partly on some other ground. The question then arises whether the basis for choice is external to the ideal of the Rule of Law. That the choice of rule would be wholly unconstrained seems implausible. More likely, conventions of legal reasoning and the requirement of reason-giving—as modeled by the Legal Process ideal type—would come into play, or a substantive conception of the Rule of Law would furnish principles of preference. Justice Scalia has sometimes suggested that respect for tradition is an ideal internal to the Rule of Law and, as such, may constrain the judicial elaboration of principles that are consistent with the constitutional text.

In any case, adherence to formalism as a complete and free-standing theory of the Rule of Law in constitutional cases seems manifestly unreasonable, if not wholly impossible. It is hard to imagine anyone insisting that rules, regardless of either their origin or their content, are both necessary and sufficient for the Rule of Law. An account of which rules should be applied by courts, and why, is plainly needed. Furthermore, although formalism is often viewed as a complement to historicism, the ideal types can clearly collide (as they may have in the *Smith* case). Anyone who identifies the Rule of Law with both historicism and formalism needs a more complex theory explaining the relationship between the two.

The Legal Process Ideal Type

Theories approaching the Legal Process ideal type characteristically offer claims about what will suffice for the Rule of Law. In particular, Legal Process accounts maintain that a reasoned connection between recognized legal norms and sources of authority and the outcome in particular cases often will satisfy the requirements of the Rule of Law, even if the result is not determined by a clear rule or an original historical understanding. In contemporary constitutional law, the influence of the Legal Process ideal type is enormous, if not pervasive. In addition to cases such as *Casey*, in which Legal Process arguments are expressly linked to claims about the Rule of Law, countless arguments and opinions presuppose Legal Process premises, even if they do not pause to defend their presuppositions. In many constitutional cases, for example, the language and history of the Constitution stand in the deep background, with the central argumentation focused on how judicial precedents ought to be interpreted within the conventions of constitutional discourse. Furthermore, many of the most admired opinions in the constitutional canon proceed by imputing—by a methodology only loosely disciplined by attention to originally understood meaning—

reasonable, morally attractive purposes to constitutional language or the Framers, or to an identified constitutional tradition, and then pursuing a method of reasoned elaboration to draw out the implications for the case at hand. An especially well-known example is Justice Brandeis's concurring opinion in *Whitney v. California*. In *Whitney*, Justice Brandeis for the first time accepted the force of precedent and conventional legal understandings to establish the proposition, which he previously had resisted, that "the due process clause of the Fourteenth Amendment applies to matters of substantive law as well as to matters of procedure" and thus made First Amendment principles enforceable against the states. Having done so, he described the Framers' aims and attitudes in broad, edifying terms, and drew from their imputed purposes a conclusion that, so far as I know, no serious student has ever thought established by previously articulated judicial rule or the original understanding of constitutional language: "If there be time to expose through discussion the falsehood and fallacies, to avert the evil by the processes of education, the remedy to be applied is more speech, not enforced silence. . . . [And] even imminent danger cannot justify resort to prohibition . . . unless the evil apprehended is relatively serious."

Although the Legal Process ideal type accepts a large role for judicial reason in deriving conclusions that are not determined either by history or by rule, it does not suggest-significantly-that legal norms can be made by judges (however reasonably) out of whole cloth. On the contrary, it assumes the relevance of texts promulgated by historically recognized sources of legitimate legal authority, and frequently those texts' historic purposes or original understandings, as among the relevant starting points for constitutional interpretation. Insofar as it does so, the Legal Process ideal type tends to be at least partly parasitic on historicist theories.

* * *

Without significant modification, the Legal Process ideal type cannot explain a variety of circumstances in which seemingly settled understandings do not require such Legal Process hallmarks as reasoned elaboration of the grounds for decision as necessary to the Rule of Law. Juries simply pronounce their verdicts. The Supreme Court similarly acts without explanation-notwithstanding the occasional dissent-when it either grants or denies certiorari. Prosecutors and other officials generally need not explain their discretionary decisions about whether to initiate enforcement actions. It is true that articulately reasoned decision-making is frequently treated as essential to the proper functioning of appellate courts rendering decisions on the merits and to administrative agencies propounding rules and adjudicating violations. But this treatment may suggest only that the requirements of the Rule of Law can vary with context.

* * *

The Substantive Ideal Type

Decisions and processes of reasoning that clearly exemplify the substantive Rule-of-Law ideal type are relatively rare in constitutional law, but by no means nonexistent. In the recent case of *Romer v. Evans*, for example, the Supreme Court-in invalidating a state constitutional provision that forbade the enactment of legislation protecting homosexuals against discrimination-explicitly interpreted the Equal Protection Clause as embodying a conception of equality that it also associated with the Rule of Law. "Central both to the idea of the rule of law and to our own Constitution's guarantee of equal protection," the Court said, "is the principle that government and each of its parts remain open on impartial terms to all who seek its assistance."

* * *

Reflection on the work of authors . . . mentioned in developing the substantive ideal type confirms this understanding. Ronald Dworkin believes that the Rule of Law requires consistent judicial enforcement of a defensible theory of political morality, but he also accepts that the starting point for legal reasoning must lie in traditional sources of positive law, the status of which a more purely

substantive theory cannot account for. A judge, he argues, must decide cases according to the legal theory that depicts a community's law in the morally best light, but "must not decide a hard case by appealing to any principle that is . . . incompatible with the rule book of his jurisdiction." Although Richard Epstein argues that the Takings Clause must be assigned a particular, substantive meaning in order to be administered consistently with the Rule of Law, he appears to regard this as a special case. In an article entitled "Beyond the Rule of Law: Civic Virtue and Constitutional Structure," he contends specifically that the Rule of Law is defined by formal requirements and that the substantive content of laws must be judged by the standards of substantive political theory, not by requirements of the Rule of Law.

Frank Michelman's "Law's Republic" might appear to identify the Rule of Law more pervasively with rule in accordance with particular substantive values. The Rule of Law, he argues in this article (in at least partial contrast, I think, with positions he has taken in other writings), is rule by laws that each person could imagine willing for herself; only on this assumption can the Rule of Law differ from the rule of men, and can we be "free" insofar as we are ruled by law. Given this premise, Michelman terms it a form of misguided "authoritarianism" to think that provisions of positive law should always prevail in cases of conflict with the ideal of law as a self-given command. Even this claim, however, must be seen in context. The conception of the Rule of Law reflected in "Law's Republic" relies heavily on the ideas and processes reflected in the Legal Process ideal type. In asserting his theory's distinctively "republican" character, Michelman emphasizes the capacity of fair and trusted deliberative process to achieve what he calls a "jurisgenerative" effect – an experience of law as reflective of accepted norms and thus as compatible with freedom. Michelman also postulates that republican legal deliberation must begin with a stock of shared norms, which he thinks likely to exist largely because the Constitution-by literally helping to "constitute" the political community-might shape the normative understandings by which the community, freed from any authoritarian impulse, would wish to govern itself. Finally, to postulate that the Rule of Law requires "jurisgenesis" is not necessarily to conclude that courts should decide every case on the basis of the substantive ideal type. Indeed, I read "Law's Republic" to affirm that courts should deny the authority of traditionally recognized sources of positive law only when restrictions on individual rights amount to denials of equal, republican citizenship. In other cases, the substantive Rule-of-Law ideal deserves the respect of the legislature, but does not necessarily imply a judicial mandate. At least part of the reason, it would seem, is that there is more to the Rule of Law-including respect for positive law and the fair allocation of political power-than substantively just definitions of individual liberty. In any event, when the notion of "jurisgenerative" legal process is conjoined with the norm-shaping function of positive law, and especially when considerations of institutional role are introduced, it becomes clear that the substantive ideal type, by itself, cannot provide a full explication of the conception of the Rule of Law reflected in "Law's Republic."

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MAKING (SOME) SENSE OF THE STRANDS

Although I have emphasized conflict among four Rule-of-Law ideal types, an emerging if recessive theme in my analysis has signaled the possibility that the ideal types might also, in some sense, complement each other.

Complementarity and Conflict

The four ideal types prioritize Rule-of-Law values differently. Nevertheless, the values underlying all of the ideal types are plausible and attractive, and neither values nor priorities conflict in every case.

- (i) The historicist ideal type tries to subject judges to law and to promote the political legitimacy of both law and adjudication by identifying law with the historically understood meaning of past

political decisions. It is, of course, much contested whether originalist modes of interpretation are necessary or appropriate to avoid judicial arbitrariness and to foster political legitimacy. . . . First, the historicist ideal type's goals of avoiding judicial arbitrariness and of achieving democratic legitimacy are plausibly associated with the Rule of Law. Second, the aim of democratic acceptability and accountability is at least partly distinct from the purposes that the other ideal types most directly promote. . . .

- (ii) Prominently supporting the formalist ideal type is the notion that the law should be clear and knowable in advance of its application, to permit people to plan their actions in light of prospective legal consequences. Virtually no one disputes either the validity of this purpose (though there may be disagreement about its relative importance in comparison with other aims) or the proposition that clear rules will often (even if not always) be the best means for promoting it.
- (iii) The Legal Process ideal type aims to provide a plausibly attainable ideal for modern legal systems that include pervasive administrative bureaucracies and rely heavily on courts to adapt legal norms to rapidly changing conditions. But another purpose may be less controversial. The Legal Process ideal type is distinctive in its aim to show respect for citizens, and especially their capacity for reason and reasonableness, by explicitly associating reasoned deliberation and articulate reason-giving with the Rule of Law.
- (iv) Bare on the surface, the substantive ideal type distinctively attempts to align the Rule of Law with norms of substantive justice. Among its attractions, this ambition is closely related to the traditional Rule-of-Law desideratum that people should actually be ruled by law. The substantive ideal type holds out the prospect of moral reasons for obedience even for those who believe that there is no general, content-independent reason to obey the law.

In light of the distinctive purposes of the various Rule-of-Law ideal types, I would now suggest that the Rule of Law, in its most idealized form, should be conceived as conjoining elements emphasized by each. Perfectly realized, the Rule of Law would be rule (i) in accordance with the originally intended and understood meaning of the directives of legitimate, democratically-accountable lawmaking authorities, (ii) cast in the form of intelligible rules binding on citizens, governmental officials, and judges alike, (iii) as identified and elucidated in an interpretive process guided by publicly accessible norms and characterized by reason-giving, and (iv) consistent with legitimate public purposes and sound, shared principles of political morality. When law, in the positivist sense, fails to satisfy any of these elements, the Rule of Law is less than completely realized, but still may (or may not) be more nearly approximated than it is scorned or abandoned.

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Questions and Discussion

1. Read Dicey's elements of the rule of law. Do you think that all the elements have stood the test of time?
2. Compare Dicey's, Raz's and Fallon's exposition of the rule of law and identify their outstanding points of convergence and divergence.
3. In what ways do you think the theories of the three scholars (and of the conclusions of the Delhi ICJ conference) ensure that the rule of law substantively, procedurally as well as institutionally promote justice?
4. What are the major grounds for misunderstanding on the meaning and elements of the Rule of Law? Explain why you agree or disagree with Fallon's opinions on this?
5. Fallon quotes Michelman as saying that it is "a form of misguided authoritarianism" to think that provisions of positive law should always prevail in cases of conflict with the ideal of law as a self-given command." Authoritarianism is a form of government that exists in a non-

democratic political environment in which power is concentrated in the hands of one or few unaccountable persons or a group of persons. Do you agree with Michelman? Why/why not?

The above points of view that we considered on the Rule of Law were largely fashioned on the traditional liberal conception of rights and freedoms, and the role and responsibility of organized political system in relation to the former. There are criticisms to these conceptions of the Rule of Law ideals that they do not look at the weaknesses of even the most idealized form of the Rule of Law as known in the West. One such pungent criticism was, as you may imagine, directed from Marxist theory. Marx maintained that the Western Rule of Law was nothing more than a legitimization of the bourgeois class supremacy over the working class. He asserted that so long as there is economic inequality among members of the society, law remains the instrument of furthering the interests of the bourgeoisie; accordingly, in such a situation it is impossible to have the law apply equally to the powerful bourgeoisie and the powerless workers and others. On account of a different set of values, the Western ideal of the rule of law has been rejected by traditional cultures and societies such as African and Asian. The main thrust of the latter's opposition is that the rule of law has emphasized individual rights and undermined the importance of the community. This misplaced emphasis on the individual undervalues the centrality of the community in these non-Western societies.

In the following essay Oscar Vilhena Vieira talks about yet another important weakness of the Western conception of the Rule of Law from the angle of the economic and social wellbeing of members of the society. This may be likened with Marx's theory indicated above. But, without any ideological considerations, the points raised by Vieira touch the nerve of the issues in that the Western conception of the Rule of Law deemphasizes the need for economic and social equality in order for the respect of the rule of law to come full circle.

Oscar Vilhena Vieira "Inequality and the Subversion of the Rule of Law," in *SUR - International Journal on Human Rights* Vol. 6 (2007). Footnotes omitted.

* * *

The Concept of the Rule of Law

The idea of Rule of Law has become almost unanimously embraced in our days. It has served as an extremely powerful ideal for those fighting authoritarianism and totalitarianism in the last two decades, and it is considered by many to be one of the main pillars of a democratic regime. For human rights advocates, the Rule of Law is perceived as an indispensable tool to avoid discrimination, and arbitrary use of force. At the same time the idea of the Rule of Law revived by libertarians, like Hayek in the middle of the twentieth century, was espoused with fervour by international financial agencies and legal development aid institutions as a fundamental prerequisite for the establishment of efficient market economies. On the other side of the political spectrum, even Marxists, who in the past viewed the Rule of Law as merely a formal super-structural mechanism to preserve the power of elites, have started to recognize it as an unconditional human good. It would be hard to find any other political ideal praised by such a diverse audience. But the question is: are we all praising the very same idea? Obviously people are either talking about different concepts of Rule of Law or emphasizing distinct virtues or characteristics of a more abstract notion of the Rule of Law.

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For Hayek, state intervention in the economy and the growing discretionary power of bureaucrats to establish and pursue social goals threatens economic efficiency; as a consequence of

transformations in the functions of the state, there was a process of decline of law as a substantial instrument in the protection of liberty. The notion that the state had not only the obligation to treat its citizens equally before the law, but also to ensure substantive justice, was accompanied by the argument of new legal theorists that the traditional concept of Rule of Law had become incompatible with the new reality. Different theories of law such as positivism, legal realism or jurisprudence of interest, constructed a desubstantialized notion of law, liberating the state from the inherent limitations imposed by a substantive concept of law.

To overcome this situation of “oppression,” where the state can coerce its citizens - through normative acts - without the necessity of justifying its action in a general and abstract law, it would be necessary to return to the origins of Rule of Law. For this purpose, Hayek revisited history and established a list of essential normative elements of the Rule of Law as the instrument par excellence for securing liberty. According to his version, Rule of Law cannot be compared to the principle of legality developed by administrative law, because it is a material conception, concerning what the law ought to be, therefore a meta legal doctrine and a political ideal, that would serve the cause of freedom, and not a mere conception of a government acting in accordance with norms. The Rule of Law should be structured, according to Hayek, by the following elements: (a) law should be general, abstract, and prospective, so that the legislator cannot arbitrarily choose one person to be the target of its coercion or privilege; (b) law should be known and be certain, so that citizens can plan - for Hayek this is one of the main factors contributing to the West’s prosperity; (c) law should be equally applied to all citizens and government officials, so the incentive to enact unjust laws decreases; (d) there should be a separation between the law-givers and those with the power to apply the law, judges or administrators, so that rules will not be made with particular cases in mind; (e) there should be a possibility of judicial review of the administrative discretionary decisions to correct eventual misapplication of the law; (f) legislation and policy should also be separated, and state coercion be legitimised only by legislation, to prevent the coercion of citizens for individual purposes; and (g) there should be a non-exhaustive bill of rights to protect the private sphere.

Thus, Hayek’s conception of the Rule of Law embodies a substantive conception of law, a strict notion of separation of powers, and an existence of liberal rights to guarantee the private sphere; being modelled therefore to serve as an instrument to protect private property and a market economy. The major problem with this conception is that the Rule of Law becomes captive of a particular political ideal.

In reaction to this and other kinds of substantive formulations of Rule of Law, such as the more socially oriented one that resulted from the Delhi Congress of the International Commission of Jurists, in 1959, Joseph Raz proposed a more formalist conception, which would avoid the confusion between several social or ideological goals and the intrinsic virtues of the Rule of Law. For him, “if the Rule of Law is the rule of good law then to explain its nature is to propound a complete social philosophy. But if so the term lacks any useful function.”

For Raz the Rule of Law in a broader sense “means that people should obey the law and be ruled by it. But in political and legal theory it has come to be read in a narrow sense, that the government shall be ruled by the law and subject to it.” Raz’s construction requires that laws should be understood as general rules, so they can effectively guide actions. In this sense law is not just a fact of power, but it needs to have a particular form. Raz, however, does not shift to the position espoused by Hayek that only abstract and general rules can constitute a Rule of Law system. For Raz, it would be impossible to govern with general rules only; any concrete system must be composed of general and particular rules, which in turn should be consistent with the general ones. To comply with the objective of a legal system that can guide individual action, Raz creates his own list of Rule of Law principles, according to which laws should be prospective, open, clear, and relatively stable; and the making of particular laws should be guided by open, stable, clear and general rules.

But these rules will only make sense if there are institutions responsible for their consistent implementation, so that law can become an effective rule to guide individual action. Raz's construction, therefore, requires the existence of an independent judiciary, because if rules are reasons for actions, and the judiciary is responsible for applying these rules, it would be futile to guide one's action by the law if the courts would take other reasons into consideration when adjudicating cases. For the same reason principles of due process, as fair hearings or impartiality should be contemplated. Rule of Law also requires that courts should have the power to review acts of the other branches of the government, to ensure conformity with the Rule of Law. Courts must be easily accessible so as not to frustrate the Rule of Law. Lastly, the discretionary powers of crime prevention agencies should not be allowed to pervert the law, in the sense that neither the prosecutor nor the police should have the discretion to allocate its resources to combat crime on other bases than those established by the law.

From this perspective, the idea of the Rule of Law is a formal concept according to which legal systems can be measured not from a substantive point of view, such as justice or freedom, but by their functionality. The main function of a legal system is to serve as a secure guide for human action. And that is the first reason why a formalist concept of Rule of Law, such as the one formulated by Raz, receives a broad support from different political perspectives. It is extremely valuable for governments in general to count on an efficient tool to guide human behaviour. However, being instrumental to distinct political perspectives does not mean that even a formalist concept of Rule of Law is compatible with all kinds of political regimes. By favouring predictability, transparency, generality, impartiality and granting integrity to the implementation of law, the idea of Rule of Law becomes the antithesis to arbitrary power. So the distinct political perspectives that embrace the Rule of Law have in common an aversion to the arbitrary use of power; and this is another explanation why the Rule of Law is embraced by democrats, liberal equalitarians, neo-liberals or human rights activists. Regardless of their differences they are all in favour of curbing arbitrary rule. In an open and pluralist society, which offers space for competing ideals of public good, the notion of Rule of Law becomes a common protection against arbitrary power.

There is, however, a less noble explanation for this broad support for the Rule of Law that we should be aware of. Since the Rule of Law is a multifaceted concept, if we take each of its constitutive elements separately they will be extremely valuable to advance different and sometimes competing values or interests, such as market efficiency, equality, human dignity or freedom. For those pushing for market reforms the idea of a legal system that provides predictability and stability is of the utmost importance. For democrats, generality, impartiality and transparency are essential, and for human rights advocates equality of treatment and the integrity of law enforcement agencies are indispensable. So, what also helps to explain the attraction of such a large audience to the Rule of Law is the partial reading of a multifaceted concept made by distinct political conceptions. Therefore, when we find someone praising the Rule of Law we have to be cautious and check if they are not just being laudatory to one of its virtues. A virtue that supports the social goals they want to advance.

Inequality and the Rule of Law

In 1988 Brazil adopted a new constitution, after more than two decades of an authoritarian regime. In reaction to the experience of arbitrary rule and a past of social injustice and inequality, the new constitution was forged under the principles of Rule of Law, democracy, and human rights. Its bill of rights guarantees civil, political, social, and economic rights, including the rights of vulnerable groups such as Indians, the elderly and children. These rights receive special protection, and cannot be abolished even by constitutional amendments. Brazil today is part of the main international human rights conventions, which have a direct effect on the Brazilian legal system. Therefore, all the substantive and procedural guarantees of the International Bill of Rights are part of the Brazilian legal system.

According to the Brazilian Constitution, the law is the only instrument that can impose legal obligations on individuals, laws being considered those normative acts enacted by Congress procedurally and substantively in accordance with the constitution. Every person is “equal before the law,” without any distinction. Laws should be prospective, entering into force only after their publication; retroactive laws are just admitted if they benefit individuals. There are no secret laws. In case of emergency the president can enact provisional measures that have to be approved by Congress to become law, within a period of sixty days; otherwise, they lose their efficacy since enactment. In sum, although many Brazilian laws would not pass Hayek’s test of generality, since many of them have a specific and individualized purpose, as do many laws enacted in any post-liberal society, they certainly would be acceptable according to Raz’s formulation about the concept of law, where particular rules are admissible if they are consistent with general rules. I also believe that Brazilian laws can in general be considered understandable, not contradictory, and reasonably stable.

In relation to the institutions responsible for the implementation of law, the Brazilian legal system could also formally be considered to be in accordance with Raz’s requirements. The constitution embodies a system of separation of powers, differentiating between those with the responsibility to create and to apply the law. As in many contemporary systems the separation of powers is not as sharp as in the Montesquieu model; the executive has powers to regulate, and to make administrative adjudication in particular areas. The judiciary holds extensive power to review legislation and administrative acts that conflict with the constitution. The legislature has more power than to simply enact general and abstract laws; it can control the executive and investigate malpractice. But certainly this flexible notion of separation of powers is no looser than the one admitted by many other democracies.

Although on paper this institutional setting seems to conform to Raz’s Rule of Law model, the Brazilian legal system suffers from a severe lack of congruency between the laws enacted and the behaviour of individuals or state officials.

There is today a growing awareness that law - and rights - still play a very minor role in determining individual or official behaviour. According to the 2005 Latinobarometro Report, there is a large amount of distrust in the capacity of the state to impartially implement its legislation and, more problematically, only 21% of Brazilians respect the laws themselves. According to Guillermo O’Donnell most countries in Latin America were not able to consolidate a Rule of Law system after transition to democracy. He argues that extreme inequality throughout the region is one of the major obstacles to an impartial implementation of the Rule of Law. Brazil, as one of the most unequal countries in the continent, could be characterized as an Unrule of Law system instead of a law empire.

Democratisation and liberalization were not sufficient to overcome entrenched obstacles to the implementation of the Rule of Law in Brazil. The failure to significantly improve the distribution of resources and break the very hierarchical Brazilian social fabric have kept law from performing its role as reason for actions for several sectors of Brazilian society. Brazil stands as the 8th largest economy in the world, according to recent revaluation of Brazilian Gross Domestic Product. However, it holds one of the worst records in terms of wealth distribution (0,584 gini index). According to IPEA, a research institute linked to the Ministry of Planning, 49 million people are poor in Brazil, and 18.7 million are in a condition of extreme poverty. In the last decade the richest 1% of the population shared almost the same wealth as the poorest 50%. These, among many other indicators of the gross inequalities within Brazilian society, have a strong effect on the impartiality required from institutions responsible for implementing the law in the country. As in many countries with this configuration, the Brazilian state is usually sweet to the powerful, insensible to the excluded, and harsh to those who challenge the hierarchical stability of society.

Invisibility, demonization, and immunity

The central claim advanced here is that social and economic exclusion, deriving from extreme and persistent levels of inequality, causes invisibility of the extreme poor, demonization of those who challenge the system, and immunity of the privileged, obliterating legal impartiality. In synthesis, extreme and persistent social and economic inequality provokes the erosion of Rule of Law's integrity. Law and rights under such circumstances can often appear as a farce, an issue of power for those who are among the lucky few negotiating the terms for those excluded.

Invisibility means here that the human suffering of certain segments of society does not cause a moral or political reaction from the most advantaged and does not trigger an adequate legal response from state officials. The loss of human lives or offence to human dignity of poor people, although reported and extensively acknowledged, is invisible in the sense that it does not result in a political and legal reaction or encourage social change.

Besides misery itself, and all its deplorable consequences in terms of rights violations, one of the most dramatic expressions of invisibility in Brazil is the extremely high rates of homicides that victimize predominantly poor populations. As the World Health Organization presented in its last report on violence, Latin America holds the worst record in terms of homicide rates on the planet. Brazil, one of the most violent countries in the region, accumulated more than 800,000 deaths by intentional homicide in the last two decades. More people become victims of homicide every year in Brazil than in the Iraq war. It is important to say that the vast majority of those killed are poor, uneducated, young black men who live in the Brazilian social periphery. As cautiously demonstrated by Fajnzylber, Lederman and Loayza, there is a robust causal relation between inequality and violent crime rates across countries.

When added to other crime rates, and the fact that many poor neighbourhoods in large cities are controlled by organized crime with the complicity of state officials, these figures send the message that law is not able to serve as a reason for action in some environments, and most of all, that legal constraints, such as the criminal legal system, are insufficient to protect vulnerable groups within society. Obscene levels of impunity, besides allowing human losses among the poor not to receive an appropriate response from the legal system, reinforce the perverse notion that these lives are not valuable. This vicious circle of elevated levels of violent criminality and impunity brutalizes interpersonal relationships and reduces our capacity of compassion and solidarity.

But if invisibility can be accepted in traditional societies it becomes a troublesome trend in a democratized regime and consumer-oriented context. For some of those who have not experienced being treated with equal concern and respect by those responsible to implement the law and by society in general, there is no reason to act in accordance with the law. In other words, for those raised under invisibility in non-traditional societies there are less moral or instrumental reasons to comply with the law. In challenging invisibility through violent means these individuals start to be perceived as a dangerous class, to which no protection of the law should be granted.

Demonization therefore is a process by which society deconstructs the human image of its enemies, which from now on will not deserve to be included under the realm of law. As in the famous phrase of Graham Greene, they became part of the "torturable classes." Any attempt to eliminate or inflict harm to the demonized is socially legitimized and legally immune.

To understand demonization, we turn our attention to gross human rights violations. The persistence of the arbitrary use of force by state officials, or other armed groups with official complicity, against demonized people like suspects, ordinary criminals, inmates, and even members of social movements is well recorded every year by local and international human rights organizations. The press database of the Centre for the Studies of Violence of the University of São Paulo, registered more than six thousand cases of arbitrary use of lethal force by the Brazilian police from 1980 to 2000. Each of these cases resulted in at least one death.

According to the Human Rights Watch 2006 Report, “police violence – including excessive use of force, extra judicial executions, torture and other forms of ill-treatment – persists as one of Brazil’s most intractable human rights problems.” In 2006, the police, just in the state of Rio de Janeiro, killed more than one thousand people.

Torture remains a common practice both in police investigations and as a disciplinary method used in the prison system and in juvenile detention facilities. ...

Immunity before the law, for those who occupy an extremely privileged position in society, is the third consequence of extreme inequality to be mentioned here. In a very hierarchical and unequal society the rich and powerful, or those acting on their behalf, view themselves as being above the law and immune to obligations derived from other people’s rights. The idea of immunity can be understood by focusing on the impunity of human rights violators or of those involved in corruption, being the powerful or the rich.

Impunity of human rights violators is endemic in Brazil, as reported by major human rights organizations, and also recognized by federal authorities. . .

Immunity is also a pattern for those involved in corruption. Even though Brazil received an overall moderate rating in the Global Integrity Index, published every year by Transparency International - it was ranked as number sixty-two among the nations analysed - the unmet challenge of impartial implementation of the laws cannot be ignored. In the last two decades there have been hundreds of scandals involving politicians, businesses, and members of the judiciary. The enormous majority end in impunity for those involved. . .

Disproportional distribution of resources among individuals and groups within society subverts institutions, including the work of those agencies with the responsibility to implement the law. An analysis of the Brazilian penitentiary census shows that only the poor and uneducated are selected by the Brazilian criminal system to be incarcerated. That is the conclusion of Glaeser, Scheinkman and Shleifer, after an econometric analysis of the impact of inequality on institutions of justice: “inequality . . . enables the rich to subvert political, regulatory, and legal institutions of society for their own benefit. If a person is sufficiently richer than another, and the courts are corruptible, then the legal system will favour the rich, not the just. Likewise, if political and regulatory institutions can be moved by wealth and influence, they will favour the established, not the efficient.” As stated by experience of the Brazilian Deputy General Federal Attorney, “corruption is a direct consequence of the perverse concentration of income in Brazil.” The conclusion is that impunity, although a general phenomenon in Brazil, is more prominent for the privileged ones.

The erosion of law’s authority

As the Brazilian experience shows, extreme levels of social and economic inequality that polarize the poor on one side and the affluent on the other create a severe obstacle to the integrity of the Rule of Law. By fomenting gross power disparities within societies, inequality places the poor in a disadvantaged position, in which they are socially marginalized in the eyes of those in a better situation as well as in the eyes of state officials, who are captive to the interests of those who have more power in society. This creates a hierarchical society, where second-rate individuals cannot achieve a real status of full citizenship and are not fully recognized as right holders (even though they may formally be so). Discrimination, in this sense, tends to loosen the reciprocity bonds within the community, softening the feeling of moral obligation by the powerful towards those who are excluded. Once they cease to be perceived as valuable subjects, it doesn’t take much to deprive them of the set of rights that protects other citizens. Therefore, one can hardly achieve reciprocity in a society where major hierarchies and inequalities among individuals exist. Consequently, the law will hardly be effective as an instrument of social organization and pacification.

The same rationale may be applied to the effect of self-interested reciprocity in the construction of a peaceful social order. If the reciprocal interests of agents in the exchange relations that make possible the production and circulation of wealth within a community are not satisfied, the underprivileged agents will hardly have reasons to behave according to the rules of a game that systematically harms their interests. From the other side, the privileged feel that there is no social constraint on the maximization of their interests. This situation eliminates incentives on both poles for compliance with the rules and respect for rights in the sphere of the interpersonal relations.

Deprived of social and economic status, the invisible individuals start to be socialized in a way that leads them to place themselves in a position of inferiority vis-à-vis the immune individuals and to accept the arbitrariness of public authorities. They cease to expect that their rights will be respected by others or by the institutions with the responsibility to implement the law. Those who react to this degrading position become a threat and are treated as enemies. At the same time, immune individuals do not consider themselves bound to respect those they consider inferior or enemies. The same applies to co-opted authorities. In this situation, a large number of people are below the law while a group of privileged individuals is beyond the control of the state. In this manner, the state, which was supposedly responsible for the application of formal mechanisms of social control, pursuant to the law and by its means of coercion, begins to reproduce socially generalized standards. The result is that the state is negligent with the invisible, violent and arbitrary towards the moral outcasts, and docile and friendly towards the privileged that place themselves above the law. So even though you may have a legal system that complies with the several “excellences” related to the formality of law, the lack of a minimum of social and economic equality will inhibit reciprocity, thereby subverting the Rule of Law.

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Questions and Discussion

1. Oscar Vilhena Vieira has given you great food for thought on how social and economic inequality perverts the application of the rule of law principle by providing the Brazilian example. Discuss your agreement or disagreement with his arguments with adequate reasons. Reflect on the Ethiopian social and economic realities and how these affect the equal application of the law.
2. Vieira quotes Hayek as saying that the “Rule of Law cannot be compared to the principle of legality developed by administrative law, because it is a material conception, concerning what the law ought to be, therefore a meta legal doctrine and a political ideal, that would serve the cause of freedom, and not a mere conception of a government acting in accordance with norms.” What does this assertion mean? How is the Rule of Law different from the principle of legality used in administrative law?
3. Vieira develops an interesting concept of “invisibility” and “demonization” in which the appalling economic conditions of the bulk of the Brazilian society were devoid of attention by the state and the economically powerful. He concludes that in such a situation “the state is negligent with the invisible, violent and arbitrary towards the moral outcasts, and docile and friendly towards the privileged that place themselves above the law. So even though you may have a legal system that complies with the several “excellences” related to the formality of law, the lack of a minimum of social and economic equality will inhibit reciprocity, thereby subverting the Rule of Law.” Do you agree with his assessment? Does his synthesis of the Brazilian situation bring to your mind any similar scenario in the Ethiopian society?

Discuss this by looking at various possibilities such as the street children in Addis and elsewhere in the major cities of Ethiopia. Have you ever thought about the people that live on leftovers in garbage dumping areas? What does their situation tell you about the equality of human beings? Even think of the Ethiopian farmers and pastoral communities (and their children) who eat malnourished food often only once or twice a day; wear just one often dilapidated, worn-out article of clothing throughout the year; sleep on tanned bare animal hides in a one-door windowless hut

with all of their children. At the same time, think of those urban propertied individuals with abundant resources at their disposal. What does this say about the value of human beings and dignity in the light of the Rule of Law under discussion? It must be pointed out that the majority of urban dwellers in Ethiopia lead miserable lives comparable to the rural population, if not worse in some cases, and our evaluation of the problems that subvert the rule of law must be mindful of these people as well.

4. Vieira also talks about the Brazilian legal system as complying with the several “excellences” related to the formality of law but that it lacks implementation due to the various reasons he discusses. Do you think we can say the same in relation to our Constitution and laws? Reread Vieira’s passages on Brazilian law and make an evaluative assessment of the Ethiopian laws.

ISSUES OF RULE OF LAW, LEGITIMACY AND GOVERNANCE IN AFRICA

Perhaps more than anywhere else in the world, the Rule of Law, legitimate governance and other values are in serious deficit in Africa. As the earlier discussed authors have noted in various contexts, the Unrule of Law prevails in Africa. There may often be nicely written laws, including constitutions. But they suffer from all kinds of implementation problems: from selective application to impunity to corruption, on the whole leading to a situation where the Rule of Law is devoid of its normative principles discussed above. In his work excerpted below, Yash Ghai brings this problem quite close to home. He discusses how the rhetoric of legality and the rule of law is used by the African leaders to their political advantage and to intimidate and disband opposition movements. Ghai seeks to explain why this happens by taking into account the useful example of some East African states. He points at the central role law plays in Africa but at the same time the total disregard for law prevalent in African states.

Yash Ghai, “The Rule of Law, Legitimacy and Governance,” in *International Journal of the Sociology of Law* Vol. 14 (1986). Footnotes and in-text references omitted.

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Legitimacy

The modern sociological concept of legitimacy derives from Weber. In his view legitimacy was necessary to establish a stable system of domination. Domination he defined as the probability that the commands of those in positions of power will be obeyed. This obedience is based “on the most diverse of motives . . . : all the way from simple habituation to the most purely rational calculation of advantage.” These motives of obedience need to be supplemented by a belief in the legitimacy of the system; “every system attempts to establish and to cultivate the belief in its legitimacy.” Weber argued that different systems laid claims to different bases of legitimacy; and that the kind of legitimacy claimed would determine key features of their organization of authority and administration.

The notion of legitimacy as residing in the consciousness of the people and securing the rule of the dominating group was also explored earlier by Marx. He argued that the ideas of the ruling class were in every epoch the ruling ideas. In other words, the consciousness of the people was shaped by the needs and ideas of the ruling class, and emphasized the superiority of the particular system. It thus tended towards the idealization of the basis of authority and the interests it served by detaching from the particular system and presenting them as rational and inevitable. This consciousness—the ideology—changes from epoch to epoch, depending upon the material interests of the ruling class (e.g., when the aristocracy was dominant, the concepts of honor and loyalty were crucial, while when the bourgeoisie is dominant, the concepts of freedom and equality are central).

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African regimes and Legality

When the ideology of legality is dominant, those who are best able to mobilize the law by enactment or application are in a favored position. Being in control of the legislative machinery and of resources such as legal personnel, governments in Africa can use the law to legitimate their regimes, exact obedience from the people, and develop their economies.

There are further tasks that can be performed through the ideology of legality in Africa. Whereas the development of the ideology in capitalist countries, especially in the 19th century, served to legitimize the socio-economic system of capitalism that had developed on the basis of property relations, in Africa the law has been more directly constitutive of economic and political relations. In the absence of significant “natural” unifying factors (e.g., common language, ethnicity, tradition, or an integrated economy), the emergence of statehood in Africa has been symbolized by constitutional instruments. The constitution provides one of the key symbols of the new state and nation, taking potency from the general consultations preceding its adoption, and its democratic and representative character. To a large extent the legitimacy of power is directly related to its acquisition under the constitution. Territorial sovereignty and national integration are defined by the very terms of the law.

The dominance of the state in African countries points to another crucial role for law. Functions performed in many countries by private groups are undertaken by government authorities, whose establishment is based on law rather than existing social reality. Control over the bureaucracy by the politicians may then be secured through the law, as the economic and social means available to the ruling class in the West are often absent. This becomes especially important with the increasing control by the government over national economic resources and their allocation; the law (e.g., in the form of commodity and marketing boards) supersedes or qualifies the market. The law also regulates relations between the different modes of production which coexist in most African countries. The selective penetration of the “traditional” by the “modern” sectors as well as the incorporation of the former into the latter is achieved largely through legal forms and sanctions, the law thus providing a fundamental underpinning for the economy.

The role of the law in African states is thus central, but how parasitic is this role on particular practices of legality? How far is the effective performance of the law’s range of functions dependent upon governments themselves accepting the implications of legality, particularly as it sets limits to their executive power?

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Constitutions: The Practice

In the period immediately preceding a nation’s independence, the constitution, which during colonial rule, has never been a true determinant of power relationships, becomes the center of all controversies. Parties and groups look to it for the solution of their political and economic problems. The constitution as finally negotiated is therefore safeguarded by a high degree of entrenchment of its provisions and the vesting of the power of review in the courts to enable them to rectify infractions of it. The constitution is to be regarded henceforth as truly and effectively the fundamental law, the real basis of the organization of state and power, as establishing the framework for political competition. How far did the constitution of Kenya, Tanzania and Uganda fulfill these functions? We look to the experience in the early years of independence only.

The three east African constitutions established Westminster system systems of government, with the Prime Minister and his Cabinet appointed from the legislature and responsible to it for policy and administration. In Kenya and Uganda, they also contained extensive elements of federalism, and bills of rights.

To turn to Tanzania first: although Tanganyika inherited the least complex of East African constitutions it made radical changes at the first anniversary of independence, the thrust of which was to establish a strong executive, in which power was centered in one person, with the Cabinet

becoming an advisory body and Parliament losing its power to dismiss the executive. The Keynote of the new republican constitution was its flexibility and the absence of normative restraints. Nyerere argued, by analogy with an African chief, that considerable power should be vested in the leader so that he could mobilize the people, control bureaucracy and mold the political order. The constitution, he said, cannot solve all the nation's problems or define all power relationships. The concept of power outside the constitution is a key to the understanding of Tanzania's constitutional experiments.

At independence, Tanzania had two great assets, a powerful charismatic leader and a vigorous and almost monopolistic political party—Tanganyika African National Union (TANU). While the aim of the 1962 constitution was to provide constitutional underpinning for the position of that leader, the 1965 constitution was intended to do the same for the party. One of the key questions was the relationship between the party and the state institutions: should they be merged or remain separate. The decision was taken against a merger and to leave the party outside regulation in the Constitution, and not to define the relationship between the party and the state in any precise manner. It is obvious that this position was taken to ensure that the party retained both its leading role and its internal strength and cohesion. A sharper definition of the relationship between the party and the state might have led to disputes about the role of the party and endangered its position and might also have brought the party under greater regulation by the public law. The relationship was left to be determined by the political order (in which the party was supreme).

The effect of the 1965 constitution was thus to confer a political monopoly on TANU, while at the same time keeping the party outside its ambit. It was imaginative and innovative in allowing for new forms of control and greatly increased freedom and participation—but within the limits of the political order sanctioned in the constitution. Thus the candidature in parliamentary elections is vetted by the party (party membership being a necessary qualification), and if a member shows an independence of mind, which is resented by party leaders, he or she can be removed from the National Assembly by expulsion from the party. But if the recalcitrance of members and other individuals threatens the political system more seriously, the president can use the powers of preventive detention, or the awkward MP can be expelled from the party and hence from parliament as happened in the wake of new freedoms given to parliamentarians after the 1965 constitution. It is also significant that the Permanent Commission of Enquiry—the Tanzanian version of an Ombudsman—is responsible not to parliament but to the President, and its findings and recommendations are confidential, although in practice a selection of cases is published annually. So it is possible to argue that the constitutional changes are really peripheral to the basic political order and incapable of affecting its functioning in any fundamental way.

If the constitutional system of Tanzania has been used to reflect and reinforce the political order, the position in Kenya has been that the constitution has been used much more actively to define and modify the political system. The weaknesses of party institutions in Kenya have pushed what would more properly be party discussions into the state institutions, particularly the National Assembly. Equally, the government has used state institutions to affect party matters. The history of the constitution since independence is revealing. The political order emerges as fluid and unsettled with the party resorting to constitutional changes as a substitute for controlling its backbenchers through the party machinery, or dealing with the opposition in the open market place of politics.

Soon after independence, the government justifiably used its legislative majority to dismantle regionalism, but since then many of the changes in the constitution have been made to achieve particular party advantage, even if this produces constitutional inconsistency and incongruity.

. . . [T]he 1966 amendment . . . required MPs crossing the floor to another party to resign from parliament. In the period after independence, the government had actually approved certain defections. Although the country became independent with two parties, in less than a year it became a *de facto* one-party state, following first the trickle and later the flood of Kenya African

Democratic Union (KADU) members to Kenya African National Union (KANU). Why then the change of heart over the right to secede? In April 1966 the Vice President, Odinga, resigned his office and left KANU, carrying 20 or so other KANU members with him and becoming the official opposition under the name of the Kenya Peoples Union. Alarmed by the possibility of further defections, the government introduced the amendment and secured its passage through the National Assembly in one day by suspending the standing orders and thus dispensing with the rules requiring 14-days' notice of the bill, and governing the lapse of time between its various stages. After the ensuing elections for these vacancies, two of the unsuccessful candidates applied to the High Court for a declaration that they were still MPs as they had left KANU before the amendment was passed. While their petition was still before the court, the government introduced a further "clarifying" amendment making the provisions retrospective. Further, although the government had been unsuccessful in preventing the Speaker from recognizing the KPU as an official opposition, it achieved this more deviously by enacting amendments to the standing orders providing that no party with less than 30 members could have the status of an official opposition. The KPU thus lost that status.

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. . . [I]t is not surprising that Uganda was the first of the mainland countries to abandon the path of constitutional rule. The independence constitution had perhaps tried to achieve the impossible. It abounded in unworkable compromises and institutionalized inequalities, and attempted to isolate a part of the country from the mainstream of national politics. It embodied the conflict between progressive and nationalistic aspirations on the one hand and feudal and tribal politics on the other that was reflected in the federal arrangements. The process of amendment was so devised that no significant diminution of the federal principle could take place without the consent of the states, more particularly Buganda, which, at the time, enjoyed considerable political and economic power. The constitution thus required the kind of collaboration which was forthcoming in the initial period of multi-party and coalition-politics. But once serious parliamentary opposition to Obote's ruling Uganda People's Congress was removed with attrition of the Democratic Party, the inherent contradiction in the federal constitution surfaced again. For some time Obote kept within the constitution, while using it to consolidate his position. But given the strength of Buganda, unlike Kenya's regions, the strait-jacket of the constitution could only ultimately be avoided by repudiating it. And this is just what Obote, impelled by the attractiveness of a strong centralized system, did.

It is indicative of the strong roots that constitutionalism had taken in Uganda, that his regime soon began the search for a return to constitutionality. But the concept of the constitution was no longer that of accommodation but of mobilization. Henceforth, the constitution was to be an instrument in the service of his government. His approach is symbolized by the fact that the rump of the National Assembly were summoned to Parliament surrounded by armed men, and told to approve a constitution which they had not seen. Crude as it may seem, the same constitution was upheld by the High Court in subsequent litigation as valid and lawful, after a somewhat confused discussion of Kelsen's grundnorm theory (*Uganda v. Commissioner of Police, ex parte Matovu* [1966] E.A. 514). As the government gained in confidence, so it gained in sophistication and in 1967 it convened a Constituent Assembly—another name for the rump of the National Assembly—to debate proposals for a new constitution. The final proposals provided extensive powers for the President, and a strongly centralized government with the last vestiges of federalism removed. The 1967 constitution clearly had more legitimacy, since it had been freely debated in the country. Since Obote was not as secure politically as his counterparts in Kenya and Tanzania, the new constitution provided that a President needed only 40% parliamentary support; thenceforth, his party would nominate a number of its supporters to the National Assembly to give it a majority of 10 over its opponents.

It seemed the new constitution was beginning to take root. When Obote dismissed his Chief of Defence Staff, the latter felt it worthwhile (though in fact he lost) to resort to court to seek a declaration that the President had no right to dismiss him (*Opoloto v. A.G.* [1969] E.A. 631). Even ordinary citizens were emboldened to take on the government, and the long saga of a private citizen who used the courts to recover from the government what it owed him reversed a court tradition of finding for those in power. The government's sustained attempt by legislation and otherwise to vitiate the court decision, however, indicated that its new commitment to constitutionalism was, at best, ambiguous.

The use of the constitution as an instrument for those in power became obvious in the proposals for election rules. They were complex, but their primary purpose was to require a candidate to fight in three constituencies and secure a specified majority in each before he or she could be elected. The justification was that tribalism would be discouraged, for now a candidate had to have support from more than one tribe. There were also suggestions, however, that the ruling party stood to gain from the new procedure, or that at least the President was hoping thus to jettison some of his own party members. At the same time a ban was placed on other political parties, and it was while Uganda was thus poised on brink of a dramatic, albeit confused, election (the first in nine years) that Obote's new Chief of Defence Staff, Idi Amin, ousted him and his constitution. Uganda was ready for another search for a constitution, but the enterprise has since been postponed as Amin preferred to rule the country through terror and armed force (and reduced law to his whims and caprice), and none of his successors has so far enjoyed enough stability to embark upon it.

Ordinary Law and legality

When we turn to the ordinary law, we find a similar ambiguity over attitudes to legality. On the one hand, there is a concern to observe legal proprieties and attention is paid to the enactment of legislation to lay a lawful basis for policy. On the other hand, there is widespread disregard of the law, when this is convenient, and a selective enforcement of it. This trend is more obvious in Tanzania and Kenya, in instances of unlawful detention of people who for some reason have run foul of local officials, and in orders given by political or administrative authorities affecting the rights of individuals or groups but having no sanction under the law. The latter include extralegal attempts to regulate dress, censor music, or require compulsory attendance at rallies, some of which could easily have been legalized. The President himself on occasion chose to ignore legal procedures, as with his ordering the wide scale arrest of "cattle thieves" in the Mwanza District early in 1967. Over 4,000 arrests were made, a detention center set up, and screening teams established to review the cases of the detainees. The cases were not taken to court. Similarly, in 1975, the President ordered the confiscation of cattle belonging to families in the villages alleged to be involved in cattle thefts, and their redistribution to others, alleged to be the victims.

The President also ordered the expulsion from the University of a large number of students in 1966 for protesting against the proposals for a national service. He acted outside his lawful authority in each of these cases. In the case of cattle thieves, there is indeed legalization from colonial days that might well have been used, but it provides some procedural safeguards which were not followed. Some of the President's actions, though strictly legal, have not been in accordance with the spirit of the law. He has used his powers under the Preventive Detention Act (1962) which authorizes the detention without trial of persons suspected of being a threat to the security of the state, to detain people against whom the only allegation has been that they were involved in corrupt or other illegal activities.

For a long time, Tanzania tried to implement its rural ujamaa policies without the assistance of law, even though this meant that vested rights of individuals were breached. The courts failed to provide redress on the few occasions when the aggrieved peasants sought a judicial remedy, the then Chief Justice preferring to avoid an expected conflict with the executive, even if in the process the courts failed in their primary duty to uphold the law.

The courts have not played a role in safeguarding the rights of the people. A declining private profession bedeviled with low morale and operating within what it regards as a hostile environment is too afraid to take up *habeas corpus* applications, which in any case could be barred by the use of the Preventive Detention Act. Courts are afraid to give judgments that would upset the government and party. Although Tanzania has not interfered, except for the occasional regional secretary, to dictate decisions to the judiciary (except that its dismissal of the first Tanzanian Chief Justice was hardly consistent with judicial independence) the general political system does not encourage a bold and imperial exercise of the judicial functions.

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Selective Legality

Both governments have observed legality when it is functional, particularly in foreign relations and dealing with foreign investors. Tanzania was careful to pay all lawful compensation to foreign firms it nationalized in 1967; it appreciated the importance of the appearance of legality, if it was to continue to deal with foreign governments and investors. The importance that Western governments and the international economic institutions under their hegemony attach to legality (because it protects their interests) and the sanctions they can impose for its breach compel developing countries, otherwise careless of legality, to adhere to legal forms and rights in relations with foreign investors (although foreign investors can frequently live with harsh and lawless regimes).

In some instances, when it appears that the government is mindful of legality, it is engaged upon a cynical and opportunist use of it. In Kenya, for example, an outspoken defender of the rule of law was its former Attorney General Charles Njonjo. As the custodian of the legal system with a firm charge over its resources, his own position was enhanced by an emphasis on the centrality of the law and the judicial process. It had the subtle effect of shifting the levers of control (and intimidation) away from political leaders (and rivals) to himself. He used the investigatory and prosecutorial process to harass opponents, who were frequently put on trial.

At first the fact that important politicians could be hauled before the courts enhanced the image of law as an impartial process and of the government as committed to the law. After some time, however, the selective nature of prosecutions became obvious. Politicians in grace got away with assault and damage to property, and well-documented allegations of corruption went uninvestigated. Politicians out of grace were prosecuted for trifling offences. A particularly serious consequence for members of Parliament of convictions in these trials is that if they are (as they regularly are) sentenced to more than seven months, they lose their seat. A pattern appears to have become established so that a prosecution of an important person was assumed to be politically motivated.

It was not only this selective and political use of the legal process which served to discredit the law. The logic of the strategy led to a compromise with the fundamental principles of the process of the law. From the government's point of view, the effectiveness of the court process was that it could disclaim responsibility ("nobody is above the law", "the law must take its course"), and what could be more damning for an accused person than to be found guilty of criminal charges in open court presided over by impartial judges and assisted by members of an independent legal profession? The Kenyan Constitution provides for an independent judiciary, legal representation by counsel of the accused's choice, public proceedings, and a reasoned decision by the court. The court process cannot for that reason be as tightly controlled as the bureaucratic. It therefore becomes necessary to minimize the open-endedness of the court process. This can only be done by the subversion of the fundamental principles of that system. The elective use of the prosecutorial powers has already demonstrated their manipulation for political ends. The legal profession has been cowed. The barrier of an independent judiciary has allegedly been overcome by the appointment of a few compliant magistrates and judges. It is significant that cases of this kind tend to be heard regularly

by a few members of the judiciary, that bail is regularly refused, and severe punishments are inflicted.

Subsequently Njonjo himself became the victim of the tactics of legality. When President Moi felt that Njonjo's ambitions had scaled the President's own office, he used the process of the law to bring him to heel. In a treason trial against some officers after the attempted *coup* in 1982, Njonjo's name was linked by the prosecution to one of the accused (a tactic Njonjo himself had used earlier to discredit Kenya's first local Chief Justice); and later a Commission of Inquiry with three senior judges was appointed to investigate allegations against him of abuse of power. The procedure of the Commission was carefully designed to prevent discussion of abuse of power by others, since the top politicians and civil servants were most likely to be collaborators in his abuse of office. In due course the Commission obliged by finding various allegations proved. The Commission was merely a shadow play but the government no doubt thought that it put a seal of legitimacy on the dismissal of Njonjo and his expulsion from party and parliament. (Those who live by the law die by the law?)

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Personalization of Power

African leaders seemed to share this view of personal authority. It is significant that in all East African countries, the constitutions were amended a year after independence to provide for presidential systems. It was as if, after the purpose of anti-colonial agitation had been achieved, the charisma of the leader was necessary to maintain the integrity of the political and state system, threatened as it was by the fluidity of class and ethnic relations. . .

The constitutions in Kenya and Tanzania were more effectively tailor-made (the independence constitutions were attacked either as imposed or inappropriate). It was argued that the new constitutions got their legitimacy from that consideration, as well as from the fact that they reflected the African notion of authority. The reality was that by so recognizing the leader's position, the constitutions also strengthened it: law and charisma worked in tandem. The concentration of power in the new constitutions gave the President a unique purchase on the political and constitutional system. All senior political and administrative appointments were owed to him; other forms of patronage flowed from him: he was vested with legal powers of repression (of which no judicial review was possible), principally through the detention legislation. He quickly acquired control over the legislature, proroguing it when it became awkward, and took to announcing important changes of policy at the political rallies virtually in the form of decrees. No one dared question anything the President said or did; this amounted to treason and was met with swift retribution. He lent some coherence to the unstable political situation and controlled challenges to it. The pre-eminence of the position of the President means not only that he has to be above the Law, but also that others close to him, protected by the closeness, can take liberties with the Law.

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Political Party and Ideology

If Kenya has relied so obviously on personal politics, Tanzania has additionally relied on the political party for control and legitimacy. According to Nyerere, in the early sixties, the party personified the consensus and unity; it provided a forum for the exercise of democratic rights and debates on national policy without leading to the artificial divisions that arise from a multiplicity of parties. Even the conferment of a monopoly of political activity on the party through the constitution was justified as the will of the people and a means to strengthen democracy. The party was to be supreme over all institutions and indeed has very considerable power of discipline and sanction (exercised occasionally in violation of the legal rights of the victims), including expulsion, which means banishment into the political wilderness, if not worse. The party, however, is not primarily an instrument of repression; it remains relatively tolerant and open. First and foremost, it has been a means of mobilizing the people in support of national or local politics. In the colonial

period it conferred formidable and in the end, irresistible, legitimacy upon the freedom movement. It continues, despite occasional impulses to be a mass-based party, with regular elections based on open competition. It acts to settle disputes and provides access to government institutions.

The party also derives its legitimacy from the custodianship of the national ideology. Nyerere has devoted considerable time and efforts to formulating and propagating an ideology, of equality, participation, rural development, and socialism, which would both gain popular support and act as a guide to policy and action. Ideology has been used to justify the constitutional and political system as well as economic and foreign policies. Ujamaa has exercised a powerful appeal and much of the official and private rhetoric takes Ujamaa as its *leitmotif*. (And as befalls all ideologies, it has also become the justification for repression). Kenya has had less luck with ideology; African Socialism was never popular, not even as a dissembling exercise; and characteristically, it was an official government publication, introduced as a parliamentary paper, written in a style that immediately betrayed its foreign authorship.

Developmentalism

Kenya and Tanzania do, however, share one ideology—that of “development.” The primacy of “nation building” and “economic development” (“we are nations in a hurry”) has been used to justify the centralization of power, the appropriation of surplus from rural and other communities, the outlawing of political parties and the repression of the opposition. “Development” is an ideology which appeals both nationally and internationally, and helps to ensure foreign assistance for the local regime, and thus helps to bolster it. It is more intimately connected with the purpose and the capacity of the state than any other ideology. It is linked to the rationality of the state and the superiority of the bureaucracy. Its almost unique ability is to mediate with external forces and co-ordinate domestic economic and social development, while at the same time developmentalism provides the justification for the strengthening of the state. (Weber’s bureaucracy was characterized by routine and conservation “law and order”); the bureaucracy of the state committed to development is said to be dynamic and mobilizing, thus not rule-bound.) As a god before whom many worship, developmentalism is deeply subversive of the rule of law. But at the same time as it legitimizes the state, it tends to discredit its leaders for the failure of their policies which promise so much. Thus *coups* in Africa, involving no more than a change in leadership, are greeted with fresh optimism, for the faith in the “political kingdom” has dimmed only slightly with the years.

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Dispensing with Legitimacy

All states rely upon coercion, but they differ in the degree to which they do so. Some regimes, even, or especially, when they are dependent on some measure of coercion, cultivate the image of consensus and openness, while others rely upon overt use of force and terror. Of the East African countries, only Uganda under Idi Amin fell into the latter category. After the anti-Asian euphoria had dissipated itself, the moral bankruptcy of Amin was obvious to all. That he managed to keep himself in power for over 10 years shows how far terror can go. His very unpredictability became functional to his regime, as it secured compliance by producing fear and anxiety in everyone that he or she might be his next victim. In lesser degrees, Kenya and Tanzania have also relied upon intimidation, particularly Kenya where the regime has not hesitated to murder politicians threatening court favorites. In all three countries lesser penalties, like the withholding of patronage, withdrawal of development projects, etc. have been utilized to cajole or coerce people.

O'Donnell makes the point that unlike the Western states in their earlier history, Third World states have recourse to such massive armaments that they grow careless of the need for the mobilization of consent. These armaments are readily available on the world markets, and can often be secured from sympathetic regimes. Varieties of neo-colonial development ensure the support for the regime of one or another of the major powers. Even the despicable regime of Amin was able to produce

significant Arab help. Politics then becomes the art of securing arms and keeping your forces content. A symbol of Amin's regime was the weekly flight of the lone airplane of the Uganda Airways from Europe laden with arms and whisky, the former to strengthen the armed forces and the latter to keep it happy. Alternatively, the regime becomes so dependent on a foreign protector that it is more concerned with its standing in the eyes of the protector (which means a clear subordination of national interest to the interest of the "protecting" nation) than the consent of the governed. Amin's ideology of Islamization which replaced that of Africanization was designed to keep his Arab friends happy, notwithstanding the fact that it was deeply divisive within Uganda itself.

It is a measure of the moral bankruptcy of the world that we so readily tolerate such use of force, and that so many countries are prepared to assist others in the strengthening of their apparatus of oppression. The courts themselves are all too willing to uphold the successful use of armed force to destroy valid legal orders. . . . In such an environment all talk of legitimacy becomes irrelevant, much less legitimacy through the rule of law. But perhaps the chaos and terror produced by Amin's unprincipled regime, and its ultimate repudiation, as of some other dictatorships in recent months, provide grounds for hope that a fair and viable regime must attend to the mobilization of consent, not through chicanery but through democratic and participatory processes. We are, however, not good at learning the lesson of history.

Questions and Discussion

1. Yash Ghai has made one of the most apt and penetrative analyses of rule of law, legality and legitimacy in Africa. For example, he analyzed the relationship between political parties and the state power in those states he has studied. In Tanzania, he observed that the constitutional amendments and revisions that aimed at regulating the position and power of the party (TANU) did not bring any result as the latter remained powerful albeit a change otherwise. This generally reflects a situation in which socialist oriented single party systems find themselves, whereby the line between political party and the state apparatus is so blurred and indistinguishable. Some commentators similarly criticise the EPRDF controlled Ethiopian state since 1991, saying that the party means the state and vice versa. What does Ghai say about this problem of merger between state and political party? Does this situation affect the creation of a multi-party political system? How?
2. Ghai also discusses how the political leaders in Africa (e.g., post-independence Kenya) engage in endless revision and amendment of laws to turn the latter into political instrument. How does this fit with the Rule of Law principles disused earlier in this material? Do you think such activities could still be happening in Africa or even in Ethiopia?
3. Ghai also discusses one serious weakness of the Rule of Law in Africa as selective legality in which those people without power and political opponents were targeted by the likes of Attorney General Charles Njonjo of Kenya, for example. He aptly describes the situation in Kenya at the time, saying:
The selective use of the prosecutorial powers has already demonstrated their manipulation for political ends. The legal profession has been cowed. The barrier of an independent judiciary has allegedly been overcome by the appointment of a few compliant magistrates and judges. It is significant that cases of this kind tend to be heard regularly by a few members of the judiciary, that bail is regularly refused, and severe punishments are inflicted. Some commentators opine that the situation described by Ghai fits the tactics used by successive Ethiopian governments of the 20th century, including the current EPRDF government, very well. Discuss your agreement or disagreement with this opinion. Discuss possible solutions.
4. The discussion of Nyere's vanguard party ideology and developmental state seem related to EPRDF's perspective on politics. Do you see convergence or not? In any case, do you think such an approach to democracy and development can be successful ?

CHAPTER SIX

FORMS OF GOVERNMENT AND SEPARATION OF POWERS

A. FORMS OF GOVERNMENT

Governments are organized in different ways, depending on the choice of the societies to which the governments belong. Each of the types or forms of government has some features that sets it apart from the other. The differences are primarily in the areas of how the two political branches of government are organized. There are three major modes of structuring the relationship between the executive and legislative branches in democracies: parliamentarism, presidentialism, and semi-presidentialism. This is what we mean by the forms of government in modern republican political systems.

A very insightful discussion that looks at the various aspects of forms of government is made by Horowitz. He looks at some debatable issues such as the one relating to political stability and forms of government; and the impact of social composition of a given society on the success or otherwise of the form of government in place. He challenges the idea of Juan Linz, who says that a parliamentary system is more conducive to stable democracy than the other forms of government. As you read the piece, look critically at the arguments he forwards in defense of his position and for challenging those on the other side.

Donald L. Horowitz, "Comparing Democratic Systems," in *Journal of Democracy*, Vol. 1, No. 4 (1990). Footnotes omitted.

In "The Perils of Presidentialism" [*Journal of Democracy* 1 (Winter 1990): 51-69], Professor Juan Linz makes the claim that parliamentary systems are "more conducive to stable democracy" than are presidential systems. "This conclusion," he continues, "applies especially to nations with deep political cleavages and numerous political parties." This theme forms a leitmotiv in Professor Linz's recent works, has been picked up by other scholars, and runs the risk of becoming conventional wisdom before it receives searching scrutiny.

Linz argues that the presidential office introduces an undesirable element of winner-take-all politics into societies that need mechanisms of conciliation instead. A presidential candidate is either elected or not, whereas in parliamentary systems many shades of outcome are possible. Moreover, a directly elected president may think he has a popular "mandate," even if he has been elected with only a small plurality of the vote, perhaps even less than 40 percent. The potential for conflict is accordingly enhanced.

Conflict is promoted, in Linz's view, by the separation of powers that divides the legislature from the president. The fixed term of a separately elected president makes for rigidity between elections. By contrast, parliamentary systems are able to resolve crises at any time simply by changing leaders or governments. Separate presidential election also produces weak cabinets and fosters electoral contests in which extremists either have too much influence or the whole society becomes polarized.

This is a powerful indictment, supported by an abiding concern for the stability of precarious democratizing regimes. Linz's claims, however, are not sustainable. First, they are based on a regionally skewed and highly selective sample of comparative experience, principally from Latin America. Second, they rest on a mechanistic, even caricatured, view of the presidency. Third, they assume a particular system of electing the president, which is not necessarily the best system. Finally, by ignoring the functions that a separately elected president can perform for a divided society, they defeat Linz's own admirable purposes.

Presidentialism and Political Instability

As frequent references to Brazil, Colombia, Venezuela, and Chile attest, Linz believes that presidentialism has contributed to instability in Latin America. If, however, his focus had been on instability in postcolonial Asia and Africa, the institutional villain would surely have been parliamentary systems. Indeed, Sir Arthur Lewis argued 25 years ago in his lectures on Politics in West Africa that the inherited Westminster system of parliamentary democracy was responsible for much of the authoritarianism then emerging in English-speaking Africa. What Lewis emphasized was the winner-take-all features of the Westminster model, in which anyone with a parliamentary majority was able to seize the state.

Lewis's understanding conforms to that of many Africans seeking to restore democratic rule. The most impressive efforts at redemocratization, those of Nigeria in 1978-79 and again at the present time, involve adoption of a presidential system to mitigate societal divisions. Under the parliamentary system inherited at independence, a cluster of ethnic groups from the north had managed to secure a majority of seats and shut all other groups out of power. This game of total inclusion and exclusion characterized Nigerian politics after 1960, precipitating the military coups of 1966 and the war of Biafran secession from 1967 to 1970. By choosing a separation of powers, the Nigerians aimed to prevent any group from controlling the country by controlling parliament.

Now it is possible that parliamentary systems helped stifle democracy in Africa while presidential systems helped stifle it in Latin America, but there are grounds for doubt. Linz refers to the emergence of conciliatory practices in the presidential systems of Colombia, Venezuela, and Brazil, but he dismisses them as "deviations." Chile under Salvador Allende, on the other hand, is regarded as closer to the norm, with presidentialism exacerbating social conflict. Yet at least some research by Arturo Valenzuela suggests that, before Allende, many Chilean presidents actually bolstered centrist, moderating tendencies. The experience of the presidency in the United States, where the presidency was invented, is also explained away as "an exception." Consequently, Chile's exacerbated conflict is traced to its presidency, while the moderated conflict of the United States is said to have other roots. Political success has, so to speak, many parents; political failure, only one: the presidency.

In a variety of ways, Linz characterizes the presidency as a rigid institution, conducive to zero-sum politics. But that is the straw presidency he has conjured, rather than the presidency in fact. He says, for example, that parliamentary systems, unlike presidential systems, do not dichotomize winners and losers. In parliamentary regimes, coalition governments may form; and government and opposition may cooperate in the legislative process.

These outcomes, however, are equally possible in presidential systems. The Nigerian Second Republic had both a president and a coalition in the legislature. In presidential systems, moreover, government and opposition frequently cooperate in the legislative process. The United States Congress is notorious for such cooperation. Linz ascribes this cooperation to the "uniquely diffuse" party system of the United States. That party system has its roots in federalism, which also underpins the way the president is elected. Does that not argue against condemnation of a single institution like the presidency without examining the total configuration of institutions proposed for a given country?

It is difficult to see how a presidential system could produce more absolute win-or-lose outcomes than a parliamentary system does. One of Linz's objections to presidentialism is that it sets up a needless conflict between the executive and the legislature, especially if the two are controlled by different parties. But if the two are controlled by different parties, the system has not produced a winner-take-all result. It is difficult to complain about inter-branch checks and balances and winner-take-all politics at the same time.

The presidency, says Linz, is an office that encourages its occupant to think that he has more power than he actually does. Where several candidates have contested, a president elected with, say, one-third of the vote gains the full power of the office. (The example of Allende, elected with a 36.2-percent plurality, is cited.) The new president can make appointments, propose and veto legislation, and, given his fixed term of office, even survive fluctuations in the strength of party support. A crisis in government during a fixed presidential term becomes, according to Linz, a constitutional crisis, since there is generally no lawful way to bring down a failed president in the middle of his term. By contrast, a parliamentary government that has lost its majority in the legislature will fall, whether or not elections are due. So conflict is routinized and need not ripen into a crisis.

Before responding to these claims, it is necessary to underscore a central assumption of the Linz analysis: that the president will be elected under a plurality (first-past-the-post) system or a majority system, with a runoff election if necessary. From this assumption follow most of Linz's complaints. Consequently, it needs to be said clearly that presidents do not need to be elected on a plurality or majority-runoff basis. In divided societies, as I shall explain shortly, presidents should be elected by a different system, one that ensures broadly distributed support for the president. This greatly alleviates the problem of the narrowly elected president who labors under the illusion that he has a broader mandate. Winner-take-all is a function of electoral systems, not of institutions in the abstract.

Modes of Presidential Election

Electoral assumptions color all of Linz's analysis. He suggests that presidential candidates in plurality systems habitually cultivate the political extremes to facilitate election, thus giving the extremes influence denied them in a parliamentary system. But the supposed need to make concessions to extremists for the sake of building a plurality dissolves if presidents are not elected in this manner. By the same token, the influence of extremists in parliamentary systems is variable. One thing governing it, as the Israeli system shows, is the mode of election.

Electing the president by a majority attained in a runoff between the top two candidates poses a different problem, according to Linz. The runoff may facilitate alliances among moderates, but it also promotes a "confrontation" between the top two candidates, with a possibility that the society as a whole might become polarized.

Now, in fact, election of the president by straight plurality or majority vote is not a principle in favor with all those who have adopted presidential constitutions lately. Even the Electoral College system by which presidents of the United States are chosen is far more complex than a straight majority or runoff system. Presidential candidates in the United States are induced by the way electoral votes are distributed among the states to make discerning judgments about which interests are powerful in which states. The process cannot be captured in terms of extremism or polarization. But since Linz is especially keen to discourage presidentialism in societies with deep cleavages, it is preferable to focus on examples of presidential electoral systems in two such severely divided societies: Nigeria and Sri Lanka.

In the Nigerian Second Republic, which began in 1979, a presidential system was created. (The same presidency and electoral system will be used in the Third Republic, scheduled to begin in 1992.) To be elected, a president needed a plurality plus distribution. The successful candidate was required to have at least 25 percent of the vote in no fewer than two-thirds of the then-19 states. This double requirement was meant to ensure that the president had support from many ethnic groups. To put the point in Linz's terms, the aim was to shut out ethnic extremists and elect a moderate, centrist president. That is precisely the sort of president the Nigerians elected under the new system. The extremists, in fact, were elected to parliament, not the presidency. Nor was there any of the polarization that Linz associates with majority runoffs. Carefully devised presidential-election arrangements can bolster the center and knit together the rent fabric of a divided society. In

choosing a presidential electoral system with incentives for widely distributed support, the Nigerians were rejecting winner-take-all politics. They aimed instead for a president bent on conciliation rather than on conflict. They succeeded.

In 1978, Sri Lanka also moved to a presidential system. Its principal purpose was to create a political executive with a fixed term that would permit the incumbent to make unpopular decisions, particularly those concerning the reduction of ethnic conflict. A majority requirement was instituted. Since most candidates were unlikely to gain a majority in Sri Lanka's multiparty system, a method of alternative voting was adopted. Each voter could vote for several candidates, ranking them in order of preference. If no candidate attained a majority of first preferences, the top two candidates would be put into what amounted to an instant runoff. The second preferences of voters for all other candidates would then be counted (and likewise for third preferences) until one of the top two gained a majority. It was expected that presidential candidates would build their majority on the second and third choices of voters whose preferred candidate was not among the top two. This would put ethnic minorities (especially the Sri Lankan Tamils) in a position to require compromise as the price for their second preferences. So, again, the presidential system would rule out extremists, provide incentives to moderation, and encourage compromise in a fragmented society.

The majority requirement originated in a fear that Linz shares. Like him, the Sri Lankans were concerned that a plurality election could result in the choice of a president who enjoyed the support of only 30 or 35 percent of the voters and perhaps had won election by a very narrow margin. Lest such a chief executive think himself in possession of a "mandate," the Sri Lankans insisted on aggregating second and subsequent preferences in order to produce the requisite majority. The ease of devising such a system entirely vitiates the objection.

Indeed, had the Sri Lankans and Nigerians adopted their presidential electoral systems earlier, there is every reason to think that their conflicts would have been moderated by those systems. Instead, their conflicts worsened because of the winner-take-all rules that governed their parliamentary systems and excluded minorities from power.

Insubstantial Differences

The remaining elements of the indictment--the rigidity of the fixed term, the weak cabinet, and the prospects for abuse of presidential power--are all said to be inherent drawbacks of presidentialism. All are insubstantial in practice.

It is true, of course, that presidents serve during a fixed term of years and cannot be removed on a vote of no confidence. Nevertheless, the fixed term of a directly elected president is not more likely than the more flexible term of a parliamentary government to cause a governmental crisis. When parliamentary regimes begin with secure majorities, they tend to serve their full terms. The exception occurs when a government calls an early election to take advantage of its transient popularity. In theory, it is easier to remove a parliamentary government in the middle of its term than it is to remove a president. In practice, however, the need seldom arises unless the government consists of an unstable coalition because the society is fragmented. In that event, there is a good case for shifting to a presidential system, supported by a mode of election that fosters conciliation and consensus building. That, in fact, would be a sound interpretation of what the French did when they created the presidency of the Fifth Republic in 1958.

In presidential systems, as Linz observes, cabinets are typically weaker than they are in parliamentary systems. The weakness of cabinet ministers in presidential systems is due in part to the separation of powers. Since cabinet ministers are not elected legislators, they owe their offices to the president. If the president is conciliatory, they too will be conciliatory--which is more important for the politics about which Linz is properly concerned than whether cabinet ministers are weak or strong.

In any case, the difference is exaggerated. Linz argues that the weakness of the cabinet is a function of the undue strength of the president. But there is another reason. In the United States, for example, cabinets are composed as they are because they represent special interests: agriculture, commerce, labor, and so on. What this means is that the president does not have a completely free hand in selecting them. Furthermore, strong prime ministers like Margaret Thatcher or Indira Gandhi have been able to dominate and reshuffle their parliamentary cabinets with impunity. This distinction between the two systems is breaking down.

Finally, abuse of power is hardly a presidential monopoly. Parliamentary regimes in Asia and Africa have produced more than their share of abuses of power. In Latin America and southern Europe, as well as Asia and Africa, abuse of power is made possible principally by the military coup or the growth of single-party hegemony. On this score, there is nothing to choose between presidential and parliamentary systems. Both have succumbed.

Choosing Among Democratic Institutions

Although the sharp distinction between presidential and parliamentary systems is unwarranted, Linz's disquiet is not. He has genuine cause for concern about the institutions adopted by democratizing states, particularly those with deep cleavages and numerous parties. He is right to worry about winner-take-all outcomes and their exclusionary consequences in such societies. Nevertheless, it is Westminster, the Mother of Parliaments, that produces such outcomes as often as any presidential system does.

As this suggests, Linz's quarrel is not with the presidency, but with two features that epitomize the Westminster version of democracy: first, plurality elections that produce a majority of seats by shutting out third party competitors; and second, adversary democracy, with its sharp divide between winners and losers, government and opposition. Because these are Linz's underlying objections, it is not difficult to turn his arguments around against parliamentary systems, at least where they produce coherent majorities and minorities. Where no majority emerges and coalitions are necessary, sometimes—but only sometimes—more conciliatory processes and outcomes emerge. As a result, Linz's thesis boils down to an argument not against the presidency but against plurality election, not in favor of parliamentary systems but in favor of parliamentary coalitions.

These are indeed important arguments, because democratizing societies need to think, and think hard, about electoral systems that foster conciliation and governmental systems that include rather than exclude. Prominent among innovations they might consider are presidents chosen by an electoral formula that maximizes the accommodation of contending political forces. Democratic innovators can only be aided by Linz's emphasis on institutional design. But they can only be distracted by his construction of an unfounded dichotomy between two systems, divorced from the electoral and other governmental institutions in which they operate.

Questions and Discussion

1. Horowitz says that “winner-take-all is a function of electoral systems, not of institutions in the abstract.” Explain what he means by this. Do you agree?
2. Horowitz gives the examples of Nigeria and Sri Lanka in attacking the positions of Linz who says that the presidential system of government is unsuitable for societies with many cleavages and numerous political parties. Do you agree with his arguments and understanding of the situations of the two countries?

Lipset below takes up the debate between Horowitz and Linz and adds another interesting dimension to it. He says that the harbinger of stable democracy may not be the type of the executive system in place. More important according to him is the underlying political culture. There is an

interesting idea of the linkage between Protestantism and democracy that Lipset makes in what may seem to be ethnocentric, as he belonged to a Protestant-dominated U.S.

Seymour Martin Lipset, "The Centrality of Political Culture," in *Journal of Democracy*, Vol. 1, No. 4 (1990). Footnotes omitted.

Juan Linz and Donald Horowitz are to be commended for reviving the discussion of the relationship between constitutional systems—presidential or parliamentary--and the conditions that make for stable democracy. Linz, basing himself largely on the Latin American experience, notes that most presidential systems have repeatedly broken down. Horowitz, a student of Asia and Africa, emphasizes that most parliamentary systems, particularly those attempted in almost all African countries and some of the new nations of postwar Asia, have also failed. He could also have pointed to the interwar collapse of democratic parliamentarism in Spain, Portugal, Greece, Italy, Austria, Germany, and most of Eastern Europe. Conversely, in addition to the successful parliamentary regimes of northern Europe and the industrialized parts of the British Commonwealth, countries such as France under the Fifth Republic, pre-Allende Chile, Costa Rica, and Uruguay (for most of this century) offer examples of stable and democratic presidentialism.

Clearly, it is not obvious that constitutional variations in type of executive are closely linked to democratic or authoritarian outcomes. As Linz emphasizes, parliamentary government (especially where there are several parties but none with a clear majority) gives different constituencies more access to the decision-making process than they would enjoy in presidential systems, and presumably helps bind these constituencies to the polity. Under presidential government, those opposed to the president's party may regard themselves as marginalized, and thus may seek to undermine presidential legitimacy. Because presidential government entrusts authority and ultimate responsibility to a single person, some scholars regard it as inherently unstable; failures can lead to a rejection of the symbol of authority. Power seems more diversified in parliamentary regimes.

The reality is more complicated. Given the division of authority between presidents and legislatures, prime ministers and their cabinets are more powerful and may pay less attention to the importunings of specific groups. A prime minister with a majority of parliament behind him has much more authority than an American president. Basically, such parliaments vote to support the budgets, bills, and policies that the government presents. Government members must vote this way, or the cabinet falls and an election is called. Unlike members of a legislative branch, opposition parliamentarians, though free to debate, criticize, or vote against the policies set by the executive, rarely can affect them.

The situation is quite different in a presidential system. The terms of the president and cabinet are not affected by votes in the legislature. As a result, party discipline is much weaker in, say, the U.S. Congress than it is in the British Parliament. In the United States and other presidential systems, the representation of diverse interests and value groups in different parties leads to cross-party alliances on various issues. Local interests are better represented in Congress, since a representative will look for constituency support to get reelected and can vote against his president or party. An MP, however, must go with his prime minister and his party, even if doing so means alienating constituency support.

The fact that presidencies make for weak parties and weak executives, while parliaments tend to have the reverse effect, certainly affects the nature of and possibly the conditions for democracy. But much of the literature wrongly assumes the opposite: that a president is inherently stronger than a prime minister, and that power is more concentrated in the former. I should emphasize that a condition for a strong cabinet government is the need to call a new election when a cabinet loses a parliamentary vote. Where parliament continues and a new cabinet is formed from a coalition of

parties, no one of which has a majority, parliamentary cabinets may be weak, as in the Weimar Republic, the Third and Fourth French Republics, or contemporary Israel and India.

In my recent book *Continental Divide*, which compares the institutions and values of the United States and Canada, I note that the difference between presidential and parliamentary systems in comparable continent-spanning, federal polities results in two weak parties in the United States and multiple strong ones in Canada. The U.S. system appears to be the more stable of the two; since 1921, Canada has seen the rise and fall of over half a dozen important “third parties.” The U.S. system's emphasis on electing one-person president or governor forces the “various groups” . . . [to] identify with one or another of the two major electoral alliances on whatever basis of division is most salient to them. Each major alliance or coalition party contains different interest groups which fight it out in primaries.”

I conclude with respect to Canada that its “electoral changes have clearly been the result not of great instability or tension,” but rather of the political system. In effect, the need for disciplined parliamentary parties “encourages the transformation of political protest, of social movements, of discontent with the dominant party in one's region or other aspects of life, into third, fourth, or fifth parties.” The loose parties inherent in the presidential system of the U.S. absorb protest more easily within traditional mechanisms than do the parliamentary parties of Canada.

The Cultural Factor

The question remains, why have most Latin American polities not functioned like the U.S. political system? The answer lies in economic and cultural factors. If we look at the comparative record, it still suggests, as I noted in 1960 in *Political Man*, that long-enduring democracies are disproportionately to be found among the wealthier and more Protestant nations. The “Fourth” or very undeveloped world apart, Catholic and poorer countries have been less stably democratic. The situation has of course changed somewhat in recent times. Non-Protestant Southern European countries like Greece, Italy, Portugal, and Spain have created parliamentary democracies, while most Catholic Latin American countries have competitive electoral systems with presidential regimes.

I will not reiterate my past discussions of the diverse social conditions for democracy, other than to note that the correlations of democracy with Protestantism and a past British connection point up the importance of cultural factors. In this connection, it may be noted that in Canada the “Latin” (French-speaking and Catholic) province of Quebec seemingly lacked the conditions for a pluralistic party system and democratic rights until the 1960s, while the Anglophone and Protestant part of the country has had a stable multiparty system with democratic guarantees for close to a century. In seeking to explain in 1958 why “French Canadians have not really believed in democracy for themselves,” and did not have a functioning competitive party system, political scientist Pierre Trudeau, who would later serve as prime minister of Canada for 16 years, wrote, “French Canadians are Catholics; and Catholic nations have not always been ardent supporters of democracy. They are authoritarian in spiritual matters; and . . . they are often disinclined to seek solutions in temporal matters through the mere counting of heads.”

Trudeau mentioned other factors, of course, particularly those inherent in the minority and economically depressed situation of his linguistic compatriots, but basically, as he noted, Canada had two very different cultures and political systems within the same set of governmental and constitutional arrangements. Quebec, like most of South America, may be described as Latin and American, and its pre-1960 politics resembled that of other Latin societies more than it did any in the Anglophone world, whether presidential or parliamentary. Quebec, of course, has changed greatly since the early 1960s, and now has a stable two-party system. But these political developments have occurred in tandem with major adjustments in the orientation and behavior of the Catholic Church, in the content of the educational system, and in economic development and

mobility, particularly among the Francophones. What has not changed is the formal political system.

Islamic countries may also be considered as a group. Almost all have been authoritarian, with monarchical or presidential systems of government. It would be hard to credit the weakness of democracy among them to their political institutions. Some writers claim that Islamic faith makes political democracy in a Western sense extremely difficult, since it recognizes no separation of the secular and religious realms. Such claims should not be categorical, since, as with Christianity, doctrines and practices can evolve over time.

This emphasis on culture is reinforced by Myron Wiener's observation that almost all of the postwar "new nations" that have become enduring democracies are former British colonies, as are various others, such as Nigeria and Pakistan, which maintained competitive electoral institutions for briefer periods. Almost none of the former Belgian, Dutch, French, Portuguese, or Spanish colonies have comparable records. In the comparative statistical analyses that I have been conducting of the factors associated with democracy among the Third World countries, past experience with British rule emerges as one of the most powerful correlates of democracy.

* * *

Question for Discussion

How do you evaluate Lipset's approach of looking at democratization from the society's religious perspective? For example, he (and some others he cites) seems to maintain that Catholic majority nations are less conducive to democracy than Protestant majority nations. Does this make sense? Do you agree with his characterization of post-colonial African states' attempts at democratization from the same angle?

Juan J. Linz, "The Virtues of Parliamentarism," in *Journal of Democracy*, Vol. 1, No. 4 (1990).
Footnotes Omitted.

The critical comments that Professor Horowitz and Professor Lipset have offered on my essay provide stimulating contributions to the debate over the respective merits of various forms of democratic politics. This debate is most timely, as controversy seems to be subsiding about the merits of democracy versus other types of government. My essay, itself an abbreviated version of a much longer paper still in progress, was meant as a spur to further study of the problem. By raising more questions than can be answered given the current state of our knowledge about how democracy works, Horowitz and Lipset confirm the need for more research and reflection.

To avoid any misunderstanding, I must stress that I did not argue that any parliamentary system is ipso facto more likely to ensure democratic stability than any presidential system. Nor was I suggesting that any parliamentary regime will make better policy decisions than any presidential government, which would be an even harder case to make. There are undoubtedly bad forms of both these types of government. My essay did not discuss possible new forms of presidentialism, confining itself instead to the existing democratic presidential systems and excluding detailed consideration of the United States, which I consider quite exceptional. I do not think that I have constructed a "straw-man" version of presidentialism; my analysis is based on careful study of many prominent presidential systems, though I did not include the Nigerian and Sri Lankan versions of presidentialism that Professor Horowitz so skillfully discusses. Yet my article (like Horowitz's comments) also omits consideration of the many possible varieties of parliamentarism, and of the complex issues surrounding semi presidential or semi parliamentary systems with dual executives. These deserve separate analysis.

I agree with Professor Horowitz that the study of democratic regimes cannot be separated from the study of electoral systems, and acknowledge that my analysis does not cover all possible methods of presidential election. The Nigerian system represents a unique method of presidential election that might be applicable in federal states, particularly multiethnic ones, but I doubt very much that one could justify it in more homogeneous societies, even in the federal states of Latin America. My analysis concentrates on the two most common methods of election: the simple majority or plurality system, and the two-candidate runoff. The case where an electoral college may make a decision irrespective of the popular vote is left out, as is the very special case of Bolivia. The Bolivian Congress chooses among presidential candidates without regard to their popular vote totals, a practice that has certainly not contributed to either political stability or accountability in that country. I also refrained from mentioning the practice of directly electing a plural executive or a president and vice-president to represent two different constituencies (of Greek and Turkish Cypriots, for example). My argument concerns the likelihood of certain patterns of politics in the most common types of presidential systems, and does not attempt an exhaustive analysis of all types of directly elected executives. The patterns in question are likely to contribute to instability or difficulties in the performance of presidential executives. I use the word “likelihood” to stress that those consequences need not be present in each and every presidential system, or lead to the breakdown of democracy itself. On the contrary, recent experience shows that even rather inept democratic regimes stand a good chance of surviving simply because all relevant actors find the nondemocratic alternatives to be even less satisfactory.

Horowitz stresses that the majoritarian implications of presidentialism—the “winner-take-all” features that I have emphasized---may also be present in parliamentary systems with plurality elections in single-member districts, especially under the two-party systems that so often go together with Westminster-style parliamentary government. In societies that are polarized, or fragmented by multiple cleavages, a multiparty system with proportional representation may allow the formation of alternative coalitions (as in Belgium, for example), and thus forestall dangerous zero-sum outcomes.

As for parliamentary systems with plurality elections, Mrs. Thatcher is certainly a first above unequals, like a president, and probably has more power than an American chief executive. Certainly, parliamentary democracies in which a single disciplined party obtains the absolute majority of all seats find themselves in what is close to a “winner-take all” situation. But this is not the most frequent pattern in parliamentary systems, particularly when there is proportional representation. Indeed, Horowitz implies that I should probably extend some of my concerns about the style of politics in presidentialism to take in the case of such majoritarian prime ministers, and that I might have a slight bias in favor of stable coalition government. I must once again note that I am dealing with ideal types that cannot subsume all of the possible varieties of political systems; indeed, I deal only with the more frequent tendencies in those ideal types. Nevertheless, while the actual situation of a powerful prime minister like Mrs. Thatcher might be comparable to that of a president with a legislative majority, the *de jure* difference is still significant. If Mrs. Thatcher were to falter or otherwise make herself a liability, for instance, the Conservative majority in the House of Commons could unseat her without creating a constitutional crisis. There would be no need to let her linger ineffectually in office like former presidents Rátzil Alfonsín of Argentina or Alan García of Peru. Parliamentary elections may be called not only to benefit from popularity, but also when governing becomes difficult because of a lack of cohesion among the parliamentary majority. That was what happened in Spain in 1982, when Prime Minister Leopoldo Calvo Sotelo's dissolution of the Cortes allowed Felipe González to assume power at the head of a Socialist majority. Moreover, in cases where the parliamentary majority remains intact but the prime minister becomes discredited or exhausted (like Spanish premier Adolfo Suárez in 1981), he can resign without having to wait for the end of his term or a coup to remove him from office.

The “winner-take-all” character of the presidential election and the “unipersonal” executive (to use Arend Lijphart's term) does not rule out either weak presidents in particular or a weak presidency in general, Horowitz's suggestion to the contrary notwithstanding. The “all” that the winner takes may

not include much effective power, especially if congressional support is not forthcoming. This is doubly so if popular support ebbs as the next election approaches. Presidents, especially those who come to power after a plebiscitarian or populist campaign, often find that the power they possess is hopelessly insufficient to meet the expectations they have generated. Constant presidential efforts to obtain new powers or invoke emergency authority are reflections of this fact.

Horowitz fails to address the basic problem of the competing claims to legitimacy of presidents and congresses, and the resulting potential for conflict between the two branches. Presidents occasionally win such conflicts, no doubt, but my argument is about institutions, not about how particular persons will fare in this or that set of circumstances. Horowitz might respond that conflicts between the legislature and the executive are not inevitable in a presidential democracy. That may be, but they are certainly likely. Although they have not caused democracy to break down in the United States, it should be recalled that for most of U.S. history, the party that controlled the presidency also controlled both houses of Congress. More recently, divided control has led to a politics of stalemate and mutual recrimination. Moreover, as a deeply institutionalized democracy, the United States is much better able to survive these difficulties of presidentialism than are many new or weak democracies in the developing world.

Horowitz tends to overstate my position by ignoring the necessarily qualified nature of my analysis. I was merely trying to evaluate the existing evidence and offer an estimate of probabilities; I would never place myself in the absurd position of claiming certitude about matters that remain only partly understood.

Varieties of Presidentialism

Horowitz further claims that my sample is skewed and highly selective, drawing as it does mostly on Latin American cases. I did not do a quantitative analysis, but the presidential systems of Latin America, together with those of the Philippines and South Korea (which I also had in mind), comprise almost all of the world's pure presidential regimes; the only exceptions are the systems of the United States, Nigeria, and Sri Lanka. Horowitz bases much of his argument on these last two countries. I did not limit my generalizations to Latin America, since I think them largely valid for South Korea and the Philippines as well. The South Korean presidential election of 1987, for instance, saw Roh Tae Woo of the Democratic Justice Party (DJP) win office with 36.6 percent of the vote--almost the same percentage of the vote (34.7) as Adolfo Suez's UCD garnered in Spain in 1977. Roh's victory frustrated opposition leaders Kim Young Sam and Kim Dae Jung, who had insisted on a direct presidential election and then split 55 percent of the vote between them.

As for Africa, close attention to the postcolonial history of that continent does not sustain Horowitz's claim that "the institutional villain would surely have been parliamentary systems." It was not simply parliamentarism, but rather democratic institutions as a whole--alien and weakly rooted as they were--that failed in Africa. The British Westminster model has winner-take-all features, to be sure, but these were even more prominent in presidential systems. Indeed, the emergence of authoritarian regimes in countries like Ghana, Uganda, and Senegal coincided with and was consolidated by "constitutional change from a parliamentary to a presidential system, with extreme concentration of power in the presidency and marked diminution of legislative authority."

Horowitz criticizes me for holding a mechanistic and even caricatured view of the presidency. Certainly my main effort was to analyze the mechanics of presidential systems, but I think that my remarks on the style of politics in presidential countries, the responses of voters to presidential elections, the patterns of interaction among political leaders in presidential systems, and so on, raised my essay far above the level of the merely mechanical. I might be guilty of caricature, but many observers of the Latin American scene find my characterizations to be fairly accurate descriptions of events in those countries.

Horowitz's third claim--that I did not deal with each and every possible system for electing a president--is accurate enough, though I did cover the predominant ones (with the exceptions he presents). As for his fourth point, concerning the functions that a separately elected president can perform in a divided society, I concede that under certain very special circumstances (like those of Nigeria and perhaps Sri Lanka), a president might be able to help build political consensus. Still, there are counterexamples like Cyprus and Lebanon (to mention two other presidential systems) which show that presidentialism cannot overcome certain types of cleavages. Moreover, in view of the failure of Nigeria's Second Republic and the transition from military rule to a presidential Third Republic that is now underway, the jury is still out on the Nigerian presidency. The same might be said about Sri Lanka, where ethnic violence continues to rage and the deterioration of democratic institutions and liberties has yet to be reversed. The political problems of multiethnic societies under whatever system of rule (democratic or authoritarian, for that matter) present complexities that I could not address within the confines of a short essay.

Horowitz insists that a presidential electoral system with incentives for seeking widely distributed support (as in Nigeria) can obviate the winner-take-all politics that prevail in most presidential systems, particularly those with a weak separation of powers, no true federalism, and no strong judiciary. I have no doubt that requiring each candidate to gain, say, at least 25 percent of the vote in no fewer than two-thirds of the states will tend to produce a president with broad support across ethnic-cum- territorial divisions, thereby reducing ethnic polarization. But in any event, none of this did much to mitigate the winner-take-all aspect of Nigeria's presidential system. That system twice gave a minority party the exclusive right to constitute the executive branch, and helped to undermine democracy by spurring the massive rigging of the 1983 presidential election. Such a system can also backfire by leading to the election of a weak compromise candidate. Perhaps I overgeneralized from the cases included in my analysis, but to make contrary generalizations on the basis of highly unusual arrangements seems to me even less satisfactory. I still wonder how easy it is for Sri Lanka's president to make the sorts of unpopular decisions of which he is supposed to be capable (thanks to a method of election that aggregates second and subsequent preferences) in the face of a hostile legislative majority.

Much more research is needed concerning the composition and stability of cabinets in presidential systems. The president's secure tenure in office for the whole of a fixed term does not mean that his cabinet is immune to remodeling. In parliamentary systems, even those with unstable governments, cabinet members tend to accumulate considerable experience. The premiers generally have served in government before, and the system benefits from the accumulated political and administrative experience of the executive ministers. In most presidential systems, that experience is likely to be lost with a change of presidents, since each chief executive is likely to select those persons in whom he has personal confidence. In addition, since the president and his cabinet do not absolutely require the confidence of congress or the parties represented there, he can choose advisors and ministers from outside the political class and, as Brazilian presidents seem to have done, from parties besides his own-----even from those that opposed his election. This might seem admirable and occasionally might work well, but it weakens parties by encouraging factionalism and clientelism. Just as a president who cannot be reelected is hard to hold accountable for his performance, a president who forms a cabinet without systematically involving the parties that back him makes it difficult for the voters to hold parties accountable in the next election. My analysis focuses on multiparty rather than two-party systems, but even in a two-party system it is not clear whom the voters will blame: the president's party, or the party with the majority in congress that obstructed his otherwise presumably successful performance.

The Problem of Divided Government

Giovanni Sartori has used the U.S. experience to argue that once the pattern of undivided consonant majorities (the coincidence of presidential and legislative majorities) and consociational practices (especially bipartisan concurrence in foreign affairs) is broken, there emerges an antagonistically divided government whose two main elements perceive that their respective electoral interests are best served by the failure of the other institution. For a Democrat-controlled Congress to cooperate with a Republican administration is to aid the election of future Republican presidents. Conversely, a president whose party is the minority in Congress will seek to restore undivided government by running against Congress. In short, he will play the "blame game." Thus the answer to the question of whether presidentialism provides for effective government is, with reference to its most acclaimed incarnation, a resounding no. The American system works or has worked in spite of, rather than because of, the presidential constitution of the United States. To the extent that it can still perform, it needs three things that tend to unblock it: flexibility or lack of ideological rigidity; weak, undisciplined parties; and pork-barrel and locality-oriented politics. These considerations weigh against the notion that since the United States is both a successful democracy and a presidential regime, other presidential systems should also stand a good chance of being similarly successful. I cannot go into greater detail here, but recommend Fred Riggs's excellent study of the uniqueness of the U.S. political system, a system of which the presidency forms but a single part.

At stake here are two separate issues: the stability of the democratic system, and the quality of its performance. Not all presidential regimes are unstable, nor are all of them weak in spite of their apparent strength. Many, however, have proven unstable and quite weak, though I would never exclude the possibility of a stable and strong presidential system if the president has the support of both an electoral and a legislative majority. Yet such a combination is rare in actual presidential systems, and might not be a good thing anyway: a popular president with a disciplined party behind him might defeat the constitutional scheme of checks and balances, thus obviating a key advantage of presidentialism. Even so, as Michael Coppedge's excellent study of the Venezuelan presidential system shows, a ban on presidential reelection hurts the president's ability to govern in the latter part of his term.

I am grateful to Professor Horowitz for his comments, especially regarding the unusual systems of Nigeria and Sri Lanka. As I said at the outset, we need more systematic comparisons and more research on particular examples of presidential government (a largely neglected subject) before we can reach final conclusions. None of the existing research challenges my basic claim, which is that certain structural problems inherent in presidentialism make it likely that many presidential systems will run into serious difficulties of a sort that some parliamentary systems have successfully overcome. After all necessary qualifications have been made, my conclusion might be reformulated as follows: certain parliamentary systems are more likely than most of their presidential counterparts to solve certain knotty problems of multiparty politics. Even as I make qualifications, however, I am anxious that we avoid the error of forsaking comparative analysis for mere assessment of particular political systems, considered in isolation. Comparative analysis has to settle for probabilities rather than certainties, and therefore will always be open to question. The need for such analysis, however, is beyond question.

The Importance of Institutions

Professor Lipset's comments rightly stress the effect of economic, social, historical, and cultural factors on the fate of democracy in many countries past, present, and future. These factors operate more or less independently of political institutions. Culture, as Lipset notes, is difficult if not impossible to change. Historical legacies do not fully disappear, and socioeconomic transformation cannot be achieved by fiat, so we are left with the search for those political institutions that will best suit the circumstances in this or that particular country. This is a modest quest, but a worthy one. Presidentialism, parliamentarism, or some hybrid of the two; centralism or federalism; one-

round or two-round elections—in every case the question is the same: what mix of laws and institutions will direct the contending interests of a given society into peaceful and democratic channels? Here is where I seek to make a contribution.

Lipset's able comparison between the United States and Canada confirms that even when societies are relatively similar, the type of democratic government each one has does make a difference. His observation that prime ministers who command a solid majority (not necessarily from one party) may have more power than presidents indirectly contributes to my argument. Also intriguing are Lipset's assertions about the greater weight of interest groups and local interests in presidential systems; if proven, they would be grist for the mill of those who complain about the invidious clientelism that pervades presidential countries like the Philippines and Brazil. He notes too the weakness both of parties and of presidents who depend on them for support. Will more research confirm my hypothesis that presidentialism helps to make parties weaker and less responsible? Would parliamentarism oblige parties to behave differently?

Questions and Discussion

1. Read the three articles excerpted above regarding forms of democratic governments and discuss whether the form is determinative of the ensuing democracy in a society. Summarize the central tenets of each author's arguments. What are the distinguishing central arguments that set the authors' views apart?
2. Pay attention to Lipset's argument which emphasizes the centrality of a political culture. What was his idea about? Do you agree with his points?
3. Some people argue strongly, as Horowitz does, that even in a divided society, i.e., a society divided by ethnicity or religion, a presidential form of government may bring the members together rather than a parliamentary form of government. In line with this, some people recommend that Ethiopia also should change its system to a presidential executive, and put in place a presidential election system in which the president needs to be elected by two-thirds of the electorate and in at least two-thirds of the states. What do you think about this proposal? Reread the positions advanced by the three scholars discussed above, and thoroughly sieve through the possible merits and demerits of this proposal. Also, of late, semi-presidential executive is presented by some scholars as a better fit for Ethiopia. See, for example, Walle Engedayehu, "The Search for a Functioning Democracy in Ethiopia: Surveying the Utilities of Presidentialism, Semi-Presidentialism and Parliamentarianism, and Consociationalism" 11 (1&2) *International Journal of Ethiopian Studies* (2017). Professor Walle argues that of all the forms of government organization, semi-presidentialism could work well for Ethiopia. Do you agree?

B. SEPARATION OF POWERS AND ORGANS OF STATE

1. Separation of Powers

Separation of powers is a means of limiting government power and hence for institutionalizing constitutionalism. The concept of separation of powers has been familiar to thinkers and political theorists as early as Aristotle. In his *Politics*, Aristotle stated that the three elements of government must be separated. J. Locke also paid a good attention to this concept in his *Second Treatise on Civil Government*. But it was Montesquieu who fully articulated the notion of separation of powers between the three branches of government, namely, the legislature (the law maker, also called by various other names such as parliament, congress or assembly), the executive (that executes or

implements laws and policies) and the judiciary (for interpreting laws, constitutions and resolving disputes).

In his seminal work, *The Spirit of Laws* (1748), Montesquieu taught us that the three government institutions must be kept separate from each other. The idea of separation of powers between the three branches of governments is aimed at avoiding, to the extent possible, the concentration of power in one branch of government and reducing the risks attached to it, that is, the likelihood of having arbitrary/tyrannical government that combines in one person or organ the power to make, execute, and interpret laws. Separation of powers assumes that each branch of government has a unique role to play; in other words, no branch has total power but at the same time assumes that each branch of government has limits to its authority and power. This does not mean, however, that there is no connection between the three branches.

It was not clear from Montesquieu's idea whether the three branches should be absolutely compartmentalized without any relations of balance and/or control on each other or with relations among them. A definitive practical solution was given to this matter by the 1787 American Constitution, which introduced for the first time both the idea of separation of powers and the relationship between the three branches of government. This relationship is better understood as "checks and balances."

In addition to the concept of checks and balances, modern political practice shows us a development in which in some cases, it has become difficult to keep the political branches to only their traditional tasks. For example, the legislature may delegate some powers to the executive, including the power to issue regulations, directives that resemble law making, with some guidelines to be followed. A Parliament may also employ quasi-judicial functions against its members when they violate the disciplinary codes adopted by parliament, or it may remove the immunity of its members, and in doing so it is not considered as a violation of the separation of powers. Thus, the study of the concept of separation of powers must take this into account. A more dramatic redefinition of the traditional separation of powers doctrine is forced on us by the ever expanding jurisdiction of the executive branch. With diversification and multiplicity of bureaucratic functions of the executive, this branch has taken on itself the roles of the legislature and the judiciary on matters that relate to its functions. In fact, it is ultimately accountable to pre-existing laws for the laws it enacts, and to the higher judicial bodies for its quasi-judicial functions. But owing to the wide discretion it enjoys, both in the exercise of its delegated legislative power as well as its judicial functions, in the final analysis, these additional powers of the executive remain meaningful.

In what follows, you will study two articles written by very influential African and American law professors on the separation of powers in the U.S.A. and Germany, respectively. The first one by Professor Charles M. Fombad who presents the historical as well as the present dispensations of separation of powers in Africa. The next paper is by Bruce Ackerman. He asserts that the "constrained system of parliamentarism" practiced in systems like Germany, Japan, and South Africa better promote democracy, the rule of law and protection of fundamental rights than the American-style presidential separation of powers. He argues that separation of powers between the legislature and the executive in the latter system results in such problems as creating a decisional impasse, and an overly independent and inflexible chief executive in which the minorities and individuals may suffer in cases of both his congruity and incongruity with the legislature. In a part not reproduced here, Ackerman further argues that presidential systems like the American one also fall short on maintaining the functional independence of the administrative agencies.

David Currie discusses the interesting legal setting of the German federal system, where a well-crafted separation of powers system is intertwined with parliamentarism and federalism. He usefully compares the German system with that of the US in his succinct discussions. This piece by Currie illuminates how parliamentary forms of government can be designed in ways that ensure the efficiency of governments, the independence as well as interconnectedness of the branches of

government, and importantly also, the respect and promotion of the liberty and rights of members of the society.

Charles M. Fombad, “An Overview of Separation of Powers under Modern African Constitutions” in Charles M. Fombad (ed), *Separation of Powers in African Constitutionalism* (Oxford University Press 2016) 58. Footnotes omitted.

* * *

2. Brief Overview of the Origins and Nature of the Doctrine

Early traces of some forms of separation of powers can be found in the works of many writers and thinkers of the medieval period and middle ages, in their search for the secrets of good government. Plato’s ideas of a ‘mixed state’ set forth in *The Republic*, and Aristotle’s early classification of governmental functions into three: the deliberative, the magisterial, and the judicative, are sometimes considered as the early ancestors of the doctrine. However, the main debate about the origins of the doctrine is between those who trace it to John Locke and those who see Montesquieu as the originator.

It will suffice for our purposes here to point out that the view that currently enjoys broad support is that whilst the roots of the doctrine can be traced to numerous English writers and philosophers before John Locke, the latter in his famous *Second Treatise*, is the author of the modern doctrine. However, Locke’s twofold division of power between the federative and executive overlooked the importance of the independence of the judicial branch and stopped short of what may be called the ‘pure’ theory of separation of powers.

Credit for putting the doctrine in its modern scientific form goes to Montesquieu in his book, *The Spirit of the Laws*: Book XI. His ideas were later to substantially influence the French and American revolutions. Although his claim that the formulation of the doctrine was based on the British constitution at the time has been questioned, he can be considered to have made two main contributions to the doctrine. First, he was the first person who categorized governmental functions into the legislative, the executive, and the judicial. Second, in his analysis of the relationship between the separation of powers and the balance of powers he underscored the need for checks and balances. Arguing that those possessing power will grasp for more powers unless checked by other power holders, he maintained that a separation of powers could only be maintained if this was accompanied by a system of checks and balances. Unlike John Locke, Montesquieu appeared to have been advocating for what could be termed a ‘pure’ form of separation of powers, but his theory of checks and balances shows that he was not advocating a rigid separation in which the different organs work in isolation of each other but rather a system in which they were working ‘in concert’ with each other. It is the American revolutionaries in drafting the US constitution who provided the high noon in the development of the doctrine of separation of powers. They were influenced by writers such as John Adams and the authors of *The Federalist*, described as ‘the greatest work of American constitutionalism’. Although they advocated for the doctrine in its pure form, as the best institutional structure of government, disagreements during the drafting of the federal constitution, led to a compromise based on a moderate rather than a ‘pure’ form of separation of powers, tempered by the idea of checks and balances.

In its ‘pure’ and classic form, the doctrine of separation of powers is based on the fundamental idea that there are three separate, distinct, and independent functions of government—the legislative, the executive, and the judicial—which should be discharged by three separate and distinct organs—the legislature, the executive (or government), and the judiciary (or the courts). In this ‘pure’ sense, the doctrine, according to AW Bradley and KD Ewing, means at least three different things.¹⁵

First, that the same person should not form part of more than one of the three branches of government. This, for example, implies that ministers should not sit in parliament, nor parliamentarians act as ministers. Second, that one branch of government should not usurp or encroach upon the powers or work of another. This means for example, that the judiciary should be independent of the executive and ministers should not be responsible to parliament. It also means that a person holding office in one branch of government should not owe his tenure to the will or preferences of persons in any of the other organs. Thus, the continuation in office or not, of ministers or members of parliament should depend on the will of the electorate at general elections. Third, that one branch of government should not exercise the functions of another. For example, ministers should not have legislative powers. Although the doctrine has rarely been held or practised in this extreme form, it does represent a sort of 'bench-mark' or an 'ideal-type' situation from which to appreciate its present application today.

Five main reasons have historically been given for requiring the legislative, executive, and judicial functions not to be exercised by the same people viz, the rule of law, accountability, common interest, balancing of interests, and efficiency. These reasons basically summarize the different versions of the doctrine that have emerged over the centuries. The prevention of tyranny has remained the common thread that unites all the five different historical justifications for separating the legislative, executive, and judicial functions of government.

* * *

4. The Anglo-American Influence in Anglophone Africa

This section will look at the incorporation of separation of powers in the present constitutions of Anglophone African states. This will be done from three perspectives viz, the relationship between the executive and the legislature, followed by the relationship between the executive and the judiciary, and ending with the relationship between the judiciary and the legislature. In each case, the three issues raised above will be examined, that is, whether there is a fusion of power, the nature and extent of control which each branch exercises over the other, and the extent to which each branch performs the functions of the other. Having noted that the goal of separating the branches is to enable limited interference by each in the other's functions in order to ensure accountability and transparency, the purpose of this section is to see to what extent this has been made possible.

To put this overview in its proper perspective, two preliminary points need to be made. The first point relates to the focus; one cannot pretend to cover all the countries, hence the focus will be on the constitutions of five Anglophone countries which have been carefully selected for several reasons. Botswana, with its 1966 independence constitution still in force, is selected because it shows a typical example of a post independence Westminster-crafted constitution. Ghana's 1992 constitution is selected as an example of the first post-1990 new era constitutions, whilst South Africa's 1996 constitution is chosen because it is still in many respects one of the most modern and liberal constitutions on the continent. Kenya's 2010 and Zimbabwe's 2013 constitutions have also been selected as examples of the latest constitutional designs. These two constitutions, unlike most other post-1990 constitutions, and very much like the South African constitution, try to make a dramatic break with the past. The second point to note is that the purpose of this overview is to indicate general trends. Inevitably, there are differences in details which are often dictated not only by the peculiarities of history and experience but also the political system and type of government (for instance whether it is a federal or centralized system, and whether it is a presidential, semi presidential, or parliamentary system). There is no intention to minimize or underestimate the possible significance of these differences but as will be shown later, there are many overriding common features which justify them being considered as displaying peculiar features of a model of separation of powers.

4.1 The executive and legislative branches

The executive is the most important and most powerful of the three branches of government and operates more or less as the engine of the state. In all systems of government, it is usually given primary responsibility for executing and carrying out state functions. Because of the enormous powers that it wields there is need to ensure that these powers are not abused. Constitutional governance in Africa had been systematically undermined since independence by the ability of executives, especially presidents, to abuse their powers with little regard to the weak constitutional constraints that were contained in the independence constitutions. Generally, the legislative and judicial branches on the continent were relatively too weak to check against regular executive lawlessness.

In Anglophone Africa, the post-1990 constitutional reformers in designing constitutions that entrenched constitutionalism paid particular attention to the issue of separation of powers. To reduce the risks of the dictatorships of the past, provisions were introduced which tried to define and limit the powers of the executive and also ensure that they operate within the bounds of these limitations. This required a careful balance in the division of powers to enable the executive to have enough powers to discharge their mandate without too many inhibitive and paralyzing restrictions whilst avoiding their having too much powers which could be abused to the detriment of the citizens. This delicate balancing act meant mixing of executive and legislative functions as part of the process of providing checks and balances. Although this has resulted in the same persons sometimes forming part of the executive and legislative branches, this was counterbalanced by various possibilities provided for each of the two branches to control and thus check each other. The manner in which this has been done will now be examined.

One of the typical aspects of the British model which was copied by Anglophone Africa is the fusion of executive and legislative functions. For example, under section 86(1) of the South African constitution of 1996, it is stated that 'at its first sitting after election, and whenever necessary to fill a vacancy, the National Assembly must elect a woman or man from among its members to be the President'. According to section 91(3), the president, in constituting his cabinet, must select the deputy president and any number of ministers from amongst members of the National Assembly but as in Britain, the provision provides that the president 'may select no more than two Ministers from outside the Assembly'. This approach has been followed by most Anglophone countries, but recently Kenya in its 2010 constitution departed from this. In fact, article 152(3) expressly states that, 'a Cabinet Secretary [that is, Minister] shall not be a Member of Parliament'.

The second issue is the extent to which each of these two branches control and check each other. There are a number of ways in which parliament may intervene to check any abuses of power by the executive in Anglophone Africa. In this regard, most constitutions give parliament the power to initiate the process for impeaching the president, the deputy president, and ministers, for reviewing and approving the declaration of war, for approving the appointment of ministers and other senior government officials, and for holding ministers individually and collectively responsible in a process that could lead to their resignation or dismissal. The ability of parliament to hold government accountable is one of the most important ways of preventing arbitrary government and dictatorships. The mechanisms provided in Anglophone constitutions are weak for two main reasons. First, as a practical reality which is reflected as well in advanced democracies, once a government has a majority in parliament, members of the ruling party will be very reluctant to openly criticize the government or vote against it. This is particularly so when the ruling party is a dominant party. A recent study has shown that as many as twenty-nine (54 per cent) of the countries on the continent are ruled by dominant parties, an overwhelming majority of which correspond with the hegemonic party pattern. Second, a problem peculiar to this mixed system is the potential for disruption which mixing legislative and executive positions can cause. For example, in Botswana, the 1966 constitution provides for forty-four members of parliament. With a total of twenty-two ministers and assistant ministers, it therefore means that the executive

effectively controls half the number of members of parliament and the principle of collective responsibility guarantees that every motion moved by the government, regardless of the views of either the opposition or the backbench, will be approved. There is no statutory limit to the number of ministers who should come from parliament, as there is in Britain. As a result of this, parliament has had to be adjourned on a number of occasions because there was no quorum due to the absence of ministers who were away on official engagements. The negative impact of ministerial absence on parliamentary work has also occurred in countries with large parliaments such as South Africa. On the other hand, the executive is also able to exercise control over parliament in Anglophone Africa in at least two main ways. Under all constitutions, a bill adopted in parliament only becomes law after it has received presidential assent. Although where the government holds a majority in parliament, presidential assent is almost automatic, it can however be refused. Under section 87 of the 1966 Botswana constitution, in the unlikely event that the president withholds his assent, the bill will be returned to Parliament who must resubmit it within six months. When returned to the president, he must assent within twenty-one days or dissolve parliament. A second form of control is by way of dissolution. Besides occurring when, as in the case of Botswana, the president refuses to assent to a bill or there is disagreement between the president and parliament over a bill, parliament may also in certain circumstances pass a resolution to dissolve. Finally, there is the question of the extent to which these two branches exercise each other's functions. This is where the powerful position of the executive vis-à-vis the other branches is manifest. Most Anglophone constitutions usually confer law-making powers on the legislature. It is often worded in language that gives it discretion to delegate these powers. For example, article 94(1) of the 2010 constitution of Kenya, after declaring that the legislative authority is vested in parliament, adds in paragraph 4 that 'no person or body, other than Parliament, has the power to make provision having the force of law in Kenya except under the authority conferred by this Constitution or by legislation'. The most extensive manner in which the executive performs the functions of the legislature is in the making of secondary legislation when directly or indirectly authorized to do so by the legislature. In fact, the bulk of legislation in Anglophone jurisdictions is in the form of subsidiary legislation and far exceeds the laws enacted by parliament in the form of Acts of Parliament. Subsidiary legislation may take diverse forms such as, proclamations, regulations, rules, rules of court, orders, bye-laws, or any other instrument made directly or indirectly under any enactment and having legislative effect. For a number of reasons, delegated legislation has become an inevitable feature of modern governments. First, the complex and protracted nature of the law-making process and the pressure upon parliamentary time, risks causing the legislative machinery to break down if parliament attempted to enact absolutely every piece of legislation by itself. Second, legislation on certain technical topics necessitates prior consultations with experts and stakeholders; an exercise which is best done by members of the executive. Third, parliament cannot foresee every administrative or other difficulty that may arise when it enacts legislation. It therefore makes sense to allow the executive to intervene and make changes when necessary. It will be far faster than the complicated processes of amending an Act to achieve the same purpose. The challenge however is to reconcile the whole concept of delegated legislation with the normal process of democratic consultations, scrutiny, and control to which a normal bill is subjected before it becomes law. Some parliamentary control is usually required. In many jurisdictions, it is required that all delegated legislation should be laid down before parliament. Such parliamentary supervision is hardly ever effective because either the legislation is not laid down before parliament or if it is done, the members are too busy with other matters to critically scrutinize this. One other important point to note is that although law-making remains the principal function of parliament, the reality is that the whole process and in fact, the most decisive stage of initiating bills is usually completely controlled and driven by the executive. It is clear from this that the executive not only exercises the functions of, but also effectively controls parliament. We shall now see how the executive relates to the judiciary.

4.2 The executive and judicial branches

Guided by the same three considerations, we shall look at the relationship between the executive and the judicial branches in Anglophone Africa. The first issue is whether the same persons form

part of the two branches. The only possible instance of this, is the role played by the Director of Public Prosecutions (DPP) or the Attorney-General (AG), in those jurisdictions where the latter plays the role of the DPP or acts as the hierarchical superior of the AG. Under most Anglophone constitutions the AG is a member of cabinet, which is an executive position but also either plays the role of DPP or directly supervises and controls the DPP, who as the person responsible for enforcing the criminal law plays a quasi-judicial role. The anomalous position of the AG and DPP as part of the executive and the judiciary has frequently raised questions in most jurisdictions of the independence of the prosecuting authorities from political interference and manipulation. It is the possible control which both the executive and the judiciary exercise over each other that is perhaps one of the fundamental aspects of the doctrine of separation of powers. As regards the control which the executive exercises, the ability of the executive to intervene, especially in judicial appointments under the constitutions of most Anglophone African countries, has often been structured in a manner that will protect the independence of the judiciary. Judicial appointments of superior court judges are usually made by the president as head of the executive based on the recommendations made by the Judicial Service Commission (JSC). Some of these institutions, especially the most recent ones, contain principles protecting the judiciary from political interference. The most elaborate example of this is contained in section 164 of the 2013 constitution of Zimbabwe which states: (1) The courts are independent and are subject only to this Constitution and the law, which they must apply impartially, expeditiously and without fear, favour or prejudice. (2) The independence, impartiality and effectiveness of the courts are central to the rule of law and democratic governance, and therefore— (a) neither the State nor any institution or agency of the government at any level, and no other person, may interfere with the functioning of the courts; (b) the State, through legislative and other measures, must assist and protect the courts to ensure their independence, impartiality, dignity, accessibility and effectiveness and to ensure that they comply with the principles set out in section. (3) An order or decision of a court binds the State and all persons and governmental institutions and agencies to which it applies, and must be obeyed by them.

Other measures designed to enhance judicial independence include the payment of judicial salaries from the Consolidated Fund and elaborate and transparent procedures for the removal of judges. There is however still some scope for political interference due to a number of factors. First, under some constitutions, such as that of Botswana and South Africa, the president inexplicably has far wider discretion in the appointment of the heads of the highest courts than he has in appointing ordinary judges. Second, the ability of the JSC to operate as an independent and impartial body that recommends or otherwise takes its decisions based on the merits and ability of particular persons to discharge their responsibility independently and competently often depends on the number of members of this body that are appointed directly or indirectly by the executive. Where the majority are appointed directly or indirectly by the executive, this provides considerable scope for executive interference with the process. On the other hand, judicial control over the executive has become one of the most crucial features of any modern constitutional democracy. This judicial control over executive action is regularly exercised in order to protect citizens against any authorities and ensures that these bodies perform their statutory duties in conformity with the law. This often brings the judiciary into conflict with the executive especially when the latter feel that the judiciary has intervened in a non-justiciable policy matter or so-called political issue which the courts are ill equipped to deal with or breached the doctrine of separation of powers.

Finally, there are certain areas where the executive and the judiciary exercise each other's powers. In the case of executive exercise of judicial powers, this occurs in two main instances under Anglophone African constitutions. The first instance of this occurs during the exercise of presidential prerogative of mercy. These powers enable the president to:

- i) grant to any person convicted of any offence a pardon, either free or subject to lawful conditions; ii) grant to any person a respite, either indefinite or for a specified period, of the execution of any punishment imposed on that person for any offence;
- iii) substitute a less severe form of punishment for any punishment imposed on any person for any offence; and

- iv) remit the whole or part of any punishment imposed on any person for any offence or of any penalty or forfeiture otherwise due to the government on account of any offence.

Generally, in exercising these powers the president may sometimes consult his cabinet or at his discretion consult an Advisory Committee on the Prerogative of Mercy. The exercise of the prerogative of mercy amounts to a very serious interference with the judicial process and in principle should only be exercised in very exceptional and unusual circumstances where there is good cause, for example, where some new evidence may have emerged which cast doubts on the decision in a case.

The second area in which the executive has exercised some judicial functions is in the common practice of creating administrative tribunals and other disciplinary bodies and conferring on them the right to determine matters that traditionally come within the jurisdiction of courts of law. Many of the disputes that arise within the public service today are not decided by litigation in the ordinary courts but rather by administrative bodies that operate within the executive. The number and powers of these commissions have increased over the years as more efforts are made to render the executive more transparent and accountable. The most common example of these are the myriad of administrative tribunals which have the powers to undertake disciplinary proceedings and impose sanctions against public servants. (...)

Now turning to the judiciary exercising executive functions, this often occurs when judges and other members of the judiciary are appointed to discharge non-judicial functions that fall within the executive domain. This may take a permanent form or be of a temporary nature. A permanent form of this is the role usually conferred on judges, usually the Chief Justice, to act as a returning officer for purposes of the elections to the office of president. For example, under section 38(1) of the 1966 Botswana constitution, the Chief Justice is the returning officer for purposes of elections to the office of president. He not only determines whether the constitution or any law relating to the election of the president under sections 32 and 35 has been complied with but also whether any person has been validly elected as president. Although it states that his 'decision shall not be questioned in any court', this does not deprive the High Court of its inherent powers to review and quash any decision arrived at, if there were procedural irregularities or the Chief Justice acted *ultra vires*. (...)

* * *

4.3 The judicial and legislative branches

No person is allowed under any of the constitutions examined here to belong to both the legislative and judicial branches. It is however, the ability of each of these two branches to control each other and to exercise the functions of the other that raises interesting issues. Generally, the legislature controls the judiciary in the sense that it makes the laws that regulate the judiciary. Under some Anglophone constitutions, the legislature also plays a role in the management of the judiciary through its membership of the JSC but in some other situations, such control is even more direct by the requirement that judicial appointments, especially those of the Chief Justice and his deputy must be approved by parliament. It would seem that if members of the legislature have a substantial presence on the JSC and are thus able to influence its recommendations, then there is no need for further parliamentary approval. Whilst recognizing the importance of legislative control, the issue of judicial independence appears to be an important preoccupation with Anglophone constitutional engineers. Thus, unlike other public servants, the fact that the salaries of judges are charged to the Consolidated Fund denies parliament an annual opportunity to discuss and criticize the activities of judges. Although some of these constitutions go further to state that the salaries, allowances, and other benefits of judges shall not be reduced, this does not mean that judicial salaries cannot be reviewed. The purpose of this principle is not so much to guard against reductions in salaries but rather to provide a predictable framework for ensuring that the salaries of judges are only adjusted where necessary to keep pace with that of other public servants in a manner that is not discriminatory against judges. This principle that tries to protect them from parliamentary pressure

has been reinforced by the convention that protects judges from disparaging criticism in parliament. This does not prevent members of parliament, like ordinary citizens, from criticizing judges but rather to ensure that such criticisms must be fair and reasonable, and are not made in a malicious manner that could bring the courts into disrepute.

* * *

5. The French Influence in Francophone and Other Civilian Jurisdictions in Africa

As in the preceding discussion, the analysis of the French approach in Francophone Africa (used in a broad sense to cover civilian-based systems whether French-speaking like Benin, Congo DR, Burundi, and Rwanda or Lusophone, like Angola and Mozambique or Hispanophone like Equatorial Guinea) will focus on a number of selected countries. Angola has been selected as a Lusophone country with a fairly recent constitution (2010), and Benin, Cameroon, Gabon, and Senegal as examples of Francophone countries. While Benin's 1990 constitution is one of the most modern and liberal of the French Gaullist model on the continent, the Cameroon constitution of 1996 (supposedly a revision of the 1972 constitution) is a typical example of this Gaullist model in its more or less original 1958 form. The 1991 constitution of Gabon and 2001 constitution of Senegal are selected as examples of the modified Gaullist model, the former having been adopted at the early stages of the post-1990 constitutional reforms fever and the latter being a more recent example. The 2006 constitution of Congo DR will also be referred to as another civilian-based approach although not directly linked to the Gaullist model. Occasional references will be made to the constitutions of other countries such as the Burundi constitution of 2005 and Rwanda's 2003 constitution which have been influenced by the civilian approach.

In assessing the approach adopted in entrenching the separation of powers, the discussion will start by looking at the relations between the executive and the legislature, followed by that between the executive and the judiciary and ending with that between the judiciary and the legislature.

5.1 The executive and legislative branches

Using the same three conceptualizations of separation of powers that formed the basis of the analysis of the situation in Anglophone Africa, the starting point is to see whether the same person could form part of the executive and the legislative branch. All the constitutions examined expressly state that the holding of any position in the executive is incompatible with being a member of the legislature. This doesn't preclude a member from either branch taking up a position in the other but what it clearly means is that such a person must resign from his previous position. The constitution of Congo DR of 2006 adopts a fairly different and rather contradictory approach. First, articles 96 and 97 expressly state that the exercise of the position of president and member of government is incompatible with membership of parliament.

It then apparently contradicts this position. First, it says that the president appoints the prime minister from the party with a majority in parliament. One must assume that if such a prime minister is a member of parliament, then he must resign his parliamentary position. The second problem is that the same articles expressly state that the mandate of the president and that of a member of government is incompatible with 'responsibility within a political party'. It is difficult to understand why a president elected on a certain political platform, probably as leader, should abandon this platform. It is an anomaly which is inherent in the Gaullist system which is constructed around the fallacious assumption that the executive will always have the majority party in parliament. Apparently, some African constitutional drafters have not sufficiently learnt the lessons from the three periods in the 1980s and 1990s in France, when this assumption was exploded, leading to uncomfortable 'cohabitation' of a president from one party and a prime minister from a different party that won the majority seats in parliament.

The Francophone constitutions allow for control and intervention of one branch into the domain of the other. With respect to executive control or intervention in the legislative domain, this occurs in at least two main ways. One is through the promulgation of bills adopted by parliament before they become law. It is an important means of controlling parliament which puts pressure on parliament to compromise because no bill will ever become law until the president promulgates it. The powerful position of the president in this system contrasts with the position in Anglophone Africa which provides that should there be a stalemate between the president and parliament, then parliament must be dissolved and fresh elections held. In Anglophone Africa, it puts pressure on both branches to reach a compromise. In most of the Francophone constitutions, the president is given discretionary powers to dissolve parliament. Often, all he needs to do is to consult the presidents of the two chambers of parliament. The only restriction is that the right can be exercised at most twice during a mandate and not earlier than a year after the last parliamentary elections. It is only under the 2006 constitution of Congo DR that some restrictions are imposed on the president's powers to dissolve parliament. He is only required to act when there is persistent crisis between the government and parliament but is however not allowed to do so during a state of emergency, siege, or war. Legislative control over the executive, like under Anglophone African constitutions, operates in two main ways; through impeachment and parliamentary processes of control. Unlike under the Anglophone constitutions, the provisions regulating these are often very detailed. As regards impeachment, the crimes covered and the procedures to be followed differ depending on whether it concerns the president or other members of the executive such as the prime minister and other members of cabinet. Presidents are usually charged with serious crimes such as treason and espionage. Generally, the crimes that could lead to impeachment also include grave abuse of office, corruption, violation of the constitution and of the law, and other so-called heinous and violent crimes. Although the proceedings often end up before either a special High Court of Justice or the Constitutional Court, the process is very political with parliament playing a leading role in initiating the process and sometimes appointing some of its members to sit in the High Court of Justice. It is with respect to the control through parliamentary processes that the provisions are very detailed. This control is exercised through an impressive array of measures such as vote of no confidence (which is usually limited only to the prime minister and his cabinet but not the president), motions of censure, questions (both written and oral), commissions of inquiry, and other forms of parliamentary committees. As conceived, these look like perfect mechanisms to hold governments accountable. Unfortunately, because of the prevalence of dominant parties, the chances of obtaining a two-thirds majority that is usually needed to impeach a president are slim. Similarly, the same dominant parties will often use their majorities to block any genuine attempts to hold the government accountable. The executive is therefore hardly ever under any serious pressure to account in these countries. Another thing that reinforces the view that all these measures enable parliaments in Francophone Africa to sometimes bark but hardly ever bite is the fact that the measures to control the executive and even sanction it only apply to the prime minister and his ministers. Yet, these latter all serve at the pleasure of the president and often do no more than implement the policies laid down by the president. Thus, the person who actually determines policies in these countries can hardly be made to account for any failures of these policies before the people's representative.

Now turning to the extent to which these branches exercise each other's functions, the balance is again in favour of the executive. Unlike under Anglophone constitutions where executive law-making is the exception, at least in principle, under the civilian separation of powers model, executive-law making is expressly provided for under the constitutions. This is marked by two features. First, the constitutions of the countries examined in this section usually state that both the executive as well as parliament have the right to initiate bills. As in the Anglophone system, most of the bills are in fact initiated by the executive. Second, the law-making function is split into three distinct parts dealing with different areas. There are matters that are exclusively reserved for legislative enactments (the exclusive legislative domain); matters falling outside these areas are reserved for the executive (the exclusive regulatory domain) and then these constitutions provide that parliament may, either with respect to certain matters or in some cases, all matters falling

within its exclusive legislative domain, authorize the executive to make laws usually in the form of decree-laws or ordinances for certain purposes and for specified periods subject to subsequent parliamentary ratification. Two points are worth noting here. The first point is that although in practice, most modern laws in Anglophone Africa are initiated by the executive, which also has wide powers to make secondary legislation, the scope for executive law-making is far more extensive in Francophone Africa and in fact most governmental matters are regulated by presidential decrees, ordinances, and regulations as well as ministerial decrees and orders. The second point to note is that until the post-1990 extension in some of these countries of a form of judicial review, the executive laws were completely outside the scope of judicial review for conformity to the constitution, which was then essentially limited to abstract review of bills before their promulgation into law. Be that as it may, it is clear from this that the executive effectively dominates and controls the legislative domain. We shall now look at its position vis-à-vis the judiciary.

5.2 *The executive and judicial branches*

The relationship of the executive and judicial branches will also be analysed based on the same three questions. Starting with the question whether there are any persons who form part of both branches, the only person who seems to belong to both branches of government under most of the constitutions examined is, as in Anglophone Africa, the public prosecutor. From the elaborate description of the functions of the public prosecutor given in articles 185 to 187 of the 2010 constitution of Angola, it is clear that the incumbent exercises both judicial and executive functions. This can be inferred from the wording of the provisions dealing with this office in the typical Gaullist constitutions which cover public prosecutors under the section dealing with the judiciary but exclude certain provisions, specially those dealing with judicial independence, from applying to them.

With respect to the extent to which each of these branches control each other there is again clear evidence of executive dominance. Although it is expressly stated in these constitutions that judicial power is independent of legislative and executive powers, this is quickly contradicted by several other constitutional provisions. The exact extent of this varies slightly from one constitution to another but the effect is usually the same. For example, there is the typical and original Gaullist formulation that the president shall guarantee the independence of judicial power. As noted earlier, if all three branches are on a par, there will be no need for one to guarantee the independence of the other. This is a matter that could more appropriately be taken care of by an effective system of checks and balances. Under most of these constitutions, the president plays a decisive role in the appointment of judges of the ordinary courts. Although he is supposed to be ‘assisted’ by or act on the ‘opinion’ of the CSM, this hardly makes sense. In most cases, the president is not only the chair of the CSM and his Minister of Justice, the deputy chair, but it is also he who convenes the meetings of the CSM and draws up its agenda. He is therefore presiding over a body that is supposed to make recommendations to him. The net effect of this is that certain fundamental safeguards of judicial independence which the CSM deals with, such as issues of judicial discipline, transfers, and promotions are virtually controlled by the executive. On the other hand, the traditional form of judicial control over executive action is by way of judicial review of the conformity of such action to the law, especially the constitution. Before the 1990s, most Francophone countries had merely copied the largely ineffective Constitutional Council method for reviewing the constitutionality of laws that was established under the 1958 French constitution. Apart from Cameroon which in 1996 went back to this defective system, most other countries, the best example being Benin, have now substantially departed from the Constitutional Council model. Although the system of review of the constitutionality of laws remains centralized, unlike in the past, it now allows not only for both abstract and concrete review of constitutionality but locus standi have been expanded for the first time to give individuals the right to directly or indirectly challenge unconstitutional laws and other forms of unlawful executive action.

Finally, as regards those situations in which these two branches exercise each other's functions, it is obviously undesirable and a serious threat to judicial independence if the other branches, especially the executive were allowed to exercise the functions of the judiciary. In fact, the 2006 Constitution of Congo DR expressly forbids this in article 151 which states:

The executive power may neither give orders to a judge in the exercise of his jurisdiction, nor decide on disputes, nor obstruct the course of justice, nor oppose the execution of a decision of justice.

The legislative power may not decide on jurisdictional disputes, or modify a decision of justice, nor oppose its execution.

Any law of which the subject is manifestly to provide a solution to a juridical process in course is void and of no effect.

Nevertheless, these constitutions, like those in Anglophone Africa, allow the executive to intervene in the judicial domain only with respect to the exercise of the right of pardon through which the president may remit, commute, or reduce sentences passed by the courts.¹

5.3 The judicial and legislative branches

Finally, the relationship between the judiciary and the legislature will now be considered. The first question relates to whether the same persons can exercise both judicial and legislative functions simultaneously. Some of these constitutions expressly prohibit this. In most of these countries however, the prohibition of one person exercising both functions is usually done in secondary legislation but even if this was not done, it is difficult to see how as a practical fact, one person could do both at the same time.

With regards to the scope for controlling each other, the main method of control exercised by the judiciary over the legislature is by way of judicial review of legislative acts for conformity to the constitution. Whilst post-1990 Anglophone African constitutions are beginning to recognize the need for abstract review, this has always been the main form of control exercised by Francophone constitutional courts. With perhaps the exception of Cameroon, almost all modern Francophone constitutions now allow their constitutional courts to go beyond the traditional abstract review and also undertake concrete review of legislation. This has considerably enhanced the ability of the judiciary to check against laws which violate the constitution. The effect of judicial review of legislative as well as executive actions may however be reversed by new legislation which usually has a prospective effect but may also have a retrospective effect. As we noted earlier, the 2006 constitution of Congo DR specifically bars the legislature from enacting legislation specifically aimed at neutralizing the effect of a court decision.

As regards the judiciary and legislature exercising each other's functions, the scope for this is, unlike under Anglophone constitutions, fairly limited. Because the doctrine of binding precedent is not a feature of the civil law tradition, the scope for judicial law-making via judicial precedents is very limited. Inferior courts are not obliged to follow the rule of law laid down by superior courts in a similar case but may do so merely to forestall their decision being reversed on appeal and not out of any legal obligation to do so. On the other hand, and as we noted earlier, the legislature or some members of it exercise judicial functions when they initiate and participate in the trial of the president and other members of the executive for treason and other offences. Because of the wide-ranging powers of the executive and its control over the legislature, the possibility of the legislature initiating impeachment proceedings against the president or even any member of the executive is very slim. This is true not only under Francophone but also under Anglophone constitutions. As we will now see, it is no surprise that there have been serious efforts by constitutional designers to expand the scope of constitutional checks and balances beyond the well-established three branches of government.

Bruce Ackerman, "The New Separation of Powers," in *Harvard Law Review*, Vol. 113, No. 3 (2000). Footnotes omitted.

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. . . As in Great Britain, Japan's Prime Minister and his Cabinet must retain the confidence of the Diet to remain in office. But, in contrast to the Westminster model, the Japanese Parliament is not fully sovereign. Its legislative powers are limited by a written constitution, a bill of rights, and a supreme court. Nor did the Americans impose a strongly bicameral legislature - featuring an upper house checking and balancing the lower with full Madisonian vigor. The Japanese House of Representatives plays the dominant role in selecting the Cabinet. Although the upper House of Councillors has significant powers, it is not the constitutional equal of the lower House. Call this the "one-and-a-half house solution."

The story is the same in Germany--though the Americans and other Allies played a less heavy-handed role, letting German jurists and politicians call most of the shots. Fresh from their experience with Adolf Hitler, nobody was in the mood for an elected presidency. Once again the result was constrained parliamentarianism, with a one and-a-half house solution.

The Italians were still more in control of their constitutional process and . . . they created a very interesting variation on the one-and-a-half house theme. Nonetheless, the Italian variation fits comfortably within the basic framework of constrained parliamentarianism. Like the Germans, the Italians were entirely unprepared to build a presidential platform upon which future Mussolinis might vie for (democratic) preeminence.

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. . . Quite simply, an elected presidency predisposes the system to a politics of personality, and especially the politics of a single personality. To be sure, all presidents and prime ministers possess enormous power, making it natural for the public to scrutinize every personality quirk. But a parliamentary system does a better job of keeping these personalistic tendencies in check. Begin with the downside. All humans who manage to climb their way to the top have their weaknesses, to say nothing of their dark sides; but some shadows get overexposed in the bright light of publicity, to the point at which the public cries, "The guy's a creep; get him out of there!"

When this happens, political retribution will be swift and unforgiving in a parliamentary system. The key, here as elsewhere, is the PM's need to sustain an ongoing majority in the house. While his party's backbenchers normally have an overriding self-interest in supporting the leadership, they will turn with sudden ferocity when the polls reveal that their leader's personality has become a permanent political liability. Better to dump the guy immediately and replace him with somebody who will present the party's program with a more pleasing face at the next election. Even so dominating a persona as Margaret Thatcher found that British backbenchers were utterly ruthless once polls revealed that the Iron Lady had become an obstacle to future successes.

The plight of a failing persona is even more devastating if the prime minister heads a multi-party coalition. Coalition partners will not think twice about deserting a prime minister whose reputation is smirched by scandal. Why should their party be burdened by association with a tarnished PM when someone new may readily be found whose feet of clay have not yet been exposed to public view?

Presidents, in contrast, are elected by the people for a fixed term, and the separationist constitutions rightly make impeachment and removal a very difficult business – as the Lewinsky affair has taught us all, in case we were in danger of forgetting. One of the oddest features of this affair was the verdict reached by the pundits upon its conclusion. Professor Tribe's assurances to the readers of

The New York Times were exemplary: "When it ends today with President Clinton's widely anticipated acquittal, the impeachment drama will have yielded few heroes – except the Constitution's Framers, whose wisdom that drama will again have vindicated."

Bill Clinton would not have lasted a month as a prime minister in a parliamentary system. His backbenchers would have revolted, or his coalition partners would have ushered him out the door in a desperate effort to move into the next election with a new face at the head of the old government. In contrast, Americans had to waste a year on the politics of Clinton's personality. Even after the tedious debate came to a formal conclusion, the country was left with a leader whose character seems shabby to most of the public.

I agree with Professor Tribe that, given the American separation of powers, Bill Clinton's failings did not provide a constitutionally adequate basis for Congress to override the judgment rendered by the voters in 1996. But compared with the way a parliamentary system would have handled the affair, the separation of powers did a spectacularly bad job in dealing with this minor scandal. Surely Americans had better things to do with their time than to endure an entire year of obsessive conversation devoted to the peculiar foibles of a single human being.

The cult of personality is no less a problem during less pathological moments – though it appears in subtler, if ultimately more important, forms. The difficulty results from the president's capacity to detach himself from other political leaders in the congress and the party system in general. The contemporary United States represents an extreme case. Presidential hopefuls create their own ad hoc campaign organizations, and the Democratic and Republican candidates who emerge from the party primaries are remarkably free to articulate their own positions in blithe disregard of their formal party platforms. There is little wonder, then, that the ultimate victor in the November election is tempted to understand his mandate in personalistic terms: the People have selected him as President, and his political party has served merely as a vehicle for the projection of his own personality and ideals.

The personal character of the President's mandate is also expressed in his relationship to the cabinet and to his legislative program. No cabinet secretary ever imagines himself operating on the same plane of legitimacy as his boss: after all, the President was elected by the People, and he was not.

The same personalistic logic operates on the legislative side. In fashioning his initiatives, the President and his assistants are perfectly happy to organize ad hoc coalitions across party lines if this is what it takes to get a bill through congress. Although such "successes" may antagonize party loyalists, their consistent support is not a necessary condition for the President to maintain himself in office. Indeed, the President may readily come to believe that his place in history will be measured by his success in enacting his own program into law. If this project requires him to rise above party, so much the better. Isn't this what greatness is all about?

The prime minister is in a different position. She is ultimately dependent on her party's support in parliament, and it would be political suicide for her to enact a legislative program over its bitter objection. When she hears murmurings (or shouts) of discontent, she will take them seriously – coopting, compromising or suppressing opponents, but in any event, dealing with them.

To be sure, the PM's backbenchers will not be eager to rebel too publicly because parliamentary disarray is not a good advertisement to the voting public. Nonetheless, the prime minister is well aware that future crises may arise that will test the loyalty of her party, and its backbenchers, to her continued prominence at the helm. Her overriding aim is therefore to bring her party along with her initiatives: mobilizing her forces at party congresses to change the platform to support her principles, pressing each backbencher to vote the party line at crucial parliamentary turning points.

All this activity is self-interested, of course. Nevertheless, it aids in the construction of something that I will call a “party of principle.” Although a president is constantly tempted to view his party in purely instrumental terms, the prime minister is obliged to treat her party as an enduring organization of political activists dedicated to a distinctive set of principles. If she does not like these principles, she must try to persuade her fellow activists to adapt them to further her political ends. Whether she succeeds or fails, there will be a characteristic tendency to project an image of each political party as representing an enduring political project over time.

The prime minister's relationship with her cabinet is also profoundly different. Rather than bearing a unique personal mandate from the people, she is basically no different from other party leaders whom she encounters at cabinet meetings. Indeed, some of them may have almost as much support in the party as the PM herself. Others may be leaders of coalition parties whose continued support is essential to the government's existence. As a consequence, European prime ministers invariably treat the cabinet as a far more significant institution than do their presidential counterparts. Although the relative strength of the prime minister varies among European systems, none of them pretends to have the absolute preeminence that an American President takes for granted.

Strong leaders have emerged out of parliamentary systems. Prime Minister Margaret Thatcher and Chancellor Helmut Kohl are contemporary examples. But presidential systems do not merely allow strong leaders to rise above the fray of ordinary politics from time to time. They manufacture them on a regular basis, creating a platform upon which a single leader constantly struts high above the political plane inhabited by ordinary mortals. Is this really healthy?

Revealingly, presidentialist constitutions express doubt on this score. After working so hard to construct a paramount leader, they often limit his service to one or two terms. This makes good democratic sense – power does corrupt, especially at such heady altitudes. But the contrasting treatment that prevails in parliamentary systems should lead one to question the very premise upon which presidentialist constitutions are based. Parliamentary constitutions have never found it necessary to limit the prime minister's term in office, and leaders like Prime Minister Thatcher and Chancellor Kohl served much longer than is permitted for the Presidents of Argentina, Brazil, Mexico or the United States. To the naive advocate of the separation of powers, this may seem odd. After all, if concentrated lawmaking power is so dangerous, the English and the Germans should be the people most in need of term limits.

The paradox dissolves when one recalls how powerfully the restraints of political party operate on the parliamentary leader. Despite the appearance of unchecked power, the PM is subject to a continuing plebiscite from both backbenchers in her own party and the competing leaders in coalition parties. However powerful the Kohls and Thatchers may seem, they can never escape the judgment of their peers - who will not hesitate to undermine or overthrow them when the voters begin to yearn for change. Because the PM's preeminence is obtained at the sufferance of her peers, it is far more tolerable than the dominion obtained by a president through constitutional guarantee.

The result of the presidentialist cult of personality cannot help but offend the more efficiency-minded. On the one hand, citizens are stuck with presidents in whom they have lost confidence; on the other hand, they are barred from repeatedly choosing the rare leader who manages to sustain popularity over a decade or more. How is that for cutting off your nose to spite your face?

But I myself am more concerned about the way a personalistic presidency undermines bedrock democratic ideals. Whether it takes the form of obsessive fixation on the peccadilloes of Warren Harding or Bill Clinton, or the adulatory worship of heroes like Franklin Roosevelt or Ronald Reagan, the cult of presidential personality goes against the grain of republican self-government. It is downright embarrassing for a constitution to ask free and equal citizens to place so much trust in the personal integrity and ideals of a single human being. Far better for the constitution to encourage citizens to engage in a politics of principle-debating which of the existing political

parties best expresses their collective ideals, working to revise these ideals to change with the times, and forming sensible coalitions when no single party gains the support of the majority.

To be sure, the result may be disheartening. Cabinet government can degenerate into the politics of a narrow clique interested only in the partition of ministries and the servicing of partisan supporters. Endless arguments over party platforms may be a cynical cover for the pursuit of factional interest and personal advantage. This grim prospect might lead some to view an independent presidency as an acceptable price to pay for bringing energy and vision into the iron cage of modern politics.

But for me, this dark possibility carries a different message. No form of government can obviate the need for public spirit – which, alas, has its downs as well as its ups. The question is how much popular efforts at renewal, when they come, should focus on the putative charisma of a presidential candidate, and how much on the task of building a party of principle capable of setting government on a better course. The great virtue of parliamentary government is that it creates an incentive for the leadership, as well as the followership, to push in the latter direction.

This point seems even more important in a public world dominated by media predisposed to the cult of personality. Dramatic pictures of political leaders make for better television than boring discussions of party principles. As a consequence, even electoral battles in parliamentary systems increasingly emphasize the leader's personality at the expense of the party's principle. Nonetheless, the incentive structure of parliamentary systems cuts against this tendency, while American-style systems exacerbate it....

David P. Currie, "Separation of Powers in the Federal Republic of Germany," in *The American Journal of Comparative Law*, Vol. 41, No. 2 (1993). Footnotes Omitted.

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. . . [T]he Basic Law (Grundgesetz) sets up a democratic, federal, and social state under the rule of law, with an extensive bill of rights and comprehensive judicial review of both executive and legislative action . . . The Basic Law is built upon the premise of popular sovereignty. "All governmental authority," says the second paragraph of Article 20, "emanates from the people." But the Federal Republic is after all a republic, not a direct democracy; the same paragraph goes on to say that the people shall exercise their power "by means of elections and voting" and through the organs of government. Most important for present purposes, it requires a separation of governmental powers; for it specifies that the people shall act through the agency of special, or particular, or separate ("besondere") legislative, executive, and judicial bodies.

Separation of powers can serve to promote rational government by optimizing the conditions for making various decisions. Basic policy may be set by a deliberative assembly, administration may be entrusted to a unified executive, individual disputes may be resolved by independent judges. No less significant, however, is Montesquieu's famous argument for separation of powers as a fundamental safeguard of liberty. For when legislative, executive, and judicial powers are divided, three distinct bodies must abuse their authority before the citizen's rights can be infringed.

The allocation of governmental powers in Germany differs from that in the United States in a number of interesting ways. The most striking difference is that the Federal Republic has a parliamentary rather than a presidential system; federal ministers serve at the pleasure of the legislature. Thus at the outset there is less structural separation between legislative and executive organs in Germany than in the United States. The judges, on the other hand, are quite independent. Indeed, in some respects they are better protected from executive or legislative influence than their counterparts in the United States.

Moreover, the lack of separation between the federal parliament and federal ministers is counterbalanced by a second interesting departure from the American model: a significant reduction in the powers of the ministers themselves. Most federal laws are carried out not by federal officials but by the constituent states (Länder), and even the federal administration is given a degree of independence from political pressure. Thus principles both of federalism and of civil service compensate to a significant extent for the structural symbiosis of the parliamentary model; even at the structural level there is more separation of powers in Germany than a first look at the parliamentary system might suggest.

Furthermore, the undeniable American advantage with respect to structural separation is matched by a marked German advantage in separation of functions. Only the legislature may make laws; only the executive may enforce them; only judges may adjudicate. Not only is the executive bound by the laws and in many respects permitted to act only on the basis of statutory authority; in Germany there are meaningful and judicially enforced limits to the delegation of legislative power. With rare exceptions there are no independent agencies with executive powers; most enforcement authority is ultimately subject to ministerial control. Finally, there are essentially no quasi-judicial agencies in the American sense of the term; if administrators decide concrete individual disputes, their decisions must be subject to *de novo* judicial review on questions of fact as well as law.

In sum, despite the parliamentary system there are significant structural as well as functional limits to the concentration of authority in Germany. These limits provide significant additional safeguards against arbitrary governmental action, and Article 79(3) protects their essential features from constitutional amendment.

LEGISLATIVE POWER

Federal statutes, Article 77(1) provides, are adopted by the Bundestag, the federal parliament. Through a separate body called the Bundesrat, the constituent states exercise a significant check on federal legislation—a veto power that in a surprising number of important instances cannot be overridden by the parliament itself. In conformity with the democratic principle of Article 20, members of the Bundestag are chosen in “general, direct, free, equal, and secret elections.” Within the Bundestag, minority interests are protected. Each member is entitled to introduce bills, and the investigative machinery can be set in motion by as few as one fourth of the members. Article 28(1) requires the Länder to have similar legislative bodies.

Autonomy and Stability

Various provisions of the Basic Law protect the Bundestag from interference by other organs of government. Members are elected for four-year terms and entitled to “remuneration adequate to assure their independence.” In proper Burkean fashion, they are bound “only by their conscience.” For votes or debates in the Bundestag they may not be questioned elsewhere; they may be prosecuted or arrested only with the consent of the Bundestag; they may not be required to divulge information received in the course of their duties. To avoid undue bureaucratic influence, civil servants and salaried public employees may be required to resign their offices before assuming a seat in parliament. The Bundestag decides for itself when to adjourn and reconvene, chooses its own officers, makes its own rules, keeps its own order, and resolves disputes respecting the election of its own members—subject in the last instance to review by the Constitutional Court. In order to reduce its dependence on the executive for information necessary to the performance of its functions, the Bundestag has broad investigative powers. Finally, in contrast to some other parliamentary systems, the Basic Law sharply limits the power of the executive to dissolve the assembly.

Under the Weimar Constitution the Reichspräsident could dissolve the assembly at will, so long as he did not do so more than once for the same cause. The results were instability, external control of

parliament, and impairment of representative democracy. In reaction to this unsatisfactory state of affairs, Article 68(1) permits the Chancellor to bring about dissolution only if the Bundestag refuses his request for a vote of confidence, and then only if the President of the Federation (Bundespräsident) agrees.

The spirit of this provision was severely tested in 1982, when the Free Democratic Party (FDP), which held the balance of power in the Bundestag, decided to change horses in midstream—as in light of the express constitutional independence of the members it had a perfect right to do. Abandoning the coalition with the Social Democrats (SPD) which both parties had promised the voters during the 1980 campaign, the FDP joined the so-called Union parties (CDU and CSU) in voting to replace Chancellor Helmut Schmidt with the Christian Democrat Helmut Kohl. All of this was in complete accord with the plain terms of Article 67(1). The trouble began when the new coalition decided that it was desirable to hold new elections in order to obtain popular confirmation of the change.

The difficulty was that under Article 39(1) the next election date was two years away; the only practicable way to advance the schedule was to lose a vote of confidence under Article 68(1). So the coalition decided to do just that—to ask its own adherents to deny it their support. Picking his way carefully through the constitutional thicket, the President approved the Chancellor's ensuing request to dissolve the assembly, and the case went to the Constitutional Court.

Literally the requirement of Article 68(1) was satisfied: The Chancellor had lost a vote of confidence. But that, the Court responded, was not enough. The unmistakable purpose of the provision was to make dissolution more difficult, in the interest of parliamentary stability. Although the immediate aim of Article 68(1) was to prevent the executive from dissolving the legislature without its consent, the four-year term prescribed by Article 39(1) was meant to be the rule rather than the exception. Thus even if the Chancellor, the Bundestag, and the President all agreed, Article 68(1) permitted dissolution only if the political situation in the Bundestag was such that the Chancellor's "ability to govern" was "no longer adequately assured."

Nevertheless, the Court managed to uphold the dissolution . . . Laying great stress on the deference due to the political branches in evaluating the realities of political power, the Court concluded that their assessment was not clearly erroneous; there was no basis for finding that they had acted without substantive justification in order simply to advance the election.

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Supremacy

Article 20(3) of the Basic Law states the fundamental principle of statutory supremacy (Gesetzesvorrang): While the legislature itself is bound only by the constitutional order ("die verfassungsmässige Ordnung"), the executive and the courts are bound by law ("Gesetz und Recht"). Just what is meant by "Recht" in this provision is unclear, as we shall see. What is generally understood is that the reference to "Gesetz" requires other branches of government to respect statutes constitutionally enacted.

* * *

The principle of statutory supremacy was most severely tested in the notorious Soraya decision of 1973. Princess Soraya, former wife of the Shah of Iran, had brought an action for invasion of privacy, alleging that the defendants had written and published a fictitious interview in which she had purportedly revealed intimate details of her private life. The Civil Code expressly provided that damages for non-pecuniary injury could be awarded only in cases specified by statute. No statute authorized such damages for invasion of privacy, but the Federal Court of Justice (Bundesgerichtshof) held they could be awarded anyway. The defendants argued that the court had

disobeyed its constitutional obligation to respect the limitations imposed by the Civil Code; the Constitutional Court held the court had acted within its powers.

To an outside observer the Court of Justice seems indeed to have contradicted the statute. The Civil Code did not merely fail to authorize damages for emotional harm; it flatly forbade them in the absence of statutory authority, which admittedly did not exist. Indeed, the Constitutional Court began its discussion with a startling passage that seemed to suggest that the courts were not always bound by statute after all. By altering the traditional formulation so that judges were no longer bound simply by “Gesetz” but by “Recht” as well, the Basic Law had deliberately abandoned “a narrow statutory positivism.” “Recht” within the meaning of Article 20(3) was not coextensive with statutory law; under some circumstances it could include additional norms derived by judges from “the constitutional legal order as a whole” and functioning “as a corrective to the written law.” It followed, said the Constitutional Court, that the judges could fill gaps in the statutes “according to common sense and ‘general community concepts of justice.’”

So far, so good; no Anglo-American observer would expect a court to hold that the supremacy of statutes deprived judges of the power to make interstitial common law. The problem was that there seemed to be no gap to fill. To get around this difficulty, the Court proceeded to proclaim a most dynamic doctrine of statutory interpretation: As a codification grows older, the judge’s “freedom to develop the law creatively” increases. “The interpretation of a statutory norm cannot always remain tied to the meaning it had at the time of its enactment”; as social conditions and attitudes change, so under certain circumstances does the content of the law. In such a situation the judge may not simply take refuge in the written text; he must deal freely with the statute if he is to meet his obligation to declare the law.

This passage seems to come perilously close to saying that when a statute is perceived as outmoded a judge is under no obligation to follow it. Understandably, it has been severely criticized. As the Court’s rather cryptic opinion suggests, the root of the problem is Article 20(3)’s Delphic reference to “Gesetz und Recht.” Both terms can be translated as “law.” “Gesetz” tends to be the narrower and more technical term; it is commonly, though not exclusively, used in connection with statutes. “Recht” not only comprehends unwritten as well as written law; it often has the less positivist meaning of “justice.”

As the *Soraya* opinion suggests, one school of thought in Germany has been that the reference to “Recht” did more than broaden the categories of law that bound executive and judicial officers; in reaction to the calamitous positivism of the Nazi era, it bound judges in cases of conflict to follow justice rather than law. At a minimum, on this theory Article 20(3) constitutionalizes natural law by requiring the judge to reject fundamentally unjust laws. Some commentators have carried the argument further, as some language in *Soraya* seems to suggest: No law that is outmoded or misguided should stand in the way of a court’s reaching the just result.

The debates in the Parliamentary Council afford no evidence that the innocuous term “Recht” was intended to have any such sweeping consequences. As initially drafted, the provision would simply have bound executive and judicial officers to follow the law (“Gesetz”). The reference to “Recht” and the further provision binding the legislature to the constitutional order were added by what we would call the Committee on Style (Redaktionsausschuss) in order better to express “the rule of law as the foundation of the Basic Law.” The defense of the original formulation was purely stylistic: Nothing had been said about “the constitutional order” because it went without saying that all organs of government were bound by the Constitution. That the courts were also bound by law, the same speaker added, was equally obvious from the very nature of judicial activity: The judiciary’s sole task was “to apply and interpret the law.” To conclude that the ambiguous reference to “Recht” authorized judges (and presumably also administrators) to ignore constitutional statutes, it might be added, would contradict the plain command of the same sentence that they are bound by law

(“Gesetz”)—and all the fundamental policies of democracy, predictability, and separation of powers that underlie that provision as well.

However difficult it may be to reconcile the result in the *Soraya* case with the principle of parliamentary supremacy, the fact remains that the Court was careful to couch its reasoning in terms of statutory interpretation, not of any right to defy the legislature. Its ultimate conclusion, however strained, was that there was indeed a gap in the legislation that the judges could properly fill by devising a new common law rule. The new right to damages for intangible injuries attributable to the invasion of privacy, which served to promote the constitutionally protected interests in human dignity and the free development of personality, thus qualified as “Recht” within the meaning of Art. 20(3)— “not in opposition to but in elaboration and extension of the written law.”

Later decisions have given no support to any suggestion in *Soraya* that courts might have power to disregard misguided but constitutional statutes. In 1978, for example, the Constitutional Court made clear that a court could not constitutionally “correct” a statute providing for damages for wrongful deprivation of personal liberty by restricting recovery to cases of intentional wrong: “It is not the business of a judge who is bound by the statute and laws to cut back claims for liability that the statutes afford . . .” Whatever the authors of the earlier opinion had in mind, it seems clear today that both executive and judicial officers in Germany are bound by constitutional statutes, as Article 20(3) provides.

Exclusivity

Less obvious perhaps than the principle that legislation binds other organs of government is a second and almost equally fundamental corollary of the grant of lawmaking power to the legislature: its exclusivity. It should come as no surprise that in Germany, as in the United States, no one but the legislature may enact statutes. What may not be so obvious is that in many cases it follows that the executive may not act without statutory authority.

In Germany, as in the United States, this is not generally true of the courts. The one noncontroversial conclusion of the *Soraya* opinion was that Article 20(3) did not preclude the courts from creating common law when the statutes were silent. The authority to do so, the Court has persuasively argued, is implicit in the grant of jurisdiction to resolve disputes.

Various provisions of the Basic Law, however, preclude the courts as well as the executive from acting without statutory authority. Recognizing that even such fundamental values as freedom of expression and of movement must yield on occasion to overriding countervailing concerns, the framers of the Basic Law expressly provided that a number of the basic rights that document guaranteed could be limited—but in most cases only by or on the basis of statute.

But the principle that the executive may act only on the basis of statute is by no means limited to actions impinging on those basic rights which the Constitution expressly provides may be limited only on the basis of legislation. The general freedom of action (“allgemeine Handlungsfreiheit”) that the Constitutional Court has found in Article 2(1), for example, finds its limits according to the text of the Basic Law in “the rights of others, . . . the constitutional order, [and] the moral code”—a formulation that hardly seems restricted to acts of parliament. Nevertheless, the Constitutional Court has made clear that the requirement of legislative authorization applies to limitations of this freedom as well.

* * *

Article 20(3) is the provision that binds both executive and judicial officers to follow the law. On its face it does not appear to embody the additional requirement that they act only on the basis of law, though as the Court remarked both can be characterized as aspects of the rule of law

(Rechtsstaatsprinzip). The rule of law itself, while imposed on the constituent states by Article 28(1), is not expressly made applicable to the central government; it is often said to be implicit in the basic structural provisions of Article 20, or in the Basic Law as a whole. The subsidiary principle that liberty and property can be restricted only on the basis of legislation, which was created essentially out of whole cloth during the 19th century as a means of protection against the still autocratic executive, can perhaps best be explained as implicit in Art. 20(2), which enunciates the general principle of separation of powers.

* * *

This is the basic principle of separation of powers on which Justice Hugo Black relied in concluding that President Truman could not seize the steel mills without statutory authorization. It is the principle that Justice Jackson in the same case, contrasting Article II's requirement that the President take care that the laws be faithfully executed, convincingly traced to the due process clause: "One [clause] gives a governmental authority that reaches so far as there is law, the other gives a private right that authority shall go no further. These signify about all there is of the principle that ours is a government of laws and not of men." It is also a fundamental and undisputed principle of German constitutional law.

Nondelegability

In March 1933 the Nazi-dominated Reichstag enacted a statute (Ermächtigungsgesetz) authorizing Adolf Hitler and his Cabinet to govern by decree. Actions taken under this provision could be said literally to comply with any constitutional requirement that there be a statutory basis for executive action; the legislature had authorized the Reichsregierung to pass whatever laws it liked. Yet such an unlimited transfer of legislative power to the executive could scarcely be found consistent with the purposes of any such requirement, or with provisions vesting lawmaking powers in the popularly elected Parliament. As our own Justice Black observed not so many years ago, "Congress [like any other parliamentary body] was created on the assumption that enactment of this free country's laws could be safely entrusted to the representatives of the people in Congress, and to no other official or government agency."

Consequently, when the Germans turned to the task of drafting a new democratic constitution after the Second World War, they took care to prohibit the legislature from making any such sweeping transfer of authority in the future. In recognition of the obvious fact that legislators cannot be expected to regulate the details of every governmental program, Article 80(1) permits federal legislation to empower any federal minister, or the federal or state government as a whole, to promulgate regulations ("Rechtsverordnungen") having the force of law. It goes on to require, however, that the content, purpose, and extent ("Inhalt, Zweck und Ausmass") of the authorization be specified by the statute itself.

From a transatlantic perspective the Constitutional Court seems to have taken this provision very seriously. In its very first substantive decision, the Court struck down on the basis of Article 80(1) a provision authorizing the Minister of the Interior to adopt any regulations "necessary for the execution" of a statute respecting the rearrangement ("Neugliederung") of Länder in what is now Baden-Württemberg. In contrast to the practice of the Weimar period, said the Court,

[t]he Basic Law in this as in other respects reflects a decision in favor of a stricter separation of powers. The Parliament may not escape its lawmaking responsibilities by transferring part of its legislative authority to the executive [Regierung] without considering and precisely determining the limits of the delegated authority. The executive, on the other hand, may not step into the shoes of Parliament on the basis of indefinite provisions authorizing the promulgation of regulations.

The authorization before them, the Justices concluded, was so indefinite that it was impossible to predict when and how it would be employed or what the resulting regulations might say. It therefore failed to specify the content, purpose, and extent of the authority conferred, as the Basic Law required.

This decision by no means stands alone. In 1958, for example, the Court invalidated a delegation of power to adopt regulations “to compensate for the differential burdens imposed by the transfer tax” upon firms that were or were not vertically integrated (einstufige and mehrstufige Unternehmen). There were no generally accepted standards, said the Court, for determining whether a firm was vertically integrated; the statute left it to the executive to decide whether to achieve equalization by imposing a surtax on those firms the law favored or by reducing the tax on those it disadvantaged; indeed, the statute did not even require the executive to exercise its authority at all. The rule of law, the Court concluded, forbade the legislature to leave essential elements of the law (“das Wesentliche”) to be determined by regulation. The authorization had to be specific enough that one could determine from the law itself what might be demanded of the citizen; the legislature itself “must have made some conscious decision.”

If this seems a rather strict application of the non-delegation principle, other early decisions went even further. In 1962 the Constitutional Court struck down a grant of authority to prescribe average values (“Durchschnittswerte”) for “specific articles or groups of articles” for purposes of a compensatory use tax on imported goods, in lieu of determining the value of each individual item. In 1964 it struck down an authorization to define the statutory term “ton-kilometer” for purposes of determining the amount of a tax on the transportation of freight. In each of these cases one might have expected the Court to conclude that the lawmakers had left to the executive only the details of applying a policy that the legislature itself had determined.

The Court has not always been so hostile to delegation. In a leading 1958 decision the Justices went out of their way to salvage a delegation of authority to promulgate regulations by which “prices, rents, fees, and other charges for goods and services of all kinds, with the exception of wages, are established or approved, or price levels are maintained” Article 80(1) did not require, said the Court, that the content, purpose, and extent of the delegation appear expressly in the statutory text; resort could be had to such ordinary interpretive tools as purpose, context, and legislative history to illuminate the legislative will. The purpose of the statute, as suggested by the last clause of the passage just quoted, was to preserve the general level of prices prevailing at the time of enactment. Intended as a temporary measure looking toward reestablishment of a free market economy, the statutory authority could be employed only to fend off “serious distortions with consequences for the price structure as a whole.” Nor was the statute too indeterminate in specifying the content of the delegated authority, for in light of long practice the general authorization to adopt measures other than those fixing prices was construed to embrace only associated accounting and reporting provisions and equalization charges assessed on one category of providers for the benefit of another. Finally, the extent of the delegated authority was restricted by the limited purposes of the statute.

This decision bears an uncanny resemblance to our own price control case, *Yakus v. United States*, which contrary to popular rumor was not inconsistent with meaningful limits on delegation of legislative power in the United States. In each case the Court plausibly construed the statute in such a way that in administering it the executive was carrying out a legislative policy rather than imposing one of its own. In so doing the German Court expressly invoked the principle, familiar in both countries but not always taken seriously in delegation cases, that whenever possible a statute should be interpreted so as to make it consistent with the Constitution.

As recently as 1988, for example, the Court struck down a statute making it a crime to violate any condition of a permit for the erection, modification, or operation of broadcasting facilities. Because of the lack of meaningful statutory limitations on the authority to impose the permit conditions

themselves, the Court concluded, the statute “leaves it to the postal authorities to determine the elements of an offense by administrative action.” Since the statute contemplated the issuance of permits rather than regulations, Article 80(1) did not apply....

If the requirement that offenses be “defined by law” seems to say just what the Court said it meant, the requirement that imprisonment be “on the basis” of statute seems less clear. Article 12(1), for example, allows occupational freedom to be limited “by or on the basis of statute”; as the Court has acknowledged, this disjunctive formulation demonstrates that some delegation of authority is permissible. Moreover, the ubiquitous right to “free development of personality” guaranteed by Article 2(1) is limited not by statutes but by “the constitutional order,” which on its face does not seem to require that the legislature act at all. Nevertheless, the Constitutional Court has found that the non-delegation principle applies to measures limiting any of the fundamental rights protected by the Basic Law, even in cases outside the scope of Article 80(1).

To begin with, Article 80(1) applies only to federal legislation. The Court had little difficulty with this limitation; as a crucial ingredient of democracy and the rule of law, both of which Article 28(1) requires the constituent states to respect, the essence of Article 80(1) was applicable to the Länder as well. More interestingly, although Article 80(1) applies only to the delegation of authority to adopt regulations, the principle that it embodies has been held to apply to other delegations as well. For the doctrine that the legislature may not transfer its functions is understood as a corollary of the principle that the executive often may act only on the basis of legislation; both are aspects of a general reservation of legislative authority (“Gesetzesvorbehalt”) said to be implicit in the separation of powers and in the rule of law.

The seminal case was the familiar Price Control decision. The governing statute authorized the executive to accomplish its purposes by issuing individual administrative orders (“Verfügungen”) as well as regulations. That the provisions respecting individual orders did not fall within Art. 80(1), the Court declared, did not insulate them from constitutional limitations on delegation; here too the content, purpose, and extent of the delegated authority must be determined by statute. This conclusion was traced to three basic aspects of the rule of law: the principle (Art. 20(3)) that the administration is bound by law (Gesetzmässigkeit der Verwaltung), the separation of powers (Art. 20(2)), and the requirement (Art. 19(4)) that administrative action be subject to judicial review.

. . . The separation of powers argument . . . [by the Court] is strong. “If the authority of the executive is not sufficiently restricted,” said the Court, “then the executive is no longer executing the law . . . but making decisions in the legislature's place.”

In an important later decision, the Court effectively traced the non-delegation doctrine to the constitutional guarantee of democracy as well. By permitting restrictions of occupational freedom only by or on the basis of statute, the Court added, Article 12(1) made it basically the responsibility of the legislature “to determine which public interests are so weighty that the individual’s right to liberty must take second place”:

The democratic legislature may not abdicate this responsibility at its pleasure. In a governmental system in which the people exercise their sovereign power most directly through their elected Parliament, it is rather the responsibility of this Parliament above all to resolve the open issues of community life in the process of determining the public will be weighing the various and sometimes conflicting interests.

Thus the implicit constitutional restrictions apply when authority is delegated not only to federal or state executive officers but also to legislative committees, to public corporations, to local governments, and to occupational associations. In some of these instances the standards applied are less stringent, in light of the fact that the delegation may be said to promote self-government by

those most directly affected. Moreover, the requisite specificity varies with the degree to which the delegated authority impinges upon fundamental rights. Thus while the crucial right to choose one's occupation can basically be limited only by the legislature itself, the power to regulate the conduct of those engaged in an occupation may be delegated to a professional association. Even in the latter case, however, the legislation must set forth those provisions which "essentially [wesentlich] characterize the image of the professional activity as a whole."

The constitutional principle that emerged was neatly summed up in a major 1978 opinion upholding a grant of authority to license the construction and operation of a nuclear breeder reactor:

Today it is firmly established by the decisions that – without regard to any requirement of an incursion [into individual freedom] – in basic normative areas, and especially when the exercise of basic rights is at stake, the legislature is required . . . to make all essential decisions itself [alle wesentlichen Entscheidungen selbst zu treffen] . . . Articles 80(1) and 59(2) of the Basic Law, as well as the specific reservations of legislative power [in the catalog of fundamental rights] are particular instances of this general reservation [dieses allgemeinen Gesetzesvorbehalts].

The decisions are numerous and not all easy to reconcile. They document the difficulty and uncertainty of administering a requirement that is necessarily a matter of degree . . . For over the years the Constitutional Court has devoted itself diligently to the task of assuring that major policy decisions respecting the content of the law are made by the representative and popularly elected legislature, as they should be in a republican democracy . . .

EXECUTIVE POWER

The principal focus of 19th century constitutionalism in Germany was on democratization of the legislative process. Even the visionary Frankfurt Constitution of 1849 (Paulskirchenverfassung), which would have divided legislative authority between a council of states (Staatenhaus) and a popularly elected assembly, envisioned as head of state a hereditary Kaiser who would exercise executive powers through ministers of his own choosing. Thus this first step toward democracy, which was carried forward in Bismarck's 1871 Constitution, brought with it a significant separation of powers: The people had an increasing say in the making of laws, but it was still the monarch who enforced them. The Weimar Constitution, adopted after the First World War, democratized the executive too but in so doing significantly diminished the separation of powers by making executive ministers dependent upon the popularly elected parliament. At the same time, however, that Constitution vested in an independently elected President (Reichspräsident) extensive powers, not least the authority to take extraordinary measures whenever there was a serious threat to security or public order. In fact, this authorization enabled the President to rule much of the time without the interferences of Parliament, which he freely dissolved under another express constitutional provision.

In conscious response to the imperial tendencies of popularly elected Presidents during the Weimar period, the present Basic Law opts for a parliamentary system without a strong independent executive, thus further reducing the separation of powers.

The President, the Chancellor, and the Cabinet

The Federal Republic does have an independent President (Bundespräsident), but he is not elected by the people, and he performs a largely ceremonial role. Formally it is the President who represents the Federal Republic in its relations with other nations and concludes treaties, who appoints cabinet ministers, judges, and other federal officials, and who exercises the power to pardon offenses. Most of his acts, however, require ministerial approval, which means that he cannot act on his own. Moreover, in most cases the President has no discretion to decline to act

either, but rather a duty to endorse whatever lawful course of action the political branches of government propose. In some instances, this duty is made clear by the constitutional text; in others it is said to be implicit in the decision to reject the Weimar model.

On the other hand, like other officials, the President is bound by the Constitution and, except when participating in the legislative process, by other laws as well. Accordingly, it has been argued that he has both the power and the duty to refuse to endorse any governmental action contrary to law, and thus that he must review the legality of every executive or legislative act he is requested to approve.

This issue has been extensively debated in the context of Article 82(1)'s requirement that "laws enacted in accordance with the provisions of this Basic Law" be certified or authenticated ("ausgefertigt") by the President. Central to the President's action is the largely technical certification that the published text corresponds to an actual legislative decision; it is clear that he has no right to veto a measure on purely policy grounds. On the other hand, the language of the provision is generally understood to permit the President to refuse to certify a statute that has not been adopted in accordance with the procedural requirements of the Basic Law. Whether he may also reject a statute on the ground that it offends substantive constitutional requirements is disputed, but Presidents have done so on rare occasions.

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In a few instances, moreover, the President does exercise a discretion of his own. It is said, for example, that he does so in pardoning offenders, in establishing national symbols, and in calling the Bundestag into special session. Most important in this connection, however, are the powers of the President in times in which the normal political process has broken down. If the Bundestag cannot muster a majority for the election of a Chancellor, the President decides whether to accept a minority candidate or to dissolve the Bundestag and precipitate new elections. If the Chancellor upon losing a vote of confidence seeks to dissolve the Bundestag, it is the President who decides whether to do so. If he decides not to order new elections in this situation, it is he (on application of the Cabinet with Bundesrat consent) who decides whether to declare a legislative emergency ("Gesetzgebungsnotstand") permitting the Cabinet and the Bundesrat to put a law into force without Bundestag action. In all these instances the Basic Law employs the permissive word "may" ("kann") or its equivalent, and it is understood that the President exercises his own discretion in determining what action to take.

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Though formally appointed by the President, the Chancellor is elected by the Bundestag, and as a practical matter it is he who selects the other ministers. Under Article 67 the Bundestag can remove the Chancellor and with him his ministers – at any time and for any reason, but only if it simultaneously names his successor. The purpose of this provision is to guard against the risk of an executive vacuum while ensuring ultimate parliamentary control.

Thus in theory the Bundestag can determine the direction of executive policy through its power to select and replace the Chancellor, and it has broad investigative powers to enable it better to perform its oversight function. In practice, it is often said, the situation tends to be reversed: By virtue of its superior access to information and its influence on the dominant political parties, the Cabinet effectively determines legislative policy. In any event, there is far less structural separation between the legislature and top executive officers in the Federal Republic than there is in the United States.

Within the Cabinet, the Chancellor determines the general principles ("Richtlinien") of executive policy. Within these principles, however, each minister conducts the affairs of his department autonomously and on his own responsibility ("selbständig und unter eigener Verantwortung"). Many significant powers, moreover, are given not to any individual minister but to the Cabinet as a

whole. Thus the executive power is not only less independent but also less centralized in Germany than it is in the United States, although the Chancellor can exercise ultimate control through his power to set guidelines and effectively to hire and fire other Cabinet members. In so doing, of course, the Chancellor himself is subject to the threat of replacement and thus to a measure of parliamentary control.

The Limits of Parliamentary Control

Despite the structural symbiosis inherent in the parliamentary system, Article 20(2)'s insistence that legislative and executive powers be exercised by distinct governmental bodies is not without significance. In the first place, at the fundamental level, there are limits to the methods by which the legislature may exercise control over executive actions.

As a minimum, Article 20(2) must mean that the Bundestag cannot itself execute the laws. Nor, as a general rule, can it tell the executive how to exercise its authority in a particular case; the parliament controls policy at the wholesale rather than the retail level by passing laws and by replacing the Cabinet.

* * *

A variety of structural principles, moreover, further limit the degree of parliamentary control over the actual administration of the laws. As already indicated, the Bundestag can remove individual ministers only by removing the Chancellor, and it can do that only if it chooses his successor at the same time. In addition, there are significant limits to the authority of the Cabinet itself, and correspondingly to the indirect authority of Parliament, over the administration (Verwaltung).

Even in those areas in which federal laws are administered by federal agencies directly responsible to one or another ministry, some structural autonomy is provided by Article 33, which requires that most public servants be selected without regard for their political inclinations and that the public service be conducted with due regard for the traditional principles of the professional civil service ("unter Berücksichtigung der hergebrachten Grundsätze des Berufsbeamtentums"). These principles embrace appropriate remuneration (including pensions and allowances for child support) and even titles, the right to a hearing before discharge, and above all (in most cases) protection against dismissal without cause.

Because these provisions preserved the special privileges of public officers that allied authorities had worked hard to eliminate, they were viewed as a victory for the civil servants' lobby. As the Constitutional Court has emphasized, however, they also serve the broader and more important purpose of promoting the rule of law by limiting political influence on the execution of the laws. Of course the politically responsible ministers exercise extensive control over the administration through their authority to appoint and instruct inferior officers. In most cases, indeed, civil servants are expected to accept their superiors' decisions as to the legality of their orders. The official's ultimate responsibility, however, is to the nation, not to a particular government; and in the extreme case he may even have a duty to resist illegitimate instructions.

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To the extent that federal agencies are free from ministerial direction, however, they are also relatively free from parliamentary interference. More significantly, additional structural separation between legislative and executive authority is provided by Article 83's requirement that most federal laws be carried out by the Länder.

. . . the Cabinet is given a variety of tools for ensuring that the Länder actually fulfill their enforcement duties. Outside those few areas in which the Länder enforce federal laws as agents of

the Federation (“im Auftrag des Bundes”), however, direct federal supervision is basically limited to ensuring the legality of administrative action rather than controlling the exercise of discretion in particular cases. Moreover, the most effective of these tools can be employed only with the consent of the Bundersrat—that is, by a weighted vote of the states themselves. Thus in Germany the vertical principle of federalism compensates to a significant extent for the lack of horizontal separation of powers that inheres in a parliamentary system. Since Länder agencies are generally subject to direction by ministers responsible to the state Parliament, it does so—in contrast to the creation of independent federal agencies—without impairing the important principle of democratic control.

In short, while there is less structural separation between the legislature and high executive officers in the Federal Republic than in the United States, those officers have less power over the administration than their counterparts in this country. Executive authority is divided among the Cabinet, the civil service, federal agencies and institutions outside the normal administrative hierarchy, and the Länder in such a way that the Bundestag has much less influence on those who actually enforce the law than one might expect in a parliamentary system.

JUDICIAL POWER

Unlike the executive, the German courts are independent. Indeed, in several respects their power to act as a check on abuses of authority by other organs of government is better protected than that of courts in the United States.

. . . German courts are organized by subject matter. The Basic Law provides for a Federal Constitutional Court (Bundesverfassungsgericht) and for a series of specialized federal supreme courts (“oberste Gerichtshöfe”) in the fields of administrative law (Bundesverwaltungsgericht), taxation (Bundesfinanzhof), labor (Bundesarbeitsgericht), and social security (Bundessozialgericht), as well as a more general supreme court for other civil and criminal matters (Bundesgerichtshof). With few exceptions, moreover, there are no lower federal courts. Just as most federal laws are administered in the first instance by state executive officers, most lawsuits based on federal law are brought initially in state courts, which are likewise organized on subject-matter lines. In the United States such an arrangement would raise fears both of distracting litigation over jurisdictional boundaries and of inadequate enforcement of federal rights. In Germany neither seems to have been a problem.

* * *

Judicial Independence

With respect to the courts, the general separation of powers principle of Article 20(2) is reinforced by Article 92’s flat statement that judicial authority is vested in judges of the various courts and by Article 97(1)’s unequivocal command that the judges be independent and subject only to law (“unabhängig und nur dem Gesetz unterworfen”). The requirement that judges follow the law forbids them to play favorites or to impose their own personal preferences. The requirement of independence protects them against outside influence, especially by other branches of government.

Perhaps the most fundamental dimension of judicial independence is the organizational command of Article 20(2) that legislative, executive, and judicial functions be vested in distinct bodies (“besondere Organe”). This not only means that no legislative or executive agency may exercise judicial functions as such; it also limits the ability of the same individual to serve simultaneously as both legislator or administrator and judge. Article 94(1) makes this incompatibility principle explicit as to members of the Constitutional Court; as to other judges the Court has found its core implicit in Article 20’s general requirement of separate judicial institutions....

No less obvious is the conclusion that Article 97(1) affords the judges what the Germans call substantive (*sachliche*) independence: They are subject to no one else's orders. Article 101(1) contains two further provisions designed to preclude either the legislature or the executive from affecting judicial decisions by determining which judges will hear a particular case. Ad hoc courts (*"Ausnahmegerichte"*) are flatly prohibited, and no one may be removed from the jurisdiction of his lawful judge (*"seinem gesetzlichen Richter entzogen werden"*). The latter provision, though hardly self-explanatory, requires among other things that both jurisdiction and the assignment of judges within a multimember tribunal be fixed in advance as nearly as practicable—all in the interest of reducing the risk of outside influence on judicial decisions.

To make the guarantee of substantive independence a reality, however, the judges must be personally independent as well. Other provisions of the Basic Law help to specify just what this means.

Not surprisingly, the judges are not free from political influence with respect to their appointment. In a country in which all power emanates from the people, the judges like other public servants require democratic legitimation. In recognition of the political significance of the Constitutional Court's decisions, half of its members are chosen by the Bundestag and half by the Bundesrat, which represents the state governments. Judges of the five supreme courts are selected by the federal minister with responsibility over the subject matter in conjunction with a committee (*"Richterwahlausschuss"*) on which the respective state ministers and the Bundestag have an equal voice. The appointment of state-court judges is regulated by the *Länder*, subject to more or less general principles that may be laid down in federal framework legislation (*Rahmengesetze*) and to Article 28's requirement that they respect the principles of "republican, democratic, and social government based on the rule of law."

Once appointed, however, the judges enjoy a significant measure of job security. In contrast to federal judges in the United States, who can be removed under extraordinary but unreviewable circumstances by the Senate, most German judges can be removed, suspended, transferred, or retired during their term of office only pursuant to the decision of other judges....

In respect to the grounds on which judges may be removed or retired, the German Constitution is plainly less protective. The permissible grounds are not specified in the Basic Law itself. Article 97(2) requires that they be determined by statute, but they may also be altered by statute subject once again, one assumes, to the fundamental requirement that they not be such as to impair the independence of the judge.

Somewhat less satisfactory in terms of judicial independence are the provisions respecting the term of office itself. Unlike Article III of our Constitution, the Basic Law does not prescribe life tenure expressly, and Article 97(2)'s explicit provision authorizing the legislature to fix a retirement age for those judges who are appointed for life forbids the conclusion that it does so by implication. The current statute provides that members of the Constitutional Court – unlike most federal judges, who serve until they reach the age of 65 – be appointed for a term of twelve years, with no possibility of reappointment. The abbreviated term is designed (at some cost in terms of lost experience) to avoid too great a gap between the Court and the country, the ban on a second appointment to eliminate the incentive to curry popular favor. If these prescriptions were written into the Constitution, they might be entirely adequate; there is more than one way to achieve judicial autonomy. Yet the legislature may revise the criteria at any time, and it has done so more than once. To shorten the terms much further, or to permit reappointment, as was done at one time, might significantly impair the independence of the judges.

Nor does the Basic Law expressly regulate either the number of judges or the amount of their compensation. Hamilton's basic insight that "a power over a man's subsistence amounts to a power over his will" persuaded our Framers to forbid diminution of judicial salaries; Franklin Roosevelt's attempt to pack the Supreme Court with Justices of his own persuasion graphically exposed the

dangers of their failure to fix their number. The Basic Law gives the legislatures authority over both the composition of the courts and the legal status of their judges.

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Judicial Review

The Basic Law does not leave judicial review to implication. As already noted, Article 19(4) guarantees judicial review of administrative action to anyone whose rights are infringed by public authority. In contrast, despite Chief Justice Marshall's famous dictum about the importance of the right to redress, the Supreme Court has never held that our Constitution requires judicial review of administrative action as a general matter. Moreover, it follows from the language and purpose of Article 19(4) that the reviewing court must determine both the law and the facts *de novo*; for otherwise it could not determine whether the complainant's rights had been denied.

Indeed, in suggesting on several early occasions that the courts must also exercise independent judgment in applying the law to the facts the Constitutional Court may have gone further in this direction than the Basic Law warranted. For the use of imprecise statutory language (“unbestimmte Rechtsbegriffe”) may indicate a legislative desire to leave the details of regulatory policy to administrative discretion, and Article 19(4) seems to say nothing about the breadth of discretion that may be conferred on an executive agency. In providing a remedy for infringement of legal rights it helps to effectuate Article 20(3)'s command that the administration follow the law, and the law ends where discretion begins. More recent statements by the Court appear to acknowledge this limitation.

Despite its apparently all-encompassing reference to persons whose rights are infringed by public authority (“die öffentliche Gewalt”), Article 19(4) has been held to provide redress essentially only to victims of executive action. Ever since the beginning, however, the statutes have authorized anyone whose constitutional rights are invaded by any branch of public authority to file a constitutional complaint (“Verfassungsbeschwerde”) with the Constitutional Court, and since 1969 this remedy has been anchored in the Basic Law itself (Article 93 I Nr. 4a). Though the language of this provision is no broader than that of Article 19(4), it was plainly intended to provide a remedy for unconstitutional legislative and judicial as well as administrative action, and it has consistently been so applied.

There is no comparable provision in the U.S. Constitution. Even the incidental power of judicial review announced in *Marbury v. Madison* ensures only that the courts may not be used to help carry out unconstitutional laws; it provides no guarantee of judicial intervention to protect the citizen from unconstitutional actions taken outside of the courts. Incidental review of the constitutionality of statutes sought to be applied in ordinary litigation in Germany (“konkrete Normenkontrolle”) is assured by Article 100(1), which requires that other tribunals refer such questions to the Constitutional Court if they believe a statute invalid. The Constitutional Court's monopoly of the power to declare statutes unconstitutional expresses respect for the dignity of the legislature and adds legitimacy to the judicial determination; it also serves to promote uniformity and to reduce the risk of an erroneous or uninformed decision.

The constitutional provisions for constitutional and administrative complaints, as noted, go further. Moreover, they are subject to no implicit limitations based on sovereign immunity, which would contradict their assurance of a remedy in whole or in part. On the contrary, Article 34 goes so far as to guarantee that the courts will be open even to claims for money damages against the state itself for injuries caused by violations of official duties – a type of claim that lies at the core of sovereign immunity in this country and that the Supreme Court has never allowed in the absence of statute.

An even sharper contrast between the German and American systems of judicial review, however, is provided by a series of provisions in Article 93(1) of the Basic Law authorizing a variety of proceedings between governmental bodies that would not meet prevailing standards for a justiciable

“case” or “controversy” in the United States. These proceedings include contests between various branches of the federal government (“Organstreite”), between the Federation and the individual states (“Bund-Länder Streitigkeiten”), and between two or more states (“föderalistische Streitigkeiten”) over the limits of their respective powers. These provisions reflect the entirely plausible conviction that a governmental body itself is the most appropriate party to argue against any encroachment on its authority; they squarely repudiate the peculiar limitations on government standing erected by the Supreme Court in such cases as *Massachusetts v. Mellon*.

Most foreign to the United States experience is the provision in the second clause of Article 93(1) for what is familiarly known as abstract judicial review (“abstrakte Normenkontrolle”), by which the Constitutional Court is authorized to resolve “differences of opinion or doubts” respecting the constitutionality of federal or state legislation. As the term itself suggests, abstract judicial review is not based upon the concrete facts of a particular case; the Constitutional Court determines the validity of a challenged statute on its face. Nor, strictly speaking, is there any requirement of adverse parties. The implementing statute does provide that jurisdiction lies only if one governmental body (or one third of the members of the Bundestag) believes a statute enacted by another invalid, and other bodies likely to disagree with the complainant's position have a right to be heard; the likelihood that both sides of the question will be presented is therefore great. Moreover, the text of the Basic Law makes clear that only laws actually adopted can be subjected to abstract review; the Court cannot determine whether a mere proposal for legislation would be constitutional if enacted. Once an abstract review proceeding is begun, however, it is not necessarily mooted either by withdrawal of the complaint or by expiration of the challenged law – at least when, to use the terminology of our Supreme Court, the issue is one capable of repetition but otherwise evading review. Moreover, in contrast to the various intergovernmental controversies noted above, the entity attacking a law need not be asserting an infringement of its own constitutional rights or powers; often its contention is that the law invades individual rights.

Indeed, a large percentage of the abstract judicial review proceedings have been filed by members of the opposition in the Bundestag, as Article 93 expressly permits; the party that loses in the legislative process commonly pursues the controversy before the Constitutional Court. The same thing often occurs in Organstreit proceedings between branches of the central government, since a parliamentary caucus (Fraktion) is entitled to assert the rights of the Parliament itself. Accordingly, the provisions for intergovernmental controversies, and especially the provision for abstract judicial review, have been criticized as casting the Court into the heart of the political process. Yet the questions the Court must decide are inherently of political significance, and it can be argued that it is only appropriate that it be given full authority to decide them. Abstract judicial review can thus have been defended as assuring the airtight (“lückenlose”) system of judicial review that the rule of law is said to demand; perhaps more than any other avenue of relief it epitomizes the role of the Constitutional Court as guardian of the Constitution (“Hüter der Verfassung”).

In accordance with this point of view, it is commonly said that German law knows no equivalent of our political question doctrine: All constitutional questions presented must be decided by the Constitutional Court. Whether the law is otherwise in this country may be a matter more of semantics than of substance. It is entirely consistent with a judicial duty to say what the law is to conclude that the law commits a particular issue to the discretion or determination of another branch of government. The German Court has done so a number of times, and it is not clear that our political question doctrine means anything more. In one important respect, however, the German approach is quite convincing: A refusal to decide “political” questions that the Constitution does not commit to other branches would indeed be difficult to reconcile with the basic principle of judicial review.

Finally, whatever other indirect weapons other branches may have at their disposal for counteracting decisions of the Constitutional Court, it is clear that they cannot undermine judicial review by enacting statutes that limit the Court's jurisdiction. In the United States scholars

determined to assure a meaningful check on unconstitutional legislation have struggled for decades to prove that Article III's provisions giving Congress authority to define federal jurisdiction mean less than they plainly say; in Germany every avenue of judicial review mentioned above is expressly guaranteed by the Constitution itself.

It is true that the Basic Law can be amended by a process significantly less demanding than that prescribed in the Constitution of the United States. Indeed, in the aftermath of the radical activities of the late 1960's Article 10 of the Basic Law was amended to permit the preclusion of judicial review of the legality of postal and electronic surveillance measures in certain national security cases. The Constitutional Court in a controversial split decision managed to uphold this amendment against the argument that Article 79(3) protected human dignity, the separation of powers, and the rule of law even from constitutional amendment, but only after insisting that the case was exceptional and that the alternative tribunal to which the review function was entrusted be as independent as the courts themselves.

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Assefa Fiseha, "Legislative–Executive Relations in the Ethiopian Parliamentary System: Towards Institutional and Legal Reform" in Jaap de Visser et al. (eds), *Constitution-Building in Africa* (Nomos Verlagsgesellschaft, 2015) 239. Footnotes omitted.

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The EPRDF has controlled Ethiopia's parliament for four consecutive elections since 1995; in none of these elections has the opposition posed a threat. While this would seem likely to lead to a situation in which EPRDF MPs would be relatively autonomous, parliament has, on the contrary, remained a weak institution unable to monitor the executive, and, save for the 2005-2010 term... less than vibrant in representing voters' concerns.

Two explanations for this are the excessive use of party discipline and the hegemonic nature of the ruling party. Excessive party discipline, rather than party cohesions, requires MPs to support the government no matter what the circumstances, thereby undermining parliament's role in holding the government accountable and, in the worst case, turning it into a rubber-stamp institution serving as a mouthpiece for the executive. Where MPs might otherwise be compensated for this through heightened intraparty democracy, party documents suggest that the EPRDF has problems in this regard owing to its practice of 'democratic centralism'.

According to one such document, 'members of the ruling party in parliament or in other places shall have the right and the duty to support the party's policy and decisions'. What is noteworthy is that the need for an MP's complete loyalty to the party is in no way linked to any perceived threat of government collapse or to the size of the ruling party in parliament. Indeed, the document states that should MPs experience a contradiction between the party's policy and their own conscience, they have the option of leaving the party. By implication, if the party's policy and decisions are in contradiction with those articulated in parliament, then the former prevails over the latter.

While parliament's supremacy over the executive is stipulated in the constitution, in practice 'democratic centralism' seems at odds with an autonomous, sovereign legislature. (...) Lower-level party members must accept decisions made by the higher level (hence 'centralism'); though this does not rule out the possibility of grassroots participation and influence over the higher levels of party structure (hence 'democratic'), in practice whatever comes from the political leadership must be obeyed at all costs. In short, it is 'centralism with little or no democracy'.

If this is so, it suggests something of the nature of intraparty democracy in the EPRDF in particular and political parties in general. Since the mid-twentieth century, these have become key institutions of democracy, making it critical to understand their internal politics and the impact thereof on the wider polity.

In Ethiopia the Party is omnipresent: both within the party and parliament, voting is more a matter of organisational coercion than of democratic decision-making process. Operating under party discipline, MPs are consequently not free agents but instruments of party preferences as determined by party leaders. In effect, the MP's mandate as trustee is 'expropriated', with the executive occupying the apex of a triangular hierarchy and the legislature and judiciary, the bottom corners. The legislature is replaced in position by the executive; parliamentary supremacy is replaced by cabinet predominance. As [Kassahun Berhanu, 2005] aptly remarks:

[T]he Ethiopian Parliament has consistently depicted a feature of dependence on mainstream centres of power to which it is inextricably linked. ... Successive Ethiopian Legislatures have increasingly been subservient to the wielders of power, notably the political executives.

* * *

Questions and Discussion

1. Do you think that the African constitution framers made the right decision transplanting the constitutional structures of their former colonial masters?
2. The South African constitution restricts the president not to pick more than 2 cabinet ministers from outside the national assembly. However, the Ethiopian constitution does not place such a restriction on the prime minister and the latter is free to pick as many cabinet ministers as he/she desires from outside the two federal Houses. Which of the two systems seem preferable to you?
3. Professor Fombad presented very interesting detailed analysis of the mechanics of separation of powers and relationships designed in the constitutions of the African states he discussed. Assess the separation of powers as well as the relationships between the organs of state arranged in the Ethiopian Constitution by using the three comparison frameworks that Fombad has developed and used.
4. After having read David Currie's article, identify the main features of the German system of separation of powers.
5. Compare the basic tenets of the German system's separation of powers with that of the Ethiopian system. If you were to redraft the Ethiopian Constitution, which separation of powers rules and institutional relations would you take from the German constitution and place in the Ethiopian Constitution? Why?
6. Professor Ackerman believes that parliamentary forms of government in general, and the German one in particular, have an admirable system of checks and balances between the political branches and in this regard secures better governance than the presidential system. He takes the U.S. example to show the problems of presidentialism. Evaluate his points, and state why you agree or disagree with him.
7. Does the Ethiopian constitution require a separation of government powers as the German constitution does? Which Constitutional provisions are directly or indirectly relevant for answering this question?
8. The president of the Republic in Ethiopia is not placed under the executive organ. Does this mean that the president is a fourth branch of government? Compare the Ethiopian federal president with the German one. Do you go for elevating the Ethiopian presidency to something like the Germany's? State your views by taking into account the practicality of the German

style presidency in Ethiopia, and what changes must be made in the Constitution if we are to make the changes.

9. Professor Currie has argued that the German courts have engaged in a bit of law making by setting aside the long tradition of the civil law legal system in which the judiciary must decide within the premises of the written law. In the *Soraya* case, the courts sought to reinterpret the law from justice's point of view to award damages for emotional injury that were clearly prohibited by the German civil code. Do you think the Ethiopian courts could and should do the same things if and when faced with similar situation? Look at the question in light of the constitutional provisions on the judiciary, and justify your opinion.
10. Another noteworthy discussion by Currie relates to the delegation of legislative power to the executive. The German Constitution expressly prohibits an unlimited delegation of legislative powers to the executive. This in fact was engendered by the horrific experiences the country had under Hitler. As Currie says this entrenchment has helped to control the power of the executive. Do you think we can draw a parallel with this in the case of the Ethiopian Constitution? Look closely at the constitution and discuss the question.
11. Professor Assefa Fiseha has pointed out that for many reasons that he discussed in the paper, during the EPRDF's tenure, the relationship between the political branches in Ethiopia was such that the balance heavily tilted towards the executive. As you know, since April 2019, the EPRDF has morphed into Prosperity Party (PP). The PP is organized in such a way that its members come from all the regions of the federation (now 11) all the regions of the federation. Again as you know, at present, the TPLF refused to morph into PP and retreated to Tigray, not only as an ideological opposition but also engaged in war with the central PP-led government. In the 2021 (delayed) general elections, PP won most of the seats at both the federal HoPR and the 9 regional councils (election in the Beneshangul-Gumuz region has yet to be held due to security problems while in Tigray, the TPLF controls the region and the federal government did not have control over the region during the 2021 general elections. Having observed the Ethiopian parliament (HoPR) since 2019, do you notice any change in its power-relation with the executive from what Assefa described under the EPRDF? Discuss the key determinants of change in the relationship between political branches.

2. Organs of State

a. The Legislature

[The legislature is a popular assembly that is constituted, in modern democracies, through election of most, if not all of its members in regular periodic elections. Given a democratic free and fair election, a legislature will be the powerhouse of popular representation and decision-making. The powers legislative assemblies wield depend on forms of government, and a host of other things. For example, in a parliamentary form of government, as it has been pointed out before, the legislature is the pinnacle of political power with the power to fire the chief executive, and force out members of the cabinet as it deems needed. Legislative assemblies can be one-house or two-house. In two-house assemblies, we have job-division between the chambers, often the lower house being a direct representative of the people while the upper house represents different organized groups within the society (like states or provinces in a federal system; ethno-national groups in the case of the House of the Federation in Ethiopia, etc.). In the parliamentary form of government, the lower house in addition is normally more powerful and is more directly concerned with the executive than the upper house. That said, we must be able to note now that there are no two parliaments that are wholly alike, and that political systems design their legislative chambers in different ways. The following excerpt from a publication of the IPU discusses the relationship between chambers in bicameral systems.]

Relations between Chambers in Bicameral Parliaments Taken from on-line Publications of IPU; available at:
<https://www.asgp.co/sites/default/files/documents//FGFGEMCMGZLNAHICPNFRLXQTDEMXX.pdf> (last visited on 1 May 2022)

[Introductory Note by the House of Commons of Canada, June 1991]

In any bicameral parliament the two Houses share in the making of legislation, and by virtue both of being constituent parts of the same entity and of this shared function have a common bond or link. The strength or weakness of this link is initially forged by the law regulating the composition, powers and functions of each Chamber, but is tempered by the traditions, practices, the prevailing political, social and economic climate and, indeed, even the personalities which comprise the two Chambers.

Given all of these variables and all of the possible mutations and combinations of bicameral parliaments in general, no single source could presume to deal comprehensively with the whole subject of relations between the Houses in bicameral parliaments. Instead, the aim of the present notes is to attempt to describe some of the prominent features of relations between the two Houses of the Canadian Parliament with a view to providing a focus for discussion.

The Canadian Context

The Constitution of Canada provided in clear terms: “There shall be One Parliament for Canada, consisting of the Queen, an Upper House styled the Senate, and the House of Commons.” The Senate, which was originally designed to protect the various regional, provincial and minority interests in our federal state and to afford a sober second look at legislation, is an appointed body with membership based on equal regional representation. Normally the Senate is composed of 104 seats which are allotted as follows: 24 each in Ontario, Quebec, the western provinces (6 each for Manitoba, Saskatchewan, Alberta and British Columbia) and the Maritimes (10 each in Nova Scotia and New Brunswick and 4 in Prince Edward Island); six in Newfoundland and one each in the Yukon and Northwest Territories. There is provision in the Constitution for the number of Senate seats to be increased to 112 in certain circumstances and in September 1990 this provision was invoked for the first time. Formerly, Senators were appointed for life; however, now, they must retire at age 75.

With 295 members, the elected House of Commons, whose representation is based on population, is almost three times as large as the upper House. The strength of numbers, the popular mandate and the fact that the Government is responsible to the House of Commons are all factors which might lead a casual observer to label the lower House the preponderant Chamber. However, the parliamentary dialectic is not much concerned with the relative strength or weakness of the Chamber as with participation of its constituent parts in the working out of its purpose. The working out of the parliamentary purpose provides numerous instances of interaction and this interaction is perhaps best illustrated in the legislative process.

The Legislative Process

These two Chambers so different in composition are nonetheless endowed, in principle at least, with identical legislative powers except that bills for appropriating any part of the public revenue or for imposing any tax must originate in the House of Commons. In fact, most public bills, particularly Government bills, are introduced in the House of Commons not only because they have financial implications but also because the Cabinet Ministers responsible for government legislation are usually Members of the elected House and choose to launch their legislative proposals in person in their own Chamber. Senators may be appointed to the Cabinet and hold portfolios but, with the exception of the Leader of the Government in the Senate, this is not often done. There is also

provision for Cabinet Ministers to appear before the Senate to explain and defend their legislative initiatives, but this provision, too, is infrequently resorted to. Private bills on the other hand are most commonly, almost exclusively, introduced in the Senate. This is because the fees required to be paid by promoters of private bills by the Rules of the Senate are much less than those exacted by the House of Commons.

The procedural rules of the two Chambers require public and private bills to go through a number of stages before they become law. An identical text must be agreed upon by both Houses. Typically, the completion of the process, whether by total acceptance of the proposed text or by amendment in one House, is transmitted to the other House by means of a Message. Messages, which are the principal devices used to formally communicate between the Houses, take on an interesting aspect in the case of contentious legislation. Here, the process of securing agreement between the two Houses can be of indeterminate duration. It is a distinguishing feature of the Canadian parliamentary system that there is no parliamentary, procedural or constitutional mechanism to terminate an impasse and to compel either House to pass legislation with which it strongly disagrees. Although the possibility of resolving conflicts by means of a Conference is provided for in the written rules, this has not been used in the Canadian context since 1947 and indeed is considered by many observers to be archaic.

When the two Houses have completed their consideration of a bill and have agreed to an identical text, the bill will be given Royal Assent, the act whereby the Crown (Queen's representative) concurs with the two Houses in passing a bill and thereby converts it into an Act of Parliament. The ceremony of Royal Assent provides the final occasion on which the two Houses formally interact concerning the passage of legislation. In a practice unique to Canada among Commonwealth Parliaments, the three constituent parts of Parliament (Crown, Senate, House of Commons) join to witness this ceremony on all occasions.

Joint Committee

Another occasion for less formal but more intense interaction is presented by the participation of Members of both Houses on Joint Committees. These committees may be appointed under the written rules of each House (Standing Joint) or they may be created by special resolutions of the two Houses (Special Joint). The Standing Joint Committee on the Scrutiny of Regulations, for example, has a statutory mandate to review and scrutinize statutory instruments and has a reputation for distinguished, independent action in this respect.

The motion to establish a Special Joint Committee may be initiated by either House and once adopted is transmitted by Message to the other Chamber seeking its concurrence. Such committees, which are a favoured vehicle for constitutional matters, are a unique form of joint endeavour.

Joint Resolutions

In a similar manner, the adoption of joint resolutions also allows the two Houses to express a common view. By the adoption of such resolutions, the two Chambers can and have signified their co-operation and solidarity in reaction to major international events, conflicts or wars, constitutional matters, matters touching upon the monarchy and trade agreements. In these cases, the motion is initiated in one House and upon adoption is transmitted to the other Chamber by Message with a request that the other Chamber join with the initiating Chamber in expressing its opinion. The impetus for some joint resolutions is clearly statutory. Some statutes provide for regulations to be subject to affirmative or negative resolutions of Parliament; others provide that some statutory provisions may be either continued or discontinued or allowed or disallowed by means of joint resolutions of both Houses. Finally, some statutes stipulate that certain committees of both Houses should undertake specific reviews and these require joint resolutions for their implementation.

The Senate and House of Commons play a special role in the appointment and removal of certain Officers of Parliament. The appointment of the Official Languages Commissioner, for example, is solely by resolution of both Houses. The appointment of the Information Commissioner and of the Privacy Commissioner are made by the Governor General only after approval of a resolution of both Houses. The appointment of the Auditor General and the Chief Commissioner of the Human Rights Commission are made by the Governor General and the appointment of the Chief Electoral Officer is made by motion of the House of Commons alone, yet all six of the Officers may be removed for cause by address of the Senate and the House of Commons.

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Impact of Prevailing Political Situation

It would be foolhardy to attempt to survey the instance of institutional cooperation between the Houses and to ignore the less tangible but more potent forces at work in the dynamic. That said, the task of formulating or categorizing or ordering in any efficient way the myriad influences affecting the relations is not an easy one, precisely because, while freely acknowledged by realists, these forces are often of an intangible and amorphous nature. . .

The overriding factors, however, colour any consideration of the relationship between the two Houses. These are the fact of lifetime (at least until age 75), partisan appointments to the Senate and the fact that the Executive Branch is responsible to the House of Commons and must maintain the confidence of that House, but not necessarily that of the second Chamber. Almost since Confederation, two parties have dominated the Canadian political system, and each in turn when it formed the Government has zealously guarded its power to make appointments to the Senate. A governing party is expected to (and usually does) fill any Senate vacancies which occur during its mandate with loyal party adherents, thus creating a basis of support on which to draw in the second Chamber. This practice and the operation of the electoral process in the lower House may, and has, led to the situation where the two Chambers have opposing majorities. In such times, tensions run high between the Houses. Then, the role played by party loyalties among Senators, by Independent Members of both Houses, and by tactical mastery of discrepant procedural rules becomes of utmost importance. In such circumstances, also, it can happen that the most effective opposition emanates from the non-elected House. Conversely, minority Governments can be effectively supported by a strong party majority in the Senate. When the Government of the day has a majority in both Houses, tensions subside somewhat and the opportunity for co-operation is enhanced and the need for party discipline is considerably lessened.

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Questions and Discussion

1. One of the matters discussed in the above excerpt on Canadian parliament is the operation of joint committees between the two houses which are constituted either permanently or on an ad hoc basis. How do you see the merit of such a committee for the workings of the two chambers?
2. Do you recommend this for the Ethiopian federal houses? Given the constitutional mandates of the Ethiopian houses, do you see any areas for which joint committees can be created? Do you think we need a new law or maybe should amend the Constitution to allow for the creation of joint committees in the absence of a clear constitutional provision to this effect?

GUIDELINES ON THE RIGHTS AND DUTIES OF THE OPPOSITION IN PARLIAMENT

Unanimously adopted by the participants at the Parliamentary Seminar on Relations Between Majority and Minority Parties in African Parliaments
(Libreville, Gabon, 17 - 19 May 1999)

[These Guidelines were drawn up at the meeting of representatives of African Parliaments in Libreville from 17 to 19 May 1999, on the occasion of the Parliamentary Seminar on “Relations Between Majority and Minority Parties in African Parliaments,” organised by the Inter-Parliamentary Union (IPU) in co-operation with the United Nations Development Programme and at the invitation of the Parliament of Gabon. These Guidelines which contain the rights and duties of the opposition in parliament are considered to represent the ideal of the named relationship in the Continent, where political opposition is yet to be accorded legitimacy by many ruling regimes.]

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Pending the adoption by the Inter-Parliamentary Union of a more complete document on the opposition in parliament, the seminar participants express the hope that States, and more particularly the African States, will draw inspiration, each according to its local realities, from the following guidelines to draft rules governing the functioning of their parliamentary assemblies.

I. INTRODUCTION

1. Enjoyment of democracy is a basic right of citizenship to be exercised under conditions of freedom, equality, transparency and responsibility, with due respect for the plurality of views, and in the interest of polity. It is founded on the right of everyone to take part in the management of public affairs.
2. Democracy is an inclusive process in which all citizens, men and women representing all political and social forces in the country, can take part. In the political context, this means that it must be possible for the opposition - i.e. those political parties or groups and individuals who do not form part of the governmental majority - to participate in a meaningful manner in the democratic process.
3. The Inter-Parliamentary Union should consider developing a comprehensive statement, setting out the rights and duties of the opposition. This work should be based on established principles enshrined in the *Universal Declaration of Human Rights* (United Nations, 1948), the *International Covenant on Civil and Political Rights* (United Nations, 1966), the *Declaration on Criteria for Free and Fair Elections* (Inter-Parliamentary Union, 1994) and the *Universal Declaration on Democracy* (Inter-Parliamentary Union, 1997). This latter document stipulates among other things that:
 - “Democracy aims essentially to preserve and promote the dignity and fundamental rights of the individual, to achieve social justice, foster economic and social development of the community, strengthen the cohesion of society and enhance national tranquility, as well as create a climate that is favourable for international peace. As a form of government, democracy is the best way of achieving these objectives; it is also the only political system that has the capacity for self-correction.” (Article 3)
 - “The achievement of democracy presupposes a genuine partnership between men and women in the conduct of the affairs of society in which they work in equality and complementarity, drawing mutual enrichment from their differences.” (Article 4)

- “A state of democracy ensures that the processes by which power is acceded to, wielded and alternates allow for free political competition and are the product of open, free and non-discriminatory participation by the people, exercised in accordance with the rule of law, in both letter and spirit.” (Article 5). “The key element in the exercise of democracy is the holding of free and fair elections at regular intervals enabling the people's will to be expressed. (...)” (Article 12)
- “Democracy is founded on the right of everyone to take part in the management of public affairs; it therefore requires the existence of representative institutions at all levels and, in particular, a Parliament in which all components of society are represented and which has the requisite powers and means to express the will of the people by legislating and overseeing government action.” (Article 11)
- “Public life as a whole must be stamped by a sense of ethics and by transparency, and appropriate norms and procedures must be established to uphold them.” (Article 15)
- “Individual participation in democratic processes and public life at all levels must be regulated fairly and impartially and must avoid any discrimination, as well as the risk of intimidation by State and non-State actors.” (Article 16)
- “A sustained state of democracy requires a democratic climate and culture constantly nurtured and reinforced by education and other vehicles of culture and information. Hence, a democratic society must be committed to education in the broadest sense of the term, and more particularly civic education and the shaping of a responsible citizenry.” (Article 19)
- “The state of democracy presupposes freedom of opinion and expression; this right implies freedom to hold opinions without interference and to seek, receive and impart information and ideas through any media and regardless of frontiers.” (Article 21)

II. THE OPPOSITION IN PARLIAMENT

4. Parliament is the institution that embodies society in the diversity of its composition and its opinions and which relays and channels this diversity in the political process. Its vocation is to regulate tensions and maintain equilibrium between the competing claims of diversity and uniformity, individuality and collectivity, in order to enhance social cohesion and solidarity. Its role is to legislate, *inter alia* by allocating financial resources, and oversee the action of the Executive.
5. Parliament must accommodate the participation of all people in homogeneous as well as heterogeneous societies in order to safeguard diversity, pluralism and the right to be different in a climate of tolerance. Hence the importance of political forces and individuals representing the opposition being able to participate in the work of the parliament. This will require recognition of and respect for human rights in general as well as for their specific rights and duties.
6. The opposition in parliament is a necessary and indispensable component of democracy. For it to be effective, however, the government and society at large must accept the essentials of parliamentary democracy. The primary function of the opposition is to offer a credible alternative to the majority in power. Moreover, by overseeing and criticising the action of the government, it works to ensure transparency, integrity and efficiency in the conduct of public affairs and to prevent abuses by the authorities and individuals, thereby ensuring the defence of the public interest. Indeed, the opposition contributes to the promotion and defence of human rights and fundamental freedoms, thus helping to ensure that democracy functions properly.

III. THE RIGHTS OF THE OPPOSITION IN PARLIAMENT

7. Just like members of parliament who are part of the government majority, members of the opposition require full respect for basic rights. For example, they must all be able to enjoy the right to life and therefore, in their political activities, be shielded from any measure which would infringe upon their personal integrity or harm their property. If circumstances so require, the State must provide them with personal protection on equal terms with the representatives of the majority.
8. Similarly, respect for freedom of expression and information is essential to members of parliament and particularly those who belong to the opposition to permit them to carry out their parliamentary duties. Representatives of the opposition must be able to denounce freely in Parliament and before public opinion the abuses which they have noticed or which have been brought to their attention by their constituents, and to act with a view to their remedy. The opposition must also enjoy fair access, on equal terms with the majority, to State media in order to disseminate its views, criticise the government's action and propose alternatives to the government's solutions.
9. While these (and other) essential rights are already enshrined in national laws, members of parliament, particularly those belonging to the opposition, need to benefit from additional prerogatives to enable them to work with the government majority as well as to monitor the action of the government and to criticise it whenever necessary. These are listed below and should be codified in an appropriate form through constitutional norms and/or parliamentary procedures.

III.1 Possibility for the opposition in parliament to contribute to the democratic process on equal terms with the majority

Parliament should be consulted by the government on important questions involving the life of the nation: threat of civil war, risk of foreign invasion or war, military interventions abroad, etc. This will enable the opposition to take part in the debate and provide its input to the decision-making process. The opposition must also be able to raise matters regarding the Constitution with a view to its amendment. The opposition shall be entitled to criticise any dysfunctioning of the courts or the Executive. It shall be entitled to inquire about presumed human rights violations and to call for remedial action.

III.2 Organization of parliamentary work

- When setting up the governing body of Parliament (Board), an effort must be made to reflect the political composition of the assembly. If there are vice-presidents, a fair share of these posts must be set aside for opposition MPs who, in alternation with majority MPs, shall preside over the assembly's sittings.
- Political (parliamentary) groups may be formed freely, subject to the minimum number of members for each group as established by law. Each parliamentary group, from the majority and the opposition alike, shall have funds allocated to it enabling it to recruit its own staff and shall be entitled to the use of premises for meetings in the Parliament.
- The opposition shall be entitled to be represented, proportionate to its numbers, on each parliamentary committee and sub-committee.
- The opposition shall be entitled to a number of standing committee chairmanships proportionate to its numbers. The chairmanship of the committee responsible for budgetary matters shall go *ex officio* to the opposition.
- The opposition must be represented in any select committee competent to exercise oversight over secret activities, regardless of their nature.

III.3 Functioning of parliament

- In order to ensure equality of treatment between members of the governing majority and opposition parties, the Speaker (Presiding Officer) of Parliament must be impartial in exercising his or her functions.
- All parliamentarians, from the majority and the opposition alike, are equally entitled to receive in a timely manner the same information from the government, except on internal party matters.
- Equally, all parliamentarians from the majority and the opposition should receive information upon request from a specific information and research service set up within parliament to this effect.
- All parliamentarians shall be equally entitled to submit bills and amendments.
- All parliamentarians shall be equally entitled to put written and oral questions to the members of the government and to receive answers to these questions. The opposition shall be entitled to speaking time proportionate to its numbers in sittings set aside for oral questions.
- The agenda for a predefined number of sittings during the parliamentary sessions shall ex officio be chosen freely by the assembly itself. In the assembly, the decision shall lie ex officio with each parliamentary group, on a rotating basis.
- Each parliamentary group shall be entitled, at intervals fixed following consultations, to have a commission of inquiry established on the subject of its choice. In this case, the opposition shall be represented thereon.
- The opposition shall be empowered to seize, if it exists, the judicial body entrusted with determining the constitutionality of laws.

III.4 Material resources

- When State funding is possible, the opposition should benefit therefrom on a fair and non-discriminatory basis vis-à-vis the majority.
- The opposition shall be entitled to equal access to the material and technical resources and other facilities made available to parliament for the accomplishment of its missions.

III.5 Parliamentary privileges and immunities

- Parliamentary privileges must be clearly defined and established by law. By guaranteeing parliamentarians absolute protection from prosecution for all acts carried out as part of their parliamentary function and for all words spoken and votes cast in parliament, it permits MPs—from the majority and the opposition alike—to fulfill the mandate entrusted to them by their constituents without fear of any retaliatory measures on account of their positions.
- If the parliamentary system in force so provides, parliamentary immunities must also be clearly established by law. These immunities are not meant to place Members of Parliament above the law, but to protect them from possible groundless proceedings or accusations that may be politically motivated. The grounds and terms for lifting of immunity must be clearly specified by law so that this may only occur following a decision taken by the competent body on a non-partisan basis.

IV. DUTIES OF THE OPPOSITION

10. The opposition in parliament has a duty to offer voters a credible alternative to the government in office to make the majority accountable. To be a credible alternative, however, the opposition must also be ready to exercise the responsibilities to which it aspires on a lasting basis. In other

words, it must have a programme which it is ready to implement. In democracy, political life is enriched by free competition of political programs; it is impoverished by rivalry based on personal ambitions which merely disqualifies it in the eyes of public opinion.

11. Moreover, the opposition in parliament must show itself to be responsible and be able to act in a statesmanlike manner. It must engage in constructive and responsible opposition by making counter-proposals. In its action, the opposition must not seek to hinder pointlessly the action of the government but rather endeavour to encourage it to improve such action in the general interest.
12. The duties of the opposition are by their very nature defined by political and behavioural rules; not by constitutional norms or parliamentary texts. The duties therefore do not require codification. What is required is for the members of the opposition—like all Members of Parliament—to exercise their responsibilities with due respect for the Constitution and the laws in force. They must, of course, refrain from advocating violence as a means of political expression. Indeed, their action must be in keeping with a spirit of mutual tolerance and a quest for dialogue and concerted action.

Questions and Discussion

1. How democratic, fair or just do you think the above guidelines are for the opposition in parliament? Do you think that these rules may prove helpful for a parliament like Ethiopia where opposition in parliament is insignificant, at least as it currently stands?
2. Some people believe it is worthwhile to extend these protections to members of the opposition who are not MPs. Do you believe this is tenable? What possible ways of extending the protection to non-MPs do you see? What challenges there may be?

i. Immunities and Privileges of Parliamentarians

Marc Van Der Hulst, *The Parliamentary Mandate: A Global Comparative Study* (published by Inter-Parliamentary Union, Geneva, 2000). Footnotes omitted.

[The following material deals comprehensively with various aspects of parliamentary mandate. It provides for a comparative material on many parliaments in the world. Read carefully through the material, and, as you do, keep in mind the Ethiopian parliamentary system and the rules governing parliamentary mandate in the Constitution as well as other laws, and critically reflect on their merits as compared with the comparative systems.]

* * *

Beginning of the parliamentary mandate

At what point does the mandate begin?

In some of the countries studied, the mandate takes effect on Election Day (Australia, Czech Republic, Japan) or when the election results are declared (Andorra, Greece, Jordan, Trinidad and Tobago). However, the fact that a mandate takes effect when the election results are declared does not mean that members immediately assume the full powers of their office. Persons elected to the

Australian House of Representatives, for example, can act as members as soon as the results are declared but cannot take part in the proceedings of the House until they have taken the oath.

In other countries, the mandate begins when the election results are validated. In Kazakhstan, for example, the mandate begins when parliamentarians are registered as members by the Central Electoral Commission. As parliament itself is usually responsible for validating election results, the beginning of the mandate often coincides with the inaugural sitting of the newly elected assembly (Equatorial Guinea, Latvia).

In a third category of countries (Guinea, Indonesia, Jamaica, Lesotho, Liechtenstein, Luxembourg, Mexico, Namibia, Slovakia, United Kingdom, United States of America), the beginning of the mandate coincides with the swearing-in ceremony, which also generally takes place at the inaugural sitting. The mandate of French deputies and senators takes effect when the term of outgoing parliamentarians comes to an end.

There are also a number of special cases. The mandate of senators in the Philippines begins at midday on 30 June following their election. Persons elected to the German Bundestag only become members when the returning officer receives a statement of acceptance and no sooner than the beginning of the new legal term of the Bundestag (i.e. the day on which the newly elected deputies attend their first sitting). An elected deputy who fails to submit a statement of acceptance within one week is deemed to have accepted his or her parliamentary mandate. In view of the special nature of the Bundesrat, which represents the Governments of the Lander, it is not surprising that the mandate of its members begins when they are nominated by the respective Land cabinet. In Canada, the mandate of House of Commons MPs officially begins when the teller signs the election report. Members may not occupy their seats, however, until they have taken the oath of allegiance.

Validation of the mandate

An election does not end when the votes have been counted. In most cases, three steps must be taken before the identity of the new parliamentarians can be established: official declaration of the results, validation of each candidate's election and settlement of disputes concerning compliance with the electoral rules or determination of whether irregularities occurred in the conduct of the elections. Once candidates have been elected and the election validated (where validation exists), they may take their seats in parliament provided that their election has not been challenged and there is no incompatibility issue to be resolved.

Many countries have a special body responsible for validating parliamentarians' mandates, i.e. establishing that they meet the criteria for occupying a seat in the assembly. Cyprus, France (see below) and Zimbabwe are exceptions to this rule.

In countries with an official validating body, parliament itself is usually entrusted with the task. In view of its sovereign status, interference by other powers such as the Executive in the appointment of parliamentarians is deemed unacceptable. Most countries set up a special committee for the purpose, which reports to the full assembly (Algeria, Denmark, Hungary, Latvia, Luxembourg, Netherlands, Romania, Russian Federation). In the Belgian House of Representatives, six "credentials committees" are established by lot and meet simultaneously. In all cases, it is for the assembly to decide whether or not to validate a mandate.

The composition of the "validation committee" (or "credentials committee") varies considerably from parliament to parliament. In some cases, such as Romania, its membership is based on proportional representation in order to reflect the political composition of the new assembly. In Latvia, the "Mandates Committee" is composed of one member from each party represented in the Saeima. In the Belgian Senate, the seven oldest members elected directly by the electorate make up the "Credentials Committee."

In countries where responsibility for validation does not lie with the assembly, the task is often entrusted to the Judiciary, usually the Constitutional Court (or equivalent body). This procedure is particularly common in French-speaking African countries (Benin, Guinea, Mali, Niger, Senegal, Togo) but is also found elsewhere (Kuwait, Malta).

In France, the assemblies were responsible for validating mandates after each renewal until 1958. But the procedure gave rise to abuse and the Fifth Republic decided to transfer authority to the Constitutional Council, which does not, however, operate a systematic validation procedure. Although Article 59 of the Constitution stipulates that “the Constitutional Council shall rule on the lawfulness of the election of deputies and senators in disputed cases,” this does not amount to systematic verification. When specifying the scope of its jurisdiction, the Constitutional Council stated that it did not verify credentials but exercised judicial control over the lawfulness of the ballot.

Greece is one of the rare countries in which the ordinary courts play a role in validating the mandates of elected representatives, such authority being exercised by the courts of first instance. It should be noted, however, that the courts rule on the basis of a kind of draft decision laid before them by the “Supreme Supervisory Commission,” an ad hoc body composed of three senior judges and two senior officials. Lastly, it should be noted that the Clerk of the Crown is responsible for validation in the United Kingdom and state governors in the United States of America.

* * *

3. Loss of mandate

There are three ways in which a mandate may be lost prior to its expiry. In some countries, parliamentarians may be recalled at the instigation of the electorate or their political party. In others, a parliamentarian may be expelled from the assembly. In general, such parliamentarians no longer meet eligibility criteria or have accepted an office that is incompatible with their parliamentary mandate. In many countries (especially those with a British parliamentary tradition), expulsion by the assembly can be the ultimate disciplinary sanction. Lastly, parliamentarians in some countries may forfeit their mandate by judicial decision.

Removal from office before a mandate expires

As seen above, the question of the dismissal of a parliamentarian is closely bound up with that of the imperative mandate. If one subscribes to the theory that parliamentarians are legally bound by their promises to voters, it is only logical that the electorate (or the party) should recall them if they break their word. This principle was applied in the former socialist countries of Eastern Europe and it has survived in countries that have retained the imperative mandate (Cape Verde, Cuba, Fiji, and Indonesia).

We cannot fail to be surprised, however, by the fact that some countries claiming to have a free representational mandate allow voters or the party to recall “their” parliamentarian. In this category we find Ethiopia, Gabon, the Lao People’s Democratic Republic, the Philippines and Zambia. It should be noted that the Council of the Inter-Parliamentary Union, when reviewing the case of Equatorial Guinea in 1991-1992 (i.e. at a time when the country was still operating a one-party system) objected to the fact that expulsion from the party could entail the loss of a parliamentary mandate despite the provision in Equatorial Guinea’s Constitution to the effect that imperative mandates were null and void.

Removal from office by or at the instigation of the electorate

Cuba offers a typical example of removal from office by the electorate. The dismissal procedure may be initiated either by the National Assembly or by the municipal assembly of the municipality that elected the parliamentarian. Dismissal must in all cases be endorsed by the municipal assembly.

In the Seychelles, the filing of a written petition against a member, supported by one third of the voters in his or her constituency, necessarily entails the holding of new elections. In Ethiopia, the petition must be supported by more than 15,000 voters in the constituency.

If the electorate in the Lao People's Democratic Republic loses confidence in a parliamentarian, they may file a complaint in writing to the "bureau of parliamentarians" in their constituency. The bureau considers the complaint and — after conducting an inquiry — reports to the Standing Committee of the National Assembly, which takes a decision by majority vote at its next session.

Removal from office by the party

Indonesia offers the best example of removal from office by a political party. Indonesian parliamentarians can be recalled at any time by their party for a breach of party discipline, political principles or regulations. The party simply arranges matters beforehand with the Speaker of the assembly and proposes a candidate to replace the member who is being recalled. On a number of occasions, the Inter-Parliamentary Union's Committee on the Human Rights of Parliamentarians has deplored the fact that Indonesian legislation gives political parties the right to recall the representatives of the people, disregarding the fundamental principles of Indonesia's Constitution set forth in the preamble: sovereignty of the people, democracy and consultation among representatives.

In the Seychelles, a distinction is made between persons elected directly and indirectly. The former can only be recalled by the political party on whose list they were elected if they leave the party. Persons elected indirectly, however, may be recalled at any time and the party is not even required to state the grounds for its decision.

In Sri Lanka, removal from office at the instigation of the party is possible but parliamentarians enjoy more safeguards. They may lodge an appeal with the Supreme Court within one month, and the Court either confirms or revokes the party's decision within two months.

In some countries where the party itself has no authority to remove its parliamentarians from office, defection from the party on whose list a parliamentarian was elected may lead to the loss of his or her mandate. "In India, following a series of defections which led to the fall of a government, a constitutional amendment was passed in 1985 pursuant to which any defecting Member lost his/her seat in the House." Similar provisions exist in Cape Verde, Fiji, Jamaica, Malawi, Namibia, Trinidad and Tobago, Zambia and Zimbabwe. In Cote d'Ivoire, parliamentarians who switch political allegiance during their mandate are recalled by the Constitutional Council, to which the matter is referred by their sponsoring party or political group.

Lastly, it should be noted that, while changing parties is generally punished more severely than defection to sit as an independent, the opposite is also true in a small number of cases. In Thailand, for example, expulsion from a party entails loss of mandate unless the member joins another party within 60 days.

Permanent expulsion of MPs by the parliament of which they are Members

Parliaments in many countries are not authorised to expel members permanently (Cyprus, France, Gabon, Lesotho, Norway, Romania and the European Parliament). Temporary suspension, on the other hand, is allowed in many cases as a disciplinary measure. In countries where permanent expulsion is allowed, the grounds invoked are quite varied. In general, they fall into three categories: disciplinary penalties, loss of eligibility, and an activity that is incompatible with the mandate. Other grounds may also be invoked, for example in Latvia, where members can be expelled if their knowledge of the national language is found to be inadequate for the purpose of

exercising their parliamentary mandate, and in the Thai Senate, where there is a procedure for expulsion of a member suspected of unlawful enrichment or corruption.

Procedures for expulsion from parliament are also extremely varied. The decision is often taken by a two-thirds majority of the assembly (Argentina, Israel, Jordan, United States of America). In Thailand, a majority of three quarters is required and in Finland one of five sixths. The expulsion procedure is usually based on a recommendation by a committee assigned to consider the case and report to the assembly. Needless to say, permanent expulsion must remain an exceptional procedure confined to cases that are strictly specified in the relevant legal instruments. Otherwise, it could become a dangerous weapon —comparable to verification of credentials — in the hands of the majority.

* * *

Disciplinary penalties

Expulsion may be the ultimate disciplinary measure taken against a member by an assembly. It is commonly employed in countries with a British parliamentary tradition as well as in Japan, where the grounds for expulsion—absence from meetings without a valid reason, disclosure of confidential information to outside persons, failure to respect the order or dignity of the assembly—are specifically stated in the Diet Act and the rules of procedure of the House of Councilors.

Neglect of duties in general and non-attendance at parliamentary sittings in particular are the most common grounds for expulsion. In Australia, for example, a member who fails to attend parliamentary sittings, without authorisation, for two months running loses his or her seat. This is also the case in Cape Verde (a total number of unjustified absences in excess of the maximum allowed by the rules of procedure of the People's National Assembly), in The former Yugoslav Republic of Macedonia (unjustified absence for over six months), in Equatorial Guinea (unjustified non-attendance at three sessions, the parliamentarian being given an opportunity present his or her case), in Latvia (unjustified absence from over half the plenary sittings of the Saeima during a period of three months) and in Senegal (absence from the sittings of two ordinary sessions). In Niger, unjustified absence from all the sittings of one of the two ordinary sessions also provides grounds for expulsion, but such action requires a decision by two-thirds of the members of the National Assembly and a Supreme Court ruling. The Supreme Court may also expel members for other reasons (disciplinary or otherwise) at the request of the Bureau of the National Assembly.

Provision is also made for expulsion in some countries (including India) when a member is found guilty by the assembly of misconduct or other offences unworthy of a parliamentarian. Under the Bolivian Constitution, each House may decide by a two-thirds majority to expel (temporarily or permanently) any member found guilty of major misconduct in the exercise of his or her duties.

In the United Kingdom, a Member of the House of Commons may also be expelled by decision of the House, in particular for breaching the code of conduct or the rules governing discipline (see below). Nowadays, such an expulsion would only be contemplated following an inquiry and a recommendation by the Select Committee on Standards and Privileges.

Loss of mandate by judicial decision

Forfeiture of a parliamentary mandate pursuant to a judicial decision—usually termed “disqualification” — is a practice that exists in virtually all countries. The Syrian Arab Republic and the United States of America are exceptions to the rule, however. Under the American Constitution, only the House of Representatives and the Senate have authority to decide on matters pertaining to the election and qualifications of their respective members.

The distinction is thus not so much between countries where disqualification by judicial decision exists and those where it does not, but rather between countries where the judicial decision takes effect *ipso jure* and those where it must be followed up by an assembly decision.

Automatic disqualification

In some countries, a court conviction automatically entails forfeiture of the parliamentary mandate. In Belgium, for example, a Deputy or Senator who is deprived by judicial decision of his or her civil and political rights no longer fulfils all the eligibility criteria and must be deemed to have resigned (the same situation prevails in Kazakhstan). In Namibia, parliamentarians who are sentenced to a term of imprisonment of more than 12 months that cannot be commuted to a fine are automatically disqualified.

It should be noted that, as a rule, members only lose their status as a deputy when the judgement becomes final.

Disqualification by a decision of parliament

In a number of other countries (Ecuador, Germany, Hungary, Slovenia), a court conviction does not automatically entail forfeiture of the parliamentary mandate but must be followed up by a decision on the part of the assembly or another State body. In Germany, the Council of Elders (“*Ältestenrat*”) of the Bundestag rules on disqualification in cases of criminal conviction. Members have two weeks to file an appeal with the plenary assembly. Appeals against the plenary assembly's decision lie with the Federal Constitutional Court (“*Bundesverfassungsgericht*”). The mandate ends on the date of the Constitutional Court's decision, which is not appealable. In Germany, mandates can also be forfeited following the conviction of a party, for example when the Federal Constitutional Court declares a party to be unconstitutional.

In Hungary, parliamentarians may be disqualified if they are declared legally incompetent, deprived of their political rights, sentenced to a term of imprisonment for criminal offences, subjected to compulsory medical treatment or found to be in debt to the State. However, disqualification is not automatic in any of these cases. The assembly must always adopt a decision, after hearing the report of the Committee on Immunity, Incompatibility and Credentials, which gives the member a hearing. A two-thirds majority is required for termination of the mandate of the member concerned.

In Denmark, the Folketing may expel a member who has been convicted of an offence that renders him or her unworthy to retain a seat in the assembly. In Benin, parliamentarians may be permanently expelled if they have been convicted of a criminal offence, but only if a two-thirds majority of the National Assembly demands their expulsion. The contrary situation arises in certain very rare instances. In Slovenia, for example, an unconditional term of imprisonment automatically entails forfeiture of the mandate unless the assembly decides otherwise.

Questions and Discussion

1. Can an MP resign from his seat in the Ethiopian parliaments (Federal and state)? What is the law in this regard?
2. What is the law in Ethiopia about the end of mandate of a parliamentarian?
3. Reread the above excerpt regarding loss of mandate of a parliamentarian. Do the grounds and ways of loss of mandate presented apply to Ethiopian MPs under our law? Respond to the question by looking at each and every ground in the excerpt.
4. Arts. 12(3) as well as 54(7) of the Constitution stipulate that an MP who loses his mandate or upon whom the electorate loses its confidence may be recalled in accordance with law. Proclamation No. 88/1997, on the other hand, provides for the details as well as the grounds of loss of mandate. Discuss these laws in the light of the general comparative cases discussed earlier in this material. Is Proc. No. 88/97 perfectly in line with the Constitution?
5. If an argument is made that someone who was not eligible to stand for election according to the election law of Ethiopia did in fact stand for election and got elected to the HoPR, how should

the invalidation process of this selectee be considered? Or should it be invalidated at all? Do you think it may have to be void *ab initio*? Assume that it has to be initiated; who should initiate the process? Who should decide this matter? The NEB? HoPR itself? Or the Judiciary?

6. The issue of loss of mandate arose in relation to the Ethiopian federal MPs on a few occasions. The most striking one is the case of TPLF's (Tigrayan People's Liberation Front) senior members' loss of mandate that has culminated in a court of law. Read the following condensed translation of the decision of the Federal High Court, and answer the following questions.

*Tewolde Woldemariam Desta et al. (eight persons) v. the Ethiopian Election Board and
the House of Peoples' Representatives*
(Computer Code No. 08339; April 2005)

The case was brought before the Federal First Instance Court in June 2001. Following the political fallout within the TPLF, the applicants belonged to a group that splintered from the TPLF. According to their application to the court, they stated that they came to know on the mass media that a process was initiated in which each of them was subjected to a process of recall by which it was said that the electorate had claimed they each be recalled, and that to that effect 10,000 signatures were collected and submitted to the respective woreda councils and that those councils have approved the recall. The applicants further stated that they pleaded with the Election Board (NEB) to reject the recall decision since the process did not follow the procedure legislated by NEB itself. The applicants reported that the NEB rejected their application to it, saying that its regulations for recall would not apply to a recall decision by the woreda councils in question but to the case of a petition by 15,000 members of the electorate to be submitted directly to it. Rejecting their application, the NEB went ahead and called for a by-election, and the Speaker of the HoPR informed them through letter that they were disbanded from the house membership as of 21 May 2001.

The applicants however stated that the Regulation in question, which was issued in 1996, declares that it was meant for all the recalls to be undertaken based on Proclamation No. 88/97, which they said therefore includes the case of the applicants. They also said that the NEB apparently brought up a document it says was an undated "Directive" that would govern the case of the applicants. They further said that the NEB was not authorized to issue a "directive" by Proc. No. 88/97 in this particular case and was therefore an *ultra vires* act. They said even if it was to be accepted that the NEB could issue a "directive," the latter's contents cannot prevail over its Regulation invoked by the applicants. They concluded that in the absence of non-compliance with the Regulation of the Board, the decision of the latter cannot stand. They demanded that the court quash the Board's decision in which the latter ordered a by-election, and the Speaker's decision that disbanded their membership.

NEB made a counter-argument in which it stated first that the court does not have jurisdiction to hear the case, as it was not authorized by Proc. No. 88/97; second, that the matter was not justiciable. Substantively, the first defendant said that so long as the electorate obtains the necessary number, it is entirely in their mandate to present that to the woreda councils. The Federal First Instance Court reasoned that as per the HoPR which is made the second defendant by the applicants, it is a federal organ with the highest political power; it is responsible only to the Ethiopian people; and the House cannot be sued in court in relation to decisions it takes in discharging its responsibilities. This court found the case as well as NEB amenable to judicial jurisdiction and that its decision to order a by-election was against the law. But the court said in relation to the decision of the woreda councils that since these councils were not federal bodies, the court does not have jurisdiction to look into their decision.

The applicants submitted their appeal to the High Court in February 2002. They challenged the decision of the lower court which declined jurisdiction on the decision of the woreda councils, and the exclusion of the HoPR from being a defendant in the case. The appellate court looked into the

case after two adjournments in which the NEB simply absented itself from the court without any reason but came after the second adjournment asking for leave to submit its response, but the court rejected its plea to do so. In a reply written in July 2004 [mind the delay!] in which it denied the allegation of the appellants, the second defendant said it simply informed them of the decisions made by the NEB. The appellants were made to give a reply to the second defendant's reply, which they submitted in writing in October 2004.

The court decided in relation to the first appeal point that in the type of loss of mandate under consideration, the NEB does not have a real role in the process except that of checking whether the signature process was genuine or not through its regional office. The appellate court said that the lower court was correct in declining to look into the decision of the woreda councils. It implied in its decision that the latter's decisions stand on their own and do not depend on the acceptance or rejection of the NEB.

Regarding the second point of appeal, this court said, first, that the lower court erred in saying the HoPR cannot be sued. It, however, decided that the HoPR's acknowledgment of the decision of the Woreda councils and revoking their membership was not illegal.

* * *

- 6.1. Do you agree with the decision and the reasoning of the First Instance Court as regards its verdict to dismiss the HoPR from being a defendant? Was the judge's understanding of the power of the HoPR and its untouchability by judicial scrutiny correct?
- 6.2. Proc. No. 88/97 provides for two parallel procedures for recall of an MP. Do you think the two alternatives are put in place for objective and useful purposes, or may they exist for political maneuvering purposes, to try the more convenient alternative at a time?
- 6.3 If you were to revise the two recall requirements to make them more useful for the people to really decide on their recall, what would you change in one or the other? Discuss your suggestion with reasons.

Marc Van Der Hulst, *The Parliamentary Mandate: A Global Comparative Study* (published by Inter-Parliamentary Union, Geneva, 2000). Footnotes omitted.

* * *

Parliamentary immunities

Introduction

* * *

. . . [T]he representatives of the people must enjoy certain guarantees, on the one hand to underline the dignity, gravity and importance of their office and, on the other and more importantly, to give them the peace of mind they need to discharge their mandate. From this standpoint, the institution of parliamentary immunity is undoubtedly imbued with universal and permanent value, although its characteristics and scope differ from country to country. The different approaches adopted to the protection of parliamentarians by means of parliamentary immunities broadly reflect two different approaches to the protection of human rights.

The idea of a written statement of the rights of the individual vis-à-vis those in power is of Anglo-Saxon origin. "Its first manifestation goes far back in history, to the Magna Carta which the English barons imposed on their sovereign in 1215. It was then necessary to wait until 1627 for the Petition of Rights. The famous *Habeas Corpus* came shortly afterwards, in 1670, followed by the Bill of Rights of 1689 and the Act of Settlement of 1701." All of these acts confirmed, regularised or developed the rights of the individual vis-a-vis the powers of the day. Their shared feature is that they refer to "common law," i.e. to the traditional rights and freedoms of individuals against the

abuse of royal power. No prerogative was created; ancient rights were merely confirmed or extended as the scope of the central power became established.”

The historical background in the United States of America is similar. The 1787 Constitution does not contain a declaration of rights in the formal sense. The historic and customary rights imported by the Mayflower Pilgrims had prevailed as a matter of course some time previously and had been incorporated in the 1776 Declaration of Independence. Subsequently, many amendments (especially the “due process of law” amendment of 1868) rationalised and reinforced these rights, which were initially viewed as self-evident, in written form.

The Anglo-Saxon concept of immunities therefore has its roots in the progressive development of custom, which was slowly but continuously consolidated. In this context, “the protection of the individual, whether or not he or she is a parliamentarian, is a natural right and, if by mischance that should not be so, there still remains one last recourse against the encroachment of power: an appeal to justice which has been based since 1215 on the Magna Carta, and which was further specified four hundred years later in the *Habeas Corpus*. It is therefore understandable that the members of the British Parliament have not felt the need to establish specific protection for themselves, since common law is sufficient to prevent and suppress illegal and arbitrary proceedings, arrests and detention.” Such a system is clearly only possible if there is fundamental agreement in the country on basic political values.

Events followed a completely different course in France. The 1789 Declaration of the Rights of Man and of the Citizen did not confirm a series of rights that had already been recognised but proclaimed a new universal aspiration that was to prevail by virtue of the triumph of pure reason.

On the one hand, the Declaration of the Rights of Man and of the Citizen and the establishment of the National Assembly were the outcome of a revolution and were not based on broad agreement among large sectors of the population. As a result, special measures were necessary to safeguard the representatives of the people, to ensure their independence, freedom of movement and expression, and to protect them against abuses that prevented them from exercising their mandate. These measures were clearly directed against the Executive.

On the other hand, the National Assembly had assumed a position of superiority in the revolutionary context over the other organs of State and could therefore go further than its British counterpart. On 23 June 1789, for example, the French National Assembly declared that “the person of each deputy shall be inviolable.” The novel concept of inviolability thus came into being.

Over the years, the legal and practical implications of the principle of inviolability were streamlined. A clear distinction gradually emerged between acts carried out by parliamentarians in their official capacity and private acts. Two separate categories of immunity—non-accountability and inviolability—took shape. The French model, based on these two components, had the greatest impact, first in European countries and then in the (former) colonies.

* * *

Parliamentary non-accountability

An established British right

As already mentioned, the history of freedom of speech is inextricably bound up with the constitutional history of the United Kingdom. It developed in parallel with the occasionally fierce and protracted struggle between the House of Commons and the Crown.

The origins of freedom of speech may be traced back to the British Parliament's session in early 1397, when the House of Commons adopted an act denouncing the scandalous behaviour of the court of Richard II, King of England, and the enormous financial burden it entailed. Thomas

Haxe, MP, was tried and sentenced to death for treason as the instigator of an act aimed directly against the King and his court. However, as a result of pressure from the House of Commons, the sentence was not carried out and he was granted a pardon by the King.

This incident led the House of Commons to consider the question of the right of parliamentarians to discuss and deliberate quite independently and freely without any interference from the Crown. Almost three hundred years later, freedom of speech, established as a principle in the House of Commons at the beginning of the sixteenth century, was reaffirmed in Article 9 of the 1689 Bill of Rights, which expressly stipulated that discussions and acts by MPs were exempt from all forms of interference or contestation from outside Parliament.

Today, it is still customary for Speakers, following their election at the start of the new session, to assert their rights before the House of Lords on behalf of the House of Commons, by humbly petitioning that the ancient and uncontested rights of the House of Commons be reaffirmed, particularly freedom of speech.

The majority of Commonwealth countries have been influenced by British tradition and have adopted similar provisions. But the principle of freedom of speech or parliamentary non-accountability is not confined to the Commonwealth. The rule whereby parliamentarians cannot be prosecuted for opinions expressed or votes cast in exercise of their mandates exists in one form or another in almost all other countries (with the exception of Cuba . . .). Thus, unlike parliamentary inviolability (see below), we find a large measure of homogeneity in this area, although substantial differences may be encountered in terms of scope.

Parliamentary non-accountability or “privilege” is therefore not only relatively homogeneous but also a highly stable principle throughout the world. Most countries indicate that there have been no recent amendments to the relevant legislation.

Scope

The scope of parliamentary non-accountability (freedom of speech) may be viewed from four different angles: *ratione personae* (protection for whom?), *ratione temporis* (when does protection begin and end?), *ratione loci* (protection only within the precincts of parliament or also beyond?) and *ratione materiae* (what acts are covered by non-accountability?).

Ratione personae

Obviously, members of parliament are the prime beneficiaries in the case of parliamentary non-accountability, together with ministers who are also parliamentarians (in countries where the two offices are not incompatible).

In a number of countries — primarily but not exclusively those with a British parliamentary tradition (Canada, Netherlands, Switzerland, New Zealand), “protection is broader and extends to all persons taking part in parliamentary debates (such as ministers, even if they are not members of parliament) or participating in the proceedings”. This is the case in Australia and the United Kingdom for example, where freedom of speech extends to everybody involved in the proceedings of parliament (officials, witnesses, lawyers, petitioners). Ireland has recently adopted an amendment to its legislation providing for freedom of speech for witnesses summoned to appear before parliamentary committees. Such witnesses enjoy total immunity and may not be prosecuted for words spoken during committee meetings.

In Kenya, Namibia, Sri Lanka, Zambia and to some extent in Bangladesh, protection also extends to parliamentary officials. In the Philippines, members’ assistants are also protected.

In countries that are more influenced by French tradition, non-accountability applies, in principle, only to parliamentarians. It should be noted, however, that, pursuant to the Act of 29 July 1881

concerning freedom of the press, French case law recognises that protection also extends to witnesses appearing before parliamentary committees of inquiry.

Ratione temporis

In some countries, “members of parliament enjoy protection from the time of their election, on condition that the election is not subsequently declared invalid.” This is the case in many countries with a French parliamentary tradition (Belgium, Italy) and in many of the new democracies of Eastern Europe (Czech Republic, Estonia, Poland, Slovenia). In other countries (including Mali, Russian Federation), protection is granted after the member’s election has been validated. In some cases, the oath-taking ceremony is the point of departure for protection (Argentina, Austria, Bangladesh, Chile, Cyprus, Hungary, India, Malaysia, Mongolia, Mozambique, Namibia, Netherlands, Philippines, Republic of Korea, Sri Lanka, Switzerland, Uruguay).

Freedom of speech applies only during sittings in a number of countries with a British parliamentary tradition (Australia, United Kingdom) and in Egypt, The former Yugoslav Republic of Macedonia, Malaysia and the Philippines. Needless to say, members in these countries enjoy non-accountability only with effect from the first sitting. In many other countries, protection is afforded in all circumstances, regardless of whether parliament is in session. This rule is applied, *inter alia*, by certain Nordic countries (Denmark, Finland, Norway), countries influenced by French tradition (Gabon, Guinea, Italy, Mali, Spain) as well as Austria, Greece, Kenya, Kuwait, Mongolia, Poland, Romania, the Russian Federation, Switzerland, Sri Lanka and Thailand.

In all the cases considered, parliamentary non-accountability ends with the expiry of a member's term of office or the dissolution of parliament. It remains valid, however, for words spoken and votes cast during the exercise of his or her mandate. Moreover, non-accountability is subject to no time limit in the case of parliamentary proceedings and votes that are published in various forms.

Ratione loci

In most countries, the enjoyment of parliamentary non-accountability is related to the exercise of a parliamentary mandate rather than to the place in which the contested statements were made. The privilege of freedom of speech is therefore not limited in space, since it exists both within and outside parliament. On the other hand, acts that are unrelated to the exercise of a parliamentary mandate are excluded from non-accountability, even if they occur within the precincts of parliament.

In a number of countries (Bangladesh, Cyprus, Egypt, Estonia, Finland, Germany, India, Kenya, Malaysia, Namibia, Norway, Philippines, United Kingdom, Zambia), freedom of speech applies only within the parliament buildings and all other locations are excluded.

In the United Kingdom, for example, “the privilege is limited by a strict definition of “proceedings in Parliament” confining them to “everything said or done by a Member in the exercise of his functions as a Member in a Committee of either House, as well as everything said or done in either House in the transaction of parliamentary business.” MPs remain responsible, like any other citizen, for what they do outside proceedings in Parliament, “even where their actions relate to matters connected with their parliamentary functions, such as constituency duties. Thus, letters written on behalf of constituents to Ministers, Government Departments or public bodies would be unlikely to be considered by the courts of law as enjoying parliamentary privilege.”

The restriction in terms of location is sometimes even stricter: in Malaysia and Thailand, the non-accountability privilege is restricted to the floor of the assembly, in Bangladesh and Zambia to the floor of the assembly and committees, in South Africa to words spoken from the rostrum and statements from the floor of the House or in committee.

In Sweden, non-accountability is limited to acts related to normal parliamentary activities, such as the plenary sittings and meetings of the Riksdag's organs (committees, electoral committee, conference of Presidents), but does not apply to the Board of Administration, the auditors, or the committee that checks the validity of ballots.

Ratione materiae

Words spoken from the floor of the house or elsewhere, Statements from the floor of the house or in committee, bills or proposed resolutions, votes, written or oral questions and interpellations are universally viewed as being eligible for protection under the heading of parliamentary non-accountability. In most countries, the same applies to suspensions of sittings, but there are some exceptions (Australia, Croatia, Czech Republic, Egypt, Gabon, Germany, Ireland, Kenya, Malaysia, New Zealand, Norway, Republic of Korea, Slovenia, Thailand, The former Yugoslav Republic of Macedonia).

While words spoken in the course of activities by political groups also enjoy the protection of parliamentary non-accountability in quite a few countries (Belarus, Belgium, Burkina Faso, Gabon, Germany, Greece, Guinea, Hungary, Mongolia, Portugal, Romania, Russian Federation, the former Yugoslav Republic of Macedonia, Uruguay), this privilege is not recognised in most countries, particularly those with a British parliamentary tradition.

Reproduction of words spoken in parliament: In most countries, a member cannot be held accountable for words or votes recorded in official parliamentary publications (minutes and other records of sittings drafted by parliamentary departments).

Opinions are divided, however, on the question of whether members of parliament may invoke the privilege of non-accountability when they repeat, in the press or other publications, words they have spoken in the assembly. In some countries (Austria, Burkina Faso, Croatia, Greece, Guinea, Hungary, Italy, Mali, Mozambique, Portugal, Romania, Slovenia, Uruguay), protection extends without restriction to the repetition outside parliament of words spoken in parliament. In most countries, however, members cannot claim non-accountability in such situations. In the United Kingdom, for example, MPs repeating words spoken during parliamentary proceedings outside the context of Parliament "would not be protected from actions for defamation, although the Courts would not allow evidence of proceedings within the House to be used in support of an action in respect of other words or actions of a Member outside Parliament." Verbal or written communications between an MP and a minister, or between two MPs, on subjects with a close bearing on proceedings in the House or in committee would nevertheless generally be considered to fall within the protected ambit of freedom of speech.

Words spoken during debates on radio or television or at political gatherings

In a small number of countries (Belarus, Burkina, Faso, Egypt, Gabon, Greece, Guinea, Hungary, Kenya, Mongolia, Romania, Russian Federation, Uruguay), participation in televised or radio debates and interviews is protected by freedom of speech.

Generally, however, words spoken during debates on radio or television are not protected, although the rule is qualified in some circumstances. According to French case law, non-accountability is not applicable to words spoken by parliamentarians in a radio interview or to reports drafted by parliamentarians in the context of a mission undertaken for the Government. In Australia, non-accountability is not applicable either to radio or television broadcasts. However, an exception is made for "compulsory" records of parliamentary proceedings on radio and television. The Parliamentary Proceedings Broadcasting Act of 1946 affords immunity from judicial proceedings ensuing from the (unedited) broadcasting of parliamentary proceedings by the Australian Broadcasting Corporation. Qualified immunity from prosecution exists in respect of fragmentary records (in the form of extracts), which are deemed to be "privileged" unless the words spoken display malicious intent or are inspired by inadmissible motives (e.g. publicity for political parties or in the context of an electoral campaign, satire or mockery, commercial motives). In Namibia,

parliamentary non-accountability does not apply to televised or radio debates, unless they take place “at the request of Parliament.” In Poland, non-accountability does not apply to debates or interviews, unless they are “indissociable” from parliamentary proceedings. In Italy, words spoken during an interview may be accorded privileged status if they bear some relationship to parliamentary activities.

Political gatherings are usually excluded from the scope of parliamentary non-accountability, but there are some exceptions (Belarus, Burkina Faso, Egypt, Greece, Guinea, Hungary, Mongolia, Romania, Russian Federation, Uruguay).

“Relative” non-accountability and “qualified privilege”

Some countries occupy an interesting intermediate position. In Switzerland, for example, (absolute) non-accountability is limited to statements in the Federal Assembly. The Federal Chambers may, however, allow (relative) non-accountability, following deliberation in committee, for acts directly related to parliamentary activities such as public talks, debates (on television or radio), publications, etc. This “relative” non-accountability means that criminal proceedings may only be instituted with the authorisation of Parliament (Federal Chambers). In Ireland, “qualified privilege” is granted for unofficial publications of words spoken by members during statements in Parliament. The difference between “qualified” and “absolute” privilege is that the courts and tribunals have jurisdiction in the former case but not in the latter. However, the member may claim privilege as a defence in a trial for libel or defamation. The same type of qualified privilege exists in New Zealand, where it also applies to communications between MPs and the voters in their constituencies.

Written or oral reproduction of parliamentarians’ words or writings

Although a parliamentarian may not, as a general rule, be held liable for words or votes recorded in official parliamentary publications, the situation is different when other people reproduce or comment on a member’s writings or words orally or in writing.

“This practice is authorised in most countries on condition that the reproduction is accurate and undertaken in good faith.” Austria’s Federal Constitution expressly stipulates that “no one shall be held accountable for publishing true accounts of proceedings at the public sessions of the National Council and its committees.” In Germany, the legislation also explicitly stipulates that “no one can be prosecuted for having accurately reported what is said at the plenary sessions of the Bundestag and in committees.”

In a number of countries with a British parliamentary tradition (Australia, Ireland, New Zealand), a “qualified” privilege applies in such cases (see above). Under this privilege, courts and tribunals have jurisdiction, but privilege may be invoked as a defence in proceedings for libel and defamation. In Mali, the reproduction of and accurate commentary on speeches by members of Parliament is possible only with their agreement. Publication then becomes the responsibility of the member concerned.

In a limited number of countries (including Kenya, Malaysia, Netherlands, Poland, the Republic of Korea and Thailand), the privilege of freedom of speech does not extend to written or oral reports of parliamentarians’ words or writings . . . In most countries, parliamentary non-accountability is subject to certain restrictions. Some statements or forms of behaviour are deemed to be inadmissible and are therefore not wholly covered by immunity. Such restrictions are based on the standing orders of parliaments and are designed to ensure the orderly conduct of proceedings. As a rule, the presiding officer of the assembly or a parliamentary committee is responsible for ensuring compliance with the standing orders.

Insults to the Head of State (President, monarch) are not covered by freedom of speech in Australia, Cyprus and Malaysia. In Canada, insults to the royal family are also prohibited. In Cyprus, members are prohibited from showing lack of respect for the Head of State or other authorities during sittings. In Benin, abuse, provocation or threats directed against members of the Government and certain institutions are prohibited.

Some countries, usually those with a British parliamentary tradition (Australia, Belarus, Malaysia, New Zealand), also impose restrictions on criticism of judges and on statements concerning cases pending before a court (*sub judice* cases). In Malaysia, members of Parliament are not permitted to criticise judges. In Australia, . . . custom requires that debates which could result in a position being taken with regard to pending court cases be avoided unless the assembly considers it appropriate to waive this rule in the public interest. This rule of custom does not appear in Parliament's Standing and Sessional Orders but it is applied and interpreted by the Speaker according to circumstances. In the United Kingdom, the Standing Orders of the House of Commons stipulate that members of parliament may not criticise a judge except through a motion.

A member of parliament who does not respect this rule enjoys, however, the protection of privilege. Similar provisions exist in South Africa and Ireland with regard to accusations made against the head of state, members, judges and certain other elected representatives. Such accusations cannot be made during a debate but they can be made in a motion.

The dissemination of information concerning closed sittings of parliament seems to fall outside the scope of parliamentary non-accountability in all cases. The same applies to acts such as assault, which are more serious than words. In Denmark, however, it is expressly stipulated that, alongside verbal statements, all "symbolic" actions are covered by privilege.

A number of countries also treat libel and defamation as inadmissible acts (Belarus, Estonia, Hungary, Mongolia, Republic of Korea).

Lastly, the protection afforded by freedom of speech does not apply in some countries (Hungary, Mongolia) where there has been a breach of "State secrecy."

Degree of protection afforded by parliamentary non-accountability

The degree of protection against prosecution afforded by parliamentary non-accountability differs considerably from one country to another. In a number of countries, parliamentary privilege is absolute. All forms of judicial proceedings — criminal, civil and disciplinary — are excluded in, for example, Belgium, Canada, Denmark, Egypt, France, Hungary, Italy, Mongolia, Portugal, Switzerland and the United Kingdom. Non-accountability thus precludes the arrest of a parliamentarian or the issue of a summons to appear before a court or tribunal.

In some countries, particularly those with a British parliamentary tradition (India, New Zealand), non-accountability provides protection against civil but not against criminal proceedings. In rare cases, the situation is reversed (Guinea, Slovenia). In Spain, an Act of 1988 extended parliamentary non-accountability to proceedings before the civil courts, but it was annulled by the Constitutional Court as unconstitutional.

In Norway, non-accountability does not prevent members of parliament from being summoned to appear before the Constitutional Court, which is composed of parliamentarians and Supreme Court judges. It may convict members of criminal offences. To date, however, this procedure has not been applied.

Lastly "in South Africa there is a special legislative provision with regard to witnesses. If they have made statements before the assembly or in committee which, according to the Chair, are complete

and truthful, they are provided on request with a certificate. This document obliges courts and tribunals to suspend all civil or criminal proceedings against them on the basis of their testimony to the assembly or a committee, except in cases of perjury.”

* * *

Parliamentary inviolability/ immunity

Fear of the Executive

Like freedom of speech, freedom from arrest is a concept with deep roots in English history. This type of “inviolability,” which protects members from arrest and assault, was demanded by the House of Commons as early as the fifteenth century. It was generally accepted in civil cases but protection against the monarch was more limited in scope until the political changes of the seventeenth century gave Parliament overriding authority. Parliament made several attempts to balance the need for its Members to be free to attend to their duties without fear of arrest against the rights of members of the public in civil causes. Parts of two Acts which sought to strike this balance, the Privilege of Parliament Act 1603 and the Parliamentary Privilege Act 1737, are still on the Statute book.

While Members of the British Parliament have thus long enjoyed “inviolability” that protects them from arrest, this privilege was soon withdrawn in criminal cases. “The only element which now remains is a duty imposed on the head of the local police force to inform the Lord Chancellor or the Speaker of any arrest that is followed by detention. If a Peer or Member is sentenced to a term of imprisonment, the court similarly informs the Lord Chancellor or the Speaker. A member can even be arrested in the precincts of the House in respect of a criminal offence.” Inviolability thus protects a parliamentarian from arrest only in civil cases, i.e. in all cases other than criminal proceedings. While this was no doubt advantageous at a time when imprisonment for debt was not unusual, now that arrest or detention for civil offences is almost obsolete in the United Kingdom and most other Commonwealth countries, this type of inviolability serves little purpose. It means, for example, that a writ or summons cannot be served on a Member within the precincts of Parliament without the latter's authorisation.

In France, following the 1789 revolution, it became necessary to guarantee both the non-accountability of parliamentarians for opinions expressed in the exercise of their duties and their inviolability. The latter was recognised in the Decree of 26 June 1790, which guaranteed protection for members of the Assembly against indictment without the latter's authorisation. The 1791 Constitution, which contains the first constitutional provision governing immunity, establishes the basic principle underlying the regime: “[The representatives of the Nation] may, in the case of criminal offences, be arrested *in flagrante delicto* or on presentation of an arrest warrant; but the Legislature shall be notified thereof forthwith; and the proceedings may not continue until the Legislature has decided whether or not the charge is founded.” As already stressed, the relatively broader scope of parliamentary inviolability in France is closely bound up with the pre-eminent position secured by the National Assembly through the revolution and with fear of the Executive, which was ubiquitous on the continent. It was this fear that gave rise to the principle whereby responsibility for establishing whether proceedings are fair and well-founded and not attributable to persecution on political or personal grounds lies with a committee that reports to the Assembly.

Three major trends

Parliamentary immunity, defined by R. Myttenaere as the protection of members of parliament against civil and/or criminal proceedings for acts other than those undertaken in pursuance of their parliamentary duties, is recognised in the vast majority of countries, but three major trends are discernible.

In a few countries (Grenada, Malaysia, Namibia, Netherlands, Norway, Suriname), ordinary law is deemed sufficient to protect all members of society, including parliamentarians. These countries thus recognise freedom of speech (see parliamentary non-accountability above), but their parliamentarians do not enjoy freedom from arrest (inviolability) in either criminal or civil proceedings. In the Netherlands, for example, an 1884 Act equates members of parliament with ordinary citizens in terms of prosecution and conviction for offences under ordinary law. On the other hand, jurisdiction in respect of offences committed by parliamentarians in connection with the exercise of their mandate lies with the Supreme Court.

Other countries tend in practice to follow a similar line, taking the view that inviolability cannot be allowed to obstruct the course of criminal justice. In the United Kingdom, for example, inviolability is limited in principle to civil cases in order to prevent arrest during a session or during the 40 days preceding or following a session. As the only case of arrest envisaged — enforcement against the person (arrest of a defaulting debtor) — was abolished in the nineteenth century, inviolability in this sense no longer serves any purpose. British parliamentarians are therefore subject to ordinary law, on condition, however, that the Speaker is notified of any proceedings brought against a member and may intervene if there has been an abuse of authority.

Most Commonwealth countries follow British practice. In Australia, for example, inviolability is limited to protection against arrest in civil cases and exemption from the obligation to appear before a court when Parliament is sitting and from jury service. In South Africa, a parliamentarian cannot be compelled to appear in court as a witness or defendant in civil cases being heard at a venue other than that of the seat of Parliament.

In a third group of countries, the risk of parliamentarians' freedom being obstructed by unjustified measures is more clearly discernible, the tendency being to focus on criminal proceedings, in which the latitude given to members of the judiciary or administrative officials may occasionally give cause for concern. Under these circumstances, there are two possible methods of providing protection to members of parliament.

The first consists in giving priority to ensuring that parliamentarians can take part in parliamentary proceedings. Their arrest on the way to or from parliament or within its precincts must therefore be formally prohibited. This is a very rigorous and narrow interpretation of the concept of inviolability, restricting its impact to the minimum. It is applied, for example, in Norway and Ireland (but protection extends to arrest for acts committed by MPs before they were elected to parliament),

The second method consists in extending protection by introducing an effective procedure that nevertheless avoids giving the impression that a major privilege is involved. In a few rare cases (Andorra, Colombia), this procedure takes the form of a judicial privilege, the parliamentarian's case being heard by a different (and usually higher) court than the one that would normally have jurisdiction in such cases. In Colombia, parliamentary inviolability as such does not exist, but the Supreme Court of Justice has sole authority to investigate and try deputies and senators. The usual procedure, however, is to prohibit all cases of arrest or prosecution without the express authorisation of the assembly to which a parliamentarian belongs. This is basically the kind of system that we propose to consider below.

Scope

Ratione personae

In the vast majority of cases, inviolability applies only to members of parliament. In countries with a federal structure, it applies in principle both to members of the federal assembly/assemblies and to members of the parliaments of federated entities. Countries in which inviolability extends to persons other than parliamentarians may be divided into two broad groups. In countries with a British parliamentary tradition, immunity —whose limited scope we have already noted — protects both those who testify before a parliamentary committee or an assembly (Australia, India, Kenya,

New Zealand, Zambia) and certain officials of the parliamentary institution (Australia, Bangladesh, India, South Africa, Zambia).

In other countries, inviolability extends to other office bearers such as the head of State (Belgium, Romania, Switzerland (the Chancellor), The former Yugoslav Republic of Macedonia), ministers (Belgium, The former Yugoslav Republic of Macedonia) and judges of certain courts (Slovenia, Switzerland (Federal Councilors, Judges of the Federal Court), The former Yugoslav Republic of Macedonia). In Spain, the Office of the Public Prosecutor is also covered to some extent.

Ratione temporis

In a large number of countries, members of parliament enjoy immunity from the day of their election (or in countries where not all members of parliament are elected, for example in Egypt, from the day of their appointment). As a result, elected representatives in these countries enjoy parliamentary immunity even before taking the oath. In other countries, immunity does not come into effect on the day of election but on the day the oath is taken (or occasionally on the day of validation of their mandate, e.g. in Croatia).

It is difficult to see any logic in the preceding distinctions. Thus some countries with a British parliamentary tradition have opted for the day of election (Australia, India) and others for the day when the oath is taken (Bangladesh). The same applies to the group of countries whose parliamentary system is based more on French tradition.

The situation is similar as regards the relationship between inviolability and sessions of parliament. In some cases, members enjoy inviolability only during the session. It follows that, within one session, parliamentarians are deprived of this privilege when parliament is in recess (Philippines, Republic of Korea, Switzerland, Thailand). In practice, however, there is often no gap between the end of one session and the beginning of the next, so that the distinction is largely formal (cf. Belgium, United Kingdom). France has acted in consequence: since the 1995 revision of the Constitution, the duration of protection is no longer linked to sessions of Parliament.

In most countries, inviolability covers the entire mandate and may even be prolonged for a period before or after the session. The Czech Republic goes a step further: inviolability applies, following the completion of a parliamentarian's mandate, to all criminal offences committed by the Deputy or Senator for which the relevant assembly refused to authorise proceedings!

Where proceedings have already been instituted when a parliamentarian acquires immunity, very many countries refrain from suspending immunity on that account. In some countries (Finland, Philippines, Sri Lanka), the proceedings take their course and the individual concerned is tried under ordinary law. The same rule is applicable in other countries provided that a certain stage has been reached in the proceedings. In Estonia, for example, the following distinction is made: where a person has already been committed for trial in a criminal case, the proceedings continue as for any other citizen; where a person has not been committed for trial before election day, he or she may invoke immunity.

In a few rare instances, proceedings in progress continue unless the assembly demands their suspension (Poland). In some cases, however, the assembly can request suspension only at an advanced stage in the proceedings, more specifically in order to suspend (temporarily) the detention of members of parliament or proceedings against them before a court or tribunal (Belgium).

In most cases, however, judicial proceedings cannot be pursued without the explicit authorisation of the assembly. This rule applies in countries as diverse as Denmark, Germany, Greece and Switzerland. "Moreover, certain constitutions explicitly stipulate that the assembly must be informed at the beginning of the session of any proceedings against one or more of its members

(Kuwait).” Here again, “it is the Czech Republic which goes furthest: if the assembly does not authorise the continuation of proceedings against one of its members for an act committed before his or her election, all proceedings are absolutely prohibited.”

Ratione loci

As a rule, the place where an offence was committed by a member of parliament is of no relevance from the point of view of parliamentary inviolability. It should be recalled, however, that in some countries with a British or Scandinavian parliamentary tradition, the question of location plays a role in terms of the scope of privilege (protection against arrest solely on the way to or from parliament or in the precincts of parliament: Ireland, Norway, Zambia).

Ratione materiae

The application of parliamentary inviolability is generally limited to criminal proceedings and does not even apply to all criminal cases. However, countries with a British parliamentary tradition belong to a special category in this regard because inviolability is never applicable to criminal or disciplinary matters and only very limited protection is afforded in civil cases.

In rare cases (e.g. Guinea), inviolability is applicable to all proceedings, whether criminal, civil or disciplinary.

Restrictions based on the nature of the offence

Leaving aside cases of *flagrante delicto*, we find a wide range of restrictions based on the nature of the offence.

To begin with, some States make no distinction in terms of the nature or gravity of the offence. This group includes not only a number of parliamentary systems based on the French model (Belgium, Chile, France, Italy, Spain and Uruguay), but also countries such as Croatia, the Czech Republic, Estonia, Finland, Malaysia and Mozambique.

Among countries in which certain offences are not covered by parliamentary inviolability, a distinction may be made in terms of the nature/seriousness of the offence.

Some countries clearly base themselves on the principle that certain offences are so serious that the perpetrator cannot be granted immunity. Thus, criminal offences constitute an exception in many countries with a British parliamentary tradition (e.g. Kenya). In other cases, an exception is made for offences that are probably viewed as particularly shocking, for example high treason in Belarus and Ireland (where the same applies to felonies and breaches of the peace). Libel and defamation also sometimes constitute an exception (Belarus). In some cases, a distinction is made on the basis of the term of imprisonment that may be imposed for a particular offence (in the Philippines no protection exists for offences punishable by more than six years' imprisonment; in Sweden protection exists only if the offence is punishable by less than two years' imprisonment and the member of parliament has not acknowledged his or her guilt).

Other countries take the contrary view that immunity should apply in serious cases and not for minor offences. They doubtless consider that proceedings in serious cases are particularly likely to affect the exercise of the parliamentary mandate. In these countries, civil offences (Denmark, Gabon, Republic of Korea, Slovenia) and/or petty offences (Mali) are not covered by privilege. In Poland, all offences entailing civil liability and criminal or administrative liability are excluded.

Freedom from arrest only or also from committal or being summoned to appear before a court?

In some countries, inviolability precludes all legal proceedings. The Romanian Constitution, for example, stipulates that members of parliament “cannot be detained, arrested, searched or prosecuted for criminal or petty offences without the authorization of the Chamber concerned, after a hearing, save in cases of *flagrante delicto*.” In Poland, inviolability is applicable to all stages of criminal proceedings, thus covering all preliminary measures (such as examination of a suspect, service of a summons, taking into custody or delivery of a search warrant), all stages of judicial proceedings and the enforcement of penalties. In most countries parliamentary immunity is less comprehensive and only offers protection against arrest (or various forms of deprivation of liberty) and/or committal or being summoned to appear before a court.

Protection against arrest is the most widespread form of immunity. In Argentina, for example, no member of parliament may be arrested without the authorization of the assembly, but parliamentarians enjoy no protection whatsoever at any stage of legal proceedings (up to and including conviction).

The definition of “arrest” may vary greatly from one country to another. The provisions applied in Germany are the most explicit in this context: immunity precludes any measure restricting liberty, including all forms of detention such as the service of a warrant to bring a suspect before an investigating judge or a compulsory residence order, civil imprisonment, police custody or alternatives to imprisonment, house arrest or any restrictions on freedom of movement. In Belgium, on the other hand, “arrest” is defined solely as judicial arrest which comprises both arrest in enforcement of a judgement and detention on remand (pretrial detention). This term does not, therefore, cover arrest undertaken in execution of a warrant to bring a suspect before an investigating judge or administrative arrest by the police for preventive purposes and to keep the peace (the police may therefore take a parliamentarian who causes a disturbance on the public highway into custody for 12 hours). There is a comparable regulation in Slovenia, where immunity protects against arrest and detention but not against other forms of deprivation of liberty that may be ordered during an investigation. In Finland, immunity protects against arrest, detention and orders prohibiting travel.

In other countries, the lifting of a parliamentarian’s immunity is a prerequisite not only for arrest but also for committal and the service of a summons to appear before a court, but only in criminal cases (Belgium, Croatia, Egypt, Gabon, Germany, Poland, Romania, Uruguay). It should be noted that Belgium requires not only prior authorization by the assembly before a parliamentarian may be summoned, but also that the summons be issued by the Office of the Public Prosecutor. A member of parliament cannot therefore be directly summoned by a party claiming damages during a session of Parliament.

Parliamentary inviolability and flagrante delicto

In most countries where parliamentarians enjoy protection against arrest in criminal proceedings, an exception is made for cases of *flagrante delicto*. The notion is sometimes interpreted somewhat broadly. In Germany, for example, parliamentarians cannot invoke immunity if they are arrested the day after the offence is committed.

In applying the concept of *flagrante delicto*, a distinction is sometimes made in terms of the nature or seriousness of the offence. In Estonia, for example, inviolability still applies as a rule even if the parliamentarian is caught in the act of committing an offence. If it is a serious criminal offence, however, certain measures may be taken before Parliament suspends the MP’s immunity. In Greece, parliamentarians do not enjoy inviolability if they are caught in the act of committing a felony. It follows that prior authorization by Parliament is required for offences or misdemeanours other than felonies, even in cases of *flagrante delicto*. In Portugal, parliamentarians lose their immunity only in cases of *flagrante delicto* involving a crime punishable by a prison term of more than three years (in Finland more than six months, in the Philippines more than six years and in the Former Yugoslav Republic of Macedonia more than five years).

In some countries, parliamentarians may be arrested in cases of *flagrante delicto* but the assembly's authorization is required to keep them in pre-trial detention (Czech Republic, Hungary, Slovakia). Swiss law stipulates that, in cases of arrest *in flagrante delicto*, not only the assembly but also the individual concerned may authorize his or her own detention.

It is generally accepted that *flagrante delicto* is a logical restriction on parliamentary inviolability. It entails certain risks, however, as it may serve as the ideal loophole for arresting a parliamentarian protected by parliamentary immunity. For example, the report of the IPU Committee on the Human Rights of Parliamentarians refers to the case of two opposition members convicted by the *Flagrante Delicto* Court of an unspecified country for taking part in an anti-government demonstration that started out peacefully but degenerated and led to acts of violence. By virtue of their mere involvement in the demonstration, the two parliamentarians were deemed to be co-perpetrators of the offences and were convicted under the *flagrante delicto* procedure, without prior lifting of their parliamentary immunity.

Questions and Discussion

1. Discuss the extent of immunity and privilege met out to MPs in Ethiopia under the Constitution's Art. 54. In what ways is the Ethiopian immunity system more protective? And in what other ways is it less protective of parliamentary immunity?
2. Do you think that under Art. 54 of the Ethiopian Constitution the parliament can suspend or refuse a request for the lifting of parliamentary immunity of an MP who is believed to have violated the law?
3. Would a criminal prosecution of an MP be a ground for his loss of mandate? What does the law say?

ii. Dissolution of Parliament

The situation in which the parliament is disbanded before the expiry of its term is very common in parliamentary and semi-parliamentary systems, and is rare in presidential systems; in fact, the U.S. system, for example, does not envisage a possibility for the dissolution of the House of Representatives or the Senate. It is also necessary to note that dissolution applies normally to the lower house, rather than the upper house. Australia may be cited as a rare exception in that its 1900 Constitution (as amended) clearly regulates a situation in which both houses can be dissolved if they cannot agree on the passage of a law and deadlock occurs (See Section 57 of the Constitution). Even in Australia, it is rare for the two houses to be dissolved simultaneously, but the lower house can be dissolved whenever there is a problem within the majority party that is difficult to resolve. In all cases, dissolution will be undertaken by the Governor-General (the Queen's Representative) with the advice of the Prime Minister. Again, in other systems such as the UK, Germany, Japan and other democratic parliamentary systems, the head of state would undertake the dissolution with the advice of the head of government. But slight divergences exist within the legal systems and one has to look at the language of the constitutional provisions to note the exact requirements. One thing, however, has to be noted, and that is that dissolution of parliament is a great mechanism of checks and balances among the legislature and the executive in a (semi-) parliamentary system. Each can use it against the other when their political cooperation is strained.

Questions and Discussion

1. The Ethiopian Constitution regulates dissolution of the HoPR in Art. 60. The first scenario is said to be that the Prime Minister may cause the dissolution of the House with the consent of the House, before the expiry of its term in order to hold new elections. Here we see that it is the Prime Minister who can cause the dissolution, not the head of state. The other point is that the House must consent to its dissolution. How would the House consent to its dissolution? This means that if the House refuses to consent, the Prime Minister cannot dissolve the House; in such a case what would happen to the relationship between the Prime Minister and the House? Can they undertake the government's business properly?
2. The second ground for House dissolution comes through the president of the Republic: *The President may invite political parties to form a coalition government within one week, if the Council of Ministers of a previous coalition is dissolved because of the loss of its majority in the House. The House shall be dissolved and new elections shall be held if the political parties cannot agree to the continuation of the previous coalition or to form a new majority coalition.* The Constitution is not specific about who can be in charge during this political instability. What do you think about this problem of the Constitution? Who do you think should be in charge? Do you think Art. 60(5) would solve any possible problem arising out of such a situation?
3. The dissolution law also says that following the dissolution of the House, the previous governing party or coalition of parties shall continue as a caretaker government. Beyond conducting the day to day affairs of government and organizing new elections, it may not enact new proclamations, regulations or decrees, nor may it repeal or amend any existing law. What if an emergency situation has occurred while a parliament has been dissolved? Should the care-taker government be prohibited from passing an emergency declaration as per Art. 93 of the Constitution? What legal solution can you offer here?

iii. Functions of parliament

Getachew Assefa, "Parliamentary Oversight and Constitutionalism in Ethiopia: An Appraisal," in *Ethiopian Constitutional Law Series*, Vol. 3 (Addis Ababa: Addis Ababa University Press, 2010). Footnotes omitted.

* * *

The Roles of Parliament: An Overview

The legislative branch of government undertakes several pivotally important responsibilities in a given political system. The essential common feature of legislatures of modern democracies is their representation of the popular will in the most proximate way that is possible. The people, with whom sovereignty lies, participate in decision making through the deputies they elect in a free and fair election.

We referred to "parliaments of democracies" shortly above as those that represent the will of the people with a deliberate sense of the meaning of the phrase, because parliaments in non-democratic systems cannot live up to the ideals of representing the popular will. The non-democratic nature of a parliament may be immediately linked to the absence of free and fair elections in the election of its members. But, there can also be other institutional, legal and procedural problems that make parliaments undemocratic. Therefore, one could see that the first important challenge in having a well-functioning parliament as a representative of the people is to have a parliament that is constituted on the basis of free and fair elections. This in turn has to do with the overall state of democracy and the respect for democratic rights in the given polity.

In what follows, we shall briefly consider the overall responsibilities of parliaments – whether they function in presidential, parliamentary or mixed executive forms of government – and then focus more on the oversight functions of same. The objective of the article is to appraise the importance of parliamentary oversight for the enforcement of the Constitution (and thereby bring about constitutionalism) in Ethiopia. In order to meet the above objective, the article attempts to see the idea of parliamentary oversight in a theoretical and comparative perspective before going deep into the consideration of the Ethiopian case. It shall begin with the discussion of the overall powers and functions of parliaments in order to see their oversight function in the wider context.

There are some studies conducted on the idea of how the powers and functions of parliaments may be affected by the level of political as well as socio-economic development of the states concerned. The studies generally have shown that legislatures in the “Third World” countries were “at best marginal to the law-making processes of the nations in which they existed.” However, even these studies have confirmed that although the roles of Third World legislatures in the law-making process is minimal, they have played non-law-making functions such as representation and legitimization of the political process. But on a more principled note, there is no disagreement that parliaments are expected to have the powers and functions encompassing the following law making activities:

- approval of taxation and expenditures, generally in the context of the national budget;
- oversight of executive actions, policy and personnel;
- ratification of treaties and monitoring of treaty bodies;
- debating issues of national and international moment;
- Educational and awareness creation functions;
- hearing and redressing grievances; and
- Approving (participating in) constitutional change.

Parliaments therefore are empowered with activities that affect the lives of the members of the society so profoundly. Each of the activities that are listed above is so fundamental in its own right that each has far reaching implications for the nation concerned and the members of the society. Together, these tasks of parliament affect the whole fabrics of governance of a nation. Therefore, parliaments must undertake these functions “effectively, not only in the sense of the efficient organization of business, but of doing so in a way that serves the needs of all sections of society.”

* * *

The Constitutional Legal Dispensation on Oversight and Accountability in Ethiopia

Since 1995, Ethiopia has been structured as a parliamentary federal state. The 1995 Constitution of the Federal Democratic Republic of Ethiopia (hereafter referred to as the Federal Constitution or the Constitution) created a federal republic composed of nine states and two administrative districts. The Constitution details the powers of the two tiers of government, i.e., the national and regional state levels. The most important provisions of the Constitution on sharing of powers between the two levels of government are Articles 51 and 52.

Art. 51 enumerates the powers and functions of the Federal government. This article empowers the federal government to formulate and implement policies, strategies, and plans which affect the whole nation in economic, social, fiscal, monetary, development, science and technology fields. It also empowers the Federal government to do many other things with national and international implications such as formulation and implementation of foreign policy; negotiation and ratification of international agreements; regulation of inter-state and foreign commerce; make interventions in the regional states in cases of deteriorating human rights and security situations; giving practical effect to the political rights recognized in the Constitution; and enactment of laws for the utilization and conservation of land and other natural resources.

Art. 52 details the powers and functions of the federating states. This article includes the principle of residual powers which states that “all powers not given expressly to the federal government alone, or concurrently to the federal government and the states are reserved to the states.” It also explicitly lists certain powers of the states which include the powers to: establish a state administration that best advances self-government and a democratic order based on the rule of law; enact and execute state constitutions and other laws, and; formulate and execute economic, social and development policies, strategies, and plans of the state. Though the constitution does not include a provision that requires states to establish parliamentary form of government, several parts of the Constitution (such as Art. 50) seem to imply that states should also establish a parliamentary form of government.

Art. 50 lay down the basic structure of the Federal and regional governments. It stipulates that the Federal government and the state governments shall have legislative, executive and judicial powers. It further states that at the Federal level, the House of Peoples’ Representatives (HoPR) shall be the highest authority, while the state councils (state legislative assemblies) shall be the highest authority at the state level. The Constitution also provides for a horizontal division of powers among the various Federal state organs. The most important powers of the HoPR are listed in Art. 5, while those of the federal executive are contained in Arts. 74 and 77.

The Federal Constitution does not attempt to regulate all the constitutional matters of the members of the Ethiopian Federation, but it provides the basis for their structure. Art. 50 of the Constitution provides that state governments shall be established at the state and other administrative levels as necessary and that adequate power shall be granted to the lowest units of government to enable the people to participate directly in governance. State constitutions detail the powers and functions of their organs of state. The state constitutions, following the federal constitution, reiterate that the state councils are the highest political authorities in the internal affairs of the states.

While looking at the power relationship between the legislative and executive organs of both the Federal and states levels, the legislative organs are constitutionally declared to be the highest political authorities. In other words, the relationship between the legislature and executive is a superior-subordinate one, rather than one of co-equals. This is in line with the principle of power relations in parliamentary systems of government. In all republican parliamentary systems, the executive being part of the legislative body, is the direct implementer of the laws, policies and strategies of the ruling majority in the parliament and as such does not have one of its own.

A close illustration of this point is our own system of government. Art. 45 of the Federal Constitution stipulates that “The Federal Democratic Republic of Ethiopia shall have a parliamentary form of government.” As an essential mark of this form of government, we have the executive branch of the Federal government (i.e., the executive) to come from among the members of the House of Peoples’ Representatives. Accordingly: Art. 56 of the Constitution states that “A political party, or a coalition of political parties that has the greatest number of seats in the House of Peoples’ Representatives shall form the executive and lead it;” Art. 73(1) states that “The Prime Minister shall be elected from among the members of the House of Peoples’ Representatives;” Art. 73(2) further states: “Power of Government shall be assumed by the political party or a coalition of political parties that constitutes a majority in the House of Peoples’ Representatives.” When it comes to the governments of the regional states, there is no clear stipulation as to the form of government. But as stated above, implicit in the relevant provisions of the regional constitutions is the message that regional governments are also parliamentary in form. In all regional Constitutions, there is a declaration that the state councils (state legislative bodies) are the highest authority of the respective states and that the state executive councils are accountable to the legislative councils. See, for example, Art. 46 of the Constitution of the Southern Nations, Nationalities and Peoples’ State (SNNP); Art. 46 of the Constitution of the Amhara State; and Art. 46 of the Oromia state Constitution.

It should be noted that legislative control over the executive in presidential systems and parliamentary systems are different from each other. Any legislative control over the executive in parliamentary systems depends greatly on the nature of legislative-executive relations, and on the extent to which political parties and/or the executive exercises control over the behavior of the legislature. The idea is that in systems with high party discipline whereby the members of the legislature are required to show loyalty to the government (executive) coming from their party—whether the latter does good or bad—the oversight task of that legislature would be negatively affected. This in other words means that due to the kind of loyalty imposed on the party members in the legislative bodies, the latter would not clamp down on the executive as this would be considered to be endangering the interest of the party as a whole. As the executive leaders often come from the party leadership, it is easy to imagine the executive's indirect control on the legislature in parliamentary systems. In fact, this may not be true in parliamentary systems, where the executive is often a party coalition because one-party support for the latter may not always result from the legislature, making the executive weaker in the face of the legislature and the opposition therein. This is simply because in a coalition parliamentary government, the government comes from alliances of different parties holding seats in the legislature, the chief-executive coming normally from the party that has greater number of seats in the legislature. Alliances between parties in such cases are normally created for the sake of forming government and are not long term ones. Because of this, there will not be a unanimous support for the executive policies as well as their implementation. This in a way creates a conducive situation for oversight.

Because of the peculiar relationship between the legislative and executive organs in parliamentary systems, their relationship cannot easily be characterized in terms of checks and balances. There is legally no process by which the executive “checks” the powers of the legislative body. Legally speaking, the executive can be held accountable by the legislature without having the power to demand accountability from that legislative body. The legislative body in such case will only be formally accountable to the constitutional system and to the electorate. It would be accountable to the constitutional system because it will be required to function under the Constitution respecting the limits of power imposed on it by the Constitution. The constitutional system has also created a system of review of the constitutionality of laws and decisions of the legislature by a body in charge of constitutional interpretation. This is a system in which the laws and decisions of the legislature (and in fact of the executive as well) would be nullified if found to be in transgression of the constitution. The other control on the legislature is obviously the will of the electorate who would vote members of the former out of office when they become not worthy of support and replace them with others.

The issue of legislative oversight is therefore a particularly relevant and complex matter for parliamentary systems. Both the federal and state constitutions of Ethiopia have taken note of this and enshrined the importance of ensuring the accountability of the executive branch. There are several ways in which the supervisory powers of the parliaments are entrenched in the state and Federal constitutions. For example, in most cases, the legislative bodies have the powers to enact laws, establish institutions, approve budgets, approve policies, strategies and plans, levy taxes, and make appointments, while the executive organs have the power to implement the legislative bodies' decisions. This is an example of where legislative oversight is necessary. When the executive implements and executes the laws and policies which the legislature authored, the legislature must be able to ensure that the executive has acted in accordance with the spirit of the laws the legislature passed. The legislature must be able to assure that the executive has not acted in violation of its duties or otherwise failed to perform them.

The above describes the general scope of parliamentary control. More direct statements spelling out the powers of the legislative bodies over the executive are found in the respective state and Federal constitutions of Ethiopia. In the case of the Federal legislature, significant, far-reaching powers are given to it in order to for it to engage in oversight over the federal executive. Accordingly, the HoPR has the power to call and question the prime minister and all other federal officials, and to

investigate the executive's conduct and fulfillment of its responsibilities. Furthermore, upon the request of a third of its members, the HoPR has the power to "discuss any matter pertaining to the powers of the executive. It has, in such cases, the power to take decisions or measures it deems necessary."

The Ethiopian Constitution lays down as one of its fundamental principles the "conduct and accountability of government." By stating the principle of general import that "the conduct of affairs of government shall be transparent", it goes on to specify that "any public official or an elected representative is accountable for any failure in official duties." Therefore, in respect of elected or appointed officials, the duty to account is unmistakably a constitutional principle from which there is no escape. As far as the executive and other officials are concerned, as shall be brought to full view subsequently, the legislature (both Federal and states) is constitutionally mandated to play a pivotal role in ensuring their accountability.

To understand legislative oversight, it is important to emphasize that the executive's conduct of its responsibilities, and its discharge of its responsibilities (both in process and in products or decisions) are all subject to scrutiny. It is also necessary to understand that each and every Federal executive official is subject to whatever questionings, investigations, and corrective measures are deemed necessary. It is interesting to note that regional constitutions include fewer provisions dealing with legislative scrutiny of the executive than are included in the Federal Constitution. The regional states' constitutions do not contain the equivalent of the Federal Constitution's Art. 55(18), which gives the legislature the power to, upon the request of one-third of House members, discuss any matter pertaining to the powers of the executive and to take decisions or measures deemed necessary. The provisions regarding legislative scrutiny are necessary to facilitate the legislature's ability to call and question the executive.

The constitutional requirement for answerability of the executive is also addressed in the Constitution in the provisions dealing with the powers and functions of the executive organs and officials, as well as under other legislation dealing with executive powers. Art. 72 of the Constitution, for example, states that the prime minister and the Council of Ministers are responsible to the HoPR. Art.76 further reinforces that the Council of Ministers is responsible to the HoPR in all its decisions.

Arts. 74 and 77 of the Constitution also detail the answerability to the HoPR of the prime minister and the Council of Ministers respectively. The overall idea of the two provisions is that these bodies, the two highest executive bodies of the Federal government, are responsible for implementing and executing the laws, policies, plans and strategies put in place by the HoPR. This also means that the prime minister and the Council of Ministers are accountable for non-performance or failures. The answerability of the regional executive bodies and agencies has also been stipulated in the regional laws and constitutions. Regional states' executive bodies are accountable to the regional legislative councils.

In some Ethiopian regional states there are also legislative councils at the sub-state level. These are known as "councils of the nationality administration" and Woreda councils in the Amhara state, and "zonal or special woreda councils" in the State of Southern Nations, Nationalities and Peoples. Woreda or such lower level councils are also operative in all other Regional States either on nationality-based compositions or otherwise. These local legislatures conduct oversight of the local executive and oversight of programs contained in state and/or local legislation that the local executive is expected to implement.

These constitutional framework and institutional arrangements for oversight are further operationalized by the enactment of rules of procedures for the conduct of parliamentary business both at the Federal and state levels. To illustrate this, we will discuss the rules of Procedure of the HoPR embodied in Regulation # 3/2006. This Regulation contains parliamentary oversight

principles and objectives as well as procedures of conduct of oversight, and measures that may be taken by the House in cases of violations. Art. 73 of the Regulation states the objectives of the parliamentary oversight, termed “follow up and supervision”:

The Objective is to ensure the proper usage of the resources and property of the government, the performance of tasks in accordance with law and order, the existence of fair and rapid development directions, the prevalence of democracy and good governance, respect for citizens’ rights and the maintenance of peace and security as well as the existence of coordinated working process among government bodies.

More specifically, Art. 74 stipulates the matters and bodies of oversight in the following manner:

The House shall conduct supervision and follow up around the matters specified below:

- a) The implementation and the direction of the national polices, strategies, plans, laws and perations towards advancing the Country’s development,
 - a) oThe observance of the fundamental rights and freedoms of citizens, and
 - b) The proper implementation of the budget and resources of the federal government.
- b) The House shall exercise supervision and follow up over the bodies mentioned below:
 - a) Federal Government organs,
 - b) A regional state which is unable to stop and control violations of human rights in accordance with Article 55 (16) of the Constitution.

It must be clear from the objective as well as the matters for oversight enunciated in the above provisions that oversight activities of the HoPR are meant for, among other things, ensuring the carrying out by government organs of tasks according to law, bringing about democracy and good governance, and crucially as well, ensuring respect for fundamental rights and freedoms of citizens. These and other oversight activities depicted above are directly related to the act of ensuring the implementation of the constitutional rules and principles which occupies the center stage in the idea of constitutionalism.

With respect to the mechanisms of supervision and follow-up to be used by the House, the Regulation refers to the mandate the House obtains from the Constitution, and accordingly stipulates that the HoPR shall cause government organs to submit a report in person directly to it or the committee concerned at least once a year. The House also shall cause the Prime Minister to appear in person before it at question time allocated to them and give oral answers. The Regulation also states that “where necessary, the House may order government organs to be audited.” In order for it to undertake the investigation and fact finding, it is also stipulated that the House may, where necessary, cause institutions, witnesses, and experts to appear before it as well as documents to be submitted to it. Importantly also, it is stated that “the House shall conduct supervision and follow up on the basis of reports and information submitted to it by government organs, committees, the public and non-governmental organs.”

Regarding the measures, the HoPR shall take in respect to problems laid bare by its supervision of the concerned government bodies; the Regulation specifies the remedial measures to be taken:

- a) Where the problem emanates from the law it shall provide legal support or complement the loophole in the law through legislation.
- b) It shall take corrective measures where problems of governmental bodies are related to the budget and where it is ascertained so to be by the competent body.
- c) It shall cause a given governmental office to recognize its problem and give it directives to correct its weakness
- d) Where the problem is not rectified and where it is serious, it shall cause a measure to be taken through the Prime Minster on the body responsible for the problem, and shall

follow up the implementation of the measure taken. e) Where the problem is created by institutions directly accountable to the House, it shall take the necessary measure in accordance with the law.

The measures the House may take contain both constructive and punitive engagements with the government organ that is found at fault. And interestingly, the House seems to opt for the taking of the measures to be done through the Chief-executive. But one may ask a question here that the scheme of doing things may make the chief executive immune from supervision or make him or her “unoversightable.” And the Regulation does not specifically embrace situations where the chief-executive and the cabinet in general are the subject of the oversight. In fact, the Regulation deals with the case of a “vote of no confidence,” which is the ultimate measure the House could take to express its dissatisfaction on the Executive leadership’s conduct of government business. But still one may want to see in the Regulation loud and clear mechanisms of constructive oversight engagement involving the chief executive.

As discussed earlier in relation to other systems, in our case too, we see that oversight functions of the HoPR are undertaken both at the House-level and at the level of the standing committees. These departmentally based standing committees undertake much of the oversight and follow-up functions. They serve as the expert bodies in their respective areas advising the House on breaches extant and measures needed. For these the committees use various means such as causing the concerned government organ submit report; undertaking investigations and fact-finding activities (such as inspection of documents, on-site visits and hearing of witnesses); and submitting written and oral questions to leaders of government organs concerned.

Questions and Discussion

1. The above excerpt from Getachew Asssefa’s article emphasizes the oversight functions of the Ethiopian parliaments. Do you think that the Regulation has put in place a strong mechanism to control the executive, including the Prime Minister? What are its possible weaknesses?
2. The paper discusses various factors that determine the effectiveness or otherwise of an oversight in a given parliament. Discuss and reflect on the main ones. Connect your discussion with Ethiopia and discuss how these factors have or may affect parliamentary oversight in Ethiopia.

iv. The Legislative Function of Parliaments

The function with which a parliament is most clearly associated is legislative. This makes up of its traditional function in the tripartite division of functions of organs of state. There are many ways in which the parliament undertakes its legislative functions, and in the ways the executive takes part in law making to the extent of vetoing the legislative proposal, mainly in presidential executive systems like that of the U.S.A. There are as well various ways in diverse legal systems through which laws are initiated, debated and enacted. Currently, the process of legislation in the Ethiopian HoPR is guided by Regulation # 3/2006.

In federal systems, the law making powers are normally divided among national and sub-national legislatures. As to which powers are assigned to which level, there is no universal formula, and the division of powers is made according to the underlying agreements in the society and the main political forces.

The 1995 Ethiopian Constitution has taken a stand in which the legislative powers of the federal legislature, i.e., the HoPR have been designated clearly in the Constitution, while those not clearly

assigned were reserved to the states' legislatures. (See Art. 52 (1)). The important legislative functions of the HoPR are set out in Art. 55 of the Constitution. The main source of federal powers is Art. 51, supplemented with other provisions like Arts. 96, 99, and 55 itself, which appropriates more law making functions for the federal government, not expressly envisaged in Art. 51.

* * *

Questions and Discussion

1. Art. 55(1) declares that the HoPR is the legislature on all matters under the federal jurisdiction, but 55(2), (3), (4) and (5) go on to enumerate the law-making competence of the HoPR. What are the distinctions between the three: 55(1); 55(2); and 55 (3-5)? Do you think they serve exclusive purposes as they stand or are they just the result of poor draftsmanship?
2. Look at each of the powers under Art. 55(2). Do you think each merit to be put under the federal legislative power? If not, which ones could be placed under the state's legislative competence? Why? Can you gauge any clear policy behind the division of legislative power between the federal and state's legislatures in the Constitution?
3. The Constitution decides that the labor code, the commercial code and the penal code lie within the law making competence of the federal government. What could have been the main reasons for this decision? Do you think it was a wise decision?
4. Art. 55(5) indicates that the state legislatures can enact penal law in areas not specifically covered by the federal penal legislation. Do you think this is a meaningful share of power? Why do you think the makers of the Constitution have stated this here, but not in relation to the labor code or commercial code?
5. Art. 55(6) of the Constitution also states that certain areas of civil law, based on their advantage for the federal union, could be selected by the HoF and submitted to the HoPR for the latter to pass law on them. What possible areas can you think of here? Do you think this may indirectly undercut the power of the states to regulate civil matters by themselves? What can you tell a state that may be concerned about the usurpation of power by the federal government through Art. 55(6)?

a. The Executive

The executive is the other political branch along with the legislature. This is often the most powerful of the branches of government as it has a control of the sword, as it is often said. The comparative literature on separation of powers and other matters included in this material provides ample discussion regarding the executive branch of government too. So it is advised that you carefully comb these materials for understanding how the executive works and thrives.

The Ethiopian constitution also maintains a division and institutional separation between the executive and the legislature, although as a parliamentary system the two politically speaking are "fused" together. The fundamental distinguishing feature of the parliamentary form of government is that the majority party in the legislature forms and leads the executive. In line with this, the Ethiopian Constitution also provides that "a political party, or a coalition of political parties that has the greatest number of seats in the House of Peoples' Representatives shall form the Executive and lead it." (Art. 56). Further Art. 73 regulates in further detail the same matter by stating that the Prime Minister shall be elected from among members of the House of Peoples' Representatives, and that the Power of Government shall be assumed by the political party or a coalition of political parties that constitutes a majority in the House of Peoples' Representatives.

It is clear that executive power is exercised in multiple ways and areas from the top to lower levels. Although administrative agencies in modern days have assumed their own distinct significance, they are broadly subsumed under the executive. In some cases, of course, certain agencies of administrative type have a constitutionally-protected independence from the executive.

When it comes to the highest executive power, the Ethiopian Constitution again specifically states that “the highest executive powers of the Federal Government are vested in the Prime Minister and in the Council of Ministers.” Thus in the absence of a better clarity, one can say that the Prime Minister and the Council of Ministers jointly serve as the highest executive. One should of course be mindful of the division of “the highest executive power” undertaken by Art. 74 (for the Prime Minister) and Art. 77 (for the Council of Ministers).

It is interesting to also note that the Constitution clearly (Art. 72) establishes the responsibility of the two, saying that “the Prime Minister and the Council of Ministers are responsible to the House of Peoples’ Representatives,” while it also stipulates that “in the exercise of State functions, members of the Council of Ministers are collectively responsible for all decisions they make as a body.” The Constitution further provides for what seems to be a dual accountability of the council of Ministers under Art. 76: “The Council of Ministers is responsible to the Prime Minister; in all its decisions, the Council of Ministers is accountable to the House of Peoples’ Representatives.” This begs the question as to how this works in practice.

Questions and Discussion

1. Returning to the point just stated, what are the practical consequences and possible problems of double accountability of the Council of Ministers to the Prime Minister as well as to the House of Peoples’ Representatives? Is there any way of dividing up the “responsibleness” into two parts?
2. Look carefully at the powers of the Council of Ministers and those of the Prime Minister under Articles 77 and 74, respectively. Have these powers been neatly divided? Or do some of them overlap? What may happen in the event of overlap of powers?
3. In April 2007 the Cassation Bench of the Federal Supreme Court handed down a decision on the power relationship between the Prime Minister and one of the sector ministries, in this case the Ministry of Works and Urban Development. In *Princess Tenagnework Haile Sellassie et al. v. Rented Houses Administration Agency* (File No. 16195), the Bench was asked by the applicant, the Agency, to quash the lower court’s decision that the plaintiffs in the case deserve to be paid arrears (from 1975-1996) of the allowances in lieu of the incomes they could have obtained from their houses that were confiscated by the military government. The courts made their decisions based on Proclamation No. 47/1975 (Art. 21(2)), which states that a victim of confiscation of houses may be given a monthly allowance if he/she does not have any other income. The Agency argued on its part that the plaintiffs were living on government expenses for about 15 years in prison, and that they now resided abroad and the lower courts passed the decision without making sure that the plaintiffs did not have other income.

An interesting question to us is the argument that says that on the one hand that the Prime Minister in 1995 has revoked the Ministry’s 1975 Decision which was based on Proc. No. 47, and on the other that the Prime Minister cannot do that because according to the plaintiffs’ arguments it would mean revoking the decision of a legislature. The court eventually decided the case on the basis of the 1995 Constitution and laws that came afterwards, and said that according to the Constitution and other laws, the Prime Minister supervises and controls all ministries; corrects any mistakes they make; and therefore his revoking of the said decision of the Ministry of Works and Urban Development cannot be considered as *ultra vires*.

- 3.1. As you can see from the above summary, the Bench decided the case on a pure logic of hierarchy of institutions (powers) without saying anything about the world of difference in the politico-legal system that existed between the times of 1975 and that of 1995. Do you think the Court should have considered the case in the political context rather than as a purely legal matter? What would you have done if you were the judge in this case?

3.2. Does the Agency's argument that the plaintiffs were living on government expenses for about 15 years in prison make sense as a defense to prohibit allowance that could have been given?

b. The Judiciary

i. General

The judiciary is one of the three branches of government. It is the weakest of the three in that, as James Madison said, it has command of neither the purse nor the sword. Yet, it is an indispensable pillar of modern democratic constitutionalism as it is the only legitimate interlocutor of disputes and upholder of the rule of law. A fully independent judiciary with the power to make decisions against any and all bodies, governmental or otherwise, official or an ordinary citizen, ultimately ensures the vibrancy of democracy and respect for the rights of members of the society. On the contrary, the absence of an independent judicial system in a political society demonstrates the absence of any guarantee for citizens' rights against an abuse of power. In short, it is a sign of a political system where the people, and not the government, are the servants—power is held and used for promotion of the interests of the power holders and not of the people.

The need for independence of the judiciary is not open to any question today. All governments, including those that do not respect judicial independence in practice, have now accepted the need and propriety of the same. So this can be considered as an encouraging development. But the problem remains to be the practices of judicial independence. Today judicial independence has been entrenched in an overwhelming majority of constitutions across the world. The Ethiopian Constitution is one of those that have entrenched judicial independence in clear and emphatic terms. Art. 78(1) states that an independent judiciary is established by the Constitution. Sub-article (5) of the same Article prohibits the establishment of special or ad hoc courts which take judicial powers away from the regular courts or institutions legally empowered to exercise judicial functions and which do not follow legally prescribed procedures.

Furthermore, Art. 79 lays down additional certifications of the Constitution's commitment to the independence of the judiciary. It declares that judicial powers, both at Federal and State levels, are vested in the courts, and that courts of any level shall be free from any interference or influence of any governmental body, government official or from any other source. In yet another sub-paragraph of the same Article, the Constitution confirms that judges shall exercise their functions in full independence and shall be directed solely by the law.

The removal of judges has also been regulated by the Constitution as an aspect of judicial independence. Accordingly, the retirement age fixed by law; the decision of the Judicial Administration Council (JAC) to remove a judge for violation of disciplinary rules or on grounds of gross incompetence or inefficiency; and the decision of Judicial Administration Council that a judge can no longer carry out his responsibilities on account of illness are the alternative grounds to terminate the tenure of a judge. The approval of such decisions of the Judicial Administration Council by the House of Peoples' Representatives or the concerned State Council is then required. Look at also Arts. 79 and 81 on further institutional guarantees for independence of the judiciary.

The following contributions underscore the fundamental importance of the judiciary in a given political society's overall life. Larkins defines in very clear and practical terms the elements that characterize an independent judiciary, and the lack of it, while the excerpt from [Justice] M. Fathima Beevi touches on an interesting dimension of proactive judiciary. As always, read these discussions carefully, and view the authors' points and concerns from our [Ethiopian] perspective.

Christopher M. Larkins, "Judicial Independence and Democratization: A Theoretical and Conceptual Analysis," in *The American Journal of Comparative Law*, Vol., 44, No. 4 (1996). Footnotes omitted.

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JUDICIAL INDEPENDENCE: A DEFINITION

Any analysis of judicial independence must begin with some idea of its core meaning. At the most basic level, judicial independence is related to the notion of conflict resolution by a "neutral third;" in other words, by someone who can be trusted to settle controversies after considering only the facts and their relation to relevant laws. It is this type of independence that Fiss has called "party detachment," or the idea that a dispute should be decided by a judge who has no relation to the litigants and no direct interest in the outcome of the case. As noted by Martin Shapiro, this ideal is at the root of the "social logic" of courts, and is indispensable lest dispute resolution becomes a "two against one" situation.

Judicial independence as adjudication by a "neutral third" is deemed important for two primary reasons. First, it is essential for the principled enactment of justice. Ideally, when judges have no interest in the issues of the case and no bias toward either of the parties, all citizens – rich, poor, strong, and weak – are put on an equal footing before the law and are able to protect their rights and security against encroachment by others. After all, independent judges are supposed to decide cases based upon the objective principles of the law, and not the social or political standing of the disputants. Thus, dominant members of the populace are not able to manipulate the law to serve their own ends, as any aggrieved citizen can obtain relief by presenting his or her case to an independent judge.

Second, judicial independence takes on critical significance when the government is one of the parties to a dispute, as the case then involves general issues of the rule of law. If the enforcement of this principle is to be entrusted to the courts, then it is absolutely essential that judges not be biased in favor of the government. Likewise, it is important that judges not be subject to control by the regime, and that they be shielded from any threats, interference, or manipulation which may either force them to unjustly favor the state or subject themselves to punishment for not doing so. The rule of law is not secure when the body for its enforcement is composed of judges who either fear challenging the government or are already predisposed toward declaring its deeds legal.

With the basic meaning and value of judicial independence conceived of in this manner, two of its necessary characteristics are evident. The first is impartiality, or the idea that judges will base their decisions on the law and facts, and not any predilection toward one of the litigants. Although it is a quality which is often difficult to identify, it can be thought of as related to judges' attitudes and beliefs as well as their behavior vis-à-vis particular political and social actors.

A second trait of independence is what Fiss has called "political insularity," or the notion that judges should not be used as tools to further political aims nor punished for preventing their realization. Judges may not be removed for reaching decisions which are unpopular, the makeup of the courts should not be altered for political gain, and judges should be shielded from threats which might compromise their impartiality. According to most scholars, insularity is believed to result from the establishment of certain formal and structural safeguards which give judges life tenure, provide for significant checks and balances in their appointment, and protect their salary against diminution while in office.

Thus, in formulating a general definition of judicial independence, most scholars have placed a great deal of emphasis on impartiality and insularity. For example, in an oft-quoted definition, Becker referred to judicial independence as:

(a) the degree to which judges . . . decide [cases] consistent with . . . their interpretation of the law, (b) in opposition to what others, who are perceived to have political or judicial power, think about or desire in like matters, and (c) particularly when a decision averse to the beliefs or desires of those with political or judicial power may bring some retribution on the judges personally or on the power of the court.

Along the same lines (although slightly simplified and improved), legal scholar Keith Rosenn defined judicial independence as: the degree to which judges actually decide cases in accordance with their own determinations of the evidence, the law and justice, free from the coercion, blandishments, interference, or threats from governmental authorities or private citizens.

Finally, consider Joel G. Verner's brief definition of judicial independence as:

[the ability] to decide cases on the basis of established law and the “merits of the case,” without substantial interference from other political or governmental agents.

Besides these two necessary attributes, however, another important component must be incorporated into the definition of judicial independence: the scope of the judiciary's authority as an institution or, in other words, the relationship of the courts to other parts of the political system and society, and the extent to which they are collectively seen as a legitimate body for the determination of right, wrong, legal, and illegal.

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While the other two traits of independence concentrate on the status of single judges, this third component places emphasis on the position of the courts within the larger political system and their functional relationship with the other branches of government. It makes the existence of significant levels of independence contingent on the degree to which the judicial institution has a distinct and discrete role – detached from the interests of the political system, the concerns of powerful social groups, or the desires of the general public – to regulate the legality of state acts, enact justice, and determine general constitutional and legal values. Judicial independence is not meaningful if the courts cannot exercise it to check the arbitrary or unjust exercise of power by political and social actors. Thus, the courts must be somewhat uninhibited as an institution, in relation to other institutions of the government, to carry out the ideal judicial role. To be sure, judges need to be impartial and insulated from political pressure, but more importantly to be so within a broadly defined institutional scope of authority for the judicial branch.

Thus, a more accurate definition of judicial independence might look something like the following:

Judicial independence refers to the existence of judges who are not manipulated for political gain, who are impartial toward the parties of a dispute, and who form a judicial branch which has the power as an institution to regulate the legality of government behavior, enact “neutral” justice, and determine significant constitutional and legal values.

PROBLEMS OF IDENTIFICATION AND MEASUREMENT

From the above definition, it may at first appear simple to identify and measure judicial independence. All one would need to do, it seems, is find evidence of impartiality, insularity, and the courts' scope of authority, and determine the degree to which these traits exist. However, it is not that elementary, as there are a number of problems which must be taken into consideration before judicial independence can be identified and measured.

First and foremost, among these is the problematical nature involved in interpreting evidence of impartiality, insularity, and the scope of a judiciary's authority as an institution. In theory and practice, some of these traits could be exhibited by non-independent as well as independent judicial branches. Thus, evidence of one but not all of them does not decisively indicate the existence of judicial independence.

Consider this point in reference to the impartiality of judges. Hypothetically, evidence which suggests that judges are impartial and see themselves as something other than the simple applicants of the regime's law should bode well for a high degree of judicial independence. However, by itself it may be totally inconclusive as to the degree of independence possessed by the courts. Judges may be impartial but not insulated; they may have the mind-set to act objectively when dealing with the behavior of powerful political and social actors, but will pay the price if and when they attempt to do so. Likewise, judges may be impartial but have no scope of authority with which to challenge the legality of certain agents' actions. In actuality, both insularity and scope of authority may be lacking while judges remain impartial. Under these circumstances, notwithstanding the high degree of impartiality, it would be less than accurate to label such judges independent.

As an example of this, consider the case of the Spanish judiciary under the authoritarian regime of Francisco Franco. In a survey of Spanish judges, political scholar Jose Toharia discovered that many were quite impartial, due to the fact that they held distinct values apart from the Franco government. For example, on four issues of extreme importance to the regime – the “law and order state” (including civil liberties), the legality of divorce, the use of languages other than Castilian Spanish, and the death penalty – Toharia's data showed that a majority of Franco's judges strongly disagreed with the government's official positions. Furthermore, his findings indicated that Spanish judges did not merely see themselves as instruments to help rigidly govern society.

However, as Toharia proceeds to explain, this high level of impartiality was qualified by subtle limits on the insularity of judges and a significantly abridged scope of authority. For instance, while the lower rungs of the federal Spanish judiciary were professionally staffed and relatively free from political interference, the highest (and hierarchically most important) levels of the courts were closely controlled by the Franco regime. Furthermore, the courts' scope of authority was seriously restricted during Franco's rule: Toharia points out that the judiciary was not seen as a legitimate institution to regulate the legality of the government's behavior in reference to many important issues such as labor policy, economic and commercial matters, and certain aspects of criminal procedure, many of the same issues on which the judges were deemed impartial! For the adjudication of these cases the regime created special courts which could be counted on to support its interests. Thus, no meaningful degree of independence existed in Spain, as the judiciary was inhibited from determining significant constitutional and legal values.

Similar difficulties with identification are related to insularity. There may be little or no political interference in the judiciary because (1) the regime knows that judges will habitually incline toward its concerns, or (2) the courts' scope of authority is so small that judges do not have the opportunity to reach decisions which might jeopardize their career or physical security. An example of this might be the Chilean courts under Augusto Pinochet. During the sixteen-year duration of Pinochet's strong-armed military government, there were no instances of purges, packings, or other corrupting influences, indicating the enjoyment of relative political insularity. However, “we all know” that it would be practically absurd to label it an independent judicial body during this time. This is a result of the clear partiality of Supreme Court Justices to the policies and interests of the Pinochet regime, as well as certain restrictions on the courts' scope of authority.

Finally, it should be acknowledged that the courts' scope of authority (as important as it is) may not by itself indicate significant degrees of judicial independence. Courts may be given a wide scope of authority, and be publicly acknowledged by powerful political and social actors to be an important, separate institution for the determination of what is “legally acceptable”—for the very reason that it

is not an impartial body. If the courts always favored the interests of the state or certain social groups, there would actually be extraordinary value in giving them a great deal of “work-space” to “regulate the legality” of certain issues. Likewise, if there is little insularity, the scope of the courts’ authority does not matter, as judges can easily be removed or bribed if they threaten the significant interests of certain parties.

A second, but somewhat related, problem with accurately identifying judicial independence relates to the fact that the courts do not exist or operate in a vacuum. A number of exogenous factors, some political and some social, will influence judge’s opinions and will have varying impacts on their impartiality, insularity, and scope of authority. For instance, reasonable checks might be placed on the freedom of judges and jurisdiction of the courts in the name of important democratic ideals like majority rule and popular sovereignty, effectively restricting their insularity and scope of authority. Furthermore, as part of the state, the courts will often be sensitive to the interests of the political branches of government, somewhat limiting their impartiality in certain circumstances. Finally, emergent circumstances, for example, the outbreak of war, will tend to circumscribe the courts’ impartiality and scope of authority. To what extent should these factors influence our judgment of the independence of a country’s judiciary?

. . . In situations of near-chaos, it might not be too excessive to limit the courts scope of authority by temporarily curtailing their criminal justice powers (i.e., habeas corpus). However, absent rampant terrorism, full-blown war, or grave natural disaster, such restrictions on judicial power and independence would be uncalled for. This is why most scholars do not see Lincoln’s actions during the U.S. Civil War as extremely egregious abuses of judicial independence, while the behavior of Latin American militaries in the 1960s, 70s, and 80s in reference to the judiciary is interpreted as quite destructive of it . . .

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[Justice] M. Fathima Beevi, “The Judiciary in Democratic Governance: Some Insights from the Indian Experience,” in *Democracy: Its Principles and Achievement* (IPU, Geneva, 1998). Footnotes and in-text notes omitted.

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Judicial Activism and Democratic Prospects

The liberalization of the doctrine of *locus standi* in entertaining public interest litigation on matters affecting fundamental rights opened up new avenues for judicial activism in recent times. The increase in governmental inaction and indifference in discharging legal obligations provided several occasions for taking public grievances to court. The inability of the political and legislative institutions to extract executive accountability further contributed to the drift towards judicial remedies even in matters which normally should have been resolved at the political level. Indeed, the judiciary is being overused today because of the shortcomings of the other two wings of government which is perhaps not good for democracy in the long run. In this regard, the observation of the Chief Justice of India that judicial activism is a temporary phenomenon is to be welcomed. Meanwhile, it is necessary to find strategies for institutionalizing activism in the judicial process so that it will be revived when occasion demands and will be contained within constitutionally acceptable limits in the spirit of democracy and the rule of law.

In recent times, judicial activism manifested itself in three important areas, namely, political corruption, environmental pollution and issues involving right to life and liberty. Corruption, no doubt, is the major public enemy today and it is growing along with the criminalization of politics. The Vohra Committee Report has given the dimensions of the problem and the potential threat it

poses to the integrity and stability of the country. With the executive controlling investigation and prosecution, there is virtual impunity for corrupt elements in high places even where police records disclosed evidence of culpability. Besides endangering the rights of law-abiding citizens, executive inaction in this regard contains the potential for jeopardizing the capacity of the criminal justice system to maintain democracy and the rule of law. This was one type of situation in which the Supreme Court became activist at the instance of public-spirited individuals, encroached what in normal times is the domain of the executive, and directed the investigating agencies to ensure that the law took its course irrespective of the consequences.

Another significant jurisdiction in which the Supreme Court as well as several High Courts have been active in recent times is in the matter of environmental degradation through non-enforcement of pollution and civic laws by a number of agencies of the Central, State and local governments. Closing down of industries giving employment to several persons and adding to the economic prosperity of the nation is not a pleasant task; however, in the face of pollution control legislation and declaration of policies on sustainable development, it is incumbent on courts even to take *suo moto* action to discipline polluting industries, as the consequence of not doing so is silent death for generations to come. The greatest of industrial tragedies which took place in the Union Carbide plant in Bhopal should at least remind the law enforcement agencies of the consequences of neglecting the environment. Activism in this sphere deserves to continue, given the marketization process under way.

The third important area of judicial activism came about in giving meaning and content to the guarantee of right to life. Having declared that the right involves “life with dignity” and not mere animal existence, the Court adopted an expansive jurisdiction invoking “due process” interpretation into the phrase “procedure established by law” in Article 21 of the Constitution. Today, the right under Article 21 has produced a number of related rights such as the right to legal aid, to education, to a speedy trial, to livelihood, to a clean environment, etc. In the application of these rights to specific situations, courts might have stepped into executive or legislative territory in significant ways. In fact, it is this approach of the Supreme Court which led to the doctrine of non-amendability of the basic structure of the Constitution. Judicial review indeed is a powerful weapon in a written Constitution and certainly, the Constitution-makers intended it that way. The scheme of the Constitution and the unique status given to the judiciary under it demonstrates that intention in ample measure.

The problem is to know the limits of activism and to ensure that it is confined to such limits. The Constitution does not countenance unlimited or uncharted power in any institution of government including the judiciary. By training and experience, judges are people who naturally act with restraint, keeping in mind the demands of judicial discipline and the oath of office. Nevertheless, the citizens should know the parameters of judicial power and should have reasonable certainty of law irrespective of the judge handling the situation. If activism is left to the choice of individual judges, there are possibilities of abuse even with the best of judges. Furthermore, it is one thing to restrain the executive from performing an illegal act or performing a legal act in an illegal way. It is part of the judicial function. Courts can well strike down executive or legislative actions which violate the Constitution. When it is vigorously and frequently done it may appear activist. But using the power of judicial review to command the executive or the legislature to do things involving policy issues and budgetary allocations is questionable in many ways. If judicial activism can be matched with executive or legislative activism, there is no problem; otherwise, confrontationist situations develop and courts are forced to invoke contempt jurisdiction too often causing discomfiture all around.

In short, judicial activism is part of the judicial function. It is part of the power of judicial review for which the Indian Constitution has endowed special authority on the High Courts and the Supreme Court. However, the limits of this authority are not spelt out either in the Constitution or in judicial process. Hence there are legitimate apprehensions in the public mind whenever

borderline cases are taken up by courts and directions are given to be obeyed within prescribed time periods. After all, the Constitution envisages complementarity of executive, legislative and judicial institutions for achieving democratic governance, and public perception in this regard is as important as legitimacy of governmental actions. Power in a democracy is essentially political in nature, and judicial process has to tread cautiously while adjudicating issues affecting the constitutionally assigned division of State power.

Judicial activism through public interest litigation in a country in which half the population is desperately poor and illiterate is indeed an imperative necessity for good governance. But for some activist judges in the Supreme Court of India, the Directive Principles of the Indian Constitution which promise socioeconomic justice to the weaker sections of society would not have become operational as part of the human rights agenda. Today, the vast masses of poor in India have a stake in the judicial process. They realize that equality, the rule of law and social justice are still alive and accessible through democratic institutions. The judiciary is inventing new tools and remedies revolutionizing constitutional jurisprudence and, in the process, re-enforcing the democratic and rule of law commitments of the nation.

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Questions and Discussion

1. Christopher M. Larkins speaks about the difficulty of defining and understanding judicial independence. Do you share his worries? Is it difficult to define judicial independence in Ethiopia under the Ethiopian Constitution? Look at Arts. 78-81 of the Constitution and Proclamation 24/1995 and thoroughly discuss this issue.
 2. What do you think about judicial activism? What are the positive and negative aspects of such a judicial function?
 3. An assessment report on the Ethiopian judiciary entitled, “Judicial Independence, Transparency and Accountability” prepared in 2008 by the National Judicial Institute of Canada revealed that the Ethiopian judicial system – both at the federal and state levels – suffer from certain not so mundane independence and transparency problems. The problems mentioned by the report include the lack of transparency in judicial appointments; representation of powerful members of the political branches (members of the Legislature also holding key executive positions) into the Judicial Administration Councils; the murky positions of leaders of the judiciary; selective assignment of cases to judges friendly to the government interests; appointment of judges with controversial integrity and competence; and such other problems. The report also stated that the absence of an independent judicial association has negatively affected the independence and vibrancy of the judicial branch in the country. Have you ever thought about such problems of the courts before? What is the public perception of the independence and effectiveness of the Ethiopian courts in the area where you live? What do you think is the solution to these problems?
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ii. Maintaining the Delicate Balance between Judicial Accountability and Independence

The above discussions on the independence of the judiciary explain the practical as well as legal challenges of independence of the judiciary in a given country. But another interesting aspect of the judicial function is the accountability of the judiciary. It is not difficult at all to see that an attempt to ensure judicial accountability may be characterized as walking on a tight rope because such an effort may interfere or at least be perceived to interfere with the independence of the judiciary. But at the same time, since the judicial branch is a public organ, it has to be subjected to an appropriate level of accountability that will not run afoul of its independence. The following excerpt from

Shimon Shetreet's article will show you how the Israeli judiciary attempts to balance these two aspects of a judicial function. As you read it, try to view the Ethiopian scenario through the lenses of the author.

Shimon Shetreet, "Judicial Independence and Accountability in Israel," in *The International and Comparative Law Quarterly*, Vol. 33, No. 4. (1984). Footnotes Omitted.

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THE JUDICIAL ROLE IN SOCIETY

In the absence of a written constitution in Israel, the role of the courts is not defined by a constitutional provision, but is the result of gradual development and the cumulative effect of a number of factors.

The judicial role in a given society is not determined solely by the individual judges and their conception of the nature and scope of judicial function. No doubt the individual inclinations of the judges and their attitudes and ideologies are an important factor in delineating the scope of the judicial function, but it must also be emphasised that, in addition to personal inclinations, there are no less powerful factors which contribute to the shaping of the ultimate character of the judiciary in a given society and to drawing the boundaries of the judicial function. These include, first, the institutional controls and the collective tradition and institutional character of the court in which the judge sits and of the judiciary as a whole in society, such as previous judicial decisions, the duty to write reasoned decisions, the principle of binding precedent, and the social and professional controls which operate within the courts. Second, reference should be made to the system factors which greatly affect the nature and scope of the judicial function, and define the role of the judiciary *vis-à-vis* the other branches of government in that society. In this category one can include, for example, the existence of judicial review of statutes, the extent of legislative activities in adapting law to changing conditions, and the public acceptability of judicial decisions . . .

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The Increasing Judicial Role

There has been an important development in Israel in the relative role of the executive and the judiciary in the system of government. The role of the executive has declined, while the Supreme Court has increasingly occupied a greater role in the system of government. Issues which in the past were never brought before the courts have been submitted to the courts, particularly the Supreme Court sitting as the High Court of Justice. Two major processes have resulted in this greater role for the courts. The public realised that the ordinary political and bureaucratic institutions, i.e. the government, the Knesset, and the public administration, did not solve the problems which they confronted. Against this failure the public resorted to the courts for resolution of the problems left unsolved by the political branches of the government, mainly the executive. There is another process which has also increased this recourse to the law. The government has itself sometimes intentionally shifted questions to the court so as to secure judicial resolution of disputes which are economic or political in nature. This happens when the government does not wish to bear the political cost of the decision, and therefore prefers that it should be determined by a court rather than by an executive decision. Thus, while the executive avoids political embarrassment, it has brought about greater judicialisation. This judicialisation is also manifested by referring many issues which are economic in nature for determination by the Legal Adviser to the Government (the Attorney General). Recently, even Members of Parliament have sought judicial remedies against actions by the executive and by the organs of the Knesset, such as the Speaker or a parliamentary committee.

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THE CONSTITUTIONAL POSITION OF THE JUDICIARY

ISRAEL does not have a written constitution. Its constitution is being written chapter by chapter by the enactment of Basic Laws which deal with various aspects of the constitutional order. Thus far, in the 35 years since the State of Israel was established, Basic Laws have been passed dealing with the Knesset (Parliament), the government, the President of the State, budgets and the finance of the State, the Army, State lands, and "Jerusalem, Israel's Capital" . . .

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JUDICIAL INDEPENDENCE IN ISRAEL

The Concept of Judicial Independence

Judicial independence has numerous aspects which must be carefully considered. Judges must be independent in order to discharge their function of dispute resolution between the State and the individual or between two private parties; the judiciary must be free from outside influence and external pressures when it adjudicates constitutional controversies, resolves administrative disputes, or rules on criminal prosecutions or civil actions. Independence means both personal independence and substantive independence. Personal independence of judges means that they enjoy such terms of service that render them free from the executive control that could be exercised through removal, suspension, transfer from one locality to another or from one office to another without their consent, salary cuts or administrative retirement.

Judicial independence should be protected not only vis-à-vis the executive, but also vis-à-vis judicial superiors. In one United States Supreme Court case it was suggested that judges should not be subject to administrative control by their judicial collective institutions or superiors. The better opinion, however, is that judges should be subject to administrative guidance from the executive branch of the judiciary, namely, the heads of the courts who are responsible for court administration. Such administrative guidance should be directed to matters of case management and court administration but should not refer to the exercise of the judicial function itself, i.e. the procedural and substantive decision-making aspect of adjudication.

In addition to the personal independence of the judge, judicial independence also encompasses the substantive independence of the judge. This means that in the discharge of his official functions the judge is subject to no-one and to nothing but the law and his conscience (s.13 of the Judges Law). Any attempt to influence a judge outside the official hearing of the case in a court of law, whether by private approach or through publication, is a punishable offence in Israel (as in some other countries). The judge's substantive independence of his judicial superiors can give rise to doubts in certain situations. In continental countries, where dissenting opinions are often not allowed, the impact of the president of the bench on the opinion of his junior brethren raises some questions as to the full preservation of substantive independence. A similar issue arises where the leaders of the judiciary issue guidelines or recommended standards on the proper way to exercise judicial discretion (e.g. recommended sentences).

It is important to stress that a distinction should be drawn between the independence of the individual judge and the independence of the judiciary as a whole. In other words, the judges should enjoy both individual independence and collective independence. Collective independence requires that the Executive's control over matters of judicial administration must be limited to those areas where the system of government deems it indispensable. Thus, in a parliamentary system, the powers of the Minister of Justice over the judiciary should be restricted to those areas where it is categorically required under the principle of responsible government. In several countries, such as Israel, Canada and Germany, there is a continuing controversy over the proper role of the executive

in judicial administration including judicial appointment and promotions, judicial salaries, preparations of court budgets, and rule-making.

Security of Judicial Tenure and Terms of Judicial Office

Judges in Israel are selected by an appointment committee composed of nine members, including three judges of the Supreme Court, two lawyers (elected by the Bar Association), two Members of the Knesset and two ministers of the government, of whom one is the Minister of Justice who chairs the Committee (s.6 of the Judges Law). Formally, the appointments are made by the President of the State on the recommendation of the selection committee brought to him by the Minister of Justice (s.5 of the Judges Law). Judicial appointments are made for life until retirement at the age of 70 for judges at all levels of the judicial hierarchy (s.17 of the Judges Law). There is a special procedure for compulsory retirement for health reasons if the appointment committee so decides on a medical certificate (s. 17(b) of the Judges Law). Judicial salaries are determined by a parliamentary committee (the Finance Committee) under the authority of the Knesset. Thus judicial remuneration is formally beyond executive control (s.10 of Basic Law: Adjudication). The law authorises the Minister of Justice with the consent of the President of the Supreme Court to transfer a judge for administrative reasons to a court of the same level in another locality (s.9 of the Basic Law). This power is questionable and should be exclusively vested in the judiciary.

Judges are subject to disciplinary proceedings which may be initiated by the Minister of Justice but are adjudicated by a judicial disciplinary tribunal (Court of Discipline) composed predominantly of judges of the Supreme Court. Judges may only be removed upon a judicial decision of the disciplinary tribunal (ss. 21-23 of the Judges Law)

Protection of Substantive Independence

With regard to personal independence, as has already been seen, the law provides for terms of judicial office which secure the judiciary from undue executive interference or legislative intervention. As will be later elaborated, the executive powers over the judges should be restricted. Substantive independence of individual judges is expressly secured in Israel by section 13 of the Judges Act (now s.2 of the Basic Law) and by similar statutory provisions concerning the independence of judges of religious and military courts.

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In recognition of the significance of the social interest in securing judicial resolution of cases without exterior influence and pressures from the legislature, it is established by practice that the Knesset does not debate matters pending before the courts. The courts also respect the other branches of the government. Under well-developed doctrines, the courts refrain from dealing with matters which by their nature are within the province of the executive or the legislature, through the doctrine of justiciability and the general rule against judicial intervention in matters of general executive policy. Another concept which assures independence and impartiality in the discharge of the function of dispute resolution is the criminal and civil immunity for acts committed in the course of discharging judicial duties.

A judge in Israel is liable to criminal prosecution for violations of the law except in so far as his acts fall within the ambit of the statutory criminal immunity granted to judges under section 23 of the Penal Law 1977. The immunity is granted to any "holder of a judicial office" for acts done in the course of discharging his judicial duties. The term "holder of a judicial office" is very broad and includes holders of judicial offices of all kinds whether in the ordinary court system, the religious courts or administrative tribunals. It does not, however, include *anyone* exercising judicial function. The wording of the section seems to restrict the criminal immunity to holders of a judicial office, to the exclusion of those who do not hold such an official office but in fact exercise judicial functions.

It seems, however, that those exercising judicial authority under statute, such as a trustee in bankruptcy, enjoy criminal immunity under section 23. The holder of a judicial office is immune from criminal prosecution for acts committed in the discharge of his judicial functions, even if he exceeded his jurisdiction, and the immunity is applicable also to omissions to do what he was obliged to do. The wording of the section suggests that the criminal immunity is substantive and not merely procedural. It should be noted that a judge who, for example, commits fraud or bribery in the discharge of his official function is not immune under section 23.

Unlike the very broad scope of civil immunity of judges in the case of tort actions, which applies even in case of malice, the Supreme Court has suggested a more restricted scope for the criminal immunity of judges. Policy considerations support a more restricted scope for criminal immunity so that malice will not be covered by the immunity.

* * *

The civil liability of judges is limited by the immunity from tort actions which applies to acts and omissions in the discharge of judicial authority. There are numerous reasons for according judicial immunity for such actions. First and foremost is the vital social interest of assuring judicial independence and removing pressures which are likely to affect the impartiality of the judicial process. Judicial immunity is also justified on other grounds. Tort actions against judges would open cases to collateral suits, and would take much of the judges' time and interfere with the orderly performance of their judicial duties. Likewise, such actions would deter qualified people from assuming judicial office. It is also said that, given the integrity and high quality of the judges, the number of cases which result in injustice is so minimal that it is amply counterbalanced by the social benefit which accrues from judicial immunity.

MECHANISMS OF JUDICIAL ACCOUNTABILITY IN ISRAEL

Judicial independence cannot be maintained without judicial accountability, for no-one is free from duties and responsibilities and everyone must be answerable for failures, errors and predilections. Judicial accountability has many faces. It includes a variety of methods and mechanisms for checking judges. Some of them are statutory, such as disciplinary supervision and appellate review. Some of them are non-statutory, such as the public control over judges exercised through the Knesset, the general press and the professional periodicals.

Judicial accountability takes other forms as well. There are other controls on judges which are exercised in private, away from the public gaze. These include the social and informal controls and the professional pressures exerted on the judge by his judicial brethren and professional colleagues. The nature and scope of judicial accountability are determined, *inter alia*, in light of the special social interest in maintaining judicial independence. In the following sections the numerous forms of judicial accountability will be discussed.

Disciplinary Supervision

Judges in Israel are subject to a formal mechanism for removal and discipline. There is an *ad hoc* tribunal for discipline (the Court of Discipline) constituted by the Supreme Court whenever disciplinary proceedings are initiated against a judge (s.21). Under the present law only the Minister of Justice has the authority to initiate disciplinary proceedings against a judge, whether under a complaint submitted to him or at his own instance (s.22).

The Court of Discipline is composed of five members, of whom three are judges of the Supreme Court, or three members, of whom two are Supreme Court judges. The number of members on the panel of the tribunal in each case is determined by the President of the Supreme Court, who normally chairs the tribunal (s.21). Under the present law non-judges, such as law professors or practising lawyers, may serve on the disciplinary tribunal. The draft Basic Law proposed to exclude

non-judges from participation in the disciplinary process. However, eventually professional non-judicial participation in judicial discipline was impliedly permitted by the Basic Law.

The Court of Discipline, which conducts its proceedings *in camera*, may recommend the removal of a judge and in such a case the Minister must bring such a recommendation before the President of the State who must act upon the recommendation (s.23). A recent amendment extended the scope of the disciplinary measures and, instead of the sole measure being removal of the judge, the tribunal will also be authorised to censure, to issue a warning, to reprimand and to transfer a judge to another court (s. 22A of the Judges Law).

The grounds for judicial removal and discipline are specifically enumerated by the Judges Law (s.22): improper behaviour in the discharge of official duties, conduct unbecoming a judge, conviction of a criminal offence in circumstances involving moral turpitude, and unlawfully securing the judicial appointment.

The practice regarding disciplinary measures taken against judges for misconduct is clothed in secrecy. There have been press reports of various forms of judicial misconduct but it was never made public what measures, if any, were taken against them. It is therefore difficult to present a clear picture of the standards of judicial discipline and removal applied in Israel. On the whole, the incidents of misconduct involved misbehaviour of a lesser degree.

It is interesting to note that under present law incompetence does not constitute a ground for removal. This is generally the view in many countries. It is based on the argument that it seems to be the inevitable price which society has to pay for maintaining the independence of the judges. As it would be difficult to draw the line, if judges were to be removed for incompetence, this standard could be used as a pretext for removing from office judges who were perfectly competent but for some reason or another did not enjoy the support of those who control the machinery of removal, whoever they happen to be. Likewise, the existence of such grounds may have a chilling effect on judicial independence, as judges will suspect that their dissenting views or non-conformist attitudes will be judged as manifestations of incompetence.

Unfortunately, the Basic Law (s.7 (4)) established a procedure whereby the judicial selection committee is authorised by unanimous vote, upon the recommendation of the Minister of Justice or the President of the Supreme Court, to transfer a judge to pension. The Basic Law does not specify any grounds, thus permitting the Committee to do so for incompetence of the judge. This provision is most objectionable and will have a chilling effect on judicial independence. The Judges Law (s. 17(2)) provides a procedure for the removal of a judge for medical reasons by the Judicial Selection Committee on a medical certificate.

Appellate Review

An important institution in assuring judicial accountability is appellate review. The appellate court “is the only institution which officially and openly passes upon judicial misconduct and, when warranted, has the power to take disciplinary action, ranging from mere censure to criticism of the judge's misconduct to a reversal of his judgment or setting aside a conviction coupled with severe condemnation.” Appellate review has a significant effect on judges. The court of appeal cannot, of course, formally affect the tenure or position of the judge, but the decisions of the appellate court no doubt have a profound effect on the judge to whom the criticism is addressed, as well as on other judges.

In Israel, appellate controls are exercised by the Supreme Court and the district court. The Supreme Court, the highest court of the land, hears appeals from the district court, which is the court of general jurisdiction. The district court itself hears appeals from the magistrates' court. The Supreme Court does not confine itself to passing criticism of the improper judicial act or omission. The Court also reacts to judicial irregularities in operative orders by reversing judgments in civil cases

and setting aside convictions in criminal cases. Sometimes judicial misconduct is in itself a ground for reversing a judgment or conviction; in other cases, the judicial misconduct together with other grounds of appeal result in the reversal. In criminal cases the improper judicial conduct may serve as a reason to reduce the sentence passed.

The role of the appellate court in assuring high standards of conduct is not limited to *post factum* correctional action or to establishing standards of judicial conduct. It has a restraining and preventive effect on the judges. Most judges look for promotion; frequent reversal or reprimand adversely affects the chances of judicial promotion. There may be some doubt whether reversals for error of judgment in substantive law alone have such an effect on the chances of a judge being promoted. In such cases reversal may be due to mere differences of opinion between the first instance and the appellate court. However, there is little doubt that reversal or censure of a judge on the ground of his improper conduct in the trial does damage his reputation and, if such reversals or reprimands occur in any significant frequency, this will move him away from the path of promotion. Apart from that, appellate censure of a judge cannot contribute to his self-respect or to his image in the eyes of his fellow judges, his professional colleagues at the Bar, or the public in general.

Based on an examination of the cases in the exercise of its appellate jurisdiction, it can safely be said that the Supreme Court plays a significant role in judicial discipline and that it has performed that role vehemently, having clear impact on the judges at first instance.

Public Accountability: The Knesset and the Press

In the public sphere, judges are liable to criticism from pressure groups, the press and in the Knesset. The press serves as a significant control over the judiciary in the numerous aspects of the administration of justice. The Knesset also plays an important role in checking judicial behaviour. Closely associated with the Knesset are the ministers who also take part in parliamentary discussions on matters bearing on judges and courts, and comment on judicial matters outside the Knesset as well. Pressure groups react to judicial acts and omissions and pass criticism on judges and judicial decisions. These public controls operate both with regard to individual judges and individual decisions, and with regard to the collective judiciary, the courts and jurisprudence in general.

The Knesset

The Knesset, as legislature, may exercise controls over the judiciary by amending the law pronounced by the courts. Indeed, there are numerous examples of legislative reversals of judicial decisions, sometimes retroactively applied. The Knesset, through the Finance Committee, approves increases in judicial salaries. This power could potentially be exercised to express disapproval of the judiciary. Here the focus will be on the role of the Knesset as a check on judges, judicial decisions and courts by way of public criticism. Criticism of judges in the Knesset is voiced in the course of debates on bills dealing with matters which have been the subject of judicial decisions, or on bills and orders relating to judges. Parliamentary questions on judges, cases and courts can also be used as a mechanism to criticise judicial conduct. Motions to table a matter for debate in the Knesset can also be used to bring before the Knesset a matter upon which judges or courts can be criticised.

There are no statutory limits on parliamentary debate of matters dealing with judges and courts, nor is there an express legal restriction excluding the debate of matters pending before the courts. The general opinion is that section 1 of the Knesset Members' Privileges, Rights and Duties Law 1951, which provides for the freedom of debate of Knesset Members, overrides section 41 of the Courts Law 1957, which establishes the *sub judice* rule, or other statutory provisions such as the libel

statute. Thus, neither the *sub judice* rule nor any other legal limits apply to parliamentary debates. But there are self-imposed limitations which the Knesset has established.

The Knesset has laid down limitations on parliamentary debates on matters pending before the courts, and on the style of criticism of judicial decisions. The Knesset resolved that a matter which is pending before the court for final judgment should not be debated (the *sub judice* rule). The principle has been applied on several occasions and has been reconfirmed. There is no express limit in the There is rules on parliamentary questions on a debate on a bill which touches upon matters which are *sub judice*. It is to be noted that the rules bestow upon the Speaker a discretionary power to prevent debate of matters *sub judice*, but do not provide for a mandatory prohibition. It is established that the *sub judice* rule does not apply to debating bills on matters under judicial consideration. This was the opinion of the Attorney General which has been confirmed by the Supreme Court. It has been suggested that the Knesset cannot amend a statute whose constitutionality is under challenge in the courts.

Criticism in the Knesset of judges, judicial conduct, judicial decisions and courts can be found in parliamentary questions and in debates upon specific motions to discuss a judge's conduct. Criticism is also passed in the course of debates on bills, and matters relating to judges. Quantitatively, on ordinary matters, parliamentary criticism of judges and courts is not significant. But the effectiveness of a process of control of the judiciary should not be assessed on quantity only. On major issues of public interest, or on subjects which are very important to certain parties in the House, Knesset debates are frequent. With the ever-increasing tendency in recent years to bring numerous cases with political implications to the Supreme Court, more court cases have become the subject of parliamentary debate and political comment. Against this background one can reasonably foresee a development which will result in a wider scope for parliamentary checking of judges and courts.

The Knesset exercises control over the judiciary not only by parliamentary debates and questions. It also exercises its legislative power to modify or even repeal the law pronounced by judicial decisions. Sometimes one can find repeated exchanges of messages between the judiciary and the legislature as was the case of the legislation providing minimum sentences for certain morals offences. The Knesset has often gone so far as to reverse a judicial decision retroactively with the intended result of rendering ineffective a specific case. The Knesset has been strongly criticised for excessive indulgence in this practice.

The press and pressure groups

In the open society of this modern age, the press plays a very important role in checking governmental agencies and social institutions. The courts and judges, like all other social and governmental institutions, are subject to public criticism and the watchful eyes of the press. One of the most fundamental principles of the administration of justice is the principle of the open court. Of all the mechanisms which exercise control over judges in various forms, only the press publicly and constantly criticises judicial conduct. The Knesset is limited by self-imposed rules and traditions. The appeal court and the Knesset are only called into action in serious cases of deviations from established standards. The Bar and the Bench normally operate informally, behind the scenes. Only the press constantly and openly reports and criticises judicial actions and omissions. Not only does the press pass criticism on judicial conduct, but it provides information upon which other mechanisms of judicial control can act. Likewise, the press conveys to the courts and to the Knesset the views of the community on matters concerning judges and courts. Public opinion and community atmosphere have some impact on the courts in the process of judicial decision-making, as they do on other public institutions.

The pages of the newspapers have carried numerous reports, articles and editorials dealing with the courts and with the judiciary, including reports on incidents of judicial misconduct, judicial involvement in criminal proceedings and inappropriate judicial practices.

Legal restriction on public comment

There are two main legal restrictions on public comment on the courts, judges and judicial proceedings. The first is the rule against comments which might influence matters pending before the court (the *sub judice* rule). The second restriction is the prohibition of scurrilous attacks on judges. Both restrictions are sanctioned by penal statutory provisions. In English common law, these restrictions are known as “contempt of court.” With regard to the *sub judice* rule, one can observe two conflicting trends in Israeli judge-made law interpreting the statutory provision.

One advocates a restrictive approach towards the *sub judice* rule on the basis that professional judges are not easily influenced by press comments on pending cases. This was the view expressed by the Supreme Court in 1951. Against this liberal view, a more restrictive approach was expressed in later years by the Supreme Court based on the proposition that judges are liable to be influenced by media comments on judicial proceedings. The prohibition against scurrilous attacks on judges has been interpreted broadly, and the policy of the prosecution is to press criminal charges for what is conceived as a scurrilous attack on a judge. The section excludes from the ambit of the offence frank and good faith criticism of the nature of judicial decisions on a matter of public interest. The majority opinion of the Supreme Court demonstrated an unduly strict approach toward comments by litigants on judges (the dissenting opinion of Etzioni J would seem preferable). In any case, the recorded cases of prosecutions for scurrilous attacks on judges are very few.

Apart from the purely legal limits on the public accountability of judges, it is important to mention the limitations on criticism of judges and open and frank discussion of the justice system resulting from the mystification of the law and the judiciary. This mystification is manifested in a special language and terminology which is not understood by the general public, and in the ceremonial framework accompanying the trial, including the gown and robes (in some countries, the wigs), the court decor, the obligation to rise when the judges enter, the special style of addressing the judges and even the special announcements of their arrival and departure from the court. Public criticism of judges and aspects of the administration of justice should be encouraged and welcomed, and not be frowned upon.

Public accountability and judicial independence

The increased public interest in the courts in general and the greater involvement of the courts in cases with intense political implications have made public comment on judges and judicial decisions more frequent and more violent. This has created some tension between the social interest of assuring public accountability and the need to maintain judicial independence. This problem transcends national boundaries and can be found in most democracies. It can be resolved by the exercise of wisdom by editors and correspondents. The press in Israel has been criticised for failing to show the degree of public responsibility required and for failing to exercise caution in reporting on matters concerning the administration of justice. The courts have on occasion commented in very strong terms on the irresponsible practices of the press in reporting on criminal investigations and court proceedings which have created undue pressure on the popular pressures are not confined to criminal cases. In controversial subjects representatives of concerned sections of the public openly comment on court decisions and judicial attitudes, as has recently happened with the Supreme Court ruling on the order of suspension of the archaeological excavations in the ancient quarter of Jerusalem. At times letters are sent to the judges commenting on cases pending before them. This exceptional course was followed by religious leaders in Israel when the Supreme Court was considering the *Shalit* case dealing with the definition of a “Jew.” Indeed, issues of law and religion have always been a source of public pressure on judges. In recent years, the cases dealing

with validity of governmental action in the administered territories in Judea and Samaria have been the centre of public debate and controversy and have attracted extensive publicity.

How should one resolve the tension between popular pressures and judicial independence? The basic proposition is that judges and courts should be subject to public scrutiny by the media and subject to public comment from interested members and leaders of the community. Judges are public officers and as any other public servant should be accountable to the public for the discharge of their function. The public accountability naturally involves public comment and popular pressure. The significance of public accountability of judges becomes even greater in the light of the fact that the courts participate in the government of the people, admittedly to a much lesser degree than the political branches of the government, the Knesset and the executive, but nevertheless with sufficient impact on the life of the community and on the system of government. The basic proposition of the public accountability of judges should be qualified by the need to shield the judges and courts from excessive pressure which might affect their independence and impartiality. Likewise, it should be qualified by the necessary limitations which will assure public confidence in the courts. In the courts there are always winning and losing parties. The losing litigants might easily find imagined reasons for their loss in court. Unrestrained attacks on judges might damage public confidence in the courts, which is indispensable for the performance of their function in society. The qualifications upon the public accountability of judges should be maintained by self-imposed rules on the part of the press and leaders of the community. There is no need to add any more limits on the legal restrictions already existing on public comments on courts and judicial proceedings. But the press must always be mindful that "excessive popular pressure and irresponsible journalism hungry for sensational pieces might put the judges in an unbearable position and are likely to threaten the independence of the judges, who often have to act against popular wishes and to protect dissenters and members of minority groups."

Informal and Professional Controls

The professional criticism of judges from all the branches of the legal profession and the social pressures from their colleagues in the legal profession, and their brethren on the bench, constitute a significant mechanism for checking judges. Lawyers as individuals and the organised Bar have information on the predilections of individual judges and improper judicial practices. Lawyers appear in court and watch the judges in action day by day. They are normally the eye-witnesses of justice as it is administered to the people. Naturally, they are the agents of information on the quality of justice administered and on the incidents of judicial misconduct in court. Numerous methods are available to the lawyers. In proper cases they file an appeal and give the appellate court the opportunity to censure and reprimand the judge and in the proper case to change or reverse the judgment at first instance. They may discretely call the attention of a journalist to a case of public interest in which the judge acted in deviation from established standards. The lawyer may choose sometimes to write an article in the general press or in a professional journal criticising certain aspects of the administration of justice. The lawyers may stand up in court against improper conduct, although this course of action is reserved for the courageous who, by the constraints of reality and the probabilities of human nature, are very few. The list of options open to the lawyers to cope with judicial misconduct is varied. Lawyers can write a letter of complaint to the Bar institutions, or they can go informally together with other lawyers to the head of the court where the aberrant judge serves. In other cases, a letter of complaint could be addressed to the Minister of Justice to initiate disciplinary proceedings against the aberrant judge.

The organised Bar sometimes decides on a collective action against a judge. Thus, in Haifa, the Bar once decided to boycott a woman judge because of habitual improper handling of lawyers. In major cities, the local Bar has special committees dealing with courts, and information of recurrent cases of judicial improper conduct accumulates in those committees. Officially the Bar does not have power to initiate disciplinary proceedings against a judge. But a complaint from the Bar against a judge will carry significant weight. The legal profession in Israel enjoys high prestige and is well

organised. It is strongly influenced by British traditions as a result of over 30 years of the British Mandate. Judges are appointed to the bench after long years of work at the Bar. The legal profession is unified without the division into solicitors and barristers known in Britain. But the small size of the country and the strong ties among the leading groups at local lawyers' associations make social contacts quite frequent and effective. On the whole the role of individual lawyers in the informal control of judges is more significant than the role of the organised Bar.

Academic criticisms of judicial decisions is a normal practice and the judges have normally been sensitive and responsive to such criticism. On occasion, academic comment is outspoken. The judges, and particularly the senior judges, also play a role in checking the conduct of their brethren. The President of the Supreme Court and the President of District Courts are responsible for the administration of the court, and so, subject to certain differences, are the chief magistrates in the magistrates' courts. In the case of delay of judgments or an unduly long backlog in the calendar of a certain judge, the head of the court will normally have a word with the judge. The President of the Supreme Court is morally the leader of the judiciary. The informal disciplinary function of the President and Judges of the Supreme Court is not derived from their moral standing only, but also from the fact that they constitute the main part of the panel of the judicial disciplinary tribunal. The President of the Supreme Court also has the power to suspend a judge if criminal proceedings are brought against him.

The President of the Supreme Court has a role as a leader of the judiciary in that he speaks for the judiciary when he thinks that other branches of the government have interfered with its independence or damaged its reputation. On many occasions it has been done behind the scenes, but sometimes the President comes out publicly. The President of the Supreme Court acts as the head of the judiciary. As such he can exercise quite effective informal control over judges in proper cases. The disciplinary role of the President and Judges of the Supreme Court is further strengthened by the fact that the president and, on rotation, two other judges, are members of the judicial appointment committee. The local Bar Association also participates informally in the process of selecting judges in its locality and its assessment of a person is relevant for his judicial elevation. The importance of social pressures and informal controls should not be underestimated. The judges are a closely-knit group and they are very sensitive of their reputation. They will be very concerned if their names are mentioned derogatorily in the conversations of lawyers and judges.

* * *

Questions and Discussion

1. The question of judicial accountability remains a tricky and sensitive one. The main problem for it to be so is the fear that while attempting to ensure accountability, it may be possible (or even in some cases in disguise) to infringe upon judicial independence. Discuss this problem and make suggestions as to how best the two can be done in a balanced, non-intrusive way.
2. Shimon Shetreet talks about the independence of the judge and the independence of the judiciary as two separate concepts in Israel. What does he mean by that? Do you think this distinction applies to our case?
3. Shimon Shetreet also talks about the immunity of judges from criminal prosecution and from tortious liability. How does that work? Do we have these sets of judicial immunity in Ethiopia? Do you agree with the idea of immunity for judges? What do you think are its pitfalls and advantages?

CHAPTER SEVEN

GOVERNMENT, THE JUDICIARY AND EMERGENCY POWERS

A separate discussion on the powers of the government in times of public emergency is found necessary due to at least two main reasons. The first reason is that the extra-ordinary power that the government wields during the times of national calamities is almost naked and therefore is a matter of grave concern. The second reason which emanates from the first is that, due to the legal justification for the government to take all necessary measures to put the emergency situation under control, the government authorities and its security forces may abuse their power and unjustifiably trample upon the rights of citizens. It is therefore absolutely necessary to put in place the necessary guard-rails to keep the government's actions within the constitutional-legal framework put in place beforehand for the emergency situations.

Declaration of state of emergency, from the 1960s onwards, has rather been common in Ethiopia as is mostly the case in non-stable democracies. Emperor Haile Selassie's administration started to declare state of emergency in late 1960s which continued on and off till the downfall of his government in 1974. It is accurate to say that during most of the Derg's time, state of emergency was in place at one or the other part of the country at any given time. The EPRDF's administration from early 1990s was almost state of emergency-free until October 2016 when it declared a nation-wide state of emergency in response to mass protest against the regime it ran. The state of emergency that was issued for six months was renewed for another four months in March 2017. The declaration of Emergency first made by the Council of Ministers was in both cases adopted by the HoPR as per the constitutional requirements. In February 2018, after the announcement of the resignation of the then prime minister, Ato Hailemariam Desalegn, the government declared a six months' state of emergency (*State of Emergency Proclamation Issued to Defend the Constitution and Constitutional Order from Threat Council of Ministers Proclamation No. 2/2018*).

In April 2020, the Ethiopian government declared COVID-19 pandemic-induced state of emergency (Proclamation No. 3/2020). This state of emergency declaration might have come to pass as an event in the Ethiopian history being treated as a normal response to a global pandemic. However, its coincidence with the 6th general elections of Ethiopia which was constitutionally scheduled to take place in 2020 made it a nation-wide mega matter. The question thus was: Should the election take place in spite of the SoE declaration or should it be postponed because of it? Opinions were divided on this. The matter was complicated especially because of the TPLF refused to agree to the postponement of the elections, arguing that postponement of the elections would be unconstitutional. The Ethiopian Constitution does not resolve this controversy—of whether or not constitutionally scheduled elections can be postponed if public emergency that necessitated the declaration of SoE intervenes. Because of this state of the Constitution vis-à-vis the issue, the HoPR requested an abstract review of the Constitution, which was dealt with by the Council of Constitutional Inquiry (CCI) and the House of the Federation (HoF). The detail of the request and the determinations made on the request are discussed in chapter 12 of the textbook.

In November 2021, the Ethiopian government declared yet another state of emergency, this time owing to the security crises that resulted from the TPLF and its affiliates' expansion of their attacks on the government posing "grave and imminent danger against the existence and sovereignty of the country". As the provisions of the (Ethiopian) state of emergency declarations excerpted below show, state of emergency (SoE) exigencies may require that serious measures be taken in order to respond to the threats posed to the life of the nation. At the same time, it needs to be emphasized that measures that may be taken by the government in order to avert the danger to the nation cannot be taken arbitrarily. The measures have to comply with rules and procedures that are laid down beforehand. Institutions that supervise the respect for the rule of law during the public emergency

have to function properly so that the government is not left with carte blanche power to clamp down on citizens' rights.

Emergency powers are part of the political power. Constitutions empower respective governments to take the necessary measures to save the life of the nation from the danger posed by the exigency situation. Likewise, constitutions of nations also put in place institutions to oversee the proper implementation of declared state of emergency. The Constitutions also set restrictions on measures the government can take especially in regards to fundamental rights and freedoms in its emergency measures. In fact, international and regional human rights instruments also prescribe such restrictions on governments which we will discuss later in the chapter.

Below, excerpts from the 2021 declaration of SoE will be presented. As you read the provisions of the declaration, pay attention to the measures that the executive is allowed to take under the declaration. Do you think they are reasonable given the exigencies faced by the nation?

A State of Emergency Proclamation Enacted to Avert the Threat Against National Existence and Sovereignty, Proclamation No. 5/2021 (Ethiopia)

* * *

Part One

Emergency Measures and Prohibited Actions

4. State of Emergency Measures

When the State of Emergency Operation Command believes that it is necessary to protect the existence and sovereignty of the nation and to maintain the wellbeing of innocent civilians, it may: (...)

1. Order citizens whose age are fit for military service and who are in possession of firearms to take military training, to take orders for military missions, or to hand over their firearms in case they are unable to do so;
2. To Impose curfew;
3. Cause the closure or termination of any means of communication and public transportation;
4. Arrest any person without a court warrant upon reasonable suspicion that he cooperates with terrorist groups; detain such person for the period that this proclamation is in force or hold the same accountable under the law;
5. Search any person's house, place, and vehicle upon reasonable suspicion that he cooperates with terrorist groups; stop any person to search and to ascertain his identity; confiscate seized firearms;
6. Give order for the closure of a given street or a service providing institution for a certain period; or give an order for persons to stay in a certain place, ban from entering into or evacuate from a given place for a certain period;
7. Partially or fully suspend local administrative structure, change or replace administrators with civilian or military administrators in parts of the country where there are serious security threats and problems of the country;
8. Order the relevant regulatory authority to effect the suspension or permanent cancellation of licenses of civil society organizations which have been suspected of providing direct or indirect, moral or material support to terrorist organizations;
9. Order the relevant regulatory authority to effect the suspension or permanent cancellation of licenses of mass media or journalists who have been suspected of providing direct or indirect, moral or material support to terrorist organizations.

5. Use of Proportional Force and Non Derogable Rights

1. The State of Emergency Operation Command may order security forces to use proportional force which it finds necessary for the execution of state of emergency measures provided in this proclamation.
2. The State of Emergency operation command shall respect the provisions and rights enshrined under Article 93(4) of the FDRE Constitution on its directives, decisions, and measures.

6. Obligations and Prohibited Activities

1. Any person shall have the duty to observe directives and orders of the Emergency Operation Command enacted in accordance with this proclamation.
2. Any form of expression which is opposed to the operation of the Emergency Operation Command and the purpose of the proclamation, contributes to the success of terrorist groups' objectives, encourages the activities of the terrorist group, or terrorizes civilian population is prohibited.
3. Providing any form of monetary, information, material, or moral support, either directly or indirectly, to terrorist groups is prohibited.
4. Holding demonstrations or public gatherings without permission of the Emergency Operation Command or any other delegated authority is prohibited.
5. Moving around with firearms without the permission from National Defense Force, Federal Police, or other relevant security institutions is prohibited.
6. Moving around cities without holding an identity card, driving license, employee identity card, passport, or any other similar identity card is prohibited. Any person who does not have an identity card shall acquire a temporary identity card from nearby local Kebele, Woreda Security and administration office, or police station within two weeks from the issuance of a directive regarding this matter by the Emergency Operation Command.
7. Disrupting the activities of any essential service or production sector or carrying out acts of economic sabotage is prohibited.
8. Engaging in abuse of power with intent to gain an illicit benefit under the pretext of enforcing the proclamation or detaining individuals deliberately without reasonable suspicion or engaging in any such abusive behavior is prohibited.

Part Two

State of Emergency Operation Command

7. Establishment and Responsibility

1. A body led by the Chief of Staff of the Ethiopian National Defense Forces hereinafter referred to as "State of Emergency Operation Command" is hereby established to enforce this proclamation.
2. The structure and organization of the State of Emergency Operation Command shall be determined by the Prime Minister.
3. The State of Emergency Operation Command may establish task forces and committees from relevant bodies which will take responsibilities for the enforcement of this proclamation
4. The State of Emergency Operation Command is responsible to the Prime Minister.
5. The State of Emergency Operation Command shall lead and monitor measures stated under article 4 of this proclamation.
6. The State of Emergency Operation Command shall lead, coordinate and order law enforcement organs under one command.
7. It shall have any other power necessary and proper for the execution of its powers under this proclamation.

Part Three r
Miscellaneous Provisions

8. Suspended Laws

1. Any judicial organ shall not have authority with regards to the enforcement of this Proclamation until the expiry of the same.
2. Without prejudice to diplomatic immunities indicated under the Vienna Convention on Diplomatic Relations, substantive and procedural laws inconsistent with this proclamation shall remain suspended during the implementation of this proclamation.

9. Criminal Liability

1. Whosoever violates the provisions of this Proclamation or directives issued in accordance with this Proclamation shall be punished with simple imprisonment of up to three years or depending on the gravity of the offense rigorous imprisonment of up to ten years.
2. If the violation stated under Sub-article 1 of this article entails grave punishment in other laws, such punishment shall apply.
3. Violations of this proclamation and directives issued pursuant to it that have been committed during the course of this state of emergency will entail criminal liability in accordance with ordinary criminal procedure rules even after the expiry of the state of emergency.

10. Power to Issue Directive

1. The State of Emergency Operation Command may issue directives for the implementation of this proclamation. (...).

* * *

The first of the series of SoE declarations—Proclamation No.1/2016—was titled *State of Emergency Proclamation for the Maintenance of Public Peace and Security*. The second one declared in 2018 (Proclamation No. 2/2018) was enacted under the title: *State of Emergency Proclamation Issued to Defend the Constitution and Constitutional Order from Threat*. The two declarations have overwhelming similarity content wise. The latter one, Proc. No. 2/2018, tended to be a more detailed and has added some proscriptions and elaborations of sorts to the structure that was put in place in the first SoE proclamation. To mention a couple of examples: the list of prohibited acts in Proc. No. 1/2016 (art 4) contains 12 acts/omissions while Proc. No. 2/2018 increased that to 16 (art 4). Also, in Proc. No. 1/2016, the so called “command post” to “lead and enforce activities” enlisted in the proclamation was established without the members having been designated in full. So art 6 in the relevant part states: “A body composed of members from relevant bodies and led by the Prime Minister hereinafter referred to as “State of Emergency Command Post” is hereby established that enforces the State of Emergency Proclamation” and that “[t]he Prime Minister shall select members of the State of Emergency Command Post”. In the case of Proc. No. 2/2018, the members of the command post were designated (art 6) to be the Deputy Prime Minister; Minister of Defence; the Chief of Staff; National Intelligence and Security Service Director General; and the Federal Police Commissioner General.

These two emergency laws were enacted to control the protests that were waged in most parts of the country especially Oromia and Amhara regions when the TPLF was in charge of political power at the center. The protests eventually resulted in change of stance by the TPLF-led EPRDF. The first major outcome being the resignation of Prime Minister Hailemariam Dessalegn and the installment in April 2018 of Prime Minister Abiy Ahmed, from another member party of the EPRDF, OPDO (Oromo People’s Democratic Organization). Losing its hegemonic power at the center, the TPLF rejected the reform initiatives of the new Prime Minister and left the federal government bit by bit and fully retreated to Mekelle, Tigray. The slew of disagreements between the center and the TPLF led to an armed confrontation that was, as evidences show, instigated by

the TPLF on 3 November 2020. In November 2021, the TPLF and some collaborating armed groups like the OLA (Oromo Liberation Army) threatened to march on the capital, Addis Ababa, hence, SoE declaration (Proc. No. 5/2021). The latter emergency declaration, excerpted above, was targeted primarily to avert the dangers posed by the armed groups, and because of that particular focus it had, the proscribed activities under it did not closely resemble the two previous declarations discussed here.

Below, you will find some helpful materials that will enable you get a deeper understanding of the comparative constitutional practices as well as the international human rights law applicable to states of emergency.

Anna Khakee, “Securing Democracy? A Comparative Analysis of Emergency Powers in Europe” (Geneva Centre for the Democratic Control of Armed Forces (DCAF) Policy Paper – No. 30, 2009). Footnotes omitted.

* * *

2. Constitutional Protection of the Democratic Order during States of Exception: No European Consensus

2.1 Introduction

What does the regulation of emergency powers in European constitutions look like? How are potential emergencies defined? Do the constitutions contain different levels or forms of emergency powers? Who decides on the declaration of emergency powers, its duration, prolongation and end? Do the constitutions provide for parliamentary and/or judicial oversight and control of emergency rule? What basic constitutional guarantees are made for the preservation and the survival of the democratic order? Which human rights and fundamental freedoms are protected at all times (so-called non-derogable rights)? This section attempts to answer these questions as concerns the constitutions of the EU member states, Norway and Switzerland. It offers an analytical overview of how European constitutions regulate emergency rule (...).

It must be noted that, from an international law perspective, states are not free to shape their emergency legislation entirely as they wish. Many of the most important international human rights treaties, such as the International Covenant on Civil and Political Rights (ICCPR), the European Convention for the Protection of Human Rights and Fundamental Freedoms (ECHR), and (in the Pan-American context) the American Convention on Human Rights, enumerate a number of so-called non-derogable human rights, which cannot be suspended in any circumstances, including during a state of emergency or in wartime. In the wake of the democratisation of large parts of Central and Eastern Europe after 1989, recommendations regarding the constitutional regulation of emergency powers were also made by the Venice Commission within the Council of Europe.

The list of non-derogable rights in the international instruments vary somewhat, but generally encompass the right to life, the prohibition of slavery and of torture or cruel, inhuman or degrading treatment or punishment, as well as the principle of non-retroactivity of penal law (no crime without law). According to the Venice Commission, it is also crucial to maintain certain other rights during a state of emergency, in particular minimum guarantees against arbitrary detention, the right to a fair trial and to recourse to courts against acts and actions of the authorities wielding emergency powers. Moreover, rights should be enjoyed by everyone without discrimination. The instruments also provide rules for how and in what circumstances emergency regulations which derogates from certain (derogable) rights can be established. According to the ECHR Art 15, derogations can only be made in times of “war or other public emergency threatening the life of the nation”, and the Secretary General of the Council of Europe shall be kept fully informed (i.e. the

convention establishes a system of notification). A number of qualifying criteria, developed in European Court of Human Rights case law, further restrain the usage of emergency rule. The same is true for the ICCPR Art 4.1

On the question of the division of powers between branches of government and the preservation of the democratic order during states of emergency, however, the human rights instruments remain silent. The Venice Commission also avoids making recommendations in this area, confining itself to “matters touching upon human rights, because national legislation and regulations differ greatly on the institutional aspects of the problem”. Only limited guidance is given to national constitutional drafters and lawmakers regarding this important issue. (...)

2.2 Types of States of Exception

Emergency situations differ greatly: pandemics and natural catastrophes tend to have different effects and require different responses than insurgencies or attempted coups d'état. Terrorist attacks, again, will be different from severe economic crises or an armed aggression of a foreign state. This diversity of possible emergencies is one of the thorniest issues that constitutional drafters and scholars have had to grapple with. It is also one of the reasons why the debate (reviewed in the introduction to this report) on whether responses to emergencies can indeed be regulated by law is so fierce. Arguably, however, a system that allows for a differentiated approach (i.e. a more limited form of emergency powers in the case of, for example, a large scale industrial accident and more comprehensive forms of emergency rules for wartime etc.) is less prone to political over-reaction than one that comprises only one single form of emergency power.

* * *

2.3 Declaration, Prolongation and Termination of Emergency Rule

Only a handful of European constitutions remain silent on how emergency rule is declared. In fact, declaration is one of the few aspects of emergency rule that is covered in the great majority of European constitutions.... According to most European basic laws that regulate the issue, parliaments must be involved in the decision to impose emergency rule. Most of the time, they act on a proposal or a declaration of the government or the president (however, in two cases, the Czech and the Irish constitutions, the parliament can act alone). Often, more stringent conditions apply to such a parliamentary decision or approval than to regular legislative acts: requirements of a larger majority and/or a majority of all MPs (not only those present) are common. An interesting exception can be found in the Polish constitution, whereby an absolute majority of votes (in the presence of at least half the statutory number of MPs) is required to annul the president's decision on a state of emergency or martial law.

Given that emergency rule must often be imposed without delay, supplementary rules exist in many European constitutions for the case that parliament cannot be rapidly convened. In such cases, it is often up to the government or the president to declare emergency rule, with parliamentary deliberation over the decision taking place at its next session. To avoid leaving the decision solely to the executive should the parliament be incapacitated, a few European states have sought alternative solutions. Thus, in the German case, it is up to the so-called Joint Committee (a kind of mini-parliament replacing the Bundestag and the Bundesrat whenever necessary during a state of defence...) to take the decision, and according to the Portuguese constitution, granting permission is conferred to the Standing Committee of parliament. The Hungarian constitution has adopted a slightly different model, with the speaker of parliament, the chairperson of the constitutional court and the prime minister jointly deciding whether the president should be entitled to introduce a state of emergency, a state of national crisis or a state of war in the parliament's place. The parliament, in its first session, decides by a two thirds majority of all MPs upon the legality and necessity of the decision.

In certain European constitutions, parliamentary involvement is weaker. In France, the president alone (after consultation with the prime minister, the presidents of the assemblies and the Constitutional Council) can impose the most far-reaching type of state of exception in the French system, the so-called exceptional powers. Similarly, in Slovakia, the president declares a state of emergency or a state of war on the proposal of the government, which should take its decision collectively. This solution is quite unusual, however. Often, pure executive decision-making is confined to the least serious forms of state of exception (used in case of a large-scale accident, pandemic, natural calamity, or the like), and in such cases, there is usually a constitutionally regulated time limit for its duration.

Comparatively few European constitutions have explicit rules regarding the prolongation and termination of states of exception: almost half have no regulations at all; others have regulations that are much less detailed than those on the imposition of emergency rule.... Surprisingly, even certain constitutions such as the Hungarian one, that have detailed and even ingenious rules regarding the declaration of a state of exception, have left the issue of its prolongation and termination unregulated. In the cases where explicit constitutional rules exist, they often mirror regulations regarding the imposition of emergency rule: for example, in Ireland, it is the parliament that decides when a public emergency or a time of war or armed rebellion shall cease and in Slovakia, it is again the president, on the proposal of the government, who terminates a state of emergency or a state of war. It is also relatively common to set a time limit for a state of exception, without any further regulation. This begs the question of how to proceed if the emergency situation drags on beyond the constitutional time limit for emergency rule.

As in many other areas of emergency regulation, the most stringent constitutional rules are found in countries with a relatively recent experience of authoritarian rule, such as Germany, Greece, Spain, and a handful of other countries. According to the German constitution, a *Spannungsfall* (the less serious of the two constitutionally regulated states of exception) is terminated whenever the Bundestag so decides. A *Verteidigungsfall* (state of defence) is terminated whenever the Bundestag, with the approval of the Bundesrat, so decides. The Bundesrat can demand that the Bundestag deliberate the issue of termination. The Greek constitution stipulates a time limit of 15 days for a state of siege. It can be prolonged for 15-day periods by parliamentary decision, taken by absolute majority. According to the Spanish constitution, the time limit for a state of alarm is 15 days, whereas it is 30 days for a state of emergency. Congress decides on time limits for a state of siege. A state of alarm can be prolonged by Congress. A state of emergency can be prolonged for another 30 days, following the same procedure as for the proclamation of a state of emergency.

2.4 Oversights and Maintenance of Democratic Institutions During a State of Exception

It is perhaps in the area of oversight and regarding the workings of the democratic institutions during a state of emergency that European constitutions diverge the most. First, there are considerable differences regarding the extent of regulations: some constitutions are entirely silent on the effects of emergency powers on the role of the courts and on the balance between parliament, government and head of state, while others include very detailed systems of decision-making and transfer of powers.... Second, there are big differences as to how emergency powers affect the balance of power and possibilities for oversight: In Bulgaria, for example, a Grand National Assembly takes on the functions of the parliament in an emergency. The Grand National Assembly has 400 deputies, while parliament has 240. An emergency thus perhaps paradoxically entails a parliamentary procedure that is potentially more cumbersome than in a normal state of affairs. The Portuguese constitution stipulates that a declaration of a state of siege or a state of emergency must not affect the constitutional responsibilities and functions of the main governing institutions, including the self-government bodies of the autonomous regions. In Slovakia, in contrast, the president shall dissolve parliament during war, or during a so-called “war state” or an exceptional state: the parliament hence ceases to function entirely. Oversight is instead confined to the Constitutional Court.

Bulgaria and Slovakia are extremes, however. More common is the transfer of some powers by parliament to the government or the president, who has the right to issue regulations that go against existing laws. Also relatively common is speedier parliamentary decision-making and joint decision-making of both chambers of parliament. As a counter-balance, such laws and regulations are often temporary, and/or must be approved by parliament within a set period of time failing which they automatically lapse.

A couple of constitutions stipulate that “mini-parliaments” replace the legislature during war or similar situations. This is the case in Sweden as well as in Germany, where, during a state of defence, the so-called Joint Committee can determine that the Bundestag cannot be convened or cannot reach quorum and that, as a consequence, the Joint Committee replaces both the Bundestag and the Bundesrat and exercises their rights as one body. The Swedish constitution provides for a similar so-called War Delegation. The Hungarian constitution contains provisions regarding crisis decision-making: it provides for a National Defence Council composed of the president, the speaker of parliament, the floor leaders of the political parties represented in parliament, the prime minister, the ministers, and the chief of staff of the armed forces with the right of consultation. In severe emergencies, the National Defence Council exercises the powers of the president and the government, as well as the powers transferred to it by the parliament.

Approximately one third of European constitutions contain no provisions specifically designed to ensure the survival of the democratic order during states of exception, but the majority do.... Some of the most common protective mechanisms concern the parliament as a key democratic institution. Given that elections and campaigning can seldom be conducted without severe disturbances in a serious emergency, many constitutions provide for the postponement of elections and the prolongation of parliamentary terms. Equally common is the compulsory convening of parliament rapidly after a state of exception has been proclaimed and the prohibition to dissolve the parliament.

Another common safeguard is the prohibition to alter the constitution – and, in certain cases, other pieces of important legislation such as the election laws and the laws governing the state of emergency – during the state of exception. This is a way of trying to make sure that leaders who have become too fond of wielding extensive powers cannot alter the rules of the game to perpetuate their rule. Ireland is an outlier in this respect: In the case of war or armed rebellion, the constitution is practically suspended: “Nothing in this Constitution other than Article 15.5.2° [which forbids parliament to introduce the death penalty] shall be invoked to invalidate any law enacted by [the parliament] which is expressed to be for the purpose of securing the public safety and the preservation of the State in time of war or armed rebellion, or to nullify any act done or purporting to be done in time of war or armed rebellion in pursuance of any such law”.

2.5 Judicial Control and Oversight

Relatively few European constitutions emphasise judicial control of the authorities wielding emergency powers: many are entirely silent on the issue. Two exceptions are the German and the Hungarian constitutions, which stipulate that the Constitutional Court must continue to function normally, even during emergency rule. In the German case, the only exception that can be made is where the Court itself decides that its working methods must be adjusted to the new situation. Only in one case (Slovakia) does the constitution explicitly provide for judicial controls: there, the Constitutional Court examines the constitutionality of the proclamation of a state of emergency or a state of exception, as well as of measures subsequently taken by the emergency government. Given that the parliament is dissolved during states of exception in Slovakia (see above), the judicial control mechanism takes on even greater significance.

Likewise, other alterations in the judicial system during emergency rule are not treated in detail in any European constitution. A number of basic laws mention the establishment of extraordinary courts or the extension of the jurisdiction of military tribunals The right to appeal may also be

restricted, such as in Italy as concerns sentences of the military tribunals. The Swiss constitution explicitly rules out creating ad-hoc tribunals, but many others remain silent on the issue.

2.6 The Protection of Human Rights During States of Exception

European constitutions as a rule fall into one of three categories as far as the protection of human rights during emergency rule are concerned. Some constitutions do not mention the issue at all, or stipulate that it should be settled in other types of legislation. The majority of states that fall into this category are Western European ones, including Belgium, Denmark, France, Italy, and Norway, but a few of the newer Central European democracies (Czech Republic, Latvia and Slovakia) also feature. Other constitutions, such as those of Austria, Greece, Lithuania, Malta, Netherlands, and Spain, list the rights that may be curtailed during emergency rule. The list of derogable rights vary somewhat from one country to the next, but often include the freedom of movement, the freedom of assembly, the freedom of association, free speech, secrecy of correspondence/right to privacy, the sanctity of the home, and certain rights during arrest and/or trial. Uniquely, the Maltese list of derogable rights includes the principle of non-discrimination. According to the German constitution, only four rights, namely freedom of movement, the sanctity of the home, compensation for expropriation, and certain rules regarding arrest (allowed for up to four days during a state of defence), are derogable. According to the Irish constitution, the protection against unlawful detention is curtailed during a state of war or armed rebellion; the constitution contains no further rules regarding restrictions of human rights during states of exception. The Romanian constitution admits that restrictions in certain rights are made, but the measure “shall be proportional to the situation having caused it, applied without discrimination, and without infringing on the existence of such right or freedom.”

Following the model employed in the international conventions, a third set of constitutions, including those of Bulgaria, Estonia, Hungary, Poland, Portugal, and Slovenia, list rights which are non-derogable. Again, national variations as to the list of non-derogable rights are legion, but a common core can be discerned. It is virtually always the case that the right to life, the prohibition of torture and other inhuman or degrading treatment or punishment, and the non-retroactivity of penal law, are included. Other common non-derogable rights include the inalienable dignity of the person, right to citizenship, right to a fair trial or certain rights during trial, freedom of religion and belief, rights when under arrest, and, in the Estonian and Polish constitution, non-discrimination. Surprisingly, the prohibition of slavery and servitude (one of the non-derogable rights in the international human rights conventions) is remarkable by its absence.

The Swiss constitution adopts a solution which is somewhat different from the others: it states that severe restrictions may only occur in the case of a serious, direct and imminent danger and must be proportional to the purpose. The “essence of basic rights” remains inviolable. The constitution of Luxemburg is in principle silent on the issue of non-derogable rights, but the general rule that none of the paragraphs of the constitution may be temporarily suspended should presumably apply to situations of emergency as well.

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European Commission for Democracy Through Law (Venice Commission) *Emergency Powers* (Strasbourg, 1995)

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Concept of public emergency

Public emergency situations involve both derogations from normal human rights standards and alterations in the distribution of functions and powers among the different organs of the State. Derogations from fundamental human rights are an especially crucial problem since experience has shown that the gravest violations of human rights tend to occur in the context of states of emergency. Nevertheless, the principal international human rights instruments of our time contain a derogation clause with regard to emergencies. The European Convention of Human Rights and Fundamental Freedoms (ECHR, Article 15) allows derogation in cases of "war or other public emergency threatening the life of the nation". The International Covenant on Civil and Political Rights (ICCPR, Article 4) refers to a "public emergency which threatens the life of the nation", while the American Convention on Human Rights (ACHR, Article 27) refers to a "war, public danger, or other public emergency that threatens the independence or security of a State party".

* * *

Judicial review

The concept of emergency rule is founded on the assumption that in certain situations of political, military and economic emergency, the system of limitations of constitutional government has to give way before the increased power of the executive (including military power in a martial law). However, emergency rule is a legal regime governed by the principles of legality of administration, based on the rule of law. The rule of law means a system where governmental agencies must operate within the framework of law, and their actions are subject to review by independent courts. In other words, the legal security of individuals should be guaranteed.

First of all, consideration may be given to whether there is any judicial review of the executive act declaring emergency rule or the legislative resolution approving it. There is no general agreement about the appropriateness of judicial review concerning the declaration of emergency rule. Because of its political nature the justiciability of a declaration of emergency presents special and difficult questions and problems. There are those who say that there should be no control at all by the judiciary and others who claim that a certain control would be appropriate.

In international law the above question is answered somewhat differently. Especially under the European Convention, the European Commission and Court have consistently declared themselves competent to examine emergency situations according to Article 15 of the ECHR. The right of States to declare a public emergency and to take measures derogating from their obligations under the Convention is recognised but also supervised by them. In international law, in evaluating the existence of a public emergency and the need for derogating measures, States enjoy a margin of discretion.

In many countries there is no judicial review of the executive act declaring emergency rule or the legislative resolution approving it. Normally, only the acts of the emergency rule authorities fall under the jurisdiction of the courts. In spite of the fact that there is no unambiguous and clear-cut provision in the Constitution of the Republic of Turkey, the Constitutional Court and the Council of State have ruled that the decision of the Council of Ministers declaring states of siege or states of emergency is beyond their jurisdiction and have refused to examine the validity of such a declaration. In Hungary, Albania, Canada and Switzerland, the executive act or the legislative resolution approving the emergency cannot be reviewed by the courts. In Finland there is no judicial review of the executive act declaring emergency rule except in so far as any powers are used by the executive before the decree in question has been approved by the Parliament.

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Recommendations

Admittedly, a variety of internal and external situations may arise in which the executive organ of the state must act quickly and decisively to protect the fundamental interests of the state and society. For that reason, public emergency conditions may involve both derogations from normal human rights standards and alterations in the arrangement of functions and powers among the branches of the state. However, there is always a potential for the abuse of state power, and experience has shown that the most serious violations of human rights tend to occur in emergency situations. The constitutional order should find appropriate legal principles and provisions to cope with problems created by emergency conditions. Here, our recommendations will be confined to matters touching upon human rights, because national legislation and regulations differ greatly on the institutional aspects of the problem. The following points can be made in order to suggest certain legal standards for public emergencies:

- a. The emergency situations capable of giving rise to the declaration of states of emergency should clearly be defined and delimited by the constitution. In other words, the existence of a real and imminent danger should be clearly specified. The above condition is expressed in the three main human rights treaties (ECHR, ICCPR, ACHR) as an "exceptional threat". According to the principle of exceptional threat, the derogation from human rights standards in emergencies is legitimate only in case of "war or public emergency threatening the life of the nation".
- b. De facto state of emergency should be avoided, and emergency rule should be officially declared. The corresponding condition in the three main human rights treaties is the requirement of notification, whereby the other states party shall be informed of the provisions derogated from and the reasons therefor.
- c. The constitution should clearly specify which rights can be suspended and which rights do not permit derogation and should be respected in all circumstances. The lists of non-derogable rights in the three main human rights treaties (ECHR, ICCPR, ACHR) contain four such rights: the right of life, the right to be free from torture and other inhuman or degrading treatment or punishment, the right to be free from slavery or servitude, and the principle of non-retroactivity of penal laws. These four non-derogable rights which constitute the "irreducible core" of human rights should be explicitly phrased and sanctioned in the constitution. The inclusion of minimum guarantees against arbitrary detention and other guarantees protecting the right to a fair trial would also be important; furthermore, recourse to courts against acts and actions of the emergency rule authorities should be permitted. The foregoing rights and guarantees should be enjoyed by all without discrimination.
- d. The emergency measures and derogations from fundamental rights and liberties should be proportionate to the danger. In other words, derogations, restrictions and suspensions are acceptable only in case of war or a public emergency threatening the life of the nation; furthermore, such measures should be proportionate to the emergency. The principle of proportionality also includes what ACHR has called "the principle of temporariness" which means that emergency measures cannot last longer than the emergency itself, and the limitations that they bring about should be applied only in those geographical areas affected by the emergency. On the other hand, many of the measures taken under emergency rule do not imply any derogation from human rights standards. This is especially true of measures at the lower level of emergency. Quite often, such measures only regulate the behaviour of people or the use of their property, or the executive may be authorised to take measures which otherwise would require legislative action.
- e. Even in a state of public emergency the fundamental principle of the rule of law should prevail. In other words, no-one should be put to trial before a court other than one previously determined by law.

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Yehenew Tsegaye Walilegne, “State of Emergency and Human Rights under the 1995 Ethiopian Constitution,” in *Journal of Ethiopian Law*, Vol. 21, No. 1 (2007). Footnotes omitted.

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PRINCIPLES GOVERNING STATES OF EMERGENCY

. . .[S]ome of the major international human rights treaties recognize the right of State parties to derogate from some of their obligations under the treaties in exceptional situations. Such a right is meant to enable governments to save the State, not a specific government, from destruction as a result of exigencies. The treaties, however, do not give a *carte blanche* to the State parties. Instead, they impose a number of conditions for the legitimate exercise of the right of States to restrict some of the rights contained therein. These preconditions and requirements are intended to strike a balance between the needs of the State and the rights and freedoms of individuals as most of their rights are protected even during exigencies. These principles, which “form the core of the ‘legal regime of the derogation clauses’ . . . function to minimize the danger of usurpation or abuse of the derogation power by establishing a set of criteria by which any particular exercise of that power may be evaluated.”

Drawing on the guidelines prepared by international law experts and provisions of international human rights instruments, seven principles (five substantive and two procedural) have been developed to regulate the declaration and administration of states of emergency. The substantive principles are: the principle of strict necessity, the principle of non-derogability, the principle of exceptional threat, the principle of non-discrimination, and the principle of compatibility. The two procedural principles are: the principle of proclamation, and the principle of international notification.

The five substantive principles require that for valid states of emergency, the government which intends to resort to emergency powers must prove a) the existence of an exceptional threat to the security of the state or its people; b) the emergency measure that is going to be taken is proportional to the threat posed; c) that there will be no derogation from certain rights and freedoms, known as non-derogable rights; d) that the emergency measures are not going to be used in a discriminatory manner; and e) the compatibility of all emergency measures with the State’s other international obligations. We may sketch each of these principles as follows.

Overview of the Principles Governing Derogation

Strict necessity and proportionality

Despite the fact that there is a difference in phraseology, international human rights instruments require that an exceptional threat that “threatens the life of the nation” must exist before a State could be allowed to suspend rights and freedoms. The exigency must “imperil some fundamental elements of statehood or survival of the populations,” be provisional or temporary in nature, be imminent, and be of such character that it threatens the nation as a whole. Some of the exigencies include, but are not limited to, public health threats, economic calamities, natural disaster, war, internal or external armed conflict, acts of subversion and insurrection, and “anything that puts the security of the State in peril.”

The derogating state has to demonstrate that the measures it could have taken under ordinary laws would not have been sufficient to meet the danger posed by the exigencies. In *Ireland v. United Kingdom*, the European Court of Human Rights held that the U.K. was “reasonably entitled to consider” that the measures that were available under ordinary laws were not suitable or adequate to meet the danger posed by the IRA terrorist activities. The Court also considered the question in

the *Lawless* case and ruled that “the application of ordinary law had proved unable to check the growing danger which threatened the Republic of Ireland.”

The measures taken to avert the crisis should also be proportional to the threat posed by the crisis. Hence, suspension of rights and freedoms of citizens should be limited to the extent strictly required by the situation on the ground. The non-derogation clauses of the ECHR and the ICCPR state that restrictions placed on rights and freedoms in times of public emergency must be limited “to the extent strictly required by the exigencies of the situation.” Thus, “emergency power cannot be used to destroy the guaranteed rights altogether or to impose unwarranted limitations on their exercise.” In other words, the principle of proportionality proscribes “unnecessary suspension of specific rights, greater restrictions on those rights than necessary, or the unnecessary extension of the geographical area to which the state of emergency applies.”

Similarly, the emergency measures taken by a derogating State must be connected to the emergency, i.e., they must be *prima facie* suitable to reduce the crisis and must be commensurate with the severity of the threat posed. Implicit in the element of severity is the requirement of restricting the measures to areas that are affected by the emergency and only to the extent necessary.

According to the Human Rights Committee’s General Comment on Article 4 of the ICCPR, the requirement of proportionality “relates to the duration, geographical coverage and material scope of the state of emergency and any measures of derogation resorted to because of the emergency.” The Human Rights Committee added that:

the mere fact that a permissible derogation from a specific provision may, of itself, be justified by the exigencies of the situation does not obviate the requirement that specific measures taken pursuant to the derogation must also be shown to be required by the exigencies of the situation. In practice, this will ensure that no provision of the Covenant, however validly derogated from will be entirely inapplicable to the behaviors of the State Party. When considering State Parties’ reports the Committee has expressed its concern over insufficient attention being paid to the principle of proportionality.

The principle of proportionality, thus, requires States to provide careful justification not only for their decision to proclaim a state of emergency but also for any specific measures based on such a proclamation. If States purport to invoke the right to derogate from the Covenant during, for instance, a natural catastrophe, a mass demonstration including instances of violence, or a major industrial accident, they must be able to justify not only that such a situation constitutes a threat to the life of the nation, but also that all their measures derogating from the Covenant are strictly required by the exigencies of the situation.

In the opinion of the Committee, the possibility of restricting certain Covenant rights, for instance, freedom of movement (article 12) or freedom of assembly (article 21), is generally sufficient during such situations and no derogation from the provisions in question would be justified by the exigencies of the situation.

As the European Human Rights Court ruled in the *Lawless* case, real and effective safeguards must also be provided in order to curtail any possible abuse of emergency powers. According to the Court, the inclusion of a number of safeguard measures in the Emergency Legislation (Act) and its subsequent amendment, limited the acts of the government to those that are strictly necessary to address the situation. The Court also emphasized the importance of the supervision by the Irish Parliament, which possessed the power to revoke the declaration of emergency by receiving detailed information about the enforcement of the Act. The safeguards provided by the Act were

deemed to be of particular importance in determining that the measures taken by the government were “strictly required by the exigencies of the situation.”

Non-discrimination

The principle of non-discrimination requires that emergency measures adopted by the derogating State should not entail discrimination solely on the basis of race, colour, sex, language, religion or social origin or any other status. Article 4 of the ICCPR stipulates that in time of public emergency which threatens the life of the nation, the State parties to the Covenant may take measures derogating from their obligation under the Covenant to the extent strictly required by the exigencies of the situation, provided that such measures do not involve discrimination solely on the ground of race, religion, sex, ethnic group, political belief or other status.

* * *

Compatibility with other obligations

According to the principle of consistency or compatibility, states may derogate from human rights norms provided that such measures are not inconsistent with their other obligation undertaken under international law. This criterion is intended to create compatibility, concordance and complementarity among the different obligations of the derogating State under international law and maintain better protection of human rights in crisis situations.

Both under Article 15(1) of the ECHR and Article 4 of the ICCPR, a State may suspend rights only if the measures it has taken are “not inconsistent with its other obligations under international law.” Hence, the derogating State has to make sure that the emergency measures it takes are in conformity with its obligations under the particular human rights treaty to which it is a party and other international law norms. Thus, the obligation of consistency (compatibility) may have the effect of expanding the list of non-derogable rights discussed below.

In *Brannigan v. United Kingdom*, the European Human Rights Court entertained the question whether the United Kingdom’s public announcement of a state of emergency in Northern Ireland was enough to meet the requirements of an official proclamation of a state of emergency under Article 4 of the ICCPR. The Court noted that the statement of the Secretary of State for the Home Department to the House of Commons “was formal in character and made public the Government’s intentions as regards derogation, was well in keeping with the notion of an official proclamation.”

The requirement that the right of states to suspend rights should be compatible with its other international law obligations reflects the overlap and divergence between international human rights law and other systems of international law in general and international humanitarian law norms, such as the Geneva Conventions, in particular. The four Geneva Conventions and their Additional Protocols are not subject to suspension even in case of emergency, “since the very purpose of their adoption was to provide rules to govern situations of armed conflict.” . . .

Non-Derogable Rights

Substantive Rights

Even if a State declares emergency in full compliance with the aforementioned conditions, there are certain “core” human rights norms from which no derogation is allowed. Stated in simple terms, the principle of non-derogability prohibits States from suspending the rights that are specifically mentioned as non-derogable even under the gravest states of emergency. According to this principle, even in a situation of a state of emergency, there are certain fundamental rights and freedoms which can never be suspended or derogated from.

The list of these rights differs from treaty to treaty and, as we shall see, there is a general trend of expanding this list although the proposals have not yet attained universal acceptance. The non-derogable rights that are listed under Article 4(2) of the ICCPR are: Article 6 (the right to life), Article 7 (freedom from torture or to cruel, inhumane or degrading treatment or punishment), Article 8 (prohibition against slavery or to be held in servitude), Article 11 (imprisonment for the inability to discharge contractual obligation), Article 15 (prohibition against *ex-post facto* criminal law), Article 16 (the right to be recognized as a person before the law) and Article 18 (freedom of thought, conscience and religion). In contrast, under Article 15 of the ECHR, Article 2 (the right to life), Article 3 (prohibition against torture, inhumane or degrading treatment or punishment), Article 4(1) (prohibition against slavery or servitude), and Article 7 (non-retroactivity of criminal laws) are the only non-derogable rights. Article 3 of Protocol 6 and Article 2 of Protocol 13 to the ECHR also prohibit derogation under Article 15 of the Convention.

As can readily be observed, the above two human rights treaties recognize, in common, four rights as non-derogable, namely, the right to life, the right to be free from torture and other inhumane or degrading treatment or punishment, the right to be free from slavery or servitude, and the rule of no *ex post facto* criminal laws. According to Jamie Oraa these four rights have attained the status of *jus cogens* norms of international law.

According to Joan Fitzpatrick, the criteria for making certain rights non-derogable in the case of the ICCPR are: first, some of those rights are absolutely fundamental and indispensable for the protection of human beings and, second, derogation from some of those rights during states of emergency would never be justified because they have no direct bearing on the emergency. By the same token, the Human Rights Committee maintains that “[t]he proclamation of certain provisions of the Covenant as being a non-derogable nature . . . is to be seen partly as recognition of the peremptory nature of some fundamental rights ensured in treaty form in the Covenant (e.g., articles 6 and 7). However, it is apparent that some other provisions of the Covenant were included in the list of non-derogable provisions because it can never become necessary to derogate from these rights during a state of emergency (e.g., articles 11 and 18).” But these criteria seem not to have been consistently applied because there are some rights which seem to have no less fundamental importance but have nonetheless not been included in the list of non-derogable rights. As a result, there has been, as of late, calls to broaden the list of these rights.

The Paris Minimum Standards which were adopted by the ILA in 1984 contain “a set of minimum standards governing the declaration and administration of states of emergency that threaten the life of a nation, including sixteen articles setting out the non-derogable freedoms to which individuals remain entitled even during states of emergency.” Likewise, the Siracusa Principles on the Limitation and Derogation Provisions in the ICCPR, that came out in 1985, make a similar recommendation of making the right to a fair trial non-derogable. Again the *Queensland Guidelines for Bodies Monitoring Respect for Human Rights during States of Emergency*, approved by the ILA in 1990, endorse the recommendations of the above two standards and ask for making the right to a fair trial non-derogable.

The UN Human Rights Committee also seeks to enlarge the list of non-derogable rights by adding the rights to a fair trial and personal liberty as non-derogable provisions. It strongly suggests that the writ of *habeas corpus* should be a non-derogable right. In General Comment No. 29, it states that:

It is inherent in the protection of rights explicitly recognized as non-derogable in article 4, paragraph 2, that they must be secured by procedural guarantees, including often judicial guarantees. The provisions of the Covenant relating to procedural safeguards may never be made subject to measures that would circumvent the protection of non-derogable rights. Article 4 may not be resorted to in a way that would result in derogation from non-derogable rights. Thus, for example, as article 6

of the Covenant is non-derogable in its entirety, any trial leading to the imposition of the death penalty during a state of emergency must conform to the provisions of the Covenant, including all the requirements of article 14 and 15.

In the same vein, the Inter-American Court of Human Rights, in its Advisory Opinion of January 30, 1987, asserts that the writ of *habeas corpus* and *amparo*, which are not specifically included in the list of non-derogable rights under Article 25, “may not be suspended because they are judicial guarantees essential for the protection of the rights and freedoms whose suspension Article 27 (2) prohibits.”

Procedural Safeguards

Article 4(1) of the ICCPR makes it a requirement that a State which wishes to suspend rights and freedoms has to first “officially proclaim” the existence of the emergency threatening the life of the nation. In other words, the principle of proclamation proscribes a States’ resort to emergency measures without a prior official proclamation of a state of emergency.

The official proclamation of a state of emergency serves a number of important purposes. First, it prevents an arbitrary use of emergency powers in events that do warrant suspension of rights. By compelling States to make the existence of emergency public, the principle tries “to reduce the incidence of *de facto* states of emergency by requiring states to follow formal procedures set forth in their own municipal laws.” “Official proclamation by the political organs of a state, its legislature and executive, has the important effect of publicizing the existence of the crisis and of possible derogations from normal standards.” According to the UN Human Rights Committee, the official proclamation of state of emergency:

[I]s essential for the maintenance of the principles of legality and the rule of law at time when they are most needed. When proclaiming a state of emergency with consequences that would entail derogation from any provision of the Covenant, States must act within their constitutional and other provisions of law that govern such proclamation and the exercise of emergency powers; it is the task of the Committee to monitor that the laws in question enable and secure compliance with article 4.

Secondly, the official declaration of emergency notifies the population as to “the exact material, territorial and temporal scope of the application of emergency measures and their impact on the exercise of human rights.” Thirdly, it also helps for domestic supervision by the legislative and judicial organs of the government.

As an extension to the requirement of public declaration of emergencies, States are required to inform, in a timely manner, the other contracting parties to the treaties that they are temporarily unable to discharge some of their treaty obligations. In order to check whether derogations from human rights are necessary and proportional to the danger posed by the exigencies, derogations are “subject to international scrutiny and review.” In line with this, both the ICCPR and ECHR require States Parties to notify the Secretary General regarding the declaration and termination of states of emergency.

Article 4 of the ICCPR stipulates that any State party to the Covenant availing itself of the right of derogation should immediately inform the other State parties, through the intermediary of the Secretary General of the UN, of the provisions from which it had derogated and the reasons by which it was actuated. The ICCPR also provides for a similar notification requirement when the derogation is terminated.

* * *

STATE OF EMERGENCY AND THE FDRE CONSTITUTION

This Part examines the Ethiopian constitutional law concerning human rights and states of emergency. It explains the procedures of declaring states of emergency, the constitutional safeguards against potential abuse of emergency powers, non-derogable rights and the role of the Ethiopian judiciary, if any, in limiting the emergency powers of the government. It also attempts to identify the shortcomings in the Ethiopian constitutional framework in light of the generally accepted international norms discussed in the earlier sections.

Declaration of State of Emergency

* * *

Article 93 of the FDRE Constitution lays down the circumstances for a valid declaration of states of emergency under the Ethiopian legal system. Sub-article 1 reads:

1. (a) The Council of Ministers of the Federal Government shall have the power to decree a state of emergency, should an external invasion, a breakdown of law and order which endangers the Constitutional order and which cannot be controlled by the regular law enforcement agencies and personnel, a natural disaster, or an epidemic occur.
- (b) State executives can decree a State-Wide state of emergency should a natural disaster or an epidemic occur. Particulars shall be determined in State Constitutions to be promulgated in conformity with this Constitution.

First, the situations that justify the declaration of a state of emergency are an external invasion, a breakdown of law and order which endangers the constitutional order and which cannot be controlled by regular law enforcement agencies and personnel, a natural disaster, or an epidemic. In these situations, the Council of Ministers can lawfully exercise its power to declare a state of emergency. To put it differently, a war of aggression, internal disturbance, such as rebellion and subversive movements or natural calamities like flood, wildfire and transmissible diseases are the only grounds on which a state of emergency could be declared under the Constitution.

The Constitution requires the actual occurrence of the circumstance for a state of emergency to be put in place. Near occurrence or quite immanency are insufficient. The requirement that the breakdown of law and order must be such that it endangers the Constitutional order and cannot be controlled by the regular law enforcement agencies and personnel indicates that a declaration of emergency should be of an exceptional nature. The crisis has to be so serious that the country's institutional framework has broken down and violence must have become widespread, wreaking havoc on citizens. Second, the power to declare states of emergency is given to the Council of Ministers, which is the executive organ of the country. During emergency, the Council is also given all the powers to protect the country's peace and sovereignty as well as maintain public security, law and order. Similarly, Article 93(1) (b) authorizes state executives to declare state of emergency within their respective regions when they are confronted with natural disasters or epidemic, provided that such declaration is in conformity with the constitution of the particular state.

Where a state of emergency is declared while the HOPR is in session, the declaration should be submitted to the House within forty-eight hours for endorsement. If, however, the House is in recess, the declaration should be submitted within fifteen days of its adoption by the Council of Ministers. If the declaration gets the assent of the HOPR, the state of emergency will remain in effect for up to six months. Similarly, if the members of the HOPR, by a two-thirds majority vote so decide, an emergency proclamation may be renewed for a four-month period successively.

Third, the Council has “the power to suspend *political and democratic rights* contained in this Constitution to the extent necessary to avert the conditions that required the declaration of a state of emergency.”

Fourth, the Constitution, under Article 25 incorporates the principle of non-discrimination and its derogation clause stipulates clearly that the principle is not subject to any type of limitation or suspension.

Non-Derogable Rights under the FDRE Constitution

In line with the general state practice in times of emergency discussed in earlier sections, the FDRE Constitution also allows limitations on and derogation from the fundamental rights and freedoms listed under Chapter Three while at the same time recognizing certain absolute rights. Article 93 (4) of the Constitution states:

(b) The Council of Ministers shall have the power to suspend such political and democratic rights contained in this Constitution to the extent necessary to avert the conditions that required the declaration of a state of emergency.

(c) In the exercise of its emergency powers the Council of Ministers cannot, however, suspend or limit the rights provided for in Articles 1, 18, 25, and sub-Articles 1 and 2 of Article 39 of this Constitution.

The Constitution thus puts certain rights and freedoms beyond the reach of the emergency powers of the government even when there is an actual and imminent danger against the life of the nation. The list of fundamental rights and freedoms that are non-derogable under the FDRE Constitution include: the right to protection against cruel, inhuman and degrading treatment or punishment [Art.18(1)]; the right to be protected against slavery, servitude and the trafficking of human beings [Art. 18(2)]; the right to equality (Art. 25) and the right of Nations, Nationalities and Peoples of Ethiopia to self-determination up to secession [Art. 39(1)] and their right to speak, to write and to develop their own language as well as to express, to develop and promote their culture and to preserve their history [Art. 39(2) and (3)]. Although it is not a right, nomenclature of the State is also made non-derogable under the Constitution (Art. 1).

A juxtaposed reading of Article 93(4) (c) of the Constitution and Article 4(2) of the ICCPR clearly demonstrates that the list of non-derogable rights and freedoms in the former leaves out some of the rights that are enumerated in the latter. The non-derogable rights listed under Article 4(2) are right to life; freedom against torture, cruel, inhuman or degrading treatment or punishment; freedom against slavery, slave trade and servitude; freedom against imprisonment for contractual obligation; freedom against *ex post facto* criminal laws; right to recognition everywhere as a person before a law; and right to freedom of thought, conscience and religion. The Constitution fails to exempt the right to life, freedom against imprisonment for contractual debt, right to recognition everywhere as a person before the law and the prohibition against *ex post facto* penal law as well as right to freedom of thought, conscience and religion from suspension during emergencies.

Constitutional Safeguards against Abuse of Emergency Powers

The importance of precise and effective national legislation and effective domestic control mechanisms to prevent breaches of human rights during situations of public emergency cannot be overemphasized. Domestic control over emergency power takes two main forms: legislative control and judicial review.

Legislative Control

In most cases, national constitutions provide in some detail the circumstances under which a state of emergency may be declared, the nature of permissible derogations, the monitoring role of the legislative and judicial organs, and the way in which the emergency regime could be extended and ultimately come to an end. Specific controls may include: a requirement that any resort to emergency powers must be approved, either before introduction or soon after that, by a specified

majority of the legislators; a duty on the executive to seek periodic renewals for emergency mandate; time limits on the overall duration of the emergency; and a right on the part of the legislature to terminate the emergency at its discretion.

In the Ethiopian Constitution, an attempt has been made to give HOPR some control over the executive act of proclaiming or declaring an emergency. The first limitation is that if the state of emergency is declared while the HOPR is in session, the emergency decree should be submitted to the House within forty-eight hours of its declaration. If the emergency is decreed when the HOPR is in recess, then, it needs to be submitted to the House within 15 days of its declaration. In both cases, if the decree fails to get the approval of a two-third majority vote of the members of the HOPR, it has to be repealed forthwith. The second limitation relates to the scope of the emergency regulations, i.e., the executive can only derogate from what the Constitution designates as “political and democratic rights.” The third safeguard is temporal, i.e., the declaration of emergency is limited to six months. Although the Constitution does not put an upper limit to the number of renewals, it requires the HOPR to reconsider the emergency publicly on a bi-annual basis.

More importantly, the Constitution entrusts the duty to administer a state of emergence to the Emergency Inquiry Board constituted by the HOPR. The Board undertakes a series of tasks including inspection and follow up to ensure that measures taken during the state of emergency are not inhumane. When the Board finds any case of inhumane treatment, it is mandated to suggest certain corrective actions to the Council of Ministers or to the Prime Minister and to ensure that the perpetrators of those acts are prosecuted. It is also empowered to publicize the names of all persons detained by reason of the declared state of emergency within one month and to convey its views to the House of Peoples Representatives on matters of extension of the duration of the state of emergency.

JUDICIAL REVIEW

In a system in which the judiciary is empowered to review acts of parliament and the executive action, a declaration of emergency that fails to meet legal requirements could be declared null and void by a court of law. Further, national courts normally have the power to review measures taken during the emergency situation, including the power to issue writ of habeas corpus.

Of greater interest is the question whether the courts have power to question the wisdom of the executive’s determination that an emergency exists. Some authors argue that “a court [should] question the correctness of the belief that an emergency situation in fact existed or even the *bona fides* of the government in making a proclamation or declaration of emergency.” Others, however, claim that “the executive and legislature, the political branches of government, are entitled to discretion in determining the existence and gravity of a threat to the nation, i.e., the need for a state of emergency, and the necessity for recourse to specific measures.”

The different principles adopted as guidelines for derogation as well as the human rights instruments and the work of human rights bodies, make it clear that ordinary courts should be empowered not only to rule on the constitutionality of the state of emergency but also the way in which the executive exercise its emergency powers. Courts should be able to declare that emergency measures that go beyond the demands of the situation and the powers conferred on the executive as null and void. Constitutional and judicial guarantees, including due process of law and habeas corpus, should be accessible to individuals to challenge government acts.

The *Paris Minimum Standards* suggest that during emergency the judiciary should have four specific powers for the protection of the individual. First, the judiciary should have the power to decide “whether or not an emergency legislation is in conformity with the constitution of the state.” Second, the courts should have the jurisdiction to rule on “whether or not any particular exercise of emergency power is in conformity with the emergency legislation.” Third, the judiciary should be

able “to ensure that there is no encroachment upon the non-derogable rights and that derogatory measures derogating from other rights are in compliance with the rule of proportionality.” Finally, “where existing municipal laws and orders are not specifically rescinded or suspended, the judiciary shall continue to regard them as being in effect [and, if necessary, grant relief on such basis].” If derogation measures or any act of application of such measures does not satisfy the above tests, courts should have full power to declare such measures as null and void.

Similarly, the *Siracusa Principles* and other major human rights instruments emphasize that every derogation should be subject to the possibility of a challenge to and a remedy against its abusive application or imposition. They also stress that the ordinary courts shall maintain their jurisdiction to adjudicate any complaint that a non-derogable right has been violated.

* * *

Questions and Discussion

1. Discuss Yehenew’s elaboration of the Ethiopian law of state of emergency. Do you agree with his arguments and/or conclusions?
2. What do you think about the post-emergency review system that is put in place under Art. 93 of the Ethiopian Constitution from, for example, the point of view of the “judicial review” system discussed by Yehenew? What are its possible shortfalls? Or strengths?
3. Compare the Ethiopian Constitution’s list of non-derogable rights with that of Art. 4 of the ICCPR. What are the differences and similarities that you observe?
4. Anna Khakee in her helpful comparative study of European constitutions has identified a number of similarities and differences among the constitutions. She says in her study excerpted above that “in the area of oversight and regarding the workings of the democratic institutions during a state of emergency that European constitutions diverge the most”. What are the differences that she points out among the European constitutions in this regard?
5. As Anna Khakee has observed, the provision for judicial control of emergency actions are required in some European countries but not in others. There are two points at which the judiciary may intervene. The first is in the review of whether or not there is an emergency situation that warrant the declaration of the state of emergency. The second point is a review of the measures taken by the government in the exercise of its emergency powers. Khakee noted that the first role of the judiciary is rarer than the second role in the European constitutional settings she examined. Reread her paper above to see the difference in approach in this regard of the countries included in her study.

As Anna Khakee notes (this was also confirmed in the Venice Commission’s 1995 study briefly reproduced above), the judicial review of government’s actions taken during state of emergency show a great deal of divergence. In this regard, two African constitutions need to be mentioned due to their remarkable pro-rights stance in times of public emergency: the 1996 South African Constitution and Kenyan constitution of 2010.

Section 37 of the South African Constitution is reproduced below:

37. *States of emergency*

1. A state of emergency may be declared only in terms of an Act of Parliament, and only when -
 - a. the life of the nation is threatened by war, invasion, general insurrection, disorder, natural disaster or other public emergency; and
 - b. the declaration is necessary to restore peace and order.
2. A declaration of a state of emergency, and any legislation enacted or other action taken in consequence of that declaration, may be effective only -

- a. prospectively; and
 - b. for no more than 21 days from the date of the declaration, unless the National Assembly resolves to extend the declaration. The Assembly may extend a declaration of a state of emergency for no more than three months at a time. The first extension of the state of emergency must be by a resolution adopted with a supporting vote of a majority of the members of the Assembly. Any subsequent extension must be by a resolution adopted with a supporting vote of at least 60 per cent of the members of the Assembly. A resolution in terms of this paragraph may be adopted only following a public debate in the Assembly.
3. Any competent court may decide on the validity of -
 - a. a declaration of a state of emergency;
 - b. any extension of a declaration of a state of emergency; or
 - c. any legislation enacted, or other action taken, in consequence of a declaration of a state of emergency.
 4. Any legislation enacted in consequence of a declaration of a state of emergency may derogate from the Bill of Rights only to the extent that -
 - a. the derogation is strictly required by the emergency; and
 - b. the legislation -
 - i. is consistent with the Republic's obligations under international law applicable to states of emergency;
 - ii. conforms to subsection (5); and
 - iii. is published in the national Government Gazette as soon as reasonably possible after being enacted.
 5. No Act of Parliament that authorises a declaration of a state of emergency, and no legislation enacted or other action taken in consequence of a declaration, may permit or authorise -
 - a. indemnifying the state, or any person, in respect of any unlawful act;
 - b. any derogation from this section; or
 - c. any derogation from a section mentioned in column 1 of the Table of Non-Derogable Rights, to the extent indicated opposite that section in column 3 of the Table.

Table of Non-Derogable Rights

1 Section Number	2 Section Title	3 Extent to which the right is protected
9	Equality	With respect to unfair discrimination solely on the grounds of race, colour, ethnic or social origin, sex religion or language
10	Human Dignity	Entirely
11	Life	Entirely
12	Freedom and Security of the person	With respect to subsections (1)(d) and (e) and (2)(c).
13	Slavery, servitude and forced labour	With respect to slavery and servitude
28	Children	With respect to:

		- subsection (1)(d) and (e); - the rights in subparagraphs (i) and (ii) of subsection (1)(g); and - subsection 1(i) in respect of children of 15 years and younger
35	Arrested, detained and accused persons	With respect to: - subsections (1)(a), (b) and (c) and (2)(d); - the rights in paragraphs (a) to (o) of subsection (3), excluding paragraph (d) - subsection (4); and - subsection (5) with respect to the exclusion of evidence if the admission of that evidence would render the trial unfair.

6. Whenever anyone is detained without trial in consequence of a derogation of rights resulting from a declaration of a state of emergency, the following conditions must be observed:
 - a. An adult family member or friend of the detainee must be contacted as soon as reasonably possible, and informed that the person has been detained.
 - b. A notice must be published in the national Government Gazette within five days of the person being detained, stating the detainee's name and place of detention and referring to the emergency measure in terms of which that person has been detained.
 - c. The detainee must be allowed to choose, and be visited at any reasonable time by, a medical practitioner.
 - d. The detainee must be allowed to choose, and be visited at any reasonable time by, a legal representative.
 - e. A court must review the detention as soon as reasonably possible, but no later than 10 days after the date the person was detained, and the court must release the detainee unless it is necessary to continue the detention to restore peace and order.
 - f. A detainee who is not released in terms of a review under paragraph (e), or who is not released in terms of a review under this paragraph, may apply to a court for a further review of the detention at any time after 10 days have passed since the previous review, and the court must release the detainee unless it is still necessary to continue the detention to restore peace and order.
 - g. The detainee must be allowed to appear in person before any court considering the detention, to be represented by a legal practitioner at those hearings, and to make representations against continued detention.
 - h. The state must present written reasons to the court to justify the continued detention of the detainee, and must give a copy of those reasons to the detainee at least two days before the court reviews the detention.
7. If a court releases a detainee, that person may not be detained again on the same grounds unless the state first shows a court good cause for re-detaining that person.
8. Subsections (6) and (7) do not apply to persons who are not South African citizens and who are detained in consequence of an international armed conflict. Instead, the state must comply with the standards binding on the Republic under international humanitarian law in respect of the detention of such persons. ///

The Kenyan Constitution of 2010 bears a lot of resemblance in the most important parts dealing with the role of the judiciary and parliamentary control over the executive during the currency of the state of emergency. You may refer to art 58 of the 2010 Kenyan Constitution.

How does the Ethiopian Constitution's approach to state of emergency compare with the South African Constitution, and other constitutions discussed in this chapter? Where does it do better? Where does it lag behind? See the full text of art 93 of the Constitution below.

Article 93. Declaration of State of Emergency

1. (a) The Council of Ministers of the Federal Government shall have the power to decree a state of emergency should an external invasion, a breakdown of law and order which endangers the constitutional order and which cannot be controlled by the regular law enforcement agencies and personnel, a natural disaster, or an epidemic occur.
(b) State executives can decree a state-wide state of emergency should a natural disaster or an epidemic occur. Particulars shall be determined in State Constitutions to be promulgated in conformity with this Constitution.
2. A state of emergency declared in accordance with sub-Article 1 (a) of this Article:
 - (a) If declared when the House of Peoples' Representatives is in session, the decree shall be submitted to the House within forty-eight hours of its declaration. The decree, if not approved by a two-thirds majority vote of members of the House of Peoples' Representatives, shall be repealed forthwith.
 - (b) Subject to the required vote of approval set out in (a) of this sub-Article, the decree declaring a state of emergency when the House of Peoples' Representatives is not in session shall be submitted to it within fifteen days of its adoption.
3. A state of emergency decreed by the Council of Ministers, if approved by the House of Peoples' Representatives, can remain in effect up to six months. The House of Peoples' Representatives may, by a two-thirds majority vote, allow the state of emergency proclamation to be renewed every four months successively.
4. (a) When a state of emergency is declared, the Council of Ministers shall, in accordance with regulations it issues, have all necessary power to protect the country's peace and sovereignty, and to maintain public security, law and order.
(b) The Council of Ministers shall have the power to suspend such political and democratic rights contained in this Constitution to the extent necessary to avert the conditions that required the declaration of a state of emergency.
(c) In the exercise of its emergency powers the Council of Ministers cannot, however, suspend or limit the rights provided for in Articles 1, 18, 25, and sub-Articles 1 and 2 of Article 39 of this Constitution.
5. The House of Peoples' Representatives, while declaring a state of emergency, shall simultaneously establish a State of Emergency Inquiry Board, comprising of seven persons to be chosen and assigned by the House from among its members and from legal experts.
6. The State of Emergency Inquiry Board shall have the following powers and responsibilities:
 - (a) To make public within one month the names of all individuals arrested on account of the state of emergency together with the reasons for their arrest.
 - (b) To inspect and follow up that no measure taken during the state of emergency is inhumane.
 - (c) To recommend to the Prime Minister or to the Council of Ministers corrective measures if it finds any case of inhumane treatment.
 - (d) To ensure the prosecution of perpetrators of inhumane acts.
 - (e) To submit its views to the House of Peoples' Representatives on a request to extend the duration of the state of emergency. ///

One can see that the Ethiopian Constitution diverges a great deal from the South African and many other constitutions in many important ways. It is plausible to argue that its emergency power arrangement is heavily tilted towards the government and opens leeway for the government to act extra-constitutionally with little control from the parliament and none at all from the judiciary. The Constitution does not say clearly as to who ensures whether the SoE legislation is in conformity with the Constitution (see the South African Constitution's emergency clause above). The reading

of art 93 of the Constitution seems to imply that the Council of Ministers (CoM) is the one to ensure the conformity of particular exercise of emergency power with the emergency legislation, but this is against the notion: *nemo iudex in sua causa*. The political branches are exclusively in charge: the judiciary or other independent bodies are almost completely shut out of any checking or review of the actions taken by the executive in relation to the emergency situation.

The fact that the judiciary is not welcome to enter the realm of emergency legal regime was clearly spelled out in the emergency proclamations passed by the government over the past years. Art 8 the November 2021 state of emergency proclamation (No 5/2021) state:

8. Suspended Laws

1. Any judicial organ shall not have authority with regards to the enforcement of this Proclamation until the expiry of the same.
2. Without prejudice to diplomatic immunities indicated under the Vienna Convention on Diplomatic Relations, substantive and procedural laws inconsistent with this proclamation shall remain suspended during the implementation of this proclamation.

This therefore leaves the executive with a *carte blanche* power to literally make the emergency law interpret them and execute them single-handedly. The Emergency Inquiry Board is not given sufficient power to safeguard the rights of citizens in the emergency situation. Members of the Board are selected from among the members of the House (and legal experts). The Board seems to be empowered explicitly to follow up matters relating to inhumane acts or treatment in the exercise of emergency power. From the wording of the Constitution, it does not seem that the Board is empowered to ensure that the non-derogable rights in the Constitution are not encroached upon. Importantly also, the Board does not seem to have any power in relations to arbitrary loss of lives in during public emergency. Or does it? This must be viewed in tandem with the fact that the Ethiopian Constitution oddly uniquely makes the right to life derogable in times of public emergency, colliding head-on with the international human rights principles.

It is rightly said that the response of a state to a public emergency is an acid test of its commitment to the effective implementation of human rights (McGoldrick, 2004). As I noted earlier, my view is that Ethiopia's constitutional standards on state of emergency tilt towards power and undermine rights. It also denies the judiciary completely of any review power leaving the rights of citizens in the hands of the executive which has high stakes in the matter. It makes the right to life and some other rights, which are made non-derogable by the international human rights instruments, derogable. Thus I think that these matters need to be revisited and be put to public discussion for constitutional amendment. Do you agree with this position? Or do you think that the Constitution's emergency law is reasonable and acceptable?

CHAPTER EIGHT

FEDERALISM, DECENTRALIZATION AND POWER-SHARING

A. Federalism

Federalism is a state structure that creates at least two centers of power in a polity. Federalism can be defined in various ways and therefore different identifying features can be listed. For example, Graham Smith defines federalism as “an ideology which holds that the ideal organization of human affairs is best reflected in the celebration of diversity through unity.” Federalism is also identified with the idea of distributing powers among different centers within a given polity on the basis of predetermined legal arrangements. Inherent in the idea of federalism is the desire to keep equilibrium between forces of centralization and decentralization, and as Graham Smith (1995) succinctly puts it: “the federal idea, in short, is generally conceived as a compromise, conveyed by the image of checks and balances between unity and diversity, autonomy and sovereignty, the national and the regional.”

A constitutional distribution of powers between the center and the sub-national units is an important operational or practical feature of federations. Constitutional arrangements in federations enable the sub-national entities to take part in the decision of important matters (and all matters that affect them) at the national level. The participation of the federal units in the national decision making process while self-ruling their distinct affairs is an essential mark of a federation. In a federal arrangement, the center cannot unilaterally change, abolish or modify the covenant that creates the federal polity. In that sense, sub-national units derive their rights and existence not from the national government but from the constitution that creates them both. In the constitution of a federation, all important details of the competencies of both levels of government should be provided to avoid jurisdictional conflict. The extent and pattern of power sharing can again vary from one system to another, but generally matters of sub-national identity should be placed under the competence of federal units while matters amenable to shared rule should be placed under the jurisdiction of the national government.

While remarking about the basic requirements of federalism and federations, one should not however lose sight of the important practical (and also legal) variations that render certain federations dysfunctional. Federal systems may be distinguished from one another by whether they demonstrate commitment to constitutionalism, respect for rights (individual as well as group) and democracy. There is no dispute about the fact that true and functional federations are those that entrench the basic requirements of a federal arrangement along with democratic principles in their basic laws and at the same time practice those requirements and principles. On the other hand, those that fail to entrench the above-stated requirements and principles or fail to implement them or both, cannot be considered as true federations. The main reason for the survival of such federations is excessive control exercised by the central government through various means of coercion.

The ways in which federal polities arise, the justifications that propel federal forms of government and the mechanisms of organizing the territorial federal units have been subjects of great theoretical and academic writings. Federalism in multi-ethnic societies has taken either a territorial orientation or a non-territorial one. Territorial orientation is embraced when the federal project aims at giving ethno-national groups territorial bases. Federations can be purely geographic and administrative, as in the U.S.A. But at the same time, it is good to note that no two federations are alike on how they go about delineating the territorial contours for their sub-units. For our purpose, it suffices to say that the justifications, orientations, internal arrangements, etc., in federal systems are perhaps as varied and numerous as the federal systems extant in the world today.

The oldest federation is the U.S. One established as a political order by the founding fathers of the U.S.A. It was followed by the Swiss federation that was established in 1848, and the Canadian one

in 1867. These early federations are exemplar systems in being both true to the federal principles and being democratic. Since the onset of federalism in these systems, they have pulled through difficult times (such as the civil war in the U.S. in the 1860s) and have always come out victorious. The 20th century saw more and more devolutionary federations that decentralized power from the centralized state structure. Most of these devolutionary federations are meant to, as Stepan says, hold together the polity that suffers from centrifugal conflicts such as ethnic and religious strife. We can cite examples of such polities to be Nigeria, India, Belgium, Russia and Spain, and since 1995, Ethiopia has become part of this group. However, we have other federations such as Australia, Germany and Austria which are geographical and historical federations.

Experiences of both successful and disbanded federations show that democracy is a condition for a successful perseverance of a federal system. This was demonstrated enough by the failures of post-colonial federations in Africa, and the crumbling of those in Central and Eastern Europe after the Cold War. When ethnically based federations are run in an undemocratic way, the socio-political consequences to the polity are highly likely to be fatal. The undemocratic nature of such a federation means that there will definitely be no fair resource and power sharing among the several ethno-national groups. So if we have to save ethno-national federations from anything, we have to save them from undemocratic governance.

Alfred Stepan is among the first scholars that looked into the varieties of federalism. His contributions lie in analyzing the sets of characteristics and requirements of federal systems that are different from the American system. He discusses the inseparable, close relations between federalism and democracy.

Alfred Stepan, "Federalism and Democracy: Beyond the U.S. Model," in *Journal of Democracy*, Vol. 10, No. 4 (1999). Footnotes omitted.

For those of us interested in the spread and consolidation of democracy, whether as policy makers, human rights activists, political analysts, or democratic theorists, there is a greater need than ever to reconsider the potential risks and benefits of federalism. The greatest risk is that federal arrangements can offer opportunities for ethnic nationalists to mobilize their resources. This risk is especially grave when elections are introduced in the subunits of a formerly nondemocratic federal polity prior to democratic countrywide elections and in the absence of democratic countrywide parties. Of the nine states that once made up communist Europe, six were unitary and three were federal. The six unitary states are now five states (East Germany has reunited with the Federal Republic), while the three federal states--Yugoslavia, the USSR, and Czechoslovakia--are now 22 independent states. Most of post communist Europe's ethnocracies and ethnic bloodshed have occurred within these post-federal states.

Yet in spite of these potential problems, federal rather than unitary states are the form most often associated with multinational democracies. Federal states are also associated with large populations, extensive territories, and democracies with territorially based linguistic fragmentation. In fact, every single longstanding democracy in a territorially based multilingual and multinational polity is a federal state.

Although there are many multinational polities in the world, few of them are democracies. Those multinational democracies that do exist, however (Switzerland, Canada, Belgium, Spain, and India), are all federal. Although all these democracies, except for Switzerland, have had problems managing their multinational polities (and even Switzerland had the Sonderbund War, the secession of the Catholic cantons in 1848), they remain reasonably stable. By contrast, Sri Lanka, a territorially based multilingual and multinational unitary state that feared the "slippery slope" of

federalism, could not cope with its ethnic divisions and plunged headlong into a bloody civil war that has lasted more than 15 years.

In addition to the strong association between multinational democracies and federalism, the six longstanding democracies that score highest on an index of linguistic and ethnic diversity--India, Canada, Belgium, Switzerland, Spain, and the United States--are all federal states. The fact that these nations chose to adopt a federal system does not prove anything; it does, however, suggest that federalism may help these countries manage the problems that come with ethnic and linguistic diversity. In fact, in my judgment, if countries such as Indonesia, Russia, Nigeria, China, and Burma are ever to become stable democracies, they will have to craft workable federal systems that allow cultural diversity, a robust capacity for socioeconomic development, and a general standard of equality among their citizens.

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A Misleading Picture of Federalism

In seeking to understand why some countries are reluctant to adopt federal systems, it is helpful to examine what political science has had to say about federalism. Unfortunately, some of the most influential works in political science today offer incomplete or insufficiently broad definitions of federalism and thereby suggest that the range of choices facing newly democratizing states is narrower than it actually is. In large part, this stems from their focusing too exclusively on the model offered by the United States, the oldest and certainly one of the most successful federal democracies.

One of the most influential political scientists to write about federalism in the last half-century, the late William H. Riker, stresses three factors present in the U.S. form of federalism that he claims to be true for federalism in general. First, Riker assumes that every longstanding federation, democratic or not, is the result of a bargain whereby previously sovereign polities agree to give up part of their sovereignty in order to pool their resources to increase their collective security and to achieve other goals, including economic ones. I call this type of federalism coming-together federalism. For Riker, it is the only type of federalism in the world.

Second, Riker and many other U.S. scholars assume that one of the goals of federalism is to protect individual rights against encroachments on the part of the central government (or even against the “tyranny of the majority”) by a number of institutional devices, such as a bicameral legislature in which one house is elected on the basis of population, while in the other house the subunits are represented equally. In addition, many competences are permanently granted to the subunits instead of to the center. If we can call all of the citizens in the polity taken as a whole the *demos*, we may say that these devices, although democratic, are “demos-constraining.”

Third, as a result of the federal bargain that created the United States, each of the states was accorded the same constitutional competences. U.S. federalism is thus considered to be constitutionally symmetrical. By contrast, asymmetrical arrangements that grant different competencies and group-specific rights to some states, which are not now part of the U.S. model of federalism, are seen as incompatible with the principled equality of the states and with equality of citizens’ rights in the post-segregation era.

Yet although these three points are a reasonably accurate depiction of the political structures and normative values associated with U.S. federalism, most democratic countries that have adopted federal systems have chosen not to follow the U.S. model. Indeed, American-style federalism embodies some values that would be very inappropriate for many democratizing countries, especially multinational polities. To explain what I mean by this, let me review each of these three points in turn.

“Coming-Together” vs. “Holding-Together”

* * *

Many democratic federations, however, emerge from a completely different historical and political logic, which I call holding-together federalism. India in late 1948, Belgium in 1969, and Spain in 1975 were all political systems with strong unitary features. Nevertheless, political leaders in these three multicultural polities came to the decision that the best way--indeed, the only way--to hold their countries together in a democracy would be to devolve power constitutionally and turn their threatened polities into federations. The 1950 Indian Constitution, the 1978 Spanish Constitution, and the 1993 Belgian Constitution are all federal.

Let us briefly examine the “holding-together” characteristics of the creation of federalism in India to show how they differ from the “coming-together” characteristics correctly associated with the creation of American-style federalism. When he presented India's draft constitution for the consideration of the members of the constituent assembly, the chairman of the drafting committee, B.R. Ambedkar, said explicitly that it was designed to maintain the unity of India--in short, to hold it together. He argued that the constitution was guided by principles and mechanisms that were fundamentally different from those found in the United States, in that the Indian subunits had much less prior sovereignty than did the American states. Since they had less sovereignty, they therefore had much less bargaining power. Ambedkar told the assembly that although India was to be a federation, this federation was created not as the result of an agreement among the states, but by an act of the constituent assembly. As Mohit Bhattacharya, in a careful review of the constituent assembly, points out, by the time Ambedkar had presented the draft in November 1948, both the partition between Pakistan and India and the somewhat reluctant and occasionally even coerced integration of virtually all of the 568 princely states had already occurred. Therefore, bargaining conditions between relatively sovereign units, crucial to Riker's view of how and why enduring federations are created, in essence no longer existed.

Thus one may see the formation of democratic federal systems as fitting into a sort of continuum. On one end, closest to the pure model of a largely voluntary bargain, are the relatively autonomous units that “come together” to pool their sovereignty while retaining their individual identities. The United States, Switzerland, and Australia are examples of such states. At the other end of the democratic continuum, we have India, Belgium, and Spain as examples of “holding-together” federalism. And then there is what I call “putting-together” federalism, a heavily coercive effort by a nondemocratic centralizing power to put together a multinational state, some of the components of which had previously been independent states. The USSR was an example of this type of federalism. Since federal systems have been formed for different reasons and to achieve different goals, it is no surprise that their founders created fundamentally different structures. This leads us to our next point.

“Demos-Constraining” vs. “Demos-Enabling”

Earlier, I described American-style federalism as “*demos-constraining*.” In some respects, all democratic federations are more “*demos-constraining*” than unitary democracies. There are three reasons for this. First, unitary democracies have an open agenda, as Adam Przeworski points out, while in a federal democracy the agenda of the *demos* is somewhat restricted because many policy areas have been constitutionally assigned to the exclusive competence of the states. Second, even at the center there are two legislative chambers, one (in theory) representing the one person-one vote principle, and the other representing the territorial principle. Third, because jurisdictional disputes are a more difficult and persistent issue in federal than in unitary systems, the judiciary, which is not responsible to the *demos*, is necessarily more salient and powerful.

Riker sees the *demos*-constraining aspect of federalism (and the weak polity wide political parties normally associated with federalism) as basically good, because it can help protect individual rights from being infringed by the central government's potential for producing populist majorities. But when examined from the point of view of equality and efficacy, both of which are as important to the consolidation of democracy as is liberty, the picture becomes more complicated. The deviation from the one citizen-one vote principle that federalism necessarily implies may be seen as a violation of the principle of equality. Overrepresentation in the upper house, combined with constitutional provisions requiring a supermajority to pass certain kinds of legislation, could, in certain extreme cases, lead to a situation in which legislators representing less than 10 percent of the electorate are able to thwart the wishes of the vast majority. This raises serious questions for the efficacious and legitimate functioning of democracy. If one were interested only in creating a system that best reflects the *demos* and that functions as an effective democracy, a case could be made that the democratic values of participation decentralization, and equality would be better addressed in a unitary system that has decentralized participation than in a federal system. But if a polity has great linguistic diversity, is multinational, and is very large, its chances of being a democracy are much better if it adopts a federal system.

If federal systems were forced to adhere to the Rikerian model, multinational democracies would be faced with a stark choice: If they wished to adopt a federal system to reduce ethnic, religious, or linguistic tensions, they could do so only at the risk of severely constraining majority rule. But if we look at the federal systems that actually exist in the world, we see that not all federal systems are *demos*-constraining to the same degree. American-style federalism is *demos*-constraining, and Brazil is the most *demos*-constraining federation in the world. Yet the German federal system is much more *demos*-enabling than that of the United States, and India's is even more *demos*-enabling than Germany's. We can, in fact, construct a continuum, ranging from federal systems that are *demos*-constraining to those that are *demos*-enabling. Where a particular federal system lies on this continuum is largely determined by the nature of the party system, which I discuss elsewhere, and by three constitutionally embedded variables: 1) the degree of overrepresentation in the upper chamber; 2) the policy scope of the territorial chamber; and 3) the sorts of policy issues that are off the policy agenda of the *demos* because they have been allocated to the states or subunits.

1) *Overrepresentation in the territorial chamber.* I think it is fair to argue that the greater the representation of the less populous states (and therefore the underrepresentation of the more populous states), the greater the *demos*-constraining potential of the upper house will be. The United States and Brazil follow the same format: In both countries, each state gets the same number of senators. Since Wyoming had a population of 453,000 and California had a population of 30 million in 1990, this meant that one vote for a senator in Wyoming was worth 66 votes in California. In Brazil, the overrepresentation is even more extreme. One vote cast for senator in Roraima has 144 times as much weight as a vote for senator in Sao Paulo. Moreover, Brazil and Argentina are the only democratic federations in the world that replicate a version of this overrepresentation in the lower house. With perfect proportional representation, Sao Paulo should have 114 seats. It actually has 70. With perfect representation, Roraima should have one seat. It actually has eight. The Brazilian Constitution, inspired by the ideology of territorial representation, specifies that no state can have more than 70 seats in the lower house (thereby partially disenfranchising Sao Paulo) and that no state can have fewer than eight.

Yet the principle of equal representation of each state in the upper house is not democratically necessary and may even prove to be a disincentive to multinational polities that contemplate adopting a federal system. Many democratic federations have quite different formulas for constructing their upper houses. In Germany, the most populous states (or *Länder*) get six votes in the upper chamber, those of intermediate size get four, and the least populous get three. Austria, Belgium, and India are still closer to the one person-one vote end of the continuum. If multilingual India had followed the U.S. pattern, it would not have been able to do some things that were absolutely crucial for political stability. Between 1962 and 1987, India created six new culturally

distinctive states in the northeast, mostly carved out of Assam, a conflict-ridden region bordering Burma and China. If India had followed the U.S. model, these new states, containing barely one percent of India's population, would have had to be given 25 percent of all the votes in the upper chamber. The other Indian states would never have allowed this. Thus something democratically useful--the creation of new states, some of which were demanding independence by violent means--would have been difficult or impossible under the U.S. principle of representing each state equally .

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2) *Policy scope of the territorial chamber.* Now let us turn to our second variable, the competences of the territorially based chamber. My proposition is that the greater the competences of the territorial house, the more the *demos*--which is represented on a one person-one vote basis in the lower house--is constrained. In the United States, the lower house has a somewhat more important role than the Senate in budget initiation, but if one takes into account the Senate's constitutionally exclusive prerogatives to advise and consent on judicial, ambassadorial, and major administrative appointments, the two houses come fairly close to policy-making parity. On this variable, Brazil has the most *demos*-constraining system in the world. There is no area that the Brazilian Senate does not vote on, and there are 12 areas where it has exclusive competence, including authority to set limits on how much states can borrow.

. . . other federal democracies do not give the upper house as much policy scope as they give the lower house. The German, Spanish, and Indian systems are less *demos*-constraining, because their upper houses are less unrepresentative and less powerful. While in Brazil senators representing 13 percent of the total electorate can block ordinary legislation (and in the United States, a committee chairman alone can at times block important nominations), in Germany important bills are seldom vetoed by the upper chamber. How can we account for such a difference? First of all, the upper chamber cannot participate in the two most important legislative votes, those for government formation and government termination. This power is the exclusive competence of the lower chamber. Second, the upper chamber can delay, but not veto, bills that do not directly involve the *Länder*. Third, on the approximately 50 percent of the bills that the upper chamber can theoretically veto because they do relate directly to the *Länder*, it seldom does so after closed-door reconciliation meetings are held in the joint committee representing both houses.

In Spain, Belgium, India, and Austria, as well as in Germany, only the lower house participates in no-confidence votes. In many countries, the upper house is largely a revisionary chamber, although it has a major role in anything having to do with federal intervention. In Spain, for example, if the government wishes to take action against a regional government that is in contempt of the constitution, the decision must be approved by two-thirds of the upper house. This, in my view, is entirely appropriate.

3) *The degree to which policy-making authority is constitutionally allocated to subunits.* The third constitutionally embedded variable on which democratic federations differ greatly is the powers that are given to the *demos* at the center versus the powers that are constitutionally allocated to the states. The 1988 Brazilian Constitution is so extensively detailed that a great deal of ordinary legislation can be passed only by a supermajority. In Brazil, many specific provisions on state and municipal pensions, state banks (all the states have banks), and the right of states to tax exports were constitutionally embedded. This is extremely *demos*-constraining. When too many issues are constitutionally embedded, the result is profoundly undemocratic, because these issues cannot be decided by a normal majority. Almost everything of importance in Brazil is constitutionally embedded. In order to change the constitution, 60 percent of the members of both houses (both those present and those absent) must vote in favor of an amendment twice. In a country the size of a continent, with bad transportation, it is hard even to get 60 percent of the legislature to show up.

. . . India has a very *demos*-enabling constitution. At the time of its drafting, its authors were painfully aware that there were more than 15 languages spoken in the country that at least 20 million people could claim as their mother tongue. The boundaries of the states did not correspond with linguistic boundaries. To get the government closer to the people, the framers of the Indian Constitution had to respect the linguistic principle, so they decided (Article 3) that the lower house, by a simple majority vote, could eliminate any state, carve new states out of existing ones, or change their names. That is the sort of provision that a “holding-together” federation can write. In a “states’-rights” federation like the United States, such a provision would be absolutely impossible. But if it had not been possible in India, the failure to realize the “imagined communities” of the country’s hundreds of millions of non-Hindi speakers might have led to secession in a number of places.

The U.S. Constitution is even more difficult to amend than the Brazilian Constitution, but it is parsimonious, so the vast majority of legislation can be passed by ordinary majorities. In Spain, the main constraint on the majority at the center derives from the statutes of autonomy, which deal primarily with questions of culture and language. In Germany, many federal programs are administered by the *Länder*, but lawmaking and policy oversight remain the prerogative of the center.

Constitutionally Symmetrical vs. Asymmetrical

Let us now turn to a final point concerning the U.S. model. The U.S. Constitution, as discussed above, establishes a form of symmetrical federalism, which is bolstered by a certain normative disinclination on the part of Americans to accept the concept of collective rights. With the exception of Switzerland (where none of the political parties strictly represents any one linguistic or religious group), all of the multinational democracies are constitutionally asymmetrical: In order to hold the multinational polity together, they assign different linguistic, cultural, and legal competences to different states. Under the symmetrical American model, many of the things that are most essential in a multinational context cannot be accomplished. With the possible exception of the special case of Switzerland, all federations that are constitutionally symmetrical--Austria, Germany, Australia, the United States, Argentina, and Brazil--are mononational. India, Belgium, Canada, and Spain are multinational and their federations are all asymmetrical. (The Russian Federation is also asymmetrical, but, constitutionally, it does not yet work as a democratic federation.)

The concept of collective rights is in tension with the traditional American way of thinking about such matters, which is based on individual rights. It is true that a polity cannot be a democracy unless the individual rights of all citizens are enshrined in the constitution and a countrywide system of horizontal and vertical controls is credibly established to support these rights. Whatever rights the national sub-units may possess, they cannot constitutionally or politically violate the rights of individual citizens. The enforcement of individual rights can be an obligation of both the center and the subunits, but the center cannot completely delegate responsibility for the establishment and maintenance of democratic rights and continue to be a democracy. Alexis de Tocqueville is very clear on this point. He admired the robust local associationalism of U.S. democracy but pointed out that the rule of law in the entire polity had to be guaranteed and enforced by the center.

In multinational polities, however, some groups may be able to participate fully as individual citizens only if they acquire, as a group, the right to have schooling, mass media, and religious or even legal structures that correspond to their language and culture. Some of these rights may be described as group-specific collective rights. Many thinkers in the liberal tradition assume that all rights are individual and universal and view any deviation from individualism and universalism with suspicion, but this assumption is open to question.

Let me conclude with four observations, partly drawn from studies of the historical development of democracy, about democratic group-specific rights (to use a term coined by the Canadian political philosopher Will Kymlicka). First, individuals are indeed the primary bearers of rights, and no group rights should violate individual rights in a democratic polity. In democratic multinational federal states, this means that something like a bill of individual rights should be promulgated by the federal center, and any laws and social policies that violate it must fall outside the constitutionally guaranteed policy scope of the subunits.

Second, while individual rights are universal, it is simply bad history to argue that in actual democracies all rights have been universal. Frequently, the struggle to reconcile the imperatives of political integration with the legitimate imperatives of cultural difference has led countries to award certain minorities group-specific rights, such as those given to French-speaking Quebec in Canada, to cultural councils in Belgium, and to Muslim family courts in India. The key point is that it is the obligation of the democratic state to ensure that no group-specific right violates individual or universal rights.

Third, while individuals are the bearers of rights, there may well be concrete circumstances in which individuals cannot develop or exercise their full rights unless they are active members of a group that struggles for some collective goods common to most of its members. If, for example, the Catalans had not been given certain group-specific rights involving the public status of their own language, I doubt whether as individuals they could have become full democratic citizens of Spain. Similarly, I do not think Kurds will become full democratic citizens of Turkey unless they are granted certain group-specific rights (such as the right to Kurdish newspapers and radio stations in the southeast of Turkey, where Kurds are a majority).

Finally, although such group-specific rights may not be consistent with some nineteenth-century tenets of Anglo-Saxon liberal democracy or with the French idea of citizenship in a nation-state, they are consistent with a polity in which group rights do not violate individual rights, and they permit effective democratic citizenship and loyalty to be extended throughout the polity. They offer, in fact, one of the few ways to craft democracy successfully in the difficult and populous world of multi-national states.

The Limits of the U.S. Model

The U.S. model of federalism, in terms of the analytical categories developed in this article, is “coming-together” in its origin, “constitutionally symmetrical” in its structure, and “*demos*-constraining” in its political consequences. Despite the prestige of this U.S. model of federalism, it would seem to hold greater historical interest than contemporary attraction for other democracies.

Since the emergence of nation-states on the world stage in the aftermath of the French Revolution, no sovereign democratic nation-states have ever “come together” in an enduring federation. Three largely unitary states, however (Belgium, Spain, and India) have constructed “holding-together” federations. In contrast to the United States, these federations are constitutionally asymmetrical and more “*demos*-enabling” than “*demos*-constraining.” Should the United Kingdom ever become a federation, it would also be “holding-together” in origin? Since it is extremely unlikely that Wales, Scotland, or Northern Ireland would have the same number of seats as England in the upper chamber of the new federation, or that the new upper chamber of the federation would be nearly equal in power to the lower chamber, the new federation would not be “*demos*-constraining” as I have defined that term. Finally, it would obviously defeat the purpose of such a new federation if it were constitutionally symmetrical. A U.K. federation, then, would not follow the U.S. model.

The fact that since the French Revolution no fully independent nation-states have come together to pool their sovereignty in a new and more powerful polity constructed in the form of a federation would seem to have implications for the future evolution of the European Union. The European

Union is composed of independent states, most of which are nation-states. These states are indeed increasingly becoming “functionally federal.” Were there to be a prolonged recession (or a depression), however, and were some EU member states to experience very high unemployment rates in comparison to others, member states could vote to dismantle some of the economic federal structures of the federation that were perceived as being “politically dysfunctional.” Unlike most classic federations, such as the United States, the European Union will most likely continue to be marked by the presumption of freedom of exit.

Finally, many of the new federations that could emerge from the currently nondemocratic parts of the world would probably be territorially based, multilingual, and multinational. For the reasons spelled out in this article, very few, if any, such polities would attempt to consolidate democracy using the U.S. model of “coming-together,” “demos-constraining,” symmetrical federalism.

Questions and Discussion

1. Stepan says that although most of post communist Europe's ethnocracies and ethnic bloodshed have occurred within post-federal states, “yet in spite of these potential problems, federal rather than unitary states are the form most often associated with multinational democracies.” Do you agree with his statement? What arguments does he provide in his article to convince the reader about his beliefs and conclusions about federalism?
2. What are the main differences between the American model and other federations like India, Spain and Belgium that Alfred Stepan discussed? Do you agree?
3. In which category of Stepan’s models would you place the Ethiopian federal system?
4. Would you characterize the Ethiopian federal system as “*demos-constraining*” or “*demos-enabling*” as per Stepan’s characterizations?

1. Issues of Federal Politics and Governance

The governance of a federal polity must be reflective of the federal nature of the polity. This nature must be reflected in, among others, the nature, organization and structure of political parties that function across the nation or in a single unit. Depending on the nature of the political system, the composition of the society, the history of democracy, etc., the relationship between the political parties and their impacts on the governance of the nation can be hostile or harmonious. The hostility of the relationships between the national party(ies) and the regional parties may be engendered by several factors. Wide gaps between the political philosophy and ideology may be one.

Political parties are the orders of the day. Assumption of political power is impossible without a political organization today. Citizens are mobilized into participation through political parties. The contributions of political parties to good governance however have to be nurtured and enabled. It must be understood that without democratic political party platforms that compete in a free environment, federal governance would be problem-ridden. This is particularly true for multi-ethnic societies where ethnic parties are allowed to be formed. The parties that should govern or participate in governance must be those that have genuinely won the hearts and minds of the populace. The best approach to federal governance is that all parties should freely and equally compete for the public vote and acceptance. They should be subject to the same rules of the game, but be free to be judged by the people, not by the governing party.

Ever since enactment of the 1995 Constitution of Ethiopia, political pluralism has been constitutionally guaranteed. But because of the fact that virtually since 1991 political power has been controlled invariably – at the federal and four dominion states levels – by the EPRDF, there has been a growing concern that the Ethiopian federal system has not followed the theoretically accepted way of federal governance. The party has a centralist tendency in which policies are made

at the level of the party's central bodies, and the party structures and the state apparatuses execute the decisions made at the centre. No party that challenges the EPRDF's position has ever succeeded to control political power. EPRDF on its part says that although its decisions are passed at the party's central body, it should be forgotten that it is a coalition of four regional/ethnic based parties that represent regional/ethnic interests. But detractors of the system and commentators do not accept this line of argument. Again, although EPRDF says that it allows political parties to freely participate in the political process, many disagree with this, and indeed believe that real opposition parties are deliberately stifled by the EPRDF's government by all possible means. Read the following excerpt from Assefa Fiseha's paper to get the sense of the problems scholars point out regarding the nature of the current party governance in Ethiopia. For further interesting issues relating to party politics and governance in federal systems, read the following journal articles: Oscar W. Gabriel, "Federalism and Party Democracy in West Germany," in *Publius: The Journal of Federalism* 19 (Fall 1989); and Eswaran Sridharan, "Coalitions and Party Strategies in India's Parliamentary Federation" in *Publius: The Journal of Federalism*, Vol. 33, No. 4 (2003).

Assefa Fiseha, *Federalism, Diversity and the Regulation of Conflict in the Horn*, a paper presented on a 'Conference on Constitutionalism & Human Security in the Horn of Africa,' organized by Inter Africa Group (8 August 2008, Addis Ababa). Footnotes omitted.

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Party Politics, Political Culture and Challenges of Transition

A clearer perception of the federal system can only be made if one looks at how the party system operates in Ethiopia. That is where some of the critics rightly point the most obvious limitation of the federal system, that is, the paradox between generously granted constitutional powers and a centralized federal system in practice resulting from a centralized policy making process and a dominant ruling party system that is responsible for generating most of the policy documents. Most of the policies are often generated through the party at the central level and then become the basis for five year plans both at the federal and state level. The implication is that the autonomy of the states is limited in practice and the party structure overshadows the institutions and in this regard, they contend, it is not federal enough as promised. Some even argue that this is a continuation of the traditional form of "political control" by the center.

Ever since the establishment of the federation, Ethiopia has been ruled by a coalition composed of several regionally based ethnic parties constituting the ruling party. At first sight it appears to be a party structure that enhances a federal division of power because the federal government appears to be run by an organization with a regional, rather than central basis of power. But practically, the EPRDF controls all the regional state governments in the Ethiopian federation, either directly through the member parties or indirectly through affiliated parties that apparently look autonomous but have strong links with EPRDF.

On the positive side, given Ethiopia's diverse society, a coherent and disciplined party at federal and state levels appears to be an asset, compared for example with what happened in Nigeria and what transpired in Kenya's Kibaki government after Moi. Yet in Ethiopia, it seems it is exceeding its limits. The largely centralized party structure appears to contradict the division of power that is expected to exist in a federation. As a parliamentary federal system, the party discipline combined with "democratic centralism" seems to have great impact on how decisions are taken within the party. The point is that the party structure in Ethiopia undermines the federal division of power and subordinates the regional governments to the federal government. In the area of intergovernmental relations, an area not well regulated in the constitution, for example, the evolving practice indicates that it is a top-bottom approach in which the states have not yet commenced establishing forums for

airing their common agenda in their relations with the center. A more serious concern however is in the impact that the party system may have on the evolution of the relevant institutions in a multiparty context. It is this factor along with its impact on the process of policy-making that explains the centralizing trend in the federal system. It is also this factor that appears to explain the fact that intergovernmental conflicts are rare, perhaps absent, from most of the contemporary conflicts that challenge the federal system.

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2. Promotion of Political and Economic Unity in Federations

When a federation, not a confederation, is opted for, it means that there is a strong desire to have a political and economic union. There are long-standing shared social and cultural values that unite the people of such a federation more than what separate them. Cognizant of this fact, federal systems put in place mechanisms of ensuring the maintenance of the common social and political bonds between the people of a given federal system. This matter is handled differently in different federations, but the rationale is the same, and it is the maintenance of sufficient unity amidst diversity and regional particularities.

One of the reasons for which the Ethiopian federal system is criticized is that it is believed by many not to have laid down a strong anchor for maintaining an everlasting political bond among the various members of the Ethiopian society. This is seen by some as an alarming state of fact because of the existence of the right to secession in favor of the cultural communities. Sure, the constitution says that the nations, nationalities and peoples have the right to equitable representation in the institutions of federal and state governments. But this right remains very general and how and to what extent, and in which government organs it can be demanded is not clear. The federal government's defense, at least until now, is that since major policies, laws and decisions are passed at the federal level, this would indirectly strengthen the bond of association among the people. The following excerpt of an article on Nigeria shows an example of how this issue of a federal bond can be addressed. The article discusses the importance of what it calls the "federal character" for achieving national unity and how Nigeria has been trying to deal with its realization.

Ladipo Adamolekun, et al., "Federal Character" and Management of the Federal Civil Service and the Military," in *Publius: Journal of Federalism*, Vol. 24, No.1 (1991). Footnotes omitted.

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The makers of the 1979 Constitution who introduced the "federal character" principle specifically linked it to the objective of achieving national unity. Some of them also believed that the principle would help to "secure and maintain stability in the country." The main provisions of the principle, which relate to public office and are retained in the 1989 Constitution, are as follows:

The composition of the Government of the Federation or any of its agencies and the conduct of its affairs shall be carried out in such manner as to reflect the federal character of Nigeria and the need to promote national unity, and also to command national loyalty thereby ensuring that there shall be no predominance of persons from a few States or from a few ethnic or other sectional groups in that government or in any of its agencies.

The composition of the Government of a State, a local government council, or any of the agencies of such government or council, and the conduct of the affairs of the government or council or such agencies shall be carried out in such manner as to recognize the diversity of peoples within its area of authority and the need to promote a sense of belonging and loyalty among all the peoples of the Federation.

It is important to mention that strong reservations were expressed by some of the makers of the 1979 Constitution before the above provisions were adopted by the majority. One major reservation relates to the danger inherent in using “a man’s ethnic or linguistic affiliation as the primary definition of his quality as a human being.” Opponents suggested that it would be more desirable for the Constitution to reflect “ideas and values which render the area or ethnic origin of a person irrelevant in determining his quality as an individual.” A second reservation concerns the danger of “playing up the role of sectional representatives in the conduct of the affairs of the State” in the name of ensuring fair and equitable treatment for ethnic groups as well as for all the component states of the federation. However, retention of the federal character principle in the 1989 Constitution suggests that its introduction in 1979 has been judged to be of continued relevance by the various bodies that reviewed the 1979 Constitution between 1986 and 1989: the Constitution Review Committee (1987-1988), the Constituent Assembly (1988-1989), and the Armed Forces Ruling Council (AFRC), which promulgated the 1989 Constitution.

The literature on public personnel systems in most modern states, both unitary and federal, reveals a concern for some degree of balancing in the composition of civil service personnel to achieve what is sometimes referred to as a “representative bureaucracy.” The objective may be to take account of geographic spread (Paris versus the provinces in France), class divisions (upper/middle class versus the working class in Britain), or racial and gender divisions (affirmative action in favor of African-Americans, women, and other minorities in the United States). In this connection, it is striking that Nigeria’s constitution-makers, who were so influenced by the presidential features of the American Federal Constitution, did not pay attention to the U.S. Civil Service Act of 1883, which had a provision addressing roughly the same issue. The act stipulated that “as nearly as the conditions of good administration will warrant, appointments to the public service in the departments in Washington shall be apportioned among the several states and Territories and the District of Columbia upon the basis of population as ascertained at the last preceding census.” (This “apportionment law” had fallen into disuse by the 1950s and was formally repealed in 1978). In a sense, then, what the federal character principle seeks to achieve is Nigeria-style representative bureaucracy, with the emphasis being on fairness and equity in representing the nation’s ethnic groups and component states in the public service. All of this is expected to contribute to the larger goal of promoting national unity . . .

THE FEDERAL CIVIL SERVICE

At the adoption of a federal system in 1954 (with one national and three regional governments), each government was endowed with a career civil service. This institution was enshrined in the 1954 Constitution. The constitution provided for the establishment of public service commissions (one for each government) charged with the responsibility of advising the governments on civil service matters. These commissions subsequently became independent bodies charged with the responsibility of protecting the career civil services.

Although it was not stated explicitly in any document at the time, the understanding of both the political and administrative participants (as revealed later in their writings) was that a career civil service in Nigeria was intended to perform functions similar to those of the British civil service, and that the civil servants were to observe the same norms of anonymity, impartiality, and political neutrality as British civil servants. Consequently, the civil service of each government was expected, in the tradition of the British “Westminster” model, to provide policy advice to successive teams of political leaders and to bear responsibility for the faithful and efficient implementation of government policies.

Given that the “senior service” of the colonial administration consisted almost exclusively of British officials right up to 1954, a major task for each of the new governments was to recruit qualified Nigerians into these senior positions. Because the pool of trained manpower was small throughout the 1950s and the early 1960s,

there was strong competition among the governments to attract quality staff. While the regional governments invoked regional loyalty to attract staff from the colonial service and generally favored citizens of their respective regions in making appointments to civil service positions (some form of “Easternization,” “Northernization,” and “Westernization”), the “Nigerianization” policy of the federal government was accompanied by a robust defense of Pan-Nigerian recruitment on the basis of merit . . .

Although recruitment on the basis of merit is usually considered an essential feature of a career civil service system, every modern state pays attention, in varying degrees, to the factor of representation. Within a few years [since 1959], pressures developed for ensuring representativeness in the federal civil service. In 1974, the chairman of the Federal Public Service Commission (FPSC), Alhaji Sule Katagun, made a spirited case for regional representation within a merit system in his “The Development of the Public Service Commission System and the Problems of Recruitment into the Public Service in a Plural Society.” The adoption of the federal character principle in the 1979 Constitution amounted to a vindication of his position.

What was the problem, then, with the merit system in the Nigerian plural society, and to what extent has adoption of the federal character principle resolved this problem? Given the educational imbalance within the country, a rigorous merit system relying principally on open competitive examinations could not ensure fair representation for candidates from the “educationally disadvantaged” parts of the country. At first, the concern was with the assumed disadvantage of the Northern Region, where Western education lagged behind the huge strides already made in the Eastern and Western regions. When more states were created in 1967, it was realized that there were also a few educationally disadvantaged states in the southern part of the country. This gave the issue of representation a national character.

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Prior to the adoption of the federal character principle in 1979, the response to representation took two forms. First, there were ad hoc transfers of a few senior civil servants from the states to the FCS. (Available information on the 331 transfers that took place between 1974 and 1979 does not include a breakdown by state of origin and rank of officials.) Second, the Federal Civil Service Commission (FCSC) adopted a regulation requiring that junior civil servants working in any federal agency outside the federal capital be recruited ordinarily from the geographic area served by the agency. In practice, the transfers were generally viewed as arbitrary, while the more systematic approach to representation in the junior ranks of the service only had limited impact because the minimum education requirements for most of the positions were not met in some states.

What difference has the adoption of the federal character principle made in ensuring representation in the FCS? Without guidelines on how the principle was to be reflected in the FCS, there were questions on whether states or ethnic groups were to serve as the units of representation. Some officials also wondered about the importance to be attached to religion. Inevitably, this subject entered in the political arena during the period of competitive party politics (1979-1983) and became a focus of inter-party and intra-party competition. In this circumstance, public servants whose career prospects could be affected by the interpretation of the concept that was adopted were willy-nilly drawn into partisan debate. The reaction of the leadership of the FCS consisted of two measures. The first concerned the “transfer to the federal service of officers from states which do not have a sufficient number of persons originating therefrom in the administrative cadre.” (The administrative cadre was, at the time, the elite corps of the FCS.) Second, it was stipulated that “at least one permanent secretary is to be appointed from each of the states in the federation [such that] no one state or group of states has a monopoly of all permanent secretary positions.” This position is copied in the provision on ministerial appointments in both the 1979 and 1989 Constitutions. The

prominent role of permanent secretaries in the policy process until the abolition of the position in 1989 accounted for the importance attached to them.

The available data on transfers between 1983 and 1986 show a significant increase in 1974-1979: a total of 827 transfers for a four-year period compared to 331 for a six-year period. Although no data are available for the 1979-1983 period of civilian rule, it is reasonable to assume that the transfer mechanism was used extensively.... Equally significant is the fact that the six states that accounted for 67 percent of the officers in the administrative cadre in 1986 had only 17 percent of the transfers, while the six states that accounted for only 9 percent of the administrative cadre had 34 percent of the transfers . . .

Another dimension to the transfer phenomenon is the widespread belief (no data are available) that a significant proportion of transfers involved officers who were given key positions for which they would normally be unqualified on the basis of experience, seniority, and educational achievement. If this was true, it no doubt had a negative impact on the morale of incumbent federal officers who were superseded by relatively junior officers.

A complicating factor in using states as the units of representation is the fact that it is not always clear whether the principle applies to a person's state of origin or state of residence. Also, the fact that states were used as the units of representation meant that no attention was paid to ethnic, geographic, and religious factors. Given a situation in which there were huge differences in the size of state populations (ranging from about one million in one or two states to about seven million in two others), achieving fair representation was not easy. Furthermore, the persistent uncertainty regarding the actual population of the country suggests that regardless of the unit of representation selected (with or without the idea of proportional representation), there would always be room for controversy over what constitutes fair representation in the FCS. (The fact that ethnic origin and religious affiliation are excluded from the 1991 census practically leaves states as the only viable unit for determining representation.)

The latest development is the provision of guidelines within the context of a civil service reform program launched by the Babangida administration in 1988. This program is set out in Decree No. 43 (1988), "The Civil Service (Reorganization) Decree." Some of the provisions of the decree relate to the application of the federal character principle. First, it is provided that:

The principle of Federal Character shall be faithfully adhered to at the point of entry, i.e., Grade level 07-10, while thereafter, from Grade 11 and above, the mechanisms or criteria for promotion shall be based on the universally accepted principle of experience, performance on the job, length of service, good conduct, relevant qualification, training, performance at interview and relevant examination where appropriate.

Second, while allowing for transfers of officers from the states to the FCS, the transfer mechanism is so regulated that the transferee is given a post and grade that will put him at par with serving federal officers with the same amount of post-qualification work experience. Ministries and departments are also required to ensure that a proposed transfer will not jeopardize the prospects of officers already in the service. To this end, each ministry and department is expected to satisfy itself that the qualifications, experience, and career progression of an officer being considered for transfer are: "(a) comparable to those of officers already in the grade to which he seeks transfer, and (b) superior to those of officers in the grade just below that to which he seeks to be transferred."

Third, the institutions that manage civil service personnel (the Personnel Management Board and its committees) are required to take account of the geographic spread factor in their composition. The geopolitical representation on the board and its committees is intended to ensure that they are not packed with officers from one area of the country.

With regard to grade level 01-06 positions, the 1988 reforms maintain the existing regulation, which requires that such officers be recruited from the geo- graphic areas in which the federal agencies are located. To ensure greater respect for the regulation, the reforms specify that:

The irregular practice of recruiting junior staff centrally and deploying them to state offices shall cease forthwith as it is in conflict with the existing regulations. Each ministry or extra-ministerial department shall work out the actual establishment or requirement for each area of [sic] state office and the local junior staff committee shall be allowed to fill such vacancies with the real indigenes of that state who possess the prescribed qualifications. Such recruitment should also reflect the geographical spread within the state.

Although these guidelines may help to rationalize both the transfer procedure and the recruitment to the junior positions in the FCS, the fundamental problem of educational imbalance remains a major obstacle. The progressive primary education policy in place since 1976 (and revamped in 1988) could, if faithfully implemented, assure respect for the guidelines on junior positions. In contrast, the more serious imbalance at the tertiary education level is likely to complicate matters with respect to senior positions for another decade or more. A good illustration of this point is provided by the strong correlation between representation in the administrative cadre of the FCS and university enrollment . . . The six states with 67 percent of administrative cadre officers in 1986 had 66 percent of university admissions in 1979-1980 compared to 9 and 11 percent, respectively, for the bottom six states. The educational imbalance has remained more or less the same, except in the case of Rivers State which, like the educationally advanced states, established its own university in the early 1980s (in addition to a federal university located in the state, as was the case in all the other states) to cater primarily to the state's indigenes.

The obvious conclusion from the above is that efforts aimed at reflecting the federal character principle in senior positions within the FCS will continue to generate some measure of controversy as long as the important imbalance in tertiary education persists. However, attention should be drawn to the fact that the political leadership of the civil service has been strengthened by the establishment of three layers of political appointments within which the federal character principle can be reflected without any reference to the merit principle. The three positions are those of minister, special adviser or assistant (two or three for each minister), and director-general. It is the director-general who has taken the position of the former permanent secretary within the ministry. It is expected that this new arrangement will reduce the dependence of the political leadership of ministries on the civil service for policy advice and help focus attention on improving the efficiency and effectiveness of the institution.

Another positive development is the fact that the power and influence associated with the FCS's decade of ascendancy (1966-1976) has virtually disappeared, partly as a result of the strengthening of the political leadership of ministries mentioned above and partly as a result of purges and retrenchments undertaken between 1975 and 1985. Jobs within the service are now less attractive than in the past. A special dimension is provided by the fact that some prospective job-seekers are reluctant to work in Abuja, the new federal capital, and others are attracted by the opportunities opened up by the ongoing rolling back of the state from some economic activities through deregulation, liberalization of markets, and privatization. Another dimension to competition was provided by the affluent Lagos State government under Governor Lateef Jakande (1979-1983). The state decided to place its higher civil servants on the same salary scale as the federal civil servants. The recent modification of the unified salary structure in the public sector to take account of ability to pay and relative local economic conditions could further reduce the attraction of FCS jobs for some categories of job-seekers. The overall objective should be to keep jobs in the FCS competitive without returning to the "golden age" when it was regarded as the superior civil service. This suggestion does not exclude the possibility of one or more merit-based "elite corps" of first-rate technical and managerial staff with superior non-career conditions of service to assist with the overall leadership role of the federal government in governance and national economic management.

THE MILITARY

The exclusive responsibility of the military for national defense makes it an important and sensitive service. In 1958, the federal government adopted the quota principle for recruitment into the non-officer ranks of the military: 50 percent from the Northern Region and 25 percent each from the Eastern and Western Regions. Three years later, the quota principle was extended to the officer corps after an initial resistance by a section of the federal political leadership team. In the context of the political competition of the 1950s and early 1960s, there was a real concern on the part of most of the federal political leaders to prevent the institution from being captured or dominated by any one group. The minister of state for army affairs summed up the views of the majority in the federal cabinet in 1965 as follows:

We introduced the quota system in the army... thus preventing the possible fear that the army would become unreliable. If any part of the country is not represented in the army, we may harbour some fear that it is being dominated.

It is possible to argue, as Major-General David Jemibewon has done, that the quota principle helps to “create an awareness in all sections of the federation of their responsibilities for the defence of the nation.” In practice, the relative importance of the patriotic argument and the prevention of domination was quickly complicated by the advent of military rule in January 1966 and the civil war of 1967-1970. Given the paramountcy of the federal objective to keep Nigeria one (“a task that must be done”), it followed that the quota principle could not be enforced strictly. The central concern was total mobilization to ensure victory.

Following the virtual abandonment of the quota principle during the civil war, the commandant of the Nigerian Defence Academy, Major-General Adeyinka Adebayo, declared in 1972 that the merit principle had replaced the quota principle as the criterion for recruitment into the officer corps. With the growing agitation for representation or quota in the FCS and some other national institutions at about the same time, this advocacy for the merit principle in the military had very little chance of becoming official policy. Like the FCS, the military, too, had become an elite institution (a significant transformation of its very low image in the 1950s and early 1960s), and there was considerable interest in the different states in ensuring adequate representation in the officer corps. Official commitment to the maintenance of the quota principle was reasserted in 1979 by the chief of army staff, Lieutenant-General Theophilus Danjuma, who said that an “equal number of places would henceforth be allocated to each of the 19 states in all military training institutions.”

Against this background, the federal character principle in the 1979 Constitution was, in a sense, a reassertion of the pre-civil war generalized quota principle. However, the specific additional provision relating to the application of the federal character principle to the military suggests that the principle was to be applied more systematically within the institution than had hitherto been the case. Section 197(2) of the Constitution provided that: “The composition of the officer corps and other ranks of the armed forces of the Federation shall reflect the federal character.” Furthermore, Section 198 of the Constitution provided for the establishment of a body comprising “such members as the National Assembly may determine” to ensure that the composition of the armed forces would reflect the federal character. The civilian regime (1979-1983) failed to establish this body. The idea was revived by the members of the Constituent Assembly (1988-1989) who provided for the establishment of an Armed Forces Service Commission to ensure a comprehensive application of the principle in respect of recruitment, training, promotion, and retirement of officers.

In a sharp reaction, the AFRC expunged the provision from the text of the 1989 Constitution adopted by the Constituent Assembly on the ground that “ensuring federal character even in a ‘retirement’ exercise is to cause disaster and indiscipline in the one unifying force in the country.”

After observing that “there is no federal character in the war front, and . . . in dying for one's country,” it reaffirmed the military establishment's commitment to enforcing the federal character principle in recruitment and training. In a reversal of roles, the FCS was cited as a model for the military: “Having thus provided equal opportunities (sic) for all at this stage, advancement through the ranks is a matter for merit and competence. This is the same philosophy introduced into the Civil Service by the new reforms.” The debate in the Constituent Assembly suggests that the idea behind the proposed Armed Forces Service Commission was to provide for some civilian involvement in managing military personnel. It was expected that this would help ensure increased military responsiveness to civilian control, thereby reducing the incentive for military intervention in politics.

Available evidence suggests that the practical application of the federal character principle within the military has involved the following: (1) quota recruitment into the non-officer ranks at the point of entry and through the military training institutions (on the basis of equality among the states); (2) application of the merit principle for advancement up to the rank of colonel, with due regard to performance, qualifications, conduct, and relevant training; and (3) discretionary (sometimes arbitrary) representation for promotions to the rank of brigadier and above. There have also been attempts to reflect the federal character in “all matters military.” The list includes selection for in-service training and staff courses, command of troops, sitting of barracks, location of military installations, and distribution of support services, especially army primary and secondary schools and hospitals.

On the whole, successive governments since 1979 have endeavored to reflect the federal character in the military in line with the three approaches mentioned above, a combination of the quota and merit principles with a dosage of representation. The reliance on states as the unit for determining quota and representation is characterized by the same limitations as those already pointed out with respect to the civil service. There is also evidence that the principle has been extended to most matters military, to the extent possible. (For example, naval installations can only be located in coastal areas.) However, the extension of the principle as proposed by the Constituent Assembly suggests that a significant number of the nonmilitary elite groups represented within the Assembly still have reservations about the outcome of the application of the principle in the military. One possible solution would be for the military to adopt more transparent procedures in matters relating to recruitment, promotions, and discipline.

Although increased transparency in military personnel matters could make some difference, the fundamental problem appears to be the controversies that have surrounded the sharing of political posts among military officers during periods of military rule: the composition of the military substitute for a legislative body (currently the AFRC), membership of the federal Cabinet, appointment and deployment of governors, and other political appointments. For example, when General Babangida was criticized for not reflecting federal character in the reconstituted AFRC in December 1989, with particular reference to religious and geographic representation, he responded by invoking the merit principle in his defense. However, sensing the intensity of the opposition to the “unrepresentative” pattern of his appointments, he quickly beat a retreat.

The only meaningful solution to this problem is a definitive end to military rule. The majority view among opinion leaders in the country is that military rule is an aberration. The abortive coup of April 1990 and the available evidence in the writings of military leaders suggest that the objectives of a strong national defense, the promotion of national unity, and the fostering of national loyalty have not been advanced by the involvement of the military in civil governance. (The notable exception is the important contribution of the military to the task of keeping Nigeria one during the civil war.) The alternative evidence provided includes intense competition for political power (with many ready to die in the quest for power), bitterness over alleged irregularities relating to promotions, and widespread indiscipline. Another important negative consequence of military involvement in civil governance includes the loss of experienced senior officers through successive massive retirements that have characterized regime transitions since 1966: civilian-military (1966,

1983), military-military (1966, 1975, 1985), and military- civilian (1979 and 1990-1992). Equally significant is the large number of officers that have been lost in the five successful coups and the numerous abortive coups since 1966.

This problem is likely to persist until the constitutional provision on compulsory military training is implemented. Its rapid implementation would help to achieve federal character at a stroke because Nigeria would then have a nation of trained soldiers in reserve. At the same time, it would be possible to proceed with the proposal advanced by some knowledgeable insiders of the military, such as Major-General David Jemibewon, regarding a smaller, highly trained, mechanized, mobile army, recruited largely on the basis of merit.

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Question and Discussion

A federal character of the sort in Nigeria discussed in the preceding article is very important to have a smooth and holistically integrated federal system. Do you believe the Ethiopian federal system has been also furnished with such legal principles and requirements? Discuss the existing legal regime and make suggestions if you think there is a need for more.

3. Ethnic Politics in Federal Systems

Philip G. Roeder, "Soviet Federalism and Ethnic Mobilization," in *World Politics*, Vol. 43, No. 2 (1991). Footnotes omitted.

[This article discusses the problems of the creation in the Soviet republics of more and more ethnic localism and self-assertion in spite of the fact that those republics in question benefited more from the development policies of the Soviet Union. It is intellectually mesmerizing to see and understand the reason why those developments happened despite the clear effort that was made to stop them. Try to understand the reasons as you read through the excerpt reproduced below, as this may have some parallel with the current Ethiopian ethnically based federal system. It is good to see the real problems that had long-term negative effects in the former Soviet Union in order to be able to devise the solution that works for us.]

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THE SOVIET DEVELOPMENTAL STRATEGY AND ETHNICITY

Political entrepreneurs play a critical role in the mobilization of protest, the politicization of ethnicity, and in many cases even the creation of ethnic identities. In the European experience, for example, regional intellectuals who felt their aspirations to elite status frustrated by the status quo were often the pioneers of ethnic revival. Anthony Smith contends that these intellectuals sought to create a separate, ethnically distinct system of stratification within which the "professional and bureaucratic apparatus would naturally satisfy the career aspirations of a multitude of hitherto excluded diploma-holders." These regionally oriented intellectuals were a necessary, although not sufficient, ingredient in the rise of peripheral nationalisms. Political entrepreneurs in ethnic communities have available to them two mobilizational strategies: primordial and instrumental. The primordial strategy focuses on ethnic revival—in Smith's words, "communal regeneration through self-discovery and self-realization." The mobilization of the ethnic community for political action

often centers on an assertion of the ethnic group's identity, usually in the context of issues of culture, identity, or belief and in reaction to threats to the identity from assimilative policies. The instrumental strategy focuses on the pursuit of social and economic interests. The mobilization of ethnicity, according to Rothchild, is "a highly conscious, political, and new mode of interest articulation." The ethnic group itself, in the words of Nathan Glazer and Daniel Moynihan, is "defined in terms of interest, as an interest group." Political entrepreneurs may also seek to mix these strategies.

The Soviet developmental strategy sought to control ethno politics by prohibiting all but sanctioned political entrepreneurs from mobilizing their communities and by deterring these entrepreneurs from pursuing any but the regime's instrumental strategies of plan fulfillment and social transformation. The Soviet strategy achieved this control through a threefold policy of (1) creating within each ethnic homeland an indigenous cadre assigned a monopoly over the mobilizational resources of the community, (2) constraining the behavior of this new ethnic cadre by creating an incentive structure that deterred the expression of unsanctioned, particularly primordial ethnic agendas, and (3) assigning the cadre the responsibility for creating an ethnically distinct stratification system within official institutions and for impeding the emergence of alternative ethnic entrepreneurs outside these institutions . . .

CREATING AN ETHNIC CADRE

The Soviets have labeled the structural foundations of their "nationalities policies" socialist federalism and indigenization (*korenizatsiia*). The socialist federation, in the formulation of the Great Soviet Encyclopedia, "differs radically from the bourgeois federation," for the former is "the state form for solving the national question . . . [and] is based on the national-territorial principle." Thus, [towards the end of the Soviet Union] . . . fifty-three of the territorial administrations of the Soviet Union [were] based on designated ethnic homelands—fifteen as union republics, twenty as autonomous republics, eight as autonomous oblasts, and ten as autonomous okrugs. Indigenization has sought to tie the minorities to the Soviet regime by drawing national cadres into the political and administrative posts of Party and state in these territories. In 1920 then People's Commissar of Nationality Affairs Joseph Stalin explained that to make Soviet power "near and dear" to the minorities would require

that all Soviet organs in the border regions . . . should as far as possible be recruited from the local people acquainted with the manner of life, habits, customs, and language of the native population; [and] that all the best people from the local masses should be drawn into these institutions.

* * *

These policies provided opportunities for nationalities representing over 93 percent of the non-Russian population to create ethnically distinct political elites within formally autonomous homelands. Grey Hodnett's extensive data show that by the early post-Stalinist period (1955- 72), indigenization in eleven of the fourteen non-Russian republics led to proportionate overrepresentation of the titular nationality in Party and state leadership posts at the republic level. By the 1980s indigenization extended well beyond the most visible posts, such as each republic's Party first secretary, chairmen of its Presidium and Council of Ministers, first secretary of its Union of Writers, president of its Academy of Sciences, rectors of its principal universities, and chair of its council of trade unions. The data compiled by Ellen Jones and Fred W. Grupp show that it also reached such sensitive and less visible areas as internal security, including each republic's Ministry of Internal Affairs, Committee on State Security, and the Party's Administrative Organs Department. It also touched lower levels of administration. In 1988, for example, in each union republic with oblasts the indigenous nationality held a greater proportion of oblast Party committee first secretaryships than its proportion of the republic's population.

The indigenous cadre was given an institutionalized monopoly on the public expression of ethnic identity, that is, it defined the ethnic markers that distinguish the nationality. These markers were then central to communicating the socialist message in national cultural forms and propagandizing populations being brought into the modern sector. For many Soviet citizens undergoing social mobilization the first sustained contact with the great traditions of their own ethnic group was in the form of this national-Soviet hybrid. In the extreme, the markers identified by these elites defined new ethnic groups, such as the Tadjiks, that had not previously been communities with which elites and the masses had identified. Yet, as the recent political activism by Tadjiks attests, even these markers became the basis for the mobilization of the population in political action.

More importantly, within each republic this cadre was assigned the role of gatekeeper, to determine when the ethnic group would be mobilized politically. Insofar as anyone within the homeland had access, this cadre monopolized the mobilizational resources essential to sustained, large-scale political action. The means of communications, particularly the indigenous-language press and broadcast media, were monopolized through the republican institutions controlled by this cadre. Access to meeting places, such as auditoriums and public squares within the republic, was at the discretion of this cadre. And public protests could avoid violent suppression only with the cadre's approval.

THE DETERRENCE OF PRIMORDIAL STRATEGIES

These cadres were encouraged to pursue the regime's instrumental strategies and deterred from primordial strategies by the offer of material rewards and status, which were tightly tied to the regime's goals. Particularly after Stalin's purge of traditional native elites and the sovietization of indigenous institutions, the cadres enjoyed access to these rewards only by virtue of Soviet institutions. Their privileged positions would not be improved in alternative (even independent) institutions. Indeed, the collapse of Soviet power within their homeland would mean their own fall from power or perhaps worse. Cadres thus had a strong incentive to resist the articulation of agendas that might be subversive of existing federal institutions.

Rewards were tightly tied to the norms and goals of the Soviet developmental strategy. Soviet federalism embedded these cadres within the all-union Soviet administrative hierarchy. Cadres could only succeed within an incentive system that defined individual and collective success in instrumental terms of quota fulfillment and socioeconomic growth. By integrating the cadres into Party and state hierarchies, Soviet federalism made the "normal" politics of competitive appeals for resources the norm among ethnic elites as well. Much of the politics between Moscow and the nationality-based territorial units came to involve the petitioning for funds from above; beginning with the last years under Khrushchev speeches by leaders of the republics appealing for funds and projects to benefit their people came to be an increasingly prominent feature of meetings of the Party Congress, the Central Committee, and the Supreme Soviet. Those who engaged in unsanctioned mobilizational strategies could be punished with total deprivation of these rewards by being removed from their positions of authority. The monopoly of official institutions meant that a purge at the very least threatened one's access to these rewards; cadres could not return to a prosperous private life. Purges of ethnic leaders charged with articulating particularistic, primordial agendas also deterred others from making such appeals . . .

CREATING AN OFFICIAL INDIGENOUS ELITE

A major responsibility assigned this new cadre by Moscow's all-union authorities was to block the emergence within the ethnic community of counter elites that might challenge Soviet institutions. Within their autonomous homelands the cadres implemented policies that extended the institutional and personnel strategies of the center. These policies sought to (1) create a new, open indigenous elite of professionals and intelligentsia within official institutions, (2) tie professional and material

rewards to membership in this elite, while denying these rewards to those outside the elite, and (3) limit access to the mobilizational resources of the community to these official institutions.

The ethnic cadres enacted affirmative action policies during a period of rapid economic growth and modernization in order to expand opportunities for mobility for those aspiring to positions within the professional strata and intelligentsia. Extension of the policy of indigenization opened career opportunities throughout the administrative apparatus of the homeland. Programs of collectivization and industrialization offered opportunities for mobility in management. And the creation of universities and academies of sciences in the republics dramatically expanded the number of professional positions reserved for the minorities.

These affirmative action policies in the institutional context of Soviet federalism elevated titular nationalities to privileged positions in higher education and professional employment within their homelands. For example, whereas Georgians constituted 67 percent of their republic's population in 1970 (and approximately the same proportion of the college-age cohort), they constituted 83 percent of the student body of the republic's institutions of higher education. ...

It is probably true—as critics have charged—that these opportunities have been opened by crudely implemented quota systems. These have apparently lowered standards in higher education and employment and discriminated against “minority” ethnic groups living within the home-lands of other ethnic groups.

Mark Popovsky alleges that in the universities of Uzbekistan, for example,

young men and women from primitive villages with scarcely any education . . . are given scholarships and free lodging, and are assured passing marks whether they study or not. The philosophy behind this strange proceeding is that all nations in the brotherly family of the USSR are equal, and that all of them therefore can and must have their own intelligentsia, their own doctors, engineers, writers, and scholars.

And Soviet officials themselves have warned that favoritism in appointments toward the titular nationality of a republic often discriminates against other nationalities. In 1986, for example, the all-union Party leadership chastised Kirgiz leaders for favoring Kirgiz candidates among new recruits to the republic's Party organizations and for discriminating against other nationalities (notably Uzbeks) residing within the republic.

Nonetheless, these policies, to expand the opportunity for mobility, represent a particularly astute accommodation with ethnicity. From 1950 to 1975, for example, among the fourteen titular nationalities of union republics (other than Russians) the annual growth in scientific workers with either a candidate of science or a doctor of science degree was 9.6 percent—a rate 54 percent higher than among Russians. While demanding political loyalty to the Soviet regime, the mobility opportunities did not require denial of ethnic identities. Indeed, ethnicity became a condition for success, since the positions of status within homelands were often reserved for specific minorities. Soviet federalism offered minorities the opportunity to realize their aspirations to create separate stratification systems-but within the Soviet Union.

To block the emergence of counterelites within this official elite, the cadres presided over a dense network of parallel institutions that controlled all aspects of professional life. Research of significance to the ethnic group and its homeland was controlled by indigenous academies of sciences and universities. Creative professionals such as writers, artists, or architects who sought to disseminate their work under the cultural monopoly of the regime were required to join the official unions of the homeland for their respective professions. Members of the new scientific and creative elite were dependent upon the official institutions, and most could not hope to improve their lot in an alternative ethnic elite created outside and in opposition to these institutions. This was

particularly true for those in positions of power such as leaders of professional unions, those with academic positions in fields heavily encumbered by ideology, and creative artists who depended upon the hegemony of socialist realism for their success. The purge threatened deprivation of both rewards and the means to practice one's profession.

To block the emergence of counterelites outside the new professional elite and intelligentsia, the cadre denied those outside official institutions access to mobilizational resources. The ethnic cadre prohibited independent association, severed unofficial lines of communication between the intelligentsia and the populace, and deprived incipient dissident movements of their leadership by “decapitating” them—that is, threatening, imprisoning, or executing exemplary figures. Those outside were limited to the inefficient means of illegal associations, samizdat, and under-ground dissemination . . .

* * *

ORIGINS: THE RISE OF ETHNOFEDERALISM

Over the past three decades three changes have transformed Soviet developmental strategy into a source of ethno federalism. First, with the trimming of the terror apparatus under Khrushchev and the policy of “respect for cadres” under Brezhnev, that is, the relaxation of Moscow's deterrent threat, these cadres had greater leeway in pressing their particularistic agendas. Second, as the cadres built institutional and even popular support within their ethnic communities, their dependence upon the center declined. These new power bases enabled the cadres to take more assertive policy stands against Moscow. Third, these cadres encountered mounting difficulties in securing resources to continue the expansion of mobility opportunities within their homelands. In response, they often resorted to a strategy of mobilizing their elites behind legislative agendas and their populations in ethnic protest in order to secure additional resources from Moscow and to maintain their hegemony within their homelands. Ironically, the last two of these factors are natural consequences of the very means by which these cadres had previously controlled their ethnic communities on behalf of the center.

* * *

INCIDENCE: FLASH POINTS OF ETHNOFEDERALISM

The pattern of ethno federalism in the Soviet Union contains yet a further ironic twist: the incentive to mobilize their ethnic constituency is greatest for those ethnic cadres that have previously been most successful at the Soviet developmental strategy—notably in the Caucasus and the Baltic republics. The pressure of potential counter elites, the difficulties of further expanding elite positions and material rewards, and so the threat to their positions are greatest for those cadres that were previously most successful at engineering affirmative action and creating an indigenous elite.

This pressure on the cadres of the more developed ethnic communities has been piqued by the redistributive consequences of these affirmative action policies. With declining growth rates, the redistributive consequences of these policies have been transformed: policies that had once involved transfers between titular nationalities and minorities within ethnic homelands came to involve instead transfers between the principal titular nationalities of union republics. These transfers are now adversely affecting the more modernized ethnic communities.

In building an indigenous cadre and intelligentsia within each ethnic group, the Soviet developmental strategy had a powerful leveling impact on ethnic groups. The growth of mobility opportunities has been highest among the nationalities with the lowest levels of socioeconomic attainment. Thus. . . in the post-Stalinist years differences among nationalities in levels of elite occupational status (measured by per capita employment as specialists with higher education) narrowed.

* * *

It is, indeed, inherent to a policy of promoting the growth of indigenous elites and engineering equality under circumstances of tighter constraints on resources that some previously advantaged groups will suffer relative stagnation in their life chances. One of the most visible examples of this restriction on life chances for a previously advantaged group has been the imposition of quotas on Jewish admissions to Soviet universities. Although in 1970 Jews represented 2.3 percent of the students in institutions of higher education (a proportion that is above their official proportion of the population – 0.89 percent in 1970), this, nonetheless, represents a significant decline since 1935, when the figure stood at 13.3 percent of these students. Against the general trend toward higher rates of educational attainment in the Soviet population, the proportion of Soviet Jews aged eighteen to twenty-three who attend college full-time remained constant at 30 percent or at most increased only marginally to 36 percent between 1935 and 1965. Thus, many have been blocked in their aspirations for higher education and the elite employment it would make possible. And as economic growth has slowed, more ethnic groups have felt this pinch in life chances. In Central Asia, according to Lubin, “Russians are beginning to sense they are being denied access to jobs for which they are equally if not more qualified than their Asian counterparts.” And Popovsky complains that in Uzbekistan “it is almost impossible for non-Uzbeks with a higher education to get jobs.”

In the geographically segmented multiethnic society of Soviet federalism the redistributive consequences of these policies remained a less contentious issue in federal politics as long as economic growth permitted the continued expansion of mobility opportunities for all titular nationalities within their homelands. With their high growth rates the titular nationalities of union republics could escape the consequence of inter-republic transfers by shifting the brunt of their impact to their minority populations—that is, by discriminating against them. Under these circumstances the minorities within the homelands of other nationalities (including the “exclave” minorities, such as Jews or Russians) were the greatest losers from inter-republic redistribution. The economic slow-down, however, made it more difficult for the titular nationalities to escape the effects of interrepublic transfers, which made redistribution a highly contentious issue among the cadres. The effect of the Soviet developmental strategy in a period of tight constraints on resources has been to limit the growth of mobility opportunities in the more developed ethnic communities in order to permit continued expansion in those that are less developed.

As a consequence, cadres of ethnic communities with higher levels of socioeconomic attainment (particularly in the Baltic and Caucasus) have led the way in pressing their ethnic legislative agendas, while cadres in less advanced communities (notably in Central Asia) have been less inclined to do so As continuing beneficiaries of the developmental strategy enforced by the center, the latter cadres have often been harsh critics of the decentralization proposed by their peers in the more developed communities; for example, at the meeting of the all-union Supreme Soviet Presidium to veto Estonia's act of nullification, the chairmen of the Presidia of Uzbekistan (Khabibullaev) and Tadzhikistan (Pallaev) voiced strong criticism of the Estonian move and support for centrist policies.

* * *

AGENDAS: THE FEDERAL POLITICS OF RESOURCES AND LIFE CHANCES

The policy concerns of the ethnic cadres shape the public agendas of ethno federalism by controlling the way dominant themes will be framed in legislation and by determining which issues are to be supported by sustained large-scale political pressure. Cadres must define the agendas of ethno politics so as to permit as many as possible in their ethnic communities to join the “official” ethnic bandwagon. Often this requires redefining the dominant popular concerns, particularly where they are primordial. The cadres must deny these constituents and issues to potential counter elites, even as they use them to put pressure on Moscow. A test of the success of the entrepreneurship of the cadres is the extent to which they can insert the most important material and symbolic concerns of their constituents into the public agendas in ways that protect or promote their own power base. The dominant themes on the cadres' agendas reflect the threats that confront them within their own

communities: these themes concern resources and life chances. Specifically, this politics of mobility opportunities is expressed in a number of recurring policy issues that go to the very foundations of the Soviet developmental strategy that created and sustain these cadres: federalism, indigenization, language, economic development, and migration.

FEDERALISM

The most volatile issue of federalism has been the balance of power between center and periphery, since at stake are the resources controlled by the cadres and the mobility opportunities within their communities. Party leaders have used this issue to co-opt primordial concerns for independence to instrumental demands for expanded republican autonomy within Soviet federalism. Expanded autonomy is one way for ethnic cadres to enlarge the resources within their control. Autonomy increases their discretion in the allocation of positions of power within the republic and in the administration of educational and occupational policies. And for cadres within the more developed republics that have felt most severely pinched by affirmative action, autonomy is a way to retain resources at home.

The cadres in the more developed union republics have been particularly quick to raise the banners of autonomy and sovereignty in order to blunt the redistributive consequences of all-union policies. Thus, for example, in 1989 Lithuanian leaders sought exemption from the all-union highway tax since the tax was levied on vehicles (which are more common in the relatively wealthy Baltic region) but spent disproportionately to build and repair roads in the less developed republics. In all three Baltic republics calls for “regional economic accountability,” “territorial cost accounting,” and “self-financing” have supported the attempts on the part of republican cadres to wrest control of industries from the centralized ministries. These plans envision the isolation of their markets from the larger economy of scarcity by such mechanisms as export barriers to other union republics, identity cards to limit purchases by visitors from other republics, prices determined at the republic level to improve the terms of exchange among republics, and even separate currencies for some republics.

For ethnic cadres of “minorities” subordinate to the union republic of another nationality, the issue of autonomy has often taken the form of demands over the “status” of their homelands within the federal hierarchy—that is, whether a homeland is a union republic, an autonomous republic, an oblast, or an okrug. The control of resources by the cadres of a nationality increases with this hierarchy. Thus, in a 1988 report on the mounting pressure and public rallies on behalf of the elevation of the Tatar Autonomous Republic to union-republic status, the writer Rafail Mustafin asked in the pages of *Pravda*:

After all, what prompted the proposals for the creation of a new union republic? The existing inequality in social, political, and economic rights between union and autonomous formations. Tataria surpasses some union republics in both population and industrial potential. Yet, we don't have a feature-film studio of our own, we have only one publishing house (which is not very big), and there is an acute shortage of paper for publishing books, newspapers, and magazines.

With similar objectives the Party leadership in Abkhazia has sought elevation of their autonomous republic to union-republic status, leaders of Moldavia's Gagauz minority have demanded creation of their own autonomous republic, and Polish leaders in the Shalchinin district of Lithuania have asked for autonomous status. In the last case, according to *Izvestiia*, “perhaps the sorest point was the impossibility for Poles to obtain higher education in their native language” within Lithuania.

Taking a different tack, the cadres of other “subordinate” minorities have mobilized their populations to demand changes in the lines of authority among homelands. A nationality subordinate to the republic of a different titular nationality may find its resources and life chances limited. In Nagorny Karabakh, Armenians protested that even though their autonomous oblast had

the second-highest industrial production per capita within the republic, the leadership of the Azerbaijan Republic allocated it lower than average per capita investments . . .

INDIGENIZATION

Cadres of titular nationalities have also mobilized political action in order to preserve the results of indigenization. Cadres have found that this issue harnesses both the instrumental interests of those in their ethnic community who aspire to elite positions and the primordial sentiments of those who see ethnic similarity as a requisite of legitimate authority. At stake for union-republic cadres are the very means by which they have built their supporting clientele and popular constituencies . . .

“Minority” cadres within the national territories of others have mobilized their constituencies for the opposite end-to criticize abuses of indigenization by the titular nationalities and to call for Moscow’s intervention against the practice. The creation of an ethnic elite and intelligentsia by the titular nationality often denies minorities within its national territory comparable opportunities. In a recent roundtable held under the auspices of the Research Council on Nationality Problems of the Academy of Science, E. V. Tadevosian complained that indigenization in some national republics has “often led to an artificial overrepresentation of the indigenous nationalities at the expense of other nationalities residing in those areas in the state organs, the administrative apparatus, the students and faculties of higher educational institutions, etc.” Gagauz in Moldavia and Nagorno-Karabakh Armenians in Azerbaijan have demonstrated to protest discrimination in political appointments and career opportunities. The chairman of the presidium of the Abkhaz Supreme Soviet claims that such grievances led to violent disturbances in his republic not only in 1989, but also in 1957, 1967, and 1978.

LANGUAGE

To preserve the foundation on which ethnic affirmative action was built, cadres have mobilized political action to raise or preserve the status of the language of their respective communities. Mobility opportunities are inextricably tied up with the status of indigenous languages. At stake for the constituents is their instrumental interest in privileged access to economic, social, and political power. For example, the language used in universities influences the admissions as well as later career opportunities of different ethnic groups within a republic. But language is also one of the most important primordial markers defining an ethnic community.

Through legislation that their languages supplant Russian as the language of communication within their republics, ethnic leaders in the union republics have sought to strengthen indigenous control over political and economic institutions. An article declaring the language of the titular nationality to be the state language of the republic was included in the 1978 constitutions of Armenia, Azerbaijan, and Georgia . . .

Minority cadres within national territories of others have mobilized political action to protest exactly this form of preference for the language of the titular nationality. At stake for the leaders of these minority communities is often the control of mobility opportunities, the future of the constituency on which they have built their power, or even their own positions. Protests against new language laws that would place them at a disadvantage have come from the Abkhazians in Georgia, “exclave” Russians and Poles in Lithuania, and both the Turkic Gagauz and the “exclave” Russians in Moldavia. Non-Estonian cadres in Estonia have called strikes to protest a law requiring that those who do not learn the language of the republic within four years be dismissed from their jobs: on March 14, 1989, as many as sixty thousand Russians and other “minorities” (according to *Izvestiia*’s count) took to the streets of Tallinn to protest “creeping counterrevolution endangering socialism in Estonia.” Russian Party officials and factory managers within the republic reportedly mobilized their constituencies because they feared that the law of January 18, 1989, would cost them their positions.

DEVELOPMENT AND MIGRATION

To preserve the ethnically exclusive institutions on which their power rests, ethnic cadres have mobilized political action to oppose all-union economic development and migration policies. Although two different issues, they have become closely connected in public discussions since rapid industrialization has become the principal magnet for workers of other nationalities. For the population this threatens dissolution of the ethnic community, heightened competition for the leading political and economic positions in the republic, and loss of their affirmative action advantage in life chances. For the cadres this migration threatens the ethnic community on which their political power is based. It increases the pressure on the cadres to incorporate these other ethnic groups into the elite of the republic—pressure, that is, to dilute the ethnic homogeneity of the elites on which the cadres base their power. Failure of a titular nationality to maintain its numerical predominance within a re-public might lead to the replacement of the ethnically exclusive cadre by one of more diverse ethnic composition; it might bring demotion to the status of an autonomous republic (as happened to the Karelo-Finnish Republic) or even outright dissolution of its autonomous homeland. Thus, in the early 1960s Georgian and Latvian officials opposed Khrushchev's plans for further expansion of heavy industry in the republics precisely because they feared it would bring still more Russian workers. Armenian officials reportedly excluded Russian workers from permanent housing during the construction of the Erevan subway in order to prevent them from remaining. In the late 1980s protesters in the Baltic republics and Armenia demanded that their republics be given control of industrial and agricultural policy in order to slow the influx of outsiders. And Estonian cadres have attempted to blunt the effect of migration on their ethnic constituencies in future elections: legislation of the Estonian Republic disenfranchised those not resident in a district for two years (or in the republic for five years) and barred from office those not resident in a district for five years (or in the republic for ten years).

THE RISKS OF ASSERTIVE FEDERALISM UNDER PERESTROIKA

With perestroika the homeland cadres press their agendas of ethno federalism in a more complex environment. Within their homelands they are increasingly called upon to control and balance three very different forms of political action that draw together different sets of actors behind three often diverging agendas. Alongside the assertive federalism of the cadres is a second arena—the organizing activity and popular demonstrations of the popular fronts. Drawing particularly upon students, the intelligentsia, and the professional elite, the programs of the fronts often give expression to many of the primordial concerns of these ethnic communities. In a third arena communal violence draws heavily from the unemployed and from displaced refugees. Intercommunal violence has pitted Armenians against Azeris, Georgians against Abkhazians, and Georgians against Osetians in the Caucasus; young Uzbeks have attacked Meskhetis in the Fergana region, and Kazakh youths have attacked immigrants in the Novyi Uzen region of Central Asia. The ethnic cadres in a number of republics have sought to use the political pressure of the second set of actors to support its showdowns with Moscow. Even without endorsing all the particulars of the fronts' agendas, the cadres have found that the fronts strengthen their own hands in negotiations with Moscow by permitting them to argue convincingly that their hands are tied at home. In some instances, cadres have even encouraged the third form of political action in order to solidify their hold within the homeland and to press Moscow. In Azerbaidjan, for example, local Party leaders reportedly encouraged the growth of the popular front and helped found the more militant and violence-prone National Defense Committee.

. . . [P]olitical action mobilized by them [the cadres] may actually facilitate the creation of counter elites and their mobilizational activities. Much of the apparent “bandwagoning” the cadres seek to promote may actually be used as opportunities for “piggybacking” by potential counter elites; that is, aspiring independent political entrepreneurs maintain their particular agendas while using “official” political action as a cover for their own mobilizational activities and as an opportunity to publicize their agendas. Rather than depriving these potential counter elites of support, the cadres' gambit may provide their opponents with the opportunity to expand it. In some republics the political action mobilized by the cadres has become self-sustaining and has slipped from their

control, only then to provide counter elites with a ready-made movement. In Armenia the cadres appear to have lost control over the Karabakh protest by the late summer of 1988. According to a TASS report: "Taking advantage of the fact that the former leaders of the central committee of the Communist Party of Armenia let the initiative slip from their hands and retreated step-by-step, members of the [Karabakh] committee created ramified organizational and political structures."

In 1989 the initiative in Azeri protests over the status of Nagorny Karabakh apparently passed from the cadres to counter elites within the popular front. By early 1990 the Azeri popular front was complaining that the initiative in the communal violence had even slipped from its control and passed to radicals in the National Defense Committee. In Lithuania, Party First Secretary Algirdas Brazauskas was reportedly surprised when Sajudis deputies he had helped elect to the republic's Supreme Soviet rejected him as the republic's chief of state and elected their own leader, Landsbergis. Finally, the cadres' gambit may encourage unwanted primordial violence. The mass demonstrations in Erevan and Baku in 1988, 1989, and 1990 were catalysts for waves of violence across the republics. Small groups of Armenians and Azeris attacked minorities in their republics by intimidating many into emigration and by simply killing others.

POLITICAL INSTITUTIONS AND POLITICIZED ETHNICITY

The rise of assertive ethno federalism in the Soviet Union since the mid-1950s points up how political institutions shape the mobilization of ethnic communities. On the one hand, Soviet federalism delayed the origins of politicized ethnicity, but on the other hand, it distributed mobilizational resources such as entrepreneurial skills and means of communications in a manner that eventually shaped its incidence and agendas.

This emphasis on institutions offers an amendment to those studies that explain the rise of politicized ethnicity by emphasizing attitudes rather than the resources needed to mobilize an ethnic community. These studies have introduced at least two alternative paradigms for the study of ethno politics, which are distinguished from one another by alternative views of the nature of ethnic identity, the sources of cohesion, and the objectives of politicized ethnicity and protest. The primordialist paradigm sees ethnic identities as one of the givens of social existence, shaped by historic memory, language, religion, and geographic compactness. The politicization of ethnicity is communal self-discovery; protest, often an expressive act affirming communal solidarity. The instrumentalist paradigm sees ethnic identities as contingent and changing self-ascribed roles. The politicization of ethnicity and protest are goal-oriented behaviors—often focused on the pursuit of socioeconomic gain. According to the instrumentalist paradigm, an ethnic identity becomes a basis for collective action when there are comparative advantages to be gained from that specific ethnic identity over alternative ethnic, class, or other identities.

The prevailing paradigm in Sovietology has been primordialist. In explaining the origins of Soviet ethno politics, it focuses our attention on attitudes such as assimilation rather than on incentives and constraints on action. Certainly these attitudes are important ingredients of the current crisis. Yet there is little indication that these alone can account for the rise of ethno politics—little indication that assimilation has become any less advanced, assimilative pressures any more intense, or national consciousness any higher in the decades since 1955 than in those before. The failure of Soviet policies of ethnic fusion (*sblizhenie*) to reduce cultural barriers among ethnic groups and to bring about the merger (*sliianie*) of nations cannot account for the rise of ethnic assertiveness over the past three decades.

In predicting the incidence of ethnic assertiveness, the primordial paradigm argued that the most extensive resistance to the policies of the Soviet regime would be mounted by those minorities that were culturally remote from the Russian majority. In particular, it focused our attention on Islam, arguing that this provides a cultural bond among Soviet Muslims and, in the words of Kemal Karpat, "creates an invisible barrier separating them from the ruling Slavs." Moreover, as Alexandre Bennigsen and S. Enders Wimbush argue, "the critical issue determining the extent and

degree of long-term commitment of Soviet Muslims to the Soviet Russian state is not “socio-economics” but identity.” Contrary to these expectations, however, those nationalities most remote in culture from the Slavs have been among the most quiescent. There is little evidence to suggest that it is the relative strength of their primordial sentiments that distinguishes the minorities that have engaged in sustained, effective political action from the more quiescent minorities. The primordial paradigm had not predicted the pattern of flashpoints.

The primordial paradigm had also predicted that protest would mobilize behind agendas of cultural expression. Yet Soviet ethno federalism has raised many issues that are poorly explained by this paradigm. For example, the recommendation by leaders of the Nagorno-Karabakh Armenians, Abkhazians, and South Osetians to transfer jurisdiction over their homelands to the Russian Republic evinces an acceptance rather than rejection of Soviet federalism and of its institutional protections for minority interests. The terms in which they have cast their legislative agendas concerning autonomy, indigenization, language, development, and migration suggest that the public agenda for most ethnic cadres is less a primordial assertion of cultural identity than an instrumental pursuit of other interests. Thus, the predictions of the prevailing paradigm concerning the agendas of ethno politics were inaccurate.

Alternatively, an analysis that draws solely upon the instrumentalist paradigm would lead to significant misprediction as well. It would miss the constraint of primordialist sentiments in the population that must be co-opted into the agendas of Soviet ethnic entrepreneurs. It would dismiss the possibility that cadres might switch to primordial agendas as incentives and institutional constraints change. It would be unable to explain the willingness of some counter elites such as Landsbergis to sacrifice socioeconomic benefits for symbolic issues of self-expression.

These mispredictions point up the narrow or incomplete nature of a paradigm, such as the primordialist or instrumentalist, that focuses on attitudes. These paradigms fail to take two facts into consideration. First, the attitudes that sustain either primordial or instrumental agendas exist side by side in many Soviet ethnic communities and often within the same individual. They coexist among Soviet cadres as well as in the general population. Second, the politicization of either primordial sentiments or instrumental interests and the mobilization of ethnic communities in sustained, large-scale action has required the conjunction of these attitudes with resources that can mobilize an ethnic community. The attitudes cited by one or the other paradigm are necessary, but not sufficient, for the explanation of ethno politics.

Political institutions like Soviet federalism play a critical role in this conjunction and so in shaping ethnic communities, politicizing ethnicity, and mobilizing protest. They empower entrepreneurs and constrain their choice of either primordial or instrumental strategies. The politicization of ethnicity has been the work of political entrepreneurs created by Soviet federalism. In the three decades before 1990 the most significant pressure on Moscow for ethnic interests was orchestrated by the Party and state leadership of ethnic homelands. By assigning a monopoly over mobilizational resources, Soviet federalism delayed the rise of ethno federalism but at the same time made it likely and possible that ethnic cadres of more developed ethnic communities would later mobilize their constituents. By constraining their choice of strategies, Soviet federalism made it likely that cadres would mobilize their constituents behind instrumental rather than primordial agendas. Since January 1990 the magnitude, patterns, and agendas of ethnic assertiveness have evolved most in those areas in which institutional changes have transformed the incentive structures of cadres or empowered new elites (notably in the Baltic republics).

Where political institutions neither establish monopolistic ethnic entrepreneurs nor constrain their choice of strategies in this way, political institutions distribute mobilizational resources and shape ethnic strategies differently. This is illustrated poignantly by the changes in Soviet political institutions. In some republics the cadres’ control over their communities has been weakened by the loss of their monopoly over the mobilizational resources of the ethnic community. The policies of

de-mokratizatsiia and glasnost have undermined the ability of cadres to contain the protest they have mobilized as well as to suppress autonomous ethno politics. Where threats to their control have grown, their strategies have often changed. Cadres in some republics now engage in competitive efforts to mobilize different segments of elite and popular constituencies behind competing agendas reflecting different balances of primordial and instrumental concerns. By early 1990 competition had led to an outright split in the Communist parties of the republics of Latvia and Lithuania. Alternative leaderships have articulated competing ethnic agendas, and Party assets including buildings have been divided.

Lithuania before and after January 1990 provides an excellent diachronic study of how changes in the Soviet electoral system can empower new political entrepreneurs in the homeland and shift the emphasis in ethnic agendas from instrumental to primordial issues. The pragmatic leadership of Brazauskas was replaced by that of Landsbergis, which immediately emphasized symbolic issues of sovereignty even if they did not impart real autonomy. Pressed by Moscow, the new leadership quickly agreed that all instrumental issues were negotiable but not the primordial ones—that is, the symbolic declaration of independence. Because Soviet institutions have not changed evenly in all republics, the contrast between Lithuania and certain other union republics after January 1990 offers a cross-sectional comparison of the consequences of changed institutions. In Belorussia, for example, the elections of early 1990 did not offer an open contest of elites and failed to empower alternative political entrepreneurs. The Belorussian political agenda remained much more instrumental and supportive of Moscow, so that in Moscow's confrontation with the Sajudis government, the Belorussian leadership announced it would demand renegotiation of its borders with Lithuania should the latter secede from the Soviet Union.

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Questions and Discussion

1. Read the issues and problems raised by the writer carefully. What timely measures do you think should have been taken to save the Soviet federal system from crumbling?
2. What lessons can and should the Ethiopian ethnically based federal system learn from those issues and problems of the former Soviet Union?
3. Do you agree with the author's explanation of the role of the primordialist paradigm and instrumentalist paradigm of the politicization of ethnicity?

4. Exploring the Ethiopian Federation

How Did It Come About?

Assefa Fiseha, *Federalism and the Accommodation of Diversity in Ethiopia: A Comparative Study* (Chapter One) (Wolf Legal Publishers, 2006). Footnotes omitted.

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The Transitional Period (1991-1994): Continuity or a New Start?

Four years after the Derg's Constitution came into force, the regime was almost destroyed by EPLF and TPLF forces and the balance of power completely shifted leading to a new political discourse. In February 1989 the Derg suffered a major debacle in Shire, Tigray which forced it to withdraw completely from Tigray and this indirectly forced the TPLF, an organization which had its genesis in a desire to liberate a province, to think of an agenda that encompassed the whole country. It was in this context that the Ethiopian People's Revolutionary Democratic Front (EPRDF—the ruling

party at present) was born in 1989. Economic stagnation and global changes also contributed to its immediate downfall. The Derg, whose support very much depended on the former USSR, was completely debilitated when the latter went into its own crisis.

With a view to bringing together the Derg and the opposition, mainly EPLF and TPLF, the London conference was scheduled in May 1991 that was mediated by Herman Cohen, United States assistant secretary of State for African Affairs. By then the Derg's position was, however, completely weakened. The movements had controlled or encircled Derg's last hold, Asmara and Addis Ababa, and its delegates lost vigor in pursuing the peace process. On May 21, 1991, Mengistu Haile Mariam, President of PDRE, left Addis Ababa by airplane allegedly to visit a military camp in the south west of the country. On its way, the plane was diverted to Nairobi, from where the president went into exile in Zimbabwe.

Talks between the then government with EPRDF, EPLF and OLF were scheduled to start on 27 May 1991. No conference took place. Instead the government delegation left the talks and on the following day the EPRDF forces entered Addis Ababa to re-establish law and order. A joint statement of the three movements confirmed their agreement to hold a follow-up conference and to discuss the details of the transition period in general and the formation of a broad based provisional government.

Consequently, a national conference for this purpose was convened in Addis Ababa from July 1-5, 1991. The Conference resulted in the signing of the Charter by the representatives of some 31 political parties, the creation of an 87 seat Council of Representatives and the establishment of Transitional Government of Ethiopia (TGE). The Conference also agreed on the modalities of the transition process to last two years. In the meantime, elections for local regional government were to be held, a new constitution was to be drafted, general elections for electing members of the constitutional assembly that ratifies the constitution were to be held and finally the election of the new national assembly was scheduled, thereby ending the Transition. The most remarkable feature of the conference was that its members were designated almost entirely, save the representatives of professional organizations and the members from the university, on the basis of nationality, either from existing movements, or in some cases, notably in the South and Southwest, from organizations rapidly formed in order to take advantage of the new political atmosphere. In some cases, the representation was divided like in the Oromos between the OPDO, OLF and other similar movements organized on the basis of religion.

As noted already, the national conference adopted an interim constitution, otherwise known as the Charter for the TGE. Composed primarily of leaders of nationality-based parties spawned by the civil war, the conference reflected a dramatic shift of political power from the center to new politicians from hitherto marginalized regions. The Charter established the framework for the provisional government and guaranteed nationalities the rights to preserve their identity and administer their own affairs within their own defined territory, the right to participate in the central government based on fair and proper representation, and the right to self-determination. It expressly empowered all legal and political responsibility for the governance of Ethiopia until it hands over power to a government popularly elected on the basis of a new constitution. Furthermore, the Charter empowered the TGE to establish by law local and regional councils defined on the basis of nationality. While this has clearly been conferred on the TGE some contest if it had this mandate at all.

The establishment of national regional self-governments was provided for in another proclamation. The Charter and the proclamation explicitly provided that the boundaries of the territorial regions be defined on the basis of nationality in order to guarantee the nationalities the right to self-administration. The proclamation distinguished between regional self-governments based on an agreement of two or more adjacent nationalities, and national self-governments, established by any nation, nationality or people. Accordingly, the proclamation enumerated sixty-four identified

nations, nationalities and peoples and set up fourteen regions. The law provided for forty-eight of the identified nationalities to be able to start their own national/regional self-government at the Woreda level or above. Moreover, it was provided that self-government of adjacent nations, nationalities and peoples may by agreement establish a larger regional self-government within any of the 14 regions specified.

The remaining other nationalities and peoples with small populations were defined as minorities, meaning a “nationality or people which cannot establish its own Woreda self-government because of the small number of its population.” These nationalities and peoples with small populations and known as minority nationalities nevertheless were provided with appropriate representation in the district council.

The striking point is that nowhere do the charter and the proclamation employ the term federation in either their preamble or specific legal provisions, although both documents ensure each nationality with the right to self-determination including secession. The proclamation specifically enumerated both the powers of the central government and those of the self-governments.

If one looks at the legal framework from the angle of a federal system, there is no doubt that the balance swayed in favor of the center. A somewhat ambiguous and less precise language was introduced in the proclamation implying that except for specifically enumerated powers of the central government, all other powers including residual powers belonged to the regional self-governments. But the enumeration of the powers of the central government was not exhaustive and contained broad terms.

In the language of the Charter, the Transitional Government shall exercise all legal and political power for the governance of Ethiopia. In no unequivocal manner, the proclamation also stated that national regional transitional self-governments are in every respect, entities subordinate to the central Transitional Government. Moreover, the national /regional council (local parliament) that was the repository of overall political power regarding the internal affairs of the regions, was made accountable to the people which elected it and to the Council of Representatives of the TGE. Besides, the ultimate power arbiter too was the Council of Representatives. More importantly, in the exercise of the powers of the states, the relevant general policy and laws of the central government were to be respected. This was specifically mentioned in six of the ten provisions and was either indirectly referred to or assumed in the remaining ones.

Yet, despite the powers granted to the center the political dynamics as it was practiced and as designed by regional forces indicate that what was envisaged was nothing short of a federation. The national/regional governments had law-making, executive and judicial powers and used them extensively until they were replaced by new elections with the adoption of the 1995 Constitution.

The political implications that followed the introduction of the Charter and the proclamation issued to establish national/regional self-governments certainly represented a departure from the past. As one writer noted, two political developments were clearly observable: these are the choice of ethnicity as a basic principle of political organization of the state, and society and the reconstruction of the Ethiopian centrist and unitary state by introducing a federal system of government. These two interlinked processes were again anchored on the basic formula of the right to self-determination for ethno-national groups. The political rationale for such a radical change in the fundamental thinking of state organization among other things has been the view that this formula was a decisive remedy for the resolution of Ethiopia’s long-standing problem of the nationality question.

In an attempt to address the nationality question, as already noted, the Charter proclaimed the right of all nationalities to self-determination, the preservation of national identities of each group and the right of each nationality to govern its own affairs. The political action set in motion for sure was

clear in bringing to an end the notion of unitary state and was committed to devolve political power. This is in sharp contrast to the two earlier regimes. Leenco Lata concurs with this view. "It [the process of transition] was more than a regime change. Recasting it [the Ethiopian state] on a totally new basis became the only alternative for its survival as an entity."

It was certainly an official acknowledgment of Ethiopia as a multi-ethnic and multi-religious state. The emphasis on nationality and the listing of the hitherto forgotten nationalities in a legal document could only be considered as a reflection of that commitment. By so doing Leenco stated the charter elevated to an equal partnership, the bulk of nationalities of the South and the Oromos.

However, the promising beginning did not end as intended. Following the reorganization of the state structure and the national/regional governments, a regional election was scheduled for June 1992. The regional election to regional council was a cause of serious disagreement. While OLF and AAPO asked for postponement, as they were unprepared to compete in the regions, EPRDF insisted on continuing as scheduled. Following this and other disagreements OLF, one of the major actors during the making of the Charter, withdrew from the government and attempted to re-launch guerilla insurgency. Other oppositions also withdrew following its suit. Under these political dynamics one writer's observation that although the "conference of July 1991 may not have resulted in a one party government, its convention reflects to a large degree a one party dynamic" seemed to reflect the political reality after the 1992 regional election. Critics state that EPRDF resulted in a process of replication of one existing organization, the TPLF, than a union of existing actors from the spectrum of Ethiopian opposition forces. No doubt the TPLF was dominant and remained so at least until 2002 because of its considerable seniority, as it had been established in February 1975. The establishment and development of each of the other organizations had been at least facilitated by the TPLF.

However, at least until the opposition withdrew, unlike present tendencies one can state firmly in retrospect that the TGE was the most legitimate and democratic government that the country had had in its entire history. Although it was not elected, it was able to represent the major contenders of power and the then existing contending views. Certainly, it manifested a clear case of power sharing among major contenders. EPRDF leaders and those who took part in the conference all acknowledged that they and their organizations held detailed discussions on the draft text of the charter during the period preceding the conference. Certainly, representatives from the University were not as active as the leaders of the liberation fronts yet they aired their views in the conference as representatives.

One of the major tasks of the transitional Council of Representatives was to direct the process of constitution making and pave the way for a new national election based on the ratified constitution. A constituent assembly was elected in 1993. The TGE established a constitutional commission to prepare a draft instrument for submission to a specifically elected constitutional assembly vested with plenary power to promulgate an organic law. Again opposition parties withdrew. Instead of debating the content of the constitution, they denounced the legitimacy of the whole project. As a result, the whole process was under the influence of EPRDF and only a few individual candidates representing the opposition participated. The draft constitution was ratified by the Constitutional Assembly on December 8, 1994, which came into effect on August 21, 1995. Ethiopia officially adopted a federal form of government as of this date. National elections were held in May 1995 for regional and federal parliament and the FDRE new parliament was inaugurated on 21 August bringing the TGE and the Charter to an end.

Again under these circumstances one can hardly disagree with Marina Ottaway's apt observation of the last few years of the transition. "It is a formal process devoid of content. The spirit of the democratic transition was missing completely as democratization became purely formal exercise, the major contenders of power from the opposition missing throughout." Hence the argument that the post 1991 political development did not reverse the historical pattern of domination. However, it is also good to reflect on the nature of the Ethiopian opposition so far . . .

5. Challenges to the Working of the Ethiopian Federal Arrangement

John Markakis, "The Somali in Ethiopia," in *Review of African Political Economy*, Vol. 23, No. 70 (1996). In-text notes omitted.

Persuading the Somali living in Ethiopia to shed their irredentist aspirations and the dream of Greater Somalia was a conspicuous initial success for the regime that came to power in that country in 1991. Undoubtedly, the disintegration of the Somali state itself had something to do with it. Be that as it may, the Somali apparently accepted the offer of self-government within a decentralized Ethiopian state and plunged enthusiastically into political competition for control of their regional government. They did this in characteristic Somali fashion: each clan produced its own political party, and soon there were more than a dozen. The Ogaden, the dominant clan in the region that traditionally bore its name, was initially represented by two organizations. The veteran Western Somalia Liberation Front (WSLF), founded in the mid-1970s, was now overshadowed by the Ogaden National Liberation Front (ONLF), formed a decade later by defectors from the WSLF who had exchanged Somali irredentism for Ogaden nationalism and aspired to set up their own state. Two Islamic organizations also made their appearance—one representing militant fundamentalism, the other the traditional religious leadership. While both aspired to transcend clan boundaries, their support, as their names indicate, came mainly from the Ogaden clan. The formal name of the first is Ogaden Islamic Union, and of the second Islamic Solidarity Party - Western Somalia - Ogaden.

In the first elections for the regional government, held in 1992, the ONLF won around 70 seats and the WSLF 10, out of a total 110 seats in the regional assembly. With an additional 7 seats won by Tadamun (Solidarity), the traditionalist Islamic party, the Ogaden commanded an absolute majority in the regional assembly and took control of the regional government. Both the president and vice-president of the region were ONLF members, and the Front also dominated the regional executive. The ONLF's commitment to the new order in Ethiopia was not solid. Its chairman, Sheikh Ibrahim Abdalla, a graduate of Islamic jurisprudence from the University of Riyadh, was reluctant to accept Ethiopian sovereignty, and stayed in Saudi Arabia. In his absence, Abdulahi Mohammed Sadi, a former WSLF member and one of the founders of the ONLF, became president of what was designated at the time as Region 5. He vowed to test Ethiopian intentions and, if necessary, to exercise the right to self-determination. Relations between the two leaders were far from smooth, and the ONLF was riven with factionalism. By contrast, the fundamentalist Islamic group made no secret of its opposition to any collaboration with Ethiopia's rulers, and refused to take part in the elections.

The Somali claimed Dire Dawa, the most important town in southeast Ethiopia, for their regional capital, but this claim was strongly contested by the Oromo. The central government settled the issue by making Dire Dawa a separate self-governing entity. The ONLF then chose Gode, at the western end of the Somali region, as the capital. A remote and inaccessible township, of some 12,000 inhabitants, bereft of road connections and facilities, including telephones, it lies deep into Ogaden clan territory.

Hussein Mohammed Adam observed (1992) that Somali society is obsessively preoccupied with "the issue of equality and recognition on the part of individuals, families, sub-clans, clans and clan families," and the commonest *causus belli* of clan conflict is the rise of one clan to a position of dominance. Not surprisingly, Ogaden control of the regional government united all the other clans in opposition, and they set about to derail the newly-established regional administration. They took advantage of the fact that the regional leadership spent several months early 1993 in Addis Ababa, arranging for the transfer of government personnel, assets and records to region 5, a time when sizeable hotel bills and other expenses were incurred . . . The entire regional executive council was replaced, and the regional president, Abdulahi Mohammed Sadi, was thrown in prison. When he was released on bail, he fled abroad.

He was replaced by Hassan Jire Qalinle, a former pilot of the Police Air Wing in Somalia. He had been elected as a member of the WSLF and switched to the ONLF afterwards. In February 1994, the assembly of region 5 met in Jijiga, and in an outburst against the alleged interference of the

central government in Somali regional affairs, it voted to exercise the right of self-determination, i.e., secession. Less than two months later, Hassan Jire and his deputy were removed for “preventing the people of the region from enjoying the benefits of the transitional period.” He was replaced by Abdurahman Ugaz Mahmud, who had been director of the Relief and Rehabilitation Commission branch in Gode. An Ogaden clansman, he was supported by the other clans because he was not a member of the ONLF. In August of that year, nearly all the bureau heads and their deputies in the regional administration were dismissed for corruption. Abdurahman himself was dismissed in December 1994 for “obstructing development projects.” The vice-president, Ahmed Makahil Hussein, also an Ogaden clansman, became acting president.

Needless to say, there was preciously little sign of development in the region during these years. On the other hand, the political struggle intensified and the stakes were raised recklessly. The opposition clans strove to forge a united front against the Ogaden, encouraged by the central government's growing disenchantment with the ONLF. Initially, the government wisely had stayed out of Somali regional affairs, and had not sponsored an affiliate political organization in region 5, as it did nearly everywhere in Ethiopia. However, it soon began to have second thoughts. Lacking firm leadership and direction, the ONLF spoke with many voices, some calling for secession and others for acceptance of the reformed Ethiopian state. The central government was involved in the removal of three successive Somali regional presidents, none of who stayed in office more than seven months. A number of regional officials and ONLF members were also imprisoned. All were charged with embezzlement of funds, abuse of authority and sundry other crimes. This effectively crippled the regional administration, alienated the Ogaden clansmen, and provoked sporadic clashes between government forces and members of the ONLF. Itihad, which was threatening insurrection, eagerly joined the hostilities.

The effort to unite the opposition bore fruit early in February 1994, with the formation of the Ethiopian Somali Democratic League (ESDL), at a meeting held at Hurso military training camp near Dire Dawa, which lasted three days and was addressed by then Prime Minister Tamrat Layne. He was accompanied by the two Somali members of his cabinet, who became president and secretary general respectively of the new party. The president, Abdul Majid Hussein, was educated in Ethiopia and Europe and had been an international civil servant before becoming Minister of External Economic Cooperation in Ethiopia. He is an Ishaq, a clan which has been feuding violently for decades with the Ogaden over possession of the Haud pasturelands along the eastern border. Samsudin Ahmed, the secretary general of ESDL, is a Gadabursi, and was a civil servant in Addis Ababa before becoming vice-minister in the Ministry of Mineral Resources and Energy. Neither of them had previous connection with Somali nationalist and clan politics. The ESDL claimed twelve clans, including the Ogaden, were represented in its Executive Committee.

The day before the Hurso meeting began, then President Meles Zenawi addressed a gathering of Somali elders and politicians in Harar urging them to cooperate. He pointedly warned that the right of secession was to be exercised “by the people and the nation, not a political party or a clan”. Meles returned to the region in January 1995, to address a conference on peace and development at Kebri Dehar. The leadership of most groups attended, including a delegation of the ONLF led by Abdirazak Tibba, a member of its executive committee. There they signed an agreement to keep the peace and participate in the elections. Itihad stayed away.

The Ogaden now made an effort to close ranks in the face of the massed clan opposition. The WSLF, which had come out unequivocally against secession, joined with Tadamun to form the Western Somali Democratic Party (WSDP) in 1994. The ONLF was invited to join, and a delegation led by Omar Nur, a legendary WSLF commander in the 1970s, engaged in discussions. They proved fruitless allegedly because Hassan Jire, who had earlier returned to the WSLF, was made leader of the WSDP.

National and regional elections were held again in mid-1995. The ESDL contested all the districts in the region with candidates chosen for their local clan ties, and had the advantage of ample funds and the backing of the ruling Ethiopian Peoples Revolutionary Democratic Front (EPRDF). Prior to the elections, some Ogaden constituencies were merged, giving rise to charges of gerrymandering. The task of the ESDL was made easier by an ONLF split on the issue of participation. Having visited the region in 1993-94, Sheikh Ibrahim Abdalla returned to Saudi Arabia and remained opposed to participation. Shortly before the elections, a splinter group led by Bashir Abdi Hassan registered as the “legal” ONLF proceeded to contest the elections. That it was doing so under adverse conditions was made clear when the National Elections Board twice warned its officials in the Somali region not to obstruct the registration of ONLF candidates, and balloting had to be postponed for nearly a month in some district due to ONLF protests. Familiar incidents were reported in the course of the elections; ballot boxes in some polling stations disappeared, elsewhere they were found full before voting began, the results in three districts became the subject of investigation, and there was a storm of complaints from the losers. Of the 139 seats in the regional assembly, the ESDL won 75, the “legal” ONLF 18, the WSDP 15, and 24 seats went to independents. ESDL also won 23 seats in the Federal Assembly out of the 25 assigned to the Somali region, the WSDP 1, and 1 was won by an independent.

Now came the turn of the Ogaden to have a try at derailing a regional government controlled by other clans. The “legal” ONLF and the WSDP members refused to take their seats in the regional assembly until the investigation of the results in the three contested districts was concluded. They claimed the assembly lacked a quorum because it mustered only 54 out of its full membership of 139. Ahmed Makahil Hussein, the former acting president who was re-elected in 1995, refused to vacate his office. He was arrested and is now in prison awaiting trial. Id Tahir, the new regional president, who is from the Ishaq clan, claimed that 76 members were in attendance in the first brief session of the regional assembly. The first act of the new regional government was to shift the capital from Gode to Jigjiga in the east. A larger (about 30,000 pop.) and lively trade centre, Jigjiga lies outside Ogaden clan territory and near Ishaq grounds. Region five was officially named the Somali National Administrative Region.

The new political order in Ethiopia does not seem to have affected the categorical imperative of Somali political practice, which is clannishness. Opposition to the threat of Ogaden dominance is what brought the other clans together in the ESDL. It was to be expected that having gained the upper hand, the ESDL itself would become the arena of clan rivalry. In order to delay the inevitable, the League has not called a meeting either of its congress or its central committee since its founding. Although it is supposed to meet every six months, the regional assembly did not meet for the second time until September 1996. Nor has the region held elections for local administration, as have the other regions in Ethiopia. Nonetheless, there were several announced defections from the ESDL during this time. Marginalised in the new political order, the Ogaden clan turned defiant once again. With its leadership in prison or abroad, the “illegal” ONLF drifted on a collision course with the central government. In June 1996, an agreement was announced in London between this group and the Oromo Liberation Front, an organization that has flirted with secession and has declared war on the regime in Ethiopia. The two agreed to coordinate their activities in the “diplomatic, political and military fields.” Similar agreements are said to have been concluded with Itihad and the Islamic Front for the Liberation of Oromia.

It was also inevitable that Ishaq prominence would make it the target of other clans. On 8 July 1996, there was an attempt to assassinate the ESDL chairman, Abdul Majid Hussein. He survived multiple wounds, while two of his body-guards were killed. A spokesman for Itihad in Mogadishu claimed the fundamentalist group was responsible. Afterwards, the Ethiopian authorities arrested numerous Ogaden political activists, including members of the regional assembly. Among the latter were Sheikh Abdi Nassir Sheikh, the long-time secretary general of the WSLF, and Colonel Ibrahim Aden Dolal, former political commissioner of the Somali armed forces . . .

Itihad appears to be the main problem for the Ethiopian government, which blames this fundamentalist group for attacks against its soldiers in the Ogaden and several hotel bombings in Addis Ababa and other towns. Itihad is closely linked to its sister movement in Somalia, whose stronghold is the Gedo region in southern Somalia across the border from Ethiopia. Itihad established bases there to carry out cross border raids into the Ogaden. Ethiopians know from long experience that it is futile to chase guerrilla bands in this vast, arid region, if they find sanctuary on the other side of the border. Consequently, the Ethiopians recently carried the fight into the Gedo region with ground and air attacks. They seemed to have found an ally in the Somali National Front, a Marehan clan organization which competes with the fundamentalists for control of Gedo. Tragically, the dark shadow of war is falling once more over the Ogaden, a region that has known little peace for more than three decades.

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John Young, "Regionalism and Democracy in Ethiopia," in *Third World Quarterly*, Vol. 19, No. 2 (1998). Footnotes omitted.

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The devolution problematic

Constitution-making under the EPRDF has little in common with the bargaining, trade-offs, and compromises that usually typify such processes; rather it reflects the weakness of the country's democratic institutions, the political objectives of the governing party, and its position of dominance within a state where serious opposition had been crushed or marginalised. The basis of regional governments and one of the unique elements of the constitution is expressed in Article 8 (1) by the assertion that "all sovereign power resides in the nations, nationalities, and peoples of Ethiopia" and further that the constitution is "an expression of their sovereignty." Not only does sovereignty not lie with individual citizens, they in turn are divided into three groups-nations, nationalities and peoples-terms, which are not distinguished. From this premise it is further held that, "Every nation, nationality and people in Ethiopia has an unconditional right to self-determination, including the right to secession" (Article 39 (1)).

The conditions under which the right to secession can be accomplished include a two-thirds vote of the state legislature, the organisation by the federal government of a referendum, majority support of voters in that referendum for separation, and subsequent agreement on the division of public assets. Although some analysts find the constitutional right to secession extremely dangerous and argue that it will foment nationalism, realising the necessary conditions would prove extremely onerous, the more so given the fact that the EPRDF would be overseeing and carrying out these constitutional provisions . . . Both the federal and regional governments have executive, legislative and judicial powers and there is a constitutional list of concurrent powers, although the federal government can delegate some of its powers later. However, the constitution has not laid down unambiguously the structures, powers, and major functions of the federal and regional governments.

The judicial system shares jurisdictions between the regional states and the centre. In most federal systems a supreme court serves as ultimate protector of the constitution, provides judicial review, and resolves disputes over powers between the federal and regional governments, but this is not stipulated in the Ethiopian constitution. Instead, such matters are reserved to the Federal Council or the Council of Constitutional Inquiry, bodies whose composition would largely be made up of political figures. Neither the federal or state supreme courts have the power to nullify laws passed by either House of Parliament....

* * *

Ultimately, in an Ethiopia with a weak civil society, the absence of a tradition of respect for human rights and a history where powerful men and not laws have defined the relationship between subjects (there were no citizens) and the state, the present constitution must be recognised primarily as a symbol of the new regime and part of an effort to achieve domestic and international legitimacy. While weak in many areas, the new constitution reflects the EPRDF's desire to end Amhara hegemony and bring historically marginalised groups into the political process (if only under the Front's tutelage) by establishing ethnically based local administrations such as that in Tigray. However, whether other regions and ethnic communities that did not share Tigray's experience of revolutionary struggle can acquire the legitimacy and high administrative standards, which that province has achieved under the TPLF, is questionable. In addition, the model of devolution must not be viewed independently of the organisation that is carrying it out, the EPRDF. In spite of the government's endorsement of capitalism, pluralism and a realigned foreign policy, the EPRDF remains a Leninist-structured and controlled party. And it is this party, which not only oversees the public bureaucracy but also has a formative influence over regional parties.

Five methods of EPRDF control or influence over the regions can thus far be identified. The first is direct membership of EPRDF representatives on regional councils, such as currently exists in Beneshangual and Afar. Second, there are EPRDF members in each region, some of which, such as in the case of the Southern Region, play an active role in political affairs and, in the case of Gambella, are used to reconcile differences between the sometimes antagonistic Nuer-and Anwak-based ruling parties. Third, the EPRDF provides a wide variety of seminars, courses and educational functions for regional party officials. Fourth, the EPRDF can directly discipline members of its component organizations. Finally, the army has assumed direct control in various unstable parts of the country, such as the Somali, Afar, Gambella and Benishangual regions, and the Borena zone of Oromia.

As a counterpoint to federal power, regional and zonal party leaders (as opposed to many who staff the public bureaucracies) are predominantly nationals of the area in which they reside. Therefore, most of Ethiopia's non-Amhara population no longer face the indignity of having to speak Amharigna and appear before members of an Amhara elite at the local level where most decisions of interest to the people are made. Moreover, while initially financially stretched, since 1995 regions and zones have benefited from a generally robust economy and growing transfers of resources from the national government, as well as their own increasing capacity to collect taxes. This is bolstering the confidence of local administrators and leading in some cases to increasing efforts to preserve and extend their spheres of autonomy. Official encouragement given to indigenous languages in the schools and public bureaucracies is fostering the formation of local identities and as a result a cultural renaissance is taking place in many parts of the country. Nonetheless, the success of the regional administrations continues to be problematic. EPRDF officials usually acknowledge the present weaknesses of the new governments, but contend that these are transitory problems which will be overcome with time and experience. However, it cannot be assumed that fundamental problems of legitimacy, as opposed to acquiring administrative skills, will be so readily achieved, as a cursory examination of the new regional governments would appear to confirm.

Unlike the TPLF, which has a rich base of dedicated and talented party personnel to draw upon, the ruling party in the Amhara region, the Amhara National Democratic Movement (ANDM) is still struggling to establish itself and is largely opposed by intellectuals and townspeople. Nonetheless, it is believed that, because the guerrilla campaign carried out in this region from the early 1980s was more extensive than that carried out by other dissident movements (with the exception of the TPLF), the regional government is, after that in Tigray, the most viable in the country. The ANDM has, however, been sorely tested by controversies over its 1997 land reforms, which led to demonstrations in Addis Ababa, and over the dismissal of and subsequent laying of criminal charges against its leader, Tamrat Layne, who held the key positions of deputy prime minister and defence minister in the national government. The other EPRDF components were established much

later and have more doubtful bases of support. Of particular concern is the Oromo People's Democratic Organization (OPDO) which is widely perceived as being weak, corrupt, and an instrument of the TPLF, and is discredited in the view of most Oromo intellectuals. Moreover, while the OLF has proven itself militarily inept, it still retains the loyalty of most of these same intellectuals.

The southern regional and zonal governments are probably weaker than their counterparts in Oromia, although for essentially the same reasons. While the OPDO did play a minor role during the final days of the conflict in the liberation of its territory, the EPRDF-affiliated South Ethiopian People's Democratic Front (SEPDF) was created after the formation of the transitional government. As a result, it was TPLF forces that initially occupied the region when the Derg army evacuated its bases, without in most cases any resistance. The first administrations were military-dominated and made up solely of Tigrayans; only later were southern Ethiopians captured during the war given political training and quickly made to assume administrative and "elected" positions. It is indicative of the TPLF'S need to control the political process that it did not build alliances with the few southern parties, which existed at the time and instead has carried out a campaign of harassment against them. The result is that, unlike their counterparts in Tigray, cadres selected to administer the south typically have little political or military experience, generally have low levels of education, frequently appear to be motivated by opportunism and not surprisingly have questionable legitimacy among their constituents. Weak leadership gives rise to accusations of theft, bribery and incompetence, and these charges are given at least some credence by the frequent changes and short tenures in office of many leading officials in the region.

Achieving legitimacy in the south will also depend on the success of the regional and zonal parties in carrying out the EPRDF'S programme of instituting indigenous languages in government and educational institutions. Because of the diversity of languages spoken in the zones Amharigna is the official language at the regional level. At the lower zonal levels Amharigna is being replaced and governments must confront the daunting problems of preparing textbooks in indigenous languages, transcribing material into Latin script, and providing training for instructors teaching in schools. Introducing indigenous languages into government administration is proving equally difficult and will take some years. In the relatively more developed Hadiya zone 56% of government professionals are currently non-Hadiya speakers, and Amharigna necessarily remains the language of discourse. Merchants and traders in the southern towns, even if not ethnically Amhara, have long relied on the language, although in some areas popular demand and government encouragement are making indigenous languages those of the streets. The extent of indigenisation varies from region to region and zone to zone and probably roughly corresponds to the availability of resources and the political pressures governments face. In that respect the OPDO administration may be expected to press harder for indigenisation because of its need to appear strongly nationalist in response to OLF pressure.

The emphasis on indigenous languages in the schools has raised the ire of many Amhara and others from the north living in the towns of Oromia, the south, and other parts of the country who do not want their children educated in "local" languages. Some regional and zonal governments have shown a measure of sympathy for these concerns and schools using Amharigna as the language of instruction are being permitted. But with future employment in government, which constitutes the bulk of the modern sphere, increasingly favouring those with fluency in indigenous languages, the Amhara and other northerners who settled in the south and Oromia will lose many of the advantages they have had since Menelik's expansion into these areas a century ago. Moreover, there are already indications that the growth of national consciousness in some parts of the country is leading to expressions of resentment against non-indigenous government employees, teachers and merchants. Because of these changes some Amhara and other migrants to these areas appear to be leaving the regional and zonal centres. Their numbers in turn are being replaced by local people from the countryside who see greater opportunities for employment in trade and government in the towns.

In addition to concerns about indigenous languages, there are many other issues which are challenging these governments and raising questions about their competency and legitimacy, and nothing is more important in a society where peasants make up the overwhelming majority than the availability of productive land. In Wallega, Oromia, the regional and zonal governments are confronted by a problem inherited after the Derg resettled peasants from drought-prone Wollo and Tigray on state farms in the northern lowlands during the 1984-85 famine. After 1990 the Derg, and subsequently the EPRDF, began breaking up the state farms and encouraging commercial farming. In post-Derg Ethiopia other land-starved peasants, mostly Amharas from neighboring Gojjam, began (and are still) moving to the Wallega lowlands . . . Indigenous Oromos are further aggrieved that, because of large numbers of Amhara in the area, there is wide use of Amharigna in the schools and administration, and the language plays a major role in local government. Added to this unhealthy mix, lowland-settled peasants are engaged in a dispute over access to land with the pastoralist Gumuz people who also inhabit these areas. This conflict has taken an increasingly violent form. Although these problems are long-standing and explosive, neither zonal, regional nor national governments have taken them up. Such difficulties in balancing the interests of minorities and majorities within regions are common throughout Ethiopia and can be expected to continue to come to the fore.

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The weakness of the OPDO and Southern Front governments have been emphasised because of their size and importance in the Ethiopian federation. The performance record of the peripheral regional governments, such as those of the Afar, Somali, Gambella, and Benishangul is far worse, a fact openly acknowledged by the EPRDF. However, two points should be borne in mind. First, many of the people inhabiting these areas are pastoralist, with no tradition of indigenous settled administration, and indeed little experience with central governments, apart from largely tribute-demanding regimes, before the Derg. Second, while it is unrealistic to expect such territories to establish effective governments quickly, their present extremely low levels of development are largely the result of the failures of past-centralised regimes. What remains unclear is whether the highland, Orthodox Christian and peasant-focused leadership of the EPRDF will prove to be more responsive and sympathetic to the concerns of the largely lowland, non-Orthodox and pastoralist peoples who inhabit the non-core areas of Ethiopia than were their Amhara counterparts. Three recent cases give cause for skepticism.

In the lowlands of southwest Ethiopia, between the towns of Konso and Jinka, the Derg established a large state farm devoted to growing cotton which almost immediately raised the anger of resident pastoralists who lost valued grazing lands. Later this farm was privatised and the new owner's property rights were respected by the incoming EPRDF government, which did not, however, do anything to resolve the outstanding claims of the pastoralists. As a result, in late 1994 the pastoralists attacked the farm. The army responded by killing eight of them and jailing many more. This problem as well remains unresolved. Even in Tigray, where during the revolution, the TPLF attempted to overcome highlanders' prejudices against the lowland Afar and gave legitimacy to the Abagore, a traditional institution used to resolve Afar-Tigrayan conflicts over grazing and water rights, violent struggles between the two peoples have not noticeably declined. Finally, while armed clashes in the Somali-inhabited eastern region of Ethiopia involve a host of international and religious issues, the extensive and continuing (if not fully acknowledged) engagement of the national army in the area necessarily raises questions as to whether the EPRDF does—as it claims—have a more progressive approach to dealing with lowland and pastoralist peoples than past Ethiopian governments which also had troubled relations with these peoples.

Problems of legitimacy and continuing examples of authoritarian practices are a product of Ethiopia's lack of democratic traditions, a weak civil society and an underdeveloped economy where most benefits continue to flow from involvement in the state. Added to this legacy, it took the TPLF EPRDF 16 hard fought years to achieve state power and it is not clear that it is willing to

share the rewards of that power with opposition forces. Moreover, the EPRDF continues to see the state as the best means to pursue its programme and maintain a dominant position in the largely fragmented Ethiopian society. As a result, state and party power in Ethiopia is still formidable and expressed in both new and old ways. The ways of the past include the virtual hegemonic position of the ruling party. The state retains sole authority over television and radio, possesses many newspapers, and in addition the EPRDF has its own radio stations and newspapers. The Front also has journalists based throughout the country who provide stories to the official media on a profit basis, yet another means for its positions to be spread, while at the same time having the costs of what is highly partisan journalism paid.

Significantly, the Derg's 1975 Land Proclamation which nationalised all rural land has not been altered. While peasant insecurity at the prospect of an open market in land can serve as a rationale for continuing nationalisation, government control over rural land, home to 85% of the country's population, gives it enormous power. Although the EPRDF is espousing and pursuing market-based policies and carrying out a privatisation programme which has won the praise of the IMF and international donors, at the same time, agents, associates and organisations created by the ruling party are actively purchasing and managing some of these privatised companies, and at the same time establishing new enterprises.

While Ethiopia's constitution contains the politically correct terms and phrases concerning democracy and respect for human rights that are now expected in the post-cold war period, real conditions in the country, particularly outside Addis Ababa, are less reassuring. Apart from the Somali and Afar areas, which are experiencing high levels of criminal and political violence, and isolated parts of Oromia where the OLF is attempting (and to date failing) to mount an insurrection, there would now appear to be less concerted efforts by the government in other parts of the country to harass opposition forces committed to peaceful change than was the case three years ago. However, this seems to be largely thanks to the continuing impact of the government's recent practice of jailing and intimidating the opposition, rather than the result of any fundamental change in policy. Little is being done to reduce distrust between government and citizens . . . Formally legal parties are harassed, independent meetings forbidden and opposition newspapers are generally not permitted far beyond the boundaries of Addis Ababa. As a result, almost everywhere outside Addis Ababa people are afraid to engage in political activities outside government parameters . . .

A lack of transparency is evident at every level of government. Whether as a product of Ethiopia's feudal traditions, wherein the country's leaders lived apart from their fellows, or as a result of the patterns of secrecy that were necessary to ensure survival during the EPRDF'S years of armed struggle, or because, after seven years in power the government does not feel entirely secure, the EPRDF leadership appears remote and has little interaction with those beyond a select group of political allies, many of whom are Tigrayans. Communications with the public are limited, largely ritualistic and almost completely restricted to expressions through the government-and party-controlled media, since the EPRDF usually refuses to meet the privately owned media. Indeed, the national government operates as if under siege, something it again demonstrated when on 21 March 1997 a peaceful demonstration was broken up, and some 200 students from Addis Ababa University were arrested and subsequently beaten after they had marched in support of Gojjami peasants aggrieved at the manner in which the Amhara regional government was carrying out its land reform.

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Questions and Discussion

Markakis and Young raise issues of concern in the working of the Ethiopian federal system. Discuss their points of view and evaluate their conclusions. Where you agree with their conclusions, suggest solutions to the problems. Both pieces were written when political power was in the hands of the TPLF-led EPRDF. Now that the power balance has changed wherein at the

moment the power structure of the EPRDF has been replaced by PP, do you think Markakis and Young's arguments are debased or at least need some recasting? Discuss this by rereading the papers.

B. Decentralization

Decentralization of power can take many forms. The typical institutional form for decentralization of power is federalism in the senses we discussed in the previous section of this chapter. But decentralization of power does not stop only at the division of power between the center and the regional or sub-national levels. It can and should go below the regional level to local levels. Decentralization or deconcentration of power can be devised in unitary systems as well. Formally unitary systems like Italy, and the UK devolve power to regional levels both for administrative efficiency purposes and/or for accommodating regional or cultural diversities. Good to note also that federations also follow different approaches to the issue of decentralization of power, especially when it comes to sub-regional or local governance. Some federations explicitly entrench local governments in their national constitution and determine their powers and functions while others provide for general framework and leave the detail either to regional laws or sub-constitutional national laws. Other still relegate the issue of local governments entirely to the regional governments.

In what follows, you will study different scholarly works in the area of decentralization of power. Critically read these papers in order to form your own opinions on the matters under discussion.

Larry Diamond, "Why Decentralize Power in a Democracy?" (Presented to the Conference on Fiscal and Administrative Decentralization Baghdad, February 12, 2004).

* * *

(...) a growing number of countries are moving to adopt federal systems that devolve significant governing authority down from the center to lower levels, or at least for decentralizing some significant elements of government responsibility down to local government.

I want to address three questions today. First, why are more and more countries moving to devolve and decentralize governing power? Second, what has this trend meant for the quality of democracy and governance around the world? Third, what has it meant for the ability of countries to hold together peacefully as a unified state?

Why the Trend Toward Federalism?

There are three broad reasons why so many countries are adopting federal systems, or greater political and administrative decentralization. In some countries, federalism is adopted as a means of giving different ethnic and regional groups some autonomy and control over their own affairs. The thinking is that if different ethnic and regional minorities have some autonomy, some ability to determine their own local affairs with respect to education, culture, and economic development, they will feel more secure, and be more willing to accept the authority and legitimacy of the larger national state. I know there are concerns about this issue in Iraq, and I will return to it in a little while.

Second, federalism or devolution of power is adopted as a means of sharing power among lots of different political parties, which may or may not have some basis in ethnic or regional ties. If democracy is to survive, it cannot be a winner-take-all system, particularly not one in which one party is always going to win, and thus take all. When some governing responsibilities and resources are devolved to lower levels of authority, and when there are a lot of different provinces and municipalities whose governments will be chosen through elections, parties and groups that

cannot win control of the central government may win the opportunity to exercise power in some of the lower-level governments. This increases their confidence in and commitment to the political system, and the sense among citizens generally that the system is fair and inclusive. If groups with strong bases of support in the country are completely and indefinitely excluded from any share of political power at any level, they are likely to question and even challenge the legitimacy of the system.

Third, democracy has swept throughout the world as a basic value and framework of governance over the past three decades. And decentralization is increasingly coming to be seen as a fundamental democratic principle. It is not enough for people simply to be able to choose their national leaders in periodic, free, and fair elections. In countries of moderate to large size, a good democracy requires that people be able to elect their own local leaders and representatives, and that these local governments have some real power to respond to the needs of the people. In short, decentralization is increasingly being demanded from below, through pressure from the grassroots, and is embraced for its potential to enhance the depth and legitimacy of democracy.

How Federalism and Decentralization Enhance Democracy

I have already begun to suggest, then, how federalism and other forms of decentralization can strengthen democracy and enhance its stability. They may help to hold the country together by giving each group some control of its own affairs. They may help to sustain the political system by distributing power among a wider array of political parties, each of which finds that it has some tangible stake in the system. And it speaks to the aspirations of people and communities who simply want government to be closer and more responsive to their needs.

Let me continue with the functions that decentralization serves. When government is closer to the people, it is more likely to be held accountable by them for its successes and failures in the provision of basic services, the maintenance of order, and the fair resolution of local issues and disputes. Government tends to be more responsive when it is closer to the people. That is why democracies are more and more embracing the principle of subsidiarity: that each government function should be performed by the lowest level of government that is capable of performing that function effectively.

When there are multiple layers of elected government, as in a federal or politically decentralized system, there are other benefits for democracy. Lower levels of elective office can constitute an arena for training and recruiting new political leaders, including women and young people who have not previously had a role in political life. And these lower levels of democracy provide a more accessible means for citizens to become active in public affairs: to question their local officials, monitor what they do, present their interests and concerns, and learn the skills and values of democratic citizenship. Typically, it is difficult for most citizens and organized groups to get access to the national parliament or the central ministries. They need decentralized opportunities for access to decision-making power. And those points of local access are more likely to be responsive if they are accountable to the people through elections.

Finally, decentralization of power provides an additional check against the abuse of power. Of course, checks and balances are needed within the central government itself. This is why there must be an independent parliament and judiciary, and effective auditing and counter-corruption mechanisms. But federalism can provide an additional bulwark against the concentration and abuse of power.

What is Necessary for Federalism to Work in a Democracy?

I do not mean to suggest that federalism, or even more limited decentralization of power, is without risks and dangers for democracy. In many democracies, old and new, local and provincial governments become not outposts of grassroots democracy but local fiefdoms, dominated by

political bosses who do not play by democratic rules or respect citizens' rights. As local autocratic leaders enhance their power, they can rig elections and intimidate the opposition, creating a one-party state at the provincial level, even if the national system remains vigorously competitive. I have seen this happen in countries like Nigeria. But this is far from inevitable.

There is a way to prevent or correct this problem. A federal democracy must establish that the national constitution, and the national judicial system, is supreme over local and provincial authorities. Prosecutors, investigators and commissions at the national level must have the authority to investigate abuses of power, violations of rights, and charges of corruption in local and provincial governments. Violators must be held accountable in the national courts, if they cannot be tried and punished at lower levels. And levels of government below the center should not be allowed to maintain their own armies or militias. That should be a national function.

There is also the problem of capacity for self-governance at the local and provincial level. This can be a particular problem in terms of the ability to raise, budget, and expend resources. In a country like Iraq, where the central government receives large streams of revenue from petroleum exports, a system can be developed to allocate some portion of this revenue automatically to the lower units of government, by a formula, perhaps largely based on shares of population, that is mutually negotiated and generally accepted as fair. But still, lower governments must develop the capacity to administer the revenue and provide the necessary services. Often, this requires a period of training and a phase-in of responsibilities devolved down from the center. One of the most important lessons from other country experiences is that local governments should not be burdened with obligations to perform functions and provide services for which they do not have adequate revenue or training.

Is Federalism a Slippery Slope downward to Disintegration?

A very legitimate fear of many who are wary of federalism is that, in a context of deep ethnic and regional divisions, it can lead to the break-up of the country, as in the former Soviet Union or the former Yugoslavia. These fears are real, but they are based on a mistaken reading of other experiences. Divided countries have disintegrated at crucial moments precisely because they did not develop over time democratic means for the devolution of power that knitted groups together in a more authentic, voluntary, and legitimate political union. When groups are held together in one nation mainly by force and fear, anxious minorities may seek to secede at the first sign of a weakening of central government power. By contrast, when the national government, under the fresh political circumstances that attend the formation of a new democratic system, makes an early and sincere grant of autonomy, the consequence is almost always greater stability and unity, rather than secession. This has been the case in India, Spain, Mexico, and Nigeria, for example. By contrast, countries like Sudan and Sri Lanka have paid a heavy price in civil war and massive violence for the failure to accommodate aspirations for devolution.

I know many Iraqis fear that federalism is just a stalking horse or vehicle for the eventual break-up of the country. As a political scientist who has studied group conflict and institutions to manage conflict in democracies, I sincerely do not believe that will be the case. Federalism—as negotiated and structured by Iraqis in their process of constitution making during the coming year—will provide the means to hold Iraq together permanently, democratically, and peacefully.

Zemelak Ayele, "Local Government and its Institutional Security within Ethiopia's Federal System" in Asnake Kefale and Assefa Fiseha (eds), *Federalism and Local Government in Ethiopia* (Center for Federal studies, Addis Ababa Univeristy, Addis Ababa, 2015) 200. Footnotes omitted.

2. LOCAL GOVERNMENT'S EXISTENCE AS SPHERE/LEVEL OF GOVERNMENT IN ETHIOPIA

(...) one of the three elements linked to the institutional security of local government is its security to exist as a sphere or level of government. It is often suggested that the most crucial guarantee for the continued existence of local government as sphere or level of government is the genuine conviction of the centre in the democratic and developmental merits of local government. Central governments, however, often lack such a conviction threatening the institutional integrity of local government. It is, therefore, recommended that there should be a formal mechanism of ensuring the uninterrupted existence of local government as sphere/level of government. The recognition of local government in a national constitution as a sphere/level of government is considered the most effective formal mechanism of ensuring the security of local government. The constitutional recognition of local government as an autonomous level of government is also in keeping with the increasing political and economic role that local government units, especially international megacities, play. The Constitutional recognition of local government in federal countries such as Ethiopia is however often -contentious despite the fact that almost all federal states have three levels of government: federal, state/regional, and local. Having perceived a constitutionally entrenched local government as a threat that may upset the 'federal equilibrium', sub-national units of federal countries often resist its recognition in national constitutions.

A perusal of Ethiopia's federal Constitution reveals that the Constitution envisions the establishment of two categories of local government, which can be termed the ethnic local government and the regular local government. The two categories of local government are meant to realize two distinct objectives. The ethnic local government is the sub-regional extension of Ethiopia's ethnic-based dual federal structure whose establishment is linked to the right to self-determination of the ethnic communities of the country; a principle that serves as the foundation of Ethiopia's federal system. The argument here is that the Constitution envisages the establishment of ethnic-based sub-regional territorial and political units for the purpose of allowing intra-regional ethnic minorities since those communities, like the larger communities with their own regional states, have the aforementioned rights. The ethnic local government is thus a special type of sub-regional government; not a regular system of local government that is established in every part of the country, on wall-to-wall basis. The Constitution - by providing that each ethnic community would establish self-government 'in the territory it inhabits' - implies that these local units would be established only in those parts of the country where territorially concentrated minority ethnic communities are present. Therefore, the Constitution envisages that boundaries of the ethnic local government units would be demarcated based on the geographical settlement patterns of the intra-regional ethnic minority communities.

The Constitution also enjoins regional states to establish the regular system of local government for the purpose of enhancing democratic participation and ensuring efficient service delivery. It however provides the regions the options of determining the tiers, numbers and size of local government units that they may choose to create.

Practice also show that in accordance with the above constitutional prescription each of the regional states has established the regular or both the regular and the ethnic local governments. The regular local government is made up of some 670 Woreda and 98 city administrations. A Woreda administration (or a Woreda) – that is, a territorial area equivalent to a district with approximately 100,000 residents – is established in rural areas; a city administration, as the term implies, is established in urban areas. [But in recent years, woreda's are being re-established in towns and cities, including Addis Ababa.]

The ethnic local government, made up of *liyu* woredas and nationality zones, is established as per Article 39 of the federal Constitution with the purpose of allowing intra-regional minority ethnic communities to exercise some form self-government. A *liyu* Woreda is made up of a single

Woreda. It is called a liyu ('special') Woreda, as opposed simply to a Woreda, merely because its boundaries are demarcated along ethnic lines and it is meant to serve as a territorial area wherein the relevant ethnic community exercises self-government. A nationality zone is established to serve the same purpose as the liyu Woreda, even though it is larger than liyu Woreda as it covers two or more woredas inhabited [predominantly] by an ethnic community. A nationality zone or liyu Woreda is not only an autonomous local unit; should the ethnic community for which it is established so prefer, it may also secede from the region where it is located to become a separate regional state.

It can thus be argued that the Constitution envisages that the ethnic and regular categories of local government together form a local or (more appropriately) sub-regional spheres or level government. To this extent one may be tempted to argue that local government in Ethiopia is recognized as a sphere or level of government and thus its existence has some measure of institutional security.

Nonetheless, the federal Constitution falls far short of explicitly recognizing local government as an autonomous order of government. It is not as unequivocal in its recognition of local government as, for instance, the Nigerian Constitution, which provides that '[t]he system of local government by democratically elected local government councils is under this Constitution guaranteed'. Nor is it like the South African Constitution that expressly establishes local government as one of the three spheres of government. The Ethiopian Constitution does not explicitly provide for the establishment of ethnic-based sub-regional or local government; only implies the need for their establishment by recognizing the right to self-government of all ethnic communities; including intra-regional ethnic minorities. Moreover, only one sub-article (Article 50(4)) in the FDRE Constitution, principally dealing with the structure of the regional states, makes a passing reference to the regular local government. The Constitution refers to the regular type of local government as 'other administrative level' not as a level or sphere of government; conveying the impression that the regional states have the authority, if they so choose, to create their own administrative arms, not necessarily an autonomous level of government. It becomes clear that the federal Constitution envisages the establishment of autonomous local government only when Article 50(4) is read and interpreted together with other provisions in the Constitution and with the drafting history of the Constitution in mind. Therefore, the local government, in particular the regular local government was viewed as a mere administrative level, not as a level of government, a situation that was never viewed as incompatible with the Constitution. Thus, the 2001 revision of the regional constitutions, which sought to provide woredas with some level of autonomy, was not the result of an effort to meet the prescriptions of the federal Constitution – it arose instead from a change in the EPRDF's policy. (...)

In short the lack of explicit recognition of local government in the Ethiopian Federal Constitution coupled with the political practice in the country puts the existence of local government as sphere or level of government under permanent insecurity.

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(...) the federal Constitution implies that the regular local government units would be established everywhere in the country, on wall-to-wall basis. This does not mean that our constitution, like that of the South African Constitution, explicitly requires that local government be established in every territorial area of the country. It however links the establishment of the regular local government to democracy and public participation that are of general values unattached to ethnic identity. By so doing, it can be argued, the federal Constitution necessitates the establishment of some form of regular local government in every part of Ethiopia. Ethiopia's federal Constitution however refrains from prescribing any particular type of local government that the regional state should establish. In fact, it expressly provides that the regional states may choose the form of local government that 'they find necessary'. This seems based on the recognition of the social and economic variance

among the regional states and that the latter are more apt than the federal government to devise a system of local government catering for their own peculiar socio-economic conditions.

Accordingly, as was stated above, each of the regional state has established either a Woreda or a city administration in every part of its territorial jurisdiction. Moreover, the manner in which each local unit is structured largely reflects the varying realities, with rural and urban communities presumed to have different developmental preferences. Hence, in rural areas woredas are established, while in urban areas municipalities and cities are established. Within the urban category, differences in status and capacity among urban units also seem to have been taken into consideration, which is evident in the fact that Addis Ababa and Dire Dawa are established as autonomous federal cities outside the jurisdiction of a regional state. In addition, a distinction is made in the manner in which cities and municipalities are structured. The former are established as autonomous units of local government, the latter as administrative units. However, there is uniformity in the manner that the Woreda is structured, which is presumably the consequence and expression of the fact that the decentralization was centrally driven. Woreda boundaries were defined, as per the federal policy papers, by taking population size as the principal, if not as the only, factor. The same criteria were, therefore, used for the demarcation of the boundaries of the woredas both in the densely populated highland regions and in the sparsely populated low land regions. Geographical factors do not seem to have been taken into consideration. Thus there are more than 105 woredas in the Amhara regional state whereas there are less than 50 woredas in the Somali region; a region which is almost twice the size of the former in territorial terms. Moreover, the difference in economic activities of the highland and the low land regions do not seem to have been seriously taken into account. Identical Woreda system is therefore established both in the highland areas where there is a sedentary agrarian economy and in the lowland region where the people are predominately pastoralist, who constantly move from one place to another in search of pasture and water for their cattle.

3. CONSTITUTIONAL PROTECTION OF INDIVIDUAL UNITS OF LOCAL GOVERNMENT

The third element of the institutional security of the existence of local government relates to protecting each individual unit of local government from random elimination, change, or diminution in status or size through division or amalgamation. This is related to the criteria and procedure that a constitution provides for the determination and alteration of their boundaries. For instance, the South African Constitution, not only provides for relatively clear criteria for the establishment of different categories of municipalities, it also establishes an independent municipal boundary demarcation board which is authorized to deal with issues relating to alteration of municipal boundaries.

The above raises several questions: What are the criteria for demarcating the boundaries of the woredas, liyu woredas, nationality zones and cities? Who has the authority to decide on these boundaries? How do local communities participate in the process of local-government boundary demarcation? The substantive criteria for establishing of the ethnic local government units are fairly clear i.e. the territorial settlement pattern of the ethnic community demanding for its own nationality zone or liyu Woreda. As stated above, this is implied in Articles 39 (3) of the Constitution. Moreover, the constitutions of the multiethnic regional states, including SNNP, Amhara, and Gambela, over and above reiterating the above principle, expressly state the ethnic communities having their own nationality zones and liyu woredas.

Practice however shows that the creation, division, and amalgamation of nationality zones and liyu-woredas have depended on the changing policy preferences of the ruling party than the above constitutional principle. (...)

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With regard to the regular local government, the pre-1974 Woreda boundaries were retained in the transitional period, during which time there were approximately 600 woredas. When the 2001

decentralisation programme was launched, [it was] indicated that Woreda boundaries might be re-demarcated with a view to creating ‘financially viable’ local jurisdictions. However, while no major local boundary re-demarcation has taken place, the number of existing woredas has increased since 1991 and is currently estimated at 670. The increase could have resulted only from the division of the existing ones, but it is unclear on what constitutional basis these changes were introduced. The trend instead is to regulate the matter through ordinary legislation. This is the case, for instance, in Tigray and Benishangul regions, each of which has issued a proclamation dealing, among other things, with Woreda boundaries. The proclamations provide formal recognition to existing woredas in the respective regional state and authorize the respective regional councils to create new woredas, and/or to divide, amalgamate, or eliminate any existing Woreda.

Proclamation 99 (2006) of the Tigray regional state authorizes the regional executive council to define, through executive regulation, the criteria for the creation of a new Woreda. The proclamation also provides that the criteria, which are to be defined by the executive council, should include capacity to deliver services, administrative convenience, and the communities’ culture and preference. Proclamation 86 (2010) of Benishangul-Gumuz provides certain criteria for the creation of a new Woreda. These are population size, capacity to cover 25 percent of expenses from own resources, population settlement structure, and the history, culture and interest of the community. When deciding to create a new Woreda, or to divide or amalgamate an existing one, a regional council has to take into consideration the studies and proposals of the regional bureau of finance and economic development as well as of administrative and security affairs bureau.

The criteria for the establishment of cities are not provided for in the regional constitutions. The city proclamations of Benishangul-Gumuz and Amhara provide that the criteria for the establishment of a city will be set out in an executive regulation, but it is unclear if they have yet adopted such regulations. The city proclamations of Oromia and SNNPR set certain preconditions and procedural guidelines for the creation of new cities and municipalities, among which are clearly defined boundaries, a minimum population size, commercial and industrial economic activities, financial self-reliance, and other objective criteria that may be stipulated by the regional executive council. An urban community that wishes to have its locality incorporated as a city may petition the regional government (in particular the Bureau of Works and Urban Development) to that effect. The petition should be supported with documents that prove that the legal preconditions for the incorporation of an urban settlement as a city are fulfilled. The regional executive council has the final say in granting the petition.

In most of the regional states, the creation of new woredas, as well as the division and/or amalgamation of existing ones, is not clearly regulated, and regional constitutions are silent on the issue. The criteria for establishing a new Woreda and dividing and amalgamating existing woredas remain vague even in Tigray and Benishangul-Gumuz, where proclamations are enacted to regulate the matter. In Tigray, the regional Executive Council is authorized to define these criteria in executive regulation, a legal instrument that the executive council can effortlessly adopt and revise. The absence of a constitutional framework regulating the creation new woredas and the demarcation and adjustment of the boundaries of existing woredas exposes individual Woreda to the risk of arbitrary division or amalgamation. Community participation in the demarcation and adjustment of Woreda boundaries is also not clearly regulated. There are instances in which regional states established woredas in response to petitions lodged by local communities, and so, too, of instances in the Somali, Oromia and SNNPR regional states where certain communities participated in referenda that led to alteration of existing Woreda boundaries. However, these referenda concerned Woreda boundary alterations that also entailed changes to regional boundaries; had this not been the case, the change in boundaries might not have involved referenda. No constitutional principle, it seems, constrains regional state governments from changing local government boundaries as and when they see fit.

4. POLITICAL INSTITUTIONS OF LOCAL GOVERNMENT AND THEIR INSTITUTIONAL SECURITY

The establishment of local government becomes meaningless unless it has appropriate political institutions, which exercise clearly defined functions and powers. Some national constitutions define the structure of the political institutions of local government and the powers they exercise. The South African Constitution, for instance, provides for the establishment of a municipal council as the political organ of a municipality that exercises legislative and executive powers. It even defines the electoral system and procedure through which members of the municipality are elected. The FDRE Constitution is however silent on the political structure of local government. However, as argued above, the Constitution links the establishment of local government with enhancing democratic participation and self-rule for intra-regional ethnic minorities, thereby implying local government will have democratically constituted political institution as opposed to those that are run by regional appointees. It should however be stressed here that the Constitution is not explicit in requiring local political institutions are democratically constituted.

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Getachew Assefa, "The Legal Framework of Local Governments in Ethiopia: Some Issues" in Asnake Kefale and Assefa Fiseha (eds.), *Federalism and Local Government in Ethiopia* (Center for Federal studies, Addis Ababa Univeristy, Addis Ababa, 2015) 183. Footnotes omitted.

The idea of local governance has for long been supported theoretically. In recent years, however, it has obtained more attention both in theory and in practice. The attempt to progressively decentralize power being witnessed in states like the UK and Italy, which seemed opposed to devolution of power in the past, lends credence to the statement that decentralization has indeed become a world phenomenon. The strong tendencies of centralization which defined African states since independence have also shown some promising signs of abating. In this regard, the South African Constitution of 1996 which inaugurated local governments as the third sphere of government (below the provincial level) perhaps takes the credit for coming out more boldly than any other constitution on the African Continent. The Ethiopian Constitution of 1995, with its novel ethnic federal/self-determination arrangement, could be considered as another ground-breaking design which, in principle, combined grassroots self-governance with ethnicity uniquely. The 2010 Constitution of Kenya offers another example of recent constitutional designs where robust local governance system has obtained constitutional salience. Uganda's political reforms beginning from 1994 embracing decentralization offers another example of a continental drift towards decentralization of decision-making powers. (...)

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3. LOCAL GOVERNMENTS IN ETHIOPIA

(...) in many federations, including Argentina, Brazil, India, Nigeria, South Africa and Switzerland, local governments are entrenched in the national constitution. For example, the Argentinian Federal Constitution requires the provinces to provide for municipal autonomy and to regulate its scope and content in relation to institutional, political, administrative, economic and financial affairs, including the requirement that they empower municipalities to have their own charters. The Indian Constitution makes local governments the responsibilities of states but provides for their basic structures. The Nigerian Constitution, having provided for the existence of democratically elected local government councils, requires each state to establish local councils and to provide for their structure, composition, finance, and functions.

The South African Constitution for its part recognizes local governments as the third, local "sphere" of government next to the provincial governments and devotes an entire chapter to defining their overall organizational structure, powers, functions, and their relations with the

national and provincial governments. Municipalities, which must be established throughout the Republic, are categorized into three different groups based on, among others, their spatial jurisdictions. What is impressive about the South African constitutional dispensation relative to local governments is the high level of determination the framers of the Constitution have shown in delineating their powers and responsibilities as well as in clarifying the relationships local governments need to have with national and provincial governments. These, as shall be pointed out below, are very much lacking in the case of the Ethiopian constitutional dispensations.

In other federations, such as Australia, Canada, and Germany, local governments are the competences of the states. In Australia and Canada, for example, local governments fall within the residual powers of the states. In states, like Germany, local governments fall within the state list of powers. Compared to these constitutional practices, the position of local governments in Ethiopia is not entirely clear. Indeed, their constitutional position is a complicated affair. In practice as well, their nature and positions vis-à-vis the state-level institutions show great variation across regions. In view of this, some authors have rightly argued that the Ethiopian Constitution is ambiguous about the distinct and autonomous existence of local governments, and that, owing to this, the structural existence and the powers of local governments could be precarious.

(...) I argue that the Ethiopian Constitution contains two sets of apparently competing principles that send mixed messages regarding the constitutional position and significance of local governments:

3.1 Ethnic Territorial Self-Governments as Local governments

Article 39(3) of the federal Constitution provides that “[e]very Nation, Nationality and People in Ethiopia has the right to a full measure of self-government which includes the right to establish institutions of government in the territory that it inhabits and to equitable representation in state and Federal governments”. If taken literally, a “full measure of self-government” within a federal setting would logically entail a state-level self-government in favour of every nation, nationality and people extant in the country. However, this literalistic interpretation of the right has to be tamed by the fact that the Constitution has established only nine member states, and as such, therefore, has taken the position that, at least for now, all ethno-linguistic groups in the country cannot enjoy a state level self-government. It directly flows from this that the ethno-linguistic groups subsumed within the nine states, which in actual terms are more than 75, could enjoy “self-government” right only at sub-state level or local government level. Again, if we take the stipulation of Article 39(3), noted above, to its logical conclusion within the sub-national context, it arguably would mean that the local government to be established for a nation or nationality or people at sub-state level must confer a “full measure of self-government” on the concerned group by allowing it “to establish institutions of government in the territory that it inhabits”. This, at the very least, must comprise a fully devolved administrative, financial and political autonomy for the locally self-governing group. Read in tandem with other set of rights conferred on every nation, nationality or people “to speak, to write and to develop its own language; to express, to develop and to promote its culture; and to preserve its history,” this right gives the ethnic communities the strongest possible form of local self-government compared to other federations.

To wit, in most other federations, local governments have powers that are less pervasive, mostly dealing with purely local affairs. For example, in the Australian federation, local governments have powers on matters such as parks and gardens, local roads, traffic and parking, waste disposal and competence on some areas of social services. In Nigeria, they are empowered to participate in the economic planning and development of the area under their jurisdiction and to do such other tasks as licensing, some road construction and maintenance functions, registration of births, deaths and marriages. In other systems such as South Africa, Canada, India and Argentina as well, the powers of local governments are generally limited to local service delivery and mobilization of the local populace.

However, the above, apparently very generous constitutional principle on the right to local government of ethnic communities in Ethiopia, could not be fully realized because of two broad reasons.

The first one has to do with the lack of sufficient detail and clear pronouncement of constitutional control (vis-à-vis the states) on the matter in the federal Constitution. It is my contention that the lack of sufficient detail in the federal Constitution on how the right to local self-government under Article 39(3) could be practically implemented, at sub-state level, in relation to each and every non-state owning nation, nationality or people in the country has hampered this right's realization. The problem of insufficient detail is compounded by the lack of clear pronouncement of what, following Professor G. Alan Tarr, I call "constitutional control".

In federations, national constitutions ordain certain rules and principles that states units must observe in their sub-national constitutional arrangements. Having ordained such rules and principles, federal constitutions empower national governments to enforce these constitutional controls. This approach is adopted by the Ethiopian Constitution in some areas. For example, Article 52(2)(a) states that states units shall establish a state administration that best advances self-government, and a democratic order. Thus states need to abide by this constitutional stipulation. If states units fail to abide by such constitutional control stipulations, national institutions with the power to safeguard the enforcement of the national constitution—in our case this power belongs principally to the House of the Federation—will be called into action. When it comes to local governments, a robustly detailed clear constitutional pronouncement of similar nature on the states' duties to establish these entities for the multitudes of ethnic communities subsumed within the nine states does not exist. If such were in place, it could have given a clear constitutional foundation for ethnically organized local governments requiring all states to establish this sphere of government in a uniform fashion. The lack of clear constitutional direction in this regard has, for instance, made it doubtful whether local governments are made the loci of ethnic self-rule in states. This arguably resulted in the states' discretion to pick and choose both to whom to grant local governments, and the extent of the powers they devolve on to them. This ... could be the main reason for the great variation across regions regarding the extent of ethnic self-rule actually realized as opposed to the promise made by the federal Constitution. The second problem has to do with the ambiguity of Articles 50(4) and 88 of the federal Constitution.

3.2 The Ambiguity of Articles 50(4) and 88 of the federal Constitution

Article 50 (4) of the federal Constitution reads: "State government shall be established at State and other administrative levels that they find necessary. Adequate power shall be granted to the lowest units of government to enable the People to participate directly in the administration of such units". The first part of this constitutional stipulation seems to suggest that states not only have the discretion to determine the administrative levels they may create at sub-state levels but also that they have the power to decide the demographic composition of the "administrative levels" they establish. Furthermore, the term "administrative level" seems to suggest that states can create sub-state structures as their pure agents, not necessarily as robustly empowered local governments. Although one may argue that as per the second part of Article 50(4), states are required to grant adequate power to the lowest units of government, it is not clear whether this is in the nature of devolution or de-concentration of power. In any case, however, this stipulation also does not take away the discretionary power given to states as earlier noted. What is more, this constitutional stipulation does not precisely identify the local government to be "granted" "adequate power". All it says is that adequate power shall be granted to the "lowest units of government". The reference to the plural "units" as opposed to "unit" raises further questions about the number and nature of local governments envisaged by this constitutional provision.

The provisions of Article 88 (1) requiring the government to "promote and support the People's self-rule at all levels" does little to solve the ambiguity inherent in Article 50(4) highlighted above. At the very least, it does not impose a clear duty on the government to establish a defined governmental hierarchy, such as a local government. Importantly also, it is not clear whether "the

people's self-rule at all levels" should always take ethnically based self-rule or demographic ones. The reality in the organization of sub-state level structures in the nine states bears out the above-noted conceptual difficulty inherent in the federal Constitution's approaches to sub-state level government structures.

One telling illustration is the Woreda-based decentralization program (WBDP) rolled out since 2001. This centrally driven policy initiative did coincide with the reform of the constitutions of all nine states (also since 2001) by which some states have strengthened the powers of their Woreda administrative units. However, both in the constitutional reforms and in the policy initiatives, woredas are not designated as ethnic self-rule structures. Thus, WBDP may fit into the constitutional scheme established by Article 50(4) but is not necessarily in line with the requirements of Article 39(3). The main reason for this is that in some states, especially the Southern Nations, Nationalities and Peoples' State, a Woreda could embrace many small ethnic communities. Thus, the Woreda, selected as the location of the decentralized power by the WBDP, may not coincide with an ethnic self-government unit. The WBD scheme is rolled out almost uniformly to all kinds of regions. It does not seem to have taken into account situations of certain states, where—as in the Southern Nations, Nationalities and Peoples State (SNNPS)—several minorities that cannot establish Woreda level administrative apparatuses are found. And no arrangement is made to take into account the minority-majority dynamics at Woreda level in such multiethnic states.

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Questions and Discussion

1. Larry Diamond pointed out that one of the dangers of decentralization of power to regional and sub-regional levels could be the emergence with it of local tyranny by local authorities far away from the central government's control. Do you see trends like this at the regional and sub-regional levels in Ethiopia? He also suggests ways of constitutional arrangement or design to get around such problems. What are those? Do you think the Ethiopian Constitution has put those arrangements in place or does it have to be redesigned to be equipped with those tools?
2. In the paper excerpted above, Zemelak argues that the Ethiopian Constitution does not explicitly establish local governments as autonomous units/orders of government. In this connection he says: "the lack of explicit recognition of local government in the Ethiopian Federal Constitution coupled with the political practice in the country puts the existence of local government as sphere or level of government under permanent insecurity". Do you have the same view or a different one? Where might the threat come from? Why do you think that, as Zemelak observes, having declared the most ambitious right to self-government of each ethno-linguistic community, the Constitution fails to entrench local government as an autonomous order of government?
3. Getachew's paper argues among others that art 30(4) and 39(3) of the Ethiopian Constitution may lead to conflicting outcomes in regards to the nature that local governments could take. Do you see the same problem?
4. Suppose that there is an ethno-linguistic community that is subsumed within a liyu Woreda somewhere in the Southern nationalities regional state. This group wants to put forward to the higher authorities to be granted its own self-rule. Should it use art 50(4) or art 39(3) of the Constitution? Why?

C. Power-Sharing Arrangements

In societies that are divided along ethnic and/or religious lines and whose diverse communities have developed political mobilization along those lines, the accommodation of the diversity in formal institutions of the multi-linguistic state is not only necessary but seems the only reliable avenue to peace stability and harmony of the state. Thus, the importance in such societies of careful, inclusive and participatory design of public institutions of governance cannot be overemphasized.

Political theory and political and constitutional practice have shown that pure majoritarian democracy of the Westminster type, for example, does not work well for societies with diversity. Thus, states whose societies embrace diversity have attempted to design different kinds of institutions to accommodate the political, social and cultural demands of the different ethnic, linguistic or religious groups. But owing to different reasons, such as incomplete/faulty design, the institutional arrangements made in response to demands for accommodation have different levels of success. The ethnic federal/self-determination arrangement made in the Ethiopian Constitution is one version of the institutional response given to the demand for accommodation made by ethno-linguistic communities. To be a solution to political ills of a society, the institutional arrangements for the accommodation of diversity need to be all-rounded and comprehensive, dealing with all areas of public life. Power-sharing arrangements through various institutional mechanisms is one important way of creating mutual trust and harmony between ethnic/linguistic cleavages.

Arend Lijphart brought the idea of accommodative or consensus (consociational) democracy to prominence. In the late 1960s, Arend Lijphart proposed ethnic-based consociational democracy as a plausible alternative arrangement for plural societies. For plural societies, he suggested ethnic-based consociationalism as a form of governance defined as a “government by elite cartel designed to turn a democracy with a fragmented political culture into a stable democracy” (Lijphart, 1969). He described a plural society as being characterized by deep religious, ideological, linguistic, regional, cultural, racial and/or ethnic segmental cleavages, having public loyalty fragmented according to representative groups rather than being embedded in a single national authority (Lijphart, 1984). He characterized consociational democracy as possessing four main political tenets: a grand coalition, a mutual veto, proportional representation and segmental autonomy (Lijphart, 1977).

When we see political practice around the world, different forms of consociationalism are being practiced. Austria, Belgium, Switzerland, Holland and India are the stable political societies that use consociational arrangements. Nigeria could also be mentioned as a well-functioning consociational system with its policy of “federal character”. Others like Lebanon and Iraq also have fashioned the main governance system along this line. Lebanon could be termed as the oldest system that has practiced sectarian consociationalism since the 1940s. But scholars are pointing out that demographic, spatial, and regional power shifts have rendered corporate power-sharing arrangement being practiced since 1940s (and advocated for by Lijphart) leading to conflict and national fragmentation (Salamey, 2009). This therefore underscores that a formulaic adherence to Lijphartic consociational theory may fail to resolve governance issues that change with changing circumstances in societies.

How do you see the consociational aspect of political governance in Ethiopia? At the national (federal) level? At the regional level? Do you think there is an element of consociationalism in the Constitution? Or is it a matter of unwritten accord or custom at the ruling party level?

In what follows, we will study some writings of Lijphart on consociational democracy or power-sharing arrangements in diverse societies (or “deeply divided societies”).

Arend Lijphart, *Thinking about Democracy* (Routledge, 2008) 75. Notes omitted.

[The following excerpt was taken from chapter 5— “Constitutional design for divided societies (2004)”, pp. 75-88—re-published in the above compiled publication]

Over the past half-century, democratic constitutional design has undergone a sea change. After the Second World War, newly independent countries tended simply to copy the basic constitutional rules of their former colonial masters, without seriously considering alternatives. Today,

constitution writers choose more deliberately among a wide array of constitutional models, with various advantages and disadvantages. While at first glance this appears to be a beneficial development, it has actually been a mixed blessing: Since they now have to deal with more alternatives than they can readily handle, constitution writers risk making ill-advised decisions. In my opinion, scholarly experts can be more helpful to constitution writers by formulating specific recommendations and guidelines than by overwhelming those who must make the decision with a barrage of possibilities and options.

(...) In deeply divided societies the interests and demands of communal groups can be accommodated only by the establishment of power sharing.... Most experts on divided societies and constitutional engineering broadly agree that deep societal divisions pose a grave problem for democracy, and that it is therefore generally more difficult to establish and maintain democratic government in divided than in homogeneous countries. The experts also agree that the problem of ethnic and other deep divisions is greater in countries that are not yet democratic or fully democratic than in well-established democracies, and that such divisions present a major obstacle to democratization in the twenty-first century. On these two points, scholarly agreement appears to be universal.

A third point of broad, if not absolute, agreement is that the successful establishment of democratic government in divided societies requires two key elements: power sharing and group autonomy. Power sharing denotes the participation of representatives of all significant communal groups in political decision-making, especially at the executive level; group autonomy means that these groups have authority to run their own internal affairs, especially in the areas of education and culture. These two characteristics are the primary attributes of the kind of democratic system that is often referred to as power sharing democracy or, to use a technical political-science term, “consociational” democracy. A host of scholars have analyzed the central role of these two features and are sympathetic to their adoption by divided societies. But agreement extends far beyond the consociational school. A good example is Ted Robert Gurr, who in *Minorities at Risk: A Global View of Ethno political Conflicts* clearly does not take his inspiration from consociational theory (in fact, he barely mentions it), but based on massive empirical analysis reaches the conclusion that the interests and demands of communal groups can usually be accommodated “by some combination of the policies and institutions of autonomy and power sharing.”

The consensus on the importance of power sharing has recently been exemplified by commentators’ reactions to the creation of the Governing Council in Iraq: the Council has been criticized on a variety of grounds, but no one has questioned its broadly representative composition. The strength of the power sharing model has also been confirmed by its frequent practical applications. Long before scholars began analyzing the phenomenon of power sharing democracy in the 1960s, politicians and constitution writers had designed power sharing solutions for the problems of their divided societies (for example, in Austria, Canada, Colombia, Cyprus, India, Lebanon, Malaysia, the Netherlands, and Switzerland). Political scientists merely discovered what political practitioners had repeatedly – and independently of both academic experts and one another – invented years earlier.

* * *

[Contrary to views of some critics of power-sharing arrangements, such as Donald Horowitz that it] is a crude “one size fits all” model, the power sharing systems adopted prior to 1960 (cited earlier), as well as more recent cases (such as Belgium, Bosnia, Czecho-Slovakia, Northern Ireland, and South Africa), show enormous variation. For example, broad representation in the executive has been achieved by a constitutional requirement that it be composed of equal numbers of the two major ethnolinguistic groups (Belgium); by granting all parties with a minimum of 5 percent of the legislative seats the right to be represented in the cabinet (South Africa, 1994–99); by the equal representation of the two main parties in the cabinet and an alternation between the two parties in

the presidency (Colombia, 1958–64); and by permanently earmarking the presidency for one group and the prime ministership for another (Lebanon).

All of these options are not equally advantageous, however, and do not work equally well in practice, because the relative success of a power sharing system is contingent upon the specific mechanisms devised to yield the broad representation that constitutes its core. In fact, the biggest failures of power sharing systems, as in Cyprus in 1963 and Lebanon in 1975, must be attributed not to the lack of sufficient power sharing but to constitution writers' choice of unsatisfactory rules and institutions.

These failures highlight the way in which scholarly experts can help constitution writers by developing recommendations regarding power sharing rules and institutions. In this sense, Horowitz's "one size fits all" charge should serve as an inspiration to try to specify the optimal form of power sharing. While the power sharing model should be adapted according to the particular features of the country at hand, it is not true that everything depends on these individual characteristics. In the following sections I outline nine areas of constitutional choice and provide my recommendations in each area. These constitute a "one size" power sharing model that offers the best fit for most divided societies regardless of their individual circumstances and characteristics.

The legislative electoral system

The most important choice facing constitution writers is that of a legislative electoral system, for which the three broad categories are proportional representation (PR), majoritarian systems, and intermediate systems. For divided societies, ensuring the election of a broadly representative legislature should be the crucial consideration, and PR is undoubtedly the optimal way of doing so. Within the category of majoritarian systems, a good case could be made for Horowitz's alternative-vote proposal, which I agree is superior to both the plurality method and the two-ballot majority runoff. Nevertheless, there is a scholarly consensus against majoritarian systems in divided societies. As Larry Diamond explains:

If any generalization about institutional design is sustainable ... it is that majoritarian systems are ill-advised for countries with deep ethnic, regional, religious, or other emotional and polarizing divisions. Where cleavage groups are sharply defined and group identities (and intergroup insecurities and suspicions) deeply felt, the overriding imperative is to avoid broad and indefinite exclusion from power of any significant group.

The intermediate category can be subdivided further into semi-proportional systems, "mixed" systems, and finally, majoritarian systems that offer guaranteed representation to particular minorities. Semi-proportional systems – like the cumulative and limited vote (which have been primarily used at the state and local levels in the United States) and the single nontransferable vote (used in Japan until 1993) – may be able to yield minority representation, but never as accurately and consistently as PR. Unlike these rare semi-proportional systems, mixed systems have become quite popular since the early 1990s. In some of the mixed systems (such as Germany's and New Zealand's) the PR component overrides the plurality component, and these should therefore be regarded not as mixed but as PR systems. To the extent that the PR component is not, or is only partly, compensatory (as in Japan, Hungary, and Italy), the results will necessarily be less than fully proportional – and minority representation less accurate and secure. Plurality combined with guaranteed representation for specified minorities (as in India and Lebanon) necessarily entails the potentially invidious determination of which groups are entitled to guaranteed representation and which are not. In contrast, the beauty of PR is that in addition to producing proportionality and minority representation, it treats all groups – ethnic, racial, religious, or even non-communal groups – in a completely equal and evenhanded fashion. Why deviate from full PR at all?

Guidelines within PR

Once the choice is narrowed down to PR, constitution writers need to settle on a particular type within that system. PR is still a very broad category, which spans a vast spectrum of complex possibilities and alternatives. How can the options be narrowed further? I recommend that highest priority be given to the selection of a PR system that is simple to understand and operate – a criterion that is especially important for new democracies. From that simplicity criterion, several desiderata can be derived: a high, but not necessarily perfect, degree of proportionality; multi-member districts that are not too large, in order to avoid creating too much distance between voters and their representatives; list PR, in which parties present lists of candidates to the voters, instead of the rarely used single transferable vote, in which voters have to rank order individual candidates; and closed or almost closed lists, in which voters mainly choose parties instead of individual candidates within the list. List PR with closed lists can encourage the formation and maintenance of strong and cohesive political parties. One attractive model along these lines is the list-PR system used in Denmark, which has seventeen districts that elect an average of eight representatives each from partly open lists. The districts are small enough for minority parties with more than 8 percent of the vote to stand a good chance of being elected. In addition to the 135 representatives elected in these districts, there are forty national compensatory seats that are apportioned to parties (with a minimum of 2 percent of the national vote) in a way that aims to maximize overall national proportionality. The Danish model is advantageous for divided societies, because the compensatory seats plus the low percent threshold give small minorities that are not geographically concentrated a reasonable chance to be represented in the national legislature. While I favor the idea of maximizing proportionality, however, this system does to some extent detract from the goal of keeping the electoral system as simple and transparent as possible. Moreover, national compensatory seats obviously make little sense in those divided societies where nationwide parties have not yet developed.

Parliamentary or presidential government

The next important decision facing constitution writers is whether to set up a parliamentary, presidential, or semi-presidential form of government. In countries with deep ethnic and other cleavages, the choice should be based on the different systems' relative potential for power sharing in the executive. As the cabinet in a parliamentary system is a collegial decision-making body – as opposed to the presidential one-person executive with a purely advisory cabinet – it offers the optimal setting for forming a broad power-sharing executive. A second advantage of parliamentary systems is that there is no need for presidential elections, which are necessarily majoritarian in nature. As Juan Linz states in his well-known critique of presidential government, “perhaps the most important implication of presidentialism is that it introduces a strong element of zero-sum game into democratic politics with rules that tend toward a ‘winner-take-all’ outcome.” Presidential election campaigns also encourage the politics of personality and overshadow the politics of competing parties and party programs. In representative democracy, parties provide the vital link between voters and the government, and in divided societies they are crucial in voicing the interests of communal groups. Seymour Martin Lipset has recently emphasized this point again by calling political parties “indispensable” in democracies and by recalling E. E. Schattschneider’s famous pronouncement that “modern democracy is unthinkable save in terms of parties.”

Two further problems of presidentialism emphasized by Linz are frequent executive-legislative stalemates and the rigidity of presidential terms of office. Stalemates are likely to occur because president and legislature can both claim the democratic legitimacy of being popularly elected, but the president and the majority of the legislature may belong to different parties or may have divergent preferences even if they belong to the same party. The rigidity inherent in presidentialism is that presidents are elected for fixed periods that often cannot be extended because of term limits, and that cannot easily be shortened even if the president proves to be incompetent, becomes seriously ill, or is beset by scandals of various kinds. Parliamentary systems, with their provisions for votes of confidence, snap elections, and so on, do not suffer from this problem.

Semi-presidential systems represent only a slight improvement over pure presidentialism. Although there can be considerable power sharing among president, prime minister, and cabinet, the zero-sum nature of presidential elections remains. Semi-presidential systems actually make it possible for the president to be even more powerful than in most pure presidential systems. In France, the best known example of semi-presidentialism, the president usually exercises predominant power; the 1962–74 and 1981–86 periods have even been called “hyperpresidential” phases. The stalemate problem is partly solved in semi-presidential systems by making it possible for the system to shift from a mainly presidential to a mainly parliamentary mode if the president loses the support of his party or governing coalition in the legislature. In the Latin American presidential democracies, constitutional reformers have often advocated semi-presidential instead of parliamentary government, but only for reasons of convenience: A change to parliamentarism seems too big a step in countries with strong presidentialist traditions. While such traditional and sentimental constraints may have to be taken into account in constitutional negotiations, parliamentary government should be the general guideline for constitution writers in divided societies.

There is a strong scholarly consensus in favor of parliamentary government. In the extensive literature on this subject, the relatively few critics have questioned only parts of the pro-parliamentary consensus. Pointing to the case of US presidentialism, for instance, they have noted that the stalemate problem has not been as serious as Linz and others have alleged – without, however, challenging the validity of the other charges against presidential government.

Power sharing in the executive

The collegial cabinets in parliamentary systems facilitate the formation of power sharing executives, but they do not by themselves guarantee that power sharing will be instituted. Belgium and South Africa exemplify the two principal methods of doing so. In Belgium, the constitution stipulates that the cabinet must comprise equal numbers of Dutch-speakers and French-speakers. The disadvantage of this approach is that it requires specifying the groups entitled to a share in power, and hence the same discriminatory choices inherent in electoral systems with guaranteed representation for particular minorities. In South Africa there was so much disagreement and controversy about racial and ethnic classifications that these could not be used as a basis for arranging executive power sharing in the 1994 interim constitution. Instead, power sharing was mandated in terms of political parties: Any party, ethnic or not, with a minimum of 5 percent of the seats in parliament was granted the right to participate in the cabinet on a proportional basis. For similar situations in other countries, the South African solution provides an attractive model. But when there are no fundamental disagreements about specifying the ethnic groups entitled to a share of cabinet power, the Belgian model has two important advantages. First, it allows for power sharing without mandating a grand coalition of all significant parties and therefore without eliminating significant partisan opposition in parliament. Second, it allows for slight deviation from strictly proportional power sharing by giving some overrepresentation to the smaller groups, which may be desirable in countries where an ethnic majority faces one or more ethnic minority groups.

Cabinet stability

Constitution writers may worry about one potential problem of parliamentary systems: The fact that cabinets depend on majority support in parliament and can be dismissed by parliamentary votes of no confidence may lead to cabinet instability – and, as a result, regime instability. The weight of this problem should not be overestimated; the vast majority of stable democracies have parliamentary rather than presidential or semi-presidential forms of government. Moreover, the position of cabinets vis-à-vis legislatures can be strengthened by constitutional provisions designed to this effect. One such provision is the constructive vote of no confidence, adopted in the 1949 constitution of West Germany, which stipulates that the prime minister (chancellor) can be dismissed by parliament only if a new prime minister is elected simultaneously. This eliminates the risk of a cabinet being voted out of office by a “negative” legislative majority that is unable to form an alternative cabinet. Spain and Papua New Guinea have adopted similar requirements for a

constructive vote of no confidence. The disadvantage of this provision is that it may create an executive that cannot be dismissed by parliament but does not have a parliamentary majority to pass its legislative program – the same kind of stalemate that plagues presidential systems. A suggested solution to this potential problem was included in the 1958 constitution of the French Fifth Republic in the form of a provision that the cabinet has the right to make its legislative proposals matters of confidence, and these proposals are adopted automatically unless an absolute majority of the legislature votes to dismiss the cabinet. No constitution has yet tried to combine the German and French rules, but such a combination could undoubtedly give strong protection to cabinets and their legislative effectiveness – without depriving the parliamentary majority of its fundamental right to dismiss the cabinet and replace it with a new one in which parliament has greater confidence.

* * *

Federalism and decentralization

For divided societies with geographically concentrated communal groups, a federal system is undoubtedly an excellent way to provide autonomy for these groups. My specific recommendation regards the second (federal) legislative chamber that is usually provided for in federal systems. This is often a politically powerful chamber in which less populous units of the federation are overrepresented (consider, for example, the United States Senate, which gives two seats to tiny Wyoming as well as gigantic California). For parliamentary systems, two legislative chambers with equal, or substantially equal, powers and different compositions is not a workable arrangement: It makes too difficult the forming of cabinets that have the confidence of both chambers, as the 1975 Australian constitutional crisis showed: The opposition-controlled Senate refused to pass the budget in an attempt to force the cabinet's resignation, although the cabinet continued to have the solid backing of the House of Representatives. Moreover, a high degree of smaller-unit overrepresentation in the federal chamber violates the principle of "one person, one vote." In this respect, the German and Indian federal models are more attractive than the American, Swiss, and Australian ones.

Generally, it is advisable that the federation be relatively decentralized and that its component units (states or provinces) be relatively small – both to increase the prospects that each unit will be relatively homogeneous and to avoid dominance by large states on the federal level. Beyond this, a great many decisions need to be made regarding details that will vary from country to country (such as exactly where the state boundaries should be drawn). Experts have no clear advice to offer on how much decentralization is desirable within the federation, and there is no consensus among them as to whether the American, Canadian, Indian, Australian, German, Swiss, or Austrian model is most worthy of being emulated.

Nonterritorial autonomy

In divided societies where the communal groups are not geographically concentrated, autonomy can also be arranged on a nonterritorial basis. Where there are significant religious divisions, for example, the different religious groups are often intent on maintaining control of their own schools. A solution that has worked well in India, Belgium, and the Netherlands is to provide educational autonomy by giving equal state financial support to all schools, public and private, as long as basic educational standards are met. While this goes against the principle of separating church and state, it allows for the state to be completely neutral in matters of education.

Power sharing beyond the cabinet and parliament

In divided societies, broad representation of all communal groups is essential not only in cabinets and parliaments, but also in the civil service, judiciary, police, and military. This aim can be achieved by instituting ethnic or religious quotas, but these do not necessarily have to be rigid. For

example, instead of mandating that a particular group be given exactly 20 percent representation, a more flexible rule could specify a target of 15 to 25 percent. I have found, however, that such quotas are often unnecessary; it is sufficient to have an explicit constitutional provision in favor of the general objective of broad representation and to rely on the power sharing cabinet and the proportionally constituted parliament for the practical implementation of this goal.

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Questions and Discussion

1. Lijphart strongly argues that the power-sharing arrangements can be designed properly and variously to apply to the socio-demographic and political realities in particular societies and that it does not prescribe a “one-size-fits-all” solution. What does he mean by this? What are the practical examples that he provides to corroborate his arguments?
2. Lijphart acknowledges the failure of power-sharing arrangements in Cyprus and Lebanon. But he says that such failures occurred not because of to the lack of the power sharing scheme but to constitution writers’ choice of unsatisfactory rules and institutions. Do you agree?
3. There is a criticism against consociational arrangement that it perpetuates deep cleavages among the diverse societies along the ethnic or sectarian lines rather than creating conducive mechanisms for integration of the society. Do you see this problem? Is there any mechanism of averting this danger of consociationalism? Viewing this problem from the point of view of Ethiopian politics, in order to neutralize the danger of perpetuation of deep cleavages resulting from consociationalism, what institutional arrangements can be devised in addition? Could nurturing a nation-wide party or parties with membership cross-cutting cleavages be one way of fighting the perpetuation of cleavages in Ethiopia?
4. Lijphart says that “for divided societies, ensuring the election of a broadly representative legislature should be the crucial consideration, and PR is undoubtedly the optimal way of doing so”. Do you agree? Do you recommend PR electoral system for Ethiopia? What are its advantages and disadvantages?
5. Re-read Lijphart’s description of South African and Belgian approach to power-sharing in cabinets. Which one do you think fits well for political stability and aspiration in Ethiopia?

CHAPTER NINE

SELF-DETERMINATION AND MINORITY RIGHTS

The notion of self-determination in a democratic federal state should be seen in tandem with the right of ethno-linguistic or religious communities of the polity to have their rights—of history, language, culture, self-government and representation in the national political platform and image of the political society of which they are a part—respected. The implementation of the right to self-determination can take different forms, depending, among others, on the number and composition as well as territorialization of the ethno-linguistic communities. At the national level, a state where all the ethno-linguistic groups it comprises are minorities (as per Capotorti's definition, 1979), ensures the political and governance rights at the national level by realizing their equitable representation in government institutions as genuinely as possible.

When the ethnolinguistic communities are territorialized, accommodative self-rule of all the minorities inhabiting the territory should be put in effect. Legal framework that requires that the dominant minorities respect the rights of smaller minorities living amidst them should be arranged and enforced. Thus, the aspirations of self-determination rights cannot be seen, nor should it be protected in isolation from minority rights protection. There must be an enforceable legal obligation on the self-determining dominant minorities to respect the rights of minorities that live within the territory under their remit. This includes, whenever feasible, the right to take part in public institutions through various mechanisms of power-sharing that we considered in the previous chapter. The important question in the case of Ethiopia, therefore, is whether these twin public policy issues have been institutionalized fairly satisfactorily by the constitutional-legal dispensation or not. This question together with the basic tenets of these two closely inter-linked notions will be discussed in this chapter.

A. Self-Determination

Self-determination is one of the most intriguing and perplexing concepts in both political theory and international law. The origin of the concept is traced back to the famous American revolution of the 1770s against the British colonial power and the French revolution of the 1780s against an autocratic monarchy. Its meaning and place under international law however remain controversial.

Self-determination has attracted the attention of the United Nations primarily as a concern to end colonial rule over people and territories around the world. The right to self-determination started to take some more meaningful shape with the enactment of the UN Charter (Arts. 1.2 & 55) that made a general reference to the "principle of equal rights and self-determination of peoples." Later declarations of the UN and other international bodies more clearly addressed the self-determination of peoples in different contexts; notable ones include the 1960 UNGA Declaration (1514 (XV)) on the Granting of Independence to Colonial countries and peoples, the 1962 GA Declaration (1803 (XVII)) on Permanent Sovereignty over Natural Resources and the 1970 Declaration (2625 (XXV)) on Principles of International Law Concerning Friendly Relations and Cooperation among States in Accordance with the Charter of the United Nations.

One can say that the approach of the international community toward the legalization of self-determination gained momentum and new impetus with the adoption in 1966 and ultimate entry into force in 1976 of the two international covenants on human rights: The International Covenant on Civil and Political Rights (ICCPR) and the International Covenant on Economic, Social and Cultural Rights (ICESCR). Common Article 1 of both Covenants is the following:

1. All peoples have the right of self-determination. By virtue of that right they freely determine their political status and freely pursue their economic, social and cultural development.

2. All peoples may, for their own ends, freely dispose of their natural wealth and resources without prejudice to any obligations arising out of international economic co-operation, based upon the principle of mutual benefit, and international law. In no case may a people be deprived of its own means of subsistence.
3. The States Parties to the present Covenant, including those having responsibility for the administration of Non-Self-Governing and Trust Territories, shall promote the realization of the right of self-determination, and shall respect that right, in conformity with the provisions of the Charter of the United Nations.

The term “peoples” in these provisions has however remained controversial. “People(s)” can mean both people of a nation-state or a would be nation-state through decolonization (like Nigerian people, Ethiopian people or Canadian people, etc.), it can equally mean a given group within a nation-state (like Yoruba/Ogoni of Nigeria; Oromo/Amhara of Ethiopia; the Québécoise of Canada, etc.). So whether the term “peoples” in the common Article 1 in quote above was meant to refer to either one or both of the above senses remains unclear.

The Ethiopian Constitution seems to dispel with the above problem by saying that regardless of whether an ethno-national group in Ethiopia qualifies to be called a “people” as per the common Art. 1 of the above covenants or not, it is entitled to the right to self-determination, including the most extreme right of secession (Art. 39). Furthermore, the Constitution embraces several strands of Self-determination rights of NNPs (Nations, Nationalities and Peoples). These rights range from the right to speak, to write and to develop one’s own language; to express, to develop and to promote one’s own culture; and to preserve one’s history, to the right to statehood. The right to self-government and equitable representation at all levels of government have also been enunciated in favour of each and all NNPs. Constitutions of states members of the Ethiopian federation also embrace similar and in some cases more detailed rights of self-determination for NNPs living in their boundaries. Each of the constitutions of states members of the federation has also enshrined the right to secession in respect of their own people(s).

As briefly alluded to above, although the right to self-determination can be traced to the Western democratic discourses, it has also a version espoused in the Marxist-Leninist-Stalinist political discourse. The latter version is in fact the one that closely associates self-determination with the question of nationality. Therefore, it is not wrong to say that the marriage between the concept of self-determination and ethnonational groups, including in Ethiopia has its sources in the Marxist-Leninist-Stalinist-Maoist teachings. Because of this, a good understanding of the ethnonational politics in Ethiopia can be obtained if one has a broader understanding of the socialist discourse on the concept of self-determination and on the very conception of nations and nationalities. The following readings including the insightful one by Boris Meissner are meant to help you get to the bottom of these concepts.

Although the right to self-determination including secession was espoused by the socialist discourses in the ex-Soviet and other communist countries, there has now emerged an interest about it by political and legal theorists as an aspect of democracy. Questions are being asked now as to what would be the problem if we treat a secession question by a given ethnonational group as a part of a democratic quest by that group and respond to it as such? Ethiopia can be considered as the best example now because it apparently makes the decision to secede as simple as voting on legislation in the regional parliaments. Some of the readings excerpted below will look at the pros and cons of such a favorable attitude towards the right to secession. Boris Meissner “The Soviet Concept of Nation and the Right of National Self-Determination,” in *International Journal*, Vol. 32 (1976-77). Footnotes omitted.

LENIN'S CONCEPTION OF SELF-DETERMINATION AND STALIN'S DEFINITION OF NATION

. . . The right of national self-determination was incorporated both in the 1903 program of the Russian Social Democratic Workers Party, which was jointly drafted by G.V. Plekhanov and V.I. Lenin, and in the 1905 programmatic statement of the Socialist Revolutionary Party. Unlike the vast majority of Russian social democrats, the Socialist Revolutionaries favored territorial autonomy for all nationalities quite apart from a federal arrangement for the whole country.

. . . Stalin, who would advance at Lenin's side to become the leading Soviet policy-maker on the nationalities question . . . in an article prepared in Vienna entitled "The National Question and Social Democracy," which was later circulated under the title, "Marxism and National Question" . . . took issue chiefly with the ideas of Karl Renner and Otto Bauer, the two leading policy-makers among the Austrian Social Democrats on the nationalities issue. Against their representation of a people as a union of individuals, Stalin set out his definition which proceeded from the nation as a territorial union. He defined the nation as "an historically evolved, stable community of people, which is united by a common language, territory, economic life, and a psychic individuality manifested in a common culture."

Stalin's definition lacked the subjected factor of personal avowal (which permitted an individual to claim membership in a particular national group). His concept of the nation also lacked two objective characteristics: the community of descent and the sense of identity of a community of people which was not necessarily bound up with living in a certain territory. It thus lacked precisely those characteristics which will allow a people to develop, over several generations, an individualism whose value transcends time and space.

Only when all four characteristics of Stalin's definition were present did the nation assume reality from him. He expressly rejected the inclusion of a fifth characteristic, statehood, in his definition. The influence of the objective cultural concept of the nation in eastern and central Europe on Stalin's definition is thus clear in its distinction between the citizens of a state and the members of a cultural community. His definition did not equate a nation with the citizens of a state, in contrast to the subjective political concept of the nation which grew up in Western Europe and America and in which state and nation are identical or are very closely bound up with each other. Still, Stalin did limit his concept of the nation with his emphasis on the principle of territoriality, which therefore rejected the nationhood of a people who were dispersed in various areas. To the extent that he saw the nation as a self-contained territorial unit and dismissed the notion of nationality as a concept that was linked to a union of individuals, he encouraged the recognition of a state concept of nation.

The concept of self-determination which Lenin implemented was derived from Stalin's concept of nation. With the seizure of power in the October Revolution by the Bolshevik party that Lenin had created, the demand for a revolutionary solution to the national question triumphed over the efforts at constitutional reform as did the principle of territoriality over the concept of a people as a union of individuals. The revolutionary solution led very soon to a disregard for the nationality principle in favor of the idea of class struggle, while the principle of territoriality was allowed to lead to a Russia which was a federation of national territorial units with limited rights of self-government within the framework of the Bolshevik one-party state, and not a genuine league of free peoples . . .

* * *

THE DISCUSSION OF THE CONCEPT OF NATIONS AFTER THE CHANGE OF LEADERSHIP

After the announcement in the new party program of the “new phase” in the Soviet nationalities policy and of the efforts to strengthen the influence of the Soviet Union in the Third World, a lively discussion ensued over various aspects of the theory of nationhood and the definition of a nation. The discussion took place mainly in the pages of the historical journal, *Voprpsy istorii*, with twenty-five major articles and two reports from the editors on other contributions appearing between January 1966 and November 1968.

From the very beginning the endeavor to treat the concept of nation in the most comprehensive fashion was bound up with a review of Stalin’s definition which had remained undisputed since its enunciation in 1913. The discussion was therefore concentrated on reaching a “new modern refinement of the concept.”

The public discussion of the matter was begun with a statement from the editors in the January 1966 issue of *Voprosy istorii* that the “overwhelming change in the sphere of national relations and the evolution of individual nations both in the Soviet Union and abroad” necessitated an authoritative “further development of the theory of the nation.” The editors had accordingly decided to pose the following themes for discussion: the manner of development of ethnic communities; the definition of the concepts of “nation” and “people”; types of nations; the dialectic in the development of national relations in the context of the building of socialism and the transition to communism; the national question among the people of Africa; the nationalism of the oppressed and oppressing nations. From time to time other questions of scholarly interest would be discussed, but it was not expected that they would yield a unanimity of opinion.

In their introductory article, Rogachev and Sverdlin endeavoured both to make Stalin’s definition more precise and to round it out by a reordering of its accepted characteristics and by the addition of other characteristics as well. According to their presentation the concept of nation was based on the following seven characteristics: (1) economic community; (2) a stable territorial community; (3) a common language; (4) a “self-consciousness of ethnic identity”; (5) a common psychological makeup (*dukhovnyi oblik*); (6) a national character; and (7) a national tradition.

For Rogachev and Sverdlin the most important characteristic distinguishing a nation from an historical people is economic community, and they therefore place it at the top of their list. In their view, the existence of industry and the building of a national working class and an intelligentsia bring about the qualitative change which transforms a people into a nation. Many participants in the discussion held, however, that the sequence laid down by Stalin, in which language occupies first place, was a more appropriate one. Nor did they view the building of a working class as a pre-condition for the existence of a nation.

Rogachev and Sverdlin gave second place to a stable territorial community. At the symposium they put forward the view that such a territorial community could only be spoken of in terms of state boundaries. Thus they elevated the state to the status of a characteristic of nationhood. This interpretation drew sharp criticism. They therefore qualified their assertion so that a territorial community meant not only “that people live together in a geographical sense, but also that they are not divided from each other by state frontiers.” Statehood would be a characteristic of nationhood only among the “socialist nations.”

The relationship of nation and state was particularly sharply debated in the discussion. The majority of the Great Russian participants supported the Stalinist interpretation that statehood was not a characteristic of nationhood. The non-Russian scholars on the other hand attached special importance to the statement that statehood was to be considered a characteristic of every nation. They resisted, however, the thesis advanced by the jurist, P.G. Semenov, that the national statehood

of the Soviet Union would wither away in the course of the drawing together of nations under socialism.

A common language, which Stalin had ranked first, was only listed third by Rogachev and Sverdlin. They argued that in a nation the national language would as a rule predominate over dialects and would possess the character of a literary language; this would not be true of the language of a people. The Rogachev-Sverdlin interpretation was approved in discussion, but the importance of language in the definition of a nation was given substantially more weight by others.

In the fourth place Rogachev and Sverdlin had inserted a new characteristic, "self-consciousness of ethnic identity," which they differentiated however from national consciousness ostensibly because the former would not exist in class-riven "bourgeois nations." In a nation this characteristic must be closely bound up with the first three because it is also the source of a people's strength. This characteristic was almost universally accepted in discussion.

The fifth characteristic-psychological makeup-was also new in the sense that it grew out of the class character of the dominant philosophy of life and therefore could only exist in its true form in "socialist states." Rogachev and Sverdlin therefore dispensed with the incorporation of this characteristic in their proposed definition of the nation.

It is noteworthy that the characteristic of a national character was put in sixth place by Rogachev and Sverdlin contrasting with the fourth place Stalin had given to psychic individuality (which he had equated with national character). They did of course define this characteristic cautiously, speaking only in terms of "certain national peculiarities of character" which would be apparent only in cultural life. In the course of the discussion national character was generally equated with psyche, although a few of the participants refused to include the Stalinist characteristic of psychic character in a general definition of nation. S.T. Kaltakhchian, for example, advanced the view that the human psyche is always the product of social circumstances and is thus dependent upon class. In consequence it could only be the common characteristic of a socialist nation.

The seventh characteristic in the Rogachev-Sverdlin list- national tradition- was also looked upon as new. Such traditions, which were common to a whole people regardless of the class conflicts, were expressed in their way of life, their culture, and their remembrance of the struggle for national liberation. There was no unanimity of view over the components of this characteristic, the more so because they could also be the product of class identity.

In the end, the following definition of the concept of nation was proposed by Rogachev and Sverdlin: "A nation is an historically evolved community of individuals, characterized by a stable community of economic life (through the existence of a working class), of territory, of language (especially a literary language), [and a self-consciousness of ethnic identity], as well as by some specific features of psychology and traditions of way of life, culture, and struggle for liberation." They stressed as well that for the first time the sum of these characteristics of a nation defined a specific, relatively separate entity.

No unanimity on the definition of nationhood emerged from this critical discussion of the various characteristics of the nation. Indeed, the validity of a general definition was questioned, in particular by the ethnographer Yu. I. Semenov, out of concern for the developing countries. He argued that a nation is first of all a political structure, which would only exist in the presence of a unified "social organism," whose final form would be determined by the state. As we have seen, in 1929 Stalin had distinguished between "bourgeois" and "socialist" nations. Rogachev and Sverdlin went further and distinguished three types of nation: (1) the socially unhomogeneous nations under conditions of capitalism; (2) the socially homogeneous nations which were evolving towards socialism; and (3) the nations which were in transition following the collapse of the colonial system. This third group of nations was set apart not only by a lower level of development but also by the fact that they were still in a position to choose whether to follow the capitalist or the socialist

way. As soon as this decision was made, a nation moved out of the transitional group and into one or other of the basic groups.

The Soviet intervention in Czechoslovakia on 21/22 August 1968 led to a break in the discussion of the concept of nation.

The return to the orthodox line came in a concluding editorial article in the August 1970 issue of *Voprosy istorii*, in which the results of the discussion were synthesized. In the name of an alleged “majority” of the participants in the discussion, it was asserted “that the well-known definition of nation, which was formulated by J.V. Stalin, had brought together all that could be said by Marx, Engels, and Lenin on the question of the nature and chief characteristics of the nation.” In conclusion Stalin’s definition was restarted word for word and its importance emphasized by these words: “It is well known that the work of J. V. Stalin embodied in this definition was commented upon positively by V. I. Lenin.” This definition, as was noted in the discussion, is a scientific, Marxist definition which forms a part of the Marxist-Leninist theory of nationhood. The editorial affirmed the designations of “bourgeois” and “socialist” nations; the broadening of the types of nations to include the transitional nation found among the developing countries was also favorably commented upon.

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THE POSITION OF THE DISSIDENTS ON THE NATIONALITIES QUESTION

A number of events in recent years have made it clear that the opposition of the non-Russian groups to the centralizing efforts of Moscow with the concomitant policy of russification has been growing. It has become apparent that within the Soviet Union there is a drive for emancipation not only on the part of individual classes and groups but also among whole peoples who, to varying degrees, perceive the hegemonial position of the Great Russian within the framework of a one-party system as a form of foreign domination. They have therefore turned against the inherent integrating tendency of this hegemony and are struggling for the creation of a genuine federalism based on a voluntary union of peoples with equal rights for all members. It is noteworthy that this view should be shared by some Great Russians who see themselves as part of a “democratic movement” in opposition to the present regime. In particular, the unjust treatment of the Crimean Tatars and the Meskhi who were expelled from Georgia have aroused much sympathy among the “democratic opposition.”

The fate of the Tatars was first mentioned specifically in a memorandum by Andrei Sakharov in June 1968. Then, in a letter which Sakharov and two colleagues sent to the leaders in the Kremlin on 19 March 1970, they demanded that all the rights of nations which had been forcibly resettled under Stalin be restored, that national autonomy and the right to return to their ancestral homeland be granted to all resettled peoples. These demands were reiterated in Sakharov’s memorandum to Brezhnev of 5 March 1971. Then, in an essay published in October 1975 entitled “My Country and the World,” Sakharov again expressed his opposition to the oppression of the non-Russian nationalities. He drew attention to the fact that many political prisoners were so-called “nationalities” from Ukraine, the Baltic republics, and Armenia. These individuals had originally been brought to trial principally because of their concern for the preservation of their national culture in the face of the very real danger of russification, and had been given particularly heavy sentences. As well as the Crimean Tatars, the fate of the Volga Germans and the Jews lie close to Sakharov’s heart.

The significance of the “national question” has been stressed by many other dissidents, among them the imprisoned Vladimir Bukovsky. In an open letter to Premier Kosygin, he criticized the intensification of the policy of russification, providing many illustrations of this development, some of which were drawn from the prisons and labor camps. He wrote: “I am a Russian, but I grieve that

in this country high officials openly preach chauvinism and make russification into the highest principles of state policy. I regret that the Russia of today is an even worse prison of peoples than it was sixty years ago. I am a Russian national but I declare that national discrimination and enforced russification exist in the Soviet Union.”

For the Soviet leadership the danger of the dissidents lies not least in the fact that they stand for a realization of the right of self-determination for peoples in the sense of the original Leninist conception and hence they evoke a strong response among non-Russian people, especially those in the European part of the Soviet Union. And the latter are in every case supporters of a decentralization of the prevailing totalitarian system which together with the introduction of constitutional principles could lead to a reinvigoration of Soviet federalism and thus to the strengthening of the autonomy of states within the framework of the Soviet federal state.

THE RELATION OF THE SOVIET CONCEPTS OF NATIONS AND SELF-DETERMINATION TO FOREIGN POLICY AND INTERNATIONAL LAW

Lenin’s early and serious consideration of the right of national self-determination was in part an outgrowth of the significant role that he had assigned to the “national question” in the context of his theory of imperialism. He recognized that in national sentiment and thus also in nationalism there lay a force which could be exploited in the cause of world revolution. His professed belief in a universally applicable right of national self-determination was for all that not intended solely as a tactic. For Lenin the nation, like the state, was a necessary way-station on the road to his goal of a classless society which could only be realized on a worldwide basis. In the crucible of world revolution, a homogeneous group of people would be forged to take the place of the present multitude of nations, peoples, and ethnic groups. But on the road to this goal the special interests of various national groups had to be taken into consideration. Accordingly, national self-determination took precedence over the social revolution. In this way the right of national self-determination, on which the united Soviet nation was based, acquired a legal and not merely a political meaning....

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Questions and Discussion

Compare the definition given to nations or nationalities by Joseph Stalin with the definition given to a nation/nationality/people by the Ethiopian Constitution under Art. 39(5), and identify the differences and similarities. Do you think the Ethiopian Constitution’s definition might have been developed out of that of Stalin?

Allen Buchanan, “Theories of Secession,” in *Philosophy and Public Affairs*, Vol., 26, No. 1 (1997). Footnotes omitted.

* * *

TWO TYPES OF NORMATIVE THEORIES OF SECESSION

All theories of the right to secede either understand the right as a remedial right only or also recognize a primary right to secede. By a right in this context is meant a general, not a special, right (one generated through promising, contract, or some special relationship). Remedial Right Only Theories assert that a group has a general right to secede if and only if it has suffered certain injustices, for which secession is the appropriate remedy of last resort. Different Remedial Right Only Theories identify different injustices as warranting the remedy of secession.

Primary Right Theories, in contrast, assert that certain groups can have a (general) right to secede in the absence of any injustice. They do not limit legitimate secession to being a means of remedying

an injustice. Different Primary Right Theories pick out different conditions that groups must satisfy to have a right to secede in the absence of injustices.

Remedial Right Only Theories. According to this first type of theory, the (general) right to secede is in important respects similar to the right to revolution, as the latter is understood in what may be called the mainstream of normative theories of revolution. The latter are typified by John Locke's theory, according to which the people have the right to overthrow the government if and only if their fundamental rights are violated, and more peaceful means have been to no avail.

The chief difference between the right to secede and the right to revolution, according to Remedial Right Only Theories, is that the right to secede accrues to a portion of the citizenry, concentrated in a part of the territory of the state. The object of the exercise of the right to secede is not to overthrow the government, but only to sever the government's control over that portion of the territory.

The recognition of a remedial right to secede can be seen as supplementing Locke's theory of revolution and theories like it. Locke tends to focus on cases where the government perpetrates injustices against "the people," not a particular group within the state, and seems to assume that the issue of revolution arises usually only when there has been a persistent pattern of abuses affecting large numbers of people throughout the state. This picture of legitimate revolution is conveniently simple: When the people suffer prolonged and serious injustices, the people will rise.

In some cases, however, the grosser injustices are perpetrated, not against the citizenry at large, but against a particular group, concentrated in a region of the state. (Consider, for example, Iraq's genocidal policies against Kurds in northern Iraq.) Secession may be justified, and may be feasible, as a response to selective tyranny, when revolution is not a practical prospect.

If the only effective remedy against selective tyranny is to oppose the government, then a strategy of opposition that stops short of attempting to overthrow the government (revolution), but merely seeks to remove one's group and the territory it occupies from the control of the state (secession), seems both morally unexceptionable and, relatively speaking, moderate. For this reason, a Remedial Right Only approach to the right to secede can be seen as a valuable complement to the Lockean approach to the right to revolution understood as a remedial right. In both the case of revolution and that of secession, the right is understood as the right of persons subject to a political authority to defend themselves from serious injustices, as a remedy of last resort.

It was noted earlier that Remedial Right Only Theories hold that the general right to secession exists only where the group in question has suffered injustices. This qualification is critical. Remedial Right Only Theories allow that there can be special rights to secede if (1) the state grants a right to secede (as with the secession of Norway from Sweden in 1905), or if (2) the constitution of the state includes a right to secede (as does the 1993 Ethiopian Constitution [sic]), or perhaps if (3) the agreement by which the state was initially created out of previously independent political units included the implicit or explicit assumption that secession at a later point was permissible (as some American Southerners argued was true of the states of the Union). If any of these three conditions obtain, we can speak of a special right to secede. The point of Remedial Right Only Theories is not to deny that there can be special rights to secede in the absence of injustices. Rather, it is to deny that there is a general right to secede that is not a remedial right.

Because they allow for special rights to secede, Remedial Right Only Theories are not as restrictive as they might first appear. They do not limit permissible secession to cases where the seceding group has suffered injustices. They do restrict the general (as opposed to special) right to secede to such cases.

Depending upon which injustices they recognize as grievances sufficient to justify secession, Remedial Right Theories may be more liberal or more restrictive. What all Remedial Right Only Theories have in common is the thesis that there is no (general) right to secede from a just state.

A Remedial Right Only Theory. For purposes of comparison with the other basic type of theory, Primary Right Theories, I will take as a representative of Remedial Right Only Theories the particular version of this latter type of theory that I have argued for at length elsewhere. According to this version, a group has a right to secede only if:

1. The physical survival of its members is threatened by actions of the state (as with the policy of the Iraqi government toward Kurds in Iraq) or it suffers violations of other basic human rights (as with the East Pakistanis who seceded to create Bangladesh in 1970), or
2. Its previously sovereign territory was unjustly taken by the state (as with the Baltic Republics).

I have also argued that other conditions ought to be satisfied if a group that suffers any of these injustices is to be recognized through international law or international political practice as having the right to secede. Chief among these is that there be credible guarantees that the new state will respect the human rights of all of its citizens and that it will cooperate in the project of securing other just terms of secession. (In addition to the protection of minority and human rights, the just terms of secession include a fair division of the national debt; a negotiated determination of new boundaries; arrangements for continuing, renegotiating, or terminating treaty obligations; and provisions for defense and security.) This bare sketch of the theory will suffice for the comparisons that follow.

Primary Right Theories. Primary Right Theories fall into two main classes: Ascriptive Group Theories and Associative Group Theories. Theories that include the Nationalist Principle (according to which every nation or people is entitled to its own state) fall under the first heading. Those that confer the right to secede on groups that can muster a majority in favor of independence in a plebiscite fall under the second.

Ascriptive Group Theories. According to Ascriptive Group versions of Primary Right Theories, it is groups whose memberships are defined by what are sometimes called ascriptive characteristics that have the right to secede (even in the absence of injustices). Ascriptive characteristics exist independently of any actual political association that the members of the group may have forged. In other words, according to Ascriptive Group Theories of secession, it is first and foremost certain nonpolitical characteristics of groups that ground the group's right to an independent political association.

Being a nation or people is an ascriptive characteristic. What makes a group a nation or people is the fact that it has a common culture, history, language, a sense of its own distinctiveness, and perhaps a shared aspiration for constituting its own political unit. No actual political organization of the group; nor any actual collective choice to form a political association, is necessary for the group to be a nation or people.

Thus Margalit and Raz appear to embrace the Nationalist Principle when they ascribe the right to secede to what they call "encompassing cultures," defined as large-scale, anonymous (rather than small-scale, face-to-face) groups that have a common culture and character that encompasses many important aspects of life and which marks the character of the life of its members, where membership in the group is in part a matter of mutual recognition and is important for one's self-identification and is a matter of belonging, not of achievement."

Associative Group Theories. In contrast, Associative Group versions of Primary Right Theories do not require that a group have any ascriptive characteristic in common such as ethnicity or an encompassing culture, even as a necessary condition for having a right to secede. The members of

the group need not even believe that they share any characteristics other than the desire to have their own state. Instead, Associative Group Theorists focus on the voluntary political choice of the members of a group (or the majority of them), their decision to form their own independent political unit. Any group, no matter how heterogeneous, can qualify for the right to secede. Nor need the secessionists have any common connection, historical or imagined, to the territory they wish to make into their own state. All that matters is that the members of the group voluntarily choose to associate together in an independent political unit of their own. Associative Group Theories, then, assert that there is a right to secede that is, or is an instance of, the right of political association.

The simplest version of Associative Group Primary Right Theory is what I have referred to elsewhere as the pure plebiscite theory of the right to secede. According to this theory, any group that can constitute a majority (or, on some accounts, a “substantial” majority) in favor of secession within a portion of the state has the right to secede. It is difficult to find unambiguous instances of the pure plebiscite theory, but there are several accounts which begin with the plebiscite condition and then add weaker or stronger *provisos*.

One such variant is offered by Harry Beran. On his account, any group is justified in seceding if (1) it constitutes a substantial majority in its portion of the state, wishes to secede, and (2) will be able to marshal the resources necessary for a viable independent state. Beran grounds his theory of the right to secede in a consent theory of political obligation. According to Beran, actual (not “hypothetical” or “ideal contractarian”) consent of the governed is a necessary condition for political obligation, and consent cannot be assured unless those who wish to secede are allowed to do so.

Christopher Wellman has more recently advanced another variant of plebiscite theory. According to his theory, there is a primary right of political association, or, as he also calls it, of political self-determination. Like Beran's right, it is primary in the sense that it is not a remedial right, derived from the violation of other, independently characterizable rights. Wellman's right of political association is the right of any group that resides in a territory to form its own state if (1) that group constitutes a majority in that territory; if (2) the state it forms will be able to carry out effectively what was referred to earlier as the legitimating functions of a state (preeminently the provision of justice and security); and if (3) its severing the territory from the existing state will not impair the latter's ability to carry out effectively those same legitimating functions.

Like Beran's theory, Wellman's is an Associative Group, rather than an Ascriptive Group variant of Primary Right Theory, because any group that satisfies these three criteria, not just those with ascriptive properties (such as nations, peoples, ethnic groups, cultural groups, or encompassing groups) is said to have the right to secede. Both Beran and Wellman acknowledge that there can also be a right to secede grounded in the need to remedy injustices, but both are chiefly concerned to argue for a Primary Right, and thus to argue against all Remedial Right Only Theories.

According to Primary Right Theories, a group can have a (general) right to secede even if it suffers no injustices, and hence it may have a (general) right to secede from a perfectly just state. Ascriptive characteristics, such as being a people or nation, do not imply that the groups in question have suffered injustices. Similarly, according to Associative Group Theories, what confers the right to secede on a group is the voluntary choice of members of the group to form an independent state; no grievances are necessary.

Indeed, as we shall see, existing Primary Right Theories go so far as to recognize a right to secede even under conditions in which the state is effectively, indeed flawlessly, performing all of what are usually taken to be the legitimating functions of the state. As noted above in the description of Wellman's view, these functions consist chiefly, if not exclusively, in the provision of justice (the establishment and protection of rights) and of security.

Notice that in the statement that Primary Right Theories recognize a right to secede from perfectly just states the term “just” must be understood in what might be called the uncontroversial or standard or theory-neutral sense. In other words, a perfectly just state here is one that does not violate relatively uncontroversial individual moral rights, including above all human rights, and which does not engage in uncontroversially discriminatory policies toward minorities. This conception of justice is a neutral or relatively uncontroversial one in this sense: We may assume that it is acknowledged both by Remedial Right Only Theorists and Primary Right Only Theorists – that both types of theorists recognize these sorts of actions as injustices, though they may disagree in other ways as to the scope of justice. In contrast, to understand the term “just” here in such a fashion that a state is assumed to be unjust simply because it contains a minority people or nation (which lacks its own state) or simply because it includes a majority that seeks to secede but has not been permitted to do so, would be to employ a conception of the justice that begs the question in this context, because it includes elements that are denied by one of the parties to the debate, namely Remedial Right Only Theorists. To repeat: the point is that Primary Right Theories are committed to the view that there is a right to secede even from a state that is perfectly just in the standard and uncontroversial, and hence theory-neutral sense.

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COMPARING THE TWO TYPES OF THEORIES

Remedial Right Only Theories have several substantial attractions. First, a Remedial Right Only Theory places significant constraints on the right to secede, while not ruling out secession entirely. No group has a (general) right to secede unless that group suffers what are uncontroversially regarded as injustices and has no reasonable prospect of relief short of secession. Given that the majority of secessions have resulted in considerable violence, with attendant large-scale violations of human rights and massive destruction of resources, common sense urges that secession should not be taken lightly.

Furthermore, there is good reason to believe that secession may in fact exacerbate the ethnic conflicts which often give rise to secessionist movements, for two reasons. First, in the real world, though not perhaps in the world of some normative theorists, many, perhaps most, secessions are by ethnic minorities. But when an ethnic minority secedes, the result is often that another ethnic group becomes a minority within the new state. All too often, the formerly persecuted become the persecutors. Second, in most cases, not all members of the seceding group lie within the seceding area, and the result is that those who do not become an even smaller minority and hence even more vulnerable to the discrimination and persecution that fueled the drive for secession in the first place. Requiring serious grievances as a condition for legitimate secession creates a significant hurdle that reflects the gravity of state-breaking in our world and the fact that secession often does perpetuate and sometimes exacerbate the ethnic conflicts that give rise to it.

Minimal Realism. Remedial Right Only Theories score much better on the condition of minimal realism than Primary Right Theories. Other things being equal, proposals for international institutional responses to secessionist claims that do not pose pervasive threats to the territorial integrity of existing states are more likely to be adopted by the primary makers of international law—that is, states—than those which do.

Primary Right theories are not likely to be adopted by the makers of international law because they authorize the dismemberment of states even when those states are perfectly performing what are generally recognized as the legitimating functions of states. Thus Primary Right Theories represent a direct and profound threat to the territorial integrity of states—even just states. Because Remedial Right Only Theories advance a much more restricted right to secede, they are less of a threat to the territorial integrity of existing states; hence, other things being equal, they are more likely to be incorporated into international law. At this point it might be objected that the fact that states would

be unlikely to incorporate Primary Right Theories into international law is of little significance, because their interest in resisting such a change is itself not morally legitimate. Of course, states will not be eager to endanger their own existence. Similarly, the fact that a ruling class of slaveholders would be unlikely to enact a law abolishing slavery would not be a very telling objection to a moral theory that says people have the right not to be enslaved.

This objection would sap some of the force of the charge that Primary Right Theories score badly on the minimal realism requirement if states had no morally legitimate interest in resisting dismemberment. However, it is not just the self-interest of states that encourages them to reject theories of the right to secede that makes their control over territory much more fragile. States have a morally legitimate interest in maintaining their territorial integrity. The qualifier “morally legitimate” is crucial here. The nature of this morally legitimate interest will become clearer as we apply the next criterion to our comparative evaluation of the two types of theories.

Consistency with Well-Entrenched, Morally Progressive Principles of International Law

Unlike Primary Right Theories, Remedial Right Only Theories are consistent with, rather than in direct opposition to, a morally progressive interpretation of what is generally regarded as the single most fundamental principle of international law: the principle of the territorial integrity of existing states. It is a mistake to view this principle simply as a monument to the self-interest of states in their own survival. Instead, I shall argue, it is a principle that serves some of the most basic morally legitimate interests of individuals. The interest that existing states have in continuing to support the principle of territorial integrity is a morally legitimate interest because the recognition of that principle in international law and political practice promotes two morally important goals: (1) the protection of individuals physical security, the preservation of their rights, and the stability of their expectations; and (2) an incentive structure in which it is reasonable for individuals and groups to invest themselves in participating in the fundamental processes of government in a conscientious and cooperative fashion over time. Each of these benefits of the maintenance of the principle of territorial integrity warrants explanation in detail.

Individuals’ rights, the stability of individuals’ expectations, and ultimately their physical security, depend upon the effective enforcement of a legal order. Effective enforcement requires effective jurisdiction, and this in turn requires a clearly bounded territory that is recognized to be the domain of an identified political authority. Even if political authority strictly speaking is exercised only over persons, not land, the effective exercise of political authority over persons depends, ultimately upon the establishment and maintenance of jurisdiction in the territorial sense. This fact rests upon an obvious but deep truth about human beings: They have bodies that occupy space, and the materials for living upon which they depend do so as well. Furthermore, if an effective legal order is to be possible, both the boundaries that define the jurisdiction and the identified political authority whose jurisdiction it is must persist over time.

So by making effective jurisdiction possible, observance of the principle of territorial integrity facilitates the functioning of a legal order and the creation of the benefits that only a legal order can bring. Compliance with the principle of territorial integrity, then, does not merely serve the self-interest of states in ensuring their own survival; it furthers the most basic morally legitimate interests of the individuals and groups that states are empowered to serve, their interest in the preservation of their rights, the security of their persons, and the stability of their expectations.

For this reason, states have a morally legitimate interest in maintaining the principle of territorial integrity. Indeed, that is to indulge in understatement: states, so far as their authority rests on their ability to serve the basic interests of individuals, have an obligatory interest in maintaining territorial integrity.

The principle of territorial integrity not only contributes to the possibility of maintaining an enforceable legal order and all the benefits that depend on it; it also gives citizens an incentive to

invest themselves sincerely and cooperatively in the existing political processes. Where the principle of territorial integrity is supported, citizens can generally proceed on the assumption that they and their children and perhaps their children's children will be subject to laws that are made through the same processes to which they are now subject-and whose quality they can influence by the character of their participation.

For it to be reasonable for individuals and groups to so invest themselves in participating in political processes there must be considerable stability both in the effective jurisdiction of the laws that the processes create and in the membership of the state. Recognition of the principle of the territorial integrity of existing states contributes to both.

In Albert Hirschman's celebrated terminology, where exit is too easy, there is little incentive for voice—for sincere and constructive criticism and, more generally, for committed and conscientious political participation. Citizens can exit the domain of the existing political authority in different ways. To take an example pertinent to our investigation of secession, if a minority could escape the authority of laws whose enactment it did not support by unilaterally redrawing political boundaries, it would have little incentive to submit to the majority's will, or to reason with the majority to change its mind.

Of course, there are other ways to escape the reach of a political authority, emigration being the most obvious. But emigration is usually not a feasible option for minority groups and even where feasible is not likely to be attractive, since it will only involve trading minority status in one state for minority status in another. Staying where one is and attempting to transfer control over where one is to another, more congenial political authority is a much more attractive alternative, if one can manage it.

Moreover, in order to subvert democratic processes, it is not even necessary that a group actually exit when the majority decision goes against it. All that may be needed is to issue a credible threat of exit, which can serve as a *de facto* minority veto. However, in a system of states in which the principle of territorial integrity is given significant weight, the costs of exit are thereby increased, and the ability to use the threat of exit as a strategic bargaining tool is correspondingly decreased.

In addition, the ability of representative institutions to approximate the ideal of deliberative democracy, in which citizens strive together in the ongoing articulation of a conception of the public interest, also depends, in part, upon stable control over a definite territory, and thereby the effective exercise of political authority over those within it. This stability is essential if it is to be reasonable for citizens to invest themselves in cultivating and practicing the demanding virtues of deliberative democracy.

All citizens have a morally legitimate interest in the integrity of political participation. To the extent that the principle of territorial integrity helps to support the integrity of political participation, the legitimacy of this second interest adds moral weight to the principle.

* * *

PRIMARY RIGHT THEORIES

Avoiding Perverse Incentives. Remedial Right Only Theories also enjoy a third advantage: If incorporated into international law, they would create laudable incentives, while Primary Right Theories would engender very destructive ones....

A regime of international law that limits the right to secede to groups that suffer serious and persistent injustices at the hands of the state, when no other recourse is available to them, would provide protection and support to just states, by unambiguously sheltering them under the umbrella of the principle of the territorial integrity of existing (legitimate) states. States, therefore, would have an incentive to improve their records concerning the relevant injustices in order to reap the

protection from dismemberment that they would enjoy as legitimate, rights-respecting states. States that persisted in treating groups of their citizens unjustly would suffer the consequences of international disapprobation and possibly more tangible sanctions as well. Furthermore, such states would be unable to appeal to international law to support them in attempts to preserve their territories intact.

In contrast, a regime of international law that recognized a right to secede in the absence of any injustices would encourage even just states to act in ways that would prevent groups from becoming claimants to the right to secede, and this might lead to the perpetration of injustices. For example, according to Wellman's version of Primary Right Theory, any group that becomes capable of having a functioning state of its own in the territory it occupies is a potential subject of the right to secede. Clearly, any state that seeks to avoid its own dissolution would have an incentive to implement policies designed to prevent groups from becoming prosperous enough and politically well-organized enough to satisfy this condition.

In other words, states would have an incentive to prevent regions within their borders from developing economic and political institutions that might eventually become capable of performing the legitimating functions of a state. In short, Wellman's version of Primary Right Theory gives the state incentives for fostering economic and political dependency. Notice that here, too, one need not attribute evil motives to states to generate the problem of perverse incentives. That problem arises even if states act only from the morally legitimate interest in preserving their territories.

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Questions and Discussion

1. Buchanan meticulously discusses his theory about secession. Read him very carefully and discuss with your colleagues whether he advances a plausible theory on the right to secession. Do you think the makers of the Ethiopian constitution should have perhaps consulted him before crafting Art. 39 of the Constitution? In any case, try to fully grasp Buchanan's point of view.
2. On a more substantive level, do you think that it was a matter of practical exigency that the Ethiopian Constitution should carry a secession clause? Was it a life and death situation for Ethiopia to stay together as a nation? And from Buchanan's discussion, what do you think was or might be the theoretical foundation of the Ethiopian Constitution's secession clause?
3. Some people also argue that the secession clause in the Ethiopian constitution should have been written with stringent conditions to be met by a group that aspires to secede. Do you share this view? Why/why not?

Christopher H. Wellman, "A Defense of Secession and Political Self-Determination," in *Philosophy and Public Affairs*, Vol. 24, No. 2 (1995). Footnotes omitted.

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THE PROBLEM

One striking feature of political self-determination, which distinguishes it from a citizen's dominion in other realms, is that it necessarily involves a claim to territory. As Allen Buchanan writes, "Secession . . . is an effort to remove oneself from the scope of the state's authority, not by moving beyond existing boundaries of that authority but by redrawing the boundaries so that one is not included within them. To claim the right to emigrate is only to challenge the state's authority to keep one within its boundaries." To claim the right to secede is to challenge the state's own

conceptions of what its boundaries are. To emphasize: Secession necessarily involves a claim to territory.

This point is significant because it indicates that any secessionist's appeal must ultimately be adjudicated by the strength of its claim to territory. Thus a secessionist party must argue not only that it owes no allegiance to its current political union, but also that it (rather than the current state or some third party) has the legitimate claim to control jurisdiction over the territory of the proposed seceding region. A party's lack of right to secede entails that the existing political union (or some third party) has a legitimate claim to its territory and the secessionist party has a duty not to secede (without permission from the remainder state and/or third party). If a party does have a right to secede, on the other hand, this party is at liberty to secede and the remainder state has a duty not to resist coercively this secession. Thus any adequate analysis of secession will necessarily involve an account of what justifies the state's claim to exercise political jurisdiction over its territory. Different responses to this latter question will produce varying answers to the former.

Before examining different justifications for a state's claim to its territory, though, it is important to note two things regarding the moral dynamics of secession. The first is that matters of political self-determination are distinct, and should be kept separate, from other rights and correlative duties of justice. The second is that many of the secessionist movements grounded in past injustices have been misunderstood as grounded in political self-determination.

The first point is significant because it indicates that the moral justification of a secessionist movement need not be undermined by the remainder state's financial, military, or other dependence upon the seceding region. To see this, consider a case in which S constitutes a geographic region of people interested in seceding from a larger political unit R. Theorists often emphasize that a remainder state would be harmed by a secession because the remainder state, $R - [\text{minus}] S$, would lose either crucial revenue or military strength. Consider each of these arguments. In the lost-revenue argument, theorists explain that the economy of R as a whole depends upon either the natural resources in S or welfare transfers from the much wealthier people of S. Theorists then suggest that the people of R, in virtue of their reliance upon the income from S, may justifiably deny S's secession. According to the lost-military-strength scenario, the people of R are reluctant to let S secede because $R - S$ would be left vulnerable to attack after S's secession. Here theorists suggest that $R - S$'s potential military vulnerability justifies their blocking S's secession.

These arguments can provide moral reasons only to limit the conditions of S's secession, not to suppress it altogether. The fact that R would be economically handicapped without the financial transfers from S may obligate S to continue financial assistance after secession, but it cannot make secession impermissible under all conditions. (This weaker claim is true only if the people of R have a legitimate interest in this assistance that makes their claim one of justice.) Thus the financial- dependence argument allows us to conclude only that the people of S must continue welfare transfers after they secede, not that they may not secede. Likewise, the fact that R would be militarily vulnerable without S's defense can obligate S only to continue as a military ally of R; it cannot make S unjustified in seceding.

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The second point I wish to emphasize is that secessionist movements grounded in past injustices are often mistaken for those grounded in political self-determination. The traditional account of political legitimacy is that a state is justified in exercising political jurisdiction over its territory as long as it functions in a reasonably just manner. Many who espouse this view also endorse what they call the "principle of national self-determination." According to the common understanding of this principle, colonies that have been forcibly annexed and certain peoples or nations that are treated sufficiently unjustly have a moral right to secede. Thus the traditional view of political legitimacy conjoined with the standard interpretation of the principle of national self-determination implies that, if the laws of R are unjust enough to the people of S, then the people of S have a right

to secede, but if they are not sufficiently unjust, they do not. Once the distinction explained above between the right to political self-determination and other rights and duties is fully appreciated, however, the traditional view (despite its compatibility with a principle that many label the principle of national self-determination) provides no room for secession grounded in political self-determination.

The traditional view suggests that to be legitimate, a government need not function exactly as all citizens would want, but it must treat its citizens in a minimally just manner. If a state has a valid claim to the territory it occupies as long as it avoids injustice, though, it is difficult to see how an individual or group can have rights to political self-determination. According to this model, the people of S can occupy one of two initial moral positions relative to the government of R. If the government is not, and has not been, unjust to the people of S, then the people of S are in no position to demand anything from the people of R, and certainly they may not secede. If the people of R have been unjust to the people of S, on the other hand, then the people of S, because of their rights, are in a position to claim or waive what is due them. Because the claim to political self-determination is distinct and separable from other rights and correlative duties, however, the people of S are not in a position to claim political self-determination. Indeed, they can be in no position to claim that this right has been violated if they initially had no such right. They are in a position to claim only two things: (1) that to which they are currently being unjustly denied and (2) compensation for what has been unjustly denied them in the past. Since political self-determination fits into neither of these categories, it cannot be claimed by the people of S when the people of R treat them unjustly. Since the people of S have no right to political self-determination when the people of R treat them unjustly, as the traditional approach assumes, they cannot claim it then either. Therefore, the traditional model leaves no room for a right to secede grounded in political self-determination.

It is worth noting, however, how the people of S might be misunderstood to have a right to political self-determination on this account. If the people of S were treated unjustly by the people of R as a whole, they would be in a position to demand that the state amend its practices and pay reparation. If the people of R continually refused to stop present practices and pay for past injustices, they would, on this account, lose their claim to the territory in S. Since the people of S occupy this land and have suffered the injustices, they would presumably have a valid claim to the territory in S. They would now be in a position to set up their own government in this territory and, insofar as this new government avoided injustice, the people of S would continue to have a valid claim to this territory. This scenario might be described as an instance of the people of S exercising their right to political self-determination. This description would be incorrect. Notice that on this account the people of S are morally justified in changing their political arrangement only after they are treated unjustly and can do nothing within the existing political scheme to rectify these injustices. This indicates that the people of S have a primary right only not to be treated unjustly, a secondary right only to compensation for a violation of this primary right, and finally a tertiary right to reorganize politically if their primary and secondary rights are violated. If there is no initial injustice, however, the traditional model leaves no room for the people of S to reorganize politically. Thus we cannot infer a right of political self-determination from the mere fact that a theory permits political reorganization under certain conditions. It provides only for a right not to be treated unjustly.

To see the error of ascribing a right to political self-determination to the people of S, consider the right to religious self-determination. One has a right to religious self-determination when one is free to hold, and act in accordance with, the religious beliefs of one's choice. If, on the other hand, a person is not allowed to change her religious practice unless the religion into which she was born discriminates against her, then she would not have the same right. In this latter scenario, she would definitely have a right (and this right would even make it permissible for her to change religious practices under certain conditions), but this is far from her having a right to religious self-determination. This second right amounts only to a right not to be a member of a religion that discriminates against one. Likewise, the traditional account of political legitimacy, coupled with the

standard interpretation of the principle of national self-determination, leaves no room for political self-determination as such, only room for a right to be spared political injustice and a derivative, remedial right to self-determination when the exercise of this latter right is the only way to redress this injustice.

In sum, the points about the separability of political self-determination from other rights and duties as well as the centrality of claims to territory are especially significant observations. I certainly agree that there are cases in which groups have the right to secede because of past injustices performed by the remainder state, but this does not establish a right to secede grounded in self-determination. In fact, on the face of it, such a possibility is inconsistent with the traditional endorsement of an existing state's claim to its territory. My aim in this essay is to disregard the traditional model and to examine the precise nature of a state's claim to its political territory. Only once we understand the grounds for this claim can we see when, how, and what types of secessionist parties may also have valid claims to the territory they covet. This will determine if and when a party may secede, not because it was treated unjustly, but merely because it chooses to exercise its primary right of political self-determination.

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Despite its revolutionary character, the American Revolution was actually a secession. The colonists never tried to eliminate the British government; they contested only the latter's authority to govern a portion of its existing territory. The secessionists claimed a right to political self-determination because they were being exploited. They lacked adequate political representation and considered themselves (among other things) overtaxed as a result. Thus the colonists' chief complaint, let us suppose, was that the British were extracting more money and resources than they were investing in the colonies. In the end, the colonists asserted that Britain had forfeited its right to political sovereignty over the colonies and, therefore, the latter had a right to be self-governing. In light of my analysis above, I would assess the situation differently.

First, I am not certain that British taxation was necessarily unjust even if the British were extracting more than they were investing. (I recognize that it is ordinarily unjust for the wealthier to benefit from the poorer, but I have no theory to account for cases, like colonies, in which the poorer have their productive capacities in part because of earlier investments by the wealthy.) What is more, I am not sure what type of representation justice requires if the government does not substantively discriminate against the underrepresented. (Again, I do not assert that no representation is necessary; I merely remain agnostic because I lack a sufficiently sophisticated democratic theory.) If my doubts are warranted, then it is a matter of controversy whether Britain acted unjustly enough to forfeit its territorial sovereignty.

. . . these difficult matters of political representation and economic redistribution need not cloud our analysis of political self-determination. The former can be distinguished from the latter, and the colonists may have had a right to secede even if the British had not exploited them. What is singularly important, in my analysis, is the colonial capacity to perform the requisite political functions. Because they were able to govern themselves satisfactorily, the colonies had a right to secede and form their own state. It may be that the British deserved additional economic transfers in return for their initial investments in the colonies, but this does not justify the former in restricting the colonists' political liberty; at most it can set limiting conditions upon the political divorce. What is more, if the colonists had been unable to govern themselves effectively, citing instances of political and economic injustice might not be enough to legitimize the secession. In the end, slogans like "No taxation without representation!" might justify disruptive tea parties and other acts of civil disobedience, but they do not correctly focus upon the issues pivotal to conflicts of political self-determination.

Consider now the United States Civil War. President Lincoln's stance on the issue of Southern political independence was striking because, unlike many commentators upon the American

Revolution, he appreciated the distinction between political self-determination and the other rights and duties of justice. He separated the fate of the union from the question of slavery by alleging that he would readily free all slaves or no slaves, whichever would preserve the union. But while I applaud Lincoln's insightful separation of these two issues, I believe that he answered each of the individual questions incorrectly. In short, I think that regardless of the South's connection to the North, slavery in the former was impermissible, and that if the South agreed to end slavery, then Lincoln had no right to resist the secession. Assuming that the South and the North both had the capacity to function as independent states, Lincoln's only justification for restricting the South's political liberty would have been if this was necessary to end the injustice of slavery. It is interesting to speculate upon how the South would have responded if Lincoln had offered to let it secede without slavery, but this is not important to our debate here. What is crucial is the hybrid model's recommendation that the South had a right to secede as long as they were able and willing to form an effective and liberal state.

Lithuania's recent secession from the Soviet Union provides another example of how my analysis of political self-determination diverges from more traditional accounts. Lithuanians alleged that because they had been forcibly annexed fifty years earlier, their secession amounted merely to reclaiming territory that had been unjustly seized for half a century. Theorists all accept that forcible annexation is impermissible, but many believe that a state can gain authority over seized territory after a sufficient period of effective rule. Thus many supposed that the pivotal question regarding Lithuania was whether the Soviet Union had governed the region long enough to gain legitimate title to this territory. Once again, I conceive of the conflict differently. I believe the crucial issue was Lithuania's capacity to function as a sovereign state. If Lithuania had this ability, the Soviet Union could not legitimately limit its liberty even if the Soviet Union had effectively governed that territory for a hundred years. If, on the other hand, Lithuania had lacked the relevant political abilities (and also the potential to regain this ability), then it would have had no right to secede even if it had been forcibly annexed only ten years earlier.

. . . Advocates of secession have claimed a right on a number of grounds including discriminatory redistribution and forcible annexation (a portion of what is now Quebec was initially seized by the British). The most frequent Quebecois cry for freedom, however, appeals to the necessity of political independence to preserve and strengthen the distinctive francophone culture in Quebec. A state's responsibility to support imperiled cultures is a fascinating topic that liberals have neglected for far too long, but I believe the Quebecois are wrong to focus upon this issue. . . . a state cannot justifiably restrict political liberty which is not excessively harmful, and thus a secessionist party has the right to secede when its political divorce will not jeopardize political stability. Thus contemporary movements like that of the Quebecois should shift their concentration from arguments regarding the importance of culture and focus instead upon defending the claim that both they and the remaining portion of Canada would be able to perform fully the functions that a state must.

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Cass R. Sunstein "Constitutionalism and Secession," in *The University of Chicago Law Review*, Vol. 58, No. 2 (1991). Footnotes omitted.

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Secession

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Precommitment and Secession

For the moment I will not speak to the issue of whether and when secession is desirable or just. Instead I want to ask whether a Constitution ought to recognize a right to secede. I will understand a constitutional right to secede as encompassing (a) an explicit textual provision guaranteeing such a right or (b) an implicit understanding that the constitution creates that right, accompanied in either case by (c) a willingness to enforce that right by a court with the power of judicial review—that is, a court capable of granting and enforcing a subunit's request to secede despite the objections of the central government. As the Soviet experience has shown in the context of individual rights as well as the context of secession, constitutional guarantees on paper often mean nothing without institutions available to vindicate them.

At first glance, the argument for a right to secede seems straightforward. If a subunit no longer wants to exist within the nation, why should it have to do so? This initial challenge draws strength from a number of arguments, spelled out below, including the need for local self-determination, the history of unjust acquisition in Eastern Europe and elsewhere, the claims of ethnic and cultural integrity, and the threat of abridgement of basic rights and liberties.

The issue of secession is, however, an unusually good candidate for an analysis that stresses the use of constitutionalism as a precommitment strategy. Indeed, the problem of secession closely parallels the problems solved by the Full Faith and Credit Clause and the Commerce Clause, and in some respects follows naturally from those examples. The initial point is that constitutional recognition of a right to secede might well have a range of harmful consequences for democratic politics. In the face of such a right, a threat to secede could under certain conditions be plausible at any given time, allowing the exit of the subunit from the nation to be a relevant factor in every important decision. It is not difficult to imagine circumstances in which it will be in a subunit's interest to issue that threat. Rather than working to achieve compromise, or to solve common problems, subunits holding a right to secede might well succumb to the temptation of self-dealing, and hold out for whatever they can get. It is quite possible that some such self-dealing has already occurred in Eastern Europe.

A right to secede will encourage strategic behavior, that is, efforts to seek benefits or diminish burdens by making threats that are strategically useful and based on power over matters technically unrelated to the particular question at issue. Subunits with economic power might well be able to extract large gains in every decision involving the geographic distribution of benefits and burdens. A constitutional system that recognizes and is prepared to respect the right to secede will find its very existence at issue in every case in which a subunit's interests are seriously at stake. In practice, that threat could operate as a prohibition on any national decision adverse to the subunit's interests.

A temporarily disaffected subunit could, in short, raise the stakes in ordinary political and economic decisions simply by threatening to leave. The threat would be especially credible and therefore disruptive if the subunit can or might prefer to exist on its own. The recognition of a right of exit on the part of the subunit could thus prevent fair dealing on the nation's part, by allowing the subunit to veto policies that are justified on balance.

It might also lead to undue caution. The threat to secede might deter the government from taking action that offends a subunit but is on balance justified. Consider, for example, the issue of taxation. A tobacco-growing subunit equipped with the right to secede might be able to veto a decision to raise taxes on (say) cigarettes even if that decision would further the nation's long-term interest. Similar considerations apply to the decision to enter into war, to enact environmental regulation, or

to increase or decrease aid to agriculture. A secession right cannot plausibly be justified on the ground that it is a necessary check on national policies designed to ensure that those policies are in the general interest; the fact that a state wants to secede is neither a necessary nor a sufficient reason to believe that the general interest is being violated.

Family law supplies a helpful analogy. In a marriage, the understanding that the unit is not divisible because of current dissatisfaction, but only in extraordinary circumstances, can serve to promote compromise, to encourage people to live together, to lower the stakes during disagreements, and to prevent any particular person from achieving an excessively strong bargaining position. A decision to stigmatize divorce or to make it available only under certain conditions—as virtually every state in the United States has done—may lead to happier as well as more stable marriages, by providing an incentive for spouses to adapt their behavior and even their desires to promote long-term harmony. I intend to make no sweeping comment here on the structure of divorce law; I argue only that in the secession context there are strong reasons for making exit difficult.

Recognition of a right to secede would also ensure that any subunit whose resources are at the moment indispensable, and that might be able to exist on its own, is in an extraordinary position to obtain benefits or to diminish burdens on matters formally unrelated to its comparative advantage. Moreover, the shared knowledge that the nation is terminable at the option of any subunit would promote instability.

In these circumstances, we might understand a waiver of the right to secede as a solution to a collective action problem or a prisoners' dilemma. For each subunit, acting individually, recognition of the right might increase its authority to obtain a large share of the collective assets during any general allocation. But if the right to secede exists, each subunit will be vulnerable to threats of secession by the others. If the considerations marshalled thus far are persuasive, all or most subunits are quite plausibly better off if each of them waives its right to secede. More generally, the difficulty or impossibility of exit from the nation will encourage cooperation for the long term, providing an incentive to adapt conduct and even preferences to that goal.

Of course, the existence of a right to secede will have few such consequences if a threat to secede is not credible. Under some conditions, however, the threat will be a real one. Some subunits might well find it in their economic interest to exist on their own. If independence is economically preferable, the threat of secession will be fully plausible. Other subunits will suffer some economic loss if they secede, but still find independence worthwhile because of gains in terms of cultural or geographical autonomy or capacity for self-governance. Here a threat of secession might be credible even if the seceding subunit would be an economic loser. In the context of secession, the practical political problem goes especially deep. The right to secede is different from other potential vetoes on national legislative action precisely because it raises fundamental and often emotional issues having to do with the claims of ethnicity, territory, and history to separation and self-determination. These issues have a peculiar tendency to inflame both subunits and those who want them to remain part of the nation. They tend to raise the emotional stakes in such a way as to make the ordinary work of politics—not to mention day-to-day interactions in other spheres—extremely hard to undertake. In Eastern Europe, divisions of this kind promise to be among the most important questions for constitutional resolution in the next generation. Those divisions threaten not only to split nations into subunits—which may or may not be good—but also to paralyze national and local governments and to deflect them from dealing with the enormous current social and economic problems. Deliberation is often an inadequate check, and it comes at a high price. A waiver of the right to secede protects against inflamed or impulsive behavior. On some occasions, the emotional stakes should be raised in precisely this way. But constitutional recognition of a right to secede accomplishes the relevant goals at great risk to the fundamental task of creating healthy, long-term constitutional structures. The large destabilizing effects of a right to secede may also disrupt expectations whose existence is indispensable both to economic prosperity and democratic self-determination. After secession, it will be extremely hard to disentangle the contributions of the

subunit and the nation in order to decide who should be paying whom for what. The sheer volume of the costs of allocation provide at least a consideration against recognition of a right to secede. Much more fundamentally, a nation whose subunits may secede will be far less likely to engage in long-term planning. Inter-dependence will be both threatening and risky, and thus will be discouraged.

For Eastern European countries, it is imperative to develop institutions that can ensure confidence in the long-term health of the newly democratized governmental systems. Without such institutions, the emerging market economies will fail. A waiver of the right to secede should be seen as part of a set of strategies designed to bring about stable institutional arrangements. In this light it should be unsurprising to observe proposed institutional reforms designed to foster stability in the face of separatist appeals, such as the Czechoslovakian plan to allocate much more power to the republics and the “union treaty” proposal in the Soviet Union.

There is an analogy here in the history of the American Constitution. The Framers deemed it necessary to protect contractual agreements against state impairment not to help creditors as a class, but to ensure that commercial interactions would occur in the first place. A system in which states can impair contracts will discourage their formation in the first instance, and thus have harmful long-term effects on the economy as a whole. So too, legal protection of national unity should have an important coordinating effect, creating expectations of long-term interaction indispensable to national self-government. Thus far I have argued that a waiver of the right to secede is a sensible precommitment strategy, one that is likely to remove a serious threat to democratic processes. There are at least two possible responses to this line of argument. The first is that if the existence of the nation confers mutual benefits an assumed precondition for its continuation, then subunits will rarely threaten to secede even if constitutionally authorized to do so, and the threat will rarely be credible even if made. The costs of secession will usually be at least as large for the subunit as for the nation. On this view, recognition of a right to secede would never or rarely have the adverse effects claimed for it. A well-functioning nation simply will not face serious secession threats; subunits will invoke the right only in the most extraordinary circumstances. Indeed, in those circumstances the right is a necessary corrective to the status quo.

This rejoinder may be correct. Under certain circumstances, recognition of a right to secede would probably make little difference. But the rejoinder seems too optimistic. Sometimes secession may well further the economic interest of the subunit, or the threat might be credible because an economic loss would be counteracted by gains in terms of symbolism or subunit autonomy. Moreover, national politics affecting multiple subunits are subject to unpredictable and often highly emotional factors. Technocratic rationality does not characterize deliberations in which the specter of secession is involved. The mere possibility of secession may prevent calm negotiation.

There can be no assurance that secession will not be threatened simply because things are generally going well and there is mutual interdependence. Inflamed subunit sentiments have been a characteristic feature of recent developments in constitution-making, in Eastern Europe and elsewhere. And in Eastern Europe in particular, social, economic, and environmental problems—many demanding strong action from the central government have been quite severe, further fueling ethnic and regional conflicts. In these circumstances a right to secede would be especially dangerous.

The second response would generalize the first, claiming that the case against a constitutional right to secession is simply too speculative. All of the harmful effects are possible, but there is no good reason to think that they will occur. Perhaps a right to secede is a necessary inducement to persuade subunits to enter the nation at all. Perhaps subunits will rarely invoke the right to secede, because social and political norms will deter them from doing so. Perhaps the costs of secession to all subunits will be so high as to make the threat implausible. The greater the degree of interdependence and cohesion, of course, the higher the costs of secession. Perhaps strategic behavior will be collectively punished, so that it will occur rarely if at all. Perhaps the right to secede will be invoked only in cases in which it is an important safeguard.

These suggestions are plausible. Under certain conditions, the right to secession would have few deleterious effects, and it may prevent serious harms. This is especially so in cases involving a weak or loose confederation without substantial interdependencies—the very concept now gaining popularity in Yugoslavia, Czechoslovakia, and the Soviet Union. In such cases, the risks posed by strategic behavior and inflamed ethnic and other passions will be less severe. For the European Community, for example, a right to secede may therefore be more sensible, and indeed it will provide a greater incentive to join in the first instance.

For those deciding on the contents of a constitution, the questions are which scenarios are most likely and which provide the worst case. The most that one can do here is to point to the often large emotional attachments to subunits, the possibility of financial gains from strategic behavior, the familiar frailties of human nature, the rational and irrational factors that can make subunits press secession claims, and the potentially debilitating effects of such claims on subunit and national processes of self-government.

In view of these considerations, it seems highly likely that recognition of a constitutional right to secede would create serious difficulties. In Eastern Europe, where strong nationalist passions persist and threaten to infect daily politics if given an explicit constitutional home, a right to secede would be especially damaging to the prospects for democratic government. All this suggests a strong presumption against a constitutional right to secede.

REASONS FOR SECESSION

Even if a constitutional right to secede would create risks for democratic politics, the case against such a right has hardly been completed. It might well be that the countervailing considerations, justifying a right to secede, outweigh any such adverse effects.

To explore this question, it will be useful to examine why a subunit of a country might want to secede. The reasons fall into five basic categories. All of them have played a prominent role in discussions of this subject in Eastern Europe. Thus, for example, infringement of civil liberties has played a role in Yugoslavia, where the fear of Serbian oppression partly motivates Slovenian and Croatian secessionism, and in the Ukraine, where Soviet suppression of the Ukrainian Church has played a similar role. Economic self-interest has been a motivating factor in the wealthier republics of Yugoslavia and also in the Soviet Union. Economic exploitation has been relevant in the Ukraine. The injustice of the original acquisition is of special importance in Lithuania, Estonia, and Latvia. Claims of cultural and ethnic integrity have played a role in the Soviet Union, Yugoslavia, and the Czech and Slovak Federative Republic.

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A QUALIFIED RIGHT TO SECEDE?

A possible response to the discussion thus far would be that the right to secede should indeed be constitutionalized, but hedged with qualifications and limitations that minimize the risk of strategic behavior. At least four possibilities seem plausible. One strategy would allow secession if and only if a large majority of the subunit sought it. Another would allow secession only under certain enumerated circumstances, as, for example, in cases of suspension of civil liberties or economic exploitation. Yet another would create a requirement of prolonged deliberation before secession would be lawful. Such a system might involve, for example, multiple popular votes, with substantial waiting periods between votes. A fourth approach would create a right to secede, either absolute or qualified, but make it nonjusticiable. Each of these possibilities raises difficult and general questions about constitutionalism. I deal with them only briefly here.

All of these routes have large advantages over an unqualified right to secede, but it is doubtful whether the advantages justify constitutionalization of even a qualified right to secede. A requirement of a supermajority would certainly limit the occasions for, and seriousness of, secession threats. But in cases in which the subunit can be energized—for reasons of economic self-interest or ethnic and territorial self-identification—the protection would be inadequate. It is true that a subunit may want to secede for good reasons, but as discussed above, there are better and less disruptive means of ensuring that the good motivations that sometimes underlie secession movements can be addressed. These involve, above all, federalism, checks and balances, entrenchment of civil rights and civil liberties, and judicial review. If these protections are inadequate, it is highly doubtful that a qualified right to secede will do the job. There is something to be said in favor of a secession provision that would be limited to specified causes. Such a provision might be treated as ancillary to the nondiscrimination principles and basic protections of liberties. It would furnish a powerful and self-enforcing mechanism against violations of the relevant rights. But to accomplish these purposes, the right to secede is probably too blunt and dangerous an instrument. One might hope that the direct provisions discussed above will be sufficient. More fundamentally, the recognition on paper of a right to secede is unlikely to be a useful supplement if they are not. A state that violates its textual commitments to civil rights and liberties will probably not respect its textual commitment to secession.

A right to secede after an extended period of deliberation would probably be the best of the various alternatives. Through this route it would be possible to reduce some of the risks of an inflamed polity. Indeed, the very difficulty of obtaining secession would deter efforts to seek that remedy unless it seemed necessary, and would diminish the possibility that any threat of secession could disrupt democratic and deliberative processes. For this reason, it could not be said, a priori, that such a system would necessarily be undesirable. But in Eastern European nations with a history of ethnic and religious tensions, even a secession right modified in this way would pose significant risks to self-governance. A prolonged deliberative period over the question of continued ties to the nation could create all of the threats emphasized above. Probably the best result is not to create the right at all.

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Questions and Discussion

1. In his article reproduced above, Christopher H. Wellman defends secession and self-determination. Has he got a point? Discuss the strong and weak points of his argument.
2. Cass Sunstein, on the other hand, has argued against the right to secession. Discuss also the strong and weak points of his argument, and also compare the two positions for their general strengths and weaknesses.

B. Protection of Minority Rights

In this section, you will be introduced to the concept of minority protection. This is one of the important areas in modern constitutional democracy. Individuals and groups that find themselves in minority positions cannot have their rights protected through the democratic processes owing to their numerical inferiority. These sections of the society instead have to rely on the legal protection of their rights through primarily the judiciary, and other institutions.

Normally, minority situations can exist on religious, ethnic, language, or racial grounds, but other types of minority situations also exist. Caste and other social status can also be a reason for a minority status. In Ethiopia, we have ethnic or linguistic-based as well as some caste-based minority groups. The first group of minorities is in fact the most widespread in Ethiopia. The Ethiopian federal system has brought to the spotlight many minority groups. We can look at two

broad categories of minorities in Ethiopia. The first one consists of those small nationalities that are found in different parts of the country. Therefore, all groups that cannot have their representatives elected through a normal election process can be generally categorized as minorities. But, we also have a second group of minorities in Ethiopia, and those are the people who belong to ethnic groups that are not dominant in the states or zones (or *woredas* in some cases) where they live. These are, for example, the Amhara or the Oromo in Gambella or Benishangul-Gumuz regional state. The nature and situation of minorities in Ethiopia require tailor-made legal and policy solutions.

It is perhaps worthwhile to note that, both domestically and internationally, minority rights concerns have come to great prominence. The following two papers will take you through certain major currents of minority rights discourse. These developments must inform and guide protection of minority rights in Ethiopia as well. Since Ethiopia is part of the international community, its laws and institutions are also accountable to the international body of laws in the area.

Kristin Henrard, "The Right to Equality and Non-Discrimination and the Protection of Minorities in Africa," in Solomon Dersso (ed.) *Perspectives on the Rights of Minorities and Indigenous Peoples in Africa* (Cape Town: ABC Press, 2010). Footnotes omitted.

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The theoretical framework of minority protection: Two central themes and two pillars of an adequate system of minority protection

In order to fully capture the various ways in which the prohibition of discrimination (or the equality principle more generally) can be relevant for minorities, it is important to delineate the theoretical background concerning minority protection.

Central themes of minority protection

Two essential goals and themes of minority protection are substantive, real or full equality (as opposed to mere formal equality) and the right to identity.

Substantive equality

Several distinctive conceptions of equality can be distinguished. An important distinction needs to be made between formal equality (or equality as consistency), which sets out to treat everybody in exactly the same way, on the one hand, and substantive, or real or full equality, on the other hand. Full equality acknowledges differences in starting positions which might necessitate differential treatment in order to reach real, effective equality. The latter, namely the need to treat formally differently in order to obtain substantive equal treatment, is coined "the paradox of the equality principle." This was already nicely captured by Aristotle, who argued that likes should be treated alike, while unequal things should be treated differently to the extent of the inequality. In other words, "special" rights or differential rights are not necessarily a contradiction of "equal" rights. Nevertheless, the goal of substantive equality does not allow just any kind or degree of differential treatment. In this regard, real or substantive equality can also be seen as a limit to "special" rights. To the extent that reaching substantive equal treatment might necessitate differential treatment or special rights, these are not meant to be privileges in the sense that they should not go beyond what is necessary to obtain genuine equal treatment. At the same time, the vulnerable position of persons belonging to minorities also necessitates heightened attention for equal access to employment, to public services and effective participation in economic, social and cultural life as well as in public affairs.

While the requirement that “like should be treated alike” is rather important and positive from a minority perspective in that it tackles formal exclusionary rules, minorities also want some differential treatment or special measures (related to their specific characteristics and needs (see below)) in order to experience real, or substantive equal treatment in comparison with the rest of the population.

The right to identity of minorities

While the right to identity remains a rather amorphous concept, which is not neatly circumscribed, it can be argued that when addressing minority protection, the right to identity refers to the various possible distinctive minority characteristics, like language, culture and religion. While the majority language, culture and religion tend to be “automatically” catered for by the authorities, the right to a minority identity is geared towards the (substantively) equal valorisation, protection and promotion of the minority identity.

Since minorities are by definition keen to preserve and promote their identity, they would like to see the recognition of minority language rights (inter alia in relation to public authorities, the recognition of names and topographical indications), and the right to an own lifestyle. A proper preservation and promotion of the minority identity is also dependent on the regulation of education (language in education, religion in education, culture in education, broader curriculum issues) and the media (minority access to the media, minority languages in the media, minority programs, etc.). The instrumental value of education and media is arguably even surpassed by that of political participation. Political participation has potentially a very broad reach, but surely includes “participation in decision making,” which does not only concern election systems and a voice in the legislative process, but also a “reasonable” representation in the civil service, the police and the judiciary. This central importance of adequate participation of persons belonging to minorities, also in relation to the economic progress and development in their country, is explicitly taken up in the UN minority standards. Similarly, the Human Rights Committee’s General Comment on Minority Rights emphasises something which is also important in relation to the prohibition of discrimination, namely, that states have a duty to adopt positive measures of protection also in the horizontal relations between private parties.

It should in any event be highlighted that the concept “minority identity” has strong group connotations, in line with the minority phenomenon itself. Hence, the extent to which a certain mechanism implies a recognition and protection of this group dimension is important to gauge the potential contribution of that mechanism to an adequate minority protection.

Two pillars of an adequate system of minority protection

It is widely accepted that an adequate system of minority protection is constructed on two pillars, the first of which concerns nondiscrimination in combination with individual human rights of special relevance for minorities; the second minority-specific standards aimed at protecting and promoting the right to identity of minorities.

The idea that an adequate system of minority protection (in view of substantive equality and identity considerations) would be built on these two pillars can be traced back to an opinion of the Permanent Court of International Justice, operative during the League of Nations. This thinking has been confirmed by the UN and also broadly by the literature. Nevertheless, it needs to be acknowledged that this position is not universally accepted. There are indeed still academics and states that argue that an effective protection of the first pillar (general human rights in the sense of rights for every human person) would suffice (hence, discarding the need for the second pillar with minority-specific rights in the sense of rights for persons belonging to minorities).

In view of the fact that, to some extent, this rejection of the second pillar is related to concerns about these “special rights,” it should be emphasised that minority rights are not situated outside the human rights framework, but are considered to be part and parcel of it. While this remains at an implicit level in the UN Minorities Declaration, it is recognised explicitly, inter alia in article 1 of FCNM, which reads: “The protection of national minorities and of the rights and freedoms of persons belonging to those minorities forms an integral part of the international protection of human rights.” This statement is important as it denies that “minority rights” are “foreign” to the human rights framework or belong to a totally different universe.

Nevertheless, the fact that minority rights are a component part of the broader human rights framework does not imply that minority rights are necessarily the same as general human rights or that, via the prohibition of non-discrimination, all minority concerns can be addressed and an adequate protection of the right to identity in line with substantive equality considerations can be achieved. As will be further developed below, a lot depends on the actual interpretation of the respective rights. Still, the fact that it was felt necessary to add article 27 to ICCPR arguably means that the rights of persons belonging to minorities were considered to go beyond the general human rights in the sense of rights for every person.

Still, the argument can and is being made that, if certain jurisprudential developments in relation to the first pillar in favour of both substantive equality and the right to identity can be identified (get stronger and consolidate), this might have an impact on the relative importance of the two pillars in relation to the construction of an adequate system of minority protection. The pillar with minority-specific rights might become less important to the extent that certain interpretations of non-discrimination (also relating to its reach) could accommodate/allow or even impose a duty to adopt special minority measures, as this would go a long way in providing minority protection.

While this line of argumentation is not meant to deny the importance of having minority-specific rights, it does point to the possibility of heightened levels of *de facto* minority protection even without minority-specific rights. This is especially important in the African context, where states tend to question whether the concept “minority” is relevant at all, and whether it would capture the reality of disadvantaged groups. Nevertheless, there would still be an added value of (explicit) minority-specific rights since they arguably provide explicit guidelines on the most pressing issues for minorities.

In any event, this possibility of dynamic developments (of interpretation) depends on the willingness of the supervisory bodies (like the African Commission, as well as national courts) to interpret the prohibition of discrimination and general human rights in a way that they indeed further substantive equality and the right to identity of minorities.

* * *

Duty to adopt differential (special) measures (as second dimension of the prohibition of discrimination)

An obligation to differentiate in terms of the demands of equality can be traced back to Aristotle’s formula that unequal or different things should be treated differently to the extent of the difference. The underlying vision of equality is clearly substantive equality. To the extent that more recently such an obligation to differentiate is being identified in terms of non-discrimination, this development would equally imply an opening towards substantive or real, full equality.

It is important to realise that these types of differential measures are not necessarily temporary (in contrast to affirmative action measures). In view of the need for enduring differential treatment in order to protect and promote the separate identity of minorities, this jurisprudential line is

especially relevant for minorities, for example in relation to language rights in communications with public authorities.

It is important to highlight the relationship between this duty to adopt special measures and the duty to reasonable accommodation, which is commonly connected to disabled persons. However, its origins are to be found in the debate about the accommodation of religious diversity (in Canada). Unfortunately, the practice of the UN treaty bodies does not reflect this link (yet), neither is this well developed in doctrinal writings. To some extent, this obligation to adopt differential measures is closely related to an obligation to adopt affirmative action measures. In this respect, reference can be made to the Human Rights Committee's General Comment 18 on non-discrimination, as paragraph 10 explicitly takes up a requirement to take affirmative action which would flow from the equality principle:

The principle of equality sometimes requires state parties to take affirmative action in order to diminish or eliminate conditions which cause or help to perpetuate discrimination prohibited by the covenant.

Similar understandings are visible in the supervisory practice of the other treaty bodies. It is important, though, that this supervisory practice also confirms that the obligation to adopt special measures is not confined to temporary measures aimed at redressing disadvantages from the past. Similarly, this obligation to adopt differential measures can always be translated towards a dimension of the prohibition of discrimination. In other words, an obligation to take affirmative action measures, as well as other "special" measures (not necessarily temporary backward looking measures), could be argued to be inherent in the prohibition of discrimination, in the sense that a failure to take measures

to elevate such groups to a level of equality with other members of society could be regarded as the perpetuation of systematic discrimination and thus states would not be complying with their obligation to ensure equal and effective protection against discrimination.

In relation to the Human Rights Committee, it should be underlined that it has several times in its supervisory practice made recommendations to take positive measures especially with regard to minorities, *inter alia* concerning (additional) training or education in order to enhance employment and higher education possibilities. Also, the Committee on Economic, Social and Cultural Rights (ESCR Committee) has highlighted the obligation to ensure equal opportunities for minorities, including Roma, in several fields, but especially in relation to employment, housing, health and education.

The CERD Committee goes clearly beyond calling for temporary affirmative action measures and provides for structural, institutional measures as well when it underscores that:

Governments should be sensitive towards the rights of persons belonging to ethnic groups, particularly their right to lead lives of dignity, to preserve their culture . . . Governments should consider, within their respective constitutional frameworks, vesting persons belonging to ethnic or linguistic groups . . . where appropriate, with the right to engage in activities which are particularly relevant to the preservation of the identity of such persons or groups.

This has been taken up and further refined in General Recommendation 30 on discrimination against non-citizens, where the Committee underlined that contracting states should ensure the preservation of the culture and the cultural identity of these racial groups (of non-citizens).

Similarly, the CEDAW Committee emphasises in its General Recommendation in article 4(1) that state parties should clearly distinguish between temporary special measures taken under article 4, paragraph 1 to accelerate the achievement of a concrete goal for women of de facto or substantive equality, and other general social policies adopted

to improve the situation of women and the girl child. Not all measures that potentially are, or will be, favourable to women are temporary special measures. The provision of general conditions in order to guarantee the civil, political, economic, social and cultural rights of women and the girl child, designed to ensure for them a life of dignity and nondiscrimination, cannot be called temporary special measures.

Positive action

The starting point needs to be that there is not one set definition of the concepts “positive action” and “affirmative action,” let alone of the relationship between the two concepts. Sometimes positive action is seen as the broader category, including affirmative action; sometimes affirmative action is seen as the wider category. While both concepts concern “special” measures which are aimed at addressing historical and/or structural disadvantages and reaching a higher degree of real or substantive equality, the basic issue seems to be to what extent these measures remain within the realm of “equal opportunities” or go beyond that to the realm of “equality of results,” which tends to be more controversial. Here the concept of “positive action” will be used as the umbrella concept. It should be pointed out that “positive action” is not necessarily limited to redressing historical disadvantages, but can also concern more prophylactic measures which aim at a work force, student body, etc., which is more representative of the population diversity in a state. The aim to address historical and/or structural disadvantages in any event implies an attention for groups and an incorporation of the group justice model.

As most debate in relation to affirmative action centres on its legitimacy or its acceptability, it should be underlined that affirmative action measures must always comply with the principle of non-discrimination.

When the prohibition of discrimination determines the outer limits of legitimate positive action measures, it is obvious that one should discuss the acceptability of positive action in relation to the theory on non-discrimination, developed above. This means that positive measures should serve a legitimate aim and be proportional to that aim. While the legitimate aim of these measures seems a given, namely to contribute to the achievement of substantive equality, there is still the additional need for the measures concerned to be proportional. The proportionality principle arguably underlies the requirement that affirmative action measures should be temporary, which is clearly visible in the text of the related articles in CERD and the Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW), as well as in the supervisory practice of the UN treaty bodies. In relation to special minority rights, reference needs to be made to General Comment 23 of the Human Rights Committee, pertaining to minority rights, in which it is specified that the obligation to take positive measures to protect the identity of a minority is limited by the prohibition of discrimination (and the related requirements).

In relation to the proportionality test, the appropriate level of scrutiny needs to be determined. This is inherently related to the question whether the supervisory body concerned adopts a symmetrical or an asymmetrical approach. In this regard, it should be highlighted that affirmative measures are most often developed in regard to groups that are distinguished on the basis of a “suspect” class, such as gender, race or ethnicity. The treaty bodies are all rather receptive towards positive action measures, also visible above, in their identification of duties to adopt such measures, while acknowledging the limits imposed by the prohibition of discrimination, and also acknowledge that these measures should be seen as an application of not an exception to the equality principle. In relation to the proportionality requirement, it is important to distinguish between different kinds of “positive action” measures, which can be formulated in terms of the distinction between an equal opportunities approach versus an equal results approach, the latter concerning the “stronger” and consequently also the more controversial forms.

When one takes the “equal opportunities approach,” one could define positive action measures as

time-limited positive measures intended to enhance opportunities for historically and systematically disadvantaged groups, with a view to bringing group members into the mainstream of political, economic, social, cultural and civil life.

Especially in relation to the “equality of results” approach, the danger of inadequate qualifications is often highlighted. Nevertheless, it is important to acknowledge, as does the CEDAW Committee, that while this is relevant to some extent, it should not be forgotten that the required qualifications might in themselves have hidden discriminatory features. It emphasises in this respect that

questions of qualifications and merit, in particular in the area of employment in the public and private sectors, need to be reviewed carefully for . . . bias as they are normatively and culturally determined.

The treaty bodies tend to take a rather permissive approach towards one of the strongest equality of results techniques, namely the use of quotas. The Human Rights Committee has revealed this in some of its views, like *Jacobs v Belgium*, but also in some of its concluding observations. For example, in the concluding observations on India of 1998, the Human Rights Committee accepted the use of quotas for improving the representation of women and people belonging to scheduled castes. Arguably, the CEDAW Committee is most outspoken about its promotion of equal results, as it underlines its opinion in General Comment 23 that equality of results is the logical corollary of substantive equality.

Reach of the prohibition of discrimination

Grounds of differentiation: Overlap

Several explicitly enumerated grounds of differentiation pertain to typical minority characteristics, such as religion, race, ethnicity and language. It was highlighted above that differentiations on the explicitly enumerated grounds tended to receive a heightened scrutiny. Nevertheless, not all enumerated grounds attract an equally high level of scrutiny. Race (including ethnic origin and colour) tends to get a very high level of scrutiny, while religion somewhat lower, but still considerably higher than language. Hence, it is important to be aware of the possible overlap between “race” (in the broad sense) and other less protected grounds like language and (often) nonenumerated grounds like nationality.

The practice of CERD Committee clearly acknowledges that there can be an overlap between language and race, or that differentiations on the basis of language could at least amount to indirect racial discrimination. It is equally obvious that “race” and “religion” intersect and overlap, so that is often not easy to tell whether differentiations on the basis of religion amount to direct or indirect racial discrimination (or neither), especially since 9/11 and the rise of Islamophobia. Also according to ECRI (in its General Policy Recommendation on combating intolerance and discrimination against Muslims), racism should include issues of religious discrimination.

Similarly, it is widely understood that there is a considerable overlap between minority ethnic communities and foreigners or non-nationals. In other words, differential treatment on the basis of nationality could possibly hide a differential treatment on the basis of race in the form of covert racial discrimination or unintentional indirect racial discrimination. Nevertheless, CERD (article 1(2)) explicitly excludes differentiations on the basis of nationality from the scope of the prohibition of racial discrimination. In its General Recommendation 25 of 2004 on discrimination against non-citizens, however, the CERD Committee drastically reduces the permissibility of differential treatment on the basis of nationality. It is highlighted that article 1(2) should not undermine the basic prohibition of racial discrimination, which indirectly acknowledges the link with the prohibition of indirect discrimination on the basis of race. In other words, the emphasis now seems to be on the equal enjoyment of human rights and

apart from the right to participate in elections, to vote and stand for elections — rights which are mentioned as such by the Committee as allowing for confinement to citizens — differentiation between citizens and non-citizens with regard to human rights is NO longer permissible.

This position is also reflected in the supervisory practice of other treaty bodies, albeit in different degrees. The International Convention on Economic, Social and Cultural Rights (ICESCR) (like CERD) allows for differentiation on the basis of nationality. While the Committee has not taken an explicit position on this theme in general, it has highlighted in its General Comment on education and water that nationality should not be the basis of differentiation. Arguably, this could indicate a similar development as in terms of CERD to only accept a differentiation on the basis of nationality in very limited circumstances. This in turn would reflect that “nationality” is increasingly considered to be a suspect class, receiving heightened scrutiny.

The Human Rights Committee seems to take an even stricter stance in the sense that its starting point is that “nationality” is a prohibited ground of discrimination (full stop). It underlines that the relevant circumstances in each case should be carefully reviewed to determine whether a differentiation on the basis of nationality is objective and reasonable and seems rather critical towards the justifications offered for such differentiation. For example, in *Karakurt v Austria*, nationality was not held to constitute an objective and reasonable ground for differentiation in relation to the capacity to stand for election for a work council.

Finally, also the practice of the Committee on the Rights of the Child (CRC Committee) reveals that nationality is explicitly recognised as a prohibited ground of discrimination. It is, however, not that obvious whether “nationality” is subsumed under one of the enumerated grounds or under the open ground “other status.”

Discrimination between private parties: (Positive) state obligations?

It is obvious that an effective protection against discrimination implies that there is also adequate protection against private forms of discrimination or discrimination by private actors (and not only by public officials). More specifically, the state obligation to “protect” would imply an obligation to eradicate, prevent and punish discriminatory acts between private persons. When one accepts this type of positive state obligation, the more important and difficult question is how far this obligation would reach. Indeed, it is obvious that the demands imposed on public authorities to ensure this cannot be too far-reaching, let alone absolute. This has not only to do with reasonableness considerations in relation to these public authorities, but also with the tension that these positive duties on public authorities could generate with duties to abstain (from a disproportionate interference with the privacy sphere of private individuals). The related measures would, for example, be related to the assurance that private associations do not discriminate in their membership policies or that private companies do not discriminate against minorities (for example Roma) in their recruiting policies.

At the global level, it seems that, while the Human Rights Committee is willing to go rather far, the text (and the corresponding supervisory practice) of the two issue specific conventions (CEDAW and CERD) goes even further. Arguably, this is typical for instruments that are dedicated to one particular issue in the sense that they are less inclined to balance the demands in terms of the prohibition of discrimination with the demands in terms of other fundamental rights. It should be remembered, though, that even though state obligations to eradicate (and even prevent instances of) private discrimination may seem to go very far, the prohibition of discrimination does not entail a prohibition of all distinctions or differentiations.

Article 2 of ICCPR’s duty to ensure all rights to all persons without distinction seems to indicate that there would be a positive obligation to eradicate private discrimination, which is confirmed by General Comment 28. While this General Comment is focused on gender discrimination and uses

most forceful language in that respect, it contains several statements of more general validity and reach, including the following:

The positive obligations on State Parties to ensure Covenant rights will only be fully discharged if individuals are protected by the State, not just against violations of Covenant rights by its agents, but also against acts committed by private persons or entities that would impair the enjoyment of Covenant rights in so far as they are amenable to application between private persons or entities. *There may be circumstances* in which a failure to ensure Covenant rights as required by article 2 would give rise to violations by State Parties of those rights, as a result of State Parties permitting or failing to take appropriate measures or to exercise due diligence to prevent, punish, investigate or redress the harm caused by such acts by private persons or entities.

These positive obligations are not absolute, though, and arguably would not reach into the purely private sphere, as is arguably implied at by the Human Rights Committee in its view in *Nahlik v Austria*. While the Committee does not make an explicit point about the application or otherwise of positive obligations in the purely private sphere, an *a contrario* reasoning would seem to indicate that the Committee only envisages this kind of positive state obligation in relation to the quasi-public sector. However, it is not entirely clear where the line is drawn, and there will undoubtedly be a considerable grey zone.

Also, in terms of ICESCR, states have a certain (not clearly specified) level of positive obligations to protect against private discrimination, particularly in relation to race (and gender). CERD seems at first sight to impose a strong obligation in this respect in its article 2(1)(d), but also here it does not concern an absolute obligation. The supervising Committee has specified in its General Comment 20 (on non-discriminatory implementation of rights and freedoms) that

to the extent that private institutions influence the exercise of rights or the availability of opportunities, the state party must ensure that the result has neither the purpose nor the effect of creating or perpetuating racial discrimination.

The wording of this General Comment shows that CERD does not impose a positive obligation to prevent and eradicate private discrimination in a comprehensive way, so that every interaction between private persons would be reached. The state obligations in terms of race do seem to have repercussions for employment in private enterprises, to housing provided by private owners or admission to private clubs. In *Miroslav Lacko v. Slovakia*, the CERD Committee underscored that state parties should have legislation expressly prohibiting non-discrimination in access to public accommodations, such as restaurants. Still, the determination of the exact reach of CERD in regard to private actors is far from finalised. Furthermore, CERD contains several provisions that make it mandatory for a state to criminalise racial discrimination and hate speech. The CERD Committee's supervisory practice, and more particularly its views in *Jewish Community of Oslo v Norway*, even reveals that it is not too easily satisfied in this respect.

Both the text and the supervisory practice in terms of CEDAW seem to go (even) further and even require states to outright address private discrimination in the personal sphere. Article 2(1)(e) of CEDAW obliges state parties to take all appropriate measures to eliminate discrimination against women by any person, organization or enterprise. The supervising Committee has confirmed and emphasised this seemingly far-reaching obligations to counter private discrimination in its General Recommendations, including its General Comment 19 on violence against women, General Recommendation 23 (1997) on political and public life and General Recommendation 25. Especially the latter sets out to reach deep into the private domain and interactions between private individuals. Bayefski underscores in this respect that the practice under this Convention has revealed that obligations on the part of the state "extend to inhibiting private actors from interfering

with rights, actors such as husbands, partners or employers.” Nevertheless, it remains true that, while there is clearly an obligation on states to prevent and protect women from gender discrimination by private actors, this is arguably also not an absolute obligation, leaving questions about its exact scope and reach.

Equality and minority protection in the African context

Definition of minorities

Also in the African context there are issues concerning groups with their own, separate identities, that are vulnerable and are confronted with several disadvantages or even situations of systemic discrimination. As always, states tend to want to avoid the recognition of groups as minorities within their territories since they fear that this might lead to the emergence of (stronger) nationalistic movements, and eventually to secession and the breakup of the country.

Particular for the African context is the multinational nature of the societies — states. African states are indeed highly diversified multi-ethnic, multi-linguistic and multi-religious states without a clear majority. In so far as the respective population groups would fulfill the above-mentioned characteristics (own identity, non-dominance, numerical less than the rest of the population and the wish to hold on to this separate identity), they could all qualify as minorities. Nevertheless, it is obvious that such multi-national reality is quite different from the classical European societies (especially pre-immigration). The question of non-dominance is far from evident in several African states, as political dominance does tend to, but does not necessarily, coincide with economic, social and/or cultural dominance. Furthermore, while there are several political parties along ethnic lines, there are constant shifts in alliances and thus political power.

Secondly, it is not easy to neatly distinguish between indigenous peoples and minorities in the African region, which is mainly due to the uncertainties of the use of the former term on a continent that was colonised. While indigenous groups like to distinguish themselves from minorities in view of their claims to stronger rights, this seems less pronounced in the African context. Furthermore, in terms of equality, the issues are similar and hence it is not helpful to discuss this matter further here.

Finally, even though in the African context minorities are primarily thought of in terms of home-grown, “indigenous” minorities, it is arguably important not to exclude immigrants and non-nationals from the minority concept and the ensuing protection. It was emphasised above that not only at the UN level, but also in the European context, this is increasingly acknowledged. Immigrants are also, and maybe even more so in the African context, extremely vulnerable and disadvantaged and hence are confronted with similar problems of social and economic deprivation as indigenous minorities. As to the recognition of their cultural rights (over time), it seems that the sliding-scale approach suggested above would be appropriate as well.

In any event, the prohibition of discrimination on the basis of race, religion or language is a general human right, to which everybody is entitled, irrespective of nationality. In other words, also the immigrants have the right not to be discriminated against, even if one might question their status as minority members. Their vulnerable status and the xenophobic attitudes in society might even enhance the level of protection (the level of scrutiny) which is (should be) adopted in this respect.

In relation to the definition question, it is useful to refer to the supervisory practice of the African Commission, and more particularly its interpretation and use of the term ‘people’ in relation to groups that could qualify as “minorities” according to international law. Notwithstanding the absence of a definition of this concept in the African Charter itself, it is in any event obvious that the African Commission no longer hesitates to regard “peoples” as referring to identifiable ethnic communities. This is particularly obvious in its reporting guidelines on the provisions on peoples’ rights, in which it asks for information on the different sections of the national community. For

example, in relation to article 17, states are requested to provide information on measures aimed at promoting awareness of cultural heritage of ethnic groups and minorities. Also, the African Commissions' case law on peoples' rights has been revealing in this respect, by qualifying the Ogoni in Nigeria as a people, as well as the black Mauritians in Mauritania, and the population of Katanga. An interesting case in this respect is *Legal Resources Foundation v Zambia*, where the African Commission gave a definition of "people" which clearly also applies to "minorities" and this in relation to a group of immigrants, "an identifiable group of Zambian citizens by reason of their common ancestry, ethnic origin, language or cultural habits." Still, to some extent, Dersso's point that the Commission does not indicate whether the peoples/components/sections of the population qualify as minorities, indigenous groups or simply peoples, is valid. Nevertheless, in some of these cases, the African Commission does also use the concept "minorities" when referring to the same groups that have been accepted as "peoples" in terms of the African Charter.

Typical minority concerns in Africa

The 2005 Report of the Working Group of Experts on Indigenous Populations/Communities (African Working Group) shows in relation to indigenous peoples and minorities a dark reality of negative stereotyping, various forms of discrimination, even entailing a lack of effective access to courts and thus a denial of justice, and a marginalisation from essential social services including education, health, and public administration. These groups are also dispossessed of land and natural resources which in turn leads to impoverishment, threatening their culture/separate identity. In addition, the failure to recognise these groups' cultural and language rights, entails their exclusion from education and media, which amounts to a violation of the cultural rights of peoples (article 22 of the African Charter). The Report also highlights the problem of denial of political representation and participation.

The problems outlined above at the same time give a good idea about the issues of special relevance to minorities in the African context. An essential theme is obviously an adequate protection against discrimination and this in all areas of life, including education, health care and other basic services, political participation being of central (instrumental) importance. This enumeration does not yet include issues relating explicitly and directly to the preservation of cultural identity and related language and cultural rights, but it is important to realise that the deprivation in the socio-economic sphere often has extremely negative implications for the maintenance of the separate minority identity of the groups concerned. In relation to the language rights, there are often issues of integration of minority languages in national educational and administrative systems, while these groups feel also very strongly about the protection and promotion of their culture, which also has repercussions for the educational curriculum. The right to identity of these groups is opposed to the policies of assimilation or homogenisation conducted by several states.

An adequate participation in public life is obviously of central importance for the effective realisation of the other minority concerns. As highlighted above, in addition to participation within the broader national political and public life, participation concerns also include wishes of self-government and autonomy, especially for those groups that are territorially concentrated. While development is very important to counter disadvantages in the socio-economic sphere, it is from a minority perspective, also in Africa, essential that this happens in a culturally appropriate manner.

Equality standards

Three provisions in the African Charter are relevant in terms of equality: articles 2, 3 and 19, the first two of which are framed in terms of rights of every individual; the last one in terms of a right of peoples. Article 2 contains the typical prohibition of discrimination, but is framed in terms of "without distinction," instead of "without discrimination." As in the case of article 2 of ICCPR, the jurisprudence of the supervisory body has clarified that the word "distinction" should be read as

“discrimination,” in the sense that not all distinctions are prohibited discriminations. While article 2 of the African Charter is a parasitic provision and only applies to the rights and freedoms enshrined in ICCPR, in this particular case, and more specifically because the African Charter codifies the three generations of human rights, it is still possible to argue that it applies to all areas of life.

Finally, the formulation “of any kind such as race, ethnic group, colour, sex, language, religion, political or any other opinion, national and social origin, fortune, birth or other status” underscores that the prohibited grounds of discrimination are not exhaustive. In any event, several grounds can be considered to be of special relevance to minorities (in light of the above discussion), namely, “race, ethnic group, colour . . . language, religion . . . national and social origin.” It should be underscored that it is quite unusual to have an explicit mention of “language” as a prohibited ground of discrimination. Nationality is, in line with general practice, not explicitly enumerated, but the practice of the African Commission underscores the equal enjoyment of rights between nationals and non-nationals (see below on level of scrutiny).

The possible overlap between race and religion, race and language, is less relevant because there are no (clear) differences in the level of scrutiny depending on the ground of differentiation. In relation to nationality the story is a bit mixed (see below), and here the recognition of an overlap with race could be important.

Article 3 explicitly addresses “equality before the law” and “equal protection of the law.” The available case law demonstrates though that it is seldom used, in the sense that there is hardly argumentation in terms of article 3, even if it is invoked by the applicants. In *Purohit and Another v The Gambia*, the African Commission merely stipulated that “article 3 is important because it guarantees fair and just treatment of individuals within a legal system of a given country,” which arguably does not add much concrete content to the provisions concerned. On the other hand, sometimes the African Commission talks about equality before the law in its evaluation of article 2 of the African Charter, again without much argumentation, though. If anything, these statements should be understood as underscoring the close interrelation of the various dimensions of the equality principle.

Finally, article 19 of the African Charter proclaims that all peoples shall be equal and that nothing shall justify the domination of a people by another. This can be seen as implying a prohibition of discrimination against a people. However, the African Commission did not even attempt to clarify the relationship between articles 2 and 19 in the one case, which gave it an excellent opportunity to do so. Indeed, the complainants in *Malawi African Association and Others v Mauritania* argued that at the heart of the abuses alleged in the communications is the question of the domination of one section of the population by another. The resultant discrimination against black Mauritians is, according to them, the result of a negation of the fundamental principle of equality of people and a violation of article 19. The African Commission rejected this argument because “the information made available to it does not allow it to establish with certainty that there has been a violation of article 19 of the Charter along the lines alleged here.” The Commission could have helped future complainants if it had indicated what kind of evidence it would need to find a violation of article 19 and, more particularly, how evidence in terms of article 2 is related to evidence in relation to article 19. A central issue here is the relationship between individual rights and group rights, and how violations of individual rights can translate into a violation of a group right. Considering the underlying reality of the case, it is a bit strange that the proof that has obviously been provided of multiple, if not massive, violations against black Mauritians would not qualify as a violation of the right to equality of the people(s) concerned, especially in view of the fact that the government did not deny massive human rights violations.

Equality jurisprudence: More in-depth discussion of the jurisprudence of the African Commission on Human and Peoples’ Rights in terms of article 2

The first general remark that needs to be made concerning the equality jurisprudence of the African Commission is that it is not very developed in the sense that it does not know several of the more technical approaches that have been outlined above. In other words, it is difficult, if not impossible, to identify several of the so-called relevant themes. It is even possible to detect confusion about the similarities/differences between legitimate limitations to human rights generally, on the one hand, and the reasonable justification test in relation to non-discrimination on the other.

The African Commission has so far not really picked up on the two phase review model which has been developed in international law. In most of the cases it deals with, the Commission notes that someone has been singled out for disadvantaged treatment, for example on the basis of ethnic origin (without clarifying what type of proof is adduced and thus also without providing indications about the requisite standard of proof) and concludes then that article 2 of the African Charter has been violated. Consequently, there is no definition of what amounts to a *prima facie* case of discrimination, let alone what are the possible standards of justification that need to be met by the respondent state and, importantly, there is also no specification of the level of scrutiny adopted to assess these justifications.

At the same time, this absence of structuring in terms of the model of review also entails lacunae in several other respects, highlighted as being of relevance to determine either to what extent the prohibition of discrimination opens towards substantive equality or the actual reach of the prohibition of discrimination. The absence of reasoning along a certain model of review (as can be deduced from the practice of the European Court of Human Rights (European Court), the Inter-American Court and various UN treaty bodies) is remarkable because the African Commission is supposed to rely on appropriate and relevant international and regional human rights instruments, principles and standards when interpreting and applying the African Charter. Nevertheless, the African Commission does take into account relevant international human rights instruments in ways which (at times) clarify the relation between equality/non-discrimination and minority protection. Its analysis in *Malawi African Association and Others v Mauritania* is in two respects revealing. It refers to the UN Declaration on the Rights of People Belonging to National or Ethnic, Religious and Linguistic Minorities and, more importantly, in a way which underscores that the goal of the Minorities Declaration is also the elimination of all forms of discrimination and to ensure equality among all human beings. It furthermore indicates that it considers this striving for equality (and absence of discrimination) as equivalent to the state obligation to protect the separate identity of the minorities.

Substantive equality

There are no clear indications about variations in the level of scrutiny adopted, depending on the ground of differentiation. In relation to differentiations on the basis of ethnic origin or race, the summary reasoning could be understood as reflecting the fact that differential treatment on the basis of ethnic origin would in principle never be justifiable (reflecting heightened scrutiny). However, in *Purohit and Another v The Gambia*, the African Commission's reasoning to conclude to a violation of article 2 was similarly (over)-concise while it did not concern the ground "ethnicity" but "wealth."

In the *Mauritania* case, the African Commission emphasises that
for a country to subject its own indigenes to discriminatory treatment only because of the colour of their skin is an unacceptable discriminatory attitude and a violation of the very spirit of the African Charter and of the letter of art[icle] 2.

This could be read as implying *a contrario* that differentiations on the basis of the colour of one's skin are not (as problematic) against immigrants. This stands in contrast with an earlier case in which the African Commission underscores that human rights are rights for everyone, irrespective

of nationality, implying that also immigrants should benefit from the protection against racial discrimination.

In line with the lack of detailed argumentation of the African Commission, it is similarly unclear whether the enumerated grounds are screened with a different level of scrutiny in comparison with the other grounds (covered by the open ground “or other status”). Strikingly, in the case law nothing can be deduced about openings towards substantive equality. While there is no mention or recognition of the phenomenon of indirect discrimination, the African Commission is also clearly concerned about discriminatory effects. Nevertheless, a lot remains to be gained in terms of the explicit recognition of this phenomenon, in view of its opening towards substantive equality, its strong group component and the potential of an effective protection against indirect discrimination for minorities (who so often are victims of this kind of “silent” discrimination). It can be argued that, at least in some of the cases on article 2 before the African Commission, this phenomenon did play, more particularly when in the phase of the application of neutral rules, an important role. Similar arguments can be made in relation to the recognition of a duty to treat differently situations that are substantively different. The African Commission has so far not dealt with cases on positive action, and hence it is difficult to gauge its approach in this respect.

Reach of the prohibition of discrimination

The jurisprudence of the African Commission does not clarify in any way the respective meaning of the enumerated grounds of prohibited discrimination. Possible overlaps between religion and race, or language and race or nationality and race are hence not addressed by the Commission. These overlaps would be especially relevant in case of different levels of scrutiny (also in combination with the recognition of indirect discrimination).

It was already hinted above that, despite the parasitic nature of the prohibition of discrimination, which needs to be linked to rights enshrined in the African Charter, the actual reach of the prohibition of discrimination is virtually boundless. Indeed, as the three generations of human rights are included in the African Charter, it seems hard to imagine what issues would not be covered.

This is furthermore confirmed in the jurisprudence of the African Commission, which covers a wide variety of themes, not only the more typical issues of racial discrimination against particular groups, including denial of work, food aid and education, as well as attacks on individuals on account of their religious persuasion and persecutions to cause conversion to Islam, but also mass expulsions of particular ethnic groups, and even the impossibility to become president for those whose parents are not natives of the country concerned. The African Commission has also used article 2 of the African Charter to protect linguistic rights, including the right to speak one’s own language.

Finally, in regard to reach, the study of the relevant opinions of the African Commission has not revealed a recognition of a positive state obligation to provide (some) protection against private discrimination. Nevertheless, the 2005 report of the African Working Group argues that articles 2 and 3 of the African Charter imply a duty on states to protect indigenous groups against discrimination by private individuals. As there is no reference to particular cases, this statement seems to reflect a teleological interpretation of the provisions concerned. This is in line with the more general reference in the report to the horizontal applicability of the African Charter, which is borne out by the African Commission’s opinion on the cases against Sudan.

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Robert Dunbar, “Minority Language Rights in International Law,” in *The International and Comparative Law Quarterly*, Vol. 50, No. 1 (2001). Footnotes omitted.

The Parameters of Minority Language Rights

Before considering the content of minority language rights in international law, it is useful to consider what forms of expression are protected – the question of what constitutes “language” – and the identity of the beneficiaries of such rights -- in particular, the question of who is entitled to claim such rights.

The Meaning of “Language”: What is Protected?

While language is referred to in many international instruments, none address the fundamental question of what constitutes a language, of what forms of expression are entitled to protection. Do, for example, language rights extend to speakers of particular dialects? Article 1, paragraph a of the Minority Languages Charter makes clear that the “regional or minority languages” protected thereunder do not include dialects of the official language of the State; it does not, however, provide any guidance as to how to determine whether a form of speech is a dialect of an official language or a distinct language.

In the absence of a legal definition of what constitutes “language,” reference could be made to criteria which linguists use to distinguish a language from a dialect. Unfortunately, this distinction is “one of the most difficult theoretical issues in linguistics.” A test which is often used is that of “mutual intelligibility;” that is, if two forms of language are mutually intelligible, they are considered to be dialects of the same language. A common problem, however, is that two forms of speech which are recognised as regional dialects of a single language may not always be mutually intelligible in their spoken form; at the same time, each may be intelligible to speakers of a neighbouring dialect of another language. A second problem is that forms of language which are easily mutually intelligible in their spoken form may be written in different scripts; it is not clear whether language should be determined by reference to speech, script or both. Ultimately, the distinction between a language and a dialect is often based on political and historical rather than linguistic reasons.

Tabory has argued that a legal distinction between language and dialect is legitimate, “for otherwise the fragmentation of dialects, and even accents, claiming linguistic rights would be endless.” While this concern with an “endless” expansion of claims for minority language protection is reasonable, it is not clear that a distinction based on dialect is always appropriate, particularly given the principles which may underlie the protection of minority languages in the first place. Ramaga offers useful guidance:

Because minority protection concerns actual or perceived risks to a distinct group, the precondition to protecting linguistic minorities must be distinguished from general recognition of languages, which may belong to minorities or majorities. The need for protection necessarily implies that “language” must refer not to any distinct form of speech, but to those forms whose distinctness arouses, or is likely to arouse, group conflict or domination . . . “Language” cannot, therefore, be interpreted in a solely linguistic sense to exclude such aspects as script, which may serve as symbols of group identity and form a heritage rooted in culture or religion.

The same could presumably be said of dialect. If language rights are founded on the concept of linguistic security, it is difficult to see why speakers of particularly marginalised or disadvantaged dialects should necessarily be excluded from legal protection. If language rights are founded on the concept of the positive value of linguistic diversity, it is difficult to see why particularly threatened dialects should necessarily be excluded.

Uniquely amongst the various instruments, the Minority Languages Charter effectively creates different classes of linguistic communities, some of which are entitled to considerable support and some of which are entitled to no support whatsoever. The charter provides for measures of support to two types of languages: the “regional or minority languages” of its title, and certain “non-

territorial languages.” Article 1, paragraph a defines “regional or minority languages” as those which are traditionally used within a given territory of a State by nationals of the State who form a group numerically smaller than the rest of the State's population, and which are different from the official language(s) of the State. Both this paragraph and paragraph of the explanatory report make clear that the languages of recent immigrant populations are excluded. As noted, the definition also specifically excludes dialects of the official language(s) of the State.

The other category of language to which the Minority Languages Charter applies, the “non-territorial languages,” is defined in Article 1, paragraph c to include languages used by nationals of the State which differ from the language or languages used by the rest of the State's population, but which, although traditionally used within the State, are not associated with any particular geographical area within the State. In the explanatory report, Yiddish and Romany are given as examples. Both the “regional or minority languages” and the “non-territorial languages” of a State are entitled to the benefit of Part II of the Minority Languages Charter, which contains some general objectives and principles to which the State is required to adhere, but only the “regional or minority languages” are entitled to the benefit of Part III of the charter, which contains the more detailed and specific positive measures of support which the State is required to take in various areas, such as education, the media, and so forth. Since it is up to a State which of its “regional or minority languages” it will specify for the purposes of the Part III, and since a State is given a wide discretion as to which Part III measures it will apply to any language so specified, there is not even a guarantee that each regional or minority language will be treated in the same way.

The hierarchy of forms of language that is created under the Minority Languages Charter and the complete exclusion of certain linguistic minorities from its protection is in part explained by its overriding preoccupation with the more threatened autochthonous language communities of Europe, but is at odds with the notion that minority language rights are founded on the dignity of the person and are therefore in principle universal, fundamental rights to which all individuals are entitled. Even when viewed as a measure to promote linguistic diversity for its own sake, the charter is flawed. It contemplates that certain threatened languages, the “non-territorial languages” and those “regional or minority languages” not designated under Part III, will have less protection than the “regional or minority languages” which are ultimately designated under Part III. Such differential treatment will not, however, necessarily be based on any objective assessment of the linguistic needs of the threatened languages themselves. Romany or Yiddish may, objectively speaking, be more seriously threatened than many of the regional or minority languages which will be designated by States for Part III protection, and yet will receive less significant support under the charter.

The Beneficiaries of Minority Language Rights: Who is Protected?

Generally, individuals are the beneficiaries of minority language rights in international law; none of the instruments confers rights on groups without reference to persons who are members of such groups. Some rights, however, are contingent on the individual beneficiary being a member of a group, such as a linguistic “minority” or a “national minority:” this is particularly true of many of the rights which could be considered as measures of linguistic promotion. Take, for example, Article 27 of the ICCPR, which provides that “[I]n those States in which ethnic, religious or linguistic minority exists, persons belonging to such minorities shall not be denied the right, in community with other members of their group, to enjoy their own culture, to profess and practice their own religion, or to use their own language” (emphasis added). While the Article 27 right is enjoyed by individuals, in order to claim the protection of Article 27, both a “minority” must exist and the individual must be a member of that minority. The identification of the existence of a minority is complicated by the fact that the concept is not defined in Article 27, and has never been adequately defined in international law.

It was in part to avoid the intractable difficulties in defining “minorities” and “national minorities” and in determining membership in such groups that the authors of the Minority Languages Charter

linked State obligations to languages themselves. The charter makes clear that it does not create any legally enforceable rights for the minority language communities or for individual speakers of the protected languages. By avoiding an approach based on individual or group rights, however, the authors of the Minority Languages Charter, the first international instrument directed solely at minority language communities, have missed an opportunity to advance the notion that minority language rights are fundamental human rights under international law. Indeed, the charter does not go as far in this regard as the Framework Convention, the other recent minority instrument which imposes legally binding international obligations on States, because many of the provisions of the Framework Convention are framed in terms of individual rights enjoyed by members of national minorities.

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The Content of Minority Language Rights II: Regimes of Linguistic Promotion, or Language Rights as “Positive” Rights

As noted above, the recent minorities instruments have gone beyond a regime of linguistic tolerance and have recognised the importance of “positive” linguistic rights – rights which impose obligations on States to provide positive measures of support to speakers of minority languages. Indeed, the UN Human Rights Committee has indicated that even under Article 27 of the ICCPR, which merely provides that States shall not deny members of linguistic minorities the right to use their own language, “positive measures by States may also be necessary to protect the identity of a minority and the rights of its members to enjoy and develop their culture and language . . . in community with other members of the group.” There is growing recognition that the threat posed to such languages is due “at least as much to the inevitably standardising influence of modern civilisation and especially of the mass media as to an unfriendly environment or a government policy of assimilation.” In this social context, the Minority Languages Charter recognises that a regime of linguistic tolerance is not, by itself, sufficient to meet the needs of minority linguistic communities, a point which is recognised explicitly in the explanatory report:

Having regard to the present weakness of some of the historical regional or minority languages of Europe . . . the mere prohibition of discrimination against their users is not a sufficient safeguard. Special support which reflects the interests and wishes of the users of these languages is essential to their preservation and development.

Thus, in Article 7(1), the Minority Languages Charter requires States to, among other things, take positive steps to meet “the need for resolute action to promote regional or minority languages in order to safeguard them.”

All of the recent minorities instruments support in principle this approach. For example, Article 1, para. 1 of the UNGA Minorities Declaration provides that “States shall protect the existence and the national or ethnic, cultural, religious and linguistic identity of minorities within their respective territories and *shall encourage conditions for the promotion of that identity*” (emphasis added). Furthermore, Article 1, Para. 2 provides that “States shall adopt appropriate legislative and other measures to achieve those ends.” The obligation to take measures to create favourable conditions for linguistic minorities to express their characteristics and develop their language is reiterated in Article 4(2). Article 33 of the Copenhagen Declaration contains a similar statement of obligation, as does Article 5(1) of the Framework Convention. Indeed, Article 4(2) of the Framework Convention explicitly recognises that effective equality requires more than simply non-discrimination, and that positive measures are also required. The recognition of the need for positive measures of State support is an important development; it seems to give legal expression to the concept of “difference aware” equality. Once again, though, only the Framework Convention, a regional instrument, creates binding obligations, and even these obligations are only subject to verification through a system of State reporting.

Educational Rights

Both minority language activists and linguists have placed considerable importance on the role of minority language education in language maintenance and revitalisation efforts. A recent OSCE report noted that

The fulfilment of the basic human right of persons belonging to national minorities to “use their language” (ICCPR, art. 27) naturally depends upon their ability to know the language. As stated in The Hague Recommendations, “the right of persons belonging to national minorities to maintain their identity can only be fully realised if they acquire a proper knowledge of their mother tongue during the educational process.” Although the oral aspect of the language may be passed on within a family, the written and literary aspects require the active commitment of educational institutions.

While the recent minority instruments contain certain “positive” linguistic rights in this area, the guarantees are, at best, equivocal. They also illustrate an important limitation in a rights-based approach to language maintenance, even one which accepts the crucial importance of “positive” rights.

With regard to the provisions themselves, in addition to encouraging States to take measures to promote knowledge of the history, traditions, language and culture of minorities among the general population, these instruments impose an obligation on States to ensure that, “wherever possible,” members of linguistic minorities may have “adequate opportunities” to learn or have instruction in their mother tongue. The parallel provision in the Framework Convention contains a less conditional and less ambiguous statement of the same principle. Less clear, however, is how this right is to be delivered and the practical extent of the State obligation.

Article 32.2 of the Copenhagen Declaration provides that persons belonging to a national minority have the right to establish and maintain their own educational institutions, for which they can seek private as well as public assistance, although the Article imposes no requirement on States to actually provide such assistance. Article 13(1) of the Framework Convention expresses essentially the same right, although Article 13(2) makes clear that this right does not imply any financial obligation on the State. At the end of the twentieth century, where universal public education is the norm, at least in developed States, the right to set up schools without any guarantee of State support is a hollow right at best, particularly in the context of minority language communities, which are often economically as well as linguistically weak and vulnerable.

Article 14 of the Framework Convention is even more troubling. Paragraph 1 thereof asserts the right of every person belonging to a national minority to learn his or her minority language. Paragraph 74 of the explanatory report amplifies this, stating that this right “concerns one of the principal means by which [members of a linguistic minority] can assert and preserve their identity.” The paragraph adds that “[t]here can be no exceptions to this.” Yet, it is again unclear how this right is to be realised, as the same note goes on to add that paragraph 1 of Article 14 “does not imply positive action, notably of a financial nature, on the part of the State.” Paragraph 2 of the Article seems to impose a special obligation to provide “adequate opportunities” to members of national minorities to be taught the minority language or to receive instruction in this language. The former seems to imply language classes in the minority language in the broader context of majority language education, while the latter seems to suggest full minority language-medium education. Paragraph 77 of the explanatory report acknowledges that the Article does not impose any obligation on the State to do both, with the result that the State may satisfy its obligations by providing less than full minority language-medium education.

However, the right set out in Article 14(2) is subject to other important qualifications. First, it applies only in areas inhabited by persons belonging to the national minority “traditionally” or “in substantial numbers.” Significantly though, Article 16 of the Framework Convention attempts to prevent States from avoiding their obligations under this and other similar provisions by providing that States are prohibited from making deliberate changes to the demographic composition of a

region in which a minority is settled (by gerrymandering or otherwise) which is to the detriment of the minority or its rights. Second, even in the areas where the language is spoken “traditionally” or “in significant numbers,” the right applies only where there is “sufficient demand.” There is no indication of how sufficiency of demand is to be determined; presumably it is up to the State itself, because paragraph 75 in the explanatory report makes the point that the Article was drafted to give States “a wide measure of discretion,” and paragraph 76 implies that the determination is to be made by the State alone. Third, even where there is sufficient demand, States are only required to “endeavour to ensure, as far as possible and within the framework of their education systems” that the right is provided (emphasis added). Again, paragraph 75 in the explanatory report expresses sympathy with States for the “possible financial, administrative and technical difficulties associated with instruction of or in minority languages,” and that such provision can only be “dependent on the available resources” of the State concerned.

In short, the conditions which have been attached to this positive obligation fundamentally compromise its effectiveness. By contrast, Article 8(1) of the Minorities Protocol to the ECHR contained a much less ambiguous statement of the right to minority language education. This article provided that “[e]very person belonging to a national minority shall have the right to learn his/her mother tongue and to receive an education in his/her mother tongue at an appropriate number of schools and of State educational and training establishments, located in accordance with the geographical distribution of the minority.” As noted, however, the Minority Protocol was never adopted by the Committee of Ministers of the Council of Europe, and therefore creates no binding international legal obligation.

Even a clearer State obligation with respect to minority language education would not, however, address one of the most fundamental problems, namely, the role of the minority language community in the design and control of such education. This, indeed, is a major problem with many of the “positive” rights relating to essential services of a broadly cultural nature, such as education and broadcasting. The assumption behind these “positive” obligations is that if the State is simply required to provide these services through the minority language, all problems will be resolved. However, linguists recognise that the content of curriculum or of broadcast programming, the incentive structures in the delivery of such services, including promotion and other rewards, and other similar design and implementation issues can have a profound effect on the success of such measures in protecting the language community. Even if State obligations with respect to the provision of these minority language services were not so hedged with conditions and exceptions, the unilateral control by the State, and by implication the majority language community, of the power to make fundamental decisions about the structure of the service would still pose fundamental problems.

In this and other areas, the Minority Languages Charter has significantly broadened and deepened our understanding of the sorts of measures of positive support which States may employ. In particular, Part III of the Charter sets out detailed measures of linguistic support in 65 different paragraphs and subparagraphs in seven separate Articles, each devoted to a major policy area: Education (Article 8), Judicial authorities (Article 9), Administrative authorities and public services (Article 10), Media (Article 11), Cultural activities and facilities (Article 12), Economic and social life (Article 13), and Transfrontier exchanges (Article 14). With respect to education, for example, the charter contains a wide range of provisions with respect to both the teaching of and the teaching through the medium of the regional or minority language at the pre-school, primary, secondary and tertiary levels, as well as the training of teachers and the monitoring of performance.

All of the Part III obligations are, however, subject to many of the same qualifications as the provisions in the various recent minorities instruments, in particular, the test of demand sufficiency as a precondition to the creation of any State obligation. For example, the obligation to provide services under the various articles in Part III of the Minority Languages Charter is generally limited to those geographic areas within the State “in which the number of residents using the regional or

minority language justifies the measures,” or to “within the territories [within the State] in which [regional or minority] languages are used.” Article 1, paragraph b defines the phrase “territory in which the regional or minority language is used” as “the geographical area in which the said language is the mode of expression of a number of people justifying the adoption of the various protective and promotional measures provided for in the Charter.”

Thus, both of these formulae essentially link any State obligation to numerical criteria. Even in such areas, the provision of specific minority language services is further limited to cases where there is sufficient demand for that particular service. As is the case in the various recent minorities instruments, these restrictions are essentially a reflection of State concerns about both potentially open-ended spending commitments and potential shortages of minority language speakers to provide such services if the obligation to provide such services was absolute. However, as was already noted, they are inconsistent with the notion that minority language rights are fundamental rights.

A second major qualification with respect to the Minority Languages Charter is that it gives States a wide discretion in the choice of positive measures of support which they are obliged to implement under Part III. States need only specify measures in 35 of the 65 paragraphs and subparagraphs in Part III, and since the detailed measures range from the relatively weak to the quite strong, there is no guarantee that States will assume those obligations which are necessary and appropriate for the regional or minority language in question. If the intended progressive ratchet effect works, it may first extend protection after the demise of some minority languages.

The Right to Use a Minority Language in Official Contexts

There are a number of provisions in the recent minorities instruments which deal with the right to use a minority language in official contexts. Such a right ensures that linguistic minorities may be able to understand governmental policies which affect them, express their views on such policies, and generally to become more active in the civic life of the State. Article 10(2) of the Framework Convention provides that

[I]n areas inhabited by persons belonging to national minorities traditionally or in substantial numbers, if those persons so request and where such a request corresponds to a real need, the Parties shall endeavour to ensure, as far as possible, the conditions which would make it possible to use the minority language in relations between those persons and the administrative authorities.

This echoes and to some extent expands upon the principle set out in Article 34 of the Copenhagen Declaration. Article 10(2) suffers from many of the same fundamental weaknesses as the provisions in the Framework Convention on education: the right is territorially limited, and in any case only requires of the State to “endeavor” to fulfill the demand “as far as possible.” Paragraph 64 of the explanatory report justifies this “wide measure of discretion” given to States “in recognition of possible financial, administrative, in particular in the military field, and technical difficulties” associated with minority language use in official contexts such as these. The note specifically provides that the financial resources of the State may be taken into consideration here.

States are apparently concerned that it may be difficult to recruit civil servants who speak the minority language. Yet, strangely, the discretion itself allows States to avoid taking the very measures necessary to redress such shortages. Finally, Article 10(2) makes the provision of the right contingent on need, rather than demand: it provides that speakers of minority languages must themselves request the minority language service, and this request must “correspond to real need.” Paragraph 65 of the explanatory report makes clear that the State alone will assess this need, but that it is to apply unspecified “objective criteria.” This condition is potentially more limiting than demand contingency; if, for example, there is considerable demand, but those requesting the

services are fully bilingual, is there any “real need?” A more effective provision from the point of view of language maintenance and revitalisation would require the need to be assessed primarily on the requirements of the minority language community in its efforts at language maintenance and revitalisation, as determined by it or with its significant input.

Article 7(3) of the Minorities Protocol to the ECHR provided a much clearer expression of the right of the minority language community to the use of its mother tongue in contacts with the authorities. Significantly, it is the only provision which extended this right to proceedings before the courts and legal authorities, thereby addressing the shortcomings of the ICCPR and ECHR provisions described in section 3 of this paper.

In this area as well, the Minority Languages Charter significantly deepens our understanding of the sorts of positive measures of support which States may undertake. In Article 9, “Judicial Authorities,” the charter contains detailed provisions with respect to the use of regional or minority languages in the civil and criminal courts and before administrative tribunals, with regard to the legal effectiveness of a range of documents in the regional or minority language, and in relation to the dissemination of important legal texts through the medium of such a language. In Article 10, “Administrative authorities and public services,” the charter contains a wide range of provisions with respect to the use of the regional or minority language by the public in dealing with public bodies, and with respect to the use of the language in the internal operation of such bodies. These obligations are, however, subject to the same limitations described above.

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Access to Media

The pervasive presence of modern communications media and their profound impact on both patterns of language use and language maintenance efforts cannot be overstated. Yet the importance of media is by and large not reflected in most of the recent minorities instruments. As noted above, Article 19(2) of the ICCPR provides that the right to freedom of expression includes the “freedom to seek, receive and impart information and ideas of all kinds, regardless of frontiers, either orally, in writing or in print, in the form of art, or through any other media of his choice.” Article 9(1) of the Framework Convention ensures that this freedom shall be enjoyed by members of a national minority through the medium of the minority language.

* * *

The Right of Linguistic Minorities to Participate in Decisions which Affect Them

The importance of minority language community involvement in the design and implementation of policies affecting them was discussed above, in the context of minority language education. The recent minorities instruments do make some attempt to address this crucial issue. For example, both Article 2(3) of the UNGA Minorities Declaration and Articles 33 and 35 of the Copenhagen Declaration provide that persons belonging to linguistic minorities have the right to participate effectively, both nationally and regionally, in decisions which affect their language community. Article 5(1) of the UNGA Minorities Declaration also requires that national policies and programs be planned and implemented with due regard for the legitimate interests of linguistic and other minorities. Article 35 of the Copenhagen Declaration “notes” efforts of certain States to protect and promote minority linguistic identity by establishing appropriate local or autonomous administrations for such minorities, but does not create any obligation for States to establish such autonomy; by contrast, Article 11 of the Minorities Protocol did establish a right to a measure of autonomy for minorities “in regions where they are in the majority,” and in Article 13 provided protection to members of the majority who thereby themselves become a minority. Of course, none of these provisions create binding obligations under international law.

The one binding obligation, in Article 15 of the Framework Convention, is by comparison very vague, requiring only that States “create the conditions necessary for the effective participation of persons belonging to national minorities in cultural, social and economic life and in public affairs, in particular those affecting them.” The explanatory note suggests, for example, that States could meet this obligation by promoting “consultation” with persons belonging to national minorities when States “are contemplating legislation or administrative measures likely to affect them directly,” and “involving these persons in the preparation, implementation and assessment of national and regional development plans and programs likely to affect them directly.” Presumably, this weak obligation is not engaged with respect to measures, which affect the minorities only indirectly. And while the note suggests that persons belonging to national minorities should be entitled to “effective participation” in “the decision-making processes and elected bodies both at national and local levels,” this also does not guarantee their effective participation in, to say nothing of their control over, decisions on matters which directly or indirectly affect them.

Even the Minority Languages Charter imposes no significant requirement to involve the regional or minority language community in the decision-making and linguistic planning process. Article 7(4) only requires that in determining their policies, States take into consideration the needs and wishes expressed by such communities, and encourages States to set up bodies to advise authorities on all matters pertaining to regional or minority languages.

Limits on the Rights of Linguistic Minorities

Finally, it should be noted that all of the recent minorities instruments impose limits on the positive rights conferred on linguistic minorities. Essentially, some provide that the exercise of the positive rights shall not impinge on the basic civil and political rights of others. Also, they take pains to ensure that the provision of positive measures of support shall not in any way compromise the territorial integrity and political unity of the State. These latter provisions are, of course, motivated by the concern that minority issues should not be used to advance secessionist or irredentist causes.

Since these recent minorities instruments create positive rights for minorities, there is the possibility that majorities could argue that measures taken in support of these rights themselves violate the fundamental principle of non-discrimination, described above in part 3 of this paper. Given that these rights do not create special privileges for linguistic minorities, but only try to provide them with access to the same linguistic rights and privileges as the majority enjoy, such arguments are not convincing. However, for greater certainty, Article 8(3) of the UNGA Declaration on Minorities makes clear that measures taken by States to ensure enjoyment of minority language rights shall not *prima facie* be considered to be discriminatory.

Discussion

Henerard and Dunbar discuss important developments under international law regarding minority rights. Study their materials thoroughly again and see how far the developments and clarifications of minority rights under international law could be used, for example, to enrich the language rights of the Ethiopian Constitution.

Assefa Fiseha, “Intra-Unit Minorities in the Context of Ethno-National Federation in Ethiopia” 13(1) *Utrecht Law Review* (2017) 170. Footnotes omitted.

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4.1. Power sharing and Non-territorial autonomy

In response to mobilized, territorially grouped ethno-national groups that suffered at the hands of centrist and homogenizing regimes, political autonomy in the form of self-rule within a federation has been a common and advanced political solution. Yet among the severe criticisms presented against territorial autonomy granted to ethno-national groups is that it replicates the problems of 'the nation state' at constituent unit or local government level and creates a titular and dominant ethno-national group which itself may turn into an autocrat at constituent or local government level. The combination of the titular ethno-national group, exclusive conception of territory at constituent unit level and majoritarian democracy reinforces the titular nation's dominance leading to what Karl Renner argued as 'If you live in my territory you are subjected to my domination, my law and my language.' This perpetuates domination and subordination. It does not ensure self-government for all inhabitants in the constituent unit but ensures self-government to the titular ethnonational group alone. It becomes an instrument of domination – sub-unit minorities simply change masters: the old master against which the new titular nation fought and secured political autonomy is now gone and replaced by the new master – the titular ethno-national group that enjoys political autonomy alone – resulting in what Mahmood Mamdani called 'decentralized despotism' or more appropriately local tyranny.

However, it is possible to construe a different conception of territory and notion of autonomy where the titular ethno-national group may continue to enjoy self-rule and yet the territory is not considered as exclusive but as a shared common good in which intra-unit minorities that live within the constituent units or local government can also have political and cultural space. Intra-unit minorities in the constituent units will also be part of the political decision-making. The above conception of territory takes into account the heterogeneity of the population inhabiting the territory. It is what Palermo calls 'autonomy of' all inhabitants in the constituent unit, not autonomy for a particular ethno-national group because in the real world sub-units in a federation are never homogenous (no necessary overlap between the ethno-national group and the territory). The issue of designing an inclusive governance system and accommodation of diversity remains crucial within the regional-state institutions going beyond the federal/national agenda. These normative issues demand addressing the agenda of intra-unit minorities within regional states and an understanding of the complex nexus between territory and ethno-national groups.

Power sharing and non-territorial autonomy (NTA) are often presented as important political solutions to mitigate the risks associated with the tyranny of the titular ethno-national majority at constituent unit level. The first key feature of the power-sharing arrangement is the inclusion of the main political actors that represent the main segments of society (including intra-unit minorities) into the political process and decision-making bodies at federal, constituent-unit or local-government level depending on where the locus of the demand is. The power-sharing arrangement could be a paritarian one in which the major political actors representing the different groups are represented in public institutions on an equal basis, regardless of their size or proportional to the share of the votes that the groups secure in elections.

The question of who is entitled to power sharing and NTA remains contested, yet there is an emerging consensus that suggests that the right belongs to geographically dispersed ethno-national groups who nevertheless are politically mobilized and hence have shown an express interest in self-government. The goal is to empower dispersed ethno-national groups by creating institutional mechanisms for their participation. It is about designing an inclusive democratic polity that goes beyond titular ethno-national groups and majority rule through the inclusion of hitherto excluded dispersed ethno-national groups. It combines political representation of the geographically dispersed diversity in public institutions with autonomy and control over culture and language. While it is often stated that NTA views diversity largely as a cultural and linguistic group than as a politically mobilized ethno-national group, the emerging literature, however, indicates that though dispersed, the diversity that calls for power sharing and NTA, is a political project that calls for political accommodation in the form of power sharing in addition to autonomy and control over language and culture. Power sharing allows dispersed minorities to have a say in decision making at

federal, regional-state or local level while linguistic and cultural autonomy ‘in the form of legally guaranteed autonomous corporation’ to ethno-national communities allows such dispersed minorities to have an exclusive say on issues related to their language and culture.

Unlike territorial autonomy and the right to self-rule granted to titular ethno-national groups, power sharing does not aim to transform a minority into a majority but instead designs inclusive political institutions where both the titular ethno-national group and the intra-unit minority cooperate in the process of decision making. The institutional design aims to overcome the majority-minority divide within the majoritarian democracy, which has the risk of creating permanent majority against permanent minority at constituent unit level. One of the widespread points of criticism against power sharing is that it is an elite-based accommodation which may not have widespread popular support. Yet this risk can be moderated as there is a need to establish a political elite representing widespread support of the masses through democratic and multiparty election with a proportional electoral system. Power-sharing arrangements help design an inclusive political system within the regional states in which no significant section of society feels excluded. The design of a bicameral legislative system with one chamber elected by state-wide vote and the second composed of representatives of the different ethno-national minorities as part of ensuring representation of dispersed minorities in central decision making is also an integral part of power sharing. This arrangement is often more constitutionally formalised in federal systems than other forms of polities.

There are political, legal and moral reasons for the inclusion of intra-unit minorities in the states. There is a powerful argument that links self-rule at constituent unit level to democratic theory. (...) Robert Dahl ... argued that ‘the right to self-government entails no right to form an oppressive government’. In as much as one cannot use freedom of expression to insult or defame another, titular ethno-national groups cannot use self-rule to terrorize or subjugate intra-unit minorities. In the Ethiopian case, regional-state institutions have frequently failed to mediate impartially in conflicts between the titular ethno-national group in the regional state and intra-unit minorities and federal institutions are often absent in those conflict-prone areas (...). Ethiopia’s case proves that the process of empowering ethno-nationalist group at regional-state level was conducted without putting sufficient institutional and policy mechanisms in place to minimize this major risk.

Let us also not forget that the different intra-unit minorities within the regional states in Ethiopia that face various kinds of administrative and political discrimination are Ethiopians living in their own country and not foreigners looking only for civil rights. As citizens and intra-unit minorities in their own country they have the right to engage in political and public affairs both at federal and regional-state level (Article 38). Let us also not forget that although titular ethno-national groups have a constitutionally protected mandate to self-rule, they cannot claim exclusive control over territory, only the Ethiopian state as a sovereign body can claim exclusive control over territory. Territorial autonomy and self-rule of ethno-national groups within a federation cannot be equated with the overarching sovereign Ethiopian state under which the sub-units exist. Power-sharing arrangements thus moderate the exclusive attachment of territory with the titular ethno-national groups and recast it differently developing sub-unit autonomy for all inhabitants of the constituent unit. It introduces intra-unit minorities sharing a territorial space with titular ethnonational groups, a conception of territory as an inclusive and shared common good. The idea of diverse groups sharing power and territorial space ends ‘lethal competition for exclusive territorial control’ often associated with titular ethno-national groups having territorial autonomy. This demands, as Palermo argued, a shift from an exclusive ‘autonomy for’ a particular ethno-national group to ‘autonomy of’ of all inhabitants in the constituent unit.

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4.2 Federal government political safeguards regarding intra-unit minority rights

Another measure often used in other federations to mitigate the marginalization of constituent unit minorities is to empower the federal government to serve as guardian for intra-unit minorities against possible repression and discrimination by titular ethno-national majority. While the federal and constituent-unit constitutions may ensure rights of intra-unit minorities, the titular ethno-national group that dominates the political institutions often lacks the political will and the incentive to enforce such rights. After all, the titular ethno-national group enjoys self-rule and controls the political institutions and so what incentive will it have to open up the political space? Regional-state institutions being in control by the titular ethno-national group often fail to mediate in conflicts that arise between the titular ethno-national group and the intra unit minorities. For this reason, there is a need for an external check and balance mechanism.

Article 350A of India's constitution stipulates that every state and every local authority within a state shall provide adequate facilities for instruction in the mother tongue at the primary stage of education to children belonging to linguistic minority groups. The provision goes beyond ensuring this right to minorities by empowering the President of the Republic to issue directives to any state to enforce this right. Article 350B establishes a Special Officer for Linguistic Minorities appointed by the President that investigates all matters relating to the safeguards provided for linguistic minorities under the constitution and that reports to him or her. The report may be tabled for discussion and further investigation in the federal parliament or is sent to the government of the state concerned. In India therefore the federal government has been given a more extensive power with respect to intra-unit minorities. In 1992, the Union government also established a National Commission for Minorities by Parliamentary Act. The Commission evaluates the progress of minorities under the Union and in states. It also monitors the working of safeguards provided in the constitution and laws enacted by Parliament and state legislative bodies. It further investigates complaints, deprivations and discriminations suffered by minorities and suggests appropriate measures to be taken by the Union and state governments. These are important country-wide political institutions that monitor the enforcement of minority rights in the constituent units. Minority rights are not left to the discretion of constituent-unit governments and political institutions. The Indian constitution acknowledges that constituent-unit majorities may threaten intra-unit minorities and provides country-wide political safeguards that monitor state-level institutions' compliance with minority rights.

The Ethiopian federal and regional-state constitutions are silent on this matter. Intra-unit minorities continue to face various kinds of discrimination and marginalization and this has so far been left to the discretion of the states. It is time for constitutional amendments to be introduced with a view to empowering the federal government to monitor the states for their compliance with intra-unit minorities' rights. This is an important external political safeguard for intra-unit minorities. The constitution under Article 55(16) comes close when it mandates the House of Representatives to call a joint session with the HoF to take appropriate measures including giving directions to the concerned state when state authorities are unable to arrest violations of human rights within their jurisdiction. Yet this article is not close enough to the matter under discussion as it does not specifically deal with intra-unit minority rights. The expression 'state authorities unable to arrest' also implies that the responsibility falls initially within the states but as already mentioned states controlled by titular ethno-national groups have little incentive to enforce intra-unit minority rights. More importantly, the protection of intra-unit minorities is a question of designing inclusive regional-state institutions not necessarily linked to emergency situations, which the article seems to imply.

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Questions and Discussion

Professor Assefa Fiseha suggests that intra-unit minorities—whether those having their ethnic kin in other units or those completely local to the territories where they reside— have to be treated as full co-citizens of the “territory owning dominant groups” and be allowed to share power and have all other rights respected. Do you agree with his view? He notes that the existing laws of the country, including the federal Constitution, do not enforce this obligation of the dominant territory owning groups and he calls for constitutional amendment in order to create a constitutional obligation on the dominant groups. In addition, he calls for provisions in the federal (national) law that empower the national government to bring in line the dominant groups that violate individual and group rights of intra-unit minorities. How do you assess these arguments?

CHAPTER TEN

CIVIC NATIONALISM AND ETHNIC NATIONALISM

This chapter is rather brief. It is interested in raising some questions about the political community that is envisaged by the overall structure of the Ethiopian constitution and to point some problems that hindsight has now brought to the open. The purpose of raising these matters in a constitutional law textbook is to provoke discussion among law students primarily but also other tertiary level students who may use these materials on issues of Ethiopian citizenship. Do we need to revisit the assumptions made by the framers of the Constitution regarding the Ethiopian people which was more “separation-prone” than “integration- or unity-prone”? What is our imagined community of citizens?

What is the place of Ethiopian citizenship beyond membership to one or the other ethno-linguistic communities? Is it desirable to promote civic nationalism in Ethiopia beyond Ethnic nationalism? Is it possible to do so? What are the advantages of civic nationalism? Is civic nationalism mutually exclusive with ethnic nationalism or can the two co-exist? Does the Ethiopian Constitution have sufficient structure to promote civic nationalism or is it defective in this regard? These are some of the questions that need to be responded to in order to deal with practical issues of diversity and unity in societies like Ethiopian where political mobilization of ethno-linguistic communities is very high. How can we balance civic nationalism of the community of Ethiopian citizens with the necessary/complementary level of ethnic nationalism?

The Ethiopian Constitution is framed, to borrow Michel Rosenfeld’s words, around “ethnos” not “demos” (Rosenfeld, 2010). This fact is given away already by the Preamble of the Constitution which begins by saying: “We, nations, nationalities and peoples [NNP] of Ethiopia”, not “we the Ethiopian people”. Given the time when the constitution was framed, it is not clear if the Ethiopian people explicitly agreed to be called in this way. Nor is it clear if framing the Ethiopian people in this was. In any case, this framing begs the question as to what the place of Ethiopians who choose not belong to any NNP or who finds it impossible to box herself in anyone NNP can be. The same is true about foreigners who receive Ethiopian citizenship. Are they going to be assigned one or the other NNP to be adopted into?

In what follows, some scholarly works dealing with some of the questions raised above will be presented for us to study them and posit the Ethiopian reality within the relevant theoretical context.

Yael (Yuli) Tamir, “Not So Civic: Is There a Difference Between Ethnic and Civic Nationalism?”, *22 Annu. Rev. Political Sci.* (2019) 419–34. Notes omitted.

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CIVIC AND ETHNIC NATIONALISM

The origins of the distinction between civic and ethnic nationalism are to be found in the works of Hans Kohn, one of the first modern writers on nationalism. Writing at the end of World War II, Kohn (1944) distinguished between civic nationalism, a rational and liberal way of thinking founded on respect for human rights and personal freedoms, and ethnic nationalism, a mystical, religious, and ethnocentric mindset predicated on tribal feelings. Civic nationalism, Kohn argued, is characteristic of liberal-minded Western states and is a modern political phenomenon closely related to the pursuit of personal liberty; ethnic nationalism is typical of Eastern states, focused on

folk culture, language, and ethnicity, and therefore primitive, emotional, and motivated by blood and belonging.

For Kohn (1944), the five Western nation-states he examined—the Netherlands, Switzerland, Great Britain, France, and the United States—represented the desired kind of affiliation between nation and state. In all five cases, the state preceded the nation; nation building was therefore guided by and coincided with the interests of the state. In the East, however, the emergence of nations preceded the building of the state. Consequently, national borders did not overlap with those of the state, and relationships within states remained ridden with conflict. Eastern nationalism was therefore politically divisive.

In what follows, I argue that the distinction between the sophisticated and developed nationalism of the West and the crude and primordial nationalism of the East is more normative than descriptive and was meant to establish the moral supremacy of the West. Hence, it is not surprising that the two kinds of nationalism are assumed to be associated with different stages of political development. Ethnic nationalism is depicted as characteristic of the early developmental stages, while the aspiration to act in accordance with state law characteristic of civic nationalism is presented as an expression of the more advanced stage of moral and political development. These differences of character are taken to reflect the stage of moral and political development of the respective societies. Western nationalism is assumed to prosper where there is a strong and confident bourgeoisie that is able to build a citizen-nation with a civic spirit. Eastern nationalism occurs in states lacking a solid middle class, which are often ruled by imperial autocrats and semi feudal landowners whose repressive rule fosters authoritarian and submissive behavior.

Kohn's (1944) distinction between a high and a low form of nationalism was adopted by other scholars, who have argued that civic nationalism is characteristic of culturally developed nations that can, from a position of self-confidence, approach each other on an equal footing, seeking cooperation on the basis of mutual respect. In contrast, ethnic nationalism is characteristic of primitive nations, motivated by feelings of inferiority and inspiring belligerent policies. Gellner (1983, pp. 99–100) sharpens the national–cultural division by arguing that Western civic nations are united on the basis of high culture, while their Eastern ethnic counterparts are joined on the basis of local, popular, and conventional culture. Ignatieff (1993, p. 6) follows the same line of argument, claiming that civic nationalism is constituted by “a community of equal, rights-bearing individuals who are united in patriotic attachment to a shared set of political practices and values.” Ethnic nationalism is motivated by deep attachments that are inherited, not chosen, because “it is the national community that defines the individual; not the individual who defines the national community” (Ignatieff 1993, pp. 7–8). Western nationalism, Ignatieff argues, is the nationalism of the well-cultured, emancipated bourgeoisie; Eastern nationalism is the nationalism of the subjugated, uneducated masses.

Scholars of Eastern Europe offer a different point of view. They attribute the ethnic nature of Eastern nationalism to Western influence rather than to the inherently primitive and emotional character of its bearers. Krastev (2017) claims that the problem with Eastern nationalism is that it is driven not by an irrational attraction of blood and belonging but by an aspiration to mimic a Western state of mind in order to legitimize national and political aspirations. After the collapse of the Austro-Hungarian Empire with its multiethnic and multilingual nature, the idea of ethnic, cultural, and linguistic uniformity crept in from the West, and Eastern nationalism signed up to the philosophy that states should be founded on the basis of national and cultural homogeneity. In other words, cultural homogeneity was promoted in the East as a way of securing self-rule and gaining the support of those adhering to the principle of national self-determination rather than as an expression of ethnic supremacy or xenophobia. Milanovic (2017) concurs:

All those [East European] countries fought, more or less continuously, to free themselves from the Imperial pressure, whether it was exerted through cultural assimilation (as in the case of Czech and Slovenians), imperial conquest and partition (Poland), imperial conquest

tout court (the Baltics and the Balkans), temporary inclusion as a second-tier ruling nation (Hungary) or any other way.

Aspiring to gain political autonomy by becoming fully fledged members of the community of nations, East European nations espoused a national strategy characteristic of the postwar period in the West. Entering a democratic age, they saw political independence as inherently and intimately associated with national homogeneity. For the emancipated countries, liberation meant a return to a culture and language suppressed by the Soviet Empire. They aspired to secure this new state of affairs by adopting three strategies (mainly targeting the millions of Russians who had been forced to move to these territories in the process of Russification): assimilating those who were ready to accommodate to the new reality (by, in particular, becoming fluent in the local language) and driving others away or preventing them from participating in the political process. Ethnic nationalism was harnessed to the chariots of democracy, while the West kept silent, watching with satisfaction the decay of the Russian Bear.

Kupchan (1995) reinforces this point of view and attributes the emergence of ethnic nationalism to the ideological and political vacuum left behind by the collapse of the Soviet Union. The post-Cold War era was marked by a growing legitimization of national and ethnic demands. First and foremost was the unification of Germany, “which could be justified only on ethnic grounds” (Kupchan 1995, p. 181). In the German case, political authority was reconfigured along national lines, ensuring that ethnic groups saw “statehood as the logical endpoint of claims to nationhood” (Kupchan 1995, p. 181). This national state of mind also led to a growing international support for the breakdown of the few remaining multinational states, such as Czechoslovakia and Yugoslavia, along national-ethnic lines.

Eastern Europe ethnic mobilization, Kupchan posits, was primarily the result of a search for a modern democratic political identity; yet, in the absence of the political institutions and political sophistication “needed to balance ethnicity’s allure and ensure that it become only one of the several anchors of identity in the midst of change” (Kupchan 1995, p. 181), ethnicity became a major player. The view from the East, therefore, is that the ethnic aspects of nationalism, rather than the civic ones, are children of the West, brought about by the fall of the empires and the spread of processes of democratization.

The one-sided interpretation of the complex political events that marked the beginning of the 1990s—the creation of the European Community on the one hand and the flourishing of national liberation movements on the other—caused an ongoing misunderstanding of the nature of both Western and Eastern nationalism. From the Western point of view, 1992 marked the beginning of the abolition of national frontiers and the fortification of common European institutions meant to establish joint monetary, fiscal, defense, and foreign policies. It was thus argued that “just as Europe took the lead in inventing (and propagating) nationhood and nationalism, so now it would take the lead in transcending them.... [A]n incipiently post national Europe was seen as showing the rest of the world ‘the image of its own future’” (Brubaker 1996, pp. 1–2). Nonetheless, 1991–1992 also saw the revival and rebirth of the nation-state and national ideals. A series of events from the unification of Germany, “predicated on a conception of state-transcending nationhood” (Brubaker 1996, p. 2), to the “spectacular reconfiguration of political space along national lines in Central and Eastern Europe and Eurasia...suggested that far from moving beyond the nation state, history—European history at least—was moving back to the nation-state” (Brubaker 1996, pp. 2–3, emphasis original).

The political blindness of the liberal West is striking given the fact that in 1991 alone, 11 states won political independence due to international recognition of their right to national self-determination: Estonia (August 20), Ukraine (August 24), Moldova (August 27), Kyrgyzstan (August 31), Uzbekistan (September 1), Macedonia (September 8), Tajikistan (September 9), Armenia (September 21), Croatia (October 8), Azerbaijan (October 18), and Kazakhstan

(December 16). This national revival was widely ignored in the liberal world. Captivated by the idea of “the end of history” (Fukuyama 1989), liberals attributed these political events to a liberal victory over all other ideologies including nationalism. The East was seen to be finally maturing, catching up with the West by placing civic/democratic values ahead of ethnic ones. The establishment of the European Community and the open aspiration of many of the newly established nation-states to join it encouraged the view that Europe was approaching a post national and civic age. This suited the spirit of the age symbolized by Fukuyama’s (1989, p. 3) claim: “What we may be witnessing is not just the end of the Cold War, or the passing of a particular period of postwar history, but the end of history as such: that is, the end point of mankind’s ideological evolution and the universalization of Western liberal democracy as the final form of human government.”

It is now clear that it was wrong to take the liberation movements of the 1990s as a sign that the East was about to leave behind its ethnic past, just as it was a mistake to assume that Western states had altogether transcended their national and ethnic elements and would, from now on, be solely grounded in “freely chosen principles [that] have replaced cultural heritage as the basis of political solidarity” (Yack 2012, p. 23). It was especially dangerous to ignore Brubaker’s (1996) prescient statement that the “short twentieth century” (1914–1991) was ending much as it had begun, “with Europe entering not a post national but a post multinational era through the wholesale nationalization of previously multinational political space” (Brubaker 1996, p. 3).

Locked within their paradigm, liberals in the West underestimated the resilience of nation-states (old and new) and their dependence on processes of homogenization. This misapprehension led to a misunderstanding of the true nature of nationalism and the nation-state and encouraged the spread of a dangerous political illusion that the developed world (East and West) was moving toward a more advanced moral and political age in which civic ideals would trump ethnic ones.

* * *

At the end of the last century, for a very brief moment, we have been deluded into believing that modern societies can move from the desire to rely on particular cultural or national ties to a sphere of political maturity and reliance on abstract principles. We now find that the seemingly childish desire for stability and continuity is coming back to haunt us. For those who understand personal and social psychology, this should come as no surprise. When Albert Einstein asked Sigmund Freud to explain “why war persists,” Freud (1963) seized the opportunity to express his skepticism about the liberal vision. The ideal condition of things would be, he claimed, “a community of men who had subordinated their instinctual life to the dictatorship of reason. Nothing else could unite men so completely and so tenaciously, even if there were no emotional ties between them. But in all probability this is a Utopian expectation” (Freud 1963, p. 145). Compelling individuals to continually act in accordance with axioms that contradict their instinctual inclinations is asking them to live—psychologically speaking—beyond their means (Freud 1963). As the purely civic vision of nationalism is based on this type of quest, its repeated failures should be anticipated. Following the German epic trail from the Enlightenment to romanticism, nationalism, fascism, Nazism, and finally to a constitutional democracy and the current reemergence of nationalism teaches us an important lesson about the oscillation of nations from ethnic to civic realities and back.

Mounk (2018, p. 208), one of the few political theorists to acknowledge the power of nationalism, argues that we should domesticate it, make it inclusive, build “on the tradition of multi-ethnic democracy to show that the ties that bind us go well beyond ethnicity and religion.” Is there a tradition of multiethnic democracy? Multiethnic empires, monarchies, and a commonwealth existed and flourished, but multicultural, multiethnic democracies have a very poor track record. Even the United States, which Mounk rightly deems an exceptional case, finds diversity a difficult challenge, as demonstrated by the spread of nativist sentiments and harsh laws on immigration that coincided

with the rapid growth of diversity at the beginning of the twentieth century (Mounk 2018, p. 167). It is natural to aspire to enjoy the best of all possible worlds. Yet nationalism, like other forms of human relationships, carries a price tag that is commensurate with its benefits. It is possible to soften the particularistic aspects of human relationships by balancing out their effects. It is, however, impossible to repress them. To believe otherwise is a dangerous illusion, not only because it offers an unworkable political solution but also because it obscures our ability to reflect on the true nature of personal and political relationships. The civic version of nationalism offers a model that is too abstract and legalistic. While constitutionalism, universal rights, and equal membership are valuable guidelines for political action, they cover a limited scope of a person's life. More important, they offer far too thin a basis for social and political cooperation. This is why nationalism keeps coming back, pushing civic ideals aside, and making its way to center stage. Those who know how to meet the needs it presents will be the winners of the coming decades.

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Yael Tamir, *Why Nationalism* (Princeton University Press 2019) 52-61.

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Nation Building

Psychology does not mark nations as having any advantages over other human associations; families, tribes, friendships, and unions can also play a mediating role. So what makes nations so powerful and special? In answering this question, two reasons come to mind: one obvious the other unexpected. The former is institutional and relates to the alliance between the nation and the state. No entity is more able than the state to promote ideas in the public sphere. States have collaborated in the past with monarchs, emperors, churches, and political parties, and yet, as we shall see in the following chapters, their partnership with the nation had some exceptionally valuable qualities.

The unexpected, more surprising, reason concerns the fact that the very same features that make nations attractive allies of the modern state—namely, being natural, historical, and continuous entities—are mostly fabricated. In order to establish authenticity and gain the loyalty of their members, nations must therefore continuously be made and remade. This constant creative effort turns nationalism into the most active and engaging social force of the last two centuries.

In its prime, in the heydays of the nation-state, nationalism was an all-encompassing power that shaped both the public and the private sphere. It molded the lives of individuals and structured the fate of whole societies. One must comprehend the uniqueness of this interaction in order to understand the depth of the void created by its absence. This part of the book thus explores the way nationalism shaped the modern state and provided it with tools necessary to turn from an administrative service into a caring entity that takes on itself not merely the role of a neutral coordinator but also that of a compassionate and attentive mother(land).

The caring state defined its duty in paternalistic terms; it did not recoil from educating, guiding, even manipulating the knowledge and feelings of its members. This has allowed the nationstate to form the social solidarity necessary for the establishment of a welfare state, fostering mutual obligations that cross classes, genders, and generations. The fading away of national attachments and the spread of neoliberal views led the state to withdraw from its social and economic involvement, weakening its ideological hold over individual citizens and losing its integrative powers; the lean state became the order of the day. (...) The liberal preference for universal values meant that liberalism nurtured a concept of the person as liberated from all particular relationships, memberships, or identities. Anything that could hold stable meaning and connection was scorned—

this meant that cultural ties were dismissed, family ties devalued, connections to the past cut off, attempts to define a common good demeaned. As Deneen argues, in the end, we've all been left terribly alone. "That's the heart of it, really. Liberalism is loneliness. The state isn't our sibling; the market won't be our mate."

* * *

The existence of a nation, argues the French intellectual Ernest Renan, is "a daily referendum." In order to survive, a nation needs to make two moves: "One lies in the past, the other in the present. One is the possession in common of a rich legacy of memories; the other is present-day consent, a desire to live together, a will to perpetuate the value of the heritage that one has received in an undivided form." The national work of recruitment, he argues, is never over, neither is the fear of assimilation. Nation building is ongoing and laborious, a daily attempt to convince each and every member that, for him/her, the national choice is the rational choice.

This is no secret, and here is a well-known example: the unification of Italy created a nationless state; this was rightly seen as an unstable political state of affairs. Nation building became an urgent task; the words of the nineteenth-century statesman Massimo d'Azeglio became an emblem: "We have made Italy. Now we have to make Italians." At the time, Italy did not exist as either a political, cultural, or national entity; only 2.5 percent of its population spoke standard Italian, and many saw themselves as affiliated with the neighboring nations. The different regions had distinct linguistic and cultural traditions, even diverse cuisines. Today, 150 years later, Italy has managed to craft a unified identity, but regional identities are thriving and threaten the union by raising separatist demands. If Italy is to remain united it cannot abandon the work of national maintenance.

The need to supply individuals with reasons for membership forces nations to constantly produce and reproduce the national narrative. In the modern nation-state this effort was state sponsored. Using its extraordinary resources, the state supplied the mechanisms needed to cultivate the national narrative and nurture national feelings; it built schools that taught the national language and spread the national culture; it erected and funded national monuments and museums, sponsored national theaters, national orchestras, national broadcasting services; it constructed squares, gardens, and even cemeteries, established national days, national rituals, and national song competitions, all meant to ensure the animated presence of the nation in everyday life. Each of these acts reinforced the other; in the classroom the teacher told a story that was repeated in the museum, in children's books, and on national TV; national heroes were celebrated, children were named after them, and national days were established to sing their praises. So often was the national story repeated that it was taken to be true.

National narratives are meant to have a moral, representing the nation's better qualities. Think for example about the myth of George Washington and the cherry tree. When Washington was six years old, so the story goes, he received a hatchet and damaged his father's cherry tree. His father discovered what he had done and confronted him. Washington confessed: "I cannot tell a lie," he said, "I did cut the tree." Rather than being angry, his father embraced him. His honesty, he said, was worth more than a thousand trees. It makes no difference whether this is a true description of Washington's childhood. What matters is that it rings true and children could read it in school and take it to be their moral guide. In this case, as in many others, the effectiveness of the story is more important than its authenticity.

As argued, the complex interplay between the (openly) fabricated nature of national myths and their enormous political and emotional power is a testimony to the human need, intensified by modernity and secularization, to belong to meaning-providing communities that extend the boundaries of the self. Nationalism thrives on the human desire to enrich one's limited creative capabilities by sharing one's life with others. It makes this possible by making the boundaries of the self permeable, allowing things that happen to others to enter into the private sphere. The formation of "national consciousness" is a telling example. Consciousness is a private matter; it describes "what affects or goes on in one's own mind." The leap to the collective is not at all natural; it is the result

of social and educational processes structured to allow the internalization of a set of beliefs, behaviors, norms, and cultural preferences. The result is an overlap of private cognitive spheres that marks the boundaries of the nation.

In this sense nations are mental structures existing in the minds of their members. A nation, Benedict Anderson states, “is imagined because the members of even the smallest nation will never know most of their fellow-members, meet them, or even hear of them, yet in the minds of each lives an image of their community.” Self-testimony is therefore the only way to know whether such an overlap has been established. (...)

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Berihun Adugna Gebeye, “Citizenship and Human Rights in the Ethiopian Federal Republic” in Adem Kassie and Amen Taye (eds), *Reimagining Ethiopian Federalism* (Addis Ababa University School of Law, 2019) 9. Footnotes omitted.

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By according primacy to the corporate conception of the right to self-determination, the Constitution makes citizenship conditional and human rights instrumental. As the Federal Democratic Republic of Ethiopia (FDRE) is imagined as a community of [nations, nationalities and peoples] NNPs, membership to NNPs is a condition precedent to be Ethiopian. Further, as the FDRE is constituted primarily to advance and safeguard the interests and rights of NNPs, the enforcement of individual human rights is contingent upon their service to NNPs. The citizenship and human rights architecture engineered by the Constitution makes ethnicity the main site of citizenship.

* * *

Although citizenship has many strands, at its core, it refers to “membership in a political community.” Accordingly, the starting point for the inquiry of citizenship is the idea of a political community. A political community fundamentally requires members who live in a certain territory and agree to some common rules on how they should interact with each other and with others. The state is one fine example of a political community, which essentially needs some members for its existence. For instance, according to article 1 of the 1933 Montevideo Convention on Rights and Duties of States, for a certain entity to qualify as a state, it should possess “(a) a permanent population; (b) a defined territory; (c) government; and (d) capacity to enter into relations with the other states.” Consequently, when a state comes into existence, it includes some people while excluding others. It will do this inclusion and exclusion through imagination. And in here is born the concept of the citizen and the alien. It is no wonder that the *jus soli* and the *jus sanguinis* are the two main principles of membership to a state. By virtue of being born in a certain soil or from a blood of someone who comes from somewhere, the newborn will be a member to the imagined community where she was born and/or her parents come from.

As Benedict Anderson famously and eloquently articulates, the state or nation is “an imagined political community.” The imagination is limited in two ways. First, it is limited because it is impossible to include everyone in every corner of the earth as a member of a political community. As a result, the imagination is limited in geographical terms. Second, even within a certain geography, the imagination is limited in the sense that not every member of a nation knows or meets or even hears about their fellow members, but “in the minds of each lives the images of their communion.” Because it is imagined as a community, regardless of the prevailing inequality and exploitation, deep fraternity and horizontal comradeship exists among members near and afar. These dynamics give rise to the attributes or qualities of membership to and identification with a political community.

* * *

The second element of citizenship is political and is related to the right to participation in the governance of the state, which dominated much of the 19th century. In addition to expanding the reach of civil citizenship, political citizenship broadcasted the idea of democracy as a legitimate way of existing in a state as a citizen. The third element is social citizenship of the 20th century and it focuses on enabling every citizen to lead a life of standard prevailing in the society through a package of socio-economic provisions. The logic behind social citizenship is civil and political citizenship will not be fully meaningful for some members of the society unless they are provided with some form of support. Nonetheless, regardless of the rights, status, and privileges one may have, the soil-blood connection has the magnificent power of turning the citizen to the guardian of the state against real or imagined enemies, even in the face of exploitation and widespread discrimination. This is because to be a citizen includes viewing one's membership to a state as an important part of who one is.

Although the triumph of liberalism with the end of the Second World War and the Cold War ushers in the idea of equal citizenship in accessing rights and privileges, and performing duties and responsibilities as a member of the state, membership and its conditions have been a subject of discussion in multicultural states. This is particularly the case in multicultural states where cultural diversity is constitutive of the state "in the sense that it is present at the origin of the state." Cultural diversity is constitutive of the state in most African states and some Western states such as Canada, Spain, Belgium, and United Kingdom. Along with question of autonomy and self-determination, some ethnonational groups in multicultural states want to identify themselves first as a member of their own ethnonational group and second as a member of the larger state they are in. However, as a matter of law and politics, multicultural states automatically members every single individual of their population as a citizen without any condition while recognizing some autonomy and self-determination to ethnonational groups.

The preamble of a constitution clearly expresses and recognizes the core aspects of membership to a state. In both nation states and multicultural states alike, the opening paragraph of their constitution reads as "We the People" and the notion of "We the People", in turn, informs the subsequent constitutional design, adjudication and practice. Centuries of contestation on citizenship as membership in a political community rests in contemporary ideals of constitutional politics. As a result, constitutions hold a high premium in defining and regulating the relationship between the citizenry and the state. With the exception of the United Kingdom, where political constitutionalism enables the parliament to finally decide on constitutional matters including on the relationship between the citizen and the state, legal constitutionalism, which Ran Hirschl refers to as juristocracy, has been the preferred mode of solving fundamental questions of the state including on matters of citizenship in the democratic world.

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4.1 The innovation of two imagined political communities and the conditionality of citizenship

The Ethiopian constitutional plane brought two imagined political communities as it considers the corporate conception of the right to self-determination... The first imagined political community is the constituent power (NNPs) while the second is the constituted power (FDRE). The constituent power that inaugurated the Constitution did not rely on some reading of sovereignty or political authority which traditionally rests on the idea of the people in the singular. Rather, it imagined a political community and claimed its constituent power as a derivative of that power through the right to self-determination.

The constituent power in the Constitution derives its authority from the sovereign powers of NNPs. It is important to reiterate the preamble of the Constitution here:

We, the Nations, Nationalities and Peoples of Ethiopia Have therefore adopted ... this Constitution through representatives we have duly elected for this purpose as an instrument

that binds us in a mutual commitment to fulfill the objectives and the principles set forth above.

Questions like who are NNPs, how do they exist, and how do they constitute themselves to make a constitution for Ethiopia necessarily requires Andersenian imagination. Of course, what NNPs represent exist in the pre-constitutional period and evidence is not required to prove this. Nonetheless, the way the NNPs exist and ought to exist mandate an imagination without which the legitimacy of the constituent power will be questionable. Hence, the innovation of a prior imagined political community (NNPs) becomes necessary to imagine the constituted political community (FDRE). In this course, the right to self-determination offered the necessary foundational basis and frame of reference for the imagination.

NNPs are imagined political communities because they are imagined as territorially limited, sovereign and communities. They are territorially limited because NNPs are assumed to have a geographical base at either state, zone (liyu zone), district (liyu Woreda) or local (liyu Kebele) levels. They are imagined as sovereigns as they are bestowed with the right to self-determination up to secession. And they are imagined as communities because they are assumed, among other things, to share a common culture, language, identity and psychological makeup. As a matter of principle, the representatives of these NNPs can have a legitimate political authority and power to make a constitution for NNPs. Using their sovereign power, NNPs constituted the nation states of Tigray, Afar, Amhara, Oromia, Somalia, and Harari, the multination state of Southern Nations, Nationalities, and Peoples, Benishangul/Gumuz and Gambella within the contours of another imagined political community called the FDRE.

The other imagined political community is the FDRE. The FDRE is imagined as territorially limited, for instance excluding Eritrea unlike the pre-1991 era, and expressed through the territorial limits of its member states. In this regard, article 2 of the Constitution provides that: “The territorial jurisdiction of Ethiopia shall comprise the territory of the members of the Federation and its boundaries shall be as determined by international agreements.” It is also imagined as a sovereign. Consider how article 8, the [sovereignty] clause of the Constitution, articulated this sovereignty:

1. All sovereign power resides in the Nations, Nationalities and Peoples of Ethiopia.
2. This Constitution is an expression of their sovereignty.
3. Their sovereignty shall be expressed through their representatives elected in accordance with this Constitution and through their direct democratic participation.

As is self-evident, its sovereign imagination is framed through NNPs. Furthermore, the FDRE is imagined as a community, to be precise as a community of NNPs. The preamble of the Constitution clearly spells out how the imagined community is a community of NNPs. For instance, the preamble reads,

Further convinced that by continuing to live with our rich and proud cultural legacies in territories we [NNPs] have long inhabited, have, through continuous interaction on various levels and forms of life, built up common interests and have also contributed to the emergence of a common outlook ... Fully cognizant that our common destiny can best be served by rectifying historically unjust relationships and by further promoting our shared interests... Convinced that to live as one economic community is necessary in order to create sustainable and mutually supportive conditions for ensuring respect for our [NNPs] rights and freedoms and for the collective promotion of our interests...

Therefore, FDRE is imagined as a political community in its territorial, sovereign and community elements in the size, shape and texture of NNPs.

Precisely because of the innovation of two imagined political communities in a single constitutional space, the Constitution as Fasil Nahum rightly observes is a “constitution of a Nation of Nations.” To use Nahum’s words,

This is not the constitution of the Ethiopian citizens simply lumped together as a people. [Instead], [t]he Ethiopian citizens are first categorized in their different ethnolinguistic groupings and then these groups come together as authors of, and beneficiaries from, the Constitution.

The result is individual membership to the FDRE requires prior membership to NNPs. In other words, membership of an individual to the FDRE is no longer automatic but conditional. If we have to take the Constitution seriously, I believe we must, one has to be, for instance, a Somali, Oromo, or Amhara first to be a member of a political community we call Ethiopia. Without a membership to or identification with one of the NNPs, it is impossible to be Ethiopian as a matter of constitutional design. Seen through the prism of citizenship, as John Cohen observes commenting on the Ethiopian federal system, the constitutional dispensation is more “confederal” than federal. Even if article 6 of the Constitution says “[a]ny person of either sex shall be an Ethiopian national where both or either parent is Ethiopian”, it does not say anything about how Ethiopian nationality is originally gained in the first place, i.e. how parents become Ethiopian nationals. Hence, the solution to the question who is Ethiopian and under what conditions one becomes Ethiopian lays in the political and constitutional theory that animated the preamble of the Constitution. As discussed above, being Ethiopian is essentially attached to and contingent up on being a member of one of the NNPs.

However, as a matter of practice, neither everyone neatly belongs to one of the NNPs nor are those who do not belong to or do not want to identify themselves with one of the NNPs foreign nationals. It simply means that there is a mismatch between constitutional design, on the one hand, and constitutional practice and Ethiopian reality, on the other hand, related to who is Ethiopian and under what conditions one becomes Ethiopian. As it stands now, the constitutional design of two imagined political communities seems to get more traction as multiple ethnic nationalisms emerge. As these ethnic nationalisms build their political activities and mobilizations within the constitutional prism of two imagined political communities, individuals are practically expected or coerced to identify themselves with one of the NNPs to belong to the FDRE. Thus, due to the engineering of two imagined political communities in the federal constitutional dispensation, membership to one imagined political community is a condition precedent to the other. The only exception where Ethiopian citizenship will be gained without being a member of NNPs is when foreign nationals acquire Ethiopian nationality.

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Questions and Discussion

1. Tamir observes (citing Kupchan) that after the cold war, Eastern Europe's ethnic mobilization, was primarily the result of a search for a modern democratic political identity; yet, in the absence of the political institutions and political sophistication "needed to balance ethnicity's allure and ensure that it become only one of the several anchors of identity in the midst of change" (Kupchan 1995, p. 181), ethnicity became a major player. What does he mean by this? How does he explain this? Tamir also explains in a very dynamic way the indirect ideological influence of the West, spurring ethnic mobilization in Eastern Europe thereby breaking up Soviet Union, Yugoslavia and Czechoslovakia? Do you agree with this view?
2. Speaking about Italy, Professor Tamir says that before 150 years, "the different regions had distinct linguistic and cultural traditions, even diverse cuisines. Today, 150 years later, Italy has managed to craft a unified identity, but regional identities are thriving and threaten the union by raising separatist demands. If Italy is to remain united it cannot abandon the work of national maintenance". What does she mean when she says "Italy cannot abandon the work of national maintenance in order to make secessionist demands irrelevant?"
3. Professor Tamir says that nurturing nationalism—in the sense of civic nationalism—should be state-sponsored. Do you agree? Do you think it will be helpful for The Ethiopian federal government to develop a policy that cultivates and nurtures Ethiopian nationalism? How should that be done? Does Tamir offer any advice in her work excerpted above?
4. Berihun argues that the Ethiopian constitution has created two imagined communities: NNPs and FDRE and the problems associated with this stance of the Constitution. Do you think the framers of the Constitution did a good or bad job doing this? Should the framers have gone further and balanced the position of the NNPs and of the "Ethiopian people" and the Ethiopian citizenship beyond and in addition to membership in NNPs?

CHAPTER ELEVEN

FUNDAMENTAL RIGHTS AND FREEDOMS

A. The Structure of Rights and Freedoms under the Ethiopian Constitution

The 1995 Constitution of Ethiopia entrenches in its Third Chapter (from Articles 14 to 44) one of the most comprehensive lists of individual and group rights and freedoms that one can ever find in modern constitutional laws. These fundamental rights and freedoms are modeled after the modern universal and regional conventions and declarations on human rights such as the International Covenant on Civil and Political Rights, the International Covenant on Economic, Social and Cultural Rights, the Convention on the Elimination of All Forms of Discrimination Against Women, the Convention on Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, Convention for the Prevention and Punishment of the Crime of Genocide as well as other declarations and conventions on individual and group rights.

International human rights law, upon which domestic human rights laws including ours have thrived, obtained its concrete shape with the coming into existence of the Universal Declaration of the Human Rights (UDHR) of 1948⁹. The UDHR declared in its preamble that the recognition of the inherent dignity and of the equal and inalienable rights of all members of the human family are the foundation of freedom, justice and peace in the world¹⁰. The UDHR provided for a set of rights in its 30 articles—the rights that ranged from civil, political, economic, social and cultural in nature. Thus, it is capable, for the first time, of concretizing the different components of what was hitherto vaguely known as human rights or fundamental rights in the realm of international law. Beginning with the UDHR, a number of universal and regional human rights instruments and declarations (see below) have flourished in the world dealing with different areas of rights.

Besides, there are also regional instruments and declarations on human rights. For example, in the case of Africa, the African Convention on Human and Peoples' Rights of 1981 and the African Convention on the Rights and Welfare of the Child of 1990 are concluded as continental conventions under the auspices of the Organization of African Unity (now African Union).

Ethiopia acceded to the International Covenant on Civil and Political Rights (ICCPR) of 1966 and the International Covenant on Economic, Social and Cultural Rights of 1966 on 11 June 1993. Ethiopia, however, is not a party to the two optional protocols to the ICCPR.¹¹ Ethiopia has become a party to the International Convention on the Elimination of All forms of Racial Discrimination (CERD) of 1966 in 1976, to the 1984 Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment in 1994, to the 1952 Convention on the Political Rights of Women in 1969, to the 1979 Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW)¹². Ethiopia has entered a reservation to Article 29(1) of the CEDAW which is about the dispute settlement mechanisms of the Convention. Ethiopia is also a party to the 1989 Convention on the Rights of the Child since 1991¹³. Ethiopia has also become a party to the

⁹ Adopted by the General Assembly of the United Nations, resolution 217 (III) of 10 December 1948.

¹⁰ *Id.*, Paragraph one.

¹¹ The First Optional Protocol to the ICCPR is about the right of individuals to file complaints to the Human Rights Committee, and the Second Optional Protocol is on the abolition of the death penalty. Many countries including the United States are not parties to these optional protocols.

¹² Adopted by the General Assembly Resolution A/54/4 in 1999. The Protocol creates a communication procedure that allows individual women or groups of women to submit claims of violations of rights violated under the CEDAW, and also allows the committee to initiate inquiry into grave or systemic violations of the CEDAW. Ethiopia is not a party to this Protocol.

¹³ The ratification of the Convention on the Rights of the Child has been enacted in Proclamation No.10/1992.

1981 African Charter on Human and Peoples' Rights in 1998, and to the African Charter on the Rights and Welfare of the Child in 2001.

The African Charter on Human and Peoples' Rights establishes the African Commission on Human and Peoples' Rights, which is mandated to receive communications on violations of the Charter either from a member state reporting on violations in another member state¹⁴, or from other entities or persons about violation of the Charter by member states (which are known as "other communications")¹⁵. The African system of human rights also includes the 1997 Protocol to the African Charter on Human and Peoples' Rights on the Establishment of the African Court on Human and Peoples' Rights¹⁶. Ethiopia is not yet a party to this Protocol. Further Ethiopia has ratified other area-specific treaties such as those enacted under the auspices of ILO. These include the Minimum Age Convention (No. 138) of 1973 and the 1951 Convention No. 100 on Equal Remuneration for Men and Women Workers for Work of Equal value.

From the above facts, it would not be an overstatement to say that Ethiopia is one of the countries in the world that have ratified quite many of the most important international human rights instruments. This clearly demonstrates that Ethiopia as a state does not have any philosophical and political differences with the human rights systems prevalent in current international law. The human rights laws of Ethiopia therefore consist of the ratified international human rights instruments, the Ethiopian Constitution, the constitutions of the federating states and the national and regional laws that are passed by the national and regional legislatures. The following excerpt from Sisay Alemahu's article will give you a further insight into the overall structural setup of the rights and freedoms in the Ethiopian constitution.

Sisay Alemahu Yeshanew, "The Justiciability of Human Rights in the Federal Democratic Republic of Ethiopia," in *African Human Rights Law Journal* Vol. 8 (2008). Footnotes omitted.

* * *

Domestic legal systems take precedence over international human rights systems in terms of their effectiveness in the protection of human rights. This is because domestic systems offer a more accessible forum for victims of violations and because they have more effective enforcement mechanisms. The effective protection of human rights requires, among others, that they be justiciable. Justiciability refers to the capability of rights to be enforced by a judicial or quasi-judicial organ and the existence of procedures to contest and redress violations. The extent to which rights are justiciable at any level depends on the content and definition of rights and the existence of procedures for their judicial and/or quasi-judicial enforcement. This is not, however, to forget the role progressive judges play in ensuring the practical justiciability of rights. It is also worth noting that making rights justiciable is only one of the ways of protecting them -- policy and related measures should also be taken to realise human rights.

In elaborating a framework for the domestic protection of human rights, emphasis is usually placed on their inclusion in a constitutional bill of rights and ordinary legislation and the review ability of their implementation by judicial and quasi-judicial organs. The effect of international human rights instruments is also recognised. Less attention is paid to the existence of procedures that allow persons or organisations to institute cases on behalf of victims of violations of human rights (*actio*

¹⁴ Art. 47 of the Charter on African Human and Peoples' Rights of 1981

¹⁵ *Id.*, Art. 55.

¹⁶ The Protocol allows non-governmental organizations (NGOs) and individuals direct access to the Court provided that at the time of ratification or any time thereafter, the state makes a declaration accepting the competence of the Court to receive cases from NGOs and individuals. See Arts. 5(3) and 34(6).

popularis). These substantive, jurisdictional and procedural elements of the protection of human rights determine the extent to which rights are justiciable in a domestic legal system. This article evaluates the laws and practices in Ethiopia with regard to the above components of human rights protection.

Ethiopia is a federal state with nine regions and two administrative cities. While there is a federal Constitution with nationwide application, the regional states do also have their own constitutions with provisions on human rights and constitutional interpretation modelled after the former. As its title suggests, the article deals with the system established by the Ethiopian Constitution, and hence does not deal with regional constitutions. Furthermore, both federal and regional legislative bodies have the power to issue legislation relating to human rights that are compatible with the provisions of the Constitution. As a result, there is a wide array of ordinary legislation that provides for specific justiciable rights in Ethiopia. This contribution does not discuss all such legislation in any depth.

* * *

Human rights are most securely protected where they are entrenched as fundamental norms of a supreme constitution through a comprehensive bill of rights with strict amendment requirements and where they are enforceable by courts of law. According to article 9 of the Ethiopian Constitution, the Constitution is the supreme law of the land and any law, customary practice or decision of an organ of state or a public official which contravenes it shall be of no effect. Chapter three provides for a long list of “fundamental rights and freedoms” grouped as human rights and democratic rights. Aside from this seemingly artificial distinction between rights, the Bill of Rights of the Constitution enshrines classic civil and political rights, economic, social and cultural rights and collective rights. Article 105 of the Constitution ends with an extremely stringent requirement for the amendment of its chapter on fundamental rights and freedoms.

The Ethiopian Constitution enshrines robust provisions on civil and political rights, including the right to life, security of the person and liberty, the right to protection against cruel, inhuman or degrading treatment or punishment, the rights of arrested, accused and convicted persons, the right to dignity, the right to equality, the right to privacy; freedom of religion and belief, freedom of thought, opinion and expression, the right to assembly, demonstration and petition, freedom of association; freedom of movement, the right of nationality, marital, personal and family rights, the rights of women and children, the right to vote and to be elected, and the right to property. The contents of the rights protected by these and other provisions are more or less in line with internationally recognised standards of protection of similar rights.

The Constitution further incorporates economic, social and cultural rights under the crudely-formulated provisions of article 41. Without specifically listing and defining these rights, the article generally requires the creation of equal opportunities to freely chosen means of livelihood and the allocation of ever-increasing resources for health, education and other social services. It is argued that certain economic, social and cultural rights can be read into the broad provisions of article 41. However, the poor formulation of the article increases the ambivalence regarding the justiciability of this group of rights as it is difficult to clearly delineate the precise scope of the rights.

Collective rights such as trade union rights, the right to development and environmental rights are also included in the Bill of Rights of the Ethiopian Constitution. Under chapter 10, the Ethiopian Constitution provides for “national policy principles and objectives” that guide any government organ in the implementation of constitutional provisions, other laws and public policies. These objectives, among others, require the government to promote self-rule and equality of the people, to formulate policies that ensure equal economic opportunities and benefits, and to adopt policies that aim at providing all Ethiopians access to public health and education, clean water, housing, and social security to the extent the country’s resources permit. While the provisions of the Bill of Rights provide for individual and group entitlements, the policy objectives extend this protection by

imposing the duty to adopt policies that ensure the enjoyment of rights by citizens. Policy Principles and Objectives are akin to what are, in other systems, called Directive Principles of State/Social Policies (DPSP) which are deemed expressly non-justiciable. I argue that they are not out of the total reach of courts. They may be used as tools that guide the interpretation of fundamental rights and freedoms. Policies should also be developed and implemented with due respect to fundamental rights and freedoms. A court may, for instance, find a policy adopted to realise the right to health (as a DPSP) in violation of the right to equality (which is part of the Bill of Rights) if it happens to be discriminatory.

* * *

B. Interpretation and Enforcement of the Rights and Freedoms under the Constitution

1. General Consideration

The constitutional provisions on rights and freedoms are meaningless unless they are effectively enforced by judicial bodies of the country. The enforcement system in place in a given polity may affect the level of enforceability of rights and freedoms put in place. In fact, we should not lose sight of the important problem associated with the absence of judicial independence that was discussed earlier in this textbook as a key factor determining the enforcement of rights and freedoms, and the reign of the rule of law.

The Ethiopian constitution puts in place a somewhat complicated system for the enforcement of rights and freedoms recognized in the constitution. Art. 13(1) of the Constitution states that “all Federal and State legislative, executive and judicial organs at all levels shall have the responsibility and duty to respect and enforce the provisions of this Chapter [Three].” This rule imposes the duty to respect and enforce the fundamental rights and freedoms of the Constitution on all organs of not only federal government but also on those of the states. When it comes to the interpretative enforcement of the Constitution including those provisions in Chapter Three, the Constitution has empowered the House of the Federation, which will be discussed in the next Chapter of this textbook. But it is clear that the courts also have a constitutional responsibility to enforce the fundamental rights and freedoms of the Constitution. It is often stated that the courts have been denied their power to enforce the fundamental rights and freedoms of the Constitution by virtue of the fact that the HoF is given the power to interpret the Constitution. But this is not what the Constitution has intended. The HoF is there to settle only constitutional disputes. In all cases where constitutional disputes have not arisen, the courts have their powers intact. We will return to this discussion in the next Chapter as we deal with the interpretation of the Ethiopian Constitution. The following excerpt from Rakeb Messele’s primary research is included to help you gauge the interpretative approaches used by the Ethiopian courts in cases involving constitutionally guaranteed rights.

Rakeb Messele, *Enforcement of Human Rights in Ethiopia* (Research conducted under the aegis of APAP), Addis Ababa, (2002). Footnotes omitted.

* * *

3.2.1. The Right to Have Opportunity to Communicate with One’s Counsel

The 1994 Constitution

Art. 20 (5): Accused persons have the right to be represented by a legal counsel of their choice . . .

Art. 21(2): All persons shall have the opportunity to communicate with, and to be visited by, their . . . legal counsel of their own choosing.

ICCPR

Art. 14 (3)(b): In the determination of any criminal charge against him, everyone shall be entitled to have adequate time and facilities for the preparation of his defense and to communicate with counsel of his own choosing.

In the case of the *State V. Dr. Taye Wolde Semayat* and others, the accused were charged under art. 252 (1)(a) of the Penal Code. Facing difficulties to consult with his defense counsel, the first accused complained that he was denied the opportunity to communicate with his counsel. The Court noted that if the counsels were truly denied the opportunity to communicate with the accused that is illegal. Any detained person has the right to freely communicate with his counsel. The Court further affirmed that this right is not only universal but also recognized by the Constitution. If, notwithstanding this provision, the accused are denied the opportunity to communicate with their counsels, this conduct is then unconstitutional. The Court thus ordered the Prison Administration to revert from this kind of practice.

* * *

In this particular case study, the Court interpreted the right to have the opportunity to communicate with one's counsel in conformity with international human rights standards and ordered the relevant authorities to take the necessary measures to curb the violation of the accused persons. However, the US Department of State reported in 2002 that the President of the Ethiopian Teachers' Association, Taye Woldesemayat, was held separately from other prisoners, and although diplomats continued to visit Woldesemayat in prison during the year, he was not permitted to confer with his attorney without the prison guards' presence.

3.2.2. The Right to Bail

The 1994 Constitution

Art. 19 (4): All persons have an inalienable right to petition the court to order their physical release where the arresting police officer or the law enforcer fails to bring them before a court within the prescribed time and to provide reasons for their arrest. Where the interest of justice requires, the court may order the arrested person to remain in custody or, when requested, remand him for a time strictly required to carry out the necessary investigation. In determining the additional time necessary for investigation, the court shall ensure that the responsible law enforcement authorities carry out the investigation respecting the arrested person's right to a speedy trial.

Art. 19 (6): Persons arrested have the right to be released on bail. In exceptional circumstances prescribed by law, the court may deny bail or demand adequate guarantee for the conditional release of the arrested person.

Art. 20 (3): During proceedings accused persons have the right to be presumed innocent until proved guilty according to law. . .

ICCPR

Art. 9 (3): It shall not be the general rule that persons awaiting trial shall be detained in custody, release may be subject to guarantees to appear for trial, at any other stage of the judicial proceedings, and, should occasion arise, for execution of the judgment.

Criminal Procedure Code of 1961

Art. 59 (1): The court before which the arrested person is brought shall decide whether such person shall be kept in custody or be released on bail.

Art. 63 (1): Whosoever has been arrested may be released on bail where the offence with which he is charged does not carry the death penalty or rigorous imprisonment for fifteen years or more and where there is no possibility of the person in respect of whom the offence was committed dying.

Art. 66: Any court to which an application for bail is made shall consider it without delay and shall call upon the prosecutor or the investigating police officer in his absence for comments and recommendations. It shall make its decisions within 48 hours.

Art. 67: An application for bail shall not be allowed where:

- a. the applicant is of such nature that it is unlikely that he will comply with the condition laid down in the bail bond;
- b. the applicant, if set at liberty, is likely to commit other offences;
- c. the applicant is likely to interfere with witnesses or tamper with the evidence.

Art. 69 (2): The court shall decide the amount to be guaranteed having regard to:

- a. the seriousness of the charge; and
- b. the likelihood of the accused's appearance; and
- c. the danger to public order which his release may occasion; and
- d. the resources of the accused and his guarantors.

In the *State v. Legesse Getachew and others*, the Court denied the accused persons bail on the following grounds: the offense that the accused persons are alleged to have committed is one that is committed in groups at night. This behavior is one that aims to possess property that one has not worked for by the use of force and by putting the lives and well being of others in danger. Considering the graveness of the offense, the Court has thus denied bail to the accused.

In another case of the *State v. Moges Teferra and others*, the East Gojjam Zonal High Court similarly denied the right to bail of an accused by putting the following argument forward. "Even though the crime that the accused is alleged to have committed is one that does not on its own prohibit bail, the facts of the case show that the accused tried to take advantage from an offence that he has skilfully planned and organized and delegated others to perform. Taking into consideration the circumstances of the region in which the offence is committed, it is not common for one to benefit from the outcome of an armed robbery in which he did not directly participate though he organized it and made use of the lower level of intellect of others. This kind of phenomena may result in the creation of groups and leaders of armed robbery in the society. The offence, which the accused is alleged to have committed and on whom the prosecutor has brought evidence against is the attempt of an armed robbery of an automobile that contained 500,000 ETB owned by the Ethiopian Commercial Bank. What we can infer from this is that the accused person has put the interest of the society on the side in favor of his own and endangered the good functioning of commercial activities in the region in particular and the country at large. This does not only negatively affect business people and governmental commercial institutions but also people who in one way or another wish to be involved in different activities.

Despite the arguments put forward by the two courts, the provisions of the Constitution and ICCPR provide the test to be applied in bail decisions. Bail is granted to avoid punishing accused persons before conviction. In bail decisions, a balance must thus be struck between, on one side, the interests of justice (that the accused should stand trial) and, on the other, the right to freedom of liberty and presumption of innocence of the accused as affirmed by art. 20 (3) of the Constitution. However, the Constitution favors liberty; i.e. the detainee is entitled to release unless it is in the interests of justice that he or she be denied bail.

* * *

The overriding consideration should remain the evaluation of all interests involved. Most of the interests at stake, both those in favor and against the granting of bail are listed in arts. 63 and 67 of the Ethiopian Criminal Procedural Code. According to these provisions, the question of the interests of justice mainly entails securing the attendance of the accused at trial and protecting the investigation and prosecution of the case against hindrance. The danger that a bail applicant may

pose to society may also be taken into account. There must, however, be a likelihood that such a risk will materialize.

* * *

However, in the case studies cited above, both courts dealt with the bail application as an issue of guilt and not of interests of justice. The courts, instead of rendering their judgment on the basis of grounds and procedures established by law (arts. 63 and 67 of the Criminal Procedure Code), merely considered the level of graveness of the alleged offence to deny bail and the impact of the offence on the society. This further goes against the principle of presumption of innocence as the arguments of both courts are based on the assumption of guilt of the accused persons before judgment of guilt is rendered.

On the other hand, in the case of the *State v. Mekwanenet Fekadu*, the Amhara Regional High Court stated that art. 20 (3) of the Constitution affirms that an accused person has the right to be treated as an innocent person until s/he is proven to be guilty of the alleged crime. The mere evidence that the appellant is allegedly accused under a different court to have committed another offence is not enough to presume that his release will endanger the public order. This Court thus overturned the decision rendered by the lower court denying bail and conditionally released the accused person with a surety of 3000 ETB.

However, in a similar case, *State v. Telek Sew Bekele*, the Federal Supreme Court denied bail to the accused persons on the grounds that the appellant is allegedly accused under a different court on a different account. The Court argued that this is enough evidence proving the danger that the bail applicant poses to the society.

* * *

Yet in another case, the accused argued that the right to bail as it is recognized by art. 19 (6) of the Constitution is a fundamental right against which no limitation may be placed. This is further in line with international standards and art. 9 (3) of the ICCPR that Ethiopia has ratified. However, the accused argued, the provision of art. 63 of the Criminal Procedure Code is not in line with the constitutional right to bail. It is actually in contravention of the Constitution because it does not recognize the right to bail as a fundamental right and grants the power to a court of law to deny the right to bail for an alleged offence of a low degree. The accused further argued that the Criminal Procedure Code does not release on bail a person allegedly accused of an offence the punishment of which may go up to 15 years imprisonment. Since the Constitution is the supreme law of the land, he continued, any provision of the law, which contravenes with the Constitution is, pursuant to art. 9 (1) of the Constitution, of no effect.

In rendering its decision on the issue of bail, the Amhara Regional High Court noted that art. 19 (6) truly provides that persons arrested have the right to be released on bail. However, in exceptional circumstances prescribed by law, the court may deny bail or demand adequate guarantee for the conditional release of the arrested person. Since Chapter Three of the Constitution deals with fundamental rights and freedoms, it is necessary to make reference to it, where it is deemed necessary, in relation to particular provisions. In this respect, it can reasonably be said that the right to bail does not only apply to arrested persons but also to accused persons. Accordingly, in principle the right to bail is a constitutional right. However, it may be limited in accordance with the grounds and procedures established by law....

The other issue to be considered in grant of bail is the determination of where the interest of justice lies. As noted above, the issue of bail is not an issue of guilt but rather where the interest of justice lies. In determining the factors for and against the grant of bail, the court is, thus, to act as proactively and inquisitorially as may be necessary. With this regard, the Constitutional Court of South Africa noted that “if neither side raises the question of bail, the court must do so. If the

parties do not of their own accord adduce evidence or otherwise produce data regarded by the court to be essential, it must itself take the initiative.

From the wording of art. 59 (1) of the Ethiopian Criminal Procedure Code, it can similarly be argued that the court should take the initiative in raising the issue of bail where the parties fail to do so as it has the duty to decide whether the arrested person should stay in custody or be released on bail. Though art. 66 provides that such decision shall be made within 48 hours, it is not clear from which date the clock starts ticking. However, taking into consideration that the same provision requires the court to consider the application for bail without delay, it can rationally be argued that the time starts ticking from the time the application for bail was made.

In ensuring the interest of justice here, we need to, on one side, secure the attendance of the accused at trial and protect the investigation and prosecution of the case against hindrance. On the other side, we need to protect the fundamental right of everyone who is arrested to be released on bail, subject to reasonable conditions. Here, it is also necessary to consider this in relation to art. 9 (4) of the ICCPR, which provides an important guarantee by way of the right to control by a court the legality of the detention.

In the case of the *State v. Professor Mesfin W/Mariam and Dr. Berhanu Nega*, the accused persons did not apply for bail on their first appearance before the court of law. The Federal High Court granted a 10 days remand pursuant to the application of the investigating police officer for a remand for 14 days to enable the investigation to be completed. The Court did not question the legality of the detention of the arrested persons and by so doing protect the interests of the arrested persons. On their second appearance at the court of law, the investigating police officer applied again for a remand for 14 days. The counsels of the accused, on the other hand, applied for a grant of bail. The Federal High Court granted 7 days remand without making any reference to the application for the grant of bail. Only at the third appearance did the Court decide to release the accused persons on bail.

Similarly, in . . . *State v. Legesse Getachew*, the Federal High Court failed to address the application for grant of bail within 48 hours as per the provision of the Criminal Procedure Code. Instead, it adjourned the case for 20 days to consider the circumstances of the case before giving its decision on the grant of bail.

Here the Federal High Court not only failed to make its decision for or against the grant of bail within 48 hours as per the requirement of art. 66 of the Criminal Procedure Code but also failed to protect the right of the arrested persons to be released from detention on bail as provided by art. 19 (6) of the Constitution. This is despite the fact that no exceptional circumstances were shown to exist to struck the balance of the interests of justice in favor of detention of the arrested persons.

Another issue in granting of bail is the amount of bail that is required as a guarantee for the release. According to art. 69 (2) of the Criminal Procedure Code, we can infer that the amount of bail must not be excessive as to amount to a refusal of bail. An excessive amount of bail than is necessary to fulfill the purpose listed in art. 67 of the Criminal Procedure Code thus amounts to a violation of the right to bail.

In . . . the *State v. Amare Tadesse and others*, the accused, who had allegedly committed a petty offence was granted bail for a guarantee of 300 ETB. Unable to deposit this amount, the accused is being detained for over two years. Considering the fact that the accused person is allegedly accused of committing a petty offence (thus a non-serious offence) and the resources of the accused as per the requirement of art. 69 (2), the Court should have decided on an amount, which is enough to secure his appearance at trial. In addition, in this particular case, the accused is already being detained for more than two years for allegedly committing an offence the maximum punishment of which is six months of imprisonment. The accused person is not only being detained for a long time

as a result of an excessive amount of bail that in practice amounted to an indirect refusal of bail, but has also his right to liberty restricted for a longer period of time than the law provides for. Though every constraint on the right to liberty might not amount to violation of this right, restriction of this right should be a “just cause” and on such ground as is established by law. Even where the deprivation of liberty is with a “just cause,” the manner in which the deprivation is undertaken has to be in accordance with the procedure established by law as is required by art. 17 (1) of the Constitution. Though the degree of procedural fairness will have to be determined on a case-by-case basis, the level of procedural fairness in this particular case is highly questionable because of the duration and purpose of detention of the accused person.

3.2.3. The Right Not to be Compelled to Confess

The 1994 Constitution

Art. 19 (5): Persons arrested shall not be compelled to make confessions and admissions, which could be used in evidence against them. Any evidence obtained under coercion shall not be admissible.

ICCPR

Art. 14 (3)(g): The accused may not be compelled to testify against himself or to confess guilt.

Art. 7: No one shall be subjected to torture or to cruel, inhuman or degrading treatment or punishment.

Art. 10 (1): All persons deprived of their liberty shall be treated with humanity and with respect for the inherent dignity of the human person.

Criminal Procedure Code

Art. 27 (2): He shall not be compelled to answer and shall be informed that he has the right not to answer and that any statement he may make may be used in evidence.

Art. 35

- (1): Any court may record any statement or confession made to it at any time before the opening of a preliminary inquiry or trial.
- (2): No court shall record any such statement or confession unless, upon questioning the person making it, it ascertains that such person voluntarily makes such statement or confession. A note to this effect shall be made on the record.
- (3): Such statement or confession shall be recorded in writing and in full by the court and shall thereafter be read over to the person making the statement or confession, who shall sign and date it. The statement shall then be signed by the president of the court.

* * *

In . . . the *State v. Moges Teferra and others*, the East Gojjam Zonal High Court put an argument forward with regard to arts. 27 (2) and 35 of the Criminal Procedure Code. The Court noted that the Criminal Procedure Code does not determine whether a confession and admission not obtained in line with these provisions is admissible or not. Ethiopia does not have a law of evidence, which clarifies this either. The legislature was expecting that the admissibility requirement was going to be dealt with within the law of evidence. However, it could be argued that where the requirements of the above articles are fulfilled, a question of admissibility of the confession and admission should not be raised. According to the above provisions, confessions and statements given by the accused to the police (art. 27) and to the court of law (art. 35) should be made freely and voluntarily. In addition, the law affirms that the investigation police officer should not exercise any kind of inducement and coercion on the person who is confessing. Therefore, there is no reason

why a confession and admission obtained freely and voluntarily without any inducement and coercion should not be admissible.

The Court continued stating that according to the experience of the Ethiopian courts, it is very common on the one hand, for accused persons to argue that the confessions and statements made pursuant to arts. 27 (2) and 35 were not given freely and voluntarily. On the other hand, the public prosecutor argued that the confessions and statement were given freely and voluntarily. A decision that favors any of the above arguments without proper reason will be against the interest of the public. If the court decides to only consider the argument of accused persons and does not admit confessions and admissions of accused persons made to the police and in courts of law, if additional evidence is not brought against him/her, then this will promote the commission of crimes in the absence of a witness. On the other hand, if the court favors the argument of the public prosecutor, then this might encourage the investigation police officer to investigate even by the use of coercion. Both ways, the interests of the public will not be safeguarded. People may, against their constitutional rights, also be forced to self incriminate themselves. Their right to be presumed innocent may further be violated. This results in breach of the public interests because when an individual right is violated or is not protected then we cannot say that the interests of the public are protected.

The Court strongly believes that a balance must be struck between the interest of the public to prevent crime and the protection of individual human rights. Where the admissibility of the confession and statement is questioned for reason of coercion or inducement, a balance may be struck between the two interests by requesting additional evidence to be brought against the accused.

However, with regard to confession and admission made in front of a court of law pursuant to art. 35, the Court leaves the burden to prove the use of coercion or inducement on the accused person. This is because of the presumption that the use of coercion and inducement is very minimal in a court of law, which is open to the public and independent.

* * *

The East Gojjam Zonal High Court went further into considering the circumstances in which confession and admission may not be admissible as evidence. In considering the circumstances of the first accused, it was testified that the investigation police officer did not inform the accused that he has the right to remain silent and that any statement he may make may be used against him. The Court identified this as one circumstance that could put the admissibility of the confession under question.

Moreover, in considering the confession of the fifth accused, the Court noted that the fact that the hands of the accused were chained during the confession is an evidence of the use of coercion by the investigation police officer. The Court thus decided that this confession would not be admissible as evidence before court of law.

It may reasonably be argued that the interpretation of the right not to be compelled to confess of the East Gojjam High Court is in line with the provisions of the Constitution and international standards. Not only does it recognize that protection should be granted to accused persons against being compelled to confess or to testify against him/herself by rendering the confession inadmissible, but also recognize that different methods may be used to compel an accused person to confess.

3.2.4. The Right to a Speedy Trial

The 1994 Constitution

Art. 19 (4): Where the interests of justice requires, the court may order the arrested person to remain in custody or, when request, remand him for a time strictly required to carry out the necessary investigation. In determining the additional time necessary for investigation, the court shall ensure that the responsible law enforcement authorities carry out the investigation respecting the arrested person's right to a speedy trial.

Art. 20 (1): Accused persons have the right to a public trial by an ordinary court of law within a reasonable time after having been charged.

ICCPR

Art. 14 (3)(b): In determination of any criminal charge against him, everyone shall be entitled to be tried without undue delay.

* * *

For instance, let's take the circumstances of the [earlier cited] case of the *State v. Amare Tadesse Engeda and others*. Amare Tadesse and other seven persons were allegedly accused for petty offences, the maximum punishment of which may go up to six months in 05/04/92 (E.C.). The Federal First Instance Court granted bail for a surety of 300 ETB. Unable to deposit this amount of guarantee, one of the accused persons is being detained up to the present time awaiting judgment. The case is adjourned for Hedar 1995 (E.C.).

In this case, as the accused is detained, unable to deposit the amount of guarantee decided upon by the Court, both his reputation and liberty are at stake. While investigation and prosecution of a case requires a certain amount of time, the prejudice that the accused person is facing should be taken into consideration. In addition, the nature and level of gravity of the case should also be considered. In this particular case, the accused has allegedly committed a petty offence the maximum punishment of which may go up to six months of imprisonment. Even where the accused may be found guilty, his liberty has already been restricted for over two years. On the other hand, if the accused had pleaded guilty and he was sentenced to a certain period of imprisonment, he would have served his terms and set free a long time ago. Without even going to the question whether the time is reasonable or not, if we try to consider whether the interests of justice is served in this case, the answer will be no, because even where the accused will be found guilty, he was detained more than the law provides for the offence he has allegedly committed.

The violation of the right to a speedy trial is reported to have forced an important number of arrested persons to plead guilty to avoid a lengthy trial from which neither the society nor the arrested person will benefit. This further jeopardizes individual rights to a large extent as arrested and accused persons may be detained for unlimited and unreasonable period of time pending judgment for an offence if they were to be found guilty, will result in a much shorter restriction of their liberty. Worse yet, they might be found not guilty.

Read Arts. 14-17 of the Ethiopian Constitution.

Questions and Discussion

How do you see the relationship between Art. 14 on the one hand, and Arts. 15, 16, 17 on the other? Do you think the presence or absence of Art. 14 would make any difference in view of the existence of the three subsequent provisions? Art. 14 states that “Every person has the inviolable and inalienable right to life, the security of person and liberty.” What is the meaning of this provision? Is it saying that since these rights are invaluable and inalienable, they cannot be limited in any way? Do you think that legal meaning of the content of Art. 14 is with the same effect with those of Arts. 15, 16 and 17?

As we have indicated it earlier, Ethiopia is a party to the ICCPR. Below, you will find the General Comment of the Human Rights Committee (HRC) on the relevant provisions of the ICCPR. Read these comments carefully, and as you read them try to think whether you would accept or not (and then why or why not) the interpretation of the HRC. Do also compare the wording of Art. 6 of the ICCPR and that of Art. 15 of the Ethiopian Constitution. Do you see major differences between the two legal texts? Document what you see and discuss them. Do the same in relation to Arts. 16 and 17 of the Ethiopian Constitution, and Art. 9 of the ICCPR.

* * *

Article 6, ICCPR

1. Every human being has the inherent right to life. This right shall be protected by law. No one shall be arbitrarily deprived of his life.
2. In countries which have not abolished the death penalty, sentence of death may be imposed only for the most serious crimes in accordance with the law in force at the time of the commission of the crime and not contrary to the provisions of the present Covenant and to the Convention on the Prevention and Punishment of the Crime of Genocide. This penalty can only be carried out pursuant to a final judgement rendered by a competent court.
3. When deprivation of life constitutes the crime of genocide, it is understood that nothing in this article shall authorize any State Party to the present Covenant to derogate in any way from any obligation assumed under the provisions of the Convention on the Prevention and Punishment of the Crime of Genocide.
4. Anyone sentenced to death shall have the right to seek pardon or commutation of the sentence. Amnesty, pardon or commutation of the sentence of death may be granted in all cases.
5. Sentence of death shall not be imposed for crimes committed by persons below eighteen years of age and shall not be carried out on pregnant women.
6. Nothing in this article shall be invoked to delay or to prevent the abolition of capital punishment by any State Party to the present Covenant.

Sixteenth session (1982)

General comment No. 6: Article 6 (Right to life)

1. The right to life . . . is the supreme right from which no derogation is permitted even in time of public emergency which threatens the life of the nation (art. 4). However, the Committee has noted that quite often the information given concerning article 6 was limited to only one or other aspect of this right. It is a right which should not be interpreted narrowly.
2. The Committee observes that war and other acts of mass violence continue to be a scourge of humanity and take the lives of thousands of innocent human beings every year. Under the Charter of the United Nations the threat or use of force by any State against another State, except in exercise of the inherent right of self-defence, is already prohibited. The Committee considers that States have the supreme duty to prevent wars, acts of genocide and other acts of mass violence causing arbitrary loss of life. Every effort they make to avert the danger of war,

especially thermonuclear war, and to strengthen international peace and security would constitute the most important condition and guarantee for the safeguarding of the right to life. In this respect, the Committee notes, in particular, a connection between article 6 and article 20, which states that the law shall prohibit any propaganda for war (para. 1) or incitement to violence (para. 2) as therein described.

3. The protection against arbitrary deprivation of life which is explicitly required by the third sentence of article 6 (1) is of paramount importance. The Committee considers that States parties should take measures not only to prevent and punish deprivation of life by criminal acts, but also to prevent arbitrary killing by their own security forces. The deprivation of life by the authorities of the State is a matter of the utmost gravity. Therefore, the law must strictly control and limit the circumstances in which a person may be deprived of his life by such authorities.
4. States parties should also take specific and effective measures to prevent the disappearance of individuals, something which unfortunately has become all too frequent and leads too often to arbitrary deprivation of life. Furthermore, States should establish effective facilities and procedures to investigate thoroughly cases of missing and disappeared persons in circumstances which may involve a violation of the right to life.
5. Moreover, the Committee has noted that the right to life has been too often narrowly interpreted. The expression “inherent right to life” cannot properly be understood in a restrictive manner, and the protection of this right requires that States adopt positive measures. In this connection, the Committee considers that it would be desirable for States parties to take all possible measures to reduce infant mortality and to increase life expectancy, especially in adopting measures to eliminate malnutrition and epidemics.
6. While it follows from article 6 (2) to (6) that States parties are not obliged to abolish the death penalty totally they are obliged to limit its use and, in particular, to abolish it for other than the “most serious crimes.” Accordingly, they ought to consider reviewing their criminal laws in this light and, in any event, are obliged to restrict the application of the death penalty to the “most serious crimes.” The article also refers generally to abolition in terms which strongly suggest (paras. 2 (2) and (6)) that abolition is desirable. The Committee concludes that all measures of abolition should be considered as progress in the enjoyment of the right to life within the meaning of article 40, and should as such be reported to the Committee. The Committee notes that a number of States have already abolished the death penalty or suspended its application.
7. The Committee is of the opinion that the expression “most serious crimes” must be read restrictively to mean that the death penalty should be a quite exceptional measure. It also follows from the express terms of article 6 that it can only be imposed in accordance with the law in force at the time of the commission of the crime and not contrary to the Covenant. The procedural guarantees therein prescribed must be observed, including the right to a fair hearing by an independent tribunal, the presumption of innocence, the minimum guarantees for the defence, and the right to review by a higher tribunal. These rights are applicable in addition to the particular right to seek pardon or commutation of the sentence.

* * *

Twenty-third session (1984)

General comment No. 14: Article 6 (Right to life)

1. In its General Comment No. 6 [16] adopted at its 378th meeting on 27 July 1982, the Human Rights Committee observed that the right to life enunciated in the first paragraph of article 6 of the International Covenant on Civil and Political Rights is the supreme right from which no derogation is permitted even in time of public emergency. The same right to life is enshrined in article 3 of the Universal Declaration of Human Rights adopted by the General Assembly of the United Nations on 10 December 1948. It is basic to all human rights.
2. In its previous general comment, the Committee also observed that it is the supreme duty of States to prevent wars. War and other acts of mass violence continue to be a scourge of humanity and take the lives of thousands of innocent human beings every year.

3. While remaining deeply concerned by the toll of human life taken by conventional weapons in armed conflicts, the Committee has noted that, during successive sessions of the General Assembly, representatives from all geographical regions have expressed their growing concern at the development and proliferation of increasingly awesome weapons of mass destruction, which not only threaten human life but also absorb resources that could otherwise be used for vital economic and social purposes, particularly for the benefit of developing countries, and thereby for promoting and securing the enjoyment of human rights for all.
4. The Committee associates itself with this concern. It is evident that the designing, testing, manufacture, possession and deployment of nuclear weapons are among the greatest threats to the right to life which confront mankind today. This threat is compounded by the danger that the actual use of such weapons may be brought about, not only in the event of war, but even through human or mechanical error or failure.
5. Furthermore, the very existence and gravity of this threat generates a climate of suspicion and fear between States, which is in itself antagonistic to the promotion of universal respect for and observance of human rights and fundamental freedoms in accordance with the Charter of the United Nations and the International Covenants on Human Rights.
6. The production, testing, possession, deployment and use of nuclear weapons should be prohibited and recognized as crimes against humanity.
7. The Committee accordingly, in the interest of mankind, calls upon all States, whether Parties to the Covenant or not, to take urgent steps, unilaterally and by agreement, to rid the world of this menace.

* * *

Sixteenth session (1982)

General comment No. 8: Article 9 (Right to liberty and security of persons)

1. Article 9 which deals with the right to liberty and security of persons has often been somewhat narrowly understood in reports by States parties, and they have therefore given incomplete information. The Committee points out that paragraph 1 is applicable to all deprivations of liberty, whether in criminal cases or in other cases such as, for example, mental illness, vagrancy, drug addiction, educational purposes, immigration control, etc. It is true that some of the provisions of article 9 (part of paragraph 2 and the whole of paragraph 3) are only applicable to persons against whom criminal charges are brought. But the rest, and in particular the important guarantee laid down in paragraph 4, i.e. the right to control by a court of the legality of the detention, applies to all persons deprived of their liberty by arrest or detention. Furthermore, States parties have in accordance with article 2 (3) also to ensure that an effective remedy is provided in other cases in which an individual claims to be deprived of his liberty in violation of the Covenant.
2. Paragraph 3 of article 9 requires that in criminal cases any person arrested or detained has to be brought “promptly” before a judge or other officer authorized by law to exercise judicial power. More precise time limits are fixed by law in most States parties and, in the view of the Committee, delays must not exceed a few days. Many States have given insufficient information about the actual practices in this respect.
3. Another matter is the total length of detention pending trial. In certain categories of criminal cases in some countries this matter has caused some concern within the Committee, and members have questioned whether their practices have been in conformity with the entitlement “to trial within a reasonable time or to release” under paragraph 3. Pre-trial detention should be an exception and as short as possible. The Committee would welcome information concerning mechanisms existing and measures taken with a view to reducing the duration of such detention.
4. Also if so-called preventive detention is used, for reasons of public security, it must be controlled by these same provisions, i.e. it must not be arbitrary, and must be based on grounds and procedures established by law (para. 1), information of the reasons must be given (para. 2) and court control of the detention must be available (para. 4) as well as compensation in the case of a

breach (para. 5). And if, in addition, criminal charges are brought in such cases, the full protection of article 9 (2) and (3), as well as article 14, must also be granted.

* * *

Read Art. 18 of the Ethiopian Constitution.

Article 7, ICCPR

No one shall be subjected to torture or to cruel, inhuman or degrading treatment or punishment. In particular, no one shall be subjected without his free consent to medical or scientific experimentation.

Article 8, ICCPR

1. No one shall be held in slavery; slavery and the slave-trade in all their forms shall be prohibited.
2. No one shall be held in servitude.
- 3 (a) No one shall be required to perform forced or compulsory labour;
 - (b) Paragraph 3 (a) shall not be held to preclude, in countries where imprisonment with hard labour may be imposed as a punishment for a crime, the performance of hard labour in pursuance of a sentence to such punishment by a competent court;
 - (c) For the purpose of this paragraph the term “forced or compulsory labour” shall not include:
 - (i) Any work or service, not referred to in subparagraph (b), normally required of a person who is under detention in consequence of a lawful order of a court, or of a person during conditional release from such detention;
 - (ii) Any service of a military character and, in countries where conscientious objection is recognized, any national service required by law of conscientious objectors;
 - (iii) Any service exacted in cases of emergency or calamity threatening the life or well-being of the community;
 - (iv) Any work or service which forms part of normal civil obligations.

Article 5, ACHPR

Every individual shall have the right to the respect of the dignity inherent in a human being and to the recognition of his legal status. All forms of exploitation and degradation of man, particularly slavery, slave trade, torture, cruel, inhuman or degrading punishment and treatment shall be prohibited.

Questions and Discussion

1. Compare the content of the above Constitutional provision with the relevant provisions of treaties to which Ethiopia is a party, particularly the ICCPR and the Convention against Torture (CAT). Do you see a fundamental difference? Art. 18 of the Ethiopian Constitution subsumes under itself provisions contained in Arts. 7 and 8 of the ICCPR.
2. See also Art. 5 of the African Charter on Human and Peoples’ Rights (ACHPR). In a dramatic way, the term “torture” is absent from the Ethiopian Constitution’s Art. 18 while it is part of the UDHR, ICCPR, ACHPR and of course CAT. Do you see it as legally problematic that the term “torture” is absent from Art. 18 of the Ethiopian Constitution?
3. As you study General Comment No. 7 reproduced below, pay attention to how the Committee has approached the issue of the distinguishing markers of individual terms, namely, “torture,” “cruel treatment,” “cruel punishment,” “inhuman treatment,” “inhuman punishment”, “cruel punishment,” “degrading treatment,” “degrading punishment.” Has the committee defined each of these terms?

* * *

Forty-fourth session (1992)
***General comment No. 20: Article 7 (Prohibition of torture, or other
cruel, inhuman or degrading treatment or punishment)***

1. This general comment replaces general comment No. 7 (the sixteenth session, 1982) reflecting and further developing it.
2. The aim of the provisions of article 7 of the International Covenant on Civil and Political Rights is to protect both the dignity and the physical and mental integrity of the individual. It is the duty of the State party to afford everyone protection through legislative and other measures as may be necessary against the acts prohibited by article 7, whether inflicted by people acting in their official capacity, outside their official capacity or in a private capacity. The prohibition in article 7 is complemented by the positive requirements of article 10, paragraph 1, of the Covenant, which stipulates that “All persons deprived of their liberty shall be treated with humanity and with respect for the inherent dignity of the human person.”
3. The text of article 7 allows of no limitation. The Committee also reaffirms that, even in situations of public emergency such as those referred to in article 4 of the Covenant, no derogation from the provision of article 7 is allowed and its provisions must remain in force. The Committee likewise observes that no justification or extenuating circumstances may be invoked to excuse a violation of article 7 for any reasons, including those based on an order from a superior officer or public authority.
4. The Covenant does not contain any definition of the concepts covered by article 7, nor does the Committee consider it necessary to draw up a list of prohibited acts or to establish sharp distinctions between the different kinds of punishment or treatment; the distinctions depend on the nature, purpose and severity of the treatment applied.
5. The prohibition in article 7 relates not only to acts that cause physical pain but also to acts that cause mental suffering to the victim. In the Committee’s view, moreover, the prohibition must extend to corporal punishment, including excessive chastisement ordered as punishment for a crime or as an educative or disciplinary measure. It is appropriate to emphasize in this regard that article 7 protects, in particular, children, pupils and patients in teaching and medical institutions.
6. The Committee notes that prolonged solitary confinement of the detained or imprisoned person may amount to acts prohibited by article 7. As the Committee has stated in its general comment No. 6 (16), article 6 of the Covenant refers generally to abolition of the death penalty in terms that strongly suggest that abolition is desirable. Moreover, when the death penalty is applied by a State party for the most serious crimes, it must not only be strictly limited in accordance with article 6 but it must be carried out in such a way as to cause the least possible physical and mental suffering.
7. Article 7 expressly prohibits medical or scientific experimentation without the free consent of the person concerned. The Committee notes that the reports of States parties generally contain little information on this point. More attention should be given to the need and means to ensure observance of this provision. The Committee also observes that special protection in regard to such experiments is necessary in the case of persons not capable of giving valid consent, and in particular those under any form of detention or imprisonment. Such persons should not be subjected to any medical or scientific experimentation that may be detrimental to their health.
8. The Committee notes that it is not sufficient for the implementation of article 7 to prohibit such treatment or punishment or to make it a crime. State parties should inform the Committee of the legislative, administrative, judicial and other measures they take to prevent and punish acts of torture and cruel, inhuman and degrading treatment in any territory under their jurisdiction.
9. In the view of the Committee, State parties must not expose individuals to the danger of torture or cruel, inhuman or degrading treatment or punishment upon return to another country by way of their extradition, expulsion or refoulement. State parties should indicate in their reports what measures they have adopted to that end.
10. The Committee should be informed how State parties disseminate, to the population at large, relevant information concerning the ban on torture and the treatment prohibited by article 7.

Enforcement personnel, medical personnel, police officers and any other persons involved in the custody or treatment of any individual subjected to any form of arrest, detention or imprisonment must receive appropriate instruction and training. State parties should inform the Committee of the instruction and training given and the way in which the prohibition of article 7 forms an integral part of the operational rules and ethical standards to be followed by such persons.

11. In addition to describing steps to provide the general protection against acts prohibited under article 7 to which anyone is entitled, the State party should provide detailed information on safeguards for the special protection of particularly vulnerable persons. It should be noted that keeping under systematic review interrogation rules, instructions, methods and practices as well as arrangements for the custody and treatment of persons subjected to any form of arrest, detention or imprisonment is an effective means of preventing cases of torture and ill-treatment. To guarantee the effective protection of detained persons, provisions should be made for detainees to be held in places officially recognized as places of detention and for their names and places of detention, as well as for the names of persons responsible for their detention, to be kept in registers readily available and accessible to those concerned, including relatives and friends. To the same effect, the time and place of all interrogations should be recorded, together with the names of all those present and this information should also be available for purposes of judicial or administrative proceedings. Provisions should also be made against incommunicado detention. In that connection, States parties should ensure that any places of detention be free from any equipment liable to be used for inflicting torture or ill-treatment. The protection of the detainee also requires that prompt and regular access be given to doctors and lawyers and, under appropriate supervision when the investigation so requires, to family members.
12. It is important for the discouragement of violations under article 7 that the law must prohibit the use of admissibility in judicial proceedings of statements or confessions obtained through torture or other prohibited treatment.
13. State parties should indicate when presenting their reports, the provisions of their criminal law which penalize torture and cruel, inhuman and degrading treatment or punishment, specifying the penalties applicable to such acts, whether committed by public officials or other persons acting on behalf of the State, or by private persons. Those who violate article 7, whether by encouraging, ordering, tolerating or perpetrating prohibited acts, must be held responsible. Consequently, those who have refused to obey orders must not be punished or subjected to any adverse treatment.
14. Article 7 should be read in conjunction with article 2, paragraph 3, of the Covenant. In their reports, States parties should indicate how their legal system effectively guarantees the immediate termination of all the acts prohibited by article 7 as well as appropriate redress. The right to lodge complaints against maltreatment prohibited by article 7 must be recognized in the domestic law. Complaints must be investigated promptly and impartially by competent authorities so as to make the remedy effective. The reports of State parties should provide specific information on the remedies available to victims of maltreatment and the procedure that complainants must follow, and statistics on the number of complaints and how they have been dealt with.
15. The Committee has noted that some States have granted amnesty in respect of acts of torture. Amnesties are generally incompatible with the duty of States to investigate such acts; to guarantee freedom from such acts within their jurisdiction; and to ensure that they do not occur in the future. States may not deprive individuals of the right to an effective remedy, including compensation and such full rehabilitation as may be possible.

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Sixteenth session (1982)
General comment No. 8: Article 9 (Right to liberty and security of persons)

1. Article 9 which deals with the right to liberty and security of persons has often been somewhat narrowly understood in reports by State parties, and they have therefore given incomplete information. The Committee points out that paragraph 1 is applicable to all deprivations of liberty, whether in criminal cases or in other cases such as, for example, mental illness, vagrancy, drug addiction, educational purposes, immigration control, etc. It is true that some of the provisions of article 9 (part of paragraph 2 and the whole of paragraph 3) are only applicable to persons against whom criminal charges are brought. But the rest, and in particular the important guarantee laid down in paragraph 4, i.e. the right to control by a court of the legality of the detention, applies to all persons deprived of their liberty by arrest or detention. Furthermore, State parties have in accordance with article 2 (3) also to ensure that an effective remedy is provided in other cases in which an individual claims to be deprived of his liberty in violation of the Covenant.
2. Paragraph 3 of article 9 requires that in criminal cases any person arrested or detained has to be brought “promptly” before a judge or other officer authorized by law to exercise judicial power. More precise time limits are fixed by law in most State parties and, in the view of the Committee, delays must not exceed a few days. Many States have given insufficient information about the actual practices in this respect.
3. Another matter is the total length of detention pending trial. In certain categories of criminal cases in some countries this matter has caused some concern within the Committee, and members have questioned whether their practices have been in conformity with the entitlement “to trial within a reasonable time or to release” under paragraph 3. Pre-trial detention should be an exception and as short as possible. The Committee would welcome information concerning mechanisms existing and measures taken with a view to reducing the duration of such detention.
4. Also if so-called preventive detention is used, for reasons of public security, it must be controlled by these same provisions, i.e. it must not be arbitrary, and must be based on grounds and procedures established by law (para. 1), information of the reasons must be given (para. 2) and court control of the detention must be available (para. 4) as well as compensation in the case of a breach (para. 5). And if, in addition, criminal charges are brought in such cases, the full protection of article 9 (2) and (3), as well as article 14, must also be granted.

* * *

Read Art. 19 of the Ethiopian Constitution.

Questions and Discussion

Who are the- arrested persons referred to in Art. 19 above? How are they different from accused persons referred to in Art. 20 below? Art. 19 says persons arrested have the right to be informed promptly, in a language they understand, of the reasons for their arrest and of any charge against them. What would be the consequence of failure to provide the information to them? On the officer that fails to give the information? Similarly, Persons who are arrested have the right to remain silent and that upon arrest, they have the right to be informed promptly, in a language they understand, that any statement they make may be used as evidence against them in court. What is the consequence of being not informed on the statement made by the arrested person? What does promptly mean? How soon is “prompt”?

Art. 19(4) deals with many rights and exceptions or prohibitions. It needs to be closely and carefully read. Compare it with the ICCPR’s Arts. 9 and 10, and read it in the light of the General Comments of the HRC on the cited articles.

Art. 19 (2) and (5) clearly resolve what seems to be often unclear in other jurisdictions. In the U.S.A., for example, although the Fifth Amendment states that no defendant “shall be compelled in

any criminal case to be a witness against himself,” the requirement for police to inform defendants under interrogation of their landmark right to silence and non-self incrimination was explicitly resolved only by the Supreme Court decision in *Miranda v. Arizona* (1966). It is very important that both of these sub-articles above should be seen together. Art.19 (5) states that “Any evidence obtained under coercion shall not be admissible.” How about a statement of voluntary admission by the arrested person who was not informed of the right to remain silent? Should it be admissible?

Read Art.20 of the Ethiopian Constitution.

Article 14, ICCPR

1. All persons shall be equal before the courts and tribunals. In the determination of any criminal charge against him, or of his rights and obligations in a suit at law, everyone shall be entitled to a fair and public hearing by a competent, independent and impartial tribunal established by law. The press and the public may be excluded from all or part of a trial for reasons of morals, public order (ordre public) or national security in a democratic society, or when the interest of the private lives of the parties so requires, or to the extent strictly necessary in the opinion of the court in special circumstances where publicity would prejudice the interests of justice; but any judgement rendered in a criminal case or in a suit at law shall be made public except where the interest of juvenile persons otherwise requires or the proceedings concern matrimonial disputes or the guardianship of children.
2. Everyone charged with a criminal offence shall have the right to be presumed innocent until proved guilty according to law.
3. In the determination of any criminal charge against him, everyone shall be entitled to the following minimum guarantees, in full equality: (a) To be informed promptly and in detail in a language which he understands of the nature and cause of the charge against him;
(b) To have adequate time and facilities for the preparation of his defence and to communicate with counsel of his own choosing;
(c) To be tried without undue delay;
(d) To be tried in his presence, and to defend himself in person or through legal assistance of his own choosing; to be informed, if he does not have legal assistance, of this right; and to have legal assistance assigned to him, in any case where the interests of justice so require, and without payment by him in any such case if he does not have sufficient means to pay for it;
(e) To examine, or have examined, the witnesses against him and to obtain the attendance and examination of witnesses on his behalf under the same conditions as witnesses against him;
(f) To have the free assistance of an interpreter if he cannot understand or speak the language used in court;
(g) Not to be compelled to testify against himself or to confess guilt.
4. In the case of juvenile persons, the procedure shall be such as will take account of their age and the desirability of promoting their rehabilitation.
5. Everyone convicted of a crime shall have the right to his conviction and sentence being reviewed by a higher tribunal according to law.
6. When a person has by a final decision been convicted of a criminal offence and when subsequently his conviction has been reversed or he has been pardoned on the ground that a new or newly discovered fact shows conclusively that there has been a miscarriage of justice, the person who has suffered punishment as a result of such conviction shall be compensated according to law, unless it is proved that the non-disclosure of the unknown fact in time is wholly or partly attributable to him.
7. No one shall be liable to be tried or punished again for an offence for which he has already been finally convicted or acquitted in accordance with the law and penal procedure of each country.

* * *

Question and Discussion

In a similar fashion, compare the provisions in Art. 20 of the Ethiopian Constitution with those in Art. 14 of the ICCPR. Do you see more of divergence or convergence? The former seems to be modeled after the latter but at the same time maintains a lot of dissimilarity.

* * *

2. The Rights of Persons in Penitentiary Institutions

Read Art. 21 of the Ethiopian Constitution.

Woizerit Birtukan Mideqsa v. [Superintendent] Enatenesh Mekonnen [of the Federal Prison Administration]

Federal First Instance Court
File No. 140618
7/8/2001 EC

Judge: Tagel Getahun

The case was adjourned for today for judgment.

Judgment

1. The application

The plaintiff through her attorney Ato Tesfaye Deresse submitted a modified statement of claim on 2/7/2001 EC in which she stated that the defendant is made in charge of implementing the term of imprisonment handed down on the plaintiff. The defendant has placed the applicant in solitary confinement thereby inflicting on her acts contrary to her human dignity. The applicant also stated that in addition to the above, the prison administration made a decision that the applicant may be visited only by her mother and her toddler daughter and not by any other visitors. Hence the applicant sought that the court lifts the ban on visitation as well as give an order for ending the solitary confinement.

2. The statement of Defense

The Defendant on 24/7/2001 (EC) filed its statement of defense with the Court in which it stated that:

- a) Ato Tesfaye Deresse cannot act as the attorney of the applicant because he lacks the power of attorney;
- b) As regards the ways of handling prisoners, the defendant is the sole decision maker. The courts do not have the power to interfere in such areas of jurisdiction of the defendant;
- c) The applicant should have first submitted her complaints to the head of the division of the prison administration in charge, and then to head of the prison administration where she is serving her sentence. It was only after failure to obtain decision (justice) from these administrative hierarchies that she should have come to the Court. Therefore, her application which did not exhaust the complaints hearing avenues outside the court must be rejected.
- d) The case cannot be handled via fast track proceeding provided for under Art. 314 of the Civil Procedure Code;
- e) Even if the applicant's case could be seen under Art. 314, since 15 days have elapsed after the commission of the alleged acts, the applicant cannot bring the case as of now.

3. Consideration

3.1. On defense point under (a) above

The applicant gave a power of agency to a person named Woizerit Eyerusalem Yilma Gebre-Egziabher on 18/1/1998 EC. And the agent using her power of agency appointed Tesfaye Deresse by giving him a power of attorney which empowers the latter to represent the applicant and present a court case/claim. The power of attorney in question has been authenticated by the Documents Registration and Authentication Office. Accordingly, . . . the court has rejected this defense point.

3.2. On defense point under (b) above

The defendant alleged in its defense statement that it has the legal decision making authority regarding the ways of handling prisoners. It stated further that the defendant cannot be sued in court regarding the ways or its decision of handling prisoners, and that if the courts look into such cases, it is tantamount to interference in the lawful jurisdiction of the defendant.

The attorney of the applicant on the other hand stated in oral hearing that such a claim by the defendant goes against the separation of powers among organs of state and it should not be accepted.

The Federal Government is established by the FDRE Constitution having been divided into three branches. These are the Legislature, the Executive, and the Judiciary. The reason for the separation of government powers is that if the powers of law making, execution and adjudication are merged in the same organ, this would create a concentration of power and it would be impossible to control whether such a government functions on the basis of the trust entrusted to it by the people and respects the constitution.

The power of government is divided among three organs in order to do away with the danger of concentration of power. However, even if these three organs have their own areas of jurisdiction, there is also a need for checks and balances between them to make sure that each performs its proper functions. For example, the legislature, in order to make sure that the laws it enacted are being properly implemented, is given by arts 55(17) and (18) of the Constitution the power to cause that the executive submits reports and also to take measures that it deems appropriate. Similarly, the legislature has the power up to dismissing the judges for disciplinary reasons. As the legislature controls the two other organs in the ways depicted above, the judiciary also by virtue of its power under Art. 37 (of the Constitution) has the power to see justiciable matters. According to Art. 78(1) courts are independent. Also Art. 79(1) states that courts have the power to determine disputes. As the defendant in this case is a state agency, it has the duty to obey and ensure the observance of the Constitution. The defendant can be taken as having respected the Constitution when it also respects the laws that are enacted on the basis of the Constitution. The application submitted by the applicant is based on the rights in Art. 21 of the Constitution and Council of Ministers Regulations No. 138/99 (EC); the defendant is given the responsibility to make sure that these rights of the prisoners are respected. That the defendant has to, just like any other agency of the government, undertake its functions with transparency and accountability has been provided under Art. 12 of the Constitution. Indeed, it is the power of the defendant to make sure that the rights of a prisoner are respected. However, the legislature and the judiciary can scrutinize whether the defendant has properly performed its task. The officials of the defendant [the Prison administration] have to make report to the legislature on the general condition of the handling of prisoners. And individual prisoners can as well sue the defendant in a court of law for violation of rights by the latter. This is because the defendant has to be accountable. Independent courts are established for two reasons.... The second reason is to make sure that the rights of individuals guaranteed by the Constitution are not violated by anyone including the defendant, and that if violated they should be redressed. According to Art. 8 of the Ethiopian Constitution, the owners of sovereign power in Ethiopia are the nations, nationalities and peoples.

This means that the owners of the highest power are the people, not the defendant. The sovereignty of the people are expressed through the Constitution. As the Courts are the guardians of the rights enshrined in the laws of the country, they have to hear grievances from the people. The defendant is not the sovereign and it can be sued in court just like other government agencies. This is a manifestation of the accountability imposed on the defendant by the Constitution. The courts can control the powers bestowed on the defendant by the people. If, as the defendant maintains, it cannot be sued in a court of law, the respect for the rule or supremacy of the law and the purpose of the constitutional separation of powers were to be rendered meaningless. As a result, when applications regarding the respect or protection of rights enshrined in the Constitution, proclamations and regulations are brought against the defendant, courts must be able to look into them as this is one expression of constitutionalism and existence of a constitutional order.

As long as the power of adjudication is said not to belong to the courts and thereby given to other adjudicatory bodies by special laws, when executive agencies like the defendant are sued, their cases can be brought to courts. This court, just as it is competent to see disputes against government bodies involving property rights, it must also have the competence to see the case brought by the applicant here involving a human right which is more worthy than a property right.

As the defendant is an executive organ, it must be able to undertake its legal powers and functions without any interference. Just as the defendant must not interfere in the responsibilities of the courts, the courts must also not interfere in the responsibilities of the defendant. The defendant in its defense statement has stated that the court must not interfere in its responsibilities. As we understand the term “interference” it denotes a situation by which one is found meddling in the works of another. In this file, what the court is doing is the judicial power given to it by the Constitution. This does not mean that the court can review matters that are non-justiciable and left to the discretion of the defendant. To elaborate this with an example, if the application of the applicant were of sort of lavish type to the effect that the defendant must provide her on a daily basis with meals that she prefers, this may not be amendable to judicial review because the defendant has the power to determine the meals the prisoners get on daily basis. However, if the application were to the effect that the defendant denied the applicant any kind of food altogether while this is its legal duty, this is a justiciable matter since the law has clearly obligated the defendant to provide food to the prisoners. When we see the case presented by the applicant here, her claim states that her human dignity is compromised and her right to visitation abridged. As these rights are enshrined in the Constitution and Regulations No. 138/99, the application of the plaintiff is a justiciable matter that can be passed upon by a court of law. And since the case contains a justiciable matter, and since Art. 37 of the Constitution allows the courts to look into such cases, it cannot be said that the court has interfered into the business of the defendant.

3.3. On the Defense Point under (c)

The third defense point of the defendant states that since the matter is of administrative nature and that the applicant did not exhaust the avenues of review of administrative decision within the agency before bringing the case to the court, the court cannot admit and see the case. The attorney for the applicant responded to this orally before this Court that the applicant is held in Kaliti Prison which is administered under the Federal Prison Administration, i.e., the defendant’s Agency. This Agency should be held responsible for the denial and violations of right inflicted on the applicant as the Kaliti Prison does not have its legal personality. The attorney further stated that as there is no system of grievance handling put in place in the defendant agency, the applicant can sue the defendant directly before a court of law. Further the defendant has come to know of the violation of the applicant’s right when the court gave it the statement of claim and the court subpoena. 14 days have passed and it could have made the necessary investigation and taken appropriate measures, which it did not. The representative of the defendant Superintendent Enatenesh was requested to respond to the statement of the attorney of the applicant, and she said that there is nothing they know about the matter; and that they have asked the Addis Ababa Prison Administration on the matter which has not responded so far.

The applicant's application requires this court to review an administrative decision. A request for judicial review of administrative decision should be presented to the court of law after the applicant has exhausted out-of court avenues for grievance handling. In our country, there is no body/tribunal outside the court which can see a grievance that is alleged by a prisoner. This court may refuse to see cases whose jurisdictions are bestowed by law on other tribunals. There is no body that can entertain a case by this applicant. Further, although the representative of the defendant stated in this court that they knew nothing about the case, the defendant had 14 days to the date they filed a response in this court, and these days were sufficient to make investigation into the treatment of the applicant by the Kaliti Prison and take appropriate decision. The defendant however chose not to take any action in those days. This tantamount to the defendant giving its tacit verdict on the matter. Accordingly, due the reasons elaborated above, the third defense point presented by the defendant is rejected by the court.

3.4. On defense Point under (d)

The defendant presented as its fourth defense point that the case must not be subjected to a fast track or accelerated procedure for the applicant has not presented an affidavit under Art. 302 of the Civ. Proc. Code. The defendant has indeed submitted an affidavit which is found in the dossier of the case. The court has rejected this defense point.

According to Article 314 of the Civ. Proc. Code, cases that can be seen through accelerated procedure are those brought against the government agencies' denials of some sort. One of the denials or prohibitions mentioned in the above article is prohibition from concluding marriage. The article does not exhaustively list the prohibitions subject to this proceeding; it rather is open-ended. When one person is prohibited from concluding marriage, what is affected is that person's natural right to conclude marriage. Hence, prohibitions affecting rights can be brought under this article. The applicant also brought a claim that she is denied a right. And a denial of right can be entertained in an accelerated proceeding under Art. 314. Accordingly, the defense of the defendant is rejected.

3.5. On the defense Statement under (e)

The final defense point submitted by the Defendant was to the effect that since 15 days have elapsed from the date of alleged perpetration of the acts of violation of rights on the applicant, the application must be rejected.

The applicant on the direction given to her by the court has modified her application on 2/7/01 EC. In her new statement, the applicant stated that the prohibition was made on her until 22nd of Yekatit. The applicant opened this file on 27th of Yekatit 2001. When we count back from this date, the applicant can bring relief against the prohibition committed since the 13th of Yekatit. In other words, the prohibition perpetrated against the applicant on 22nd of Yekatit would allow her to bring a case up until 6th of Megabit 2001. Indeed, she has made the application well before 6th of Megabit. Accordingly, since the applicant has brought her case to the court within the 15 days designated by the court, this defense by the Defendant is rejected.

Judgment

The applicant applied that she has been placed in solitary confinement and that she was denied her right to be visited by her close relatives and her attorney and that the court decides that defendant be ordered to guarantee these rights to her.

In its defense statement, the defendant did not deny that it did commit the above acts alleged by the applicant. According to Art. 234 of the Civ. Proc. Code if the defendant does not expressly deny allegations in the opponent party's claims, it would be considered as having confirmed those allegations. The defendant did not argue with reasons in its response as to why it denied the applicant to be visited by all others except by her daughter and mother. Although prisoners may be

considered as the judicially certified enemies of the public, they do still have fundamental rights. Art. 21 of the Constitution and Art. 13 of the Council of Ministers Regulations No. 138/99 provide that prisoners have the right to be visited by their close relatives, friends as well as by their medical doctors, religious councilors and legal counsel; also the laws state that prisoners have the right to be treated equally with other prisoners. This is the case because the purpose of imprisonment is to reform the prisoner. As the applicant has stated she was prohibited from being visited by others except by her mother and her child. Since the defendant did not deny this allegation of the applicant, the court takes notice that the allegation by the applicant is true. As the defendant failed to present reasons as to why the applicant cannot be visited by her close relatives and friends while such right to visitation belongs to the applicant, the defendant has to lift the ban on visitation it has imposed.

On a separate note, although the applicant has requested the court that her solitary confinement should be also ended alleging that such a confinement would violate her human dignity, the law does not guarantee a prisoner the right to be kept together with other prisoners. In its responsibility as administrator of prisoners, one of the things it should do is to make sure that prisoners do not escape from prison. If the defendant believes that the solitary confinement of the applicant is necessary in order to closely watch her, there is nothing that forbids it from doing that and accordingly the application of the plaintiff that her solitary confinement violates her human dignity is rejected by the court.

Decision

1. The defendant has the right to keep the applicant separately from other prisoners; the application made by the plaintiff that her solitary confinement violates her human dignity has been rejected by the court.
2. The right to be visited by the close relatives and friends as well as legal counsel, doctor and religious councilors is guaranteed to the applicant by Art. 21 of the FDRE Constitution and Art. 13 of Regulations No. 138/99; accordingly, it is decided that the defendant has to lift the ban it imposed on the applicant in this regard and the defendant must respect this right to the applicant in the same manner as it does for other prisoners.

Questions and Discussion

1. One of the substantive arguments of the defendant is that it has the legal decision making authority regarding the ways of handling prisoners and that over these powers it submits to no authority and therefore cannot be sued in court regarding the ways or its decision of handling prisoners. It also argued that if the courts look into such cases, it tantamounts to interference in its lawful jurisdiction. Do you think this argument has a legal basis in the circumstances of *Birtukan Mideqsa*? Can you imagine any circumstance or fact scenario in which such a defense may be acceptable under the Constitution in view of division of powers in the Ethiopian Constitution?
2. Judge Tagel relied on Art. 37 of the Ethiopian Constitution and on a general argument of judicial power to settle disputes to establish the jurisdiction for the court to see *Birtukan Mideqsa*'s application. Do you agree with Judge Tagel? What more perspectives do you think should be added or preferred based on the Ethiopian Constitution?
3. How do you evaluate the court's overall reasoning in relation to both of its conclusions? Is the court correct in rejecting Ms. *Birtukan*'s application on her solitary detention? The court stated in relation to the latter that "the law does not guarantee a prisoner the right to be kept together with other prisoners" and that "if the defendant believes that the solitary confinement of the applicant is necessary in order to closely watch her, there is nothing that forbids it from doing that." How do you evaluate this conclusion of the court?
Read the following General Comment of the Human Rights Committee on Art. 10 of the ICCPR to view the Court's conclusion in the light of the Committee's observations.

4. Do you think now after reading the General Comment above that the Court should have looked at other provisions of the Constitution such as Art. 18 in determining whether Ms. Birtukan's constitutional rights were violated or not?
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Human Rights Committee, General Comment 21, Article 10 (Forty-fourth session, 1992)

* * *

3. Article 10, paragraph 1, imposes on States parties a positive obligation towards persons who are particularly vulnerable because of their status as persons deprived of liberty, and complements for them the ban on torture or other cruel, inhuman or degrading treatment or punishment contained in article 7 of the Covenant. Thus, not only may persons deprived of their liberty not be subjected to treatment that is contrary to article 7, including medical or scientific experimentation, but neither may they be subjected to any hardship or constraint other than that resulting from the deprivation of liberty; respect for the dignity of such persons must be guaranteed under the same conditions as for that of free persons. Persons deprived of their liberty enjoy all the rights set forth in the Covenant, subject to the restrictions that are unavoidable in a closed environment.
4. Treating all persons deprived of their liberty with humanity and with respect for their dignity is a fundamental and universally applicable rule. Consequently, the application of this rule, as a minimum, cannot be dependent on the material resources available in the State party. This rule must be applied without distinction of any kind, such as race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status.
5. State parties are invited to indicate in their reports to what extent they are applying the relevant United Nations standards applicable to the treatment of prisoners: the Standard Minimum Rules for the Treatment of Prisoners (1957), the Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment (1988), the Code of Conduct for Law Enforcement Officials (1978) and the Principles of Medical Ethics relevant to the Role of Health Personnel, particularly Physicians, in the Protection of Prisoners and Detainees against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (1982).
6. The Committee recalls that reports should provide detailed information on national legislative and administrative provisions that have a bearing on the right provided for in article 10, paragraph 1. The Committee also considers that it is necessary for reports to specify what concrete measures have been taken by the competent authorities to monitor the effective application of the rules regarding the treatment of persons deprived of their liberty. State parties should include in their reports information concerning the system for supervising penitentiary establishments, the specific measures to prevent torture and cruel, inhuman or degrading treatment, and how impartial supervision is ensured.
7. Furthermore, the Committee recalls that reports should indicate whether the various applicable provisions form an integral part of the instruction and training of the personnel who have authority over persons deprived of their liberty and whether they are strictly adhered to by such personnel in the discharge of their duties. It would also be appropriate to specify whether arrested or detained persons have access to such information and have effective legal means enabling them to ensure that those rules are respected, to complain if the rules are ignored and to obtain adequate compensation in the event of a violation.
8. The Committee recalls that the principle set forth in article 10, paragraph 1, constitutes the basis for the more specific obligations of States parties in respect of criminal justice, which are set forth in article 10, paragraphs 2 and 3.
9. Article 10, paragraph 2 (a), provides for the segregation, save in exceptional circumstances, of accused persons from convicted ones. Such segregation is required in order to emphasize their status as unconvicted persons who at the same time enjoy the right to be presumed innocent as stated in article 14, paragraph 2. The reports of State parties should indicate how the separation

of accused persons from convicted persons is effected and explain how the treatment of accused persons differs from that of convicted persons.

10. As to article 10, paragraph 3, which concerns convicted persons, the Committee wishes to have detailed information on the operation of the penitentiary system of the State party. No penitentiary system should be only retributory; it should essentially seek the reformation and social rehabilitation of the prisoner. State parties are invited to specify whether they have a system to provide assistance after release and to give information as to its success.
11. In a number of cases, the information furnished by the State party contains no specific reference either to legislative or administrative provisions or to practical measures to ensure the re-education of convicted persons. The Committee requests specific information concerning the measures taken to provide teaching, education and re-education, vocational guidance and training and also concerning work programs for prisoners inside the penitentiary establishment as well as outside.
12. In order to determine whether the principle set forth in article 10, paragraph 3, is being fully respected, the Committee also requests information on the specific measures applied during detention, e.g., how convicted persons are dealt with individually and how they are categorized, the disciplinary system, solitary confinement and high-security detention and the conditions under which contacts are ensured with the outside world (family, lawyer, social and medical services, non-governmental organizations).
13. Moreover, the Committee notes that in the reports of some State parties no information has been provided concerning the treatment accorded to accused juvenile persons and juvenile offenders. Article 10, paragraph 2 (b), provides that accused juvenile persons shall be separated from adults. The information given in reports shows that some States parties are not paying the necessary attention to the fact that this is a mandatory provision of the Covenant. The text also provides that cases involving juveniles must be considered as speedily as possible. Reports should specify the measures taken by State parties to give effect to that provision. Lastly, under article 10, paragraph 3, juvenile offenders shall be segregated from adults and be accorded treatment appropriate to their age and legal status insofar as conditions of detention are concerned, such as shorter working hours and contact with relatives, with the aim of furthering their reformation and rehabilitation. Article 10 does not indicate any limits of juvenile age. While this is to be determined by each State party in the light of relevant social, cultural and other conditions, the Committee is of the opinion that article 6, paragraph 5, suggests that all persons under the age of 18 should be treated as juveniles, at least in matters relating to criminal justice. States should give relevant information about the age groups of persons treated as juveniles. In that regard, State parties are invited to indicate whether they are applying the United Nations Standard Minimum Rules for the Administration of Juvenile Justice, known as the Beijing Rules (1987).

Read Art. 29 of the Ethiopian Constitution.

Questions and Discussion

Freedom of opinion and thought as well as various facets of the freedom of expression are guaranteed in Art. 29 of the Ethiopian Constitution. As you can see from the provisions, the term “thought” does not appear in the content of the provisions although it is in the caption. Do you think it should have been in the content as well? Does its absence create a legal interpretation problem? The provision begins by reiterating that “everyone has the right to hold opinions without interference.” Is this an absolute right that cannot and should not be subjected to any limitation? Sub-articles (6) and (7) talk about limitations on the rights. Do you think the limitations do or should apply to freedom of opinion? Freedom of thought? Or just only to freedom of expression?

In much the same fashion as Sub-article (1), sub-article (2) states that “Everyone has the right to freedom of expression without any interference” and goes on to provide for the components of the right. It thus states the three important components of the right to be the freedom to seek, receive and impart information and ideas of all kinds. The right also do not impute any limitation on frontiers and ways of receiving, seeking or imparting. Do you think this right should be as expansive as to embrace information that originates elsewhere in the world, and not necessarily in Ethiopia? For example, by its own admission the Ethiopian government has stated that it jams the Amharic service of Voice of America (VOA) Radio. Which specific right, if so, would be violated by this act? Do you think this is a violation of Art. 29 of the Constitution? Is there any way to justify this act of the Government as a legitimate interest vis-à-vis the freedom of expression (particularly freedom to seek or receive) of the individuals?

The above provision also guarantees freedom of the press and mass media. It asserts that any form of censorship is prohibited. How would you relate this right with the limitation under Sub-article (6) and (7)? Read Art. 19 of the ICCPR, and the UN HRC’s General comment on it reproduced below, and use it to investigate the questions posed and beyond.

* * *

Article 19, ICCPR

1. Everyone shall have the right to hold opinions without interference.
2. Everyone shall have the right to freedom of expression; this right shall include freedom to seek, receive and impart information and ideas of all kinds, regardless of frontiers, either orally, in writing or in print, in the form of art, or through any other media of his choice.
3. The exercise of the rights provided for in paragraph 2 of this article carries with it special duties and responsibilities. It may therefore be subject to certain restrictions, but these shall only be such as are provided by law and are necessary:
 - (a) For respect of the rights or reputations of others;
 - (b) For the protection of national security or of public order (*ordre public*), or of public health or morals.

Nineteenth session (1983)

General comment No. 10: Article 19 (Freedom of opinion)

1. Paragraph 1 requires protection of the “right to hold opinions without interference”. This is a right to which the Covenant permits no exception or restriction. The Committee would welcome information from States parties concerning paragraph 1.
2. Paragraph 2 requires protection of the right to freedom of expression, which includes not only freedom to “impart information and ideas of all kinds,” but also freedom to “seek” and “receive” them “regardless of frontiers” and in whatever medium, “either orally, in writing or in print, in the form of art, or through any other media of his choice.” Not all State parties have provided information concerning all aspects of the freedom of expression. For instance, little attention has so far been given to the fact that, because of the development of modern mass media, effective measures are necessary to prevent such control of the media as would interfere with the right of everyone to freedom of expression in a way that is not provided for in paragraph 3.
3. Many State reports confine themselves to mentioning that freedom of expression is guaranteed under the Constitution or the law. However, in order to know the precise regime of freedom of expression in law and in practice, the Committee needs in addition pertinent information about the rules which either define the scope of freedom of expression or which set forth certain restrictions, as well as any other conditions which in practice affect the exercise of this right. It is the interplay between the principle of freedom of expression and such limitations and restrictions which determines the actual scope of the individual’s right.

4. Paragraph 3 expressly stresses that the exercise of the right to freedom of expression carries with it special duties and responsibilities and for this reason certain restrictions on the right are permitted which may relate either to the interests of other persons or to those of the community as a whole. However, when a State party imposes certain restrictions on the exercise of freedom of expression, these may not put in jeopardy the right itself. Paragraph 3 lays down conditions and it is only subject to these conditions that restrictions may be imposed: the restrictions must be “provided by law;” they may only be imposed for one of the purposes set out in subparagraphs (a) and (b) of paragraph 3; and they must be justified as being “necessary” for that State party for one of those purposes.

* * *

Read Art. 30 of the Ethiopian Constitution.

Questions and Discussion

The rights under the above provision set forth three intertwined elements of rights. These elements are strings of activities that can, for example, take place in a series in the exercise of a democratic claim. For example, a group of persons who demand certain rights can assemble together at a certain location, discuss their cases, decide to make a public out-door demonstration and move on to petition the responsible public authority. These actions can of course be done individually as well. The statement of rights in the above article both makes this freedom available and also sets forth some limitations on its exercise. Describe the limitation in Art. 30 of the Constitution.

You may relate to Article 30 and to your discussions the famous incident that occurred during the aftermath of the 2005 General Elections in Ethiopia. Prime Minister Meles Zenawi announced that for one month beginning from 15th of May 2005 it would be prohibited to make outdoor meetings and demonstrations. He made the announcement on public TV and radio channels. Following this executive edict, people debated whether the Prime Minister had acted beyond his constitutional powers or not. For example, a coalition political party by the name Coalition for Unity and Democracy (CUD) filed a suit before the federal court protesting the premier’s ban as illegal and unconstitutional. What do you think about this legal issue? Look at both sides of the argument together with the provisions of Art. 30, and those on the powers and functions of the Prime Minister under the Ethiopian Constitution (e.g., Art. 74). Do you think the Prime Minister’s act was ultra vires? Do you think the Prime Minister or the government as a whole should have resorted to another means of resolving the issue at the time rather than banning outdoor meetings and demonstrations altogether?

* * *

Read Art. 31 of the Ethiopian Constitution.

Questions and Discussion

The above constitutional provision provides the widest possible freedom of association for every cause and purpose. Can you envisage any possible legitimate limitation on this right, in addition to those stated in the provision? Do you think citizenship restrictions could be imposed on the right to associate in Ethiopia? There is a lot of concern lately that the Charities and Societies Proclamation No. 621/2009, which requires among other things that for an association to be considered as “Ethiopian” – even if members are all Ethiopians – it must not raise more than 10% of its budget from foreign sources. Do you think this may be an unconstitutional intrusion into the freedom to form associations by Ethiopians? What legitimate interest is the state promoting here? Read the following equivalent provision from ICCPR and compare the scope and limitations of the two sets of provisions.

Article 22, ICCPR

1. Everyone shall have the right to freedom of association with others, including the right to form and join trade unions for the protection of his interests.
2. No restrictions may be placed on the exercise of this right other than those which are prescribed by law and which are necessary in a democratic society in the interests of national security or public safety, public order (*ordre public*), the protection of public health or morals or the protection of the rights and freedoms of others. This article shall not prevent the imposition of lawful restrictions on members of the armed forces and of the police in their exercise of this right.
3. Nothing in this article shall authorize State Parties to the International Labour Organisation Convention of 1948 concerning Freedom of Association and Protection of the Right to Organize to take legislative measures which would prejudice, or to apply the law in such a manner as to prejudice, the guarantees provided for in that Convention.

* * *

Read Art. 40 of the Ethiopian Constitution.

Questions and Discussion

Art. 40 of the Ethiopian Constitution was one of the most highly debated provisions at the time of the making of the Constitution. It is one of the provisions that guarantees “a citizenship-based” right as you can see from the very first Sub-article that begins with the words “Every Ethiopian citizen . . .” The most controversial part of Art. 40 is the one under Sub-article (3), which states:

The right to ownership of rural and urban land, as well as of all natural resources, is exclusively vested in the State and the peoples of Ethiopia. Land is a common property of the Nations, Nationalities and Peoples of Ethiopia and shall not be subject to sale or to other means of exchange.

This provision has effectively placed land under the ownership of the state. But it is interesting to look at the wording of the above provision. The first one says that ownership of land lies “in the state and the peoples of Ethiopia.” It is not clear exactly what this means. Is it a common property concept that we see here? If that is the case, the state (meaning the government here) cannot make a decision on land (and natural resources) simply because it is elected or it holds government power. It must consult with and obtain the assent of the people when it makes major decisions on land and natural resources. We can plausibly argue in this case that, for example, at the present time when the government makes major concessions on foreign agricultural investment (land lease terms of up to 99 years), it must first obtain the assent of the people (through a referendum, for example) on whether investment in agriculture by foreigners in such a large scale is advantageous for the people or not. So all the decisions that the state (government) makes on its own are tantamount to unilateral decisions by one of the common owners of a property, which cannot be a legitimate action.

The other noteworthy wording in the same Sub-article is the last statement, which says “Land is a common property of the Nations, Nationalities and Peoples of Ethiopia . . .” What is the legal effect of such a statement? Again, even if this remains difficult to ascertain, one way of looking at it is that this statement carries the ordinary meaning of the concept of “common property.” Therefore, it will have a meaning that all land in Ethiopia is an indivisible common heritage (or property) of all nations and nationalities of Ethiopia. A land everywhere is a common property of a nationality anywhere in the country. But when we see constitutions of states of Ethiopia, they contain a declaration that the land of the given state (e.g. Amhara or Somali state) is the common property of the people (s) of that particular state. Do you think this in effect changes or amends the above (Federal) constitutional provision? Or is this congruent with the constitution?

On a general note, the fact that the constitution has excluded land from being private property is in fact the one position that was subjected to a great deal of criticism – a controversy that continues to this day. In fact, each side has its merits and demerits. Discuss the desirability or otherwise for Ethiopia in its present socio-economic situation of the private or public ownership of land. Do you believe, for example, that private ownership of land will encourage greater development of the land?

The provisions of Art. 40 on the rights of peasants to land and protection against eviction; of pastoralists to land for grazing and cultivation, and also the provision on expropriation and payment of adequate compensation for expropriation are important guarantees that should be understood. But it is always important and indeed a worthwhile exercise for you, students, to see how much of these rights are being keenly enforced or not. We have many evictions for public purposes in many parts of the country. Are these evictions being made in accordance with the justice and fairness the Constitution envisages? This should be a lifetime inquiry for us, legal professionals, to which you should devote yourselves.

* * *

Read Art. 41 of the Ethiopian Constitution.

Questions and Discussion

As you read the specific rights in the above provision you can note the distinct ways in which those rights are worded. For example, Sub-art. (1) of Art. 41 states that “[e]very Ethiopian has the right to engage freely in economic activity and to pursue a livelihood of his choice anywhere within the national territory.” Do you think this right is immediately actionable? Or does it need to wait until the state acquires the ability to enforce this right? On the other hand, Sub-art. (5) of the same Article states that “the State shall, within available means, allocate resources to provide rehabilitation and assistance to the physically and mentally disabled, the aged, and to children who are left without parents or guardian.” Is this what is known as “progressive realization” of socio-economic rights? What exactly is the legal obligation of the state here? Or is it possible to argue that there is no state obligation at all?

Look at Sub-arts. (4) -(7) and (9) above. They state about the obligations of the Ethiopian state. In what ways can these be considered as rights of citizens/persons? Are these indirect rights?

* * *

C. Legal Pluralism and Human Rights

The concept of legal pluralism relates to a situation in which more than one “legal system” functions in a given country. This may refer to a situation of a federal state structure in which the laws of the federal government, those of the states and sometimes of the local governments act upon citizens. But in a more limited sense, legal pluralism is a concept associated more with the parallel existence of state-sponsored law and legal institutions and customary or traditional, and/or religious laws and institutions. Depending on the legal policy of the states concerned, these parallel legal regimes can have competitive or complementary relationships. John Griffiths who is widely credited for articulating the notion of legal pluralism in his *What Is Legal Pluralism?* (1986) says:

In the case of legal pluralism, more than one “law” must be present. (...)

A descriptive theory of legal pluralism deals with the fact that within any given field, law of various provenance may be operative. It is when in a social field more than one source of “law,” more than one “legal order,” is observable, that the social order of that field can be said to exhibit legal pluralism.

...

Legal pluralism is a concomitant of social pluralism: the legal organization of society is congruent with its social organization. “Legal pluralism” refers to the normative heterogeneity attendant upon the fact that social action always takes place in a context of multiple, overlapping “semi-autonomous social fields,” which, it may be added, is in practice a dynamic condition.

A situation of legal pluralism—the omnipresent, normal situation in human society—is one in which law and legal institutions are not all subsumable within one “system” but have their source in the self-regulatory activities which may support, complement, ignore or frustrate one another, so that the “law” which is actually effective on the “ground floor” of society is the result of enormously complex and usually in practice unpredictable patterns of competition, interaction, negotiation, isolationism, and the like.

In accordance with this understanding therefore legal pluralism is a reality in every society. The “systems” of law can act on all social fields. Our interest in this chapter is on the relationship between legal pluralism and human rights. In other words: is legal pluralism a good or bad thing for human rights?

The Ethiopian Constitution can be said to embrace the notion of legal pluralism of some sort in its articles 34(5) and 78(5) reproduced below:

This Constitution shall not preclude the adjudication of disputes relating to personal and family laws in accordance with religious or customary laws, with the consent of the parties to the dispute (art 34(5)).

Pursuant to sub-Article 5 of Article 34 the House of Peoples' Representatives and State Councils can establish or give official recognition to religious and customary courts. Religious and customary courts that had state recognition and functioned prior to the adoption of the Constitution shall be organized on the basis of recognition accorded to them by this Constitution (art 78(5)).

The above provisions are part of the bill of rights provisions of the Constitution. What would be the effect of these provisions on the exercise of family and personal rights protected by the other provisions of the Constitution vis-à-vis customary or religious laws pertaining to family and personal matters? Does it mean that with the consent of the disputants, a customary law that is discriminatory against one of the disputants can still be applicable under art 34(5) of the Constitution, and hence the decision constitutional?

In what follows, we will consider some literature that attempt to grapple with these questions.

Dolores A. Donovan and Getachew Assefa, "Homicide in Ethiopia: Human Rights, Federalism, and Legal Pluralism," *The American Journal of Comparative Law*, Vol. 51, No. 3 (2003). Footnotes omitted.

* * *

HUMAN RIGHTS, LEGAL PLURALISM AND FEDERALISM

Human Rights

Criminal justice systems are the proving ground for the strength of a nation-state's commitment to implement in real life the paper promises of human rights protection made in its constitution and the international treaties which it signs and ratifies. The Ethiopian Constitution of 1995 guarantees protection for [most of the] human rights recognized under international law. In many cases the constitutional language is almost identical to the international human rights instruments to which Ethiopia is a signatory. Paramount among the many international human rights treaties Ethiopia has signed is the International Covenant on Civil and Political Rights (hereinafter, "ICCPR").

The ICCPR provides:

Every human being has the inherent right to life. This right shall be protected by law.
No one shall be arbitrarily deprived of life. (Emphasis supplied.)

The ICCPR also prohibits discrimination on the basis of sex.

All persons are equal before the law and are entitled without any discrimination to the equal protection of the law. In this respect, the law shall prohibit any discrimination and guarantee to all persons equal and effective protection against discrimination on any ground such as . . . sex . . . (Emphasis supplied).

Further, the right to marry is predicated on the attainment of "marriageable age" and shall be entered into "only with the free and full consent of the intending spouses." Although explicit prohibition of the forced marriage of children is not found in the ICCPR, the covenant does impose on the State a duty of protection of children.

With respect to the right to life, the Ethiopian Constitution adopts, almost verbatim, the above-quoted language from the ICCPR. Article 14 of the Ethiopian Constitution provides that "Every person has the inviolable and inalienable right to life. . ." Article 15 states that "Every person has the right to life. No person may be deprived of his life except as a punishment for a serious criminal offence established by law." Article 15, which is fashioned after Article 6 of the International Covenant on Civil and Political Rights, has more or less the same content as the ICCPR provision. Thus, both as a matter of international and of Ethiopian law, the taking of a human life for any purpose other than punishment for a criminal offense is prohibited. Presumably, then, the Ethiopian state should not let homicide go unpunished.

With respect to equal protection, the Ethiopian Constitution not only adopts the principle of non-discrimination on the basis of gender but also addresses the problem of discriminatory customary law norms. The constitution states, in no uncertain terms, that customary law norms in conflict with the rights of women are not to be tolerated. The Constitution specifically provides that "[l]aws, customs and practices that oppress or cause bodily or mental harm to women are prohibited." Presumably, then, the Ethiopian state should not tolerate such practices.

The same is true of the protection of children. The Ethiopian Constitution forbids the exploitation of children and trafficking in human beings. Freedom of choice in marriage is guaranteed,

presumably to both adults and children. Again, it would seem to follow that the Ethiopian state should not permit the exploitation of children.

[Overall] Ethiopian law is not lacking in protection for the human rights of its citizens. Nor is it lacking in clarity as to the duty of all Ethiopians, especially those holding positions of responsibility in their communities, to ensure observance of the Constitution. “All citizens, organs of state, political associations and other associations as well as their officials have the duty to ensure observance of the Constitution and to obey it.” By any interpretation of these words, the administrators of legal systems, whether state or customary, are prominent among those persons upon whom the duty of ensuring observance of the Constitution falls.

* * *

On the theoretical level, linking traditional notions of human dignity with the modern Ethiopian constitutional provisions relating to the right to life does not pose a problem. The problems arise when deeply-entrenched customs based on the older communitarian concept of the individual having no meaningful existence apart from his or her community are rejected or by-passed by the state in favor of modern practices based on the western notion of the atomized individual. This conflict is seen in the current relationship between the customary law’s manner of dealing with homicide through familial compensation and reconciliation and the modern state’s insistence on individual culpability, responsibility and punishment. The two legal systems are ships passing in the night. The customary law norms of familial reconciliation and compensation are deeply entrenched in the hearts and souls of a large percentage of Ethiopia’s people. The modern state’s attempt to substitute an ethic of individual culpability and individualized punishment for the more group-oriented procedures of traditional Ethiopian culture cannot succeed unless these older norms are accommodated.

Problems also arise when the attempt is made to reconcile traditional values relating to women and female children with the provisions of the modern Ethiopian constitution. In Ethiopia, as in many different parts of the world, there is continuing resistance to international human rights provisions relating to the rights of women. Today, more than half a century after the adoption of the Universal Declaration of Human Rights, the entire Declaration has still not achieved the status of binding international customary law, and the primary reason is resistance to the provisions relating to women. The provisions relating to the personal and family lives of individuals have failed to achieve universal acceptance because these matters have traditionally been covered by religious law and still are in many countries. (...)

The verdict on the battle between the human rights universalists and the cultural relativists is not yet in. At this point, the most that can be said is that achieving global acceptance of international human rights norms is a work in progress. Different rights occupy different places on the continuum of acceptance. Fundamental, non-derogable rights such as the right to life, the right against torture, and the right not to be enslaved have achieved almost universal acceptance. The rights of women and children have not.

* * *

A threshold question is whether the language and theory of human rights is properly applied to the question of whether the state has a duty to act to prevent situations such as revenge killings among the Amharas or sorcery and status killings among the Gumuz. Classic nineteenth-century western liberal democratic theory, of the sort still prevalent in the United States and the United Kingdom, would have it that the human rights theory has no place in such scenarios, for it is not the state that is arbitrarily taking the lives of its citizens. From this point of view, human rights are “negative,” in the sense that rights can be realized only as claims against state action that infringes them. If it is not the state that is engaging in revenge killings or exploiting children, then no human rights have

been violated. A more modern perspective would have it that human rights are positive in the sense that a state bears the burden of creating conditions that enable its citizens to realize their human rights. The drafters of the International Covenant on Civil and Political Rights have taken the more modern position. “. . . [E]ach State Party to the present Covenant undertakes to take the necessary steps, in accordance with its constitutional processes and with the provisions of the present Covenant to adopt such measures as may be necessary to give effect to the rights recognized in the present Covenant.” Further, “[e]ach State Party to the present Covenant undertakes to respect and to ensure to all individuals within its territory and subject to its jurisdiction the rights recognized in the present Covenant, without distinction of any kind, such as race, color, sex, language, religion, political or other opinion, national or social origin, property, birth or other status.”

The plain language of the ICCPR is reinforced by the commentaries on the drafts of the relevant articles. According to these commentaries, the right to life, as guaranteed in article, 6(1), should not be understood as a claim to forbearance by the state, but rather as a provision requiring States Parties to protect life on the horizontal level (between citizens) as well as on the vertical (between citizen and state). For example, if a country were to grant impunity from prosecution for the crimes of murder and manslaughter, this would be a manifest violation of the state duty of protection pursuant to Art. 6(1).

Acknowledgment of the right of minority groups to cultural self-determination is necessary at this point. Although there is no need to deal with the complicated question of whether the Amharas, or the Gumuz, or the Somalis of Ethiopia constitute a “people” under international law each of them surely have a right to preservation of their culture. All peoples have the right to self-determination. By virtue of that right they freely determine their political status and freely pursue their economic, cultural and social development. However, in this the 21st Century, cultural preservation and development is not, anywhere in the world, understood to justify the arbitrary taking of human life. Unfortunately, the same cannot be said of forced marriage of children or systematic de-valuation of the lives of women, although these latter practices are also increasingly falling into ill-repute among the community of nations. Whether the reasons for this increasing governmental acceptance of international human rights norms be a desire to better the human condition or a desire to obtain foreign aid, the outcome is the same-the concepts of human rights contained in the standard international human rights covenants and treaties are everywhere increasingly accepted or given lip service.

The state duty to protect the right to life of its citizens is not just a matter of legal interpretation of international human rights covenants. It is also a matter of realpolitik. To maintain its standing in the international community of nations, a modern state is not well-advised to tolerate the existence within its borders of customary law norms endorsing the arbitrary taking of life. The same is true, to a lesser extent, of tolerance of customary law norms endorsing the forced marriage of children and systematic de-valuation of the lives of women. These propositions have particular force where the state in question has, like Ethiopia, signed international protocols outlawing the arbitrary taking of life, discrimination on the basis of sex and the exploitation of children.

The question addressed immediately above-whether the state has the duty to correct the faulty human rights practices of the customary law systems within its borders-is not the legalistic one of whether the state can be held legally responsible for gender-based discrimination carried out by customary law systems within its borders. Nor is it the question of whether the state can be held legally responsible for arbitrary deprivations of life resulting from its tolerance of customary law systems within its borders. Rather the question is normative in nature: *should* a state attempt to correct the faulty human rights practices of the customary law systems within its borders. Where the state in question has publicly and formally subscribed to or guaranteed the protection of the human rights in question, the answer must be yes. This is so even when a state is, like Ethiopia, officially committed to protection of its customary law systems and to legal pluralism, thus adjusting the values expressed by these rights.

Legal Pluralism: Strategies for Ethnic Federalism

Ethiopia's adoption of a system of ethnic federalism requires resolution of two related matters. The first is whether the duty of the federal and state governments to establish and maintain the rule of law, including but not limited to the human rights guarantees contained within the federal constitution, mandates the elimination of all customary law systems existing within the state's boundaries. The second is whether adjusting the state's formal legal structure so as to accommodate the well-established and influential customary law systems found throughout Ethiopia will be detrimental to the establishment and consolidation of state power.

With respect to the first matter, the answer is no-the rule of law does not necessarily mean the elimination of customary law systems. In Ethiopia the customary law systems currently share with the state legal system the duty to protect the lives and property of Ethiopian citizens. So long as the customary systems conform to minimum standards of human rights protection, there is no reason in law, domestic or international, to complain of the sharing of law enforcement responsibility and jurisdiction between the state and the customary law system. The present sharing of responsibility evolved historically and currently is done in an ad hoc manner. If the State does reach a considered decision formally to share jurisdiction with the customary law systems "within its borders and subject to its jurisdiction" then it must likewise develop considered techniques for monitoring the performance of the customary law systems to ensure that they are providing adequate protection for the human rights of Ethiopian citizens. The minimal standard for adequate protection of the human rights of Ethiopian citizens would be protection for those rights contained in the international human rights covenants to which Ethiopia is signatory. If it comes to the State's attention that one or more of the customary law systems with which it shares jurisdiction is performing in such a way as to violate one or more provisions of those covenants, then the State must take steps to cure the defect(s).

The treatment of homicide in the Amhara, Gumuz and Somali customary law systems is no secret. Nor is it a secret that these systems are not, with respect to certain types of homicides, providing adequate protection for the human rights of Ethiopian citizens. The men and women who comprise the Ethiopian state are well aware of these facts. The Ethiopian state is therefore responsible for upgrading these systems to provide the necessary human rights protection. However, the limited resources of the Ethiopian state are such that an aggressive and well-financed nationwide campaign to eliminate all human rights abuses from the customary law systems is not possible. Selective strategies for gradual alteration of abusive practices are required, as is an ordering of priorities.

In this regard, lessons may be learned from the experience of other nations. In Latin America, a strategy of ranking human rights, designed to mediate the tension between international human rights norms and customary law proceedings, has been developed. This view takes issue with the position that all internationally recognized human rights must be upheld without reservation. Instead, the claim is that the need for protection of cultural minorities and local self-rule renders such across-the-board enforcement impossible. The better view, say the advocates of this position, is to focus enforcement efforts on the most fundamental rights, such as the right to life, the right against torture and the right not to be enslaved, and relegate enforcement of other rights to the back burner. Such an approach is arguably consistent with the ranking of human rights implied by the concept of derogation contained in the International Covenant of Political and Civil Rights.

Applied to Ethiopia, the ranking of rights would have more to do with operational strategy than procedural reform. The Ethiopian government has declared a state policy of establishing the rule of law, including the protection of human rights, in all corners of its country. The problem for the government is two-fold: lack of resources, human and financial, necessary to implement that state policy and the quandary posed by the need to maintain and extend state power while affording maximum autonomy, in the interests of political stability, to marginally [integrated] ethnic groups. The ranking of rights would permit the Ethiopian government to develop a coherent plan of enforcement, directing its scarce prosecutorial and judicial resources where they are most needed.

Although reasonable persons may disagree as to the proper ordering of priorities, it seems likely that the Ethiopian government would conclude that governmental initiatives designed to protect the right to life of Ethiopian citizens in the Amhara, Gumuz and Somali regions should receive a higher priority than initiatives designed to eradicate discrimination against women. Under this scenario, state prosecutions of revenge, sorcery and adventure killers would receive a higher priority than prosecution of persons involved in ordering and implementing inclusion of young girls in settlement packages (a form of kidnap or false imprisonment violating international and Ethiopian constitutional prohibitions against involuntary servitude). The Somali practice of valuing a woman's life as less than that of a man in homicide sentencing would be the last to receive state attention.

This practice of valuing women's lives as less than that of men is perhaps best reached by a state educational campaign rather than through the criminal justice system. Without further field work, it is difficult to know how deeply these sentencing practices that discriminate against women are embedded in Somali culture and consequently how amenable Somali elders may be to change at the behest of the modern state. On the one hand, a change in sentencing practices to eliminate discrimination against women would seem to be a minor procedural adjustment, easily accomplished. On the other hand, matters relating to the status of women relative to men are at the heart of the social structure of any society and thus not usually easily altered. Further, in the Somali case, local beliefs as to the dictates of Islam are no doubt at least partially responsible for the lower status of women. ...

* * *

.... This article advocates a vigorous federal system with significant autonomy and power, both executive, legislative and judicial, at the local level. Authority at the local level would be exercised both by the representatives of the state (regional) governments and by the representatives of the customary law systems present in the region. The underlying premise is that, in a multi-ethnic and multi-cultural society, provision of significant autonomy at the local level is not only necessary to prevent dissatisfaction with the central government but actually strengthens the government in the eyes of its citizens. The 1994 Constitution of the Federal Democratic Republic of Ethiopia provides the framework for such a system; what is missing is the necessary enabling legislation.

A helpful distinction is that between formal, official legal pluralism and empirical, anthropological legal pluralism. Ethiopia has both. Formal legal pluralism in Ethiopia is, at least at present, limited to certain subject matters such as family law. Formal legal pluralism "is a legal concept referring to the inclusion within the legal order of a principle of recognizing 'other' law. Legal pluralism in another (i.e., the anthropological or empirical) sense, however, covers any situation in which within the jurisdiction of a more encompassing entity (e.g., a state) a variety of differently organized systems of norms and patterns of enforcement effectively and legitimately control the behavior of specific parts of the population."

In favor of formal state recognition of customary law systems is the argument that statutory recognition of legal pluralism, if done correctly, can strengthen rather than weaken state power. The Ethiopian customary law systems are real and their power over the behavior of Ethiopian citizens is a fact of life in Ethiopia. To ignore these facts is the equivalent of the ostrich's putting its head in the sand. Statutory legal pluralism in Ethiopia could actually advance the establishment and consolidation of state power because recognition and incorporation of the ancient and widely-accepted sources of authority that are the customary law systems legitimates the new federal state and its formal legal system. The state can eliminate challenges to its authority by entering into statutory arrangements making operation of the customary law systems conditional on its permission and approval.

Two basic models for official legal pluralism have emerged. Each uses a statutory framework to combine a formal criminal justice system with an informal customary law criminal justice system.

The first model is transfer of jurisdiction to the customary law authorities. The second model is incorporation of the customary law's informal premises and procedures into the state's statutory models of substance and procedure. Either of these models might be based on an operational strategy premised on a ranking of human rights. Such a strategy would alleviate, at least temporarily, the tension between universal human rights norms and customary law systems. A legislative package combining elements of each of these three approaches might prove effective in Ethiopia.

The first model, transfer of jurisdiction, is generally limited to civil matters and minor criminal offenses. Ethiopia has already started down this road by virtue of Articles 34(5) and 78(5) of its 1994 constitution. These provisions recognize the legitimacy of customary laws and courts for adjudication of "personal and family laws." As to major crimes, transfer of jurisdiction is generally not allowed, the state being unwilling to relinquish its grasp on state power to the extent of transferring jurisdiction over offenses seriously disruptive of law and order to informally-constituted authorities, no matter how well-respected they might be. Homicide is not a minor offense. The Ethiopian state, conforming to global norms of state conduct, has shown that it intends to retain jurisdiction over homicide. The fact that customary law systems still deal with homicide in Ethiopia is the result of lack of state resources, not lack of state resolve. Therefore, no further time will be spent on the notion of transferring homicide jurisdiction to the customary law systems.

The second model, incorporation of customary law into statutory law, is a flexible one offering the possibility of many different permutations and combinations. The most frequently utilized approach in the criminal arena is to apply customary law concepts to sentencing only. The question of criminal responsibility for an act is determined according to the provisions of a modern state penal code. The sentence is determined according to a mixture of the norms and procedures of modern law and customary law. Sentencing concepts and procedures can either be mandated by statute or introduced through the exercise of judicial discretion. For example, the Ethiopian [Criminal Code] provisions dealing with sentencing procedure could be amended to provide for formalized input from victims and their families into the sentencing process, to accommodate the collective, victim-and-community-oriented procedural norms of the customary law.

A more radical form of incorporation is to incorporate customary law norms of behavior not into sentencing procedure but into the substantive criminal law. An extreme example of this approach would be to enact a statute providing that a person who kills a man or woman who has been determined to be a witch responsible for the death of others lacks the necessary *mens rea* to be found criminally responsible by the state legal system. In practice, such a statute would apply only to the Gumuz people. The effect would be similar to a verdict of not guilty by reason of insanity, but without commitment to a mental hospital. The downside of such a proposal is obvious: it has the potential to lead to an increase in the number of sorcery killings. Another option would be a statutory declaration that a belief in sorcery is a form of diminished capacity, reducing a homicide from murder to manslaughter. The jurisprudential underpinnings of any one of these approaches are worthy of an article of their own.

A variation on the incorporation theme that preserves the institutional power of customary law systems, rather than weakening them by assimilating them into the state system, is to enact a statute authorizing parallel and coordinated state and customary proceedings. A state-sponsored formal court proceeding focused on individual culpability and responsibility would proceed parallel to a statutorily-authorized customary law proceeding focused on familial and/or clan reconciliation and responsibility. Both proceedings would be mandatory for the accused, his family and the family of the victim: the state to deal with individual responsibility and the customary to deal with familial and communal responsibility and reconciliation. Such an approach has promise for the Amhara and Somali regions.

Which of these modes of incorporation is utilized will depend on the relationship between the state regional government and the customary law systems within its boundaries. For example, in the

Amhara region, where neither the people nor their customary law system are alienated from the state, the notion of communal reconciliation and collective responsibility by the killer's family for the welfare of the family of the victim could be incorporated directly into the state sentencing proceedings, especially in urban settings. In the cities, orchestrated community participation in court-room sentencing procedures is possible. In the more isolated corners of the Amhara region, far from the urban centers where courts are located, customary law compensation and reconciliation proceedings in the village where the families reside would be preferable due to the difficulty of traveling to the far-away court. These local proceedings would be timed to proceed immediately subsequent to state-court criminal proceedings.

In the Somali region, where the people and their customary law systems are more alienated from the Ethiopian state, a more flexible and accommodating approach by state representatives is called for. The representatives of the Ethiopian state could work with Somali authorities to persuade them to pair customary law proceedings with their corollary state criminal prosecutions. Questions of the degree of tolerance and accommodation to be demonstrated by state prosecutors and judges will have to be worked out in the field. Where such pairing is achieved, participation in both processes, from beginning to end, would be required. The present occasional practice of dropping state criminal charges against a homicide suspect because his family has paid blood money to the victim's family pursuant to a customary law decision would be formally outlawed. Permitting such practices shirks the governmental duty to implement the right to life provisions of the Ethiopian constitution and the international human rights covenants to which Ethiopia is party.

In conclusion, a few words on non-homicide crimes are in order. Although transfer of jurisdiction over homicide and other major crimes is inappropriate in that it would have negative repercussions for the maintenance of Ethiopian state power, transfer of jurisdiction over minor crimes may well be positively desirable. Such a transfer would relieve the Ethiopian government of the administrative burden of dealing with such minor offenses while at the same time recognizing and validating the customary law processes. Such a result would be both politically and economically beneficial to the Ethiopian state.

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Getachew Assefa, "Federalism and Legal Pluralism in Ethiopia: Reflections on their Impacts on the Protection of Human Rights," in *Ethiopian Human Rights Law Series*, Vol. 2 (2008). Footnotes omitted.

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LEGAL PLURALISM AND HUMAN RIGHTS

Another aspect of the Ethiopian ethnically based federal system that needs to be investigated (from the viewpoint of human rights) is its official recognition of religious and customary laws and courts in family and personal matters. According to Vanderlinden, this is an aspect of official legal pluralism or pluralism within the state law. The Federal Constitution gives formal recognition to religious and customary laws and courts to operate side by side with the state legal system in the areas of family and personal matters.

* * *

The current federal legal order of Ethiopia makes some changes in this regard. The Federal Constitution of Ethiopia has created a limited space for non-state law. The following are the relevant provisions of the Constitution:

This Constitution shall not preclude the adjudication of disputes relating to personal and family laws in accordance with religious or customary laws, with the consent of the parties to the dispute. Particulars shall be determined by law. (Art. 34(5)).

Pursuant to Sub-Article (5) of Article 34 the House of Peoples' Representatives and State Councils can establish or give official recognition to religious and customary courts. Religious and customary laws that had state recognition and functioned prior to the adoption of the Constitution shall be organized on the basis of recognition accorded to them by this Constitution. (Art. 78(5)).

Art. 34(5) of the Federal Constitution quoted above takes a permissive stance in relation to both religious and customary laws and courts in the areas of family and personal disputes as regards consenting disputants. A close reading of Article 34(5) leads to the following important observations. The first matter is that only a few of the areas of adjudication are carved out and given to the customary and religious laws and courts. In other words, in what is normally known as civil and commercial matters, the non-state laws and courts have jurisdiction only with respect to family and personal matters. Importantly, criminal jurisdictions are unequivocally denied to customary and religious laws and courts. Secondly, the jurisdictions of the non-state laws and courts are contingent on the consent of the disputing parties and cannot take place without the latter. Conversely, we could note that if the disputants agree to the jurisdictions of religious or customary courts and laws, the rules in the laws of custom or religion would apply to the consenting disputants regardless of the nature and contents of those laws. In principle, by giving their consent, the disputants would be willing to absorb any kind of decisions whether they are repugnant to constitutional rights or ordinary sense of justice or not. Of course, one may argue that by virtue of Art. 9(1) of the Constitution, decisions or religious and customary laws will have to yield to the Constitution in the event of their contradiction with the latter. But since the recognition accorded to customary courts and laws is given by the Constitution itself, again a possible counter-argument, to the effect that the very act of consent would "purify" the "defective" rules in custom and religion, is also plausible enough.

As stated earlier, the official policy with regard to criminal jurisdiction has not changed even under the incumbent politico-legal arrangement which otherwise champions traditional and cultural self-determination. At least legally speaking, therefore, criminal matters from petty offences to serious crimes, regardless of the place (in Ethiopia) at which they are committed around the country, are subject to the state (federal or regional) laws and courts. This also, again as far as the intentions of the state are concerned, applies to civil matters other than "family and personal."

But the empirical reality regarding the traditional or customary laws (including those with some ritual practices) in the country provides for a completely different picture. Contrary to the efforts by the state to gloss over the traditional laws in the country as non-existent in most of the rural areas (especially those farther away from the urban centres), the traditional laws and institutions still display a complete vitality. Many past and recent studies have confirmed that they exist in full force and the society uses them to settle disputes in their day to day lives. Importantly also the jurisdictions of the traditional laws and courts are not restricted to just family and personal matters, but rather encompass all kinds of civil and criminal matters.

* * *

One of the main challenges of legal pluralism in Ethiopia today is the determination of who should be the highest judicial body that should give a conclusive end to claims that have been submitted to the customary and religious courts. For example, should the final decision of the highest religious or customary court be subject to review by the ordinary courts, or for that matter by the highest ordinary court? This issue has been a battle ground between the liberal outlook and that of the supporters of more autonomy for cultural or self-determination rights of ethno-national or religious

groups. For example, in general the latter group opposes that the ordinary court of any level be allowed to review the judicial determination made by customary or religious courts. In a related issue, Kymlicka notes that many American Indians oppose the idea that the U.S. Supreme Court reviews their internal decisions as per the Bill of Rights. He observes that both the American Indians and Canadian Bands in relation to the Canadian Charter of Rights and Freedoms are opposed to the Supreme Courts' ability to review the decision of their local councils, and that they do not want members of their respective communities to challenge their decisions in the ordinary courts. The demand for exemption of decisions of the tribal bodies, Kymlicka notes, is opposed by liberal thoughts obviously because in the name and under the guise of group interest and "cultural purity," individuals or subgroups, such as women, may be subjugated, and therefore that tribal judicial or executive or legislative decisions must be subject to review by the nation's highest court in the event of report of grievance and after the exhaustion of remedies available at the level of tribal institutions.

The reasons for the traditional institutions' resistance of the review from the state institutions are many. But, the most overriding consideration can be said to be the concern that the modern institutions such as supreme courts may not be impartial on the cases involving tribal, cultural matters due to the ethnocentric bias the former would have against traditional institutions. When it comes to the review of religious institutions' decisions by the modern state institutions, the suspicion of bias is all the more pronounced. The *Kedija Beshir* case is illustrative of this situation.

The Kedija Beshir Case—This case involved a dispute on inheritance of a house among grandchildren of a Muslim family. In 1999, the plaintiffs (four persons) opened a case before the first instance Sharia Court claiming that they should be given their share which was under possession of the defendants (four persons). The Sharia Court received a response from the defendants which asserted basically that they did not consent to be adjudicated before a religious/Sharia court, and secondly that the case was pending before the regular court with jurisdiction. They made it clear in their reply to the Court that as per Art. 34(5) of the Federal Constitution, the religious/Sharia court will have jurisdiction on this case only if they consent to be bound and since they made it unequivocally clear that they do not consent to have their case adjudicated here, the case should be closed for want of jurisdiction.

The first instance *Sharia* Court (*Naíeba* court), set aside the preliminary objection of the defendants and went on to see the merits in which it found the applications of the plaintiffs founded and decided that the property be partitioned among the defendants and the plaintiffs. The court even imprisoned for 15 days (for court contempt) one of the defendants for having said during oral hearings that the court did not have jurisdiction. The defendants appealed to the High *Sharia* Court and the Cassation Division of the Supreme *Sharia* Court one after the other, both of which affirmed the first instance *Sharia* court's decision.

As per the procedural laws of the country, the defendants submitted an application for review to the cassation division of the Federal Supreme Court of Ethiopia, claiming that the decisions of the courts of *Sharia* committed grave error of law. However, to the dismay of the petitioners, Federal Supreme Court's cassation division stated that there was no error of law committed by the courts of *Sharia* and rendered the case inadmissible. The defendants, through the Ethiopian Women Lawyers' Association—a local women's rights advocacy group—petitioned the Council of Constitutional Inquiry (CCI) for review and quashing of the decision of the Courts of *Sharia*. The CCI admitted the case and decided in 2003 that the first instance *Sharia* Court could pass up on a given case only with a clear consent of the parties to the case, and its passing upon this case over clear rejection of its jurisdiction was unconstitutional. It made a recommendation to the HoF that the decision of the *Sharia* courts be overturned.

Several interesting points of analysis can emerge from this case. One is the possible ill-treatments that may result from the subjection of citizens to religious courts in the light of the constitutional human rights principles and the broader international human rights regime to which Ethiopia is a

party. Secondly, the judges that sit at the customary/religious courts do harbor a lot of sentiment to their own courts and laws. In this very case, they simply bypassed a very clear constitutional provision that states that the consent of a disputant is the only way from which a religious court gets its jurisdiction on a case. In defiance, the judge of the first instance *Sharia* court in *Kedija Beshir* went on to incarcerate an objecting party for contempt of court. In the case, Kedija Beshir and other defendants were made to undergo serious troubles, financially and emotionally for more than three years in a matter that should have ended at the first or so hearing. It is interesting to note also that the cassation division of the federal supreme court of Ethiopia refused to admit the *Kedija Beshir* case, stating that there was no error of law committed by the courts of *Sharia*. It said this while a clear constitutional provision was set aside by the decision of the latter. One therefore has to look beyond the black letter decision of the Federal Supreme Court. I believe that the Supreme Court's Cassation division could clearly see that a fundamental error of law took place in the case—a deliberate error by the *Sharia* Courts not to heed to the constitutional provisions. But the cassation division of the Supreme Court, it seems to me, wanted just to avoid the problem by not admitting it, like the proverbial pigeon that buries its head in the sands. This shows us the indeterminacy of the judicial stands on cases involving prior religious court decisions.

This no doubt will be the case in customary legal regimes of the multitudes of the cultural communities of Ethiopia. Their norms have discriminatory treatment, especially regarding women. Also important is that the process for justice administration used by the customary institutions does not in most cases afford fair play for the parties, especially the defendants. The problem is exacerbated in the case particularly of customary courts and laws by the absence of a clear legal regime guiding the citizens through the dispute settlement processes and the remedies available to them. To begin with, to date, there is no law both at federal and regional levels regulating the state of affairs of customary law and courts. As a result, many very important matters remain unregulated. For example, it is not clear as to what kind of procedural requirements should be observed by the customary courts; who should be a judge in customary courts; whether they should observe any constitutional limitation about the body of rules they could use regarding the rights of disputants, etc., are not at all known.

Discussion

1. In the above two articles, the problems of co-existence of state law and “non-state law” have been highlighted. There are many cases like the *Kedija Beshir* case that occur often remain unreported due to our being ignorant about them. Discuss among yourselves and report formally as to be determined by your instructor as to how this problem can be solved by all those who have the constitutional/legal responsibility to play a part.
- 2, Donovan and Getachew suggest various alternative ways of harmonizing the customary and formal (state-enacted) laws. Which one(s) of the suggested approaches seem to you to be workable?

D. Gender Equality

Read Art. 35 of the Ethiopian Constitution.

As you can see, Article 35 carries somewhat detailed rules and principles on the right of women in Ethiopia. Most of the points of struggle that were waged in the West during the 19th and early 20th centuries have now been embraced by the Ethiopian Constitution and other laws like the Federal Family Code and similar states family codes. So the legal war can be said to have been won in favour of women in Ethiopia, too, as it of course is in most Western tradition following countries. But the real life barriers are still there in substantial amount, and in Ethiopia much more remains to be desired. Think for a moment about our rural population, where women and girls carry the brunt

of the challenges of household work and poverty. Socio-economic measures of emancipation and equalization of women in Ethiopia may have started, but the effects have not been felt as yet.

Ethiopia is a party to the 1979 Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW) which entered into force in 1981. The CEDAW has a Committee that follows up its implementation by the states parties. Parties report to the Committee (Committee on Elimination of Discrimination Against Women) established by the Convention on a periodic basis regarding the progress they have made in implementing the rights and benefits enshrined in the Constitution. The Committee also adopts General Recommendations on how the implementation of the Convention should be guided. In its review of the 2004 Report by the Ethiopian government, the Committee noted that more measures need to be taken to realize the rights granted in the Convention to Ethiopian women (**CEDAW/C/SR.645**). It expressed its concern that there is a huge disparity in political participation between men and women; harmful traditional practices were still continuing; and a substantial number of states were not willing to adopt the new family code endorsed by the Federal Parliament.

Susan H. Williams, “Equality, Representation, and Challenge to Hierarchy: Justifying Electoral Quotas for Women” in Susan H. Williams (ed), *Constituting Equality: Gender Equality and Comparative Constitutional Law* (Cambridge University Press, 2009). Footnotes omitted.

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I. objections to electoral gender quotas

There is a long and largely standard litany of objections to electoral quotas. Some of these objections are specific to particular forms of quota systems. For example, some critics argue that a quota will function as a ceiling rather than a floor on the level of women’s representation, and that the women elected through a quota system will lack the legitimacy of their male counterparts. Both of these objections are, however, dependent on the particular form of the quota. The legitimacy argument, for example, appears to have real strength with respect to women who have no clear constituency from which they are elected, but very little strength with regard to women who are elected from a party list that includes both male and female candidates on the same terms. The objections considered in detail here are those that have at least *prima facie* relevance to all, or at least a very broad cross section of, quota systems.

First, some critics argue that a quota system will result in less-qualified women replacing more-qualified men. This argument is particularly common in developing nations, where the levels of wealth and education for women tend to be significantly lower than for men. But, the argument is also heard in more-developed democracies, where the idea of qualifications is often focused on political effectiveness rather than on education or economic power. In this context, being qualified means being more electable or more effective at promoting the goals of the party or constituency. In both cases, the argument is that the competence of representatives is being sacrificed to promote gender equality.

The second common argument is that quotas are unfair to men. If certain seats or positions on party lists are reserved for women, then men are unable to compete for those seats. Assuming that more men than women are seeking political office, this means that the odds of being elected for a male candidate are significantly worse than the odds for a female candidate. This imbalance in opportunities for political office based solely on gender is said to be a violation of the commitment to gender equality, and unfair to the individual men who are at a disadvantage.

The third common argument is that having women in the legislature will not ensure that women's interests or concerns are represented because women are too different from each other to share any particular interests. This argument is often cast in terms of forms of representation. Descriptive representation means having representatives who share certain characteristics, such as gender, with the people they represent. Substantive representation means that the representatives will work for the interests and concerns of those people. The argument, then, is that descriptive representation is no guarantee of substantive representation.

This argument rests on an understanding of the diversity of women and the observation that women seem to be on every side of every issue. The claim is that women are too varied a group to share any specific interests. As a result, there is no reason why one woman should be able to represent other women's interests just by virtue of being a woman. This objection is made more powerful because it is consistent with the concern among feminists to avoid essentializing women and to recognize the deep and important differences among women that often track other forms of hierarchy, such as race, and class (...). Finally, some observers argue that electoral gender quotas are not a good solution to gender inequality because they fail to address the underlying conditions that generate the unbalanced legislatures in the first place. Quotas are in Nancy Fraser's terms, affirmative rather than transformative remedies. A quota may guarantee that there are a certain number of women on party lists or even in parliamentary seats, but it does not change the fact that women have a systematic disadvantage in all of the factors that facilitate access to political power, such as education, economic status, work history, leadership experience, family responsibilities, and so on.

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II. Models of equality and democratic representation

A. Models of Equality

In responding to these four objections, feminist theorists have often relied on particular models of equality and democratic representation. In the comparative constitutional literature, there are two basic models of equality: formal and substantive. Formal equality requires that the law treat like persons and cases alike. This model has obvious limitations in addressing gender inequality. First, the model simply does not apply where the people involved are not seen as similar. But, men and women are often seen as different because of gender stereotypes or gender role-training. For example, the Indian Supreme Court has upheld sex-based classifications in a number of cases because, relying on gender stereotypes, the Court saw men and women as different. The Court upheld "an adultery law criminalizing the conduct of the man and not the woman because women tend to be the victim and not the perpetrator, and an employer's marriage proscription for women and not men, because Indian women should be deterred from marrying too young." Because formal equality does not demand equal treatment where people are seen as different, and because perceptions of the differences between the sexes are all too likely to be influenced by stereotypes about gender roles, formal equality will fail to address many aspects of gender hierarchy.

Second, formal equality does not speak to those situations in which treating men and women the same has the effect of creating or exacerbating inequality. For example, many employment situations are arranged in ways that are difficult or impossible to fulfill for a person with the primary responsibility of caring for a child. The rules in such situations are gender neutral and apply equally to men and women. But, these neutral rules will, systematically be a disadvantage to women, who are more likely to bear child-care responsibilities than men. Formal equality, in other words, does not address structural discrimination – discrimination built into the nature of formally gender-neutral institutions and cultural practices.

In response to the failures of formal equality, feminists and others have developed the alternative model of substantive equality. Substantive equality looks not to whether the law is formally treating

everyone the same way, but to whether the law is causing an increase or decrease in equality as a practical matter. Sometimes, the goal of equality is advanced by treating everyone the same way, but sometimes not. In particular, substantive equality takes into account the social and cultural practices and institutions that can cause a facially neutral rule to have a systematically discriminatory effect. Thus, under a substantive equality approach, affirmative or positive action to raise the status of a disadvantaged group – such as an electoral quota for women – is seen as fulfilling the demands of equality rather than creating an exception to it.

Although substantive equality raises some difficulties of its own, it does avoid the pitfalls of formal equality, and there is little question that substantive equality is a vast improvement over formal equality in terms of addressing gender hierarchy. Constitutions where both the drafters and interpreters are working with a substantive model of equality, such as in Canada and South Africa, have systematically offered greater protection and support to women in their struggles for equality than have constitutions, such as ours in the United States, where a formal model predominates. As a result, much of the feminist literature on constitutional equality guarantees focuses, as it should, on incorporating a more substantive model or eliminating the vestiges of a formal model, in the constitutions of various countries.

With respect to electoral gender quotas in particular, several of the objections to quotas rest on an implicit commitment to formal equality. A shift to a substantive model of equality, therefore, provides a strong response to these arguments. For example, the argument that quotas are unfair to men rests on the presumption that treating people differently on the basis of a characteristic such as gender is a violation of equality. But, substantive equality eliminates this presumption because it asks about the effects of the legal rule on gender hierarchy rather than about the form of the rule. From the perspective of substantive equality, gender-based rules do not violate equality if their result is to promote greater equality between the sexes.

Moreover, a substantive model of equality pays attention to the background of structural discrimination that systematically is a disadvantage for women in the competition for political office. Because the underlying expectations and institutions are unfair to women, any facially neutral rule of access to political power would perpetuate the effects of that unfairness. As Marian Sawer puts it: “Indirect discrimination may include factors such as the electoral system or the structures of political work and public careers, particularly the failure to accommodate family responsibility, or the privileging of gladiatorial styles of politics.” From this perspective, quotas are simply an effort to correct the preexisting imbalance. It is not unfair to men to reduce their advantage in politics if that advantage is itself unfair.

Substantive equality also helps with the issue of qualifications. Here, too, the objection rests on an assumption that there are neutral criteria for political office that are applicable in the same way to all people. But, substantive equality highlights the ways in which our present politics and political institutions are gendered: they are designed with men in mind and shaped by the patterns and expectations of men. For example, the combative style of political discourse common to many parliaments is likely to be even more uncongenial to the average woman member of parliament MP than to her male counterpart. This recognition opens up the possibility that other qualities might serve as useful political skills in a politics where women play a larger role. For example, if women are more likely to design cooperative or consensus-based mechanisms for decision making, as some evidence suggests, then their skills in those areas will make them more effective in a politics where women occupy a substantial percentage of positions. In other words, as politics becomes less masculinized, women’s abilities will be revealed as qualifications for political effectiveness. Thus, the substantive model of equality, by focusing our attention on structural inequality and the capacity of law to generate more equal outcomes, provides a foundation for responses to the first two objections to electoral gender quotas.

Questions and Discussion

1. Susan Williams discusses two models of gender equality. What are those and what are their main differences?
 2. As can be seen from the discussion above, there is an objection against the use of electoral quotas for the purpose of ensuring the political inclusion of women. Do you see any merit in electoral quota for advancing women's political equality?
 3. From the point of view of formal and substantive equality, how do you assess the Ethiopian legal system in ensuring these equalities?
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CHAPTER TWELVE

ENFORCEMENT AND INTERPRETATION OF THE CONSTITUTION

A. The Meaning of Constitutional Interpretation

Constitutional interpretation as a concept should be understood to mean two important things. The first is the meaning that relates to the review of constitutionality of laws and actions of the state authorities that may contravene the constitution. This is its classical meaning, in which it first arose in 1803 in a decision of the U.S. Supreme Court in the case of *Marbury v. Madison*. This was the case in which the United States Supreme Court declared that the 1789 Judiciary Act enacted by the U.S. Congress was unconstitutional, because the court said it contradicted with the U.S. Constitution (1787) by attributing to the Supreme Court original jurisdiction on a matter the Constitution does not.

The second meaning of constitutional interpretation is what we can call expounding on the text of the constitution. This may relate to any type of dispute that may arise in relation to the Constitution or its provisions. For example, if there is a dispute as to whether two provisions or principles in the constitution conflict, this can rightly be a matter for constitutional interpretation. Also if there is a gap in the constitution regarding important constitutional rights or principles, it may as well become a matter for constitutional interpretation. A case of constitutional interpretation in this regard may also arise in relation to power disputes between constitutional organs such as the legislature and the executive. In a federal system, a dispute regarding sharing of powers between the two levels of government may involve constitutional interpretation.

The above points being generally commonly true, we should note however that the meaning of constitutional interpretation may be determined in different ways by the laws of the countries involved. So we cannot expect all the systems for interpretations to be alike. For example, its meaning here may be different from its meaning in Germany or South Africa.

B. Models of Constitutional Interpretation

By models, we mean the approaches that are used for having the task of constitutional interpretation performed. There are generally two major models for constitutional interpretation. The first and the most popular one is the Court model. The second model is the non-court model. There are two components of the court model. The first one is the American model and the second is the European model. In the case of the American model (also known as the decentralized or defused model), all ordinary courts have the power to interpret the constitution. In this system, constitutional interpretation is not different from an adjudication of any other cases and controversies. It arises only in relation to cases and controversies. It does not get to court on its own; hence constitutional review here is incidental. Some other states other than the U.S., such as Denmark, Brazil, India and Japan use this model.

The second component of the court model is the European (also known as centralized or concentrated system) model. It is named as such because it has originated in continental Europe. The main feature of this model is that constitutional interpretation is done by a court, usually known as a constitutional court, which is not part of the ordinary court structure but established by law to primarily deal with interpretation of the constitution. Austria (its birth place), Germany, Spain, Russia, Hungary, Italy, and South Africa are some of the systems with constitutional courts as their ultimate constitution interpreter.

The non-court model is the second major model for constitutional interpretation. It is true, of course, that it has few subscribers as compared to the court model. This is a system whereby constitutional interpretation is done through bodies other than courts, usually by a body with political representation or accountability. Historically speaking, this model is a contribution of socialist legal philosophy because it came into existence with the USSR Constitution of the 1920s. Thereafter it was taken over into many other systems with socialistic inclination. For example, the 1987 PDRE Constitution of Ethiopia gives the power for constitutional interpretation to the Council of State, the standing organ of the National Shengo (the Legislature). Currently, we find a few systems with this model. The 1995 Constitution of Ethiopia is one of those. We will see more of the Ethiopian model below.

Though strictly speaking it is not constitutional interpretation, the French system is worth mentioning. This is the system in which the constitutionality of laws is checked when the law passes in the parliament but before its promulgation. The French Constitutional Council is given the mandate to make a screening of a law adopted by parliament if there is a question that such a law carries a provision that may contravene the French Constitution. So if the law adopted (but not yet promulgated) is considered to carry a provision that violates the Constitution by the Council, that provision should either be amended as required or deleted from the law.

Mauro Cappelletti and John Clarke Adams, "Judicial Review of Legislation: European Antecedents and Adaptations," in *Harvard Law Review*, Vol. 79 (1965-1966). Footnotes omitted.

[The following excerpt from an article by Cappelletti and Adams will give you a general idea on the type of judicial review system extant in Europe. It will give you a concise reference to how constitutional interpretation in Europe has come to be what it is now.]

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JUDICIAL REVIEW IN EUROPE TODAY

We now turn to a brief analysis of the recently established European systems of judicial review, concerning ourselves principally with three aspects of the phenomenon: (1) the organs in which the power of judicial review resides, (2) the procedures by which questions of constitutionality are resolved, and (3) the effects of a finding of unconstitutionality on the law under review and on the specific case (if there be one) that gave rise to the constitutional question.

The organ or organs that are empowered to judge the constitutionality of laws may be a nation's regular courts or a specially created constitutional court. In the American system the regular courts perform this function, and in this respect the American practice has been followed in Switzerland, Norway, and Denmark, as well as in such non-European countries as Australia, Canada, India, and Japan. With the exception of Switzerland, however, judicial review has played a relatively minor role in the constitutional history of the European countries noted.

The reasons for relying on the regular courts for judicial review are quite convincing. All judges must apply the law to the case at hand. When there are contrasting laws that appear applicable the judge must decide which should prevail. There are traditional criteria for this, such as *lex posterior derogat legi priori* and *lex specialis derogat legi generali*. When there is a written constitution that cannot be amended by ordinary legislation, there is created a hierarchy of law, and just as a law prevails over an administrative regulation, so a constitutional provision prevails over an ordinary law: *lex superior derogat legi inferiori*. According to this reasoning, when the courts declare a law

incompatible with a provision in the constitution, they are merely performing their normal and fundamental judicial function of “applying the law.”

The simplicity and logic of this reasoning are such that at first it may be difficult to understand why a number of European countries that have adopted written constitutions have failed to employ the American system, and have gone to the trouble of establishing a special constitutional court outside of the regular judicial system. Austria took such a course of action in 1920, and since the end of the Second World War, Italy, Germany, Turkey, Cyprus, and Yugoslavia have followed suit. It appears that one reason for this development is the fundamental incompatibility that exists between the American system of judicial review and the legal systems based on Roman law. Under the Anglo-American doctrine of *stare decisis*, a decision by the highest court in any jurisdiction is binding on all lower courts in the same jurisdiction, and thus as soon as that court has declared a law unconstitutional, no other court can apply it. The court does not need a specific grant of the power to declare a law invalid, nor must it decide anything beyond the applicability of the law in question to the concrete case; *stare decisis* does the rest by requiring other courts to follow the precedent in all succeeding cases. Thus, although the unconstitutional statute may remain on the books, it is a “dead law.” *Stare decisis*, however, is not normally part of the Roman law systems, and thus in these systems the courts are not generally bound even by the decisions of the highest court. Under these circumstances the American system of judicial review can lead to grave uncertainty and confusion, as one court may decide to enforce a statute that another court will find invalid.

Another difficulty of quite a different nature is also likely to arise when the American system of judicial review is superimposed on typical European systems. In such systems the magistrates form a career service, the higher echelons of which are composed of elderly men who have reached a position of eminence based in large measure on their ability to interpret laws with logic and precision. They have been trained in the execution of the law as it stands, and they tend to shy away from the type of policy-making decisions that are involved in judicial review. It is difficult and perhaps distasteful for these magistrates to change their whole mode of thinking from the traditional one of applying any law that has been duly enacted, to that of questioning and determining the validity of legislation. The norms in modern constitutions are quite different from the legal norms with which these judges have long been in the habit of dealing. Modern constitutions do not limit themselves to a statement of the law; they are concerned with ultimate values relating to the future activity of the state and the society.

This incompatibility between the training and traditions of the regular judges in a career service and the requirements for the effective operation of judicial review played a major role in the unsatisfactory operation of judicial review in Germany under the Weimar Republic, and in Italy from 1948 until the special constitutional court went into operation in 1956. If one accepts Professor Duverger’s thesis that the regular French courts have the power to disallow unconstitutional law, this incompatibility must be a primary cause of the absence of judicial review in France; and some responsibility for the poor performance of judicial review in Japan may also be attributed to the same cause.

The situation has been quite different in Switzerland and Norway. In Switzerland, the single federal court, the *tribunal fédéral*, whose twenty-six judges are not career judges, has the power to declare invalid any cantonal act - legislative, administrative, or judicial - that is incompatible with the constitution. The power of the *tribunal fédéral* extends beyond the case at hand; the court may consider the overall validity of the act in question. Thus, neither of the difficulties described above, which have impeded the successful functioning of the American type of judicial review in other civil law systems, affects the Swiss system of judicial review.

The peculiar system of public law in Norway gives the courts at least in theory the most comprehensive power of judicial review found anywhere. All Norwegian courts may, incident to the settlement of a specific case before them, declare the invalidity of laws incompatible with the

constitution. The *Hiesteret* (Supreme Court) may also be requested by the *Storting* (Parliament) to give an advisory opinion on the constitutionality of a law. The additional powers of judicial review of the Norwegian courts derive from the two types of legislative enactments of the *Storting*, the hierarchic distinction between them, and the restriction on constitutional amendments. A legislative enactment may either be passed by the two divisions of parliament (*Lagting* and *Odelsting*) separately, or by the “unicameral” *Storting*. The courts are empowered both to determine whether a provision enacted by the later procedure is valid *ratione materiae*, and whether it is inoperative because it is incompatible with some provision passed by the more formal “bicameral” procedure. Moreover, an article of the constitution states in part that “amendments must . . . never contradict the principles embodied in this constitution, but merely relate to modification of particular provisions that do not subvert the spirit of the constitution.” Thus the Norwegian courts are *de jure* the final arbiters of constitutional limitations, even if in fact they appear not to exercise this power. The definitely modest role that judicial review has played in the constitutional history of Norway attests to the sobriety of the *Storting* and to a general desire to proceed in a legal and orderly manner, rather than to the courts’ abdication of their constitutional responsibility, as has allegedly occurred in Japan.

The special courts set up in Austria (the *Verfassungsgerichtshof*), Italy (the *Corte costituzionale*), and Germany (the *Bundesverfassungsgericht*), have in each case been given the exclusive power of judicial review. These courts are outside the judicial hierarchy, and although their judges may be chosen from among career judges in the regular service, they are not always so chosen. The fourteen members of the Austrian *Verfassungsgerichtshof* are chosen by the President of the Republic; six must be selected from a list submitted by the parliament. In Italy, the President of the Republic, the parliament in joint session, and the career judges, each choose one-third of the *Corte costituzionale*’s fifteen members. And the sixteen members of the German *Bundesverfassungsgericht* are chosen half by one and half by the other house of parliament. Thus, the political wing of the state has a preponderant voice in selecting these judges, just as it has in the case of the United States Supreme Court.

The propriety, in the absence of a rule of stare decisis, of empowering a *single* court with judicial review and of making the decisions valid *erga omnes* has, we believe, been demonstrated. The question may then arise as to why it was believed advisable to create a *special* court for this purpose, rather than to follow the Swiss example. Hans Kelsen in Austria, and Piero Calamandrei in Italy, two eminent jurists who were instrumental in setting up the constitutional courts of their countries, were probably influenced by their belief that judicial review is more a legislative than a judicial function. But another reason, at least in the cases of Italy and Germany, appears to have been the desire of the constitutional assemblies to create a new high-ranking and prestigious organ upon which could be bestowed various other powers of control over the government, such as the impeachment of high officials, and the adjudication of conflicts between central and regional governments or between the highest organs of the state.

In any case, although the theory shared by Kelsen and Calamandrei has been severely criticized, the sad Italian experience during the eight-year period before the establishment of the *Corte costituzionale* in 1956, when the *Corte di cassazione*- the highest ordinary court - had the ultimate power of judicial review, suggests that the constituent assemblies reached the right decision, even if their reasons for doing so were not completely convincing. This new European system, which establishes a single special court to judge the constitutionality of laws, thus lies midway between the American system and the traditional approach of the Roman law countries, exemplified by France. It reflects the latter by not allowing the regular courts to interfere with legislation; yet it also constitutes a partial acceptance of the American principle of checks and balances, not only by granting the power of judicial review to an organ judicial in nature (and this fact is expressly stated in the German constitution) but also by giving to the legislative and executive branches the principal voice in selecting the judges for the special court.

There is also a contrast between the procedures used in the American and European systems of judicial review. The Anglo-American legal tradition is allergic to adjudication of matters of general principle. The constitutionality of a law is not considered a justiciable question unless it is directly involved in a specific conflict. Thus, the constitutionality of a statute is usually not the sole issue in a case; rather, it arises as a question that must be answered before getting down to deciding the specific conflict at hand. This incidental nature of judicial review is common to all the countries that follow the American system. In a certain number of jurisdictions, however (Canada, Norway, and at least ten of the fifty states that form the United States), the highest courts are also permitted by constitution, statute, or convention to render “advisory opinions” on constitutional questions at the request of other governmental organs. Under the American system it may occur that the parties to the dispute in which the constitutionality of a law will be decided incidentally are not in a position to represent the various public and group interests that are concerned with the outcome of the issue. But the danger of injustice inherent in this situation is lessened by the possibility that any interested party may be able to intervene by petitioning the court for consent to file an *amicus curiae* brief.

The European system in its purest form was exemplified by the system established by the Austrian constitution of 1920, but since modified. Under the Austrian procedure, the *Verfassungsgerichtshof* could judge only the constitutional questions raised before it by the executive organs of the state: the *Länder* governments (*Länderregierungen*) arguing against federal laws, and the federal government (*Bundesregierung*) arguing against the laws of the *Länder*. A constitutional amendment of 1929 gave the two supreme courts (*Oberster Gerichtshof* for civil and penal cases, and *Verwaltungsgerichtshof* for cases involving administrative law) this same power to raise constitutional questions before the *Verfassungsgerichtshof*, but, following the American procedure, only when the question was involved in a case before them. The federal and *Länder* governments could intervene in these proceedings. The 1929 amendment significantly extended judicial review in Austria, but after its enactment the lower courts were still obliged to enforce unconstitutional laws as the question could not reach the *Verfassungsgerichtshof* until it had first been raised before one of the two supreme courts.

The Italian equivalents of the Austrian governmental organs that may bring a case before the *Verfassungsgerichtshof* may do the same before the Italian *Corte costituzionale*; but in addition - and herein lies the major innovation and improvement over the Austrian system of judicial review - any Italian court, not only the supreme courts, may do so. Thus, although formally there remains an immense gulf between the Italian system - in which the regular judges are denied the power of judicial review in deference to the traditional concept of the separation of powers - and the American system - in which this power is considered within the normal competence of judges - the practical difference is not so great. In both systems constitutional questions presented in lower courts are ultimately decided - in America on appeal, in Italy after reference - by the highest constitutional court. The Italian court defers its decision until the *Corte costituzionale* has spoken; the American court normally decides the case but suspends sentence pending the authoritative decision of the appellate courts.

In Germany, the *Bundesverfassungsgericht* can review the constitutionality of laws not only in the various manners that the *Corte costituzionale* does, but also in two other ways: (i) by a motion signed by one-third of the members of the *Bundestag* (the lower house of parliament) and (2) at the request of any citizen who claims that a law has the actual and immediate effect of depriving him of a fundamental right. This last provision is similar to the right of action afforded Swiss citizens before the *tribunal federal* when a cantonal act deprives them of a constitutional right.

Thus, the European procedures of judicial review, as exemplified by the Austrian, Italian, and German systems, do not present a stark contrast to American procedure, but rather produce a hybrid system. In the United States, judicial review is exercised incidentally to the adjudication of a case before the court. The so-called reference cases of Canada and advisory opinions in some states of

the United States are the exception. In the European system, constitutional questions may be resolved by the courts directly (*abstrakte Normenkontrolle*) or incidentally (*konkrete Normenkontrolle*). It is not our purpose here to evaluate these systems, but it is perhaps fitting to point out a major potential weakness of each. The American system - which considers "nonjusticiable" any constitutional question not arising from a concrete case - in practice denies a citizen the right to his day in court whenever the cost and inconvenience involved in disobeying a law and fighting it through the courts are too great. On the other hand, the European system - which requires the general determination of constitutional questions in the abstract - may place the constitutional courts in the dangerous, embarrassing, and perhaps unrealistic position of attempting to settle by judicial procedure a conflict of power between high constitutional organs. Obligated to enter the field of power politics, the court may endanger its prestige and its reputation for impartiality, and may be led to render decisions that are prejudiced and perhaps even unenforceable. The Italian *Corte costituzionale*, for instance, would be in an untenable position should it be forced to settle a dispute among the supreme institutions of the state to which it was itself a party. Such a case could have arisen some years ago when the President of the Chamber of Deputies refused to deliver the minutes of secret committee meetings after the court had requested them for the purpose of determining the legislative intent behind a law.

We turn now to the final phase of our analysis, which concerns the different effects of judicial review under the American and European systems. As we saw earlier, there is little relevance in the fact that under the latter system the decision that a law is unconstitutional has validity *erga omnes*, whereas under the American system, "in a strict sense, a decision on a constitutional question has relevancy only for the parties to the case." Indeed, when the maxim of *stare decisis* prevails, the practical effect of the American system is similar to that of the European. Only those countries using the American system and not applying *stare decisis* are in danger of suffering from continued uncertainty as to the application of a law of questionable constitutionality to a specific case.

A somewhat more substantial difference between the American and European systems of judicial review results from the fact that under the American system the courts exercise this function through what the Italians call a *pronuncia di mero accertamento* - a decision in which the law is compared with the constitution and declared to be either compatible or incompatible with it. If incompatible, the law is thought never to have been valid; therefore, the court does not annul it, since in theory the law has been invalid *ex tunc*. However, under the Austrian system, for example, judicial review is exercised through *sentenze costitutive*: the unconstitutional law is considered annulable rather than null, and the court after having ascertained its incompatibility with the constitution expressly annuls it. The unconstitutional law is considered valid until the court acts. The law's nullity commences *ex nunc* at some moment after the court has ascertained its incompatibility with the constitution. In exceptional cases, the *Verfassungsgerichtshof* may even postpone the annulment of an unconstitutional law for a period of up to a year; the Turkish court can do this for six months.

The practical inefficiency of the Austrian system was partly rectified by the constitutional amendment of 1929, which gave retroactive effect in the case at hand to the declaration of unconstitutionality in those cases referred to the *Verfassungsgerichtshof* from either of the supreme courts. Kelsen himself approved this modification. Italy has adopted a hybrid system that is a further modification of the post-1929 Austrian system. Although laws that are incompatible with the constitution are annulable rather than null, the general rule is that the effect of the annulment runs *ex tunc*. The question of the prior validity of unconstitutional laws is, however, a thorny one in practice. Just as the Austrians found it difficult to apply consistently the *ex nunc* maxim, so too have the Americans, Italians, and Germans had difficulty in following consistently the *ex tunc* theory. The Italian and German courts have come to approximately the same conclusion that the American courts have reached - in criminal cases the laws are apt to be held invalid *ex tunc*, whereas in civil cases their invalidity may not be retroactive.

* * *

C. Constitutional Interpretation in Ethiopia

In Ethiopia, the interpretation of the Constitution is a task to be undertaken by the House of the Federation (HoF). Art. 62(1) of the Constitution stipulates that HoF interprets the Constitution. Furthermore, Arts. 83 and 84 of the Constitution also give some more rules regarding the powers of the HoF and its aide, the Council of Constitutional Inquiry (CCI), also established in the Constitution (Art 82). Art. 83 stipulates that all constitutional disputes shall be decided by the House of the Federation.

Art. 84, which provides for the powers and functions of the CCI, stipulates that the Council of Constitutional Inquiry shall have powers to investigate constitutional disputes. If the Council, upon consideration of the matter, finds it necessary to interpret the Constitution, it submits its recommendations to the House of the Federation about the matter.

Regarding the interpretable matters that originate from courts or interested parties, Art. 84(2) states that if Federal or State law is contested as being unconstitutional and such a dispute is submitted to it by any court or interested party, the Council shall consider the matter and submit it to the House of the Federation for a final decision. It is further provided that if issues of constitutional interpretation arise in the courts, the Council may remand the case to the concerned court if it finds there is no need for constitutional interpretation. In such a case, the interested party, if dissatisfied with the decision of the Council, may appeal to the House of the Federation. The Council would submit its recommendations to the House of the Federation for a final decision if it believes there is a need for constitutional interpretation.

There are two laws that have been enacted subsequently to the Constitution that further regulated and detailed out issues of constitutional interpretation in Ethiopia. These are Proclamations No. 250/2001 (regarding the CCI) and 251/2001 (regarding the HoF). Proclamation 250/2001 seems more relevant here. According to Art. 17 of this Proclamation, where any law or decision given by any government organ or official which is alleged to be contradictory to the constitution is submitted to it, the Council shall investigate the matter and submit its recommendations thereon to the House of the Federation for a final decision. And if the Council, after investigating the case submitted to it, finds that there is no need for constitutional interpretation, it may reject the case and inform the concerned party of its decision. Art. 18 of the same Proclamation provides that any party who is dissatisfied with the decision of the Council, given pursuant to Article 17(3) of this proclamation, may appeal to the HoF.

One may note that the provision in Art. 17 of the Proclamation has specifically made decisions given by any government organ or official a matter of constitutional interpretation and hence, within the jurisdiction of the HoF. Some scholars argue in this regard that the Proclamation should not have done this, because the Constitution did not empower the HoF to adjudicate the constitutionality of decisions made by any government organ or official. Furthermore, the Proclamation has defined the term “law” to mean Proclamations and Regulations issued by the Federal Government or the states, as well as international agreements which Ethiopia has endorsed and accepted. Here again, some argue that the Constitution has given a narrower definition for law, i.e., federal and state laws enacted by the respective law makers. Therefore, to the extent of the extension, the Proclamation is unacceptable. These issues and arguments are not yet conclusively settled.

The Ethiopian federal system allows the states to have their own constitutional interpretation institutions to interpret the states' constitutions. For example, the revised Constitution of the Oromia State has established a Constitution Interpretation Commission which is staffed by representatives from the Woreda councils in Oromia. But the Commission has not been functional so far and has not seen any case of interpretation. This is in fact the case for all of the constitution interpreting institutions of the states of Ethiopia, except for that of the Southern Peoples' State. The latter state established a constitution interpreter in the name of the Council of Nationalities. This Council is modeled pretty much on the HoF. It is not a surprise at all because the Southern Peoples' State is the most diverse state of the Federation, with more than 56 nationalities. This Council has seen some cases of constitutional interpretation.

Finally, you may wonder as to the effects of the decisions of the HoF on constitutional interpretation, as regards their enforceability by organs of state such as the legislature, executive and the Judiciary. Art. 11 of Proclamation 251/2001 states that the final decision of the House on constitutional interpretation shall have general effect and shall apply to similar constitutional matters that may arise in the future. Also, Art. 56 of the same Law states that decisions of the House on matters submitted to it shall be final, and that the concerned parties are required to observe and execute decisions of the House.

Questions and Discussion

1. Explain the two meanings of constitutional interpretation.
2. A certain group that calls itself "XYZ" has petitioned the Federal Government to recognize it as a people with a distinct identity. What should the Federal Government do? Which of the Federal institutions should be in charge of this?
3. What role do courts have in the interpretation of the Constitution in Ethiopia?
4. Suppose that a customary law contradicts a principle in the Constitution. Where such conflict should be taken for resolution?

The Ethiopian HoF and the CCI have dealt with some cases so far. But to date, only three cases have been accepted by the HoF for interpretation; all the rest were rejected at the level of the CCI as not involving any issue of constitutional interpretation. The following excerpt is taken from an article of mine on a broader area of the jurisdiction of the HoF vis-à-vis the courts as regards constitutional interpretation. The part reproduced below deals with the jurisprudence of the HoF and the CCI.

Getachew Assefa, "All About Words: Discovering the Intention of the Makers of the Ethiopian Constitution on the Scope and Meaning of Constitutional Interpretation", *Journal of Ethiopian Law* Vol. 24, No. 2 (2010)]. Footnotes omitted.

* * *

A Review of the Jurisprudence of the CCI and the HoF

According to the HoF's *Journal of Constitutional Decisions* published in 2008, there have been more than 80 applications, mostly by private parties, made to the CCI for constitutional interpretation. The CCI made recommendations to the HoF for constitutional interpretation in only three of the above applications. While a few are still pending in the docket of the CCI, most of the rest have been rejected as not entailing constitutional interpretation.

My intention here is not to review the whole jurisprudence of the CCI and HoF that has emerged out of all the cases they have considered. In line with the purpose of this article, I will canvass a few cases in order to assess particularly the position of the CCI relative to the scope and meaning of constitutional interpretation in Ethiopia. This exercise is hoped to show the interpretive stance the CCI and HOF have taken as regards their own powers as well as those of the courts.

When we study the cases referred to the CCI right from the early days of its establishment, we see all sorts of cases from those alleging religious discrimination, to claims against municipality decisions, to those raising fundamental group rights issues such as the *Silte* case (*Journal of Constitutional Decisions*, Vol. 1, No.1; 2008) and the *Benishangul/Gumuz* case. A good number of these cases have been referred to the CCI by affected individuals either after a court decision or in the middle of the court process. However, most seem to come directly to the CCI, hence making it an avenue of first instance. The opinions of the CCI so far also show that it has rejected most of these cases as not entailing constitutional interpretation. This pattern of opinion is hoped to make those who will intend to bring cases to the CCI to think twice as it shows that the latter is seriously filtering cases when it comes to constitutional interpretation. This at the same time will encourage such potential applicants who want to make the CCI a first instance interlocutor to instead resort to the judiciary with their claims.

Turning to the examination of the CCI's jurisprudence, in the following paragraphs, I shall look at the same under two categories: textual interpretation of the Constitution, and review of constitutionality of laws and decisions. Following a conventional understanding in constitutional law, the term "textual interpretation of the Constitution," is meant to refer to cases in which interpreting the provisions of the Constitution becomes necessary for giving resolution to a certain dispute. Likewise, the term "review of constitutionality," on the other hand, refers to cases in which the constitutionality of a law enacted at the Federal or state level, or the decisions of Federal or state organ or official are challenged.

To get directly to the heart of the matter, as far as the interpretation of the text of the Constitution is concerned, the opinions given so far by the CCI do not give rise to any doubt that such is within its jurisdiction. The CCI has taken upon itself to look into cases that are principally based on the interpretation of the text of the Constitution for resolution of the submitted disputes. The opinions it gave in relation to the *Silte* case, *CUD v. Prime Minister Meles Zenawi*, and the *Corruption* case (involving 41 persons) are good testimonies to the above assertion. I shall discuss the first two cases here, and refer the reader to a recent article published in J. Eth. L. for the third case.

As this is almost a commonplace by now, in the *Silte* case, the central issue was the determination of the identity of a group, the *Silte*, which claimed for a distinct identity, as opposed to the assumption that it was part of the Gurage people. The CCI stated that there were two major questions to be answered for the resolution of the case:

- 1) On which organ or body does the Constitution bestow the power to determine the identity of a group?
- 2) What procedures should be utilized in order to decide on an identity claim by a group?

In its attempt to resolve these questions and with a view to resolving the question of identity pressed by the Silte people, the CCI stated from the outset that there is a need to interpret the text of the Constitution. In regard to the first question, the CCI arrived at a conclusion that there is no provision in the Ethiopian Constitution that “directly and clearly” states who has the power to determine the identity claim of a group. Having made the above-stated conclusion regarding the apparent gap in the Constitution, it went on to make a textual interpretation of the latter. It stated that a close reading of Article 52(2, a) of the Constitution would give a direction to the resolution of the case. The CCI went on to hold that when the states establish their respective state administrations that best advance self-government, they need to first decide on the question of identity. It also unambiguously stated that “since the federal state structure put in place by the Ethiopian Constitution gives states the power to decide on their internal matters and that identity questions arise within states, such questions must obtain the decision of the state in question.” The CCI also opined that by virtue of article 62(3) of the Constitution, the HoF will remain to be the ultimate settler of questions of self-determination. But it also said that the HoF shall be the appellate body in relation to questions of identity determination while the concerned state council remains to be the body to serve as a first instance venue with original jurisdiction. As regards the second question (the question of procedure), the CCI recommended that referenda be used in the same way as in the claims for statehood (Art. 47) and secession (Art. 39). This opinion of the CCI was endorsed by the HoF. I believe this beyond any doubt shows that such a textual interpretation of the Constitution is well within the jurisdiction of both the CCI and the HoF, and that both bodies have accepted and exercised this constitutional competence. As will be later shown, the fact that textual interpretation of the Constitution was understood by its framers is vindicated by this jurisprudence.

My second showcase is the *CUD* case of 2005. A good number of academics have taken interest in this case for obvious reasons. Some have made this case part of their academic writings, primarily holding the view that the Federal First Instance Court (FFIC) made a mistake by referring the case to the CCI for constitutional interpretation. As it is not necessary for the purpose of this article to comprehensively review the opinions of the scholars that have commented on the *CUD* case, I would just like to briefly inject a view in relation to the agenda of this section, i.e., textual interpretation of the Constitution, that the position of the FFIC is defensible. Most of the commentators referred to above rejected the issue framed by the Court as inappropriate. This in my opinion arises from the failure to look at the case in the prevailing circumstances as opposed to a normal time enforcement of the law. This, in my opinion, can help us to see that what the court was made to deal with was not a case that could be decided in the same way as other everyday cases. No one would argue that the Prime Minister’s ban of outdoor meetings and demonstrations on any one fine morning would be defensible, nor would it be a matter for constitutional interpretation because it will clearly fly in the face of Art. 30(1) of the Constitution, which guarantees to everyone “the right to assemble and to demonstrate together with others peaceably and unarmed, and to petition.” In other words, a court of law in Ethiopia can declare that such a ban by the chief executive violates the Constitution; that is precisely what it is supposed to do under Art. 13(1) of the Constitution. But in the *CUD* case, the court was confronted not with a clear situation of enforcement of the Constitution in normal times but with a high-stakes situation in which, depending on its rulings—whether its ruling is correct or not—a situation that menaces the wellbeing of the public would arise. This will directly place the court in confrontation with the executive, not to mention the risk that its decision will be dishonoured by the latter. And it was only prudent in my opinion for the court to make this case a case for constitutional interpretation and get out of the flames, at least momentarily.

On a non-prudential consideration ground, and this is more important, I also believe that there was an issue of constitutionality involved in that case. As stated above, the question was whether the Prime Minister was empowered by the Constitution to take measures (such as the one he took) in circumstances in which he deemed the nation’s peace and order would otherwise be in grave danger. I argue that such a constitutional interpretation question—textual interpretation that is—is

warranted in the absence of a clear constitutional provision answering such a question. That was what that Court did, and that was in a way what the CCI investigated in its opinion by looking at the overall executive powers in the Constitution.

In conclusion of the above points, I would like to underscore first that the CCI has no doubts or confusion regarding its powers of investigation into constitutional disputes to ultimately recommend the textual interpretation of the Constitution by the HoF. Secondly, it is important to note from the foregoing that a jurisprudential stance to the effect that ordinary constitutional enforcement issues will not be passed upon by the CCI/HoF is being developed, as the numerous cases rejected by the CCI has effectively demonstrated. This is in line with the Constitution's provisions, particularly those under Arts. 83 and 84 (1). These provisions make reference to constitutional disputes, not to everyday constitutional application or enforcement. Takele rightly observes that constitutional dispute is said to have arisen if there is a real and important disagreement between two or more constructions of a constitutional rule or principle, each of which is forcefully persuasive. If owing to the equally persuasive nature of the arguments of both sides, a judge believes that the dispute cannot be resolved without interpreting the constitutional rule or principle in question, there arises the need to interpret the Constitution. Constitutional disputes do not involve factual disputes. Constitutional disputes rather involve in terms of the text of the Constitution issues like the resolution of gaps in the Constitution (such as the one determined in relation to the *Silte* case), conflict of norms in the Constitution and problems arising from the *sui generis* nature of the Constitution.

I shall now turn to the second category of the CCI's jurisprudence, the review of the constitutionality of laws and decisions. The CCI defines its jurisdiction regarding review of constitutionality of laws and decisions very narrowly. It appears that the CCI has come to believe that the Ethiopian Constitution limits its (and the HoF's) power of reviewing constitutionality only to cases of contestation that a Federal HoPR's or a state council's proclamation is unconstitutional. It suffices to see a recent case considered and decided by the CCI to show its position in this regard. In the case *Ethiopian Blind Persons Association v. Oromia Education Bureau and Jimma College of Teacher Education*, the CCI stated that if at issue is the constitutionality of other matters than state or federal proclamations, it will not be for the CCI to decide but for the courts. It reasoned on the basis of Art. 84(2) that its mandate is limited to review of constitutionality of proclamations of both levels of government. Interestingly, it also admonished courts in its opinions that they should send only those cases in which constitutionality of proclamations are challenged, not when regulations or decisions are challenged. My reading of the relevant provisions of the Constitution as well as the documents recording its making process demonstrate that the interpretive jurisdiction of the HoF (and CCI) is meant to be all-encompassing. In other words, whether at issue is the constitutionality of a proclamation or a regulation of the executive or a decision of an official or organ of state, the ultimate settler is the HoF. (. . .)

Although the position of the CCI had been along the line described in the last paragraph of this author's paper excerpted above, since end of 2000s, the CCI has come to view its investigation power to encompass all kinds of laws or decisions contested as unconstitutional. This in fact is now unequivocally stated in Proclamation No. 798/2013, art 3(1) of which states:

When the unconstitutionality of any law or customary practice or decision of government organ or decision of government official is submitted in writing to the Council, it shall consider the matter. Should the Council, upon consideration of the matter, find it necessary to interpret the Constitution, it shall submit its recommendation thereon to the House of the Federation.

Many recent opinions of the CCI also show that its subject-matter jurisdiction extend of laws made by the executive as well.

Questions and Discussion

1. Discuss the significant developments and the variations with the European system of constitutional interpretation as explained by Mauro Cappelletti and John Clarke Adams.
2. Do you agree with Getachew Assefa's assessment of the CCI's opinion in *Ethiopian Blind Persons Association v. Oromia Education Bureau and Jimma College of Teacher Education*? Why/Why not?
3. Do you believe that the HoF has settled the *Silte case* in a plausible fashion? Re-read the excerpt from Getachew's paper and discuss your agreement or disagreement.

Constitutional interpretation by the CCI and the HoF is happening at a slow pace obviously compared to those happening in other jurisdictions such as South Africa, Germany and the United States. From around the beginning of 2010s, relatively large number of cases have come to the CCI most of which are petitions against the decisions of the cassation bench of the federal Supreme Court. It is reported that as of 2021, more than six thousand applications have been lodged out of which over three thousand are pending in its docket. It is interesting to note that the CCI and the HoF have decided on some important cases and in some instances they have given decisions that have rendered the laws passed by the HoPR unconstitutional. A good example is the 2014 decision on *Melaku Fenta vs. Federal Public Prosecutor*. In this case, the issue before the CCI and HoF was whether article 8(1) of the Federal Courts Proclamation No. 25/96¹⁷ and analogous provisions of Anti-corruption Proclamation No. 434/2005 which provide that the Federal Supreme Court shall have first instance jurisdiction on offences for which officials of the Federal Government are charged. The challenge was based on the constitutional right to appeal recognized under article 20(6) of the FDRE Constitution. The HoF, which endorsed the recommendations of the CCI, held that allowing the Federal Supreme Court to assume first instance jurisdiction over such kinds of cases is unconstitutional because it undermines the right to appeal protected under Article 20(6) and would be discriminatory in a manner contrary to article 25 of the Constitution. Consequently, the HoF rendered article 8(1) of the Federal Court Proclamation and the analogous provisions of Anti-Corruption Proclamation unconstitutional, and ordered that the case be heard at the Federal High Court.

Another high profile constitutional interpretation case decided by the HoF was the one related to the postponement of the 2020 general elections of Ethiopia. The 2020 general elections could not take place in 2020 due to global outbreak of COVID-19 pandemic. The postponement of the elections became a thorny issue finding opposition political parties and the public on different sides of the issues. As a result, it became a subject of constitutional interpretation. On May 6, 2020, the HoPR sent a request to the Council of Constitutional Inquiry (CCI) seeking the interpretation of the 1995 Constitution, framing the following two questions.

- 1) If a situation that calls for the declaration of state of emergency—and thereby making pre-election preparations and the conduct of elections impossible—occur during the election year, what would be the fate of the executive and federal and regional parliaments whose terms are due to expire soon? What can be done about the terms of office of the executive officials and elected bodies?
- 2) What should be the appropriate time for holding the elections once the grounds for the declaration of the state of emergency have disappeared?

These questions were posited for constitutional interpretation because the Constitution did not provide for situations like this. It simply states that elections shall be held every five years but did not regulate what would happen if a state of emergency that makes the conduct of elections

¹⁷ The Federal Courts Proclamation No. 25/1996 (as amended over the years) has been repealed and replaced by replaced by Proclamation No. 1234/2021.

impossible is declared on constitutionally legitimate grounds during an election year. Based on the request, the CCI considered the matter and made recommendations to the House of Federation (HoF). The CCI recommended that the terms of offices of the federal and regional executive and legislative bodies can legitimately continue owing to the declaration of the state of emergency declared to prevent and control COVID-19 pandemic until elections are held; and that elections should be held within 9-12 months from the time the national and international health authorities and scientists confirm that COVID-19 is no more a public health threat. These recommendations were adopted by the HoF. This decision of the HoF was widely accepted by the Ethiopian public. But some government opposition remained critical of the decision. The most ardent opponent being the Tigray people's Liberation Front (TPLF) that control the Tigray region.

In any case, the elections were postponed as per the decision of the HoF. In September 2020, the HoPR passed a resolution (Resolution No. 16/2013) that the postponed sixth general elections be conducted within one year of the resolution. Consequently, the elections were held on 21 June 2021.

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